SUPPLEMENT NO. 119
August 2026

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 11, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
220.1	220.1
571, 572	571
573—592	573—579
1223, 1224	1223—1224.1
2041—2044	2041—2044.1
3131, 3132	3131, 3132
3159—3162	3159—3162
3235—3314	3235—3311

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SUPPLEMENT NO. 118
February 2026

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 27, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
220.1	220.1
1973—1983	1973—1984
3131, 3132	3131, 3132

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SUPPLEMENT NO. 117
August 2025

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 27, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
218.3—218.12	218.3—218.13
240.1—240.3	240.1—240.4
1453—1456	1453—1455
1457—1460.1	1457—1460.7
1799, 1800	1799, 1800
1843, 1844	1843—1851
3131, 3132	3131, 3132
3159—3162	3159—3162
3235—3314	3235—3314

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SUPPLEMENT NO. 116
June 2025

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of March 24, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
251—252.1	251—252.1
1055	1055
1067—1069	1067—1070
1989—1992	1989—1992
2035, 2036	2035, 2036
2041—2046.1	2041—2046.2
3131, 3132	3131, 3132
3235—3314	3235—3314

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SUPPLEMENT NO. 115
January 2025

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of November 25, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
220.1	220.1
405	405
407	407
3131, 3132	3131, 3132

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SUPPLEMENT NO. 114
July 2024

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of April 22, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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220.1	220.1
225—228	225—228
262.5—262.12	262.5—262.10
695—698.1	695—698
1179, 1180	1179—1180.1
1457—1458.2	1457—1458.2
2041—2042.1	2041—2042.1
3131, 3132	3131, 3132
3159—3162	3159—3162
3235—3313	3235—3314

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SUPPLEMENT NO. 113
January 2024

MUNICIPAL CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance of September 25, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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1468.1—1472	1469—1475
3131, 3132	3131, 3132
3159—3161	3159—3162
3235—3313	3235—3313

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SUPPLEMENT NO. 112
September 2023

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance of June 26, 2023(3) and Ordinance of June 26, 2023(5).

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1181—1182.5	1181—1182.5
1223—1230	1223—1230.1
1458.1—1458.4	1458.1—1458.4
2041—2042.1	2041—2042.1
3131, 3132	3131, 3132
3159—3161	3159—3161

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SUPPLEMENT NO. 111
February 2023

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance of January 23, 2023(3).

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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155, 156	155, 156
218.3, 218.4	218.3, 218.4
242.1—244.2	243—244.2.4
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SUPPLEMENT NO. 110
September 2022

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance of June 27, 2022(1).

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
2041—2042.1	2041—2042.1
3131, 3132	3131, 3132

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SUPPLEMENT NO. 109
June 2022

MUNICIPAL CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance of March 14, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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861—872	861—864
1225—1228	1225—1228
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1813, 1814	1813—1814.1
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SUPPLEMENT NO. 108
May 2021

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 02-21, enacted February 8, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
234.3—236.2	235—236.2.4
1815—1816.1	1815—1816.1
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SUPPLEMENT NO. 107
January 2021

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 003-20, enacted June 22, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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219—220.1	219—220.1
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240.1—240.4	240.1—240.3
265—266.3	265—266.3
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925, 926	925, 926
1457—1458.2	1457—1458.2
1463—1468	1463—1468.1
1517, 1518	1517—1518.1
1687, 1688	1687, 1688
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2039—2046.1	2039—2046.1
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3159—3162	3159—3162
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3263, 3264	3263, 3264

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3287—3317	3287—3317

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SUPPLEMENT NO. 106
July 2020

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 001-20, enacted March 9, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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SUPPLEMENT NO. 105
December 2019

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 15-19, enacted October 28, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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1687—1689	1687—1689
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SUPPLEMENT NO. 104
September 2019

MUNICIPAL CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 12-19, enacted June 24, 2019.

See the Code Comparative Table for further information.

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ix—xvi	ix—xvi
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1162.1	1162.1
1195, 1196	1195—1198
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3275, 3276	3275, 3276
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3301—3308	3301—3308
3313—3316	3313—3316

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July 2019

MUNICIPAL CODE

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This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 06-19, adopted April 22, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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461, 462	461, 462
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1181, 1182	1181—1182.5
1680.1—1684.1	1681—1684.1
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1802.1—1804.7	1803—1804.11
1815—1816.1	1815—1816.1
1837, 1838	1837—1844
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3246.1—3254	3247—3254.1
3259, 3260	3259, 3260
3269, 3270	3269—3270.1
3279, 3280	3279, 3280

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3303—3317	3303—3318

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SUPPLEMENT NO. 102
September 2018

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 05-18, adopted July 9, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
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SH:3, SH:4	SH:3—SH:5
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2201—2204	2201—2206
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3237, 3238	3237, 3238
3243—3246.1	3243—3246.1
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3265—3274	3265—3274
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3299—3306	3299—3306
3313—3317	3313—3317

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SUPPLEMENT NO. 101
April 2018

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 25-17, adopted December 11, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
218.1—218.4.1	218.1—218.4.1
237—240.4	237—240.4
1055—1069	1055—1069
1161, 1162	1161, 1162
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1453, 1454	1453, 1454
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3292.1—3294	3293—3294.1
3298.1—3308	3299—3308.1
3312.1—3317	3313—3317

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SUPPLEMENT NO. 100
February 2018

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 17-17, adopted August 14, 2017.

The Code is up to date through:

Ordinance No. 19-17, adopted September 11, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3129	3129

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SUPPLEMENT NO. 99
December 2017

MUNICIPAL CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-17, adopted September 11, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3129	3129
3159—3162	3159—3162
3267, 3268	3267—3268.1
3290.1—3292.1	3291—3292.1
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SUPPLEMENT NO. 98
September 2017

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-17, adopted June 26, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xvi	xiii—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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3239, 3240	3239—3240.1
3245—3246.1	3245—3246.1
3256.1—3258	3257—3258.1
3269—3272.1	3269—3272.1
3276.1—3282.1	3277—3282.1

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SUPPLEMENT NO. 97
June 2017

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-17, adopted March 27, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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223—224.1	223—224.1
233, 234	233—234.1
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308.24.1—308.30	308.25—308.30.1
309	309, 310
352.29, 352.30	352.29, 352.30
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3269—3272	3269—3272.1
3289, 3290	3289—3290.1
3302.1—3304	3303—3304.1

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3309—3310.1	3309—3310.1
3313, 3314	3313, 3314

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SUPPLEMENT NO. 96
January 2017

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-16, adopted December 16, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
256.1—260.2	257—260.4
266.1, 266.2	266.1—266.3
3127, 3128	3127, 3128

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SUPPLEMENT NO. 95
October 2016

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-16, adopted September 12, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
573	573
591, 592	591, 592
1459—1460.1	1459—1460.1
1799	1799
1837	1837, 1838
1965	1965—1966.2
1989	1989—1992
3127, 3128	3127, 3128
3159—3162	3159—3162
3241—3246	3241—3246.1
3269, 3270	3269—3270.1
3291, 3292	3291—3292.1
3297, 3298	3297—3298.1
3305, 3306	3305—3306.1

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SUPPLEMENT NO. 94
August 2016

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-16, enacted June 27, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
1453—1458	1453—1458.4
1469—1471	1469—1472
2041, 2042	2041—2042.1
3127, 3128	3127, 3128
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3281, 3282	3281—3282.1

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SUPPLEMENT NO. 93
May 2016

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-16, adopted March 14, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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3253—3254.1	3253—3254.1
3274.1—3276.1	3275—3276.1
3281—3286	3281—3286.1
3308.1—3310	3309—3310.1

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SUPPLEMENT NO. 92
January 2016

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-15, adopted December 28, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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222.9, 222.10	222.9—222.11
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313—318.1	313—318.1
331—334	331—334.1
1111—1113	1111
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2045—2049	2045—2049
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3159—3162	3159—3162
3241—3242.1	3241—3242.1
3267, 3268	3267, 3268
3274.1	3274.1
3309, 3310	3309, 3310

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SUPPLEMENT NO. 91
October 2015

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-15, adopted August 10, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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1217—1220	1215—1217
	1219, 1220
1230.1—1237	1231—1240
3127, 3128	3127, 3128
3235, 3236	3235, 3236
3270.1—3274	3271—3274.1
3279, 3280	3279, 3280
3296.1—3302	3297—3302.1

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SUPPLEMENT NO. 90
August 2015

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-15, adopted June 22, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi, xii	xi—xii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
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222.5—222.8	222.5—222.8
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	1679—1680.1
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3259—3264	3259—3264.1
3275—3276.1	3275—3276.1
3282.1—3284	3283—3284.1
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SUPPLEMENT NO. 89
May 2015

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-15, adopted April 13, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3249—3250.1	3249, 3250
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SUPPLEMENT NO. 88
January 2015

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-14, adopted October 14, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
218.3—218.4.1	218.3—218.4.1
223—226	223—226
247—252	247—252.1
3127, 3128	3127, 3128
3275, 3276	3275—3276.1
3281, 3282	3281—3282.1
3292.1—3294	3293—3294.1
3309—3312	3309—3312.1

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SUPPLEMENT NO. 87
September 2014

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-14, adopted July 14, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
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244.3	244.3, 244.4
335—338.5	335—338.6
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928.3—930	929—930.1
945—947	945—947
1797—1802	1797—1799
	1801—1802.2
3127	3127, 3128
3161	3161, 3162
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3241—3242.1	3241—3242.1
3249—3250.1	3249—3250.1
3261—3270	3261—3270.1
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SUPPLEMENT NO. 85
March 2014

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21-13, adopted December 9, 2013.

See the Code Comparative Table for further information.

Included in the Charter is:

Election of November 5, 2013.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
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218.11, 218.12	218.11, 218.12
220.1—222.4	221—222.4.1
233—235	233—236
244.1, 244.2	244.1—244.3
254.1—256	255—256.2
262.3—262.8.1	262.3—262.6
308.23, 308.24	308.23—308.24.1
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759, 760	759—762
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3127	3127
3159—3161	3159—3161
3211—3220	3211—3220
3235—3242.1	3235—3242.1

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3267—3268.1	3267—3268.1
3275—3292	3275—3292.1
3299, 3300	3299—3300.1
3309—3329	3309—3317

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SUPPLEMENT NO. 84
November 2013

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-13, adopted September 9, 2013.

See the Code Comparative Table for further information.

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ix—xv	ix—xv
	SH:3
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
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1456.1—1456.3	1456.1—1456.3
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SUPPLEMENT NO. 83
August 2013

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-13, adopted May 13, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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236.4.1—236.6	236.5—236.6.1
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1827—1837	1827—1837
3127	3127
3159—3161	3159—3161
3265, 3266	3265, 3266
3281, 3282	3281, 3282
3317	3317

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SUPPLEMENT NO. 82
March 2013

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-13, adopted February 25, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 81
December 2012

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-12, adopted October 9, 2012

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xii	ix—xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3235—3242.1	3235—3242.1
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3269, 3270	3269, 3270
3277, 3278	3277, 3278
3283, 3284	3283—3284.1
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SUPPLEMENT NO. 80
August 2012

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-12, adopted May 29, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xiv	xi—xiv
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SUPPLEMENT NO. 79
May 2012

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-12, adopted April 9, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 78
April 2012

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1-12, adopted January 23, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
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November 2011

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-11, adopted October11, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xv	xi—xv
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SH:1, SH:2	SH:1, SH:2
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1467—1470	1467—1470
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SUPPLEMENT NO. 76
September 2011

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 42-11, enacted July 11, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 75
June 2011

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-11, enacted April 25, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvi	ix—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1 (following Checklist of up-to-date pages)
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SUPPLEMENT NO. 74
February 2011

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-10, enacted December 13, 2010.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 73
October 2010

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains:

Ordinance No. 07-09, enacted March 9, 2009.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 72
August 2010

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-10, enacted June 6, 2010.

See the Code Comparative Table—Ordinances for further information.

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November 2009

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 35-09, enacted September 14, 2009.

See the Code Comparative Table—Ordinances for further information.

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August 2009

MUNICIPAL CODE

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Ordinance No. 23-09, enacted May 26, 2009.

See the Code Comparative Table—Ordinances for further information.

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May 2008

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City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-08, enacted April 28, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xvi	ix—xvi
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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 01-08, enacted January 14, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-07, enacted September 24, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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Ordinance No. 12-07, enacted July 9, 2007.

See the Municipal Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-07, enacted May 14, 2007.

See the Municipal Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28-06, enacted November 27, 2006.

See the Municipal Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xvi	xiii—xvi
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Ordinance No. 24-06, enacted September 25, 2006.

See the Municipal Code Comparative Table for further information.

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August 2006

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Ordinance No. 21-06, enacted July 10, 2006.

See the Code Comparative Table for further information.

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July 2006

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City of

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Ordinance No. 11-06, enacted April 24, 2006.

See the Code Comparative Table for further information.

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The Housing and Zoning pamphlets are not affected in this Supplement No. 61 at this time.

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March 2006

MUNICIPAL CODE

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Ordinance No. 01-06, enacted February 14, 2006.

See the Code Comparative Table—Ordinances for further information.

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November 2005

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Ordinance No. 16-05, enacted October 24, 2005.

See the Municipal Code Comparative Table—Ordinances for further information.

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August 2005

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City of

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Ordinance No. 06-05, enacted May 23, 2005.

See the Code Comparative Table—Ordinances for further information.

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May 2005

MUNICIPAL CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-05, enacted March 14, 2005.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 56
March 2005

MUNICIPAL CODE

City of

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Ordinance No. 01-05, enacted January 10, 2005.

See the Code Comparative Table—Ordinances for further information.

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November 2004

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Ordinance No. 17-04, enacted October 25, 2004.

See the Code Comparative Table—Ordinances for further information.

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xiii—xv	xiii—xv
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3159—3161	3159—3161
3241—3244	3241—3244
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3289, 3290	3289—3290.1
3293—3296	3293—3296

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SUPPLEMENT NO. 54
September 2004

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-04, enacted July 6, 2004.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Election of November 5, 2002.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1—70	1—37
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SUPPLEMENT NO. 53
April 2004

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-04, enacted February 9, 2004.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Ordinance No. 06-04, adopted February 9, 2004.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 52
January 2004

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 55-03, enacted December 22, 2003.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Ordinance No. 49-03, adopted October 14, 2003.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 51
November 2003

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 46-03, enacted September 8, 2003.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Ordinance No. 36-03, adopted June 23, 2003.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 50
July 2003

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-03, enacted April 28, 2003.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 10-03, adopted April 28, 2003.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 49
April 2003

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-03, enacted March 10, 2003.

See the Code Comparative Table for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 48
February 2003

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 63-02, enacted January 13, 2003.

See the Code Comparative Table-Ordinances for further information.

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SUPPLEMENT NO. 47
October 2002

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 37-02, enacted September 24, 2002.

See the Code Comparative Table-Ordinances for further information.

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3277—3286	3277—3286
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SUPPLEMENT NO. 46
July 2002

MUNICIPAL CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28-02, enacted June 24, 2002.

See the Municipal Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 24-02, adopted June 24, 2002.

See the Charter Comparative Table-Ordinances for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 45
May 2002

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-02, enacted April 8, 2002.

See the Municipal Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
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SUPPLEMENT NO. 44
January 2002

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-01, enacted December 10, 2001.

See the Municipal Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 7B-01, adopted June 25, 2001.

See the Charter Comparative Table-Ordinances for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 43
October 2001

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-01, enacted September 24, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 42
July 2001

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 7-01, enacted May 29, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xv	xiii—xv
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SUPPLEMENT NO. 41
April 2001

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3-01, enacted February 13, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 40
January 2001

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 41-00, enacted October 10, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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**The Housing Pamphlet was not affected in Supplement No. 40.

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SUPPLEMENT NO. 39, REVISION
January 2001

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement No. 39, Revision, is issued to revise pages appearing in Supplement No. 39 and should be inserted as directed below.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 39
October 2000

MUNICIPAL ORDINANCES

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-00, enacted September 25, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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**The Zoning pamphlet for Chapter 35 is not affected in this Supplement 39 at this time.

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SUPPLEMENT NO. 38
July 2000

MUNICIPAL ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-00, enacted June 26, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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**The Zoning and Housing pamphlets are not affected in this Supplement No. 38 at this time.

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SUPPLEMENT NO. 37
June 2000

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-00, enacted May 8, 2000.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 10-00, adopted April 24, 2000.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3293—3294.1	3293—3294.1

Remove old pages	*Insert new pages*
3297, 3298	3297, 3298
3311, 3312	3311, 3312

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SUPPLEMENT NO. 36
February 2000

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-99, enacted November 22, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
217, 218	217, 218
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3117, 3118	3117, 3118
3235—3238	3235—3238
3279—3282	3279—3282
3287—3290	3287—3290

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**The Pamphlets for Ch. 18 Housing and Ch. 35 Zoning were not affected in this Supplement No. 36 at this time.

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SUPPLEMENT NO. 35
October 1999

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-99, enacted September 27, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
262.3—262.7	262.3—262.7
2383—2384.1	2383—2384.1
3117, 3118	3117, 3118

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**The Housing Pamphlet was not affected in Supplement No. 35 at this time.

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SUPPLEMENT NO. 34
July 1999

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-99, enacted June 28, 1999.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 12-99, adopted April 26, 1999.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
64.17—64.23	64.17—64.23
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687—690	687—690
697—699	697—699
1685, 1686	1685, 1686
3117, 3118	3117, 3118
3237, 3238	3237, 3238

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*The Housing Pamphlet and the Zoning Pamphlet were not affected in Supplement No. 34 for this Supplement.

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SUPPLEMENT NO. 33
May 1999

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 8-99, enacted March 22, 1999.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 4-99, adopted January 25, 1999.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
64.9—64.15	64.9—64.23
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1801—1806	1801—1806.1
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2219—2220.1	2219—2220.1
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3117, 3118	3117, 3118
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3279, 3280	3279, 3280
3293, 3294	3293—3294.1
3309—3312	3309—3312

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SUPPLEMENT NO. 32, REVISION
December 1999

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement No. 32, Revision, is printed to revise pages appearing in Supplement No. 32 and should be inserted as directed below.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
2041—2042.1	2041—2042.1

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SUPPLEMENT NO. 32
February 1999

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1-99, enacted January 11, 1999.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 62-98, adopted December 14, 1998.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
64.9, 64.10	64.9, 64.10
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689—694	689—694.2
749	749
751—755	751—756
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2338.3, 2338.4	2338.3, 2338.4
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SUPPLEMENT NO. 31
November 1998

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-98, enacted August 10, 1998.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 52-98, adopted October 6, 1998.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
56.1—63	56.1—64
64.9, 64.10	64.9, 64.10
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293—294.1	293—294.1
3117, 3118	3117, 3118

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SUPPLEMENT NO. 30
August 1998

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-98, enacted June 8, 1998.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
265—268.1	265—268.1
689—692	689—692
693—700	693—699
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2245—2256	2245—2256.2
2291—2294	2291—2294.2
2297—2300	2297—2300
2303—2306	2303—2306
2309—2312	2309—2312
2312.3—2314	2313—2314.1
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2340.1—2342.3	2341—2342.4
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2370.3, 2370.4	2370.3, 2370.4
2383, 2384	2383—2384.1
2387—2390.3	2387—2390.4
2393—2398	2393—2398.1
3117	3117, 3118
3237—3238.1	3237—3238.1
3339, 3340	3339—3341

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SUPPLEMENT NO. 29
May 1998

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5-98, enacted April 27, 1998.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 6-98, adopted April 27, 1998.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
64.9—64.11	64.9—64.15
155	155
242.3—243	242.3—243
1811—1815	1811—1814
3117	3117
3159, 3160	3159—3161

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SUPPLEMENT NO. 28
February 1998

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3-98, enacted January 12, 1998.

See the Municipal Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 22-97, adopted November 24, 1997.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
63, 64	62.1—63
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234.1—234.3	234.1—234.3
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1685, 1686	1685, 1686
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1797	1797
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1969—1970.1	1969—1970.1
2041—2042.1	2041—2042.1
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3241—3246.1	3241—3246.1
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SUPPLEMENT NO. 27
October 1997

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-97, enacted September 22, 1997.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
255—258	255—258.1
267—268.1	267—268.1
690.1—692	691—692.2
3117	3117
3159, 3160	3159, 3160
3245—3246.1	3245—3246.1

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SUPPLEMENT NO. 26
July 1997

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-97, enacted June 23, 1997.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xii	ix—xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
262.3—262.7	262.3—262.7
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1859, 1860	1859, 1860
1977, 1978	1977—1978.1
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2337, 2338	2337—2338.1
2369, 2370	2368.1—2369
3115, 3116	3115—3117
3159, 3160	3159, 3160
3257, 3258	3257, 3258
3271, 3272	3271, 3272
3281, 3282	3281, 3282
3333, 3334	3333, 3334

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SUPPLEMENT NO. 25
May 1997

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 8-97, enacted March 24, 1997.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 7-97, adopted March 24, 1997.

See the Charter Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
64.3—64.9	64.3—64.11
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1807, 1808	1807—1813
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3115, 3116	3115, 3116
3159, 3160	3159, 3160
3236.1—3238	3237—3238.1
3243—3246.1	3243—3246.1
3251, 3252	3251, 3252
3257—3258.1	3257—3258.1
3293, 3294	3293—3294.1
3301—3304	3301—3304

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SUPPLEMENT NO. 24
February 1997

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 61-96, enacted December 16, 1996.

See the Municipal Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 1-97, adopted January 13, 1997.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
53, 54	53—54.2
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689, 690	689—690.1
2041—2042.1	2041—2042.1
2237—2242.1	2237—2242.2
2325, 2326	2325, 2326
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2371, 2372	2371, 2372
2375, 2376	2375—2376.1
3115, 3116	3115, 3116
3243—3246	3243—3246
3285, 3286	3285, 3286
3297, 3298	3297, 3298
3331, 3332	3331, 3332

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SUPPLEMENT NO. 23, REVISION
October 1997

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement No. 23, Revision, is issued to revise pages appearing in Supplement No. 23 and should be inserted as directed below.

Remove old pages	*Insert new pages*
2385, 2386	2385—2386.1

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SUPPLEMENT NO. 23
December 1996

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-96, enacted October 28, 1996.

See the Municipal Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
xiii—xv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
227—232	227—232.2
262.1—262.7	262.1—262.7
1219—1222	1219—1222
1679—1680.1	1679, 1680
2203—2222.1	2203—2222.1
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3271—3290	3271—3290.1
3305—3308	3305—3308
3317—3319	3317—3319
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SUPPLEMENT NO. 22, REVISION
August 1996

CODE OF ORDINANCES

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement No. 22, Revision, is printed to revise pages appearing in Supplement No. 22, and should be inserted as directed below:

Remove old pages	*Insert new pages*
ix, x	ix, x
217, 218	217, 218
234.1, 234.2	234.1—234.3
242.1—242.2.1	242.1—242.2.1
3297, 3298	3297, 3298

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SUPPLEMENT NO. 22
August 1996

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18-96, enacted June 24, 1996.

See the Municipal Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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227—230.1	227—230.2
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271—276.1	271—276.1
281, 282	281—282.1
691—694	691—694
1799—1800.1	1799, 1800
2151	2151
3115	3115
3159, 3160	3159, 3160
3243—3246	3243—3246.1
3259—3261	3259—3261
3275, 3276	3275, 3276
3282.1—3284	3283—3284.1
3293—3298	3293—3298
3319	3319

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SUPPLEMENT NO. 21
April 1996

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 8-96, enacted March 25, 1996.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi—xv	xi—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
681	681
683, 684	683, 684
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699	699
1228.1—1232.1	1229—1232.1
1629, 1630	1629, 1630
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2337—2338.1	2337—2338.1
3115	3115
3159, 3160	3159, 3160
3237—3240	3237—3240
3242.1—3244	3243—3244.1
3251—3256	3251—3256
3258.1—3261	3259—3261
3271—3278	3271—3278.2
3281, 3282	3281—3282.1
3285, 3286	3285, 3286
3294.1—3296	3295, 3296
3301, 3302	3301, 3302
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3319	3319

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SUPPLEMENT NO. 20
January 1996

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27-95, enacted December 11, 1995.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xii	ix—xii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
240.1, 240.2	240.1—240.2.1
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1223, 1224	1223, 1224
1397, 1398	1397—1398.1
2337—2338.1	2337—2338.1
3115	3115
3279, 3280	3279, 3280
3289, 3290	3289, 3290
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SUPPLEMENT NO. 19
October 1995

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-95, enacted September 25, 1995.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
273—276	273—276.1
1679, 1680	1679, 1680
1797	1797
1807	1807, 1808
1973—1976	1973—1976.1
3115	3115
3159, 3160	3159, 3160
3269—3272.1	3269—3272.1
3293, 3294	3293, 3294

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SUPPLEMENT NO. 18
August 1995

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-95, enacted July 10, 1995.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 6-95, adopted May 22, 1995.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
53—56	53—56.1
64.7, 64.8	64.7, 64.8
155	155
229—230.1	229—230.1
243—244.1	243—244.2
267, 268	267—268.1
290.1—294	291—294.1
299—300.1	299—300.1
1629	1629, 1630
1679, 1680	1679—1680.1
1799—1800.1	1799—1800.1
2325, 2326	2325, 2326
2337—2338.1	2337—2338.1
2367, 2368	2367—2368.1
2377, 2378	2377—2378.1
3115	3115
3237, 3238	3237—3238.1
3241, 3242	3241, 3242
3253, 3254	3253, 3254
3257, 3258	3257—3258.1
3261	3261
3285—3290	3285—3290
3293, 3294	3293—3294.1
3305—3308	3305—3308
3313, 3314	3313, 3314

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SUPPLEMENT NO. 17
February 1995

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2-95, enacted January 23, 1995.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix—x.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
217	217
229, 230	229, 230
240.1—240.4	240.1—240.6
2041, 2042	2041, 2042
3115	3115
3241, 3242	3241—3242.1
3259, 3260	3259, 3260
3271, 3272	3271—3272.1
3276.1	3276.1
3281, 3282	3281, 3282
3317—3319	3317—3319

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SUPPLEMENT NO. 16
December 1994

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 32-94, enacted September 26, 1994.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 33-94, adopted September 26, 1994.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
64.5—64.8	64.5—64.9
155	155
221, 222	221, 222
224.1—230	225—230.1
259, 260	259—260.1
519, 520	519, 520
1799, 1800	1799—1800.1
2369, 2370	2369, 2370
3113, 3114	3113—3115
3251—3261	3251—3261
3272.1—3276	3273—3276.1
3281, 3282	3281, 3282
3291—3298	3291—3298
3305—3308	3305—3308
3313, 3314	3313, 3314
3319	3319

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SUPPLEMENT NO. 15
August 1994

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21-94, enacted June 27, 1994.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 22-94, adopted June 27, 1994.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
48.1—64.4	49—64.8
155	155
688.1—696	689—696.2
1679—1682	1679—1682
2203—2206	2203—2206
2215, 2216	2215—2216.1
3113, 3114	3113, 3114
3159, 3160	3159, 3160
3241, 3242	3241, 3242
3275, 3276	3275, 3276
3281, 3282	3281, 3282
3289, 3290	3289, 3290
3299, 3300	3299, 3300

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SUPPLEMENT NO. 14
April 1994

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-94, enacted February 28, 1994.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
243, 244	243, 244
2041—2042.1	2041—2042.1
2319, 2320	2319, 2320
2325—2330	2325—2330
2337—2338.1	2337—2338.1
2344.3—2348	2345—2348.1
2370.1, 2370.2	2370.1—2370.3
3113, 3114	3113, 3114
3329, 3330	3329—3330.1
3335, 3336	3335, 3336

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SUPPLEMENT NO. 13
February 1994

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 68-93, adopted November 22, 1993.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 64-93, adopted November 22, 1993.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
47, 48	47—48.2
55, 56	55, 56
155	155
161—164	161—164
217	217
227, 228	227, 228
242.3—244	243—244.1
280.1—282.3	281, 282
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1343, 1344	1343, 1344
1517, 1518	1517—1519
1627—1629	1627—1629
2151	2151
3113, 3114	3113, 3114
3237—3262	3237—3261
3269—3272.1	3269—3272.1
3277—3286	3277—3286
3291—3294	3291—3294
3299—3306	3299—3306
3310.1—3319	3311—3319

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SUPPLEMENT NO. 12
December 1993

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 57-93, enacted September 16, 1993.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 34-93, adopted August 9, 1993.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
50.1	50.1
155	155
217	217
238.1—240	239—240.4
1625—1627	1625—1629
2221—2222.1	2221—2222.1
2242.1—2246	2243—2246
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2305—2312	2305—2312.3
2319—2338	2319—2338.1
3113, 3114	3113, 3114
3235—3238	3235—3238
3243—3246	3243—3246
3251—3256	3251—3256
3261, 3262	3261, 3262
3271—3272.2	3271—3272.1
3305, 3306	3305, 3306
3331—3340	3331—3340

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SUPPLEMENT NO. 11
September 1993

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24-93, enacted July 12, 1993.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 26-93, adopted July 12, 1993.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
47—50.1	47—50.1
63—64.2	63—64.4
155	155
217	217
223—224.1	223—224.2
257—262	257—262.7
276.1—280	277—280.1
294.1—300	295—300.1
684.1—688.1	685—688.1
751, 752	751, 752
1740.1—1742.1	1741—1742.1
3113	3113, 3114
3159, 3160	3159, 3160
3241—3272	3241—3272.2
3277—3292	3277—3292
3296.1—3310	3297—3310.1

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SUPPLEMENT NO. 10
June 1993

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-93, enacted April 26, 1993.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 6-93, adopted February 22, 1993.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
62.1—64	63—64.2
155	155
257—258.3	257—258.3
999—1004	999—1005
1059—1062	1059—1062
2235—2238	2235—2238.1
3113	3113
3267—3268.1	3267—3268.1
3339, 3340	3339, 3340

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SUPPLEMENT NO. 9
March 1993

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4-93, enacted January 25, 1993.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 3-93, adopted January 25, 1993.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
49, 50	49—50.1
62.1	62.1, 62.2
155	155
163, 164	163—164.1
256.1—258.2	257—258.3
2041—2042.1	2041—2042.1
3113	3113
3291, 3292	3291, 3292

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SUPPLEMENT NO. 8
November 1992

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 44-92, enacted October 13, 1992.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 38-92, adopted September 14, 1992.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
49, 50	49, 50
61—62.1	61—62.1
155	155
221—224	221—224.1
257, 258	256.1—257
275, 276	275—276.1
293, 294	293—294.1
696.1—699	697—699
2201	2201
2214.1—2222.1	2215—2222.1
2339—2342.3	2339—2342.3
2386.1—2390	2387—2390.3
3113	3113
3338.1—3340	3339, 3340

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SUPPLEMENT NO. 7
August 1992

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30-92, enacted June 22, 1992.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 31-92, adopted June 22, 1992.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
49, 50	49, 50
62.1	62.1
155	155
217	217
233, 234	233—234.2
257—258.1	257—258.2
681	681
699	699
1455—1457	1454.1—1457
1683, 1684	1683, 1684
3113	3113
3159, 3160	3159, 3160
3241, 3242	3241, 3242
3245, 3246	3245, 3246
3291, 3292	3291, 3292
3294.1—3296.1	3295—3296.1

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SUPPLEMENT NO. 6
June 1992

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24-92, enacted May 12, 1992.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 3-92, adopted January 13, 1992.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix—x.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
49, 50	49, 50
61, 62	61—62.1
155	155
217	217
219—222	219—222
237—238.1	237—238.2
242.3	242.3
281, 282	281—282.3
299, 300	299, 300
691, 692	691—692.1
695—696.1	695—696.1
1165—1167	1165—1167
1457, 1458	1456.1—1457
1683, 1684	1683, 1684
2041—2042.1	2041—2042.1
2315—2318	2315—2318
2331, 2332	2331, 2332
2335—2342	2335—2342.3
2355—2358	2355—2358.1
3113	3113
3241—3244.1	3241—3244.1
3249—3262	3249—3262.1
3266.1—3268	3267—3268.1
3279—3284	3279—3284
3304.1—3306	3305—3306.1

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SUPPLEMENT NO. 5
February 1992

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 60-91, enacted December 2, 1991.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
xiii, xiv	xiii—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
217	217
231, 232	231, 232
239—242	239—242.3
281, 282	281, 282
289, 290	289—290.1
1683, 1684	1683, 1684
1747, 1748	1747, 1748
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1805, 1806	1805—1807
2387, 2388	2386.1—2387
3111, 3112	3111—3113
3249—3252	3249—3252.1
3271, 3272	3271, 3272
3293—3294.1	3293—3294.1

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SUPPLEMENT NO. 4
September 1991

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47-91, enacted July 8, 1991.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 42-91, adopted July 8, 1991.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii–xv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
53, 54	53–54.1
61, 62	61, 62
155	155
223–230	223–230
256.1–258	257–258.1
271, 272	271–272.1
683–684.1	683–684.1
687, 688	687–688.1
1059–1062	1059–1062
1219–1222	1219–1222
1231, 1232	1231–1232.1
1455–1458.1	1455–1458.2
1571, 1572	1571, 1572
1677	1677
1679–1686	1679–1686
1741, 1742	1740.1–1741
1969, 1970	1969–1970.1
2097, 2098	2097
2385–2388	2385–2388.2
3111, 3112	3111, 3112
3235–3238	3235–3238
3241–3244	3241–3244.1
3253–3258	3253–3258
3261, 3262	3261, 3262
3273–3278	3273–3278

Remove old pages	*Insert new pages*
3283, 3284	3283, 3284
3287—3294.1	3287—3294.1
3297, 3298	3297, 3298
3303, 3304	3303—3304.1
3309—3319	3309—3319

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SUPPLEMENT NO. 3
June 1991

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-91, enacted April 8, 1991.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
237, 238	237–238.1
751, 752	751–752.1
1055	1055
1057–1061	1057–1062
1227, 1228	1227–1228.1
1797	1797
1803, 1804	1803–1806
2041, 2042	2041–2042.1
2213, 2214	2213–2214.1
2219–2222	2219–2222.1
2343, 2344	2343–2344.3
2369–2370.1	2369–2370.2
3111, 3112	3111, 3112
3159, 3160	3159, 3160
3255–3258	3255–3258
3267–3270	3267–3270
3277–3284	3277–3284
3293, 3294	3293–3294.1
3297–3302	3297–3302
3305, 3306	3305, 3306
3329–3336	3329–3336

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SUPPLEMENT NO. 2
February, 1991

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 75-90, enacted December 10, 1990.

See the Municipal Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 68-90, adopted October 9, 1990.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages
49, 50	49, 50
61, 62	61, 62
155	155
223, 224	223, 224
255, 256	255–256.1
683, 684	683, 684
999–1000.1	999–1000.1
1741, 1742	1741–1742.1
1801–1804	1801–1804
2323, 2324	2323, 2324
2331, 2332	2331–2332.1
2337–2340	2337–2340.1
2369–2370.1	2369–2370.1
3111	3111, 3112
Index pages	Index pages
3238.1–3242	3239–3242.1
3247, 3248	3247, 3248
3273, 3274	3273, 3274
3285, 3286	3285, 3286
3289–3296	3289–3296.1
3299, 3300	3299, 3300
3329–3332	3329–3332

Note—An updated checklist of pages in Code is included, following Table of Contents.

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SUPPLEMENT NO. 1
November, 1990

MUNICIPAL CODE

City of

HARTFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 61-90, enacted August 13, 1990.

See the Municipal Code Comparative Table for further information.

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MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(904) 576-3171
1-800-262-CODE (National)
1-800-342-CODE (Florida)

MUNICIPAL CODE

CITY OF

HARTFORD, CONNECTICUT

CONTAINING THE REVISED CHARTER, CHARTER APPENDIX
AND GENERAL ORDINANCES OF THE CITY

Published by Order of the Common Council

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of the

CITY OF

HARTFORD, CONNECTICUT

AT THE TIME OF THIS CODIFICATION

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Deputy Mayor

Eugenio Caro, Sr.
Kathleen D. Collins
Marie L. Kirkley-Bey
Roger B. Ladd
Sandra E. Little
Thomas B. McBride
Frances Sanchez
Geraldine P. Sullivan
Common Council

John C. Burke
City Manager

Sebastian A. Santiglia
Town and City Clerk

Eunice S. Groark
Corporation Counsel

Richard M. Cosgrove
Senior Deputy Corporation Counsel

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Hartford of a general and permanent nature.

Source materials used in the preparation of the Code were the 1977 Code, and ordinances subsequently adopted by the common council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this volume, the reader can locate any section of the 1977 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of Chapter 1 is numbered 1-1 and the fifteenth section of Chapter 10 is 10-15. Under this system, each section isidentified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between sections 9-5 and 9-6 is desired to be added, such new sections would be numbered 9-5.1, 9-5.2 and 9-5.3 respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 11 and 12, it will be designated as Chapter 11.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Successfully keeping this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under the direct supervision of James S. Vaught, Supervising Editor, and Robert Coutre', Code Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Richard M. Cosgrove, Senior Deputy Corporation Counsel, for his cooperation and assistance during the progress of the work on this Code. It is hoped that his efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ORDINANCE NO. 46-90

An Ordinance Adopting a Revision and Codification of the Ordinances of the City of Hartford, Connecticut, of a General and Permanent Nature, Constituting the Same, the Municipal Code of Hartford, and Repealing Certain Ordinances Not Included Therein

Be It Ordained by the Court of Common Council of the City of Hartford:

Section 1. That the ordinances of the City of Hartford of a general and permanent nature, as revised and codified in the volume entitled, "Municipal Code of Hartford," containing Chapters 1 to 35 inclusive, three copies of which are on file in the Office of the City Clerk be and they are hereby adopted as an ordinance of the City of Hartford, and the same shall constitute the Municipal Code of the City of Hartford.

Section 2. That all provisions of such Code shall be in force and effect on and after the date of adoption hereof.

Section 3. That all ordinances or parts of ordinances of the City of Hartford of a general and permanent nature enacted on or before January 31, 1990, and not contained in such Code, are hereby repealed from and after the effective date of this ordinance, except as hereinafter provided.

Section 4. That the repeal provided for in the preceding section of this ordinance shall not affect any of the following:

(1) Any ordinance or resolution of the Court of Common Council conferring any right or franchise, or promising or guaranteeing the payment of money by the City, or authorizing the issuance of any bonds or other evidence of indebtedness of the City;
(2) Any ordinance or resolution or any part of any ordinance or resolution not in conflict with the Code hereby adopted which provides for or relates to salaries or bonds of officers and employees of the City;
(3) Any ordinance or resolution providing for any public improvement, making any assessment, appropriating moneys or levying or imposing taxes;
(4) Any ordinance or resolution naming, establishing, relocating or vacating any street or public way;
(5) Any ordinance or resolution adopted for purposes which have been consummated, or any ordinance or resolution which is temporary, although general in effect, or special, although permanent in effect.

Section 5. That nothing in this ordinance or the Code hereby adopted shall affect any ordinance or resolution passed after January 31, 1990.

Section 6. That nothing in this ordinance or the Code hereby adopted shall affect any offense or act committed or done, or any penalty or forfeiture incurred, or any prosecution, suit or other proceeding pending, or any judgment rendered on or before the effective date of this ordinance and the Code adopted hereby; nor shall anything therein affect any cause of action, contract or right established or accruing to the City or to any person, association or corporation, or any contract or obligation assumed by or in favor of the City, on or before that date.

Section 7. That any and all additions or amendments to such Code, when passed in such form as to indicate the intention of the Common Council to make the same a part thereof, shall be deemed to be incorporated in such Code so that reference to the "Municipal Code of Hartford" shall be understood as intended to include such additions and amendments.

Section 8. That a copy of such Code shall be kept on file in the Office of the City Clerk in looseleaf form. It shall be the express duty of the City Clerk or someone authorized by him to insert in their designated places all amendments or ordinances which indicate the intention of the Common Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be from time to time repealed by the Common Council. This copy of such Code shall be available for all persons desiring to examine the same.

Section 9. Wherever in such Code, or in any ordinance of the City, or rule or regulation promulgated by any officer thereof under authority vested in him by law or ordinance, any act is prohibited or is declared to be unlawful or an offense, or the doing of any act is required, or the failure to do any act is declared to be unlawful, where no specific penalty is provided therefor, the violation of any such provision of such Code, ordinance, rule or regulation shall be punished by a fine not exceeding one hundred dollars ($100.00) or confinement in jail not exceeding thirty (30) days, or both. Each day any such violation shall continue shall constitute a separate offense.

Section 10. That in case of the amendment of any section of such Code for which a penalty is not provided, the general penalty as provided in section 9 of this ordinance and section 1-4 of such Code shall apply to the section as amended; or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 11. It shall be unlawful for any person, firm or corporation in the City to change or amend by additions or deletions, any part or portion of such Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Hartford to be misrepresented thereby. Any person, firm or corporation violating this section shall be punished as provided in section 9 of this ordinance and section 1-4 of the Municipal Code of Hartford.

Section 12. That all ordinances or parts of ordinances in conflict herewith are hereby repealed.

This ordinance shall become effective upon adoption.

Adopted by the Court of Common Council at a regular meeting held July 9, 1990, by roll-call vote 9 to 0, and approved by the Mayor, July 10, 1990.

Attest:

/s/ Delores Lamar
Acting Deputy City Clerk

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Municipal Code will be able to gain a more complete picture of the Code's historical evolution.

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13-08	5-12-08	Included	Supp. No. 76
14-08	5-12-08	Included	Supp. No. 76
15-08	5-12-08	Included	Supp. No. 76
14-10	10-25-10	Included	Supp. No. 74
15-10	12-13-10	Included	Supp. No. 74
01-11	1-10-11	Included	Supp. No. 75
02-11	1-10-11	Included	Supp. No. 75
03-11	1-10-11	Included	Supp. No. 75
04-11	1-10-11	Included	Supp. No. 75
05-11	1-10-11	Included	Supp. No. 75
06-11	1-10-11	Included	Supp. No. 75
07-11	1-10-11	Included	Supp. No. 75
08-11	1-10-11	Included	Supp. No. 75
09-11	1-10-11	Included	Supp. No. 75
10-11	2-14-11	Included	Supp. No. 75
11-11	3-28-11	Included	Supp. No. 75
12-11	4-25-11	Included	Supp. No. 75
13-11	5- 9-11	Included	Supp. No. 76
14-11	5- 9-11	Included	Supp. No. 76
15-11	5- 9-11	Included	Supp. No. 76
16-11	5- 9-11	Included	Supp. No. 76
17-11	5-23-11	Included	Supp. No. 76
18-11	5-23-11	Included	Supp. No. 76
19-11	5-23-11	Included	Supp. No. 76
20-11	5-23-11	Included	Supp. No. 76
21-11	5-23-11	Included	Supp. No. 76
22-11	5-23-11	Included	Supp. No. 76
23-11	5-23-11	Included	Supp. No. 76
24-11	5-23-11	Included	Supp. No. 76
25-11	5-23-11	Included	Supp. No. 76
26-11	5-23-11	Included	Supp. No. 76
27-11	5-23-11	Included	Supp. No. 76
28-11	5-23-11	Included	Supp. No. 76

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30-11	5-23-11	Included	Supp. No. 76
31-11	6-13-11	Included	Supp. No. 76
32-11	6-13-11	Included	Supp. No. 76
33-11	6-13-11	Included	Supp. No. 76
34-11	6-13-11	Included	Supp. No. 76
35-11	6-13-11	Included	Supp. No. 76
36-11	6-13-11	Included	Supp. No. 76
37-11	6-27-11	Included	Supp. No. 76
38-11	7-11-11	Included	Supp. No. 76
39-11	7-11-11	Included	Supp. No. 76
40-11	7-11-11	Included	Supp. No. 76
41-11	7-11-11	Included	Supp. No. 76
42-11	7-11-11	Included	Supp. No. 76
43-11	9-12-11	Included	Supp. No. 77
44-11	9-12-11	Included	Supp. No. 77
45-11	9-12-11	Included	Supp. No. 77
46-11	9-12-11	Included	Supp. No. 77
47-11	9-12-11	Included	Supp. No. 77
48-11	9-12-11	Included	Supp. No. 77
49-11	10-11-11	Included	Supp. No. 77
50-11	11-28-11	Included	Supp. No. 78
51-11	11-28-11	Included	Supp. No. 78
52-11	11-28-11	Included	Supp. No. 78
53-11	12-12-11	Included	Supp. No. 78
54-11	12-12-11	Omitted	Supp. No. 78
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05-13	5-13-13	Included	Supp. No. 83

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10-13	11-25-13	Included	Supp. No. 85
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12-13	11-25-13	Included	Supp. No. 85
13-13	11-25-13	Included	Supp. No. 85
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05-14	3-24-14	Included	Supp. No. 86
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22-17	10-23-17	Included	Supp. No. 101
23-17	11-27-17	Included	Supp. No. 101
24-17	11-27-17	Included	Supp. No. 101
25-17	12-11-17	Included	Supp. No. 101

Ordinance No.	Date Adopted	Included/ Omitted	Supplement Number
01-18	3-12-18	Included	Supp. No. 102
02-18	4- 9-18	Included	Supp. No. 102
03-18	6-11-18	Included	Supp. No. 102
04-18	7- 9-18	Included	Supp. No. 102
05-18	7- 9-18	Included	Supp. No. 102
06-18	8-13-18	Included	Supp. No. 103
07-18	10-22-18	Included	Supp. No. 103
08-18	9-24-18	Included	Supp. No. 103
09-18	11-26-18	Included	Supp. No. 103
10-18	11-26-18	Included	Supp. No. 103
11-18	11-26-18	Included	Supp. No. 103
01-19	1-14-19	Included	Supp. No. 103
02-19	3-25-19	Included	Supp. No. 103
03-19	3-25-19	Included	Supp. No. 103
04-19	4- 8-19	Included	Supp. No. 103
05-19	4-22-19	Included	Supp. No. 103
06-19	4-22-19	Included	Supp. No. 103
07-19	5-13-19	Included	Supp. No. 104
08-19	5-28-19	Included	Supp. No. 104
09-19	6-10-19	Included	Supp. No. 104
10-19	6-24-19	Included	Supp. No. 104
11-19	6-24-19	Included	Supp. No. 104
12-19	6-24-19	Included	Supp. No. 104
13-19	7- 8-19	Included	Supp. No. 105
14-19	10-15-19	Included	Supp. No. 105
15-19	10-28-19	Included	Supp. No. 105
001-20	3- 9-20	Included	Supp. No. 106
002-20	6-22-20	Included	Supp. No. 107
003-20	6-22-20	Included	Supp. No. 107
004-20	11-23-20	Included	Supp. No. 108
01-21	2- 8-21	Included	Supp. No. 108
02-21	2- 8-21	Included	Supp. No. 108
Ord. of 2-14-21	2-14-21	Included	Supp. No. 109
003-21	6-14-21	Included	Supp. No. 109
004-21	7-12-21	Included	Supp. No. 109
Ord. of 9-13-21	9-13-21	Included	Supp. No. 109
Ord. of 11-22-21	11-22-21	Included	Supp. No. 109
Ord. of 3-14-22	3-14-22	Included	Supp. No. 109
Ord. of 5-23-22(1)	5-23-22	Included	Supp. No. 110
Ord. of 5-23-22(2)	5-23-22	Omitted	Supp. No. 110
Ord. of 5-23-22(3)	5-23-22	Omitted	Supp. No. 110
Ord. of 5-23-22(4)	5-23-22	Omitted	Supp. No. 110
Ord. of 6-27-22(1)	6-27-22	Included	Supp. No. 110
Ord. of	11- 8-22(1)	Included	Supp. No. 111
Ord. of	11- 8-22(2)	Included	Supp. No. 111
Ord. of	11-28-22(1)	Included	Supp. No. 111

Ordinance No.	Date Adopted	Included/ Omitted	Supplement Number
Ord. of	11-28-22(2)	Included	Supp. No. 111
Ord. of	11-28-22(3)	Included	Supp. No. 111
Ord. of	1-23-23(1)	Omitted	Supp. No. 111
Ord. of	1-23-23(2)	Omitted	Supp. No. 111
Ord. of	1-23-23(3)	Omitted	Supp. No. 111
Ord. of	1-23-23(4)	Included	Supp. No. 112
Ord. of	2-27-23	Included	Supp. No. 112
Ord. of	3-27-23	Included	Supp. No. 112
Ord. of	6-12-23	Included	Supp. No. 112
Ord. of	6-26-23(1)	Omitted	Supp. No. 112
Ord. of	6-26-23(2)	Included	Supp. No. 112
Ord. of	6-26-23(3)	Included	Supp. No. 112
Ord. of	6-26-23(4)	Omitted	Supp. No. 112
Ord. of	6-26-23(5)	Omitted	Supp. No. 112
Ord. of	9-25-23	Included	Supp. No. 113
Ord. of	2-13-24(1)	Included	Supp. No. 114
Ord. of	2-13-24(2)	Included	Supp. No. 114
Ord. of	3-11-24	Included	Supp. No. 114
Ord. of	3-25-24	Included	Supp. No. 114
Ord. of	4-17-24	Included	Supp. No. 114
Ord. of	4-22-24	Included	Supp. No. 114
Ord. of	9-23-24	Included	Supp. No. 115
Ord. of	11-25-24	Included	Supp. No. 115
Ord. of	12- 9-24	Omitted	Supp. No. 115
Ord. of	10-21-24	Included	Supp. No. 116
Ord. of	1-13-25	Included	Supp. No. 116
Ord. of	1-27-25	Included	Supp. No. 116
Ord. of	3-10-25	Included	Supp. No. 116
Ord. of	3-24-25	Included	Supp. No. 116
Ord. of	2-24-25	Included	Supp. No. 117
Ord. of	5-12-25(1)	Included	Supp. No. 117
Ord. of	5-12-25(2)	Included	Supp. No. 117
Ord. of	5-27-25	Included	Supp. No. 117
Ord. of	4-14-25	Included	Supp. No. 118
Ord. of	11-24-25	Included	Supp. No 119
Ord. of	1-26-26	Included	Supp. No. 119
Ord. of	2-23-26	Included	Supp. No. 119
Ord. of	3- 9-26	Omitted	Supp. No. 119
Ord. of	5-11-26	Included	Supp. No. 119

PART I

CHARTER OF THE CITY OF HARTFORD, CONNECTICUT*

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*__Editor's note—__An amendment of November 8, 2022(2), repealed the former Chapters I—XIII, derived from Special Laws 1947, Act No. 30, as amended; and Ord. No. 28-67, approved by the electors on November 7, 1967, as amended; Election of Nov. 5, 2002; Election of Nov. 5, 2013. For a more detailed analysis of the derivation of the former Charter and inclusion of provisions of the revised Charter and any future amendments, refer to the Charter Comparative Table following the Charter Appendix.

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Sec. 9. Tenure of office for teachers—Definitions.
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NOTE ON THIS AMENDED CHARTER

The Charter of the City of Hartford, incorporating amendments approved by the Electors of Hartford at the regular election of November 5, 2002, follows. The various effective dates of the amendments may be found in Chapter XIII, "Miscellaneous and Transition Provisions," and at Chapter IX, "Board of Education and Department of Education."

The amendments and revisions incorporated below are based on the final report of the Hartford Charter Revision Commission dated June 11, 2002. The final report recommended amendments to the City of Hartford Charter in the form of a proposed revised Charter. By Resolution of June 24, 2002, the Court of Common Council approved provisions of the final report, and placed them before the Electorate at the November 5, 2002 election, "...except for the change to the composition and numbers of the Court of Common Council in Chapter III, Section 5...."

The Council -approved provisions of the final report were approved by the Electorate at the November 5, 2002 election. The provisions of the final report relating to the composition and numbers of the Court of Common Council were not before the voters, and those provisions are unchanged in this revised Charter. Since the Council will have nine (9) members, rather than the eleven (11) members proposed in the final report, the provisions of the final report that specified a particular number of Council votes as being necessary have been adjusted.

PREAMBLE

We, the people of Hartford, Connecticut, desirous of achieving a more perfect state of civil society, grateful for the liberty we enjoy as a matter of right, and fully cognizant of our duties as free men and women, hereby adopt this Charter for the more efficient, efficacious and equitable transaction of our public business.

CHAPTER I. INCORPORATION AND BOUNDARIES

Sec. 1. Incorporation.

The inhabitants of the State of Connecticut, dwelling within the territorial limits of the City of Hartford as the same now are or may hereafter be, shall continue forever hereafter to be a body politic and corporate by the name of the "City of Hartford"; and by that name shall have perpetual succession, and be capable of suing and being sued, pleading and being impleaded, and of purchasing, holding, managing and conveying any estate real or personal; and may have a common seal and change and alter the same at pleasure. By virtue of this Charter said City shall be absolutely vested with, possess and enjoy all lands, tenements, hereditaments, property and rights, choses in action and estates, which at the effective date of this Charter were vested in said City.

Sec. 2. Boundaries.

The territorial limits of the body politic and corporate existing under the name of the City of Hartford are those set forth in Special Laws 1947, Act No. 30, Chapter I, §2; Ord. No. 28-67, 11-7-67; Sp. Laws 1971, Act No. 106 and are hereby reaffirmed by the City of Hartford.

Sec. 3. Title.

The title of this Act shall be the "Charter of the City of Hartford."

Sec. 4. Definitions and title generally.

A. "Board" or "Commission". For the purposes of this Charter and except as otherwise provided by Law, the terms "Board" and "Commission" shall include all boards, agencies, commissions, authorities or like entities of the City, whether elected or appointed.

B. "Charter" shall mean the Charter of the City of Hartford.

C. "City" means the City of Hartford.

D. "Classified Service" shall have the meaning set forth in Chapter VIII, section 5(e)(3) of this Charter.

E. "Court of Common Council" or "Council" means the legislative body of the City, as required by the General Statutes.

F. "Day(s)" means calendar days; unless, otherwise specifically set forth in this Charter. Moreover, where a Day set forth in this Charter falls on a weekend, holiday or day when the City is closed for business, the deadline shall be extended through the close of the next City business day; unless otherwise required by law.

G. "Department" means any major functional or administrative division of the City, including any offices, agencies, bureaus or other descriptions serving such purpose as may be set forth in the budget of the City. When used within the section establishing or describing the duties of the particular department or its related Board or Commission, the term "Department" shall apply exclusively to the functional division referred to in that section.

H. "Department Head" means an employee who heads any Department in the City; has substantial supervisory control of a permanent nature over other municipal employees; and, is directly accountable to the Mayor.

I. "Elective Offices" means an individual who holds an elected municipal office (as defined in C.G.S. §9-372 but shall not include a justice of the peace or notary public) in the City. The Elective Offices of the City are set forth in section 4(b) of Chapter III; Chapter III (Registrars of Voters and Constables); Chapter IV (Common Council), Chapter V (The Mayor), Chapter VI (City Treasurer); and Chapter IX (Board of Education) of this Charter.

J. "Elector" shall have the meaning contained in the General Statutes.

K. "Final Action" means the last acts taken by the Mayor or the Council on an Ordinance or other measure that requires mayoral and legislative action under the provisions of this Charter

L. "General Statutes" shall mean the General Statutes of the State of Connecticut, as amended from time to time; also referred to as "C.G.S" or "G.S.".

M. "Law" includes, but is not limited to, decisions of courts and administrative bodies (or any agreements sanction by said bodies), federal or state legislative enactments, Ordinances and Regulations, including all applicable rules contained therein.

N. "Majority Vote of the Council" means man affirmative vote of at least a majority of the full membership of the Council, at a Meeting of the Council at which a quorum is present.

O. Mayor" shall mean the chief executive officer of the municipality, as required by the General Statutes. Where in this Charter or the Ordinances thereunder, reference is made to "Mayor or designee," the identity of the designee shall at all times be determined, in the sole discretion, of the Mayor.

P. "Meeting" or "Public Meeting" shall have the meaning set forth in the General Statutes, including Meetings by means of electronic equipment, as may be amended from time to time.

Q. "Meeting (or Hearing) Notice" means a notice posted as required by the General Statutes, including posting of regular Meetings with the Office of the Secretary of the State, if required, and the Town and City Clerk as required by Law, as well the requirement pertaining to special and emergency Meetings as well as public hearings, in the same manner as set forth in section 4.U of this Charter, below. In addition to the above-referenced postings, the City may post notices on its web-site or through other electronic media and, if practicable or otherwise required by Law, may be published in a daily newspaper of general circulation distributed in the City. A Meeting Notice (including public hearings) shall state the time and place thereof and shall be published at a minimum in compliance with the General Statutes or by a more stringent requirement as may be set forth in this Charter. Meeting or Hearing Notice may also be governed by regulatory practices and procedures set forth in the General Statutes.

R. "Official" or "Public Official" means an individual who holds an elected or appointed municipal office in the City; including but not limited to Elected Officials of the City; employees appointed subject to section 2 of Chapter VIII of this Charter; and, members of Boards and Commissions. "Appointed Public Officials" shall include all Public Officials to the exclusion of those who hold Elective Offices in the City. When the term "officer" is used in this Charter (and not in connection with sworn law enforcement officers), it shall by synonymous with the term "Official".

S. "Order" or "Motion" means a legislative action conferring authority to do a specified act, including, but not limited to, the approval of Mayoral appointments, proposed contracts or other matters upon which are conferred temporary power or authority which, when its purpose has been accomplished, it ceases to require further authority. Orders and Motions shall be enacted in accordance with the provisions of this Charter. Other Public Officials may enter "Orders" in accordance with the authority set forth under the General Statutes, this Charter or Ordinance enacted thereunder.

T. "Ordinances" or "Ordinances of the City" or "Municipal Code" shall mean the powers of the City to (1) establish rules or regulations of general municipal application, the violation of which may result in the imposition of a fine or other penalty; (2) create a permanent local law of general applicability; or (3) accomplish other objectives permitted by the General Statutes as may be enacted in accordance with the provisions of this Charter.

U. "Public Notice" means a notice for matters other than public Meetings or hearings, including the public inspection or availability of any documents or data, as may be required by this Charter. It specifically includes matters where "publication" was required under the prior Charter or the General Statutes. Said Public Notice shall be specifically set forth in this Charter or may be governed by the requirements of the General Statutes. Public Notice may be posted (1) in the Office of the Town and City Clerk and other public space or location in the City Hall designated by the City Clerk in order to assure sufficient disclosure to and access by the public; (2) in the central City Library (and each branch of the City Library); (3) on the City web-site or through other electronic media by the Town and City Clerk; and, (4) if otherwise required by Law, by publication in a daily newspaper of general circulation distributed in the City.

V. "Regulation" means a statement of general applicability approved by a Department or Board or Commission (and the Council where specifically set forth herein), without regard to its designation, that implements, interprets, or prescribes law or policy, or describes the organization, procedure, or practice requirements of any such Department, Board or Commission or the Laws under which they operate. The term includes the amendment or repeal of a prior Regulation, but does not include (A) statements concerning only the internal management of any Department and not affecting private rights or procedures available to the public; or (C) intra-Departmental or inter-Departmental memoranda.

W. "Resolution" means an action by the Legislative Council that (1) expresses the sentiment or intent of the Council; (2) governs the business of the Council; (3) expresses recognition by the Council; or, (4) complies with the specific requirements of the General Statutes with regard to certain legislative enactments. A declaratory statement of the Council on a given matter.

X. "Special Acts" or "Special Laws" shall mean the acts of the General Assembly pertinent to the City.

Y. "State" or "Connecticut" shall mean the State of Connecticut.

Z. "State Constitution" shall mean the Constitution of the State of Connecticut.

AA. "Vacancy" or, in the alternative, the use of the word "Vacant" means whenever any Official of the City is unable to complete the current term of office due to death, resignation, removal, incapacity or other reason as may be defined by Ordinance.

BB. Where reference is made to the word "shall" the legislative intention is to make the function a mandatory or imperative obligation for the Official or entity charged with an obligation under this Charter or under the Code of Ordinances. It is recommended that to avoid any doubt the word "must" should be used in order to impose clarity on the concept of obligation.

CHAPTER II. POWERS OF THE CITY

Sec. 1. General grant of powers.

The City of Hartford shall have not only all the powers specifically granted by this Charter but all powers fairly implied in or incident to the powers expressly granted, and all other powers incident to the management of the property, government and affairs of the City, the exercise of which is not expressly forbidden by the State Constitution and General Statutes. The enumeration of particular powers in this and any other chapter of this Charter shall not be construed as limiting this general grant of power, but shall be considered as in addition thereto.

Sec. 2. Further grant of powers.

In addition to all powers specifically granted by this Charter, the City shall have all powers now granted or that may hereafter be granted to municipalities under the State Constitution and Laws of Connecticut.

Sec. 3. Liens for work performed by the City.

If the owner of any building, the condition of which constitutes an immediate threat to life, health, or safety or is otherwise unfit for human habitation, fails to comply with any Order to repair or remove such building or portion thereof, issued pursuant to the General Statutes or to the Code of Ordinances of the City, or when there exists actual and immediate danger of the falling of any structure or part thereof, so as to endanger life or property, the Official charged with enforcement of such provisions may proceed forthwith to cause to be done all work required to be done in compliance with such an Order, and if necessary, to demolish any structure or structures covered by any such Order, and the City shall have a lien on such building and land for the cost of such work or demolition, which lien, if for work done rather than for demolition, shall take precedence over any other lien on the premises recorded after the effective date of the pertinent Special Acts, including mortgage liens but excepting liens for real estate taxes, provided that the person entitled to such other lien shall have been given Public Notice of the City's intention to undertake said work at least ten (10) Days prior to the commencement thereof, and the City may recover the cost of the work or demolition from the owner of such building or structure by appropriate proceeding on complaint of said Official.

Sec. 4. Eminent domain.

The City, in carrying out the powers and duties conferred or imposed on it by this Charter or the General Statutes, shall have power to acquire within or without the City lands, buildings and other structures, any interest or estate in land and air rights over land, and may take the same upon paying just compensation to the owner thereof in the manner provided in Title 48 of the General Statutes as amended.

CHAPTER III. ELECTIONS

Sec. 1. Applicability of General Statutes.

The General Statutes, as amended from time to time, relating to elections, including, without limitation, residency requirements and nomination of candidates, shall be applicable to all elections held in accordance with the provisions of this Charter. The Court of Common Council shall provide by Ordinance for the manner of warning municipal elections and such additional procedures or guidelines in respect of elections, not inconsistent with the General Statutes or this Charter, as may be necessary to accomplish the intent of this chapter.

Sec. 2. Registrars of voters and Constables.

There shall be two (2) such Registrars of Voters as may be set forth in the Ordinances and

seven (7) Constables. To the extent consistent with the General Statutes, the Council may by Ordinance provide for the appointment of registrars or constables.

Sec. 3. Special elections.

Special elections when required under the provisions of this Charter or by the General Statutes shall be called and warned by the Council. Such a special election may be held coincidentally with the general State election.

Sec. 4. Terms of office of Elective Offices.

(a) *Term of office.* Commencing on January 1, 2004 and quadrennially thereafter, all Elected Officials shall hold their respective offices for a term of four (4) years, with the exception of the elected members of the Board of Education, which is addressed in Chapter IX of this Charter.

(b) *Date of General Municipal Election for Elective Offices; Eligibility.*

(1) *Date of Election.* Except as hereinafter provided, on the Tuesday after the first Monday in November 2003 and in the odd numbered years thereafter as the term of office shall fall, the Electors of the City shall elect, in accordance with the provisions of the General Statutes and the applicable provisions of this Charter the following officers: (1) Mayor; (2) members of the Council; (3) City Treasurer; and (4) Constables. On the Tuesday after the first Monday in November 2027 and on the odd numbered years thereafter as the term of office shall fall, the Electors of the City shall elect, in accordance with the provisions of the General Statutes and the applicable provisions of this Charter, four (4) members of the Board of Education as set forth in Chapter IX of this Charter Transitional Provision for the Board of Education. On the Tuesday after the first Monday in November 2025 the Electors shall elect, in accordance with the provisions of the General Statutes and the applicable provisions of this Charter four (4) members of the Board of Education as set forth in Chapter IX of this Charter, for a term of two (2) years, notwithstanding the provisions of section 4(a) of this Chapter, above.

(2) *Eligibility to serve in Elective Office.* No person shall be eligible for nomination or election to Elective Office who is not an Elector of the City unless otherwise determined by Ordinance.

(c) *Vacancies in various Elective Offices.*

(1) *Vacancies resulting from changes in member's residence or political party registration.* A member of the Council shall be deemed to have resigned upon ceasing to be a resident and Elector of the City. With the exception of the final three (3) months of the term of office, a member of Council who changes political party registration and thereby alters the party composition of the Council shall be deemed to have resigned.

(2) *Filling Council vacancies.* A Vacancy in the Council, from whatever cause arising, shall be filled by Majority Vote of the Council within sixty (60) Days following the Vacancy, provided any Vacancy shall be filled by appointment of a person of the same political party as the appointee's predecessor. An appointment made after the expiration of sixty (60) Days shall nonetheless be valid. The length of the appointment shall be determined in accordance with the provisions of paragraph (3), below.

(3) *Filling vacancies in any Elective Office.* Subject to the provisions of applicable provisions of the General Statutes governing the filling of vacancies in Elective Office, in the event a Vacancy shall occur in any Elective Office (with the exception of Mayor, which is addressed in section 4(b)(3) of Chapter IV of this Charter and the Board of Education as set forth in section 5(c) of Chapter IX of this Charter) the Council shall fill any such Vacancy by appointment until the next regularly scheduled municipal general election; or, if such election is not permitted by the

General Statutes, for the remainder of the term of office. The Vacancy filled by election shall be for the remainder of the term of office.

Sec. 5. Composition of the Court of Common Council.

The Council shall consist of nine (9) members elected from the City at large.

Sec. 6. Registrars of voters.

(a) *Powers and duties.* The Registrars of Voters shall have such powers and duties as are conferred or imposed on them by the General Statutes and the provisions of this Charter. Among other duties, the Registrars of Voters are responsible for creating and maintaining the official registry list for the municipality, maintaining and preparing the voting machines, hiring and appointing poll workers, training poll workers, ensuring proper set-up of the polling place, ensuring proper reporting of candidate totals on election night, and conducting post-election recounts and audits.

(b) *Operational standards.* The office of the registrar of voters shall operate in accordance with nationally accepted professional standards, best practices and provide the Electors of the City with assistance on a non-partisan basis.

(1) *Certification.* For the purpose of meeting best practices and the highest professional standards, the Registrars of Voters and any deputy or permanent assistants, upon no more than one hundred eighty (180) Days following hiring, shall participate at the next scheduled session regarding any certification training program for Registrars of Voters, as set forth in the General Statutes in order to obtain certification by the Secretary of the State; or in the event, there is no such program any continuing education programs offered by national organizations or associations pertaining to local election administration.

(c) If permitted by the General Statutes, the Registrars of Voters shall be appointed by the Council to serve for an indefinite term.

(d) Effective date of the said changes is January 1, 2014.

CHAPTER IV. THE COURT OF COMMON COUNCIL

Sec. 1. The legislative power of the Council.

The legislative power and authority of the City shall be vested in the Council. No enumeration of powers contained in this Charter shall be deemed to limit the legislative power of the Council as provided for in the General Statutes.

(a) *Compensation of the Council.* Each member of Council shall receive no less than the sum of fifteen thousand dollars ($15,000.00) annually as compensation, together with reimbursement for just and necessary expenses incurred in the performance of the member's duties. The Council may review the amount of said compensation and of compensation of the Mayor and enact revisions thereof by Ordinance. Any such Ordinance which provides for an increase in compensation or non-cash benefits for the Council shall become effective only upon approval of said Ordinance by the Electors of the City at a referendum held at the next regular municipal election, whereupon it shall become effective at the next term of the Council.

(b) *Restrictions on holding office.* No member of the Council shall hold any other elected office under the government of the United States, the State of Connecticut, or any subdivision thereof, nor shall any member of Council, during the term of office for which the member was elected and for one (1) year thereafter, be appointed to any other office under the government of the City of Hartford.

Sec. 2. Powers of the Council.

The Council shall have the power:

(a) To exercise the powers specifically granted to the Council in this Charter or by statute;

(b) To enact Ordinances in the manner provided in this Charter not inconsistent with Law, or this Charter, for the government of the City and the management of its business, and to implement all of the powers set forth herein or otherwise conferred upon the City for which regulation or legislation is required;

(c) To (1) adopt the capital and operating budget of the City, as provided in this Charter; (2) approve multi-year contracts, agreements, settlements and transactions in accordance with Law; and (3) engage in legislative oversight and review of the operations of government, including financial matters. In accordance with its budgetary and financial functions, the Council shall adopt an Ordinance governing the procedures pertaining to the application for grants and other third party revenues from public or private sources, which shall take into account reporting provisions and other accountability standards;

(d) To approve, by majority vote of the entire membership of the Council, all appointments made pursuant to section 2(d) and (e) of Chapter V and other provisions of this Charter. Pending action by the Council, which shall be completed within sixty (60) Days of the submission of the nomination, a proposed appointee to a position may perform the duties and exercise the powers of the position; although this provision shall not be applicable to appointees to Boards or Commissions. A rejected nominee may continue in office in an acting capacity pending resubmission of the candidate's name for approval at the Council's next regular Meeting; however, a person's name may not be submitted more than two (2) times. Other than to membership on a Board or Commission, the Mayor may designate an individual to hold a position in an acting capacity pending the selection of a nominee, but no person may hold such a position for more than six (6) months without being submitted for confirmation by the Council. If a nomination to a position or to a Board or Commission has not been affirmed or rejected by vote of the Council within sixty (60) Days of the submission of the nomination by the Mayor, it shall be deemed to have been approved;

(e) To establish the fees charged by the Departments, Boards and Commissions of the City;

(f) In the name of the City, to receive gifts of money or property in excess of a value to be determined by the Council from time to time by Ordinance. Gifts of a lesser value than specified in such an Ordinance may be received by the Mayor, or by persons the Mayor may designate, in the name of the City;

(g) To undertake public improvements and to assess benefits and damages therefor, in the manner provided in this Charter;

(h) To approve labor agreements and employment contracts, but excepting employment arrangements for the non-classified appointees of the Mayor;

(i) To approve the purchase, sale, lease or other transfer of real property;

(j) To provide by Ordinance for such staff and other assistance as the Council may deem appropriate to meet its needs, providing that due appropriation has been made therefor, and to provide by Ordinance for the method of hiring and terminating such staff.

(k) To increase by Ordinance any dollar amount in this Charter, including the compensation of the Mayor, by an amount no greater than the change in the consumer price index, or any similar published index in the event the consumer price index is discontinued, provided that any such Ordinance increasing the compensation of the Mayor shall be enacted only in the first five (5) months of the calendar year in which a Mayoral election is to be held and shall become effective on January 1 of the next year.

(l) To adopt a City plan within six (6) months following receipt of the report of the planning and zoning commission.

(m) To adopt an ethics Ordinance setting forth the standards governing the conduct of Public Officials and employees.

(n) To appropriate, notwithstanding other provisions of this Charter, necessary funds for the purpose of meeting a public emergency threatening the lives, health or property of citizens, as determined either by the President of the United States or the Governor of the State of Connecticut; provided such appropriation shall require at least seven (7) affirmative votes in the Council.

Sec. 3. Additional powers of the Council.

(a) *Removal of Elective Officials and Confirmed Officers and Employees of the City.* Removal of elective officers and other officers and employees subject to confirmation by the Council. In addition to the powers of the Mayor as set forth in section 2(b) of Chapter VIII of this Charter, any elective officer or, officer or employee confirmed by the Council, may be removed, by the Council, from office for cause by a vote of seven (7) members of the Council. No such officers or employees may be removed except upon charges, which shall be preferred by vote of a majority of the membership of the Council, and after a hearing thereon before the full Council. Written notice by the Council of the charges and time and place of hearing shall be given to the officer or employee at least two (2) weeks before such hearing. Such charges shall be for neglect or dereliction of official duty, or incompetence, or dishonesty or incapacity to perform official duties or some delinquency materially affecting the officer or employee's general character or fitness for office. Such officer or employee shall have the right to be represented by counsel at the hearing, to present testimony personally and through witnesses, to cross-examine witnesses presented in favor of removal, and to compel the attendance of witnesses by subpoena issued in the name of the Council. In a hearing concerning removal of the Mayor, the Council shall designate an attorney who is an Elector of the City and has been a member in good standing of the bar of the State of Connecticut for at least ten (10) years as the temporary presiding officer in place of the Council President.

(b) *Power of investigation.* The Council, or any committee thereof when so authorized by the Council, shall have power to investigate the official conduct of any Department of the City government or of any officer or employee thereof. For the purpose of conducting any such investigation and hearings relating to the removal of appointive or elective officers or employees, pursuant to section 3(a) of this chapter, above, any member of the Council shall have power to administer oaths and the Council or authorized committees thereof may compel the attendance of witnesses and require the production of books and papers. Any person who refuses to obey the subpoena of the Council or an authorized committee thereof shall be fined not more than one hundred dollars ($100.00) or imprisoned not more than thirty (30) Days or both. The Council may appropriate from available funds amounts necessary to cover expenses incurred pursuant to this section.

(c) *Annual audit.* The Council shall designate annually an independent public accountant or firm of independent public accountants to audit the books and accounts of the City as provided in the General Statutes.

Sec. 4. Organization and officers of the Council: President and Town and City Clerk ("City Clerk").

(a) *Organizational meeting.* The Mayor shall convene the Council at 7:00 p.m. on the first Monday immediately following January 1st of each even-numbered year for an organizational Meeting. The City Clerk shall administer the oath of office to all members.

(b) *Election of Council President.* Following the administration of the oath of office, the first order of business shall be to elect, by a Majority Vote of the Council, from among the Council's membership a presiding officer, who shall be designated the Council President. The Council President shall serve as such for two (2) years, and a member may be elected to an unlimited

number of successive two-year terms as Council President. The Council shall fill any Vacancy in the office of Council President by election of a new Council President, who shall serve for the remainder of the two-year term, from among its members.

(1) *Powers and duties of the Council President.* The Council President shall preside over Council Meetings, without thereby losing the right to vote or to speak as a member of Council, and shall have such other powers and obligations as may be assigned to the presiding officer by the Council's rules, by Ordinance, or by this Charter.

(2) *Presiding officer pro tempore.* The Council may provide in its rules for the designation of a member to preside in the absence of the Council President and, if there is no such provision in the Council rules, the Council President shall designate a temporary presiding officer whenever the Council President is absent from a Council Meeting.

(3) *Succession to the office of Mayor.* Subject to the applicable provisions of the General Statutes governing the filling of vacancies in municipal office, in the event that the position of Mayor becomes vacant, the Council President shall serve as Mayor until the next regularly scheduled municipal general election, or, if not permitted by the General Statutes, for the remainder of the Mayor's term. Upon succession to the office of Mayor, the Council president's position on the Council shall be filled as provided in section 4(c)(2) of Chapter III of this Charter.

(4) *Removal of the Council President.* The Council may remove the Council President from the presidency at any time by a vote of six (6) members, at a special Meeting duly called for that purpose.

(c) *Town and City Clerk: appointment and duties.* The Council shall appoint a Town and City Clerk (the "City Clerk") to serve for an indefinite term. The City Clerk holding office at the effective date of this amendment shall continue to hold office until resignation, retirement, death or removal for other cause.

(1) *Powers and duties of the City Clerk.* The City Clerk shall have all the powers and duties conferred or imposed by Law on town clerks, shall act as clerk of the Council and shall have such other powers and duties as are prescribed in this Charter or by the Council. The City Clerk shall appoint and remove, subject to the provisions of this Charter and Ordinances pertaining to personnel and civil service, all deputies, assistants or employees in the City Clerk's office.

(2) *Administration and Budget.* The office of the Town and City Clerk shall be within the Court of Common Council for administrative and budgetary purposes.

(3) *Compensation and fees.* The City Clerk shall receive a compensation to be fixed by the Council and all fees collected by the City Clerk shall be paid into the treasury of the City.

(4) *Attestation of the land records.* It shall be sufficient attestation of the land records in the care or custody of the City Clerk when each volume of such land records shall bear a certificate of attestation with the written signature of the officer charged with the care of such records and authorized by Law to record or file the same, providing nothing herein contained shall relieve the City Clerk or the City Clerk's assistant from noting the discharge of a mortgage, lien or other encumbrance on the margin of the record of such mortgage, lien or other encumbrance.

(d) *Council Staff.* The Council shall appoint such full time professional, clerical and administrative staff as it deems necessary to assist it in the performance of its duties, within available appropriations. The Council may, by Ordinance, establish certain positions with defined roles and responsibilities and may, notwithstanding any other provision of the charter, designate such staff as members of the classified or unclassified service. The staff shall be provided adequate

space for its operation and shall be supplied with all appliances and incidentals necessary for the proper discharge of its duties, to be paid from the general fund, as appropriated. The staff of the Council shall be separate and distinct from and not subject to the authority of the executive branch of the City's government and shall be subject to the authority and supervision of the Council President.

(e) *Legal Assistance.* The President or a petition of a majority of the members of the Council may, from time-to-time, request the Corporation Counsel to attend Meetings of the Council or its committees; or, to provide a Deputy or Assistant Corporation Counsel to assist the Council in its legislative duties. In the event the Corporation Counsel or a designee is not available, there is a potential conflict between the Council and other Elective or Appointed Officials or on its own motion, the Council may, by a Majority Vote of the Council, retain independent, outside counsel for advice on such matters, on such terms as may be prescribed by Ordinance. Prior to such vote the President shall consult with the Corporation Counsel to ensure there are no legal, ethical or positional conflicts between said outside counsel and the City. In furtherance of this authority, the Annual Budget shall include a line item for said purpose; or, in the event there are insufficient funds available for retention of counsel, the Council may, by Resolution, seek a budget transfer for said purpose.

(f) *Other Consultants.* The President or a petition of a majority of the members of the Council may, from time-to-time, authorize the retention of outside consultants to assist the Council in its legislative functions.

Sec. 5. Meetings.

(a) *Regular Meetings.* The Council shall have Regular Meetings at a time and place determined by Resolution, except that the Council shall have at least one (1) regular Meeting a month.

(b) *Special Meetings.* Special Meetings may be held at any time the Council may direct and also may be called on forty-eight (48) hours' Meeting Notice by the Mayor, the Council President, or any three (3) members of the Council. The said notice of any Special Meeting shall be in such form and shall be delivered in such manner as the Council shall prescribe by Ordinance. It shall contain a statement of the specific item or items of business to be transacted and no other business shall be transacted at such Special Meeting.

(c) *Emergency Meetings.* In the event a public emergency arises or threatens to arise involving or threatening the lives or property of the inhabitants of the City or the property of the City, the Mayor or Council President may call an emergency Meeting of the Council upon three (3) hours' notice and may summon Council members to attend such Meeting in such manner as the Council may prescribe by Ordinance. Notwithstanding any provision of Law or this Charter to the contrary, at such Meeting, the Council may transact any item or items of business relevant to such emergency.

(d) *Open Meetings and public comment.* All Meetings shall be open to the public and the Council shall make provision, in its rules, for a public comment period during, at least, one (1) Meeting per month.

Sec. 6. Procedures and other organizational matters.

(a) *The Council journal.* The Council shall keep for public inspection a journal, which shall be the official record of its proceedings. The Council journal shall be available to the public electronically and shall be published in such manner as the Council shall determine.

(b) *Rules of procedure.* The Council shall have power, subject to the provisions of this Charter, to adopt its own rules of procedure.

(c) *Voting.* No Ordinance, Resolution, Motion or vote shall be passed by the Council, except Motions of a purely procedural nature, unless it shall have received a Majority Vote of the Council; provided that no Ordinance required, by section 2(d)(3) of Chapter VII of this Charter, to be referred to the Planning and Zoning Commission shall be approved following a negative recommendation by said Commission except by a vote of seven (7) members of the Council. All voting,

except on procedural Motions, shall be by roll call and the ayes and nays shall be recorded in the journal.

Sec. 7. Procedures for enacting Ordinances, Resolutions and other legislative enactments.

(a) *Ordinances, when required.* In addition to such acts of the Council as are required by the General Statutes or by other provisions of this Charter to be by Ordinance, every act creating, altering or abolishing any agency, office or employment, or assigning or reassigning the same to Departments, fixing compensation, making an appropriation, authorizing the borrowing of money, levying a tax, establishing any rule or Regulation for the violation of which a penalty is imposed, or placing any burden upon or limiting the use of private property, shall be by Ordinance.

(b) *Form of Ordinances.* Every Ordinance, except the annual Appropriation and Tax Levy Ordinance and an Ordinance making a general codification of Ordinances, shall be confined to a single subject that shall be clearly expressed in its title. All Ordinances shall be introduced in written or printed form. All Ordinances that amend or repeal existing Ordinances shall set forth in full the section or subsection to be amended or repealed and if it is to be amended shall indicate matter to be omitted from the revised section or subsection by enclosing the same in brackets and new matter by underscoring. When published prior to enactment in accordance with the Public Notice provisions of sections 4.Q and U. of this Charter or otherwise the same indications of omitted and new matter shall be used except that italics may be substituted for underscoring. The enacting clause of all Ordinances shall be: "Be it ordained by the Court of Common Council of the City of Hartford." Unless another date is specified therein an Ordinance shall take effect on the tenth day following its passage.

(c) *Procedure for passage of Ordinances.*

(1) *Introduction, first reading and publication.* An Ordinance may be introduced at any Meeting by the Mayor, by any member of the Council, any committee thereof or the Treasurer as set forth in section 2(f) of Chapter VI of this Charter. Upon introduction it shall be read a first time and a day and hour set, not earlier than the seventh (7th) Day thereafter, at which the Council or a committee thereof shall hold a public hearing thereon. Such hearing may be at a Regular Meeting of the Council or at such time and place as the Council may order and may be adjourned from time to time. It shall be the duty of the City Clerk to publish the title and/or statement of purpose of every Ordinance introduced, within three (3) Days after its introduction, in accordance with the provisions of sections 4.Q and U of this Charter, together with a notice of the time and place at which the public hearing thereon shall be held and notice that a full copy of the Ordinance is on file in the office of the City Clerk for public inspection. Immediately upon publication, the City Clerk shall place a copy of the said Public Notice, together with a copy of the Ordinance, in a file for use of the Council. Copies of the Ordinance shall be maintained in the office of the City Clerk in suitable form for inspection and distribution.

(2) *Public hearing, second reading and passage.* No Ordinance, except an emergency Ordinance as defined in subsection (3) of this section, shall be read the second time and passed less than three (3) weeks following its introduction nor until the conclusion of public hearings thereon. The Council shall have the option to accept or reject an amendment at that Meeting, or, to reassign the entire matter for public hearing as an original Ordinance. If the amendment is approved and if the amendment is substantial, the proposed Ordinance, as amended, shall be republished and assigned for public hearing, as provided in the case of a newly introduced Ordinance, and shall not be finally passed prior to two (2) weeks following such amendment; provided that no republication or additional public hearing shall be required

as the result of the adoption of any amendment that was filed with the City Clerk in writing and made available to the public electronically, by noon of the fifth (5th) business day prior to the next Council Meeting, at which action may be taken on the proposed amendment. If the amendment is defeated, the Ordinance may be finally passed at that Meeting by a Majority Vote of the Council.

(3) *Emergency Ordinances.* Emergency Ordinances for the immediate preservation of the public peace, health and safety may be introduced at any Meeting. An emergency Ordinance shall be read a first time and published as provided in the case of other Ordinances and may be read a second time and passed with or without amendment at any regular, special or emergency Meeting subsequent to such publication. An emergency Ordinance shall contain a specific statement of the emergency. The affirmative votes of seven (7) members of the Council shall be necessary for the adoption of an emergency Ordinance.

(4) *Approval of Ordinances, Resolutions and appropriations by the Mayor.*

(i) *Ordinances and Resolutions.* Every Ordinance and Resolution, except an emergency Ordinance, a budgetary appropriation Ordinance, and a tax levy Ordinance, shall, before it becomes effective, be certified by the City Clerk to the Mayor for the Mayor's approval. The Mayor may sign the proposed Ordinance or Resolution, whereupon it shall become effective in accordance with its terms. The Mayor may, within seven (7) Days, return a proposed Ordinance or Resolution to the City Clerk with a statement of the reasons for disapproval, which statement shall be transmitted by the City Clerk to the Council at its next regular Meeting. If the Council shall pass the proposed Ordinance or Resolution by an affirmative vote of seven (7) members within fourteen (14) Days or at the next Meeting of the Council held after such Ordinance or Resolution has been returned with the Mayor's disapproval, whichever is later, it shall become effective without the Mayor's approval. If the Mayor does not return the proposed Ordinance or Resolution within the time required, it shall become effective without the Mayor's approval.

(ii) *Appropriations.* The approval of appropriation is addressed in section 5.D of Chapter X of this Charter and any Ordinance pertinent thereto.

(d) *Waiver of reading.* By the unanimous consent of the Council members present, any first or second reading, or both, of an Ordinance may be waived and said Ordinance read by title and statement of purpose.

(e) *Record and publication of Ordinances.* Every Ordinance after passage shall be given a serial number, printed in the journal, and recorded by the City Clerk in a book to be kept for that purpose which shall be properly indexed. All Ordinances for the violation of which a penalty is imposed or which impose any burden on or limit the use of private property and all Ordinances authorizing the issuance of bonds shall be published by the City Clerk in accordance with the Public Notice provision as set forth in section 4.Q and U. of his Charter, within three (3) Days of their passage, in the same manner and form as provided in section 7(c)(1) of Chapter IV of this Charter. At least every ten (10) years, there shall be prepared under the direction of the Corporation Counsel by a competent legal publishing house employed by the City a codification of all Ordinances in force, eliminating all obsolete and conflicting provisions. Said codification shall be passed by the Council as a single Ordinance and without prior publication. Upon its passage it shall be published in loose-leaf form. Copies of all Ordinances shall be printed as promptly as possible after their passage in the same loose-leaf form as the codification, for distribution.

CHAPTER V. THE MAYOR

Sec. 1. The executive power and authority of the Mayor.

There shall be a Mayor who shall be the chief executive officer of the City. The executive and administrative powers of the City are vested in the Mayor, except as otherwise provided in this Charter, or provided by Law.

Compensation of the Mayor. The Mayor shall be paid an annual salary in an amount equal to the salary, including accumulated cost of living adjustments, of a Judge of the Superior Court of the State of Connecticut, commencing at 12:01 a.m. on January 1, 2024 ("base salary"). Every two (2) years, in accordance with Article XIX of the Constitution of the State of Connecticut, the salary of the Mayor shall be adjusted to reflect any changes in such base salary, at which time said salary may be further adjusted to reflect any changes, as provided in sections 1(a) and 2(k) of Chapter IV of this Charter.

Sec. 2. Powers and duties of the Mayor.

In addition to the powers and duties specified elsewhere in this Charter or in the State Constitution and General Statutes, the Mayor shall:

(a) Devote full time to the duties of the office;

(b) Take care that the Laws and Ordinances be faithfully executed within the boundaries of the City, insofar as it is the obligation of the City and its employees to do so;

(c) Be responsible for the performance of their duties by all the appointive officers and Departments and employees of the City and exercise ultimate operational control over the Departments of the City; in this respect the Mayor shall have the discretion to delegate powers and responsibilities to any employee of the City. The Mayor shall conduct or cause the Chief Operating Officer to conduct an annual evaluation of each Department Head. While retaining the responsibilities defined in this provision the Mayor shall designate the Chief Operating Officer to carry out such responsibilities with regard to the supervision and direction of the Departments of the City, as the Mayor may direct;

(d) Appoint, subject to section 2(d) of Chapter IV of this Charter, the Chief Operating Officer, Corporation Counsel and Department Heads, except as otherwise provided in this Charter or collective bargaining agreement, and such other officers and employees of the City as this Charter or an Ordinance of the Council consistent therewith may provide. Following October 1 of the year in which there is a mayoral election a Mayor shall be entitled to make appointments only for a temporary period ending no later than sixty (60) Days following the commencement of the term of office of the new Mayor. If the Mayor is re-elected this limitation shall not apply after the election. The Mayor shall have power to remove any appointee, except a member of the Classified Service. The Mayor may suspend from duty for not more than thirty (30) Days any such appointee pending Final Action.

(e) Appoint, subject to section 2(d) of Chapter IV of this Charter, all members of all Boards, Commissions, agencies, authorities and other bodies of the City created by the General Statutes or by Ordinance. Following October 1 of the year in which there is a mayoral election a Mayor shall be entitled to make appointments only for a temporary period ending no later than sixty (60) Days following the commencement of the term of office of the new Mayor. If the Mayor is re-elected this limitation shall not apply after the election. The Mayor shall have the power to initiate the removal of any appointee as set forth in section 1(i) of Chapter VII of this Charter;

(f) Act as the principal representative of the City in relations and affairs with the federal government, the state govern-

ment, other municipalities, regional agencies, and any subdivisions, Departments thereof;

(g) Act as the principal strategist and spokesperson of the City in the creation and implementation of plans for economic development;

(h) Have the right to appear at and address the Council and to cause proposals to be included on the agenda of the Council;

(i) Deliver a written and oral report on the state and condition of the City and on any recommendations the Mayor deems appropriate at the second (2nd) Meeting of the Council in March of each year;

(j) Prepare and submit to the Council not later than its first (1st) Meeting in September of each year a concise and comprehensive report of the financial transactions and administrative activities of the City government during the fiscal year ending on the preceding thirtieth day of June;

(k) Prepare and submit the annual budget as provided in Chapter X of this Charter;

(l) Exercise within the limits of the City all the emergency powers given to the chief executive officer of a municipality under the General Statutes;

(m) Examine, in person or through one (1) or more designees, all data and property of the City in the possession of any officer, Department, Commission, Board (including the Board of Education), authority, employee or member of any part of the municipal government, provided that the Mayor shall not have the right to demand information about or interfere in any way in any investigation connected with the enforcement of any Law, including Regulations, and further provided that the Official responsible for any such investigation shall inform the Mayor of information relating to such investigations when, and to the extent that, in the judgment of the responsible Official doing so: (1) will be in the interest of the City; (2) will not impair the integrity of the investigation; and (3) is otherwise consistent with applicable Law;

(n) Have the right to appear and speak before any Board or Commission, committee or agency of the City, except where the decision of the Board or Commission, committee or agency is appealable on the record to the Superior Court;

(o) Be the traffic authority of the City as defined in the General Statutes, provided that this section shall not affect the powers of a parking authority formed pursuant to Chapter 100 of the General Statutes;

(p) Declare a public emergency that exists or threatens to arise involving or threatening the lives or property of inhabitants of the City or property of the City and mobilize, organize and direct the forces of the City and call upon and cooperate with the forces of the state and other political subdivisions thereof. The Mayor may summon, marshal, deputize or otherwise employ other persons or do whatever the Mayor may deem necessary for the purpose of meeting the emergency. The Mayor may obligate the City in an amount of money not to exceed one hundred thousand dollars ($100,000.00) to cope with such emergency until the Council convenes. The termination of the emergency shall be determined and declared by the Mayor, or by a vote of seven (7) members of the Council.

(q) Assign any employee of one (1) Department to the temporary performance of duties in another Department; subject to the provisions of the applicable collective bargaining agreements, and whenever the interests of the City require. No such temporary assignment shall last past the beginning of the next fiscal year.

(r) Assign employees or other staff to carry out the administrative duties of the various Boards and Commissions of the City.

Sec. 3. Organization of the office of the Mayor.

(a) *Appropriations.* The Mayor may appoint a chief of staff, legislative assistant, research assistant, personal secretary and receptionist, or equivalent positions for which the Council shall appropriate sufficient funds. In addition, the Mayor may employ such other staff necessary for the administration of official duties as the Council may provide. All such assistants and staff shall be appointed by the Mayor and shall serve at the pleasure of the Mayor and shall not be subject to the provisions of section 2(d) of Chapter IV of this Charter.

(b) *Chief Operating Officer.* The budget shall provide for a Chief Operating Officer, who shall be the principal managerial aide to the Mayor and shall perform such duties as may be assigned by the Mayor. The Chief Operating Officer shall be an unclassified employee of the City and shall be appointed by and serve at the pleasure of the Mayor. Said Chief Operating Officer shall be appointed on the basis of substantial executive and administrative experience, qualifications and knowledge.

(c) *Residency of Department Heads and Chief Operating Officer.* The Council may, by Ordinance, establish standards for the residency of Department Heads and Chief Operating Officer, subject to the requirements of the General Statutes.

Sec. 4. Temporary absence or disability.

In the event that the Mayor is temporarily absent or disabled and is, because of such absence or disability, unable to the perform the duties of the Mayor's office, the Council President, or in the president's absence or disability, such member as the Council shall designate, shall exercise the power of the Mayor, except that until such absence or disability of the Mayor has continued for thirty (30) Days, the acting Mayor shall not have power to appoint or remove officers or employees. The compensation for the acting Mayor shall be determined by the Council but shall in no event exceed in proportion the salary of the Mayor. Absence from the City shall not constitute temporary absence in the event the Mayor is in contact with the Chief operating officer by electronic or voice communications. The Council shall provide by Ordinance a procedure for determining said absence or disability.

(a) *Notification by the Mayor.* In the event that the Mayor notifies the President of the Council of an inability to attend to the duties of office due to

(1) temporary absence from the City;

(2) temporary disability or sickness or other cause the President of the Council, or in the President's absence or disability, such member as the Council shall designate, shall exercise the power of the Mayor ("Acting Mayor"), except that until such absence or disability of the Mayor has continued for thirty (30) days, the Acting Mayor shall not have power to appoint or remove officers or employees.

(b) *Action by the Council: Evidential Determination.* In the event the Mayor fails to notify the President of the Council under the provisions of §4(a) of this Charter, above, and it is determined that the Mayor is unable to attend to or perform the duties of office due to an unexplained and sustained absence from the City, temporary disability or illness or absence or other cause, the Council may determine the temporary disability or absence of the Mayor by a vote seven (7) member of the Council present and voting. In such event the President of the Council shall exercise the power of Acting Mayor as set forth in §4(a) of the Charter, above. The determination of physical or mental disability or sickness or such other cause of incapacity to serve, shall be based upon the best evidence as presented by competent authority

(c) *Absence.* Defined. Absence from the City shall not constitute temporary absence in the event the Mayor is in contact with the Chief Operating Officer by electronic or voice communications.

(d) *Procedural Ordinance.* If necessary, the Council may provide by Ordinance a procedure for determining said absence or disability, consistent with the standard set forth herein.

(e) *Compensation.* The compensation for the Acting Mayor shall be determined by the Council but shall in no event exceed in proportion the salary of the Mayor.

(f) *Status of the Council President.* There shall be no Vacancy in the Office of the President of the Council when the President serves as Acting Mayor under this provisions of the Charter.

CHAPTER VI. THE CITY TREASURER

Sec. 1. City Treasurer.

There shall be a City Treasurer, who shall have the powers set forth in this Charter or Ordinances, the General Statutes, or as otherwise provided by Law.

Compensation of the City Treasurer. The City Treasurer shall be paid an annual salary in an amount equal to six thousand ($6,000.00) dollars less than the salary of the Mayor as set forth in section 1 of Chapter V of this Charter, commencing at 12:01 am on January 1, 2024. The salary of said Treasurer shall be adjusted to reflect any changes in such base salary, in accordance with the Constitution of the State of Connecticut at which time said salary may be further adjusted to reflect any changes as provided in sections 1(a) and 2(k) of Chapter IV of this Charter.

Sec. 2. Powers and Duties of the City Treasurer.

In addition to the powers and duties specified elsewhere in this Charter or Ordinances and the General Statutes, the City Treasurer shall have the following responsibilities.

(a) *Custodian of City funds.* Except as otherwise provided in or pursuant to any of the provisions to which reference is made in subparagraph (d) below, the City Treasurer shall have custody of, and shall disburse, all funds belonging to the City and shall deposit the same in one (1) or more authorized public depositories. For purposes of this chapter, an "authorized public depository" shall be any bank and/or trust company that qualifies as qualified public depository under and pursuant to the General Statutes, or a state or federally chartered credit union, to the extent the same has been designated as such by the Council on the recommendation of the Mayor, following consultation with the City Treasurer. For these purposes the City Treasurer is authorized to contract with all such qualified public depositories or state or federally chartered credit unions into which such funds are deposited.

(b) *Treasurer of town deposit fund and capital improvement funds. Investment responsibilities.*

(1) The City Treasurer shall have custody, and shall be treasurer, of the town deposit fund and the capital improvement fund as well as any trust or like funds which are established by or under this Charter or the General Statutes for any eleemosynary purposes by or for the benefit of the City, its residents or any of its public parks, buildings or other improvements.

(2) In that capacity, the City Treasurer shall have authority to invest and reinvest the assets of all such funds in cash, securities and other investment instruments and/or vehicles which are legal for the investment of trust funds under the General Statutes, consistent with the fiduciary and other standards set forth in the Connecticut Uniform Prudent Investors Act.

(3) Nothing herein shall be construed to prevent sinking funds and trust funds from continuing to be managed by the trust companies manag-

ing them at the effective date of this Charter, unless the appointment is revoked by the Council for cause.

(4) Whenever a Vacancy occurs in the management of any trust fund, or any trust fund is hereafter created, the Council shall have power, on the recommendation of the City Treasurer, to designate one (1) or more authorized public depositories to manage the same, which designation shall continue until revoked by the Council for cause.

(c) *Disbursements.* The City Treasurer shall make no disbursement from any funds of the City except by check or electronic transfer signed or authorized by the City Treasurer. Each check or transfer shall be based upon a voucher or payroll duly audited by the Director of Finance. Before signing any check or authorizing any transfer the City Treasurer shall be satisfied that such check or transfer represents the payment of a duly authorized obligation of the City.

(1) *Books and Records.* The City Treasurer shall keep such books and records as the Director of Finance shall prescribe.

(2) *Official Bond.* The City Treasurer's official bond shall be a surety company bond in an amount sufficient to satisfy the requirements of the General Statutes and the Ordinances.

(d) *The role of the City Treasurer with regard to City pension funds.* The City Treasurer shall have the specifically delineated responsibilities pertaining to the care, custody and investment of the assets held in all of the various pension, retirement and savings funds that are maintained on behalf of current and/or former city employees and their beneficiaries, and such powers incident to such responsibilities (including the power, upon approval of the Pension Commission, to invest and reinvest the same and to enter contracts with qualified custodians, investment advisers and life insurance companies) all as and in the manner referred to in Chapter XII of this Charter. The City Treasurer shall be a fiduciary of such funds.

(e) *Management of the Pension Commission.* The City Treasurer shall manage the operation of the Pension Commission, subject to review and authority of the Pension Commission.

(f) *Interaction with the Council.* The City Treasurer shall have the right to appear at and address the Council and to cause proposals pertaining to the functions of the City Treasurer relating to the administration of the Pension Commission to be included on the agenda of the Council.

Sec. 3. Organization of the Office of the City Treasurer.

(a) *Assistant City Treasurer.* The City Treasurer shall appoint to serve at the Treasurer's pleasure an Assistant City Treasurer and shall file with the City Clerk a certificate of such appointment and the City Clerk shall record such certificate in the minutes of the Council. said assistant shall perform such duties as may be required by the City Treasurer and shall have all the powers and duties of the City Treasurer during the City Treasurer's absence or disability.

(b) *Other employees.* Subject to the civil service provisions of this Charter and any applicable collective bargaining agreements or employment contracts, the City Treasurer shall appoint and manage such employees as are necessary and appropriate to perform the work of the City Treasurer's office. Subject to approval of the Pension Commission, and the terms of any employment contracts, the City Treasurer shall appoint and manage such employees and contractors as are necessary and appropriate to perform the work of the Pension Commission.

CHAPTER VII. BOARDS AND COMMISSIONS

Sec. 1. General requirements concerning membership on appointive Boards and Commissions.

(a) *Creation of Boards and Commissions: number of members, term.* In addition to those Boards and Commission established by this Charter, the Council shall by Ordinance establish the number of Board and Commission members (and, alternates, in the case of the Planning and Zoning Commission and the Zoning Board of Appeals), which shall always be odd and terms of office, which may be staggered. Any such Ordinance shall make provision for the appointment of a chair, the keeping of records, and the frequency of Meetings of all Boards and Commissions.

(1) *The Role of Boards and Commissions.* The primary purpose of a Board or Commission is to serve the residents of the City in carrying out the policy, advisory and/or quasi-judicial or regulatory functions under its charge. Boards and Commissions serve as a conduit for citizen participation and input by gathering, analyzing and acting upon such information in order to meet the specific objectives as set forth under this Charter, Ordinances or other source of legal authority.

(2) *The Public Interest.* Members of Boards and Commissions are required to understand the role and scope of responsibility and be informed of the objectives, scope of responsibility and operating procedures of the Board or Commission to which they are appointed. Members should represent the public interest and not special interest groups and seek to render decisions on the basis of what is best for the residents of the City. Furthermore, members should take care that deliberations include thorough research and review of all alternatives on an issue prior to making a recommendation.

(i) *Regulatory Functions.* In the case of members of regulatory Boards and Commissions, decisions should be evidence-based taking into account the interests of the public and fairness to the parties based upon application of the Law and any other pertinent documents.

(ii) *Department-based Policy and Administrative Functions.* In the case of members of department-based Boards and Commissions, members serve as a communication link between the community, staff, and City presenting programs and recommendations and provide a channel for citizen expression. Members should establish a strong working relationship with Department Heads and other executives; however, at all times, members represent the public interest as opposed to the specific department interests under their jurisdiction. This is particularly true when a Board or Commission has an oversight function.

(b) *Administrative Requirements for Boards and Commissions.* All Boards and Commissions established by this Charter or by Ordinance are required to comply with the following requirements:

(1) *Number of Members. Terms.* The number of Board and Commission members (and alternates) and terms of office, which may be staggered. Except as otherwise provided by the General Statutes and this Charter, the number shall always be odd and the term of office shall not exceed a term of six (6) years, which may be staggered.

(2) *Chairs and Other Officers.* Any such Ordinance shall make provision for (a) the appointment of a chair, such officers as may be necessary for its proper function and a delineation of the responsibilities of the presiding officer and other officers; (b) the keeping of records and posting of agendas as required by the General Statutes; (c) minority party representation as set forth in this Charter;

(d) public participation (including, but not limited to, public speaking, comment and any applicable rules and protocols); and, (e) the frequency of regular Meetings of all Boards and Commissions and mandatory attendance requirements. The agendas of Boards and Commissions shall be approved by the Chair of such entity. The Mayor shall not serve as chair of any elective or appointed Board or Commission.

(3) *Quorum.* A majority of the total membership of each such Board and Commission shall constitute a quorum for the transaction of all business; unless, otherwise required by the General Statutes.

(4) *Meeting Frequency and Notice.* ach Board or Commission shall meet as frequently as necessary to perform its duties; however, not less than quarterly. Meetings may be cancelled with notice and disclosure to the public stating the reason for such cancellation; notwithstanding the foregoing, no Board or Commission shall cancel Meetings for two (2) consecutive quarters. Council may, by Ordinance, require that a Board or Commission meet more frequently. Failure to obtain a quorum shall not be deemed a cancellation of a Meeting. The Chair, any two (2) members or the Mayor may call a Meeting of any appointive Board or Commission, provided each member is given Public Notice of not less than twenty-four (24) hours unless otherwise required by Law.

(5) *Sunset Provision.* Before the first day of July of each year, the City Clerk shall report the following information to Common Council, in writing:

(i) *Failure to Meet.* The name of any Board or Commission as defined in section 4.A of Chapter I of this Charter, which has not met during the preceding twelve (12) months; and

(ii) *Abolition of Boards and Commissions.* When any such Board or Commission is reported to the Common Council by the City Clerk as set forth herein, the Council shall within sixty (60) days after the receipt of such report, take action, by Resolution, to continue the existence of such Board. Should no such action be taken, the Board or Commission shall be abolished by operation of law.

(iii) *Exception.* This provision shall not apply to Boards and Commissions set forth in section 2(a) - (e) of this Chapter of the Charter.

(6) *Records.* Each clerk of a Board or Commission shall keep a complete record of the Resolutions and other proceedings of the Board or Commission and shall have custody of its correspondence, files and other records in accordance with Law. All minutes and recordings of Meetings shall be filed with the City Clerk. All such records shall be open for public inspection at reasonable hours and shall be available for public review and inspection on the City website in compliance with the requirements of Law.

(7) *Public Access, Comment and Interaction.*

(i) *Remote and Direct Public Access to Boards and Commissions.* Each Board and Commission shall have capacity to receive remote, direct electronic or digital communications from the public. Said means of communication shall include those currently in existence or those to be created in the future and shall uniformly apply to all Boards and Commissions at any given time. Access to the such communications capacity shall be limited to the clerk and/or Chair of the Board or Commission both of whom shall be responsible for disseminating such information to the remaining members. The City Clerk working with appropriate City Officials shall

facilitate assignment of such communications technologies to Boards and Commissions.

(ii) *Public Comment: Prior to and During Meetings.* Meetings of Boards and Commissions shall be open to the public in accordance with the General Statutes. Each Board and Commission shall make provision, in its rules, for a public comment period during, at least, one (1) Meeting per quarter.

(iii) *Executive Session and Other Legal or Regulatory Proceedings.* Notwithstanding the foregoing, public comment may be limited or prohibited on agenda items covered by the Law pertaining to non-public Meetings or executive sessions, by applicable provisions of collective bargaining agreement, if any; and, any Laws or agreements protective of the privacy rights, confidentiality or legal rights associated with any party before the Board or Commission. Notwithstanding the foregoing, Boards and Commissions should strive to permit public comment where possible in order to reach a balance between the public interest, contractual and legal obligations and avoiding prejudicial behavior in the decisions to be rendered; as may be determined by opinion of the Corporation Counsel.

(8) *Minority party representation.* The political affiliation of the members of appointed Boards or Commissions or panel of alternates shall reflect the requirements of the General Statutes with respect to minority party representation.

(9) *Compensation prohibited.* No member of any appointive Board or Commission on which service is uncompensated as of June 1, 2002, shall receive compensation for services as such member. Notwithstanding the foregoing, members may receive reimbursement for expenses related to service including transportation and child care and other services that will facilitate the diverse participation of Electors of this City.

(c) *Appointment.* Except as otherwise provided by the General Statutes or authorized by this Charter, all members or alternate members of Boards or Commissions, including the appointed members of the Board of Education, shall be appointed by the Mayor, pursuant to section 2(e) of Chapter V (subject to section 2(d) of Chapter IV) of this Charter as set forth in this Charter. All Board or Commission members shall serve until their successors have been appointed and qualified.

(d) *Vacancy.* In the event of a Vacancy on any Board or Commission, a successor may be appointed by either the Mayor, pursuant to section 2(e) of Chapter V (subject to section 2(d) of Chapter IV) of this Charter or such other appointing authority as set forth in this Charter, subject to approval of a Majority Vote of the Council, for the remainder of the term of office.

(1) *Resignation: Notification of the City Clerk.* The effective date of a Vacancy caused by resignation shall be the date said written resignation is received by the City Clerk. A resignation may be effectuated if an oral statement is made on the record of the Board or Commission and the approved minutes of said Meeting are transmitted to the City Clerk by the Chair.

(2) *Effective Date.* The effective date of said resignation shall be the date of receipt by the City Clerk.

(3) *Notification of the Mayor and Council President.* The City Clerk shall forthwith notify the Mayor and the President of the Council of any Vacancy within twenty-four (24) hours of receipt or knowledge. Said Clerk shall record the time of said notification for the purposes of section 1(c) of Chapter VII of this Charter.

(e) *Removal.* The Mayor may initiate proceedings to remove a member of any appointive Board, Commission, or "panel of alternates" for

any of the following reasons: (1) misconduct in the performance of duties; (2) persistent absence; (3) conviction of a felony; (4) conviction of a misdemeanor which would undermine the public confidence in the member's ability to perform the duties of office. Rules of procedure for the removal of said member, and additional grounds for removal, shall be set by Ordinance.

(f) *Residency requirement.* Except as otherwise provided by Ordinance, no person may serve on a Board or Commission unless such person is an Elector of the City. If any such person who is a member of a Board or Commission shall move from the City, such person's membership on such Board or Commission shall be immediately terminated.

(g) *Representation on Boards and Commissions.* The Mayor and other appointing authorities are required to consider appointments to ensure that, to the fullest extent possible, the composition of Boards and Commission reflect the diversity of the residents and the geographic areas of the City.

(1) *Diversity.* Boards and Commissions should reflect the diversity, including the race, color, ethnicity, religious creed, age, sex, national origin, ancestry, status as a veteran, socio-economic status, sexual orientation, gender identity or expression, familial and marital status, pregnancy, or physical and mental disability and cultural make-up of the City in order to achieve a representative balance of its residents. Moreover, Hartford is committed to ensuring fair representation on all Boards and Commissions. The Boards and Commissions of the City should include balanced geographic representation from throughout the City.

(2) *Backgrounds.* Of equal weight with the foregoing requirements, the Mayor and other appointing authorities are obligated to take into consideration a diversity of backgrounds, life experience, expertise, as well as personal integrity and a commitment to ensuring an ethical and transparent local government.

The Mayor and Council, when examining new candidates for appointment to Boards and Commissions are required to give due consideration to recommendations made by representatives of Outreach Organizations as set forth in Sec. 1(j)(iv) of this Chapter of the Charter.

(h) *Required Cooperation.* Each Official and employee of any Department of the City shall assist the Boards and Commissions and the pertinent Departments in carrying out the provisions of this section. Furthermore, in the event a Board or Commission is attached to a Department, the Department Head shall cooperate with said Board or Commission in formulating and carrying out the operational and management policies of the Department.

(i) *Conflict of interest.* In addition to all applicable conflict of interest provisions of the General Statutes, this Charter and of the Ordinances, no member of the Planning and Zoning Commission, the Zoning Board of Appeals, or any other Board or Commission set forth by Ordinance shall participate in the hearing or decision if such participation would be a "prohibited activity" as defined in the General Statutes. The Ordinance shall establish and maintain a local standard applicable to members of Boards and Commissions.

(j) *Administration of Boards and Commissions:*

(i) *The Role of the City Clerk.* The City Clerk shall (a) be the filing repository of interested applicants to Boards and Commissions and shall notify the Mayor's office and President of the Council of all such applicants; (b) post all agendas and minutes of Boards and Commissions in the office of the City Clerk; (c) notify the Mayor and Council President of all noticed vacancies and openings on Boards and Commissions and shall record the time of said notification; (d) swear in all approved appointing authority appointments; and; (e) record all approved appointments and sworn oaths as required by the General Statutes. In addition, the City Clerk shall (A) maintain records of incumbency of Boards and Commissions by list; (B) be

responsible for notifying the Mayor and Council of a vacancy or when a term of a member is to expire, in the latter case, at least three (3) months prior to the end of the term

(ii) *Publication of Boards and Commissions: Applicant Pool, Public Communication and Solicitation of Interested Parties.* For the purposes of creating an applicant pool during the month of October of each year, the City Clerk shall cause to be published on the City web-site; posted for thirty (30) Days in a conspicuous location available to the public in the office of the City Clerk and in such location in City Hall as designated by the Mayor; and, if practicable or deemed necessary by the Mayor, published at least once, annually, for general circulation within the City a list of all the Boards and Commissions of the City. Any Elector desirous of serving on any Board or Commission, may express such desire in writing addressed to such City Clerk who shall retain such correspondence on file for two (2) years. The appointing authority of any member of any Board or Commission shall review such expressions of interest prior to making the appointment to such Board or Commission.

(iii) *Additional Public Outreach: Outreach Organizations.* In addition to the publication requirements of this section, the Mayor and the City Clerk shall engage in outreach efforts, including, but not limited to the following in order to solicit candidates for positions on Boards and Commissions: political, religious, community-based, social, mutual benefit organizations, civic and business organizations, as appropriate.

Sec. 2. Appointive Boards and Commissions required by the Charter.

The following Boards and Commissions shall be established, by Ordinance, subject to the provisions and powers enumerated in the General Statutes, Special Acts and this Charter:

(a) *Internal Audit Commission.* Said Internal Audit Commission and a unit or department, as shall be further set forth in the Code of Ordinances, shall have authority to examine into all matters relating to the integrity, efficiency and efficacy of the government of the City, including the Board of Education. The Commission (and the head of the internal audit unit) shall give due consideration to requests from the Council or any member thereof and from the Mayor in establishing and modifying the work plan of the Commission or its staff.

(1) *Membership and Term.* Notwithstanding the provisions of this Charter pertaining to the establishment of Boards and Commissions, said Commission shall consist of three (3) members each appointed for a term of four (4) years. The Commission shall comply with the provisions of section 1(b)(9) of this Chapter of the Charter with respect to minority party representation. The members of the Commission shall have professional experience in the fields of accounting, management or financial analysis and shall be appointed, as follows:

(i) The President of the Council shall appoint one (1) member of the Commission, subject to confirmation by a Majority Vote of the Council;

(ii) The Treasurer shall appoint one (1) member of the Commission, subject to confirmation by a Majority Vote of the Council; and

(iii) The Council shall approve, by a Majority Vote of the Council one (1) member of the Commission, from two (2) candidates selected by the MetroHartford Alliance, or successor organizations, in accordance with a procedure to be established by Ordinance. Notwithstanding the provisions of the Charter

or the Ordinances enacted thereunder, the MetroHartford Alliance shall make best efforts to recommend Hartford residents.

(2) *Annual internal audit budget.* The Internal Audit Commission shall adopt and forward to the Mayor, in accordance with the procedures and timetable established for other City departments, a proposed annual budget. The Mayor's budget shall include, and the Council shall appropriate, for support of the internal audit unit at least the amount necessary to maintain the staffing of the unit as approved in the previous annual budget unless the Commission requests a smaller amount.

(3) *Internal audit unit.* The Ordinance shall include the provision of employees of an internal audit unit in numbers reasonable to conduct the examinations required by the Commission. The Commission may authorize the employees or consultants of the unit to cause such examinations as permitted by this provision of the Charter and the pertinent implementing Ordinances. Said internal audit unit shall report to and be under the direction of the Commission as further set forth by Ordinance.

(i) *Head of the internal audit unit: qualifications.* The head of the internal audit unit shall be appointed by the Commission. The head of the internal audit unit shall be a member of the Classified Service, shall be certified as an internal auditor or fraud examiner and shall have an advanced degree in accounting, business management, or a related field as set forth by the Commission or by Ordinance.

(ii) *Reports of the unit.* All reports of the internal audit unit, including any responses thereto, shall be public and shall be submitted to the Council and to the mayor.

(iii) *Procedures.* The Council shall by Ordinance specify the procedures the internal audit unit shall follow, including a requirement of a written response by any individual or the head of a department, agency or office cited in an internal audit report.

(b) *Committee on Abatement of Taxes and Assessments.* Said Committee on Abatement of Taxes and Assessments, shall have and exercise all the powers pertaining to (1) the abatement of taxes and assessments heretofore or hereafter conferred by Law on the Council or any committee, Board, Commission or officer of the City; (2) the abatement of taxes and assessments on dwelling units constructed by a private, nonprofit corporation for the public purpose of providing relocation housing under section 221 of the National Housing Act, as amended. Such abatements shall reflect the amounts necessary to maintain rent levels for such housing within the financial reach of families to be relocated, as approved by the Council, and such abatements shall be subject to review annually.

Membership. Notwithstanding the provisions of this Charter pertaining to the establishment of Boards and Commissions, said Committee shall consist of the City Treasurer, Director of Finance and Corporation Counsel.

(c) *Board of Assessment Appeals.* There shall be a Board of Assessment Appeals. Said Board shall be the successor to the Board of Tax Review and shall have all the powers of said Board of Tax Appeals as

set forth under the General Statutes, Special Acts or Ordinance, as may be amended from time to time.

(1) *Membership.* Each member of the Board of Assessment Appeals at the effective date of this Charter shall continue in office until the expiration of the member's term and until a successor is duly appointed and qualified. The Board of Assessment Appeals shall consist of three (3) members and two (2) alternates, appointed by the Mayor, subject to confirmation by a Majority Vote of the Council in accordance with section 2(d) of Chapter IV of this Charter.

(2) *Term and Qualification.* One (1) member to be appointed each year for a term of three (3) years, each of whom shall be selected for their knowledge of taxation and real estate values. Said Board shall comply with the provisions of section 1(b)(9) of this Chapter of the Charter with respect to minority party representation.

(3) *Powers and duties.* The Board of Assessment Appeals shall have the same powers and perform the same duties as boards of assessment appeals of municipalities. The Board shall act in accordance with the provisions of the General Statutes applicable to the board of assessment appeals of municipalities.

(d) *Planning and Zoning Commission.* Said Planning and Zoning Commission shall be comprised of individuals with skills and knowledge in related fields such as planning (including current involvement in the field), architecture, landscape architecture, real estate, or law. Said Commission shall have all the powers and duties of both a planning commission and a zoning commission under the General Statutes and, upon the effective date of this provision, shall supersede the commission on the city plan as the City's planning commission and the Council as the City's zoning commission. All Ordinances and Regulations adopted by the Council related to planning and zoning prior to the effective date of this provision shall continue in full force and effect until modified, repealed or superseded in accordance with this Charter and the General Statutes. The decisions of the Planning and Zoning Commission shall be consistent with the plan of conservation and development, as required by the General Statutes, unless the Commission concludes that changes in circumstances since the adoption of the plan of development support a deviation from the plan. The Commission shall set forth the basis for any deviation from the plan of development in its decision.

(1) *Membership and Term.* Said Commission shall consist of seven (7) members and three (3) alternates each appointed for a term of four (4) years. Each member of the Planning and Zoning Commission at the effective date of this Charter shall continue in office until the expiration of the member's term and until a successor is duly appointed and qualified. The Commission and alternates shall be appointed in compliance with the provisions of section 1(b)(9) of this Chapter of the Charter with respect to minority party representation; and, each Meeting shall endeavor to assure that hearing panels are in compliance therewith. Each of the seven (7) members shall be appointed by the Mayor, subject to confirmation by a Majority Vote of the Council in accordance with section 2(d) of Chapter IV of this Charter.

(2) *Alternates.* Each three (3) alternate members of the Planning and Zoning Commission at the effective date of this Charter shall continue in office until the expiration of the member's

term and until a successor is duly appointed and qualified. Thereafter, the alternates shall be appointed by the Mayor, subject to confirmation by a Majority Vote of the Council, in accordance with section 2(d) of Chapter IV of this Charter.

(3) *Term.* One (1) member to be appointed each year for a term of three (3) years. Said Board shall comply with the provisions of the Charter with respect to minority party representation.

(4) *Duty to plan.* It shall be the duty of the Commission to prepare and recommend from time to time, as required by the General Statutes, but no less than every ten (10) years, a plan of conservation and development for the City or any portion thereof. Said plan shall include all requirements of the General Statutes pertaining to such plans and any other criterion set forth by the Commission in the exercise of its zoning function.

(5) *Duties in relation to capital budget.* The Commission shall have such responsibilities as set forth in section 2.C.(2) of Chapter X of this Charter.

(6) *Certain Ordinances to be referred to Planning and Zoning Commission.* Every Ordinance or Resolution of the Council relating municipal improvements, as defined in sections 8-24 of the C.G.S., as may be amended from time to time, shall be at once referred to the Planning and Zoning Commission for review consistent with the provisions of said section. Failure of the Commission to act within thirty-five (35) Days of formal submission shall be deemed approval.

(e) *Zoning Board of Appeals.* There shall be a Zoning Board of Appeals, which shall hear appeals as set forth in the General Statutes. The chair of the Board and in the chair's absence the acting chair shall have the power to administer oaths and compel the attendance of witnesses. Any person who fails to obey a lawful subpoena of said chair or acting chair shall be fined not more than one hundred dollars ($100.00) or the maximum amount set forth in the General Statutes and enacted by Ordinance or imprisoned not more than thirty (30) days or both.

(1) *Membership.* Each member of the Zoning Board of Appeals at the effective date of this Charter shall continue in office until the expiration of the member's term and until a successor is duly appointed and qualified. The Board shall consist of five (5) persons. Said Board shall be appointed in compliance with the provisions of section 1(b)(9) of this Chapter of the Charter with respect to minority party representation and, each Meeting shall endeavor to assure that hearing panels are in compliance therewith. The five (5) members shall be appointed by the Mayor, subject to confirmation by a Majority Vote of the Council in accordance with section 2(d) of Chapter IV of this Charter.

(2) *Alternates.* Each alternate member of the Zoning Board of Appeals the effective date of this Charter shall continue in office until the expiration of the member's term and until a successor is duly appointed and qualified. The alternates shall consist of three (3) persons, appointed by the Mayor; subject to confirmation by a Majority Vote of the Council, in accordance with section 2(d) of Chapter IV of this Charter.

(3) *Term and Qualification.* Each member and alternate to be appointed each year for a term of three (3) years. Said selection of alternates shall comply with the

provisions of section 1(b)(9) of this Chapter of the Charter with respect to minority party representation.

(4) *Violation, punishment and remedies pertaining to zoning Regulations.* Zoning Regulations as provided in this Charter shall be enforced by such employees of the City as the Council may by Ordinance designate. Violations of such Regulations shall be punished and such other remedies shall be available as provided in sections 8-12 and 8-12a of the General Statutes as may be amended from time to time.

Sec. 3. Appointive Boards and Commissions required by Charter.

The Council shall adopt Ordinance setting forth the organizational structure and powers of the following Boards and Commission, consistent with the requirements of this Charter:

(a) *Police Accountability Review Board.* A Police Accountability Review Board, which shall perform advisory functions with respect to the policies, operation, management and independent civilian oversight of the Police Department (as established under the authority set forth in the General Statutes, including, but not limited to C.G.S. §7-148(c)(4)(A) and §7-148(c)(7)(H) and Chapter VIII, section 4(a) of this Charter).

(b) *Civilian Police Review Board and Inspector General.* A Civilian Police Review Board and Inspector General in accordance with Law, including, but not limited to the General Statutes and any agreements sanctioned by judicial authority. The Civilian Review Board shall adopt and forward to the Mayor, in accordance with the procedures and timetable established for other City Departments, a proposed annual budget. The Mayor's budget shall include, and the Council shall appropriate, for support of the Civilian Police Review Board at least the amount necessary to maintain the staffing of the unit, including the funding of the Inspector General, as approved in the previous annual budget unless the Board requests a smaller amount.

(c) *Ethics Commission.* An Ethics Commission in accordance with the provisions of the General Statutes.

Sec. 4. Appointive Boards and Commissions required by Ordinance.

The Council may establish, by Ordinance, such Boards and Commissions as are necessary to effectuate the powers and purposes of the City as enumerated in the General Statutes, Special Acts and this Charter.

Sec. 5. Appointive Boards and Commissions required by Special Act.

(a) *The Pension Commission.*

(1) *Special Act Authority.* The Pension Commission established under authority of "An Act Revising the Charter of the City of Hartford," Sp. Laws No. 547, approved June 24, 1941 (the "1941 Charter"), "An Act Revising the Charter of the City of Hartford," Sp. Laws 1947, Act No. 30, approved May 1, 1947, (the "1947 Charter"), and Chapter XVII of the Charter of the City of Hartford, designated Ordinance Number 28-67 (the "1967" Charter") as the same have been amended from time to time by special acts of the General Assembly and/or Ordinances, shall continue in existence and have all the rights, powers and responsibilities referred to in this Chapter VII and in Chapter XII of this Charter. All the provisions of sections 233, 234 and 235 of "An Act Revising the Charter of the City of Hartford," Sp. Laws No. 547, approved June 24, 1941 [sections 11, 21 and 22 of the Code of Special Act Authority; see, Sec. 4(b), below), as the same have been amended from time to time by special acts of the General Assembly and/or Ordinances (said provisions, as amended, being hereinafter referred to as the "1941

Act"), and all of the provisions of Chapter XVI of "An Act Revising the Charter of the City of Hartford," Sp. Laws 1947, Act No. 30, approved May 1, 1947 [sections 6, through 10 of said Code of Special Act Authority], as the same have been amended from time to time by special acts of the General Assembly and/or Ordinances (said chapter as amended and renumbered, being hereinafter referred to as the "1947 Act"), shall continue in existence, unaffected by this charter.

(2) *Statutory and Charter Authority.* The City is also authorized to create a Pension Commission by C.G.S. §7-148 and Chapter VII of this Charter.

(3) *Validation and Codification of Special Act Authority: Code of Special Act Authority.* Said Special Act and historical Charter provisions referenced in Sec. 4(a), above, of this chapter of the Charter as well as Special Acts pertaining to employees, pensions and retirements are hereby validated, codified and contained in a separate document entitled "Historic and Special Act Provisions Pertaining to Employees, Pensions and Retirements," ("Code of Special Act Authority") which shall be filed with and codified by the Office of the Treasurer and the City Clerk.

(4) *Membership.* Notwithstanding the provisions of the Charter pertaining to the establishment of commissions, there shall be a Pension Commission of three (3) voting members, none of whom shall hold any other office in the City government and one (1) of whom shall be a fellow or associate of either the Actuarial Society of America or the American Institute of Actuaries, to be appointed one each year for a term of three (3) years commencing on the first Monday of the month of February.

(i) *Appointment Authority: Staggered Terms.* Notwithstanding the provisions of this Charter pertaining to the establishment of Boards and Commissions, there shall be three (3) voting members of the Pension Commission, none of whom shall hold any other office in the City government and at least one (1) of whom shall be a fellow or associate of either the Actuarial Society of America or the American Institute of Actuaries. Each of such members shall be appointed by the Mayor for staggered three (3) year terms, one (1) each commencing on the first Monday of each successive February. In addition to the three (3) voting members there shall be one (1) non-voting member of the Commission elected by contributing members of the municipal employees' retirement fund. The members of the Pension Commission in office at the effective date of this provision shall continue in office until the expiration of their terms.

(ii) *Vacancies.* Vacancies shall be filled by the Appointing Authority for the vacated position for the unexpired portion of the term, subject to approval by the Council.

(iii) *Non-Voting Member.* In addition to the three voting members, there shall be one nonvoting member of the Commission elected by active members of the municipal employees' retirement fund to a three- year renewable term, whose election shall not be subject to any other approval.

(iv) *Continuity of Membership.* All members of the Pension Commission shall continue in office until their successors have been appointed and qualified, or in the case of the employees' representative, elected.

(v) *Role of the City Treasurer as Secretary of the Pension Commission and Director of Human Resources.* The City Treasurer shall act as secretary of the Commission and the Director of Human Resources

shall attend all Meetings of the Commission, but neither shall have a vote.

(5) *Role of the Pension Commission.* The Commission shall continue to administer, manage, and invest the Municipal Employees' Retirement Fund and all of the retirement programs, benefits, systems, and funds of the City, (all together known as the "Retirement Plan") as set forth in Chapter XII of this Charter, and as authorized by any and all applicable General Statutes, Special Acts, provisions of this Charter, Ordinances, Resolutions, or collective bargaining agreements.

(6) *Historical Authority of the Pension Commission.* The Pension Commission shall retain its powers and duties as set forth in the Code of Special Act Authority with regard to the former retirement system for City employees, and all the powers and duties of the Board of Police Commissioners as trustees of the former police benefit fund and of the Board of Fire Commissioners as members of the board of trustees of the former firemen's relief fund. The relevant provisions of the Special Acts powers in the charters referenced herein are hereby ratified and shall remain in full force and effect to the extent applicable to any persons covered by said provisions.

(7) *Powers and Duties.*

(i) *Review, Approve and Monitoring Functions.* The Pension Commission shall have responsibility to review and, as appropriate, approve, and monitor all assets and investments of the Municipal Employees' Retirement Fund and of the Retirement Plan.

(ii) *Procurement.* The Pension Commission shall have the authority to (a) procure and enter into multi -year contracts; (b) enter into contracts relating to the care, custody, or investment of funds; (c) procure services and advice with respect to such responsibilities; and (d) procure any annuities from any insurance companies.

(iii) *Vendors and Consultants.* The Pension Commission may hire or contract with such vendors and consultants, and procure such goods and services it deems necessary and proper for the execution of its duties, not subject to the requirements of Chapter VIII, Sec. 5(d) of this Charter.

(iv) *Annual Contribution.* The Pension Commission shall continue to determine the City's annual contribution to the Municipal Employees' Retirement Fund based on sound actuarial principles, consistent with its fiduciary obligation.

(v) *Regulations.* The Pension Commission shall have the authority to make Regulations governing the administration, calculation and payment of benefits in accordance and the provisions of collective bargaining agreements.

(vi) *Employees.* The Pension Commission may hire or contract with such employees as it deems necessary and proper, including, without limitation, a chief investment officer, plan administrator and general counsel. It shall have the sole authority to determine the titles, qualifications, duties, compensation and terms of office or employment of each such Official or employee. All such employees, and the City Treasurer and Assistant City Treasurer, shall be members of the Municipal Employees' Retirement Fund. The pension commission may provide such benefits to its employees as it shall deem appropriate, including health and retirement benefits, and such other terms and conditions of

employment which are similar in nature to those provided by the City of Hartford to its employees.

(8) *Administrative Functions of the City Treasurer Pertaining to the Pension Commission.* The City Treasurer shall continue to have all powers and duties set forth in the 1941, 1947 and 1967 Charters, and shall have immediate responsibility for the care, custody and investment of all of the assets of the Municipal Employees Retirement Fund and of the Retirement Plan, and also shall continue to have all powers incident to such responsibilities, including the power to invest and reinvest such assets and to enter into contracts with qualified custodians, investment advisers, life insurance companies, and others, all as approved by the Pension Commission. The City Treasurer shall be the supervisor of the Pension Commission's employees and managing authority of its contracts.

(9) *Role of the Common Council Pertaining to Pensions.* The Common Council shall recodify the provisions of the 1947 Act and, in so doing, incorporate all of such provisions which pertain to any active employees of the City in and as a part of the Municipal Code and replace all references to the "city manager" that are contained in or pertain to the 1947 Act with the term "Mayor," as permitted by the General Statutes.

(10) *No rights, benefits or obligations affected.* No rights, benefits or obligations of any persons in or with respect to the MERF or any other of the City's retirement plans or funds (including, but not limited to, any persons who are receiving or entitled to receive any pensions, allowances or other benefits under or by virtue of any of the aforementioned funds or provisions, and/or any persons in the service of the City on the effective date of this Charter who are or become contributing members of the MERF) are affected by this Charter; it being the intent of this chapter that all such rights, benefits and obligations, and all of the provisions governing them (including, but not limited to, all such provisions as pertain to their administration and the care, custody, and investment of any assets set aside to fund them), shall continue in full force and effect and are not repealed or superseded by this Charter; provided however, that nothing herein shall preclude any of the same from hereafter being duly modified, amended or repealed as and in the manner provided by Law.

(b) *The Greater Hartford Flood Commission.*

(1) *Grant of authority.* The City of Hartford shall have power to act for the elimination, prevention and control of flooding and flood damage in the territory drained by the Park River and its tributaries, and the territory adjacent thereto, and for the protection and improvement of areas within such territory heretofore or hereafter affected by such damage. All such power shall be exercised in the name and on behalf of the City by or under authority of the Flood Control Commission created by section 3 [section 35 of this Appendix] of this act.

(2) *Transfer of powers and duties.* The powers and duties conferred upon the Hartford Flood Commission by section 236 of number 547 of the Special Acts of 1941, as amended, are transferred to the Flood Control Commission created pursuant to section 3 [section 35 of this Appendix] of this act and shall be exercised and performed by it or under its authority, in the manner and according to the procedures prescribed in this act.

(3) *Creation of Commission; membership.* There is created a Flood Control Commission consisting of seven (7) members, to be known as the Greater Hartford Flood Commission. Such members shall be appointed by the Mayor of the City of Hartford, four (4) from among the Electors residing in Hartford and one (1) each from the towns of Bloomfield, Newington and West Hartford. Vacancies in the

Commission shall be filled by appointment by the said Mayor from the Electors of such city or towns.

(i) *Chairman; Secretary; Meetings; records; compensation; expenses.* The Flood Control Commission shall elect a chairman from among its members and a secretary, who may but need not be a member, and shall meet at such intervals as it may from time to time consider necessary for the discharge of its duties. Special Meetings of the Commission may be held at any time at the call of the flood control director appointed under the provisions of section 3(ii) of this provision or of the chairman of the Commission, or in such other manner as may be provided by vote of the Commission. A record of all Meetings of the Commission shall be kept by the secretary. The members shall serve without compensation but shall be entitled to reimbursement for actual and necessary expenses incurred in the performance of their duties.

(ii) *Flood control director.* There is created the office of flood control director, which shall be held by a licensed civil engineer who shall be appointed by the Flood Control Commission solely on the basis of his actual experience in and knowledge of flood control matters. The director shall serve at the pleasure of the Flood Control Commission and shall perform such tasks and duties as in its judgment may thus be appropriately discharged. The director shall report to the Commission on all action taken by him under this act and shall provide the Commission with other information which it may request to carry out its duties. All pension rights and other employment benefits accruing to any officer or employee of the City of Hartford who is appointed or transferred to perform duties under this act shall continue to vest and accrue during the period of such appointment or transfer. Any other employee employed to perform such duties shall be entitled during the period of such employment to all such rights and benefits as the City may grant its own regular employees.

(iii) *Personnel; assigning duties to City Departments; corporate duties and obligations; bids on certain contracts; auditor of accounts.* The Flood Control Commission may employ personnel and fix salaries in accordance with such Regulations (including all applicable rules) as it may adopt, and may also assign, subject to the approval of the Mayor, to the Department of public works and the Department of engineering of the City of Hartford, to be carried out under its supervision, such tasks and duties as in its judgment may thus be appropriately discharged. In furtherance of the purposes of this act it may engage engineers, counsel and other professional advisers and specialists, may sue and be sued in the name of the City and may, in the name and on behalf of the City, enter into contracts, including contracts with the United States of America, this state, and any other City, town or other political subdivision of this state, for the purchase of materials, supplies and equipment, for the performance of any construction or other work and for any other purposes under this act. Whenever any work shall be necessary to execute or perfect any public work or improvement, or whenever any supplies for the Flood Control Commission shall be needed for any particular purpose and such work or supplies shall involve the expenditure of more than ten thousand dollars ($10,000.00), except in the case of an emergency to be

determined by the Flood Control Commission, a written contract for such work or supplies shall be made under such Regulations as the Commission may establish, which contract, except contracts with the United States, this State, or any City, town or other political subdivision of the State, shall be based on competitive sealed bids made in compliance with Public Notice, duly advertised by publication, in a daily newspaper of general circulation in the County of Hartford, at least five (5) Days before the time fixed for opening such bids or proposals. The Director of Finance of the City of Hartford shall annually inspect and audit the accounts and records of financial transactions maintained by the Commission.

(4) *General powers and duties.* For fulfillment of the purposes of this act the Flood Control Commission, or the flood control director with the approval of the Flood Control Commission, may in the name and on behalf of the City (a) provide for, construct or arrange for the construction of, supervise, operate, maintain and dispose of dikes, flood control reservoirs, storm sewers and storm sewer systems, walls, embankments, conduits, bridges, highways, roads, sidewalks, pumping and flood control stations and other works, structures and appurtenances; (b) close or relocate any town or City street, road or passway at any time affected or threatened by flood damage; (c) establish and alter stream lines with respect to lands found to have been so affected or threatened; (d) construct artificial channels or improve natural channels within such stream lines; (e) determine the manner in which and to the extent, if any, to which any land may be filled or any structures or improvements erected, maintained or retained within such stream lines; (f) purchase, take or otherwise acquire lands and interests therein found to have been so affected or threatened or to be otherwise necessary to provide water storage, to preserve the same or to carry out any work or project authorized by this act; (g) maintain, improve, arrange for the maintenance and improvement of, lease, sell or otherwise dispose of such land and interests therein; and (h) make such Regulations as appear advisable. In the carrying out of any work the Flood Control Commission may use such parts of any park or other public area as may be necessary. All real and personal estate acquired, held or used by said Commission for purposes of this act shall be exempt from taxation.

(5) *Petition for taking of property.* In any case of the taking of private property for any of the purposes of this act, if the Flood Control Commission and the owner or owners of such property cannot agree upon the amount to be paid for such property, then the Flood Control Commission shall, in the name and on behalf of the City of Hartford, prefer its petition for the taking of such property under Section 7181 of the General Statutes to the Superior Court for Hartford County. If in any such proceedings it shall at any time be alleged that the public interest will be prejudiced by delay in permitting the plaintiff to enter immediately upon and take possession of such property, the hearing and determination of such issue shall take precedence over all other matters to the same extent as actions brought by or on behalf of the state.

(6) *Notice of assessments.* Notice of intention to proceed under this act with any work or improvement, for part or all of the cost of which benefits are to be assessed by the City, shall be mailed by the City Clerk by registered or certified mail to the owner or owners of the lands to be assessed for benefits, at the address of such owner or owners appearing on the assessment records of the City or town where such lands are located, and shall be published by the City Clerk in one daily newspaper of general circulation in

the County of Hartford. Each such notice shall include a general description of the lands to be assessed for benefits and an estimate of the cost of such work or improvement. Thirty (30) Days having expired after the mailing and publication of such notice, the Flood Control Commission may proceed with the actual layout and construction of such work or improvement without regard to subsequent proceedings concerning the assessment of benefits and damages.

(7) *Notice to establish or alter stream.* Notice of intention to establish or alter any stream line under this act shall be mailed by the City Clerk by registered or certified mail to the owner or owners of the lands wholly or partly included within such stream line, at the address of such owner or owners appearing on the assessment records of the City or town where such lands are located, and shall be published by the City clerk in one (1) daily newspaper of general circulation in the County of Hartford. Each such notice shall include a general description of the lands wholly or partly included in such stream line. Thirty (30) Days having expired after the mailing and publication of such notice, the Flood Control Commission may proceed with the establishment or alteration of such stream line without regard to subsequent proceedings concerning the assessment of benefits and damages.

(8) *Proceedings for assessments, etc.* Proceedings for assessment of benefits and damages under this act, for publication and notice thereof and appeals therefrom, and for the establishment and continuance of liens upon lands against which benefits are assessed shall be the same as are provided in the case of benefits and damages assessed by the director of public works under sections 3 and 4 of Chapter XI of Number 30 of the Special Acts of 1947, as amended, except that the powers and duties there conferred upon the director of public works shall under this act be exercised and performed by the Flood Control Commission, or by the flood control director with the approval of the Flood Control Commission.

(9) *Budget appropriation by City.* The Court of Common Council of the City of Hartford is authorized to appropriate as a part of the budget of the City, upon the recommendation of the Flood Control Commission, such sums as in the judgment of the Council may be necessary or advisable for the operation of the Flood Control Commission and the administration of this act. All unexpended funds heretofore made available to the Hartford Flood Commission may be applied for the purposes of this act in such manner as the Flood Control Commission, either by Regulation or otherwise, may determine.

(10) *Debt limitation.* To meet the cost of any public improvements duly recommended by the Flood Control Commission, the City of Hartford shall have power, without regard to any limitation imposed by the General Statutes or any Special Act respecting the amount, dating, interest or maturity of any debt and without approval by the voters of the City, to authorize and issue from time to time in its discretion not in excess of twenty million dollars ($20,000,000.00) aggregate principal amount of bonds, notes or other certificates of debt, in accordance with the provisions of the Charter of the City concerning the authorization and issuance of bonds, except as such provisions are made inapplicable by this act. Such bonds, notes or other certificates of debt shall not be included in computing the aggregate indebtedness of the City in respect to any limitation upon the indebtedness of the City.

(11) *Contracts with other cities and towns.* The Flood Control Commission, in the name and on behalf of the City of Hartford, may, if it deems it advisable for the fulfillment of the purposes of this act, enter into contracts with any other City, town or other political subdivision lying

wholly or partly within the territory drained by the Park River and its tributaries, and the territory adjacent thereto, for the exercise and performance by such other City, town or subdivision within its corporate limits of such of the powers and duties conferred by this act upon the City of Hartford and the Flood Control Commission as such contracts may respectively provide. Except as may be otherwise limited in any such contract, such other City, town or subdivision shall have and enjoy with respect to any such contract, and in aid thereof, all such powers herein conferred upon the City of Hartford and the Flood Control Commission as may be necessary or appropriate for the performance thereof, and such powers shall be exercised in the name and behalf of such other town, City or subdivision and not in the name and behalf of the City of Hartford or the Flood Control Commission. Without limiting the generality of the foregoing, such powers shall include power to assess benefits and damages, to make appropriations for the whole or any part of the costs to be incurred under any such contracts and power to issue bonds, notes or other certificates of debt from time to time, without regard to any limitation imposed by the General Statutes or any special act respecting the amount, dating, interest or maturity of any debt, to meet the cost of any public improvement carried out or to be carried out under any such contracts; but the making of such appropriations and the issuance of such bonds, notes or other certificates of debt shall be in accordance with the provisions of the Charter of such other City, town or subdivision, except as such provisions are made inapplicable by this act.

(12) *Grant of authority to cities and towns lying within drainage of Park River.* Subject to the limitations which ensue from the powers granted by this act, each City, town and municipal district lying wholly or in part within the territory drained by the Park River and its tributaries shall have all the powers relating to the layout, making and establishing of dikes to prevent the inundation of said territory or any part thereof and relating to the protection thereof from flooding and flood damage and the raising or filling of low grounds, swamps and stagnant areas and the construction of necessary drainage-regulating devices, including pumping stations and equipment, drainage ditches, wells and storage basins, which said cities, towns and municipal districts respectively have or would have had if this act had not been adopted.

(13) *Delegation of powers to Flood Control Commission by City.* The Court of Common Council of the City of Hartford may, by Ordinance approved by the affirmative votes of at least six (6) of the members, delegate to the Flood Control Commission any powers held or which may be held by any Commission, Department of said City.

(14) *Annual reports.* At the second (2nd) Meeting of the Court of Common Council to be held in January of each year, and at the next Regular Meeting of the respective governing bodies of the towns of West Hartford, Bloomfield and Newington, the Flood Control Commission shall file a report of its activities for the preceding year. All such reports shall be kept as public records and open to public inspection.

(15) *Powers subject to approval by cities and towns.* Anything in this act to the contrary notwithstanding, no powers under this act may be exercised by the Flood Control Commission without the approval of the legislative body of the town within the territorial limits of which the Commission proposed to exercise such power.

(16) *Amendments.* This act shall not be subject to amendment in the manner provided by section 3 of Chapter XX [Chapter XXI] of Number 30 of the Special Acts of 1947.

CHAPTER VIII. DEPARTMENTS AND DEPARTMENT HEADS

Sec. 1. Authority to establish the Departments of government.

The City, acting within the powers and duties enumerated in the General Statutes, Special Acts applicable thereto and this Charter, may establish, by Ordinance, such Departments necessary to carry out and organize the functions of government. The express intent of this Charter is to allow the Mayor and the Council the ability to organize the government in order to achieve a balance of efficiency and service to the people of the City. The delineation of departmental categories in this Charter is advisory and may be altered pursuant to a reorganization plan adopted in accordance with the provisions of this Charter. However, the powers, duties and functions defined in this Charter shall be assigned to Officials of the City.

Sec. 2. Appointment of Department Heads; requirements.

(a) *Creation of Departments.* The Council shall by Ordinance establish the Departments of the City as required to carry out the City's functions and to meet public need. Each of these Departments shall be constituted to perform such functions and have such powers and duties as are imposed by the General Statutes, this Charter and Ordinance. Moreover, the directors of each Department established by Ordinance shall be subject to the provisions of this Charter generally applicable to Department Heads.

(b) *Appointment.* Except as otherwise provided by the General Statutes or this Charter, all Department Heads shall be appointed by and subject to the authority of the Mayor, following the confirmation by the Council in accordance with the provisions section 2(d) of Chapter IV of this Charter. All Department Heads, who are unclassified employees, shall serve at the pleasure of the Mayor, subject also to the powers of removal of the Council as set forth in section 3(a) of Chapter IV of this Charter.

(1) *Appointment of the Chief of Police and the Fire Chief.* The Mayor shall appoint the Chief of Police and the Fire Chief and, upon confirmation by the Council, as set forth in section 2(d) of Chapter IV of this Charter, shall enter into an employment contract with each of them, on behalf of the City, for a term of up to four (4) years, subject to removal in accordance with the provisions of the General Statutes. A Chief of Police or Fire Chief may be reappointed, but any such reappointment shall be subject to confirmation by the Council. In the event of a Vacancy in the position of Chief of Police or Fire Chief, or if the Police or Fire Chief is temporarily unable to fulfill the obligations of the office, the Mayor may appoint an acting Chief, subject to the limitations set forth in section 2(b)(3) of Chapter VIII of this Charter.

(2) *Department Head vacancies.* Vacancies in the office of any Department Head shall be governed by the provisions of section 2(d) of Chapter V of this Charter.

(c) *Effect of Charter on Department Heads.* Unless otherwise terminated pursuant to Law, the status of Department Heads holding office on the effective date of this Charter shall continue, subject to the provisions of this Charter addressing service at the pleasure of the Mayor.

(d) *Authority of Department Heads.* Once appointed as described in section 2(d) of Chapter V of this Charter, the Department Head shall appoint, hire, discipline and remove all deputies, assistant and other employees of the Department as provided for in the budget and in accordance with the Regulations of the Personnel Board (including all applicable rules) and collective bargaining agreements, where applicable.

(e) *Qualifications of Department Heads.* The job qualifications of all Department Heads, in addition to those enumerated in this Charter, by General Statutes or Special Act, shall be established by Ordinance following consideration of recommendation of the Director of Human Resources or such personnel staff as may be designated by Ordinance. Said job qualifications shall be prepared in accordance with nationally

accepted professional standards and shall be reviewed and updated every four (4) years and whenever a Vacancy occurs in the position.

(f) *Compensation.* The salaries and compensation of all Officials, Department Heads, agents and employees of the City shall be set by Ordinance, except where otherwise fixed by the General Assembly or as otherwise covered by civil service and collective bargaining agreement.

Sec. 3. Corporation Counsel.

(a) *Appointment.* There shall be a Corporation Counsel who shall be appointed by the Mayor, subject to confirmation by the Council, in accordance with section 2(d) of Chapter IV of this Charter, as of the first (1st) Monday of January 2004, provided that the Corporation Counsel shall serve at the pleasure of and may be removed by the Mayor at any time. The Corporation Counsel shall be an attorney of good standing with the Bar of the State of Connecticut for a period of not less than ten (10) years.

(b) *Duties.* The Corporation Counsel shall perform the following duties:

(1) *Legal advisor.* The Corporation Counsel shall serve as the legal advisor of the Mayor, the Council, and all other Departments, officers, Boards or Commissions of the City in all matters affecting the interests of the City, and shall upon request furnish them with a written opinion on any question of Law involving their respective powers and duties.

(i) *Retention of counsel by the Board of Education and other Board and Commissions.* The Council may by Ordinance authorize the Board of Education and Boards and Commissions established by Ordinance to retain their own counsel, for such purposes as are specified in the authorizing Ordinance, out of sums appropriated to the Board of Education or the relevant Board or Commission.

(ii) *Retention of counsel by the Council.* The Council may also provide an appropriation for hiring its own counsel when, in the opinion of the Council, it is necessary for the Council to obtain legal advice in addition to the advice of the Corporation Counsel. The Council shall by Ordinance prescribe the process by which such appropriation may be used.

(2) *Representation of the City in legal proceedings.* The Corporation Counsel shall appear for and protect the rights of the City in all actions, suits or proceedings brought by or against it or any of its Departments, officers, Boards or Commissions and shall have power, with the approval of the Mayor, to appeal from Orders, decisions or judgments in such cases, and, with the approval of the Mayor and Council, to compromise and settle any claims by or against the City. The Council, by Ordinance, may establish a level of authority for the Corporation Counsel applicable to monetary settlements that do not require the approval of the Council.

(3) *Transactional representation.* The Corporation Counsel shall prepare or approve all forms of contracts or other instruments to which the City is a party or in which it has an interest.

(4) *Attendance at Meetings of the Council.* The Corporation Counsel shall, at the request of the president of the Council, attend in person or assign an assistant to attend all Meetings of the Council.

(5) *Personnel.* The Corporation Counsel shall have power, within the limitations of the appropriation therefore, to employ professional counsel and to appoint such other employees as prescribed by Ordinance.

Sec. 4. Police and fire services.

(a) *Police Department.* There shall be a Police Department that shall consist of the Chief of Police and such other officers and employees of

such ranks and grades as may be prescribed by Ordinance. The Police Department shall be responsible for the preservation of the public peace, prevention of crime, apprehension of criminals, protection of the rights of persons and property and enforcement of the General Statutes, and the Ordinances and all Regulations (including all applicable rules) made in accordance therewith. All members of the Department shall have the same powers and duties with respect to the service of criminal process and enforcement of criminal laws as are vested in police officers by the General Statutes.

(1) *Chief of Police.* The Department Head shall be the Chief of Police who shall be in direct command of the Police Department and shall be responsible for the operation of the Department consistent with the policy directives of the Mayor.

(2) *Appointment and removal of Department personnel.* Subject to the personnel and civil service provisions of this Charter and the Ordinances, the Chief of Police shall appoint and remove all other officers and employees of the Department. The Chief of Police shall assign all members of the Department to their respective posts, shifts, details and duties and shall make Regulations (including all applicable rules), in conformity with the Ordinances, concerning the operation of the Department and the conduct of all officers and employees thereof. The Chief shall be responsible for the efficiency, discipline and good conduct of the Department and for the care and custody of all property used by the Department. Disobedience to the lawful Orders of the Chief or to the Regulations including all applicable rules) aforesaid shall be ground for dismissal or for other appropriate disciplinary action taken in accordance with the personnel and civil service provisions of this Charter and the Ordinances.

(b) *Fire Department.* There shall be a Fire Department that shall consist of the Fire Chief, the Fire Marshal and such other officers and employees of such ranks and grades as may be prescribed by Ordinance. The Fire Department shall be responsible for the protection of life and property within the City from fire and for the enforcement of all Laws, Ordinances and Regulations relating to fire prevention and fire safety.

(1) *Fire Chief.* The Department Head shall be the Fire Chief who shall be in direct command of the Fire Department and shall be responsible for the operation of the Department consistent with the policy directives of the Mayor.

(2) *Appointment and removal of Department personnel.* Subject to the personnel and civil service provisions of this Charter and Ordinances, the Chief shall appoint and remove all other officers and employees of the Department. The Chief shall assign all members of the Department to their respective posts, shifts, details and duties and shall make Regulations including all applicable rules) in conformity with the Ordinances of the City concerning the operation of the Department and the conduct of all officers and employees thereof. The Chief shall be responsible for the efficiency, discipline and good conduct of the Department and for the care and custody of all property used by the Department. Disobedience to the lawful Orders of the Chief or to the Regulations including all applicable rules) aforesaid shall be ground for dismissal or for other appropriate disciplinary action taken in accordance with the personnel and civil service provisions of this Charter and Ordinances. The Chief shall have further power to make Regulations with the force of law, implementing and giving effect to the Laws and Ordinances relating to fire prevention and fire safety.

Sec. 5. Government administration.

(a) *The Department of Finance.*

(1) *Director of Finance.* The Department Head shall be the Director of Finance, a person shall be a person skilled in municipal accounting, budgeting and financial control. Commencing on January 1, 2004, the Director of Finance shall be appointed

by the Mayor, subject to confirmation by the Council, to a term of four (4) years and shall be subject to removal only for cause during that term. The Director of Finance shall:

(i) Compile for the Mayor the estimates for the budget and the capital budget.

(ii) Supervise and control all encumbrances, expenditures and disbursements to ensure that budget appropriations are not exceeded.

(iii) Submit monthly reports as required by section 5.D) of Chapter X of this Charter. The Director of Finance shall furnish to each Department Head a copy of the portion of the above statement relating to that Official's Department.

(iv) Prepare for the Mayor as of the end of each fiscal year a complete financial statement and report of the financial transactions of the City for the preceding year.

(v) Maintain a general accounting system for the City government and each of its Departments in conformity with the best recognized practices in governmental accounting; keep records for and exercise financial budgetary control over each such Department; keep separate accounts for the items of appropriation contained in the budget and appropriation Ordinance and the allotments thereof and encumber such items of appropriation and their respective allotments with the amount of each purchase order, payroll or contract approved by the Director of Finance immediately upon such approval; and keep such records as shall show at all times for each account the amount of the appropriation and the allotments thereof, the amounts paid therefrom and remaining unpaid, all encumbrances thereof and the unencumbered balance; require daily or at such other intervals as the Director of Finance may deem expedient a report of receipts and disbursements from each of the several Departments; and prescribe the times at and manner in which moneys received by them shall be paid to the City Treasurer or deposited in a City bank account under the City Treasurer's control;

(vi) Prescribe the form of receipts, vouchers, bills or claims to be used and of accounts to be kept by all Departments of the City and provide suitable instructions for the use thereof;

(vii) Examine all contracts, purchase orders and other documents which involve financial obligations against the City and approve the same only upon ascertaining that moneys have been appropriated and allotted and that an unexpended and unencumbered balance is available in such allotment to meet the same;

(viii) Audit before payment all bills, invoices, payrolls and other evidences of claims, demands or charges against the City and approve the same if proper, legal and correct;

(ix) Inspect and audit the accounts or records of financial transactions as maintained in each Department of the City apart from or subsidiary to the accounts kept in the Director of Finance's office.

(b) *Tax Collector.* There shall be a Tax Collector, who shall be a member of the Classified Service and shall be appointed by the Mayor, from a list of eligibles determined by open competitive examination as provided for in the personnel provisions of this Charter and by Ordinance. The Tax Collector shall receive and collect all taxes and assessments payable to the City and such other fees and licenses as may be designated by the Council by Ordinance or by Order of the Mayor. The Tax Collector shall keep such books and records of transactions and use such forms of bills and receipts as may be

prescribed by the Director of Finance. Except as otherwise provided in this Charter the Tax Collector shall have such powers and duties as are conferred or imposed on tax collectors of towns by the General Statutes.

(c) *City Assessor.* There shall be a City Assessor, who shall be a member of the Classified Service and shall be appointed by the Mayor, from a list of eligibles determined by open competitive examination as provided for in the personnel provisions of this Charter and Ordinance. All deputies and other employees of the organizational unit responsible for assessment shall be appointed and removed by the City Assessor subject to the personnel provisions of this Charter and Ordinance.

City Assessor, powers and duties. The City Assessor shall have all the powers and shall perform all the duties imposed on assessors in towns of this state, together with such other duties as are imposed by this Charter. The assessor shall act in all respects with regard to the assessment of property as required by the General Statutes. All Departments and employees of the City and all owners of taxable property within the City shall provide such assistance and information to the assessor, consistent with applicable Law, as the assessor shall require to carry out the duties of that office.

(d) *Procurement services.* There shall be a central purchasing system for the City covering the purchase of all supplies, materials, equipment and other commodities required. In order to advance the provisions of this Charter, the Council shall establish by Ordinance the rules and regulations governing the operation of said central purchasing system in a manner consistent with the General Statutes, this Charter, Ordinance and standards established by organizations such as the National Institute of Governmental Purchasing and the National Association of State Purchasing Officials as well as the Model Procurement Code and Ordinances prepared by the American Bar Association. Any provisions referring to purchasing inconsistent with the terms of this section referred to elsewhere in this Charter are hereby expressly repealed. The Council shall, by Ordinance, establish the rules and regulations governing the purchasing process for the City, including, but not limited to, the role and responsibilities of the purchasing agent, competitive bidding requirements, standards for contracts for public works and improvements and accounting control of purchases and contracts, provided that the Council shall require competitive bids for purchases in excess of fifty thousand ($50,000.00) dollars. The Council may review this threshold from time-to time and may, by ordinance, increase the threshold taking into account inflation and the Consumer Price Index (CPI). Nothing in this Charter shall prevent the City or any of its Departments from participating in any joint purchasing program administered by the State, the Capitol Region Council of Governments, the Connecticut Conference of Municipalities, the Connecticut Association of Boards of Education or any other public agency, including another municipality or municipalities, or other nonprofit organization the members of which are public bodies.

Purchasing agent. The Department Head of the central purchasing system shall be the Chief Operating Officer or designee who, pursuant to rules and regulations established by Ordinance, shall contract for and purchase all supplies, materials, equipment and contractual services required by any Department of the City government including the Board of Education. With respect to said Board of Education, the Purchasing Agent shall be required to take advantage of incentives, cooperative agreements and consortiums generally available to boards of education in order to expedite the acquisition of goods and services for said Board to meet the curriculum and scheduling requirements of the Board, upon reasonable notice by the Board. The rules governing purchasing and procurement, including a definition of "reasonable notice" shall be set forth by Ordinance. The purchasing agent shall be responsible for the efficiency, discipline and good conduct of the system.

(e) *Department of Human Resources.* There shall be a Department of Human Resources, which shall be responsible for the administration of the civil service system and all other matters affecting civil service employment, collective bargaining and the employees of the City.

In order to advance the purposes of this Charter, the Council, upon recommendation of the Mayor, shall enact Ordinances relating to the operation of the Department and the civil service system.

(1) *Director of Human Resources.* The Department Head shall be the Director of Human Resources, who shall be appointed by the Mayor, from a list of eligibles determined by open competitive examination as provided for in the personnel provisions of this Charter and Ordinance. The director shall be responsible for the efficiency, discipline and good conduct of the Department.

(2) *Human resources policy of the City.* It shall be the policy of the City to establish a civil service system that will assure recruitment of the best available persons to appointment to vacant positions, advance equal employment opportunity and affirmative action, continue training and evaluation of employees and bargain fairly with the collective bargaining representatives of employees. The Council, upon recommendation of the Mayor, shall establish Ordinances that address the areas of (i) qualifications and competitive examinations for entry level and promotional appointments (encouraging, as far as practicable, the promotion from lower classes of City employees); (ii) creation and maintenance of eligible lists, certification of the same and the standards of appointment thereunder; (iii) standards of dealing with temporary appointments; (iv) preparing and maintaining classification and pay plans for classified City employees not included in a collective bargaining unit; (v) establishing a roster of City employees; (vi) certification of payroll; (vii) developing training and education programs for City employees; (viii) investigation of the operation of the personnel provisions of the Charter and Ordinances; and (ix) standards of appointment and removal of City employees, not otherwise addressed by this Charter or the provisions of a collective bargaining agreement.

(3) *Classified and unclassified service.* The civil service of the City shall be divided into the unclassified and the Classified Service. The unclassified service shall comprise:

(i) Officers elected by the people and persons appointed to fill vacancies in Elective Offices;

(ii) Members of Boards and Commissions and any officers appointed by the Council;

(iii) The Department Heads appointed by the Mayor, and deputy Department Heads who shall be appointed by the respective Department Heads, with the concurrence of the Mayor, and shall serve at the pleasure of the respective Department Heads, and not more than one (1) confidential secretary in each Department, except that the City Assessor, the Director of Human Resources, and the Tax Collector shall be members of the Classified Service;

(iv) Employees of the Board of Education;

(v) Staff in the office of the Council and in the office of the Mayor, including the Chief Operating Officer and the assistants to such Chief Operating Officer;

(vi) The Corporation Counsel and special counsel appointed by the Corporation Counsel;

(vii) The assistant City Treasurer;

(viii) Persons employed in a professional or scientific capacity to make or conduct a temporary and special inquiry, investigation or examination.

The Classified Service shall comprise all positions not specifically included by this section in the unclassified service and all appointments and promotions therein shall be made

according to merit and fitness to be ascertained so far as practicable by competitive examinations.

(4) *Prohibited practices.* No person in the Classified Service of the City or seeking admission thereto shall be appointed, promoted, reduced, removed or in any way favored or discriminated against because of that person's race, national origin, political or religious opinions or affiliations, gender or sexual orientation. No person shall willfully or corruptly make any false statement, certificate, mark, rating or report in regard to any test, certification, promotion, reduction, removal or appointment held or made under the provisions of this chapter, or in any manner commit or attempt to commit any fraud preventing the impartial execution thereof or of the Regulations including all applicable rules) made in accordance therewith. No person shall either directly or indirectly, pay, render or give any money, service or other valuable thing to any person for or on account of or in connection with any test, appointment, promotion, reduction or removal in which either party is concerned. Any person who alone or with others willfully or corruptly violates any of the provisions of this section shall be fined not more than five hundred dollars ($500.00) or imprisoned not more than six (6) months or both. Any person who is convicted under this section shall for a period of five (5) years be ineligible for appointment to or employment in a position in the City service and shall, if an officer or employee of the City, immediately forfeit the office or position he or she holds.

(5) *Veterans' preference.* Any person who has served in time of war in the army, navy, marine corps, coast guard or air force of the United States and has been honorably discharged therefrom shall be entitled to have added to his or her rating in any examination for initial employment in the Classified Service ten (10) points on a scale of one hundred (100) if he or she is eligible for disability compensation or pension from the United States through the veterans' administration, or five (5) points on a scale of one hundred (100) if he or she is not so eligible, provided he or she is within the age limit specified for appointment to the position or class of position for which the examination is held, physically capable of performing the duties of such position and attains in the examination without such added points the minimum rating prescribed for passage of such examination.

Any employee in the Classified Service whose employment has been interrupted in time of war in the army, navy, marine corps, coast guard or air force of the United States and has been honorably discharged therefrom shall be entitled one (1) time to have added to his or her rating in any examination held under the provisions of this chapter ten (10) points on a scale of one hundred (100) if he or she is eligible for disability compensation or position from the United States through the veterans' administration, or five (5) points on a scale of one hundred (100) if he or she is not so eligible, provided he or she is within the age limit specified for appointment to the position or class of position for which the examination is held, physically capable of performing the duties of such position and attains in the examination without such added points the minimum rating prescribed for passage of such examination.

Sec. 6. Community services.

There shall be established by the Council, Departments of the City that deal with key functions such as health, human services, recreation and other community services. Such administrative offices shall always have in place up-to-date action plans to address the health, human service and recreation needs of children, youth, adults and the elderly and shall implement these plans in close coordination with the appropriate State offices and with other pertinent private and public agencies.

CHAPTER IX. BOARD OF EDUCATION AND DEPARTMENT OF EDUCATION

Sec. 1. Board of Education.

Effective December 6, 2005, there shall be a Board of Education consisting of nine (9) members five (5) appointed by the Mayor and four (4) elected on the Tuesday after the first Monday in November 2005 and quadrennially thereafter. Notwithstanding the foregoing, the provisions of sections 4(b) of Chapter III of this Charter shall apply to the elected members of said Board.

Sec. 2. Appointment of Board of Education members.

(a) *Appointments.* The Mayor shall appoint five (5) members for a term commencing on December 6, 2005 and ending on January 31, 2008. Thereafter January 1, 2008 the Mayor shall appoint five (5) members for a term of four (4) years to take office on February 1st of the year of appointment and quadrennially thereafter, which members shall serve until their successors have been appointed and confirmed.

(b) *Election.* The four (4) members shall be elected as set forth in section 4(b) of Chapter III of this Charter.

(c) *Term of office.* The term of office of the five (5) members appointed by the Mayor shall be for a term of four (4) years to take office on February 1st of the year of appointment and quadrennially thereafter, which members shall serve until their successors have been appointed and confirmed. The term of office of all elected member shall be as set forth in section 4(a) and (b) of Chapter III of this Charter.

(d) *Minority party representation.* At no time shall more than three (3) of the members appointed by the Mayor be members of the same political party and, with respect to the elected members, the maximum number of members from the same political party shall be three (3). Candidates for the Board of Education shall be elected with party designation.

(e) *Qualifications.* In addition to the general requirements of statutory law and this Charter, the Mayor shall consider the following qualifications and experiences with regard to appointments to the Board of Education: training and/or experience in (1) education, (including, but not limited to, familiarity with the Hartford school district as a relative or guardian of a child currently or recently in the district); (2) a representative of a PTA/PTO or similar organization of adult supporters of education in the City; (3) financial matters (as evidenced by service as a certified public accountant or having earned a bachelor, master or doctorate degree in business, finance or public administration); (4) construction management; (5) workforce development or job training; (6) law; (7) information technology; (8) facility maintenance; and, (9) other qualifications as may be established by Ordinance. Of equal weight with the foregoing requirements, the Mayor shall consider appointments reflective of the various neighborhoods and the ethnic, racial and cultural mix of the City.

(f) *Ex officio members.* The Council may create up to two (2) non-voting ex officio positions on the Board of Education for students of the Hartford public schools, to be appointed by the Mayor for a one-year term.

(g) *Powers of the Board of Education.* The Board of Education shall perform such duties and have such powers as are or may be imposed by the General Statutes upon boards of education. The Department of Education shall perform the administrative functions of said Board.

(h) *Applicability of Charter provisions pertaining to Boards and Commissions.* The provisions of this Charter governing the appointment, vacancies, minority party representation and removal of members of Boards and Commissions and Public Officials shall apply to the Board of Education, unless otherwise set forth herein.

Sec. 3. Mandatory training as a prerequisite for service.

The Board of Education shall contract with the Connecticut Association of Boards of Education, the State Department of Education, the National School Boards Association, or some similar organization, to provide a training course on the role and responsibilities of a Board of Education and its members. The Board of Educa-

tion shall assure that the course is available at alternative times at no charge to City residents and is provided in a central location accessible by public transportation, and that childcare is available if needed by a resident who desires to take the course. No one shall be eligible to begin service on the Board of Education who has not taken the course within three (3) years of the beginning of his or her service.

Sec. 4. Prohibited acts.

No member of the Board of Education may interfere with the performance by the superintendent of schools of those duties vested in or delegated to the superintendent by statute or by act of the Board of Education. Such interference specifically includes any attempt by a member of the Board of Education to order or coerce, publicly or privately, any subordinate, Official or employee of the district as to any matter within the authority of the superintendent under statute or as conferred by the Board of Education through its policies, procedures, Resolutions, or minutes of Meetings. Such interference will constitute official misconduct that may be grounds for removal pursuant to section 3(a) of Chapter IV of this Charter.

Sec. 5. Community Outreach.

In addition to the regular and special Meetings of the Board of Education, the members of the Board shall engage in outreach efforts, including, but not limited to the following in order to increase participation by the public in the activities of the Board of Education: political, religious, community-based, social, mutual benefit organizations, civic and business organizations.

CHAPTER X. BUDGET

Sec. 1. The Budget Process.

A. *The Budget System.* The Council shall have the following powers: to establish and maintain a budget system including but not limited to the assessment, levy and collection of taxes for general, special or emergency purposes in the manner prescribed by Law, and to adopt the capital and operating budgets of the City and the Board of Education in the manner prescribed by Law and this Charter and the operative Ordinances adopted hereunder.

(1) *Ordinance establishing the budget process.* The Council shall specify by Ordinance any additional requirements to effectuate the provisions of this Charter pertaining to the budget.

(2) *Public Engagement.* The Council shall develop procedures designed to encourage public participation in the budget process. The budget process shall include information that addresses (a) performance measures, (b) service levels, (c) differentiation of services to the residents of the City both in terms of policy and service design and (d) priorities in the planning, budgeting and management of public services.

B. *Cooperation of City Officials and Employees.* The Mayor, the Board of Education and Council are required to work together, in good faith, throughout the year in order to develop and approve a municipal budget which shall include all expected revenues and expenditures and, for the purposes of short- and long-term financial planning, include detailed estimates of revenues, capital expenses and operating expenses all as required by this Charter and any Ordinances pertaining thereto. Each of these Public Officials and employees of the City are required to utilize best practices in the field of municipal and public finance, in order to comply with Law and with the generally accepted accounting principles (or such successor policies thereto) and shall embrace principles of accountability, transparency and outreach in order to expand public participation, engagement and trust in the budgetary process of the City.

C. *Fiscal year.* The fiscal year of the City government shall be as provided in the General Statutes and Ordinances conforming thereto.

D. *Budget a public record: Public Inspection.* The entire budget, comprised of the general or operating budget and capital budget, shall be a public record in the office of the City Clerk and shall be open to public inspection at other designated public facilities including libraries

and schools, as may be determined by the Mayor or the Council. The budget message shall be distributed to the public by the Mayor at the time of its submission to the Council, and sufficient copies of the budget proper shall be made available at the same time for the use of the Council and the public. Physical copies of the budget shall be provided within seventy-two (72) hours of submission. Moreover, the Mayor shall provide access on-line through social media, the City web-site and dashboards and email chains to community organizations and members of the public who request such information.

E. *Budget Calendar.* Not later than the first (1st) Meeting of the Council in January of each year, the Chief Financial Officer or equivalent official responsible for the Office of Management, Budget, Grants and Revenue shall cause to be published a budget calendar in order to inform the public of the significant requirements of the budget process, including but not limited to: (1) dates of the initial and final public hearings, as set forth in section 4.A(1) and (2) of this Charter; (2) the date of adoption by the Council, as set forth in section 5.C of this Chapter; (3) transmittal of adopted budget to the Mayor, as set forth in section 5.C(4) of this Chapter; (4) report and statement of the Mayor, as set forth in section 5.D(1)(a) of this Chapter; (5) any further Council action required following Mayoral action as specifically set forth in section 5.D(2) of this Chapter; and (6) the date of the Final Action of the Council, as specifically set forth in section 5.D(2) of this Chapter. Final Action may also occur in the event of a failure of the Council or Mayor to take action as set forth in sections 5.C(5) and 5.D(1)(c).

Sec. 2. Annual departmental budget estimates.

A. *Authority to require departmental estimates.* The Mayor shall have the power to require every Department Head, including the Department and Board of Education, to submit to the Mayor or designee such (a) estimates of revenue and expenditures for the ensuing fiscal year; and (b) any additional information which they possess (including, but not limited to, records, books, accounts, contracts, reports and other papers and documents as specified by the Mayor) all of which, in the judgment of the Mayor, are necessary to discharge the duties imposed upon the Mayor by this Charter.

B. *Submission of estimates.* Each Department Head shall submit the information required in section 2.A of this chapter, at such date as the Mayor shall determine and in accordance with such procedures as the Mayor shall establish, estimates of revenue, if any, and expenditure for that Department. Such estimates shall be submitted upon forms furnished by the Mayor and shall contain all necessary information. The Mayor shall review the estimates and, in preparing the budget, may revise them, except that in the case of the Board of Education, the Mayor shall have power to revise only the total estimated expenditure unless otherwise permitted by Law.

C. *Contents of Budgetary requests.*

(1) *Department estimates for General Fund or Operating Budget.* The Mayor or a designee of the Mayor shall furnish each Department Head, Board, Commission, office, authority or any other entity receiving or expending City funds or multi-year state or federal funds or grants ("Budgeted Entity"), forms in order to provide estimates of revenue and expenditures as part of the budget process for the proposed general fund or operating budget requests for the next fiscal year, based upon a uniform object classification. Each such Official shall prepare budgetary requests upon such forms and submit them to the Mayor or said designee at such date as the Mayor shall determine and in a time-frame that will comply with the budget submission requirements of this Charter. The forms shall also elicit information pertaining to

(a) performance measures;

(b) service levels;

(c) differentiation of services to the residents of the City both in terms of policy and service design; and,

(d) priorities in the planning, budgeting and management of public

services, including compliance with the objectives of the plan of conservation and development required by the General Statutes.

(2) *Department Estimates for Capital Projects.* The Mayor or a designee of the Mayor shall furnish the head of each Budgeted Entity, forms for the estimates of the cost of such projects shall be submitted by each such Budgeted Entity for consideration of the Planning and Zoning Commission. Thereafter, the Planning and Zoning Commission shall prepare and revise annually a program of public improvements for the ensuing five (5) years and shall submit annually to the Mayor, at such time as the Mayor shall direct, its recommendations of such projects to be undertaken in the ensuing fiscal year and in the full five-year period. As set forth herein, the Mayor shall present to the Council a program, previously considered by the Planning and Zoning Commission, of proposed capital projects for the ensuing fiscal year and for the five (5) fiscal years thereafter.

Sec. 3. Submission of the Mayor's proposed budget to the Council. Public hearing.

(a) *Submission.* Concurrent with the Mayor's report on the state and condition of the City at the second (2nd) Meeting of the Council in March of each year, as required by Chapter V, Section 2(i) of this Charter, the Mayor shall submit to the Council through the City Clerk:

(1) An annual or current expense budget, hereafter referred to as the budget, which shall be a complete financial plan for the ensuing fiscal year;

(2) A capital budget, setting forth the proposed capital projects as required herein; and,

(3) A Budget Message.

(b) *The Budget Message of the Mayor.* The budget message shall contain the recommendations of the Mayor concerning:

(1) The fiscal policy of the City for the ensuing fiscal year;

(2) A description of the important features of the budget plan, including major fiscal and programmatic proposed changes from the current fiscal year;

(3) An explanation of all major increases or decreases in proposed expenditures and revenues as compared to the current fiscal year (together with the reasons for such changes);

(4) A summary of the proposed budget showing comparisons similar to those required in the budget proper, itemized by principal sources of revenue and the main heads of expenditure;

(5) The debt position of the City, including a statement of the bonds to mature and the interest payable on bonds outstanding;

(6) An account of the proposed goals, objectives and policy priorities set forth in the proposed budget as well as a statement of how the proposal complies with and advances the objectives of the plan of conservation and development required by the General Statutes; and,

(7) Such other material as the Mayor deems desirable.

(c) *Budget Message of the Board of Education.* The Chair of the Board of Education shall set forth the reasons for their budget recommendations directly to the Council with respect to the programmatic information and estimates for the operation of the Department of Education in the same manner as required in the Budget Message of the Mayor.

(d) *Contents of the Proposed Budget - Part I: The General Fund or Operating Budget (including the Board of Education).* The budget shall contain:

(1) An itemization of all anticipated revenue, including sources other than the tax levy of the ensuing fiscal year. The estimate

of revenues or cash receipts shall present, in parallel columns that are itemized:

(a) Actual revenues collected in the last completed fiscal year;

(b) Revenues collected during the current fiscal year prior to the time of preparing the estimates;

(c) Approved revenue for the current fiscal year;

(d) Estimated revenue to be collected during the current fiscal year;

(e) Estimated revenue to be collected during the ensuing fiscal year; and,

(f) The annual income from each source for the past five years setting forth recurring and non-recurring revenues.

The Mayor shall include a statement of the assumptions on which the estimates are based. The Council may, by Ordinance, establish criteria that the Mayor must use for estimating cash receipts from sources other than the tax levy;

(2) An estimate of the general fund cash surplus at the end of the current fiscal year or of the deficit to be made up by appropriation;

(3) Itemized estimates of expenditures, presenting the actual expenditures for each Budgeted Entity for the last completed fiscal year and for the current fiscal year prior to the time of preparing the estimates, total expenditures as estimated for the current fiscal year, and the requests of the several Departments for the ensuing fiscal year.

(4) Proposed expenditures for debt service requirements for the ensuing fiscal year; including, a schedule of maturities of bond issues The amount required to fund pensions currently which amount shall be determined by the Pension Commission pursuant to section 5(a) (7) (iv) of Chapter VII of this Charter and shall not be subject to reduction or rejection by the Council as set forth in this Charter;

(5) An estimate of the sum required to be raised by the tax levy for the ensuing fiscal year, assuming a rate of collection not greater than the average rate of collection in the year of levy for the last three (3) completed fiscal years as well as estimates for the current fiscal year;

(6) A balanced relation between the total estimated expenditures and total anticipated revenue cash receipts, taking into account the estimated general fund cash surplus or deficit at the end of the current fiscal year; and,

(7) The proposed goals, objectives and policy priorities of the City expenditures, including, but not limited to the objectives of the plan of conservation and development required by the General Statutes, for current operations during the ensuing fiscal year, detailed for each fund by organization unit, and program purpose or activity, and the method of financing such expenditures; and,

(8) Such other information as may be required by the Council.

All estimates shall be in detail showing revenues by sources and expenditures by organization units, activities, character and object. The budget shall be so arranged as to show comparative figures for receipts and expenditures for prior three (3) years and for the current year and the Mayor's recommendations for the ensuing year. Revenue sources other than the tax levy of the ensuing fiscal year shall include an estimate of all revenue cash receipts for the ensuing fiscal year.

(e) *Contents of the Proposed Budget - Part II: The Capital Projects Budget and Program (including the Board of Education).* As a part of the budget message the Mayor shall present a program of proposed capital projects for the

ensuing fiscal year and for the four (4) fiscal years thereafter ("Continuing Projects"), as follows:

(1) *Detailed Estimates of Project Costs.* Estimates of the cost of those projects to be undertaken during the ensuing fiscal year and Continuing Projects, shall be submitted by each Budgeted Entity, quarterly, in the same time-frame and manner as estimates of other budgetary requirements are prepared for the Mayor.

(2) *Annual Levy.* The Council may levy annually a tax of not more than two (2) mills to be assessed upon the ratable estate within the City at the same time as the regular annual taxes for City expenses, for the benefit of a fund to be known as "The Capital Improvement Fund" established for the purpose of paying such Capital Expenditures in furtherance of the capital improvements for which the City is authorized by this Charter to issue bonds and for no other purpose.

(3) *Statement re - Off-Setting Reimbursements.* A statement as to any off-setting reimbursements, such as State or federal grants anticipated in connection with the project.

(4) *The method of financing the same.* The Mayor shall recommend to the Council the method of financing the same.

(5) *Comparison with prior FY capital appropriation.* Such comparison with any prior year's appropriation for capital projects as deemed advisable by the Mayor requested by the Council or required by Ordinance.

(6) *Status Report on Previously Approved Capital Projects, including completion dates and remaining balance.* A report summarizing the status of Capital Expenditures for each previously approved capital project stating those which have been completed, and the balance of any unexpended bond funds available with recommendations for either redemption of bonds or other capital projects use.

(7) *Other pertinent Information.* Any other information the Mayor believes to be pertinent, or which is requested by the Council or required by Ordinance.

(f) *Appropriation and Tax Levy Ordinances.* Simultaneously with the submission of the budget, the Mayor shall also introduce an appropriation Ordinance and an Ordinance making a levy in mills upon all the ratable estate within the City for the ensuing fiscal year. The appropriation Ordinance shall be based on the budget but need not be itemized further than by Departments and the major divisions thereof and by each independent office and agency and by the principal objects of expenditure.

Sec. 4. Budget deliberations of the Council.

A. *Public hearings.*

(1) *Public Hearing on Submission.* Upon receipt of said budget, the City Clerk shall transmit copies to the Council forthwith and shall call a public hearing on the budget to be held by the Council no less than seven (7) Days nor more than ten (10) Days after its submission. Hearing Notice of the date, time and place of said hearing shall be in accordance with the provisions of section 4.A.(4) of this Chapter, below.

(2) *Final Public Hearing.* A final hearing by the Council shall be held at least fourteen (14) Days prior to adoption of the budget, as set forth in this Chapter.

(3) *Additional Public Hearings.* During the deliberations the Council (or a committee thereof) may hold additional public hearings. Notice of the date, time and place of said hearings shall be noticed as set forth in section 4.A.(4) of this Chapter, below.

(4) *Meeting and Hearing Notice Requirement.* Notice of the date, time and place of said hearing shall be published within

three (3) Days after the submission of the budget in the manner provided herein for the publication of Ordinances.

B. *Modifications.* The Council may modify the proposed budget as follows:

(1) *Discretionary Actions.* In its sole discretion the Council may with respect to any appropriation:

(a) insert new line items of expenditures; or

(b) increase, decrease or strike out line items of expenditure,

(2) *Prohibited Activities.* The Council may not

(a) reduce any item of appropriation for debt service and any item of appropriation necessary to fulfill the obligations of the City as determined by the Pension Commission; or

(b) increase the Mayor's estimates of receipts.

C. *Adoption of the budget.* The Council shall adopt the budget, the appropriation Ordinance and tax levy Ordinance on or before 11:59:59 P.M. on 21st Day of May of each year, and shall make the same available for public inspection as set forth in this Charter or otherwise required by Law ("Adopted Budget").

(1) *Appropriation and Tax Levy Ordinance.* Neither of the above Ordinances in section 3.F of this Chapter, above, shall be acted upon until after the adoption of the budget. The hearing upon the budget shall be taken to be the hearings upon the Appropriation and Tax Levy Ordinance.

(2) *Establishment of the Tax Levy.* The Council may, however, decrease the amount of the tax levy for the ensuing fiscal year as proposed by the Mayor in proportion to such decrease in the total of expenditures proposed by the Mayor as it may have determined. If it shall increase the total proposed expenditures such increase shall be reflected in full in the tax rate.

(3) *Capital Improvement Fund Levy.* The Council may levy annually a tax of not more than two (2) mills to be assessed upon the ratable estate within the City at the same time as the regular annual taxes for City expenses, for the benefit of a fund to be known as "The Capital Improvement Fund" established for the purpose of paying the Capital Expenditures pertaining to the cost of capital improvements for which the City is authorized by this Charter to issue bonds and for no other purpose.

(4) *Transmittal of Adopted Budget to Mayor.* Annually, the Adopted City Budget shall be transmitted to the Mayor by the Clerk of the Council no later than the close of business on the 24th Day of May of each year.

(5) *Failure to Adopt a Budget.* If the Council fails to adopt the budget by the date set forth in section 5.C of this Chapter, above, the budget as adopted in the preceding fiscal year ("Default Budget"), as adjusted by the amount necessary to meet the funding requirements of the Pension Commission and legally and contractually required increases, as certified by the Director of Finance, shall be deemed to be the budget of the City for the ensuing fiscal year and expenditures shall be made in accordance therewith. The Council shall thereupon adopt the appropriation Ordinance and the Ordinance making a tax levy in accordance with the Default Budget.

D. *Mayoral Action.*

(1) *Reduction or Disapproval of Expenditures.* The Mayor may reduce or disapprove any item or items of expenditure in any proposed appropriation.

(a) *Report and Statement of Mayoral Action.* If the Mayor disapproves or reduces any item or items of expenditure in the Adopted, the Mayor shall submit a report of such actions to the City Clerk, not later than the close of business on the

Twenty-seventh (27th) Day of May of each year, together with a statement of the reasons for the disapproval or reduction.

(b) *Transmittal by City Clerk.* By the close of business on the date of receipt, the City Clerk shall transmit said Report and Statement to the Council forthwith.

(c) *Failure of the Mayor to Act: Final Action.* Failure of the Mayor to act upon any proposed item or items of expenditure and to submit such action not later than the close of business on the Twenty-seventh (27th) Day of May of each year, shall constitute approval of the Adopted Budget and Deemed to be Final Action.

(2) *Effect of Mayoral Reduction or Disapproval of Expenditures: Council Override and Final Action.* In the event the Mayor shall disapproves or reduces any item or items of expenditure of the Adopted Budget, the Mayor's action or veto shall become effective unless the Mayor's action or veto is disapproved by an affirmative vote of seven (7) members of Council within not later than the first (1st) business day of June of each year. Notwithstanding the foregoing the Council shall take such Final Action on the Report and Statement of Mayoral Action not later than 11:59:59 P.M. on the first business day of June or each year, whereupon the item or items of expenditure shall become effective as finally enacted.

E. *Effective Date of Budget.* The Appropriation and Tax Levy Ordinances shall become effective upon Final Action as set forth in Sections 5.C(5), 5.D(1)(c) or 5.D(2), as the case may be.

Sec. 5. Expenditures and Accounting.

A. *Proceeds of Capital Improvement Fund.* The proceeds of such levy shall be kept by the City Treasurer in a special bank account until invested as provided in section 1 of Chapter VI of this Charter.

B. *Certification of funds, penalties for violation.* No payment shall be made and no obligation incurred against any allotment or appropriation unless the Director of Finance shall first certify that there is a sufficient unexpended and unencumbered balance in such allotment or appropriation to meet the same. Every expenditure or obligation authorized or incurred in violation of the provisions of this Charter shall be void. Every payment made in violation of the provisions of this Charter shall be deemed illegal and all Officials who shall knowingly authorize or make such payment or take part therein and all persons who shall knowingly receive such payment or any part thereof shall be jointly and severally liable to the City for the full amount so paid or received. If any officer or employee of the City shall knowingly incur any obligation or shall authorize or make any expenditure in violation of the provisions of this Charter or take part therein such action shall be cause for removal.

C. *Transfer, additional and lapse of appropriations during the fiscal year.*

(1) *Transfers of appropriations.* The Mayor may at any time transfer any unencumbered appropriation balance or portion thereof from one (1) classification of expenditure to another within the same Department. At the request of the Mayor, the Council may by Resolution transfer any unencumbered appropriation balance or portion thereof from one (1) Department to another, except that no funds may be transferred from the funds appropriated to the Board of Education.

(2) *Additional appropriations.* Appropriations in addition to those contained in the budget, except for the purpose of Meeting a public emergency as provided in Chapter IV, section 2(n), shall be made only on the recommendation of the Mayor and only if the Director of Finance certifies that there is available general fund surplus sufficient to meet such appropriation.

(3) *Appropriations to lapse at close of fiscal year.* Any portion of an annual appropriation remaining unexpended and unencumbered at the close of the fiscal year shall lapse.

(4) *Transfer of Capital Funds.* The Council shall have power to transfer from time to time to the capital improvement fund any portion of the general fund cash surplus not otherwise appropriated.

(5) *Lapse of Capital Account.* Appropriations for construction or other permanent improvements, from whatever source made, shall not lapse until the purpose for which the appropriation was made shall have been accomplished or abandoned, provided any project shall be deemed to have been abandoned if three (3) fiscal years elapse without any expenditure from or encumbrance of the appropriation therefor, provided, at the request of the Mayor, the Council may, at any time by Resolution, transfer any unencumbered balance or portion thereof from one (1) project to another.

D. *Monthly Reports: The Director of Finance shall submit monthly to the Mayor and to the Council a public statement showing:*

(1) *With respect to appropriations.* The amount of each appropriation with transfers to and from the same to the end of the preceding month, the encumbrances and expenditures charged against each appropriation during the preceding month, the total of such charges for the year to the end of the preceding month, and the unencumbered balance remaining in such appropriation and the allotments thereof.

(2) *With respect to revenues.* The revenue estimated to be received from each source, the actual receipts from each source for the preceding month, the total receipts from each source for the year to the end of the preceding month, and the balance remaining to be collected.

(3) *With respect to the projected budget surplus or deficit for the fiscal year.* If the Director of Finance shall project a deficit, the Director shall in such monthly report make recommendations to the Council for actions to be taken to eliminate the full amount of such projected deficit.

(4) *Additional Information.* The Council may by Ordinance require that additional information be included in such report.

(5) *Public Inspection.* Each monthly report shall be available for public inspection as set forth in this Charter.

(6) *Annual Reports:* Concurrent with the Mayor's Submission of the Proposed Budget at the second (2nd) Meeting of the Council in March of each year, the Chief of Police shall submit an annual report accounting for the revenues and expenditures associated with shared forfeiture funds from the state and federal governments. The Council may establish criteria for the information to be included in said report.

CHAPTER XI. BORROWING

Sec. 1. Issuance authorized.

The City shall have the power to incur indebtedness by authorizing the issuance of its bonds and notes for such purposes, upon such terms, form and to such extent as is authorized and permitted by the General Statutes and applicable Special Acts. Said power shall extend to general obligation bonds, bond anticipation notes, temporary notes, grant anticipation notes, tax anticipation notes, notes or bonds pertaining to a public emergency as set forth in section 2(n) of Chapter IV of this Charter, and other types of special obligations authorized and permitted by the General Statutes and applicable Special Acts (all hereinafter "bond" or "notes").

Sec. 2. Procedures.

(a) *Procedural Ordinance.* The Council may, by Ordinance, adopt procedures for the structure, timing and method or manner of the issuance and sale of bonds and notes. Said Ordinance may set forth the respective roles and co-extensive

responsibilities of the City Treasurer and the Director of Finance with respect to debt planning, issuance and management including, but not limited to retaining consultants for specialized services.

(b) *Authorization of bonds and notes.* Unless otherwise provided by the General Statutes or applicable Special Acts, bonds and notes shall be authorized by an Ordinance approved by the affirmative vote of six (6) members of the Council, except that notes in anticipation of taxes and bonds or notes to prevent default shall be authorized in accordance with subsection (d) of this section.

(c) *Bond Referendum.* If the total estimated costs of any improvement for which bonds or notes are proposed to be issued exceeds two million dollars ($2,000,000.00), and if the full faith and credit of the City shall be pledged to the payment of any portion of the principal of and interest on the bonds or notes, the Ordinance authorizing the issuance of bonds and notes shall be subject to the approval of a majority vote of City Electors voting thereon if, within thirty (30) days after published notice of the enactment by Council, a sufficient petition is filed with the City Clerk requesting that such Ordinance be either repealed or submitted to a vote of the electors. In order for the petition to be sufficient it must be signed in ink by not less than three (3) percent of the City Electors as determined by the last-compiled registry list. If the petition is found sufficient, the City Clerk will notify the Council, which shall either repeal the Ordinance or submit it to referendum of the electors at the next general election or at such earlier date as the Council may determine in accordance with the relevant statutes. Upon the filing of a sufficient petition, the Ordinance will remain without effect until the electors vote on the question as provided above.

(d) *Notes in anticipation of taxes.* Notes in anticipation of taxes shall be authorized by Ordinance upon the Majority Vote of the Council. The City may pledge its full faith and credit to the payment of the principal of and interest on such notes, provided, however, that the Ordinance shall be effective upon passage and shall not be subject to a petition for referendum under subsection (c) of this section.

(e) *Bonds or notes to prevent default.* Bonds or notes to prevent default on the City's outstanding indebtedness shall be authorized by Ordinance approved by the affirmative vote of six (6) members of the Council following certification to the Council by the Mayor, with the concurrence of the Director of Finance that, except for such borrowing, a default on the part of the City would take place. Such certification shall be spread on the minutes of the Council. The City may pledge its full faith and credit to the payment of the principal of and interest on such bonds or notes, provided, however, that the Ordinance shall be effective upon passage and shall not be subject to a petition for referendum under subsection (c) of this section.

Sec. 3. Short period of limitation.

When twenty (20) days shall have elapsed after the passage and publication of a bond Ordinance not subject to a petition for referendum under section 2(c) of Chapter XI of this Charter or, when twenty (20) days shall have elapsed after the period for bringing a petition on an Ordinance subject to referendum and such petition has not been filed, the recitals or statements of fact therein shall be deemed to be true for the purpose of determining the validity of the bonds, and the Ordinance shall be conclusively presumed to have been duly and regularly passed and to comply with the provisions of this Charter, and the validity of such bond Ordinance shall not thereafter be questioned by either a party plaintiff or a party defendant except commenced within the time limits of this section.

CHAPTER XII. MISCELLANEOUS AND TRANSITION PROVISIONS

Sec. 1. Present Ordinances, Regulations and Orders effective.

All Ordinances of the City and all Regulations (including all applicable rules) and Orders legally made by any Department, Board, Commission or officer of the City, in force at the effective date of

this amended Charter and not inconsistent herewith, shall remain in force until amended, repealed or superseded as provided herein.

Sec. 2. Constitutionality.

In case any portion of this Charter shall at any time be found to be unconstitutional such finding shall not affect the remainder thereof, but as to such remainder this Charter shall remain in full force and effect until amended or repealed.

Sec. 3. Transition provisions.

All Departments, Boards, Commissions and other units of the City government previously provided for in the Charter but not provided for in this amended Charter and in existence as of the effective date of this amended Charter, and the positions associated therewith, shall remain in existence unless and until they are altered or abolished by Ordinance. The Department Heads, deputies and assistants of said Departments, shall continue until replaced by the Mayor.

Sec. 4. Effective dates of the provisions of this Charter.

The provisions of this amended Charter shall take effect as follows:

(a) Those of Chapter III concerning the date of elections shall take effect upon approval by the Electors of the City.

(b) All other provisions shall take effect on January 1, 2023, except that the Council is authorized upon approval of this amended Charter by the Electors of the City to enact all Ordinances necessary and proper to the implementation of the provisions of this amended Charter as of its effective date.

(c) Those of sections 5(d) and (e) of Chapter VIII shall take effect upon enactment of the Ordinances required to implement said provisions.

Sec. 5. Periodic review of the Charter.

In April of 2011, and every ten (10) years thereafter, the Council shall appoint a Charter Revision Commission, pursuant to Chapter 99 of the General Statutes or the then-comparable provisions. Nothing in this section limits the right of the Council to appoint one (1) or more Charter Revision Commissions other than the commission required by this section, but no such commission shall be appointed if its appointment would preclude the Council from appointing a commission as required by this section.

Sec. 6. Periodic Review of the Code of Ordinances.

Following each revision of this Charter and every five (5) years thereafter, the Council shall review the Code of Ordinances to ensure compliance and conformity with the provisions of the General Statutes and the Charter of the City. Nothing in this section limits the right of the Council to review the Ordinances at any time in accordance with its legislative and oversight functions.

LEGISLATIVE ACTS PERTAINING TO THE CITY OF HARTFORD OTHER THAN SPECIFIC CHARTER AMENDMENTS APPENDIX TO CHARTER*

IN GENERAL

Sec. 1. Date of unlocking voting machines.

The City Clerk of the City of Hartford is authorized after a municipal primary election to permit the keys of the voting machines to be taken, or any voting machine to be unlocked and its seal to be broken, after a period of five (5) Days from such election.
(Sp. Laws 1955, Act No. 353; Election of 11-8-22(2))

*__Editor's note—__This Appendix to Charter contains Acts of the Legislature of the State of Connecticut pertaining to the City of Hartford which are not specific Charter amendments. The Acts have been arranged according to subject matter and assigned arbitrary numbers for indexing purposes. The source of each provision is cited in parentheses following each section. The titles, amendatory language and general repealing clauses of each Act have been omitted, and the catchlines have been supplied by the editors. Material in brackets has been added where necessary for clarity.

Sec. 2. Reserved.

Editor's note—The act (No. 332 of the Special Laws of 1945) from which section 2 (which dealt with destruction of certain records by the town and city clerk) was derived has been repealed.

Sec. 3. Batterson Park—Disposal of portion authorized, 1957.

[a] The City of Hartford, upon the recommendation of the City manager and with the affirmative vote of at least six (6) members of the Court of Common Council taken after a public hearing on said recommendation, is authorized to lease or otherwise similarly dispose of, with or without compensation and without the necessity of seeking competitive bids, all or any part of Batterson Park no longer needed for park purposes to any corporation or institution organized or operating for recreational, educational or similar charitable purposes.
(Sp. Laws 1957, Act No. 475)

[b] The City of Hartford, acting through its Board of Park Commissioners, is authorized to transfer and convey or otherwise dispose of the following portions of Batterson Park in the Town of Farmington whenever such Board of Park Commissioners shall determine that such portions of land are not suitable for park purposes: Two (2) parcels butting on the north side of Farmington Cutoff; two (2) parcels abutting on the northwesterly side of the right-of-way of the Connecticut Company situated north of Farmington Avenue; one (1) parcel abutting on the north side of Tunxis Road.
(Sp. Laws 1947, Act No. 292; Election of 11-8-22(2))

Sec. 4. Same—Disposal of all or portions authorized, 1967.

Notwithstanding the provision of section 10 of Chapter VIII of Number 30 of the Special Acts of 1947, the City of Hartford is authorized to transfer, convey, exchange, lease or otherwise dispose of land now known as Batterson Park or any portion thereof, provided any such transfer, conveyance, exchange, lease or other disposition is made on the recommendation of the City manager and, after a public hearing, is authorized and approved by an affirmative vote of at least seven (7) members of the Court of Common Council.
(Sp. Laws 1967, Act No. 48; Election of 11-8-22(2))

Sec. 5. Brainard Field, disposal.

Notwithstanding the provision of section 10 of Chapter VIII of Number 30 of the Special Acts of 1947, the City of Hartford is authorized to transfer, convey, exchange, lease or otherwise dispose of land now known as the North and South Meadows, including all of Brainard Field or any portion thereof not required for use as an airport facility or training station, provided any such transfer, conveyance, exchange, lease or other disposition is made on the recommendation of the City manager and after a public hearing, is authorized and approved by an affirmative vote of at least six (6) members of the Court of Common Council.
(Sp. Laws 1955, Act No. 74; Election of 11-8-22(2))

Sec. 6. Conveyance to Young Italian-American Association.

Section 1. Notwithstanding the provisions of section 10 of Chapter VIII of Number 30 of the Special Acts of 1947, the City of Hartford is authorized to transfer and convey a certain parcel of land approximately one hundred seventy-five (175) feet frontage and two hundred (200) feet deep situated on the westerly side of Wethersfield Avenue, Hartford, which land is located in the rear of the premises known as No. 680 Franklin Avenue in said Hartford, to the Young Italian-American Association upon recommendation of the City manager and approval by the Court of Common Council.

Section 2. Said land shall be sold for a fair and reasonable market price to be determined after an appraisal has been made by three (3) disinterested real estate appraisers. Said land, with any building to be constructed thereon, shall be taxable by the City of Hartford.
(Sp. Laws 1959, Act No. 328; Election of 11-8-22(2))

Sec. 7. Conveyance to Veteran Volunteer Firemen's Corporation.

Section 1. Notwithstanding the provisions of section 10 of Chapter VIII of Number 30 of the Special Acts of 1947, the City of Hartford is authorized to transfer and convey the land and building known as No. 680 Franklin Avenue, Hartford, to The Veteran Volunteer Firemen's Corporation of the City of Hartford, Connecticut, upon recommendation of the City manager and approval by the Court of Common Council.

Section 2. Said land, with building thereon, shall be sold for a fair and reasonable market price to be determined after an appraisal has been made by three (3) disinterested real estate appraisers. Said land, with building thereon, shall be taxable by the City of Hartford, unless exempted by Law.
(Sp. Laws 1959, Act No. 457; Election of 11-8-22(2))

Sec. 8. Conveyance of land to Rau-Locke Post No. 8, The American Legion.

Notwithstanding the provisions of section 10 of Chapter VIII of Number 30 of the Special Acts of 1947, the City of Hartford is authorized to transfer and convey a certain parcel of land lying on the westerly side of Wethersfield Avenue, further bounded and described as follows: Beginning at a point in the westerly line of Wethersfield Avenue, which point is the intersection of said westerly line of Wethersfield Avenue and the southerly line of Hooker Drive, so-called at present, a proposed new street; thence southerly on the westerly line of Wethersfield Avenue, one hundred three (103) feet, more or less, to a point marking the northeasterly corner of land now or formerly of Eunice F. Trevitt, et al.; thence westerly on land of said Eunice F. Trevitt, et al., E. G. Malstrom, et al.; A. M. DeLuca, et al. and J.A. Cataldi et al., partly on each, in all, two hundred seventy-seven (277) feet, more or less, to the northwesterly corner of said land now or formerly of J. A. Cataldi, et al.; thence northerly on land of the City of Hartford one hundred ten (110) feet, more or less to a point in the southerly line of said Hooker Drive, as proposed, which point is about two hundred fifty (250) feet, more or less, westerly from the point of beginning as measured on said southerly line of said Hooker Drive, as proposed; thence easterly on said southerly line of said Hooker Drive, as proposed, two hundred fifty (250) feet, more or less, to the point and place of beginning; in said Hartford, to the Rau-Locke Post No. 8, The American Legion, upon recommendation of the City manager and approval by two-thirds of the Court of Common Council. Said land shall be sold for a fair and reasonable market price to be determined after an appraisal has been made by three (3) disinterested real estate appraisers.
(Sp. Laws 1961, Act No. 261; Election of 11-8-22(2))

Sec. 9. Tenure of office for teachers—Definitions.

[a] The term "teacher," as used in this act, shall include all teachers in the high schools and in the grades below the high school, including kindergartens, teachers of sewing, cooking, manual training and any other special subjects, also principals, vice-principals, deans, supervisors of instruction, nurses and directors of instruction whose positions require certification by the State Board of Education, and who are regularly appointed by the Board of Education, and employed in the public day schools of the Hartford town and City school districts.

[b] The term "public schools," as used in the act, shall include all public day schools maintained wholly by the Hartford town and City school districts.
(Sp. Laws 1945, Act No. 277, § 1; Sp. Laws 1947, Act No. 319, § 1; Election of 11-8-22(2))

Sec. 10. Same—Qualifications for permanent appointments.

All teachers regularly appointed and employed in the public day schools of Hartford town and City school districts on July 22, 1945, shall receive permanent appointments provided they have taught for three (3) years in public day schools of the Hartford town and City school districts. Those teachers who have taught less than three (3) years in the public day schools of the Hartford town and City school districts shall

be appointed annually provided their services are satisfactory, until they have completed three (3) years' service in the public day schools of the Hartford town and City school districts, or they may be dismissed at the discretion of the Board of Education. If appointed at the expiration of this probationary period of three (3) years, they shall receive permanent appointments. Those teachers appointed after July 22, 1945, shall be appointed on probation annually for three (3) years, provided their services are satisfactory, or they may be dismissed at any time at the discretion of the Board of Education. If appointed at the expiration of this probationary period, they shall receive permanent appointments. Any teacher who, prior to his probationary appointment in the public day schools of the Hartford town and City school districts, has had a contract of employment as a teacher renewed for a fourth year in any other school district in the State shall receive permanent appointment after eighteen (18) months of continuous employment in Hartford, unless, prior to completion of the eighteenth month following commencement of employment in Hartford, such teacher has been notified in writing prior to March first that his contract of employment will not be renewed for the following year irrespective of the duration of employment under the then existing contract beyond the date of said notification or unless such teacher has not been employed in any public school within the State for a period of five (5) or more years immediately prior to his employment in Hartford.
(Sp. Laws 1945, Act No. 277, § 2; Sp. Laws 1967, Act No. 368; Election of 11-8-22(2))

Sec. 11. Same—Grounds for dismissal; notice.

Teachers may be dismissed at any time:

(1) For inefficiency or misconduct;

(2) By reason for the position to which they were appointed being abolished, provided there is no other position to which they may be appointed if qualified, and provided seniority in service in the day schools of the Town and City of Hartford shall be the determining factor in such dismissal.

No teacher shall be dismissed or suspended except upon written notice from the superintendent of schools, the notice to state the reasons for such action. Notice of dismissal shall not take effect in less than three (3) months. In cases where serious misconduct is charged a teacher may be suspended from duty immediately.
(Sp. Laws 1945, Act No. 277, § 3; Election of 11-8-22(2))

Sec. 12. Same—Appeals from dismissal or suspension.

Teachers may appeal to the Board of Education against suspension or dismissal but such appeal shall be in writing stating the grounds of the appeal, and shall be filed with the Board of Education within thirty (30) Days after the date of notice of suspension or dismissal. The Board of Education upon the receipt of such notice of appeal shall fix a date for a hearing upon said appeal which hearing shall be before a majority of the Board of Education and shall be within thirty (30) Days of the receipt of the appeal. Such hearing shall be open or private as the teacher may request. Teachers shall have the right to appear with counsel at such hearing and said counsel shall have the right to represent and advise the teacher at such hearing and to participate in any or all proceedings of the hearing. Within thirty (30) Days after the hearing the Board of Education shall decide the case by a majority vote of the Board of Education, all members present voting. Such appeal shall in no way be interpreted as prohibiting a teacher from appealing to the civil courts of this state. If the suspension or dismissal is reversed the notice of suspension or dismissal shall be void and of no effect and the teacher shall be reinstated. If the teacher is reinstated as above, any salary lost shall be paid to the teacher.
(Sp. Laws 1945, Act No. 277, § 4; Election of 11-8-22(2))

Sec. 13. Same—Leaves of absence.

Any teacher who enlists or who is or has been selected for service in or with the armed forces of the United States, the Red Cross, or the United Service Organizations shall be granted leave of absence for the duration of such service and

upon his application made within six (6) months of his honorable discharge or release or resignation therefrom and not more than one (1) year after his return to the continental United States, whether discharged or not, said Board shall within a reasonable time after he is available for teaching, assign him the same or similar position held at the time he entered such service if he be then physically and mentally capable of satisfactorily performing the duties of such position. This reinstatement shall be made without prejudice as to salary.
(Sp. Laws 1945, Act No. 277, § 5; Election of 11-8-22(2))

Sec. 14. Same—Leaves included in "consecutive period of service."

The consecutive period of service prescribed herein shall include any period served in the Hartford town and City day schools prior to such service as stated in section five [section 13 of this Appendix] of this act, provided such teacher shall, within six (6) months after honorable discharge from such service apply for return to active service in said school system.
(Sp. Laws 1945, Act No. 277, § 6; Election of 11-8-22(2))

Sec. 15. Same—Persons affected by act.

All teachers appointed in the public day schools of the Hartford town and City school districts for the school year 1945-1946 and thereafter, shall be appointed subject to the provisions of this act.
(Sp. Laws 1945, Act No. 277, § 7; Election of 11-8-22(2))

COMMENT. Pursuant to Chapter VII, Sec. 4(b) of the Charter the Special Acts authority of the Pension Commission and the Treasurer are hereby validated as contained in the Charter and in this codification, if applicable and not intended to confer any new rights upon any employee or retiree in lieu of current rights under law and collective bargaining agreement. This codification also includes Special Act and historical Charter provisions pertaining to employees, pensions and retirements. Many of these provision do not apply to the vast majority, if not the entirety of current and retired employees, and have been ratified and recodified for the sole purpose of ensuring that any covered retirees retain such rights as may be granted herein.

PENSIONS IN GENERAL*

Sec. 16. Retirement credit for policemen and firemen for service in armed forces.

In determining length of service for the purposes of the retirement system of the City of Hartford as it applies to the members of the police and fire departments of that city, the length of service of the personnel of those departments who are members of said departments on July 1, 1945, shall be deemed to include their war service during the first world war, even though said members of said police and fire departments may not have been employed by the City of Hartford at the time of their participation of said war. In determining length of service for the purposes of said retirement system as it applies to members of the police and fire departments who served in World War II, the length of service of the personnel of those departments who were members of said departments when they entered war service shall be deemed to include accredited city pension time plus an additional month for each month of such war service.
(Sp. Laws 1945, Act No. 394; Sp. Laws 1949, Act No. 281; Amend. of 11-8-22(1))

Sec. 17. Retirement credit for police employees during World War II.

In determining length of service for the purpose of the retirement systems of the City of Hartford as they apply to members of the police department of that city, the length of service of the personnel of said department shall be deemed to include their war service during the second world war, December 7, 1941, through December 31, 1946, even though such members of said police department may not have been employed

*__Editor's note—__An amendment adopted Nov. 8, 2022(1) enacted provisions designated as §§ 1—5, however, said provisions have been renumbered as §§ 16—20, at the direction of the city, in order to maintain sequential accuracy.

by the City of Hartford at the time of their participation in the second world war, provided such members shall pay into the retirement system to which they belong, for each year of such war service, a sum equal to two and one-half (2½) percent of the first year's salary as a city employee with interest at five (5) percent per annum, said payment to be made on or before October 1, 1969, and the legislative body of said city approves same.
(Sp. Laws 1957, Act No. 521; as amended by Ord. No. 3-68, 2-13-68; Sp. Laws 1969, Act No. 242; Amend. of 11-8-22(1))

Sec. 18. Retirement credit for police for service in hospitals.

In determining the length of service for the purpose of the Hartford Police Benefit Fund, the length of service of the personnel of the police department shall be deemed to include any prior service to the City of Hartford in the John James McCook Memorial Hospital or the Municipal Hospital of said city. Such prior service shall be included even though such members of said police department may not have been employed continuously by the City of Hartford. Such members shall pay into the Police Benefit Fund for each year of such prior service a sum equal to two and one-half (2½) percent of the annual wages received, together with interest at five (5) percent per annum, such payment to be made to the treasurer of the Hartford Police Benefit Fund on or before October 1, 1960.
(Sp. Laws 1959, Act No. 477; Amend. of 11-8-22(1))

Sec. 19. Retirement credit for police for service in widows' aid department.

In determining the length of service for the purpose of the Hartford Police Benefit Fund, the length of service of the personnel of the police department shall be deemed to include any prior service to the City of Hartford in the widows' aid department of said city. Such prior service shall be included even though such members of said police department may not have been employed continuously by the City of Hartford. Such members shall pay into the police benefit fund for each year of such prior service a sum equal to two and one-half (2½) percent of the annual wages received, together with interest at five (5) percent per annum, such payment to be made to the treasurer of the Hartford Police Benefit Fund on or before October 1, 1962.
(Sp. Laws 1961, Act No. 92; Amend. of 11-8-22(1))

Sec. 20. Certain female employees in police and fire departments included in pension plans.

Each female telephone employee in the police department of the City of Hartford and the female secretary and administrative aide to the fire board and department may be included in the pension plans of the respective departments by hereafter contributing to the police benefit fund or to the firemen's relief fund, as the case may be a sum equal to two and one-half percent of her salary, and she shall thereby be entitled to and receive all of the benefits of said police benefit fund or firemen's relief fund.
(Sp. Laws 1947, Act No. 466; Amend. of 11-8-22(1))

PENSIONS (CHARTER 1949, CHAPTER XVI, AS AMENDED)*

Sec. 20.1. Retirement allowances for present city employees.

The rights of all persons in the service of the city actually receiving or entitled to receive, prior to the effective date of this act, pensions or retirement allowances under the retirement system for city employees, the police benefit fund or the firemen's relief fund, as provided in sections 233, 234 and 235 of "An Act Revising the Charter of the City of Hartford," approved June 24, 1941, as amended, are expressly validated and the city shall continue to pay such pensions or allowances in accordance with the respective provisions of said sections. All persons in the

*__Editor's note—__An amendment adopted Nov. 8, 2022(1) enacted provisions designated as §§ 6—10, however, said provisions have been renumbered as §§ 20.1—20.5, at the direction of the city, in order to maintain sequential accuracy.

__Cross reference—__See also Chapter XII of the Charter and "Pensions In General" in the Appendix to Charter.

service of the city prior to the effective date of this Charter who were actually contributing to the retirement system for city employees, the police benefit fund or the firemen's relief fund, shall, unless they voluntarily withdraw from the same, continue to be members thereof, and the provisions of said sections 233, 234 and 235, as amended, shall remain in full force and effect for their benefit, but said sections shall not be applicable to any person entering the service of the city subsequent to the effective date of this Charter.
(Sp. Laws 1947, Act No. 30, Ch. XVI, § 1; Ord. No. 28-67, 11-7-67; Amend. of 11-8-22(1))

Sec. 20.2. Pension commission.

There shall be a pension commission of three (3) members none of whom shall hold any other office in the city government and one (1) of whom shall be a fellow or associate of either the Actuarial Society of America or the American Institute of Actuaries, appointed by the city manager, one (1) each year for a term of three (3) years commencing on the first Monday of February. Vacancies shall be filled by the city manager for the unexpired portion of the term. The city treasurer shall act as secretary of the commission and the personnel director shall attend all meetings of the commission but neither shall have a vote. The commission shall continue to administer the retirement system for city employees as provided in section 233 of "An Act Revising the Charter of the City of Hartford," approved June 24, 1941, as amended, and shall succeed to all the powers and duties of the board of police commissioners as trustees of the police benefit fund and of the board of fire commissioners as members of the board of trustees of the firemen's relief fund. The commission shall administer the municipal employees' retirement fund hereinafter established. In addition to the three (3) voting members, there shall be one (1) nonvoting member of the commission elected by members of the municipal employees' retirement fund.
(Sp. Laws 1947, Act No. 30, Ch. XVI, § 2; Ord. No. 28-67, 11-7-67; Amend. of 11-8-22(1))

Sec. 20.3. Municipal employees' retirement fund.

There shall be a municipal employees' retirement fund.

(a) (i) *Membership.* All persons who are members of the municipal employees' retirement fund on July 1, 1968, all persons entering the classified service of the city subsequent to said July 1, 1968, as full-time permanent employees, all employees of the board of education, except teachers, and (subject to paragraph (y) below) those other unclassified employees of the city who so elect, except teachers, shall be members of the municipal employees' retirement fund. Any other employee of the city, except a teacher, who is a member of the retirement system for city employees, the police benefit fund or the firemen's relief fund may become a member of such fund upon application and withdrawal from the retirement system for city employees, the police benefit fund or the firemen's relief fund, as the case may be, upon such conditions as to the payment of arrears of contributions as the pension commission may require.

(ii) *Definitions.* Except as otherwise provided by or required under any applicable collective bargaining agreement, as used in Section 3(b) of this Chapter, the following terms shall have the meanings ascribed thereto below, unless, and then only to the extent, a different meaning is specifically provided with respect to any such terms within the context of said section:

(1) "Nonbargaining unit employee" shall mean and include all nonbargaining unit general government employees of the city as well as all nonbargaining unit employees of the Hartford Public Library;

(2) "Nonbargaining unit city employee" and "nonbargaining unit employee of the city" shall mean and include

only those nonbargaining unit general government employees of the city;

(3) "General government employee" shall mean only those employees of the city (including the Civic Center) who are not (a) a sworn police officers of firefighters, (b) Board of Education employees, or (c) Hartford Public Library employees;

(4) A member's "final average pay" shall be based upon his or her gross earnings only to the extent that the provisions of this Chapter specifically provide for his or her final average pay to be calculated in that manner.

(5) (A) Commencing August 1, 1993, a member's "gross earnings" with respect to any year of service shall mean and include all amounts payable by the city directly to such member for services rendered by such member to the city (including, but not limited to, any and all of its agencies, commissions, boards, offices and departments) within such time period which amounts shall include, but not necessarily be limited to, such member's basic salary, payments for or in lieu of overtime, longevity pay, and retroactive pay increases, as and to the extent each is attributable to such services, but, except as provided in subsection (B) below, shall not include either any amounts paid for services rendered in some other time period or any payments made to a member upon and by reason of his or her termination of employment (including, but not limited to any and all severance payments and lump sum payments for accrued vacation and sick time).

(B) Commencing August 1, 1993, any member whose final average pay is based upon his or her "gross earnings" over a stated period of time shall have his or her "gross earnings" adjusted to account for any lump sum payments made to such member for accrued vacation and sick time upon his or her termination of employment by, and only by, adjusting such member's final average pay period such that the last day of that period corresponds to what such member's last day of work would have been had such member continued to work beyond his or her actual last day of work for that period of time equal to his or her creditable accrued vacation and sick time; providing however, that nothing herein shall be construed to permit or require the adjustment of the length of time included within a member's final average pay period. Thus, expressed as a formula, and subject to the foregoing provisos, a member whose final average pay is based on "gross earnings" shall have his or her final average pay period adjusted as follows:

Last day of final average pay period	=	*creditable accrued* last day of work	+ vacation and sick time

(6) Unless, and then only to the extent, this chapter provides that a member's final average pay is to be based upon his or her "gross earnings" over a stated period of time, a member's "final average pay" shall

not include any amounts paid to such member upon or by reason of his or her termination of employment with the city either for accrued sick time or as a severance payment.

(7) "Final average pay period" for each member shall mean those total number of such member's final years of service from which some subset thereof is to be used for purposes of determining such member's final average pay. Thus, for example, if a member is entitled to have his or her pension benefit calculated on the basis of his or her highest two (2) of his or her last five (5) years of gross earnings, then such member's final average pay period is such five (5) year period. Except as otherwise provided in subsection (a)(ii)(5)(B) above, a member's final average pay period shall end on the day prior to his or her effective date of retirement.

(8) Commencing on August 1, 1993, a member's "last day of work" prior to retirement shall be that date designated by the city as the last day on which he or she was expected to provide services to the city, which, in any case, shall not include any period of time that an employee is carried on the city's books and records as an employee to account for the lump sum payment of accrued vacation time to such member in connection with his or her termination of employment with the city. A member's bone fide absence from work on any date under and in accordance with the city's personnel rules and/or such member's collective bargaining agreement, as applicable, shall not be considered a basis for determining that such member was not expected to provide services to the city on such date.

(9) (A) "Creditable accrued vacation and sick time" shall mean the sum of a member's creditable accrued vacation time and creditable accrued sick time.

(B) "Creditable accrued vacation time" shall mean that period of time between the day following a member's last day of work and the date upon which such member's last day of work would have occurred had such member remained an active employee and received payments for his or her accrued vacation on a weekly [basis] as opposed to a lump sum basis, both dates inclusive.

(C) "Creditable accrued sick time" shall mean that period of time commencing with the member's effective date of retirement, for which such member would continue to receive his or her basic weekly pay if such member were to receive amounts paid thereto for accrued sick time upon his or her termination of employment on a weekly basis, as opposed to in a lump sum, without regard to whether any days in such time period are or have been designated holidays for active employees.

(D) The "effective date of retirement" for each member shall be the day after the period of time following such member's last day of work which is equal to his or her creditable accrued vacation time.

(E) For purposes of this subsection, a member's "basic weekly pay" shall mean the gross wages that a member would be paid per week based upon the rate of pay used to calculate the lump sum amounts paid to a

member on account of accrued vacation and sick time upon his or her termination of employment.

(b) *Normal retirement.* Effective November 1, 1985, for nonbargaining unit policemen and firemen and effective July 1, 1986, for all bargaining unit policemen and firemen, normal retirement for employees hired before July 1, 1984, shall be after twenty (20) years of continuous service and normal retirement for employees hired on or after July 1, 1984, shall be after twenty (20) years of continuous service or at age forty-five (45) whichever is later. The normal retirement date for other members shall be the day following his or her sixty-fifth (65th) birthday, if employed in any other capacity. Any member shall be eligible for retirement and to receive a normal retirement allowance on or after his or her normal retirement date, provided such employee has completed at least ten (10) years of continuous service with the city. Also, any member who is not represented by a bargaining unit, and who is not a policeman or a fireman, or is represented by Local 1716, Council #4, AFSCME, AFL-CIO, Local 566 Council #4, AFSCME, AFL-CIO, Local 818, Building and Ground Supervision, Local 3534, Hartford Federation of Educational Personnel, and the School Crossing Guards Association shall be eligible for retirement and to receive a normal retirement allowance at any time after his or her sixtieth (60th) birthday, provided he or she has completed at least twenty-five (25) years of continuous service. Normal retirement for members of Local 2221, Hartford Paraprofessionals shall be at age sixty (60) with twenty (20) years of continuous service or at age sixty-five (65) with ten (10) years of continuous service. Any member of the Hartford Federation of Public School Secretaries with at least twenty-five (25) years of service and at least fifty-five (55) years of age, or a member with at least ten (10) years of service and at least sixty (60) years of age will be eligible for normal retirement.

At any time after a member becomes eligible for retirement and to receive a normal retirement allowance, as provided in the preceding paragraph, the actual date of his retirement shall be established by an application on a prescribed form signed by the member, or by an application signed by both his appointing officer and either the city manager, or the superintendent of schools for employees of the board of education. Payment of his normal retirement allowance shall be subject to the approval of the pension commission as to his eligibility and the amount of his allowance.

For any member, except all policemen and firemen, the normal retirement allowance shall amount to one (1) percent of that portion of the employee's average earnings on which social security taxes were paid by the city for the full number of years included in the computation of his primary social security benefit, and two (2) percent of the balance of his final average pay, multiplied by the number of years of his service. Final average pay shall mean the average annual rate of pay for the highest five (5) years of his earnings during the last ten (10) years of service immediately preceding his retirement.

Effective November 1, 1985, for all nonbargaining unit policemen and firemen and effective July 1, 1986, for all bargaining unit policemen and firemen employed prior to July 1, 1984, the normal retirement allowance shall amount to 2.5 percent of final average pay for each whole year of service for the first twenty (20) years of continuous service and 2.0 percent of final average pay for each whole year of service thereafter and for those employed on or after July 1, 1984, the normal retirement allowance shall be the same as those hired prior to July 1, 1984, except normal retirement shall be after twenty (20) years of continuous service or at age forty-five (45), whichever is later, retirement allowance shall amount to 2.5 percent of final average pay for each whole year of service for the first twenty (20) years of continuous service and 2.0 percent of final average pay for each whole year of service thereafter to a maximum of seventy (70) percent of final average pay, and final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of regular earnings, exclusive of overtime and private duty pay, added to a figure for overtime and private duty which is based on the employee's total overtime and private duty hours averaged

over the employee's last twenty (20) years service or actual years of service, whichever is less. Final average pay for all policemen and firemen hired prior to July 1, 1984, shall be computed on the same basis as final average pay for policemen and firemen is computed on the date of the adoption of this ordinance.

Effective July 1, 1986, for all bargaining unit policemen and firemen and November 1, 1985, for all nonbargaining unit policemen and firemen, pension benefits shall vest after ten (10) years of continuous service. Any policeman or fireman who leaves the service of the city after his or her pension has vested will be entitled to collect a pension benefit commencing on the date he or she would have reached his or her normal retirement date.

Any provision of this Chapter to the contrary notwithstanding effective on the date of adoption of this ordinance, all nonbargaining unit policemen and firemen shall contribute to the fund eight (8) percent of his or her total earnings and on January 1, 1986, all bargaining unit policemen and firemen shall contribute to the fund eight (8) percent of his or her total earnings. Such contributions shall be deducted at each pay period and credited to his or her account.

Any member of the retirement system for city employees under the provisions of Section 233 of "An Act Revising the Charter of the City of Hartford," approved June 24, 1941, as amended, who becomes a member of the municipal employees' retirement fund on or after July 1, 1968, shall be entitled to receive a retirement allowance computed under the terms of this section or under the terms of said Section 233 of "An Act Revising the Charter of the City of Hartford," whichever is greater.

Any provision of this chapter to the contrary notwithstanding, any nonbargaining unit employee who is actively employed by the city on or after August 1, 1993, shall be eligible for retirement and to receive a normal retirement allowance upon completion of at least twenty-five (25) years of continuous service regardless of his or her age or upon completion of at least ten (10) years of continuous service by or at any time after his or her sixtieth (60th) birthday. The normal retirement allowance shall amount to two (2) percent of final average pay for each year of service to a maximum of seventy (70) percent of final average pay and final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of his or her gross earnings. Any employee who is age fifty-five (55) with at least ten (10) years of service but less than twenty-five (25) years of service shall be eligible to receive a pension based on the above formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60). Said reduced pension shall remain in effect for the duration of the pension. Any disability under section 3(e) or disability allowance under section 3(f) shall be computed as provided above and shall be subject to the limitations of said sections 3(e) and 3(f). Commencing January 1, 1987, all nonbargaining unit employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to his or her account in the fund. This contribution shall be in lieu of any contributions required under the provisions of sections 3(k) and 3(q) of this chapter. Commencing July 1, 1988, any nonbargaining unit employee may elect to have his or her final average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings. Any nonbargaining unit employee who elects to have his or her final average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings shall make such election by filing a notice thereof with the city treasurer on or before November 1, 1988, or within thirty (30) days of his or her commencement of employment as a city employee, whichever is later. Any nonbargaining unit employee who makes such election shall contribute to the fund an additional one (1) percent of the employee's earnings above the four (4) percent of the employee's earnings on which social security taxes are paid and the seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to his or her account in the fund.

Normal retirement for all members of Local #2221, Hartford Federation of Paraprofessionals, Local 1018, Hartford Federation of Corridor Supervisors, Local 3534, Hartford Federation of Technical Support Personnel, Local 1018 A/B, Hartford Federation of School Health Professionals, Local 818, Building and Ground Supervisors, Hartford Education Support Personnel, Hartford School Support Supervisors Association, and all non-bargaining unit employees of the board of education employed on or after the date of adoption of this ordinance [October 10, 1990], shall be at age fifty-five (55) with at least twenty-five (25) years of service or age sixty (60) with at least ten (10) years of service. The normal retirement allowance shall amount to two (2) percent of final average pay for each year of service to a maximum of seventy (70) percent of final average pay, and final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of his or her gross earnings. Any employee who is age fifty-five (55) with at least ten (10) years of service but less than twenty-five (25) years of service shall be eligible to receive a pension based on the above formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60). Said reduced pension shall remain in effect for the duration of the pension. Any disability or disability allowance shall be computed as provided above and shall be subject to the limitations of sections 3(e) and 3(f). All employees covered by this paragraph shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to his or her account in the fund. This contribution shall be in lieu of any previous contributions required. (Ord. No. 18-94, 6-13-94)

Commencing September 1, 1988, for all members of Local 1018 A/B, Hartford Federation of School Health Professionals, normal retirement shall be at age fifty-five (55) with at least twenty-five (25) years of service or age sixty (60) with at least ten (10) years of service. The normal retirement allowance shall amount to two (2) percent of final average pay for each year of service. Commencing July 12, 1993, final average pay will be computed on the basis of an employee's highest three (3) years of the last five (5) years of his or her gross earnings. Any employee who is age fifty-five (55) with at least ten (10) years of service but less than twenty-five (25) years of service shall be eligible to receive a pension based on the above formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60). Said reduced pension shall remain in effect for the duration of the pension. Any disability or disability allowance shall be computed as provided above and shall be subject to the limitations of Sections 3(e) and 3(f). Commencing September 1, 1988, all bargaining unit employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to his or her account in the fund. This contribution shall be in lieu of any previous contributions required.

Effective September 11, 1989, for all members of the Hartford Federation of School Secretaries the normal retirement allowance shall amount to two (2) percent of the employee's final average pay per whole year of service to a maximum of seventy (70) percent of the final average pay. The final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of his or her gross earnings.

If any nonbargaining unit city employee retires from city service as a member of the unclassified service and his or her last day of work falls on or between September 26, 1989 and July 31, 1993, and, at such time, he or she is either an elected official or an appointee of one or more elected officials (hereinafter a "term-limited employee"), then such member's gross earnings in his or her final year of service shall include all amounts payable to such member upon his or her retirement on account of unused vacation and sick time as if such amounts all were earned and paid on and as of his or her last day of work, so long as, but only to the extent, that inclusion of such amounts in such member's gross earnings does not result in such member receiving an annual pension benefit in excess of the lesser of (i) his or

her actual regular earnings in the twelve months preceding such member's last day of work prior to such member's retirement (i.e., all of such member's actual earnings payable in such time period exclusive of any lump sum payments for accrued sick or vacation time payable upon termination of such member's employment with the City), or (ii) the IRC Maximum Benefit.

If any nonbargaining unit city employee (other than term-limited employee) retires from city service and his or her last day of work falls on or between July 13, 1990 and July 31, 1993, then such employee's gross earnings shall include all amounts payable to such member upon his or her retirement on account of unused vacation time prior to his or her effective date of retirement and shall also include all amounts payable to such member upon his or her retirement on account of unused sick time (hereinafter, "lump sum sick payment") as if such lump sum sick pay was earned and paid on and as of his or her last day of work, so long as, but only to the extent, that inclusion of such amounts in such member's gross earnings does not result in such member receiving an annual pension benefit in excess of the lesser of (i) his or her actual regular earnings in the twelve (12) months preceding such member's last day of work prior to such member's retirement (i.e., all of such member's actual earnings payable in such time period exclusive of any lump sum payments for accrued sick or vacation time payable upon termination of such member's employment with the city), or (ii) the IRC Maximum Benefit.

Notwithstanding anything to the contrary which is set forth in this Chapter, no member shall be entitled to receive a pension benefit in excess of the maximum amount which is permitted under the Internal Revenue Code of the United States from time to time (the "Code") in order for both the fund, and its members' interests therein, to retain the tax favored treatment provided by the Code thereto (herein, the "IRC Maximum Benefit").

The provisions set forth in subparagraphs (1) and (2) below, shall apply to all members of Local #2221, Hartford Federation of Paraprofessionals who retire after January 25, 1993:

(1) The normal retirement allowance for such members shall amount to 2.5 percent of final average pay for each whole year of service for the first twenty (20) years of continuous service, and two (2) percent of final average pay for each whole year of service thereafter, up to a maximum of seventy (70) percent of final average pay; and

(2) Final average pay for such members will be computed on the basis of an employee's highest three (3) out of the last five (5) years of his or her gross earnings.

Any member of Local #2221, Hartford Federation of Paraprofessionals who, but for having been furloughed at any time during the 1992—1993 school year, would have completed an entire year of service by June 30, 1993, shall be entitled to contribute such additional amounts to the fund as such member would have contributed had such member not been furloughed (without interest) and thereby be credited with such additional year of service, providing that such member pays such amounts to the fund on or before the earlier of (i) December 31, 1993, or (ii) his or her effective date of retirement.

All members of Local #2221, Hartford Federation of Paraprofessionals, Local #1018-C, Hartford Federation of School Secretaries, Local #1018, Hartford Federation of Corridor Supervisors, Local #3534, Hartford Federation of Technical Support Personnel, Local #1018 A/B, Hartford Federation of School Health Professionals, Local #818, Building and Ground Supervisors and all non-bargaining unit employees of the Board of Education who were furloughed for one (1) day during the 1990-91 school year shall not lose credit for such day for purposes of this chapter.

Notwithstanding any other provision of this Chapter to the contrary, any member who is determined by the Pension Commission to be eligible to receive any of the benefits provided under this Chapter who, on or after the date such benefits become payable, is entitled to and in fact does contribute to the fund by reason of his or her election or appointment to, or employment in, a position with the City (including, but not limited to, any of its agencies, departments, boards or commissions) shall not be entitled to collect such benefits during the period he or she

holds such position; providing, however, that this restriction shall not apply in respect of any benefits to the extent they were first payable on or before (the effective date hereof). Any benefits which otherwise would be payable to any member under this Chapter but for the restrictions set forth in this paragraph shall be paid thereto (without interest) at such time when such member no longer holds a position by reason of which he or she is entitled to contribute to the fund.

No member shall be deemed to have retired, or to otherwise then be eligible to qualify for any benefits otherwise payable under this Chapter, as and to the extent he or she is employed by the City or any of its agencies, departments, boards or commissions in a position for which he or she applied, received and offer, or was accepted, prior to the date on which such benefits otherwise would first be payable; providing, however, that nothing in this sentence shall constitute a basis for denying any member any benefits to the extent they first became payable prior to (the effective date hereof). In no event shall the level of any benefits payable to any member by reason of his or her participation in the fund prior to qualifying for and electing to receive any benefits under this Chapter be increased as a result of his or her renewed participation in the fund at any time after he or she has made such election.

The following provisions will apply to all nonbargaining unit sworn police officers and firefighters who are in the employ of the city on or after December 31, 1996:

1. Any provisions of this Chapter or the Municipal Code to the contrary notwithstanding, all nonbargaining unit sworn police officers and firefighters who were not employed as sworn police officers or firefighters on or before December 31, 1996, shall be entitled to receive, and only shall be paid, such of those pension and other retirement benefits as are provided to nonbargaining unit city employees pursuant to this Chapter (hereinafter, "Nonbargaining Pension Benefits"). All nonbargaining unit sworn police officers and firefighters who became sworn police officers or firefighters prior to January 1, 1997, also may elect to receive Nonbargaining Pension Benefits by notifying the City Treasurer of their desire to do so on or before March 31, 1997, or within thirty (30) days of the commencement of his or her employment as a nonbargaining unit sworn police officer or firefighter, whichever is later. Any nonbargaining unit sworn police officer or firefighter who elects to or otherwise is entitled to receive Nonbargaining Pension Benefits shall be provided with such benefits in lieu of any other pension or retirements benefits to which they otherwise would be entitled under this Chapter or the Municipal Code and only in accordance with the provisions of this paragraph and otherwise with the eligibility criteria and other terms and conditions affecting the provision of benefits to nonbargaining unit city employees as are set forth elsewhere in this chapter.

2. Any contributions to the fund which have been made by any nonbargaining unit sworn police officer or firefighter prior to the time when he or she elects to or otherwise becomes entitled to receive Nonbargaining Pension Benefits shall remain in the fund and be applied toward the Nonbargaining Pension Benefits to be provided to such employee hereunder. Thereafter, and subject to the provisions of subparagraph 3 below, any nonbargaining unit sworn police officer or firefighter who elects to or otherwise is entitled to receive Nonbargaining Pension Benefits shall make such contributions to the fund in the same manner and on the same terms as are required of, and shall be entitled to earn interest on any contributions which have been or thereafter are made to the fund in the same manner and on the same terms as apply to, nonbargaining unit city employees; providing, however, that no such employee shall be entitled to receive any additional or different interest on any contributions which were made prior to his or her making the aforesaid election at any time prior thereto other than

such interest, if any, which was then required to be provided in respect thereof. Nothing herein shall be deemed to preclude a member or his or her beneficiaries, if any, from withdrawing or otherwise being paid any of such member's contributions as provided in this Chapter upon termination of his or her employment or otherwise.

3. Any nonbargaining unit sworn police officer or firefighter who elects to or otherwise is entitled to receive Nonbargaining Pension Benefits also shall have the option (a) to have his or her final average pay computed on the basis of the highest two (2) of the last five (5) years of his or her gross earnings ("Option A"), as well as (b) to receive credit in the calculation of his or her retirement allowance for any periods of time that he or she served in the armed forces of the United States pursuant to Section 3(w) of this Chapter for which he or she previously has not made contributions to the fund ("Option B"), so long as, in either case, he or she notifies the City Treasurer of his or her desire to exercise such option (and, in the case of Option B above, also makes the contributions required under Section 3(w) of this Chapter) on or before March 31, 1997, or within thirty (30) days of the commencement of his or her employment as a nonbargaining unit sworn police officer or firefighter, whichever is later. Any employee who exercises Option A above shall thereafter contribute to the fund one (1) percent of his or her earnings above the four (4) percent of the employee's earning on which social security taxes are (or would otherwise be) paid and the seven (7) percent of the balance of the employees earnings, to be deducted at each pay period and credited to his or her account in the fund.

(bi) *Pension benefits for all bargaining unit and nonbargaining unit police officers:*

I. All present retirement and survivor benefits of persons who became sworn police officers prior to July 1, 1987, shall remain in effect except as follows:

1. The employee contribution to the pension fund will be eight (8) percent of total earnings.

2. Service retirements for those employees hired before July 1, 1984, will be based on two and one-half (2.5) percent of final average pay for each whole year of service for the first twenty (20) years of continuous service and two (2.0) percent of final average pay for each whole year of service thereafter.

3. Normal retirement for employees hired before July 1, 1984, shall be after twenty (20) years of continuous service. Employee pension benefits vest after ten (10) years of continuous service.

4. An employee who vests his or her pension and leaves the service of the city will be entitled to collect a pension benefit commencing on the date he or she would have reached his or her normal retirement date.

5. Effective upon signing, an employee may purchase up to four (4) years of military service time for service in the Armed Forces of the United States for periods of service, any of which occurred during the periods set forth in Section 27-103 of the General Statutes of the State of Connecticut, at the rate payable at the time of entry into city service, with interest at the rate of seven (7) percent per annum. The period of such service for which the employee receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance provided such employee shall have completed ten (10) years of continu-

ous service or fifteen (15) years of active aggregate service with the City of Hartford or shall be retired prior thereto, due to disability incurred in the course of his or her employment.

6. Effective July 1, 1986, employees hired on or after July 1, 1984, will be entitled to a service pension identical to employees hired before July 1, 1984, with the following exceptions:
   A. Normal retirement after twenty (20) years of continuous service or at age forty-five (45), whichever is later.
   B. Retirement benefit based on two and one-half (2.5) percent of final average pay of each whole year of service for the first twenty (20) years of continuous service and two (2) percent of final average pay for each whole year of service thereafter to a maximum of seventy (70) percent of final average pay.
   C. Final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of regular earnings, exclusive of overtime and private duty pay, added to a figure for overtime and private duty hours averaged over the employee's last twenty (20) years service or actual years of service whichever is less.
7. Effective July 1, 1986, an employee with less than fifteen (15) years of continuous service who suffers a permanent partial disability arising out of and in the course of employment as defined in the Worker's Compensation Act and who is eligible for a special disability allowance as provided for in the municipal employees retirement fund will have such special disability allowance reduced by any income from gainful employment which, together with the special disability allowance, exceeds one hundred (100) percent of the current rate of pay for an employee of the same or corresponding job classification held by the employee at the time of such retirement.

II. Effective July 1, 1987, for all persons who became sworn police officers on or after July 1, 1987, the following retirement and service benefits shall be in effect:
   1. The employee contribution rate to the pension fund will be five (5) percent of total earnings.
   2. Service retirements will be based upon two (2) percent of final average pay for each whole year of service to a maximum of seventy (70) percent of final average pay.
   3. Normal retirement age shall be age fifty-five (55) with at least twenty-five (25) years of service.
   4. Employees who retire prior to the time specified in paragraph 3 herein, will receive pension benefits reduced by four (4) percent for each whole year by which the early retirement precedes the employee's normal retirement age, with proration for a fraction of a year of continuous service or, employees may elect early retirement between the ages of fifty-five (55) and sixty (60) with ten (10) years of continuous service.
   5. Final average pay will be computed on the basis of the employee's highest three (3) of the last five (5) years of regular earnings, exclusive of overtime and private duty pay, added to a figure for overtime and private duty which is based on the

employee's total overtime and private duty hours averaged over the employee's last twenty-five (25) years of service or actual years of service whichever is less.

6. Social security benefits shall not be included in this plan.

7. Effective upon signing, an employee may purchase up to four (4) years of military service time for service in the Armed Forces of the United States for periods of service, any of which occurred during the periods set forth in Section 27-103 of the General Statutes of the State of Connecticut, at the rate payable at the time of entry into city service, with interest at the rate of seven (7) percent per annum. The period of such service for which the employee receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance provided such employee shall have completed ten (10) years of continuous service or fifteen (15) years of active aggregate service with the City of Hartford or shall be retired prior thereto, due to disability incurred in the course of his or her employment.

III. Effective July 1, 1988, for all persons who became sworn police officers prior to July 1, 1987, all present retirement and survivor benefits shall remain in effect except as follows:

1. The employee contribution to the pension fund will be eight (8) percent of total earnings.

2. Service retirements for those employees hired before July 1, 1984, will be based upon 2.65 percent of final average pay for each whole year of service for the first twenty (20) years of continuous service and, the following table for each whole year of continuous service thereafter to a maximum of seventy (70) percent of final average pay.

Year	*Percentage*
21	56%
22	58%
23	60%
24	62%
25	64%
26	65%
27	66%
28	67%
29	68%
30	69%
31	70%

3. Normal retirement for employees hired before July 1, 1984, shall be after twenty (20) years of continuous service. Employee pension benefits vest after ten (10) years of continuous service.

4. An employee who vests his or her pension and leaves the service of the city will be entitled to collect a pension benefit commencing on the date he or she should have reached his or her normal retirement date.

5. An employee may purchase up to four (4) years of military service time for service in the Armed Forces of the United States for periods of service, any of which occurred during the periods set forth in Section 27-103 of the General Statutes of the State of Connecticut, at the rate payable at the time of entry into city service, with interest at the rate of seven (7) percent per annum. The period of such service for which the employee receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance provided such employee shall have completed ten (10) years of continuous service or fifteen (15) years of active aggregate service with the City of Hartford or

shall be retired prior thereto, due to disability incurred in the course of his or her employment.

6. Final average pay will be computed on the basis of the employee's highest three (3) of the last five (5) years' earnings.

7. Employees hired on or after July 1, 1984, who became sworn police officers prior to July, 1987, will be entitled to a service pension identical to employees hired before July 1, 1984, with the following exceptions:

   A. Normal retirement after twenty (20) years of continuous service or age forty-five (45), whichever is later.

   B. Final average pay will be computed on the basis of the employee's highest three (3) of the last five (5) years of regular earnings, exclusive of overtime and private duty pay, added to a figure for overtime and private duty which is based on the employee's total overtime and private duty hours averaged over the employee's last twenty (20) years service or actual years of service, whichever is less.

8. An employee with less than fifteen (15) years of continuous service who suffers a permanent partial disability arising out of and in the course of employment as defined in the Workers' Compensation Act and who is eligible for a special disability allowance as provided for in the municipal employees retirement fund will have such special disability allowance reduced by any income from gainful employment which, together with the special disability allowance, exceeds one hundred (100) percent of the current rate of pay for an employee of the same corresponding job classification held by the employee at the time of such retirement.

9. In lieu of the provisions of III, 2 hereinabove all nonbargaining unit sworn police officers who have reached a retirement benefit of seventy (70) percent or more of their final average pay as of July 1, 1988, shall receive a four (4) percent increase to their service retirement credit existing under I, 2 above on July 1, 1988. On their next anniversary date of continuous service following July 1, 1988, they shall receive an additional two-percent increase to their service retirement credit. After receipt of this two-percent increase such members shall be at the maximum percentage of final average pay to be used for retirement purposes.

(bii) Final average pay for all bargaining unit and non-bargaining unit firemen retiring after July 1, 1987 will be computed on the basis of the employee's highest three (3) of the last five (5) years total annual earnings. Total annual earnings include private jobs, overtime, and longevity pay, if applicable.

(biii) The provisions set forth in subparagraphs (1), (2), (3) and (4) below shall apply to all non-bargaining unit city employees whose effective date of retirement is on or after July 1, 1994.

(1) Any such non-bargaining unit city employee shall be eligible for retirement and to receive a normal retirement allowance upon completion of at least twenty (20) years of service regardless of his or her age. The normal retirement allowance for such non-bargaining unit city employees shall amount to 2.5 percent of final average pay for each whole year of service up to a maximum of 80 percent of final average pay; and

(2) Final average pay for such non-bargaining unit city employees will be computed on the basis of the employee's highest five (5) of the last ten (10) years of his or

her gross earnings unless the employee had previously elected to have his or her average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings as provided in subsection (b) hereinbefore.

(3) Any such non-bargaining unit city employee may elect to retire without reduction of benefits after fifteen (15) years of continuous employment provided such employee elects to leave his or her contributions in the fund until the date on which he or she would have first become eligible for a normal retirement allowance at which time he or she shall receive a retirement allowance computed on the basis described in paragraphs (1) and (2) of this subsection (biii) for a normal retirement allowance.

(4) (i) If any such employee has at least twenty (20) days of accumulated, but unused, sick leave upon his or her retirement and the retirement allowance that otherwise would be payable to such employee in the absence of this subparagraph (4) would be less than eighty (80) percent of the employee's final average pay (hereinafter, for purposes of this subparagraph (4), a "qualifying retiree"), then the amount of pension service used in the calculation of such person's retirement allowance, and the number of days of accumulated, but unused, sick leave for which such person otherwise would be entitled to be paid upon retirement, shall be adjusted in accordance with the terms of this subparagraph (4). Such adjustments shall be effected by increasing the amount of the qualifying retiree's pension service by one (1) whole year of service for each twenty (20) days of accumulated, but unused, sick leave that were credited to such person's account prior to the calculation of any amounts that otherwise would have been or will be paid to such person pursuant to the sick pay reduction formula applicable to that person, up to a maximum of four (4) whole years of pension service credit or eighty (80) percent of final average pay, whichever results first. Likewise, the amount of accumulated sick leave for which the employee otherwise is entitled to be paid a lump sum upon retirement shall be concomitantly reduced by twenty (20) days for each additional year of pension service that is credited to such retiree as aforesaid. Fractional years of pension service shall not be awarded pursuant to this provision.

(ii) Any additional pension service credited to any qualifying retiree pursuant to this subparagraph (4) shall not be used for establishing eligibility for normal retirement benefits as provided in paragraph (1) of this subsection (biii), but shall be used as additional service credits for qualifying retirees who are qualified or become qualified for normal or early retirement benefits as those terms are defined in this chapter. The additional retirement allowance resulting from the additional pension service credited to any qualifying retiree's benefit pursuant to this subparagraph (4) will be calculated as provided in paragraph (1) of this subsection (biii), provided, again, that the maximum annual normal retirement allowance payable (or otherwise applicable to) any such retiree shall not exceed eighty (80) percent of the retiree's final average pay.

(iii) As an example, assume that a qualifying retiree, as of her last day paid, is working a thirty-five (35) hour work week and being paid a salary of one thousand dollars ($1,000.00) per week (or two hundred dollars ($200.00) per day). Assume

further that she has one hundred (100) days of accumulated sick leave and otherwise is entitled to be paid fifty (50) percent of the value of such leave upon retirement or ten thousand dollars ($10,000.00) (i.e. (100 days × 50%) × $200.00 a day). Finally, assume that the retiree has thirty (30) years of pension service and, thus, pursuant to subparagraph (1) above, otherwise would be entitled to a normal retirement allowance equal to seventy-five (75) percent of her final average pay (i.e. 30 years × 2.5% per year). In that case, the retiree shall be credited with an additional two (2) whole years of pension service and the number of days of accumulated sick leave for which she will be paid upon retirement will be reduced by forty (40) days. As a result, such retiree's normal retirement allowance shall equal eighty (80) percent of the retiree's final average pay (i.e. 75% + (2 years × 2.5% per year) and the amount of her lump sum payment on account of accumulated sick leave will equal six thousand dollars ($6,000.00) (i.e. (100 days - 40 days) × $200.00 per day).

(iv) The provisions of this subsection shall be effective retroactive to January 1, 2003.

Notwithstanding any provisions of this Chapter to the contrary, including, without limitation, the provisions set forth in subsection 3(y)(4) of this Chapter, any permanent, nonbargaining unit city employee who is an active member of the unclassified service at any time between October 1, 1998 and December 31, 1998, both dates inclusive, and who previously has elected not to be, and is not then, a member of the fund, shall have the right to elect to become a member of the fund in accordance with and subject to the provisions of this subparagraph. Any employee who wishes to make such election shall give written notice to the city treasurer to that effect on or before December 31, 1998. Any such employee who has given such notice shall, effective January 1, 1999, thereupon be a member of the fund, and thereby entitled to receive those benefits applicable to, and obligated to make those contributions required of, nonbargaining unit city employees under and pursuant to the terms of this Chapter as apply to such employees for and during the period of his or her service thereafter, providing, however, that no such employee shall be entitled to have any of his or her contributions "picked-up" and paid by the City of Hartford as otherwise would be provided pursuant to the provisions of section 3(y) of this Chapter. Any election which is made to become a member of the fund pursuant to this subparagraph shall be irrevocable.

Notwithstanding any provisions of this Chapter to the contrary, including, without limitation, the provisions set forth in subsection 3(y)(4) of this Chapter, any active, permanent, nonbargaining unit city employee (and any active, full-time, permanent city employee who is a member of a collective bargaining unit which has agreed to the provisions of this subparagraph who previously was a member of the unclassified service) who (i) is or elects to become a member of the fund at any time between October 1, 1998 and December 31, 1998, both dates inclusive, (ii) is not then receiving a retirement benefit, and (iii) previously chose not to be, or otherwise was not, a member of the fund during any time he or she was a member of the unclassified service, shall have the option to include that portion of his or her Qualified Prior Unclassified Service Time (as hereinafter defined) in the calculation in his or her length of service for purposes of determining his or her retirement allowance, subject to and in accordance with the terms of this subparagraph. Any employee who wishes to exercise this option must (1) provide the city treasurer with written notice of his or her desire to do the same by December 31, 1998, and (2) thereafter pay the municipal employees' retirement fund an amount equal to the contributions required in respect of any of his or her Qualified Prior Unclassified Service Time for which he or she desires to be given credit pursuant to this subparagraph in the manner and on such terms as may be specified by the pension commission.

Nothing in this subparagraph shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this Chapter. Any member who elects to exercise the option to purchase additional pension credit pursuant to this subparagraph shall make a contribution to the fund for each fiscal year, or part thereof, for which he or she is purchasing credit hereunder equal to the sum of (1) the product of his or her salary during each such year, or part thereof, times the contribution rate in effect for nonbargaining unit city employees as of December 31, 1998, plus (2) interest on the amounts derived pursuant to the foregoing calculated at the pension commission's assumed rate of return for the fund as of and from June 30th of each such fiscal year, or part thereof, to the date the pension commission approves such member's application to acquire the same. No contributions which are required to be made pursuant to this subparagraph shall be "picked-up" and paid by the City of Hartford as otherwise would be provided pursuant to the provisions of section 3(y) of this Chapter. For purposes of this subparagraph, a member's "Qualified Prior Unclassified Service Time" shall mean such prior unclassified service time for which he or she served as a permanent employee and neither is receiving a retirement benefit, nor has retained a vested benefit, from any other employer; a member shall be deemed to be "receiving a retirement benefit" if, prior to January 1, 1999, he or she has filed an application to be paid, or has been awarded, any benefits under this Chapter.

(c) *Mandatory retirement.* The mandatory retirement date for any member shall be the fifth anniversary of his normal retirement date. Any member who reaches his mandatory retirement age shall be retired immediately; and if he is a policeman or fireman and has at least fifteen (15) years, or in the case of all other employees who are members of the municipal employee's retirement fund at least ten (10) years, of continuous service with the city, he shall be entitled to receive a retirement allowance computed in the same manner as the normal retirement allowance. The pension commission may at its option defer the mandatory retirement date for an employee upon written recommendation of his department head.

(d) *Early retirement.* Any member, other than a policeman or a fireman, may elect early retirement after his fifty-fifth birthday provided he has completed at least ten (10) years of continuous service. Any member who is employed as a policeman or a fireman may elect early retirement after his fiftieth birthday provided he has completed at least ten (10) years of continuous service. Any member who is employed as a policeman or a fireman may elect early retirement after his fiftieth birthday provided he has completed at least fifteen (15) years of continuous service. In event of his early retirement such a member may elect one (1) of the following options in lieu of the refund of contributions in subsection (j):

(1) To leave his contributions in the fund until the date on which he would have first become eligible for a normal retirement allowance at which time he shall receive a retirement allowance computed on the basis described in subsection (b) for a normal retirement allowance; or

(2) In the case of a policeman, or a fireman, or an employee of the board of education, to receive an immediate early retirement allowance which shall be determined by the pension commission and which shall be actuarially equivalent to the retirement allowance provided by option (1); or

(3) In the case of a member who is not represented by Local 501 CSEA, Inc., or who is not an employee of the board of education, except board of education employees presently represented by Local 566, Council #4, AFSCME, AFL-CIO, Local 818, Building and Ground Supervision, and Local 3534, Hartford Federation of Education Personnel to receive an immediate early retirement allowance equal to the amount of retirement allowance provided by option (1) reduced by two (2) percent for each whole year by

which the date of his termination of service falls short of the date on which he would have first become eligible for a normal retirement allowance as provided in subsection (b), with proration for any fraction of a year; or

(4) In the case of a member, including those represented by Local 3534, Hartford Federation of Education Personnel and the School Crossing Guards Association of Hartford, Connecticut, but excluding policemen and firemen and other employees of the board of education who are represented by a bargaining unit, and who has completed twenty-five (25) years of continuous service and attained age sixty (60), to receive an immediate early retirement allowance equal to the amount provided by option (1) without reduction.

(5) After July 1, 1978, any policeman or fireman may elect early retirement after twenty (20) years of continuous service. An employee who elects such early retirement after July 1, 1978, and before July 1, 1981, will receive pension benefits reduced by two (2) percent for each whole year by which the date of early retirement precedes the date on which he would have completed twenty-five (25) years of continuous service, with proration for a fraction of a year. An employee who elects early retirement after July 1, 1981, and before July 1, 1983, after at least twenty (20) years of continuous service will receive a pension based on two (2) percent of the final average pay for each whole year of service and reduced by one (1) percent for each whole year by which the date of early retirement precedes the date on which he would have completed twenty-five (25) years of continuous service, with proration for a fraction of a year. An employee who elects early retirement on or after July 1, 1983, after at least twenty (20) years of continuous service will receive a pension based on two (2) percent of final average pay for each whole year of service.

(1) A member of the Hartford Federation of School Secretaries who is age fifty-five (55) with at least ten (10) years of service but less than twenty-five (25) years of service shall be eligible to receive pension benefits reduced by four (4) percent for each whole year the member retires short of age sixty (60).

(e) *Retirement for disability.* Any member shall be eligible for retirement and to receive a disability retirement allowance if he becomes permanently and totally disabled from engaging in any gainful employment, provided he has completed at least ten (10) years of continuous service, or provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of his employment by the city, as defined by the workmen's compensation act. The amount of the disability retirement allowance shall be computed in the same manner as the normal retirement allowance, using a final average pay equal to his average annual rate of pay for the ten (10) years immediately preceding his disability retirement; provided such disability allowance for permanent and total disability arising out of and in the course of his employment, as defined in the workmen's compensation act, shall not be less than one-half (½) of the member's annual pay at the time his disability was incurred. Such disability retirement allowance shall continue during the period of such disability. Any amount or amounts received under the workmen's compensation act shall be deducted from such disability retirement allowance. The existence and continuance of disability shall be determined by the pension commission upon such medical evidence and other investigation as it may require. No disability retirement allowance under this section, plus workmen's compensation payments, if any, plus any amounts payable by reason of social security coverage attributable to city employment, shall exceed two-thirds 2/3) of the member's average annual pay during the ten (10) years immediately preceding his retirement, but no such disability retirement allowance shall be less than three hundred sixty dollars ($360.00) annually. No such disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication

of the disabled member. In order to obtain a disability retirement allowance under this section, a member shall apply in writing for such allowance to the pension commission within one (1) year after incurring the disability, and the allowance may be made retroactive to the date at which the pay of the disabled member ceased.

(f) *Special disability allowance.* Any member who suffers a permanent disability which does not prevent him from engaging in any gainful employment may nevertheless be eligible to receive a special disability retirement allowance if he has completed at least ten (10) years of continuous service or if such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of his employment by the city, as defined by the workmen's compensation act, and if it is shown to the satisfaction of the pension commission that as a result of said disability the income which he can derive from gainful employment has been reduced at least ten (10) percent below the income he was earning at the time he incurred such disability. Such special disability retirement allowance may continue during the period of such reduced income. The amount of the special disability retirement allowance shall be determined by the pension commission in a manner consistent with the determination of the disability retirement allowance; it shall not be less than ten dollars ($10.00) monthly nor more than one and two-thirds (1 2/3) percent of the reduction in income multiplied by the number of years of service unless the permanent disability arises out of and in the course of employment as defined in the workmen's compensation act, in which case it shall be not less than fifty (50) percent of the reduction in income.

(g) *Survivor's benefits.* If a member who is serving as a city policeman or fireman dies before retirement from a cause arising out of and in the course of his employment, as defined in the workmen's compensation act, his widow shall receive a monthly survivor's allowance at a rate equivalent to fifty (50) percent of his annual pay at the time of his death, until she dies or remarries. If said member leaves a child or children under the age of eighteen, each such child shall receive a monthly survivor's allowance at a rate of ten (10) percent, as measured above, until he reaches age eighteen (18), marries or dies, whichever comes first; however, if the member leaves no widow, each child's allowance shall be at the rate of fifteen (15) percent. The total annual survivor's allowances payable under this section plus workmen's compensation payments, if any, shall not exceed three-quarters of the member's average annual pay during the five (5) years immediately preceding his death. Any allowances paid under this subsection shall be in lieu of the refund of contributions, provided by subsection (j); except that if the total allowances paid under this subsection should be less than the refund of contributions which would otherwise have been paid, then the excess of said refund over said allowances shall be paid in accordance with subsection (j). As used herein the term "widow" shall include "widower".

(h) *Continuity of service.* Periods of absence of not more than ninety (90) days in any one (1) calendar year shall not be considered as breaking continuity of service. Periods of absence of more than ninety (90) days by reason of a leave of absence granted by the council, or where the absence is occasioned by disability involving the regular attendance of a physician unless such attendance is declared unnecessary by medical authority satisfactory to the pension commission, shall not be considered as breaking continuity of service, but such periods shall not be included in determining the amount of the retirement allowance.

If a member terminates his employment, withdraws his retirement contributions from the fund and is subsequently reemployed, he may request that he be allowed to repurchase his prior service credits. Such request and repayment must be made no later than ninety (90) days after the completion of the probationary period. If such request is not made within the prescribed period of time, the member shall be deemed to have waived this right.

Any member who has completed his or her probationary period prior to October 1, 1989, and who failed to make such request and repayment within ninety (90) days after the completion of the probationary period is hereby granted an

extension of time until December 1, 1989, to make such request and repurchase his or her prior service credits. If such request is not made prior to December 1, 1989, the member shall be deemed to have waived this right.

Effective October 1, 1998, any nonbargaining unit employee of the City (and any member of a collective bargaining unit which agrees to the provisions of this subparagraph) who (i) has completed his or her probationary period prior thereto, (ii) is, or by January 1, 1999 will be, a member of the fund, (iii) failed to request that he or she be allowed to repurchase any of his or her prior service credits and/or to repay the fund therefor within ninety (90) days after completion of his or her probationary period, and (iv) neither is receiving a retirement benefit nor has retained a vested benefit with respect to such prior service from any other employer, is hereby granted an extension of time until December 31, 1998 to make such request and repurchase his or her prior service credits, subject to and in accordance with this subparagraph. Any such employee who wishes to repurchase his or her prior service credits pursuant to this subparagraph must provide written notice to the city treasurer of his or her desire to do the same by December 31, 1998 and shall thereafter pay the municipal employees' retirement fund an amount equal to the sum of (1) his or her contributions for such prior service which were returned to such employee, and (2) interest on said contributions at the rate of seven (7) percent per annum from the date such employee was rehired by the city to the date the pension commission approves such member's application to repurchase any credits hereunder. All such amounts shall be paid to the fund in the manner and on the terms specified by the pension commission, providing, however, that no contributions which are required to be made pursuant to this subparagraph shall be "picked-up" and paid by the City of Hartford pursuant to the provisions of section 3(v) of this chapter. Nothing in this subsection shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter.

Notwithstanding any provisions of this chapter to the contrary, effective May 1, 2003, any non-bargaining unit employee of the city (and any member of a collective bargaining unit which agrees to the provisions of this subparagraph) who (i) has completed his or her probationary period prior thereto, (ii) is a member of the fund, and (iii) following a maternity or paternity leave, returned to work as a part-time employee of the city before ultimately returning to work as a full time employee of the city, shall have the option to include that qualified prior part-time service time (as hereinafter defined) in the calculation in his or her length of service for purposes of determining his or her retirement allowance, subject to and in accordance with this subparagraph. Qualified prior part-time service time for such periods shall be determined on a prorated basis, based upon actual hours of service provided to the city, provided said service was no less than twenty (20) hours per week. Any such employee who wishes to exercise this option must provide written notice to the city manager and city treasurer of his or her desire to do the same by May 30, 2003 and shall thereafter pay the municipal employees' retirement fund an amount equal to the contributions required in respect of any of his or her qualified prior part-time service for which he or she desires to be given credit pursuant to this subparagraph in the manner and on such terms as may be specified by the pension commission. Any member who elects to exercise this option to purchase additional pension credit pursuant to this subparagraph shall make a contribution to the fund for each fiscal year, or part thereof, for which he or she is purchasing credit hereunder equal to the sum of (1) the product of his or her salary during each such year, or part thereof, times the contribution rate in effect for the member at the time he or she was rehired as a full time employee, and (2) interest on the amounts derived pursuant to the foregoing calculated at the rate of seven (7) percent per annum from the date of the qualified prior part-time service time to be purchased, to the date the pension commission approves such member's application to acquire the same. All such amounts shall be paid to the fund in the manner and on the terms specified by the pen-

sion commission, providing, however, that no contributions which are required to be made pursuant to this subparagraph shall be "picked-up" and paid by the City of Hartford pursuant to the provisions of section 3(y) of this chapter. Nothing in this subsection shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter. For purposes of this subparagraph, a member's "qualified prior part-time service time" shall mean such prior service time for which he or she served as a part-time employee following a period of maternity leave and neither is receiving a retirement benefit, nor has retained a vested benefit, from any other employer; a member shall be deemed to be "receiving a retirement benefit" if, prior to May 30, 2003, he or she has filed an application to be paid, or has been awarded, any benefits under this chapter.

(i) *Optional form of retirement allowance.* Any member may, subject to such regulations as the pension commission may from time to time establish, elect to receive a reduced retirement allowance with the provision that such reduced retirement allowance, or such part thereof as may be specified by such person in his notice of election, shall be continued after his death to his spouse named in such election, for so long as his spouse lives. The reduced retirement allowance shall be in such an amount as the pension commission determines to be the actuarial equivalent of the retirement allowance that would have been payable had not the election been made. Unless the member files a written notice of his election of this option with the pension commission at least three (3) years before he becomes eligible for retirement he shall be required to pass a satisfactory physical examination at the time of making such election.

(j) *Contributions by members.* Each member shall contribute to the fund two (2) percent of that portion of his pay on which social security taxes are paid and five (5) percent of the balance of his pay, to be deducted at each pay period and credited to his account in the fund. Any member leaving the employment of the city before becoming eligible for retirement may withdraw on request to the pension commission the total of all contributions to the fund made by him without interest, provided, if no request is made within ten (10) years, such contributions shall revert to the fund. In case of the death of a member before retirement, or after retirement without having made the election provided for in [this] subsection hereof, or in case of the death of the survivor of a member who has made such election and his spouse or domestic partner after he is eligible for retirement, his contributions to the fund without interest, less any retirement allowance paid to him, his spouse or domestic partner, shall be paid from the fund on the order of the pension commission to the beneficiary or beneficiaries, if any, named by such member. If no named beneficiaries survive the member, or the survivor of the member and his spouse or domestic partner, payment shall be made to the executors or administrators of such member or his spouse or domestic partner, as the case may be, except that, if the amount is less than one thousand dollars ($1,000.00), the refund may be made, at the option of the pension commission, in accordance with the terms of Section 45-266 of the General Statutes or any amendment thereto. (Ord. No. 64-93, 11-22-93)

As of July 1, 1980, all nonbargaining unit employees and employees presently represented by Locals 566 and 1716, Council #4, AFSCME, AFL-CIO, and Local 818, Building and Ground Supervision, will have credited to their employee contributions to the pension fund three (3) percent interest on such contributions as of June 30, 1979. As of July 1, 1981, employees represented by Hartford Federation of Education Personnel, Local 3534, AFT, AFL-CIO will have credited to their employees contributions to the pension fund three (3) percent interest as such contributions as of June 30, 1980. Each July 1, thereafter, contributions and any interest credited as of the previous calendar year June 30 will be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from city employ-

ment except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3.

The employee contributions to the pension fund of employees represented by Local #2221 Hartford Federation of Paraprofessionals, CSFT, AFT, AFL-CIO will be credited with three (3) percent interest on such contributions. Present employees will be credited with such interest on their contributions as of June 30, 1987, or to the date of their employment, whichever is later. Each July 1 after July 1, 1987, contributions and interest shall be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from the city employment, except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3.

The employee contributions to the pension fund of employees represented by Local 1018 A/B Hartford Federation of School Health Professionals will be credited with three (3) percent interest on such contributions. Present employees will be credited with such interest on their contributions after August 31, 1988, or to the date of their employment, whichever is later. Each July 1 thereafter, contributions and interest credited as of the previous calendar year on June 30 will be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from the city employment, except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3.

The employee contributions to the pension fund of employees represented by Local 1018 of Hartford Federation of Corridor Supervisors will be credited with three (3) percent interest on such contributions. Present employees will be credited with such interest on their contributions after June 30, 1988, or after the date of their employment, whichever is later. Each July 1 thereafter, contributions and interest credited as of the previous calendar year on June 30 will be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from the city employment, except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3.

The employee contributions to the pension fund of employees represented by Local 3534 of Hartford Federation of Technical Support Personnel will be credited with three (3) percent interest on such contributions. Present employees will be credited with such interest on their contributions after July 1, 1988, or after the date of their employment, whichever is later. Each July 1 thereafter, contributions and interest credited as of the previous calendar year on June 30 will be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from the city employment, except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3.

As of July 1, 1988, all employees who are members of the Hartford Federation of School Secretaries shall contribute to the pension fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to his or her account in the fund. This contribution shall be lieu of any previous contributions required.

Contributions to the pension fund by employees represented by Local 1018-C, Hartford Federation of School Secretaries, HFT, CSFT, AFT, AFL-CIO will be credited with three (3) percent interest. Said interest will be credited to contributions as of June 30, 1988, or the employee's date of employment, which[ever] is later. Each July 1, after July 1, 1988, contributions and interest shall be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from the city employment except that no such pay-

ment will be made to an employee granted a pension in accordance with Chapter XVII, Section 3.

As of July 1, 1991, all employees then represented by the Hartford Educational Support Personnel (HESP) or Hartford Schools Support Supervisors Association (HSSSA), will have credited to their employee contributions to the pension fund three (3) percent interest on all contributions previously made by such employees and all interest previously earned thereon as of June 30, 1990. Each July 1, thereafter, contributions and any interest credited as of the previous calendar year June 30, will be credited with three (3) percent interest. Once credited, the interest and contributions made by the employee to the pension fund shall be payable to the employee upon separation from city employment except that no such payment will be made to an employee granted a pension in accordance with this Chapter XVII, Section 3. (Ord. No. 19-94, 6-13-94)

(k) *Contributions by city.* The city shall pay annually into the fund such proportion of the pay of all members employed by the city as may be determined from time to time by the pension commission on sound actuarial principles to be necessary in addition to the contributions by members to provide future pensions based on service rendered by members. The pension commission shall make a complete actuarial study of the experience of the retirement system established by this section at intervals of no more than five (5) years and shall thereupon readjust the contributions to be made by the city.

(l) *Assignments prohibited.* Any assignment by a member, beneficiary or spouse of any allowance or benefit payable under the terms of this section shall be void. Each such allowance and benefit shall be for the support of the member, beneficiary or spouse entitled thereto and shall be exempt from the claims of creditors of such member, beneficiary or spouse, provided, if the provisions of this section are contrary to the laws governing a particular set of circumstances, as to that set of circumstances, any allowance or benefit payable hereunder shall be exempt to the maximum extent permitted by law.

(m) *Coordination with federal social security coverage.* In the case of any employee who was a member of the fund prior to the effective date of this act, and who is included in social security coverage thereby, if the pension commission should find that the sum of a normal retirement allowance or a disability retirement allowance plus the security benefit which such member is entitled to receive resulting from city service should be less than the allowance he would receive under the terms of the municipal employees' retirement fund in existence prior to the effective date of this act, then the commission shall increase his allowance accordingly for the period during which the lower total benefits would otherwise apply.

(n) *Effect of repeal.* In case of the repeal of this section, the liability of the city to members of the municipal employees' retirement fund shall be limited to the amount of their respective contributions thereto, provided all retirement allowances vested by retirement shall be paid in full in accordance with the provisions of this section.

(o) *Hartford Public Library employees.* Any full-time salaried employee or part-time professional employee entering the employ of the Hartford Public Library on or after January 1, 1959, shall be a member of Part B of the municipal employees' retirement fund, shall be entitled to all the benefits thereof, and shall make contributions thereto, all in the same manner as if he were an employee of the City of Hartford. Any full-time salaried employee or part-time professional employee who is in the employ of the Hartford Public Library on December 31, 1958, may elect to become a member of the municipal employees' retirement fund as of January 1, 1959, by filing a written request therefor with the pension commission not later than January 15, 1959; after filing such request, said employee shall be entitled to all the benefits thereof, based on service rendered on and after January 1, 1959, and shall make contributions thereto from the same date, all in the same manner as if he were an employee of the City of Hartford. In addition, any such employees who have credit for service rendered to the Hartford Public Library for any period

prior to January 1, 1959, under the pension plan maintained by the library with the Connecticut General Life Insurance Company shall be given credit in the municipal employees' retirement fund for the same period of service, but any benefits paid to such employee from the municipal employees' retirement fund shall be reduced by the amount of any annuity payable under the terms of the Connecticut General plan. Library employees who make this election shall become members of Part B of the municipal employees' retirement fund if they have previously expressed a desire for social security coverage; otherwise they shall be members of Part A of the municipal employees' retirement fund. Any library employee eligible to elect to become a member of the municipal employees' retirement fund, who fails to make such election before January 16, 1959, shall be deemed to have waived his rights to membership therein and benefits therefrom; failure to file such election on time shall not, however, invalidate his rights if it shall be shown to the satisfaction of the pension commission that it was not reasonably possible for him to file such an election on time, and that he did file such an election as soon as it was reasonably possible to do so.

(p) *Vesting*.

(1) *Vesting provisions generally applicable to employees whose last day of work is on or before December 31, 2001.* All pension benefits under the provisions of the municipal employees' retirement fund shall vest in each employee, except policemen and firemen, upon completion of ten (10) years' service regardless of age, provided said employee leaves his contributions in the pension fund and further provided that any retirement benefits shall be payable in accordance with [sub]sections (b) or (d) hereinbefore at the election of the employee, except that any survivor benefits hereinafter provided shall attach to the vesting privilege but shall be payable only at such time as the member becomes eligible, or would have become eligible in the case of a deceased member, under the provisions of [sub]sections (b) or (d).

(2) *Vesting provisions generally applicable to members who are sworn police officers or firefighters.* The vesting provisions applicable to all sworn police officers and firefighters (other than those senior officers who can and do elect to receive nonbargaining pension benefits) are set forth in sections 3(bi) and (cc) of this chapter, respectively.

(3) *Vesting provisions generally applicable to members employed on or after January 1, 2002.* The provisions of this subparagraph (3) shall to each member who is or was actively employed as a contributing member of the MERF on or after January 1, 2002 to the extent he or she is either a nonbargaining unit employee (excluding, however, any nonbargaining unit police officers or firefighters who have not elected to receive nonbargaining pension benefits) or a member of a collective bargaining unit whose collective bargaining unit has been amended to incorporate the provisions of this subparagraph. For purposes of this subparagraph only, each such member is hereinafter referred to in this subparagraph as a "qualifying member"; additionally, reference in this subparagraph to any "regular retirement" allowance or benefit means any normal or early retirement allowance payable to any member who qualifies to receive the same under and in accordance with sections 3(b) or 3(d) of this chapter and/or any like provisions of any collective bargaining agreement that apply to said member (hereinafter, the member's "regular retirement provisions"), as opposed to any benefit or allowance payable for or as a disability benefit or allowance.

(i) Notwithstanding any provision of this chapter or any collective bargaining agreement to the contrary, effective January 1, 2002, each qualifying member's rights to and/or interests in any regular retirement allowance shall vest upon completion of five (5) years' actual

and continuous city service, regardless of age. Any survivor benefits hereinafter provided with respect to any regular retirement allowance shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, under the member's regular retirement provisions.

(ii) Any member's and his or her qualified surviving spouse's rights to and/or interests in receiving any regular retirement or survivor's allowance from the fund shall be subject to and remain contingent upon the member's and, as applicable, his or her qualified surviving spouse's, leaving the member's contributions in the fund and such member's, and/or his or her qualified surviving spouse's, otherwise satisfying all of the eligibility requirements for receiving any normal or early retirement allowance under the member's regular retirement provisions (and/or, as applicable, any provisions governing the payment of survivor's benefits from the fund (hereinafter, the "survivorship provisions")), as amended by this subparagraph (3). Likewise, any regular retirement or survivor's benefits that are or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's regular retirement and/or survivorship provisions, as applicable, as amended by this subparagraph (3).

(iii) Notwithstanding any provision of this chapter to the contrary, effective January 1, 2002, any qualifying member who otherwise would be eligible to receive any normal or early retirement allowance at any specified age upon completion of ten (10) years of service shall be entitled to retire and commence receiving such allowance at that same age, but with only five (5) years of actual and continuous city service.

(iv) None of the provisions of this subparagraph (3) amend or shall be deemed to otherwise affect the provisions of paragraphs (e), (f), (n), (t) and (w) of this section or any like provision set forth in or made a part of any collective bargaining agreement.

(4) *Additional opportunity for unclassified nonbargaining unit city employees to join the MERF between June 1, 2003 and September 2, 2003.* Notwithstanding any provision of this chapter to the contrary, any nonbargaining unit city employee who is actively employed as a contributing member of the MERF between June 1, 2003 and September 2, 2003, both dates inclusive, and who is (or, for purposes of this chapter, is required to be treated as) a member of the unclassified service, but previously has elected not to be a member of the municipal employees' retirement fund, shall have the right to elect to become a member of the fund in accordance and subject to the provisions of this subparagraph (4). Any such employee who desires to make such an election shall give written notice to the city treasurer of said election by September 2, 2003 and shall thereafter be entitled to receive those benefits applicable to, and obligated to make those contributions required of, nonbargaining unit city employees under and pursuant to the terms of this chapter as apply to such employees for and during the period of his or her service thereafter, providing, however, that no such employee shall be entitled to have any of his or her contributions "picked-up" and paid by the City of Hartford as otherwise would be provided pursuant to the provisions of section 3(y) of this chapter. Any election which is made to become a member of the fund

pursuant to this subparagraph shall be irrevocable. Any such employee who elects to become a member of the fund pursuant to this subparagraph shall make a contribution to the fund for each year, or part thereof, of his or her qualified prior unclassified service time and, upon making such contribution, shall be entitled to have his or her qualified prior unclassified service time included in the calculation in his or her length of service for purposes of determining both his or her eligibility to receive any retirement or disability allowance under this chapter, as well as the amount of the same, subject to and in accordance with the terms of this chapter, including this subparagraph (4). Such contribution shall equal the sum of (A) the product of his or her salary during each whole or partial year of the employee's qualified prior unclassified service time times the contribution rate in effect for nonbargaining unit employees such as the member for each such year or part thereof, and (B) interest on the amounts derived pursuant to the foregoing calculated at the rate of seven (7) percent per annum, compounded annually, from the last day of each fiscal year, or part thereof, of the employee's qualified prior unclassified service time to be purchased, to the date the pension commission approves such employee's application to acquire the same. All such amounts shall be paid to the fund in the manner and on the terms specified by the pension commission, providing, however that no contributions which are required to be made pursuant to this paragraph shall be "picked-up" and paid by the City of Hartford pursuant to the provisions of section 3(y) of this chapter. Nothing in this subparagraph shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter. For purposes of this paragraph, an employees "qualified prior unclassified service time" shall mean such period of prior unclassified service (or service that, for purposes of this chapter, is required to be treated as unclassified service) as a nonbargaining unit city employee for which such employee has not made any contributions to the MERF and is neither receiving a retirement benefit, nor has retained a vested benefit, from any other employer; a member shall be deemed to be "receiving a retirement benefit" with respect to any period of service if, prior to September 2, 2003, he or she has filed an application to be paid, or has been awarded, any benefit from any retirement plan or fund with respect to services provided during said period.

(q) *Survivor's allowance.* In lieu of the provisions of section (i), the surviving widow or widower of any member of the municipal employees' retirement fund who shall retire or who shall be eligible for retirement, or whose pension benefits shall have become vested under section (p), after July 1, 1968, except policemen and firemen shall, upon the death of said member, but not prior to the date on which said member would have been eligible to retire under sections (b) or (d), receive a monthly allowance from the municipal employees' retirement fund equal to one-half (½) the monthly allowance being received by said member, or which said employee would have been entitled to receive if retired, at the time of his or her death until said widow or widower dies or remarries. The terms "widow" and "widower" as used in this section shall be limited in their meanings to the surviving spouse of such member who shall have been married to him or her prior to his or her retirement which shall be deemed to mean the date of his termination of active employment.

In addition to the contributions provided in section (j) hereinbefore, each member of the municipal employees' retirement fund eligible for the survivor's benefits hereinbefore provided, including nonbargaining employees of the board of education, shall contribute to the fund one (1) percent of his total pay in the same manner as

provided in said section (j), except that all other employees of the board of education who are members of the municipal employees' retirement fund shall contribute to the fund one (1) percent of his pay on which social security taxes are not deducted only.

(r) *Transfers from the municipal employees' retirement fund.* Any member leaving the employment of the City of Hartford or other covered employment may transfer, if he is eligible for such transfer to the employees' retirement system of the federal government of the United States, or the retirement system of a state or any political subdivision thereof within the United States, which is being operated on an actuarial basis with contributions made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on their account. Such transfer may not become effective, however, unless an appropriate agreement of reciprocity is executed. Upon approval of the pension commission, the actuarial reserve for the member's vested annuity benefit, as determined by the commission shall be transferred to the retirement system under which the employee will be covered in his new position.

(s) *Transfers to the municipal employees' retirement fund.* Any person who has not attained his sixtieth birthday and who is a member of the employees' retirement system of the federal government of the United States or the retirement system of a state or any political subdivision thereof within the United States which is being operated on an actuarial basis with contributions being made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on their account may, upon approval of the pension commission, transfer his membership to the municipal employees' retirement fund upon accepting employment with the City of Hartford; provided, however, such transfer may not become effective unless an appropriate agreement of reciprocity is executed. In order to transfer credit for such prior service, the member shall pay or cause to be paid into the municipal employees' retirement fund the amount of money required, as determined by the pension commission to purchase in full such credited service. In no event shall there be any city contributions made toward the purchase of such service. Whenever such employee enters the municipal employees' retirement fund, he must elect within thirty (30) days of entrance into said fund or of the date of adoption of this section, whichever is later, to purchase credit for such prior service. If the pension commission approves the payment of money due on an extended payment basis, interest at a rate to be determined by the pension commission, but not exceeding six and one-half (6½) percent per annum, may be charged. No credit under the municipal employees' retirement fund shall be granted, however, for any period of prior service for which the employee is either receiving a retirement benefit or has retained a vested benefit.

(t) *Limitation on credited service.* Notwithstanding any other provision of this section or of this article, any credited service earned, given or purchased by a member may not be used for qualifying that member for retirement benefits before normal retirement age and at least five (5) years of actual city service.

(u) [*Transferees from other departments.*] Any employees who transfer to the uniformed fire service from other city departments shall receive coverage under the provisions of the municipal employees' retirement fund as such provisions relate to other firemen, provided that employees so transferred shall be eligible for normal retirement benefits under their new coverage upon completion of twenty-five (25) years of service with the city, and provided further that such employees must complete at least fifteen (15) years in the fire department and, at the time of transfer, must pay into the municipal employees' retirement fund a sum of money equal to the difference between what the employee has paid into the municipal employees' retirement fund and what he would have paid had his entire municipal service been with the fire department, together with interest thereon as determined by the pension commission.

(v) *Length of service to include prior qualified noncity service.*

(i) For purposes of this subsection, the following terms shall have the meanings ascribed thereto below:

(1) *"Qualified Noncity Service"* shall mean that period of any service provided to a Qualified Noncity Organization as a full time employee (which, in the case of government service, shall also include any service as an elected or appointed official)(A) for which said member is neither receiving a retirement benefit nor has retained a vested benefit, (B) during which he or she did not hold any office or position with the City of Hartford or any other Qualified Noncity Organization for which such member seeks to be or has been given credit hereunder, and (C) for which said member, if his or her Section 3(v) Employment Date is on or after October 1, 1998, neither is, has been, nor will become, eligible to receive any credit pursuant to subsection (s) above, and;

(2) A *"Qualified Noncity Organization"* shall mean the State of Connecticut or any political subdivision thereof and the Hartford Housing Authority;

(3) A member's *"Section 3(v) Employment Date"* shall be that date on which he or she was first employed by the City after accruing the Qualified Noncity Service for which he or she seeks to be given credit pursuant to this subsection;

(4) A member's *"Section 3(v) Earnings"* shall equal the greater of (A) the actual earnings received by such member from the Qualified Noncity Organization from whom, and during the time, he or she provided the service for which he or she seeks to be provided credit hereunder, or (B) such member's Effective Noncity Earnings during such period; and

(5) A member's *"Effective Noncity Earnings"* shall equal such member's actual earnings as a City employee during the first year following his or her Section 3(v) Employment Date (hereinafter, his or her "Post Noncity Earnings"), except when, and then only if, such member is a Returning Member, in which case, such member's Effective Noncity Earnings shall equal the lesser of (A) his or her Post Noncity Earnings, or (B) the average of (i) such member's Post Noncity Earnings, and (ii) his or her earnings during the last year in which he or she served as a City employee before accruing the Qualified Noncity Service at issue;

(6) A *"Returning Member"* shall mean any member who, pursuant to other provisions of this Chapter, has or is to be given credit for at least one (1) year of Prior City Service in the computation of his or her retirement allowance;

(7) A member shall be deemed to have *"Prior City Service"* if he or she was a member of the MERF prior to providing the service to the Qualified Noncity Organization for which he or she may be given credit hereunder;

(8) A *"Qualifying Member"* shall mean any member who is not a member of a bargaining unit and is entitled to receive Nonbargaining Pension Benefits as defined in subsection (b) above.

(ii) Any Qualifying Member whose effective date of retirement occurs on or after October 1, 1998, shall have the option to be credited with up to four (4) years of any of his or her Qualified Noncity Service in the calculation in his or her length of

service for purposes of determining his or her retirement allowance subject to and in accordance with the terms of this subsection. Any member who wishes to exercise this option must provide written notice of his or her desire to do the same by December 31, 1999 or one (1) year of his or her employment as a nonbargaining unit city employee, whichever is later, and shall thereafter pay the municipal employee's retirement fund an amount equal to the contributions required pursuant to this subsection (hereinafter, his or her "Section 3(v) Contribution") in the manner and on the terms specified by the pension commission. The period of such service for which the member receives credit hereunder shall not be used to establish eligibility for any retirement benefits unless such member already has obtained a vested interest in such benefits. Once a member has obtained a vested interest in his or her retirement benefits, the period of such member's Qualified Noncity Service for which he or she is to be given credit hereunder shall be counted for the purpose of both determining such member's eligibility to receive, and computing the amount of, his or her normal retirement allowance.

(iii) Any member who elects to exercise the option to purchase additional pension credit pursuant to this subsection shall make a contribution to the fund therefor equal to the sum of (1) the product of his or her Section 3(v) Earnings times the contribution rate which was in effect for such member as of his or her Section 3(v) Employment Date, and (2) interest on the amount derived pursuant to the foregoing calculation at the rate of seven (7) percent per annum from said Section 3(v) Employment Date to the date the pension commission approves such member's application to purchase any credits hereunder. All such amounts shall be paid to the fund in the manner and on the terms specified by the pension commission, providing, however, that no contributions which are required to be made pursuant to this subparagraph shall be "picked-up" and paid by the City of Hartford pursuant to the provisions of section 3(y) of this Chapter.

(iv) Nothing in this subsection shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this Chapter. In the event that any member's retirement allowance would exceed any such limit if he or she were given credit for any Qualified Noncity Service time purchased thereby, the fund shall refund such member the amount of his or her contributions applicable thereto with interest at the rate of three (3) percent per annum from the date such contributions were fully paid to the date they are refunded by the pension commission.

(w) *Credit for armed forces personnel.* Any member who is not employed by the board of education and not represented by a bargaining unit, who, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, shall be credited with the length of such service including periods before or after said times to the extent that he or she makes contributions to said fund for all or any part of the period of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before January 1, 1985, by members employed on or before January 1, 1984, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of active

aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any member who is a member of the bargaining unit represented by Hartford Federation of School Secretaries, Local 1018-C, HFSS-HFT AFT, AFL-CIO, who, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before January 1, 1987, by members employed on or before January 1, 1986, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any member who is a member of the bargaining unit represented by Hartford Federation of School Health Professionals, Local 1018 A/B who, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before September 1, 1989, by members employed on or before September 1, 1988, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any member who is a member of the bargaining unit represented by Hartford Federation of Corridor Supervisors, Local 1018, Hartford Federation of School Health Professionals, Local 1018 A/B, Hartford Federation of School Secretaries, Local 1018-C, Hartford Federation of Technical Support Personnel, Local 3534, or Local 818, Building and Grounds Supervisors and any non-bargaining unit employees of the board of education, who, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he or she is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such services, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before one (1) year after the date of adoption of this paragraph by members employed on or before such date of adoption, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of

Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any nonbargaining unit employee of the Hartford Board of Education who, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he or she is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before one (1) year after the date of adoption of this paragraph by members employed on or before such date of adoption, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any member who is a member of the bargaining unit represented by Local 3534 of Hartford Federation of Technical Support Personnel, prior to his or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he or she is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such services, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees' retirement fund with interest at the rate of seven (7) percent per annum payable on or before one (1) year after the date of adoption of this paragraph by members employed on or before such date of adoption, and within one (1) year of such employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment.

Any member who is a member of the Hartford Education Support Personnel bargaining unit or the Hartford School Support Supervisors Association, who, prior to this or her date of employment with the City of Hartford served in any branch of the armed forces of the United States, during any part of the times set forth in Section 27-103 of the General Statutes of Connecticut, for which time he or she is neither receiving nor eligible to receive a pension, shall be credited with the length of such service to the extent that he or she makes contributions to said fund for all or any part of the period of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the municipal employees retirement fund with interest at the rate of seven (7) percent per annum payable on or before June 30, 1995, by members employed on or before July 1, 1994, and within one (1) year of the commencement of such employee's employment thereafter. The period of such service for which the member receives credit shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have then completed ten (10) years of continuous service or fifteen (15) years of aggregate service with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment. (Ord. No. 20-94, 6-13-94)

Notwithstanding any provisions of this chapter to the contrary, any nonbargaining unit employee and any bargaining unit employee whose collective bargaining agreement is amended to

incorporate the provisions of this paragraph who, prior to his or her most recent date of employment with the City of Hartford, served in any branch of the armed forces of the United States during any of the periods set forth in Section 27-103 of the General Statutes of Connecticut, for which time he or she neither is receiving nor eligible to receive a pension and who, as of the effective date of this ordinance, (i) is both a member of the fund and an active employee; (ii) is not then receiving, and is not then eligible to receive, any of the benefits provided under this chapter; and (iii) has not theretofore purchased pension service credit for such service from the fund, may purchase such credit for all or any portion of such service, subject to and in accordance with the terms of this paragraph. Any employee eligible to purchase pension service credit pursuant to this paragraph who desires to exercise this option must (1) notify the city treasurer in writing on or before the ninetieth (90 th) day following the effective date of this ordinance of his or her election so to do, and (2) thereafter make such contributions to the fund as are required hereby. Such contributions shall be made on or before the expiration of thirty (30) days following the date the employee is advised in writing as to the amount of any contribution that will be required to be made by him or her hereunder at the same rate as said employee was charged when he or she most recently became a member of the fund with interest at the rate of seven percent (7%) per annum between the date of such employment and the thirtieth (30 th) day following the date the aforementioned advice is provided to such employee. The period of such service for which the member purchases credit shall not be used to satisfy any of the eligibility requirements for any allowance under this chapter, but shall, to the extent that it constitutes qualified service, be counted for the purpose of computing the amount of his or her retirement allowance for which he or she otherwise is eligible, provided such member either shall have completed at least ten (10) years of continuous service, or fifteen (15) years of active aggregate service, with the City of Hartford or shall be retired prior thereto due to disability incurred in the course of his or her employment. Any pension service credit which is purchased pursuant to this paragraph (hereinafter, "purchased service") shall constitute "qualified service" if, and only if, each of the foregoing conditions are satisfied with respect thereto: (A) the length of such purchased service, when combined with other military service for which such employee may previously have purchased credit, does not exceed four (4) years in total; and (B) in the event any portion of an employee's such purchased service is for other than an entire year of service, such employee has additional partial years of service credit which, when combined with other service for which such employee is entitled to be given pension service credit, results in such employee's having another whole year of service. No employee who purchases any pension service credit pursuant to this paragraph shall be entitled to receive an allowance in excess of the lesser of (a) the maximum percentage of final average pay the employee is permitted to receive as a retirement benefit pursuant to the provisions of this chapter or an applicable collective bargaining unit agreement; or (b) the IRC Maximum Benefit. The amount of any contributions which are made pursuant to this paragraph to purchase any pension service credit that ultimately is unable to be included in the computation of member's retirement allowance shall be refunded to the member or his beneficiaries with interest at the rate of three percent (3%) per annum from the date such contributions were fully paid by such member until the date they are so refunded. For purposes of this paragraph, the effective date of this ordinance shall be the date of its adoption, except in the case of a bargaining unit employee, in which event that date shall be the date on which his or her collective bargaining agreement is amended to incorporate the provisions of this paragraph.

(x) Notwithstanding any other provisions of this section to the contrary, whenever any contributions to the fund by any member are required to be made based upon a percentage of the employee's earnings on which social security taxes are paid (hereinafter "social security wages"), or any member's pension benefits are based upon such member's social security wages, and in either event, such member is or was a participant

in any plan offered by the City of Hartford under Section 125 of the Internal Revenue Code or any like provisions of the code whereby the employee's earnings on which social security taxes are paid, are or were reduced by such employee's contributions under such plan (hereinafter, a "pre-tax benefit plan"), such contributions shall be made and such benefits shall be provided in the same amounts and in the same manner as if such member was not a participant in such pre-tax benefit plan; it being the intent hereof that any member's participation in a pre-tax benefit plan shall not have any effect on the timing and amounts of such member's contributions to or benefits from the fund. Without limiting the generality of the foregoing, any member who participates in a pre-tax benefit plan whose contributions to the fund are calculated based upon such member's social security wages shall contribute to the fund in those amounts and in that manner such that (i) such member's social security wages shall be deemed to include any amounts not subject to taxation by reason of such member's participation in such pre-tax benefit plan, and (ii) any increased contributions which otherwise are required to be made by such member in any given year on the balance of such member's earnings on which social security taxes are not paid (hereinafter, "excess wages"), shall commence only when such member has earned that amount when, but for such member's participation in a pre-tax benefit plan, such member otherwise would be required to begin making such increased contributions, but thereafter shall be made in respect of the total of such member's social security wages and his or her excess wages. Additionally, if any member's pension benefits are based upon such member's final average pay and/or social security wages, such pay and wages shall include any amounts not subject to taxation by reason of such member's participation in a pre-tax benefit plan.

(y) *The City of Hartford pickup of mandatory retirement contributions to the municipal employee's retirement fund:*

(1) The City of Hartford hereby establishes a 414(h)(2) pickup plan under Section 414(h)(2) of the Internal Revenue Code of 1986, as amended, (the "Code") subject to and in accordance with the terms set forth in this subsection. The purpose of this plan is to enable certain employees' mandatory contributions to the municipal employees' retirement fund to be made in such a manner that the value of such contributions are neither subject to the payment of federal income taxes until such contributions are distributed to such employees, nor withholding of such taxes when such contributions are made, all as and to the extent permitted by the Code.

(2) Notwithstanding any other provisions of the Charter to the contrary, the City of Hartford shall pick up and pay all contributions which are required to be made to the municipal employees' retirement fund by nonbargaining unit employees, and all contributions which are required to be made to such fund by bargaining unit employees, if the collective bargaining agreement therefor provides for the implementation of a Section 414(h)(2) Plan, (together the "414(h)(2) Plan Participants") in respect of earnings earned by such employees on or after January 10, 1993, or such later date as specified in any collective bargaining agreement. Nothing herein shall relieve any employee from any obligation to make any contributions to the fund, it being the intent and effect hereof instead, that the City of Hartford shall, as of the date specified above, simply pay each 414(h)(2) Plan Participant's contributions to the fund in lieu of such employee paying such contributions.

(3) In consideration of the City of Hartford's picking up such contributions, all employees whose pension contributions are picked up by the City of Hartford shall have their earnings reduced by an amount equal to the contributions so picked up by the City of Hartford. Additionally, 414(h)(2) Plan Participants shall not have the option of electing to receive their pension contributions directly rather than having such amounts paid by the City of Hartford to the fund.

Other than for federal income tax and withholding purposes, however, all employee pension contributions so picked up by the City of Hartford on behalf of any employee shall be considered to be included in such employee's annual gross salary and shall for all purposes of this Charter and the fund be deemed to be included in such employee's earnings and otherwise be treated in the same manner and to the same extent as employee pension contributions made prior to January 10, 1993.

(4) Notwithstanding anything set forth in subsection (a) of this section or any other provision of this Charter to the contrary: (1) on or after January 10, 1993, each and every nonbargaining unit employee of the city who is a member of the unclassified service also shall be a member of the municipal employees' retirement fund, unless (i) he or she elects (or already has elected) not to be a member of such fund prior to said date, or (ii) if he or she becomes a member of the unclassified service after January 10, 1993, he or she elects not to be a member of such fund within thirty (30) days of becoming a member of such service; and (2) any election not to be a member of the municipal employees' retirement fund which is made by, or is effective with respect to, any nonbargaining unit employee who is a member of the unclassified service on or after January 10, 1993 shall be irrevocable, unless (and then, only to the extent) he or she becomes a classified employee, in which case, he or she shall thereby become a member of such fund.

(5) Notwithstanding anything set forth in subsection (a) of this section or any other provision of this Charter to the contrary, all members of any collective bargaining unit (whether classified or unclassified) whose collective bargaining agreement provides for the implementation of a 414(h)(2) Plan, and who otherwise are eligible to participate in the municipal employees' retirement fund, shall be members of such fund.

(6) Notwithstanding anything set forth in subsection (w) of this section or any other provision of this Charter to the contrary, any member of the fund who makes contributions pursuant to the provisions of subsection (w) shall not have such amounts picked up by the City of Hartford pursuant to the provisions of this subsection.

(z) *Early retirement incentive provisions.*

(1) Any nonbargaining unit employee of the city or the Hartford Public Library, with at least twenty-five (25) years of service, who retires from city service and whose last day of work is between May 1, 1992 and September 30, 1992, both dates inclusive, shall be entitled to a normal retirement allowance without reduction because of age. Such an employee may continue on pay status to utilize accrued vacation as well as to obtain longevity pay and any pay increases that may affect the computation of his retirement benefit without affecting his or her eligibility to receive a normal retirement allowance as provided in this paragraph. In those instances where a September 30, 1992 retirement would cause an undue hardship to city operations, the city manager may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond September 30, 1992, and still receive their normal retirement allowance as set forth herein, providing their last day of work for the city occurs on or before December 31, 1992.

(2) Any nonbargaining unit employee of the city or the Hartford Public Library, who is fifty-five (55) years of age with at least (10) years of service but less than twenty-five (25) years of service who retires from city service and whose last day of work is between May 1, 1992 and September 30, 1992, both dates inclusive, shall be entitled

to a normal retirement allowance without reduction because of age. Such an employee may continue on pay status to utilize accrued vacation as well as to obtain longevity pay and any pay increases that may affect the computation of his retirement benefit without affecting his or her eligibility or receive a normal retirement allowance as provided in this paragraph. In those instances where a September 30, 1992 retirement would cause an undue hardship to city operations, the city manager may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond September 30, 1992 and still receive their normal retirement allowance as set forth herein, provided their last day of work for the city occurs on or before December 31, 1992.

(3) Any nonbargaining unit city employee, any nonbargaining unit employee of the Hartford Public Library, any nonbargaining unit sworn police officer or firefighter, and any member of a collective bargaining unit which has agreed to the provisions of this subsection (z)(3) (hereinafter in this subsection "an employee") who either is, or, by operation of subparagraph (a) below, becomes, eligible to take an early or normal retirement between June 15, 1993 and July 31, 1993, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between, June 15, 1993 and July 31, 1993, both dates inclusive, shall be entitled to the following adjustments in both his or her eligibility to qualify for a pension and the calculation of his or her pension benefits if he or she so desires:

(a) Subject to the provisions of subparagraphs (b), (h), (i) and (j) hereof, said employee's eligibility to receive a normal or early retirement as well as the amount of said employee's pension benefit shall be determined as if said employee were five (5) years older and had five (5) more years of city service than actually is the case, providing, however, that if any such employee has at least twenty-five (25) years of service by operation of this subparagraph (a), said employee shall also receive a normal retirement benefit without reduction because of age;

(b) Subject to the provisions of subparagraphs (d), (h), (i) and (j) hereof, the maximum pension benefit which said employee shall be entitled to receive shall be the lesser of (i) eighty (80) percent of his or her final average pay, or (ii) one hundred (100) percent of the product of fifty-two (52) times his or her final regular weekly salary;

(c) Subject to the provisions of subparagraphs (h), (i) and (j) hereof, said employee's final average pay shall be computed by adding any amounts payable to such employee upon his or her retirement on account of unused sick time to such other amounts that would normally be included in the calculation of such employee's final average pay (exclusive of such amounts which otherwise would be normally included in such calculation on account of accrued sick time, if any), with the amounts payable for unused sick time included in such calculation as if such amounts were earned and paid on and as of his or her last day of work;

(d) Subject to the provisions of subparagraphs (h), (i) and (j) hereof, and commencing with the pension payment due in January 1995, and then in each of January 1996, 1997, 1998 and 1999, any pension benefit otherwise payable to said employee or his or her survivors hereunder shall be increased by a factor of three (3) percent per annum over the amount of said benefit which

was or would have been payable hereunder immediately prior to making such adjustment;

(e) Any employee so eligible for the benefit stated in this subsection (z)(3) may continue on pay status after his or her last day of work to utilize accrued vacation time without affecting his or her eligibility to qualify for the benefit provided by this subsection (z)(3);

(f) In those instances where an employee's retirement prior to July 31, 1993 would cause an undue hardship to city operations, the city manager may grant a deferment to such employee which enables such employee to continue to work beyond July 31, 1993 and still be eligible to qualify for the benefits provided under this subsection (z)(3), provided however, that (subject to subparagraph (e) above) any such employee's last day of work occurs on or before December 31, 1993, and providing, further, that the provisions of section 3(a)(ii) of this Chapter in effect as of July 31, 1993 shall continue to control; and

(g) Any employee who chooses to take advantage of the benefits provided under this subsection (z)(3) shall be subject to (i) all of the terms and conditions respecting the same as set forth in this subsection (z)(3), as well as (ii) the provisions set forth in the remainder of this Chapter and any collective bargaining agreements, as applicable, except to the extent any such provisions conflict with this subsection (z)(3).

(h) Notwithstanding anything contained in this Chapter to the contrary, (including, but not limited to subparagraphs (a) through (g) above), no employee shall be entitled to receive a pension benefit in excess of the IRC Maximum Benefit applicable to such employee as of the date such employee first commences receiving benefits under this Chapter (the employee's "Benefit Determination Date") except as provided in subparagraphs (i) and (j) below. The term "IRC Maximum Benefit" shall have the same meaning ascribed thereto in subsection 3(b) of this Chapter.

(i) The IRC Maximum Benefit applicable to any employee shall be increased in the years following his or her Benefit Determination Date to reflect (i) any post-retirement increases which are made to the applicable limitations of Section 415 of the Internal Revenue Code of 1986 as amended from time to time ("Section 415") in such years, and (ii) any applicable adjustments or other changes which may be made to any applicable limitations imposed by Section 415 by virtue of any changes which are made to the provisions of Section 415 or the regulations promulgated thereunder.

(j) Effective January 1, 1995, any employee who has elected to receive the benefits provided under this subsection (z)(3) who, but for the operation of subparagraphs (h) and (i) above, would be entitled, in any year, to receive a benefit from the Municipal Employees Retirement Fund which is different than that actually payable to such employee thereby by reason of said subparagraphs (h) and (i), shall be entitled to receive the difference between the actual benefit such employee otherwise would have been entitled to receive but for the limitations imposed by subparagraphs (h) and (i) above and the benefit such employee actually is entitled to receive by virtue of the operation of said subparagraphs. Notwithstanding any provisions of this Charter to the contrary (including, without

limitation, this subsection (z)(3)), any amounts paid or payable to any employee by reason of this subparagraph (j) shall not be paid or payable from the Municipal Employees Retirement Fund, but, rather, only shall be paid and payable from, and subject to all of the terms and conditions governing, the Section 415(m) Fund and the provision of benefits therefrom pursuant to subsection 3(bb) of this Chapter.

(4) Any nonbargaining unit employee of the Board of Education, and any non-certified employee of the Board of Education who is a member of a collective bargaining unit which has agreed to the provisions of this subsection (z)(4), (hereinafter, in this subsection, "an employee"), who (i) either is, or by operation of subparagraph (a) below, becomes, eligible to take an early or normal retirement between November 10, 1994 and December 30, 1994, both dates inclusive, and (ii) who takes an early or normal retirement with a last day of work between November 10, 1994 and December 30, 1994, both dates inclusive, shall be entitled to the following adjustments in both his or her eligibility to qualify for a pension and the calculation of his or her pension benefits if he or she so desires, subject, in each instance, to the provisions of subparagraph (b) below:

(a) Said employee's eligibility to receive a normal or early retirement as well as the amount of said employee's pension benefit shall be determined as if said employee were five (5) years older and had five (5) more years of city service than actually is the case;

(b) The maximum pension benefit which said employee shall be entitled to receive shall be the lesser of (i) seventy (70) percent of his or her final average pay, (ii) one hundred (100) percent of the product of fifty-two (52) times his or her final regular weekly salary, or (iii) the maximum amount which is permitted by law without jeopardizing the tax favored status of the fund or interests therein;

(c) The normal retirement allowance for each such employee shall amount to 2.5 percent of his or her final average pay for each whole year of service for his or her first twenty (20) years of continuous service, and two (2) percent of such employee's final average pay for each whole year of service thereafter, up to a maximum of seventy (70) percent of his or her final average pay;

(d) Final average pay for each such employee will be computed on the basis of said employee's highest three (3) out of the last five (5) years of his or her gross earnings;

(e) Any such employee who, after making the adjustments required by subparagraph (a) above, is age fifty-five (55) with at least fifteen (15) years of service but less than twenty-five (25) years of service shall be eligible to receive a pension based on the above formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60), which reduced pension shall remain in effect for the duration of the pension;

(f) Any employee who, without regard to subparagraph (a) above, has completed twenty-five (25) years of service as of his or her last day of work, shall be eligible for a normal retirement with no age requirement and shall be entitled to the adjustments provided for in subparagraph (a) above, in both his or her eligibility to qualify for a pension and the calculation of his or her pension benefits if he or she so desires, subject in each instance to the provisions of subparagraph (b), above;

(g) Any employee so eligible for the benefit stated in this section must utilize accrued vacation time prior to his or her last day of work, such date being between November 10, 1994 and December 30, 1994, or be paid for such accrued vacation time upon retirement. Such accrued vacation time may not be utilized in order to continue said employee on pay status after his or her last day of work.

(h) In those instances where an eligible employee's retirement prior to December 31, 1994 would cause an extreme hardship to Board of Education operations, the Superintendent of schools may grant a deferment to such employee which enables such employee to continue to work beyond December 31, 1994 and still be eligible to qualify for the benefits provided under this subsection (z)(4), provided however, that any such employee's last day of work occurs on or before March 31, 1995; and

(i) Any employee laid off effective July 1, 1994 and who would be eligible as of June 30, 1994 for early or normal retirement under the terms and conditions set forth in this ordinance [subsection] shall be deemed eligible to retire under said terms and conditions, with a retirement date of July 1, 1994.

(j) Any employee who chooses to take advantage of the benefits provided under this subsection (z)(4) shall be subject to (i) all of the terms and conditions respecting the same as set forth in this subsection (z)(4), as well as (ii) the provisions set forth in the remainder of this Chapter and any collective bargaining agreements, as applicable, except to the extent any such provisions conflict with this subsection (z)(4).

(5) *Retirement incentives for nonbargaining unit employees of the city and Hartford Public Library and members of the CWA whose last day of work is between April 15, 2003 and May 30, 2003.*

(A) Any nonbargaining unit employee of the city, any nonbargaining unit employee of the Hartford Public Library, and any member of the Communication Workers of America, Local 1298 ("CWA"), provided that CWA has agreed to the provisions of this subsection (5) (hereinafter referred to in this subsection as an "Employee"), who either is, or, by operation of subparagraph (B) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST, March 10, 2003 and 4:30 p.m. EST, April 15, 2003, both dates and times inclusive, notifies the Personnel Department, in writing, on a form provided by the Personnel Department or its equivalent, of his or her intention to retire on or before May 30, 2003, shall be entitled to the adjustments in both his or her eligibility to qualify for a pension and in the calculation of his or her pension benefits as described in this subsection. In those instances where a May 30, 2003 departure date would cause an undue hardship to city operations, the city manager may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond May 30, 2003, and still receive their retirement allowance as set forth herein, providing their last day of work for the city occurs on or before September 26, 2003.

(B) Any such employee who, as of his or last day paid, has at least fifteen

(15) years of service, and whose age plus years of service equals at least fifty-five (55) years, but who, as of his or her last day paid does not have twenty (20) years of service, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving an early retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below, but reduced by one-half of one (0.5) percent for each whole year the employee retires short of what would have been his or her earliest normal retirement date, with proration for any fraction of a year.

(C) Any such employee who, as of his or last day paid, in the absence of this provision, otherwise would have been eligible to retire and immediately commence receiving an unreduced, normal retirement allowance, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving a normal retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below.

(D) Any such employee's normal retirement allowance shall be calculated based upon the same percentage of final average pay for each whole year of the employee's pension service that otherwise would pertain to such employee, in the absence of this provision, plus an additional twenty-five one-hundredths (0.25) percent for each whole year of service, exclusive of any additional pension service purchased from accumulated sick leave pursuant to this chapter and/or employee's collective bargaining agreement, as applicable, (such pension service being that which is commonly known as the type that may be purchased through the "sick exchange" program), the retirement allowance for which shall be calculated as otherwise stated in this chapter and/or the employee's collective bargaining agreement, as applicable), up to a maximum of eighty (80) percent of final average pay.

(E) Any retirement allowance payable to any such employee shall be subject to and paid in accordance with the provisions of section 3(bb) of this chapter entitled "Section 415(m) Fund."

(F) For purposes of this subsection (5), the following terms shall have the meaning ascribed thereto below:

(i) An employee's "vested normal retirement allowance" is the amount of that reduced normal retirement allowance, expressed as an annual allowance, that, in the absence of this subsection (5), the employee otherwise would have been able to receive (assuming he or she still terminated his or her employment as of his or her last day worked), based on the employee's age and service through his or her last day paid;

(ii) The date that otherwise would have been an employee's "earliest normal retirement date" is that date on which the employee otherwise would have been able to first begin receiving his or her vested normal retirement allowance; and

(iii) For purposes of subparagraphs (B) and (C) of this subsection, the term "service" shall mean and include only that type of service upon or for which an employee otherwise could

properly establish eligibility to receive a normal retirement allowance under this chapter and/or the employee's collective bargaining agreement, as applicable, in the absence of this subsection. Thus, for example, if an employee with twenty (20) years of service otherwise would be eligible to retire and begin receiving a normal retirement allowance, only if his or her twenty (20) years of service were continuous, then that employee will not be eligible to retire under subparagraph (B) above unless his or her twenty (20) years of service are continuous; likewise, if an employee has purchased one (1) or more years of pension service credit for time he or she served in the U.S. armed forces pursuant to section 3(w) of this chapter, none of that service may be used to establish the employee's eligibility to retire under either subparagraph (B) or (C) above, even though such service shall continue to be able to be used as otherwise provided in this chapter to calculate the amount of any benefits payable to the employee if he or she otherwise is eligible to, and does, retire pursuant to said subparagraphs.

(6) *Retirement incentives for members of the MLA, HMEA and CHPEA whose last day of work is between April 15, 2003 and May 30, 2003.*

(A) Any member who is a member of the MLA, CHPEA OR HMEA, provided that the member's respective collective bargaining unit has agreed to the provisions of this subsection (6), (hereinafter referred to in this subsection as an "Employee"), who either is, or, by operation of subparagraph (B) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30 a.m., EST, March 10, 2003 and 4:30 p.m., EST, April 15, 2003, both dates and times inclusive, notifies the personnel department, in writing, on a form provided by the personnel department or its equivalent, of his or her intention to retire on or before May 30, 2003, shall be entitled to the adjustments in both his or her eligibility to qualify for a pension and in the calculation of his or her pension benefits as described in this subsection. In those instances where a May 30, 2003 departure date would cause an undue hardship to city operations, the city manager may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond May 30, 2003, and still receive their normal retirement allowance as set forth herein, providing their last day of work for the city occurs on or before September 26, 2003.

(B) Any such employee who, as of his or her last day paid, has at least fifteen (15) years of years of service and whose age plus years of service equals at least fifty-five (55) years, shall be entitled to retire and, effective

as of the day following his or her last day paid, commence receiving an early retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below, but reduced by one-half of one (0.5) percent for each whole year the employee retires short what would have been his or her sixtieth birthday, with proration for any fraction of a year.

(C) Any such employee who, as of his or last day paid, in the absence of this provision, otherwise would have been eligible to retire and immediately commence receiving an unreduced, normal retirement allowance, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving a normal retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below.

(D) Any such employee's normal retirement allowance shall be calculated based upon the same percentage of final average pay for each whole year of the employee's pension service that otherwise would pertain to such employee, in the absence of this provision, plus an additional twenty-five one-hundredths (0.25) percent for each whole year of service, exclusive of any additional pension service purchased from accumulated sick leave pursuant to this chapter and/or employee's collective bargaining agreement, as applicable, (such pension service being that which is commonly known as the type that may be purchased through the "sick exchange" program), the retirement allowance for which shall be calculated as otherwise stated in this chapter and/or the employee's collective bargaining agreement, as applicable), up to a maximum of eighty (80) percent of final average pay.

(E) Any retirement allowance payable to any such employee shall be subject to and paid in accordance with the provisions of section 3(bb) of this chapter entitled "Section 415(m) Fund."

(F) For purposes of this subsection (6), the following terms shall have the meaning ascribed thereto below:

(i) An employee's "vested normal retirement allowance" is the amount of that unreduced normal retirement allowance, expressed as an annual allowance, that, in the absence of this subsection (6), the employee otherwise would have been able to receive (assuming he or she still terminated his or her employment as of his or her last day worked), based on the employee's age and service through his or her last day paid; and

(ii) For purposes of subparagraphs (B) and (C) of this subsection, the term "service" shall mean and include only that type of service upon or for which an Employee

otherwise could properly establish eligibility to receive a normal retirement allowance under this chapter and/or the employee's collective bargaining agreement, as applicable, in the absence of this subsection. Thus, for example, if an employee with twenty (20) years of service otherwise would be eligible to retire and begin receiving a normal retirement allowance, only if his or her twenty (20) years of service were continuous, then that employee will not be eligible to retire under subparagraph (B) above unless his or her twenty (20) years of service are continuous; likewise, if an employee has purchased one (1) or more years of pension service credit for time he or she served in the U.S. armed forces pursuant to section 3(w) of this chapter, none of that service may be used to establish the employee's eligibility to retire under either subparagraph (B) or (C) above, even though such service shall continue to be able to be used as otherwise provided in this chapter to calculate the amount of any benefits payable to the employee if he or she otherwise is eligible to, and does, retire pursuant to said subparagraphs.

(7) *Retirement Incentives for bargaining unit employees of the Hartford Public Library whose last day of work is between April 15, 2003 and May 30, 2003.*

(A) Any employee of the Hartford Public Library who is a member of the Evelyn Ball Professional/ Non-Professional Units, Local 1716, Council 4, American Federation of State, County and Municipal Employees, AFLCIO ("Evelyn Ball"), provided that Evelyn Ball has agreed to the provisions of this subsection (6) (hereinafter referred to in this subsection as an "employee"), who either is, or, by operation of subparagraph (B) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST, March 10, 2003 and 4:30 p.m. EST, April 15, 2003, both dates and times inclusive, notifies the head librarian, in writing, on a form provided by the head librarian or its equivalent, of his or her intention to retire on or before May 30, 2003, shall be entitled to the adjustments in both his or her eligibility to qualify for a pension and in the calculation of his or her pension benefits as described in this subsection. In those instances where a May 30, 2003 departure date would cause an undue hardship to library operations, the head librarian may grant a deferment in such cases to library employees which would enable those employees to continue to work

beyond May 30, 2003, and still receive their retirement allowance as set forth herein, providing their last day of work for the library occurs on or before September 26, 2003.

(B) Any such employee who, as of his or last day paid, has at least fifteen (15) years of service, and whose age plus years of service equals at least fifty-five (55) years, but who, as of his or her last day paid does not have twenty-five (25) years of service, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving an early retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below, but reduced by one-half of one (0.5) percent for each whole year the employee retires short of what would have been his or her earliest normal retirement date, with proration for any fraction of a year.

(C) Any such employee who, as of his or last day paid, in the absence of this provision, otherwise would have been eligible to retire and immediately commence receiving an unreduced, normal retirement allowance, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving a normal retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below.

(D) Any such employee's normal retirement allowance shall be calculated based upon the same percentage of final average pay for each whole year of the employee's pension service that otherwise would pertain to such employee, in the absence of this provision, plus an additional twenty-five one-hundredths (0.25) percent for each whole year of service, up to a maximum of eighty (80) percent of final average pay.

(E) Any retirement allowance payable to any such employee shall be subject to and paid in accordance with the provisions of section 3(bb) of this chapter entitled "Section 415(m) Fund."

(F) For purposes of this subsection (7), the following terms shall have the meaning ascribed thereto below:

(i) An employee's "vested normal retirement allowance" is the amount of that unreduced normal retirement allowance, expressed as an annual allowance, that, in the absence of this subsection (7), the employee otherwise would have been able to receive (assuming he or she still terminated his or her employment as of his or her last day worked), based on the employee's age and service through his or her last day paid;

(ii) The date that otherwise would have been an employee's "earliest normal retirement date" is that date on which the employee otherwise would have been able to first

begin receiving his or her vested normal retirement allowance; and

(iii) For purposes of subparagraphs (B) and (C) of this subsection, the term "service" shall mean and include only that type of service upon or for which an employee otherwise could properly establish eligibility to receive a normal retirement allowance under this chapter and/or the employee's collective bargaining agreement, as applicable, in the absence of this subsection (7). Thus, for example, if an employee with twenty-five (25) years of service otherwise would be eligible to retire and begin receiving a normal retirement allowance, only if his or her twenty-five (25) years of service were continuous, then that employee will not be eligible to retire under subparagraph (B) above unless his or her twenty-five (25) years of service are continuous; likewise, if an employee has purchased one (1) or more years of pension service credit for time he or she served in the U.S. armed forces pursuant to section 3(w) of this chapter, none of that service may be used to establish the employee's eligibility to retire under either subparagraph (B) or (C) above, even though such service shall continue to be able to be used as otherwise provided in this chapter to calculate the amount of any benefits payable to the employee if he or she otherwise is eligible to, and does, retire pursuant to said subparagraphs.

(8) *Retirement incentives for nonbargaining unit employees of the Hartford Board of Education, and members of HFSPO, HSSSA, HFSHP, HESP, HFSS, Local 818 and HFP, whose last day of work is between May 15, 2003 and June 30, 2003.*

(A) Any nonbargaining unit employee of the Hartford Board of Education (the "HBOE"), and any other employee of the HBOE who is a member of the HFSPO, HSSSA, HFSHP, HESP, HFSS, Local 818 or HFP collective bargaining units, provided that the member's bargaining unit has agreed to the provisions of this subsection (8), (hereinafter referred to in this subsection as an "employee") who either is, or, by operation of subparagraph (B) below, becomes, eligible to take an early or normal retirement between May 15, 2003 and June 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between May 15, 2003 and June 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST, April 14, 2003 and 4:30 p.m. EST, May 30, 2003, both dates and times inclusive, notifies the human resources department of the HBOE, in writing, on a form provided by such department or its equivalent, of his or her inten-

tion to retire on or before June 30, 2003, shall be entitled to the adjustments in both his or her eligibility to qualify for a pension and in the calculation of his or her pension benefits as described in this subsection. In those instances where a June 30, 2003 departure date would cause an undue hardship to HBOE operations, the superintendent may grant a deferment in such cases to employees which would enable those employees to continue to work beyond June 30, 2003, and still receive their retirement allowance as set forth herein, providing their last day of work for the HBOE occurs on or before September 26, 2003.

(B) Any such employee who, as of his or her last day paid, has at least fifteen (15) years of years of service and whose age plus years of service equals at least fifty-five (55) years, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving an early retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below, but reduced by one-half of one (0.5) percent for each whole year the employee retires short what would have been his or her earliest normal retirement date, with proration for any fraction of a year.

(C) Any such employee who, as of his or last day paid, in the absence of this provision, otherwise would have been eligible to retire and immediately commence receiving an unreduced, normal retirement allowance, shall be entitled to retire and, effective as of the day following his or her last day paid, commence receiving a normal retirement allowance, which allowance shall be equal to his or her vested normal retirement allowance, adjusted pursuant to subparagraph (D) below.

(D) Any such employee's normal retirement allowance shall be calculated based upon the same percentage of final average pay for each whole year of the employee's pension service that otherwise would pertain to such employee, in the absence of this provision, plus an additional twenty-five one-hundredths (0.25) percent for each whole year of service, up to a maximum of eighty (80) percent of final average pay.

(E) Any retirement allowance payable to any such employee shall be subject to and paid in accordance with the provisions of section 3(bb) of this chapter entitled "Section 415(m) Fund."

(F) For purposes of this subsection (8), the following terms shall have the meaning ascribed thereto below:

(i) An employee's "vested normal retirement allowance" is the amount of that unreduced normal retirement allowance, expressed as an annual allowance, that, in the absence of this subsection (8), the employee otherwise would have been able to receive (assuming he or she still terminated his or her

employment as of his or her last day worked), based on the employee's age and service through his or her last day paid; and

(ii) For purposes of subparagraphs (B) and (C) of this subsection, the term "service" shall mean and include only that type of service upon or for which an employee otherwise could properly establish eligibility to receive a normal retirement allowance under this chapter and/or the employee's collective bargaining agreement, as applicable, in the absence of this subsection. Thus, for example, if an employee with twenty-five (25) years of service otherwise would be eligible to retire and begin receiving a normal retirement allowance only if his or her twenty-five (25) years of service were continuous, then that employee will not be eligible to retire under subparagraph (B) above unless his or her twenty-five (25) years of service are continuous; likewise, if an employee has purchased one (1) or more years of pension service credit for time he or she served in the U.S. armed forces pursuant to section 3(w) of this chapter, none of that service may be used to establish the employee's eligibility to retire under either subparagraph (B) or (C) above, even though such service shall continue to be able to be used as otherwise provided in this chapter to calculate the amount of any benefits payable to the employee if he or she otherwise is eligible to, and does, retire pursuant to said subparagraphs.

(aa) *Adjustments to certain Board of Education Employees Pension Benefits*

(1) Notwithstanding any other provisions in this Chapter to the contrary, the normal retirement allowance of all Qualified Board of Education Employees herein defined shall be adjusted in accordance with the provisions of this subsection. Such adjustment shall be made by multiplying the normal retirement allowance otherwise due such member by the factor set forth below adjacent to his or her Applicable Retirement Period.

Employee Unit	*Applicable Retirement Period (July 1—June 30)*	*Adjustment Factor*
Local 2221,	1992—1993	1.0106
Hartford	1993—1994	1.0330
Federation of	1994—1995	1.0560
Paraprofessionals	1995—1996	1.0681

Any Qualified Board of Education Employee who does not or cannot take a normal retirement allowance by retiring with a last day of work within an Applicable Retirement Period shall not be entitled to receive any adjustment to his or her normal retirement allowance hereunder.

(2) For purposed of this subsection, a "Qualified Board of Education Employee" shall mean any member who, (i) at any time during fiscal years 1992-1993 and/or 1993-1994 was a member of the bargaining unit listed in subparagraph (1) above, and (ii) is otherwise eligible to receive a normal retirement allowance within, and

in fact retires from city service with a last day of work which falls within, an Applicable Retirement Period.

(3) For purposes of this subsection, a member's "Applicable Retirement Period" shall be any of the fiscal years designated in subparagraph (1) above in respect of the employee unit in or to which such member last belonged during Fiscal Years 1992-1993 or 1993-1994. (Ord. No. 22-94, 6-27-94)

(bb) *Section 415(m) Fund.*

(1) The provisions of this subsection (bb) shall apply to all nonbargaining unit city employees as well as all bargaining unit employees for whom the provisions of this subsection (bb) have been adopted by their collective bargaining agreement.

(2) Except as provided in this subsection (bb), no employee shall be entitled to receive a pension benefit in excess of the IRC Maximum Benefit applicable to such employee as of the date such employee first commences receiving benefits under this Chapter (the employee's "Benefit Determination Date"). The term "IRC Maximum Benefit" shall have the same meaning ascribed thereto in subsection 3(b) of this Chapter.

(3) The IRC Maximum Benefit applicable to any employee shall be increased in the years following his or her Benefit Determination Date to reflect (i) any post-retirement increases which are made to the applicable limitations of Section 415 of the Internal Revenue Code of 1986 as amended from time to time ("Section 415") in such years, and (ii) any applicable adjustments or other changes which may be made to any applicable limitations imposed by Section 415 by virtue of any changes which are made to the provisions of Section 415 or the regulations promulgated thereunder.

(4) Effective January 1, 1995, any employee who, but for the operation of the limitations imposed on the level or amount of pension benefits which may be paid by a qualified plan pursuant to Section 415 as implemented by subsection 3(b) above and this section 3(bb) (together, the "Section 415 Limitations"), would be entitled, in any year, to receive a benefit from the Municipal Employees Retirement Fund which is different than that which actually is payable to such employee by reason of said Section 415 Limitations, shall be entitled to receive the difference between the actual benefit such employee otherwise would have been entitled to receive but for the Section 415 Limitations and the benefit such employee actually is entitled to receive by virtue of the operation of said limitations. A separate retirement fund is hereby established for the purpose of providing the benefits payable pursuant to this subparagraph (4) pursuant to Section 415(m) of the Internal Revenue Code of 1986, as amended, which fund shall be known as the Section 415(m) Fund and shall be administered by the Pension Commission subject to and in accordance with the provisions of section 5 of this Chapter. Notwithstanding any provision of this Charter to the contrary (including, without limitation, this subsection (bb)), any amounts paid or payable to any employee by reason of this subparagraph (4) shall not be paid or payable from the Municipal Employees Retirement Fund, but, rather, only shall be paid and payable from the Section 415(m) Fund. All benefits payable from the Section 415(m) Fund shall be subject to all of the terms and conditions that would apply thereto if they were paid from the Municipal Employees Retirement Fund; providing, however, that, in lieu of the provisions of subsection 3(k) of this Chapter, the City only shall be required to make such contributions to the Section 415(m) Fund in any year as may be determined from time to time by the Pension Commission to be necessary to provide the benefits payable therefrom in said year. No benefits shall be paid from the Section 415(m) Fund except as provided in this subparagraph (bb).

(cc) *Pension benefits of all members represented by Local #760, International Association of Fire Fighters.*

(1) *Applicability.* Notwithstanding anything to the contrary set forth in any provision of Section 3 of this Chapter, any provision of the Municipal Code, or any collective bargaining agreement which is in existence on the effective date of this ordinance, any member of the municipal employees retirement fund who is represented by Local #760, International Association of Fire Fighters, who is in the active service of the city on or after the effective date of this ordinance, and who did not commence receiving a normal, disability, special disability or early retirement allowance prior to the effective date of this ordinance (hereinafter a "Current 760 Member") shall be entitled to receive, and only shall be paid, the pension and other retirement allowances provided below:

(2) *Membership.* All members of Local #760, International Association of Fire Fighters who entered the service of the city after April 30, 1947 are members of the municipal employees' retirement fund.

(3) *City Contributions.* The city shall pay annually into the fund such proportion of the pay of all members employed by the city as may be determined from time to time by the pension commission on sound actuarial principles to be necessary in addition to the contributions by members to provide future pension allowances based on service rendered by members. The pension commission shall make a complete actuarial study of the experience of the municipal employees' retirement fund at intervals of no more than five (5) years and shall thereupon readjust the contributions to be made by the city.

(4) *Employee Contributions.* Any employee who is a Current 760 Member shall contribute to the fund eight percent (8%) of his or her total earnings, with said contributions being deducted at each pay period and credited to the member's account in the fund.

(5) *Vesting.* All pension benefits under the provisions of the municipal employees' retirement fund shall vest in each Current 760 Member after the completion of ten (10) whole years of continuous service, provided said member leaves his or her contributions in the fund. Vested members hired before July 1, 1984 shall receive a retirement allowance calculated in the same manner as a normal retirement allowance commencing on the date the member would normally have completed twenty (20) years of continuous service. Vested members hired on or after July 1, 1984 shall receive a retirement allowance calculated in the same manner as a normal retirement allowance commencing on the date such member would have completed twenty (20) years of continuous service or reached age forty-five (45), whichever is later. Any vested member shall receive at the time of separation from city service a statement by the appropriate city official indicating the date on which he or she shall first be entitled to receive a retirement allowance and the amount of said allowance.

(6) *Final Average Pay.* Final average pay for all Current 760 Members shall be calculated on the basis of the employee's weekly rate of pay immediately preceding the start of retirement multiplied by fifty-two (52), plus the "total amount of holiday pay" for an employee who regularly performs fire fighting duties and receives the additional twelve (12) hours pay for each holiday for the fifty-two (52) week period immediately preceding the start of retirement. "Weekly rate of pay" means the employee's normal total gross weekly pay including college incentive pay and the five percent (5%) "additional compensation", if applicable. "Weekly rate of pay" does not include private job (PJ) earnings, overtime earnings, standby pay or the five percent (5%)

additional compensation provided to Deputy Chiefs assigned as shift commander. Said "weekly rate of pay" shall be used in calculating final average pay even when an employee is on a reduced or non-pay status. The "total amount of holiday pay" means the employee's normal total gross holiday pay. Said "total amount of holiday pay" shall be used in calculating final average pay even when an employee is on a reduced or non-pay status. In the event an employee experiences a reduction in rank, "weekly rate of pay" is based upon the final rate of pay, immediately preceding the start of retirement at his or her highest growth step of the highest rank held by the employee within two (2) years prior to retirement.

(7) *Normal Retirement.*

(a) *Eligibility.* Any Current 760 Member who was hired before July 1, 1984 shall be eligible to retire and to receive a normal retirement allowance upon completion of twenty (20) years of continuous service. Any such member who was hired on or after July 1, 1984 shall be eligible to retire and to receive a normal retirement allowance upon completion of at least twenty (20) years of continuous service or upon attainment of the age of forty-five (45), whichever is later.

(b) *Allowance.* The normal retirement allowance for a Current 760 Member who was hired before July 1, 1984, shall amount to two and one half percent (2.5%) of final average pay for each whole year of service for the first twenty (20) years of continuous service and two percent (2%) of final average pay for each whole year thereafter. The normal retirement allowance for a Current 760 Member hired on or after July 1, 1984 shall amount to two and one half percent (2.5%) of final average pay for each whole year of service for the first twenty (20) years of continuous service and two percent (2%) of final average pay for each whole year of service thereafter to a maximum of seventy percent (70%) of final average pay.

(8) *Early Retirement*

(a) *Eligibility.* Any Current 760 Member shall be eligible for early retirement and to receive an early retirement allowance upon completion of ten (10) years of continuous service by or at any time after his or her fiftieth (50 th) birthday.

(b) *Allowance.* Any Current 760 Member and who chooses to take early retirement may, in lieu of the refund of such member's contributions, elect to have his or her early retirement allowance calculated in accordance with one of the below options:

(1) To receive an immediate early retirement allowance which shall be determined by the pension commission and which shall be actuarially equivalent to the retirement allowance which the member would have received if the member had left his or her contributions in the fund until the date the member would have first become eligible for a normal retirement allowance; or

(2) To receive an immediate early retirement allowance equal to the amount of retirement allowance the member would have received if the member had left his or her contributions in the fund until the date the member would have first become eligible for a normal retirement allowance reduced by two percent (2%) for each whole year by which the date of the member's termination of service falls short of the date on which the member would

have first become eligible for a normal retirement allowance, with proration for any fraction of a year.

(c) *Alternate Early Retirement Allowance.* Any Current 760 Member hired on or after July 1, 1984, who has completed twenty (20) years of continuous service but who has not reached age forty-five (45) shall be eligible for early retirement and to receive an immediate early retirement allowance which shall amount to two percent (2%) of such member's final average pay for each whole year of service.

(9) *Retirement for Disability.*

(a) *Service Connected Permanent and Total Disability.* Any Current 760 Member shall be eligible for retirement and to receive a disability retirement allowance, irrespective of length of service, if he or she becomes permanently and totally disabled from engaging in any gainful employment provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of employment as defined in the Worker's Compensation Act. The amount of such service connected permanent and total disability allowance shall be determined as one hundred percent (100%) of the member's final average pay as defined in this subsection, less any amount or amounts received under the Worker's Compensation Act.

(b) *Non-Service Connected Permanent and Total Disability.* Any Current 760 Member shall be eligible for retirement and to receive a disability retirement allowance if he or she becomes permanently and totally disabled from engaging in any gainful employment provided the member has completed five (5) years of continuous service. The amount of said non-service connected permanent and total disability allowance shall be computed in the same manner as a normal retirement allowance and shall amount to two and one half percent (2.5%) of final average pay for each whole year of service for the first twenty (20) years of continuous service, and two percent (2%) for each whole year of continuous service thereafter, except that a minimum allowance equal to twenty five percent (25%) of final average pay is provided.

(c) *Service Connected Special Disability.* Any Current 760 Member shall be eligible to receive, irrespective of length of service, a special disability retirement allowance if the member suffers a permanent disability which prevents the member from performing the full duties of his or her class but does not prevent the member from engaging in other gainful employment provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of employment as defined in the Worker's Compensation Act. The amount of said service connected special disability allowance shall be determined as fifty percent (50%) of the member's final average pay, plus two percent (2%) for each year of continuous service in excess of twenty (20) years of continuous service, if any.

If a Current 760 Member has completed less than fifteen (15) years of continuous service at the time the disability arises, the initial special disability allowance shall be reduced by any income from gainful employment which, together with the special disability allowance, exceeds one hundred percent (100%) of the current rate of pay for an employee of the same or correspond-

ing job classification held by the employee at the time of retirement. For purposes of this subsection, any amount or amounts received under the Worker's Compensation Act shall not constitute income from gainful employment.

(d) *Non-Service Connected Special Disability.* Any Current 760 Member shall be eligible to receive a special disability retirement allowance if the member suffers a permanent disability which prevents the member from performing the full duties of his or her class but does not prevent the member from engaging in other gainful employment provided that the member has completed ten (10) years of continuous service at the time the disability arises. The amount of said non-service connected special disability allowance shall be computed in the same manner as a normal retirement allowance and shall amount to two and one half percent (2.5%) of final average pay for each whole year of service for the first twenty (20) years of continuous service, and two percent (2%) for each whole year of continuous service thereafter, except that a minimum allowance equal to twenty five percent (25%) of final average pay is provided.

If a Current 760 Member has completed less than fifteen (15) years of continuous service at the time the disability arises his or her non-service connected special disability allowance is determined each year by reducing his initial allowance by the same specified percentage of the excess, if any, of the member's earnings from gainful employment over the amount of income which a Social Security beneficiary is entitled to earn without causing a reduction in his Social Security benefits.

(e) *Applications.* Applications for allowances payable to disabled members shall be filed within one year after the incurring of the disability, which shall be the date the member is notified that it has been medically determined that the member has suffered a disability which will prevent him or her from performing the full duties of his or her class.

(f) *Disability Statements.* Every member retired on account of disability under any provision of this subsection shall, by March 31 st , of each year, file with the pension commission a sworn statement of all earnings received by the member from employment of any kind during the year ending on the 31 st of December preceding the filing of such statement, or, if no such earnings have been received, a sworn statement to that effect. If any member shall fail to make the report required herein, the payment of his or her disability retirement allowance shall be suspended until such report has been filed.

(10) *Survivorship Benefits.* Survivorship benefits are payable to the member's surviving spouse and qualified dependent children. For purposes of this subsection, the term "surviving spouse" shall mean the spouse of a member who shall have been married to and living with the member at the time of the member's death, if the member dies while in active service, or who shall have been married to the member prior to retirement and who shall have been married to and living with the member at the time of the member's death, if the member dies after retirement. For purposes of this subsection, the term "qualified dependent children" shall mean any unmarried children under the age of eighteen (18), or over the age of eighteen (18) if physically or mentally incapacitated from engaging in gainful employment.

(a) *Service Connected Cause of Death.* If a Current 760 Member dies before

retirement from a cause arising out of and in the course of employment, as defined in the Worker's Compensation Act, the member's surviving spouse shall receive a survivor's allowance equal to fifty percent (50%) of the member's final average pay at the time of death, payable monthly until the surviving spouse's death or remarriage. If said member leaves qualified dependent children, each such child shall receive a survivor's allowance equal to ten percent (10%) of the member's final average pay, payable monthly until the child reaches age eighteen, marries or dies, whichever comes first. If the member leaves no surviving spouse, then each such surviving qualified dependent child shall receive fifteen percent (15%) of the member's final average pay, payable monthly until the child reaches age eighteen, marries or dies, whichever comes first. The total annual survivor's allowances payable under this subsection to a surviving spouse and children shall not exceed seventy five percent (75%) of the member's final average pay. In addition, the total annual survivor's allowances payable under this subsection, plus Worker's Compensation payments, if any, shall not exceed one hundred percent (100%) of the member's final average pay at the time of death. If a member dies after the member retires with a service connected disability allowance, the above survivor's benefits are payable to the member's survivors so long as they qualify for weekly Worker's Compensation benefits, the amounts of such allowances being based on the member's final average pay at the time of his retirement. Any allowances paid under this subsection shall be in lieu of the refund of the member's contributions, except that, if the total allowances paid under this subsection, should be less than the refund of contributions which would otherwise have been paid, than [then] the excess of said refund over said allowances shall be paid in accordance with the provisions of this subsection governing the refund of contributions.

(b) *Non-Service Connected Cause of Death.* If a Current 760 Member dies before retirement from a cause other than one arising out of and in the course of employment, as defined in the Worker's Compensation Act, the member's surviving spouse shall receive a survivor's allowance equal to twenty five percent (25%) of the member's earnings during his last twelve (12) months of employment at full salary, payable monthly until the surviving spouse's death or remarriage. If said member leaves qualified dependent children, the first such child shall receive, until age eighteen (18), marriage or death, whichever comes first, a monthly survivor's allowance of One Hundred Dollars ($100.00). In addition, each additional qualified dependent child shall receive, until age eighteen (18), marriage or death, whichever comes first, a monthly survivor's allowance of Fifty Dollars ($50.00). Any survivor's allowance or allowances provided to qualified dependent children shall be payable to the surviving spouse if the children are in his or her care, or otherwise to the guardian of the children. The total annual survivor's allowances payable to the surviving spouse and qualified dependent children shall not exceed one hundred percent (100%) of the member's final average pay at the time of his death or retirement.

(11) *Refund of Member Contributions.* Any Current 760 Member leaving the employment of the city before becoming eligible

for retirement may withdraw, on request to the pension commission, the total of all contributions to the fund made by him or her without interest. If the member is not vested, such request for a refund of contributions must be made within ten (10) years of separation from city service, or the member's contributions shall revert to the fund. In the case of the death of a member, the member's contributions, less any retirement allowances paid to the member, and less any survivors allowances paid to a surviving spouse and/or qualified dependent children, shall be paid from the fund on the order of the pension commission to the beneficiary or beneficiaries, if any, named by such member. If no named beneficiaries survive the member or his or her eligible survivors, than [then] the refund shall be made to the executors or administrators of such member or his or her spouse, as the case may be, except that, if the amount is less than one thousand dollars (1,000.00), the refund may be made, at the option of the pension commission, in accordance with the terms of Section 45-266 of the General Statutes or any amendment thereto. A member can designate his or her contributions beneficiary by completing a form which may be obtained and filed in the City Treasurer's office.

(12) *Continuity of Service.* For purposes of determining the eligibility of Current 760 Members to receive retirement allowances, periods of absence of not more than ninety (90) days in any one (1) calendar year shall not be considered as breaking continuity of service. Periods of absence of more than ninety (90) days by reason of a leave of absence granted by the council, or where the absence is occasioned by disability involving the regular attendance of a physician, shall not be considered as breaking continuity of service. Any period of absence shall not be included in determining the amount of any retirement allowance provided herein. After any period of absence which is considered to break continuity of service, a returning member must complete ten (10) years of continuous service before becoming otherwise eligible for any retirement allowance. A member returning from such a period of absence who has previously withdrawn his or her contributions from the fund, may repurchase his or her prior service credits by repaying said contributions plus interest.

(13) *Assignments prohibited.* Any assignment by a member, beneficiary or spouse of any allowance or benefit payable under the terms of this subsection shall be void. Each such allowance and benefit shall be for the support of the member, beneficiary or spouse entitled thereto and shall be exempt from the claims of creditors of such member, beneficiary or spouse, provided, if the provisions of this subsection are contrary to the laws governing a particular set of circumstances, as to that set of circumstances, any allowance or benefit payable hereunder shall be exempt to the maximum extent permitted by law.

(14) *Service Credit.* "The pension includes credit for all service, including any period of military or related service during World War II, for which the member has paid the required contribution to MERF Fund. It also includes credit for his period of service in the Armed/Forces or during the Korean Conflict, from June 27, 1950 to October, 1953, provided he was employed by the city at the time of entry into such service."

(15) *Military Service Credit.* Any Current 760 Member who served in the active service of any branch of the armed forces of the United States during any part of the times set forth in Section 27-103 of the General Statutes may purchase credit for up to four (4) years of that military service. Such credit shall be purchased at the rate payable at the time of the member's entry into city service, with interest at the rate of seven percent (7%) per annum. The period of such service for which the member receives credit

shall be counted for the purpose of computing the amount of his or her retirement allowance, provided such member shall have completed ten (10) years of continuous service or fifteen (15) years of active aggregate service with the City of Hartford, or shall be retired prior thereto due to disability incurred in the course of his or her employment. This provision shall not be used to establish eligibility for retirement allowances but shall be used as additional service credits for members who are qualified or become qualified for normal or disability retirement allowances. Each additional year of credited service purchased pursuant to this subsection shall be equal to two and one half percent (2.5%) of final average pay. Employees hired on or after July 1, 1984 shall not be permitted by the terms of this subsection to exceed the seventy percent (70%) maximum of their final average pay.

Employees hired on or before April 27, 1992, must complete the purchase of military service credits before April 27, 1993, provided, however, that employees who complete the purchase after April 27, 1993 may do so with a two percent (2%) per year penalty. All other employees must complete the purchase of military service credits within one (1) year of completion of the employee's probationary period, provided, however, that employees who complete the purchase of military service credits after one (1) year may do so with a two percent (2%) per year penalty. If Section 27-103 of the General Statutes is amended to include additional conflicts, employees may purchase said additional military time within one (1) year from the effective date of the amendment, provided, however, that employees who complete the purchase after one (1) year may do so with a two percent (2%) per year penalty. Any purchases period of military service credit which is less than a year, may be added to city service in order to make a complete year.

(16) *Sick Leave Exchange.* A Current 760 Member may, upon retirement, and prior to any sick pay formula reduction, exchange a portion of his or her accumulated sick leave for up to four (4) years of additional pension service credit for the purpose of computing the amount of the member's retirement allowance. Such additional service credits shall not be used for establishing eligibility for retirement benefits, but shall be used as additional service credit for employees who are qualified or become qualified for normal or disability retirement benefits. Additional service credit may be purchased from accumulated sick leave at the rate of twenty (20) days of accumulated sick leave for each year of pension service credit, and such credit must be purchased in whole years only. Each additional year of service credit acquired pursuant to this subsection shall amount to two and one half percent (2.5%) of final average pay. Employees hired on or after July 1, 1984 shall not be permitted by the terms of this subsection to exceed the seventy percent (70%) maximum of their final average pay.

(17) *Transfers from other departments.* Any employee who transfers to the Fire Department from other city departments and who becomes represented by Local #760, International Association of Fire Fighters, shall receive coverage under the provisions of the municipal employees' retirement fund as such provisions relate to other Current 760 Members, provided that employees so transferred shall be eligible for normal retirement allowances under their new coverage upon completion of twenty (20) years of service with the city and provided further that such employees must complete at least ten (10) years of service in the Fire Department and, at the time of transfer, must pay into the fund a sum of money equal to the difference between what the employee has paid into the fund and what the employee would have paid into the fund had his entire service been with

the Fire Department, together with interest thereon as determined by the pension commission.

(18) *Transfers from the municipal employees' retirement fund.* Any Current 760 Member leaving the employment of the City of Hartford or other covered employment may transfer, if he is eligible for such transfer to the employees' retirement system of the federal government of the United States, or the retirement system of a state or any political subdivision thereof within the United States, which is being operated on an actuarial basis with contributions made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on their account. Such transfer may not become effective, however, unless an appropriate agreement of reciprocity is executed. Upon approval of the pension commission, the actuarial reserve for the member's annuity benefit, as determined by the pension commission shall be transferred to the retirement system under which the employee will be covered in his new position.

(19) *Transfers to the municipal employees' retirement fund.* Any person who has not attained his sixtieth birthday and who is a member of the employees' retirement system of the federal government of the United States or the retirement system of a state or any political subdivision thereof within the United States which is being operated on an actuarial basis with contributions being made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on their account may, upon approval of the pension commission, transfer his membership to the municipal employees' retirement fund upon accepting employment with the City of Hartford; provided, however, such transfer may not become effective unless an appropriate agreement of reciprocity is executed. In order to transfer credit for such prior service, the member shall pay or cause to be paid into the municipal employees' retirement fund the amount of money required, as determined by the pension commission to purchase in full such credited service. In no event shall there be any city contributions made toward the purchase of such service. Whenever such employee enters the municipal employees' retirement fund, he must elect within thirty (30) days of entrance into said fund to purchase credit for such prior service. If the pension commission approves the payment of money due on an extended payment basis, interest at a rate to be determined by the pension commission, but not exceeding six and one-half percent (6.5%) per annum, may be charged. No credit under the municipal employees' retirement fund shall be granted, however, for any period of prior service for which the employee is either receiving a retirement benefit or has retained a vested benefit.

(20) *Effect of repeal.* In case of the repeal of this subsection [(cc)], the liability of the city to members of the municipal employees' retirement fund shall be limited to the amount of their respective contributions thereto, provided all retirement allowances vested by retirement shall be paid in full in accordance with the provisions of this section.

(21) *Limitation on credited service.* Notwithstanding any other provision of this subsection [(cc)] or of this article, any credited service earned, given or purchased by a Current 760 Member may not be used for qualifying that member for retirement benefits before normal retirement age and at least five (5) years of actual city service.

(22) *Disputes.* Any dispute pertaining to benefits or allowances provided in this subsection shall not be subject to the grievance procedure.

(dd) *Amendments required to conform to Section 401(a) of the Internal Revenue Code of 1986, as amended (the "Code") and related provisions.* The provisions of this subparagraph (dd) shall control, notwithstanding any provision of this chapter to the contrary:

(i) As required under Section 401(a)(1) and (2) of the Code, no part of the corpus or income of the fund may be used for, or diverted to, purposes other than for the exclusive benefit of its members and their beneficiaries prior to the satisfaction of all liabilities of the fund thereto; it being the intent of this chapter that all contributions which have been and hereafter may be made to the fund shall be made for the purpose of distributing the corpus and income of the fund to such members and their beneficiaries in accordance with the terms governing the payment of benefits from the same. For purposes of this subparagraph (dd), the terms "beneficiary" and "beneficiaries" shall mean and include (a) qualified surviving spouses, (b) any alternate payees under any domestic relations orders which are determined by the commission to constitute qualified domestic relations orders in accordance with regulations adopted by the commission with respect to such matters, and (c) such other persons as lawfully constitute beneficiaries pursuant to Section 3(j) of this chapter or other proper authority.

(ii) As required by Section 401(a)(9) of the Code, effective July 1, 1997, any member who is eligible to receive any benefit payments from the fund shall commence receiving the same no later than his or her Required Beginning Date; likewise, any member who is not eligible to receive any benefit payments from the fund or who, although eligible, prefers to withdraw his or her contributions to the fund in lieu of receiving any benefits, shall commence receiving the same no later than on his or her Required Beginning Date. For purposes of this subparagraph (dd)(1), a member's "Required Beginning Date" shall mean the April 1 following the calendar year in which the member attains age 70 ½ or April 1 following the calendar year in which the member retires, whichever is later.

(iii) Notwithstanding anything to the contrary which is set forth in this chapter, no member shall be entitled to receive a pension benefit in excess of the maximum amount which is permitted under the Code in order for both the fund, and its members' interests therein, to retain the tax favored treatment provided by the Code thereto (herein, the "IRC Maximum Benefit"). Without limiting the generality of the foregoing:

(a) as required by Section 401(a)(16) of the Code (and except as otherwise provided in that section in respect of ancillary benefits and/or rollover contributions, if any, as apply to any member), no member shall be entitled to receive any benefit from the fund if, when expressed as an 'annual benefit' as provided in Code Section 415(b)(2), such annual benefit is greater than the Maximum Allowable Annual Benefit, as herein defined, as the same may be adjusted by the Secretary of the Treasury from time to time pursuant to Section 401(a)(16) of the Code; and

(b) as required by Section 401(a)(17) of the Code, the total amount of compensation paid to any employee in any year which may be taken into account in the calculation of any benefit which may be due to any member or any of his or her beneficiaries shall not exceed the Maximum Allowable Annual Compensation, as herein defined, as the same may be adjusted by the Secretary of the Treasury from time to time pursuant to Section 401(a)(17)(B) of the Code.

For purposes of this subparagraph (dd)(3[iii]), the term "Maximum Allowable Annual Benefit" shall

mean the maximum annual benefit which may be paid to a member from a qualified trust pursuant to Sections 401(a)(16) and 415(b)(2) of the Code, while the term "Maximum Allowable Annual Compensation" shall mean the maximum annual compensation which may be taken into account in the context of calculating any benefit due to any member of a qualified trust pursuant to Section 401(a)(17) of the Code. As provided in the Code, effective with the plan year commencing July 1, 2002, the Maximum Allowable Annual Benefit payable to any member during any plan year is $160,000, while the Maximum Allowable Annual Compensation which may be included in the calculation of any member's benefit is $200,000.

(iv) Actuarial assumptions. As required by Section 401(a)(25) of the Code, whenever any benefit otherwise payable under this chapter is required to be determined on the basis of actuarial equivalency, the analysis used in establishing that benefit shall be based upon assumed mortality rates as set forth in the "UP-94 Mortality Table Projected by Scale AA to 2011" with compounded interest at the rate of eight percent (8%) per annum.

(v) Effective January 1, 1993, except to the extent that any contributions (and interest on those contributions, if any) are required to be paid to a member or a beneficiary pursuant to Subparagraph (dd)(ii) above in conformance with Code Section 401(a)(9), any member or beneficiary who elects to be paid any member's contributions (and interest on those contributions, if any) in lieu of receiving any benefits from the fund may elect to have such contributions (and interest on those contributions, if any) paid directly to another qualified retirement plan, subject to and in accordance with the terms of this subparagraph (dd)(v). Any such distribution shall be effected on behalf of a member or a beneficiary if he or she specifies the qualified retirement plan to which such distribution is to be made in writing (in such form and within such time period as may be prescribed by the commission). Any contributions (and interest on those contributions, if any) with respect to which any member or beneficiary makes the election provided by this subparagraph (dd)(v) shall be distributed thereto in the form of a direct trustee-to-trustee transfer to the qualified retirement plan so specified. For the purposes of these direct rollover provisions, a qualified retirement plan shall mean (A) a qualified defined benefit or defined contribution plan, an individual retirement account, effective January 1, 2002, an annuity contract described in section 403(b) of the Code and an eligible plan under section 457(b) of the Code which is maintained by a state, political subdivision of a state (or any agency or instrumentality of a state or political subdivision of a state), which (B) effective January 1, 2002, in any case, agrees to separately account for amounts transferred into such plan from this plan, as contemplated by Code Section 401(a)(31)(C).

(vi) As contemplated by Section 457(e)(17) of the of the Code, effective July 1, 2002, any member who is a participant in the city's Deferred Compensation Plan maintained under Section 457 of the Code (the "City's 457 Plan") may transfer all or any portion of the amounts held in his or her account in such plan to the fund in order to pay for any pension service credit which said member otherwise is eligible to, and has elected to, purchase with the fund to the extent the Code and the provisions governing the City's 457 Plan permit such a transfer to be made from that plan for that purpose; it being the intent of this provision that the fund shall accept such transfers for such purposes as permitted under Code Sections 401(a)(31)(E) and 457(e)(17). Any

transfer of moneys from the City's 457 Plan which is received by the fund for said purpose shall be separately accounted for by the commission based on the extent to which such sums otherwise would or would not be includable in the member's gross income if they were distributed from the City's 457 Plan directly to the member.

(vii) The provisions set forth in subsections (v) and (vi) above are intended to reflect certain provisions of the Economic Growth and Tax Relief Reconciliation Act of 2001 ("EGTRRA"). These provisions are intended as good faith compliance with the requirements of EGTRRA and are to be construed in accordance with EGTRRA and any guidance issued thereunder. These provisions shall supersede any other provisions governing the fund to the extent those other provisions are inconsistent with the terms set forth in subsections (v) and (vi) above.

(ee) *Pension rights upon reemployment by the city after periods of service in the uniformed services.*

(i) For purposes of this subparagraph (ee), the following terms shall have the meaning ascribed thereto below:

(1) "Service in the uniformed services" has the same meaning ascribed to that phrase in the Uniformed Services Employment and Reemployment Rights Act of 1994, as amended ("USERRA"), 38 U.S.C. Section 4301 et seq., and means the performance of duty on a voluntary or involuntary basis in a uniformed service under competent authority and includes (without expansion or imitation) active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, and a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty.

(2) The term "uniformed services" has the same meaning ascribed to that phrase in USERRA and includes (without expansion or imitation) service in: any branch of the Armed Forces of the United States; the Army National Guard and the Air National Guard; the commissioned corps of the Public Health Service; and any other category of service designated as uniformed service by the President of the United States in the time of war or national emergency.

(3) "Qualified USERRA Service" consists of any service in the uniformed services by any member for or by reason of which the city is required under USERRA to permit said member to provide pension service credit or other rights with the fund upon his or her reemployment with the city. In no event shall Qualified USERRA Service include Disqualified USERRA Service.

(4) "Disqualified USERRA Service" means any service in the uniformed services from or for which a member (A) left on other than honorable conditions (including, but not limited to, under or with a dishonorable or bad conduct discharge), or (B) was dismissed or dropped from the rolls pursuant to 10 U.S.C. Sections 1161 (a) or (b).

(5) A member's "Effective USERRA Earnings" shall be (A) the total earnings (including, but not limited to, overtime pay, private duty pay, holiday pay, sick leave and vacation pay, and shift differential pay) the member would have received but for his or her being absent during the period of his or her Qualified USERRA Service, or (B) in the event that the pension commission cannot

determine that amount with reasonable certainty, the product of (i) such member's USERRA Effective Weekly Rate of Pay, times (ii) the number of weeks and parts thereof during which said member was absent performing Qualified USERRA Service.

(6) A member's "USERRA Effective Weekly Rate of Pay" shall equal the quotient of (A) the member's total earnings during his or her USERRA Measuring Period, divided by (B) the number of weeks and parts thereof in the member's USERRA Measuring Period.

(7) A member's "USERRA Measuring Period" shall mean that period of time, expressed in weeks, but not exceeding fifty-two (52) weeks in length, during which the member was employed by the city immediately prior to his or her USERRA Commencement Date.

(8) A member's "USERRA Commencement Date" is that day following his or her last day of employment with the city before he or she began his or her Qualified USERRA Service.

(9) "USERRA Reemployment Date" means that date on which a member is first reemployed by the city pursuant to or otherwise in accordance with USERRA after having performed any Qualified USERRA Service.

(ii) Effective December 12, 1994, any member who leaves the service of the city in order to serve in any of the uniformed services shall have the opportunity to purchase pension service credit with the fund for his or her Qualified USERRA Service upon reemployment by the city pursuant to, or otherwise in accordance with, USERRA. A member's eligibility to obtain pension service credit and/or any other rights under this subparagraph (ee) shall be established by such documentary and/or other evidence as is reasonably required for that purpose by the pension commission consistent with the requirements of 38 U.S.C. Section 4312(f).

(iii) Upon approval by the commission, any member seeking to obtain pension service credit with the fund for his or her Qualified USERRA Service shall pay the fund such amounts as are equivalent to those which the member would have contributed in the form of employee contributions during the period of his or her Qualified USERRA Service had the member, during that period of time, been employed by the City and paid his or her Effective USERRA Earnings as herein defined.

(iv) Any contributions required to be made by any member pursuant to this subparagraph (ee) may be paid in a lump sum, or, a the option of the member, in various increments, prior to the expiration of the Prescribed Time Period. For purposes of this provision, the "Prescribed Time Period" in which any contributions must be paid shall equal the lesser of (A) three (3) times the period of the member's Qualified USERRA Service, or (B) five (5) years, commencing, in either case, with the member's USERRA Reemployment Date. No contributions which are required to be made by any member pursuant to this subparagraph (ee) will be "picked up" and paid by the city of Hartford pursuant to the provisions of Section 3(y) of this Chapter.

(v) The period of any Qualified USERRA Service for which pension service credit is purchased by any member pursuant to this subparagraph (ee) shall be combined with those periods of the member's continuous service occurring immediately before and after the member's Qualified USERRA Service, and, as combined, deemed to constitute one (1) period of continuous city service for all purposes under this chapter. Additionally, and regardless of whether any member has purchased pension service credit under this subparagraph (ee), any period of

absence during which any member has provided Qualified USERRA Service (A) shall not cause any member to suffer any "break" in his or her continuity of service, and (B) shall be included in the computation of the member's continuous city service for the purpose of establishing any vested (i.e. nonforfeitable) rights to any benefits, as well as his or her eligibility to receive any benefits, which the member otherwise has accrued (or thereafter accrues) under this chapter. Except as otherwise provided in the preceding sentence, no member shall receive pension service credit or other rights under or in connection with the fund for any period of his or her Qualified USERRA Service (and no period of such service shall therefore be included in the computation of any member's city service) unless, and then only if and to the extent, he or she purchases pension service credit therefor in accordance with this subparagraph (ee). Without limiting the generality of the foregoing, no member shall be entitled to purchase or otherwise be given pension service credit for any period before or after his or her Qualified USERRA Service during which he or she has, but fails to exercise or delays in exercising, his or her reemployment rights under USERRA.

(vi) The provisions of this subparagraph are intended to implement, and only implement, the requirements of USERRA. Accordingly, no right or benefit not otherwise required to be provided to any member with regard to his or her rights and/or benefits in or with respect to the fund shall be deemed to be conferred hereby. Likewise, in the event any provision of this subparagraph (ee) conflicts with or is otherwise in contravention of the requirements of USERRA, the provisions of USERRA shall control. The rights and benefits conferred by this subparagraph (ee) shall be in addition to any other rights or benefits any member has or may obtain to purchase pension service credit for the period of any military service under any other provision governing the accrual or payment of benefits of or from the fund, providing, however, that no member shall be entitled to obtain pension service credit (expressed in terms of partial or whole years of service) under any of said provisions for any period of military or other service to the extent he or she has purchased and been awarded pension service credit for such service under this subparagraph (ee).

(vii) Nothing in this subparagraph (ee) shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter. In the event that any such member's retirement allowance would exceed any such limit if he or she was given credit for any Qualified USERRA Service purchased thereby, the fund shall refund such member the amount of his or her contributions applicable to thereto with interest at the rate of three (3) percent per annum from the date such contributions were fully paid until they are refunded by the pension commission.

(ff) *Mandatory sick exchange for members of certain collective bargaining units.* The provisions of this subsection shall apply to any member of CHPEA, HMEA, MLA or the Communication Workers of America, Local 1298, who, in absence of this provision, upon retirement and prior to any sick pay formula reduction, otherwise would have been eligible to use a portion of his or her accumulated sick leave to purchase up to four (4) years of additional pension service for the purpose of computing the amount of his or her retirement allowance, and whose collective bargaining agreement has been amended to incorporate the provisions of this subsection (ff).

(i) If any such member has at least twenty (20) days of accumulated, but unused, sick leave upon his or her retirement and the retirement allowance that otherwise

would be payable to such member in the absence of this subsection would be less than the maximum percentage of the member's final average pay that is permitted to be paid to such member in the form of a normal retirement allowance as provided in the member's collective bargaining agreement (hereinafter, for purposes of this subsection, a "qualifying retiree"), then the amount of pension service used in the calculation of such person's retirement allowance, and the number of days of accumulated, but unused, sick leave for which such person otherwise would be entitled to be paid upon retirement, shall be adjusted in accordance with the terms of this subsection. Such adjustments shall be effected by increasing the amount of the qualifying retiree's pension service by one (1) whole year of service for each twenty (20) days of accumulated, but unused, sick leave that were credited to such person's account prior to the calculation of any amounts that otherwise would have been or will be paid to such person pursuant to the sick pay reduction formula applicable to that person, up to a maximum of four (4) whole years of pension service credit or the maximum percentage of final average pay permitted by the retiree's collective bargaining agreement, whichever results first. Likewise, the amount of accumulated sick leave for which the retiree otherwise is entitled to be paid a lump sum upon retirement shall be concomitantly reduced by twenty (20) days for each additional year of pension service that is credited to such retiree as aforesaid. Fractional years of pension service shall not be awarded pursuant to this provision.

(ii) The percentage of any qualifying retiree's final average pay attributable to any additional pension service credited to such retiree pursuant to this subsection shall be the same percentage of final average pay that otherwise would be used to determine such retiree's normal retirement allowance pursuant to the terms of his or her collective bargaining agreement in effect as of March 24, 2003 and in the absence of sections 3(z)(5) and (6) of this chapter. Additionally, any qualifying retiree's retirement allowance that is adjusted pursuant to this subsection shall be subject to and paid in accordance with the provisions of Section 3(bb) of this chapter entitled "Section 415(m) Fund."

(iii) The provisions of this subsection shall control notwithstanding, and shall be in lieu of, any other provisions contained in any qualifying retiree's collective bargaining agreement to the extent those other provisions would allow such retiree to elect to (or would pertain to any election made by any such retiree to) exchange any sick leave (and/or payments that otherwise would be made on account of accrued, but unused, sick leave) for additional pension service credit. Nothing herein shall, however, affect the provisions of such agreements that pertain to the payment of a percentage of a member's accrued, but unused, sick leave to the extent that any such sick leave is not required to be, and, in fact, is not, exchanged for additional pension service credit pursuant to this subsection.

(iv) The provisions of this subsection shall be effective retroactive to January 1, 2003, provided the collective bargaining units referenced in this subsection agree in writing to this section.

(Sp. Laws 1947, Act No. 30, Ch. XVI, § 3; Sp. Laws 1957, Act No. 347, § 1; Ord. of 12-8-58; Ord. No. 28-67, 11-7-67; Ord. No. 24-68, 6-24-68; Ord. No. 25-68, 6-24-68; Ord. No. 26-68, 6-24-68; Ord. No. 27-68, 6-24-68; Ord. No. 28-68, 6-24-68; Ord. No. 46-68, 9-23-68; Ord. No. 47-68, 9-23-68; Ord. No. 48-68, 9-23-68; Ord. No. 16-69, 6-2-69; Ord. No. 20-70, 6-22-70; Ord. No. 21-70, 6-22-70; Ord. No. 24-71, 6-28-71; Ord. No. 29-71, 8-18-71; Ord. No. 14-72, 5-8-72; Ord. No. 20-73, 11-13-73; Ord. No. 19-74, 4-22-74; Ord. No. 21-74, 7-8-74; Ord. No. 28-79, 11-13-79; Ord. No. 15-80, 8-12-80; Ord. No. 1-82, 1-4-82; Ord. No. 2-82, 1-4-82; Ord. No. 3-82, 1-4-82; Ord. No. 4-82, 1-4-82;

Ord. No. 22-83, 6-27-83; Ord. No. 23-83, 9-12-83; Ord. No. 24-83, 9-12-83; Ord. No. 3-84, 2-14-84; Ord. No. 28-84, 7-9-84; Ord. No. 35-84, 10-22-84; Ord. No. 37-85, 11-25-85; Ord. No. 35-86, 10-14-86; Ord. No. 36-86, §§ 1, 2, 10-27-86; Ord. No. 37-86, 10-27-86; Ord. No. 27-88, 6-13-88; Ord. No. 62-88, 9-27-88; Ord. No. 75-88, 12-12-88; Ord. No. 76-88, 12-12-88; Ord. No. 77-88, 12-12-88; Ord. No. 78-88, 12-12-88; Ord. No. 5-89, 2-27-89; Ord. No. 6-89, 2-27-89; Ord. No. 7-89, 2-27-89; Ord. No. 8-89, 2-27-89; Ord. No. 16-89, 4-10-89; Ord. No. 17-89, 4-10-89; Ord. No. 18-89, 4-10-89; Ord. No. 105-89, 10-23-89; Ord. No. 106-89, 10-23-89; Ord. No. 111-89, 12-28-89; Ord. No. 112-89, 12-28-89; Ord. No. 113-89, 12-28-89; Ord. No. 114-89, 12-28-89; Ord. No. 115-89, 12-28-89; Ord. No. 68-90, 10-9-90; Ord. No. 42-91, 7-8-91; Ord. No. 2-92, 1-13-92; Ord. No. 3-92, 11-13-92; Ord. No. 31-92, 6-22-92; Ord. No. 36-92, 7-21-92; Ord. No. 38-92, 9-14-92; Ord. No. 1-93, 1-4-93; Ord. No. 3-93, 1-25-93; Ord. No. 14-93, 6-14-93; Ord. No. 15-93, 6-14-93; Ord. No. 17-93, 6-14-93; Ord. No. 23-93, 7-12-93; Ord. No. 25-93, 7-12-93; Ord. No. 26-93, 7-12-93; Ord. No. 34-93, 8-9-93; Ord. No. 33-94, 9-26-94; Ord. No. 5-95, 5-22-95; Ord. No. 6-95, 5-22-95; Ord. No. 1-97, 1-13-97; Ord. No. 6-97, 3-24-97; Ord. No. 7-97, 3-24-97; Ord. No. 22-97, 11-24-97; Ord. No. 50-98, 10-6-98; Ord. No. 51-98, 10-6-98; Ord. No. 52-98, 10-6-98; Ord. No. 62-98, 12-14-98; Ord. No. 4-99, 1-25-99; Ord. No. 10-00, 4-24-00; Ord. No. 22-02, 6-10-02; Ord. No. 23-02, 6-10-02; Ord. No. 24-02, 6-24-02; Ord. No. 10-03, 4-28-03; Ord. No. 14-03, 5-12-03; Ord. No. 15-03, 5-12-03; Ord. No. 16-03, 5-12-03; Ord. No. 17-03, 5-12-03; Ord. No. 18-03, 5-12-03; Ord. No. 20-03, 5-27-03; Ord. No. 36-03, 6-23-03; Ord. No. 05-04, 2-9-04; Ord. No. 06-04, 2-9-04; Amend. of 11-8-22(1))

Sec. 20.4. Statement of earnings by employees retired on account of disability.

Every employee of the city retired on account of disability under any provisions of this chapter shall, by March 31st of each year, file with the pension commission a sworn statement of all earnings received by him or her from employment of any kind during the year ending on the thirty-first of December preceding the filing of such statement, or, if no such earnings have been received, a sworn statement to that effect. If any employee shall fail to make the report required above, the payment of his retirement allowance shall be suspended until such report has been filed.
(Sp. Laws 1947, Act No. 30, § 4; Ord. No. 28-67, 11-7-67; Ord. No. 6-93, 2-22-93; Amend. of 11-8-22(1))

Sec. 20.5. Administration.

(a) For purposes of this section, the following terms shall have the meaning ascribed thereto below:

(i) "Savings accounts" shall mean any of such deposits in or accounts with (including, without limitation, certificates of deposit issued by) any banking institutions as referenced in C.G.S. Sections 45a-203 (a)(2) and (3).

(ii) "Equity investments" shall mean and include any and all securities, real property and other investments (including, without limitation, common stocks, and shares of (or units in) any closed or open-end investment companies or trusts) except the following: (A) cash and cash-equivalent securities, (B) savings accounts, (C) any corporate or government bonds, (D) mortgages, or (E) other fixed-income instruments or securities;

(iii) A "qualified custodian" shall be any state bank, trust company, state bank and trust company or national banking association located in the states of Connecticut or New York or in the commonwealths of Massachusetts or Pennsylvania which is a member of the Federal System and whose capital, surplus and undivided profits in the aggregate are not less than fifty million dollars;

(iv) "Administrative expenses" shall mean and include (A) the salaries of all personnel hired by the pension commission, (B) that portion of the salaries, benefits and other compensation of those other city officials and employees who provide services to the funds to the extent their

duties are fairly allocable to performing such work as determined by the pension commission, and (C) the cost and expense of all goods and services (other than investment expenses) which are procured on the funds' behalf; and

(v) "Investment expenses" shall mean and include (A) the cost and expense of any and all custodial arrangements and investment advisory, consultant and management services, and (B) any and all costs and expenses such as brokerage fees and commissions which are typically added to, or subtracted from, the purchase price, or proceeds realized from the disposition, of any investment.

(b) In addition to its other responsibilities hereunder, the pension commission shall administer any and all of the city's other retirement and savings plans and benefits, which, together with the funds, shall be known as the city's retirement system. It shall appoint a plan administrator of, and, with the approval of the corporation counsel, a general counsel for, the system. It also shall appoint a chief investment officer and, subject in all cases to the provisions of subparagraphs (e) and (j) below, may appoint and remove such other employees as it deems necessary or desirable to carry out its responsibilities hereunder. At the pension commission's election, the general counsel may serve either as an employee or, pursuant to subparagraph (h) below, an independent contractor, and, if and so long as he or she serves as an employee, also as the plan administrator. Except as otherwise provided in this section, the pension commission shall have the sole authority for determining the titles, qualifications, duties, compensation and terms of office or employment of each official or employee which is appointed by it. All such personnel who are employed by the pension commission shall, however, be members of the Fund and entitled to the same retirement and insurance benefits as nonbargaining unit employees of the city in the unclassified service, and, at the discretion of the pension commission, other benefits similar to nonbargaining unit employees of the city in the unclassified service; providing that all the employer contributions required to fund or otherwise purchase or pay for such benefits, as well as the salaries and any other compensation payable to such personnel, shall be paid from the income of the funds. The pension commission shall be the sole authority capable of removing any employee which it has appointed from office. The pension commission shall only exercise such authority after (i) an employee has been served with written notice of the pension commission's intent to consider removing him or her therefrom, containing a clear statement of the grounds for such removal and of the time and place, not less than ten (10) days after the service of such notice, at which he or she will be given the opportunity to be heard thereon, and (ii) such hearing is then concluded. After such hearing, which shall be public at the option of such employee, the action of the pension commission shall be final. The pension commission may suspend any such employee from duty for not more than thirty (30) days pending such final action at any time after the aforesaid notice has been served thereon. The pension commission shall select, appoint, retain and discharge any employees within its jurisdiction only in accordance with the standard of care set forth in subparagraph (e) below.

(c) The plan administrator shall be the head of the retirement system and, in that capacity, shall have responsibility for implementing the administration of the provision of benefits from the funds, including, without limitation, the calculation and payment thereof, and shall perform such other duties relative to the funds as may be prescribed by the pension commission. Such duties may include, without limitation, providing such assistance to the city treasurer in the performance of any of his or her duties under this section as is required by the pension commission. No changes shall be made in the nature or level of any pension benefits provided to any members of the funds, or to the qualifications for membership, unless the plan administrator is first given an opportunity to comment on the impact any proposed changes would have on the interpretation, administration or other matters affecting he provision of benefits from the funds, any of which comments shall be provided in writing within ten (10) days of the city manager's

written request therefor or such additional period of time as is reasonably required in the circumstances. The general counsel shall represent the pension commission and the system in all legal proceedings affecting the same and provide such advice and counsel to the pension commission, plan administrator and city treasurer in connection with the system as the pension commission directs, providing, however, that no claims which are made or actions which are brought by or against, or which otherwise affect, the system, or any one or more of its plans or funds, or any person or body acting on their behalf shall be compromised without the approval of each of the pension commission, corporation counsel and the city council.

(d) The city treasurer shall have the care and custody of all of the assets in all of the pension funds and, with the approval of the pension commission and subject to the other provisions of this section, shall have power to invest and reinvest the same in securities, real property and other investments permissible by law for the investment of trust funds pursuant to the Connecticut Uniform Prudent Investor Act, Public Act 97-140; providing, however, that no more than sixty percent (60%) of the assets of any fund shall be invested in equity investments, at any one time. For purposes of making the foregoing calculations only, assets shall be taken at book value (carrying value) rather than market value, and assets held by insurance companies on behalf of any fund, including actuarial reserves for annuity contracts, shall be included within the fixed dollar portion of the account. Any investment which was made prior to April 27, 1998, and any investment which complies with the provisions of this section in effect at the time it is made, may be retained even though its purchase otherwise would be prohibited hereunder unless the standard of care set forth in subparagraph (e) below requires its sale or other disposition.

(e) The city treasurer, plan administrator and the pension commission shall be fiduciaries of the system and, in that capacity, shall fulfill their duties hereunder with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in like capacity and familiar with such matters would then use in the conduct of an enterprise of like character and purpose. Without limiting the generality of the foregoing, the city treasurer, plan administrator and the pension commission shall discharge their duties:

(i) Solely in the interests of, and for the purpose of providing benefits to, participants and beneficiaries of the applicable fund or plan consistent with the other provisions of this chapter and applicable law;

(ii) Impartially, taking into consideration any differing interests of various participants and beneficiaries within each fund and plan;

(iii) By diversifying the investments of the assets of the funds so as to minimize the risk of large losses unless under the circumstances it is clearly prudent not to do so;

(iv) Except to the extent they may be paid by the city as contemplated by subparagraphs (g) and (i) below, incurring and paying all reasonable and appropriate expenses of administering the funds and plans; and

(v) In accordance with a good faith interpretation of the terms of this chapter and other applicable law.

(f) Circumstances which shall be considered by the city treasurer, pension commission and any other fiduciaries when investing and managing any funds' assets also shall include, but not be limited to the following, to the extent relevant thereto:

(i) General economic conditions;

(ii) The possible effect of inflation or deflation;

(iii) The expected tax consequences, if any, of investment decisions, strategies and distributions;

(iv) The role that each investment or course of action plays within a fund's overall portfolio, which, except as otherwise provided in this section, may include

financial assets, interests in closely held enterprises, tangible and intangible personal property and real property;

(v) The expected total return from income and the appreciation of capital;

(vi) Related trusts and other income and resources of the participants and beneficiaries;

(vii) Needs for liquidity, regularity of income and preservation or appreciation of capital;

(viii) An asset's special relationship or special value, if any, to the purposes of the fund;

(ix) The size and actuarial funding status of the fund; and

(x) The nature and estimated duration of the fund.

The fiscal integrity and economic well being of the city being of primary significance in its ability to ultimately fulfill its obligations to financially support the funds, the city treasurer and the pension commission, also may, when possible and consistent with their other fiduciary duties imposed hereunder and applicable law, consider whether the investment of any assets of, or expenditure of any income from, any fund will enhance or promote the general welfare of the city and its residents.

(g) The city treasurer, with the approval of the pension commission, may provide by contract with any qualified custodian for the care and custody of any or all securities and other assets of the pension funds by such custodian, or for investment advice with respect to such funds, or for both such care and custody and investment advice. Any securities held by the city treasurer or any qualified custodian also may, in turn, be deposited in a clearing corporation subject to and in accordance with the provisions of Section 45a-208 of the Connecticut General Statutes. Subject to approval by the pension commission, each of the city treasurer and plan administrator also may procure such other goods and services (including, but not limited to, the services of investment counsel, investment advisors, investment managers, actuaries, and pension benefit administrators) as may be reasonably required by them in connection with the efficient and effective administration of, or investment of any of the assets in, the funds. Subject to approval by the pension commission and the corporation counsel, the general counsel also may procure additional legal and other services as may be reasonably required in connection with his or her representation of the funds.

(h) The selection of and award of contracts to any persons or entities which are to provide any goods or services to any plan or fund shall be governed by the standard of care set forth in subparagraph (e) above, but shall not be subject to the provisions of Chapter VIII, Sections 8-11 or Chapter XVI of this Charter. The charges for all goods and services which are procured pursuant to subparagraph (g) above, together with any and all other administrative expenses, shall be paid from the income of the funds, except to the extent that any appropriations have been made therefor.

(i) Any person or entity (including, but not limited to, any qualified custodian) which is contracted to invest, or direct or manage the investment of, any assets of the funds shall be, and shall specifically acknowledge in writing that such advisor is, (i) a fiduciary of the assets of the fund(s) for which such advisor has agreed to provide such services, (ii) registered as an investment company or investment adviser in good standing under the Investment Company and Advisers Acts of 1940, as amended, unless exempt from such registration, (iii) subject to the same limitations and standards governing the investment and reinvestment of such assets as apply to the city treasurer and the pension commission under or by reason of this section (unless, and then only to the extent, with respect to the standard set forth in subparagraph (e)(iii) above, the city treasurer, with the pension commission's approval, agrees that such is not the case), and (iv) in compliance, and that such advisor will comply, with all applicable laws and regulations governing the investment of the assets of the funds. Any duty or responsibility which is imposed or otherwise pertains to the investment of the assets of any fund hereunder shall apply, without limitation, to the selection, acquisition, retention and disposition of each

security or other investment vehicle which is, or is to be, held by such fund; provided, however that any investment decisions respecting individual assets shall be evaluated not in isolation, but in the context of the entire portfolio of the fund of which they constitute a part and as a portion of an overall investment strategy for such fund which is consistent with the requirements of this section; and, provided, further, that the city treasurer and the pension commission shall not be liable for any specific investments which are made by any investment advisor, custodian or other fiduciary so long as said person or entity is selected, appointed and retained (and the performance of such person or entity is therefore reviewed), and any assets of the fund for which the same is delegated investment responsibility are allocated, in accordance with the standards and limitations otherwise set forth in this section. Except as otherwise provided by the city treasurer or the pension commission, the limitations placed on the percentage of any fund's assets which may be invested in equity investments as set forth in subparagraph (d) above shall be calculated on the basis of all of the assets in a fund as opposed to any portions thereof for which the city treasurer retains, or any investment managers or custodians may be delegated, investment responsibility hereunder.

(j) On or before the thirtieth day prior to the date set by the city manager for submitting budget requests in any year, the city treasurer, after consultation with the plan administrator, shall provide the pension commission with the city treasurer's recommended budget for all of the administrative expenses to be incurred in connection with the administration of the funds in the ensuing fiscal year. Each such budget shall identify (i) the amounts anticipated to be required to be paid for all administrative expenses in the ensuing year, (ii) the nature and source of all such expenses, (iii) the source of revenue (including, without limitation, soft dollars) which are anticipated to be used to pay such expenses, and (iv) the extent to which any of the foregoing differs from both the current and prior year's budgeted and actual expenses. At the time set by the manager for making budget requests, the pension commission shall submit estimates of the sums necessary to be appropriated for the ensuing fiscal year for the purpose of meeting the obligations of the city under the provisions of this chapter, and an estimate of the appropriation necessary to meet the expenses of the commission in the performance of its duties during such year. The pension commission shall have sole authority to establish its budget each year, providing, however, that none of its expenses shall be paid from the city's general fund except within the amounts appropriated by the council therefor. Additionally, except as clearly may be required to fulfill the city treasurer's, plan administrator's and/or pension commission's duties pursuant to the standard of care set forth in subparagraph (e) above, the cumulative amount of any administrative expenses which are to be paid from the income of the funds in any fiscal year shall not exceed the total of such expenses reflected in the city treasurer's recommended budget for, or one percent (1%) of the carrying value of the funds as of the first day of, said year, whichever is less.

(k) The pension commission shall adopt a statement of investment policies and objectives for each fund which includes, without limitation, the following: (i) the desired rate of return for the fund as a whole; (ii) the desired rate of return and acceptable levels of risk for each asset class within the fund; (ii) the asset allocation goals for the fund; (iv) the guidelines which will apply to the selection and retention of custodians and investment managers for the fund; and (v) information on the types of reports which will be used to evaluate investment performance for the fund. The pension commission shall review such statement, and either change it or reaffirm or, at least once each year.

(l) The city treasurer, with the approval of the pension commission, may provide part or all of the pensions to which retired employees of any class, as determined by the rules of the commission, are entitled by contracting with one (1) or more life insurance companies authorized to do business in the State of Connecticut for the payment of annuities to such employees, and the purchase of an annuity for any employee shall

satisfy the pension obligations of the city to such employee to the extent of the annuity payments made under such contract.

(m) The pension commission shall have the power to make rules and regulations for the purpose of carrying out the provisions of this chapter.
(Sp. Laws 1947, Act No. 30, Ch. XVI, § 5; Sp. Laws 1957, Act No. 641; Sp. Laws 1959, Act No. 496; Sp. Laws 1965, Act No. 234; Ord. No. 28-67, 11-7-67; Ord. No. 14-69, 5-12-69; Ord. No. 6-98, 4-27-98; Ord. No. 10-99, 4-26-99; Ord. No. 11-99, 4-26-99; Ord. No. 12-99, 4-26-99; Amend. of 11-8-22(1))

RETIREMENT SYSTEM FOR CITY EMPLOYEES*

Sec. 21. Charter 1941, section 233, as amended.

(a) There shall be in the City of Hartford a retirement system for city employees except those employees who are included under the provisions of sections two hundred thirty-four and two hundred thirty-five of the Charter of the City of Hartford. The management of the retirement system shall be vested in a commission, to be known as the pension commission, which shall consist of three (3) electors of the city, none of whom shall be an employee thereof or shall hold any other appointive or elective office in the city government. The terms of the members now serving on said commission are continued until the expiration of the terms for which they were appointed, and their successors shall be appointed in accordance with the provisions of sections forty-three and forty-nine of the Charter of the City of Hartford. Not more than two (2) members of said commission shall be of the same political party. The treasurer of the city shall be, ex officio, secretary of said commission but shall have no vote.

(b) Any city employee shall be eligible for retirement from active service subject to the following conditions as to term of service and age, and shall receive, in lieu of any other compensation, an annual retirement allowance, payable monthly, for the term of his life, as hereinafter provided: (1) After fifteen (15) years of aggregate service preceding retirement, if so employed on May 5, 1927, or after twenty (20) years of aggregate service preceding retirement, if employed after May 5, 1927, and reaching the age of sixty-five (65) years if a man, or sixty (60) years if a woman, or (2) after ten (10) years of such service, if so employed on September 1, 1933, or after fifteen (15) years of such service, if employed after September 1, 1933, and becoming permanently disabled from continuing to render the service in which he has been employed, or (3) having reached the age of sixty (60) years if a man, or fifty-five (55) years if a woman, after twenty-five (25) years of such service, at a retirement allowance equal to fifty (50) percent of his average salary for the five (5) years next preceding his retirement; provided the retirement allowance of a person who is retired after becoming so disabled or after reaching the age of sixty (60) years if a man or fifty-five (55) years if a woman, and who has had more than twenty-five (25) years of aggregate service preceding retirement, shall be equal to two (2) percent of his average salary for the last five (5) years of his service multiplied by the number of whole years of such service. Employees of the Hartford board of education, having reached the age of fifty-five (55) years if a man with thirty (30) years of such service, or fifty-five (55) years if a woman, after twenty-five (25) years of such service, at a retirement allowance equal to fifty (50) percent of his average salary for the five (5) years next preceding his retirement; provided the retirement allowance of a person who is retired after becoming so disabled or after reaching the age of fifty-five (55) years, and who has had more than twenty-five (25) years of aggregate service preceding retirement, shall be equal to two (2) percent of his average salary for the last five (5) years of his service multiplied by the number of whole years of such service.

Any person permanently disabled from continuing to render the service in which he has been

*__Editor's note—__An amendment adopted Nov. 8, 2022(1) enacted provisions designated as §§ 11—20, however, said provisions have been renumbered as §§ 21—30, at the direction of the city, in order to maintain sequential accuracy.

employed as a result of any injury received while in the performance of his duty as an employee of the city shall be retired at a retirement allowance equal to fifty (50) percent of his salary at the time of such retirement, regardless of his term of service unless such term shall entitle him to a greater percentage.

Any city employee who is not otherwise eligible to receive a retirement allowance under the provisions of this section and who, after reaching the age of fifty (50) years and after fifteen (15) years of continuous service, shall be obliged to retire involuntarily from service, except for malfeasance or misfeasance in office, shall receive a retirement allowance equal to two and one-half (2½) percent of his average salary for the last five (5) years of his service multiplied by the number of whole years of such service; provided no such retirement allowance shall exceed one-half of his average salary for the last five (5) years of his service or two (2) percent of his average salary for the last five (5) years of his service multiplied by the number of whole years of such service, whichever is greater; and provided, in computing the age and years of service hereunder, the termination of service in the case of an employee appointed under the provisions of law for a definite term shall be construed as of the date when such term would have ended in the event no change was made by law in such term. In the determination of the period of service, the period during which any city employee was engaged in the service of the Keney Park trustees, of the board of education of the Town of Hartford or of any of the former school districts, of the mayor's Americanization committee or of the trustees of the Hartford grammar school shall be included. Periods of absence of not more than ninety (90) days in any one (1) year, without pay, during the course of such service or transfers from one (1) city department to another shall not be considered as breaking the continuity of a year's service. Periods of absence of more than ninety (90) days by reason of authorized leave of absence or any disability necessitating the regular attendance of a physician, unless such requirement is waived in the event such attendance shall be declared unnecessary by medical authority satisfactory to the commission, shall not be considered as breaking its continuity, provided such absence shall not exceed a period of twelve (12) calendar months, nor shall the continuity of service of teachers employed by the board of education be considered broken when they are on authorized leave of absence for professional improvement for a period not to exceed twenty-four calendar months but such periods of absence shall not be included in the period of service in determining the amount of the retirement allowance. Any city employee who shall have attained the age of seventy (70) years, if a man, or sixty-five (65) years, if a woman, shall be retired from active service unless said commission shall, on written recommendation of his department head, permit such employee to remain in active service. Any city employee who shall have reached retirement age after having served not less than ten (10) years but without having served twenty (20) years shall receive a retirement allowance equal to two and one-half (2½) percent of his average salary for the last three (3) years of his service multiplied by the number of whole years of such service. Each retirement allowance shall be based upon the basic salary of the employee, regardless of any general temporary increase or reduction thereof or any reduction or nonpayment on account of illness or temporary absence. No annual retirement allowance granted under the provisions of this act shall exceed the sum of four thousand dollars ($4,000.00) or two-thirds of the employee's average salary for the five (5) years next preceding his retirement, whichever is greater.

(c) In the case of any city employee retired because of disability, existence and continuation of such disability shall be determined by the pension commission after such medical examination as it may require. Such allowance shall not be paid in any case when an award has been made under the workmen's compensation law except when such payments shall have terminated or when payments under said law shall be less than the allowance provided by the terms of this act, in which event the difference between such allowance and such compensation benefits shall be paid. In order to obtain the benefits of this section, such employee shall make application in

writing for a disability retirement allowance to the pension commission within one (1) year after the termination of his service.

(d) Any annual retirement allowance payable to any teacher employed by the City of Hartford shall be reduced annually by an amount equal to the pension, if any, which such teacher is entitled to receive from the state retirement system by reason of the contribution or appropriation of state funds to said system, the amount of such reduction to be computed on the basis of such pension being payable as a life annuity on the pensioner's life, regardless of whether the pensioner shall actually receive his pension on this basis or whether, under the optional benefit provisions of said retirement system, the pension shall be based on the pensioner's life and that of a dependent, and provided such reduction shall be based on the proportion of the years of service in Hartford to the total number of years of service upon which the state pension is based. Reduction of the city's annual retirement allowance by the amount of the state pension contribution shall be computed by using the state pension formula in effect previous to July 1, 1967. Any member of the state teachers' retirement association who avails himself of the privilege of retirement under the provisions of this act before becoming eligible for a pension under the state retirement system shall be required to pay to the city the difference between his contribution for his years of service under this act and the contribution required of other city employees based on whatever percentages may have been stipulated for the same period, together with interest on such deferred contributions at a rate to be determined by the commission. In computing the retirement allowance, the years of active service of any employee shall include all the years that such employee has been in the employ of said city, of said board of education of the Town of Hartford or any of said school districts or of said Keney Park trustees. In computing such retirement allowance for that teacher in the high school department who is known as the "Master of Hartford Grammar School," the pension commissioner shall use as the basis of the computation the sum total of the compensation paid to such teacher annually by the city and by the trustees of the Hartford grammar school, and the years of active service of such teacher shall include all the consecutive years that such teacher shall have been in the employ of said city or said trustees or of both. The term "salary" as used in this act, shall include the value of any maintenance furnished to an employee at the expense of the city when such maintenance, in the judgment of the pension commission, was furnished to such employee in lieu of salary. The value of the maintenance so included shall be as determined by said commission.

(e) The department of finance shall keep such records, both financial and statistical, as may be necessary for the proper administration of this section, and, upon request, the heads of the several city departments shall furnish the department of finance such information as may be necessary for such purpose.

(f) The pension commission shall have power to make reasonable rules and regulations for carrying out the provisions of this section and may employ such assistance, necessary for the effective performance of its duties as the court of common council shall by ordinance provide. It shall annually submit to the board of finance of said city, in accordance with the Charter and ordinances, its estimate of the appropriation required to pay the retirement allowances already in effect and to become effective during the ensuing fiscal year and the necessary expenses of said commission, and such estimates as revised by the board of finance shall be included in the report of said board to the court of common council of said city.

(g) The term "city employee," as used in this section shall not include those employees who are included under the provisions of sections two hundred thirty-four and two hundred thirty-five of the Charter of the City of Hartford, but shall include elected or appointed officials and employees of the Town of Hartford, and employees of the board of education of the Town of Hartford, and the term "teachers employed by the city," as used in this section, shall include teachers employed by the board of education of the Town of Hartford. Unless a different meaning is plainly

indicated by the context, the term "retirement age" as used in this act shall be construed to mean the age of sixty-five (65) years.

(h) All retirement allowances or pensions heretofore granted by the City of Hartford are validated and continued in force.

(i) When any person employed by The Metropolitan District or by the City of Hartford shall be transferred, either temporarily or permanently, to the service of the other, the period of his service with each municipality shall be counted for the purpose of qualifying such employee for a retirement allowance and for the purpose of computing the amount thereof. The municipality by which such employee is employed at the time of his retirement shall pay to him the retirement allowance provided under the terms of its retirement system and the other municipality shall contribute monthly to such allowance a proportion of the total thereof equal to the ratio which his period of service with such other municipality shall bear to his total period of service with both municipalities; provided such proportionate contribution shall, in no case, exceed the proportionate amount of retirement allowance which would be allocable to such period of service if his total period of service had been rendered to the municipality so contributing. The term "period of service," shall be construed to mean such service as may be considered in qualifying such employee for a retirement allowance under the provisions of the retirement system of the municipality to which such service shall have been rendered. If either of such municipalities shall not have adopted a retirement system or if the retirement systems of such municipalities shall not provide for retirement allowances on the same or substantially the same basis, such employee shall receive a retirement allowance based upon the terms of the retirement system of said city and contribution to such retirement allowances shall be made on the basis set forth in this subsection. The terms "municipality" and "municipalities" as used in this subsection, shall mean only the City of Hartford and The Metropolitan District, whichever is applicable.

(j) Whenever the pension commission shall determine that a pensioner who has been granted a retirement allowance based upon disability has sufficiently recovered from such disability to engage in gainful occupation or employment, it shall be incumbent upon the city to provide such pensioner with employment which, in the judgment of said commission, is suitable, at a rate of compensation consistent with the minimum rate which said commission shall establish. If such pensioner shall thereafter reenter active employment of the city, payment of the retirement allowance theretofore granted to such pensioner shall be suspended during the period or periods in which the pensioner is so employed. If, at any time, the city shall provide employment, approved by the commission, and the pensioner shall fail to accept such employment, such allowance shall be irrevocably canceled. If, at any time, subsequent to reemployment, the pensioner shall not be employed by the city for reasons beyond his control or deemed justifiable by the commission, the commission may order the payment of such retirement allowance to be resumed during the period of such unemployment, or until the city shall provide employment satisfactory to the commission. Any pensioner who shall reenter the active service of the city shall be required to make the monthly contributions provided for under subsection (l) of this section, and when thereafter retired under the provisions of subsections (b), (c) and (d) of this section shall be entitled to receive the same retirement allowance he was entitled to receive prior to such reemployment, and in addition thereto a further annual allowance for each additional year of active service, at the rate of two (2) percent of the average annual salary upon which such allowance was computed.

(k) Each application for retirement shall be made to the pension commission. The department of finance shall, upon request by any employee who is making contributions under the provisions of this section, notify such employee of the total amount of contributions credited to him as of the preceding April first.

(l) *Contributions.* Each person in the service of the city covered by this plan shall be required to contribute during the first six (6) years from

September 1, 1943, a sum equal to two and one-half (2½) percent of his salary, including the full amount of any maintenance furnished to him, and thereafter such amount as the actuarial restudy would indicate as necessary, except that the maximum contribution shall not exceed five (5) percent of his salary; provided any member of the state teachers' retirement association covered by this plan shall be required to contribute during the first six (6) years from September 1, 1943, a sum equal to one and one-half (1½) percent of his salary, including the full amount of any maintenance furnished to him, and thereafter such amount as the actuarial restudy would indicate as necessary, except that the maximum contribution shall not exceed three (3) percent of his salary. Such contributions shall be deducted from the payroll and shall be entered in the general ledger under a separate fund to be known as the "Retirement Allowance Fund." Not more than one-half of the retirement allowances provided for under subsection (b) of this section shall be paid from the fund created by the employees' contributions. The treasurer, with the approval of the board of finance, may invest as much of said fund as is not required for current disbursements in accordance with the statutes governing the investments of savings bank funds. The board of finance may authorize the treasurer to execute all instruments necessary to convey or transfer any of the assets belonging to said fund. The board of finance may authorize the transfer of any money remaining in said retirement allowance fund at the end of each fiscal year to the general fund for retirement allowance purposes only, and shall, thereafter, appropriate such moneys, with such additional moneys from the general fund as may be necessary, for the payment of retirement allowances provided for under this section and for no other purpose. An employee who entered the service of the United States in its armed forces after October 16, 1940, or who shall hereafter enter the service of the United States in its armed forces during the period while the United States shall be at war, shall not be required to contribute to the retirement allowance fund during the period of such service. If, not later than six (6) months after the termination of such period of service and within one (1) year after the United States shall have concluded treaties of peace with the countries with which it now is at war, such employees shall reenter the service of the city, his period of service in the armed forces of the United States shall be included in the determination of his period of service to the city in the same manner as if such service had been rendered, and the contributions required under this act had been paid, to the City of Hartford. Other employees absent from duty without pay shall make no contributions during such absence. Any person leaving the employment of the city before becoming eligible to retire may withdraw, on request, the total of all contributions made by him, without interest. If any employee who has made contributions to the retirement fund shall leave the employment of the city before becoming eligible to retire and if he shall not be reemployed by the city within five (5) years, he shall be conclusively presumed to have made the request referred to in the preceding sentence. In case of the death, either before or after retirement, of a person who has contributed to the retirement fund, his contributions to said fund, without interest, less any retirement allowance payments made to him, shall be refunded by the treasurer to the beneficiary named by such person, and the records of the pension commission shall be conclusive as to whether a beneficiary shall have been named and, if so, the name of such beneficiary. If a person shall have named more than one (1) beneficiary, then, unless otherwise specifically provided by him, the refund shall be made equally to such of the named beneficiaries as survive him. If no named beneficiary shall survive a person, the refund shall be made to the executors or administrators of such person, except that, if the amount shall be less than five hundred dollars ($500.00), the refund may, at the option of the treasurer, be made in accordance with the terms of Section 49-70 of the General Statutes.

(m) *Credit for war service.* Any employee of the city who entered the service of the United States in its armed forces and auxiliaries thereof after October 16, 1940, or who enters the service of the United States in its armed forces and auxiliaries thereof during the period while the

United States is at war, and returns to the service of the city shall be credited with the period of such federal service to the same extent as though it had been a part of the term of his employment by the city. Except as otherwise provided in this section, in determining the length of service for the purpose of this section, (1) service prior to September 1, 1943, shall be included only for persons who commence to contribute to the retirement fund before October 1, 1943; (2) no month after August 31, 1943, shall be counted if the employee made no contributions to the retirement fund for such month; and (3) if the employee shall request the withdrawal of his contributions in accordance with subsection (l), no service prior to the date of such request shall be counted in determining his service.

(n) *Payment by city and employees.* If the income of the retirement allowance fund shall be found at any time insufficient to meet the requirements upon it, the city shall make an appropriation to make good such deficiency, and any prospective deficiency in the income of the fund shall be provided by the city in its annual appropriations. Except as otherwise provided herein, all persons in the service of the city shall contribute to said fund unless they shall have notified the pension commission in writing before September 15, 1943, that they elect to be excluded from the provisions of this section. If they shall not so contribute, they shall be deemed to have waived all rights for retirement allowance under the provisions of this section or any subsequent retirement act. Except as otherwise provided herein, all persons entering the service of the city after the effective date of this act shall contribute to said fund, provided any member of the state teachers' retirement association, upon entering the service of the city, may elect to be excluded from the provisions of this section by so notifying the pension commission within two (2) months after beginning such service. Temporary, emergency and provisional employees shall not be required to contribute unless their employment shall be given a permanent status, at which time they shall begin contributing with respect to salaries received thereafter, and may elect to contribute with respect to salaries received during the twelve (12) months next preceding their employment being given a permanent status, by paying arrears of contributions without interest. Any employee who notified the pension commission in writing before September 15, 1943, of his election to be excluded from the provisions of this act may elect to contribute to the pension fund by notifying the pension commission in writing on or before September 15, 1945, and he shall be entitled to all the benefits thereof; provided he shall pay into the pension fund a sum equal to two and one-half (2½) percent of his salary from September 1, 1943, until such time as he elects to contribute.

(o) *Optional form of retirement allowance.* Any person who may become entitled to a retirement allowance in accordance with this section may, subject to such regulations as the pension commission may, from time to time, establish, elect to receive a reduced monthly retirement allowance with the provision that such retirement allowance, or such part thereof as may be specified by such person in his notice of election, shall be continued after his death to his spouse named in such election for as long as such spouse shall live. The reduced retirement allowance shall be in such an amount as may be determined by the pension commission to be the actuarial equivalent of the retirement allowance that would be payable were it not for the election of this option. The pension commission may provide that no person may elect this option unless he either makes such election in writing, filed with the pension commission at least three (3) years before the due date of his first retirement allowance payment, or passes a satisfactory health examination at the time of marking such election. Any city employee having become eligible to receive a reduced retirement allowance under the provisions of this subsection may elect to have that portion of such reduced retirement allowance which would become payable to such employee's spouse upon the death of such employee after retirement, become payable to such spouse upon the death of such employee before retirement, by notifying the pension commission of his election to subscribe to such regulations as may be established by such com-

mission for that purpose, and said commission shall establish such regulations therefor as they deem equitable.

(p) *Appeals.* Any person aggrieved by any decision of said pension commission may, within fifteen (15) days from the date when such decision shall have been rendered, take an appeal to the court of common pleas or the superior court for Hartford County, which appeal shall be made returnable to such court in the same manner as that prescribed for civil actions brought to such courts. Notice of such appeal shall be given by leaving a true and attested copy thereof with said commission within twelve (12) days before the return date to which such appeal shall have been taken. The appeal shall state the reasons upon which it shall have been predicated. The authority issuing the citation in such appeal shall take from the appellant a bond or recognizance to said commission, with surety, to prosecute such appeal to effect. Said commission shall be required to return either the original papers acted upon by it, and constituting the record of the case appealed from, or certified copies thereof. The court, upon such appeal, shall review the proceedings of said commission and if, upon the hearing upon such appeal, it shall appear to the court that testimony is necessary for the equitable disposition of the appeal, it may take evidence or appoint a referee or committee to take such evidence as it may direct and report the same to the court, with his or its findings of fact and conclusions of law, which report shall constitute a part of the proceedings upon which the determination of the court shall be made. The court, upon such appeal, and after a hearing thereon, may reverse or affirm, wholly or partly, or may modify or revise the decision appealed from. Costs shall not be allowed against said commission unless it shall appear to the court that it acted with gross negligence, in bad faith or with malice in making the decision appealed from.

(q) If an employee leaves the employ of the city and subsequently returns thereto, he shall be required to return to the city within one (1) year any contributions that he may have previously withdrawn, plus interest from the date of withdrawal, in order to include his former years of employment to the aggregate of his employment for the purposes of this act.

(r) If a member dies before retirement from a cause arising out of and in the course of his employment, as defined in the Workmen's Compensation Act, his widow shall receive a monthly survivor's allowance at a rate equivalent to fifty (50) percent of his annual pay at the time of his death, until she dies or remarries. If said member leaves a child or children under the age of eighteen (18), each such child shall receive a monthly survivor's allowance at a rate of ten (10) percent, as measured as above, until he reaches age eighteen (18), marries or dies, whichever comes first; however, if the member leaves no widow, each child's allowance shall be at the rate of fifteen (15) percent. The total annual survivors' allowances payable under this section plus workmen's compensation payments, if any, shall not exceed three-quarters of the member's average annual pay during the five (5) years immediately preceding his death. Any allowances paid under this subsection shall be in lieu of the refund of contributions provided by subsection 1(l); except that if the total allowances paid under this subsection should be less than the refund of contributions which would otherwise have been paid, then the excess of said refund over said allowances shall be paid in accordance with subsection 1(l). As used herein the term "widow" shall include "widower."

(s) The surviving spouse of any teacher who retires after July 1, 1968, and who at the time of retirement elects to receive an actuarially reduced pension according to existing tables and procedures, shall be entitled to receive a survivor's allowance equal to one-half of the teacher's retirement allowance as so actuarially reduced until said surviving spouse dies or remarries.

(t) In lieu of the provisions of section (s), the surviving spouse of any teacher who retires after July 1, 1968, shall be entitled to receive a survivor's allowance equal to one-half of the teacher's full retirement allowance until said surviving spouse dies or remarries, provided the teacher shall pay an amount equal to twenty (20) percent of the total contribution made by said

teacher to the retirement fund to the date of retirement. This twenty (20) percent payment may be made in a single payment at the time of retirement or may be made in installments over the period of three (3) years next preceding the date of actual retirement. The term "surviving spouse" as used in this section and section(s) aforesaid shall be limited to the spouse of such member who shall have been married to him or her prior to his or her retirement.

(u) Any teacher who has retired between July 1, 1968 and the effective date of these amendments may exercise the elections of (s) or (t) above within sixty (60) days from the effective date of these amendments.

(Sp. Laws 1941, Act No. 527, Ch. XXVII, § 233; Sp. Laws 1943, Act No. 327, § 1; Sp. Laws 1945, Act No. 436, §§ 1, 2; Sp. Laws 1945, Act No. 386, §§ 1, 2; Sp. Laws 1945, Act No. 305; Sp. Laws 1947, Act No. 360, §§ 1—4; Sp. Laws 1947, Act No. 379; Sp. Laws 1955, Act No. 649; Ord. No. 1867, 9-11-67; Ord. No. 15-69, 6-2-69; Ord. No. 13-76, § 1, 7-12-76; Amend. of 11-8-22(1))

Editor's note—Section 233 of the 1941 Charter Revision referred to in the catchline of the above section was expressly validated and continued in force and effect for the persons participating in the fund provided for thereby, by section 1, Chapter XVII, Act No. 30, of the 1947 Charter; said section was retained in the 1967 Revised Charter without change. The effective date of subsections (s) through (u) is June 2, 1969.

Sec. 22. Social security for city employees—Contributions by employees; qualifications; computing allowances.

(a) The retirement system for city employees established by section 233 of Number 547 of the Special Acts of 1941, as amended, is further amended by adding the following: (a) Hereafter, each member of the system, except teachers, shall contribute to the system two (2) percent of that portion of his pay on which social security taxes are paid, and five (5) percent of the balance of his pay, including the full amount of maintenance furnished to him; contributions of teachers shall continue to be determined on the same basis as before.

(b) Qualifications as to age, service or disability required for a member to become eligible for a retirement allowance shall remain unchanged. However, all retirement allowances for members shall be computed by the same formula used in Section 1 of this act except as follows: (1) Retirement allowances for teachers shall continue to be determined on the same basis as before; (2) if the pension commission should find that for any individual who was a member of the system on the effective date of this act, the sum of any retirement allowance so computed plus the social security benefit which such member is entitled to receive resulting from city service should be less than the retirement allowance which would have been payable under the city employees' retirement system in the absence of this amendment, then the commission shall increase his allowance accordingly for the period during which the lower total benefits would otherwise apply.

(Sp. Laws 1957, Act No. 347, § 2; Amend. of 11-8-22(1))

Editor's note—Section 1 of this Act, being Act No. 347, Special Laws 1957 specifically amended section 3 of Chapter XVI (now XVII) of Act No. 30, Special Laws 1947, and may be found therein.

Sec. 23. Same—Determining coverage.

Services of individuals in positions, other than policemen's or firemen's positions, covered under the retirement system for city employees or the municipal employees' retirement fund need not be excluded in determining coverage under the federal social security system.

(Sp. Laws 1957, Act No. 347, § 3; Amend. of 11-8-22(1))

Sec. 24. Same—Division of employees in two parts for purpose of social security coverage; payment of taxes.

The pension commission shall establish regulations for subdividing the municipal employees' retirement fund and the city employees' retirement system each into two (2) parts. One (1) part of each, which shall be known as Part A shall be composed of the positions of members who have not expressed a desire for social security coverage, and the other part of each, which shall be

known as Part B, shall be composed of positions of members who have expressed a desire to be covered under the Social Security Act. Part B of the municipal employees' retirement fund shall also include all individuals becoming members of that fund after the date such coverage under the Social Security Act is extended. The city shall arrange to include services of individuals in positions covered by Part B of the city employees' retirement system or Part B of the municipal employees' retirement fund, except policemen's or firemen's positions, in the coverage of the social security law. Coverage shall be made retroactive to January 1, 1956, or to the individual's date of employment with the city, if later. The city's share of the taxes necessary to secure this retroactive coverage shall be paid out of the retirement allowance fund or the municipal employees' retirement fund, as the case may be. Each individual entitled to retroactive coverage shall be liable for his own share of the necessary retroactive taxes to be paid out of the fund of which he is a member and shall be charged against his contributions thereto.

(Sp. Laws 1957, Act No. 347, § 4; Sp. Laws, Sept. Sess. 1957, Act No. 5, § 1; Amend. of 11-8-22(1))

Editor's note—Section 3 of Act No. 5, Sept. Session, Sp. Laws 1957 provided that section 19 of Public Act No. 465 shall not apply to Act No. 5.

Sec. 25. Same—Deductions for employee's share; payment of city's share.

Each individual who is included under social security coverage shall have deducted from his pay at each pay period the employee's share of social security taxes. The city shall provide for the payment of its own share as an employer with respect to each such individual.

(Sp. Laws 1957, Act No. 347, § 5; Amend. of 11-8-22(1))

Sec. 26. Same—Effective date.

Sections 1 and 2 of number 347 of the Special Acts of 1957 shall become effective as of the date on which an agreement is signed between the federal government and the State of Connecticut providing for social security coverage for city employees as described herein. The rest of said act shall be effective from date of passage. If, however, an agreement between the federal government and the state is not signed before January 1, 1959, this act shall then become void.

(Sp. Laws 1957, Act No. 347, § 6; Sp. Laws 1957, Act No. 5, § 2; Amend. of 11-8-22(1))

Editor's note—Section 1 of Act No. 347 specifically amended section 3, Chapter XVI (now XVII) of Act No. 30, Sp. Laws 1947 and may be located therein. Section 2 of Act No. 347 is numbered section 22 in this Appendix to Charter.

Sec. 27. Teachers' retirement—Election privileges of members of state teachers' retirement association.

Any member of the state teachers' retirement association who elects to retire under the terms of the state teachers' retirement act, as amended, before attaining the age of sixty (60), but after completing at least thirty (30) years of service, and who is entitled to receive a retirement allowance from the City of Hartford, may elect to have a portion of the retirement allowance due from said city commuted and paid in one (1) sum. The pension commission of said city shall determine the amount of the lump sum payment so that it will be actuarially equivalent to the reduction in the retirement allowance. The maximum portion of the retirement allowance payable by the city which may be commuted shall be an amount equal to the retirement annuity benefit payable by the state teachers' retirement system with respect to such member's contributions thereto.

(Sp. Laws 1955, Act No. 18; Amend. of 11-8-22(1))

Sec. 28. Same—Retirement credit for leaves of absence.

Any period of a leave of absence, not exceeding one (1) year in length, granted to any professionally certified employee by the Hartford board of education for such purposes of professional growth as such term is defined by said board, shall count as active service within the meaning of number 327 of the special acts of 1943, as amended, provided monthly payments to the Hartford retirement system for city employees shall be made on the basis of the salary to which such professionally certified employee would have been entitled if engaged actively in teaching in order to receive teaching credit. Such credit shall be limited to a

total of one (1) year within a five-year period. Any such employee who was granted such leave prior to the effective date of this act may receive credit for such leave for retirement purposes, provided he shall pay into the Hartford retirement system such amount as would equal the contributions he would have made to said system during such period if he had been actively teaching, provided such credit shall be limited to a period of one (1) year within a five-year period.
(Sp. Laws 1957, Act No. 157; Amend. of 11-8-22(1))

Editor's note—No. 327 is compiled as section 21 of this Appendix.

Sec. 29. Same—Retirement credit for service in armed forces.

Any member of the teachers' retirement association who served or is serving in the armed forces, who, immediately prior to such service, was employed in the public schools of the City of Hartford or the City of New Haven and who reenters such employment in such city upon discharge from the armed forces, shall be credited for retirement purposes with the period of such service. The board of education of such city shall pay to the annuity fund the amounts due from such member for such period. If any such member dies prior to the effective date of his retirement, or prior to the date on which the coparticipant option becomes effective, as provided in Section 10-167 of the General Statutes, any amounts paid by the board of education of such city for the benefit of such member shall be used to finance death benefits to his survivors payable under Section 10-168 of the 1967 supplement to the General Statutes. Any board of education funds not used in the financing of survivorship benefits or retirement allowances shall be returned to the board of education of such city.
(Sp. Laws 1951, Act No. 279; Sp. Laws 1969, Act No. 147, § 1; Amend. of 11-8-22(1))

Editor's note—This Act No. 279 was ratified by the voters of the City of Hartford on November 6, 1951.

Sec. 30. Retirement credit for services in first world war.

The time during which any person who was employed by the City of Hartford at the time of his entry into the armed forces in the first world war served in such armed forces shall be considered, for retirement purposes, as a part of his total length of service to said city.
(Sp. Laws 1945, Act No. 328; Amend. of 11-8-22(1))

POLICE BENEFIT FUND*

Sec. 31. Charter 1941, section 234, as amended.

(a) There shall be in the City of Hartford a fund to be known as the police benefit fund, to consist of: (1) Such sums of money as shall be appropriated to said fund from the treasury of the said city by the court of common council thereof; (2) all property specially devised or given for the benefit of disabled policemen of said city and property given to the police department of said city on account of services rendered by said department; (3) all lost, abandoned, unclaimed or stolen money and all moneys arising from the sale of unclaimed, abandoned, lost or stolen property in charge of the board of police commissioners of said city, at any time available for that purpose by the laws of this state; (4) all rewards, fees, gifts, testimonials and emoluments that may be presented to any member of the police force of said city on account of special services, except such as said board of police commissioners may allow any member or members to retain, and (5) the fund now known as "The Police Benefit Fund."

(b) The board of police commissioners of said city shall be a board of trustees of said fund, and the treasurer of the City of Hartford shall be the treasurer of said board. The president of the board of police commissioners shall be president of the board of trustees, and shall draw all orders upon such fund, which orders shall be countersigned by the secretary of said board of trustees, who shall be chosen by said trustees. The secretary shall keep a record of the proceedings of said board of trustees and all action taken by it in regard to said fund, and said board of

*__Editor's note—__An amendment adopted Nov. 8, 2022(1) enacted provisions designated as § 21, however, said provisions have been renumbered as § 31, at the direction of the city, in order to maintain sequential accuracy.

trustees may direct the treasurer to invest any portion of said fund in any securities in which trust funds may be invested by the laws of the state or to deposit the same or any portion thereof in any of the savings banks of the state.

(c) Said board of trustees shall report to the court of common council yearly the condition of said fund, with all the items of receipts and disbursements on account thereof. If the income of the police benefit fund shall be found at any time insufficient to meet the requirements upon it, the court of common council, upon the application of said board of trustees, shall make an appropriation to make good such deficiency, and any prospective deficiency in the income of said fund shall be provided for by said court of common council in its annual appropriation for the police department.

(d) In addition to the regular and supernumerary police force of the City of Hartford, there shall be an honorary grade known as the veteran reserve, to which the board of police commissioners of said city may transfer any member or employee of the police department who shall, through age or through physical disability incurred in the discharge of his or her duties, become permanently disqualified for the active duties of the police department, but such transfer may be revoked at any time if the disability shall be removed and the member or employee shall thereupon be returned to active duty in the police department. The pay of a member of the veteran reserve shall be one-half of the mean between the pay which such member received when transferred to the veteran reserve and the current rate of pay of a member or employee of the department of the same or corresponding grade, but the board of police commissioners may, in case of emergency, call upon any member of the veteran reserve for such temporary service as he or she may be fit to perform and during such service he or she shall receive pay equal to said mean between his or her pay at the date of transfer to veteran reserve and the current rate of pay of members or employees of the department of the same or corresponding grade.

(e) Said board of police commissioners may permanently retire any member of the regular force or of the veteran who has become permanently disqualified from performing any duty, upon a certificate of a police surgeon or a committee of surgeons appointed by said board of police commissioners showing that such member is permanently disqualified for the performance of all police duty and that such disqualification is caused by the natural infirmities of old age or by some injury received, disease contracted or exposure endured while performing the duties of his service, without fault on his part. The rate of pay of any member of the force so retired shall be one-half the mean between such member's pay at the time of retirement and the current rate of pay of a member of the force of the same or corresponding grade.

(f) Said board of police commissioners shall permanently retire any member or employee of the police department upon his or her written request, when such member or employee has performed twenty-five (25) years of service in the department. Said period of twenty-five (25) years shall include active supernumerary service, whether public or private, so long as such supernumerary work was actually performed in the line of duty as a policeman. Said board of police commissioners shall permanently retire any member or employee of the police department when such member or employee shall reach the age of sixty-five (65) years or is of the age of sixty-five (65) years or over. The pay of an employee, so retired, shall be at the rate of one-half of such employee's pay at the time of retirement and the pay of any member of the force so retired shall be at the rate of one-half of the mean between such employee's pay at the time of retirement and the current rate of pay of a member of the force of the same or a corresponding grade. Effective on July 1, 2003, the pay of any such employee who had been so retired prior to January 1, 1981, who had reached the rank of assistant chief or deputy chief, and were at such rank at the time of retirement, the pay of such an employee, so retired, shall be at the rate of one-half of such employee's pay at the time of retirement and the pay of any member of the force so retired shall be at the rate of one-half of the mean between such employee's pay at the time of retirement and a combination of the minimum range of the current rate of pay of a

member of the force of the same or a corresponding grade, together with an annual adjustment in such minimum range of the current rate of pay equal to any general wage increase called for in the collective bargaining agreement between the city and the Hartford Police Union in that particular year.

(g) The foregoing subsection shall apply in favor of all persons who were members or employees of said police department on May 2, 1939, in the same manner as if the same had been in force and effect at the time of their appointment or employment.

(h) The rate of pay provided for members of the veteran reserve and retired members of the force under the previous provisions of this act shall hereafter apply to all members of the force whether retired or transferred to the veteran reserve before or after May 1, 1929.

(i) When any member of the police department, who shall have served as a regular member of such department, shall die, the widow of such member shall, subject to the provisions hereinafter contained, receive, until her death or remarriage, out of said police benefit fund, a monthly sum equal to one-fourth of the compensation received by such member at the time of his death, if in active service, or a monthly sum equal to one-half of the payments received by such member at the time of his death, if retired. If no widow shall survive him, or upon the death of his widow, if she shall survive him and shall not remarry, said board of police commissioners may, by the affirmative vote of the majority of its whole number, cause to be paid monthly to the legally appointed guardian of his child or children under the age of sixteen (16) years, for their use and benefit, a sum not exceeding in total the amount hereinbefore provided to be received by such widow and may, from time to time, apportion such sums between such children as it may deem best; provided, as each such child shall arrive at the age of sixteen (16) years, the payments to such child shall cease and the same may, from time to time, be stopped, or the amount thereof changed, by vote of a majority of the whole number of said commissioners with the approval of the mayor. No such payment or payments shall be allowed or paid to such widow or children so long as such widow or children shall receive, or be entitled to receive, compensation under the provisions of the compensation laws of this state. The term "widow" as used in this section shall be limited in its meaning to the surviving spouse of such member who shall have been married to him and living with him at the time of his death, if such member is an active member of said department, or who shall have been married to him prior to his retirement from said department and who shall be living with him as his wife at the time of his death. The term "child" or "children," as used in this section, shall be limited in its meaning to the child or children born to such member by his wife, to whom he was married at the time of his death, if an active member of said department, or to whom he was married prior to his retirement from such department, if retired. Each active member of said department shall pay to the police benefit fund, and there shall be deducted from the monthly salary of each active member, a sum equal to one (1) percent of his monthly salary, and each retired member of said department shall pay to the police benefit fund, and there shall be deducted from his monthly salary or pension, a sum equal to one (1) percent of his salary or pension. Provided each person who is an active member of said department at the time of the effective date of this act, if he shall have so notified the treasurer of the police benefit fund in writing before September 15, 1943, may elect, and all persons entering the service of said department after the effective date of this act shall be required to pay to the police benefit fund, in addition to the payment of a sum equal to one (1) percent of his salary hereinbefore required, an additional payment of a sum equal to one and one-half (1½) percent of his salary, and thereafter shall be entitled to and shall receive upon retirement, under the provisions of this section, after more than twenty-five (25) years of service, additional pay equal to two (2) percent of the mean between such member's pay at the time of retirement and the current rate of pay of a member of the force of the same or corresponding grade multiplied by that figure by which the number of whole years of his service shall exceed twenty-five (25) years. Any member

of the police department who did not elect to contribute to the police benefit fund as provided in this section may elect to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary by notifying the treasurer of the police benefit fund in writing on or before September 15, 1945, and he shall be entitled to all the benefits thereof; provided he shall pay into the police benefit fund a sum equal to one and one-half (1½) percent of his salary from September 1, 1943, until such time as he elects to contribute. Any member of the police department who notified the treasurer of the police benefit fund of his election to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary after September 15, 1943, and has made such contribution shall receive all the benefits he would be entitled to in the same manner as though he had notified the treasurer of the police benefit fund before September 15, 1943.

Any member of the police department who did not elect to contribute to the police benefit fund as provided in this section may elect to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary by notifying the treasurer of the police benefit fund in writing on or before September 15, 1957; and he shall be entitled to all the benefits thereof, provided he shall pay into said fund a sum equal to one and one-half (1½) percent of his salary from September 1, 1943, until such time as he elects to contribute. Any member of the police department who notified said treasurer of his election to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary from September 15, 1943, and who has made such contribution shall receive all the benefits he would be entitled to in the same manner as though he had notified said treasurer before September 15, 1943.

Any member of the police department who did not elect to contribute to the police benefit fund as provided in this section may elect to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary by notifying the treasurer of the police benefit fund in writing on or before September 15, 1970; and he shall be entitled to all the benefits thereof, provided he shall pay into said fund a sum equal to one and one-half (1½) percent of his salary from September 1, 1943, until such time as he elects to contribute. Any member of the police department who notified said treasurer of his election to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary from September 15, 1943, and who has made such contribution shall receive all the benefits he would be entitled to in the same manner as though he had notified said treasurer before September 15, 1943. (Ord. No. 17-70, 5-11-70)

(j) When a member of the police force, a retired member thereof or a member of the veteran reserve shall die leaving no widow or children as beneficiaries under the police benefit fund of the City of Hartford, payments under said fund shall be made by the police commissioners to any beneficiary previously designated by the deceased member. Such payments shall cease upon the marriage of such beneficiary, but otherwise shall continue for a period of ten (10) years.

(k) The pay of all members of the veteran reserve and of all retired members of the police department, together with any payments authorized to be made under the provisions of the foregoing subsection, shall be a special charge upon the police benefit fund.

(l) The provisions of Sections 553 and 554 of the General Statutes shall not apply to the City of Hartford.

(m) All payments of compensation heretofore made or provided for from the police benefit fund are validated and continued in force.
(Sp. Laws 1941, Act No. 527, Ch. XXVII, § 234; Sp. Laws 1943, Act No. 215; Sp. Laws 1943, Act No. 327, § 2; Sp. Laws 1945, Act No. 309; Sp. Laws 1957, Act No. 478; Ord. No. 17-70, 5-11-70; Ord. No. 49-03, 10-14-03; Amend. of 11-8-22(1))

Editor's note—Sections 553 and 554 now codified as sections 7-28 and 7-26 respectively, of the 1958 Revision of the General Statutes. The "Provided . . . " clause in the first paragraph of (i) was added by Act No. 327, Special Laws of 1943.

FIREMEN'S RELIEF FUND*

Sec. 32. Charter 1941, section 235, as amended.

(a) There shall be in the City of Hartford a firemen's relief fund which shall consist of moneys received from the following sources: All bequests or donations to the fire department from private or public sources for the purpose for which this fund is constituted; monthly assessments on the salaries or pay of members of the fire department, not exceeding one (1) percent per annum thereof, as the board of trustees of said relief fund shall, from time to time, determine; all fines imposed by the board of fire commissioners, from time to time, upon any member or members of the fire department by way of discipline; all moneys received from the sale of condemned, unfit or unserviceable property under the control of the board of fire commissioners, where the same does not exceed the sum of two hundred fifty dollars ($250.00) in value for any one (1) article; all rewards, fees, gifts or emoluments that may be paid or given for extraordinary services rendered by an officer or member of the fire department, except when allowed to be retained by such officer or member by the board of fire commissioners; such sums of money as shall be appropriated to said relief fund from the treasury of the city by the court of common council thereof, and the fund now known as "The Firemen's Relief Fund."

(b) Said relief fund shall be under the general charge of a board of trustees composed of three (3) fire commissioners, to be elected annually by the board of fire commissioners, the treasurer of the City of Hartford and three (3) firemen in the active service of the Hartford fire department who, at the time of their election, shall have had at least five (5) years' active service in the department, and who shall be elected, by a majority vote of the entire department, in the manner provided in subsection (c) of this section. The new members of the board of trustees shall take office on the first day of October in each year and shall continue in office until their successors shall be chosen and shall have qualified. Any vacancies occurring in said board shall be filled for the unexpired portion of the term by special election of the board of fire commissioners or of the fire department, as the case may be. The board of trustees shall, annually, within two (2) weeks after the first day of October, organize and choose from their own number a president and a secretary of the board to serve for the ensuing year. The treasurer of the City of Hartford shall, by virtue of his office, be the treasurer of said board. The board of trustees shall have discretionary power to make and change the investments of said fund; they may make rules and regulations consistent with the provisions of this act, concerning the operation and management of said fund, the times and methods of election of members of the board of trustees and the form of application for relief, and may do all things necessary and proper towards carrying out the purposes of said fund. All orders drawn against said relief fund shall be signed by the president and countersigned by the secretary of said board.

(c) An election for trustee or trustees of the firemen's relief fund from the fire department shall be held annually at such time and place and under such regulations as the board of trustees shall appoint, but not later than the month of September. At least ten (10) days' notice of such election shall be given. At the expiration of the term of each of the present trustees of the firemen's relief fund from the fire department his successor shall be elected to serve for a term of three (3) years. Special elections shall be held to fill vacancies in similar manner and upon like notice.

(d) Said board of trustees shall report to the court of common council annually, not later than the month of February, the condition of said fund, with all the items of receipts and disbursements on account thereof. If the income of the firemen's relief fund shall be found at any time insufficient to meet the requirements upon it, the court of common council, upon the application of said board of trustees, shall make an appropriation to make good such deficiency, and

*__Editor's note—__An amendment adopted Nov. 8, 2022(1) enacted provisions designated as § 22, however, said provisions have been renumbered as § 32, at the direction of the city, in order to maintain sequential accuracy.

any prospective deficiency in the income of said fund shall be provided for the court of common council in its annual appropriations.

(e) From this relief fund said board of trustees, by a majority vote, may appropriate and cause to be paid such sums and at such times as it may deem advisable, except as hereinafter provided, to the following-named persons and for the following purposes: First. Any permanent member of said fire department who, upon such medical examination as the board of fire commissioners and said board of trustees may prescribe, shall be declared permanently disabled for the performance of ordinary duty, as the result of injury received or exposure endured in the performance of duty, shall be retired, but such retirement may be revoked at any time if the disability shall be removed, and such member shall thereupon be returned to active duty in the fire department on occasion of the first vacancy. The retirement compensation of any such member shall not exceed one-half the yearly compensation received by such member at the time of retirement, plus twenty-five (25) percent of any increase granted to active members of the Hartford fire department after the effective date of this act of equal or corresponding rank or grade; Second. Any member of said fire department whose term of service shall have been one (1) year or more of continuous, permanent service, who shall have become incapacitated from sickness contracted or injuries received while not in the actual performance of duty, and who, upon such medical examination as the board of fire commissioners and said board of trustees may prescribe, shall be declared permanently disabled for the performance of ordinary duty, may be retired upon the request of the board of fire commissioners, and, when retired, said board of trustees may direct annual compensation upon the following basis: If the term of service of such retired member shall have been one (1) year of continuous, permanent service, such annual compensation shall not exceed two (2) percent of the yearly compensation received by such member at the time of retirement; if his term of service shall include more than one (1) year of continuous, permanent service, the board of trustees may increase the annual compensation by allowing an additional two (2) percent for each year of continuous, permanent service rendered beyond the first year, provided, if his term of service shall have been more than twenty-five (25) years of continuous, permanent service, such annual compensation shall not exceed fifty (50) percent of his yearly compensation at the time of retirement; such members retired for nonservice-connected disability shall receive a percentage increase, in the event of any salary increases granted to active members of the Hartford fire department after the effective date of this act of equal or corresponding rank or grade. Such increase shall be equal to the percentage with which they were retired but in no event shall any such increase exceed twenty-five (25) percent; Third. Any permanent member of said department whose term of service shall include both call service and permanent service and who shall be retired after twenty-five (25) years' continuous service, shall, when retired, receive one-half the yearly compensation received by such member at the time of retirement, plus twenty-five (25) percent of any increase granted to active members of the Hartford fire department after the effective date of this act of equal or corresponding rank or grade. Each person who is an active member of said department at the time of the effective date of this act, if he shall have so notified the treasurer of the firemen's relief fund in writing before September 15, 1943, may elect, and all persons entering the service of said department after the effective date of this act shall be required, to pay to the firemen's relief fund, in lieu of the monthly assessment provided for in subsection (a) of this section, a sum equal to two and one-half (2½) percent of his salary, and thereafter shall be entitled to and shall receive upon retirement, under the provisions of this section, after more than twenty-five (25) years of service additional pay equal to two (2) percent of the yearly compensation received by such member at the time of retirement, multiplied by that figure by which the number of whole years of service shall exceed twenty-five (25) years, plus twenty-five (25) percent of any increase granted to active members of the Hartford fire department after the effective date of this act of equal or corresponding rank or grade.

Any member of the fire department who did not elect to contribute to the firemen's relief fund as provided in this section may elect to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary by notifying the treasurer of the firemen's relief fund in writing on or before September 20, 1963; and he shall be entitled to all the benefits thereof, provided he shall pay into the firemen's relief fund a sum equal to one and one-half (1½) percent of his salary from September 1, 1943, until such time as he elects to contribute. Any member of the fire department who notified the treasurer of the firemen's relief fund of his election to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary from September 15, 1943, and who has made such contribution shall receive all of the benefits he would be entitled to in the same manner as though he had notified the treasurer of the firemen's relief fund before September 15, 1943.

Any member of the fire department who did not elect to contribute to the firemen's relief fund as provided in this section may elect to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary by notifying the treasurer of the firemen's relief fund in writing on or before September 15, 1970; and he shall be entitled to all the benefits thereof, provided he shall pay into the firemen's relief fund a sum equal to one and one-half (1½) percent of his salary from September 1, 1943, until such time as he elects to contribute. Any member of the fire department who notified the treasurer of the firemen's relief fund of his election to contribute an additional payment of a sum equal to one and one-half (1½) percent of his salary from September 15, 1943, and who has made such contribution shall receive all the benefits he would be entitled to in the same manner as though he had notified the treasurer of the firemen's relief fund before September 15, 1943. (Ord. No. 16-70, 5-11-70)

(f) The board of fire commissioners shall permanently retire any member of the fire department, upon written request of such member, when such member shall have performed twenty-five (25) years of service in the department. Said period of twenty-five (25) years shall include substitute fireman service if such substitute work is actually performed in the line of duty as a fireman. Said board of fire commissioners shall permanently retire any member of the fire department when such member shall reach the age of sixty-five (65) years or is of the age of sixty-five (65) years or over. The pay of any member of the department upon such retirement by said board of fire commissioners shall be from said relief fund, not to exceed one-half the yearly compensation received by such member at the time of retirement, plus twenty-five (25) percent of any increase granted to active members of the Hartford fire department after the effective date of this act of equal or corresponding rank or grade. In the event of the death of a retired member, his widow, while unmarried, shall receive not more than one-half of the yearly compensation received by such member at the time of his death. If any member shall marry after being retired and placed on the relief fund, neither his widow nor his children by such marriage shall, upon his death, participate in, or be entitled to any of the benefits accruing from said relief fund. The foregoing provisions of this subsection shall apply in favor of all persons who were members of said fire department on May 2, 1939, in the same manner as if the same had been in full force and effect at the time of their appointment.

(g) When any member of said fire department shall have been killed in the performance of duty or shall have died from the effects of injuries received or exposure endured in the performance of duty, said board of trustees shall, upon the request of the board of fire commissioners, direct annual compensation to be paid to his widow or other dependents hereinafter designated, not exceeding one-half the yearly compensation received by such member at the time he was killed or when such injuries resulting in his death were received. Such annual compensation shall be paid from said relief fund to the widow of the deceased member; if he shall leave no widow, to his child or children under the age of sixteen (16) years, or over said age but physically or mentally incapacitated from earning a livelihood. If such deceased member shall leave no widow, or children under sixteen (16) years of

age, or over said age but physically or mentally incapacitated from earning a livelihood, then such annual compensation shall be paid to such dependent father, mother, sister or other dependents as he may leave. Such annual compensation shall be payable in installments and for such periods as said board of trustees shall direct, provided such payments to his widow shall cease if she shall remarry and payments for each child shall cease as such child shall attain the age of sixteen (16) years, except a child physically or mentally incapacitated from earning a livelihood, in which case such payments shall cease when such incapacity shall be removed; and payments to any other dependents shall cease if such dependent shall marry. When a member of said fire department, whose term of service shall have been one (1) or more years of continuous, permanent service, shall have died from sickness contracted or injuries received while not in the actual performance of duties, said board of trustees shall, upon request of the board of fire commissioners, direct annual compensation to be paid to his widow or other dependents hereinafter designated upon the following basis: If the term of service of such member of the department at the time of his death shall include one (1) year of continuous, permanent service, such annual compensation shall not exceed one (1) percent of the yearly compensation received by such member at the time of his death; if such term of service shall include more than one (1) year of continuous, permanent service, such annual compensation may be increased by allowing an additional one (1) percent for each year of continuous, permanent service rendered beyond one (1) year, provided, if his term of service shall have been more than twenty-five (25) years of continuous, permanent service, such annual compensation shall not exceed twenty-five (25) percent of his annual compensation. Such annual compensation shall be paid from said relief fund to the widow of the deceased member, or to or for his other dependents in the same manner and under the same limitations as hereinbefore in this section provided in the case of compensation to the widow or other dependents of the member of said fire department who shall have been killed while in the performance of duty or shall have died from the effects of injuries received in the performance of duty.

When any member of said department leaves a widow entitled to benefits, upon the death of said widow the children of the member of said department under sixteen (16) years of age, or over said age but physically or mentally incapacitated from earning a livelihood, shall be entitled to compensation from the date of the death of such widow in the same manner and under the same limitations as if such widow had predeceased such member. Persons entitled to benefits from the firemen's relief fund at the time of the passage of this act shall be entitled to the same benefits as if this act had been in force at the time of the death of the widow of such member of the department.

(h) Substitute members of the fire department may receive benefits under this act subject to such regulations as the board of trustees of the relief fund may prescribe. Any such substitute member, detailed for permanent duty or special duty, who, upon such medical examination as the board of fire commissioners and said board of trustees may prescribe, shall be declared permanently disabled for the performance of ordinary duty, as the result of injury received or exposure endured in the performance of duty, may be retired on not more than one-half the mean between the yearly compensation received by a permanent member for the first year of service in the fire department at the time such substitute member is declared to be permanently disabled and the current yearly compensation of a permanent member of the department for the first year of service. Such retirement may be revoked at any time if the disability shall be removed, and said substitute shall thereupon be restored to the substitute roll.

(i) The compensation from the relief fund for members of the department and their dependents under the previous subsections of this section shall apply in determining the amounts of such compensation to be paid hereafter, irrespective of when the right to receive compensation from said relief fund accrued in the first instance.

(j) The secretary of the board of trustees shall record all proceedings and votes taken by said board in reference to said fund and payments therefrom, stating the name and vote of each member of said board of trustees upon any matter relating thereto.

(k) Any member of the fire department who shall neglect or refuse to pay whatever assessments may be laid by said board of trustees shall not be entitled to any benefits from said fund.

(l) The board of trustees shall have power to make all rules and regulations necessary to carry the foregoing provisions into effect.

(m) The term "member of the fire department" as used in this section shall be construed to include all regular male employees of the fire department of the City of Hartford who are under the jurisdiction of the board of fire commissioners of said city.

(n) All payments of compensation heretofore made or provided for from the firemen's relief fund are validated and continued in force.
(Sp. Laws 1941, Act No. 527, Ch XXVII, § 235; Sp. Laws 1943, Act No. 327, § 3; Sp. Laws 1943, Act No. 358; Sp. Laws 1943, Act No. 177; Sp. Laws 1945, Act No. 308; Sp. Laws 1957, Act No. 477; Amend. of 11-8-22(1))

FLOOD CONTROL

GREATER HARTFORD FLOOD COMMISSION

Sec. 33. Grant of authority.

The City of Hartford shall have power to act for the elimination, prevention and control of flooding and flood damage in the territory drained by the Park River and its tributaries, and the territory adjacent thereto, and for the protection and improvement of areas within such territory heretofore or hereafter affected by such damage. All such power shall be exercised in the name and on behalf of the city by or under authority of the flood control commission created by section 3 [section 35 of this Appendix] of this act.
(Sp. Laws 1955, Act No. 72, § 1; Sp. Laws 1957, Act No. 292, § 1)

Cross reference—Authority of city to construct flood protection works in, over and upon Broad Street armory grounds, Appendix, § 53.

Sec. 34. Transfer of powers and duties.

The powers and duties conferred upon the Hartford Flood Commission by section 236 of number 547 of the Special Acts of 1941, as amended, are transferred to the flood control commission created pursuant to section 3 [section 35 of this Appendix] of this act and shall be exercised and performed by it or under its authority, in the manner and according to the procedures prescribed in this act.
(Sp. Laws 1955, Act No. 72, § 2)

Note—See section 52 of this Appendix.

Sec. 35. Creation of commission; membership.

There is created a flood control commission consisting of seven (7) members, to be known as the Greater Hartford Flood Commission. Such members shall be appointed by the governor, four (4) from among the electors residing in Hartford and one (1) each from the towns of Bloomfield, Newington and West Hartford. Vacancies in the commission shall be filled by appointment by the governor from the electors of such city or towns.
(Sp. Laws 1955, Act No. 72, § 3; Sp. Laws 1957, Act No. 292, § 2)

Sec. 36. Chairman; secretary; meetings; records; compensation; expenses.

The flood control commission shall elect a chairman from among its members and a secretary, who may but need not be a member, and shall meet at such intervals as it may from time to time consider necessary for the discharge of its duties. Special meetings of the commission may be held at any time at the call of the flood control director appointed under the provisions of section 5 [section 37 of this Appendix] of this act or of the chairman of the commission, or in such other manner as may be provided by vote of the commission. A record of all meetings of the commis-

sion shall be kept by the secretary. The members shall serve without compensation but shall be entitled to reimbursement for actual and necessary expenses incurred in the performance of their duties.
(Sp. Laws 1955, Act No. 72, § 4)

Sec. 37. Flood control director.

There is created the office of flood control director, which shall be held by a licensed civil engineer who shall be appointed by the flood control commission solely on the basis of his actual experience in and knowledge of flood control matters. The director shall serve at the pleasure of the flood control commission and shall perform such tasks and duties as in its judgment may thus be appropriately discharged. The director shall report to the commission on all action taken by him under this act and shall provide the commission with other information which it may request to carry out its duties. All pension rights and other employment benefits accruing to any officer or employee of the City of Hartford who is appointed or transferred to perform duties under this act shall continue to vest and accrue during the period of such appointment or transfer. Any other employee employed to perform such duties shall be entitled during the period of such employment to all such rights and benefits as the city may grant its own regular employees.
(Sp. Laws 1955, Act No. 72, § 5; Sp. Laws 1957, Act No. 292, § 3)

Sec. 38. Personnel; assigning duties to city departments; corporate duties and obligations; bids on certain contracts; auditor of accounts.

The flood control commission may employ personnel and fix salaries in accordance with such rules and regulations as it may adopt, and may also assign, subject to the approval of the city manager, to the department of public works and the department of engineering of the City of Hartford, to be carried out under its supervision, such tasks and duties as in its judgment may thus be appropriately discharged. In furtherance of the purposes of this act it may engage engineers, counsel and other professional advisers and specialists, may sue and be sued in the name of the city and may, in the name and on behalf of the city, enter into contracts, including contracts with the United States of America, this state, and any other city, town or other political subdivision of this state, for the purchase of materials, supplies and equipment, for the performance of any construction or other work and for any other purposes under this act. Whenever any work shall be necessary to execute or perfect any public work or improvement, or whenever any supplies for the flood commission shall be needed for any particular purpose and such work or supplies shall involve the expenditure of more than ten thousand dollars ($10,000.00), except in the case of an emergency to be determined by the flood control commission, a written contract for such work or supplies shall be made under such regulations as the commission may establish, which contract, except contracts with the United States, this state, or any city, town or other political subdivision of the state, shall be based on competitive sealed bids made in compliance with public notice, duly advertised by publication, in a daily newspaper of general circulation in the County of Hartford, at least five (5) days before the time fixed for opening such bids or proposals. The director of finance of the City of Hartford shall annually inspect and audit the accounts and records of financial transactions maintained by the commission.
(Sp. Laws 1955, Act No. 72, § 6; Sp. Laws 1957, Act No. 292, § 4)

Sec. 39. General powers and duties.

For fulfillment of the purposes of this act the flood control commission, or the flood control director with the approval of the flood control commission, may in the name and on behalf of the city (a) provide for, construct or arrange for the construction of, supervise, operate, maintain and dispose of dikes, flood control reservoirs, storm sewers and storm sewer systems, walls, embankments, conduits, bridges, highways, roads, sidewalks, pumping and flood control stations and other works, structures and appurtenances; (b) close or relocate any town or city street, road or passway at any time affected or threatened by flood damage; (c) establish and alter stream lines with respect to lands found to have been so affected or threatened; (d) construct artificial chan-

nels or improve natural channels within such stream lines; (e) determine the manner in which and extent, if any, to which any land may be filled or any structures or improvements erected, maintained or retained within such stream lines; (f) purchase, take or otherwise acquire lands and interests therein found to have been so affected or threatened or to be otherwise necessary to provide water storage, to preserve the same or to carry out any work or project authorized by this act; (g) maintain, improve, arrange for the maintenance and improvement of, lease, sell or otherwise dispose of such land and interests therein; and (h) make such regulations as appear advisable. In the carrying out of any work the flood control commission may use such parts of any park or other public area as may be necessary. All real and personal estate acquired, held or used by said commission for purposes of this act shall be exempt from taxation.
(Sp. Laws 1955, Act No. 72, § 7; Sp. Laws 1959, Act No. 389)

Sec. 40. Petition for taking of property.

In any case of the taking of private property for any of the purposes of this act, if the flood control commission and the owner or owners of such property cannot agree upon the amount to be paid for such property, then the flood control commission shall, in the name and on behalf of the City of Hartford, prefer its petition for the taking of such property under section 7181 of the general statutes to the superior court for Hartford County. If in any such proceedings it shall at any time be alleged that the public interest will be prejudiced by delay in permitting the plaintiff to enter immediately upon and take possession of such property, the hearing and determination of such issue shall take precedence over all other matters to the same extent as actions brought by or on behalf of the state.
(Sp. Laws 1955, Act No. 72, § 8)

Sec. 41. Notice of assessments.

Notice of intention to proceed under this act with any work or improvement, for part or all of the cost of which benefits are to be assessed by the city, shall be mailed by the city clerk by registered or certified mail to the owner or owners of the lands to be assessed for benefits, at the address of such owner or owners appearing on the assessment records of the city or town where such lands are located, and shall be published by the city clerk in one daily newspaper of general circulation in the County of Hartford. Each such notice shall include a general description of the lands to be assessed for benefits and an estimate of the cost of such work or improvement. Thirty (30) days having expired after the mailing and publication of such notice, the flood control commission may proceed with the actual layout and construction of such work or improvement without regard to subsequent proceedings concerning the assessment of benefits and damages.
(Sp. Laws 1955, Act No. 72, § 9)

Editor's note—Section 7181 now codified as section 48-12 Revision of 1958, General Statutes.

Sec. 42. Notice to establish or alter stream.

Notice of intention to establish or alter any stream line under this act shall be mailed by the city clerk by registered or certified mail to the owner or owners of the lands wholly or partly included within such stream line, at the address of such owner or owners appearing on the assessment records of the city or town where such lands are located, and shall be published by the city clerk in one (1) daily newspaper of general circulation in the County of Hartford. Each such notice shall include a general description of the lands wholly or partly included in such stream line. Thirty (30) days having expired after the mailing and publication of such notice, the flood control commission may proceed with the establishment or alteration of such stream line without regard to subsequent proceedings concerning the assessment of benefits and damages.
(Sp. Laws 1955, Act No. 72, § 10)

Sec. 43. Proceedings for assessments, etc.

Proceedings for assessment of benefits and damages under this act, for publication and notice thereof and appeals therefrom, and for the establishment and continuance of liens upon lands against which benefits are assessed shall be the same as are provided in the case of benefits and damages assessed by the director of public works under sections 3 and 4 of Chapter XI of Number

30 of the Special Acts of 1947, as amended, except that the powers and duties there conferred upon the director of public works shall under this act be exercised and performed by the flood control commission, or by the flood control director with the approval of the flood control commission.
(Sp. Laws 1955, Act No. 72, § 11)

Sec. 44. Budget appropriation by city.

The court of common council of the City of Hartford is authorized to appropriate as a part of the budget of the city, upon the recommendation of the flood control commission, such sums as in the judgment of the council may be necessary or advisable for the operation of the flood control commission and the administration of this act. All unexpended funds heretofore made available to the Hartford Flood Commission may be applied for the purposes of this act in such manner as the flood control commission, either by regulation or otherwise, may determine.
(Sp. Laws 1955, Act No. 72, § 12)

Sec. 45. Debt limitation.

To meet the cost of any public improvements duly recommended by the flood control commission, the City of Hartford shall have power, without regard to any limitation imposed by the general statutes or any special act respecting the amount, dating, interest or maturity of any debt and without approval by the voters of the city, to authorize and issue from time to time in its discretion not in excess of twenty million dollars ($20,000,000.00) aggregate principal amount of bonds, notes or other certificates of debt, in accordance with the provisions of the charter of the city concerning the authorization and issuance of bonds, except as such provisions are made inapplicable by this act. Such bonds, notes or other certificates of debt shall not be included in computing the aggregate indebtedness of the city in respect to any limitation upon the indebtedness of the city.
(Sp. Laws 1955, Act No. 72, § 13; Sp. Laws 1957, Act No. 292, § 5; Sp. Laws 1959, Act No. 205)

Sec. 46. Contracts with other cities and towns.

The flood control commission, in the name and on behalf of the City of Hartford, may, if it deems it advisable for the fulfillment of the purposes of this act, enter into contracts with any other city, town or other political subdivision lying wholly or partly within the territory drained by the Park River and its tributaries, and the territory adjacent thereto, for the exercise and performance by such other city, town or subdivision within its corporate limits of such of the powers and duties conferred by this act upon the City of Hartford and the flood control commission as such contracts may respectively provide. Except as may be otherwise limited in any such contract, such other city, town or subdivision shall have and enjoy with respect to any such contract, and in aid thereof, all such powers herein conferred upon the City of Hartford and the flood control commission as may be necessary or appropriate for the performance thereof, and such powers shall be exercised in the name and behalf of such other town, city or subdivision and not in the name and behalf of the City of Hartford or the flood control commission. Without limiting the generality of the foregoing, such powers shall include power to assess benefits and damages, to make appropriations for the whole or any part of the costs to be incurred under any such contracts and power to issue bonds, notes or other certificates of debt from time to time, without regard to any limitation imposed by the general statutes or any special act respecting the amount, dating, interest or maturity of any debt, to meet the cost of any public improvement carried out or to be carried out under any such contracts; but the making of such appropriations and the issuance of such bonds, notes or other certificates of debt shall be in accordance with the provisions of the charter of such other city, town or subdivision, except as such provisions are made inapplicable by this act.
(Sp. Laws 1955, Act No. 72, § 14; Sp. Laws 1957, Act No. 292, § 6)

Sec. 47. Grant of authority to cities and towns lying within drainage of Park River.

Subject to the limitations which ensue from the powers granted by this act, each city, town and municipal district lying wholly or in part within the territory drained by the Park River and its tributaries shall have all the powers relating to

the layout, making and establishing of dikes to prevent the inundation of said territory or any part thereof and relating to the protection thereof from flooding and flood damage and the raising or filling of low grounds, swamps and stagnant areas and the construction of necessary drainage-regulating devices, including pumping stations and equipment, drainage ditches, wells and storage basins, which said cities, towns and municipal districts respectively have or would have had if this act had not been adopted.
(Sp. Laws 1955, Act No. 72, § 15)

Sec. 48. Delegation of powers to flood control commission by city.

The court of common council of the City of Hartford may, by ordinance approved by the affirmative votes of at least six (6) of the members, delegate to the flood control commission any powers held or which may be held by any commission, department, office or agency of said city.
(Sp. Laws 1955, Act No. 72, § 16)

Sec. 49. Annual reports.

At the second meeting of the court of common council to be held in January of each year, and at the next regular meeting of the respective governing bodies of the towns of West Hartford, Bloomfield and Newington, the flood control commission shall file a report of its activities for the preceding year. All such reports shall be kept as public records and open to public inspection.
(Sp. Laws 1955, Act No. 72, § 17)

Sec. 50. Powers subject to approval by cities and towns.

Anything in this act to the contrary notwithstanding, no powers under this act may be exercised by the flood control commission without the approval of the legislative body of the town within the territorial limits of which the commission proposed to exercise such power.
(Sp. Laws 1955, Act No. 72, § 18)

Sec. 51. Amendments.

This act shall not be subject to amendment in the manner provided by section 3 of Chapter XX [Chapter XXI] of Number 30 of the Special Acts of 1947.
(Sp. Laws 1955, Act No. 72, § 19)

Editor's note—Act No. 641 of the Special Laws of 1957 renumbered Chapter XX as XXI.

Chapter XXVIII (Charter 1941)

SPECIAL COMMISSIONS

Sec. 52. Charter 1941, section 236, as amended.

Sec. 236. The flood commission. (a) *Organizations, expenses, officers, vacancies, powers.* There shall be in the City of Hartford a commission charged with the investigation of problems resulting from the flooding of the Connecticut or Park River or connected with the improvement of areas heretofore affected by the flooding of said rivers and with the preparation of plans for the layout or construction of dikes, walls, embankments, highways, bridges, pumping stations or other public works or improvements for the prevention of floods or for the general improvement of said areas. Said commission shall be known as the "Flood Commission" and shall have twelve (12) members. The commissioners shall serve without compensation, but they shall be entitled to reimbursement for their actual and necessary expenses incurred in the performance of their official duties. As first constituted, the members shall be the mayor, ex officio, and the eleven (11) members appointed by the mayor to the flood investigation and improvement commission created by resolution of the court of common council, adopted April 13, 1936. When a vacancy shall occur in said commission by death, resignation, refusal to serve or other cause, such vacancy shall be filled by appointment by the mayor in accordance with the provisions of the charter relating to the appointment of commissioners. Said commission may select from among its members a chairman, a vice chairman, and a secretary and it may employ such other officers, agents, consulting engineers, committees, assistants and employees, permanent and temporary, as it may require, and shall determine their qualifications and duties. Such officers, agents, consultants, committees, assistants and employees shall be paid for their services such sums as may be fixed by the commission and appropriated by the court of common

council. The department of engineering of the City of Hartford shall make all surveys, maps, plans, drawings, specifications and estimates requested by the flood commission, in accordance with the charter of the City of Hartford.

(b) *Dikes and drainage works, subject to commission approval; additional approval of controlling boards.* Said city is authorized to dike the west bank of the Connecticut River and the banks of the Park River; to provide for flood control reservoirs on the Park River; to provide for the control of said rivers in flood season either by walls, dikes, embankments or conduits or by pumping and, in order to accomplish said purposes, said city may construct or arrange for the construction of public works in the nature of dikes, embankments, walls, reservoirs, pumping stations or drainage works or otherwise in the city itself or in any of the towns adjoining said city, and may acquire such land, easements or appurtenances as may be necessary therefor. The proceedings under any resolution for the construction of any such dike or other public work authorized by this act or to carry out any of the purposes of this act shall be as provided in an act in relation to appraisals and assessments in the City of Hartford, approved March 19, 1877, as amended by acts approved May 7, 1917, and June 2, 1921, provided no such public work authorized by this act shall be commenced or substantially altered without the recommendation and approval of said flood commission. In the carrying out of such work, said city may use such parts of Bushnell, Riverside, Colt or Pope Park, or other park areas or lands controlled by other city boards or commissions as may be necessary, subject to the approval of the board of park commissioners or the board or commission controlling such land. Without limiting the generality of the foregoing, the city is specifically authorized to take and hold in fee simple that portion of Colt Park bounded northerly by land formerly of Colt's Patent Fire Arms Manufacturing Company, easterly by the Connecticut River, southerly by other land of said city, and westerly in part by Van Dyke Avenue and in part by land of the trustees of the property of The New York, New Haven and Hartford Railroad Company, and to grant to the State of Connecticut, its successors and assigns, a perpetual right-of-way for highway purposes across said land and to grant to the trustees of the property of The New York, New Haven and Hartford Railroad Company, their successors and assigns, a perpetual easement to construct, operate and maintain a railroad, railroad tracks or other structures necessary or useful in the service of transportation over and upon said land.

(c) *Benefits and damages; appeals.* All appeals taken from any appraisal of damages or assessments of benefits made by the board of street commissioners of the City of Hartford under the provisions of this act shall be to the superior court for Hartford County or to a judge of said court. As many of the parties interested as may choose to do so may join in such appeal and, when separate appeals shall be taken by different parties from one (1) assessment and appraisal, all such appeals shall be heard and tried as one (1) cause. Appeals may be taken from the assessment of benefits only, but, if taken from the appraisal of damages, shall be from such appraisal and also from the assessment of benefits made at the same time and for the same public work. Such appeals shall be taken within ten (10) days after public notice shall be given of such appraisal or assessment and shall be by suitable petition in writing, setting forth the whole of such assessment or appraisal and assessment appealed from, and asking for a reappraisal and reassessment or for a reassessment alone, with a citation attached thereto, signed by any authority authorized to sign writs, and returnable before said superior court for Hartford County or before a judge of said court, at two o'clock in the afternoon on the day three (3) weeks subsequent to the day on which public notice of such appraisal shall have been given, and such citation shall be served upon the clerk of said city at least six (6) days before the return day thereof. Such appeals may be heard by a judge of the superior court, but shall, upon the motion of any party thereto or persons interested therein, be referred to a committee or referee for hearing. If, upon the hearing of any appeal, the court, judge, committee or referee shall find cause to alter such appraisal and assessment, or assessment of benefits alone, then said court or such judge, committee or referee shall proceed to reapportion the whole amount of the damages and benefits or benefits alone upon the persons or lands specially benefited. If the court, judge, committee or referee hearing such appeal shall be of the opinion that

persons other than those who appear upon the record are interested in the subject matter of such appeal, said court or such judge, committee or referee shall cause the appellants to give notice of the pendency of the proceedings to such other persons, which notice shall be by publication in one (1) or more newspapers published in said city for such time and in such form as said court or such judge, committee or referee shall direct. Such judge, committee or referee shall have, for the purpose of disposing of such appeal, all the powers of the superior court and may render judgment thereon and may tax costs in favor of either party and issue execution for such costs, to be taxed as upon civil process in the superior court. Said court or judge, committee or referee shall, when the proceedings in any case arising under this act shall have been closed, return all the papers connected with the case to the clerk of said city, to be by him kept on file.

(d) *Appropriations.* For the carrying out of such public works as recommended by the flood commission, the court of common council is authorized to appropriate, without reference to or approval by the voters at a city meeting, such sums, not to exceed five million dollars ($5,000,000.00) in the aggregate, as in its judgment may be necessary or advisable to carry out the aforesaid public purposes.

(e) *Bonds for payment of improvements.* The City of Hartford shall have power to issue bonds, notes or other certificates of debt, from time to time, in its discretion, in accordance with the provisions of the charter of said city concerning the issuing of bonds, to meet the cost of any public improvement duly recommended by the flood commission and authorized by the court of common council.

(f) *Appeal from resolution to take property.* After the adoption by the flood commission of a resolution declaring that the acquisition of any real property described therein is necessary for the purposes authorized by this act, any person aggrieved by such resolution may appeal to the superior court for Hartford County or to a judge of said court, in accordance with the provisions relating to appeals from appraisals and assessments set forth in section three of this act.

(g) *Reservation of powers not expressly delegated.* The City of Hartford, the court of common council and the board of street commissioners of said city, subject to the limitations which ensue from the powers granted by this act to the flood commission, shall have all the powers relating to the layout, making and establishing of dikes to prevent the waters of the Connecticut River or the Park River from inundating or overflowing said city, or any part thereof, and relating to the protection of the north and south meadows or the raising or filling of low grounds, swamps or stagnant pools thereon, which said city, said court of common council or said board of street commissioners have or would have had under the various provisions of the charter of said city if this act had not been adopted. Said city, said council and said board of street commissioners, subject to the limitations which ensue from the powers granted by this act to the flood commission, shall also have all the powers relating to the construction of necessary drainage-regulating devices, including pumping stations and equipment, drainage ditches, wells and storage basins.

(h) *Rights and powers.* The flood commission shall have all the powers necessary or convenient to carry out the provisions and purposes of this act, including the power to enter into agreements and contracts with the United States of America, this state, The Metropolitan District having its territorial limits within the County of Hartford, and any other municipality of this state, in behalf of the City of Hartford; to sue and be sued and in the name of the City of Hartford; to make and execute contracts and other instruments in behalf of the City of Hartford and necessary or convenient to the exercise of the powers conveyed by this act; to sell, lease or use land taken for flood protection or stream-regulating purposes; to make and, from time to time, amend or repeal bylaws, rules and regulations not inconsistent with this act, to carry into effect the powers and purposes conveyed by this act.

(i) *Delegation of powers.* The court of common council of the City of Hartford may delegate to the flood commission any powers held or which may be held by any other commission, board or department of the City of Hartford.

(j) *Notice and publication of benefits; commencement and duration of liens.* Upon the final layout or completion of the construction of any public work or improvement authorizied by this act, the board of street commissioners shall give notice thereof that such benefits are due and payable, by publication twice in two (2) daily newspapers published in the City of Hartford, and all benefits assessed therefor shall be immediately due and payable. If the actual cost of the construction of any public work or improvement shall be less than the sum estimated by the board of street commissioners and assessed upon the parties benefited, each of the parties so assessed shall be entitled to a proportionate deduction from his assessment. Such benefits shall be a lien upon the land on account of which they were assessed, which lien shall commence and attach to such land from the time of the passage by the court of common council of the vote laying out or ordering the construction of such work or improvement; provided the same shall not remain a lien thereon for a longer period than three (3) months from the date of the last publication of the notice of the final layout or completion of such work or improvement, and provided the benefits assessed therefor are due and payable, unless the board of street commissioners shall, within that time, lodge with the town clerk of the Town of Hartford for record, a certificate, signed by the clerk of said board, describing the premises, the amount assessed and the public work or improvement for which it was assessed.

(k) *Supervision of authorized work.* After the layout of any public work authorized by this act, construction and maintenance of such public work shall be under the direction of the flood commission, unless the charter of the City of Hartford shall otherwise provide, or unless, upon the recommendation of the flood commission, the court of common council shall otherwise direct.

(l) *Reports and recommendations.* At the second meeting of the court of common council to be held in January of each year, the flood commission shall file with the court of common council a report of its activities for the preceding year, and shall make such recommendations as it may deem necessary or advisable to carry out the purposes of this act. All such reports and recommendations shall be kept as public records and open to public inspection.

(m) *Sections of this act to be interpreted separately.* If any provision of this act, or the application of such provision to any person or circumstances, shall be held invalid, the remainder of the act and the application of such provision to persons or circumstances other than those as to which it shall have been held invalid shall not be affected thereby.

(Sp. Laws 1941, Act No. 527, Ch. XXVIII, § 236; Sp. Laws 1943, Act No. 80)

Editor's note—Section 236 of the 1941 Charter Revision was continued in force and effect by section 5, Charter XVIII, Act No. 30, Sp. Laws 1947. Said section 5 was repealed by Act No. 106, Sp. Laws 1959. However, old section 236 is retained herein for its historical interest. The duties prescribed herein are transferred to the commission created by Sp. Laws 1955, Act No. 72, and Sp. Laws 1957, Act No. 292 (§ 35, this Appendix). See § 34, this Appendix.

Cross reference—Powers and duties of the flood commission transferred to the flood control commission for the Greater Hartford area, Appendix, § 34.

Sec. 53. Flood protective works on Broad Street armory grounds.

The State of Connecticut hereby gives to the City of Hartford the right to construct and maintain flood protective works in, over and upon the Broad Street armory grounds lying westerly of the Park River in Hartford.

(Sp. Laws 1945, Act No. 214)

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CHARTER COMPARATIVE TABLE

SPECIAL LAWS

This table shows the location of the sections of the basic Charter and Appendix and any amendments thereto.

Year	Act Number	Chapter	Section	Section this Charter
1941	527	XXVII	233	App., § 21
			234, 235	App., § 31, App., § 32
		XXVIII	236	App., § 52
1943	80			App., § 52
	177			App., § 32
	215			App., § 31
	327		1	App., § 21
			2, 3	App., § 31, App., § 32
	358			App., § 32
1945			2	App., § 21
	214			App., § 53
	277		1—7	App., § 9—App., § 15
	305			App., § 21
	308			App., § 32
	309			App., § 31
	328			App., § 30
	386		1, 2	App., § 21
	394			App., § 16
	436		1	App., § 21
1947	30		3	Ch. II, § 3
			4	Ch. XVII, § 4
		I	1, 2	Ch. I, § 1, Ch. I, § 2
		II	1, 2	Ch. II, § 1, Ch. II, § 2
			4, 5	Ch. II, § 4, Ch. II, § 5
			6	Ch. II, § 6, Ch. II, § 7
			8	Ch. II, § 8
		III	3—16	Ch. III, § 5—Ch. III, § 18
		IV	1—9	Ch. IV, § 1—Ch. IV, § 9
		V	1—7	Ch. V, § 1—Ch. V, § 7
		VI	1, 2	Ch. VI, § 1, Ch. VI, § 2
			3	Ch. VI, § 3 Ch. VII, § 3
			4—7	Ch. VI, § 4—Ch. VI, § 7
			9—17	Ch. VI, § 8—Ch. VI, § 16
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		X	1—7	Ch. X, § 1—Ch. X, § 7
		XI	1—4	Ch. XI, § 1—Ch. XI, § 4
		XII	1, 2	Ch. XIII, § 1, Ch. XIII, § 2
		XIII	1—5	Ch. XIV, § 1—Ch. XIV, § 5
		XIV	1—4	Ch. XV, § 1—Ch. XV, § 4
		XV	1—14	Ch. XVI, § 1—Ch. XVI, § 14
		XVI	1—3	Ch. XVII, § 1—Ch. XVII, § 3
			5	Ch. XVII, § 5
		XVII	1—4	Ch. XVIII, § 1—Ch. XVIII, § 4
		XVIII	1—13	Ch. XIX, § 1—Ch. XIX, § 13
		XX	1, 2	Ch. XX, § 1, Ch. XX, § 2
			4	Ch. XX, § 3
	292			App., § 3[b]
	319		1	App., § 9
	360		1—4	App., § 21
	379			App., § 21
	466			App., § 20
1949	281			App., § 16
1951	279			App., § 29
1955	18			App., § 27
	72		1—19	App., § 33—App., § 51
	74			App., § 5
	112			Ch. XVI, § 5
	353			App., § 1
	649			App., § 21
1957	5		1	App., § 24
			2	App., § 26
	157			App., § 28
	222			Ch. XVI, § 2
	227			Ch. VIII, § 2
	229			Ch. VII, § 5
	233			Ch. III, § 12
	235			Ch. VIII, § 9
	236			Ch. VIII, § 6
	237			Ch. III, § 6
	238			Ch. XVI, § 7
	239			Ch. XIV, § 2
	292		1	App., § 33
			2	App., § 35
			3, 4	App., § 37, App., § 38
			5, 6	App., § 45, App., § 46
	320			Ch. XIV, § 4
	321			Ch. XIV, § 1

Year	Act Number	Chapter	Section	Section this Charter
	347		1	Ch. XVII, § 3
			2—6	App., § 22—App., § 26
	475			App., § 3[a]
	477			App., § 32
	478			App., § 31
	521			App., § 17
	641			Ch. XVII, § 5
			1	Ch. II, § 1
			2	Ch. II, § 4—Ch. II, § 8
			3	Ch. VII, § 1
			4	Ch. VII, § 3
			5	Ch. VII, § 5
			6	Ch. XII, § 1, Ch. XII, § 2
		II	3	Ch. II, § 3
1959	157		1, 2	Ch. VII, § 2, Ch. VII, § 3
	205			App., § 45
	215			Ch. XII, § 1
	328			App., § 6
	389			App., § 39
	390			Ch. II, § 3
	401			Ch. XI, § 3
	457			App., § 7
	477			App., § 18
	496			Ch. XVII, § 5
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	219			Ch. IV, § 6
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	227			Ch. II, § 3
	228		1, 2	Ch. X, § 6, Ch. X, § 7
	261			App., § 8
1965	156		1, 2	Ch. XI, § 1, Ch. XI, § 2
			3	Ch. XIII, § 1
	234			Ch. XVII, § 5
1967	48			App., § 4
	61			Ch. XVIII, § 4
	142			Ch. VII, § 3
	368			App., § 10
	436		1	Ch. XIV, § 1
			2	Ch. X, § 6
1969	139		1	Ch. III, § 13
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			Ch. IV, § 4
	12- 8-58		Ch. XVII, § 3
	11- 5-63 (Res.)		Ch. III, § 5
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25-68	6-24-68		Ch. XVII, § 3

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47-68	9-23-68		Ch. XVII, § 3
48-68	9-23-68		Ch. XVII, § 3
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24-02	6-24-02			Ch. XVII, § 3(biii)(4)
10-03	4-28-03			Ch. XVII, § 3(biii)(4)
14-03	5-12-03			Ch. XVII, § 3(ff)
15-03	5-12-03			Ch. XVII, § 3(z)(8)

Ordinance Number	Date	Section		Section this Charter
16-03	5-12-03			Ch. XVII, § 3(z)(5), (6)
17-03	5-12-03			Ch. XVII, § 3(z)(7)
18-03	5-12-03			Ch. XVII, § 3(h)
20-03	5-27-03			Ch. XVII, § 3(p)
36-03	6-23-03			Ch. XVII, § 3(z)(8)
49-03	10-14-03			App., § 31(f)
05-04	2- 9-04			Ch. XVII, § 3(biii)(4)
06-04	2- 9-04			Ch. XVII, § 3(ff)
	11- 5-02(Election)		Rpld	Ch. I, §§ 1, 2, Ch. II, §§ 1—8, Ch. III, §§ 1—19, Ch. IV, §§ 1—11, Ch. V, §§ 1—7, Ch. VI, §§ 1—16, Ch. VII, §§ 1—6, Ch. VIII, §§ 1—18, Ch. IX, §§ 1—3, Ch. X, §§ 1—7, Ch. XI, §§ 1—4, Ch. XII, §§ 1, 2, Ch. XIII, §§ 1, 2, Ch. XIV, §§ 1—5, Ch. XV, §§ 1—4, Ch. XVI, §§ 1—14, Ch. XVII, §§ 1—5, Ch. XVIII, §§ 1—5, Ch. XIX, §§ 1—13, Ch. XX, §§ 1—4
			Added	Ch. I, §§ 1, 2, Ch. II, §§ 1—6, Ch. III, §§ 1—5, Ch. IV, §§ 1—7, Ch. V, §§ 1—4, Ch. VI, §§ 1, 2, Ch. VII, §§ 1—4, Ch. VIII, §§ 1—6, Ch. IX, §§ 1—5, Ch. X, §§ 1—9, Ch. XI, §§ 1—3, Ch. XII, § 1, Ch. XIII, §§ 1—5
	11- 5-13(Election)			Ch. III, § 2
			Added	Ch. III, § 6
Ord. of	11- 8-22(1)(Election)			App., §§ 16—32
Ord. of	11- 8-22(2)(Election)		Rpld	Chs. I—XIII
			Added	Chs. I—XII App., §§ 1—15

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PART II

MUNICIPAL CODE

Chapter 1

GENERAL PROVISIONS

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Sec. 1-2. Definitions; rules of construction.
Sec. 1-3. Liberal construction of Code.
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Sec. 1-5. Hearing procedure for citations.
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Sec. 1-10. Administrative copies to be kept up-to-date.
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Sec. 1-12. Official time standard.
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Sec. 1-15. Certain ordinances not affected by Code.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated "The Municipal Code of Hartford" and may be so cited. The Code may also be cited as "Hartford City Code".
(Code 1977, § 1-1)

Charter reference—Codification required, Ch. III, § 13.

Sec. 1-2. Definitions; rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless such construction would be inconsistent with the manifest intent of the council:

Assisted project. "Assisted project" shall mean any commercial development which receives any public subsidy, including but not limited to tax abatements, tax fixing agreements, public bonds, public grants, and public land or easements sold or otherwise conveyed for the benefit of the development for less than the appraised fair market value as determined as of the date of transfer, and which shall not be located in an enterprise zone.

Bond. When a bond is required, an undertaking in writing shall be sufficient.

Certified mail. In all cases in the Code where the words "registered mail" appear they shall mean "registered or certified mail".

City. The words "the city" shall mean the City of Hartford in the County of Hartford and State of Connecticut.

Commercial development. "Commercial development" shall mean any plant, building, office building, other real property improvement, or part thereof, which is newly constructed or substantially renovated or expanded and which is to be used primarily for manufacturing uses; office, general and professional use; service uses; and trade uses as set out in section 35-853 of the municipal code. A commercial development shall not include any project with a gross building floor area not exceeding forty thousand (40,000) square feet nor any project specifically excluded by a majority vote of the council.

Computation of time. Whenever a notice is required to be given or an act to be done a certain length of time before any proceeding shall be had, the day on which such notice is given or such act is done shall be counted in computing the time, but the day on which such proceeding is to be had shall not be counted.

Council. The word "council" shall mean the court of common council of the City of Hartford.

County. The words "the county" shall mean the County of Hartford in the State of Connecticut.

Delegation of authority. Whenever a provision appears requiring the head of a department or other officer of the city to do some act or perform some duty, or granting some right to him as such official, it shall be construed to authorize such department head or officer to designate, delegate and authorize subordinates to do the required act or perform the required duty, or it shall grant to them such right, unless the terms of the provision designate otherwise.

Developer. "Developer" shall mean any person, nonprofit corporation, business corporation, partnership, limited partnership, joint venture, trust, association or other persons or organizations having as one (1) of its or their purposes the construction, rehabilitation, ownership or operation of commercial buildings.

Floor area. "Floor area" shall have the same meaning as set out in section 35-2 of the Municipal Code.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships and corporations as well as to males, and words importing the feminine gender may apply to males.

General statutes. The words "general statutes" shall mean the most recent revision of the general statutes of the State of Connecticut, as from time to time amended.

Joint authority. Words purporting to give authority to several persons shall be construed as giving such authority to a majority of such persons.

Linkage trust fund. "Linkage trust fund" shall mean an account to collect and disburse moneys raised for the purposes of such fund.

Minority. "Minority" shall mean a person listed in one (1) of the categories defined in section 2-548(c)(1)—(4).

Month. The word "month" shall mean a calendar month.

Number. A word importing the singular number only may extend and be applied to several persons and things as well as to one (1) person and thing, and a word importing the plural number may apply to one (1) person or thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which by law an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Office developer. "Office developer" shall mean any developer of an office development.

Office developments. "Office developments" shall mean any commercial developments, not located in a designated enterprise zone, used primarily for office purposes, not including medical, educational or retail use.

Owner. The word "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, or joint tenant of the whole or of a part of such building or land.

Person; another. The words "person" and "another" may extend and be applied to communities, companies, corporations, public or private, societies and associations.

Preceding, following. The words "preceding" and "following" shall mean next before and next after, respectively.

Shall; may. The word "shall" is held to be mandatory; "may" shall be held to be permissive.

Sidewalk. The word "sidewalk" shall mean any portion of the street, usually lying on either side thereof, between the curb and the adjacent street line, intended for the use of pedestrians.

Signature, subscription. The word "signature" or "subscription" shall include a mark when a person cannot write.

State. The word "state" shall mean the State of Connecticut.

Street. The word "street" shall be construed to embrace streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto, and all other public thoroughfares in the city and shall mean all that part thereof from street line to street line of the premises abutting thereon.

Tense. Words used in the past or present tense shall include the future as well as the past and present.

Town. The words "the town" shall mean the Town of Hartford, in the County of Hartford and State of Connecticut.

Written, in writing. The term "written" or "in writing" shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

Year. The word "year" shall mean a calendar year.

(Code 1977, § 1-3; Ord. No. 20-86, 6-23-86; Ord. No. 30-87, 9-28-87)

State law reference—Rules of construction for statutory purposes, G.S. § 1-1 et seq.

Sec. 1-3. Liberal construction of Code.

All general provisions, terms, phrases and expressions in the Code and ordinances shall be liberally construed in order that the true intent and meaning of the council may be fully carried out.

(Code 1977, § 1-3; Ord. No. 20-86, 6-23-86)

Sec. 1-4. General penalty; continuing violations.

Wherever in this Code, or in any ordinance of the city, or rule or regulation promulgated by any officer thereof under authority vested in him by law or ordinance, any act is prohibited or is declared to be unlawful or an offense, or the doing of any act is required, or the failure to do any act is declared to be unlawful, where no

specific penalty is provided therefor, the violation of any such provision of this Code, ordinance, rule or regulation shall be punished by a fine not exceeding ninety dollars ($90.00) or confinement in jail not exceeding thirty (30) days, or both. Each day any such violation shall continue shall constitute a separate offense.

(Code 1977, § 1-4; Ord. No. 59-93, 10-25-93)

Charter reference—Maximum penalty authorized by charter for violation of ordinances, Ch. II, § 5.

Cross references—Commission on alcohol and drug abuse, § 2-211 et seq.; public emergencies, § 2-576 et seq.; alcoholic beverages, Ch. 4; motor vehicles and traffic, Ch. 22; nuisances generally, Ch. 24; offenses and miscellaneous provisions, Ch. 25; police, Ch. 29.

State law reference—General penalty limitation, G.S. § 7-148(c)(10)(A).

Sec. 1-5. Hearing procedure for citations.

(a) *Appointment of citation hearing officers.* There shall be a hearing procedure for citations established in accordance with G.S. § 7-152c. The Corporation Counsel shall appoint one (1) or more persons to act as citation hearing officers to conduct hearings authorized by this section, except that no police officer, member of the corporation counsel's office, employee or other person who issues citations shall be authorized to conduct hearings.

(b) *Notice of violation, fines, rights.* Within twelve (12) months from the expiration of the final period for the uncontested payment of fines, penalties, costs or fees for any citation issued under any ordinance adopted pursuant to G.S. § 7-148 or G.S. Ch. 97a, and for the violation of the zoning regulations of the planning and zoning commission, notice shall be sent to the property owner of the alleged violation. Such notice shall inform the owner and other person cited: (1) Of the allegations against him and the amount of the fines, penalties, costs or fees due; (2) That he may contest his liability before a citation hearing officer by delivering in person or by mail written notice within ten (10) days of the date thereof; (3) That if he does not demand such a hearing, an assessment and judgment shall be entered against him; and (4) That such judgment may issue without further notice.

(c) *Admission of liability*. If the person who is sent notice pursuant to subsection (b) of this section wishes to admit liability for any alleged violation, he may, without requesting a hearing, pay the full amount of the fines, penalties, costs, or fees admitted to in person or by mail to the City department that issued the citation. Such payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment. Any person who does not deliver or mail written demand for a hearing within ten (10) days of the date of the first notice provided for in subsection (a) of this section shall be deemed to have admitted liability, and the Corporation Counsel shall certify such person's failure to respond to the hearing officer. The hearing officer shall thereupon enter and assess the fines, penalties, costs, or fees provided for by the applicable ordinances and shall follow the procedures set forth in this section.

(d) *Conduct of hearing.* Any person who requests a hearing pursuant to subsection (c) of this section shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than fifteen (15) days nor more than thirty (30) days from the date of the mailing of notice, provided the hearing officer shall grant upon good cause shown any reasonable request by an interested party for postponement or continuance. An original or certified copy of the initial notice of violation issued by the issuing official or police officer shall be filed and retained by the municipality, and shall be deemed to be a business record and evidence of the facts contained therein. The presence of the issuing official or police officer shall be required at the hearing if such person so requests. A person wishing to contest his liability shall appear at the hearing and may present evidence in his behalf. The corporation counsel or his designee shall present evidence on behalf of the city. If the owner or person cited fails to appear, the hearing officer may enter an assessment by default against him upon a finding of proper notice and liability under the applicable statutes or ordinances. The hearing officer may accept from such person copies of police reports, investigatory and citation reports, and other

official documents by mail and may determine thereby that the appearance of such person is unnecessary. The hearing officer shall conduct the hearing in the order and form and with such methods of proof as he deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation. The hearing officer shall announce his decision at the end of the hearing. If the hearing officer determines that the person is not liable, the matter shall be dismissed and the determination entered in writing accordingly. If the hearing officer determines that the person is liable for the violation, he shall forthwith enter and assess the fines, penalties, costs or fees against such person as provided by the applicable ordinances.

(e) *Notice of assessment*. If such assessment is not paid on the date of its entry, the hearing officer shall send by first class mail a notice of the assessment to the person found liable and shall file, not less than thirty (30) days nor more than twelve (12) months after such mailing, a certified copy of the notice of assessment with the clerk of the superior court for the Judicial District of Hartford together with an entry fee of eight dollars ($8.00), against such person in favor of the municipality. Notwithstanding any other provisions, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution on such judgment may issue without further notice to such person. Fines stemming from the Anti-Blight and Property-Maintenance Program in Chapter 9, Article V, herein, may be continued as anti-blight liens pursuant to G.S. § 7-148aa.

(f) *Appeal*. A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty (30) days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal the entry fee for a small claims case in the superior court for the Judicial District of Hartford, which shall entitle such person to a hearing in accordance with the rules of the judges of the superior court.
(Ord. No. 24-89, §§ 1—3, 8-14-89; Ord. No. 2-93, 1-11-93; Ord. No. 10-17, 3-13-17; Ord. No. 003-20, 6-22-20)

Sec. 1-6. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections and shall not be deemed or taken to be titles of such sections, nor as any part of the sections, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.
(Code 1977, § 1-5)

Sec. 1-7. Section and chapter numbers.

(a) In each section number the figure before the dash refers to the chapter number and the figure after the dash refers to the position of the section within the chapter. No officer or employee of the city shall issue any book or pamphlet containing any section of this Code numbered otherwise than it is numbered in this Code.

(b) No section number shall be changed by any officer or employee, other than the corporation counsel, in drafting any ordinance amending any section of this Code. When a section is to be added to this Code it shall be given a decimal number. All such decimal numbers shall run consecutively to the right of the decimal beginning with the figure "one". When a chapter is to be added to this Code, it shall be assigned a decimal number; thus a chapter between chapters 11 and 12 would be numbered 11.5.

(c) Amendments and additions to the Code shall be submitted by the city clerk to the corporation counsel for numbering before passage. If any amendment or addition is passed without having been properly numbered, the city clerk, before the next regular meeting of the council, shall refer the same for appropriate action to the corporation counsel.

(d) This section shall be construed for the purpose of avoiding confusion in the numbering of chapters and sections of this Code, and shall not be deemed a limitation upon the powers of the council.
(Code 1977, § 1-6)

Sec. 1-8. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the corporation counsel. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the council during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may, with the approval of the corporation counsel, make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into the unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but, in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(d) The corporation counsel shall cause copies of each and every such reprint to be distributed to each distributee and to every purchaser of the Code who has ordered and paid for maintenance service.

Sec. 1-9. Distribution of copies of Code.

(a) All printed copies of this Code, shall be deposited with the corporation counsel's office. He shall deliver one (1) copy thereof to the city manager, one (1) copy to each member of the council, and one (1) copy to the head of each department of the city and to such other persons in each department as its head may designate. The corporation counsel's office shall sell printed copies of this Code at such price as the council may fix.

(b) The mayor shall have power to reciprocate courtesies of other cities by presenting to each a copy of this Code, bound at the expense of the city, in such manner as to him may seem suitable.
(Code 1977, § 1-7)

Sec. 1-10. Administrative copies to be kept up-to-date.

Two (2) copies of this Code shall be preserved by the city clerk in a book or binder in looseleaf form, or in such other form as he may consider most expedient, so that all amendments and additions passed may be inserted in their appropriate places in such volumes and all sections repealed from time to time may be extracted therefrom, for the purpose of maintaining such copies in such condition that they will show at any time the status of all general ordinances passed up to that time. If any doubt arises in determining whether or not any ordinance passed, or part thereof, shall be inserted in such copies, or determining the form, chapter or section in which it shall be inserted, or in determining what material shall be deleted, the city clerk shall be guided by the advice of the corporation counsel.
(Code 1977, § 1-8)

Sec. 1-11. Revisions.

The corporation counsel shall cause revised sheets of every looseleaf page in need of revision by reason of amendment, addition or repeal to be prepared and published at such intervals as he may deem necessary. The city clerk shall distribute such revised looseleaf sheets for such fee as the council may direct.
(Code 1977, § 1-9)

Sec. 1-12. Official time standard.

Whenever provisions as to time are contained in this Code, or in any ordinance of the city or rule or regulation promulgated by any duly authorized officer thereof, such provisions shall be taken to mean standard time or daylight saving time, according to the system then in use in the city, as provided by the general statutes.
(Code 1977, § 1-10)

Sec. 1-13. Effect of repeal of ordinances.

When any ordinance which has repealed a former ordinance or part thereof shall itself be repealed, such repeal shall not be construed to revive such former ordinance without express words to that effect.
(Code 1977, § 1-11)

Sec. 1-14. Severability.

If any part, section, sentence or clause of this Code is for any reason adjudged void and of no effect, such decision shall not affect the validity of the remaining portions of this Code.
(Code 1977, § 1-13)

Sec. 1-15. Certain ordinances not affected by Code.

The repeal provided for in the ordinance adopting this Code shall not affect any of the following:

(1) Any ordinance or resolution of the council conferring any right or franchise, or promising or guaranteeing the payment of money by the city, or authorizing the issuance of any bonds or other evidence of indebtedness of the city;

(2) Any ordinance or resolution or any part of any ordinance or resolution not in conflict with this Code which provides for or relates to salaries or bonds of officers and employees of the city;

(3) Any ordinance or resolution providing for any public improvement, making any assessment, appropriating moneys or levying or imposing taxes;

(4) Any ordinance or resolution naming, establishing, relocating or vacating any street or public way;

(5) Any ordinance or resolution adopted for purposes which have been consummated, or any ordinance or resolution which is temporary, although general in effect, or special, although permanent in effect;

(6) Any ordinance annexing any territory to the city or excluding territory as a part of the city;

(7) Any ordinance rezoning specific property;

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Chapter 2

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*__Cross references—__Fire department, § 13-21 et seq.; administration of garbage and refuse regulations, § 15-2; regional council of elective officials, § 28-26 et seq.; capitol region planning agency, § 28-46 et seq.; redevelopment agency, § 28-66 et seq.; police, Ch. 29; taxation and assessments for improvements, Ch. 32.

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ARTICLE I. IN GENERAL

Sec. 2-1. Regulations to be filed, published.

(a) Each city officer or agency empowered to make rules and regulations, except officers or agencies empowered by statute or the charter so to do, shall file with the city clerk an original or duplicate original of each rule or regulation made by him which directly affects the public interest. The city clerk shall cause each rule or regulation filed to be published in a newspaper having a general circulation in the city. Such rule or regulation shall be valid when filed and published as provided in this section and approved by the council.

(b) The provisions of this section shall not apply to rules or regulations pertaining to the internal administration of any department or agency.
(Code 1977, § 2-1)

Sec. 2-2. Council approval of administrative regulations.

(a) All rules and regulations filed by city officers or agencies as provided in section 2-1 shall be submitted by the city clerk to the council for study and approval. The council on its own motion may at any time consider any existing rule or regulation.

(b) Any rule or regulation disapproved by the council shall be void and shall not be reissued without the prior approval of the council.

(c) If the council neither approves nor disapproves of a rule or regulation submitted to it for two (2) regular meetings, the rule or regulation shall become effective.
(Code 1977, § 2-2)

Sec. 2-3. Officers and employees issuing legal publications or opinions.

No officer or employee of the city shall issue, mail or distribute as a publication on the part of the city or any officer, department or agency of the city government any book, pamphlet, leaflet, card, circular or other printed matter purporting to contain excerpts or quotations from this Code or purporting to give the law on any subject to the public either as a reprint of a statute, ordinance or other legislative enactment, or as a digest, interpretation, resume, condensation or explanation of the same, without submitting such book, pamphlet, leaflet, card, circular or other printed matter, or the portion of the printed matter which purports to quote or give the law, to the corporation counsel for examination and approval as to form and as to accuracy of the statements of law contained in the printed matter.
(Code 1977, § 2-3)

Sec. 2-4. Publication of legal advertisements.

Every public advertisement required by law to be made of any city notice or ordinance shall be published in a newspaper having a circulation in the city. No such advertisement shall be inserted or published in any newspaper more than three (3) times unless otherwise required by law. All such advertisements shall be published in such manner, consistent with law, as will save expense to the city.
(Code 1977, § 2-4)

Charter reference—Publication of ordinances, Ch. III, § 13.

State law reference—Publication of ordinances, G.S. § 7-157.

Sec. 2-5. Payment of office rent and granting of license agreements for access to city property.

(a) No sum shall be paid by any city officer as rent for an office unless such office has been leased by order of the council.

(b) No license agreement for temporary access to City-owned property shall be granted for a term exceeding one hundred eighty (180) days unless approved by the city council. Such license agreement shall go into effect if the council fails to approve or reject such license agreement within thirty (30) days of submission to council.
(Code 1977, § 2-5; Ord. No. 07-07, 6-11-07; Ord. No. 08-14, 5-12-14)

Sec. 2-6. Inventories of city property.

The heads of the various departments and agencies of the city government shall furnish or

cause to be furnished to the department of finance at such times and in such forms as the director of finance may require, itemized inventories of all property, real and personal, belonging to the city and in the custody or under the control of such departments and agencies.
(Code 1977, § 2-6)

Sec. 2-7. Documents relating to property to be deposited with treasurer.

All deeds and leases of city property and agreements entered into by the city in relation thereto shall be deposited with the city treasurer as soon as they have been recorded, and thereafter shall be kept by him.
(Code 1977, § 2-7)

Sec. 2-8. Identification of city vehicles.

Except as expressly permitted by the city manager in writing, all motor vehicles owned by the city and used by any officer or employee of any department thereof in the business of the city, shall be plainly marked "City of Hartford," and each of such vehicles shall also be marked with the name of the department by which it is used.
(Code 1977, § 2-8)

Cross reference—Motor vehicles and traffic, Ch. 22.

Sec. 2-9. Vehicle insurance required.

No contract shall be awarded for the purchase of any transportation services unless the bidder has filed evidence of a comprehensive automobile liability insurance policy satisfactory to the purchasing agent in a sum sufficient to indemnify the city for any liability incurred by it, and to hold the city harmless for injuries to persons or property as a result of the exercise of the contract, but with limits not less than five million dollars combined single limit ($5,000,000.00 CSL). Such policy shall remain in force for the duration of the contract.
(Code 1977, § 2-10; Ord. No. 40-85, 11-25-85)

Cross reference—Motor vehicles and traffic, Ch. 22.

Sec. 2-10. Powers, duties of purchasing agent relating to vehicle insurance.

The purchasing agent may prescribe and enforce temporary regulations pertaining to insurance on city vehicles to cover emergencies and special conditions. He shall take immediate action to prohibit the use and operation of any vehicles contrary to the provisions of section 2-9, and may issue and make such orders in relation thereto as he may deem equitable; provided, however, that no person, guarantor or surety shall be accepted at any time.
(Code 1977, § 2-11)

Cross reference—Motor vehicles and traffic, Ch. 22.

Sec. 2-11. Participation in regional council of governments.

(a) The city does hereby adopt G.S. §§ 4-124i through 4-124p providing for the formation of a regional council of governments within a planning region, as defined or redefined by the director of the office of state planning. The city hereby joins the regional council of governments within its planning region when and as such council is duly established in accordance with G.S. 4-124i through 4-124p upon the adoption of such statute by not less than sixty (60) percent of all municipalities within such planning region.

(b) The representative of this city on the regional council shall be the mayor of this city. An alternate representative, when authorized, shall be a member of the court of common council, who shall be chosen by the court of common council. The representative of this city on the regional planning commission, as provided for in G.S. § 4-124o, shall be an elector of the city, who shall be a member of the planning and zoning commission. Such representative shall be appointed by the planning and zoning commission with the concurrence of the court of common council.

(c) The regional council of governments shall have such powers, purposes, duties and responsibilities as provided in G.S. § 4-124i through 4-124p.
(Code 1977, § 2-17; Ord. No. 003-20, 6-22-20)

Sec. 2-12. Filing and payment deadlines.

Whenever an ordinance, regulation, or administrative procedure requires that a filing with or payment to the City be made within a specified period of time, that period of time shall

be calculated from the day after the event that triggered the required filing or payment occurred. If the last day of the allowed period is a Saturday, Sunday, legal holiday or day on which the Office of the Town and City Clerk is closed for any other reason, the filing or payment shall be due on the next day that is not a Saturday, Sunday, legal holiday, or day on which the Office of the Town and City Clerk is closed for any other reason.
(Ord. No. 08-14, 5-12-14)

Sec. 2-13. Display of flags at City Hall.

(a) *Purpose.* The purpose of this Section is to establish guidelines for the display by the City at City Hall of (1) flags traditionally flown at City Hall, and (2) other flags, as directed by this section.

(b) *Policy.* It is the policy of the City that flags should be displayed in conformance with Federal and State policies, as stated in the Federal "Our Flag" publication of the Congress, House Document No. 96-144, and in C.G.S. §§ 3-10f, 3-107, and 4b-14a.

(c) *Flags traditionally flown at City Hall.* The City traditionally displays two (2) flags at City Hall: (1) the United States flag and (2) the Connecticut State flag. The City may also display the City of Hartford municipal flag at its discretion.

(d) *Order of precedence.* Outdoor flags will be flown at City Hall in the following order of precedence: (1) the United States flag, (2) the Connecticut State flag, (3) the City flag, and (4) all other flags, as described herein.

(e) *Special occasions of Federal, State, and local proclamation.* Flags flown at City Hall shall be displayed in accordance with the above standards, subject to the following conditions:

(i) The Mayor may order flags to be lowered to half staff including, but not limited to, flags of the United States of America and the State of Connecticut, in honor of the death of a City employee killed in the line of duty, or in observance of a specific event or circumstance.

(ii) The City may use its flagpoles to express official, City-endorsed messages that may be appropriately accompanied by ceremonial flag-raising.

(f) *Display of other flags.* The following flags may be displayed by the City as an expression of the City's official sentiments:

(i) Flags of governments with which the United States maintains diplomatic relations and flags of states and territories of the United States may be displayed at the sole discretion of the Mayor.

(Ord. of 2-13-24(1); Ord. of 9-23-24; Ord. of 2-23-26)

Secs. 2-14—2-30. Reserved.

ARTICLE II. MAYOR AND COUNCIL*

Sec. 2-31. Office of mayor declared a department; positions.

(a) The office of the mayor is hereby declared a department of the city.

(b) The mayor may appoint:

(1) A chief of staff, legislative assistant, research assistant, personal secretary and receptionist, or equivalent positions whose compensations shall be set by the mayor and for which compensations the council shall appropriate sufficient funds. In the event such compensations exceed four (4) times the mayor's annual salary for the aforementioned positions in a fiscal year, the mayor shall notify council in writing his reasons for exceeding such level.

(2) Such other staff appropriated by council and necessary for the administration of official duties whose compensation shall be set by the mayor.

(3) A chief operating officer, nominated by the mayor and approved by council whose compensation shall be set by the mayor in a range approved by council.

(c) All appointees within the office of the mayor shall serve at his pleasure and may be required by the mayor to establish residency within the City of Hartford.

(d) By January 10th of each year the mayor shall provide a list of his assistants and aides with their weekly salary to the city clerk and the director of human resources.
(Code 1977, § 2-29; Ord. No. 25-84, 6-25-84; Ord. No. 10-92, 1-13-92; Ord. No. 24-94, 8-8-94; Ord. No. 53-03, 12-22-03)

Sec. 2-32. Special meetings called.

(a) Special meetings of the council may be held at any time the council may direct and may also be called on forty-eight (48) hours' notice by the city manager, the mayor or any three (3) members of the council.

(b) Any call for a special meeting by the city manager, the mayor or members of the council shall be in writing, shall set forth the time of such meeting, shall contain a statement of the specific business to be transacted at such meeting, and shall be presented to the clerk of the council.
(Code 1977, § 2-30)

Charter reference—Calling of special meetings, Ch. III, § 6(b).

Sec. 2-33. Issuance and publication of warrant of special meeting.

(a) The clerk of the council, at the direction of the council or upon written call for a special meeting as provided herein, shall immediately issue a warrant specifying the object of the meeting, together with twelve (12) true and attested copies thereof, to the chief of police, requiring him to notify the members of the council, the mayor, the city manager and the corporation counsel that such meeting will be held at the time and place designated in such warrant.

(b) Upon issuing such warrant, the clerk shall immediately cause a true and attested copy thereof to be published once in a daily newspaper of general circulation in the city as provided in section 2-4 and shall also cause a true and attested copy thereof to be fixed on the public signpost of the city.
(Code 1977, § 2-31)

Sec. 2-34. Service of warrant of special meeting.

A warrant for a special meeting shall be served by the chief of police or by such other member of the department of police as the chief may designate, by leaving a true and attested copy thereof with each member of the council, the city manager and the corporation counsel, or at the usual place of abode of each person, at least forty-eight (48) hours before the time when such meeting is to be held. The warrant shall be returned with a proper endorsement of service thereon to the clerk of the council before the meeting.
(Code 1977, § 2-32)

Sec. 2-35. Emergency meetings.

Whenever in the mayor's judgment an emergency requires a special meeting to be called on

*__Charter reference—__Council and mayor generally, Ch. III.

shorter notice than is provided for in section 2-34, the mayor may call together the council on three (3) hours' notice.
(Code 1977, § 2-33)

Charter reference—Emergency meetings, Ch. III, § 6(c).

Sec. 2-36. Reports by corporation counsel.

(a) It shall be the duty of the corporation counsel at the expiration of each year, or sooner if required to do so, to make a full report to the council of the status of all suits or other legal proceedings in which the city is interested, whether finished or pending.

(b) It shall be the further duty of the corporation counsel to report to the council, with reasonable promptness, the full text of all opinions rendered by him.
(Code 1977, § 2-34)

Charter reference—Corporation counsel generally, Ch. XVIII, § 4.

Sec. 2-37. Reimbursement of mayor for entertainment expenses.

The mayor shall be reimbursed for actual expenses incurred in the entertainment of guests of the city.
(Code 1977, § 2-35)

Sec. 2-38. Committee on city medallion—Creation and composition.

There shall be a committee on presentation of the city medallion which shall consist of three (3) members of the council and two (2) citizens of the city.
(Code 1977, § 2-36)

Sec. 2-39. Same—Appointment of members.

The mayor shall nominate and the council shall approve two (2) citizen members of the city medallion committee biennially not later than the first Tuesday of December to hold office for the term of two (2) years from the first Tuesday of December in the year of their appointment and until their successors have been appointed and qualified. From its number the council shall appoint biennially three (3) members of the committee at the first meeting of a newly elected council on the first Tuesday of December following the general municipal election, who shall hold office for the term of two (2) years and until their successors have been appointed and qualified.
(Code 1977, § 2-37)

Sec. 2-40. Same—Powers.

All proposals to confer the city medallion upon any guest of the city or upon any other person shall be submitted to the council and referred by it to the committee for approval. The medallion shall not be conferred upon any guest of the city or upon any other person by the council unless four (4) or more members of the committee approve the presentation thereof.
(Code 1977, § 2-38)

Sec. 2-41. Internal audit commission.

(a) *Established.* There shall be an internal audit commission.

(b) *Purpose, responsibility, and authority.* The commission shall conduct independent examinations and evaluations of city financial activities to assure the integrity, efficiency, and efficacy of the government of the city, including the board of education. Such examinations and evaluations may involve investigations of accounting irregularities, mismanagement or fraud and such independent staff, consultants and counsel necessary to achieve the purposes of the Charter. The commission shall direct staff and consultants of the internal audit unit established pursuant to section 2-41.1 of this Code. The commission shall give due consideration to requests from the council or any member thereof and from the mayor, in establishing and modifying the audit plan of the commission or the work plan of the staff of the internal audit unit. This shall not prevent the commission from giving due consideration to any complaint by any employee or citizen of the city with regard to use or misuse of city funds. In carrying out its duties, the commission, and the internal audit unit, acting pursuant to direction of the commission, shall perform activities such as, but not limited to, the following:

(1) Ascertaining the extent of compliance with established policies, plans, procedures and legal requirements;

(2) Reviewing and appraising the soundness, adequacy and application of accounting, financial, operating and systems controls;

(3) Ascertaining the extent to which city assets are accounted for and safeguarded from losses of all kinds; and

(4) Ascertaining the reliability of management data developed within the city departments and offices and the board of education.

(c) *Membership.*

(1) The commission shall consist of three (3) members, no more than two (2) of whom are members of the same political party. Each member of the commission shall have professional or equivalent experience in at least one (1) of the following fields; accounting, management, or financial analysis. As to issue of politically partisan activities or financial matters, members of the commission will be subject to the same requirements as members of the ethics commission of the city.

(2) No member shall:

a. Hold or campaign for public office;

b. Have held or been a candidate for public office during the three-year period prior to appointment;

c. Hold office in any political party or political committee;

d. Be a city employee;

e. Employ or be employed as a person required to register as a lobbyist.

(3) The membership of the commission shall be as follows:

a. One (1) member of the commission shall be appointed by majority vote of the council;

b. One (1) member of the commission shall be appointed by the city treasurer; and

c. One (1) member of the commission shall be appointed by majority vote of the council from the two (2) individuals nominated by the owners of taxable property who are the ten (10) highest-paying taxpayers (hereinafter referred to as "certified tax payers") in the city as determined by the most recent grand list, as certified by the city assessor.

(4) Each member shall comply with the Code of Ethics as set forth in Chapter 2, Article XIX of the Municipal Code.

(d) *Nomination of taxpayer member.* The city assessor shall ask the certified tax payers to convene for the purpose of nominating the two (2) individuals to be presented to the council, one (1) of whom shall be appointed by the council to the internal audit commission, as described in subsection (c)(3)c. of this section. The certified taxpayers shall forthwith nominate the two (2) individuals and forward the nominations to the council.

(e) *Term of office.*

(1) a. The member first appointed by a majority vote of the council, as specified in subsection (c)(3)a. shall serve a four-year term.

b. The member first appointed by the city treasurer, as specified in section (c)(3)b. of this section, shall serve a three-year term.

c. The member first appointed by the council, in accordance with subsection (c)(3)c. of this section shall serve a two-year term.

(2) On and after January 1, 2006, members appointed to the commission shall serve a term of four (4) years beginning January 1 and expiring after December 31 of each fourth year after January 1, 2006. A member of the commission whose term has expired shall serve on the commission until the successor of the member has been appointed. Commissioners may serve multiple terms.

(f) *Chair.* The members of the commission shall elect one (1) of its members to serve as chair.

(g) *Residency requirement.* The residency requirements of Chapter VII, section 1(e) of the Charter do not apply to members of the commission.

(h) *Vacancy.* In the event of a vacancy on the commission a successor may be appointed for the unexpired term of office by the appointing authority of the member whose position is vacant. If the vacancy is in the position of taxpayer member appointed pursuant to the provisions of subsection (c)(3)c. of this section, the council shall appoint the member from a new list of two (2) nominees created pursuant to the provisions of subsection (d) of this section.

(i) *Removal.* The appointing authority of commission members may initiate proceedings to remove a member of the commission for any of the following reasons:

(1) Misconduct in the performance of duties;

(2) Persistent absence;

(3) Conviction of a felony;

(4) Conviction of a misdemeanor that would undermine the public confidence in the member's ability to perform the duties of office;

(5) Appointment or election as an officer or employee of the city.

Seven votes of the council shall be required to remove a member of the commission. The procedure for such removal will be in accordance with the relevant language of Chapter IV, Section III, paragraph "a" of the Hartford City Charter.

(j) *Meetings.* The internal audit commission shall meet as often as it deems necessary, but at least once each quarter. The business of the internal audit commission shall be recorded in official minutes, which shall be "public documents" within the meaning of the Freedom of Information Act of the State of Connecticut. The said meeting minutes shall be filed with the town and city clerk within two (2) weeks following each meeting. Staff of the internal audit unit, established pursuant to the provisions of section 2-41.1 of the Code, shall serve as staff to the commission and shall record the minutes of the internal audit commission at each meeting.

(k) *Annual internal audit budget.* The internal audit commission shall adopt and forward to the mayor, in accordance with the procedures and timetable established for other city departments, a proposed annual budget. Unless the commission requests a smaller amount, the mayor's budget shall include, and the council shall appropriate, for support of the internal audit commission and internal audit unit at least the amount necessary to maintain the staffing and the operating expenses of the unit as approved in the previous annual budget.

(l) *Audit plan, procedures, and reports.* The commission shall prepare an annual audit plan; prepare and submit to council a quarterly activities report each July first, October first, January first, and April first; and establish standard operating procedures for the commission and the internal audit unit. Any employee of the city, the head of a department, agency, or office, and any city officer cited in an internal audit report shall provide a written response to any inquiry from the internal audit unit made on behalf of the internal audit commission. All reports of the commission and unit, including responses thereto, shall be public and shall be submitted to the appointing authorities and to the mayor.

(m) *Compensation.* No member of the commission shall receive compensation for services as a member of the commission, nor shall any member of the commission be deemed to be either an employee of the city for purposes of pension credit, or a member of the city municipal employees' retirement fund.

(Ord. No. 11-04, 7-6-04; Ord. No. 11-13, 11-25-13)

Editor's note—Ord. No. 11-04, adopted July 6, 2004, repealed former § 2-41 of the Code, which pertained to the internal audit unit and derived from the 1977 Code, § 2-39, and Ord. No. 9-83, §§ 1—4, adopted Feb. 28, 1983. In addition, Ord. No. 11-04 added new provisions to the Code as §§ 2-42, 2-43; as other provisions already existed within the Code as § 2-43, said provisions of Ord. No. 11-04 have been redesignated as §§ 2-41, 2-41.1 at the editor's discretion.

Charter reference—Internal audit commission, Ch. VII, § 2(a).

Cross reference—City finances, § 2-481 et seq.

Sec. 2-41.1. Internal audit unit.

(a) *Established.* There shall be an internal audit unit which shall be a department of the City of Hartford. The unit shall provide staff to, and

shall report to and be under the direction of, the internal audit commission. The unit shall discharge the responsibilities of the internal audit commission as directed by the commission. The unit shall have full access to all records, property and personnel of all city departments and offices and those of the board of education in the performance of its duties. The unit shall discharge its responsibilities in a manner consistent with the code of ethics of the institute of internal auditors.

(b) *Head of unit.* The head of the internal audit unit shall be the chief auditor, who shall be appointed by the commission. The chief auditor shall be a member of the classified service, shall be certified as an internal auditor or fraud examiner, and shall have an advanced degree in accounting, business administration, public administration, or law. The chief auditor shall be administratively responsible for the operation of the internal audit unit and shall make recommendations to the commission concerning appointments to the unit, promotions within the unit, and the salary, within adopted salary schedules, for each employee of the unit. Additionally, the head of the internal audit unit shall be responsible for the timely filing of internal audit commission minutes with the town and city clerk, in accordance with subsection 2-41(j).

(c) *Staff.* The internal audit unit shall have such staff as shall be approved by the council in adoption of the annual budget, as recommended by the commission, subject to the provision of subsection 2-41(k). Staff of the internal audit unit shall be members of the classified service and, subject to the rules of the classified service, shall be appointed and may be removed by the chief auditor.

(d) *Consultants.* In accordance with Chapter VII, Section 2(a)(3) of the Charter, the commission and the internal audit unit may retain such consultants for the purpose of conducting the examinations and evaluations required by the Charter and this Code. Such consultants may include, but not be limited to, accounting professionals, legal counsel, financial advisors, information technology consultants or criminal investigators as deemed necessary and appropriate.

(e) *Counsel to the internal audit commission and internal audit unit.* In accordance with Chapter VII, Section 2(a) and (b) and Chapter VIII, Section 3(b)(1)(i) of the Charter, the commission and the internal audit unit may retain counsel for the purpose of providing legal advice necessary to conduct the independent examinations into all matters relating to the integrity, efficiency and efficacy of the government of the city, including the board of education. Notwithstanding any provisions otherwise set forth in this Code or by resolution regarding the role of the Corporation Counsel with regard to the (1) representation of the commission and the internal audit unit and (2) selection and retention of counsel, the commission is hereby authorized to retain counsel in accordance with Chapter VIII, Section 3(b)(1)(i) of the Charter. Said Counsel shall be an attorney of good standing in the State of Connecticut for a period of not less than ten (10) years or a reputable firm.

(Ord. No. 11-04, 7-6-04; Ord. No. 11-13, 11-25-13)

Charter reference—Internal audit unit, Ch. VII, § 2(a)(3).

Note—See the editor's note following § 2-41.

Sec. 2-42. Power and authority of the mayor.

(a) To the extent provided in Chapter V of the Charter as revised, the executive and administrative powers of the city are vested in the mayor.

(b) Notwithstanding any other provision of this Code or any provision of any ordinance or resolution, all powers, authority, duties, rights, responsibilities, and obligations formerly given to the city manager under any code provision, ordinance, resolution, statute, enactment, regulation, agreement, rule, opinion, stipulation or order are powers, authority, duties, rights, responsibilities, and obligations of the mayor, unless inconsistent with the charter as revised. Said powers, authority, duties, rights, responsibilities, and obligations are in addition to those given expressly to the mayor.

(Ord. No. 55-03, 12-22-03)

Sec. 2-43. Appointment of officers by council.

At the organizational meeting of the council held in January of each even-numbered year, the

council shall elect the council president and shall appoint a town and city clerk and other officers, except as otherwise provided by law.
(Ord. No. 07-05, 8-8-05)

Charter reference—Appointments by council, Ch. IV, § 4.

Sec. 2-44. How vacancies filled.

(A) If a vacancy occurs in any city office, such vacancy shall be filled by the appointing authority pursuant to the Charter or this Code of Ordinances.

(B) If a vacancy occurs in an elective office, the vacancy shall be filled in the manner provided in chapter III, § 4(c) of the Charter.
(Ord. No. 07-05, 8-8-05)

Sec. 2-45. Oath of office.

Before any person required by the Connecticut General Statutes or by ordinance to be sworn shall be qualified to enter upon the duties of office, the individual shall receive from some individual qualified to administer oaths a form of oath specifying the office for which the individual is qualifying and requiring the individual to perform all the duties and obligations thereof, faithfully and uprightly, according to the best of the individual's ability, during the full term for which the individual shall hold or continue in such office by election or reelection. Such person shall receive from the individual administering the oath a certificate that the oath has been administered in due and legal form, and shall lodge the certificate with the city clerk, to be kept on file by the clerk; provided, however, that when any such oath shall be administered by any qualified individual at any meeting of the council, a record of the fact by the clerk of the council, as a part of the proceedings of such meeting naming the individual present and sworn, shall be sufficient without a certificate. Whenever any person continues in office by reelection or reappointment no new oath shall be required of said person.
(Ord. No. 07-05, 8-8-05)

Charter reference—Authority to provide form of oaths of city officers, Ch. IV, § 3.

Sec. 2-46. Administrative support for council.

The employees of the council shall be as follows:

(A) Each council member may appoint an executive assistant who shall serve at the pleasure of, and whose duties shall be prescribed by, the council member making said appointment. Such executive assistant shall be an Unclassified Employee.

(B) The council may authorize the council president to employ such other staff and assistants as deemed necessary for conducting official business.
(Ord. No. 07-05, 8-8-05)

Sec. 2-47. Legislative and Legal Counsel to the Court of Common Council.

(a) The council shall appropriate sufficient funds to hire an attorney to advise members of the court of common council on city matters when requested pursuant to this section.

(b) A request by resolution can be made for outside counsel at any time for any reason on any issue or issues related to city matters when in the opinion of any five (5) members of the council, it is necessary for the court of common council to obtain legal advice outside the corporation counsel's office. The resolution to obtain additional counsel shall contain the name of the attorney or law firm to be retained and the issue or issues to be addressed.

(c) The hiring of outside counsel pursuant to this section of the Municipal Code shall be made only by the members of the council who made the request by resolution to obtain outside legal counsel and is not subject to the approval of the mayor or corporation counsel.

(d) The Court of Common Council hereby determines, pursuant to Chapter VIII, Section 3(b)(ii) of the Charter, that it is necessary for the Council to obtain legal advice on a wide range of topics in addition to the advice of the Corporation Counsel.

(1) The President of the Council is authorized to appoint, subject to the approval of the Council, an attorney to serve as Legislative and Legal Advisor to the City Coun-

cil. Such attorney shall serve as an "at will" employee of the Court of Common Council, shall be a resident of the City of Hartford, a member of the bar of the State in good standing for a period of not less than ten (10) years at the time of appointment, and have been engaged in the practice of law as his or her principal occupation for not less than five (5) years immediately preceding appointment. Compensation and benefits, job duties, and other terms and conditions of employment shall be determined by the Council President. The appointee shall be subject to removal by either the Council President or by a vote of seven (7) members of the Council.

(2) The Council's Legislative and Legal Advisor and the Corporation Counsel shall cooperate in the discharge of their respective offices, duties and functions to the fullest extent permitted by law consistent with goals, objectives and expectations of their respective appointing authorities. All communications and discussions between the Council's Legislative and Legal Advisor and the staff of the Corporation Counsel shall constitute the common interest work product of the City and shall be privileged from public disclosure to the extent permitted by law.

(3) The Office of Corporation Counsel shall make its legal research facilities available to the Council's Legislative and Legal Advisor on the same basis as such facilities are available to the staff attorneys of the City.

(Ord. No. 08-09, 3-9-09; Ord. No. 04-14, 3-24-14)

Secs. 2-48—2-55. Reserved.

ARTICLE III. CITY CLERK*

Sec. 2-56. Custodian of city documents and records of council.

The city clerk shall be the custodian of all city documents not specially placed in the charge or keeping of some other officer, and shall keep all records of proceedings of the council.
(Code 1977, § 2-51)

Sec. 2-57. Duties as clerk of council generally.

As clerk of the council, the city clerk shall attend the meetings of the council and shall note on every document introduced before the council a brief statement of its action thereon. He shall furnish to any city department or officer upon request a copy of any proceeding of the council and shall deliver true and attested copies thereof to any such department or officer when attestation is requested by such department or officer or required by law.
(Code 1977, § 2-52)

Cross reference—City clerk to keep copies of Code up-to-date, § 1-9.

Sec. 2-58. Journal.

As clerk of the council the city clerk shall keep a journal of the doings and proceedings of the council, and after each meeting shall cause a sufficient number of copies of the record to be printed and distributed to the members of the council and to such other officers of the city as the city manager may direct. After the last meeting of the council for the year, he shall cause not more than one hundred (100) copies of such journal, properly indexed, to be printed and distributed to the members of the council for the year during which the journal was kept and to such other officers as the city manager may direct, and shall retain the remaining copies in his office. The clerk shall certify under his hand one (1) of such copies to be a true record of the doings and proceedings of the council, and such certified copy shall be the official journal thereof.
(Code 1977, § 2-53)

*__Charter reference—__Provisions relative to city clerk, Ch. III, § 5.

Sec. 2-59. Ex officio clerk of board of selectmen.

The city clerk as town clerk shall be ex officio clerk of the board of selectmen.
(Code 1977, § 2-54)

Sec. 2-60. Maintenance and repair of town records.

The powers and duties relating to the maintenance and repair of the town records, which were vested by law in the selectmen of the town prior to the act consolidating the town and city, shall be vested in and exercised by the city clerk.
(Code 1977, § 2-55)

Sec. 2-61. Notice on land records of ordinances taking land; notice of lease.

(a) The clerk of the council shall cause to be recorded on the land records of the city, on a form to be approved by the corporation counsel, notice of any ordinance adopted by the council under Chapter XI, Section 3 of the Charter, when such ordinance involved a taking of land by the city. The notice shall state the date on which the ordinance was adopted, give reference to the section in the council journal containing the ordinance and contain the street and number and record owner of all properties involved.

(b) The corporation counsel shall cause to be recorded on the land records a notice of lease for all leases of city property, which notice shall contain the names of parties, the location of the property and the term of the lease.
(Code 1977, § 2-56; Ord. No. 19-83, 6-13-83)

Sec. 2-62. Employees of the city and town clerk.

In addition to the city and town clerk, the office of the city and town clerk shall consist of one (1) deputy town clerk, three (3) assistant town clerks, and such other employees as may be necessary to perform the duties of the office of the city and town clerk.
(Ord. No. 67-90, 10-9-90)

Sec. 2-63. Domestic partnerships; discrimination.

(a) *Definitions.*

City employee means any individual employed by the City of Hartford.

Committed relationship means a relationship between two (2) individuals characterized by mutual caring and the sharing of a mutual residence.

Domestic partner means a person with whom an individual maintains a committed relationship as defined in subsection (a) of this section.

Domestic partnership means the committed relationship between two (2) persons who become domestic partners and who register and attest to the following:

(1) They are not married to anyone;

(2) They are at least eighteen (18) years of age and are competent to contract at the time the domestic partnership is created;

(3) They are not related by blood closer than would prohibit marriage in the State of Connecticut;

(4) They reside together in common residence and share the common necessities of life;

(5) They declare that they are each other's sole domestic partner.

Employer means the City of Hartford.

Town clerk means the town clerk of the City of Hartford.

(b) *Statement of purpose.* This article is adopted for the purpose of eliminating discrimination against persons involved in committed nonmarital relationships by acknowledging the status of such relationships voluntarily declared to be a domestic partnership as defined herein.

(c) *Domestic partnership registration.*

(1) To establish the existence of a domestic partnership, persons shall register as domestic partners by executing a declaration of domestic partnership to be filed with the town clerk of the city. The declaration shall be signed by the domestic

partners and shall include the following information on a form to be approved by the corporation counsel:

a. They are not married to anyone;

b. They are at least eighteen (18) years of age and are competent to contract at the time the domestic partnership is created;

c. They are not related by blood closer than would prohibit marriage in the state;

d. They reside together in common residence and share the common necessities of life;

e. They are each other's sole domestic partner;

f. They affirm, under penalty of perjury, that the assertions in the affidavit are true to the best of their knowledge;

g. They must notify the town clerk, if there is a change in circumstances attested in the affidavit, including, but not limited to, a change of address, termination of the domestic partnership, or death of a domestic partner; and

h. Shall include a statement advising the proposed domestic partners that potential legal ramifications exist.

(2) Before accepting a declaration of domestic partnership, the town clerk may examine any applicant under oath to ascertain the names and ages of the persons desiring to register as domestic partners and any other information as required by section 3(a).

(3) The town clerk shall provide a certificate acknowledging the status of the domestic partnership and a copy of the declaration statement bearing their signatures to the domestic partners jointly.

(4) The domestic partnership shall take effect seven (7) days after the filing of the declaration statement, unless notification of a withdrawal of the declaration is received by the town clerk prior to or on the seventh day. After the seven (7) days have elapsed, a domestic partner must file a termination statement to dissolve the domestic partnership.

(5) The town clerk, as custodian of the records of domestic partnerships in the city shall establish procedures to ensure the confidentiality of the records to the extent allowed under the laws of the state.

(6) Domestic partners may amend the declaration at any time by filing an "amended statement". The town clerk shall provide forms as necessary.

(d) *Termination procedures.*

(1) A domestic partner may terminate the domestic partnership by filing a termination statement with the town clerk of the city. The domestic partner filing the termination statement shall attest on a form approved by the corporation counsel that:

a. The domestic partnership is terminated;

b. A copy of the termination statement has been mailed to the other domestic partner if the termination statement is not signed by both domestic partners;

c. They affirm, under penalty of perjury, that the assertions in the affidavit are true to the best of their knowledge; and

d. They have been advised that potential legal ramifications exist.

(2) The domestic partnership shall terminate upon the death of one (1) of the domestic partners and it is the responsibility, in accordance with section 3(a)(vii), of the act to so notify the town clerk of the city.

(3) The town clerk may charge a fee of sixty dollars ($60.00) for filing a declaration statement of domestic partnership, ten dollars ($10.00) for a termination statement of domestic partnership, and ten dollars ($10.00) for filing any amended statements.

(e) *New statements of domestic partnership.* No individual who has filed an affidavit of domestic partnership may file another such affidavit until six (6) months after a statement of termination of the previous partnership has been filed with the town clerk.

(f) The City of Hartford, by enacting this article, does not create any additional legal rights in the domestic partners not recognized by the common and statutory laws of the State of Connecticut and the City of Hartford.
(Ord. No. 18-93, §§ 1—6, 6-14-93; Ord. No. 11-15, 6-22-15)

Secs. 2-64—2-80. Reserved.

ARTICLE IV. DEPARTMENTS*

Sec. 2-81. Organization generally.

(a) The head of each department created by the charter, acting in his discretion by himself or through the officers and employees of his department, shall administer the duties laid on him by the charter or this Code, or any ordinance of the city or general statute.

(b) The officers and employees appointed to each such department by the council or the head of the department shall be subordinate to and under the direction, supervision and control of the head of the department. They shall fulfill all the duties required of them by the General Statutes, this Code, the ordinances of the city and the rules and regulations of their department.
(Code 1977, § 2-69)

*__Editor's note—__Provisions relating to the establishment and organization of departments having jurisdiction over matters constituting particular chapters within this Code, such as the police department, are set out under that chapter rather than herein. Departments the jurisdiction of which is scattered in a number of places throughout the remainder of this Code, such as the department of public works, are set out in this article.

Charter reference—Organization, operation of city departments, Ch. III, § 1.

Cross references—Fire department, § 13-21 et seq.; composition of health department, § 17-1.

Sec. 2-82. Terms of General Statute section 7-99a adopted.

The terms of G.S. § 7-99a are hereby adopted by the city. The city manager is authorized to appoint not more than six (6) departmental coordinators in accordance with the provisions of such statute subject to the establishment by the council of each such position of departmental coordinator.
(Code 1977, § 2-19)

Charter reference—City manager, Ch. V.

Sec. 2-83. Departmental coordinators; positions, titles, duties.

(a) There is hereby established the position of departmental coordinator whose title shall be deputy city manager.

(b) The city manager is authorized to appoint not more than three (3) departmental coordinators designated as deputy city managers.

(c) The city manager is authorized to appoint not more than three (3) departmental coordinators designated as assistant city managers.

(d) The duties of departmental coordinators shall be prescribed by the city manager and departmental coordinators shall serve at the pleasure of the city manager.
(Code 1977, § 2-20; Ord. No. 1-77, 3-8-77; Ord. No. 20-79, 6-25-79; Ord. No. 31-85, 7-22-85; Ord. No. 35-92, 7-21-92)

Sec. 2-84. Departmental coordinator for policy and special programs.

(a) *Office created; appointment.* There is created an office of departmental coordinator for policy and special programs. The head of the office of departmental coordinator for policy and special programs shall be an assistant city manager appointed by the city manager.

(b) *Responsibilities.* The office of departmental coordinator for policy and special programs shall be responsible for the coordination development of policy and special programs and such departments as may be assigned to the supervision of the assistant city manager by the city manager.

(c) *Administrative support division.* Within the office of departmental coordinator for policy and special programs will be an administrative services to the coordinated departments.
(Code 1977, § 2-22; Ord. No. 5-86, 5-27-86; Ord. No. 32-90, 6-25-90)

Charter reference—Department of housing, Ch. XII.

Cross references—Housing generally, Ch. 18; planning and development, Ch. 28; zoning, Ch. 35.

Secs. 2-85—2-85.2. Reserved.

Editor's note—Ord. Nos. 34-91, 24-91 and 25-91, respectively, repealed §§ 2-85—2-85.2, which pertained to the departmental coordinator for physical services, the departmental coordinator for human services and the office of the assistant to the city manager for human resources. Said sections derived from Code 1977, § 2-23; Ord. No. 6-86, adopted May 27, 1986; Ord. No. 28-90, adopted June 25, 1990 and Ord. No. 29-90, adopted June 26, 1990. See the Code Comparative Table for a detailed analysis of inclusion.

Sec. 2-86. Reserved.

Editor's note—Ord. No. 17-05, adopted Nov. 28, 2005, repealed former § 2-86 of the Code, which pertained to the department of licenses and inspections and derived from the 1977 Code, § 2-70; Ord. No. 4-78, adopted July 10, 1978; Ord. No. 13-80, adopted Aug. 12, 1980; and Ord. No. 55-83, adopted Nov. 28, 1983.

Sec. 2-87. Department of public works—Organization.

(a) *Director.* The department of public works shall consist of the director of public works and such other officers and employees as provided by the council in the annual budget to perform its duties and as outlined in Chapter XI of the Charter of the City of Hartford. In the absence of the director, the assistant director of public works shall serve as acting director of public works.

(b) *Engineering division.* There shall be an engineering division within the department of public works. The head of the engineering division shall be the city engineer, and shall also serve as the executive director of the Greater Hartford Flood Commission.

(c) *Maintenance of grounds, buildings and vehicles.* The public works department shall be responsible for the maintenance of all public grounds, buildings and vehicles.

(d) *Divisions.* The department of public works shall consist of the following six (6) divisions:

(1) Administrative [services];

(2) Facilities services;

(3) Transportation services;

(4) Equipment maintenance services;

(5) Waste and recycling services; and

(6) Park maintenance.

(e) *Duties of division of administration.* The division shall be responsible for providing the administrative and support services to departmental divisions, overall management of the department and the coordination of services to the community.

(f) *Duties of facilities services division.* The facilities services division shall be responsible for ongoing maintenance in city facilities, architectural/engineering services on city and board of education renovations and new construction projects.

(g) *Duties of transportation services division.* The transportation services division shall be responsible for the design and management of the traffic signal system, preparation and review of traffic impact reports and the control and operation of the computerized signal system. This division will also provide technical support to city departments to expedite improvements to roads, bridges, parks, housing initiatives, disability access, neighborhood improvements and economic development. This division will also be responsible for providing all related street maintenance functions, including street construction and repair, sidewalk construction and inspection, snow removal, street sweeping and flood control.

(h) *Duties of equipment maintenance services division.* The equipment maintenance services division shall be responsible for maintenance of the city's passenger and heavy equipment fleets and other ancillary equipment.

(i) *Duties of waste and recycling division.* The waste and recycling division shall be responsible for the proper disposal and collection of municipal and recyclable waste.

(j) *Duties of the park maintenance division.* The parks maintenance division shall be responsible for the management of the city's public grounds, parks, playfields and playgrounds, Elizabeth Park Rose Garden, the greenhouse, the maintenance of street trees and the urban forest and the maintenance of cemetery grounds and operations.
(Code 1977, § 2-71; Ord. No. 7-86, 5-27-86; Ord. No. 33-90, 6-25-90; Ord. No. 35-91, 6-10-91; Ord. No. 25-94, 8-8-94; Ord. No. 38-96, 9-9-96)

Charter reference—Department generally, Ch. XI.

Cross references—Planning and development, Ch. 28; streets and sidewalks, Ch. 31.

Sec. 2-88. Same—Rules of director concerning public buildings and places.

The director of public works may make such rules and regulations governing the use and occupancy of the buildings and public places under his control as may be necessary for the proper administration and management of such buildings and public places in the interests of the public and of the city. He may evict or eject persons violating such rules and regulations. Any person who violates such rules and regulations and refuses to depart from any such public place when ordered to do so by the director shall be guilty of a breach of the peace.
(Code 1977, § 2-72)

Sec. 2-89. Same—Powers and duties of director as to signposts and safes.

The powers and duties relating to public signposts and fireproof safes which were vested by law in the selectmen of the town, prior to the act consolidating the city and town, shall be vested in and exercised by the director of public works.
(Code 1977, § 2-73)

Sec. 2-90. Same—Complaints relating to public facilities.

The director of public works shall keep a record of all complaints made to the department of public works concerning streets, street lighting and public places, and the breach of city ordinances relating thereto. He shall be diligent in ascertaining the facts when such complaints are received and in taking any necessary action relative thereto.
(Code 1977, § 2-74)

Sec. 2-91. Department of engineering functions transferred to department of public works.

The functions of the department of engineering, set forth in chapter XIII of the Charter are hereby transferred to the department of public works. All powers, duties and positions established by ordinance in the department of engineering are hereby transferred to the department of public works.
(Code 1977, § 2-75)

Sec. 2-92. Department of health and human services; organization.

(a) *Generally, Director, Employees.* The director of health and human services shall be responsible for pursuing the elimination of health disparities and inequities through the application of best practices, effective collaboration with our partners and community members, promotion of a healthier living environment and being a resource for healthy living. The director of health and human services shall appoint such other officers and employees as may be necessary to perform the duties of the department as approved by Council in the department budget.

(b) The department of health and human services shall consist of the following divisions:

(1) Administration

(2) Environmental Health

(3) Maternal and Child Health

(4) Senior and Community Services

(5) Disease Prevention and Hartford Health Needs Assessment

(c) *Duties of the administration division.* The administration division shall be responsible for providing administrative, educational and material support to the programs and services within the department of health and human services.

(d) *Duties of the division of environmental health.* The division of environmental health shall be responsible for developing and maintaining Hartford as a health community by developing a sound public health infrastructure, promoting healthy lifestyles, controlling and preventing diseases and by enforcing the public health code.

(e) *Duties of the division of maternal and child health.* The division of maternal and child health shall be responsible for improving the access and quality of health services offered to expecting and young mothers.

(f) *Duties of the division of senior and community services.* The division of senior and community services shall be responsible for promoting human development, self-sufficiency and independent living while strengthening families by facilitating and providing access to children, youth, adult, senior and family services and initiatives.

(g) *Duties of the division of disease prevention and Hartford health needs assessment.* The division of disease prevention and Hartford health needs assessment shall be responsible for developing and maintaining Hartford as a healthy community by developing a sound public health infrastructure, promoting health lifestyles and controlling and preventing diseases.

(Code 1977, § 2-76; Ord. No. 37-91, 6-10-91; Ord. No. 39-96, 9-9-96; Ord. No. 29-11, 5-23-11)

Charter reference—Department generally, Ch. XIV, § 3.

Sec. 2-93. Department of personnel.

In addition to the officers and employees prescribed by the Charter for the department of personnel, there shall be the following positions therein: Assistant personnel director, senior personnel technician, personnel technician and junior personnel technician.

(Code 1977, § 2-78)

Charter references—Department of personnel, Ch. XVI; personnel board, Ch. XVI, § 3.

Sec. 2-94. Office of management and budget.

(a) *Established; function.* There is hereby established an office of management and budget. The office of management and budget is responsible for providing professional financial forecasting, budget development and control, operations analysis, and grants management to Hartford's elected leadership, executive management, department directors and constituents enabling them to make informed decisions regarding the allocation and use of resources required to achieve City goals.

(b) The office of management and budget shall have a grants management function that may take the form of a division, office or work unit to carry out its duties and responsibilities, which may include but are not limited to:

(1) Being responsible for grants management services;

(2) Managing, administering and monitoring housing and urban development grant programs, including, but not limited to:

a. Community development block grants;

b. Emergency shelter grants;

c. Housing opportunities for persons with AIDS grants;

d. Section 108 guaranteed loan program, in conjunction with economic development initiative grants or Brownfield economic development initiative grants;

(3) Managing, administering and monitoring other federal and state grant and loan programs; and

(4) Performing such other duties as may be assigned by the director of management and budget.

(c) *Employees.* The office of management and budget shall consist of the director of management and budget and such other employees as may be necessary to perform the duties of the office as the council may authorize in the annual budget.

(d) On a monthly basis, the Director of Management and Budget shall compile and submit to the Council through the City Clerk a list of all

overtime and overages by each City Department. The monthly submission shall include but are be limited to:

(1) Comparative statements in parallel columns of the appropriations and expenditures made for the several departments, offices, and agencies of the city for the current and four (4) preceding fiscal years and the increase and decrease between adopted budgets, revised budgets most recent years actuals, and current and ensuing fiscal years estimates. The submission shall also include the variance, by account, between actual and current year adopted budget and the percentage change between the current year's actuals and adopted budgets.

(e) On or before the 30th day of December, 2016, and annually thereafter, the Director of Management and Budget shall compile and submit to the Council through the City Clerk a report of all Assisted Projects; which shall include but not be limited to the information specified below. For the purposes of this report, "Assisted Project" shall mean any private development which receives any public subsidy from the City of Hartford, including but not limited to tax abatements, tax fixing agreements, public bonds, public grants, and public land or easements sold or otherwise conveyed for the benefit of the development for less than the appraised fair market value as determined as of the date of transfer.

(1) Names of developers, partners, investors, architects, landscape architects, civil engineers, site planners, market consultants, economists, attorneys, environmental consultants, soil engineers, surveyors, title companies, lenders, sources of financing, lobbyists, appraisers, general and sub-contractors; and

(2) Description of the of the project; and

(3) Status of the project, including, percentage funded, percentage complete, and approved start and end dates; and

(4) Original approved cost and current approved cost for each project; and

(5) The impact of the project on the General operating budget; and

(6) List of compliance audits and violations; and

(7) All verified funding sources for the project.

An Assisted Project shall not be removed from the report until one (1) full year has passed since the date of the last public subsidy.
(Code 1977, § 2-79; Ord. No. 10-77, 6-27-77; Ord. No. 3-88, 1-25-88; Ord. No. 14-95, 7-10-95; Ord. No. 25-11, 5-23-11; Ord. No. 19-15, § 1, 12-28-15)

Charter references—City manager, Ch. V; financial administration, Ch. VIII.

Sec. 2-95. Reserved.

Editor's note—Ord. No. 41-91, adopted June 24, 1991, repealed § 2-95, which pertained to the division of traffic engineering reassigned to public works department; composition and derived from Code 1977, § 2-80 and Ord. No. 11-77, adopted June 27, 1977.

Sec. 2-96. Reserved.

Editor's note—Ordinance No. 30-94, adopted August 8, 1994, repealed § 2-96. Formerly, such § pertained to the department of transportation and derived from Ord. No. 40-91, adopted June 24, 1991.

Sec. 2-97. Division of civil preparedness; composition.

(a) There is hereby established a division of civil preparedness within the fire department. The division of civil preparedness shall be responsible for ensuring the City's readiness to respond to disasters and emergency situations through a variety of regional and local planning and preparedness initiatives.

(b) The Fire Chief or his or her designee shall serve as the director of civil preparedness.

(c) The director of civil preparedness shall perform the duties and functions and shall be subject to the provisions of G.S. § 28-7.
(Code 1977, § 2-82; Ord. No. 7-77, 6-27-77; Ord. No. 27-11, 5-23-11)

Charter reference—Fire department, Ch. X, § 4.

Cross reference—Fire department, § 13-21 et seq.

Sec. 2-98. Reserved.

Editor's note—Section 2-98, relating to the department of housing and community development, was repealed by Ord. No. 35-90, adopted June 25, 1990. The section was derived from Code 1977, §§ 2-77.1, 2-83; Ord. No. 21-79, adopted July 9, 1979; and Ord. No. 21-86, adopted June 23, 1986. See § 2-101.

Sec. 2-99. Reserved.

Editor's note—Ordinance No. 26-94, adopted August 8, 1994, repealed § 2-99. Formerly, such § pertained to the department of data processing and derived from § 2-18 of the 1977 Code; Ord. No. 29-85, adopted June 10, 1985; and Ord. No. 29-95, adopted June 10, 1985.

Charter references—City manager, Ch. V; financial administration, Ch. VIII.

Cross reference—City finances generally, § 2-481 et seq.

Sec. 2-100. Reserved.

Editor's note—Ord. No. 26-91, adopted June 10, 1991, repealed § 2-100, which pertained to the department of substance abuse prevention and intervention and derived from Ord. No. 16-90, adopted May 14, 1990.

Sec. 2-101. Reserved.

Editor's note—Ord. No. 17-05, adopted Nov. 28, 2005, repealed former § 2-101 of the Code, which pertained to the department of housing and community development and derived from Ord. No. 13-96, adopted June 24, 1996.

Sec. 2-102. Office of equity and opportunity.

(1) There shall be an Office of Equity and Opportunity within the Office of the Chief Operating Officer responsible for:

(a) Fostering equality and understanding by supporting the efforts of the city's policy leadership in seeking social and economic justice for all Hartford residents.

(b) Providing advice and comment to the mayor on matters pertaining to equal opportunity and affirmative action.

(c) Providing direct support for the commission on human relations, the commission on disability issues, the permanent commission on the status of Hartford women, the Hartford commission on lesbian, gay, bisexual and transgender issues and the civilian police review board in accordance with their functions and duties as set forth in this Code.

(d) Providing regular reports to the Mayor and Council on the activities of the Civilian Police Review Board, the Police Accountability Review Board and other boards and commissions supported by the office.

(e) Administering, and ensuring compliance with. City of Hartford policies and procedures related to equal employment opportunity, affirmative action, and the Americans with Disabilities Act, including conducting and/or overseeing investigations of complaints of violation of said policies and serving as the City's ADA Coordinator.

(f) Developing and conducting training on matters relating to diversity, inclusion. equal employment opportunity, racism, cultural sensitivity and affirmative action.

(2) The office shall be staffed by a director, who shall report directly to the Chief Operating Officer and who shall be a resident of the city, and the staff necessary carry out its functions. (Ord. No. 30-90, 6-25-90; Ord. No. 27-91, 6-10-91; Ord. No. 28-94, 8-8-94; Ord. No. 41-96, 9-23-96; Ord. No. 24-11, 5-23-11; Ord. No. 05-17, 2-14-17; Ord. No. 002-20, 6-22-20)

Sec. 2-103. Reserved.

Editor's note—Ord. No. 38-91, adopted June 10, 1991, repealed § 2-103, which pertained to the division of the office of the city academy for employee training and development and derived from Ord. No. 31-90, adopted June 25, 1990.

Sec. 2-104. Reserved.

Editor's note—Ord. No. 17-05, adopted Nov. 28, 2005, repealed former § 2-104 of the Code, which pertained to the department of economic development and derived from Ord. No. 17-95, adopted July 10, 1995.

Sec. 2-105. Metro Hartford Innovation Services.

(a) *Established; duties.* There shall be a department of the City of Hartford known as Metro Hartford Innovation Services, which shall provide

the information technology service and resources to the city, and to the school system departments, and to the other city departments, boards and agencies. Such services and resources may include, without limitation, technology services, application services, support services and shared services.

(b) *Joint funding.* Metro Hartford Innovation Services shall be funded jointly by the city and the board of education.

(c) *Metro Hartford Innovation Services Governing Board established; duties.* There shall be an advisory board of the department consisting of the chief operating officer of the city or his designee, the superintendent of Hartford Schools or his designee, and up to three (3) loaned executives with information technologies experience from the city's corporate community to be appointed by the mayor. The advisory board shall make recommendations for a Metro Hartford Innovation Services budget and an allocation of expenses between the city and board of education each year as part of the annual budget process.

(d) *Chief innovation officer.* A chief innovation officer shall be appointed by the mayor in accordance with the City Charter to direct Metro Hartford Innovation Services. The chief innovation officer may be removed at the discretion of the mayor. In accordance with the City Charter, the chief innovation officer shall have the duties and responsibilities, as well as the retirement, insurance, and other employee benefits, of non-bargaining unit department head employees in the unclassified service of the city. The chief innovation officer's compensation shall be determined by the mayor in accordance with pay scale guidelines adopted by the council.

(e) *311 system.* Metro Hartford Innovation Services shall also be responsible for managing and coordinating the 311 system. The 3-1-1 Call Center is responsible for providing citizens with a streamlined, integrated and secure way to report, track and resolve problems or issues residents may have with non-emergency city services.

(f) *Other employees.* In addition to the chief innovation officer, Metro Hartford Innovation Services shall be staffed by other employees of the city and/or board of education as may be necessary to perform the duties of the department within the funds allotted by the court of common council and the board of education.
(Ord. No. 45-03, 9-8-03; Ord. No. 04-05, 4-11-05; Ord. No. 16-14, 10-14-14; Ord. No. 01-16, 2-22-16)

Editor's note—Ord. No. 45-03, adopted Sept. 8, 2003, repealed former § 2-105 of the Code and enacted new provisions as § 2-105 as herein set out. Former § 2-105 pertained to the office of information services and derived from Ord. No. 43-96, adopted Sept. 23, 1996.

Subsequently, Ord. No. 01-16, adopted Feb. 22, 2016, changed the title of § 2-105 from "Metro Hartford Information Services" to read as herein set out.

Sec. 2-106. Reserved.

Editor's note—Ord. No. 17-05, adopted Nov. 28, 2005, repealed former § 2-106 of the Code, which pertained to the office of property acquisition and disposition and derived from Ord. No. 3-98, adopted Jan. 12, 1998.

Sec. 2-107. Department of emergency service telecommunications.

(a) *Established; function.* There shall be a department of emergency service telecommunications. The department shall be responsible for developing and maintaining a city-wide emergency service telecommunications plan and for providing coordinated emergency police, fire and medical service telecommunications to all city residents.

(b) *Appointment of director.* The department of emergency service telecommunications shall consist of a director of emergency service telecommunications who shall be appointed by the mayor and shall be a member of the unclassified service as provided in chapter XVI, section 7(c) of the Charter.

(c) *Employees.* In addition to the director of emergency service telecommunications, the department shall consist of such other employees as may be necessary to perform the duties of the department as approved by the council in the departmental budget.
(Ord. No. 38-02, 10-15-02; Ord. No. 23-11, 5-23-11; Ord. No. 16-14, 10-14-14)

Sec. 2-108. Department of development services.

(a) *Established; function.* There shall be a department of development services. The department shall be responsible for providing and coordinating provision of the following services and activities: licenses and inspections, planning and zoning, housing and property management, grants management and economic development. The department shall be responsible for providing and coordinating provision of other services and activities as determined by the mayor.

(b) *Appointment of director.* The department of development services shall consist of a director of development services who shall be appointed by the mayor and shall be a member of the unclassified service as provided in Chapter VIII, section 5(e) of the Charter. The director of development services shall also serve as the executive director of the Hartford Redevelopment Agency.

(c) *Appointment of division heads and deputy director.* With the approval of the mayor, the director may appoint a sufficient number of division heads, who shall be qualified pursuant to state statute and city ordinance to manage the housing, property management, grants, planning, economic development and license and inspection functions of the city.

With the concurrence of the mayor, the director may appoint a deputy director who shall be a member of the unclassified service as provided in Chapter VIII, section 5(e) of the Charter and serve at the pleasure of the director.

(d) *Employees.* In addition to the director of development services, the department shall consist of such other employees as may be necessary to perform the duties of the department as approved by the council in the departmental budget.
(Ord. No. 52-03, 12-22-03; Ord. No. 17-05, 11-28-05)

Sec. 2-108.1. Department of development services—Economic development.

(a) The department of development services shall be the principal economic development agent of the city. The purpose of economic development is to increase investment, employment, and the grand list by promoting new development and by working to attract, retain and expand existing business in all sectors.

(b) The department of development services shall have an economic development function that may take the form of a division, office or work unit to carry out its duties and responsibilities, which may include but are not limited to:

(1) Providing direct services to neighborhood-based, industrial, retail and corporate employers.

(2) Making recommendations to the mayor, other appropriate officials, departments, commissions and agencies of the city regarding action to improve its economic condition and development.

(3) Working in partnership with other local, regional, state and federal organizations to promote the city's economic development, and to cooperate with neighborhood revitalization zone committees and merchant associations.

(4) Advertising, preparing, printing and distributing books, maps, charts, and pamphlets, which, in its judgment, will further its official purposes and promote the city as an advantageous place to do business.

(5) Performing such other duties as may be assigned by the director of the department of development services.

(Ord. No. 17-05, 11-28-05)

Sec. 2-108.2. Department of development services—Housing and property management.

The department of development services shall manage certain housing and property management functions, that may take the form of a division, office or work unit to carry out its duties and responsibilities, which may include but are not limited to:

(1) Managing the acquisition, maintenance and disposition of city-owned property;

(2) Managing sales of city tax liens;

(3) Managing loan underwriting, cost estimating, rental assistance and tax deferrals;

(4) Managing rental assistance;

(5) Managing, administering and monitoring state and federal housing entitlement programs;

(6) Developing and managing other housing-related activities; and

(7) Staffing the fair rent commission; and

(8) Performing such other duties as may be assigned by the director of the department of development services.

(Ord. No. 17-05, 11-28-05)

Sec. 2-108.3. Department of development services—Licenses and inspections.

(a) The department of development services shall have a licenses and inspections function, that may take the form of a division, office or work unit to carry out its duties and responsibilities, which may include but are not limited to:

(1) Issuing licenses, as authorized by the Hartford Municipal Code.

(2) Enforcing the provisions of the general statutes and the ordinances of the city with respect to:

a. The safety of buildings and other structures;

b. New construction, additions, alterations, and repair of buildings and other structures;

c. Structural, electrical, plumbing and heating standards;

d. Municipal housing code;

e. Zoning enforcement;

f. Standards of weights and measures; and

g. Rodent control.

(3) Performing such other duties as may be assigned by the director of the department of development services.

(b) No officer or employee of licenses and inspections may be directly or indirectly interested financially in any branch of the building business, or in any business appertaining thereto, while in the employ of licenses and inspections.

(c) If the owner of any building, the condition of which constitutes an immediate threat to life, fails to comply with any order to repair or remove such building or portion thereof, issued by the head of licenses and inspections pursuant to the general statutes or to the ordinances of the city, or when there exists actual and immediate danger of the falling of any structure or part thereof, so as to endanger life or property, the head of licenses and inspections may proceed forthwith to cause to be done all work required to be done in compliance with such an order, and if necessary, to demolish any structure or structures covered by any such order, and the city shall have a lien on such building and land for the cost of such work or demolition, which lien, if for work done rather than for demolition, shall take precedence over any other lien on the premises recorded after the effective date of this act, including mortgage liens but excepting liens for real estate taxes, provided that the person entitled to such other lien shall have been given written notice of the city's intention to undertake said work at least ten (10) days prior to the commencement thereof. The city may recover the cost of the work or demolition from the owner of such building or structure by appropriate proceeding on complaint of said head of licenses and inspections.

(Ord. No. 17-05, 11-28-05; Ord. No. 33-11, 6-13-11)

Sec. 2-108.4. Department of development services—Planning.

(a) The head of planning shall serve as the secretary to the planning and zoning commission and assign other employees of the division to assist the planning and zoning commission as may be necessary.

(b) The department of development services shall have a planning function, that may take the form of a division, office or work unit to carry out its duties and responsibilities, which may include but are not limited to:

(1) Providing design services and staff and technical assistance to the zoning board of appeals, planning and zoning commission, and the city's historic properties commission; develop design guidelines; provide architectural and graphic data and mapping assistance to other city departments; and evaluate and make recommendations on proposals from various neighborhood organizations.

(2) Preparing the ten-year plan of conservation and development and developing strategic plans for implementing the ten-year plan of conservation and development, preparing project and feasibility studies, serving as a liaison between planning and implementing agencies, and providing zoning staff assistance.

(3) Coordinating the preparation of the city capital improvement plan.

(4) Performing such other duties as may be assigned by the director of the department of development services.

(Ord. No. 17-05, 11-28-05; Ord. No. 003-20, 6-22-20)

Sec. 2-108.5. Department of development services—Office of marketing, events and cultural affairs.

The department of development services shall have a marketing, events and cultural affairs function, that may take the form of a division, office or work unit, to carry out its duties and responsibilities, which may include but are not limited to:

(1) Overseeing arts, heritage and cultural activities to drive workforce creation and economic revitalization;

(2) Working with local stakeholders to manage the city's cultural and arts programs; and

(3) Initiating and undertaking a marketing plan in conjunction with special events to drive tourism and boost the arts, culture and overall business economy of the city.

(Ord. No. 17-05, 11-28-05; Ord. No. 20-11, 5-23-11)

Sec. 2-109. Department of families, children, and youth.

(a) *Established.* There is hereby established a department of families, children, and youth. The department shall be responsible for promoting and improving the integration of services for children, youth, and families.

(b) *Appointment of director.* The department of families, children, and youth shall consist of a director of families, children, and youth who shall be appointed by the Mayor and shall be a member of the unclassified service as provided in Chapter VIII, Section 5 of the Charter. The director of families, children, and youth may be removed at the discretion of the Mayor. In accordance with the City Charter, the director of families, children, and youth shall have the duties and responsibilities, as well as the retirement, insurance, and other and employee benefits, of non-bargaining unit department head employees in the unclassified service of the city. The director of families, children, and youth's compensation shall be determined by the Mayor in accordance with pay scale guidelines adopted by the council.

(c) *Appointment of division heads.* With the approval of the Mayor, the director of families, children, and youth may appoint a sufficient number of division heads, who shall have responsibility for the following two (2) divisions of the department of families, children, and youth:

(1) Office of Young Children.

(2) Office of Youth Services.

(d) *Duties of the office of young children.* The office of young children shall be responsible for providing for the expansion of high-quality early childhood opportunities and programs in order

to ensure Hartford's young children are safe, healthy and prepared for early school and life success.

(e) *Duties of the office of youth services.* The office of youth services shall be responsible for developing and coordinating citywide youth-related services, policy, partnerships and resources to address the needs of our most at-risk youth.

(f) *Employees.* In addition to the director of families, children, and youth, the department shall consist of such other employees as may be necessary to perform the duties of the department as approved by the council in the departmental budget.
(Ord. No. 21-11, 5-23-11; Ord. of 3-11-24)

Sec. 2-110. Department of sports and recreation.

(a) *Established; mission statement.* There is hereby established a department of sports and recreation. It shall be the mission of the department of sports and recreation, in coordination with the department of public works and any City department(s) charged with the responsibility of overseeing special events as the same are defined in the applicable provisions of this Code, to work toward providing all Hartford residents with the opportunity to engage in recreational activities. It will lead the coordination, planning, organization, and direct operations of sports and fitness programs, arts, activities, and services throughout the city to help residents discover, explore, and enjoy life through creative and challenging recreational choices that contribute to their physical, emotional, and social health. Our strategy is to collaborate and partner with community stakeholders that support families and promote and expand recreation opportunities throughout the city so that services and programs (especially those with a focus on exploration, skill building, and leadership) are accessible to all residents.

(b) *Appointment of director; employees.* The department of sports and recreation shall consist of the director of the sports and recreation who shall be appointed by the Mayor and shall be a member of the unclassified service as provided in Chapter VIII, section 5(e) of the Charter. The department shall consist of such other officers and employees as approved by the Council in the department budget.

(c) Notwithstanding any provision in this ordinance, and irrespective of any provision in this Code, the department of sports and recreation, subject to the Hartford Board of Education, shall have the non-exclusive authority to utilize playgrounds, playfields and other recreational facilities, indoors and otherwise, on grounds and in the buildings in charge of the Hartford Board of Education, in cooperation and conjunction with the Hartford Board of Education; provided, that nothing in this ordinance shall be construed to abridge or usurp the Hartford Board of Education's control over school property.

(d) The director of sports and recreation may market, coordinate with, and partner with non-profit, community, and other organizations to promote sports and recreation programing within the City. The director of sports and recreation may further partner with organizations outside the City to create sports and recreational opportunities for residents.
(Ord. of 3-11-24)

Secs. 2-111—2-120. Reserved.

ARTICLE V. BOARDS, COMMISSIONS AND COMMITTEES

DIVISION 1. GENERALLY

Secs. 2-121—2-135. Reserved.

DIVISION 2. COMMISSION ON AGING

Sec. 2-136. Established; membership; officers.

There shall be a commission known as the Hartford Commission on Aging to study the needs of and coordinate programs for the aging for the city. The commission shall consist of eleven (11) members to be appointed by the council. The majority of the members so appointed shall be electors of the city, and all members so appointed shall be persons interested in the

consideration and solution of the problems of aging. Each member shall be appointed or reappointed for a term of three (3) years. Vacancies shall be filled in the same manner for the unexpired portion of the term. A chairman shall be elected annually by the membership. Other officers shall be elected at the discretion of the membership.
(Code 1977, § 2-90; Ord. No. 35-94, 12-12-94)

Sec. 2-137. Functions, duties.

The commission on aging shall study continuously the conditions and needs of elderly persons in the community in relation to housing, economic, employment, health, recreational and other matters. It shall analyze the services for the aged provided by the community, both by public and private agencies, and shall make recommendations to the mayor and the council regarding the development and integration of public and private agencies, in cooperation with state and other services to the extent possible.
(Code 1977, § 2-91)

Sec. 2-138. Compensation.

The members of the commission on aging shall serve without compensation, but shall be reimbursed for their necessary expenses.
(Code 1977, § 2-92)

Sec. 2-139. Members to serve until succeeded.

The members of the commission on aging shall serve until their successors are designated and appointed in accordance with section 2-136.
(Code 1977, § 2-93)

Sec. 2-140. Organization.

The commission on aging may organize itself in whatever manner it may determine in order to carry out to the fullest extent possible the duties set forth in section 2-137.
(Code 1977, § 2-94)

Sec. 2-141. Appropriations.

The council may make appropriations to cover the expenses of the commission on aging, including reasonable clerical services. All appropriations to cover expenses of the commission shall be made in the budget of the city manager in an account for that purpose.
(Code 1977, § 2-95; Ord. No. 8-77, 6-27-77)

Sec. 2-142. Employees and staff.

The city manager shall instruct the director of social services to appoint staff to provide professional advice and assistance to the commission on aging. The city manager shall employ such additional employees as may be authorized by the council provided that all present employees assigned to the commission shall be transferred to the city manager for administrative purposes.
(Code 1977, § 2-96; Ord. No. 8-77, 6-27-77; Ord. No. 36-91, 6-10-91)

DIVISION 2A. COMMISSION ON GRANDPARENTS RAISING GRANDCHILDREN

Sec. 2-143. Established; composition.

There shall be a commission known as the commission on grandparents raising grandchildren to assist and advise the mayor, the council and such other departments as shall seek its assistance and advice concerning the consideration and solution of problems peculiar to grandparents raising grandchildren. Whenever the term "grandparents raising grandchildren" is used herein, it shall be construed to include any kin caregiver, including, but not limited to, aunts, uncles, adult siblings, and cousins caring for a kin child or kin children. The commission shall consist of fifteen (15) members, not more than two-thirds (⅔) of whom shall be members of the same political party, to be nominated by the mayor and confirmed by the council.
(Ord. No. 30-02, 7-11-02; Ord. No. 17-14, 12-22-14)

Sec. 2-144. Organization.

The commission on grandparents raising grandchildren may organize itself in what ever manner it may determine in order to carry out to the fullest extent possible the duties set forth in this division.
(Ord. No. 30-02, 7-11-02)

Sec. 2-145. Membership.

(a) A majority of the members appointed to the commission on grandparents raising grandchildren shall be residents of the City of Hartford. No fewer than one-third (⅓) of the members of the commission shall be a grandparent raising a grandchild or grandchildren. Each member shall be appointed or reappointed for a term of two (2) years. Any vacancy shall be filled for the unexpired portion of the member's term in the same manner as the appointment. Ad hoc members, who shall be non-voting, shall be permitted and encouraged. Ad hoc members shall be sought to assist with specific goals and/or projects of the commission without endowing them with other rights.

(b) *Officers; attendance.* The commission shall annually designate a member to act as chairperson and shall select its own officers. Any member who is absent from three (3) consecutive regular meetings of the commission, including any intervening duly called special meetings thereof, shall be considered to have resigned from the commission and the vacancy shall be filled as set out in subsection (a), except that the requirements of this subsection may be waived by the chairperson where illness or other extenuating circumstances make it clearly unreasonable or impossible to meet the attendance requirements of this section. A decision by the chairperson as to whether a waiver under this section is appropriate shall be referred, at the request of the affected party, to the commission for a final decision on the matter by a simple majority vote of the whole commission.

(c) *Meetings.* The commission shall meet at such time and place as the chairperson shall determine. Meetings of the commission shall be held at least monthly. A quorum shall consist of one-third of the members then serving.
(Ord. No. 30-02, 7-11-02; Ord. No. 02-04, 2-9-04; Ord. No. 07-04, 2-9-04; Ord. No. 17-14, 12-22-14)

Sec. 2-146. Terms of members.

The members of the commission on grandparents raising grandchildren shall serve until their successors are appointed and confirmed in accordance with section 2-143.
(Ord. No. 30-02, 7-11-02; Ord. No. 17-14, 12-22-14)

Sec. 2-147. Meetings; rules; records; reports.

Meetings of the commission shall be held at least monthly and at such other times as the commission may determine. The commission is empowered to adopt rules and regulations for implementing the provisions of this ordinance, which rules and regulations shall not be inconsistent with the provisions thereof. The commission shall keep records of its meetings and activities and shall no less than annually apprise the mayor and council of its activities and progress and its recommendations as to the need for implementation of local programs for grandparents raising grandchildren.
(Ord. No. 30-02, 7-11-02; Ord. No. 17-14, 12-22-14)

Editor's note—Ord. No. 17-14, adopted Dec. 22, 2014, changed the title of § 2-147 from "Chairman; meetings; rules; records; reports" to read as herein set out.

Sec. 2-148. Functions, duties.

The commission on grandparents raising grandchildren shall advise and assist the mayor and the council in fostering and formulating a program that will benefit the grandparents raising grandchildren of the city. The commission, with the consent of the mayor, may undertake such educational and other activities to advance the interests of grandparents raising grandchildren within this community as it deems necessary or desirable. The commission shall make a continued study of conditions and needs of grandparents raising grandchildren in the city. It shall analyze public and private services provided for grandparents raising grandchildren. It shall encourage the development and coordination of governmental and nongovernmental agencies and organizations having like or kindred functions and shall cooperate with them as it deems necessary or desirable.
(Ord. No. 30-02, 7-11-02; Ord. No. 17-14, 12-22-14)

Sec. 2-149. Compensation of members.

The members of the commission on grandparents raising grandchildren shall serve without compensation, but their necessary and actual expenses incurred in the performance of their actual duties shall be paid by the city within the limits of any appropriation made therefore.
(Ord. No. 30-02, 7-11-02)

Sec. 2-150. Appropriations for expenses.

The council may make appropriations to cover the expenses of the commission on grandparents raising grandchildren.
(Ord. No. 30-02, 7-11-02)

DIVISION 2B. HARTFORD BOARD OF EDUCATION

Sec. 2-151. Statement of policy.

Section 2(f) of the City Charter allows the Council to create up to two (2) non-voting ex-officio positions on the Board of Education for the students of the Hartford public schools, to be appointed by the mayor for a one-year term.
(Ord. No. 04-12, 3-26-12)

Editor's note—Ord. No. 04-12, adopted March 26, 2012, takes effect July 1, 2012.

Sec. 2-152. Appointment of ex-officio board members to the Hartford Board of Education.

(a) *Membership.* The Hartford Board of Education shall include two (2) non-voting ex officio positions for students of the Hartford public schools to be appointed by the Mayor.

(b) *Term.* The ex officio members shall serve for a one-year term.
(Ord. No. 04-12, 3-26-12)

Editor's note—Ord. No. 04-12, adopted March 26, 2012, takes effect July 1, 2012.

Sec. 2-153. Qualifications.

The Mayor may consider the following qualifications and experiences with regard to the appointment of students to the Board of Education: experience in student government in Hartford Public Schools; residency in Hartford; and being selected by their peers through a process consistent with Board of Education policy.
(Ord. No. 04-12, 3-26-12)

Editor's note—Ord. No. 04-12, adopted March 26, 2012, takes effect July 1, 2012.

Secs. 2-154, 2-155. Reserved.

DIVISION 3. COMMISSION ON HUMAN RELATIONS

Sec. 2-156. Created; membership, organization, personnel.

There shall be a commission on human relations consisting of twelve (12) members who shall serve without compensation and be appointed by the council. All appointments to the commission shall be for a term of three (3) years. In the event of the death or resignation of any member of the commission, his successor shall be appointed by the council to serve the unexpired period of the term for which such member had been appointed. The staffing needs of the commission will be provided by the Office of Corporation Counsel.
(Code 1977, § 2-104; Ord. No. 42-96, 9-23-96; Ord. No. 28-11, 5-23-11)

Sec. 2-157. Functions.

The functions of the commission on human relations shall be as follows:

(1) To foster mutual understanding and respect for all races, religions, ethnic groups and for sexual preference within the city;

(2) To encourage equality of treatment without regard to race, religion, ethnicity or sexual preference;

(3) To cooperate with governmental and nongovernmental agencies and organizations having like or kindred functions;

(4) To make such studies in the field of human relations as in the judgment of the commission will aid in effectuating its general purpose.

(Code 1977, § 2-106; Ord. No. 55-91, 10-15-91)

Sec. 2-158. Powers and duties.

The powers and duties of the commission on human relations shall be as follows:

(1) To cooperate, together with federal, state and other city agencies, in developing a course of instruction for presentation to the public, in public and private schools,

public libraries and other suitable places, on techniques for achieving harmonious intergroup relations within the city;

(2) To enlist the cooperation of the various racial, religious and ethnic groups, community organizations, labor organizations, fraternal and benevolent associations, and other groups in programs and campaigns devoted to eliminating group prejudice, intolerance, bigotry and discrimination;

(3) To study the problems of prejudice, intolerance, bigotry, discrimination and disorder occasioned thereby in all or any fields of human relationship;

(4) To receive complaints of racial, religious and ethnic group tensions, prejudice, intolerance, bigotry and disorder occasioned thereby, and discrimination against any person, group of persons, organizations or corporations, and to refer such complaints to the proper agency having jurisdiction in the particular matter;

(5) To submit annually a report to the council concerning its activities within any fiscal year.

(Code 1977, § 2-107; Ord. No. 25-88, 4-11-88; Ord. No. 11-00, 4-24-00)

Sec. 2-159. Cooperation by other agencies.

The commission on human relations shall have available the services of other city departments and agencies by the respective heads of the departments and agencies for the assistance of the commission in its proper function. The corporation counsel shall, at the request of the commission, assign staff assistants to the commission in the conduct of its activities.

(Code 1977, § 2-108)

Sec. 2-160. Members may serve on police department's investigations review board.

(a) *Regular members.* Any member of the human relations commission may, when so designated by the city manager, serve on the police department's investigations review board to review investigations of citizen complaints against police conduct, provided that no more than three (3) members shall be eligible to serve at any one (1) time.

(b) *Alternative member.* The city manager may designate a fourth member of the human relations commission to serve as an alternative member. Such alternate member may attend all meetings, however, the alternate member may only vote if one (1) of the three (3) members is absent or disqualified.

(Code 1977, § 2-109; Ord. No. 5-82, 2-22-82; Ord. No. 19-85, § 2, 4-8-85)

Secs. 2-161—2-175. Reserved.

DIVISION 4. COMMISSION ON CULTURAL AFFAIRS*

Sec. 2-176. Definitions.

(a) The term "work of art," as used in this division, shall apply to and include but not be limited to: Imagery, stained glass; painting in all media, including portable and permanently affixed works, such as mural, fresco, mosaic; sculpture, in any material or combination of materials; graphic arts, printmaking and drawing; photography; calligraphy; works in clay, fiber, textile, wood, metal, plastics or other materials; statues, monuments, fountains, arches or other structures of a permanent character intended for ornament or commemoration; bas-reliefs, buildings, bridges, viaducts, approaches, gates, fences, lamps, street furniture or other structures to be erected or erected upon land belonging to the city or within the street lines of any street.

(b) The term "artist," as used in this division shall mean an individual who creates work within, but not limited to, the following disciplines: Fine

*__Editor's note—__Ord. No. 25-08, adopted Nov. 24, 2008, amended Art. V, Div. 4 in its entirety to read as herein set out. Former Art. V, Div. 4, §§ 2-176—2-178, pertained to commission on cultural affairs. See the Code Comparative Table for complete derivation.

__Cross references—__Amusements generally, Ch. 5; parks and recreation, Ch. 26.

art, including visual art, dance, literature, poetry, performance art, film, music, theater, crafts and culinary art.
(Ord. No. 25-08, 11-24-08)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 2-177. Established; membership.

There is hereby established a commission on cultural affairs for the City of Hartford which shall consist of fifteen (15) commissioners. Twelve (12) commissioners shall be electors of City of Hartford, two (2) of whom are students who either reside in City of Hartford or attend a school within the City of Hartford. The remaining three (3) commissioners may reside outside of the City of Hartford. Each commissioner shall serve for the terms for which he or she is appointed and until his or her successor is appointed. Vacancies shall be filled in the same manner as original appointments and shall be for the unexpired balance of the term. Terms shall be for four (4) years. The commission shall elect a chairperson at its first meeting after June 1, 2010. The commission shall elect a new chairperson when the chairperson's term expires or if he or she resigns his or her post. The chairperson shall preside over all meetings. The commission on cultural affairs shall organize itself in accordance with the provisions of this division and the rules and procedures it shall adopt. Five (5) members shall constitute a quorum for the performance of commission functions and duties. A majority vote of a quorum will constitute a vote of the commission. The commission shall meet at least twice per quarter. Commissioners shall serve without pay.
(Ord. No. 25-08, 11-24-08; Ord. No. 07-10, 4-12-10; Ord. No. 11-10, 5-24-10)

Sec. 2-178. Functions; duties.

(a) The specific functions or duties of the commission on cultural affairs shall include but not be limited to the following:

(1) Develop an arts policy to be presented to the court of common council for approval within one (1) year of the commission's first meeting after June 1, 2010, and again every five (5) years from that date;

(2) Assess the conditions and needs of the arts community in relation to employment, recreational and educational matters;

(3) Analyze the services provided for the arts community by both public and private agencies;

(4) Review and advise on funding proposals coordinated by the office of marketing, events and cultural affairs;

(5) Annually assess the activities of the office of marketing, events and cultural affairs and provide budgetary recommendations for the next fiscal year by March 31 of each calendar year;

(6) Advise the council on matters pertaining to design in the city;

(7) Provide assistance to the office of marketing, events and cultural affairs.

(b) Before any work of art, including the method of illumination any work of art, shall become the property of the city by purchase, gift or otherwise, or be constructed upon city property, the director of marketing, events and cultural affairs shall submit such work of art or a design, copy or likeness thereof to the commission on cultural affairs for its opinion and recommendation. After submission is made by the director of marketing, events and cultural affairs, final action concerning the acceptance or acquisition of such work of art shall not be taken by the council until the commission on cultural affairs has reported thereon; provided, that such work of art may be accepted if no report is filed within thirty (30) days after such work of art, design, copy or likeness is submitted to the commission. No work of art which has been accepted by the council shall be changed unless such change is first submitted to the commission and approved by the council in the same manner as originally submitted for acceptance. In the event of needed acceptance or changes which are a matter of urgency, and if the commission on cultural affairs is unable to meet, the council may, upon the affirmative vote of seven (7) members, accept any work of art or any change of any work of art without prior submission of such work of art or change in the

work of art to the commission on cultural affairs. On matters pertaining to private design the council may seek the advice and opinion of the commission on cultural affairs. Besides the foregoing functions or duties, those matters which the council deems cultural or artistic may be referred to the commission for its opinion and recommendation.

(c) *Poet Laureate established.*

1) *Appointment*. The City hereby establishes the honorary position of poet laureate of Hartford. The poet laureate shall be appointed by the mayor and confirmed by the court of common council. The term of the poet laureate shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall continue until a new poet laureate is confirmed. The poet laureate shall be a resident of Hartford.

2) *Selection*. The commission on cultural affairs shall create an application process, establish selection criteria, and convene a selection committee to recommend a poet to the mayor for appointment. The commission on cultural affairs may consult with any person of its choosing in addition to the selection committee to establish such application and criteria. At a minimum, the application must include a letter of interest, a resume, at least four (4) examples of the applicant's work, and three (3) professional references. At a minimum, the selection committee shall consist of at least one (1) person selected by the mayor, at least one (1) member of the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in poetry or literature who reside in the City of Hartford, and representatives of any funding source for a stipend for the poet laureate. The selection committee shall review all applications, may interview the candidates, and shall forward a selection to the mayor for appointment.

3) *Duties*. The responsibilities of the poet laureate shall include, but not be limited to, providing public poetry readings, appearing at public events, encouraging poetry appreciation within the city, and composing and publishing poems. The poet laureate shall promote awareness and appreciation of poetry, spoken word, and writing; shall work with the Hartford Public Library and local schools to promote creative learning through poetry and shall endeavor to instill pride in the community.

(d) *Troubadour established*.

(1) *Appointment*. The City hereby establishes the honorary position of troubadour or trobairitz of Hartford. The Commission on Cultural Affairs shall recommend a troubadour or trobairitz to the mayor for appointment and the court of common council shall then confirm the appointment. The term of the troubadour or trobairitz shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall continue until a new troubadour or trobairitz is confirmed. The troubadour or trobairitz shall be a resident of Hartford.

(2) *Selection*. The Commission on Cultural Affairs shall create an application process, establish selection criteria, and establish a selection committee to recommend a troubadour or trobairitz to the mayor for appointment. At minimum, the selection committee shall consist of: one (1) person selected by the mayor, at least one (1) member of the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in music who reside in the City of Hartford, and two (2) other seats determined by the Commission on Cultural Affairs. At minimum, the application must include: a letter of interest, a resume, at least three (3) professional references, a list of original works, and an upload or link to four (4) samples of the musician's work. The selection committee shall review the

applications, may interview candidates, and then forward a recommendation to the mayor for appointment.

(3) *Duties*. The responsibilities of the troubadour or trobairitz shall include, but are not limited to: public performances, public event appearances, and composition and publishing of songs about the city. The troubadour or trobairitz shall serve as an ambassador of music and song, foster public appreciation of and participation in song, shall work with the Hartford Public Library and local schools to promote creative learning and cultural literacy among Hartford citizens and shall endeavor to instill pride in the community.

(e) *Storyteller established*.

(1) *Appointment*. The City hereby establishes the honorary position of Storyteller for the city of Hartford. The Commission on Cultural Affairs shall recommend a storyteller to the mayor for appointment and the court of common council shall then confirm the appointment. The term of the storyteller shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall continue until a new storyteller is confirmed. The storyteller shall be a resident of Hartford.

(2) *Selection*. The Commission on Cultural Affairs shall create an application process, establish selection criteria, and establish a selection committee to recommend a storyteller to the mayor for appointment. At minimum, the selection committee shall consist of: one (1) person selected by the mayor, at least one (1) member of the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in the histories and stories of Hartford and/or literature and storytelling who reside in the City of Hartford, and two (2) other seats determined by the Commission on Cultural Affairs. At minimum, the application must include: a letter of interest, a resume, at least three (3) professional references, a list of original works, and two (2) to five (5) exemplary samples of the applicant's work with citation of the source of publication or location of performance venue where applicable. The selection committee shall review the applications, may interview candidates, and then forward a recommendation to the mayor for appointment.

(3) *Duties*. The responsibilities of the storyteller shall include, but are not limited to: public performances and/or readings, public event appearances, and writing or presenting in other forms, stories about the city. The storyteller for the city of Hartford shall promote awareness and appreciation of real-life stories of Hartford's people, traditions, politics, the arts, and all that have and continue to shape the city; shall work with the Hartford Public Library and local schools to promote learning of Hartford's history, climate, and uniqueness, and shall endeavor to instill pride in the community.

(f) *Commentator established*.

(1) *Appointment*. The City hereby establishes the honorary position of Commentator for the city of Hartford. The Commission on Cultural Affairs shall recommend a commentator to the mayor for appointment and the court of common council shall then confirm the appointment. The term of the commentator shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall continue until a new commentator is confirmed. The commentator shall be a resident of Hartford.

(2) *Selection*. The Commission on Cultural Affairs shall create an application process, establish selection criteria, and establish a selection committee to recommend a commentator to the mayor for appointment. At minimum, the selection committee shall consist of: one (1) person selected by the mayor, at least one (1) member of

the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in commentary or literature who reside in the City of Hartford, and two (2) other seats determined by the Commission on Cultural Affairs. At minimum, the application must include: a letter of interest, a resume, at least three (3) professional references, a list of original works, and two (2) to four (4) exemplary samples of the applicant's work with citation of the source of publication or location of performance venue where applicable. The selection committee shall review the applications, may interview candidates, and then forward a recommendation to the mayor for appointment.

(3) *Duties*. The responsibilities of the commentator shall include, but are not limited to: public performances and/or readings, public event appearances, and writing of commentaries about the city. The commentator for the city of Hartford shall promote thoughtful social and cultural commentary and discourse, shall work with the Hartford Public Library and local schools to promote creative learning through commentary, social and cultural observation and expression of thought, and shall endeavor to instill pride in the community.

(g) *Flow Artist established*.

(1) *Appointment*. The City hereby establishes the honorary position of Flow Artist for the city of Hartford. The Commission on Cultural Affairs shall recommend a Flow Artist to the mayor for appointment and the court of common council shall then confirm the appointment. The term of the Flow Artist shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall continue until a new Flow Artist is confirmed. The Flow Artist shall be a resident of Hartford.

(2) *Selection*. The Commission on Cultural Affairs shall create an application process, establish selection criteria, and establish a selection committee to recommend a Flow Artist to the mayor for appointment. At minimum, the selection committee shall consist of: one (1) person selected by the mayor, at least one (1) member of the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in movement and/or performance of a type of physical creative expression who reside in the City of Hartford, and two (2) other seats determined by the Commission on Cultural Affairs. At minimum, the application must include: a letter of interest, a resume, at least three (3) professional references, and two (2) to four (4) exemplary samples of the applicant's work with citation of performance venue when applicable. The selection committee shall review the applications, may interview candidates, and then forward a recommendation to the mayor for appointment.

(3) *Duties*. The responsibilities of the Flow Artist shall include, but are not limited to: engaging residents through movement/flow workshops and/or performances, public event appearances, and submitting documentation of a performance or community-led project each year. The Flow Artist for the city of Hartford shall promote awareness and appreciation of expression through movement, they shall work with Hartford Public Schools to engage students in creative physical expression, and shall endeavor to instill pride in the community.

(h) *Earth Artist established*.

(1) *Appointment*. The City hereby establishes the honorary position of Earth Artist for the city of Hartford. The Commission on Cultural Affairs shall recommend an Earth Artist to the mayor for appointment and the court of common council shall then confirm the appointment. The term of the Earth Artist shall be three (3) years from the date of confirmation. Such designation may be renewed, and shall

continue until a new Earth Artist is confirmed. The Earth Artist shall be a resident of Hartford.

(2) *Selection*. The Commission on Cultural Affairs shall create an application process, establish selection criteria, and establish a selection committee to recommend an Earth Artist to the mayor for appointment. At minimum, the selection committee shall consist of: one (1) person selected by the mayor, at least one (1) member of the court of common council or appointed by the court of common council, at least two (2) people with a demonstrated expertise in art, ecology, and/or environmental justice and culture who reside in the City of Hartford, and two (2) other seats determined by the Commission on Cultural Affairs. At minimum, the application must include: a letter of interest, a resume, at least three (3) professional references, and four (4) to seven (7) exemplary samples of the applicant's work with citation of the source of publication or location of venue artwork displayed when applicable. The selection committee shall review the applications, may interview candidates, and then forward a recommendation to the mayor for appointment.

(3) *Duties*. The responsibilities of the Earth Artist shall include, but are not limited to: engaging residents by amplifying the presence of the natural world in Hartford, addressing through art and culture the need for environmental justice, public event appearances, and submitting a work of art or leading a community project each year. The Earth Artist for the city of Hartford shall promote awareness and appreciation of the planet Earth; shall work with the Connecticut Science Center, the Parks, and local schools to promote ecological learning through hands on art and cultural activities, and shall endeavor to instill pride in the community and the beauty of Hartford's natural spaces.

(Ord. No. 25-08, 11-24-08; Ord. No. 11-10, 5-24-10; Ord. No. 19-11, 5-23-11; Ord. No. 08-17, 3-13-17; Ord. No. 14-19, 10-15-19)

Sec. 2-179. Staff.

The head of the Office of Marketing, Events and Cultural Affairs shall serve as the staff assistant to the cultural affairs commission.
(Ord. No. 25-08, 11-24-08; Ord. No. 11-10, 5-24-10; Ord. No. 22-11, 5-23-11)

DIVISION 4A. COMMISSION ON REFUGEE AND IMMIGRANT AFFAIRS

Sec. 2-180. Established.

There is hereby established a Commission on Refugee and Immigrant Affairs.
(Ord. No. 10-13, 11-25-13)

Sec. 2-181. Declaration of purpose.

The Commission's mission is to create a means for refugee and immigrant voices to be heard and understood, to facilitate civic engagement among refugees and immigrants, and to recognize and legitimize issues of importance to new arrivals to the City of Hartford. The Commission shall additionally:

1. Advise and inform City government about the needs and status of the refugee and immigrant communities;
2. Advocate for the interests of refugees and immigrants;
3. Promote recognition of the contributions of the foreign-born to the economic and cultural vitality of Hartford;
4. Provide opportunities for all sectors of the Hartford community to learn about and discuss issues related to immigration, refugees, and immigrants;
5. Facilitate communication and collaboration between diverse refugee and immigrant groups.

(Ord. No. 10-13, 11-25-13)

Sec. 2-182. Membership; organization

(a) *Members:* The Commission shall consist of no more than twenty-one (21) members and no fewer than eleven (11) members. Quorum shall consist of fifty (50) percent of the membership

plus one (1). Members shall be appointed in accordance with Chapter VII, Section 1 of the Charter. Members shall be appointed in accordance with the following criteria:

1. All members will have demonstrated their interest in refugee and immigrant issues, integration, and well-being and be committed to assisting the commission to achieve its mission.
2. A majority of members shall be residents of Hartford.
3. Membership shall not be restricted to U.S. citizens, but a majority of members shall be U.S. citizens;
4. Membership on the Commission shall be reflective of the refugee and immigrant population of Hartford. Diversity shall include geography, language, immigration status, background and ethnicity. Diversity of the commission shall be addressed pursuant to the commission's latest report on the status of refugee population in Hartford.
5. Members may also possess at least one (1) of the following qualifications:
    i. Be foreign born or be the child of at least one (1) parent who is foreign-born;
    ii. Serve or have served as an advocate for refugees or immigrants;
    iii. Be employed by or serve as a volunteer with an organization or agency providing services to recent refugees and immigrants living in Hartford.

(b) *Terms:*

1. Terms shall be two (2) years in length.
2. Terms shall be overlapping, i.e. eleven (11) terms shall expire in one (1) year and ten (10) terms shall expire in the following year. Of the members first appointed, eleven (11) members shall be appointed for two-year terms and ten (10) members shall be appointed for one-year terms, to allow for over-lapping terms.
3. Members shall serve no more than two (2) consecutive terms.

(c) *Officers:* The Commission shall elect a chair, vice-chair, secretary, and treasurer. Other officers may be created by the Commission.

(d) Meetings: The Commission shall meet monthly beginning no later than sixty (60) days from when eleven (11) members are appointed and confirmed.

(e) Bylaws: The Commission shall adopt bylaws which shall include attendance requirements, a process for electing officers, and processes for doing business.

(f) Liaisons: The Hartford Public Schools and the Hartford Public Library shall each designate a staff person as a liaison to the Commission. Said liaison will provide information regarding refugees and immigrants to the Commission upon request.
(Ord. No. 10-13, 11-25-13)

Sec. 2-183. Duties and functions.

1. Monitor and analyze existing or proposed policies and actions, at all levels of government, for their impact on refugees and immigrants.

2. Analyze and make recommendations concerning the delivery and coordination of services for refugees and immigrants.

3. Regularly issue a report on the state of refugees and immigrants in Hartford. Such report shall be issued every two (2) years at a minimum.

4. Propose policies and/or actions to the Mayor and Council, as appropriate, for addressing the issues and needs of refugees and immigrants.

5. The City's departments shall provide, upon request of the Commission, information relating to the city's refugee and immigrant population.
(Ord. No. 10-13, 11-25-13)

Secs. 2-184—2-195. Reserved.

DIVISION 5. CIVILIAN POLICE REVIEW BOARD*

Sec. 2-196. Established; composition; meetings; functions.

(a) *Established.* There is hereby established a civilian police review board to hear public complaints against members of the Hartford Police Department. It is in the interest of Hartford residents and citizens, generally, and of the Hartford Police Department that investigations of complaints concerning misconduct by police officers involving members of the public be complete, thorough and impartial. These inquires must be conducted fairly and independently, and in such a manner that the public and the police department have confidence. An independent civilian complaint review board is hereby established, as a body comprised of voting members who are civilians. The civilian police review board shall have the authority to investigate allegations through the inspector general, of police misconduct, concurrent to the Hartford Police Department's Internal Affairs Division review of a complaint, and to reach an independent judgment and to make findings and transmit them to the police chief and to the mayor in connection therewith. Said review board shall be in the Office of Equity and Opportunity for administrative purposes only.

(b) *Composition.* The civilian police review board shall be comprised of nine (9) regular voting members and two (2) alternates who shall be regular voting members when they sit. The mayor shall appoint eight (8) of the nine (9) regular members, pursuant to Section 2(d) of Chapter IV of the City Charter, no more than two (2) of whom may be non-residents of the city, and the mayor shall appoint both of the alternates. The commission on human relations shall appoint one (1) member. Both alternates and the member appointed by the commission on human relations shall be Hartford residents. The board shall include a non-voting member, appointed by the mayor in accordance with these provisions, who is between the age of 18 and 26 years old and a resident of the City of Hartford. In nominating members of the CPRB, the mayor shall give substantial weight to nominees recommended (a) by a majority of members of the Court of Common Council or (b) through any community recommendation process jointly established by the Mayor and the Court of Common Council by Resolution passed by Council and approved by the Mayor. At least one member or alternate shall be a person who has previously been justice involved, and justice involved shall be defined as an individual who has had prior interaction with the criminal justice system as a defendant.

Any such community recommendation process established shall seek to obtain recommendations from organizations representing various communities of interest, including but not limited to, organizations in the City advocating for criminal and social justice reform, neighborhood organizations, business and labor organizations, and organizations advocating for diversity and equality within the City. For any vacancy, no fewer than five recommended nominees will be provided to the mayor by the council or through the community recommendation process. If the mayor has been provided with five recommended nominees and does not select a nominee from that list, the mayor shall provide a public justification for such decision. If the Mayor has not been provided with five recommendations from the Court of Council or through the community recommendation process, the Mayor shall, in transmitting the name of a nominee to the City Council, provide the qualifications of the nominee as well as a list of the organizations from which the Mayor sought input and recommendations.

The civilian police review board shall rely upon the findings, and investigative reports of the inspector general in making recommendations. In addition to other information and testimony of witnesses, the inspector general shall have access to the same files and reports as the Hartford Police Department's Internal Affairs Division as allowed by existing statutes or requirements of law.

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*__Editor's note—__Ord. No. 20-06, adopted June 12, 2006, amended Division 4, § 2-196 in its entirety. Formerly, said section pertained to similar subject matter and derived from Ord. No. 29-92, adopted June 22, 1992.

__Charter reference—__City manager, Char. ch. V, § 6.

__Cross reference—__Human relations commission, § 2-157, chief of police, § 29-5.

No civilian member of the civilian police review board shall be a current, former, or retired officer of the Hartford Police Department or any other law enforcement agency or employee of the City of Hartford, or an immediate family member of an officer of the Hartford Police Department or employee of the City of Hartford, as governed and defined by the City of Hartford Code of Ethics.

Members and alternates selected for the civilian police review board shall be chosen based on their experience and expertise in fields relevant to the charge of the civilian police review board. In making nominations to the board, strong consideration will be given to ensuring that the board reflects the full diversity of the city of Hartford, including racial, ethnic, sexual orientation, and age.

The police chief shall designate one (1) non-voting member and one (1) non-voting alternate from the Hartford Police Department who shall be available to attend meetings of the civilian police review board, as requested by the board. The said designees, each to be of a rank of at least Lieutenant, shall have first undergone diversity and cultural sensitivity training.

Of the members initially appointed to the civilian police review board by the mayor, four (4) shall be appointed for four (4) years each; three (3) shall be appointed for three (3) years each, and one (1) shall be appointed for a term of two (2) years. Thereafter each and all appointments shall be for a term of four (4) years. The two (2) alternates shall each be appointed for a four (4) year term. The non-voting member of the civilian police review board shall be appointed for a term of two (2) years. The member appointed by the commission on human relations shall serve for four (4) years. Each member shall serve until his/her successor is appointed and any member may be reappointed. Any member of the civilian police review board appointed by the mayor may be removed for cause by the mayor or by a two-thirds vote of the city council. Any member of the civilian police review board appointed by the commission on human relations may be removed for cause by the commission on human relations.

Any member of the civilian police review board who misses, without excuse or permission, three (3) consecutive meetings or four (4) meetings in a twelve (12) month period of the civilian police review board's regularly scheduled meetings shall be considered to have resigned. Any vacancy on the civilian police review board occasioned by resignation, death, inability to serve or removal of a member shall be filled for the unexpired term by appointment by the mayor within forty-five (45) calendar days of the date when the vacancy occurred.

The members and staff of the civilian police review board shall undergo training in the policies, procedures and directives of the Police Department relevant to their duties, including training relating to racial profiling. The police department and the inspector general shall cooperate in the development and provision of such training.

(c) *Jurisdiction.* The civilian police review board shall investigate through the inspector general citizen complaints against City of Hartford police officers filed with the Police Department or with the civilian police review board, concurrent to any investigation conducted by Police/Internal Affairs. Complaints may be filed directly with the civilian police review board, with the police department, with a Hartford 311 constituent services representative, or with community-based agencies, registered by the civilian police review board and the police department, and a list of such agencies receiving complaints shall be maintained and published on the City website. Each citizen complaint received by the civilian police review board, whether directly or from a community agency, shall be forwarded to the police department within three (3) business days. Complaints received by the Police Department shall be forwarded to the civilian police review board within three (3) business days. Every complaint, as soon as it is received by the Police Department or the CPRB, shall be given a case or tracking number and a time and date of filing, so that the complainant can be assured that the matter is addressed timely.

The civilian police review board shall have jurisdiction over citizen complaints against police officers related to, but not limited to, the following:

(1) Improper handling of citizen's property.

(2) False arrest; improper detention.

(3) Violation of the code of conduct.

(4) Excessive use of force.

(5) Civil rights violation.

(6) Illegal search and seizure.

(7) Failure to provide medical attention.

(8) Harassment.

(9) Racial profiling and/or use of racial or ethnic slurs/discriminatory language.

(10) Crime committed by police.

(11) Abuse of authority.

(12) Retaliation for filing a complaint.

(13) Filing a false report.

Allegations in a complaint of slow or poor service, discourteous attitude or use of profane language shall be investigated by Police/Internal Affairs and reported to the Office of Equity and Opportunity and the civilian police review board on a quarterly basis. In cases in which an officer has had repeatedly been the subject of complaints for slow or poor service, discourteous attitude or use of profane language, based upon a vote of the civilian police review board, a full inspector general investigation may be required.

The civilian police review board shall have the right to request on its own motion an investigation of a public incident when the public interest may be served by so doing. The civilian police review board shall also have the right, on its own motion, to initiate a complaint when the civilian police review board has a good faith belief that a specific incident of misconduct has occurred but no formal citizen complaint has been received, provided that complaints initiated by the civilian police review board shall not take priority over other civilian complaints.

The civilian police review board, through the inspector general, will provide training and information to community-based agencies regarding the citizen complaint process.

(d) *Operations.*

(1) The mayor shall designate the chairperson of the civilian police review board, who shall be a City resident and serve a one-year term which may be extended by designation of the mayor annually for no more than three (3) terms of one (1) year each. Annually, the civilian police review board shall elect a vice chairperson and a secretary. Said elections shall be by a quorum of the members at the meeting of the civilian police review board falling closest to the anniversary date of the previous election. The chairperson shall act as spokesperson for and as liaison between the civilian police review board and the mayor and the city. In the absence of the chairperson, the vice chairperson shall serve or act until a succeeding chairperson is appointed.

(2) The city shall provide for the requisite staff assistance, supplies, equipment and facilities to the Office of Equity and Opportunity in order to facilitate the administration of the civilian police review board business. The civilian police review board will develop policies and procedures for the filing and processing of citizen complaints, for the operations of the civilian police review board and for training members of the civilian police review board and the community-based agencies.

(3) The meetings of the civilian police review board shall be open to the public, except that the civilian police review board may hold executive sessions in accordance with state law. Meetings of the civilian police review board shall be held in accordance with the provisions of the Connecticut Freedom of Information Act.

(4) The meetings of the civilian police review board shall be held at sites away from the police stations.

(5) The civilian police review board shall meet monthly. A quorum of five (5) voting members is required to convene a regularly scheduled or specially called meeting and conduct business. All meeting minutes shall be posted to the City's website and also made available to the public at the Office of the Town and City Clerk.

(6) When sufficient cause exists, the civilian police review board may convene special meetings, in accordance with its policies and procedures and in accordance with the Freedom of Information Act.

(7) The reports of the inspector general associated with the civilian police review board shall be completed within forty-five (45) days from the date the investigation is initiated.

If extenuating circumstances prevent the inspector general from being completed within forty-five (45) days, a request for additional time shall be submitted to the chair of the civilian police review board, who may grant additional time for the completion and submission of the investigation.

(8) At each meeting, the civilian police review board shall review pending citizen complaint cases; decide completed citizen complaint cases; and receive updates on its recommendations. All meeting minutes shall be posted to the City's website and also made available to the public at the Office of the Town and City Clerk.

(9) In the course of its investigation into citizen complaints, in appropriate circumstances, the inspector general may take sworn testimony from witnesses concerning the alleged conduct which is the subject of the complaint. Any officer or member of the police department against whom a citizen complaint is filed may be required to attend and participate.

(10) Following the review of a citizen complaint and subsequent investigation by the inspector general, the civilian police review board will determine whether or not the citizen complaint is sustained. The civilian police review board will promptly report its findings and determinations to the police chief. A copy of its determinations shall also be sent to the citizen complainant and to the relevant community-based agencies, if applicable.

(11) The chief of police shall promptly review the findings and determinations of the civilian police review board and consider the recommendations of internal affairs. Upon request by the chair of the civilian police review board, any proposed action by the Chief that adopts findings and determinations that differ from the findings and determinations of the civilian police review board shall be the subject of review by an independent arbitrator, selected by the chief of police and the chair of the civilian police review board from a list of qualified individuals approved by the selection panel established herein.

(12) Upon request for review by an independent arbitrator, the chair of the civilian police review board, or designee, and the chief of police, or designee, shall present to the independent arbitrator their respective findings and recommendations. The independent arbitrator, after reviewing all the facts, reports, findings and presentations, shall render a decision that either upholds the findings of the chief of police or upholds the findings of the civilian police review board. The decision of the arbitrator shall be reduced to writing and shall become a public document. The decision by the arbitrator shall be final, and the Chief of Police shall proceed in conformance therewith.

The independent arbitrator must be a retired state or federal judge, including a state referee, or a retired judge of probate. Such independent arbitrator may be entitled to a daily stipend for participating in a review.

(13) There is hereby established a selection committee consisting of the Council President or their designee, the chief of

police, the chair and one additional member of the civilian police review board, the president of the Hartford Police Union, the chair or a co-chair of City Council's Quality of Life and Public Safety Committee, and the inspector general, which shall generate a list of candidates qualified to serve as independent arbitrators established herein. To be eligible for inclusion on the list of qualified candidates, an individual must be a retired state or federal judge or state referee, or a retired judge of probate.

(14) The civilian police review board will seek to complete its review of every civilian complaint within ninety (90) days of receipt thereof. In the event that circumstances prevent the completion of a review of a civilian complaint with ninety (90) days, the inspector general, on behalf of the civilian police review board, will submit written cause for the delay and reason(s) for the same to the office of the mayor.

(15) The civilian police review board may also make recommendations to the office of the mayor and city council for revision of specific police department policies and procedures related to civilian complaint process.

(16) In cases in which a complaint against an officer has been sustained, either by the Chief of Police or by the Independent Arbitrator, the Chief of Police shall initiate the disciplinary process within fifteen days following the determination that the complaint has been sustained. The chief of police shall report to the civilian police review board that he or she has complied with this requirement within ten days of initiating the disciplinary process as required by this section.

(e) *Accountability.* The civilian police review board shall prepare an annual report to the office of the mayor and the court of common council indicating:

(1) The type and number of complaints filed,

(2) The number and identity of police officer(s) complained against and the number and identity of police officer(s) and members of the police department against whom multiple complaints were received, and the disposition of the complaints, and

(3) The identity of police officers with either (a) more than two complaints in any twelve-month span or (b) more than five total complaints during the previous ten years.

(4) The dollar value, if any, of settlements ordered and/or paid arising out of the citizen complaints, provided such disclosure does not violate a confidentiality agreement

The chief of police shall prepare an annual report to the office of the mayor and the court of common council indicating disciplinary actions taken and assistance offered to police officer(s) and members of the Hartford Police Department against whom multiple civilian complaints were received. This annual report shall be posted to the City's website and also made available to the public at the Office of the Town and City Clerk.

The Hartford Police Department shall timely provide police policies, training and procedures upon request by the Board, except as otherwise required by law or to the extent that disclosure could compromise public safety, and shall make such policies, training and procedures available on the city website, subject to the same limitation above.

(f) *Inspector General.* There is hereby established the position of inspector general. The inspector general shall be a member of the classified service and following a competitive selection process shall be appointed by a panel consisting of the chair of the civilian police review board, the mayor, and the president of the city council. The inspector general shall have the requisite skills and knowledge of general police policies and practices and the state of the law related to civil rights, and other claims made against police officers, and more generally have experience and expertise in fields relevant to the charge of the civilian police review board and in

the selection of the Inspector General there shall be a preference for candidates with formal legal training. The inspector general may have a law enforcement background but may not be a member of a police department at the time of nomination to the position or have ever been a member of the Hartford Police Department. The inspector general may have such staff as may be provided for in the annual budget as adopted by the City Council. Such staff shall be members of the classified service and, subject to the rules of the classified service, shall be appointed and may be removed by the inspector general. Such staff may have a law enforcement background but may not be a member of a police department at the time of the nomination to the position or may not have ever been a member of the Hartford Police Department.

(1) The inspector general reports to the civilian police review board.

(2) The inspector general shall conduct a concurrent investigation, along with the Police Department/Internal Affairs investigation, into each citizen complaint referred by the civilian police review board.

(3) The chair of the civilian police review board shall refer complaints to the inspector general forthwith for investigation.

(4) The inspector general shall have access to the same files and reports as the Hartford Police Department's Internal Affairs Division as allowed by existing statutes or requirements of law.

(5) Upon authorization under state law, the inspector general shall have subpoena power as part of an investigation of a complaint.

(6) The inspector general shall complete its investigation and provide its findings and recommendations within a forty-five day (45) period, unless that time is extended pursuant to the provisions of this section.

(Ord. No. 29-92, 6-22-92; Ord. No. 8-00, 3-27-00; Ord. No. 51-03, 12-8-03; Ord. No. 05-06, 4-10-06; Ord. No. 20-06, 6-12-06; Ord. No. 004-20, 11-23-20)

DIVISION 5A. PUBLIC BUILDING DEDICATION COMMITTEE

Sec. 2-197. Naming of public land.

(a) *Established.* There shall be a dedication committee composed of the following five (5) members: The mayor, the council president, the chairperson of the planning, economic development and housing committee, or its successor, the minority leader and the chief operating officer. This committee shall make recommendations to the city council with respect to the naming of any piece or parcel of public land and any public building or street, and designation of any day of observance. Any member may convene a committee meeting to consider any recommendation.

(b) *Approval by council.* The council, after receiving a recommendation from the dedication committee, may, by resolution, name any piece or parcel of public land, or any public building or street after any person, entity or other concept and may, by ordinance, make a designation of an annual day of observance. Such resolution or ordinance may only be considered by the council after a public hearing thereon and shall be considered authorized and approved after the affirmative vote of the majority of the council.
(Ord. No. 12-96, 6-24-96; Ord. No. 05-15, 3-23-15)

Sec. 2-198. Day of observance.

(a) *African American Day.* The last Saturday in September is hereby designated as African American Day in the city of Hartford.
(Ord. No. 05-15, 3-23-15)

Secs. 2-199—2-210. Reserved.

DIVISION 6. COMMISSION ON ADDICTION AND PUBLIC HEALTH*

Sec. 2-211. Establishment; purpose.

There is hereby established a commission on addiction and public health to serve as a coordi-

*__Editor's note—__Ord. No. 09-12, adopted Oct. 9, 2012, changed the title of Art. V, Div. 6, from commission on alcohol and drug abuse to commission on addiction and public health.

__Cross references—__Department of substance abuse prevention and intervention, § 2-100; alcoholic beverages generally, Ch. 4.

__State law reference—__Appropriations for drug abuse dependency programs, G.S. § 7-148(c)(2)(E).

nating body for planning, awareness, prevention. and education efforts focused on the issues associated with substance use in the City of Hartford. The commission's specific purpose and duties shall be as follows:

(a) Study the issues associated with substance use in the City of Hartford and the needs of those affected by such issues. The commission's work shall not include the management of individual cases. Data shall be collected in an effort to (i) develop and expand relationships with agencies and organizations located in the greater Hartford area that administer programs addressing substance use and its associated issues; (ii) improve already existing community services and programs which address these issues; (iii) develop methods to measure outcomes of the various programs administered by such community agencies and organizations: and (iv) improve communication and collaboration among community agencies and organizations targeted to address these issues;

(b) In an effort to address the issues associated with substance use, assist in building community relationships among service providers law enforcement agencies, schools, business groups, healthcare agencies, community organizations, local social service agencies, and other appropriate stakeholders, through referrals, networking activities, outreach and advocacy;

(c) Support the growth and expansion of currently existing services to address the issues associated with substance use; and

(d) Review and assess current policies at the federal, state and local levels as they relate to the various issues associated with substance use. and develop and recommend new policies to the mayor that affect long-term solutions to these issues.

(Code 1977, § 2-125.1; Ord. No. 24-76, 11-22-76; Ord. No. 13-77, 10-11-77; Ord. No. 9-89, 3-13-89; Ord. No. 20-97, 10-14-97; Ord. No. 09-12, 10-9-12)

Sec. 2-212. Organization.

(a) *Membership.* The commission on addiction and public health shall consist of nine (9) members. The members shall be nominated by the mayor and confirmed by the council. The membership of the commission may include individuals with expertise and experience in addressing the issues associated with substance use, consumers of preventive services, members of the treatment and counseling communities, members of the law enforcement community, and citizens of communities impacted by the various issues associated with substance use. Members shall serve without compensation.

(b) *Ad hoc members.* Ad hoc commission members, or non-voting members, shall be permitted and encouraged. Ad hoc members shall be sought to assist in specific goals and/or projects of the commission without endowing other rights to them.

(c) *Terms.* Members shall serve for two-year terms. Of the members first appointed, four (4) shall be appointed for a term of two (2) years and five (5) members shall serve for a term of one (1) year. Each member shall serve for the term appointed until a successor is appointed and there shall be no limit on the number of terms that a member may serve. Up to three (3) members may be non-residents of Hartford. In the event of the death, disability or resignation of any member of the commission, a successor shall be nominated by the mayor and confirmed by the council to serve the unexpired period of the term for which such member had been appointed.

(d) *Officers; Attendance.* The commission shall annually elect a chairperson and vice chairperson and may elect other officers, including a secretary. Any member who is absent from three (3) consecutive meetings of the commission, including any intervening duly called special meetings thereof, shall be considered to have resigned from the commission and the vacancy shall be filled as set out in subsection (c), except that the requirements of this subsection may be waived by the chairperson where illness or other extenuating circumstances make it clearly unreasonable or impossible to meet the attendance requirements of this section. A decision by the chairperson as to

whether a waiver under this section is appropriate shall be referred, at the request of the affected party, to the commission for a final decision on the matter by a simple majority vote of the whole commission.

(e) *Meetings.* The commission shall meet at such time and place as the chairperson shall determine. Meetings of the commission shall be held at least monthly. A quorum shall consist of a majority of the membership, unless the bylaws of the commission provide otherwise.

(f) *Appropriations; Staff.* The mayor may recommend appropriations to the council for approval to cover the expenses of the commission. The director of health and human services, or his/her designee, shall provide administrative, technical and clerical assistance to the commission. All appropriations to cover expenses of the commission shall be made in the budget of the department of health and human services in an account for that purpose.
(Code 1977, § 2-125.2; Ord. No. 24-76, 11-22-76; Ord. No. 09-12, 10-9-12)

Sec. 2-213. Regulations authorized.

The commission may establish regulations governing its operations and meetings.
(Code 1977, § 2-125.3; Ord. No. 09-12, 10-9-12)

Sec. 2-214. Annual report.

The commission shall prepare and publish a report on an annual basis, to be presented to the mayor, summarizing its recommendations and needs for accomplishing its duties and responsibilities.
(Code 1977, § 2-125.4; Ord. No. 14-77, 10-11-77; Ord. No. 09-12, 10-9-12)

Secs. 2-215—2-230. Reserved.

Editor's note—Ord. No. 09-12, adopted Oct. 9, 2012, deleted § 2-215 which pertained to appropriations for expenses and derived from Code 1977, § 2-125.5.

DIVISION 7. COMMISSION ON THE STATUS OF HARTFORD WOMEN*

Sec. 2-231. Established.

There is hereby established a permanent commission on the status of Hartford women.
(Code 1977, § 2-125.6; Ord. No. 14-85, § 2, 3-25-85)

Sec. 2-232. Purpose and duties.

The purpose of the permanent commission on the status of Hartford women shall be to:

(1) Assist in the elimination of gender-based discrimination and to help improve the status of women in the city;

(2) Study the conditions and needs of the women of the city and make recommendations to the council regarding policies and practices as they affect women and to report, annually by February first, its findings and recommendations to the mayor and the council;

(3) Hold forums or public hearings as it deems necessary and within its budgetary allocation for the purpose of gathering information;

(4) Provide information to the public concerning the commission's activities and concerning matters of consequence to women;

(5) Conduct outreach to encourage public participation to improve the status of women;

(6) Serve as mediator in matters concerning women;

(7) Seek the advice and cooperation of public and private groups in the promotion of programs for women;

(8) Review and assess city department programs and practices as they relate to women including but not limited to employment, wages and benefits as they may affect female employees of the city;

(9) Develop and maintain a cooperative relationship with the human relations com-

*__State law reference—__State commission, G.S. § 46a-1 et seq.

mission and with the state permanent commission on the status of Hartford women;

(10) Make recommendations annually by December first for statutory change at the state level to the council and the city manager;

(11) File periodic reports with the town clerk, during each season of the state general assembly, for transmittal to the council, which council shall review the reports for council action.

(Code 1977, § 2-125.7; Ord. No. 14-85, § 2, 3-25-85)

Sec. 2-233. Organization.

(a) *Membership.* The permanent commission on the status of Hartford women shall comprise twenty (20) members all of whom shall be residents of the city, nominated by the mayor and confirmed by the council. The composition of this commission shall reflect the broad spectrum of persons in the community whose rich experience crosses all social, economic and racial lines.

(b) *Terms.* Members shall serve for two-year terms. Each member shall serve for the term appointed and until a successor is appointed and confirmed. In the event of the death, disability or resignation of any member of the commission, a successor shall be nominated by the mayor and confirmed by the council to serve the unexpired period of the term for which such member had been appointed.

(c) *Officers; attendance.* The commission shall annually designate a member to act as chairperson and shall select its own officers. Any member who is absent from three (3) consecutive regular meetings of the commission, including any intervening duly called special meetings thereof, shall be considered to have resigned from the commission and the vacancy shall be filled as set out in subsection (b), except that the requirements of this subsection may be waived by the chairperson where illness or other extenuating circumstances make it clearly unreasonable or impossible to meet the attendance requirements of this section. A decision by the chairperson as to whether a waiver under this section is appropriate shall be referred, at the request of the affected party, to the commission for a final decision on the matter by a simple majority vote of the whole commission.

(d) *Meetings.* The commission shall meet at such time and place as the chairperson shall determine. Meetings of the commission shall be held at least monthly. A quorum shall consist of one-third of the membership.

(Code 1977, § 2-125.8; Ord. No. 14-85, § 8, 3-25-85; Ord. No. 71-88, 11-28-88; Ord. No. 2-01, 2-13-01)

Sec. 2-234. Intergovernmental cooperation.

The commission on the status of Hartford women shall have the cooperation of all departments in the city in the performance of its duties. All departments shall supply the commission with all information and reports requested in order that the goals of this commission may be realized.

(Code 1977, § 2-125.9; Ord. No. 14-85, § 2, 3-25-85)

Sec. 2-235. Funding.

(a) The commission on the status of Hartford women may, with the prior approval of the council, apply for any federal, state, local or private funds for all or any of its purposes, and carry out any programs it deems desirable to achieve its purposes as set out in this division.

(b) The commission may, with the prior approval of the council, accept on behalf of the city, any gifts, donations, grants, bequests or assistance for all or any of its purposes.

(Code 1977, § 2-125.10; Ord. No. 14-85, § 2, 3-25-85)

Sec. 2-236. City manager to provide staff, information, statistics, etc.

(a) The city manager shall make staff available to enable the commission on the status of Hartford women to meet the commission's duties and responsibilities.

(b) The city manager shall also provide in a timely manner, all information, data and statistics requested by the commission in the furtherance of its responsibilities.

(Code 1977, § 2-125.10.1; Ord. No. 24-85, 4-22-85)

Secs. 2-237—2-250. Reserved.

DIVISION 8. COMMISSION ON YOUTH

Sec. 2-251. Established; composition.

There shall be a commission known as the commission on youth to assist and advise the city, the mayor, the chief operating officer, the council and such other departments as shall seek its assistance and advice concerning the consideration and solution of problems particular to youth. The commission shall consist of eleven (11) members, not more than seven (7) of whom shall be members of the same political party, to be nominated by the mayor and confirmed by the council.
(Code 1977, § 2-125.11; Ord. No. 05-13, 5-13-13)

Sec. 2-252. Organization.

The commission on youth may organize itself in whatever manner it may determine in order to carry out to the fullest extent possible the duties set forth in this division.
(Code 1977, § 2-125.17; Ord. No. 05-13, 5-13-13)

Sec. 2-253. Membership.

The commission shall consist of eleven (11) members, appointed consistent with chapter VII. Section 1 of the Charter and five (5) non-voting representatives may be appointed by the board of education. Any such non-voting representatives shall be students in Hartford high schools and residents of the City of Hartford.
(Code 1977, § 2-125.12; Ord. No. 05-13, 5-13-13)

Sec. 2-254. Terms of members.

The members of the commission on youth shall serve until their successors are nominated and qualified in accordance with section 2-251.
(Code 1977, § 2-125.16; Ord. No. 05-13, 5-13-13)

Sec. 2-255. Chairman; meetings; rules; records; reports.

The commission on youth shall choose a chairman from its members. Meetings of the commission shall be held at least monthly and at such other times as the commission may determine. The commission is empowered to adopt rules and regulations for implementing the provisions of this ordinance, which rules and regulations shall not be inconsistent with the provisions thereof. The commission shall keep records of its meetings and activities and shall no less than annually apprise the council of its activities, progress and its recommendations as to the need for implementation of local programs for youth.
(Code 1977, § 2-125.13; Ord. No. 05-13, 5-13-13)

Sec. 2-256. Functions, duties.

The commission on youth shall advise and assist the mayor, the chief operating officer and the council in fostering and formulating programs that will benefit the youth of the city. The commission, with the consent of the council, may undertake such educational and other activities to implement the youth program of this community as it deems necessary or desirable. The commission shall make a continued study of conditions and needs of young persons in the city in regard to employment, health, recreation and their general welfare and comfort. It shall analyze public and private services provided for the young. It shall encourage the development and coordination of governmental and nongovernmental agencies and organizations having like or kindred functions and shall cooperate with them as it deems necessary or desirable.
(Code 1977, § 2-125.14; Ord. No. 05-13, 5-13-13)

Sec. 2-257. Compensation of members.

The members of the commission on youth shall serve without compensation, but their necessary and actual expenses incurred in the performance of their actual duties shall be paid by the city within the limits of any appropriation made therefor.
(Code 1977, § 2-125.15; Ord. No. 05-13, 5-13-13)

Sec. 2-258. Appropriations for expenses.

The council may make appropriations to cover the expenses of the commission on youth.
(Code 1977, § 2-125.18; Ord. No. 05-13, 5-13-13)

DIVISION 8A. ADVISORY COMMISSION ON THE ENVIRONMENT

Sec. 2-259. Created.

There is hereby created the advisory commission on the environment that may also be known as "ACOTE."
(Ord. No. 21-03, 5-27-03; Ord. No. 15-04, 10-25-04)

Sec. 2-260. Purpose.

(a) There shall be a policy to ensure that the City of Hartford and its policy makers do all things necessary and appropriate to eliminate, to the extent possible and for the benefit of the residents of Hartford, all existing and potential environmental health hazards.

(b) The goals to be accomplished by this policy shall include but not be limited to:

(1) To ensure monitoring of landfill activities.

(2) To monitor practices of entities whose businesses involve activities which create potential environmental health hazards.

(3) To advocate for the full enforcement of environmental laws and regulations designed to protect the health of Hartford residents.

(4) To ensure that the City of Hartford is adequately protected by state, federal and local environmental consent decrees, agreements and contracts requiring affirmative action ensuring to the benefit of the City of Hartford and its residents.

(5) To work with the Hartford Health and Human Services Department, the State of Connecticut Department of Health, the Connecticut Department of Environmental Protection and Federal Environmental Protection Agency to monitor the health of residents whose lives have been impacted or are potentially impacted by environmental health hazards.

(6) To look for opportunities to institute city policies and procedures that will decrease pollution and improve the quality of the environment for our citizens and particularly our children.

(7) To advocate for environmental reforms before state and federal agencies.

(8) To promote environmentally friendly policies, practices and behaviors that contribute to the maintenance of a clean, healthy and safe environment in the City of Hartford.

(c) It is the purpose of this article to establish an advisory commission on the environment to act as an advisory board to the mayor and court of common council. The purpose of this board shall be to help city government ensure compliance and fulfillment of the city's obligation to safeguard the health and welfare and to prevent and eliminate environmental health hazards.
(Ord. No. 21-03, 5-27-03; Ord. No. 15-04, 10-25-04)

Sec. 2-261. Membership, composition, meetings.

(a) The advisory commission on the environment shall consist of no more than fifteen (15) and no fewer than seven (7) members who shall serve three-year terms without compensation.

(b) Members shall be appointed by the mayor with the approval of the court of common council taking into account the ethnic groups, genders and geographic areas that characterize Hartford.

(c) Of the members first appointed two-thirds (⅔) of such members shall each serve a lesser term to allow for staggered appointments. One-third (⅓) shall be appointed for terms of one (1) year, one-third (⅓) shall be appointed for terms of two (2) years and one-third (⅓) shall be appointed for terms of three (3) years.

(1) The majority of the members of the advisory commission on the environment shall be persons actively engaged in activities and/or programs designed with goals and objectives related to improving environmental health.

(2) Of the members of the advisory commission on the environment, two (2) shall be persons representing entities and businesses that are regulated by the Department of Environmental Protection and/or the Environmental Protection Agency.

(3) The mayor shall appoint one (1) ex officio member to the advisory commission on the environment to serve as a liaison between the commission and the offices of the mayor and chief operating officer.

(d) Persons not residing in the city shall be eligible for membership, provided, however, a majority of the commission's members shall reside in the City of Hartford.

(e) The members of the advisory commission on the environment shall annually elect, from among the body, a chairperson, vice-chair, and a secretary.

(f) The members of the advisory commission on the environment shall annually elect an executive board from among the body to include the chairperson, vice-chair, and secretary. The executive board shall not consist of more than one (1) person from any organization.

(g) The business of the advisory commission on the environment shall be conducted in accordance with its by-laws, to be drafted and formally voted upon by advisory commission on the environment no later than its third meeting.

(h) The advisory commission on the environment shall hold no fewer than ten (10) meetings per year. A quorum shall consist of a majority of the members.
(Ord. No. 21-03, 5-27-03; Ord. No. 15-04, 10-25-04)

Sec. 2-262. Powers and duties.

The powers and duties of the advisory commission on the environment shall be as follows:

(1) Collect and monitor data concerning issues affecting the environment in Hartford;

(2) Explore means for city government to act in the interest of its residents where environmental health hazards are concerns;

(3) Seek and obtain community input on issues affecting the environment;

(4) Make specific recommendations to city administration concerning environmental health hazards;

(5) Submit a bi-annual report to the mayor and court of common council concerning the commission's activities, findings, community input and recommendations.

(6) Such other tasks, undertakings and endeavors as may be deemed appropriate by the mayor and court of common council, in accordance with the terms of a resolution.

(Ord. No. 21-03, 5-27-03; Ord. No. 15-04, 10-25-04)

DIVISION 8B. COMMISSION ON HIV/AIDS

Sec. 2-263. Established.

There shall be a commission known as the Hartford Commission on HIV/AIDS.
(Ord. No. 19-04, 12-13-04)

Sec. 2-264. Purpose and duties.

The purpose and duties of the Hartford Commission on HIV/AIDS shall be as follows:

(1) To study the conditions and needs of individuals living with HIV/AIDS in Hartford and make recommendations to the court of common council ("council") regarding city policy and services to improve the quality of life for individuals living with HIV/AIDS in Hartford.

(2) To advise the mayor, the chief operating officer, the council and such other departments as shall seek assistance and advice concerning individuals living with HIV/AID in Hartford.

(3) To work with the Hartford Health and Human Services Department, the State of Connecticut Department of Health and other agencies and organizations for purposes of carrying out the purpose and duties in this section.

(4) To encourage the development and coordination of governmental and non-governmental agencies and organizations having like or kindred functions and cooperate with them as it deems necessary or desirable.

(5) To initiate public health media campaigns regarding HIV/AIDS and to encourage the inclusion of HIV/AIDS in other health media campaigns.

(6) To promote the availability of services needed by individuals living with HIV/AIDS outside of regular business hours in the public and private sector.

(7) To collect and monitor legislative action concerning HIV/AIDS.

(8) To seek and obtain input from the community regarding issues pertaining to HIV/AIDS.

(9) To keep records of its meetings and activities and submit an annual report to the mayor and council concerning the commission's activities, findings, community input and recommendations.

(10) To advocate for administrative and legislative reforms, supported by the commission, pertaining to HIV/AIDS and individuals living with HIV/AIDS before state and federal agencies.

(11) Such other tasks, undertakings and endeavors as may be deemed appropriate by the mayor and council, in accordance with the terms of any resolution.

(Ord. No. 19-04, 12-13-04)

Sec. 2-265. Membership, composition, meetings.

(a) The Commission on HIV/AIDS shall consist of no more than fifteen (15) and no fewer than seven (7) members who shall serve three-year terms without compensation.

(b) Members shall be appointed by the mayor with the approval of the court of common council.

(c) Of the members first appointed six (6) of such members shall each serve a lesser term to allow for staggered appointments. Three (3) shall be appointed for terms of one (1) year, three (3) shall be appointed for terms of two (2) years and all other members shall be appointed for terms of three (3) years. The majority of the members of the shall be persons actively engaged in activities and/or programs designed with goals and objectives related to HIV/AIDS and/or improving the quality of life for individuals living with HIV/AIDS. At least two members shall be individuals living with HIV/AIDS and at least two members shall be individuals affected by HIV/AIDS.

(d) Persons not residing in the City of Hartford shall be eligible for membership, provided, however, a majority of the commission's members shall reside in the City of Hartford.

(e) The members of the commission shall annually elect, from among the body, a chairperson, vice-chair, and a secretary.

(f) The business of the commission shall be conducted in accordance with its by-laws, which shall be drafted and formally voted upon by the commission no later than its third meeting.

(g) The commission shall meet once per month.

(h) A quorum shall consist of a majority of the members.

(i) Members and officers shall serve until their successors are appointed.

(Ord. No. 19-04, 12-13-04)

Sec. 2-266. Compensation.

(a) The members of the commission shall serve without compensation but shall be reimbursed for their necessary and reasonable expenses in the performance of their duties.

(b) The council may make appropriations to cover the reasonable expenses of the commission.

(Ord. No. 19-04, 12-13-04)

Secs. 2-267—2-275. Reserved.

DIVISION 9. COMMISSION ON DISABILITY ISSUES*

Sec. 2-276. Definition.

Throughout this division, the term "commission" means the Hartford Commission on Disability Issues.

Cross reference—Definitions and rules and construction generally, § 1-2.

*__Cross references—__Health and sanitation, Ch. 17; handicapped parking spaces, § 22-27; rehabilitation homes, Ch. 30.

Sec. 2-277. Created; functions.

(a) There shall be a commission known as the Hartford Commission on Disability Issues. The commission shall determine the areas of need within the city of persons with disabilities and shall make recommendations to the city council, the city manager and the office of disability issues for the purposes of:

(1) Correcting deficiencies in the city which prevent persons with disabilities from functioning as full citizens;

(2) Developing procedures for locating and identifying persons who have disabilities in the city;

(3) Encouraging merchants and others to establish lines of communication between the city government and persons with disabilities; and

(4) Providing advice and assistance to persons with disabilities.

(b) The commission shall also review any city, state and federal regulations which affect persons with disabilities, while advising the council and city manager of their implications and making recommendations which may improve the city's ability to serve its citizens who have disabilities.
(Code 1977, § 2-125.19; Ord. No. 2-79, 1-8-79; Ord. No. 10-89, 3-13-89; Ord. No. 9-91, 2-25-91)

Sec. 2-278. Composition.

(a) The commission shall be composed of fifteen (15) persons who shall be nominated by the mayor and approved by the council.

(b) Of the members of the commission nominated by the mayor and approved by the council, at least seven (7) shall be persons with disabilities. In addition, four (4) representatives of agencies serving persons with disabilities and four (4) citizens who are either relatives of persons with disabilities or active in the community serving persons with disabilities shall be appointed.

(c) All members, with the exception of the four (4) service providers, shall be residents of the city.
(Code 1977, § 2-125.20; Ord. No. 2-79, 1-8-79; Ord. No. 10-89, 3-13-89; Ord. No. 9-91, 2-25-91)

Sec. 2-279. Terms of members.

(a) On the effective date of this division or promptly thereafter, the mayor shall submit the nominations of fifteen (15) persons to the council as members of the commission; five (5) of whom shall serve for a term of three (3) years from March 1, 1979; five (5) for a term of two (2) years from March 1, 1979; and five (5) for a term of one (1) year from March 1, 1979. Upon expiration of any term, members or new members shall be appointed in the same manner as set forth in this section.

(b) Members of the commission shall serve until their successors are designated and appointed.
(Code 1977, § 2-125.21; Ord. No. 2-79, 1-8-79; Ord. No. 9-91, 2-25-91)

Sec. 2-280. Chairmanship of commission.

The mayor shall designate one (1) of those first appointed as interim chairman of the commission. Such person shall call the commission together for the purpose of choosing a chairman who shall serve for a term of one (1) year and also for the purpose of organizing itself in whatever manner it may determine to best carry out its functions and duties.
(Code 1977, § 2-125.22; Ord. No. 2-79, 1-8-79)

Sec. 2-281. Compensation.

(a) The members of the commission shall serve without compensation, but shall be reimbursed for their necessary and reasonable expenses.

(b) The council may make appropriations to cover the reasonable expenses of the commission.
(Code 1977, § 2-125.23; Ord. No. 2-79, 1-8-79)

Sec. 2-282. Clerical assistance; cooperation with other agencies and departments.

The city manager shall provide such clerical and staff assistance as the commission may need and shall designate one (1) or more representatives from his office as liaison with the commission for the purposes of coordinating its activities

with the activities of the office of disability issues and other departments, agencies and commissions.
(Code 1977, § 2-125.24; Ord. No. 2-79, 1-8-79; Ord. No. 9-91, 2-25-91)

DIVISION 9A. COMMISSION ON CULTURAL AND ETHNIC DIVERSITY

Sec. 2-283. Established; membership; term.

There is hereby created The Hartford Commission on Cultural and Ethnic Diversity.

The Hartford Commission on Cultural and Ethnic Diversity shall consist of twelve (12) members who shall be electors of the city.

The term of office for the members of the commission shall be two (2) years.

The members of the commission shall be nominated by the mayor and shall be subject to confirmation by the court of common council.

Vacancies on the commission shall be filled for the balance of the unexpired term in the same method.

The mayor shall appoint a chairperson and vice-chairperson annually from the commission membership provided that neither the chairperson nor the vice chairperson shall be an elected official or an appointed employee of the city.
(Ord. No. 13-92, 2-10-92)

Sec. 2-284. Function; meetings; records; reports to council.

The commission shall propose and review policies for the city as such policy relates to the promotion and furtherance of interaction, understanding and harmony among all persons in consideration of their differences in ethnic and racial ancestry, cultural and religious backgrounds.

The commission shall meet at least once monthly at a time to be determined by the commission and at such other times as determined by the chairperson. All members shall be given forty-eight (48) hours' notice of all regular or special meetings. A quorum shall consist of a majority of all members of the commission. The commission shall keep records of its meetings and activities and shall file a semiannual report of its activities, progress and recommendations with the council.
(Ord. No. 13-92, 2-10-92)

Sec. 2-285. Ex officio members; appropriations; clerical assistance.

The mayor, all members of the council and the city manager shall be ex officio members of the commission without a vote.

The council may make appropriations to cover the expenses of the commission. The director of parks and recreation shall provide clerical assistance to the commission.
(Ord. No. 13-92, 2-10-92)

DIVISION 9B. HARTFORD LGBTQ+ COMMISSION*

Sec. 2-286. Established; purpose and duties.

There is hereby established the Hartford LGBTQ+ (Lesbian, Gay, Bisexual, Transgender, Queer Plus) Commission. The purpose of the Hartford LGBTQ+ Commission shall be:

(1) To assist in the elimination of bigotry, discrimination and prejudice against persons of the LGBTQ+ community in the City.

(2) To study the conditions and needs of lesbians, gays, bisexuals and transgender persons in Hartford and make recommendations to the court of common council regarding City policy, services, goals and administration, and their impact on persons of the LGBTQ+ community in Hartford.

(3) To hold forums or public hearings as it deems necessary for the purpose of gathering information or providing information to the public.

*__Editor's note—__Ord. No. 23-17, adopted Nov. 27, 2017, changed the title of Div. 9B from "Hartford Commission on Lesbian, Gay, Bisexual and Transgender Issues" to read as herein set out.

(4) To provide information to the community concerning the commission's activities and to serve as an educational resource within the community to fight bigotry, discrimination and prejudice on the basis of sexual orientation, gender identity or gender expression.

(5) To serve as a clearinghouse for information and resources regarding issues concerning the LGBTQ+ community.

(6) The commission shall file periodic reports with the mayor's office and with the town clerk for transmittal to the court of common council, which council shall review said reports for council action.

(Ord. No. 22-92, 4-27-92; Ord. No. 46-03, 9-8-03; Ord. No. 16-04, 10-25-04; Ord. No. 1-12, 1-23-12; Ord. No. 23-17, 11-27-17)

Sec. 2-287. Membership; terms; offices; meetings; compensation.

(a) *Membership.* The Hartford LGBTQ+ Commission shall be comprised of fifteen (15) members, who shall be appointed by the mayor and confirmed as members by the court of common council. The composition of this commission shall reflect, but is not limited to, the diversity of the LGBTQ+ community in the city of Hartford and in Hartford County whose backgrounds encompass different ages and abilities, as well as economic, ethnic, racial and social groups. Not less than a majority of the members shall be Hartford electors.

(b) *Compensation.* The members of the commission shall serve without compensation.

(c) *Terms.* Members shall serve for three-year terms, except of the fifteen (15) members first appointed, five (5) shall serve for a term of one (1) year, five (5) shall serve for a term of two (2) years, and five (5) shall serve for a term of three (3) years. Each member shall serve for the term appointed and until a successor is appointed and confirmed. In the event of death, inability to serve or resignation of any member of the commission, a successor shall be appointed by the mayor and confirmed by the council to serve the unexpired period of the term for which such member has been appointed.

(d) *Officers.* The commission shall elect a chairperson, a vice-chairperson and a secretary annually from its membership.

(e) *Meetings.* The commission shall meet at least once monthly at a time and place to be determined by the commission and at such other times as determined by the chairperson. All members shall be given at least forty-eight (48) hours' notice of all regular or special meetings. A quorum shall consist of a majority of all members of the commission. The commission shall keep records of its meetings.

(Ord. No. 22-92, 4-27-92; Ord. No. 46-03, 9-8-03; Ord. No. 17-04, 10-25-04; Ord. No. 1-12, 1-23-12; Ord. No. 23-17, 11-27-17)

Sec. 2-288. Funding; clerical assistance.

a) The commission may apply for any federal, state, local or private grants or funding for all or any of its purposes, and carry out a funding program to achieve its purposes as set forth in section 2-286 above.

b) The commission may accept, with prior approval of the council, on behalf of the city, contributions, grants, bequests or assistance for all or any of its purposes.

c) The council may make appropriations to cover the expenses of the commission, including, but not limited to, staff expenses.

d) The Division of Human Relations of the Finance Department shall provide such clerical and staff assistance as the commission may need and shall designate one (1) or more representatives from that office as a liaison with the commission for the purposes of coordinating its activities with the activities of other departments, agencies and commissions.

(Ord. No. 22-92, 4-27-92; Ord. No. 46-03, 9-8-03; Ord. No. 30-11, 5-23-11; Ord. No. 23-17, 11-27-17)

DIVISION 9C. COMMISSION ON WORKPLACE RIGHTS

Sec. 2-289. Established; organization, personnel.

There is hereby established a commission on workplace rights consisting of eleven (11) members

who shall serve without compensation. The members shall include: the president of the Greater Hartford Labor Council, AFL-CIO or his or her designee; three (3) other representatives of the labor movement who shall be residents of the city, to be nominated by the mayor and confirmed by the court of common council; a representative of Connecti-COSH (or its successor or a labor organization whose mission involves workplace safety and health matters and whose jurisdiction includes the City of Hartford) who shall be a resident of the city; four (4) representatives of civil rights/women's rights organizations who shall be residents of the city, to be nominated by the mayor and confirmed by the court of common council; two (2) at-large representatives who shall be residents of the city, and shall be nominated by the mayor and confirmed by the court of common council. The terms of appointment of those members nominated by the mayor and confirmed by the court of common council shall be three (3) years and members may be reappointed to additional terms. In the event of the death or resignation of any member of the commission, his/her successor shall be nominated by the mayor and confirmed by the council to serve the unexpired period of the term for which such member had been appointed. The appointment of successors shall maintain the composition outlined in this section.
(Ord. No. 35-93, 8-9-93)

Sec. 2-290. Purpose, functions and duties.

The commission shall have as its mission the protection of workplace rights in relation to city activities. Workplace rights include, but are not limited to, protection from all forms of racial and sexual discrimination and harassment, including discrimination based on sexual orientation, protection of all other civil rights, the right to free speech, the right to form a union and engage in collective bargaining, the right to work in a safe environment and be fully informed of any hazardous substances in the workplace and other related rights and protections in the workplace, including new rights which may be created by state and federal statutes. The commission's functions and duties shall include:

(1) Development of on-going recommended guidelines for protection of workplace rights within city activities to be offered to the mayor, court of common council, city manager and other appropriate city bodies such as, but not limited to, city departments and commissions, for consideration in their deliberations and decision-making, including written materials which may be distributed on behalf of the city which inform and educate residents and employees as to their rights in the workplace. No such written materials shall purport to interpret collective bargaining agreements.

(2) Development of criteria to be recommended for enactment into the Municipal Code for review of city-sponsored projects (construction and otherwise); city-assisted projects whose principals receive assistance in such forms as tax agreements and deferrals, acquisition of city land, loans and grants; and vendors and suppliers to the city, with respect to the protection of workplace rights. Said review may include the request for face-to-face meetings between the firms or entities with the purchasing agent, the commission on workplace rights or other appropriate city entities.

(3) Issuing recommendations to the city manager with respect to the desirability of utilizing specific firms, vendors, suppliers, contractors and other entities in terms of their compliance with recognized norms and standards of workplace rights including, but not limited to, civil rights legislation, labor relations legislation and all appropriate federal, state and local legislation and ordinances; said recommendations may be based on site visits, inspections or interviews with principals or employees of the firms or entities involved. Recommendations shall conform with the professional judgment and criteria of the commission members in terms of the protections listed above and should attempt wherever possible to include suggestions as to cost savings options for the city. No such recommendations shall abrogate contractual obliga-

tions of the city which exist at the time of adoption of the ordinance which establishes the commission on workplace rights.

(4) Consultation, advice to and, if appropriate or feasible, joint projects with city officials, policy makers, departmental leadership, other city commissions and others with respect to workplace rights and issues, including forwarding positions of the commission to state and federal offices and other entities.

(Ord. No. 35-93, 8-9-93)

Sec. 2-291. Meetings, officers, reports to mayor and council.

(a) *Officers.* The commission on workplace rights shall elect a chairperson and vice-chairperson annually from commission membership, provided that neither the chairperson, nor the vice chairperson shall be an elected official or appointed employee of the city.

(b) *Meetings.* The commission on workplace rights shall meet at least once monthly at a time to be determined by the commission and at such other times as required by the workload or determined by the chairperson. All members shall be given at least forty-eight (48) hours notice of all regular and special meetings. A quorum shall consist of a majority of all members of the commission. The commission shall keep regular records of its meetings.

(c) *Reports.* The commission on workplace rights shall issue an annual report to the mayor and court of common council of its activities within the preceding fiscal year.

(Ord. No. 35-93, 8-9-93)

Sec. 2-292. Funding; clerical assistance.

(a) The council may make appropriations to cover the expenses of the commission.

(b) The city manager shall provide such clerical assistance and staff assistance as the commission may need and shall designate one (1) or more representatives from his/her office as a liaison with the commission for purposes of coordination with other city departments and entities.

(c) The commission on workplace rights may apply for federal, state, local or private grants or funding to achieve its purposes and may accept, with prior approval of the council, on behalf of the city, contributions, grants, bequests or assistance for all or any of its purposes.

(Ord. No. 35-93, 8-9-93)

DIVISION 9D. HARTFORD FILM, VIDEO, DIGITAL, MEDIA AND SOCIAL MEDIA COMMISSION*

Sec. 2-293. Established; purpose; composition.

(a) It is found and declared that:

(1) The development of a strong film, video, digital, media and social media industry would contribute substantially to the improvement of Hartford's economy;

(2) The development of a strong film, video, digital, media and social media industry would contribute to the social well-being of Hartford and its people; and

(3) Hartford offers outstanding and unique human and natural resources for the development of a strong film, video, digital, media and social media industry.

(b) There is established a Hartford Film, Video, Digital, Media and Social Media Commission (the "Commission"). The Mayors shall nominate all members of the Commission and submit nominations to the Court of the Common Council for approval in accordance with the applicable provisions of the Charter of the City of Hartford. The Commission shall consist of not less than five (5) nor more than nine (9) members (the "Members"). The Members shall be Hartford residents, or Hartford business owners who are

*__Editor's note—__Ord. No. 20-17, adopted Oct. 23, 2017, repealed the former div. 9D, §§ 2-293, 2-294, and enacted a new div. 9D as set out herein. The former div. 9D pertained to Hartford Film, Video and Media Commission and derived from Ord. No. 34-94, adopted Nov. 28, 1994; Ord. No. 26-95, adopted Nov. 27, 1995.

not residents of Hartford but who have strong ties to Hartford, except that no more than three (3) Members may be non-Hartford residents who are not Hartford business owners. Each Member shall be knowledgeable in any one (1) or more of the subject areas that are within the ambit of the Commission.

(c) Each Member shall serve without compensation, except that Members shall be reimbursed for reasonable expenses incurred in the performance of duly authorized Commission duties in accordance with established City of Hartford procedures. Of the Members initially appointed, two (2) shall be appointed for one-year terms, two (2) shall be appointed for two-year terms, one (1) shall be appointed for a three-year term and, if applicable, the rest of the initially appointed Members shall be appointed for four-year terms. Thereafter, each appointment of a Member shall be for a term of four (4) years. At the expiration of a Member's term, that Member may be reappointed by the Mayor for another term or a successor may be appointed by the Mayor for another term. An incumbent shall remain in office until reappointed by the Mayor or until a successor is appointed by the Mayor. In the event of a vacancy, a successor shall be appointed by the Mayor to serve the unexpired period of the term for which such member had been appointed. All appointments and reappointments as set forth herein are subject to approval by the Court of Common Council in accordance with the applicable provisions of the Charter of the City of Hartford.

(d) The Commission shall endeavor to meet at least once per month. Irrespective of the number of Members on the Commission, at least three (3) Members shall constitute a quorum for the transaction of the Commission's business.
(Ord. No. 20-17, 10-23-17; Ord. No. 01-19, 1-14-19; Ord. No. 03-19, 3-25-19)

Sec. 2-294. Functions and duties.

(a) To promote the use of Hartford locations, facilities, freelancers, independent entities and services for the production of films, videos, television programs, audio recordings, digital efforts, social *media* efforts, and other media-related products.

(b) To endeavor to provide support services to visiting and in-state production companies, including but not limited to assistance to film, video, digital, social media and other media producers in securing location permits from City of Hartford and/or state agencies, departments, authorities and/or institutions.

(c) To develop and update a resource library, including, but not limited to, a website or webpage on Hartford.gov, and/or such other internet domain name as may be applicable and/or appropriate, concerning the many possible Hartford sites that would be suitable for filming, taping and other relevant efforts.

(d) To develop and update a production manual of available film, video, digital, social media and other media production facilities and services in Hartford.

(e) To conduct and attend trade shows, production workshops and festivals to promote, among other things, relevant Hartford locations and facilities.

(f) If applicable, to prepare an explanatory guide showing the impact of relevant municipal tax ordinances, code provisions, regulations and administrative options on typical production activities.

(g) To formulate and propose guidelines for standardized permits to be used by City of Hartford agencies and/or departments, which shall be as close to a "one-stop permitting" process as possible for matters including, but not limited to, the use of City of Hartford-accepted public roads and highways in Hartford, the use of City of Hartford-owned real and/or personal property for production activities and the conduct of regulated activities, and to hold workshops to assist City of Hartford agencies and/or departments in implementing such process.

(h) To accept any funds, gifts, donations, bequests of grants of funds, with the approval of the Court of Common Council, from private and/or public sources for the purposes and/or functions of the Commission;

(i) To request and obtain from any state agency, authority or institution or any other municipality or other political subdivision of the state such assistance and data as will enable the Commission to carry out its purposes and/or functions.

(j) To assist and promote cooperation among all segments of management and labor that are engaged in film, video, digital, social media and/or other media production.

(k) To create advisory councils to carry out the purposes of the Commission.

(l) To develop criteria for use by City of Hartford agencies, departments and/or authorities in awarding financial assistance for the production of films, videos, digital productions and/or other media products in Hartford, provided that such financial assistance is available. The criteria shall give preference to projects having significant advance sales or other commitments.

(m) To take any other administrative action(s) that may improve the position of Hartford's film, video, digital, social media and/or media production industries in national and international markets.

(n) To encourage mentorship, education and youth programs in the areas of film, video, digital, social media and the media (the "Programs"), which efforts shall include, but not be limited to, the establishment, in Hartford, of a City of Hartford community center that will serve as a location in which the Programs will take place (the "Center"). The Commission is hereby empowered and authorized to form the appropriate business entity, the sole purpose of which entity is to create, manage, maintain and oversee the Programs and the Center, for the City of Hartford.

(o) Form relationships between the City of Hartford and relevant educational programs at Hartford colleges, universities and other educational enterprises to effectuate and/or further the goals, mission and purposes of the Commission.

(p) To encourage film, video, digital, social media and/or media efforts in languages that are reflective of the rich ethnic and cultural diversity in Hartford.
(Ord. No. 20-17, 10-23-17)

Sec. 2-295. Reserved.

DIVISION 10. AFRICAN AMERICAN AND BLACK HISTORY AND CULTURE COMMISSION

Sec. 2-296. Established; African American and Black History and Culture Commission.

There is hereby established the Commission on African American and Black History and Culture. The purpose of the Commission on African American and Black History and Culture is as follows:

(a) The Commission shall provide guidance and historical data on African American and Black history and culture to the Clerk, for transmittal to the Court of Common Council, and the Mayor's Office by the filing of periodic reports. Reports shall be filed not less than once annually. The Council shall review said reports and, where appropriate, consider Council action.

(b) The Commission may provide data and reports to City departments as may be appropriate.

(c) The Commission may help the public preserve African American and Black history and culture by providing lectures, historical data and facts, hold forums or public meetings to gather information and provide to the community.
(Ord. of 5-27-25)

Sec. 2-297. Membership; terms; offices; meetings; compensation.

(a) *Membership.* The African American and Black History and Culture Commission shall be comprised of seven (7) members, who shall be appointed by the Mayor and confirmed by the

Court of Common Council. The political affiliation of the members of the Commission shall reflect the requirements of the General Statutes with respect to minority party representation.

(b) *Compensation.* The members of the commission shall serve without compensation.

(c) *Terms.* Members shall serve for three-year terms, except for the initial members of the Commission, which shall be comprised of two (2) members with one (1) year terms, two (2) members with two (2) year terms, and three (3) members with full three (3) year terms. Each member shall serve for the term appointed and until a successor is appointed and confirmed. In the event of any vacancy, a successor may be appointed and confirmed to serve the unexpired period of the term for which such member has been appointed.

(d) *Officers.* The Commission shall elect a chairperson, a vice-chairperson, and a secretary annually from its membership.

(e) *Meetings.* The Commission shall meet at least once monthly at a time and place to be determined by the Commission and at such other times as determined by the Chairperson. The Commission shall hold meetings in accordance with public notice requirements. A quorum shall consist of a majority of all members of the Commission. The Commission shall keep records of its meetings.

(f) The Commission shall be supported by the City's Office of Equity and Inclusion for administrative purposes.
(Ord. of 5-27-25)

Sec. 2-298. Funding.

(a) The commission may apply for any federal, state, local or private grants or funding for all or any of its purposes and carry out a funding program to achieve its purposes as set forth in section 2-296 above.

(b) The commission may accept, with prior approval of the council, on behalf of the city, contributions, grants, bequests or assistance for all or any of its purposes.

(c) The council may make appropriations to cover the expenses of the commission, including, but not limited to, staff expenses.
(Ord. of 5-27-25)

Sec. 2-299. Reserved.

DIVISION 10A. HARTFORD INFORMATION TECHNOLOGY COMMISSION*

Sec. 2-300. Findings.

It is found and declared that:

(1) The development of a strong local information infrastructure would contribute substantially to the improvement of the city's economy.

(2) The development of a strong information infrastructure would contribute to the social well-being of the city and its people through the strengthening of telecommunications applications in the delivery of governmental, educational, medical and public safety services and social services.

(3) The city is uniquely positioned to take advantage of its strong telecommunications base in the public and private sector.

(Ord. No. 2-95, 1-23-95; Ord. No. 25-02, 6-24-02)

Sec. 2-301. Commission established, composition, membership, terms, bylaws, meetings.

(a) There is established a Hartford Information Technology Commission.

(1) The mayor shall nominate the regular members of the commission and submit the nominations to the council for approval in accordance with chapter III, section 15 of the Hartford City Charter. The commission shall consist of fifteen (15) regular members who are knowledgeable in

*__Editor's note—__Ord. No. 25-02, adopted June 24, 2002, changed the title of Div. 10A from "Hartford Information Superhighway Commission" to "Hartford Information Technology Commission."

information technology and services and at least one-third (1/3) of the regular members shall be city residents.

(2) The mayor shall also nominate, and submit such nominations to the council for approval in accordance with chapter III, section 15 of the Hartford City Charter, five (5) alternate members of the commission. Such alternates shall be knowledgeable in information technology and services and at least two (2) of said alternates shall be city residents. Such alternate members shall have, when seated as provided herein, all the powers and duties of a regular member of the commission, and may attend all commission meetings. If a regular member of the commission is absent or disqualified, the chairperson of the commission shall designate an alternate to act in such member's stead, choosing alternates in rotation so that they shall act as nearly equal a number of times as possible.

(b) Members and alternates shall serve for three-year terms, without compensation, except that they shall be reimbursed for expenses incurred in the performance of commission duties. At the expiration of a member's or alternate's term, that member or alternate may be reappointed or a successor appointed for another term. An incumbent shall remain in office until reappointed or until a successor is appointed. In the event of a vacancy, a successor shall be appointed by the mayor to serve the unexpired period of the term for which such member or alternate had been appointed, subject to approval by the council.

(c) The commission shall elect a chairperson from among its regular members. The chairperson shall not be an officer, official or employee of the city. The commission shall adopt bylaws, which may provide for other commission officers as well as other matters related to the conduct of the commission's business. The chairperson and any other officers elected shall have terms of one (1) year. Each commission officer shall remain in office until his or her successor is elected. At least forty-eight (48) hours' notice shall be given of all special meetings. A quorum shall consist of a majority of the members of the commission. A majority vote of a quorum is necessary for an action to be taken by the commission. The commission shall keep records of its meetings and shall give reports of its meetings and activities at least annually to the mayor, the council and the city manager.
(Ord. No. 2-95, 1-23-95; Ord. No. 25-02, 6-24-02)

Sec. 2-302. Staffing, appropriations.

(a) The city manager shall make staff available to enable the commission to carry out its duties and fulfill its responsibilities. The city manager shall provide in a timely manner all information, data and statistics requested by the commission.

(b) The council may make appropriations to cover the expenses of the commission.
(Ord. No. 2-95, 1-23-95; Ord. No. 25-02, 6-24-02)

Sec. 2-303. Functions, duties.

The functions and duties of the commission are:

(1) To promote the utilization of information technology and services, such as telephone wiring, satellite and microwave transmission, cable television wiring, fiber optic cabling, cellular, high speed transmission standards and technologies, frame relay, Sonet, ATMs, software, CD-ROM and interconnected network systems such as Internet, for the city's citizens, businesses and governmental and public service agencies.

(2) To develop, maintain, and improve the city's information technology policies and to assist the city in complying with any future requirements or policies of information networks, e.g. Internet, or regulatory entities, e.g. the Federal Communications Commission and the state department of public utility control.

(3) To assist in the development of the city's public communications wide area network (HARTLINK) as the fiberoptic backbone of the city's communications system.

(4) To develop and maintain a complete inventory of the information services available to the city's citizens, businesses and governmental and public service agencies.

(5) To define areas of impact and opportunity that will occur because of information technology.

(6) To identify, seek and, with prior council approval, accept grants, gifts, donations or other forms of funding from private, state and federal sources to carry out the functions and duties of the commission.

(7) To create subcommittees as needed in order to carry out the functions and duties of the commission.

(8) To conduct citizen education and awareness programs about information technology and its uses.

(9) To assist in forming partnerships between the city and the private sector to develop joint ventures and demonstration projects in order to broaden city residents' access to information technologies.

(10) To take other actions to improve the city's information infrastructure and to assist the city's telecommunications businesses.

(Ord. No. 2-95, 1-23-95; Ord. No. 25-02, 6-24-02)

Secs. 2-304—2-310. Reserved.

DIVISION 11. EMPLOYMENT RESOURCE DEVELOPMENT COMMISSION

Sec. 2-311. Organization; purpose; administration.

(a) *Established; composition; compensation; chairperson.* There is hereby established an employment resource development commission. The commission shall consist of fifteen (15) regular members and seven (7) alternate members who shall serve without compensation and who shall be nominated by the mayor and approved by the council. The commission's membership shall be composed of representatives of the labor industry; job service providers; community and business leaders; a Hartford member of the service delivery area steering committee, and a representative of the city administration. The mayor shall nominate, subject to the approval of council, one (1) member of the commission to serve as chairperson.

(b) *Terms of members.* The members of the commission shall serve until their successors are nominated and qualified in accordance with paragraph (a) of this section.

(c) *Function and duties.* The commission shall assist and advise the city's employment resource development agency in matters relating to the training and employment of city residents.

(d) *Meetings.* The commission shall meet at such time and place as the chairperson shall determine. A quorum shall consist of a majority of the membership. The commission shall keep records of its meetings and activities and shall, no less than annually, apprise the council of its activities, progress and recommendations.

(e) *Appropriations.* The council may make appropriations to cover the expenses of the commission.

(Code 1977, § 2-125.29; Ord. No. 3-87, § 1-12-87)

Secs. 2-312—2-315. Reserved.

DIVISION 12. COMMISSION ON HOMELESSNESS*

Sec. 2-316. Established.

There is hereby established a Commission on Homelessness.

(Ord. No. 12-14, 6-9-14)

Sec. 2-317. Declaration of purpose and mission.

(a) The purpose of the Commission is to advise and inform Hartford City Government on the issue of homelessness in the city of Hartford.

(b) The mission of the Commission is to:

1. Make homelessness a priority for Hartford City Government,
2. Influence policies affecting the homeless, and
3. Advocate for a comprehensive approach for meeting the immediate needs of the homeless population in the city of Hartford.

(Ord. No. 12-14, 6-9-14)

Sec. 2-318. Membership; organization.

(a) *Members.* The Commission shall consist of thirteen (13) voting members and three (3) nonvoting ex-officio members. Members shall be appointed in accordance with Chapter VII, Section 1

*__Editor's note—__Ord. No. 12-14, adopted June 9, 2014, deleted the former Div. 12, §§ 2-316—2-324, and enacted a new Div. 12 as set out herein. The former Div. 12 pertained to similar subject matter and derived from Ord. No. 21-06, adopted July 10, 2006. Ord. No. 12-14 also changed the title of Div. 12 from "Commission on the Homeless" to read as set out herein.

of the Hartford City Charter. Members shall be appointed in accordance with the following criteria:

1. Seven (7) voting members shall represent shelters and soup kitchens in Hartford.
2. Two (2) voting members shall represent the Hartford business community.
3. Three (3) voting members shall be currently or formerly homeless.
4. One (1) voting member shall represent the Hartford Public Library.
5. One (1) non-voting member shall be the Chief of Police or his/her designee.
6. One (1) non-voting member shall be the Fire Chief or his/her designee.
7. One (1) non-voting member shall be the Director of Health and Human Services or his/her designee.
8. At least ten (10) members must be Hartford residents.

(b) *Terms.*

1. Terms shall be two (2) years in length.
2. Terms shall be overlapping, i.e. seven (7) terms shall expire in one (1) year and six (6) terms shall expire in the following year. Of the members first appointed, seven (7) members shall be appointed for two-year terms and six (6) members shall be appointed for one-year terms, to allow for overlapping terms.
3. Members shall serve no more than two (2) consecutive terms.

(c) *Meetings.* The Commission shall meet monthly beginning no later than sixty (60) days from when six (6) members are appointed and confirmed.

(d) *Quorum.* A quorum shall consist of fifty (50) percent of the sitting membership plus one (1).

(e) *Officers.* The Commission shall elect a chair and vice-chair. Other officers may be created by the Commission.

(f) *Bylaws.* The Commission shall adopt bylaws which shall include attendance requirements, a process for electing officers, and processes for doing business.

(Ord. No. 12-14, § 2-317, 6-9-14)

Editor's note—Ord. No. 12-14, adopted June 9, 2014, provided provisions to be added to this Code as §§ 2-317—2-319. In order to maintain the existing sequential numbering system, at the discretion of the editor, these provisions have been redesignated as §§ 2-318—2-320 to read as set out herein.

Sec. 2-319. Duties and functions.

1. To educate and inform the community, including residents, businesses, elected officials, and institutions, about the issue of homelessness and those who provide services to the homeless.

2. To identify gaps in services available to the homeless.

3. To foster communication, compromise, and collaboration among entities addressing homelessness and with other sectors of the community.

4. To participate with others in finding long-term solutions to homelessness.

(Ord. No. 12-14, § 2-318, 6-9-14)

Editor's note—See editor's note following § 2-318.

Sec. 2-320. Staff assistance.

Staff support shall be provided to the Commission by the Department of Health and Human Services.

(Ord. No. 12-14, § 2-319, 6-9-14)

Editor's note—See editor's note following § 2-318.

Secs. 2-321—2-325. Reserved.

DIVISION 13. ADVISORY COMMISSION ON FOOD POLICY

Sec. 2-326. Created.

There is hereby created the advisory commission on food policy.

(Ord. No. 54-91, 10-15-91)

Sec. 2-327. Definitions.

The following definitions apply to sections 2-328—2-331.

(a) *Climate Resilience.* The ability to prevent, minimize, respond to, and recover from damage caused by climate change; to prevent and minimize disruptions in the food supply chain caused directly or indirectly by climate change; and to prevent and minimize threats to public health caused directly or indirectly by climate change.

(b) *Food Access.* The ability to obtain nutritious, culturally relevant food for consumption. Factors include distance from and variety of food retailers; transportation; income; presence, accessibility, and affordability of farmers' markets; racism or other discrimination discouraging participation in farmers' markets, community gardens, or other spaces; diverse selection, including culturally relevant foods; eligibility for and adequacy of nutrition aid programs such as the Supplemental Nutrition Assistance Program (SNAP); the cost of food; the ability, equipment, and time to prepare and store food; and others.

(c) *Food Justice.* The fair distribution throughout society of the risks and benefits of the food system. This includes opportunities to produce, process, prepare, enjoy, eat, and otherwise engage with food should not vary by race, ethnicity, immigration status, income, location, housing status, employment status, gender, age, disability, or other factors.

(d) *Food Policy.* The actions, programs, and regulations at all levels of government that affect the food system. Examples include zoning laws and regulations that affect food production and retail, school food nutrition standards, environmental regulations affecting food production, and eligibility requirements of public assistance programs.

(e) *Food Security, Food Insecurity.* Food security is physical and economic access to adequate food at all times; food insecurity is any situation in which a person, family, or population cannot obtain adequate food for any amount of time for any reason.

(f) *Food System.* Actions, infrastructure, people, equipment, knowledge, capital, land, organisms, soils, policies, regulations, and entities involved in the production, distribution, processing, preparation, sale, donation, consumption, disposal, and regulation of food. "Food system" used here may refer to only those elements which exist in Hartford, or can be discussed more broadly as elements outside of Hartford and/or Connecticut, such as farms in other states and countries and federal nutrition policies.

(g) *Sustainable, Sustainability.* Food systems which are sustainable can operate indefinitely without depleting, exploiting, or otherwise harming land, people, ecosystems, and animals; wherever possible, sustainable food systems improve conditions for land, people, ecosystems, and animals.

(Ord. of 11-28-22(2))

Editor's note—Ord. of Nov. 28, 2022(2), repealed the former § 2-327, and enacted a new § 2-327 as set out herein. The former § 2.327 pertained to purpose and derived from Ord. No. 54-91, adopted Oct. 15, 1991.

Sec. 2-328. Purpose.

(a) The purpose of the food policy advisory commission shall be to advocate for food justice, equitable food access, food security for all Hartford residents, a sustainable food system, and climate resilience.

(b) The Commission shall integrate all agencies of the city in a common effort toward food justice, equitable food access, food security for all Hartford residents, a sustainable food system, and climate resilience.

(c) The Commission may advocate for policy changes at all levels of government, including but not limited to:

(1) *Direct service.* City agencies that directly or indirectly serve or otherwise distribute

food shall strive for maximum quality, satisfaction, sustainability, and value of the food provided; local and regional food shall be prioritized. Further, such programs should be adequately resourced to serve all residents in need; however, city agencies should strive to reduce the overall need for such direct service through addressing root causes of food insecurity.

(2) *Land use.* City agencies determining the use to be made of city grounds, parks, school yards, other community spaces, rights-of-way, surplus properties, and redevelopment parcels should give special consideration to using such sites, at least in part, for food production, processing, and distribution. The city, through its advocacy to state and federal government and through regionalization efforts, should act to preserve, improve, increase, and increase access to farmland and fisheries in and near Hartford.

(3) *Education.* The city should support a wide range of educational opportunities regarding the means of production, preparation, disposal, history, and cultural significance of food. There should be special consideration for programs providing job training in food and farming related work.

(4) *Business development.* The city, in its work of encouraging and/or developing new and existing businesses, should give priority to those food-related businesses improving access to affordable and nutritious food; of these, the city should further promote small, local, and/or worker-owned businesses and those operated by residents, women and/or gender minorities, and people of color.

(5) *Labor.* The city should increase employment opportunities in local food and ensure the adequate pay, benefits, rights, and safety of all workers in the city, particularly those working in food.

(6) *Emergency planning.* The city in its emergency planning function should maintain an emergency plan for prevention of, response to, and recovery from disruptions in the availability of food; such planning should account for public health, natural disaster, climate change, and/or political/social events; the city should periodically revise said plan.

(7) *Direct and indirect purchase of food.* The city government, in purchasing food for programs and events, and in contracting with caterers and other food distributors, should preferentially consider small, local, and/or worker-owned businesses and those operated by residents, women and/or gender minorities and people of color.

(8) *Transportation.* In planning, providing, coordinating, and regulating transportation within the city, city agencies should work to improve transportation of food to distribution points, and ensure equitable access to a reasonable food supply in the long and short term, as well as follow a general policy toward enhancing the sustainability of all transportation in the city.

(9) *Food recovery.* The city should adhere to the US Environmental Protection Agency's food recovery hierarchy (in order of priority, excess food should be: reduced in the first place, distributed to food insecure people, used to feed animals, used in industrial settings, or composted; depositing unused food in a landfill or incinerating it is the last and least desirable action). This includes piloting and scaling residential and commercial composting programs, as well as supporting private efforts; identifying opportunities to divert excess food from grocery stores, commercial cafeterias, and special events into emergency food, composting, and other uses; and encouraging reduction of surplus and/or wasted food at commercial and residential levels.

(10) *Referrals to social services.* City employees should be especially diligent in referring persons in need of available sources of food best suited for their needs.

(11) *Support of private efforts.* The city in providing funding or in-kind support for private efforts should prioritize those which enhance the city's food system. The city should also prioritize holistic and/or systemic approaches to social programs incorporating food and farming and/or those which are collaborative efforts of two (2) or more entities.

(12) *Data.* The city and collaborating community organizations should continuously collect, analyze, promote, and respond to data relating to the city's food system.

(13) *Lobbying and advocacy.* The city in its advocacy before the state and federal legislatures and state and regional agencies should stress the need for programs, policies, and actions which improve the food system of Hartford. Such advocacy should address the state and regional agricultural infrastructure; aim to reduce the overall need for nutritional aid programs by addressing the root causes of food insecurity; and enhance opportunities for residents to learn about, participate in, and advocate for their food system.

(14) *Intergovernmental cooperation.* City agencies should cooperate with the food policy advisory commission in the performance of its duties. All departments should supply the commission with all information and reports requested in order that the goals of the city and the commission may be realized. The city shall provide clerical services to the commission as needed.

(Ord. of 11-28-22(2))

Editor's note—Ord. of Nov. 28, 2022(2), repealed the former § 2-328, and enacted a new § 2-328 as set out herein. The former § 2-328 pertained to membership and derived from Ord. No. 54-91, adopted Oct. 15, 1991.

Sec. 2-329. Membership.

The food policy advisory commission shall consist of fifteen (15) members who shall serve without compensation from the city for three-year terms and be appointed by the mayor, with the approval of the council. Of the fifteen (15) members first appointed, five (5) shall be appointed for terms of one (1) year, five (5) for terms of two (2) years and five (5) for terms of three (3) years. Commissioners may serve a maximum of two (2) consecutive terms and may serve again after a period of one (1) year off the commission; except commissioners serving one (1) or two (2) year terms may serve two full consecutive terms after their partial term. Of the appointed members, at least two-thirds (⅔) shall be residents of the City of Hartford. The remaining members shall be chosen from the public at large, and/or persons actively engaged in food access in Hartford; improving or increasing the production, processing and distribution of food in Hartford; and improving or increasing food-related economic activity and job creation. Special consideration shall be given to people who have experienced food insecurity and/or have participated in government or private food aid programs, though no applicant shall be required to disclose any aforementioned status to become a commissioner. The commission should strive to reflect the demographics of the city. The mayor shall annually designate one (1) member to act as chairperson. The commission may appoint a vice chair. The commission shall meet at least six (6) times per year and may convene working group or other meetings with appropriate notice. A quorum shall consist of half (½) plus one (1) of the current membership. When a vacancy shall occur in said commission by death, resignation, refusal to serve, or other cause, such vacancy shall be filled by appointment by the mayor in accordance with the provisions of this section relating to the appointment of commissioners.

(Ord. of 11-28-22(2))

Editor's note—Ord. of Nov. 28, 2022(2), repealed the former § 2-329, and enacted a new § 2-329 as set out herein. The former § 2-329 pertained to goals of commission and derived from Ord. No. 54-91, adopted Oct. 15, 1991.

Sec. 2-329.1. Goals of commission.

Access to nutritious, culturally relevant, sustainably produced food is a significant factor in health, happiness, cultural celebration, and

economic opportunities. Food justice and climate resilience inform the goals of the food policy advisory commission, which are as follows:

(1) To provide a platform for Hartford residents to have voice and control over the food system of Hartford;

(2) To advocate for food security for all residents;

(3) To advocate for access to nutritious and culturally relevant food regardless of economic status, location or other factors beyond a resident's control;

(4) To advocate for more local production of food including farming, community and school gardens, and food businesses; and

(5) To advocate for sustainable practices in food retail and distribution, agriculture, and waste management.
(Ord. of 11-28-22(2))

Sec. 2-330. Powers and duties of the commission.

The powers and duties of the food policy advisory commission shall be as follows:

(1) Explore new means for the city to support agriculture, improve the food economy, and ensure the availability, accessibility, and quality of food;

(2) Assist the city in coordination of efforts toward ending food insecurity and building equitable control over the food system;

(3) Collect, analyze, and promote data pertaining to the city and region's food system, and offer education and outreach about the food system;

(4) Seek and obtain community input about the food system, particularly from youth, seniors, people of color, women and marginalized genders, and people who have experienced food insecurity;

(5) Request updated statistical information and other data from city agencies relating to the city's food system and identify types of data that should be collected;

(6) Study and review existing food and farm programs in the city;

(7) Recommend to the city adoption of new programs and improvements to (or elimination of) existing programs as appropriate;

(8) Collaborate with other food policy councils and commissions, particularly those in Connecticut, to learn and exchange strategies, best practices, policy agendas, and other experiences;

(9) Advocate for policies similar or complementary to those described above at the state and federal level as appropriate;

(10) Create and dissolve working groups, task forces, and other bodies, and call for meetings between city agencies to achieve its goals;

(11) Adopt bylaws for implementing the provisions of this ordinance; such bylaws shall not be inconsistent with the provisions thereof;

(12) Submit an annual report on or before December 31 to the common council and the mayor summarizing the progress made in achieving each of the goals set forth in section 2-330 above.

(Ord. of 11-28-22(2))

Editor's note—Ord. of Nov. 28, 2022(2), repealed the former § 2-330, and enacted a new § 2-330 as set out herein. The former § 2-330 pertained to similar subject matter and derived from Ord. No. 54-91, adopted Oct. 15, 1991.

DIVISION 14. COMMITTEE ON VETERAN'S GRAVESITES*

Sec. 2-330.1. Creation; membership; terms.

Pursuant to Connecticut General Statutes, Chapter 506, Section 27-123, a Committee on

*__Editor's note—__Ord. No. 10-05, adopted Oct. 11, 2005, added new provisions to the Code as § 2-289. As other provisions existed within the Code as § 2-289, the provisions of Ord. No. 10-05 have been included herein as Art. V, Div. 14, §§ 2-330.1, 2-330.2, of this chapter.

Veteran's Gravesites is hereby created. There shall be three (3) members appointed by the Mayor for a term of three (3) years each.
(Ord. No. 10-05, 10-11-05)

Sec. 2-330.2. Purpose.

[The purpose of the Committee on Veteran's Gravesites is] to coordinate with the Hartford Department of Public Works and veterans organizations on the maintenance, status, and condition of veterans gravesites in the City of Hartford.
(Ord. No. 10-05, 10-11-05)

Secs. 2-330.3—2-330.29. Reserved.

DIVISION 15. COMMISSION ON VETERANS AFFAIRS*

Sec. 2-330.30. Established; powers.

There is hereby established a commission on veterans' affairs which shall have authority and exercise all the powers pertaining to serve as an advisory board to the city council and mayor concerning the wellbeing of military veterans in the Hartford area.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.31. Appointment.

(a) *Membership.* Said commission on veteran affairs shall be appointed by the Mayor with a membership consisting of eleven members, with two (2) alternates. Up to five (5) of the members of the commission may be appointed without regard to the residency requirement of Chapter VII, Section 1(e) of the Charter.

(b) *Term.* All commission members shall serve a term of two (2) years. All commission members shall serve until their successors have been appointed and qualified.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.32. Qualifications.

Members shall be derived from the military veteran constituency of the City and either (i) have in-depth knowledge of veterans' affairs, (ii) is affiliated with a provider of services to veterans, (iii) or is a veteran of any United States war. In addition, at least two (2) of the members shall have actively served in the United States military and the commission as a whole shall represent the diversity of our military with regards to ethnicity, race, and gender.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.33. Functions; duties.

The commission on veterans' affairs shall:

(a) Evaluate and recommend programs, policies, and practices designed to alleviate veterans' difficulties in meeting basic needs, obtaining housing, employment, and comprehensive mental health assistance;

(b) Act as a central clearinghouse for information relating to the status of veterans in the Hartford community;

(c) Accumulate information concerning the needs of veterans in the Hartford community, including available services and legal rights, and advocate to city council regarding these needs;

(d) Recommend ways to:

(i) Educate the community on the status of veterans' rights and needs, and veterans' contributions to our community; and

(ii) Stimulate an awareness among the public and private sector of veterans' full potential and of the importance of veterans' contributions to the development of the community; and

*__Editor's note—__Ord. No. 05-13, adopted May 13, 2013, deleted Division 15, §§ 2-330.2—2-330.12. The former Division 15, pertained to the Hartford Youth Advisory Council and derived from Ord. No. 08-08, adopted Feb. 25, 2008. See §§ 2-251—2-258 for provisions pertaining to the Commission on Youth.

Subsequently, Ord. No. 04-14, adopted Mar. 24, 2014, amended and redesignated the former provisions of Ord. No. 12-13, adopted Nov. 25, 2013, codified as Div. 17, §§ 2-330.54—2-330.60, as Div. 15, §§ 2-330.30—2-330.36.

(e) Identify and review the entire range of services available to veterans, and recommend ways to:

(i) Strengthen existing services for veterans and pursue new services for veterans;

(ii) Promote collaboration between service providers; and

(iii) Expand resources available to veterans.

(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.34. Organization.

The commission on veterans' affairs may organize itself in whatever manner it may determine in order to carry out its duties to the fullest extent possible.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.35. Compensation.

The members of the commission on veterans' affairs shall serve without compensation but shall be reimbursed for their necessary and actual expenses within the limits of any appropriation made therefore.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Sec. 2-330.36. Appropriations for expenses.

The city council may make appropriations to cover the expenses of the commission on veterans' affairs.
(Ord. No. 12-13, 11-25-13; Ord. No. 04-14, 3-24-14)

Secs. 2-330.37—2-330.49. Reserved.

DIVISION 16. FREEDOM OF INFORMATION ADVISORY BOARD*

Sec. 2-330.50. Created.

Pursuant to the authority granted in Public Act 136, Section 7, of the 2000 Session of the Connecticut General Assembly, the City of Hartford hereby establishes a freedom of information advisory board.
(Ord. No. 02-09, 2-9-09)

Sec. 2-330.51. Purpose.

The purpose of the freedom of information advisory board is to foster compliance with the state Freedom of Information Act.
(Ord. No. 02-09, 2-9-09)

Sec. 2-330.52. Membership.

(a) The freedom of information advisory board shall consist of three (3) members who shall be appointed in accordance with procedures set forth in the Charter of the City of Hartford (the "Charter").

(b) No more than two (2) members of the freedom of information advisory board shall be members of the same political party.

(c) The members of the freedom of information advisory board shall designate one (1) of its members to be the chairperson.

(d) Within thirty (30) days after the adoption of this division, in accordance with procedures set forth in the Charter, the initial three (3) members of the freedom of information advisory board shall be appointed for the following terms: one (1) shall serve for a period of three (3) years from the date of appointment; one (1) shall serve for a period of two (2) years from the date of appointment of the person first appointed to serve a three-year term; and one (1) shall serve from the date of appointment for a period of one (1) year from the date of appointment of the person first appointed to serve a three-year term. Successor members of the freedom of information advisory board shall be appointed for three-year terms commencing on the day after the date on which the term of their predecessor expires.

*__Editor's note—__Ord. No. 02-09, adopted Feb. 9, 2009, set out provisions intended for use as §§ 2-331—2-331.3. For purposes of classification, and at the editor's discretion, these provisions have been included as §§ 2-330.50—2-330.53.

(e) Any vacancies on the freedom of information advisory board by reason other than the expiration of the term of office shall be filled by appointment, in accordance with procedures set forth in the Charter for the remainder of the term within thirty (30) days after such vacancy occurs. Any vacancy on the freedom of information advisory board shall not impair the right of the remaining members to exercise all the powers of the board.
(Ord. No. 02-09, 2-9-09)

Sec. 2-330.53. Powers and duties.

(a) The freedom of information advisory board shall have the following duties:

(1) The board, or a member thereof, shall act as liaison to the state freedom of information commission for educational purposes and the members of such board shall keep current of the requirements of the state Freedom of Information Act, as interpreted by the state freedom of information and courts, and any other laws, rulings and materials related to such act;

(2) Provide information and education to municipal officials and employees, and all other persons seeking information or education, concerning the state Freedom of Information Act, its interpretation by the state freedom of information commission and courts, and any other laws, rulings and materials related to such act;

(3) Facilitate the dissemination to municipal officials and employees, and all other per-

sons, of any materials provided to such board by the state freedom of information commission;

(4) Make recommendations to municipal officials concerning the application and implementation of the state Freedom of Information Act;

(5) Provide interested persons with information concerning the filing of complaints with the state freedom of information commission; and

(6) Make recommendations to the state freedom of information commission concerning proposed changes to state law relating to freedom of information.

(b) In addition, the freedom of information advisory board may attempt to facilitate the resolution of freedom of information disputes with agencies, but shall not impede in any way a person's right to a speedy appeal to the state freedom of information commission or a speedy determination of such appeal by such commission.
(Ord. No. 02-09, 2-9-09)

DIVISION 17. RESERVED*

Secs. 2-330.54—2-330.60. Reserved.

DIVISION 18. HARTFORD GOLF COURSE OVERSIGHT COMMISSION

Sec. 2-330.61. Purpose.

The purpose of the Hartford Golf Course Oversight Commission, "The Oversight Commission" is to ensure that the operations pertaining to the City of Hartford's care, maintenance and capital improvements of the municipal golf courses meet the expectation of the constituents and patrons of the grand public amenities of Keney Park Golf Course and Goodwin Park Golf Course, "The Courses".
(Ord. No. 13-14, 7-14-14)

Sec. 2-330.62. Created; members.

The Commission shall consist of nine (9) members to be appointed by the Mayor and approved by the Court of Common Council. Each member shall be a resident of the City of Hartford and shall serve for a term pursuant to ordinance for four (4) years, or until their successors shall be duly appointed, except where otherwise indicated herein. Two (2) members shall be active members of a "Friends of" club or organization at either Keney Park or Goodwin Park, two (2) members shall be active members of a golf league at Keney Park or Goodwin Park, one (1) member shall be an active youth, and it is preferred that the remaining members have professional or equivalent experience in at least one (1) of the following fields: public administration, accounting, management, golf professional, certified caddie, financial analysis, landscape architecture or landscape design.
(Ord. No. 13-14, 7-14-14)

Sec. 2-330.63. Membership; terms of office; election of officers.

(a) Of the initial members appointed, three (3) shall be appointed for terms of two (2) years, two (2) for terms of three (3) years and two (2) for a term of four (4) years in order to maintain continuity of membership. A member appointed to the Commission, in order to replace a member who has vacated the position, but whose term has not expired, shall be appointed for the unexpired term.

(b) Following initial commission appointments and executive elections in the Summer of 2014, the Commission shall hold an annual meeting in the month of January at which time it shall elect one (1) of its members as Chairman, one (1) of its members as Vice Chairman and one (1) of its members as Secretary.
(Ord. No. 13-14, 7-14-14)

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*__Editor's note—__Ord. No. 12-13, adopted Nov. 25, 2013, did not specify manner of inclusion; hence, codification as Div. 17, §§ 2-330.54—2-330.60 was at the discretion of the editor.

Subsequently, Ord. No. 04-14, adopted March 24, 2014 redesignated the former provisions codified as Div. 17, §§ 2-330.54—2-330.60 as Div. 15, §§ 2-330.30—2-330.36.

Sec. 2-330.64. Powers and duties.

(a) The Oversight Commission will meet monthly at City Hall or other Commission Chair designated location(s) and in accordance with the notice requirements of the Freedom of Information Act. City of Hartford management and staff are expected to avail their services to the Oversight Commission to discuss management oversight, maintenance, services, capital improvements, marketing and events and other Course related information, on a monthly basis.

(b) The Oversight Commission shall receive monthly reports from City agents or vendors providing services, "Providers," at The Courses. In addition, each Provider shall provide a quarterly report summarizing marketing, capital improvements, revenue forecasts (short term and long term) and conditions reports to the Oversight Commission, commencing April 1 and each quarter thereafter.

(c) The Oversight Commission will provide yearly written reports to the Mayor and Court of Common Council of its findings related to the management of The Courses and shall present their report to the Council's Committee of cognizance.

(d) The Oversight Commission will review accountings of all gross and net operating revenues, which will be maintained by the City in a separate, non-lapsing golf fund which shall be used for capital improvements and non-routine maintenance of The Courses.

(e) The Oversight Commission shall establish rules and regulations for the use and conduct of The Course(s) and of attendant facilities as may be required for proper usage and benefit to patrons. All such rules and regulations shall [be] filed with the City Clerk pursuant to Section 2-1 of the Code and submitted by the City clerk to the Council pursuant to Section 2-2. Final versions of all rules and regulations shall be provided to the Commission upon approval of the City.

(f) The Oversight Commission shall recommend to the council, for its approval pursuant to Chapter 2 Section 2(e) of the Charter, a Schedule of fees, rates, rentals, and charges to the City for each ensuing Golf Season (the period during a single calendar year in which the Courses are generally available for public use). The fees, rates, rentals and charges shall be set at a level expected to be sufficient to at least cover the operating costs for each Golf Season.
(Ord. No. 13-14, 7-14-14)

Secs. 2-330.65—2-330.80. Reserved.

DIVISION 19. HOUSING COMMISSION*

Sec. 2-330.81. Established.

There is hereby established a Housing Commission.
(Ord. No. 18-15, 12-14-15)

Sec. 2-330.82. Declaration of purpose—Duties and functions.

This act calls for the establishment of a Housing Commission, which will operate with the intention of being a conduit through which all housing matters can be discussed with input from representatives of the City, tenants, and landlords. The Housing Commission shall advise and assist the Mayor, the Chief Operating Officer and the City Council in fostering and formulating legislation to improve the Housing section of the Municipal Code and to talk about ways to tackle homelessness and improve home ownership and quality of Housing in the City, among other topics that the Housing Commission members feel need to be addressed.
(Ord. No. 18-15, 12-14-15)

Sec. 2-330.83. Membership; organization.

[(a)] Members: The Commission shall [be] compose[d] of thirteen (13) members. The majority of the members shall be residents of the City of Hartford who will serve a two-year term without compensation. The membership shall consist of four (4) tenants; four (4) property owners of which shall be at least: one (1) landlord, one (1) owner-occupant of a multi-unit dwelling,

*__Editor's note—__Ord. No. 18-15, adopted Dec. 14, 2015, enacted provisions designated as §§ 2-331—2-336. Inasmuch as sections so numbered already exist, the provisions have been redesignated as §§ 2-330.81—2-330.86 at the discretion of the editor.

and one (1) owner of a single-family house; two (2) representatives from the City of Hartford whose daily activities are related to Housing and Housing-related matters; two (2) representatives of Hartford shelters and/or a representative of the homeless population; and one (1) representative from the Hartford Housing Authority.

[(b)] Officials: The members of the Commission shall annually designate one (1) member to act as chairperson, one (1) as a Vice-Chair and one (1) as a Secretary. Other officials can be designed if the members of the Commission decide that is necessary.

[(c)] Terms: Each member shall serve for the term for which he/she has been appointed and qualified. At the expiration of each member's term, he/she may be reappointed or a successor appointed for a two-year term. In the event of the death or resignation of any member of the commission, his/her successor shall be appointed by the Mayor and confirmed by Council to serve the unexpired period of the term for which such member has been appointed. Of the members first appointed, seven (7) members shall be appointed for three-year terms and six (6) members shall be appointed for two-year terms, to allow for over-lapping terms. Members shall not serve more than two consecutive terms and the term that they have been appointed to serve cannot be repeated in terms of time, so a member that was initially appointed for a three-year period has to be reappointed only to a two-year period, and a member who was initially appointed for a two-year period, has to be reappointed only to a three-year period. Any member who is absent from three (3) consecutive regular meetings of the Housing Commission and any intervening duly called special meetings thereof shall be considered to have resigned from the Housing Commission, and the vacancy shall be filled by the appointing body except that the requirements of this section may be waived by the chairperson where illness or other extenuating circumstances make it impossible for a member to meet the attendance requirements of this section. A decision by the chairperson as to whether a waiver under this section is appropriate shall be referred, at the request of the affected party, to the Housing Commission as a whole for a final decision on the matter by a simple majority vote. Any such appeal shall be taken by the affected party by filing a written statement of appeal with the town clerk for the city, within seven (7) days of receipt of written notice of the Commission's decision, and such appeal shall be decided by the Housing Commission at its next regular meeting following receipt of such statement of appeal. No appointment shall be made to fill the position of an affected party while his appeal is pending.

[(d)] Meetings: The Commission shall meet monthly beginning no later than thirty (30) days from when a quorum of seven (7) members are appointed and confirmed. A quorum shall consist of seven (7) members and shall include not less than two (2) tenants.

[(e)] Bylaws: The Commission shall adopt bylaws which shall include attendance requirements, a process for electing officers, and processes for doing business.
(Ord. No. 18-15, 12-14-15)

Sec. 2-330.84. Procedural regulations of commission, standing committees.

The commission shall establish regulations governing its operations, meetings and hearings. Also, the Commission will be able to create standing committees, including an Advisory Committee that will consist of one representative of each Neighborhood Revitalization Zone in the City of Hartford, appointed by each neighborhood group, to talk about Housing issues in their own neighborhoods, and will meet separately from the standing Commission in order to recommend changes or raise concerns to the Commission based on the Commission's decisions or recommendations. The standing Commission may also establish committees pertaining to important topics relating to housing in the City of Hartford.
(Ord. No. 18-15, 12-14-15)

Sec. 2-330.85. Staff for commission.

Staff support shall be provided to the Commission by the Department of Development Services.
(Ord. No. 18-15, 12-14-15)

Sec. 2-330.86. Reserved.

Editor's note—Ord. No. 15-19, adopted Oct. 28, 2019, repealed § 2-330.86, which pertained to Housing Partnership and derived from Ord. No. 18-15, adopted Dec. 14, 2015.

DIVISION 20. CRIMINAL JUSTICE REFORM COMMISSION

Sec. 2-330.87. Established; membership.

There is hereby established a criminal justice reform commission consisting of eleven (11) members. There shall be two co-chairs of the commission who shall be persons who have been directly impacted by the criminal justice system, by virtue of having been incarcerated in jail or prison, or who have had felony convictions, families/caretakers and experienced professionals within the criminal justice system. The membership shall include persons employed in public health, substance abuse and addiction treatment, mental health care, harm reduction, emergency services, law, corrections, the judicial system, or public safety. The chief of the Hartford Police Department and Director of Health and Human Services shall serve ex officio. The membership of the commission shall be diverse and reflective of the population of Greater Hartford. A majority of commissioners shall be electors of Hartford. Commissioners shall serve without compensation. Each member of the commission shall serve for three years, except that of those first appointed, three (3) members shall be appointed for a term of three (3) years, three (3) members shall be appointed for a term of two (2) years, and three (3) members shall be appointed for a term of one (1) year.
(Ord. No. 06-18, 8-13-18)

Sec. 2-330.88. Function and duties.

The Commission shall be an advisory body to the Court of Common Council and Mayor in relation to policy and support for criminal justice reform, including public safety and health, mental health care, emergency services, substance abuse and addiction care, prevention, judicial diversion, and harm reduction.
(Ord. No. 06-18, 8-13-18)

Sec. 2-330.89. Meetings.

The Commission shall meet monthly.
(Ord. No. 06-18, 8-13-18)

Sec. 2-330.90. Review and reporting.

The Commission shall select officers, including co -chairs, a secretary and assistant secretary. The Commission shall adopt a mission statement. It shall review services provided by government agencies, medical providers and nonprofits in Hartford as they relate to matters impacting criminal justice reform. The Commission shall prepare and present to the Council an annual report giving an evaluation of present services available in Hartford and make recommendations for support and deployment of resources to more effectively serve the people and City of Hartford.
(Ord. No. 06-18, 8-13-18)

DIVISION 21. FAIR RENT COMMISSION*

Sec. 2-330.91. Established; composition.

A. There shall be a fair rent commission, referred to in this division as the commission, comprising five (5) people who shall each serve for a four-year term without compensation and be appointed by the mayor, with the approval of the council in accordance with the charter.

B. Each member shall serve for the term for which he is appointed and qualified.

C. The membership of the commission shall include not less than two (2) tenants, who must reside in the city but may or may not be an elector of the city, and two (2) landlords, who may or may not reside in the city or be an elector of the city, as part of its constituted body.

D. The mayor shall annually designate one (1) member to act as chairperson.

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*__Editor's note—__Ord. No. 15-19, adopted Oct. 28, 2019, enacted provisions designated as Div. 20, §§ 2-330.90—2-330.99. Inasmuch as the division so numbered and § 2-330.90 already exist, said provisions have been redesignated as Div. 21, §§ 2-330.91—2-330.100, at the discretion of the editor.

E. The recodification of provisions regarding the fair rent commission shall not effect any change to the membership, findings, or existence of the fair rent commission at the time of the recodification.
(Ord. No. 15-19, 10-28-19)

Sec. 2-330.92. Meetings; regulations; staff.

A. The commission shall meet at such time and place as the chairperson shall direct.

B. A quorum shall consist of three (3) members and shall include not fewer than one (1) tenant and one (1) landlord.

C. The commission shall establish regulations governing its operations, meetings and hearings. The regulations shall not take effect unless and until approved by the council.

D. Staff for the commission shall include a secretary and other personnel, to be provided by the department of development services, as is necessary to enable the commission to carry out its functions. The staff for the commission may have the power to meet with the parties on an informal basis to attempt to reconcile the differences between the parties to any complaint that would otherwise be heard by the commission as described in 2-330.92(A) prior to such hearing.
(Ord. No. 15-19, 10-28-19)

Sec. 2-330.93. Functions and duties.

A. The commission may make studies and investigations, conduct hearings, and receive complaints relative to rental charges on housing accommodations. except those accommodations rented on a seasonal basis, which term shall include mobile homes and mobile home park lots, within the city in order to control and eliminate excessive rent charges on such accommodations and to carry out the provisions of this article.

B. The commission for such purposes may compel the attendance of persons at hearings, issue subpoenas, administer oaths, issue orders and continue, review, amend, terminate, or suspend any of its orders and decisions.

C. If the commission determines, after a hearing, that rent charges for any housing accommodation are so excessive, based on the standards and criteria set forth in this division, as to be harsh and unconscionable, it may order that the rent be limited to such amount as it determines to be fair and equitable. No hearing shall be held less than ten (10) days from the mailing date of a notice of such hearing to a landlord or an agent of such landlord at which he may be represented by counsel.

D. If the commission determines, after a hearing, that a landlord has retaliated in any manner against a tenant because the tenant has complained to the commission, the commission may order the landlord to cease and desist from such conduct.
(Ord. No. 15-19, 10-28-19)

State law reference—Similar provisions, G.S. § 7-148b(a), G.S. § 7-148d.

Sec. 2-330.94. Standards to determine fairness of rent.

In determining whether a rental charge is so excessive, with due regard to all the circumstances, as to be harsh and unconscionable, consideration shall be given to the following circumstances as are applicable to the type of accommodations:

A. The rents charged for the same number of rooms in other housing accommodations in the same and in other areas of the municipality

B. The sanitary conditions existing in the housing accommodations in question.

C. The number of bathtubs or showers, flush water closets, kitchen sinks and lavatory basins located in the housing accommodation or otherwise available to the occupants thereof.

D. Services, furniture, furnishings and equipment supplied therein.

E. The size and number of bedrooms contained therein.

F. Repairs necessary to make such accommodations reasonably livable for the occupants accommodated therein.

G. The amount of taxes and overhead expenses, including debt service, thereof.

H. Whether the accommodations are in compliance with the ordinances of the municipality and the general statutes relating to health and safety.

I. The income of the petitioner and the availability of accommodations.

J. The availability of utilities.

K. Damages done to the premises by the tenant, caused by other than ordinary wear and tear.

L. The amount and frequency of increases in rental charges.

M. Whether and the extent to which the income from an increase in rental charges has been or will be reinvested in improvements to the accommodations.

(Ord. No. 15-19, 10-28-19)

State law reference—Similar provisions, G.S. § 7-148c.

Sec. 2-330.95. Effective date of orders regarding rents.

A decision by the commission regarding particular rented premises shall take effect on the date specified by the commission, but if no such date is indicated, the decision shall take effect on the next date on which rent would otherwise be due.

(Ord. No. 15-19, 10-28-19)

Sec. 2-330.96. Petition to review rent limitation.

In the case of any order of rent limitation, where there has subsequently been a change of circumstances or, if such order was based in whole or in part on failure to comply with municipal ordinances or state statutes relating to health and safety, and if thereafter the owner of any accommodation brings it to compliance therewith, he may petition the commission for a review of such order. The commission shall give notice thereof to any tenant concerned, shall reinvestigate and shall hold a hearing on such petition not less than ten (10) days from the mailing of a notice of such hearing to all parties concerned. After such hearing the commission shall make such revision of such order as it may deem fair and equitable under the circumstances.

(Ord. No. 15-19, 10-28-19)

Sec. 2-330.97. Authority to suspend rent payments.

If the commission determines after a hearing that the housing in question fails to comply with any municipal ordinance of the city or state statute or regulation relating to health and safety, it may order the suspension of further payment of rent by the tenant until such time as the landlord makes the necessary changes, repairs or installations so as to bring such housing into compliance with such ordinance, statute or regulation. The rent during such period shall be paid to the commission by the tenant to be held in escrow subject to the compliance of the landlord with the municipal ordinance, state statute or regulation in question. If the commission determines after a hearing that the housing in question poses an immediate and substantial risk to the health and safety of the tenants, it may order what, if any, rent shall be paid until such time as the landlord makes the necessary changes, repairs, installations to remove the hazard which is causing the immediate and substantial risk to the tenants and further may order that any such rent shall be paid to the commission to be held in escrow until the necessary changes, repairs, etc., are made by the landlord.

(Ord. No. 15-19, 10-28-19)

State law reference—Authority, G.S. § 7-148d(a).

Sec. 2-330.98. Certification of pendency of complaint.

The commission shall give certification to all parties to a complaint that a complaint has been registered with the commission and is pending. This certification may be used by the complainant as a defense against an eviction proceeding to which he or she has been made defendant.

(Ord. No. 15-19, 10-28-19)

Sec. 2-330.99. Appeal from commission order.

Any person aggrieved by any order of the commission may appeal to the superior court. Any such appeal shall be considered a privileged matter with respect to the order of trial.
(Ord. No. 15-19, 10-28-19)

State law reference—Similar provisions, G.S. § 7-148e.

Sec. 2-330.100. Violations; penalties.

Any person who violates any order of rent limitation or rent suspension by demanding, accepting or receiving an amount in excess thereof while such order remains in effect, and no appeal pursuant to this division is pending, or violates any other provision of this article, and who refuses to obey any subpoena, order or decision of the commission pursuant thereto, shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) for each offense. If such offense continues for more than five (5) days, it shall constitute a new offense for each day it continues to exist thereafter. The court of common pleas shall have jurisdiction to hear and enforce all matters relating to violations under such sections and this article.
(Ord. No. 15-19, 10-28-19)

ARTICLE VI. HUMAN RESOURCES, MERIT SELECTION AND CIVIL SERVICE*

DIVISION 1. DEFINITIONS

Sec. 2-331. Definitions.

The following words and terms used in this Article rules shall have the meanings indicated below unless the context clearly requires otherwise.

1. *Allocation.* The assignment of an individual position to an appropriate Class on the basis of the type, difficulty, and responsibility of the work actually performed in the position.
2. *Appeals Board.* The Human Resources Appeals Board of the City of Hartford, Connecticut.
3. *Appointing Authority.* An officer or agency pursuant to the provisions of the Charter having the legal authority to make appointments to positions.
4. *Class or Class of Positions.* A group of positions sufficiently alike in duties, authority, and responsibility to justify the application of same Class title, qualifications, and salary range to all positions in the group.
5. *Class Specification.* The written description of a Class containing the official title, a statement of the duties, authority, and responsibilities of the Class and the qualifications that are necessary or desirable for the satisfactory performance of duties of the Class.
6. *Classified Employee.* An employee in a Full Time or Part Time Position in the Classified Service who has completed the Probationary Period.
7. *Classified Service.* All positions unless specifically placed in the Unclassified Service by the Charter, Chapter VIII, § 5(e)(3).
8. *Demotion.* The change of an employee from a position in one Class to a position in another Class having a lower maximum salary range.
9. *Director.* Director of Human Resources.
10. *Dismissal.* The separation of an employee from employment or failure to complete the Probationary Period.
11. *Eligible.* A person whose name is on an active employment list which may also be referred to as an "Eligible List" as set forth in § 2-378.
12. *Exempt Employee.* Any employee not subject to the provisions of the Fair Labor Standards Act and/or the Connecticut Minimum Wage Act and related regulations as provided by the Connecticut General Statutes.

***Editor's note—**Ord. No. 07-05, adopted Aug. 8, 2005, repealed former Ch. 2, Art. VI, in its entirety and added new provisions as Art. VI as herein set out. Former Art. VI, §§ 2-331—2-342, 2-356—2-360, 2-376—2-380, 2-396—2-408, 2-416—2-423, 2-436—2-442, 2-456—2-470, pertained to officers and employees and derived from the 1977, §§ 2-9, 2-40, 2-126—2-136, 2-141—2-145, 2-152—2-155, 2-164—2-168, 2-174—2-178, 2-186—2-192 and the following ordinances:

Ord. No.	Date	Ord. No.	Date
21-76	10-27-76	37-92	9-14-92
25-76	11-22-76	4-93	1-25-93
2-77	3-17-77	10-93	4-12-93
16-77	12-12-77	13-93	5-10-93
7-78	10-23-78	16-93	6-14-93
22-79	8-13-79	61-93	10-25-93
26-79	9-18-79	32-94	9-26-94
13-81	4-13-81	15-95	7-10-95
28-81	11-23-81	23-95	10-23-95
14-82	9-27-82	44-96	9-23-96
57-83	12- 2-83	45-96	9-23-96
36-84	12-10-84	11-97	4-28-97
37-84	12-10-84	18-97	9-22-97
3-85	1-16-85	4-98	4-13-98
12-85	2-25-85	57-98	10-26-98
20-85	4- 8-85	15-99	9-27-99
25-85	4-22-85	6-00	2-28-00
15-86	6- 9-86	5-01	5-29-01
29-87	9-14-87	10-01	9-24-01
55-88	9-12-88	1-02	1-14-02
66-88	10-24-88	17-02	5-28-02
75-90	12-10-90	18-02	5-28-02
12-91	5-13-91	8-03	4-14-03
22-91	5-28-91	9-03	4-14-03
11-92	1-13-92	11-03	4-28-03
27-92	6-22-92	19-03	5-27-03
30-92	6-22-92	03-04	2- 9-04

13. *Full Time Position.* A position requiring the observance of normal working hours on a year-round basis.

14. *Hourly Basis Position.* A position regularly involving other than the standard hours of work on either a daily, weekly, or seasonal basis and paid an hourly rate of pay which should be comparable to but not necessarily equal to the standard weekly salary rate established for regular positions.

15. *Lay-Off.* The separation of an employee from employment by reason of lack of work, lack of funds or other business reasons.

16. *Non-Exempt Employee.* Any employee subject to the provisions of the Fair Labor Standards Act and/or the Connecticut Minimum Wage Act and related regulations as provided by the Connecticut General Statutes.

17. *Open Competitive Examination.* An examination open to all qualified persons.

18. *Part Time Position.* A position involving working hours such as a few hours a day or days a week on a regular recurring basis and paid on a proportional basis at one (1) of the weekly rates established for employment.

19. *Probationary Period.* A working test period during which an employee is required to demonstrate the knowledge, skills and ability to perform the duties of the position to which the employee is appointed by actual performance of those duties.

20. *Promotion.* The advancing of an employee from a position in one Class to a position having a higher maximum salary range.

21. *Seasonal Position.* A position requiring the observance of normal working hours but which is filled only during certain months or seasons of the year.

22. *Suspension.* A temporary separation of an employee from a position for disciplinary reasons and for a definite period specified in writing.

23. *Temporary Employee.* Any employee appointed to a Temporary Position or temporarily appointed to fill a regular position.

24. *Temporary Position.* A regularly established position in the Classified Service created for a designated period of time not to exceed six (6) months.

25. *Transfer.* A change of an employee from one position to another position in the same Class or another Class having the same minimum and maximum salary limits, involving the performance of similar duties and requiring substantially the same basic qualifications.

26. *Unclassified Employee.* An employee not included in the Classified Service.

(Ord. No. 07-05, 8-8-05)

DIVISION 2. GENERAL

Sec. 2-332. Human Resources Policy of the City of Hartford.

(A) *General Policy Statement.* As set forth in Chapter VIII, § 5(e)(2) of the Charter of the City, Hartford ("City" or "Hartford") shall establish and maintain, by ordinance, a civil service system that will ensure recruitment of the most qualified available persons to appoint to vacant positions, advance equal employment opportunity and affirmative action, continue training and evaluation of employees and bargain with the collective bargaining representatives of employees.

It is the policy of the City to uniformly apply criteria for recruitment, selection, assignment, evaluation, compensation, Promotion, discipline and other personnel actions without regard to race, color, sex, religion, national origin, age, mental or physical disability, sexual orientation, marital status or ancestry; to provide each employee with the opportunity to develop and succeed according to the individual's potential; to utilize and/or develop the skills of present employ-

ees to the fullest extent for Transfers, Promotions and assignments; to provide all employees counseling, training, opportunities and encouragement for advancement; to revise the Affirmative Action Plan annually and/or as needed to establish realistic goals and objectives and the steps necessary to achieve them; to train management and supervisory personnel at all levels with an understanding of the City of Hartford's Equal Employment Opportunity Program; to provide employees access to a prompt, effective system for processing and resolving complaints of discrimination; to implement the Affirmative Action Plan in every department throughout the City; and to make Equal Employment Opportunity a viable and effective program in the City of Hartford.

(B) *[Responsibilities.]* As provided in the Charter of the City, Chapter VIII Section 5(e), the Human Resources Department shall be solely responsible for all personnel matters relating to the classified service and shall perform all personnel functions for all city departments including but not limited to the following functions:

a) Recruitment and testing;

b) Job description, classification and compensation;

c) Administration of employee benefits, for both active employees and retirees, contract negotiations and contract interpretation; and

d) Arbitration, grievances, complaints and all employment discrimination actions.

(C) *Financial Support from the City.* The financial authorities of the City shall provide necessary funds to carry out the purpose of this Article, and shall provide the Director and the Department with adequate staffing, office space, equipment and facilities.

(D) *Intent of Article.* The intent of this Article is to afford rights and privileges to Classified Employees and, where specifically noted, to Unclassified Employees. Where a collective bargaining agreement incorporated by reference any provisions of the Personnel Rules and Regulations operational at the time of the effective date of this Article, such prior Personnel Rules and Regulations shall remain in effect for the duration of the collective bargaining agreement.

Nothing in this Article shall be considered to limit the provisions of sections 2-31 and 2-45 or limit the authority of the Mayor and Court of Common Council to appoint, assign and remove their staff. Nothing in this Article shall be considered to limit the role or authority of the Corporation Counsel or limit the role or authority of the Mayor as the City's Chief Negotiator.
(Ord. No. 07-05, 8-8-05; Ord. No. 15-14, 8-11-14)

Sec. 2-333. Human Resources Appeals Board.

(A) *General Powers.* There shall be a Human Resources Appeals Board which shall have the powers set forth in this Article.

(B) *Membership.* The Appeals Board shall consist of five (5) members, who shall be electors of the City holding no salaried municipal office and whose term of office and method of appointment shall be as follows, in accordance with the provisions of Chapter VII, § 1(g) of the Charter of the City:

(1) *Initial Appointments. Term of Office.* On or about July 1, 2005, the Mayor shall appoint five (5) members with the following terms:

(a) One (1) member whose term shall expire on June 30, 2006;

(b) One (1) member whose term shall expire on June 30, 2007;

(c) One (1) member whose term shall expire on June 30, 2008;

(d) One (1) member whose term shall expire on June 30, 2009; and,

(e) One (1) member whose term shall expire on June 30, 2010.

(2) *Succeeding Appointments.* At the expiration of their respective terms, their successors shall be appointed for a term of four (4) years.

(3) *Limitation on Political Party Representation.* Not more than three (3) members shall be members of the same political party.

(4) *Quorum.* Three (3) members shall constitute a quorum.

(5) *Vacancies.* Vacancies shall be filled for the unexpired portion of the term as set forth in the Code of Ordinances.

(C) *Removal.* The Mayor may remove a Board member for the reasons set forth in Chapter VII, § 1(i) of the Charter of the City.

(D) *Grievances and Appeals.* Said Appeals Board shall hear and determine any grievance or appeal to a Dismissal, Demotion or Suspension of any non-bargaining unit Classified Employee.

(E) *Procedural Rules.* The Appeals Board shall adopt rules of procedure, which shall ensure any aggrieved non-bargaining unit Classified Employee a prompt and fair hearing and an opportunity to be heard in person or by a representative of said employee's choosing.

(F) *Appeal to the Superior Court.* The decision of the Appeals Board may be appealed to the Superior Court within ninety (90) calendar days from the date such board renders its decision.
(Ord. No. 07-05, 8-8-05)

Sec. 2-334. Department of Human Resources.

(A) *Director of Human Resources.* The management of the department shall be vested in the Director, who shall be responsible for the efficiency, discipline and good conduct of the department, in accordance with § 5(e)(1) of Chapter VIII of the Charter of the City. The Director may assign such responsibilities to designees at said Director's sole discretion.

(1) *Appointment.* The Director shall be a qualified person appointed by the Mayor as set forth in § 5(e)(1) of Chapter VIII of the Charter of the City. The Director shall be a member of the Classified Service.

(2) *Duties of the Director.* The duties of the Director are as set forth in the Charter of the City and may be further defined by ordinance.

(B) *Records and Reports of Personnel Transactions.* All appointments, separations and other personnel transactions must be made on forms as designated by the Director.

(1) *Records of the Department of Human Resources.* Personnel files, with the exception of those records deemed confidential by the Connecticut General Statutes shall be public records and shall be open to public inspection during office hours at reasonable times and in accordance with such procedures as the Director may prescribe. The Director shall maintain records necessary to the proper administration of the personnel system.

(2) *Destruction of Records.* They may only be destroyed in accordance with Connecticut General Statutes.

(3) *Annual and Other Reports.* A regular annual report of the activities of the Department of Human Resources shall be submitted to the Mayor by the Director. The Director shall submit such other reports as may be required by the Mayor.

(4) *Attendance Records.* Each department shall prepare and submit regular attendance reports of all employees, as required by the Director.
(Ord. No. 07-05, 8-8-05)

Sec. 2-335. Regulatory and Rule-Making Powers.

Administrative regulations recommended by the Director, proposed by the Mayor and adopted by the Court of Common Council, including additions, modifications or changes, shall take effect in accordance with § 2-1 and § 2-2 of the Code of Ordinances.
(Ord. No. 07-05, 8-8-05)

Sec. 2-336. Labor Relations.

In accordance with Chapter VIII, § 5(e) of the Charter of the City, the Department of Human Resources shall be responsible for the administration of the labor relations program. The Director may make a request to the Mayor for the retention of outside counsel to assist in the labor

relations program. Selection of outside counsel shall be subject to the approval of the Corporation Counsel.
(Ord. No. 07-05, 8-8-05)

Secs. 2-337—2-339. Reserved.

DIVISION 3. UNCLASSIFIED AND CLASSIFIED SERVICE

Sec. 2-340. Unclassified and Classified Service.

Pursuant to the Charter of the City, the employees of the City shall be divided into the Unclassified Service and the Classified Service.
(Ord. No. 07-05, 8-8-05)

Sec. 2-341. Unclassified Service.

The Unclassified Service is defined exclusively in accordance with Chapter VIII, § 5(e)(3) of the Charter of the City.
(Ord. No. 07-05, 8-8-05)

Sec. 2-342. Classified Service.

All positions unless specifically placed in the Unclassified Service by the Charter, Chapter VIII, § 5(e)(3).
(Ord. No. 07-05, 8-8-05)

Sec. 2-343. Classification Plan.

(A) *The Plan.* The Mayor shall propose any revisions to the classification plan as appropriate and as recommended by the Director. Such revisions shall take effect upon approval by the Court of Common Council.

(B) *Development and Review of Job Descriptions and Qualifications.* The Director is authorized to develop and review the following:

(1) Job descriptions

(2) Job qualifications

(3) Revisions to the classification plan

The Director shall conduct a review when necessary and practical, and propose modifications accordingly.

The preparation, maintenance and revision of the classification plan for all positions in the Classified Service shall be based upon similarity of duties and responsibilities, so that the same qualifications may reasonably be required and the same schedule of pay may be equitably applied to all positions in the same Class.

(C) *Administration of Plan.* Revisions to Class Specifications and reallocations within the approved classification plan will be made in the following manner:

(1) *Review by the Director.* The Director shall review the duties and responsibilities of each new position as it is created, and on the basis of this review allocate the position to a Class appropriate to the duties.

(2) *New or Changed position* Whenever a new position is created or a change is made in an existing position, such changes will be immediately reported to the Director. If any change is necessary, the position will be placed in the appropriate Class.

(a) *Vacancies.* Each time a vacancy occurs, a preliminary position analysis form shall be completed by the Appointing Authority and submitted to the Director for a review of the Allocation of the position. The Director may waive this requirement in cases where it has been determined by the Director that no material changes have occurred or such review has been made in the last twelve (12) months.

(b) *Departmental Reorganizations.* It shall be the responsibility of each Appointing Authority to submit to the Director new position descriptions for all affected positions each time the department (or sub-division thereof) is permanently or substantially reorganized.

(c) *Establishment of New Classes.* When a new Class is established, a Class Specification shall be written and incorporated in the existing plan. The Class title shall be added to the list of titles set forth in the classifi-

cation plan. An abolished Class shall be deleted from the classification plan.

(3) *Revisions of Classifications.* The classification plan may be revised as conditions require. Such revision may consist of combining, abolishing or creating new classes and any such action shall be effective when recommended by the Mayor and approved by the Court of Common Council, if necessary.

(4) *Employee Request for Review.* A Classified Employee may request a review of the employee's position at any time provided no review has been made of such position during the previous twenty-four (24) months. The Director shall prepare guidelines governing the review process.

(D) *Re-allocation of positions.* A Classified Employee who is occupying a position re-allocated to a different Class shall continue in the position only if he/she is eligible for, and is actually appointed to the position in accordance with the Article governing Promotion Transfer or Demotion. Any Classified Employee whose position is re-allocated may compete in any examination held to fill the re-allocated position.

When, after written request of a Classified Employee and recommendation of the Appointing Authority, it appears that the employee develops a position warranting a new or different Class, the Director shall, after investigation, make a recommendation to the Chief Operating Officer, who shall direct that the incumbent either be given status in the new Class without promotional examination or that the best interests of the service will be served by conducting a competitive promotional examination for the position.

(E) *Class Titles.* The Class titles shall be the official titles designating the various classifications and shall be used to designate such positions in all official records, vouchers, payrolls, and communications concerning personnel. No person shall be appointed to, or employed in, a position under a Class title which has not been recommended by the Director and approved by the Mayor as appropriate to the duties performed.
(Ord. No. 07-05, 8-8-05)

Sec. 2-344. Prohibited Conduct.

No person shall willfully or corruptly make any false statement, certification, mark, rating or report in regard to any test, certification, Promotion, reduction, removal or appointment held or made under the provisions of the Charter of the City or this Code, or in any manner commit or attempt to commit any fraud preventing the impartial execution thereof or of the rules and regulations made in accordance therewith. No person shall either directly or indirectly pay, render or give any money, service or other valuable thing to any person for or on account of, or in connection with any test, appointment, Promotion, reduction or removal in which he/she is concerned.
(Ord. No. 07-05, 8-8-05)

Sec. 2-345. Fire Cadet Training Academy Program and curriculum established.

(A) There is hereby established a Civil Service Process for Fire Cadets to become eligible for the position of Firefighter. A Fire Cadet Training Academy Program and Curriculum is hereby authorized in the Fire Department for City residents age sixteen (16) years through age twenty-four (24) for purposes of preparing the Cadet for the position of Firefighter in the Hartford Fire Department.

(B) Fire Cadets must successfully complete the Fire Cadet Training Academy Program and Curriculum offered by the Hartford Fire Department Training Academy as established and approved by the Human Resources Director and Fire Chief.

(C) Fire Cadets who reach the age of eighteen (18), possess a minimum of six (6) months of continuous Fire Cadet Program experience and have successfully completed the Fire Cadet Academy Program Curriculum will be qualified to participate in the civil services examination process outlined below for the position of Firefighter:

(1) A copy of the certification of completion from the Fire Cadet Training Academy Program and Curriculum must be pro-

vided to the Human Resources Department for each Fire Cadet who successfully completes the program.

(2) Fire Cadets must also successfully complete the following components of the Firefighter Civil Service Examination Process:

(i) Physical agility

(ii) Background check

(iii) Medical examination

(iv) Fire Chief's interview

(D) Fire Cadets who successfully complete all the of the above testing components will be eligible to be placed on a Register of Eligibles for the position of Firefighter.

(E) When there is a vacancy and funding is available to hire firefighters, the Fire Cadet(s) on the Firefighter Promotional Eligible List shall be considered prior to the Firefighter Open Competitive List. The Fire Chief may appoint any of the Cadets involved in the interview process. Such list will expire in accordance with Section 2-376(3) of the City's Human Resources Ordinance.
(Ord. No. 15-11, 5-9-11; Ord. No. 14-17, 5-8-17)

Sec. 2-346. Credit check prohibited.

(a) The City of Hartford shall not perform a credit check as part of the application process for any applicant seeking a classified or non-classified position or any employee seeking a promotion unless otherwise required by State or Federal law.

(b) Credit check means an inquiry into an individual's credit score, credit account balances, payment history, savings or checking account balances or savings or checking account numbers.
(Ord. No. 16-11, 5-9-11)

Sec. 2-347. Police Cadet Training Academy Program and curriculum established.

(A) There is hereby established a Civil Service Process for Police Cadets to become eligible for the position of Police Officer. A Police Cadet Training Academy Program and Curriculum is hereby authorized in the Police Department for City residents age eighteen (18) years through age twenty-four (24) for purposes of preparing the Cadet for the position of Police Officer in the Hartford Police Department.

(B) Police Cadets must successfully complete the Police Cadet Training Academy Program and Curriculum offered by the Hartford Police Department Training Academy as established and approved by the Human Resources Director and Police Chief.

(C) Police Cadets who reach the age of twenty-one (21), possess a minimum of six (6) months of continuous Police Cadets Program experience and have successfully completed the Police Cadet Academy Program Curriculum will be qualified to participate in the civil services examination process outlined below for the position of Police Officer;

(1) A copy of the certification of completion from the Police Cadet Training Academy Program and Curriculum must be provided to the Human Resources Department for each Police Cadet who successfully completes the program.

(2) Police Cadets must also successfully complete the following components of the Police Officer Civil Service Examination Process:

(i) The Oral Examination.

(ii) Physical Agility.

(iii) Background Check.

(iv) Medical Examination.

(D) Police Cadets who successfully complete all of the above testing components will be eligible to be placed on a Register of Promotional Eligibles for the position of Police Officer.

(E) Except as provided in Section 2-377(B) when there is a vacancy and funding is available to hire Police Officers, the Police Cadet(s) on the Police Officer Promotional Eligible List shall be considered and hired prior to the Police Officer Open Competitive list. The Police Chief shall appoint any of the Cadets involved in the interview

process. Such list will expire in accordance with Section 2-377(3) of the City Human Resources Ordinance.
(Ord. No. 14-14, 8-11-14)

Secs. 2-348—2-349. Reserved.

DIVISION 4. THE PAY PLAN

Sec. 2-350. Pay Plan.

(A) *Development.* The Mayor is authorized to recommend a pay plan for all employees not covered by a collective bargaining agreement as proposed by the Director.

Said plan shall constitute the City's Pay Plan for positions not covered by a collective bargaining agreement for the ensuing fiscal year and thereafter until a revised pay plan shall be adopted by the Court of Common Council.

(B) *Preparation.* The Director shall be responsible for the development and revision, if necessary, of a uniform and equitable pay plan which shall consist of minimum and maximum rates of pay for each Class of position and such pay steps as considered necessary. Salary ranges shall be related to the classification plan, and shall be determined with regard to ranges of pay for other classes, required qualifications, prevailing rates of pay for comparable work in other public and private employment in the area, cost of living factors, maintenance or other benefits received by employees, the financial policy of the City, and other economic considerations.

(C) *Adoption.* Any revisions to the existing pay plan shall be prepared by the Director and submitted by the Mayor to the Court of Common Council for adoption. After adoption or amendment by the Council, no position shall be assigned a salary higher than the maximum or lower than the minimum salary provided for the Class of position unless the salary schedule for the Class is amended.

(D) *Amendments.* Amendments to the pay plan will be submitted by the Mayor to the Court of Common Council when changes in responsibilities of classes, cost of living, recruiting experience of the Department of Human Resources, prevailing rates of pay or other pertinent factors warrant such action.

(E) *Status of Pay Plan In Effect at Time of Passage.* The pay plan in force at the effective date of this Article shall remain in effect until amended.

The maximum salary of each of the existing non-union and unclassified positions of the City of Hartford will be increased by one and one-half percent (1.5%) effective the first pay period in July 2021.

All active, full-time and part-time employees occupying non-union classified or unclassified positions will receive a one and one-half (1.5%) general wage increase effective the first pay period in July 2021.

The maximum salary of each of the existing non-union and unclassified positions of the City of Hartford will be increased by two percent (2.0%) effective the first pay period in January 2023.

All active, full-time and part-time employees occupying non-union classified or unclassified positions will receive a two percent (2.0%) general wage increase effective the first pay period in January 2023.

The maximum salary of each of the existing non-union and unclassified positions of the City of Hartford will be increased by three percent (3.0%) effective the first pay period in January 2025.

All active, full-time and part-time employees occupying non-union classified or unclassified positions will receive a three (3.0%) general wage increase effective the first pay period in January 2025.
(Ord. No. 07-05, 8-8-05; Ord. No. 11-19, 6-24-19; Ord. of 9-13-21; Ord. of 11-28-22(3); Ord. of 1-13-25)

Editor's note—The pay plan for non-union and unclassified employees, referred to § 2-350 above, was amended by Ord. No. 23-06, adopted Feb. 14, 2006. The provisions of said ordinance are not included within this Code, but may be found on file in the office of the city clerk.

Sec. 2-351. Administrative Salary Adjustments.

(A) *Appointment Rate.* The base rate of pay for initial employment shall normally be paid upon appointment to the Class. Appointment rates above the base rate may be paid if the Appointing Authority submits to the Director a written request that a prospective employee is entitled to a higher rate. Justification for approval will be limited to recognition of extraordinary qualifications of an Eligible or lack of available Eligibles at the base rate. If a former Classified Employee is re-employed in a Class comparable to the one in which he/she was previously employed, the Appointing Authority may, with the approval of the Director, make an appointment at the applicable rate of pay which the Classified Employee had been receiving at the termination of such prior City service. In the event that a new employee is appointed at a higher rate because of a lack of available Eligibles, the pay of present Classified Employees of the Class may be advanced upon recommendation of the Appointing Authority, with the approval of the Director.

(B) *Increments.* Salary increments recognizing growth shall normally be provided on the anniversary date as follows:

(1) *Appointment on or before the 15th of the Month.* Employees appointed on or before the 15th of the month and who have displayed satisfactory performance shall be paid approved growth increments effective on the first Sunday of that month.

(2) *Appointment following the 15th of the Month.* Employees appointed after the 15th of the month and who have displayed normal growth shall receive the approved growth increment on the first Sunday of the succeeding month.

(3) *Exception.* Employees shall be granted growth increments unless the Appointing Authority substantiates, in writing, to the Director that the employee has not demonstrated the growth normally expected for the Class. Such recommendations shall be based upon standards of performance as indicated by service ratings or other pertinent data. Such exceptions must be approved by the Director.

(4) *Frequency of Increments.* Growth increments shall not be more often than as set forth in the pay plan.

(5) *Salary Increments.* Salary increments for Department Heads/Appointing Authorities and Deputy Department Heads shall be at the discretion of the Mayor.

(C) *Miscellaneous.* Only those increments for exceptional service contained in collective bargaining agreements shall be authorized. The Director shall report all exceptional service increment adjustments to the Council within ten (10) days of the effective date of the grant or adjustment. College incentive pay and retroactive pay for Classified and Unclassified Employees shall be established by guidelines set forth by the Director.

(1) Any increment for exceptional service shall only be paid if the recipient is an active employee of the City of Hartford and the employee is not on vacation, compensatory time, or sick leave at the time of the award.

(2) The Court of Common Council shall review and approve the guidelines set forth by the Director for exceptional service increments every year when approving the City Budget. Every Department and Office of the City of Hartford must clearly state the funds set aside in its Department or Office budget for the awarding of exceptional service increments.

(D) *Total Remuneration.* Any salary rate established for an employee shall represent the total remuneration, not including reimbursement for official travel. Except as otherwise provided in this Article, or other City ordinances, no employee shall receive pay from the City in addition to the salary authorized under the schedules provided in the pay plan for, services rendered by the employee either in the discharge of the individual's ordinary duties or any additional duties which may be imposed upon the employee or which the individual may have undertaken or volunteered to perform. No reward, gift, or other form of remuneration in addition to regular compensation shall be received from any source by employees for the performance of their duties. If a reward, gift, or other form of remuneration is made available to any employee, it shall be credited to a designated employees' fund.

(E) *Longevity Payment.* The Mayor, upon recommendation of the Director shall propose a resolution establishing longevity pay for all Classified and Unclassified Employees of the City. Any revision to the existing longevity payment plan shall be prepared by the Director and submitted by the Mayor to the Court of Common Council for adoption.

(F) *Pay for Part-Time Work.* Employees working less than a regular workweek shall be paid the equivalent hourly rate of pay established for the Class. The payment of a separate salary from two (2) or more departments for duties performed in each is permissible provided: (1) The employee may not be paid twice for the same hours of work; (2) the employee may not hold two (2) full-time jobs in the Classified Service; and, (3) Any Non-Exempt Employee, regardless of the number of departments in which he/she works, must be paid time and one-half for all hours worked in excess of forty (40) hours in a week.

(G) *Pay Rates.*

(1) *Transfer.* Employees transferred from one position to another position in the same or different department shall retain the same rate of pay.

(2) *Promotion or Assignment to Higher Class.* Employees promoted or assigned to a position in a higher Class shall receive an increase in pay in accordance with guidelines established by the Director.

(3) *No Payment.* No such payment will be made: (1) When it is the normal responsibility of an employee to act for or perform the functions of an employee in another Class because of absence (for example, when the Class Specification so provides, or when as assistant normally acts for a higher-level supervisor); (2) when it is not practical or possible for an employee to perform the full job of a higher Class for a brief, temporary period of time; (3) for uniformed and investigatory fire and police classes.

(4) *Exclusions.* These requirements will normally exclude assignments outside of certified bargaining units, since such assignments involve substantial technical, professional or supervisory skills which cannot normally be fully exercised on short-term assignments.

(5) *Temporary Assignments.* When assignments are excluded by the above requirements, employees may be given temporary appointments to the higher Class when the assignment exceeds three (3) weeks and when the full job can be performed by an employee serving in a temporary capacity.

For purposes of this rule, assignment to a higher Class means that an employee has been assigned to a Class with a higher pay grade either because of the absence of an employee who is classified in the higher Class or because operating requirements present the need for such duties to be performed for a period of time. An employee will not be assigned to a higher Class unless said employee possesses the minimum qualification to perform, the duties of the higher Class; provided, however, that this is not intended to preclude training assignments.

(6) *Prohibition of Rotation.* Employees shall not be rotated on assignments for the purpose of avoiding payments at the higher rates.

(7) *Inequity Adjustments.* Where Promotion involving Classified Employees results in inequities in pay, such inequities may be adjusted by the Director following notification by the Appointing Authority.

(H) *Pay Rates in Demotion.* Employees demoted in salary shall be reduced one (1) growth step in the salary range of the Class. An employee demoted from one Class to another shall be reduced in salary by an amount equivalent to at least one (1) full growth step in the range from which he/she has been demoted, except as provided below:

(1) *Voluntary Demotions.* If the employee's salary is higher than the maximum of the Class, he/she shall be placed at the maximum salary for the Class to which he/she is demoted. If the employee's salary is less than the maximum for the Class, said employee shall be placed at the step nearest to the present salary rate, whether higher or lower.

(2) *Demotion as a Result of Physical or Mental Incapacity.* When an employee has become physically or mentally incapable of performing the essential duties of the individual's position, the Appointing Authority shall recommend to the Director that the employee be transferred to another position, if available, without loss of pay. The Demotion shall become effective upon approval by the Director.

When an employee retains a rate above the maximum for the Class to which said individual was demoted, the employee shall not receive any further increases until the maximum for the lower Class exceeds the individual's retained rate.

(I) *Overtime.*

(1) *Authorization.* An employee shall be compensated for overtime only when the overtime work is properly authorized by the Appointing Authority.

(a) *Non-Exempt Employees.* All Non-Exempt Employees must be paid for

overtime work that is properly authorized and that exceeds the normal workweek. Such employees shall receive time and one-half for all hours exceeding forty (40) hours in a week and double time for all work on holidays established in these Articles. Such employees may not be allowed to initiate overtime work unless such overtime is properly authorized.

(2) *Phase-Out of Compensatory Time.* The Director shall propose guidelines for the phase-out of any accumulated compensatory time for Classified and Unclassified Employees to be used after the adoption of this Article.

(3) *Payment.*

(a) Non-unit Exempt Employees in the following series shall be paid an additional five (5) percent of the base rate of the Class on a continuing basis as "additional compensation in lieu of overtime pay" and shall work a flexible schedule in accordance with the provisions of paragraph (5), below: Professional; Engineering and Architectural at the level of Civil Engineer I and above; Recreation and Related; Nursing and Medical; and Public Safety Series at the level of Line Foreperson and above.

(b) Non-unit Exempt Employees in the following series shall be paid an additional five (5) percent of the base rate of the Class on a continuing basis as "additional compensation in lieu of premium overtime pay" and shall receive straight time for all overtime, except that such employees shall receive double time for all work on holidays authorized under this Article.

Engineering and architectural, below the level of Civil Engineer I; Inspectional; Custodial and Related; Equipment Operations; and Skilled Trades; provided, however, that principal supervisors in the Equipment Operations Series and the Skilled Trades Series shall be compensated as provided in subparagraph (c) below.

In addition, non-unit Exempt Employees in the Public Safety Series classified as Crime Laboratory Technician shall be paid an additional five (5) percent of the base rate of the Class on a continuing basis as "additional compensation in lieu of premium overtime pay" and shall receive straight time for all overtime.

(c) Principal supervisors in the Equipment Operations Series and in the Skilled Trades Series shall be paid an additional five (5) percent of the base rate of the Class on a continuing basis as "additional compensation in lieu of overtime pay" and shall work a flexible schedule in accordance with the provisions of paragraph (5), below; provided, however, that any such employees required to work overtime under the following conditions may elect to be compensated at straight time for such overtime and double time when such overtime is worked on holidays authorized under this Article: (1) when required to work overtime on snow and ice operations; and (2) when required to work overtime to supervise a full staff operation on a holiday; or on a weekend following a holiday; or on a weekend following a severe snow or other severe weather conditions.

The term "principal supervisors" includes employees in the Skilled Trades Series classified as Building Maintenance Supervisor, Superintendent of City Buildings, Master Mechanic and Equipment Superintendent; employees in the Equipment Operations Series classified as Street Cleaning Supervi-

sor, Park Maintenance Supervisor, Sanitation Supervisor, Records and Services Supervisor, and General Foreperson, Streets; and any other employees who may hold positions with maximum salary rates equal to or higher than any of the above classes in their respective series.

(4) *Approval.* The Director, with the approval of the Chief Operating Officer, may authorize overtime at straight time, premium rates or time off for any part of the overtime required in specific classes or positions based on evidence that a substantial inequity or special circumstance exists.

(5) *Flexible Schedule.*

(a) Department Heads/Appointing Authorities, Deputy Department Heads and other designated employees as stated in (3) above work on a flexible schedule. Such employees are responsible for fulfilling the duties of their positions regardless of the hours worked. It is the responsibility of the Appointing Authority or Deputy Department Heads to ensure that such personnel work at least the normal hours within the workweek.

(b) The above employees in subparagraph (a) shall work on a flexible schedule normally between the core hours of 8:00 a.m. and 6:00 p.m. with the approval of the Appointing Authority. Such employees are responsible for fulfilling the duties of their positions regardless of the hours of work or the schedule of hours that may be necessary.

(c) The staff of the Court of Common Council and the Mayor may, by direction of the Appointing Authority, be permitted to work a flexible schedule during the course of a forty-hour work week.

(Ord. No. 07-05, 8-8-05; Ord. No. 03-13, 4-22-13)

Sec. 2-352. Compensation for nonunion and unclassified executive service classification.

(A) That there be a new nonunion and unclassified executive service classification and compensation plan that is authorized under City Charter Chapters IV, V, and VII and new nonunion compensation plan for specified administrative series and public safety series classifications.

(B) The compensation plans have been developed to expand the salary structure and ranges to accommodate future increments that may be necessary to recognize growth, recruit and/or retain qualified individual for these positions.

(C) The nonunion and unclassified executive service classification and compensation plan have been expanded to include three (3) additional classifications: Chief information officer, director of emergency services and telecommunications and director of families, children, youth, and recreation.

(D) Effective January 1, 2020, and in accordance with the provisions of Chapter IV, Sec. 7(a) of the Charter, the salary of the City Treasurer shall be set at $156,800 annually.
(Ord. No. 19-08, 7-14-08; Ord. No. 17-11, 5-23-11; Ord. No. 12-19, 6-24-19)

Secs. 2-353—2-359. Reserved.

DIVISION 5. GRANT FUNDED POSITIONS

Sec. 2-360. Grant Funded positions.

Following consultation with the Mayor, the Director shall approve the salaries for all Classified or Unclassified Employees of the City directly funded by a grant, unless otherwise governed by a collective bargaining agreement. The Director shall, to the extent it is feasible, ensure reasonable salary equity between grant and non-grant funded positions.
(Ord. No. 07-05, 8-8-05)

Secs. 2-361—2-369. Reserved.

DIVISION 6. HIRING AND PROMOTION

Sec. 2-370. Method of Filling Vacancies.

(A) *Regular and Temporary Full Time, Part Time and Seasonal positions.* Each position in the Classified Service shall be designated as either, regular or temporary and as either full time, part time or seasonal as defined in this Article. Such designation shall be used in all official requisitions or other communications concerning employment, Promotion, Demotion, Transfer, Suspension, Lay-Off or Dismissal addressed to the Department of Human Resources.

(1) No employee shall be permanently assigned to a Temporary position.

(2) Employees may be assigned to Temporary positions where such assignment involves neither a Promotion nor a Demotion. Any employee so assigned shall return to the individual's former position when the term of the Temporary position expires.

(3) In all cases other than temporary assignment to a higher Class or a Temporary position, the provisions of this Article governing examinations and certifications shall apply.

(4) No Temporary Employee appointed to a Temporary position shall be exempted from the provisions of § 2-379(A).

(B) *Transfers.* Employees may request to be transferred to a position in the same Class in another department by notifying the Director in writing, who shall maintain lists of such employees. The procedure for transfer of such employees shall be set forth by the Director.

(C) *Temporary Appointments to positions.* When a position, or a Temporary position, as defined in this Article is established and cannot be filled by the assignment of an employee or from an existing employment list, the Director may authorize the appointment of a Temporary Employee. Such Temporary Employee shall not be considered eligible for any of the benefits provided for in this Article for other employees in the Classified Service. Appointments to Temporary positions will expire automatically at the end of six (6) months and shall not be subject to renewal.

(D) *Retired Employee Classified Employees.* Retired Classified or Unclassified Employees of the City shall only be eligible to return to City employment in a temporary classified position for a maximum of six (6) months in a fiscal year. The provisions of this subsection shall not apply to individuals who are employees or appointees at the time of the effective date of this subsection.

(E) *Retired Employees for Certain Unclassified Positions.* In the event that a retired classified or unclassified employee returns to City employment in a position enumerated in the Charter of the City of Hartford, Chapter V, Section 2(d), the retiree shall be entitled to annual compensation in an amount calculated as follows: (the amount of the annual base salary) minus (the amount of the retiree's annual pension benefit), provided however, that the annual compensation shall not be less than fifty (50) percent of the annual base salary.
(Ord. No. 07-05, 8-8-05; Ord. No. 20-13, 12-9-13)

Editor's note—It should be noted that subsection (E) shall take effect on January 1, 2016.

Sec. 2-371. Rejection of Candidates and Applications.

The Director may reject any application which is deficient in any of the requirements as specified in the job announcement for the position and/or does not satisfactorily complete the prescribed application forms. Rejection of candidates and applications shall be established by guidelines set forth by the Director.
(Ord. No. 07-05, 8-8-05)

Sec. 2-372. Qualifications and Competitive Examinations for Entry Level and Promotional Appointments.

(A) *Entry Level and Promotional Appointments.* The Director is authorized to establish qualifications and competitive examinations for entry level and promotional appointments. All appointments and Promotions in the Classified

Service of the City shall be made according to merit to be determined so far as practicable by competitive examination. Examinations shall relate to those matters which will test the capacity of the candidates to perform efficiently the duties of the classes for which the examinations are held.

(1) *Considerations Pertaining to Examinations.* Examinations may be assembled or unassembled and may include written, oral, physical, or performance tests or any combination of these. They may take into consideration reasonable factors such as education, experience, aptitude, knowledge, character, training, physical fitness, or any other qualifications which in the judgment of the Director enter into the determination of the relative suitability of applicants. Any one (1) of these factors may be the sole consideration. In all examinations the identity of applicants will be deemed confidential in accordance with the Connecticut General Statutes. The Director may require applicants to submit proof of their age, educational qualifications, and military service at the time of the examination. In accordance with the requirements of the law, the Director will keep a record of this information.

(2) *Original Appointment.* Tests for original appointment in the Classified Service shall be open competitive tests which shall be open to all applicants who meet the required qualifications determined by the Director with regard to residence, experience, character, age, education, physical condition, and such other factors as may be held to be related to the ability of the candidate to perform the essential duties of the position.

(3) *Promotional Appointment.* Advancement within the service shall be through promotional tests which shall be open to all employees who meet the required qualifications and who are serving in an appropriate Class as determined by the Director. Promotional examination may be limited to a single department or a subdivision thereof.

While vacancies in higher positions shall, as far as practicable, be filled by Promotion from lower positions, the Director may authorize that such positions shall be filled by competitive tests open to all qualified persons.

(4) *Special Examination Procedure.* For positions involving skilled, semi-skilled or unskilled labor, attendant, custodial, seasonal or trainee, when the character or place of work makes it impracticable to supply the needs of the service by appointments made in accordance with the procedures prescribed in other provisions of the Charter, the Director may adopt or authorize the use of such other procedures, qualifications and residence requirements as he/she determines to be appropriate in order to meet the needs of the service, while ensuring the selection of such employees on the basis of merit.

(Ord. No. 07-05, 8-8-05)

Sec. 2-373. Method of Rating.

(A) *Policies Pertaining to Competitive Examinations.* In all examinations, the minimum rating by which eligibility may be achieved shall be established by the Director. Such minimum rating shall also apply to the ratings of any part of the test. Candidates shall be required to attain, at least a minimum rating on each part of the test in order to receive a passing grade or to be rated on the remaining parts of the test, except that the Director may waive this requirement if the Director determines, in his or her sole discretion, that doing so is necessary to expedite the testing process for a given examination, provided that any candidate who fails any part of said examination will be disqualified even where the candidate was permitted to take other parts of the examination. The final earned rating of each candidate shall be determined by averaging the earned rating on each part of the examination in accordance with the weights set forth in the job posting for each part prior to the date of the examination.

(B) *Rating Training and Experience.* Where a rating of experience and training forms a part or all of the examination, the Director shall develop such procedures for the evaluation of these factors as will serve to assist in the selection of the best-qualified candidates. These procedures shall give due regard to the quality, recency and the amount of experience and to the pertinency and amount of training. The Director may verify statements contained in the application of an applicant and secure further information concerning the candidate's character and suitability. If, after a list is established, information which materially affects the rating of experience and training, character, or suitability of the applicant is discovered, the Director shall make a new rating of the applicant's examination and make the necessary adjustments in the lists.
(Ord. No. 07-05, 8-8-05; Ord. of 6-12-23)

Sec. 2-374. Preference Points.

(A) *Veterans.* As set forth in Chapter VIII, § 5(e)(5) of the Charter of the City there shall be credit allowances for initial appointments for (A) any person who has served in time of war in the army, navy, marine corps, coast guard or air force of the United States and has been honorably discharged therefrom; and, (B) any employee in the Classified Service whose employment has been interrupted in time of war in the army, navy, marine corps, coast guard or air force of the United States and has been honorably discharged therefrom.

(B) *Hartford Residents.* In any Open Competitive Examination for Police Officer Vacancies, a Hartford resident shall have ten (10) percent added to their passing grade. In all other Open Competitive recruitments, a candidate's status as a Hartford Resident will be conspicuously noted on the certified list for due consideration by the Appointing Authority.

Proof of eligibility for Hartford resident preference shall be provided by the applicant in a manner prescribed by the Director.
(Ord. No. 07-05, 8-8-05; Ord. of 6-12-23)

Sec. 2-375. Examination Results.

(A) Each person who takes an examination shall be given notice as to whether or not he/she qualified on such examination and as to the individual's relative standing on the list, when applicable, or of the failure to attain a place on the list.

(1) Each person shall be entitled to review their rating and examination papers, but examination papers shall not be open to the general public.

(2) Such review shall be permitted only during regular business hours at the Department of Human Resources and under such conditions as the Director may prescribe.

(Ord. No. 07-05, 8-8-05; Ord. of 6-12-23)

Sec. 2-376. Request to Review Examination Results.

Each person who takes an examination may make a request to the Director for a review of their rating(s) upon presentation of proof that the individual's examination has been incorrectly rated. Any request for a review shall occur within ten (10) days after the mailing of the examination results.
(Ord. No. 07-05, 8-8-05)

Sec. 2-377. Eligible Lists.

(A) *Promotional and Open Competitive Employment Lists.* The Director shall establish and maintain such promotional and open competitive employment lists for the various classes of positions, as the Director deems necessary to meet the needs of the service. On each Police Officer, Firefighter, and promotional employment list, the Eligibles shall be ranked in order of their ratings earned in examinations given for the purpose of establishing such list.

(1) *Order of Names on Lists.*

(a) Names of Eligibles for Police Officer, Firefighter and promotional vacancies shall be placed on the lists in the order of their final earned rating including any credit allowance permitted by the Charter or this Article. In the case of ties, Eligibles will be listed in alphabetical order.

(b) Eligibles for all other Open Competitive employment lists for which the

examination consists solely of training and experience will not be ranked, but rather listed in alphabetical order, and candidates will not receive a final earned rating.

(2) *Availability of Eligibles.* It shall be the responsibility of Eligibles to notify the Director, in writing, of any change of address or other change affecting availability for employment. However, the Director may use appropriate methods to determine at any time the availability of Eligibles. Whenever an Eligible submits a written statement restricting the conditions under which said Eligible will be available for employment, the individual's name may be withheld from all certified lists, which do not meet the conditions specified. An Eligible may file a new written statement at any time within the duration of an employment list modifying any prior statement as to conditions under which he/she will be available for employment.

(3) *Duration of Lists.* For all examinations names shall remain on lists as follows:

(a) *Open Competitive Lists.* A period normally six (6) months from the date originally established by the Director, except that names on employment lists for the positions of Police Officer and Firefighter will normally remain for a period of one (1) year from the date originally established by the Director; and,

(b) *Promotional Employment Lists.* A period normally two (2) years from the date originally established by the Director.

(4) *Extending the Duration of Lists.* Notwithstanding the foregoing, prior to the expiration of the list, the Director may extend the time during which such names remain in force when the needs of the City service so require. In no event shall the total period during which names may remain on an employment list exceed three (3) years from the date on which the names were originally placed thereon.

(a) *Written Order of Extension.* A directive extending the period during which names are in force shall contain a statement of the reasons for the extension and the order shall be entered in the records of the Human Resources Department.

(5) *Consolidation of Lists.* Two (2) or more employment lists for the same Class of position may be consolidated by the Director in a manner fair to Eligibles on both lists. Candidates will be certified to appointing authorities in the manner described in section 2-378 of this Article.

(6) *Removal from Employment List.* The name of any person appearing on an employment list may be removed by the Director if so requested by the Eligible, in writing that his/her name be removed, or if said Eligible cannot be located by postal authorities or other means of ordinary communication within five (5) days following the date of notification. The name of any Eligible may also be removed if the name has been certified for appointment three (3) separate times and has not been appointed, or if the Eligible has waived appointment twice in the same Class of position. Any cause specified in this Article for the rejection of applicants may likewise be cause for the removal of the name of an Eligible from the Eligible List on which it appears.

(B) *Re-Employment Lists.*

(1) Classified Employees with a satisfactory employment record who are separated from the service through no fault of their own may be placed on appropriate re-employment lists in the order to be determined by the Director.

(2) Employees, with a satisfactory record of service, who resign their positions may, on their written request, withdraw such resignation within one (1) year from the

effective date thereof and be placed on appropriate re-employment list(s) in the order to be determined by the Director.

(3) The eligibility of all candidates on re-employment lists will expire two (2) years from the date on which they became entitled to the re-employment rights.

(4) The selection from a re-employment list should be at the discretion of the Appointing Authority.

(C) *Employment Lists.* When the Director determines that there are no eligible internal candidates to consider for a position, the Director may fill the position from a higher-level list within the classification series.
(Ord. No. 07-05, 8-8-05; Ord. of 6-12-23)

Sec. 2-378. Certification of Eligible Lists.

(A) *Request for Certification.* When a vacancy occurs, the Appointing Authority will submit a personnel requisition form prescribed by the Director, the pertinent facts relative to the duties, responsibilities, and required qualifications of the position which is to be filled. If the vacancy is approved to be filled and a list of Eligibles is available, certification will be made in the manner herein prescribed.

(B) *Certification of Eligibles.* The Director shall establish a certification list of Eligibles as follows:

(1) The following employment lists shall be used by the Director in the order indicated: (a) Re-employment; (b) Promotion; (c) Open Competitive.

(2) *Open Competitive Vacancies.* Except as provided in subsection (B)(3) of this section, the Director will certify to the Appointing Authority a list containing the names of all applicants deemed qualified for the position, noting Hartford resident or veteran status. The Appointing Authority must interview at least two (2) more individuals than the number of vacancies sought to be filled from the certified list, and must include all veterans and all Hartford residents. Notwithstanding the foregoing, for any posting where Hartford residency is required at the time of application, the Appointing Authority must interview at least two (2) more individuals than the number of vacancies sought to be filled from the certified list, and must include all veterans.

(3) *Open Competitive Police Officer Vacancies.* For vacancies in the classification of Police Officer, the Director shall certify to the Appointing Authority a list containing the names, veteran status, and Hartford-resident status of all individuals who pass all components of the open competitive examination. The Appointing Authority shall give preference in hiring to Hartford residents and veterans on the certified list.

(4) *Promotional Vacancies.* In the filling of these vacancies, the names certified to the Appointing Authority shall be those of the three (3) persons standing highest on the appropriate list. If there is more than one (1) vacancy, the Director will certify two (2) names more than the number of existing vacancies. The Appointing Authority must interview all promotional candidates.

(5) In circumstances for which there are critical recruitment needs, the Director may waive the rules for the certification of Eligibles in order to meet the needs of the service and certify the names of qualified individuals from appropriate Eligible List(s) directly to the Appointing Authority for employment consideration.

(6) If special requirements of gender, domicile, or the possession of special skills are specified by the Appointing Authority in a requisition and the Director, after investigation, determines that the facts and reasons specified are in fact conclusive as to the need for the special requirements for effective performance of the duties of the position, certification may be limited to persons on the appropriate list who meet such requirements.

(7) If there are not sufficient names on any list or combination of lists as provided in this rule to certify the number of names, specified herein, the Director may require appointment from the available Eligibles unless the Appointing Authority shall provide in writing valid reasons why such Eligibles should not be appointed.

(Ord. No. 07-05, 8-8-05; Ord. No. 12-16, 12-16-16; Ord. of 6-12-23)

Sec. 2-379. Selection of Employees.

(A) *Role of the Appointing Authority.*

(1) After interview and investigation, the Appointing Authority shall appoint any individual on the certification list.

(2) Upon making the appointment, the Appointing Authority shall immediately notify the Director of the person(s) appointed as well as the appointees involved.

(B) *Withdrawal or Removal from Certification List.* In the event a candidate withdraws or is removed by the Director pursuant to this Article, then the next highest scoring candidate(s) shall be certified, if necessary.

(Ord. No. 07-05, 8-8-05)

Sec. 2-380. Probationary Period.

(A) *General Policy.* The Probationary Period shall be regarded as an integral part of the examination process and shall be utilized by supervisors and Appointing Authorities for closely observing the employee's work, for securing the most effective adjustment to the position, and for rejecting any employee whose performance does not meet the required work standards.

(1) *Duration.* Every person certified and appointed to a position in the Classified Service shall be required to successfully complete a working test during a Probationary Period, which shall be of sufficient length to enable the Appointing Authority to observe the employee's ability to perform the essential duties pertaining to the position.

The Probationary Period shall begin immediately upon regular appointment from all open, promotional, re-employment and Transfer lists and may continue for not less than three (3) months nor more than twelve (12) months. The Probationary Period may be extended for an additional six (6) months with the approval of the Director, based upon reasons set forth in writing by the Appointing Authority. An Appointing Authority may, at any time after the minimum Probationary Period has been served and before the maximum has been reached, notify the Director, in writing on a form provided, that he/she is satisfied with the employee's performance and that the Probationary Period should end.

(B) *Evaluation of Performance.* At the end of the second month of employment during the Probationary Period, and at other times as the Appointing Authority deems the quality of service of an employee should be recorded, a probationary report form shall be prepared by the supervisor, reviewed by the Appointing Authority, and forwarded to the Director. Such reports shall give an appraisal of the employee's work, willingness and ability to perform the duties satisfactorily and observations concerning the said employee's habits and dependability.

(1) *Response by the Department Head or Appointing Authority.* At least two (2) weeks prior to the expiration of the maximum Probationary Period, the Appointing Authority or Department Head shall notify the Director, in writing, whether the services of the employee have been satisfactory and whether the employee will continue in the position.

(2) *Notice to Employee.* A copy of such notice shall be given to the employee. If the employee is not to be continued in employment, the individual will be given two (2) weeks notice that will, if necessary, continue beyond the end of the Probationary Period.

(C) *Dismissal.* At any time during the Probationary Period, the Appointing Authority or Department Head may recommend, in writ-

ing, to the Director, the removal of an employee, if in the opinion of the Appointing Authority or Department Head, the working test indicates that such employee is unable or unwilling to perform the duties of the position satisfactorily or that said employee's habits and dependability do not merit said employee's continuance in the service. Such recommendation of the Appointing Authority or Department Head and the reasons therefore, shall be, in writing, to the Director with a copy to the employee.

(1) *Approval by the Director.* No employee shall be removed from a position during his/her Probationary Period without the approval of the Director.

(2) *Appointment through Fraud or Error.* An employee who is found to have been appointed through fraud or error shall be removed within ten (10) days of notification to this effect by the Director to the Appointing Authority or Department Head.

(D) *Restoration of Dismissed Employee to Appropriate List.* If an employee is removed from a position during, or at the end of, the Probationary Period and the Director determines that the employee is suitable for appointment to another position, said employee's name may be restored to the list from which it was certified. An employee appointed from a promotional list who does not successfully complete the Probationary Period shall be reinstated in a position in the Class occupied by the employee immediately prior to his/her Promotion. If no vacancy in that Class exists at that time, then the rule governing Lay-Off shall be applied.
(Ord. No. 07-05, 8-8-05)

Sec. 2-381. Resolution.

The court of common council by substitute resolution dated January 12, 2009 resolved that the human resources department review its current civil services processes and eliminate any barriers during an interview process that may preclude applicants with criminal records from gaining employment with the City of Hartford.
(Ord. No. 17-09, 5-11-09)

Sec. 2-382. Purpose.

It is the intent and purpose of this section to assist the successful reintegration of formerly-incarcerated people back into the community by removing barriers to gainful employment after their release from prison.
(Ord. No. 17-09, 5-11-09)

Sec. 2-383. Findings.

More than six hundred fifty thousand (650,000) people are released from state and federal prisons each year and hundreds and thousands more leave local jails. Approximately one thousand two hundred (1,200) adults return to the City of Hartford from prison every year. Formerly incarcerated people represent a group of job seekers, ready to contribute and add to the work force. Lack of employment is a significant cause of recidivism; people who are employed are significantly less likely to be re-arrested. Obstacles to employment for people with criminal records and other barriers to re-entry are creating permanent members of an underclass that threatens the health of the community and undermines public safety.
(Ord. No. 17-09, 5-11-09)

Sec. 2-384. Definitions.

Applicant means any current or prospective employee or person who requests to be considered for employment by the city, not including board of education and the public schools.

Conviction means any sentence arising from a plea or verdict of guilty, including a sentence of probation or a sentence of unconditional discharge.

Direct relationship means the nature of criminal conduct for which the person was convicted has a direct and/or specific negative bearing on a person's fitness or ability to perform one (1) or more of the duties or responsibilities necessarily related to the employment sought.

Otherwise qualified means any applicant who meets all other criteria for a position or consideration for a position.
(Ord. No. 17-09, 5-11-09)

Sec. 2-385. Criminal record check standards for the City of Hartford.

(a) In connection with the employment of any person, it shall be not be permissible for the department of human resources to make any inquiry about or to take any adverse action against any person on the basis of any arrest or criminal accusation made against such person, which is not then pending against that person and which did not result in a conviction. It shall further be an unlawful discriminatory practice for a city agency or vendor to require any person to disclose or reveal any arrest or criminal accusation made against such person which is not then pending against that person and which did not result in a conviction.

(b) The criminal record check related policies and practices of the city include, but are not limited to the following:

(1) The city does not conduct a criminal record check on an applicant unless such a check is required by state or federal law or the city has made a good faith determination that the relevant position is of such sensitivity that a criminal record check is warranted.

(2) The city will review the qualifications of an applicant and determine whether an applicant is otherwise qualified.

(3) The city will not conduct a criminal record check for an applicant that is not otherwise qualified for a relevant position.

(4) The city shall make an offer of conditional employment to an applicant, notifying him/her that a criminal record check will be conducted. At this time, an applicant may submit a voluntary disclosure statement of his or her criminal record and any mitigating factors relating to said criminal record.

(5) The city makes final employment decisions based on all of the information available to the city, including the seriousness of the crime(s), the relevance of the crime(s), the number of crime(s), the age of the crime(s), and the occurrences in the life of the applicant since the crime(s). If the final decision of the city is adverse to the applicant and results in the refusal, rescission, or revocation of a position with the city then the city must notify the applicant immediately of the decision and the specific reason(s) therefore.

(6) The applicant shall have seven (7) business days, after receipt of the notice and the photocopy of the criminal record from the department of human resources, to respond by first class mail to the human resources appeals board regarding the criminal record report. The human resources appeals board shall provide the applicant with an opportunity to present information rebutting the accuracy and/or relevance of the criminal record report and must review any information and documentation received from the applicant prior to taking any final action with regard to the applicant.

(Ord. No. 17-09, 5-11-09)

Sec. 2-386. Retaliation and discrimination prohibited.

It shall be unlawful to retaliate or discriminate against any person on account of his having claimed a violation of this chapter.
(Ord. No. 17-09, 5-11-09)

Sec. 2-387. Regulatory authority.

The human resources department shall have the authority to promulgate rules and regulations necessary to implement and enforce these sections and may promulgate a form of the affidavit.
(Ord. No. 17-09, 5-11-09)

Sec. 2-388. Severability.

If any provision of these sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.
(Ord. No. 17-09, 5-11-09)

Sec. 2-389. Implementation.

The provisions of these sections shall be effective ninety (90) days from their passage.
(Ord. No. 17-09, 5-11-09)

DIVISION 7. ATTENDANCE AND LEAVE

Sec. 2-390. Attendance and hours of work.

(A) *Attendance.* Each Appointing Authority or Department Head shall be responsible for monitoring the attendance of all employees in the Department and shall maintain accurate attendance records. Attendance records shall be reported to the Finance Department and the Department of Human Resources.

(B) *The Hours of Work.* Effective the first pay period following adoption of this ordinance, the workweek for Department Heads and Deputy Department Heads shall be forty (40) hours. For all other Classified and Unclassified Employees, the workweek shall be thirty-five (35) hours. Effective January 1, 2006, the workweek for Classified and Unclassified Employees shall be thirty-seven and one-half (37.5) hours. Effective July 1, 2006, the workweek for all Classified and Unclassified Employees shall be forty (40) hours. The hours of work shall normally be from 8:00 a.m. to 5:00 p.m. with one (1) hour for lunch. These schedules are subject to adjustment for good and sufficient reason by the Director if requested in writing by the Appointing Authority and approved by the Director.

(C) *Standard Work Week.* The standard workweek shall be from 8:00 a.m. Sunday until 8:00 a.m. the following Sunday.
(Ord. No. 07-05, 8-8-05; Ord. No. 01-06, 2-14-06)

Sec. 2-391. Employee Leave Policies.

(A) *Vacation Leave Accumulation*. Effective July 1, 2005, full-time employees in the Classified and Unclassified Service shall accumulate, during and after the Probationary Period, vacation leave with pay on July 1st according to the following vacation schedule (excluding Department Heads, Deputy Department Heads, the Corporation Counsel and the Deputy Corporation Counsel, who shall receive vacation as described separately below):

Length of Service in Months	*Vacation Accumulation in Days*
1	1¼
2	2½
3	3¾
4	5
5	6¼
6	7½
7	8¾
8	10
9	11¼
10	12½
11	13¾
12	15

Vacation leave shall be credited on July 1st of the fiscal year following the employee's appointment. No vacation shall be used before six (6) months of continuous service has elapsed.

Full-time employees appointed on or before July 1st and who serve continuously for one (1) full year until the following June 30th shall earn three (3) weeks' paid vacation to be granted during the following fiscal year.

Full-time employees who have completed five (5) years of full time employment as of July 1st and serve continuously for the previous twelve (12) months shall be entitled to vacation of four (4) weeks annually.

Department Heads, Deputy Department Heads, the Corporation Counsel, and the Deputy Corporation Counsel shall receive four (4) weeks of vacation as of July 1st in each fiscal year, at a rate of one and two-thirds (1 ⅔) days per month. These classifications shall be credited vacation per calendar month of service.

For the purpose of computing vacation leave, the calendar month shall be used, except that a person appointed during the first fifteen (15) days of any month shall be considered as having been appointed on the first day of that month, and those appointed after the 15th day of any month shall be considered as having been appointed on the first day of the succeeding month.

Use of vacation leave is to be taken in units of not less than one (1) hour. Employees must take all vacation leave or one (1) week whichever is less during the fiscal year following the July 1st on which it is earned. Effective June 30, 2017, additional vacation leave may be carried over from one (1) fiscal year to the next to permit a maximum accumulation of no more than eight (8) weeks, provided that, effective December 31, 2017, the maximum accumulation of said carried-over vacation is reduced to six (6) weeks. Effective June 30, 2018, additional vacation leave

may be carried over from one (1) fiscal year to the next to permit a maximum accumulation of no more than four (4) weeks. Use of vacation leave shall be granted by mutual agreement between the employee and the Appointing Authority; provided, however, that no Appointing Authority shall withhold vacation leave of any employee in excess of eighteen (18) months.

(1) In computing vacation leave, legal holidays established by this Article are not to be considered as part of vacation allowance.

(2) In the event of the death of an employee, the accrued vacation pay earned by the employee shall be paid to the estate of the deceased employee.

(3) Employees who are separated from the City and who have accrued vacation leave to their credit at the time of separation shall be paid the salary equivalent of the accrued vacation leave in a lump sum. The effective date of the employee's separation shall be the day following the employees last day of work. Vacation leave accrued during the fiscal year in which the employee is separated will only be paid if the employee separates in good standing.

(B) *Sick Leave Accumulation*. Each full-time employee in the Classified and Unclassified Service shall earn sick leave with pay during and after the individual's Probationary Period according to the following schedule:

Length of Service in Months	*Vacation Accumulation in Days*
1	1¼
2	2½
3	3¾
4	5
5	6¼
6	7½
7	8¾
8	10
9	11¼
10	12½
11	13¾
12	15

(1) Each full-time employee appointed on or before July 1st and who serves continuously until the following June 30th shall earn three (3) weeks paid sick leave. Sick leave is to be used only for the purposes contained in this Article. Any unauthorized use of sick leave shall be cause for disciplinary action.

(2) Any unused sick leave shall accumulate from fiscal year to fiscal year to a maximum of one hundred fifty (150) days for employees hired prior to July 1, 2017. Unused sick leave shall accumulate from fiscal year to fiscal year to a maximum of eighty (80) days for employees hired on or after July 1, 2017.

Accumulated sick leave may be used for the purposes specified in this Article if and when needed.

(3) Notwithstanding the foregoing any Classified and Unclassified Employee who has accumulated at least thirty (30) days of sick leave may donate a portion of said employee's accumulated sick leave to another employee, who through serious and protracted illness has used up all of the individual's accumulated sick leave, compensatory time and vacation leave. The Mayor (or designee) and the Director shall authorize the donation and transfer of such sick leave provided the following conditions are met:

(a) The donating employee shall have a minimum sick leave accumulation of thirty (30) days.

(b) No more than five (5) days of sick leave for every thirty (30) days of sick leave accumulated by the donating employee to a total donation of thirty (30) days shall be permitted between any two (2) employees.

(c) Sick leave, donated by one employee to another, when used, shall be paid at the hourly rate of the donor or donee, whichever is less.

(d) No more than twenty (20) days of donated leave may be allowed to accumulate in any donee's name at any given time, provided if such donated sick leave should be reduced below twenty (20) days, additional donations may be made to restore the level of accumulated sick leave to twenty (20) days.

(4) *Sick Leave Bank*. The Director shall prepare guidelines for the establishment of a sick leave bank for full-time Classified and Unclassified Employees.

(5) *Special Rules*.

(a) No refund of vacation leave shall be allowed due to illness incurred while on vacation leave.

(b) Holidays and regular days off shall not be counted in computing sick leave taken.

(6) *Use of Sick Leave*. Sick Leave may be used for the following purposes:

(a) Personal illness, physical incapacity, or injury.

(b) Birth of a child, bonding with a newborn child within one year of birth, or bonding with a child placed for adoption or foster care within one year of placement.

(c) Illness or physical incapacity in the employee's immediate family or others domiciled in the same household prior to illness for whom one is responsible and the primary care giver. Immediate family is defined for purposes of this provision to be father, mother, sister, brother, wife, husband, domestic partner or children related either by blood, marriage or adoption to the employee.

(d) To meet medical and dental appointments of emergency nature. In addition, sick leave may also be granted for a limited time for normal medical and dental appointments when an employee has made reasonable efforts to secure appointments outside of normal working hours provided that the Appointing Authority is notified in advance of the day on which the absence occurs.

(e) Death of relatives or friends, marriage in the immediate family, celebration of religious holidays and christenings, graduations and similar ceremonies, provided prior notification to the Appointing Authority is submitted in writing giving full particulars in advance, subject to approval. A maximum of three (3) days a year under this provision shall be granted except that it may be increased in situations upon approval by the Director.

(f) Up to three (3) sick days per year may be used for any purpose not otherwise provided above subject to the same notification requirements as in subsection (e), above.

(7) *Proof of Illness or Other Uses of Sick Leave*. Departments may require proof of illness or other uses of sick leave as provided in this rule. In the judgment of the Appointing Authority or supervisor, proof of sick leave may include a doctor's certificate or other reasonable verification available to the employee.

(a) For absences of less than three (3) workdays, proof of sick leave will not normally be required unless, in the judgment of the Appointing Authority or supervisor, there is a question of authorized usage.

(b) For absences of three (3) consecutive workdays or more, a doctor's certificate will normally be required.

(c) For absences exceeding five (5) workdays, a doctor's certificate

indicating the probable duration of the absence may be required, and additional certificates may be required for extended illnesses.

(8) *Compliance with Sick Leave Requirements*. Sick leave provided above shall be granted only if the requirements of these provisions are complied with and the report of illness is made at least one hour before the employee's scheduled start time on each day of absence. Nothing in this paragraph shall preclude the payment of sick leave to an employee who cannot comply with the provisions of this sub-section (8) due to extenuating circumstances.

(9) *Payment of Sick Leave*.

(a) The City will make payment for accumulated sick leave for Classified and Unclassified Employees who have completed at least five (5) years of service on or before June 30, 2017 as follows:

(i) Full payment in case of death; fifty (50) percent payment in case of death for employees hired on or after July 1, 2005;

(ii) Fifty (50) percent payment at time of retirement;

(iii) Payments in case of death will be made to the estate of the deceased employee;

(iv) For all full-time, non-bargaining unit employees who have completed at least five (5) years of service on or before June 30, 2017 and who are in the administrative series, appointees of council, elected officials and unclassified appointees, the City will make payment for accumulated sick leave as follows: (1) full payment in case of death; (2) seventy-five (75) percent payment at time of retirement; (3) employees who separate with vested rights will receive twenty-five (25) percent of accumulated sick leave to be paid at the time of separation.

(b) The City will make payment for accumulated sick leave for those Classified and Unclassified Employees hired prior to July 1, 2017 who did not complete five (5) years of service on or before June 30, 2017, as follows:

(i) Fifty (50) percent payment in case of death, made to the estate of the deceased employee;

(ii) Twenty-five (25) percent payment at time of retirement.

(c) The City will make no payment of accumulated sick leave to employees hired on or after July 1, 2017.

(C) *Compensation for Injuries and Disease.* Each employee shall be compensated for any injury or occupational disease under the provisions of the Workers' Compensation Act. In addition, employees may supplement the difference between their full pay and the payments received under the Workers' Compensation Act by using accrued sick leave.

In the event of a third party claim, the employee must enter into a written contract with the City whereby the employee assigns to the City any right the individual may have against any other person who may be liable to pay damages as a result of the employee's injury or disease to the amounts actually paid under statutory compensation by the City. The City shall only be entitled to be reimbursed for amounts actually paid. The employee specifically retains any and all claims against third parties for such injuries or disease, which shall be in excess of amounts actually paid by the City.

No payments in addition to Workers' Compensation shall be paid when the personal injury was caused by the willful and serious misconduct of the injured employee or by said employee's intoxication or the improper or excessive use of drugs.

(D) *Other Leaves of Absence with Pay.* The following provisions set forth other categories of leave of absence with pay for Classified and Unclassified Employees. In the event such leave is granted, medical benefits will continue for the employee and their dependents; however, in the event the employee is entitled to military benefits there will be coordination of benefits with coverage provided by the Federal Government's military health insurance program. All other conditions of employment should be treated as other leave with pay provisions of this Article.

(1) *Mandatory Leave.*

(a) *Jury and Civic Duties Requiring Appearance before Court or Other Public Body.* Employees shall be granted a leave of absence for required jury or any other civic duty requiring appearance before a court or other public body. Such employees shall receive that portion of their regular salary which will, together with their jury pay or fees, equal their total salary for the same period, except where this rule is in conflict with state or federal law.

(b) *National Guard, Other Reserve Activities: Circumstances and Limitations.* Any full-time employee who is a member of the National Guard, or other reserve forces of the United States, and is required to undergo field training therein, shall be entitled to a leave of absence with pay for the period of such field training, to a maximum of one (1) month, provided the amount of compensation paid to such employee for such leave of absence shall be the difference between the employee's compensation for military activities as shown by a statement by military authorities giving the employee's rank, pay and allowances and the amount of salary or wages due as an employee of the City. If the compensation for military service is equal to or greater than the salary or wages due as a City employee for the period covered by such military leave, then no payment shall be made, except that normal payroll deductions for pension and insurance purposes shall be paid by the City during such leave.

(c) *Involuntary Activity for Military Duty.* Any full-time employee will be granted leave with pay upon involuntary activation for military duty for a period not to exceed one (1) calendar year from the date of being called to active duty. The City shall pay the difference between all military pay received and the full-time employee's base salary. Computations shall be based on weekly equivalents. Military pay will be estimated at the time of leave and the difference with actual military pay to be reconciled upon return to City service.

(d) *Family Leave for Death in Immediate Family.* Three (3) days special leave with full pay shall be granted for death in the immediate family of an employee, or the immediate family of the employee's spouse or domestic partner. Immediate family for purposes of this clause is defined as parents, grandparents, child, son-in-law, daughter-in-law, grandchild, spouse, brother, sister, and any relation who is domiciled in the employee's household.

(2) *Miscellaneous.* The Director, with the approval of the Mayor or designee, may authorize for the employees of all departments, except the regular fire fighting forces and members of the Police Department, either full or partial days off in addition to those already authorized in this Article to permit early closing in such instances as severe snow storms, extreme hot weather and at time of celebrations.

(E) *Leave of Absence Without Pay.* The Mayor upon the recommendation of the Director and the Appointing Authority, may grant a Classified or Unclassified Employee unpaid leave of absence for a period up to one (1) calendar year. Upon the determination of the Mayor, unpaid leaves of absence may be extended. During an unpaid leave of absence, an employee may exercise the option of continuing all benefits normally provided by the City by paying all the required premiums for such benefits. While on unpaid leave, an individual shall remain an employee of the City; however, the period of any such leave shall not be considered a period of service for purposes of salary and fringe benefit calculation, retirement, longevity or seniority. Any family or medical leave taken pursuant to this Article shall count toward the one (1) year limit.

(F) *Employees on Military Leave.* Qualified employees will be provided reemployment rights in accordance with the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA).

(G) *Medical Related Leaves and Family Leave*. In addition to the above leaves of absence without pay, any Classified or Unclassified Employee shall be entitled to:

(1) A maximum of twelve (12) weeks of family leave of absence within any one-year period upon the birth or adoption of a child of such employee or upon the serious illness of a child, spouse, parent, partner or domicile relative of such employee.

(a) Any employee requesting a leave under this section for the birth or adoption of a child must submit proof of the birth or adoption.

(2) A maximum of twelve (12) weeks of medical leave of absence within any one-year period upon the serious illness of such employee.

(3) Any employee requesting a leave under this section for reasons of serious illness may submit prior to inception of such leave written documentation from the attending physician of the employee, child, spouse, parent, partner or domicile relative of the nature and probable duration of the illness. For purposes of this section, "serious illness" is defined as an illness, injury, impairment of physical or mental condition that involves (a) inpatient care in a hospital, hospice or residential care facility or (b) continuing treatment or continuing supervision by a health care provider.

Upon expiration of any leave of absence granted under this section, the employee shall be entitled to return to the original job held by the employee or, if not available, to an equivalent position with equivalent pay within the same department.

(4) *Intent to Return Statement*. Any employee requesting a leave under this section shall submit to the appropriate Appointing Authority prior to the inception of such leave a signed statement of the employee's intent to return to work upon the termination of such leave.

(H) *Absence Without Leave.* An absence of an employee from duty, including any absence for a single day or part of a day, that is not authorized by a specific grant of leave of absence under the provisions of this Article shall be deemed to be an absence without leave. Any such absence shall be without pay and may be subject for disciplinary action. Any employee who absents himself for three (3) consecutive days shall be deemed to have resigned. Such action may be reconciled by the Director by a subsequent grant of leave if the conditions warrant.

(I) *Procedure in Requesting Leaves.* A Classified or Unclassified Employee requesting a leave of absence for any reason other than sick leave shall notify the City on a form that may be prescribed by the Human Resources Department. The requested leave shall be approved by the Appointing Authority, by the employee's supervisor if the Appointing Authority so desires, and by the Director. The Director shall determine whether the employee is entitled to the leave, and send a copy of the form to the Appointing Authority who will return it to the employee.

Requests for vacation leave must be made in advance to allow time to carry out this procedure. (Ord. No. 07-05, 8-8-05; Ord. No. 47-11, 9-12-11; Ord. No. 06-13, 8-12-13; Ord. No. 21-13, 12-9-13; Ord. No. 17-17, 8-14-17)

Sec. 2-392. Holidays.

(A) *General.* The following days shall be recognized and observed as paid holidays for all full-time Classified or Unclassified Employees:

New Year's Day
Martin Luther King Day
Lincoln's Birthday
Presidents' Day
Good Friday
Memorial Day
Juneteenth
Independence Day
Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

Whenever the holidays listed above fall on a Sunday, the following Monday shall be observed as the holiday; and whenever the holidays listed above fall on a Saturday, the preceding Friday shall be observed as the holiday.

(B) *Requirements.*

(1) Each employee shall receive one (1) day's pay for each of the holidays listed above on which he/she performs no work provided the employee is paid the day before and the day after the holiday unless excused in advance.

(2) When a holiday falls on an employee's regular day off, he/she shall receive a compensatory day off to be scheduled with the approval of the Appointing Authority with forty-eight (48) hours notice.

(3) It is the intent of this rule that employees who work irregular schedules shall receive the same holiday benefits as employees who work a regular Monday through Friday schedule.

(C) *Discretionary Holiday.* The Mayor may authorize a day off for all Classified and Unclassified Employees the day before a holiday falling on Tuesday or the day following a holiday on Thursday. All who are required to work on such days shall be granted time off in lieu thereof. Employees who have such a day(s) as a regular day off shall be granted a substitute day.
(Ord. No. 07-05, 8-8-05; Ord. of 4-22-24)

Secs. 2-393—2-399. Reserved.

DIVISION 8. DEMOTIONS AND SUSPENSIONS

Sec. 2-400. Demotions.

An Appointing Authority may reduce the salary of an employee within the range provided in the pay plan or demote the employee for cause with the approval of the Director.

(A) A written statement of the reasons for any such action shall be furnished to the employee and a copy filed with the Director at least ten (10) working days prior to the effective date of the action.

(B) No Demotion shall be made as a disciplinary action unless the employee to be demoted is eligible for permanent employment in a lower Class and shall not be made if any employee in the lower Class would be laid off by reason of this action.

(C) Any employee who is demoted may appeal for a hearing, in writing, to the Human Resources Appeals Board within five (5) working days after date of service of such notice of Demotion.

(D) An employee may request a Demotion to a vacant position in a lower Class subject to the approval of the Director.
(Ord. No. 07-05, 8-8-05)

Sec. 2-401. Suspensions.

An Appointing Authority may, for disciplinary reasons, suspend without pay with written notice, any employee in said department for such length of time as deemed appropriate. Notice of such Suspension shall be reported to the Director immediately and in writing specifically setting forth reasons for such Suspension and a copy of such statement shall be furnished to the employee.

(A) *Appeal.* If the employee wishes to appeal the Suspension, the Appointing Authority, the Director and the Human Resources Appeals Board shall be notified, in writing, by the employee of said employee's intention to appeal within five (5) working days of the date of Suspension.

(B) *Hearing.* Within not less than five (5) or more than ten (10) working days of the receipt of an appeal, the Human Resources Appeals Board shall hold a hearing which shall be public at the option of the employee and at which the employee may be represented.

(Ord. No. 07-05, 8-8-05)

Secs. 2-402—2-409. Reserved

DIVISION 9. SEPARATION

Sec. 2-410. Separation from Employment.

An employee may be separated from the service of the City by any one (1) of the procedures set forth in this section.

(A) *Resignations.* To resign in good standing, an employee must give the Appointing Authority at least fourteen (14) calendar days prior notice unless the Appointing Authority, because of extenuating circumstances, agrees to permit a shorter period of notice. A written letter of resignation shall be provided by the employee to the Appointing Authority. The resignation shall be forwarded to the Director by the Appointing Authority.

Failure to comply with this rule shall be entered on the service record of the employee and may be cause for denying future employment by the City. The resignation of an employee who fails to give notice shall be reported to the Director by the Appointing Authority immediately. The Director may verify reasons for any resignations; and shall notify the Finance Department of the effective date of the resignation.

(B) *Lay-Offs.* An Appointing Authority may lay off an employee in the Classified Service when deemed necessary by reason of lack of work or funds, the abolishment of the position, departmental re-organization, or for other related reasons which are outside the employee's control and which do not reflect discredit upon the services of the employee. The duties performed by any employee laid off may be re-assigned to other employees already working who hold positions in appropriate classes. No employee shall be laid off while another person in a classified position is employed on a temporary basis in the same Class in that department. No temporary or permanent separation of an employee from the service as disciplinary action shall be considered as a Lay-Off.

(1) *Order of Lay-Off.* Lay-Off of employees shall be made in inverse order of the current rating determined by the Director on the basis of service reports and length of service in the Class and in the department as organized by division or other appropriate sub-division thereof or other organizational unit involved. No probationary or Classified Employee shall be laid off from any position while any Temporary Employee is still employed in the same Class in the department or other organizational unit. If two (2) or more employees in the organizational unit in which the Lay-Off is made have equal ratings determined on the basis of seniority and service reports, the order of Lay-Off in all such cases of

tie shall be in the inverse order of the date when an employee first entered the service.

(2) *Notice of Lay-Off.* The Appointing Authority shall give written notice to the Director and to the employee of any proposed Lay-Off and reasons therefore, at least two (2) weeks prior to the effective date. In the case of temporary, part-time, or other occasional employment of employees in the Classified Service, the Appointing Authority may notify in writing such employees and the Director at the time of appointment of the date of termination of employment. Such notice shall be deemed to meet notification requirements. Written notice of Lay-Off indicating reasons for such action may be given Temporary Employees at any time prior to the effective date of Lay-Off.

(C) *Dismissals.* An employee may be dismissed by the Appointing Authority for activities prohibited in Chapter XVI, § 12 of the City Charter, and for insubordination, inefficiency, abuse of sick leave, misconduct or other cause.

(1) No Dismissal of a Classified Employee shall take effect unless five (5) working days prior to the effective date thereof, the Appointing Authority shall give to such employee a written statement setting forth in detail the reasons and file a copy of such statement with the Director.

(2) Any employee so dismissed shall have the right to appeal in writing within five (5) working days of the date of receipt of the letter of Dismissal by registered or certified mail to the Human Resource Appeals Board and shall be granted a hearing as provided for in this Article.

(3) Unclassified, seasonal and/or probationary employees shall have no right to appeal Dismissals to the Human Resources Appeals Board.

(D) *Severance.* The Mayor has the discretion, to pay to Department Heads and/or Deputy Department Heads at time of separation, a severance allowance computed at one (1) week of salary for each full year of service, up to a maximum of twenty (20) weeks.
(Ord. No. 07-05, 8-8-05)

Secs. 2-411—2-419. Reserved.

DIVISION 10. PERFORMANCE EVALUATIONS

Sec. 2-420. Objective.

The Director shall propose guidelines establishing a system for evaluating the work performance of all employees.
(Ord. No. 07-05, 8-8-05)

Secs. 2-421—2-429. Reserved.

DIVISION 11. HUMAN RESOURCES DEVELOPMENT

Sec. 2-430. Employee Development.

The Director shall cooperate with Department Heads, employees and others, to institute, foster and promote training programs for City employees for the purpose of improving the quality of services rendered by employees, and for assisting employee career advancement opportunities.

The Director may:

(A) Recommend to the Mayor or Department Heads, appropriate training programs;

(B) Prepare certificates or other forms of recognition to employees who satisfactorily complete approved courses and programs;

(C) Assist Department Heads in developing and conducting training to meet the specific needs of their Departments and in developing and utilizing other techniques for increasing employee efficiency;

(D) Develop and conduct a variety of training and employee development programs;

(E) Maintain records of all approved training programs for all employees who successfully complete such courses and programs.

(Ord. No. 07-05, 8-8-05)

Secs. 2-431—2-439. Reserved.

DIVISION 12. COMPLAINTS, APPEALS AND GRIEVANCES

Sec. 2-440. Appeals from Dismissal, Demotion or Suspension.

(A) *Appeal.* Any Classified Employee who is dismissed, demoted, or suspended may appeal, in writing, to the Director within five (5) working days of the date of such notice.

(1) *Hearing.* In the case of appeal, within not less than five (5) or more than ten (10) working days after the date of notice of such Dismissal, Demotion, or Suspension, the Human Resources Board of Appeals shall hold a hearing and notify by registered or certified mail both the Appointing Authority and employee involved of the time and place.

(a) *Public Hearing at Option of Employee.* Such hearings may be public at the option of the employee.

(b) *Representation at Hearing.* Both the employee and the Appointing Authority concerned may be represented by counsel or another person of their choice.

(c) *Decision.* After hearing and considering the evidence, the Human Resources Board of Appeals may decide: (1) to reinstate the employee; (2) to confirm the Dismissal, Demotion or Suspension; (3) such other action as it deems appropriate. The decision of the Human Resources Board of Appeals shall be final.

(d) *Written Statement of Board.* The Human Resources Board of Appeals shall promptly file a written statement of its findings and decision with the Appointing Authority taking the action. The complaint, all written documents which may have been considered by the Board, and the findings and conclusions of the Board shall be promptly filed in the office of the Director and shall be a public record.

(Ord. No. 07-05, 8-8-05)

Secs. 2-441—2-480. Reserved.

ARTICLE VII. FINANCE*

DIVISION 1. GENERALLY

Sec. 2-481. Personnel of department of finance.

(a) In addition to the officers and employees prescribed by the charter for the divisions of the department of finance there shall be an assistant head of the division of accounting and control known as the assistant finance director, a supervisor of accounts and city auditor and such other employees as may be necessary to perform the duties of the accounting and control division.

(b) The director of finance shall appoint such employees in the division of tax collection and division of purchases and insurance as may be necessary to perform the duties of those divisions.

(Code 1977, § 2-223)

Sec. 2-482. Fiscal year established.

Commencing July 1, 1973, the fiscal year of the city government shall begin on the July first in each year and end on the last day of the succeeding June.

(Code 1977, § 2-224)

*__Charter reference—__Financial administration generally, Ch. VIII.

Sec. 2-483. Disclosure of lending data by financial institutions receiving deposits of city funds.

(a) *Legislative policy and findings.* It is declared and found that:

(1) Lending practices that constitute arbitrary denials of financing based on geographic location, racial, religious, sexual or ethnic considerations, or any consideration not justified on the basis of legitimate, demonstrable economic criteria are inimical to the public health, safety and welfare.

(2) Such lending practices hasten and foster the instability and decay of city neighborhoods and drive prospective urban home buyers and commercial institutions into other communities where better credit terms are available, thereby reducing and adversely affecting the city's property tax base.

(3) It is the intention of the city not to aid or abet such lending practices by depositing city monies in any financial institutions which engage in such lending practices.

(4) A requirement that financial institutions disclose certain lending data and make certain pledges as a condition of becoming a depository of city monies is a necessary, desirable and practical measure to protect the stability of city neighborhoods and the property values of city inhabitants.

(b) *Definitions.* For the purpose of this section, the following words and phrases shall have the meanings ascribed to them in this subsection except where such terms are used in a context which clearly indicates to the contrary:

(1) *Applicant* means any person who applies for a mortgage loan, commercial loan or home improvement loan as defined in this section whether or not the loan is granted;

(2) *Census tract* means a standard statistical area as established by the United States Bureau of Census;

(3) *Commercial loan* means a loan of one hundred thousand dollars ($100,000.00) or less which is secured by commercial property;

(4) *Commercial property* means all real property and buildings, structures, appurtenances and improvements thereon, excluding residential property, owned by a business entity or individual with total assets of one million dollars ($1,000,000.00) or less;

(5) *Financial institution* means any commercial bank, savings bank, savings and loan association, credit union or other entity which makes mortgage, commercial or home improvement loans, and has total assets in excess of five million dollars ($5,000,000.00);

(6) *Hartford SMSA* means the Standard Metropolitan Statistical Area of the Greater Hartford Region as defined by the United States Bureau of Census;

(7) *Home improvement loan* means a loan, secured or unsecured, the proceeds of which are to be used for the purpose of repairing, rehabilitating or remodeling an existing residential dwelling;

(8) *Mortgage loan* means a loan which is secured by residential property;

(9) *Red-lining* means any lending practice that consistutes arbitrary denials of financing based on geographic location, racial or ethnic considerations, or any consideration not justified on the basis of legitimate, demonstrable economic criteria, which practice results in either an outright denial of loans or mortgages, or any combination of the following:

a. Requiring a greater than average down payment,
b. Requiring a shorter than usual period of amortization,
c. Charging a higher than usual interest rate, or
d. Appraising the property concerned at less than its fair market value;

(10) *Residential property* means any building, structure or portion thereof which is occupied as, or designed and intended for occupancy as, a residence by one (1), two (2), three (3) or four (4) families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure or portion thereof.

(c) *Disclosure of lending information.* Prior to the deposit of any city monies in any financial institution, authorized by the council upon the recommendation of the city manager in accordance with chapter IX, section 1 of the Charter, such lending institution shall disclose the following information and data to the city manager, on forms approved by the city manager:

(1) The number and dollar amount by census tract for all mortgage loans made on or for residential property within the city and residential property outside the city within the Hartford SMSA;

(2) The average effective interest rate by census tract for all mortgage loans made on or for residential property within the city and residential property outside the city within the Hartford SMSA;

(3) The average down payment by census tract for all mortgage loans made on or for residential property within the city and residential property outside the city, within the Hartford SMSA;

(4) The average amortization period for the repayment of mortgage loans made on or for residential property within the city and residential property outside the city within the Hartford SMSA;

(5) The information and data referred to in paragraphs (1) through (4) of this subsection shall be further itemized by census tract to disclose the number, total dollar amount, average effective interest rate, average down payment and average amortization period of:

a. Mortgage loans that are insured under title II of the Housing Act of 1949, or

which are guaranteed under chapter 37 of title 38, United States Code (FHA, FMHA or VA loans),

b. Mortgage loans made to applicants who did not, at the time of execution of the mortgage loans, intend to reside in the property securing the mortgage loan,

c. Home improvement loans;

(6) The information and data specified in paragraphs (1) through (4) of this subsection shall also be obtained for commercial loans;

(7) The number of commercial, home improvement and mortgage loan applicants for each census tract within the city and outside the city within the Hartford SMSA for each category, specifying the percentage of such applicants whose applications were denied.

(d) *Pledges.* Prior to the deposit of any city monies in any financial institution, authorized by the council upon the recommendation of the city manager in accordance with chapter IX, section 1 of the Charter, the city manager shall obtain the following pledges from an authorized official of such institution:

(1) A pledge not to discriminate against any individual seeking a commercial, home improvement or mortgage loan in the fixing of the amount, interest rate, duration, down payment or other terms or conditions of such loan, because of the race, color, religion, sex or national origin of such individual or of any individual associated with him in connection with such loan or other financial assistance or the purposes of such loan or other financial assistance, or of the dwelling or dwellings, if any, in relation to which such loan or other financial assistance is to be made or given;

(2) A pledge not to indulge in red-lining activities against any city neighborhood, and to be supportive of affirmative marketing to maintain and improve urban residential living;

(3) A pledge to disclose any property appraisal performed by or for such institution to an applicant when the appraisal was paid in whole or in part by the applicant.

(e) *Reporting periods.* Any information required to be compiled and made available under this section shall be maintained and made available for a period of five (5) years after the close of the first reporting period during which such information is required to be maintained and made available. Copies of such information and data as required in this article shall be available to the public at cost upon request; provided that no provision of this section shall be construed as requiring any financial institution to divulge the names of individual depositors or mortgagors. Reporting periods shall be on an annual basis with the first such period beginning with the last full fiscal year ending prior to July 1, 1977.

(f) *Failure to provide information.* If any financial institution refuses to provide any of the information, data or pledges required by this section, the city manager shall report such refusal to the council, the pension commission, the superintendent of the board of education and the city treasurer. If such institution has previously been designated by the council as a city depository, the council shall consider withdrawing such designation. The city manager shall also maintain a list of any financial institutions that refuse to provide such information, data or pledges, which list shall be a public record.

(g) *Analysis of financial data; appeals.* Upon receipt of the financial data, information and pledges required in this section, the city manager shall analyze the information and data for the purpose of determining whether the financial institution involved is engaging in lending practices in violation of any of its pledges. Any recommendation by the city manager, pursuant to chapter IX, section 1 of the Charter, that a financial institution by a city depository shall be accompanied by a certification of compliance with this section or provisional certification pursuant to subsection (i) prior to final action by the council authorizing any deposit. If the city manager determines that there is a likelihood that such financial institution is engaging in such practices, he shall make this determination known to the institution by certified letter with written findings stating the basis for making such a determination. Such notification shall also inform the institution that it may appeal the determination within ten (10) days

of the notification by requesting a formal hearing in writing, or that the institution may elect to pursue a conciliation period in accordance with subsection (h). If a hearing is requested, the city manager shall set a hearing date within ten (10) days of such request, which hearing date shall be within thirty (30) days of the receipt of such request, and the corporation counsel shall appoint an attorney in the corporation counsel's office as a hearing examiner. The institution requesting the hearing shall have the right to be represented by an attorney, to introduce testimony and evidence on its behalf, and to cross-examine and challenge any testimony in support of the determination of the city manager. A designee of the city manager shall present any and all evidence during such hearing in support of any alleged violation. After such hearing, the examiner shall render a decision in writing, setting forth his findings and conclusions, and shall transmit copies of the decision to the institution, the city manager, and the members of the council. If the examiner has found a material or substantial violation, the city manager may require such institution to adopt an affirmative action lending plan, including, but not limited to, marketing and advertising, designed to eliminate such violations. The failure of such institution to adopt such a plan shall preclude it from becoming, or continuing as, a city depository. The city manager shall immediately notify the council and all parties in interest of the measures that he proposes to implement by written memorandum. The measures so proposed shall become effective at the expiration of fifteen (15) days after official receipt of the city manager's proposed measures and the hearing officer's decision by the council at its next regularly scheduled meeting, unless the council rejects or modifies the manager's proposed actions within such time period; provided, however, that the council may, by majority vote, postpone the effective date of the manager's actions until its next regularly scheduled meeting. The same notification and appeal provisions specified in this section shall be utilized if lending practices in violation of this section are discovered subsequent to the deposit of city monies in the financial institution involved.

(h) *Conciliation period.* As an alternative to appealing a determination made by the city manager, the institution may enter into a fifteen-day conciliation period during which both parties may resolve the controversy through the adoption of an affirmative action lending plan. If at the end of the fifteen-day conciliation period the parties are unable to resolve their differences, the institution may appeal the city manager's initial determination in writing within five (5) days of the expiration of the fifteenth day.

(i) *Provisional approval.* If the city manager is obligated to deposit city funds prior to the receipt or analysis of the information, data and pledges required in this section, he may provisionally approve the deposit of funds in the institution for up to ninety (90) days, provided that the institution signs all the pledges mandated by subsection (d) and agrees to submit all the required information and data by a date set by the city manager.

(j) *Citizen grievances.* If any individual has information that a financial institution which is a city depository has violated any of its pledges made pursuant to the provisions of this section, such individual may bring such information to the city manager by written complaint.
(Code 1977, § 2-225; Ord. No. 6-77, §§ 1—10, 5-9-77)

Sec. 2-484. City trust funds.

(a) The trust companies heretofore appointed in accordance with law as managing agents of certain trust funds of the city shall continue, unless the appointment is revoked by the council for cause, to have custody of all the assets of such trust funds and of any other trust funds hereafter acquired by the city and turned over to them. Such companies and any other trust companies which are located in the city, and which may be hereafter designated as managing agents of trust funds of the city, shall keep books of account with reference to the income and principal of the trust funds and shall render annual accounts to the city treasurer. Such agents shall turn over all net income received from the funds, and any principal which may be distributable therefrom, after deductions of expenses of administration, including their proper fees, to the city treasurer, to be distributed as nearly as may be in accordance with the terms of the instruments creating the

funds. Such agents shall have no further responsibilities as to the distribution of income or principal of such funds. The city treasurer, with the consent and approval of the city manager, is empowered to authorize the purchase of securities for any of such funds and of any other trust funds hereafter acquired by the city. The city treasurer, with the consent and approval of the city manager, is empowered to authorize the sale or other disposition of any of the assets thereof. The city treasurer may execute and deliver from time to time any instrument of assignment and transfer and all other papers necessary, convenient or desirable in order to sell and convey or transfer or otherwise dispose of any assets that make up any portion of any of such funds and of any other trust funds hereafter acquired by the city of which the sale or other dispostion has been authorized. The amount and term of investments made by the city treasurer as treasurer of the town deposit fund shall be determined from time to time by resolution of the council.

(b) During the absence or disability of the city treasurer, the assistant city treasurer shall have all the powers and duties of the city treasurer as provided for in this section.
(Code 1977, § 2-12)

Sec. 2-485. Debt retirement fund.

For the purpose of promoting the proper application of any unexpended proceeds arising out of the issuance and sale of general obligation serial bonds of the city, there is hereby created a special fund to be known as the debt retirement fund. The council may from time to time, by resolution introduced by any councilmember or the city manager, direct the transfer of any unexpended proceeds arising out of the issuance and sale of general obligation serial bonds of the city into the debt retirement fund; except, however, that whenever the Greater Hartford Flood Commission shall have determined that unexpended proceeds of a flood-control bond issue are available for transfer to the debt retirement fund, the council may on the recommendation of the Greater Hartford Flood Commission, by resolution, authorize the use of such funds by the commission for the purposes so recommended. Such debt retirement fund shall be kept and maintained by the city treasurer as a separate and special fund and shall be separately stated and accounted for. The moneys in the debt retirement fund, together with any income derived from the investment of the moneys, shall be used, in such amounts as the council may from time to time direct by resolution, for the following purposes:

(1) The payment of interest on the principal of general obligation serial bonds of the city as they shall become due and payable;

(2) The bonds on the open market of general obligation serial bonds of the city issued and outstanding, at par value or less than par value;

(3) Transfer to the capital improvement fund of a sum not in excess of the fund balance after the current year obligation to the general fund has been paid, to temporarily finance a project properly financed in the capital improvement fund, provided a like sum shall be returned to the debt retirement fund forthwith upon permanent financing, and provided further, if a project so temporarily financed is abandoned, a sum equal to the amount transferred shall be included in the next prepared general fund budget for the benefit of the debt retirement fund.

(Code 1977, § 2-13)

Charter reference—Provisions relative to city's borrowing power, Ch. VII.

Sec. 2-486. Report, approval of sale of city property.

(a) The city manager shall refer any pending sale of city-owned land and buildings to the planning and zoning commission for any recommendation thereon. Any such recommendation shall be forwarded within thirty (30) days to the city manager. Nothing in this section shall be construed as prohibiting the city manager from reporting any pending sale of city-owned land and buildings to the council in the event said commission makes no recommendation within such period.

(b) The city manager, after such period referred to in subsection (a), shall report to the council any pending sale of city-owned land and buildings, accompanied by any recommendation pertaining thereto from the commission on the city plan, and the council shall approve or disapprove such sales.

(c) The city manager shall establish and amend from time to time all rules and regulations concerning the sale of city-owned land and buildings. Such rules and regulations and amendments thereto shall be subject to the review of the council.
(Code 1977, § 2-14; Ord. No. 8-98, 5-26-98; Ord. No. 003-20, 6-22-20)

Sec. 2-487. Use of proceeds from sale of city park property.

(a) The avails from the sale of any park land shall be forthwith deposited in a permanent endowment fund known as the Hartford Parks Trust Fund as established in subsection (b) of this section.

(b) There is hereby established a permanent endowment fund known as the Hartford Parks Trust Fund. Such fund is established under authority of the General Statutes and pursuant to section 2-484 for the exclusive purpose of funding capital improvements and nonrecurring expenses in the parks and cemeteries of the City including the acquisition of replacement land for park purposes.

(1) Capital improvements shall include but not be limited to the following:
   a. Purchase price;
   b. Construction cost;
   c. Professional fees, including but not limited to architectural, legal, and accounting fees;
   d. Transportation costs, such as freight charges;
   e. Legal claims directly attributable to the asset acquisition;
   f. Title fees;
   g. Closing costs;
   h. Appraisal and negotiation fees;
   i. Surveying fees;
   j. Damage payments;
   k. Land preparation costs;
   l. Demolition and remediation costs;
   m. Insurance premiums during the construction phase;
   n. Capitalized interest.

(2) The principal of the Hartford Parks Trust Fund shall consist of the following:
   a. The proceeds of any sale of any portion of Batterson Park consummated prior to July 11, 1988, which proceeds were not previously deposited in the capital improvements fund and the proceeds of any future sale of any portion of Batterson Park;
   b. Any gifts or grants made to the City and designated for park or cemetery improvement purposes;
   c. The proceeds of any sale, conveyance of taking of any park land owned by the City, except for the proceeds of the transfer, in fiscal year 2016-17, of a portion of Batterson Park to the Municipal Employees Retirement Fund as partial payment of the City's annual actuarial determined employer contribution;
   d. Any funds from any source designated by the council to be added to this permanent endowment fund.

(3) The principal of the Hartford Parks Trust Fund shall be permanent and nonexpendable and shall be invested as follows:
   a. Such funds are to be invested under a trust agreement with a trust company as a managing agent in accordance with section 2-484;
   b. The investment of such funds shall be with the objective of generating income and growth of income over time consistent with preservation of capital.

(4) Investment income, including capital gains and dividends, is to be expended in the following manner:

a. Upon recommendation of the mayor and with the approval of the council, the investment income from the fund may be transferred to the capital improvements fund and appropriated for capital improvements, and nonrecurring expenses in the parks and cemeteries of the City, including the acquisition, development, improvement, maintenance and expansion of park, cemetery and recreation lands, provided that the mayor, in consultation with the city treasurer, determines that sufficient funds remain in the trust fund, after the transfer, to preserve the true value of the principal and to continue to provide a sustainable level of income for the fund into the future.

b. The mayor is authorized to expend annually an amount not to exceed twenty-five (25) percent of the investment income from the fund for acquisition, erection, installation, maintenance, improvement, repair and replacement of park or recreation facilities and equipment, any other capital or nonrecurring expenditure incurred for park or recreational purposes or cemeteries.

c. The mayor is authorized to expend annually up to five (5) percent of the investment income for the Hartford Tree Account, pursuant to section 28-164.

d. Any remaining investment income shall be held in reserve for future transfer and appropriation.

e. Each year, the mayor shall recommend a priority list of capital improvement projects and nonrecurring expenses for the approval of the council. This list may be amended as the need arises, provided the amendments are also approved by the council. A primary factor in establishing such a priority list shall be the frequency of use by the public of the existing resource to be improved, or, in the instance of a proposed new project, the frequency of use by the public of the park or cemetery in which the proposed new project would be located. No funds allocated to or generated by the fund shall be appropriated or spent until the priority list, as may be amended, has been approved by the council.

(5) No funds allocated to or generated by this permanent endowment shall be used for normal operating expenses or routine maintenance or repairs.

(6) No budget proposed or approved or appropriation made for park or recreational purposes or cemetery maintenance shall be reduced, ratably or otherwise, in consideration of any moneys in the fund.

Notwithstanding anything in this Section to the contrary, this Ordinance [Ordinance No. 49-11] as amended shall apply to all such capital improvements which have been approved by the Mayor and Court of Common Council in the City's approved budget for fiscal year 2011-2012 and all future approved budgets.
(Code 1977, § 2-15; Ord. No. 9-87, 4-27-87; Ord. No. 42-88, 7-11-88; Ord. No. 8-95, 6-12-95; Ord. No. 19-97, 9-22-97; Ord. No. 19-02, 5-28-02; Ord. No. 09-08, 4-28-08; Ord. No. 15-10, 12-13-10; Ord. No. 49-11, 10-11-11; Ord. No. 11-16, 11-16-16)

Sec. 2-488. Loans from capital improvement fund to redevelopment agency.

Notwithstanding the provisions of sections 2-486 and 2-487, the city is authorized to make loans of unappropriated funds in the capital improvement fund to the redevelopment agency for definitive and temporary financing of a

redevelopment project, provided such loans are secured by the amount of state or federal grants and the amount of the appraised reuse value of the land in a redevelopment project and do not exceed such amounts.
(Code 1977, § 2-16)

Sec. 2-489. Hartford Children Trust Fund.

(a) There is hereby established a permanent endowment fund known as the Hartford Children Trust Fund. Such fund is established under authority of the General Statutes and pursuant to section 2-484 for the exclusive purpose of funding programs for children and youth within the City of Hartford.

(1) The principal of the Hartford Children Trust Fund shall consist of the following:

a. The totality or parts of gifts or contributions made to the city and designated for the principle of the Hartford Children Trust Fund.

b. Proceeds from specific fund raising events on behalf of the principle of the Hartford Children Trust Fund.

c. Other mandated or voluntary contributions to the fund, designated to the principle of the Hartford Children Trust Fund.

d. Any funds from any source designated by the council to be added to the principle of this permanent endowment fund.

(2) The principal of the Hartford Children Trust Fund shall be permanent and nonexpendable and shall be invested as follows:

a. Such funds are to be invested under a trust agreement with a trust company as managing agent in accordance with section 2-484;

b. The investment of such funds shall be with the objective of generating income and growth of income over time consistent with preservation of capital.

(3) Investment income, including capital gains and dividends, is to be expended in the following manner:

a. Annually and upon recommendation of the city manager and with the approval of the council, the investment income from the fund may be transferred to the city's operating budget for the sole purpose of implementing children and youth programs including recreation, youth services, and other approved services to children, provided that the city manager, in consultation with the city treasurer, determines that sufficient funds remain in the trust fund, after the transfer, to preserve the true value of the principal and to continue to provide a sustainable level of income for the fund into the future.

b. The city manager is authorized to expend annually an amount not to exceed fifty (50) percent of the investment income from the fund for recreation and positive youth development programs and any other nonrecurring expenditure related to implementing children, recreation and youth services programming.

c. Any remaining investment income shall be held in reserve for future transfer and appropriation.

d. Each year, the city manager shall recommend a priority list of children and youth programs and nonrecurring expenses for the approval of the council. This list may be amended as the need arises, provided the council also approves the amendments. A primary factor in establishing such a priority list shall be the need to guarantee that appropriate levels of services are available for children and youth within the City of Hartford. No funds allocated to or generated by the fund shall be appropriated or spent until the priority list, as may be amended, has been approved by the council.

(4) No budget proposed or approved or appropriation made for children, recreation and youth services purposes shall be reduced, ratably or otherwise, in consideration of any moneys in the fund.

(Ord. No. 60-02, 11-25-02)

Sec. 2-490. Other post-employment benefits trust fund.

(a) *Background.* The Governmental Accounting Standards Board (GASB) is an independent, not-for-profit organization formed in 1984 that establishes and approves financial accounting and reporting standards for state and local governments. GASB has formally issued GASB Statement No. 45, entitled, "Accounting and Financial Reporting by Employers for Post-employment Benefits Other Than Pensions." GASB Statement 45 focuses attention on the costs and reporting of such other-than-pension post-employment benefits to state and municipal retirees and their

qualified dependents. "Other post-employment benefits" (OPEB) are generally disability, life, and health insurance types of coverage for retired employees.

(b) GASB Statement 45 provides a recommended framework for accounting and reporting the estimated cost of such post-retirement benefits using an accrual methodology.

(c) Connecticut G.S. §§ 7-403a and 7-450 recognize municipal responsibility to address the issue of such other post-employment health and life benefits, and govern the creation of a trust for the purpose of funding such benefits.

(d) GASB Statement 45 requires that state and city governments conduct actuarial valuation studies to determine their unfunded accrued actuarial liability (UAAL) for OPEB. The City must determine its total projected future liability and calculate an amount called the annual required contribution (ARC) to recognize the OPEB liability as it is incurred each year, which includes an amortization of the UAAL over a period not to exceed thirty (30) years. GASB Statement 45 requires that state and local governments report their OPEB liabilities in their annual financial statements.

(e) The City is also obliged to address the appropriateness of funding OPEB obligations. The cited statutes authorize the City to establish one (1) or more trusts, or participate in a multiemployer trust, to hold and invest assets for the purpose of reserving funds to pay OPEB benefits to retirees and their qualified dependents.

(f) In the event that GASB amends, repeals or supersedes GASB Statement 45, the City's obligation to operate the OPEB Trust Fund under this article shall not be impaired.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-490 and enacted new provisions to read as herein set out. Former § 2-490 pertained to similar subject matter, and derived from Ord. No. 18-08, §§ 1—6, adopted June 23, 2008.

Sec. 2-491. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings given herein.

Actuarial valuation means a determination by a qualified actuary, using appropriate methods and generally accepted accounting and actuarial principles, of the City's unfunded actuarial accrued liability, the normal cost and the actuarial value of assets and related present values to quantify the funded status of the OPEB plans and to determine the level of contributions required to fund the OPEB obligations over the working lifetimes of employees, in accordance with GASB Statement 45, and any further relevant GASB statements.

Other post-employment benefits (OPEB) means benefits for the City's retired employees and their qualified dependents (other than pension benefits) which may include medical, dental, and vision coverage, life insurance and disability insurance, and such other benefits as the City may provide in the future.

State means the State of Connecticut.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-491 and enacted new provisions to read as herein set out. Former § 2-491 pertained to similar subject matter, and derived from Ord. No. 18-08, § 7, adopted June 23, 2008.

Sec. 2-492. Establishment of the other post-employment benefits trust fund.

(a) There shall be established an irrevocable trust fund, separate and apart from the general revenues and the pension revenues of the City, known as the Other Post-Employment Benefits Trust Fund (OPEB Trust Fund). The OPEB Trust Fund shall be a Section 115 fund within the meaning of the Internal Revenue Code. Within the OPEB Trust Fund, there shall be a single account established by the OPEB Committee under Section 2-493 which shall reflect contributions and benefits for beneficiaries who were hired prior to July 1, 2009.

(b) The OPEB Trust Fund is hereby established to accumulate, invest and manage funds necessary to meet the costs of providing OPEB benefits to individuals who have retired from employment with the City, including the Board of Education, and to their qualified dependents, whether optional or mandatory, in effect now or to be in effect in the future. Any funds expended from the OPEB Trust Fund shall be utilized for

the sole and exclusive purpose of providing OPEB benefits to retirees or their qualified dependents and, to the extent permitted, to paying the administrative costs thereof. Administrative costs may include the salaries and fees of the City Treasurer and others involved with management of the fund.

(c) All contributions paid into the OPEB Trust Fund and the income thereon, without distinction between principal and income, shall be maintained in banks and or trust companies qualified as public depositories, or in such other appropriate depositories or investments as allowed by federal, state, or municipal law.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-492 and enacted new provisions to read as herein set out. Former § 2-492 pertained to similar subject matter, and derived from Ord. No. 18-08, § 8, adopted June 23, 2008.

Sec. 2-493. Administration of the OPEB Trust Fund.

(a) The OPEB Trust Fund assets shall be managed by the City Treasurer who, pursuant to the City Charter and G.S. § 7-403a, shall be charged with the deposit and investment of the OPEB Trust Fund assets, and with submitting annually a complete and detailed report of the condition of the OPEB Trust Fund to be part of the City's Comprehensive Annual Financial Report to the Mayor and the City Council. The OPEB Trust Fund shall only pay OPEB benefit obligations for the benefit of retirees and their qualified dependents (which may include the reimbursements of amounts paid by the City), and expenses related to the OPEB Trust Fund.

(b) There shall be established an OPEB Committee which shall consist of the members of the Pension Commission, including the employee representative, together with the Mayor, the City Treasurer, and the Superintendent of Schools [the Board of Education]. The Mayor may designate that the City's Chief Operating Officer or Director of Finance serve in place of the Mayor, and the Superintendent may designate that the Board of Education's Chief Financial Officer serve in place of the Superintendent. The voting members of the Pension Commission shall be the voting members of the OPEB Committee. Any nonvoting member of the pension commission shall be a nonvoting member of the OPEB Committee. The Treasurer shall serve as Secretary to the OPEB Committee. The OPEB Committee shall have the following duties and responsibilities:

(1) To annually review the amounts of all payments to be disbursed from the OPEB Trust Fund, in consultation with the City's contractors, insurers, and actuaries, including:

   a. Medical, dental, prescription drugs and other claims paid under the OPEB plans for non-Medicare and Medicare beneficiaries;

   b. Administrative fees related to retiree plans;

   c. Other vendor charges, such as stop loss premiums, related to retiree plans;

   d. Fees to third-party vendors and consultants related to the ongoing administration of the OPEB plans; and

   e. All other administrative expenses of the OPEB Trust Fund.

(2) To review the amount of employee and retiree contributions to the OPEB trust, as required by collective bargaining agreements, ordinances, or other legal requirements.

(3) To cause annual actuarial valuations of the OPEB Trust Fund and its liabilities to be performed and to obtain special studies and forecasts as deemed appropriate by the OPEB Committee.

(4) To determine and recommend the amount of the City's contributions to the OPEB Trust Fund, specifically, the annual required contribution (ARC) determined by qualified external actuaries in accordance with GASB Statement 45, or other actuarially determined contribution.

(5) To establish groups of beneficiaries of the OPEB Trust Fund, determined by dates of hire or dates of retirement, for the purpose of establishing the liability of the fund, and for establishing groups of em-

ployees for whom OPEB benefits are to be paid by the City on a pay as you go basis, as distinct from being paid from the OPEB Trust Fund.

(c) The OPEB Committee shall have the power to make internal rules and regulations to carry out its duties in the management of the OPEB Trust Fund, provided such rules and regulations shall not be in conflict with applicable law or the express terms of this Article.

(d) The OPEB Trust Fund shall be subject to an annual actuarial valuation by qualified external actuaries selected by the OPEB Committee.

(e) The OPEB Committee may retain the services of actuaries, insurance professionals, auditors, investment consultants or advisors, and other investment professionals, for the purposes of educating the OPEB Committee, gathering information, or formulating policy, with regard to investment decisions and management and administration of the OPEB Trust Fund. Such services shall be professional services and shall be selected by the OPEB Committee.

(f) To provide oversight and policy direction with regard to the ongoing operations of the OPEB plans and trust, including asset-related decisions.

(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-493 and enacted new provisions to read as herein set out. Former § 2-493 pertained to similar subject matter, and derived from Ord. No. 18-08, § 9, adopted June 23, 2008.

Sec. 2-494. Sources of funding the OPEB Trust Fund.

(a) The OPEB Committee shall obtain the City's actuarially determined contribution amount [ARC payment] each year and report to the City Council. The City shall fund a portion of the actuarially determined contribution ARC payment so determined each year. The portion to be funded shall be determined by the City Council and shall be not less than the pay-as-you-go cost projected for the year. Fifty (50) percent of the actuarially determined amount.

(b) Upon recommendation of the Mayor and approval by the City Council, funding sources for the OPEB Trust Fund may also include:

(1) Amounts authorized to be transferred from the General Fund cash surplus, if any, available at the end of any fiscal year;

(2) Any funds resulting from changes or increases in contribution levels of employees or retirees to health costs;

(3) Any applicable State subsidies;

(4) An amount equal to some portion of the City's annual pay-as-you-go expenditure for health costs;

(5) Amounts raised by an annual tax levy for the benefit of such fund, and for no other purpose, if permitted by State law, provided such tax shall be levied and collected in the same manner and at the same time as the regular annual tax of the City;

(6) Any other revenues identified by the Department of Management and Budget, the Finance Department, or the Mayor or City Council; and

(7) Any other source allowed by law.

(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-494 and enacted new provisions to read as herein set out. Former § 2-494 pertained to source and investment of monies in the OPEB trust fund, and derived from Ord. No. 18-08, § 10, adopted June 23, 2008.

Sec. 2-495. Investment of the OPEB Trust Fund.

(a) The City Treasurer shall be responsible for the care, custody, management and investment of all of the assets of the OPEB Trust Fund, under the direction of and with the approval of the OPEB Committee. The Treasurer shall have the power to invest and to reinvest said assets in equities, securities, real property and such other investments permissible by law for the investment of trust funds pursuant to the Connecticut Uniform Prudent Investor Act, G.S. § 45a-541 et seq. or other relevant law.

(b) The City Treasurer shall be responsible for the deposit of funds from the OPEB Trust Fund in a qualified public depository or depositories as needed.

(c) The City Treasurer and the OPEB Committee members shall be fiduciaries of the OPEB Trust Fund and, in that capacity, shall fulfill their duties with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in like capacity and familiar with such matters would use in the conduct of an enterprise of like character and purpose. They shall discharge their duties:

(1) Solely in the interests of, and for the purpose of providing OPEB benefits to, retirees and their qualified dependents consistent with the provisions of this chapter and applicable law;

(2) Impartially, taking into consideration any differing interests of various beneficiaries;

(3) By diversifying the investments of the assets of the funds so as to minimize the risk of large losses, unless under the circumstances it is clearly prudent not to do so; and

(4) In accordance with a good faith interpretation of law.

(d) Circumstances which shall be considered by the City Treasurer and the OPEB Committee in their deliberations shall include, but not be limited to, the following, to the extent relevant thereto:

(1) General economic conditions;

(2) The possible effect of inflation or deflation;

(3) The expected tax consequences, if any, of investment decisions, strategies and distributions;

(4) The role that each investment or course of action plays within a fund's overall portfolio;

(5) The expected total return from income and the appreciation of capital;

(6) Needs for liquidity, regularity of income and preservation or appreciation of capital;

(7) An asset's special relationship or special value, if any, to the purposes of the fund;

(8) The size and actuarial funding status of the fund; and

(9) The nature and estimated duration of the fund.

(e) The fiscal integrity and economic well-being of the City being of primary significance in its ability to ultimately fulfill its obligations to financially support its OPEB obligations, the City Treasurer and the OPEB Committee, when possible and consistent with their other fiduciary duties imposed hereunder and consistent with applicable law, may consider whether the investment of any assets of, or expenditure of any income from, any fund will enhance or promote the general welfare of the City and its residents.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-495 and enacted new provisions to read as herein set out. Former § 2-495 pertained to distributions, and derived from Ord. No. 18-08, § 11, adopted June 23, 2008. See § 2-496.

Sec. 2-496. Distributions.

Distributions from the OPEB Trust Fund shall be made upon the presentation of appropriate financial information. At any time, but not more frequently than weekly, the finance director shall submit a statement or invoice for premiums and other allowable related costs or expenses due during such fiscal period for post-employment benefits due retired employees of the City, which statement shall include the amount to be paid from the OPEB trust fund. The City Treasurer shall make arrangements to withdraw from the OPEB Trust Fund an amount sufficient to pay such expenditures due.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-496 and enacted new provisions to read as herein set out. Former § 2-496 pertained to fund assets not subject to sale, encumbrance, etc., and derived from Ord. No. 18-08, § 12, adopted June 23, 2008. See § 2-497.

Sec. 2-497. Fund assets not subject to sale, encumbrance, etc.

No part of the OPEB Trust Fund assets shall be subject, in any manner, to sale, transfer, alienation, pledge, assignment, attachment, or any other encumbrance, whether voluntary or involuntary, by operation of law or court order. Any attempt to sell, transfer, alienate, pledge, assign or otherwise encumber the assets of the OPEB Trust Fund shall be void and of no force and effect.
(Ord. No. 7-15, 5-11-15)

Editor's note—Ord. No. 7-15, adopted May 11, 2015, repealed § 2-497 and enacted new provisions to read as herein set out. Former § 2-497 pertained to termination of the OPEB trust, and derived from Ord. No. 18-08, § 13, adopted June 23, 2008. See § 2-498.

Sec. 2-498. Termination of the OPEB Trust.

Although it is intended that the OPEB Trust Fund is to continue to operate indefinitely, upon recommendation of the OPEB Committee and approval of the City Council, the City may terminate the OPEB Trust Fund. Such approval shall require a supermajority vote [of 7 members] of the City Council equal to two-thirds (⅔) of the number of City Council seats plus one (1). Nothing in this Article shall prevent the elimination of certain OPEB benefits, the lowering of benefit levels, the capping of benefits, or converting plans from defined benefit to defined contribution plans, as appropriate, all in accordance with the provisions of this Article and the law. To the extent that there are any assets remaining in the OPEB Trust Fund, after such termination, remaining assets of the fund shall be disposed of in accordance with G.S. § 7-403a(f) or other applicable State law.
(Ord. No. 7-15, 5-1-15)

Secs. 2-499—2-500. Reserved.

DIVISION 2. BUDGETS*

Sec. 2-501. Submission.

On or before the third Monday in April of each year the city manager shall submit to the council through the city clerk:

(1) An annual or current expense budget, hereafter referred to as the budget, which shall be a complete financial plan for the ensuing fiscal year consisting of the budget proper and the budget message; and

(2) A capital budget.

(Code 1977, § 2-231)

Sec. 2-502. Public hearing on budget.

Upon receipt of the budget, the city clerk shall transmit copies to the council forthwith and shall call a public hearing on the budget to be held by the council not less than seven (7) days nor more than ten (10) days after its submission. Notice of the date, time and place of the hearing shall be published, together with a copy of the city manager's budget message and a summary of the budget items by departmental appropriations, within three (3) days after the submission of the budget in the manner provided for the publication of ordinances. The council may by resolution permit the publication of the notice and budget message in a weekly newspaper in addition to the publication of the notice and budget message in a daily newspaper of general circulation provided such is published at least three (3) days prior to the public hearing.
(Code 1977, § 2-232)

Sec. 2-503. Scope of annual budget.

(a) The budget shall contain:

(1) An estimate of all revenue cash receipts anticipated from sources other than the tax levy of the ensuing fiscal year;

*__Charter reference—__Budgets generally, Ch. VI.

__Cross reference—__Budgets for civic center and coliseum authority, § 10-22.

(2) An estimate of the general fund cash surplus at the end of the current fiscal year or of the deficit to be made up by appropriation;

(3) The estimated expenditures necessary for the operation of the several departments, offices and agencies of the city;

(4) Debt service requirements for the ensuing fiscal year;

(5) An estimate of the sum required to be raised by the tax levy for the ensuing fiscal year, assuming a rate of collection not greater than the average rate of collection in the year of levy for the last three (3) completed fiscal years; and

(6) A balanced relation between the total estimated expenditures and total anticipated revenue cash receipts, taking into account the estimated general fund cash surplus or deficit at the end of the current fiscal year.

(b) All estimates shall be in detail showing revenues by sources and expenditures by organizational units, activities, character and object. The budget shall be so arranged as to show comparative figures for receipts and expenditures for prior years and for the current year and the city manager's recommendations for the ensuing year.

(c) Along with the annual budget, the Office of Management and Budget shall prepare and submit to the Council, through the City Clerk, an itemized, detailed version of the Mayor's Recommended Budget showing, for all requested appropriations, all account activity for the period to date, which shall include but is not limited to:

(1) An itemized statement of all appropriations proposed by the mayor for current expenses, capital items and permanent improvements necessary for the operation of the several departments, offices and agencies of the city for the ensuing fiscal year;

(2) Comparative statements in parallel columns of the appropriations and expenditures made for the several departments, offices and agencies of the city for the current and four preceding fiscal years and the increase and decrease between the actuals, adopted, revised budgets, most recent years actuals, current and ensuing fiscal years. These statements shall also include the variance between recommend and previous year adopted budget and change by percent between the previous year's actuals and recommended budgets;

(3) An itemized statement of debt service requirements for the ensuing fiscal year.

(Code 1977, § 2-233; Ord. No. 19-15, § 2, 12-28-15)

Charter reference—Scope of annual budget, Ch. VI, § 3.

Sec. 2-504. Contents of budget message.

The budget message shall contain the recommendations of the city manager concerning the fiscal policy of the city, a description of the important features of the budget plan, an explanation of all major increases or decreases in budget recommendations as compared with prior years, and a summary of the proposed budget showing comparisons similar to those required in the budget proper, itemized by principal sources of revenue and the main heads of expenditure.

(Code 1977, § 2-234)

Charter reference—Budget message, Ch. VI, § 4.

Sec. 2-505. Departmental estimates.

The head of every department, office or agency shall submit to the city manager, at such date as the city manager shall determine, estimates of revenue and expenditure for that department, office or agency. Such estimates shall be submitted upon forms furnished by the city manager and shall contain all information which he may require. The city manager shall review the estimates and in preparing the budget may revise them as he may deem advisable, except that in the case of the department of education he shall have power to revise only the total estimated expenditure.

(Code 1977, § 2-235)

Charter reference—Departmental estimates, Ch. VI, § 5.

Sec. 2-506. Appropriation and tax levy ordinances.

At the same time the city manager submits the budget, he shall also introduce an appropriation ordinance and an ordinance making a levy in mills upon all the ratable estate within the city for the ensuing fiscal year. The appropriation ordinance shall be based on the budget but need not be itemized further than by departments and the major divisions thereof and by each independent office and agency and by the principal objects of expenditure. Neither of such ordinances shall be acted upon until after the adoption of the budget. The hearing upon the budget shall be taken to be the hearings upon the appropriation and tax levy ordinances.
(Code 1977, § 2-236)

Charter reference—Appropriation and tax levy ordinances, Ch. VI, § 6.

Sec. 2-507. Budget declared public record; distribution.

Both parts of the budget shall be a public record in the office of the city clerk and shall be open to public inspection. The budget message shall be printed by the city manager for general distribution at the time of its submission to the council. Sufficient copies of the budget proper shall be made available at the same time for the use of the council and the public.
(Code 1977, § 2-237)

Charter reference—Budget a public record, Ch. VI, § 7.

Sec. 2-508. Changes by council; certification.

(a) After the conclusion of a public hearing, but not later than May twenty-first, the council may insert new items of expenditures or may increase, decrease or strike out items of expenditure, except that no item of appropriation for debt service shall be reduced. The council shall not alter the city manager's estimates of receipts. It may, however, decrease the amount of the tax levy for the ensuing fiscal year as proposed by the city manager in proportion to such decrease in the total of expenditures proposed by the city manager as it may have determined. If it shall increase the total proposed expenditures, such increase shall be reflected in full in the tax rate.

(b) On or before May twenty-first, the council shall submit the budget or the budget as amended to the mayor for certification in accordance with the provisions of chapter III of the Charter.
(Code 1977, § 2-238)

Sec. 2-509. Adoption.

Upon approval, reduction or disapproval of budgetary provisions by the mayor, but not later than the last day of May, the council shall adopt the budget, the appropriation ordinance and tax levy ordinance. If it fails to adopt the budget by that date, the budget as certified by the mayor shall be deemed to be the budget of the city for the ensuing fiscal year and expenditures shall be made in accordance therewith. The council shall thereupon adopt the appropriation ordinance and the ordinance making a tax levy in accordance with the budget adopted.
(Code 1977, § 2-239)

Sec. 2-510. Effective date of budget, certification and printing.

Following the last day of May, the budget shall be in effect for the ensuing fiscal year and a copy thereof, together with the appropriate ordinance certified by the mayor and the city clerk, shall be filed with the director of finance. Sufficient printed copies of the budget and appropriation ordinance so certified shall be made available for the use of all departments, offices and agencies of the city government and the public.
(Code 1977, § 2-240)

Sec. 2-511. Work program and allotments.

After the annual appropriation ordinance has been adopted and before the beginning of the fiscal year, the head of each department, office or agency, except the department of education, shall submit to the city manager in such form as he shall prescribe a work program which shall show the requested allotments of the appropriations for such department, office or agency for the entire fiscal year by monthly or quarterly periods as the city manager may direct. Before the

beginning of the fiscal year, the city manager shall approve, with such amendments as he shall determine, the allotments for each department, office or agency, and shall file the allotments with the director of finance, who shall not authorize any expenditure to be made from any appropriation except on the basis of approved allotments. The aggregate of such allotments shall not exceed the total appropriation available to such department, office or agency for the fiscal year. An approved allotment may be revised during the fiscal year in the same manner as the original allotment was made. If at any time during the fiscal year the city manager shall ascertain that the revenue cash receipts for the year, plus general fund cash surplus from the preceding year, will be less than the total appropriations, he shall reconsider the work programs and allotments of the several departments, offices and agencies and revise the allotment so as to forestall the incurring of a deficit.
(Code 1977, § 2-241)

Charter reference—Work program and allotments, Ch. VI, § 11.

Sec. 2-512. Transfers of appropriations.

The city manager may at any time transfer any unencumbered appropriation balance or portion thereof from one (1) classification of expenditure to another within the same department, office or agency. At the request of the city manager, but only within the last three (3) months of the fiscal year, the council may by resolution transfer any unencumbered appropriation balance or portion thereof from one (1) department, office or agency to another.
(Code 1977, § 2-242)

Charter reference—Transfers of appropriations, Ch. VI, § 12.

Sec. 2-513. Additional appropriations.

Appropriations in addition to those contained in the budget, except for the purposes of meeting a public emergency as provided in subsection (d) of section 1 of chapter II of the Charter, shall be made only on the recommendation of the city manager and only if the director of finance certifies that there is available general fund cash surplus sufficient to meet such appropriation.
(Code 1977, § 2-243)

Charter reference—Additional appropriations, Ch. VI, § 13.

Sec. 2-514. Appropriations to lapse at close of year.

Any portion of an annual appropriation remaining unexpended and unencumbered at the close of the budget year shall lapse.
(Code 1977, § 2-244)

Charter reference—Appropriations to lapse at close of budget year, Ch. VI, § 14.

Sec. 2-515. Reserved.

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed § 2-515, which pertained to certification of funds; payments in violation and derived from Code 1977, § 2-245.

Sec. 2-516. Capital budget.

(a) The Mayor shall present a program, previously considered by the Planning and Zoning Commission as provided in chapter VII Section (d)(2) of the Charter, of proposed capital projects for the ensuing fiscal year and for the four (4) fiscal years thereafter. Estimates of the cost of such projects shall be submitted by each department, office or agency annually in the same manner as estimates of other budgetary requirements are prepared for the Mayor. The Mayor shall recommend to the council those projects to be undertaken during the ensuing fiscal year and the method of financing them. The council may levy annually a tax of not more than two (2) mills to be assessed upon the ratable estate within the city at the same time as the regular annual taxes for city expenses, for the benefit of a fund to be known as "The Capital Improvement Fund" established for the purpose of paying the cost of capital improvements for which the city is authorized by the Charter to issue bonds and for no other purpose. The proceeds of such levy shall be kept by the city treasurer in a special bank account until invested as provided in chapter IX of the Charter. The council shall have power to transfer from time to time to the capital improvement fund any portion of the general fund cash surplus not otherwise appropriated. Appropriations for construction or other permanent improvements, from whatever source made, shall not lapse until the purpose for which the appropriation was made shall have been accomplished or abandoned. Any project shall be deemed to have been abandoned if three (3) fiscal years elapse

without any expenditure from or encumbrance of the appropriation therefor. At the request of the Mayor, the council may, at any time by resolution, transfer any unencumbered balance or portion thereof from one (1) project to another.

(b) Along with the program required by paragraph (a) of this section, the Mayor shall submit detailed information about the status of all capital projects and needs, which shall include at least the following information:

(1) A comprehensive detail annual assessment of the capital needs at each facility owned, leased, or operated by the city;

(2) A description of the scope of each capital project;

(3) Justification for each capital project; and

(4) The status of each project, including, if appropriate, percentage funded, percentage complete, and approved start and end dates;

(5) Original approved cost and current approved cost for each project;

(6) The impact of the project on the General Fund operating budget;

(7) The name of each facility affected by a project;

(8) All verified funding sources for each project;

(9) The names of developers, partners, investors, architects, landscape architects, civil engineers, site planners, market consultants, economists; attorneys, government approvals, environmental consultants, soils engineers, surveyors, title companies, lenders, financing, lobbyist, appraiser, General and sub-contractors for each project;

(10) The detailed total amount of all of the City outstanding debt, with a schedule of maturities of bond issues;

(11) A report summarizing the status of all previously approved capital project stating those which have been completed, and the balance of any unexpended bond funds available with recommendations for either redemption of bonds or other capital projects use;

(12) The amount required for interest on the City debt, and for maturing serial bonds and other maturing obligations, and other fixed charges;

(13) An itemization of all anticipated revenue from sources other than taxes for the next ensuing three fiscal years and the average annual income from each source for the past five years;

(14) The amount of funding budgeted to comply with federal, state and local laws except in instances where the applicability is being contested or the City intends to contest same in good faith.

(15) Any other information the Director of Management and Budget believes to be pertinent.

(Code 1977, § 2-246; Ord. No. 19-15, § 3, 12-28-15)

Charter reference—Capital budget, Ch. VI, § 16.

Sec. 2-517. Reserved.

Editor's note—Ordinance No. 10-96, adopted May 13, 1996, repealed § 2-517 in its entirety. Formerly, such section pertained to Wooster Mall Replacement Trust Fund established; funds appropriated and derived from § 2-247 of the 1977 Code; Ord. No. 1078, 1-23-78.

Sec. 2-518. Reserve fund for self-insured liability and property damage losses.

(a) *Established.* A reserve fund for self-insured liability and property losses is hereby established for the purpose of providing protection against liability and property damage losses which would significantly impact department budgets during the year. The director of finance is authorized to establish a reserve fund for self-insured losses. Such fund shall be limited to five (5) times the average annual expected losses, plus the amount of the city's per occurrence deductible, as determined annually by the director of finance.

(b) *Settlements.* In addition, the director of finance is authorized to make insurance settlements of property damage claims available for replacing losses when appropriate through the insurance loss adjustment account with the approval of the city manager.

(c) *Maintenance of fund; annual reports.* The director of finance shall maintain the fund in accordance with generally accepted accounting principles and shall include complete financial statements for the fund in the city's annual financial report.
(Code 1977, § 2-248; Ord. No. 26-84, 6-25-84; Ord. No. 107-89, 11-13-89)

Sec. 2-519. Reserve fund for self-insured workers' compensation losses.

(a) *Established.* A reserve fund for self-insured workers' compensation losses is hereby established for the purpose of providing protection against workers' compensation losses which, in the aggregate during any financial period, would affect significantly personnel, property, the budget or the ability of the city to continue to fulfill its responsibilities to taxpayers and the budget. The director of finance is authorized to establish a reserve fund for self-insured workers' compensation losses, such fund to be provided by annual budget appropriation and to be set at a level estimated to meet the costs of services, adminis-

tration and any reserves for self-insured losses. The maximum amount appropriated shall not exceed three hundred (300) percent of the prior year's loss history and cost of administration.

(b) *Maintenance; financial statements.* The director of finance shall maintain the fund in accordance with generally accepted accounting principles and shall include complete financial statements for the fund in the city's annual financial report.
(Code 1977, § 2-249; Ord. No. 10-86, 6-9-86)

Sec. 2-520. Linkage trust fund established; deposits, expenditures.

There is hereby established under the control of the city treasurer a public expendable trust fund known as the linkage trust fund for the specific purpose of providing funds for job training and housing, and economic development assistance. The council may from time to time make appropriations for the benefit of this fund from the general fund, and all moneys directed by ordinance to be deposited in the linkage trust fund shall be deposited in this fund. Expenditures for the purposes for which this fund is established may be made upon recommendation of the city manager with the approval of the council, and may include expenditures for neighborhood development projects.
(Code 1977, § 2-250; Ord. No. 24-86, 6-23-86)

Sec. 2-521. Reserve fund for self-insured employee benefits program.

(a) *Established.* A reserve fund for self-insured employee benefits expenses is hereby established for the purpose of providing protection against employee benefits expenses which, in the aggregate during any fiscal year, could significantly affect the city's budget. The director of finance is authorized to establish a reserve fund for employee benefits expenses, such funds to be provided by annual budget appropriations and to be set at a level estimated to meet the costs of claims processing, administration, excess insurance and actuarially-determined claims projections. Income from the temporary investments of fund assets shall be re-invested in the reserve to offset the effects of inflation over time.

(b) *Maintenance; financial statements.* The director of finance shall maintain the fund in accordance with generally accepted accounting principles and shall include complete financial statements for the fund in the city's annual financial report.
(Ord. No. 22-91, 5-28-91)

Secs. 2-522—2-535. Reserved.

DIVISION 3. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. VII, Div. 3, §§ 2-536—2-560, which pertained to purchases and contracts. See the Municipal Code Comparative Table for complete derivation.

DIVISION 4. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. VII, Div. 4, §§ 2-561—2-565, which pertained to and disqualification of contractors from bidding on City contracts, respectively. See the Municipal Code Comparative Table for complete derivation.

ARTICLE VIII. CENTRAL PURCHASING SYSTEM AND OTHER POLICIES PERTAINING TO PROCUREMENT*

DIVISION 1. COMMENCEMENT OF THE PURCHASING PROCESS

Purposes and Objectives of the Central Procurement System

Definitions of Terms Used in Article XII

Sec. 2-536. Rules of construction.

This Article and any Regulations adopted hereunder shall be construed and applied to promote the underlying purposes and objectives pertaining to the Central Purchasing System, as set forth in the Charter. Moreover, all Contracts and the terms and conditions of Purchase Orders should include required language to effectuate the pur-

*__Editor's note—__Ord. No. 07-09, adopted March 9, 2009, repealed former Art. VIII, §§ 2-576—2-583, and enacted a new Art. VIII as set out herein. Former Art. VIII pertained to public emergencies. Ord. No. 07-09 included provisions intended for inclusion as Art. XII however, for purposes of preserving the style of the Code and the current use of Art. XII, said provisions have been included as Art. VIII.

poses of the Charter and this Code of Ordinances; however, in the event language is not included in the Contract or Purchase Order, every person who deals with the City is bound to know the extent of its authority and the limitations of its powers, as set forth in the Charter of the City, this Code of Ordinances and any Regulations or Policies pertaining thereto.
(Ord. No. 07-09, 3-9-09)

Sec. 2-537. Definitions.

The words defined in this section shall have the meanings set forth below whenever they appear in this Article, unless the context in which they are used clearly requires a different meaning; or a different definition is prescribed for a particular section or provision.

(A) *Agency* or *using agency* means an agency, authority, board, bureau, commission, department, government corporation, legislative body or official of the City over which the City exercises budgetary or administrative responsibility and which uses Commodities, Equipment, Materials, Supplies or Services or Construction. For purposes of Section 2-597, "Agency" or "Using Agency" means the City department, Agency or office that has entered into any Contract or Purchase Order with or awarded any Grants or Loans to, a Contractor or Candidate believed to be guilty of one (1) or more causes for disqualification enumerated in subsection 2-597(C).

(B) *Agreement* means an arrangement between the City and other parties regarding a course of action set out in a Contract, Purchase Order or memorandum of understanding.

(C) *Architectural and engineering services* means:

(1) Professional services of an architectural or engineering nature, as defined by State law, if applicable, which are required to be performed or provided by a person licensed, registered or certified to provide such services as described in Division 2 hereof;

(2) Professional services of an architectural or engineering nature performed by Agreement that are associated with research, planning, development, design, construction, alteration, or repair of City property or other property or space in which the City has an interest; and

(3) Such other professional services of an architectural or engineering nature, or incidental services, which members of the architectural and engineering professions and individuals in their employ may logically or justifiably perform, including: studies, investigations, surveying, mapping, tests, evaluations, consultation, comprehensive planning, program management, conceptual designs, plans and specifications, value engineering, construction phase services, soils engineering, drawing reviews, preparation of operating and maintenance manuals, and other related services.

(D) *Business* means any individual or sole proprietorship, partnership, firm, corporation, trust, limited liability company, limited liability partnership, joint stock company, joint venture or other legal entity through which business for profit or not for profit is conducted.

(E) *Candidate* means an individual, company or organization that has submitted a proposal, bid or other expression of interest in doing business with the City.

(F) *Commodities* means an article of trade, a movable article of value, something that is bought or sold; any movable or tangible thing that is produced or used as the subject of barter or sale. When used alone the term "Commodities" shall include equipment, materials and supplies.

(G) *Construction* means the process of building, altering, repairing, improving, or de-

molishing any Infrastructure Facility, including any public structure, public building, or other public improvements of any kind to City property or other property or space in which the City has an interest. It does not include the routine operation, routine repair, or routine maintenance of any existing Infrastructure Facility, including structures, buildings or real property.

(1) *Construction item* means commodities or services involved in the process of building, designing, altering or repairing a public structure or building, or other improvements to any City property. It does not include routine operation, routine repair or routine maintenance of existing structures, buildings or property.

(H) *Contract* means a written arrangement between the City and other competent parties to perform or not to perform specific work pertaining to Services and Professional Services or as otherwise set forth in this Chapter. Whenever a subcontract exists under Procurements approved under this Chapter the requirements applicable to "Contracts" shall be applicable to "Subcontracts". Whenever the term "Agreement" is used in this Chapter it shall mean a Contract, Purchase Order or memorandum of understanding depending on the context. A Contract may include the disposition of interests in real property, including, but not limited to a Lease in the event a determination is rendered pursuant to Section 2-558, subjecting the real property to the provisions of this Article.

(I) *Contractor* means any person having a Contract or Purchase Order with the City or any of its Agencies. For purposes of Section 2-597 pertaining to the authority to debar or disqualify, "Contractor" shall mean any person, firm or corporation, which has contracted or seeks to contract with the City, or to participate in a Contract, Purchase Order or other Agreement, in connection with any public works of the municipality, including professional consultants.

(J) *Data* means recorded information, regardless of form or characteristic.

(K) *Design requirements* means the written description of the Infrastructure Facility or service to be procured including: (1) required features, functions, characteristics, qualities, and properties that are required by the City; (2) the anticipated schedule, including start, duration, and completion; (3) estimated budgets (as applicable to the specific procurement) for design, Construction, operation and maintenance. The design requirements may, but need not, include drawings and other documents illustrating the scale and relationship of the features, functions, and characteristics of the project.

(L) *Designee* means a duly authorized representative designated or appointed by a person holding a superior position.

(M) *Electronic* means electrical, digital, magnetic, optical, electromagnetic, or any other similar technology.

(N) *Employee* means an individual employed by the City, whether as a classified or unclassified, permanent or temporary, full-time or part-time Employee, or employed by contract on a continuing basis and all Employees of the Board of Education. For purposes of this Chapter the term "Employee" may include Public Officials.

(O) *Equipment* means personal property of a durable nature that retains its identity throughout its useful life.

(P) *Excess supplies* mean any supplies other than expendable supplies having a remaining useful life but which are no longer required by the using agency in possession of the supplies.

(Q) *Expendable supplies* mean all tangible supplies other than nonexpendable supplies.

(R) *Grant* or *loan* means the furnishing by the City of assistance, whether financial or otherwise, to any person to support a program authorized by law.

(S) *Infrastructure Facility* means any public building; structure; or networks of buildings, structures, pipes, controls, and equipment that provide transportation, utilities, public education, or public safety services. Included are government office buildings; public schools; courthouses; jails; prisons; water treatment plants, distribution systems, and pumping stations; wastewater treatment plants, collection systems, and pumping stations; solid waste disposal plants, incinerators, landfills, and related facilities; public roads and streets; highways; public parking facilities; public transportation systems, terminals, and rolling stock; rail, air, and water port structures, terminals, and equipment.

(T) *Lease* means an Agreement conveying from one (1) person to another use of real estate or personal property for a designated period of time in return for rental payment or other compensation.

(U) *Lease Purchase Agreement* means a Lease containing a purchase option in which the lessee's periodic payments or parts thereof may be applied, in whole or in part, to serve both as the rental obligation and as installments for acquiring ownership of the property upon lessee's exercising the purchase option; a conditional sales contract.

(V) *May* denotes the permissive.

(W) *Materials* means items required to perform a function or used in a manufacturing process, particularly those incorporated into an end product or consumed in its manufacture.

(X) *Modification* or *amendment of Agreement* means any written alteration in specifications, delivery point, rate of delivery, period of performance, price, quantity or other provisions of any Agreement accomplished by mutual action of the parties to said Agreement, other than change orders.

(Y) *Person* means any individual, firm, partnership, joint venture, association, social club, fraternal organization, corporation, limited liability company, estate, trust, syndicate, union, and any other organization, group or association of individuals however formed.

(Z) *Place* means a building or an area, either physical or electronic, set aside for a specified purpose.

(AA) *Procurement* means buying, purchasing, renting, leasing, or otherwise acquiring any Commodities, Services, real or personal property or Construction or obtaining a benefit from the City even in the event the City is not responsible for compensation. It also includes all functions that pertain to the obtaining of any Commodity, Service, property or Construction, including description of requirements, selection and solicitation of sources, preparation and award of a Contract or Purchase Order, and all phases of contract administration. It shall not include land disposition in the normal course of economic development initiatives or the disposition of tax liens, the latter of which is governed by the General Statutes. Said procurements as set forth in this article may be subject to the provisions of Federal and State law or agreement. Moreover, the disposition of interests in real property is subject to the determination rendered pursuant to Section 2-558.

(BB) *Professional services* means any infrequent, technical and/or unique functions performed by independent contractors whose occupation is the rendering of such services. While not limited to licenses, said Professional Services may require a license or other legal authorization as a condition precedent to the rendition thereof. An agreement for Professional Services

may run to partnerships, firms, corporations or other business entities as well as individuals.

(CC) *Public notice* means the distribution or dissemination of information to interested parties using methods that are reasonably available and comply with the requirements of the Freedom of Information laws set forth in the General Statutes. Such methods may include Electronic or paper mailing lists, web site(s) designated by the City and maintained for that purpose or publication in newspapers of general circulation.

(DD) *Public official* means any elected officer or official, any person appointed to any office, board or commission of the City by the Mayor or Common Council, or a Department Head of the City appointed by the Mayor, as set forth in the Charter or ordinances, with or without the approval of the Common Council.

(EE) *Publicly* means in a manner accessible to or observable, either in person or electronically, by the public.

(FF) *Purchase orders* are dual purpose instruments which may serve as:

(1) A commercial agreement documenting a purchase transaction for the acquisition of Commodities, Services or Construction Items, in accordance with the requirements of this Article and the Regulations and Policies, as proposed by the Purchasing Agent, and a financial tool evidencing the encumbrance of funds and authorization or notice to proceed, if specifically set forth, for the transaction in question. Acceptance of a Purchase Order shall constitute a contractual obligation between the City and the Contractor.

(a) In this respect, the standard terms for the procurement of Commodities, Services or Construction Items in conjunction with the provisions of the Charter of the City, the Code of Ordinances and the Uniform Commercial Code as set forth in the General Statutes shall protect the interest of the City.

(b) Furthermore, Purchase Orders, as set forth in subsection 2-537(FF)(1) shall contain statements as to the quantity, description and price of the Commodities, Services or Construction Items ordered; applicable terms as to payment discounts, date of performance and transportation and other factors or suitable references pertinent to the procurement and its execution by the Contractor.

(2) A financial tool only for the encumbrance of funds for a transaction and/or authorization or notice to proceed, in support of other forms of agreement, under circumstances as determined in the sole discretion of the Purchasing Agent.

(a) In this respect, the terms contained therein do not establish independent contractual terms but rather supplement the underlying Agreement evidencing the transaction between the City and the Contractor. In such case the Purchase Order when read together with the Contract and all other documentation attached thereto form the entire Agreement between the parties.

(b) Furthermore, purchase orders, as set forth in this section may contain statements as to the quantity, description and price of the commodities, services or construction items ordered; applicable terms as to payment discounts, date of performance and transportation and other factors or suitable references pertinent to the procurement

and its execution by the Contractor, in the event these items are not set forth in the underlying Agreement or documentation attached thereto.

(GG) *Purchasing agent* means the Chief Operating Officer or a qualified official of the Procurement Services Division designated by the Chief Operating Officer to hold the position established in Section 5(d) of Chapter VIII of the Charter of the City as the head of the Central Purchasing System and the Procurement Officer of the City.

(HH) *Reasonable notice,* for the purposes specifically set forth in Section 5(d) of Chapter VIII of the Charter of the City, means allowing for the accommodation of the normal lead times in the procurement process, including requisitioning Commodities, Services or Construction and allowing for compliance with appropriate procedures and administration in addition to other appropriate considerations, such as, manufacture, construction or other matters relating to delivery of the Commodities, Services or Construction.

(II) *Regulation* means a governmental body's statement, having general or particular applicability and future effect, designed to implement, interpret, prescribe law or policy, or describe organization, procedure or practice requirements, which have been promulgated in accordance with the standards set forth in the Code of Ordinances.

(JJ) *Regulations* or *policies* refers to the Regulations pertinent to this Article and adopted in accordance with the Code of Ordinances and the Policies of the Purchasing Agent, including, but not limited to the contents of the Procurement Guide.

(KK) *Request for response* refers to any competitive process utilized for soliciting a response. A Request for Response may be in the form of a Request for Bid, Request for Proposals or other solicitation method and includes all associated documents, whether attached or incorporated by reference.

(LL) *Response* means a Candidate's written submittal in answer to a request for response.

(MM) *Services* or *contractual services* means the furnishing of labor, time, or effort by a Contractor, not involving the delivery of a specific end product other than reports, which are merely incidental to the required performance. This term shall include the design, development and implementation of technology, communications or telecommunications systems or the infrastructure pertaining thereto, including hardware and software as well as banking and other financial services required by the City pertaining to the investment and maintenance of the various funds of the City. Moreover, this term shall include services for which a Contractor is conferred a benefit by the City, whether or not compensated by the City. This term shall not include employment agreements or collective bargaining agreements.

(NN) *Shall* denotes the imperative.

(OO) *Specification* means a detailed written description of the physical or functional characteristics, or of the nature of a Commodity, Service or Construction Item. It may include a description of any requirement for inspecting, testing, or preparing a Commodity, Service or Construction Item for delivery. Said Specifications are to be attached to or, otherwise, made a part of the solicitation.

(PP) *Supplies* or *expendable supplies* means items that are consumed or expended in the course of being used, as distinguished from Equipment or Materials or items that are the property of the City, including, but not limited to, insurance and printing Materials. Nonexpendable Supplies means all tangible supplies having an original acquisition cost of over an amount per unit to be established by the Purchasing Agent, by Regulation, and a probable useful life of more than one (1) year. Surplus Supplies means any Supplies other than Expendable Supplies that

no longer have any use to the City. This includes obsolete Supplies, scrap metals and Non-expendable Supplies that have completed their useful life cycle.

(QQ) *Transfer of appropriation* means an authorization, made pursuant to the Charter and Ordinances, to shift part or the entire sum budgeted for one (1) appropriation to another general fund appropriation.

(RR) *Work* means all the effort necessary to provide the Commodities and Services necessary to effectuate the terms of any Agreement under this Article.

(SS) *Written* or *in writing* means the product of any method of forming characters on paper, other materials, or viewable screens, which can be read, retrieved, and reproduced, including information that is electronically transmitted and stored.

(TT) *Year* shall mean the calendar year. Where the fiscal year is so intended it shall be specifically referenced. The fiscal year of the City commences on July 1 and ends on June 30, or as otherwise mandated by the State.

(Ord. No. 07-09, 3-9-09)

Initiating the Procurement Process

Sec. 2-538. Commencement of the process.

(A) *Regulations.* The Purchasing Agent shall, as needed, propose Regulations setting forth the procedures for the commencement of the purchasing process by the Using Agency.

(B) *Generally.* At the commencement of the Procurement process, the Using Agency shall file such documentation as may be required by the Purchasing Agent to demonstrate an intent to initiate the procurement process and that there are sufficient funds certified and encumbered, pursuant to the provisions of Section 2-539 of this Division, to meet the obligations of the Using Agency under any subsequent procurement.

(C) *Commencement of procurements in excess of one (1) year in duration.* The Purchasing Agent is authorized to commence the purchasing process for all Procurements of the City in excess of one (1) year from the effective date of the Agreement where said Agent determines the following, in writing:

(1) Sufficient funds are certified and encumbered for the first year of the proposed transaction; or, the Procurement is funded exclusively from a capital project fund account or other multi-year funding commitment or Loan or Grant Agreement, as approved by the Common Council, and said transaction has a term that does not exceed the duration of the project as set forth in the plan or narratives accompanying the capital budget, multi-year funding commitment or Loan or Grant Agreement; and,

(2) The estimated quantity requirements or scope of services cover the period of the Agreement and are reasonably firm and continuing; and,

(3) Such an Agreement will serve the best interests of the City by encouraging effective competition or otherwise promoting economies in Procurement for the City.

The determination of whether an Agreement is to be effective for more than one (1) year shall include consideration of the length of the initial term as well as all automatic renewals, amendments and options to renew. All Agreements required by the Charter and those in excess of one (1) year shall be subject to approval of the Common Council.

(D) *Cancellation due to unavailability of funds.* When funds are not appropriated or otherwise made available to support continuation of performance in a subsequent fiscal period, the Contract or Purchase Order shall be cancelled and the Contractor shall be reimbursed for the reasonable value of any non-recurring costs incurred but not amortized in the price of the Commodities, Services or Construction delivered under the Contract or Purchase Order. The cost of cancellation may be paid from any appropriations available for such purposes.

All Contracts and the terms and conditions of Purchase Orders should include language to ef-

fectuate the purposes of this provision; however, in the event language is not included in the Contract or Purchase Order, every person who deals with the City is bound to know the extent of its authority and the limitations of its powers, as set forth in the Charter of the City, the Code of Ordinances and any Regulations or Policies pertaining thereto.

(1) *Nonappropriation clauses.* A provision pertaining to the nonappropriation of Contracts and Purchase Orders shall be set forth in every Contract or Purchase Order and any solicitation therefore.

(E) *Report of the purchasing agent.* The Purchasing Agent shall maintain a report of active multi-year Agreements administered by the Procurement Services Division. This report shall be available to Employees and City Officials at all times and shall be provided to the Common Council on or before September 1 of each year. Said report shall include such findings as the amount, proposed term of the transaction and the nature of the Services, Commodities, Construction or Lease.

(F) *Exemptions.* Exempt from the requirements of this Article is the following:

(1) Agreements for attorneys-at-law hired by the Corporation Counsel; however, where practicable, the Corporation Counsel shall establish and utilize a proposal and review process;

(2) Agreements for professional services, services, equipment or leases of equipment that are necessary for instruction and related services to be provided to students as may be required by Federal or State law or regulation and not conducive to competitive process as determined in the sole discretion of the Purchasing Agent.

(3) Agreements between (a) the City, State and/or Federal Governments pertaining to Grants; or, (b) the City and other community based organizations, universities and other nonprofit entities participating as potential service providers in the application for a Competitive Grant offered by the Federal or State Governments.

(4) Agreements for professional services for economic development, government affairs and communications by the Mayor, subject to the following limitations: (a) the term of the Agreement shall be for one (1) year or less; (b) the amount of the Agreement shall be less than two hundred thousand dollars ($200,000.00), which shall be within the appropriate line-item of the requesting department; and, (c) the Mayor shall obtain, at least, three (3) Requests for Qualifications including price as a consideration.

(Ord. No. 07-09, 3-9-09)

Sec. 2-539. Certification and encumbrance of funds.

(A) *Regulations.* The Purchasing Agent shall propose regulations, as necessary. setting forth the procedures for the certification and encumbrance of funds.

(B) *Valid obligation.* No contract or purchase order shall be the valid obligation of the City unless certified by the Finance Director, or designee, or automated program managed by the Finance Director, prior to execution thereof, in accordance with the Regulations authorized by subsection 2-539(A) of this Code. No Using Agency shall incur any liability or expense by Contract, Purchase Order or other Agreement for which the City shall be responsible, in excess of the appropriations so authorized by the Common Council or in excess of the amounts contained in Federal or State Grants, Loans or reimbursements. Notwithstanding the foregoing, this provision shall not apply to exempt transactions pursuant to subsection 2-538(E).

(C) *Consequences of executing contracts and purchase orders in violation of the Charter and Code of Ordinances.*

(1) *Expenditures and obligations voided.* Every expenditure or obligation authorized or incurred in violation of the Charter or this Article shall be void.

(2) *Violative payments deemed illegal: Joint and several liability for Public Officials, Employees and other Persons.* Every payment made in violation of the provisions

of the Charter, this Article and any Regulations adopted thereunder shall be deemed illegal and all Public Officials and Employees who shall authorize or make such payment and all persons who shall receive such payment or any part thereof shall be jointly and severally liable to the City for the full amount so paid or received.

(D) *Cause for removal or termination of employment.* If any Public Official or Employee of the City shall knowingly incur any obligation or shall authorize or make any expenditure in violation of the Charter, this Article or the Regulations adopted thereunder, such action shall be cause for removal from office or termination of employment.
(Ord. No. 07-09, 3-9-09)

Specifications and Design Requirements

Sec. 2-540. Preparation of specifications and design requirements.

(A) *Generally.* In accordance with the schedule and format(s) established by the Purchasing Agent, through the Regulations or Policies, the Using Agency shall prepare Specifications and Design Requirements, wherever required.

(1) *Assistance to the Using Agencies.* The Purchasing Agent may retain or authorize the retention of expert advisors to assist the Using Agencies.

(2) *Maximum practicable competition.* All Specifications and Design Requirements shall seek to promote competition and shall not be unduly restrictive.

(B) *The role of the Purchasing Agent: Regulations and policies.* The Purchasing Agent shall monitor use of Specifications and Design Requirements for Commodities, Services or Construction required by the Using Agencies. Moreover, the Purchasing Agent, through the Regulations or Policies, shall set standards for the preparation, maintenance, and content of Specifications and Design Requirements for Commodities, Services or Construction Items required by the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-541, 2-542. Reserved for future use.

Other Provisions Regarding the Early Stages of Procurement

Sec. 2-543. Agreements containing "hold harmless" or indemnification provisions.

The approval of the Corporation Counsel shall be required prior to the execution of each contract or purchase order granting a "hold harmless" or indemnification provision.
(Ord. No. 07-09, 3-9-09)

Secs. 2-544, 2-545. Reserved for future use.

DIVISION 2. THE PROCUREMENT PROCESS: SOLICITATION AND AWARD

Methods of Source Selection

Sec. 2-546. Methods of source selection.

Unless otherwise authorized by the Charter of the City or this Code, all Contracts and Purchase Orders shall be awarded by one (1) of the following methods:

(A) Competitive Offers as set forth in Section 2-548 of this Article, which shall include competitive bidding and competitive proposals as further defined in any regulations proposed by the Purchasing Agent.

(B) Recurring procurements as set forth in Section 2-550 of this Article.

(C) Small purchases as set forth in Section 2-551 of this Article.

(D) Sole source procurement as set forth in Section 2-552 of this Article.

(E) Emergency Procurements as set forth in Section 2-553 of this Article.

(F) Waiver of competitive requirement for extraordinary conditions as set forth in Section 2-554 of this Article.

(G) Architectural and engineering services as set forth in Section 2-556 of this Article.
(Ord. No. 07-09, 3-9-09)

Sec. 2-547. Reserved for future use.

The General Rule: Competitive Solicitations

Sec. 2-548. Competitive solicitations.

(A) *Conditions for use.* All Agreements, in an amount in excess of the twenty-five thousand dollars ($25,000.00) threshold established by the Charter of the City, shall be awarded through the competitive solicitation process established under this Article; including the authority for the Purchasing Agent to determine that an alternate method of source selection, as set forth in Section 2-546 and the referenced sections therein of this Article, is appropriate.

(B) *Request for response.* A Request for Response shall be issued and shall include Specifications, Scope of Services, System Requirements or any other descriptions of the Commodity, Service, Construction or Lease, and all proposed and/or mandatory contractual terms, special terms and conditions applicable to the Procurement, other legal and regulatory requirements. The determination of whether to proceed with Competitive Bidding or Proposal process shall be determined, in the sole discretion of the Purchasing Agent.

(1) *Contents of regulations: Competitive bidding.* Said regulations, pertaining to competitive bidding, shall include mandatory provisions pertaining to:

(a) Public notice (including limited notice in the event of pre-qualification of Candidates);

(b) Bid opening;

(c) Bid acceptance and bid evaluation;

(d) Correction or withdrawal of bids and cancellation of awards (including prohibited practices and written determinations);

(e) Award in a manner in which the City deems to be in its best interest; and,

(f) Cancellation of requests for offers, including standards for the waiver of minor irregularities. The Regulations shall also consider alternate permissible standards for construction projects and multistep competitive bidding.

(2) *Contents of regulations: Competitive proposals.* Said regulations, pertaining to competitive proposals, shall include mandatory provisions pertaining to:

(a) Public notice (including limited notice in the event of pre-qualification of Candidates);

(b) Receipt and register of proposals;

(c) Evaluation factors and criteria;

(d) Correction or withdrawal of proposals and cancellation of awards (including prohibited practices and written determinations);

(e) Award to the offer most advantageous to the City; and,

(f) Cancellation of requests for offers, including standards for the waiver of minor irregularities. The regulations shall also consider standards for "design plus" contracts as well as standards for other forms of solicitation such as request for information, request for qualifications, request for quotation or other forms of solicitation that may be utilized to ascertain information or establish qualifications for the request for proposal.

The regulations shall be promulgated in conformity with standards applicable to public procurement and generally accepted by the procurement organizations delineated in the Charter of the City.

(C) *Life cycle cost analysis.* Life cycle cost analysis that includes consideration of societal and environmental factors is to be used when selecting items to be specified for purchase. In addition, the Purchasing Agent will conduct a life cycle cost analysis including consideration of societal and environmental factors when evaluating responses.

(D) *Criteria for award.* A request for response does not necessarily contemplate an award based solely on price. Rather, the City reserves its rights to reject any or all responses or any portion thereof, for whatever reason.
(Ord. No. 07-09, 3-9-09)

Sec. 2-549. Competitive negotiations.

(A) *Competitive negotiations with Candidates and revisions to offers.* As provided in the request for response and under regulations or policies, discussions may be conducted, by the Purchasing Agent or a Designee, with the participation of the Using Agency, where practicable, with Candidates who submit responses determined to be reasonably susceptible of being selected for award for the purpose of refinement and clarification to assure full understanding of, and responsiveness to, the solicitation requirements.

(B) *Authority of the Purchasing Agent.* If the lowest responsive, responsible and qualified Candidate's price submitted is in excess of funds available to make an award, and a resumption of the competitive process would not be in the best interest of the City, the Purchasing Agent or Designee is empowered to negotiate with such Candidate and award the agreement on the basis of the funds available. If the award of an agreement on said basis is refused by such Candidate, the Purchasing Agent or Designee may negotiate with other Candidates who submitted responses in ascending order of responsive, responsible and qualified offers received.

(C) *Fair and equal treatment of Candidates.* Candidates shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of offers, and such revisions may be permitted after submission and prior to award for the purpose of obtaining best and final offers.

(D) *Prohibition against disclosure of information of competing Candidates.* In conducting discussions, no Public Official or Employee shall disclose any information derived from proposals submitted by competing Candidates, except for such information which may be disclosed by law.
(Ord. No. 07-09, 3-9-09)

Sec. 2-550. Consolidated and recurring procurements; procurement planning.

(A) *Consolidated procurement.* The Purchasing Agent shall consolidate the acquisition of commodities, services and construction items required by the various departments, on a recurring basis, in order to maximize competition and assure the best possible prices.

(B) *Submission of recurrent commodities and services; planned competitive procurements.* Concurrent with the submission of the Mayor's Annual Budget, each Department Head shall submit to the Purchasing Agent an inventory and estimated annual expenditure for commodities, services or construction items utilized, on a recurrent basis, in the customary and usual activities of the Department. Moreover, Departments Heads shall submit a schedule of all competitive procurements planned for the subsequent fiscal year.
(Ord. No. 07-09, 3-9-09)

Exceptions to the General Rule

Sec. 2-551. Small purchases.

Small purchases where the amount is less than twenty-five thousand dollars ($25,000.00) shall be purchased in accordance with procedures set forth in Regulations proposed by the Purchasing Agent and approved by the Common Council.
(Ord. No. 07-09, 3-9-09)

Sec. 2-552. Sole source procurement.

A contract or purchase order may be awarded for a commodity, service, or construction item without competition when, under regulation or policy, the Purchasing Agent determines, in writing, that there is only one known capable supplier or source for the required commodity, service, or construction item occasioned by the unique nature of the requirement, the supplier or market conditions. The determination shall be in accordance with the standards set forth in Regulations proposed by the Purchasing Agent.
(Ord. No. 07-09, 3-9-09)

Sec. 2-553. Procurements pertaining to public emergencies.

Notwithstanding any other provisions of this Article, the Purchasing Agent may make emergency procurements when there exists a threat to the lives, health, property, welfare or safety of the citizens of the City, if authorized by the Mayor in accordance with Section 2(p) of Chapter V of the Charter of the City.
(Ord. No. 07-09, 3-9-09)

Sec. 2-554. Waiver of competitive requirement: Extraordinary conditions.

(A) *Extraordinary conditions or contingencies.* Whenever a situation that is not deemed a public emergency, as set forth in Section 2-553, exists by reason of extraordinary conditions or contingencies that could not reasonably be foreseen and guarded against (or within the purview of Section 2-553, above), or because of unusual trade or market conditions, the Purchasing Agent, may, if it is in the best interest of the City, waive the competitive solicitation requirement set forth in Section 2-548.

(1) *Basis for the determination.* The determination shall be based upon need and shall not be utilized in order to satisfy preferences or convenience of the Using Agency; or, for preventing funds from lapsing at the end of a fiscal year; or, for any reason that would circumvent the procurement methods set forth in this Article.

(Ord. No. 07-09, 3-9-09)

Sec. 2-555. Waiver of requirement for competition.

All procurements, funded out of capital or operating budgets or any other revenue sources for which the City has fiduciary responsibility, including Public Works projects, are subject to this Article and any Regulations enacted thereunder. The requirement for competition may not be waived except as outlined under provisions of this Article pertaining to emergency procurement, sole source procedures and extraordinary conditions.
(Ord. No. 07-09, 3-9-09)

Sec. 2-556. Architectural, engineering and construction management services.

(A) *Generally.* It is the policy of the City to Publicly announce all requirements for architectural, engineering and construction management services and to negotiate agreements for architectural, engineering or construction management services on the basis of demonstrated competence and qualifications for the type of Services required, and at fair and reasonable prices, taking into consideration the source selection methods set forth in Section 2-546.

(B) *Infrastructure Facility with a total cost in excess of five million dollars ($5,000,000.00).* The following selection process shall be used on any infrastructure facility (i.e. nonschool related) in which the estimated total cost of construction as certified by the Department of Public Works is in excess of five million dollars ($5,000,000.00):

(1) *Architectural, Engineering and Construction Management Selection Advisory Committee.* There shall be an Architectural, Engineering and Construction Management Selection Advisory Committee for the selection of Architectural, Engineering and Construction Management Services, which shall be comprised of the Purchasing Agent (who shall serve as Chair), the Director of Public Works, the City Engineer, the Capital Projects Manager and City Architect, or their designees, and two (2) public members appointed by the Mayor, with experience and knowledge in the procurement of Architectural, Engineering or Construction Management Services. Decisions of the Committee may be delegated to three (3) member panels including, at least, two (2) city officials.

(a) Prior to the commencement of the selection process, a Request for Response shall be properly advertised by the Purchasing Agent so that interested professionals may have a reasonable opportunity to respond.

(b) The Selection Committee shall evaluate current statements of qualifica-

tions and performance data on file with the City, together with those that may be submitted by other firms regarding the general needs of the City pertaining to Architectural, Engineering and Construction Management Services. The Selection Committee shall conduct discussions with no less than three (3) firms regarding the services and the relative utility of alternative methods of approach for furnishing the required services, and then shall select therefrom, in order of preference, based upon criteria established and published by the Committee, no less than three (3) of the firms deemed to be the most highly qualified to provide the services required.

(c) The Committee shall, after a thorough review of responding professionals, develop a short list of highest qualified firms in order of priority for recommendation to the Chief Operating Officer from a list of three (3) architects selected from said roster whom the panel deems best qualified for the project. In its presentation to the Chief Operating Officer, the Committee shall rank the professionals in order of qualifications from highest to lowest.

(d) Thereafter the Chief Operating Officer shall, from said list approve the name of the highest qualified responding professional for the City Project.

(2) *Negotiation.* The Purchasing Agent shall negotiate a contract with the highest qualified firm for Architectural, Engineering and Construction Management Services at compensation which said Agent determines, in writing, to be fair and reasonable to the City. In making this decision, the Purchasing Agent shall take into account the estimated value, the scope, the complexity, and the professional nature of the services to be rendered.

(a) *Subsequent negotiations.* Should the Purchasing Agent be unable to negotiate a satisfactory contract with the firm considered to be the highest qualified, at a price said Agent determines to be fair and reasonable to the City, negotiations with that firm shall be formally terminated. The Purchasing Agent shall then undertake negotiations with the second highest qualified firm. Failing accord with the second highest qualified firm, the Purchasing Agent shall formally terminate negotiations. The Purchasing Agent shall then undertake negotiations with the third highest qualified firm. Should the Purchasing Agent be unable to negotiate a contract at a fair and reasonable price with any of the selected firms, the Purchasing Agent shall select additional firms in order of their competence and qualifications, and the Purchasing Agent shall continue negotiations in accordance with this section until an agreement is reached.

(C) *Infrastructure Facility with a total cost less than five million dollars ($5,000,000.00).* The following selection process shall be used on any Infrastructure Facility (i.e. nonschool related) in which the estimated total cost of construction as certified by the Department of Public Works is less than five million dollars ($5,000,000.00):

(1) If the estimated construction cost of an Infrastructure Facility is less than five million dollars ($5,000,000.00), architects, engineers or construction managers may be selected as provided in subsection 2-556(B), above, or, alternatively, may be selected from an approved list of architects or engineers, on the basis of a publicly advertised request for proposals prepared by the Purchasing Agent, who have been pre-selected as per the requirements of subsection 2-556(B)(1), above. The Chief Operating Officer shall have the authority to appoint one (1) or more approved architects or engineers to be available for a variety of projects that are in place or that may come into being during the term of the agreement to provide said services.

(2) The City Department charged with managing a particular Infrastructure Facility shall assign specific work tasks to an approved Architect or Engineer based upon their unique qualifications, availability, fee, and performance. Each project tasks shall be formally assigned using individual purchase orders issued pursuant to, and in accordance with, the on-call agreement. The Department managing the project is responsible to identify funding for each assignment and to properly code the expenses to the correct cost centers.

(3) The approved Architects, Engineers or Construction Managers may be awarded contract(s) for an initial one (1) year duration with an option of extending the contract for two (2) additional one (1) year extensions, bringing the maximum contract duration to three (3) years. If a particular work task is still in progress at the completion of the contract duration (including any granted extensions), the approved architects, engineers or construction managers will be allowed to complete the work task; however no new work tasks will be assigned beyond the maximum contract duration.

(D) *School construction projects.* All school construction projects shall be subject to the provisions of Special Act No. 97-4, as amended by Special Act No. 01-7.
(Ord. No. 07-09, 3-9-09)

Sec. 2-557. Federal and State procurement standards: Application for competitive grants.

Notwithstanding the requirements of this Article, all purchases that include funding by Federal or State funds, including the application for competitive grants, shall comply with the applicable procurement and legal requirements of the Federal or State laws or regulations.
(Ord. No. 07-09, 3-9-09)

Sec. 2-558. Real property transactions.

Notwithstanding the provisions hereof pertaining to competitive solicitations, the City may, upon recommendation of the Chief Operating Officer stating the reasons therefor and approval thereof by the Mayor, transfer, convey, exchange, lease or otherwise dispose of City land or any interest which it may have in real property, including air rights, but excluding all real property received by the city as a gift, devise or bequest for a specific purpose, without competitive bid, provided any such transfer, conveyance, exchange, lease or other disposition is made after a public hearing, is authorized and approved by an affirmative vote of two-thirds (⅔) of the Common Council.
(Ord. No. 07-09, 3-9-09)

Sec. 2-559. Special provisions regarding agreements for infrastructure facilities.

(A) *Initial bids; procedure.* In accordance with the provisions of this Division, the Purchasing Agent shall, on the basis of specifications prepared by the city engineer and approved by the head of the Using Agency concerned, provide for a competitive procurement on Infrastructure Facilities. The Purchasing Agent shall be responsible for setting policy and procedures for the issuance, public advertisement, receiving, tabulating and evaluation of responses, in accordance with the provisions of this Article pertaining to competitive procurements.

(B) *Required provisions.* Each agreement for the construction, remodeling or repair of any Infrastructure Facilities shall contain both of the following provisions:

(1) "The wages paid to any mechanic, laborer or workman employed upon the work herein contracted to be done shall be at a rate equal to the prevailing wage rate in the State of Connecticut and/or Federal Government, whichever is applicable, for the same work in the same trade or occupation."

(2) "Each contractor and subcontractor, or an authorized officer or employee, responsible for supervision of the payment of wages shall submit, on a weekly basis within seven (7) days after the regular payment date of the payroll period, to the Director

of the Office of Human Relations of the City, a "Weekly Certified Statement of Compliance". Due and timely compliance with this provision shall be a condition precedent to the approval and transmittal of the next and succeeding payments by the city or its authorized officers or agents to the contractor under the terms of this agreement."

(C) *Affirmation of weekly certified statement of compliance.* The weekly certified statement of compliance in subsection (B) shall be executed as required by the General Statutes and shall affirm due and proper payment of such wages as are prescribed in the governing agreement. Such statement shall additionally recite, in a conspicuous manner, the language of the General Statutes.

(D) *Inspection and review weekly certified statement of compliance statement.* The duty and authority to inspect and review each weekly certified statement of compliance is hereby vested with the Director of the Office of Human Relations (hereinafter "Director").

(E) *Inspection and review of weekly certified statement of compliance; procedure.* The following procedure for inspection and review of each weekly certified statement of compliance is hereby established:

(1) The Director of the Office of Human Relations shall receive, record and acknowledge receipt of each weekly certified statement of compliance from contractors and subcontractors;

(2) The Director shall examine each such statement for accuracy and authenticity and shall from time to time corroborate the statement with information ascertained from on-site inspections and information from other sources, including, but not limited to, mechanics, laborers and workers, employed upon the subject work projects, and the officers and employees of the subject contractors and subcontractors;

(3) If the Director shall be of the opinion that any weekly certified statement of compliance contains false information, findings thereon shall be transmitted to the Connecticut Department of Labor for further investigation, along with the pertinent weekly certified statement of compliance and such other materials as will aid the Department of Labor or the State's Attorney in a determination of whether a criminal prosecution should arise from any false or improperly certified affidavits.

In order to effectuate the purposes of this provision, each contractor and subcontractor shall make their employees available for interview at the job site with the Office of Human Relations or other representative of the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-560—2-569. Reserved for future use.

Qualifications and Duties

Sec. 2-570. Responsible candidate defined.

Contracts or *purchase orders* shall be awarded by the City to any responsible Person or Candidate, unless otherwise determined to be nonresponsible by the Purchasing Agent in accordance with the provisions of Sections 2-571 through 2-575 and any pertinent Regulations promulgated thereunder.
(Ord. No. 07-09, 3-9-09)

Sec. 2-571. Obligations of Persons or Candidates seeking a contract or purchase order with the City.

(A) No Contract or purchase order, regardless of how procured, shall be awarded by the City to any Person or Candidate until it is determined that such Person, Candidate or affiliated entity has no delinquent taxes or other financial obligation owed to the City.

(1) For solicitations in an amount in excess of the threshold for competitive procurements as set forth in the Charter of the City, the Person or Candidate shall not be deemed a Responsible Candidate until so certified by the Tax Collector or as otherwise set forth in subsection 2-571(B), below.

(2) For solicitations in an amount less than the threshold for competitive procurements as set forth in the Charter of the City, the candidate shall execute an affidavit certifying that there are no delinquent taxes or other financial obligations owed to the City.

(B) In any case, where a Person, Candidate or affiliated entity is found to be delinquent in the payment of personal or real property taxes, the Purchasing Agent may require that the Person or Candidate pay said taxes or submit a plan to make current all arrearage of such taxes. Such plan shall include a schedule of payments sufficient to make such Person, Candidate or affiliated entity current within a time period satisfactory to the Tax Collector, following consultation with the Purchasing Agent. The submission of such approved plan will certify the Person or Candidate as a Responsible Candidate with respect to tax delinquency.

(C) For purposes of determining an affiliated entity as set forth in this Division, the Person or Candidate must be found to be the owner of an interest of twenty-five (25) percent or more in a business entity organized under law.
(Ord. No. 07-09, 3-9-09)

Sec. 2-572. Disclosures required by the Federal or State Governments.

(A) No contract or purchase order, regardless of how procured, shall be awarded by the City to any Person or Candidate until all affidavits, disclosures and certifications required by the Federal or State Governments have been executed and delivered as required.

(B) Until the Purchasing Agent has determined compliance with all Federal or State requirements, the Person or Candidate shall not be deemed a Responsible Candidate.
(Ord. No. 07-09, 3-9-09)

Sec. 2-573. Determination that the Person or Candidate is an equal opportunity employer.

(A) No contract or purchase order, regardless of how procured, shall be awarded to any Person or Candidate that is not an equal opportunity employer.

(B) Subsequent to the opening of the bids or the receipt and registration of proposals for a contract or purchase order, the Purchasing Agent shall forward the name of the Candidate to the Director of the Office of Human Relations. The said Director and/or a designee, shall review such Candidate to determine whether the Candidate can be accepted to be an equal opportunity employer. Within three (3) days after receiving the name of the Candidate along with the requisite information, the Director shall make written recommendations to the Purchasing Agent.

(C) In determining whether any given Candidate can be accepted as an equal opportunity employer, the Candidate will be required to submit certain information on forms provided by the City. Such information will be reviewed and evaluated by the Director of the Office of Human Relations and/or a designee. Such information shall comprise the:

(1) Present total work force of the Candidate and the participation of Minority workers therein;

(2) Existing job categories occupied by Minority workers in relation to the overall work force of the Candidate;

(3) Relationship of the Candidate's Minority work force, by job category, to the Candidate's labor market area;

(4) Commitment of the Candidate to hire Minority workers when the present Minority work force is not representative of the Minority work force available in the Candidate's labor market area;

(5) Submittal by a Candidate of a company policy statement of equal employment opportunity; and,

(6) Any other information as set forth in any Regulations promulgated under this Article.

(D) As used in this section, minority and female or women workers shall have the meaning set forth in the General Statutes and, where applicable, Federal law and where the terms are

distinguishable they shall be interpreted in that manner for the purposes of effectuating the purposes of this Article.

(E) Upon recommendation by the Director of the Office of Human Relations, the equal opportunity provisions of this section (or portions thereof) may be waived in the sale of City property.
(Ord. No. 07-09, 3-9-09)

Sec. 2-574. Revocation of award by the Purchasing Agent.

Following the award of a contract or purchase order, a Person or Candidate shall be deemed a Responsible Candidate if the obligations set forth in Sections 2-571 through 2-573, above, are complied with. If the Person or Candidate fails to comply the Purchasing Agent is authorized to revoke the award.
(Ord. No. 07-09, 3-9-09)

Sec. 2-575. Determinations by the Purchasing Agent.

(A) *Additional standards for the determination of a Responsible Candidate.* In addition to the provisions set forth in Sections 2-571 through 2-574, above, the Purchasing Agent shall propose Regulations establishing additional categories, standards and protocols for determining the responsibility of Candidates.

(B) *Determinations by the Purchasing Agent.* The Purchasing Agent, in accordance with the standards set forth under the Regulations, shall:

(1) Make a determination of nonresponsibility of a Candidate;

(2) Determine the method of submitting prequalification information and the information required in order to be prequalified; and,

(3) Have the authority to request from Candidates factual information reasonably available to the Candidate to substantiate that the price or cost offered, or some portion of it, is reasonable.

(C) *Failure to supply information.* The unreasonable failure of a Candidate to promptly supply information in connection with an inquiry with respect to responsibility may be grounds for a determination of nonresponsibility with respect to such Candidate.

(D) *Right of nondisclosure.* To the extent permitted by the General Statutes, confidential information furnished and clearly designated as such by a Candidate pursuant to this Article shall not be knowingly disclosed outside of the Office of the Purchasing Agent without prior written consent by the Candidate.
(Ord. No. 07-09, 3-9-09)

Sec. 2-576. Payments by the City.

No payment shall be tendered:

(A) Under a contract or purchase order until a verification by the Finance Director has been placed in the file stating that the Contractor or any affiliated entity, either directly or through a lease, owes no back taxes; and/or,

(B) Under a contract or purchase order, in the event it is determined by the Treasurer that the Contractor or affiliated entity has not filed a current list of taxable personal property as required by the General Statutes; unless it has been otherwise certified that such person is not required to file such list.
(Ord. No. 07-09, 3-9-09)

Secs. 2-577—2-579. Reserved for future use.

Determinations and Reports

Sec. 2-580. Finality of determinations.

The determinations of the Purchasing Agent required by these ordinances are final and conclusive.
(Ord. No. 07-09, 3-9-09)

Sec. 2-581. Retention of procurement records.

All procurement records shall be retained and disposed of in accordance with the records retention guidelines established by the laws of the State of Connecticut.
(Ord. No. 07-09, 3-9-09)

Sec. 2-583. Record of procurement actions taken with regard to sole source, waiver and emergency procurements.

(A) *Record of procurement actions.* The Purchasing Agent shall maintain a record, at the Office of the Procurement Division, listing all contracts or purchase orders pertaining to sole source, emergency and waiver and any unauthorized activity in accordance with the provisions of the General Statutes pertaining to retention of records. In addition to such statutory requirements the record shall contain: (1) Each Contractor's name; (2) The amount and type of each Contract or Purchase Order; and, (3) A listing of the commodities, services or construction procured under each contract or purchase order.

(B) *Filing of an annual report.* A statement of all purchases made under the provisions of this section shall be set forth in the annual report by the Office of the Procurement Division to the Common Council.
(Ord. No. 07-09, 3-9-09)

Sec. 2-584. Reserved for future use.

DIVISION 3. CONTRACTS AND PURCHASE ORDERS

Contracts and Purchase Orders

Sec. 2-585. Contracts and purchase orders: When required.

(A) *Regulations governing the utilization of contracts and purchase orders.* The Purchasing Agent shall propose regulations setting forth the requirements for the use of Contracts and Purchase Orders including, but not limited to: Applicability to purchases and sales, commodities, services and leases, public works and improvements, construction and appropriate standards for execution of contracts and issuance of purchase orders.

(B) *Role of the Corporation Counsel.* All contracts shall be approved as to form and legality by the Corporation Counsel.

(C) *Forfeiture of security.* A Person or Candidate shall forfeit any security which accompanied a bid if a contract is not entered into within a time-frame set forth in the regulations. The Purchasing Agent shall propose such regulations.
(Ord. No. 07-09, 3-9-09)

Sec. 2-586. Grants with the Federal or State Government.

(A) *Required documentation.* All Grants in which the City is seeking to obtain funding from the Federal or State Government, otherwise exempt from certain provisions of this Article, shall be documented in writing and executed as set forth in the Regulations promulgated by the Purchasing Agent.

(B) *Required review.* All grant requests and applications shall be reviewed by the office responsible for grant administration prior to submission.

(C) *Required approvals.* All grant applications and/or agreements documenting grants are subject to approval by the Common Council if required by Federal or State law or as may be otherwise set forth in this Code. The City will not execute a written Agreement pertaining to Grants that require matching funds by the City, unless approved by the Common Council.
(Ord. No. 07-09, 3-9-09)

Sec. 2-587. Modification or amendment to agreements.

(A) *Generally.* The Purchasing Agent is authorized to waive the competitive process required by Section 2-548, and permit amendments or modifications, upon a written determination by said Agent, supported by documentation, that:

(1) The amendment is within the scope of services of the original procurement; and,

(2) Soliciting competitive bids for such purchase would:

(a) Cause a hardship for the City; or,

(b) Such solicitation would result in a major increase in the cost of such equipment, materials, supplies or contractual services; or,

(c) The Contractor is the sole source for such commodities, services or construction items; or,

(3) The underlying agreement is otherwise exempt from this Article as set forth in subsection 2-538(E).

The legal basis for said determination shall be reviewed and approved by the Corporation Counsel.

(B) *Due diligence.* In reaching the determination in subsection 2-587(A), above, the Purchasing Agent shall state, in writing, the reasons for said decision; which writing shall be submitted to the Corporation Counsel for review, prior to final decision. Said determination shall also contain a finding that no such competitive quotation which complies with the existing specifications for the contract or purchase order is lower than or equal to the Contractor's quotation. The determination regarding sole source shall be made in conformity with Section 2-552.
(Ord. No. 07-09, 3-9-09)

Sec. 2-588. Restrictions on the extension of contracts or purchase orders.

No Using Agency may extend a contract or purchase order, which was subject to the competitive process requirements of this Article, without complying with such requirements, unless:

(A) The Purchasing Agent makes a written determination, supported by documentation, that

(1) Soliciting competition for such purchase would cause a hardship for or interruption of services for the City; or,

(2) The Contractor is the sole source for such Equipment, Materials, Supplies or Contractual Services; and,

(B) The Purchasing Agent makes a written determination, following review by the Corporation Counsel, that no such competitive response that complies with the existing specifications for the contract or purchase order is lower than or equal to the Contractor's quotation. Any such contract extension shall be based on the Contractor's offer. The Purchasing Agent shall make informal inquiry in order to arrive at such determinations required under this section.

(C) No contract or purchase order shall be extended more than three (3) times.
(Ord. No. 07-09, 3-9-09)

Secs. 2-589, 2-590. Reserved for future use.

Bonds, Insurance and Guarantees

Sec. 2-591. Purchase of official bonds and insurance.

The Purchasing Agent shall purchase at the expense of the City surety bonds for all officers and Employees of the City required by law or by ordinance to furnish such bonds to the City, and insurance of such types against liability, loss or damage on the part of the City or its property as authorized by the Finance Director or designee. The Finance Director or designee shall be responsible for the collection of insurance benefits and other matters relating to the administration of the City 's insurance. The provisions of this Division relating to competitive bidding shall apply to purchases of surety bonds and insurance.
(Ord. No. 07-09, 3-9-09)

Sec. 2-592. Bid or proposal security; performance and payment bonds; errors and omissions insurance; other forms of security.

The Purchasing Agent shall propose regulations covering the standards, terms and conditions for bid or proposal security, performance and payment bonds; errors and omissions insurance and other forms of security necessary to protect the interests of the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-593—2-595. Reserved for future use.

DIVISION 4. LEGAL AND CONTRACTUAL REMEDIES

Pre-Litigation Resolution of Controversies

Sec. 2-596. Authority to resolve protested solicitations and awards and controversies relating to contracts, purchase orders and breach of terms.

The Purchasing Agent shall establish, by regulation, procedures for resolving protested solicitations or awards and controversies relating to contracts, purchase orders and the breach of terms therein.
(Ord. No. 07-09, 3-9-09)

Sec. 2-597. Authority to debar or disqualify.

(A) *Authority.*

(1) *Debarment or disqualification.* After due notice to the Person (including any Candidate or Contractor, or affiliate thereof) involved, as set forth below, and reasonable opportunity for that Person to be heard, in accordance with the procedures for hearings on contested cases established in Chapter 54 of the General Statutes, the Chief Operating Officer after consultation with the Using Agency, the Purchasing Agent and the Corporation Counsel, shall have the authority to debar or disqualify a Person for cause from consideration for award of contracts or purchase orders by the City. A debarment or disqualification shall not be for a period of more than two (2) years.

(2) *Debarment and disqualification* means the prohibition of any Contractor or Candidate from bidding on, applying for, or participating as a subcontractor on, City procurements in response to a request for response or from being considered for the awarding of any agreement with the City.

(3) *Regulations and policies.* The authority to debar or disqualify shall be exercised in accordance with the General Statutes, this Article and regulations and/or policies, if any.

(B) *Notice of hearing; procedures.*

(1) Subsequent to a determination that there exist one (1) or more causes for debarment or disqualification of any Contractor or Candidate, the Using Agency and/or the Purchasing Agent or the Director of the Office of Human Relations shall recommend debarment or disqualification of said Contractor to the Chief Operating Officer. Upon review of the recommendation, the Chief Operating Officer may conduct a hearing (or may assign a hearing officer) to determine whether there exists one (1) or more causes for debarring or disqualifying said Contractor or Candidate from bidding on, applying for or participating in the award of Agreements with the City.

(2) The Chief Operating Officer shall send written notice to the Contractor or Candidate of the proposed debarment or disqualification. Such notice shall include:

(a) A statement of the time, place and nature of the hearing;

(b) A statement of legal authority and jurisdiction under which the hearing is to be held;

(c) References to the particular sections of the statutes and regulations involved; and

(d) A short and plain statement of the matters asserted by the affected Using Agency. Copies of the notice shall be sent to the affected Using Agency, the Corporation Counsel, the Director of the Office of Human Relations and the Purchasing Agent.

(3) The hearing shall be conducted in accordance with the procedures for hearings on contested cases established in Chapter 54 of the General Statutes.

(4) *Decision.* The Chief Operating Officer or hearing officer shall issue a written decision to disqualify or debar. The decision shall:

(a) State the reasons for the action taken;

(b) If, the Contractor or Candidate is being debarred to disqualified, state the period of the debarment or disqualification; and,

(c) Inform the Contractor or Candidate involved of any rights to judicial review as may be allowed under state law.

The existence of a cause for debarment or disqualification shall not be the sole factor to be considered in determining whether the Contractor or Candidate shall be debarred or disqualified. In determining whether to debar or disqualify a Contractor or Candidate, the hearing officer shall consider the seriousness of the Contractor or Candidate's acts or omissions and any mitigating factors.

(5) *Notice of decision.* The Chief Operating Officer or hearing officer shall issue a written decision within ninety (90) days of the last date of such hearing, as determined by the Chief Operating Officer. The hearing officer shall send the decision to the Contractor or Candidate by certified mail, return receipt requested and by regular mail.

(6) *Finality of decision.* A decision under subsection (4) of this section shall be final and conclusive.

(C) *Causes for debarment or disqualification.* The causes for debarment or disqualification include the following:

(1) Conviction or entry of a plea of guilty or nolo contendere for or admission to commission of a criminal offense as an incident to obtaining or attempting to obtain a public or private contract or subcontract, or in the performance of such contract or subcontract;

(2) Conviction or entry of a plea of guilty or nolo contendere for or admission to the violation of any State or Federal law for embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property or any other offense indicating a lack of business integrity or business honesty which affects responsibility as a municipal contractor;

(3) Conviction or entry of a plea of guilty or nolo contendere or admission to a violation of any State or Federal antitrust, collusion or conspiracy law arising out of the submission of bids or proposals on a public or private contract or subcontract;

(4) A willful failure to perform in accordance with the terms of one (1) or more public contracts, agreements or transactions;

(5) A history of failure to perform or of unsatisfactory performance of one (1) or more public contracts, agreements or transactions;

(6) A willful violation of a statutory or regulatory provision or requirement applicable to a public contract, agreement or transaction; or

(7) Evidence of debarment or disqualification by the State of Connecticut or the Federal Government; unless the Candidate can demonstrate why such rulings should not apply to the City.

(D) *Imputed conduct as set forth in the General Statutes.* For purposes of a disqualification proceeding under subsection 2-597(B), conduct may be imputed as follows:

(1) The fraudulent, criminal or other seriously improper conduct of any officer, director, shareholder, partner, Employee or other individual associated with a Contractor or Candidate may be imputed to the Contractor or Candidate when the conduct occurred in connection with the individual's performance of duties for or on behalf of the Contractor or Candidate and the Contractor or Candidate knew of or had reason to know of such conduct. The term "other seriously improper conduct" does not include advice from an attorney, accountant or other paid consultant if it was reasonable for the Contractor or Candidate to rely on such advice.

(2) The fraudulent, criminal or other seriously improper conduct of a Contractor or

Candidate may be imputed to any officer, director, shareholder, partner, Employee or other individual associated with the Contractor or Candidate who participated in, knew of or had reason to know of the Contractor or Candidate's conduct.

(3) The fraudulent, criminal or other seriously improper conduct of one (1) Contractor or Candidate participating in a joint venture or similar arrangement may be imputed to other participating Contractors or Candidates if the conduct occurred for or on behalf of the joint venture or similar arrangement and these Contractors or Candidates knew of or had reason to know of such conduct.

(E) *Reduction of debarment or disqualification.* The Chief Operating Officer may reduce the period or extent of debarment or disqualification, upon the Contractor's request, supported by documentation, for the following reasons:

(1) Newly discovered material evidence;

(2) Reversal of the conviction upon which the debarment or disqualification was based;

(3) Bona fide change in ownership or management;

(4) Elimination of other causes for which the debarment or disqualification was imposed; or

(5) Other reasons the City deems appropriate.

(F) *Exceptions.* The Chief Operating Officer may grant an exception permitting a debarred or disqualified Contractor or Candidate to participate in a particular Contract, subcontract or Purchase Order upon a written determination by the Using Agency that there is good cause, in the interest of the public, for such action.

(G) *Procedures where Chief Operating Officer serves as Purchasing Agent.* In the event the Chief Operating Officer is serving in the capacity as the Purchasing Agent, the Mayor shall review the recommendation.

(H) Interpretations for purposes of interpreting this provision the use of the statutory terms "contract or subcontract" shall be inclusive of all contracts, purchase orders and agreements as defined in this Article.
(Ord. No. 07-09, 3-9-09)

Secs. 2-598—2-609. Reserved for future use.

DIVISION 5. INTERGOVERNMENTAL RELATIONS

Definitions

Sec. 2-610. Cooperative purchasing authorized.

The Purchasing Agent may propose regulations pertaining to cooperative purchasing agreements as authorized by the Charter of the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-611—2-614. Reserved for future use.

DIVISION 6. VENDOR PAYMENT

Administration

Sec. 2-615. Payment processing requirement.

The City shall honor all payment requests for Commodities, Services or Construction Items received by, and for, the City provided there is on record all information, data and documentation required by the City in accordance with the Code of Ordinances or any applicable Regulations or Policies thereunder.
(Ord. No. 07-09, 3-9-09)

Secs. 2-616—2-619. Reserved for future use.

DIVISION 7. GENERAL PROVISIONS

Purposes, Construction and Application

Sec. 2-620. Supplementary general principles of law applicable.

(A) *Generally.* Unless displaced by the particular provisions of the laws of the State of Connecticut, the principles of law and equity, includ-

ing the Uniform Commercial Code of the State of Connecticut and laws relative to the capacity to contract, agency, fraud, misrepresentation, duress, coercion, mistake, or bankruptcy shall supplement the operations and understanding of the provisions in this Article.

(B) *Knowledge of authority and limitations of the City's powers.* Every Person who conducts business with, contracts with or provides Commodities, Services or Construction to the City is charged with notice of the extent of the powers and authority, and the limitations thereon, of the Public Officials and Employees of the City, as set forth in the Charter of the City, the Code of Ordinances and any Regulations or Policies pertaining thereto. In particular, this applies to all persons who participate in the procedures pertaining to the Central Purchasing System as set forth in this Article and the Code of Ethics, as set forth in Sections 2-900 through 2-909 of this Code.

(C) *Singular-plural and gender rules.* In this Article, unless the context requires otherwise: (1) words in the singular number include the plural, and those in the plural include the singular; and, (2) words of a particular gender include any gender and the neuter, and when the meaning so indicates, words of the neuter gender may refer to any gender.

Nothing in this Article or in any Regulations promulgated hereunder shall prevent any Agency from complying with the terms and conditions of any grant, gift, bequest, or cooperative agreement, to the extent such compliance is otherwise lawful and not contrary to public policy.
(Ord. No. 07-09, 3-9-09)

Sec. 2-621. Severability.

If any provision of this Article or any application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or application of this Article which can be given effect without the invalid provision or application, and to this end the provisions of this Article are declared to be severable.
(Ord. No. 07-09, 3-9-09)

Sec. 2-622. Construction against implicit repealer.

Since this Article is a general action, no part of it shall be deemed to be impliedly repealed by subsequent amendments of this Code of Ordinances if such construction of the subsequent legislation can be reasonably avoided.
(Ord. No. 07-09, 3-9-09)

Sec. 2-623. Effective date.

This Article shall become effective in accordance with the requirements of the Charter of the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-624, 2-625. Reserved for future use.

Determinations

Sec. 2-626. Determinations.

Written determinations required by this Article shall be retained in the appropriate official file of the Procurement Services Division and, if appropriate, the Office of the Corporation Counsel pertaining to the procurement in question.
(Ord. No. 07-09, 3-9-09)

Public Access

Sec. 2-627. Public access to procurement information.

Procurement information shall be a public record to the extent provided by the laws of the State of Connecticut and shall be available to the public as provided in such laws.
(Ord. No. 07-09, 3-9-09)

Sec. 2-628. Authorization for the use of electronic transmissions.

The use of electronic media, including acceptance of electronic signatures upon any contract or purchase order is authorized consistent with the applicable statutory, regulatory or other guidance for the use of such media, as set forth in the General Statutes, so long as such guidance provides for: (A) appropriate security to prevent unauthorized access to the competitive processes,

approval, and award processes; and (B) accurate retrieval or conversion of electronic forms of such information into a medium which permits inspection and copying.
(Ord. No. 07-09, 3-9-09)

Sec. 2-629. Roles of the Purchasing Agent, Procurement Services Division of the Finance Department and the Director of the Office of Human Relations.

(A) *Director of Human Relations of the Office of Human Relations.* The Director of the Office of Human Relations shall review the database of any electronic media to assure that all efforts have been made to migrate lists of pre-qualified Candidates, Small Contractors and MWBEs pertinent to the maximization of City efforts under Divisions 9 through 11 of this Article VIII. In order to effectuate this provision, the Purchasing Agent and the Procurement Services Division of the Finance Department shall provide the Director of Human Relations or designee appropriate access to assure the integrity of the database migration.

(B) The Procurement Services Division of the Finance Department, with the assistance and cooperation of the Office of Human Relations, shall notify any pre-qualified Candidates, Small Contractors and MWBE on the database of the City in the event updated information is required to supplement the data on the system.
(Ord. No. 07-09, 3-9-09)

DIVISION 8. PROCUREMENT ORGANIZATION AND LEADERSHIP

Procurement Services Division

Sec. 2-630. Authority and duties of the Procurement Services Division.

Except as otherwise provided in this Article, the Procurement Services Division of the Finance Department of the City shall have the responsibility to administer the Central Procurement System subject to the authority of the Purchasing Agent, as required by Chapter VIII, Section 5(d) of the Charter of the City, and to propose Regulations or issue Policies or guidelines, consistent with the Charter of the City and this Article, governing the Procurement, management, control, and disposal of any and all Commodities, Services and Construction to be procured by the City.
(Ord. No. 07-09, 3-9-09)

Sec. 2-631. Centralization of procurement authority.

Except as otherwise provided for in this Article, all rights, powers, duties and authority relating to the Procurement of Commodities, Services and Construction, and the management, control, warehousing, sale and disposal of Commodities, Services and Construction are vested in the Purchasing Agent as required by the Charter of the City.
(Ord. No. 07-09, 3-9-09)

Secs. 2-632—2-639. Reserved for future use.

Purchasing Agent

Sec. 2-640. Charter authority for the Purchasing Agent.

Scope of the Purchasing Authority. The Purchasing Agent shall be responsible for overseeing the administration of the processes pertaining to the purchase and contracting for all Commodities, Services and Construction needed by any and all departments, offices, boards, commissions, institutions and other Agencies which derive their support wholly or in part from the funds of the City and which are Using Agencies.
(Ord. No. 07-09, 3-9-09)

Sec. 2-641. Authority of the Purchasing Agent.

(A) *Principal Procurement Officer of the City.* The Purchasing Agent shall have the authority set forth under law and as set forth in Chapter VIII, Section 5(d) of the Charter of the City. In accordance with the provisions of the Charter the Board of Education shall provide reasonable notice, as defined in this ordinance, to the Purchasing Agent in order to meet the curriculum and scheduling requirements of the Board.

(B) *Power to propose regulations and adopt operational procedures.* Consistent with the provisions of this Article, the Purchasing Agent may propose regulations and/or policies and adopt operational procedures governing the internal functions of the Procurement Services Division. The Purchasing Agent may also prepare a Procurement Guide in order to disseminate the operational procedures to Employees and the public.

(1) Administrative regulations recommended by the Purchasing Agent, proposed by the Mayor and adopted by the Common Council, including additions, modifications or changes, shall take effect in accordance with Sections 2-1 and 2-2 of the Code of Ordinances. Moreover, the Regulations shall be codified as a supplement to the Code of Ordinances.

(C) *Duties.* Except as otherwise specifically provided in this Article, the Purchasing Agent shall, in accordance with this Article and with the regulations and/or policies, thereunder:

(1) Procure or supervise the procurement of all commodities, services and construction needed by the City taking into account the highest quality, competitive cost and other factors identified in the competitive solicitation;

(2) Prepare regulations, subject to approval by the Common Council, delineating the procurement process for commodities, services and construction in an amount less than twenty-five thousand dollars ($25,000.00);

(3) For purchases in excess of twenty-five thousand dollars ($25,000.00), the Purchasing Agent shall:

(a) Review the technical specifications submitted by the Using Agency to ensure that such Specifications are suitable, complete and consistent and conform to all applicable regulatory and policy requirements and are in the best interest of the City;

(b) Prepare the solicitation package and facilitate the competitive process;

(c) Approve the award criteria;

(d) Recommend award(s);

(e) Create and issue the form of Agreement(s) for the awarded item(s); and

(f) Ensure that all required insurance and bond requirements are secured by the vendor.

(4) Ensure compliance with this Article, establish standards for the conduct of procurements (including but not limited to the appropriate contact between Candidates and Public Officials) and implement procedures to review and monitor procurements conducted by any Designee by reviewing and monitoring procurements conducted by any Agency Designee or other official delegated authority by the Purchasing Agent;

(5) Exercise general supervision and control over all inventories, surplus and obsolete stock and the transfer of personalty belonging to the City;

(6) Sell, in accordance with a resolution, duly passed by the Common Council, by public auction or competitive bid, if possible, exchange, trade, or otherwise dispose of surplus, excess or expendable supplies belonging to the City (with a market value of more than one thousand dollars ($1,000.00), including, but not limited to supplies which have become expendable, obsolete, overage or unsuitable for use or sell, transfer or exchange live animals owned by the City in accordance with a duly adopted resolution of the Court of Common Council;

(7) Work with the appropriate Using Agencies to establish and maintain programs for the inspection, testing, and acceptance of commodities, services and construction and coordinating the efforts of the procurement liaison of each Using Agency and the contracting officers thereunder;

(8) Track, by electronic means, all contracts and purchase orders in a uniform numerical system on a fiscal year basis;

(9) Prescribe and maintain forms for the use of the Procurement Division and the Using Agencies as deemed necessary to the operation of the Procurement Division;

(10) Inspect or cause to be inspected all deliveries of supplies, material and equipment to determine their conformance with the specifications set forth in the contract or purchase order; accordingly, the Purchasing Agent may require chemical and physical tests of samples submitted with bids and samples of deliveries which are necessary to determine their quality and conformance with such Specifications. In the performance of such tests, the Purchasing Agent may make use of laboratory facilities of any Using Agency or any outside laboratory;

(11) Work with the Office of Human Relations to assure the maximization of City efforts under Divisions 9 through 11 of this Article VIII; and,

(12) Establish Regulations pertaining to the utilization of the services of construction managers for the expeditious, efficient and economic construction of all City construction and public improvement projects.

(Ord. No. 07-09, 3-9-09; Ord. No. 06-17, 2-14-17)

Sec. 2-642. Authorization for utilization of a Construction Manager.

To facilitate the expeditious, efficient and economic construction of all city construction and improvement projects, and to ensure that such projects are well designed, the City may avail itself of the services of construction managers in accordance with the provisions of this Article and the regulations thereunder. When used in the context of a construction management contract, the word *owner* shall mean the City.

(Ord. No. 07-09, 3-9-09)

Secs. 2-643—2-649. Reserved for future use.

Role of the Using Agencies and Department Heads

Sec. 2-650. Estimate of needs.

All Using Agencies of the City shall file with the Purchasing Agent detailed estimates of their requirements for commodities, services and construction in the manner, at such times, and for future periods as the Purchasing Agent shall prescribe.

(Ord. No. 07-09, 3-9-09)

Sec. 2-651. Using Agency procurement liaisons.

The Department Head of each Using Agency shall appoint a senior official as the Agency liaison to the Procurement Services Division. Said liaison shall serve as the point of contact between the Agency and the Procurement Services Division on all matters relating to the Agency's procurement activity; including, but not limited to implementation, compliance and uniform application of all of the divisions set forth in this Article and any policies or regulations and coordination of the training and education of Agency procurement employees under the supervision of the Procurement Services Division.

(Ord. No. 07-09, 3-9-09)

Secs. 2-652—2-654. Reserved for future use.

DIVISION 9. DISCRIMINATION AND SET-ASIDE PROGRAMS

Discrimination in Employment or Housing

Sec. 2-655. Discrimination in employment or housing by Contractors with the City.

(A) *Discrimination prohibited.* Neither the City, nor any person with which the City enters an agreement for the purchase or sale of commodities, services, construction or products of any kind, shall discriminate in employment or in the provision of equal housing opportunities to any person in accordance with the applicable provi-

sions of Federal, State and Municipal law and regulation as presently in full force and effect or, as may be amended, from time to time.

(B) *Definitions applicable to Division 9.* The terms sexual orientation and disability shall have the meanings set forth in the General Statutes.

(C) *Inclusion of prohibition in contracts, agreements, purchase orders, etc.* The purchasing agent is hereby directed to include in all agreements, including, contracts, purchase orders and memoranda of understanding, the condition that all contractors with the City shall not discriminate in accordance with the applicable provisions of Federal, State and Municipal law and regulation as presently in full force and effect or, as may be amended, from time to time. Such prohibition shall extend and be applicable to all subcontracts let or awarded and all agreements let or awarded by the City.

(D) *Noncompliance; remedial procedure.* In the event of a Contractor's noncompliance with the provisions of this section or any contract, agreement, purchase order or memoranda of understanding issued pursuant to this section, the agreement subject to the provisions of this section may be cancelled, terminated or suspended in whole or in part and such Contractor may be declared by the Purchasing Agent to be ineligible for further procurements and agreements with the City.

(1) *Notice to show cause.* Prior to any final finding of noncompliance, however, the Purchasing Agent shall notify the Contractor that it has fifteen (15) days to show cause why any remedial procedures provided in this section should not be instituted. During this period, the Contractor and the Purchasing Agent shall make every effort through conciliation, mediation and persuasion to resolve the deficiencies which led to the preliminary finding of the alleged violation. If satisfactory adjustments designed to bring the Contractor into compliance are not concluded, the Purchasing Agent shall promptly provide written notification to the Contractor that such efforts have been unsuccessful. Such written notification shall be subject to the appeal provisions provided in this section. It is not the intent of this section to supersede or interfere with the duties and responsibilities of any State or Federal agency in the investigation and resolution of individual discrimination complaints.

(E) *Appeals and hearings—Final determination.* If the Purchasing Agent at any time makes a final determination that a Contractor under the provisions of this section is in noncompliance with any provision of this section, the Purchasing Agent shall immediately notify the Contractor, the Corporation Counsel and the Office of Human Relations by certified letter with written findings of the alleged violations stating the basis for making such findings.

(1) *Right of appeal.* Such notification shall also inform the Contractor that it may appeal the final determination within ten (10) days of the date of the Purchasing Agent's notification by requesting a formal hearing. If a hearing is requested in writing, the Purchasing Agent shall set a hearing date within ten (10) days of such request.

(a) *Appointment of Hearing Officer by Corporation Counsel.* The Corporation Counsel shall appoint an attorney in the Corporation Counsel's office as a hearing examiner.

(2) *Rights accorded at hearing.* The Contractor requesting the hearing shall have the right to be represented by an attorney, to introduce testimony and evidence on its behalf, and to cross-examine and challenge any testimony in support of the final determination of the Purchasing Agent. A designee of the Purchasing Agent shall present any and all evidence during such hearing in support of any alleged violation.

(3) *Decision of the Hearing Examiner.* After such hearing, the examiner shall render a decision in writing, within fifteen (15) days, setting forth the findings and conclusions. Said examiner shall transmit copies of the decision to the Contractor members of the Common Council, the Purchasing Agent and the Director of the Office of Human Relations.

(a) *Finding of substantial or material violation or failure to appeal.* If the examiner has found a substantial or material violation, or if the Contrac-

tor has failed to request a hearing within the ten-day time period for such an appeal, the Purchasing Agent may institute such remedies as provided in subsection (D), above. The Purchasing Agent shall immediately notify the Common Council and all parties in interest of the measures that Purchasing Agent proposes to implement, by written memorandum.

(b) *Effective date of measures taken by the Purchasing Agent.* The measures so proposed shall become effective at the expiration of fifteen (15) days or the end of the day following the next regularly scheduled meeting of the Common Council, whichever is longer, unless the Common Council rejects or modifies the Purchasing Agent's proposed actions within such time period, by majority vote.

(c) *Postponement of the effective date by the Common Council.* However, the Common Council may by majority vote postpone the effective date of the Purchasing Agent's actions until its next regularly scheduled meeting. Nothing in this section shall preclude the Purchasing Agent from accepting an offer by a Contactor charged with a violation of this section which, in the Purchasing Agent's determination, will provide a meaningful remedy to such violation.

(Ord. No. 07-09, 3-9-09; Ord. No. 09-11, 1-10-11)

Secs. 2-656—2-659. Reserved for future use.

Set Aside Programs, Bid Preference for City-Based Businesses, Contract Participation Criteria and Affirmative Action

Sec. 2-660. Set-aside programs for Small Contractors and Minority Business Enterprises.

(A) *Definitions.* As used in this Article, the terms *Minority, Women Owned Business Enterprise ("WBE"), Minority Business Enterprise ("MBE")* and *Small Contractors ("SC"),* shall have the meaning set forth in the General Statutes. When used in combination the terms *WBE and MBE* shall be referred to as "MWBE". With respect to projects with the Connecticut State Department of Transportation, where federal funds are utilized, *Disadvantaged Business Enterprise ("DBE")* shall have the meaning set forth in Federal and State laws and regulations pertinent thereto and shall supersede the requirements of this Article.

(B) *Percentage of City agreements allotted.*

(1) *Small Contractor set aside.* Under the provisions of the General Statutes, there shall be set aside in each fiscal year, for award to Small Contractors, as defined in the General Statutes on the basis of a competitive bidding procedure, agreements with the City or portions of Agreements with the City for the construction, reconstruction or rehabilitation of public buildings, the construction and maintenance of highways and the purchase of goods and services. The total of such agreements or portions thereof to be set aside shall not be more nor less than the percentage, set forth in the General Statutes, of the average of the total value of all such agreements let by the City for each of the previous three (3) fiscal years, provided an agreement that may not be set aside due to a conflict with a Federal law or regulation shall not be included in the calculation of such average.

(2) *Awards to Minority Business Enterprises.* Agreements or portions thereof having a value of not less than the percentage, set forth in the General Statutes, of the total value of all agreements or portions thereof to be set aside shall be reserved for awards to Minority Business Enterprises.

(C) *Disclosure of pertinent statutory information.* The City, in all procurement solicitations, is required to disclose the specific statutory percentages pertaining to the "Small Contractor Set Aside" and "Awards to Minority Business Enterprises", substantiation of ownership of a minority or woman-owned business enterprise and other

necessary requirements (including, but not limited to the affirmative steps pertaining to Good Faith Efforts, as set forth in this Article. The required information shall be provided to the Purchasing Agent by the Office of Human Relations. Notwithstanding the foregoing, the Candidate is obligated to conduct its own due diligence and will be responsible for the content of its bid or proposal and its compliance with the provisions of this Article and Division 9, in particular.
(Ord. No. 07-09, 3-9-09)

Sec. 2-661. Bid preference for City-based Small Businesses.

(A) Unless otherwise set forth or required by Federal or State law, for the purpose of this section a *City-based Small Business* shall mean a "Small Contractor" as that term is defined in the General Statutes, which has been certified by the Office of Human Relations and has a principal place of business located within the City. A Business shall not be considered a City-based Small Business unless evidence satisfactory to the Office of Human Relations has been submitted with each bid submitted by such Business to establish that the Business has a bona fide principal place of Business in the City. Such evidence may include evidence of:

(1) Ownership of or a long term lease of the real estate located in the City from which the principal place of Business is operated, at the time of bid submission and for the duration of the Business' Agreement with the City; and/or,

(2) Payment of property taxes on the personal property of the Business to be used in performance of the bid; and/or

(3) With respect to bids pertaining to Infrastructure Facility Projects, a proven record of compliance with Division 10 of this Article.

(B) *The lowest responsible bidder shall be determined in the following order:*

(1) Any City-based Small Business which has submitted a bid not more than fifteen (15) percent higher than the low bid provided such City-based Small Business bidder agrees to accept the award at the amount of the low bid. If more than one (1) City-based Small Business bidder has submitted bids not more than fifteen (15) percent higher than the low bid and each has agreed to accept the award of the bid at the amount of the low bid, the City shall select the lowest Responsible bidder among such City-based Small Business bidders which submitted the lowest bid; or,

(2) In the case of Competitive Bids where there is no City-based Certified Small Business, the low bidder.

(C) Notwithstanding the foregoing limitations, qualified HUBZone small business concern, certified by the U.S. Small Business Administration as a Historically Underutilized Business Zone Business pursuant to Section 602 of the Small Business Reauthorization Act of 1997, shall be deemed as being lower than the price offered by another Candidate (other than another small business concern) if the price offered by the qualified HUBZone small business is not more than ten (10) percent higher than the price offered by the otherwise lowest, responsive and responsible Candidate.
(Ord. No. 07-09, 3-9-09)

Secs. 2-662—2-664. Reserved for future use.

City Agreements Participation Criteria

Sec. 2-665. Formal review criteria: Purpose.

The purpose of this Division is to establish formal review criteria by which any minority or woman or female owned company shall be evaluated regarding its participation in any City or City-related Agreements containing MWBE preference requirements.
(Ord. No. 07-09, 3-9-09)

Sec. 2-666. Definitions.

As used in this section, the term *minority* and *other socially or economically disadvantaged individuals* shall have the meaning set forth in the General Statutes and the terms defining such other persons covered by the General Statutes shall be included in this Article. *Minority Busi-*

ness Enterprise, Women Business Enterprise, Small Contractor and *individual with a disability* shall have the meaning set forth in the provisions of the General Statutes.
(Ord. No. 07-09, 3-9-09)

Sec. 2-667. Minimum in-business time period and gross revenue threshold requirement for certification of SC and/or MWBE.

(A) A Business requesting SC and/or MWBE certification must have been in business and have maintained its principal place of business in the State of Connecticut for a period of at least one (1) year prior to the date of application for certification, and must present official documentation evidencing this requirement.

(B) Acceptable documentation to be supplied to evidence the requirement of this Division is as follows:

(1) *Corporations.* Copy of certificate of incorporation filed with the Secretary of the State, articles of incorporation and corporate bylaws. Include any documents amending the foregoing;

(2) *Limited partnerships.* Copy of certificate of limited partnership filed with the Secretary of the State, and, if written, a copy of the limited partnership agreement. Include any amendments to the foregoing;

(3) *General partnerships.* If written, a copy of the partnership agreement, with amendments, if applicable, and business invoices such as payroll receipts, office space leasing agreement or deed if applicable, tax withholding forms, bond or insurance invoices, accounting and bookkeeping statements;

(4) *Joint ventures.* A commercial enterprise undertaken by several persons or entities jointly and usually limited in its scope and duration;

(5) *Sole proprietorships.* If a trade name license is required to operate, a copy of the license, and business invoices such as payroll receipts, business leasing agreement or deed if applicable, tax withholding forms, bond or insurance invoices, accounting and bookkeeping statements.

(6) *Limited Liability Company.* Copies of Articles of Organization filed with the Secretary of the State and a copy of the Operating Agreement; including any amendments to the foregoing.

(C) For all of the Business organizations listed in subsection (B), also include the following requirements:

(1) Copy of Contractor's license if required by state, county or City laws or ordinances;

(2) Copy of federal income tax returns for the year immediately preceding the application for certification.

(D) A business requesting SC and/or MWBE certification must meet the gross revenue threshold set for by the General Statutes.
(Ord. No. 07-09, 3-9-09)

Sec. 2-668. Requirement of substantial ownership of business assets of the MWBE by Minority Owners.

(A) The MWBE must be owned and controlled by Minority Group Persons at the percentage set forth in the General Statutes. In the case of an MWBE which is a corporation, the stock must be owned and controlled by Minority Group Persons comprising the percentage of ownership set forth in the General Statutes. The MWBE business assets must be owned by the Minority owners in accordance with the percentage set forth in the General Statutes. The MWBE may not share assets with a nonminority-owned firm unless there is documentable evidence that a fair compensation is being paid or has been paid for such assets.

(1) Shareholder agreements must evidence that the Minority owners own the percentage of stock set forth in the General Statutes and have all of the powers attendant thereto. Partnership agreements must evidence that the Minority partners own the percentage of the partnership assets as set forth in the General Statutes, with all powers attendant thereto;

(2) A business place leasing agreement or mortgage note or deed must evidence that Minority owners are obligated for at least the percentage of the payments thereunder as set forth in the General Statutes;

(3) Barring extenuating circumstances, the MWBE must have its own telephone. The MWBE may not share telephone services with a nonminority firm;

(4) The MWBE must have its own Employees. The Employees of the MWBE may not simultaneously be Employees of a nonminority-owned Business.

(B) The following documentation must be submitted in order to verify the ownership percentage which the Minority Member holds in the MWBE:

(1) Shareholder agreement or partnership agreement;

(2) Any other written agreement that could affect the nature of the Minority Member's legal or beneficial ownership or control of the MWBE, including but not limited to management contracts, limitations on voting rights of stock and buy/sell agreements affecting the Minority Member's interest in the Business;

(3) Include a brief description of any nonwritten agreement of the type set forth in this Division.

(Ord. No. 07-09, 3-9-09)

Sec. 2-669. Requirement of substantial involvement in the daily operation of the MWBE by Minority Owners.

A substantial portion of the Minority owner's working time must be spent on the operation of the MWBE.

(A) The Minority owner of the MWBE must not be engaged in other Business or professional pursuits which preclude him from devoting what would be reasonably deemed an adequate amount of time to conduct the business operations of the MWBE;

(B) The Minority owner of the MWBE must control the day-to-day operations of the MWBE:

(1) Barring extenuating circumstances, the Minority owner of the MWBE must be either the sole or one (1) of the required signatories on the firm's checks, invoices and all Agreements including, but not limited to, Contracts and Purchase Orders,

(2) The Minority owner of the MWBE must be actively involved in the negotiation of the Agreements of the MWBE,

(3) The Minority owner of the MWBE must have substantial control over the hiring and firing of the Employees of the MWBE,

(4) The Minority owner of the MWBE must substantially supervise jobs that the firm undertakes, both on and off the job site,

(5) The Minority owner of the MWBE must have unrestricted access and authority over necessary payroll, tax, personnel, and other records and books of the firm.

(Ord. No. 07-09, 3-9-09)

Sec. 2-670. Certain relationships between owners and officers of MWBE and other firms working on same project prohibited.

(A) An MWBE is prohibited from satisfying a substantial amount of its purchasing requirements from a firm which is owned by a nonminority owner of the MWBE.

(B) An MWBE is prohibited from using the assets and facilities of a firm which is owned by a nonminority owner of the MWBE unless there is documentable evidence that a fair compensation is being paid or has been for the use of such assets and facilities.

(Ord. No. 07-09, 3-9-09)

Sec. 2-671. Requirement of demonstrable experience by MWBE in subject-matter area of particular preference agreement.

(A) The Minority Owner or Officer of the MWBE must demonstrate expertise and experience in the area of the firm's business, and in the subject area of its Preference Agreements.

(B) In lieu of such demonstrable experience and expertise, the Minority Owner or Officer must provide definite plans to gain such experience and expertise. Such measures shall include the following:

(1) Participation in regular classes or special trades training programs on the subject matter in question, within a period of one (1) year in order to address the deficiencies in expertise and experience set forth above, which period may be extended by the Office of Human Relations, in its sole discretion, based upon the level of training necessary and the requirements of a bona fide class or program;

(2) Participation in a joint venture covering the subject matter in question;

(3) Securing the employment of at least one (1) individual with expertise in the subject area;

(4) For companies requiring specific Contractors' licenses to operate, a specific work plan and timetable within which the minority owner or minority officer will acquire such in the name of the person or entity, within of one (1) year, which period may be extended by the Office of Human Relations, in its sole discretion, based upon time required for obtaining such license(s).

(Ord. No. 07-09, 3-9-09)

Sec. 2-672. Requirement of consent by SC and/or MWBE to monitoring of its operation by City.

The SC and/or MWBE shall consent to the monitoring of its operations by the Director of the Office of Human Relations:

(A) Such monitoring shall be carried out at the place of business of the SC and/or MWBE or at a project site, or both.

(B) Such monitoring may be carried out without advance notice to the SC and/or MWBE, but shall only be carried out during regular business hours.

(C) The Director of the Office of Human Relations, in the course of such monitoring, shall have the right to examine all books, records and files of the SC and/or MWBE which the said Director deems relevant to determining whether the SC and/or MWBE is bona fide.

(D) The Director of the Office of Human Relations shall have the right to question all Employees of the SC and/or MWBE where the Director of the Office of Human Relations deems that such questioning will further its objectives in determining whether the SC and/or MWBE is bona fide.

(Ord. No. 07-09, 3-9-09)

Sec. 2-673. Suppliers and vendors.

(A) In order for any given company to be recognized as a bona fide MWBE supplier of material services, the company must be able to demonstrate the MWBE ownership, control and daily operational participation involvement as outlined in Sections 2-665 through 2-671.

(B) Additionally, a supplier of materials must also be able to:

(1) Document a specific place of business;

(2) Maintain a direct and responsible involvement in the procurement and delivery of such Supplies;

(3) Demonstrate a capacity to handle and deliver such Supplies.

(C) Where it is determined that an MWBE acts merely as an agent or a relatively passive conduit in connection with the provision of services or Materials, only the commission or fee earned by the MWBE may be counted toward the MWBE requirement. Even this commission or fee will not be counted if the MWBE performs no substantive services and is a totally passive conduit.

(Ord. No. 07-09, 3-9-09)

Sec. 2-674. Provisional recognition; defined, requirements and effect.

(A) For a company pursuant to this Division having less than one (1) full year of operation or companies not able to fully demonstrate the control activities as set forth under Sections 2-667 through 2-669, a provisional recognition may be provided to such company. The provisional recognition shall allow such company to participate on a specific City project on the condition that such company agrees to develop a management work plan and timetable of no more than one (1) year to address the areas of deficiency as outlined in writing by the Director of the Office of Human Relations. Such provisional recognition shall be for the specific project in question only, and may be withdrawn if such company fails to comply with the management work plan and timetable for implementation which shall have been agreed upon and appended to the Agreement upon which such company is working or for failure to perform the required services on the said City project.

(B) Should such recognition of an MWBE participating on a City project be withdrawn for noncompliance thereto by the MWBE, the prime Contractor shall not be penalized, provided he has acted in good faith during the pendency of the matter.

(C) Any company that has applied for MWBE recognition and whose application has been denied shall be ineligible for a provisional recognition for a period of one (1) year from the date of denial.
(Ord. No. 07-09, 3-9-09)

Sec. 2-675. Special provisions for certifying joint ventures.

(A) The MWBE portion of the joint venture must meet the regular MWBE certification requirements set forth in Sections 2-665 through 2-671, prior to the Director of the Office of Human Relations consideration for certification of the joint venture involving such MWBE as a participant.

(B) The Businesses requesting certification of their joint venture must provide the Director of the Human Relations with a written joint venture agreement. Such agreement must provide that:

(1) The MWBE joint venture partner shall assume at least forty (40) percent of the responsibility for administration of the joint venture agreement;

(2) The MWBE joint venture partner shall assume at least forty (40) percent of the liability from the operation or share in at least forty (40) percent of the profit of the operation or both;

(3) Where one (1) joint venture partner provides any additional service or equipment, etc., that the joint venture partnership shall reimburse such partner for the fair market value of such service or equipment.

(C) Where personnel of a MBE/WBE firm and a majority-owned firm are involved in any of the relationships as specified in Section 2-679, the certification of a joint venture of such firms will be subject to the restrictions imposed by such regulation.
(Ord. No. 07-09, 3-9-09)

Sec. 2-676. SC or MWBE credit determination.

(A) In Minority companies representing themselves to be owned, controlled and operated by Minority individuals wherein a majority person likewise has ownership interests, should such Minority company subcontract with the organization with which the majority person also has beneficial interests, only that percent of the subcontract value representative of the Minority ownership interests will be credited toward the SC or MWBE requirement.

(B) In joint venture proposals, only that percentage of such joint venture representative of the Minority ownership partnership shall be credited toward meeting the SC or MWBE requirements.
(Ord. No. 07-09, 3-9-09)

Sec. 2-677. Certification; denial of certification; appeal; repeal of certification.

The Director of the Office of Human Relations shall investigate each company that submits an application for SC and/or MWBE certification. The Director shall certify whether such company is deemed to be a certified SC and/or MWBE. In each case where the Director determines that the company is not deemed to be a certified SC and/or MWBE, said Director shall state the reasons in a written opinion to be forwarded to the Chief Operating Officer, the Corporation Counsel and the company. The Director's determination not to certify the company shall be appealable by written notice by the company to the Chief Operating Officer within ten (10) days after receipt of the Director's determination. The Chief Operating Officer or a designated hearing officer may reverse the Director's determination. Applicants that have been denied certification are required to wait a period of one (1) year from the date of denial prior to submitting another application for certification. The Director shall revoke certification if the company has misrepresented information during the certification process or the company no longer meets the conditions set forth under Sections 2-675 through 2-686.
(Ord. No. 07-09, 3-9-09)

Secs. 2-678, 2-679. Reserved for future use.

DIVISION 10. HARTFORD AFFIRMATIVE ACTION PLAN PERTAINING TO CONSTRUCTION WORK ON INFRASTRUCTURE FACILITY PROJECTS

Hartford Affirmative Action Plan

Sec. 2-680. Hartford Affirmative Action Plan: Purpose, legislative findings and enforcement.

(A) *Purpose.* This Division is adopted for the purpose of ensuring equal employment opportunity for Minority Group Persons in all phases of construction work, including the bidding process, performed pursuant to agreements including contracts and purchase orders in excess of twenty-five thousand dollars ($25,000.00) offered and awarded by the City under the provisions of the Charter and this Code. Excluded from the provisions of this Division are school building projects, as provided for by Special Act Nos. 01-7 and 97-4 or as otherwise provided by Federal or State law or regulation.

(B) *Legislative policy and findings.* It is declared and found that:

(1) The Thirteenth and Fourteenth Amendments to the United States Constitution, Article 1, Section 20 of the Constitution of the State of Connecticut, 42 United States Code, Section 1981, 42 United States Code, Section 2000(e), Presidential Executive Order Numbers 11246 and 11375, the Governor's Executive Order Number 3 and Chapter VIII, Section 5(e)(2) of the Charter authorize and mandate that the City adopt an affirmative action plan to be incorporated in all appropriate agreements, in order to ensure that no public funds are used to promote, maintain or effectuate the denial of equal employment opportunity;

(2) The continuing effects of past and present discrimination against Minority Group Persons in the construction industry may be prevented, mitigated and/or eliminated by the enactment of a Hartford Affirmative Action Plan;

(3) It is the intention of the City to address such discrimination by awarding Agreements to Contractors committed to equal employment opportunity;

(4) There is a sufficient number of qualified Minority Group Persons in the Hartford Labor Market Area to make such an affirmative action plan for construction work on infrastructure facilities feasible and desirable;

(5) A Contractor who refuses to agree to, and comply with, the affirmative action plan designed to effectuate the purpose of this Article, will be precluded from being

deemed a Responsible Candidate as that term is set forth in Section 2-570 of this Code of Ordinances.

(C) *The Common Council hereby adopts this Affirmative Action Plan to be known as the Hartford Affirmative Action Plan ("HAAP").* The HAAP will be incorporated in all procurement documents and Agreements pertaining to Infrastructure Facility Projects, as defined in subsection 2-681(A).

(D) *Enforcement.* Except as otherwise provided, the Chief Operating Officer or a Designee shall be responsible for the administration and enforcement of this Division. Whenever the term *Chief Operating Officer* is used in this Division it shall also refer to any designees assigned the tasks set forth herein.
(Ord. No. 07-09, 3-9-09)

Sec. 2-681. Definitions pertaining to the Hartford Affirmative Action Plan pertaining to construction work on infrastructure facility projects.

The following words, terms and phrases, when used in this Division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(A) *Infrastructure Facility Project* includes all phases of construction work on infrastructure facilities; including, but not limited to public works, improvements and housing involving the expenditure of at least twenty-five thousand dollars ($25,000.00) for which the City has contracted or will contract pursuant to Article VIII of this Code. Excluded from the provisions of this Division are school building projects, as provided for by Special Act Nos. 01-7 and 97-4 or as otherwise provided by Federal or State law or regulation.

(B) *Construction work* includes, but is not limited to, demolition, repair, alteration, rehabilitation and construction of residential, commercial, industrial and institutional buildings, sidewalks, curbs, street work and other structures on Infrastructure Facilities and Infrastructure Facility Projects.

(C) *Craft* means a category of skill corresponding to any group of workers employed in the construction industry.

(D) *Good faith effort* means every reasonable attempt to comply with the provisions of this article, in accordance with the policies of Federal and State law as well as the regulations and policies of the Office of Human Relations, including but not limited to the affirmative steps required of all Contractors and that every possible measure to achieve the level and participation of Minority and female or women workers and trainees, professionals and nonprofessionals, established by the HAAP has, in the opinion of the Office of Human Relations, been taken.

(E) *Minority, Minority Group Person(s)* shall have the meaning set forth in the General Statutes. For purposes of this article, the term *Minority* or *Minority Group Person(s)* shall also include women or females, unless specifically excluded.

(F) *Organizations* includes the following trades and labor organizations working in or connected with the construction industry: Bricklayers, carpenters, lathers, operating engineers, painters, glaziers, roofers, iron workers, teamsters, asbestos workers, boilermakers, electrical workers, elevator constructors, plumbers, sheet metal workers, steamfitters, pipe fitters, laborers' unions, tile setters, and any other groups involved in construction work. For purposes of this article, the term "organizations" also includes vendors of construction materials who employ at least fifteen (15) individuals.

(G) *Qualified* means skilled in a craft or trade or available for training in a craft or trade.
(Ord. No. 07-09, 3-9-09)

Sec. 2-682. The Hartford Affirmative Action Plan pertaining to construction work on Infrastructure Facility Projects.

(A) *Generally.*

(1) Contractors, Subcontractors and Candidates shall make every Good Faith Effort to achieve a level of employment of Minorities to at least fifteen (15) percent of construction work on Infrastructure Facility Projects, in accordance with the protocols set forth in the Regulations of the Office of Human Relations. Failure to comply with this provision may subject the Contractor to the enforcement and penalty provisions set forth in this Division.

(2) During any period of time in which Contractors, Subcontractors or Candidates have not met their goals for Minorities they shall employ said personnel into their respective Organizations at a minimum rate of fifty (50) percent of all new entrants, as determined by the Office of Human Relations. The Contractors and Organizations, as appropriate, shall collectively assume the responsibility to achieve the fifteen (15) percent minimal participatory goals.

(B) *Utilization of Minority Group Subcontractors.* In order to increase awareness of opportunities for Minorities who are general contractors or subcontractors in their respective trades or business in order to meet the requirement of the HAAP, the Purchasing Agent shall:

(1) Inform associations and consortia of Minority contractors of proposed Infrastructure Facility Projects in advance of the closing date for Responses by providing a minimum of thirty (30) days notice, if practicable, prior to the issuance of a Request for Response;

(2) Coordinate and cooperate with local workforce development entities;

(3) Cooperate with Using Agencies to promote Requests for Responses that limit the size and dollar volume of subcontracts to the extent feasible in order to make it possible for Minority contractors to compete for City Procurements;

(4) Provide advice and business development referrals to enable Minority contractors to meet bonding or insurance requirements;

(5) Provide counseling and/or technical assistance; and,

(6) Adopt policies and publicize such policies with the broadest public dissemination.

(C) *Contract Compliance Unit.* There is hereby established in the Office of Human Relations a contract compliance unit, subject to the supervision of the Director of the Office of Human Relations. The contract compliance unit shall:

(1) Administer and enforce the city's equal opportunity contract programs to achieve the purposes of this provision, by instituting procedures to effectuate such programs, making all determinations with respect to compliance with the program, and meeting with Contractors, subcontractors and Candidates seeking or engaged in Construction work.

(2) Enforce requirements of the Hartford Affirmative Action Plan ("HAAP") as provided herein;

(3) Enforce the City's equal employment opportunity goals, in accordance with the provisions of Section 2-687;

(4) Assist Contractors, Candidates and Organizations in the implementation and maintenance of Minority employment opportunity goals;

(5) Recommend to the Director of Office of Human Relations, remedial action or penalties in the event of noncompliance by Contractors or Candidates with the requirements of HAAP and this Code, as set forth in Section 2-687;

(6) Perform such other duties as may be set forth in the applicable job classification;

(7) Serve as liaison between the Purchasing Agent and Using Agencies, and all other

departments and agencies that manage Agreements or award the same under this Code;

(8) Engage in onsite monitoring of construction compliance activities; including, but not limited to compliance with MWBE participation; Hartford resident participation; prevailing wage and living wage compliance; and, Minority participation by trade, as may be required by law; and,

(9) Propose regulations pertaining to the administration of this Division of the Ordinances.

(D) *Reports and record keeping contract compliance reports.* All Contractors shall provide the Office of Human Relations with contract compliance reports and record-keeping over the term of the Construction Work or Project covered by the Agreement, including such information as may be required by the contract compliance unit; including, but not limited to monthly MWBE payment status reports, monthly utilization reports and certified payroll reports.

(E) *Intergovernmental cooperation.* In the event that specific discriminatory practices are found in the administration and enforcement of this Article, in addition to the sanctions that may be imposed as provided for in the terms of the Agreement, the City shall, as appropriate, forward all pertinent information to the appropriate Federal and State agencies.

(F) *Inter-departmental cooperation.* The contract compliance unit shall conduct discretionary reviews and other reviews, required by law or agreement, of the practices and policies of all Using Agencies with respect to equal opportunity in contracting; and shall report to the Director of the Office of Human Relations as to their success in promoting the participation of all MWBE. In connection with this task, the contract compliance unit, acting by the Director of Human Relations, may require Using Agencies to file pertinent reports with the Office of Human Relations. All Using Agencies shall cooperate with the Office of Human Relations to promote MWBE participation in public procurements.

(1) Prior to the preparation of a Request for Response and, again, at the time of preparation or final negotiation for all Agreements, the documentation prepared concerning equal opportunity provisions shall be forwarded to (a) the Director of the Office of Human Relations to ensure that all documentation required by the contract compliance provisions of this Code are met; and, (b) the Office of the Corporation Counsel for legal review.

(2) All Using Agencies shall notify the Office of Human Relations in a timely fashion of all notices pertaining to Requests for Response and the results of all bid openings and receipt and registration of proposals.

(3) All Using Agencies shall cooperate with the Office of Human Relations to arrange for the integration of contract compliance procedures into existing departmental procedures.

(Ord. No. 07-09, 3-9-09)

Sec. 2-683. Notice to Candidates for procurement—Contract compliance requirements—Equal Opportunity Clause.

(A) All notices to prospective Candidates for Procurements published on behalf of the City shall include as a part of all Agreements, specifications that all Candidates shall be required to comply with the provisions of this Division.

(B) All notices of requests for responses pertaining to construction shall include, as part of the Specifications, the contract compliance requirements of this Division.

(C) All Candidates shall file with their response and, prior to the approval of proposed subcontractors, all Contractors shall file, for themselves and all of their proposed subcontractors:

(1) MWBE Certification, in accordance with Section 2-665, et seq. of the Code;

(2) Equal Employer Opportunity Determination, in accordance with Section 2-573 of the Code;

(3) The name, address, contact person, telephone, value of the proposed subcontract and relevant change order, if any.

(D) The Candidates shall be responsible for:

(1) Obtaining such required certifications or provisional recognitions, determinations and verifications prior to submission of the bid or response; and,

(2) Assuring such certifications or recognitions, determinations and verifications are valid as of the time of award.

The Office of Human Relations shall validate the accuracy and correctness of such certifications or recognitions, determinations and verifications.

(E) *Equal Employment Opportunity Clause.* All requests for response issued by the City and all agreements issued by the City shall reference the Equal Employment Opportunity Clause as may be required by the State or Federal Governments, as may be applicable. All agreements hereinafter entered into by the City shall incorporate an Equal Employment Opportunity Clause, as required by the State or Federal Government.
(Ord. No. 07-09, 3-9-09)

Sec. 2-684. Responsibility of Prime Contractors.

(A) Prime Contractors, as a condition of their agreements, shall be responsible for the proper submission to the Director of the Office of Human Relations of proof or documentation in accordance with procedures prescribed by this Division and the HAAP regarding compliance by all their subcontractors and further, for the subsequent performance thereunder by such Contractors and subcontractors. All Contractors shall submit, not later than thirty (30) days after the submission of their Responses, affidavits signed by all subcontractors and officials of all Organizations with which they have referral arrangements or agreements covering workers to be employed on the project involved, which affidavits shall incorporate such subcontractors and Organizations into the HAAP. If any such subcontractor or Organization refuses to submit such affidavit, the Prime Contractor shall include the name and address of each such subcontractor or Organization with its Responses. Except as provided in Section 2-685, the Director of the Office of Human Relations shall submit such information with appropriate recommendations to the Chief Operating Officer or Designee, who shall certify that such subcontractor or Organization is disqualified from participating in the performance of such Agreement or any future Agreement unless and until such party satisfactorily complies with the requirements of this section.

(B) Such statements, as referred to in subsection (A), shall be required of all subcontractors and Organizations subsequently employed by the Prime Contractor after its bid is submitted. If any subcontractor or Person seeking to provide services to the Contractor refuses to issue such statements, the Prime Contractor is prohibited from employing such parties to perform duties under an Agreement with the City.

(C) Pre-Construction Requirements—Conference. Authorization or notice to proceed shall not be issued until such time as the necessary preconstruction compliance information has been submitted, as set forth in Regulations promulgated by the Office of Human Relations. Failure to submit such information shall prohibit the Using Agency from authorizing such a Contractor or subcontractor to begin work. A mandatory preconstruction conference shall be convened by the Using Agency with the participation of the contract compliance unit.

(D) All Contractors and subcontractors doing business with the city shall utilize city sponsored recruitment and training programs in a manner consistent with the written policies and procedures of the City in order to ensure the hiring of minority, women and physically disabled employees, trainees and apprentices.

(E) Failure of a Contractor or subcontractor to file forms prescribed by the contract compliance unit shall be cause for determination of noncompliance with the terms of this provision following notice and opportunity to cure, as may be set forth in regulations.

(F) A Contractor or subcontractor who fails to comply with the contract compliance provisions of this Code shall be subject to debarment and disqualification as set forth in Section 2-597 of this Code.
(Ord. No. 07-09, 3-9-09)

Sec. 2-685. Equal employment opportunities certification.

(A) If an Organization which performs substantial Construction Work beyond the Hartford Labor Market Area declines to submit the affidavit referred to in Section 2-684, the Director of the Office of Human Relations may certify that such Organization be allowed to participate in the Construction Work required by an Agreement with the City. The Director of the Office of Human Relations shall not consider certification unless and until such Organization has submitted the following documents and data:

(1) The number and classification of Minority Group Persons who are members of or employed by such Organization, in accordance with the requirements of the State Department of Labor, including the allocation of men and women within each minority group;

(2) The percentage of members, Employees and/or trainees of such Organization who are Minority Group Persons (excluding women) and women in both (a) the Hartford Labor Market Area and (b) the entire work force of the Organization throughout all labor markets in which they are conducting Construction Work;

(3) The percentage of members, Employees and/or trainees of such Organization who are Minority Group Persons (excluding women) and women within each trade or training program within such Organization in both (a) the Hartford Labor Market Area and (b) the entire work force of the Organization throughout all labor markets in which they are conducting Construction Work;

(4) The total area within which such Organization performs Construction Work;

(5) An affidavit by an authorized official of such Organization stating it will not practice discrimination in the future in regard to Minority Group Persons and will eliminate any continuing effects of past discrimination;

(6) An affidavit by an authorized official of such Organization stating that it agrees with the HAAP and will make a Good Faith Effort to comply with its provisions;

(7) An affidavit by an authorized official of such Organization indicating the specific number of new minority and female or women journeymen or apprentices it expects to admit during the next twelve (12) months in the context of such Organization's area labor market availability data.

(B) The Director of the Office of Human Relations shall certify such Organization only if said Director makes the following findings:

(1) The Organization's nature, number of Employees and scope of employment are such that it cannot reasonably be expected to adopt the HAAP as a contractual provision;

(2) Public funds will not be used, directly or indirectly, to promote or maintain discrimination against Minority Group Persons as a result of such certification; and

(3) The documents and data submitted clearly indicate that such Organization has accepted, is accepting or will in the immediate future be accepting adequate Minority participation in its operations.

(C) Any person aggrieved by the Director of the Office of Human Relations' decision to certify or not to certify an Organization may appeal such decision to the Chief Operating Officer or a hearing officer assigned by said Officer. The Chief Operating Officer or hearing officer shall have a public hearing after providing notice in a newspaper of substantial circulation in the Hartford Labor Market Area. The Chief Operating Officer or hearing officer may overrule the Director's determination. At all times during such proceedings, the burden of proof will be on the party challenging the Director's determination.

(D) If the Director of the Office of Human Relations determines that any Organization certified under subsection (A) is not in compliance with any affidavit submitted, or has submitted inaccurate data, a public hearing will be held by the Chief Operating Officer or a hearing officer

assigned by said Officer. Bylaws and procedures shall be promulgated by said Officer. Before any public hearing is held, notice thereof shall be published in a newspaper of substantial circulation in the Hartford Labor Market Area. If such Chief Operating Officer or hearing officer determines that the certified Organization is not in compliance with its affidavits or that the Organization has submitted false or misleading data, it may authorize any or all of the following actions:

(1) Cancel, terminate or suspend any further Construction Work to be performed by such Organization under the Agreement;

(2) Declare that such Organization is ineligible for participation in further Agreements with the City until it fully complies with its affidavits and/or provides accurate data;

(3) Publish, or cause to be published, the name of such Organization in a newspaper of substantial circulation in the Hartford Labor Market Area; and

(4) Any further measures necessary to effectuate the purpose of this Division.

(Ord. No. 07-09, 3-9-09)

Sec. 2-686. Job referral programs.

For the purpose of assisting in the placement of Minority Group Persons in the Hartford Labor Market Area, the Director of the Officer of Human Relations shall designate one (1) or more public or private agencies as job referral programs for Minority Group Persons. Such job referral programs shall compile lists by trades of all qualified Minority Group Persons in the Hartford Labor Market Area for Construction Work, and shall make such lists available to any Contractor or Organization upon request. The Director shall inform all Contractors bidding for or entering Agreements with the City of the names and addresses of all agencies so designated.

(Ord. No. 07-09, 3-9-09)

Sec. 2-687. Compliance: Enforcement and penalty provisions.

(A) Whenever the Director of the Office of Human Relations determines that a Candidate, Contractor or Organization, other than an Organization certified under Section 2-685, has failed to meet the goals established by the HAAP or to comply with other provisions of the plan, there shall be a presumption that such Candidate has violated these contract compliance provisions or that such Contractor or Organization has breached the Agreement awarded by the City or has violated these contract compliance provisions. The Director of the Office of Human Relations shall, by certified mail, notify the Candidate, Contractor or Organization of any findings and may:

(1) Cancel the Agreement, withhold payments due thereunder; and/or,

(2) Recovery of specific monetary damages from the Contractors, including the imposition of liquidated damages, as shall be enumerated in the applicable Agreement, as set forth in Section 2-720 of this Code of Ordinances for projects the total cost of which are in excess of one hundred thousand dollars ($100,000.00); and/or,

(3) Withhold, cancel, terminate or suspend all payments under the Agreement(s) involved until such time as the Contractor provides a specific plan of achievement of compliance and is in compliance with the provisions of the Agreement; and/or,

(4) Reject the Candidate's Response; and/or,

(5) Refuse all future bids or responses for any City procurement in accordance with Section 2-597 of this Code, including any extensions or modifications of existing Agreements, until such time as such Candidate or Contractor is in compliance with the provisions of the Agreement or these contract compliance provisions; and/or,

(6) In the case of a material violation of the contract compliance provisions herein or of contractual obligations relating thereto, appropriate equitable or legal proceedings against any Contractor who fails to comply with the contract compliance provisions herein; and/or,

(7) Publish, or cause to be published, the names of such Candidate of Contractors or Organizations which have been found, after appropriate proceedings to be in

violation of this article or any rules, regulations, or orders of said Director of the Office of Human Relations.

In addition to any other penalties as provided herein. The Candidate, Contractor or Organization may appeal the decision of the Director of the Office of Human Relations to the Chief Operating Officer or a hearing officer assigned by said Officer within ten (10) days from the date of notification of the Director's decision by written notice of appeal; or if the proceedings are pursuant to Section 2-597, then such matters will be governed thereby. Upon the request of the Contractor or Organization, the Chief Operating Officer or hearing officer shall hold a public hearing on such appeal. At all times during the proceedings of the appeal, the burden of proving compliance with this Division and the HAAP will be on the Contractor or Organization. During the pendency of the appeal, the decision of the Director shall remain in full force and effect. If the Chief Operating Officer or hearing officer sustains the appeal of the Contractor or Organization, the Agreement, if canceled, may be reinstated or any payment withheld ordered paid to the Contractor.

(B) If the Chief Operating Officer or hearing officer sustains the Director, it may authorize any or all of the following actions:

(1) Reaffirm the action taken by the Director;

(2) Institute any further action, including but not limited to, canceling, terminating or suspending any future work to be performed by such Contractor or Organization under the Agreement, declaring such Contractor or Organization ineligible for future Agreements with the City until it fully complies with this Division and the HAAP, and publishing or causing to be published the name of such Contractor or Organization in a newspaper of substantial circulation in the Greater Hartford Area.

(C) The Contractor or Organization shall be liable for any and all damages, losses or delays as a result of any determinations made by the Director that such Contractor Organization has failed to comply with the provisions of this Division. All Agreements entered into between the City and any Contractor or subcontractor shall provide that the City shall not be liable for any of such damages, losses or delays.

(D) The contract compliance provisions shall apply to Contractors who are utilizing union and non-union workers. If the contract compliance unit determines, after investigation, that the building trade referral union has failed to comply with the provisions of this Code or any regulations promulgated thereunder, the contract compliance unit shall order all Contractors using that union as their labor source for a building trade or Craft to draw from other resources in order to bring the level of employment for Minority Group Persons in that building trade or Craft city-related Agreement up to the applicable percentage of the required employment goals relating thereto.

(E) If the Director of the Office of Human Relations takes the enforcement actions set forth, above, Using Agencies shall be obligated to conform to such recommendations until such time as the Director of the Office of Human Relations determines that the Contractor is in compliance with the contract compliance provisions of this Code.

(F) The City shall include the above-referenced provisions in all Agreements.
(Ord. No. 07-09, 3-9-09)

Sec. 2-688. Other applications of this Division.

(A) *Tax abatement contracts.* The committee on abatement of taxes and assessments shall not, pursuant to the provisions of Section 32-12 of this Code of Ordinances, enter into any contract for the abatement of taxes with the owner of any proposed housing or rehabilitation project unless the Contractor employed to construct such project agrees to comply fully with the provisions of this Division. However, this section shall not apply if the project has been commenced prior to the effective date of this ordinance or if the committee unanimously waives the applicability of this section.

(1) *Inapplicability of this subsection.* This subsection shall not apply to any tax abatement project involving the expenditure of less than one hundred thousand dollars

($100,000.00) or involving the construction or rehabilitation of less than six (6) dwelling units.

(B) Properties under lease from the City, or receiving City loans or tax benefits. The provisions of this section shall apply to all Agreements for the construction, reconstruction, improvement, alteration or repair of any "Development Property", as that term is defined under C.G.S. § 7-482(d)12, performed for the City, or any delegate of the City, or any private sponsor who leases such development property from the City or who receives a Loan or tax benefit from the City under the provisions of such act. All public and private Agreements for the development, redevelopment, improvement, alteration or repair of any property within the City which is under lease from the City or which will be subject to a City tax benefit, authorized under the provisions of any state statute, shall also be subject to the same affirmative action conditions contained in this Division.

(1) *Applicability of HAAP.* The provisions of this Division shall be incorporated into all Agreements subject to this Division.

(2) *Inapplicability of this subsection.* This subsection shall not apply to any Infrastructure Facility Project involving the expenditure of less than twenty-five thousand dollars ($25,000.00) or involving the construction or rehabilitation of less than six (6) dwelling units.

(Ord. No. 07-09, 3-9-09)

Sec. 2-689. Reserved for future use.

DIVISION 11. OTHER AFFIRMATIVE ACTION PROVISIONS

Affirmative Action Provisions Applicable to Professional Services

Sec. 2-690. Mutual commitment of the City and entities providing professional services, with which it does business.

(A) *Purpose.* It is the policy of the City, established pursuant to constitutional and statutory authority, not to aid or abet present discrimination or the continuing effects of past discrimination on the basis of race, color, religion, creed, age, physical or mental handicap, national origin, ancestry or sex through the expenditure of City funds. It is the further policy of the City that the eradication of discrimination cannot be achieved through pledges of nondiscrimination alone, but requires a mutual commitment between the City and entities providing Professional Services with which it does business, to achieve direct and meaningful affirmative action.

(B) *Applicability.* The provisions of this Division shall govern all Agreements for the provision of professional services in excess of two thousand five hundred dollars ($2,500.00), not subject to the competitive solicitation process as set forth in this Division, by Organizations that employ ten (10) or more individuals on an ongoing basis or will be employing ten (10) or more individuals to perform their scope of work for the City, which Agreements are financed, in whole or in part, with City funds, unless prohibited by State or Federal law.

(C) *Refusal to provide information or pledges.* If any entity refuses to provide the information or pledges required by this Division, the City, its boards, commissions, departments, agents, officials, officers and Employees shall be precluded from conducting any City business with such entity.

(D) *Certificates of merit.* The Director of the Office of Human Relations may provide for issuance of a certificate of merit to professional Organizations or entities which are or may become engaged in providing Professional Services to the City, if said Director is satisfied that the personnel and employment practices of the entity conform to the purposes and provisions of this Division. Any certificate of merit so awarded may at any time be suspended or revoked if the holder thereof, in the judgment of the Director has failed to comply with the provisions of this Division.

(E) *Review of Agreement by Corporation Counsel required.* No Agreement between the City and any entity providing Professional Services to the

City shall take effect unless and until reviewed by the Corporation Counsel in accordance with the provisions of the Charter.
(Ord. No. 07-09, 3-9-09)

Sec. 2-691. Definitions.

The following words, terms and phrases, when used in this Division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(A) *Hartford Labor Market Area* includes such towns as designated by the Department of Labor of the State of Connecticut.

(B) *Individual with a physical or mental handicap* means any person who has a physical or mental impairment which substantially limits one (1) or more of such person's major life activities, has a record of such impairment or is regarded as having such an impairment.

(C) *Major life activities* includes, but is not limited to, communication, ambulation ability, self care, socialization, education, vocational training, employment, transportation and adapting to housing.

(D) *Professional services* as defined in subsection 2-537(Y), above.

(E) *Utilization analysis* means an analysis, by job category, of the current representation of minorities and females in the work force of the entity providing Professional Services compared with the availability of minorities and females in the applicable labor market.

(F) *Gender identity* or *expression* means a person's gender-related identity, appearance or behavior, whether or not that gender-related identity, appearance or behavior is different from that traditionally associated with the person's assigned sex at birth.

(Ord. No. 07-09, 3-9-09; Ord. No. 08-11, 1-10-11)

Sec. 2-692. Agreements with entities providing professional services.

(A) *City entities to use only equal opportunity employers; verification.* Insofar as possible, all City departments, boards, commissions and agencies shall ensure that all individuals and entities with whom the City enters an Agreements for Professional Services are equal opportunity employers. Each Agreement for Professional Services shall include a pledge of nondiscrimination on the basis of race, color, religion, creed, age, national origin, physical or mental handicap, ancestry [or] sex or gender identity or expression, except in the case of a bona fide occupational qualification or need, the breach of which shall constitute a breach of the Agreement. Prior to the award of any Agreement, the individual or entity whose Professional Services are to be engaged shall submit to the Director of the Office of Human Relations an affirmative action prequalification statement on forms prepared by said Director. Such forms shall request only the data and information necessary to determine the present staffing pattern of the entity by race, ethnicity sex or gender identity or expression. Such entity shall also make the following information available for inspection by the City upon its request:

(1) Utilization analysis;

(2) Composition of Minority Group Person job applicants;

(3) Hiring data.

(B) *Determination of minority percentages.* The entity providing Professional Services shall submit an estimate of the approximate percentage of the applicable class of professionals which consists of minorities and women in the Hartford Labor Market Area, or the labor market from which the majority of such professionals are recruited. If such entity does not make such estimation or provides an estimation which, after review, is determined to be inaccurate, the Director of the Office of Human Relations shall make a final determination as to such percentages. If on the basis of the information obtained by said Director it is determined that such entity has a percentage of Minority professional members or Employees which is less than the Minority percentage of such class of professionals in the applicable labor market area, the entity shall pledge to make every Good Faith Effort to eliminate the disparity within one (1) year through the employment of qualified Minorities in at least fifty (50)

percent of all new job or position openings or a percentage of all new job or position openings mutually agreeable from time to time between said Director and the professional consultant. If on the basis of the information obtained by said Director, it is determined that the nonprofessional Employees of an entity providing Professional Services with its headquarters or principal place of business within the Hartford Labor Market Area consist of less than fifteen (15) percent Minorities or less than a representative number of females for the occupation involved, such entity shall pledge to make every Good Faith Effort to achieve these percentages within one (1) year through the employment of qualified Minorities in at least fifty (50) percent of all new job or position openings or a percentage of all new job or position openings mutually agreeable from time to time between said Director and the professional consultants. In regard to the nonprofessional Employees of entities providing Professional Services which do substantial recruiting of such Employees from a labor market other than the Hartford Labor Market Area, there shall be a rebuttable presumption that such labor market consists of not less than fifteen (15) percent Minorities. The entity providing Professional Services shall submit any information to rebut such percentage to said Director with the right to appeal the City's final determination in accordance with the appeal provisions specified in Section 2-693. The establishment of percentage goals for nonprofessional women shall be identical to the procedure set forth for professional women.

(C) *Exception to interim hiring goal.* Notwithstanding the pledge in subsection (B) to recruit Minorities in at least fifty (50) percent of all new job or position openings, no entity providing Professional Services to the City shall be required to employ or promote unqualified individuals under the provisions of this Division. Moreover, if, after making a Good Faith Effort, an entity providing Professional Services is unable to comply with such interim fifty (50) percent hiring goal, the entity shall contact said Director and shall specify the minimum requirements for the position openings or new hiring's at the earliest possible date. If said Director is unable to refer qualified Minorities to fill the positions, the failure to such entity to reach its interim hiring goal as described in subsection (B) shall not be considered a breach of the Agreement with the City.

(D) *Director of the Office of Human Relations to facilitate monitoring.* The Director of the Office of Human Relations shall establish appropriate monitoring provisions for entities providing Professional Services.

(E) *Information forms; failure to submit.* The forms prepared by said Director shall be subject to the approval and advice of the Corporation Counsel. The failure of an entity providing Professional Services to submit the information and pledges requested pursuant to this section shall preclude any further contracting with such organization, until such time as the information or pledge is provided.

(F) *Failure to comply with the provisions of this Division.* A copy of the provisions of this Division and all data, information and pledges secured in accordance with its provisions shall be appended to, and incorporated as a provision of, any Agreement for Professional Services. In the event of noncompliance by an entity providing Professional Services with the equal employment opportunity provisions of this Division, or any request, rule, Regulation or order issued pursuant to this Division, the Agreement subject to the provisions of this Division may be cancelled, terminated or suspended in whole or in part, and such entity may be declared by said Director to be ineligible for further Agreements for Professional Services with the City. Prior to any final finding of noncompliance, however, said Director shall notify said entity that it has fifteen (15) days to show cause why any remedial procedures provided in this Division should not be instituted. During this show-cause period, the entity providing Professional Services and said Director shall make every effort through conciliation, mediation and persuasion to resolve the deficiencies which led to the preliminary finding of the alleged violations. If satisfactory adjustments designed to bring said entity into compliance are not concluded, said Director shall promptly provide written notification to the entity that such efforts have been unsuccessful. Such written notification

shall be subject to the appeal provisions provided in Section 2-693. It is not the intent of this Division to supersede or interfere with the duties and responsibilities of any State or Federal agency in the investigation and resolution of individual discrimination complaints.

(G) *Private organization's plan conforming to this Division.* Nothing in this Division shall preclude the Director of the Office of Human Relations from accepting an existing affirmative action plan of any entity providing Professional Services as in compliance with this Division, if such plan satisfies all the provisions of this Division. The mere existence of such an affirmative action plan, however, will not preclude said Director from imposing additional conditions or requirements where necessary to bring such plan into full compliance with the provisions of this Division.
(Ord. No. 07-09, 3-9-09; Ord. No. 08-11, 1-10-11)

Sec. 2-693. Appeals and hearings.

(A) *Notice; violation determined; penalty.* If the Director of the Office of Human Relations at any time makes a final determination that an entity under the provisions of this Division has submitted or offered for inspection false, inaccurate or misleading information, or is in noncompliance with any provision of this Division, said Director shall immediately notify the entity providing Professional Services by certified letter with written findings of the alleged violations stating the basis for making such findings. Such notification shall also inform the entity that it may appeal the final determination within ten (10) days of the date of said Director's notification by requesting a formal hearing. If a hearing is requested in writing, the Director shall set a hearing date within ten (10) days of such request, and the Corporation Counsel shall appoint an attorney in the Corporation Counsel's office as a hearing examiner. The entity providing Professional Services requesting the hearing shall have the right to be represented by an attorney, to introduce testimony and evidence on its behalf, and to cross-examine and challenge any testimony in support of the final determination of said Director. A Designee of said Director shall present any and all evidence during such hearing in support of any alleged violation. After such hearing, the examiner shall render a decision in writing, setting forth findings and conclusions of the examiner, and shall transmit copies of the decision to the entity, said Director and the Chief Operating Officer. If the examiner has found a substantial or material violation, or if the entity has failed to request a hearing within the ten-day time period for such an appeal, said Director may institute such remedies as provided in subsection 2-690(C).

(B) *Implementation of measures.* The Director of the Office of Human Relations shall immediately notify the Chief Operating Officer and all parties in interest of the proposed implementation measures, by written memorandum. The measures so proposed shall become effective at the expiration of fifteen (15) days, unless the Chief Operating Officer rejects or modifies said Director's proposed actions within such time period. Nothing in this section shall preclude the Chief Operating Officer from accepting an offer by an entity charged with a violation of this Division, which, in the Chief Operating Officer's determination, will provide a meaningful remedy to such violation.
(Ord. No. 07-09, 3-9-09)

Secs. 2-694, 2-695. Reserved for future use.

Affirmative Action Commitment

Sec. 2-696. Employment practices.

(A) *Discriminatory acts.* The employment policies and practices of the City are to recruit and employ qualified job applicants without discrimination based on race, color, religious creed, sex, age, national origin, marital status, sexual orientation, gender identity or expression, ancestry, disability and to treat all Employees equally without discrimination because of race, color, religious creed, sex, age, national origin, martial status, gender identify or expression, ancestry, physical or mental disability. Such actions shall include, but not be limited to, the following:

(1) Employment upgrading;

(2) Demotion or transfer;

(3) Recruitment or recruitment advertising;

(4) Layoff or termination;

(5) Rate of pay or other forms of compensation;

(6) Selection for training, including apprenticeship.

(B) *Policy for conformance with law.* The City emphasizes this policy to assure compliance with Title VII of the Civil Rights Act of 1964, as amended; the Civil Rights Act of 1991, as amended; Presidential Executive Order Number 11246 and Number 11375; the Connecticut Fair Employment Practices Act, as amended; Section 504 of the Vocation Rehabilitation Act of 1973, as amended; Americans with Disabilities Act of 1990, as may be amended from time to time; and, all other applicable laws which pertain to equal employment opportunity.

(C) *Filing complaints.* Any discrimination shall be a violation of this section. Any complaint resulting from such discrimination may be filed with the Office of Human Relations for investigation or referral to the proper agency having jurisdiction in the particular matter or both.

(D) *Mayor to prepare plan; funding, adoption, standards.* The Mayor, as the Chief Executive Officer, shall prepare an Affirmative Action Plan for the City of Hartford. The Mayor shall have the power to include in such plan those agencies that are autonomous of City government, but receive funds from the City. The Affirmative Action Plan shall establish goals and objectives for the hiring of Minority Group Persons by the City. The City's Affirmative Action Plan shall be submitted by the Mayor to the Common Council as a part of the annual budget and shall be adopted by ordinance. The plan, and any amendment thereto, may be adopted only after certification by the Mayor that the plan and amendments will meet all the following standards:

(1) Establishes reasonable minimum percentage goals for Minority employment, considering the extent of past and present discrimination and the qualified Minority labor force in the Hartford Labor Market Area.

(2) Contains provisions that will ensure strict compliance with the provisions and intent of this Division and specifically the responsibility to fully comply with Section 504 of the Vocational Rehabilitation Act of 1973 and all regulations issued pursuant thereto regarding persons with handicaps.

(3) Is designed to mitigate and eliminate the barriers to equal employment opportunity without delay.

(E) *City's leadership to effect plan.* The City will additionally assert its leadership within the community to achieve full employment and effective utilization of the capabilities and productivity of all persons without regard to race, color, religious creed, sex, age, national origin, marital status, ancestry, gender identity or expression,, physical or mental disability.

(F) *Explanation of accomplishments.* The Mayor shall submit a detailed explanation to the Common Council concerning the accomplishment of the goals and objectives concerning hiring of Minority Group Persons required by this section before the end of each fiscal year, if each of such goals and objectives has not been attained.
(Ord. No. 07-09, 3-9-09; Ord. No. 08-11, 1-10-11)

Sec. 2-697. Housing practices.

(A) *Fair accommodation; violations, filing complaints.* The City reaffirms its commitment to the promotion of fair treatment and equal opportunities for safe and sanitary housing for all citizens. No department or Agency of the City shall deny housing accommodations to any person, group or organization by reason of race, color, religious creed, sex, age, national origin, marital status, sexual orientation, ancestry, gender identity or expression, or deny housing to any family due to the presence of children in such family. Any discrimination, segregation or separation shall be a violation of this section and any complaint resulting from such discrimination, segregation or separation may be filed with the Director of the Office of Human Relations for investigation or referral to the proper agency having jurisdiction in the particular matter or both.

(B) *Policy for conformance with law.* The City emphasized this policy to assure compliance with Title VIII of the Civil Rights Act of 1968, as amended; Title VI of the Civil Rights Act of 1964,

as amended; Executive Order Number 11063; the Connecticut Public Accommodations Act; and, the Americans with Disabilities Act of 1990, as may be amended from time to time.

(C) *Mayor to prepare plan; funds, adoption, status report.* The Mayor shall prepare an affirmative fair housing plan with goals and objectives to promote equal housing opportunity for all citizens without regard to race, color, religious creed, sex, age, national origin, marital status, sexual orientation, gender identity or expression, ancestry, or the presence of children as family members. The Mayor shall have the power to include in such plan those agencies that are autonomous of City government, but receive funds from the City. The Mayor shall submit the Fair Housing Plan to the Common Council as part of the annual budget for adoption by ordinance. The Mayor shall also submit to the Common Council on an annual basis a status report as to the implementation of the City's affirmative fair housing plan. (Ord. No. 07-09, 3-9-09; Ord. No. 08-11, 1-10-11)

Sec. 2-698. Affirmative supplier diversity program.

(A) *Policy for conformance with law.* The City hereby reaffirms its commitment to work toward the further inclusion of bona fide local Minority Contractors in the procurement and contracting activity of the City. The city emphasizes this policy to assure compliance with Presidential Executive Order Number 11625 and all other rules and regulations to promote minority business enterprise.

(B) *Director of the Office of Human Relations to prepare program.* The Director of the Office of Human Relations shall prepare an affirmative procurement program for the City which shall establish annual goals and objectives for minority purchasing participation in the purchase of Supplies and Services, which goals and objectives shall include a set-aside for Minority Contractors and Small Business Enterprises.

(C) *Program adoption; status report.* The supplier diversity program shall be included with the annual budget submittal.

(1) The said Director shall additionally propose to the Mayor and the Mayor upon review and approval shall submit to the Common Council on an annual basis a status report as to the implementation of the City 's supplier diversity program.

(2) All Using Agencies shall submit to the Director of the Office of Human Relations a status report, on a quarterly basis, as to compliance with the provisions of the Affirmative Supplier Diversity Program on forms provided by the Director.

(Ord. No. 07-09, 3-9-09)

Sec. 2-699. Affirmative Action Plan submitted; amended, adopted, on file.

(A) Amendments to the Affirmative Action Plan shall be submitted to the Common Council as regulations.

(B) A copy of the City of Hartford Affirmative Action Plan and all amendments thereto shall be filed in the Office of the Town and City Clerk.

ARTICLE IX. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. IX, §§ 2-601—2-606, which pertained to construction managers. See the Municipal Code Comparative Table for complete derivation.

ARTICLE X. AFFIRMATIVE ACTION PLAN*

DIVISION 1. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. X, Div. 1, §§ 2-626—2-638, which pertained to generally. See the Municipal Code Comparative Table for complete derivation.

DIVISION 2. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. X, Div. 2, §§ 2-651—2-664, which pertained to City contracts participation criteria. See the Municipal Code Comparative Table for complete derivation.

DIVISION 3. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. X, Div. 3, §§ 2-676—2-683, which pertained to professional services. See the Municipal Code Comparative Table for complete derivation.

*__Cross references—__Commission on human relations, § 2-156 et seq.; discrimination by contractors with city, § 2-558.

DIVISION 4. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2009, repealed Art. X, Div. 4, §§ 2-696—2-699, which pertained to affirmation action commitment. See the Municipal Code Comparative Table for complete derivation.

Secs. 2-700—2-715. Reserved.

DIVISION 5. EMPLOYMENT ON ASSISTED PROJECTS

Sec. 2-716. Findings.

The council hereby finds:

(1) The city unemployment rate greatly exceeds the unemployment rate of the state and the region;

(2) The number of unemployed minority residents far exceeds the number of unemployed residents as a whole;

(3) A smaller percentage of jobs in the city are held by city residents today than the percentage of jobs in the city that were held by city residents twenty (20) years ago;

(4) Employment of city residents on assisted projects as defined in section 1-2 is one (1) reasonable method of alleviating the severe unemployment rate in the city.

(Code 1977, § 2-370; Ord. No. 19-86, 6-23-86)

Sec. 2-717. Employment and training programs on assisted projects.

(a) The work force on all assisted projects shall meet the following minimum criteria for construction employment:

City resident tradeworkers....	40% of total project hours
Minority tradeworkers.....	25% of total hours by trade
Female tradeworkers.....	6.9% of total hours by trade

(b) During construction of assisted projects, one (1) of every five (5) workers shall be a registered apprentice of whom at least fifty (50) percent shall be city residents.

(c) Best efforts, as determined by the Director of Human Relations based upon documentation provided by the developer of the assisted project, shall be taken to use the Hartford Construction Job Initiative or other Hartford based jobs training programs as certified by the Director of Human Relations as source(s) in hiring workers to satisfy the requirements of this section.

(d) Minority business enterprises shall receive at least twenty-five (25) percent of the dollar amount of total amount of subcontractor business.

(e) A covenant shall be filed on the land records by the developer of the assisted project providing that the work force maintained to manage the assisted project and that all lessees of the assisted project shall hire and maintain a work force that includes at least:

(1) City residents in fifty (50) percent of all permanent jobs; and

(2) Minority residents in forty-five (45) percent of all permanent jobs.

(Code 1977, § 2-371; Ord. No. 19-86, 6-23-86; Ord. No. 07-03, 4-14-03)

Sec. 2-718. Assisted project agreements.

(a) The developers of all assisted projects shall enter into an agreement which shall provide that failure to meet and maintain the requirements set forth in Section 2-717 of this Code shall be grounds for termination of the agreement, including termination of any and all tax benefits; and in the case of projects the total cost of which are in excess of five million dollars ($5,000,000.00), the agreement shall provide that failure to meet and maintain such requirements may result in the imposition of liquidated damages under Section 2-720 of this Code in addition to any other penalties as provided herein.

(b) Any funds received by the city under the provisions of paragraph (a) shall be deposited in such trust fund or funds as directed by the council.

(Code 1977, § 2-372; Ord. No. 19-86, 6-23-86; Ord. No. 60-90, 8-13-90)

Cross reference—Linkage trust fund, § 2-520.

Sec. 2-719. City manager to administer.

The city manager shall be responsible for the administration of this division and shall adopt such reasonable rules necessary for the enforcement thereof as may be necessary under the provisions of Sections 2-1 and 2-2.
(Code 1977, § 2-373; Ord. No. 19-86, 6-23-86)

Sec. 2-720. Liquidated damages for assisted projects and city-contracted commercial developments.

The city and the developers of all assisted projects and city-contracted developments with total project costs in excess of five million dollars ($5,000,000.00) shall enter into an agreement which shall provide that the failure of the developer to meet and maintain affirmative action performance requirements as contained in the agreement shall be subject to liquidated damages as provided in this section.

(a) The developers of the above projects shall post an irrevocable letter of credit with the city in the amount of seventy-two thousand five hundred dollars ($72,500.00) plus five thousand dollars ($5,000.00) dollars per each one million dollars ($1,000,000.00) of construction value for the base building shell, exclusive of any tenant improvement work.

(b) In the event the developer has not fully complied with affirmative action performance requirements as established above, liquidated damages shall be calculated in accordance with the following provisions:

(1) The amount of liquidated damages due from the developer for tradesworker noncompliance shall be determined by using the following procedure:

a. Determine total trade hours for each trade, excluding tenant improvement work.

b. Determine degree of noncompliance with the tradesworkers requirements for each trade expressed as a percentage of total trade hours, exclusive of tenant improvement work.

c. Add the degrees of noncompliance for all trades together to determine the aggregate degree of noncompliance for all trades.

d. Assess liquidated damages against the developer in accordance with the schedule of liquidated damages in paragraph (c) from that portion of the letter of credit allocated as security for the developer's compliance with the terms of paragraph (a).

(2) The amount of liquidated damages due from the developer of minority/women business enterprise (M/WBE) noncompliance shall be determined by using the following procedure:

a. Determine total amount of all contracts, exclusive of tenant improvement work.

b. Determine total amount of contracts performed by M/WBE, exclusive of tenant improvement work.

c. Divide total amount of contracts performed by M/WBE by total amount of all contracts to yield a percentage.

d. From the contracted M/WBE performance requirements, subtract the percentage yielded above. The remainder is the degree of noncompliance with affirmative action performance requirements, expressed as a percentage of the total amount of contracts, exclusive of tenant improvement work.

e. Assess liquidated damages against the developer in accordance with the schedule of liquidated damages in paragraph (c) from that portion of the letter of credit allocated as security for the developer's compliance with the terms of paragraph (a).

(c) *Schedule of Liquidated Damages:*

Degree of Noncompliance Requirements of Paragraph (b)(1) or (b)(2)		*% of Allocated Portion of Letter of Credit To Be Paid as Liquidated Damages*	
Greater Than (%)	*But No More Than (%)*	*Trade Damages Para. (b)(1) (%)*	*M/WBE Damages Para. (b)(2) (%)*
0.0	0.5	1.25	5
0.5	1.0	2.50	10
1.0	1.5	3.75	15
1.5	2.0	5.00	20
2.0	2.5	6.25	25
2.5	3.0	7.50	30
3.0	3.5	8.75	35
3.5	4.0	10.00	40
4.0	4.5	11.25	45
4.5	5.0	12.50	50
5.0	5.5	13.75	55
5.5	6.0	15.00	60
6.0	6.5	16.25	65
6.5	7.0	17.50	70
7.0	7.5	18.75	75
7.5	8.0	20.00	80
8.0	8.5	21.25	85
8.5	9.0	22.50	90
9.0	9.5	23.75	95
9.5	10.0	25.00	100

For each one-half percent of noncompliance with the requirements of paragraph (b)(1) above, the liquidated damages shall increase by one and twenty-five one-hundredths (1.25) percent up to one hundred (100) percent.

(d) Any funds received by the city under the provisions of paragraphs (a) through (c) shall be deposited in such trust fund or funds as directed by the council.
(Ord. No. 61-90, 8-13-90)

Secs. 2-721—2-740. Reserved.

ARTICLE XI. HEARING PROCEDURES FOR FORFEITURE OF GENERAL ASSISTANCE PRIVILEGES

Sec. 2-741. Violation of section 17-274 of general statutes—Notice.

(a) Whenever the director of social services determines that there are reasonable grounds to believe there has been a violation of G.S. § 17-274

or of any rule or regulation adopted pursuant to such section, the director shall give written notice of a hearing to be held regarding the alleged violation to the person responsible therefor, as provided in this section. The notice shall:

(1) Be put in writing;

(2) Include a statement of the time, place and nature of the hearing;

(3) Include a statement of the reasons for its issuance;

(4) Be served upon the person or vendor or his agent, as the case may require, provided that such notice shall be deemed to be properly served upon such person or vendor or agent, if a copy thereof is served upon him personally, or if a copy thereof is sent by registered mail to his last known address, or if he is served with such notice by any other method authorized or required by the laws of this state.

(b) Such notice may contain an outline of remedial action which, if taken, will effect compliance with the provisions of Chapter 308 of the General Statutes and with rules and regulations pursuant to such chapter.
(Ord. No. 5-88, 1-25-88)

Sec. 2-742. Same—Hearings; disposition of charges.

(a) Any person or vendor or agent thereof affected by any notice which has been issued in connection with the enforcement of any provision of Chapter 308 of the General Statutes or of any rule or regulation adopted pursuant to such chapter shall be granted a hearing on the matter before the director of social services or a person appointed by the director of social services to act as a hearing officer. At the hearing, all parties shall be given the opportunity to be heard and to present evidence and argument on all issues involved. All parties may be represented by counsel at the hearing. The hearing shall be commenced not later than ten (10) days from the mailing day of the notice of such hearing to the affected person, provided that upon application of one (1) of the parties, the director of social services may postpone the date of the hearing for a reasonable time beyond such ten-day period if in his judgment there is a good and sufficient reason for such postponement.

(b) After such hearing, the director of social services or the hearing officer appointed by the director, shall render a decision based upon his finding as to whether provisions of Chapter 308 of the General Statutes, and of rules and regulations adopted pursuant to such chapter have been complied with. Any decision rendered by the director of social services or his appointee shall be deemed to be an order. If the director of social services or his appointee finds that the person or vendor or his agent has violated G.S. § 17-274 or any rule or regulation adopted pursuant to such section, that person or vendor or agent shall be subject to forfeiture of privileges of participation in the city general assistance medical reimbursement programs. No person or vendor or his agent so terminated shall be readmitted to such program for a period of up to three (3) years but not less than six (6) months from the date of termination. Termination from such program shall become effective upon the director of social services or his appointee sustaining a finding that a violation has occurred.

(c) The proceedings at such hearing, including the findings and decision of the director of social services or his appointee, shall be reduced to writing and entered as a matter of public record in the office of the director of social services. Such record shall also include a copy of every notice or order issued in connection with the matter.
(Ord. No. 5-88, 1-25-88)

Sec. 2-743. Violation of section 17-282 of general statutes—Notice.

(a) Whenever the director of social services determines that there are reasonable grounds to believe there has been a violation of G.S. § 17-282 or of any rule or regulation adopted pursuant to such section, the director shall give written notice of a hearing to be held regarding the alleged violation to the person responsible therefor, as provided in this section. The notice shall:

(1) Be put in writing;

(2) Include a statement of the time, place and nature of the hearing;

(3) Include a statement of the reasons for its issuance;

(4) Be served upon the person or vendor or his agent, as the case may require, provided that such notice shall be deemed to be properly served upon such person or vendor or agent thereof, if a copy thereof is served upon him personally, or if a copy thereof is sent by registered mail to his last known address, or if he is served with such notice by any other method authorized or required by the laws of this state.

(b) Such notice may contain an outline of remedial action which, if taken, will effect compliance with the provisions of Chapter 308 of the General Statutes and with rules and regulations pursuant to such chapter.
(Ord. No. 6-88, 1-25-88)

Sec. 2-744. Same—Hearings; disposition of charges.

(a) Any person or vendor or agent thereof affected by any notice which has been issued in connection with the enforcement of any provision of Chapter 308 of the General Statutes or of any rule or regulation adopted pursuant to such chapter shall be granted a hearing on the matter before the director of social services or a person appointed by the director of social services to act as a hearing officer. At the hearing, all parties shall be given the opportunity to be heard and to present evidence and argument on all issues involved. All parties may be represented by counsel at the hearing. The hearing shall be commenced not later than ten (10) days from the mailing day of the notice of such hearing to the affected person, provided that upon application of one (1) of the parties, the director of social services may postpone the date of the hearing for a reasonable time beyond such ten-day period if in his judgment there is a good and sufficient reason for such postponement.

(b) After such hearing, the director of social services or the hearing officer appointed by the director shall render a decision based upon his finding as to whether provisions of Chapter 308 of the General Statutes, and of rules and regulations adopted pursuant to such chapter have been complied with. Any decision rendered by the director of social services or his appointee shall be deemed to be an order. If the director of social services or his appointee finds that the person or vendor or his agent has violated G.S. § 17-282 or any rule or regulation adopted pursuant to such section, that person or vendor or his agent shall be subject to forfeiture of privileges of participation in the city general and/or medical assistance reimbursement programs. No person or vendor or his agent so terminated shall be readmitted to such program for a period of up to three (3) years but no less than six (6) months from the date of termination. Termination from such program shall become effective upon the director of social services or his appointee sustaining a finding that a violation has occurred.

(c) The proceedings at such hearing, including the findings and decisions of the director of social services or his appointee, shall be reduced to writing and entered as a matter of public record in the office of the director of social services. Such record shall also include a copy of every notice or order issued in connection with the matter.
(Ord. No. 6-88, 1-25-88)

Secs. 2-745—2-760. Reserved.

ARTICLE XII. LIVING WAGE*

Sec. 2-761. Purpose.

It is the purpose of this article to establish a living wage for all covered workers employed to perform work associated with covered contracts as defined herein and for development projects with the City.

Findings. The court of common council finds and declares that the purpose of this living wage ordinance, as well as the welfare of the City and its residents, require additional provisions to ensure that the anticipated economic benefits of

*__Editor's note—__*Ord. No. 06-10, adopted March 22, 2010, amended Art. XII in its entirety to read as herein set out. Former Art. XII, §§ 2-761—2-774, pertained to similar subject matter. See the Code Comparative Table for complete derivation.

such ordinance inure to the benefit of the City and its people and that the City is protected from potential loss due to labor unrest and conflict.
(Ord. No. 06-10, 3-22-10)

Sec. 2-762. Definitions.

As used in this article, the following terms have the meanings indicated unless the context clearly requires a different meaning:

Affordable housing means housing for families and individuals whose income does not exceed eighty (80) percent of area income as defined by the department of housing and urban development.

City means the municipality of the City of Hartford or any office, agency, board, commission, department, including Hartford Public Schools, or other entity thereof, or any successor thereto.

Development project means a project that is:

(1) Subsidized or paid in whole or in part in excess of one hundred thousand dollars ($100,000.00) from: the City's general fund, capital project funds, City loans, tax abatement agreements, a tax increment financing agreement, state or federal money funneled through or otherwise administered by the City, pension fund money, municipal trust funds or the sale of municipal bonds. Projects dealing with single-family residences, affordable housing or commercial real estate development with a total project cost less than five million dollars ($5,000,000.00), shall not be considered development projects for purposes of this article.

(2) A real estate development the cost of which exceeds twenty-five thousand dollars ($25,000.00) on City-owned land.

Development project manager means a person or entity which/who owns a piece of real estate on a location where a development project is located under agreement, or a person or entity which/who has a leasehold interest of twenty (20) or more years in a property where a development project is located under agreement.

Covered employer means all covered contractors and development project managers, whether an individual, corporation, partnership, joint venture or other entity, except that covered employer does not mean a not for profit entity organized pursuant to the United States Internal Revenue Code, which employs twenty-five (25) or fewer year-round employees in the City. All covered employers shall be equal opportunity employers within the meaning of the procurement ordinances of the Hartford Municipal Code.

Covered contract means any contract awarded by the city in excess of twenty thousand dollars ($20,000.00) to a covered employer, except a vendor who provides goods to the city, provided, however, that if another federal or state statutory or contractual provision prescribes higher wages, than the provisions of this article (such as Davis Bacon or a State of Connecticut prevailing wage provision), then such shall supersede this article.

Covered contractor means any person or entity awarded a City contract and includes all subcontractors of such covered contractors who perform work within the boundaries of the City or on City-owned property.

Covered worker means any employee of a covered contractor or development project manager, or of any subcontractor thereof, who performs work governed by a covered contract, with the following exceptions:

(i) An individual employee whose wage rate is subject to a federal or state statute or regulation mandating a prevailing or other wage rate.

(ii) Any individual who is under eighteen (18) years of age or is in a youth employment program or is a student intern.

(Ord. No. 06-10, 3-22-10)

Sec. 2-763. Living wage required.

All covered employers and their subcontractors shall pay their covered workers no less than the living wage for work on covered contracts as defined in this article. Additionally, all development project managers and their subcontractors shall pay no less than the living wage to the employees working at the development project.

No covered employer may use the living wage requirement of this article to reduce the compensation paid to any of its covered workers.

(a) A living wage means an hourly wage rate which on an annual basis is equivalent to either of the following:

1. One hundred twenty (120) percent of the federal poverty level for a family of four (4), if health benefits are provided to the covered worker or employee. Health benefits, for purposes of this article, mean paid comprehensive family medical coverage which does not require the covered worker or employee to contribute more than five (5) percent of their annual wages towards the payment of the health plan provided, the living wage rate shall not be reduced below the previous year's rate for covered workers with comprehensive family medical coverage; or

2. If health benefits are not provided to the covered worker, the covered employer must pay wages in accordance with subsection (a)1. above, and in addition make payments to its covered workers in lieu of health benefits, as determined by the Director of Human Relations. The Director of Human Relations shall calculate and set forth the amount of these payments in lieu of health benefits on a yearly basis, based on the average cost of non-group comprehensive health insurance in the state provided, the living wage rate shall not be reduced below the previous year's rate for covered workers without comprehensive family medical coverage; or

(b) All development project managers are responsible for ensuring that all of their subcontractors who perform work at the site of the development project pay their employees at the living wage rate.

(c) The Director of the Office of Human Relations shall adjust the living wage as necessary to incorporate changes in the federal poverty level at least six (6) months prior to the beginning of the fiscal year. The Director of Human Relations shall publish a bulletin announcing any change in the amount of the living wage and shall inform each covered employer in writing, prior to such adjustment becoming effective.

(d) Covered employers shall inform covered workers or employees making less than twelve dollars ($12.00) per hour of their possible eligibility for the federal Earned Income Credit ("EIC") pursuant to the Internal Revenue Code and shall make forms available to covered workers or employees informing them about the EIC and the forms required to secure advance EIC payments.

(Ord. No. 06-10, 3-22-10; Ord. No. 16-17, 6-26-17)

Sec. 2-764. Worker retention, local hiring, and training.

(a) Covered employers shall report vacancies in positions related to covered contracts and development projects to local hiring agencies and to the Office of Human Relations for purposes of advertisement to the local community.

(b) Any covered contract shall include language in the event the contract is transferred from one (1) covered employer to another, or if a new covered employer is awarded a covered contract that was previously performed by a prior covered employer, the new covered employer shall offer to employ and retain for a ninety-day period the covered workers who worked under the previous covered employer for at least twelve (12) months. New covered employers may not discharge the covered workers retained during the ninety-day period, except for cause.

(c) The Director of the Office of Human Relations shall work with the Mayor, the Court of Common Council, other city departments and agencies to promote programs encouraging and facilitating active support for job training

programs with covered employers that benefit residents of the City, on an equal opportunity basis, all as per the City's procurement ordinance and other applicable laws or regulations.
(Ord. No. 06-10, 3-22-10; Ord. No. 16-17, 6-26-17)

Sec. 2-765. Implementation.

All requests for bids and requests for proposals for covered contracts or development projects, whether advertised or informally solicited, shall include appropriate information about the living wage requirements.
(Ord. No. 06-10, 3-22-10)

Sec. 2-766. No strike agreement; labor peace required.

All development project managers shall sign a written agreement with a labor organization seeking to represent employees at the development project, which agreement provides a procedure for determining employee preference on the subject of whether to be represented by a labor organization for collective bargaining and further provides that the labor organization will not strike the development project in relation to the organizing campaign.
(Ord. No. 06-10, 3-22-10)

Sec. 2-767. Recording of covenant required.

The City must include a clause in all contracts, city loans, tax abatement agreements, tax increment financing agreements, or other documents providing financing for development projects covered by the terms of this article, requiring the development project manager to comply with living wage and labor peace provisions of this article. In addition, said clause shall state that all sums owed to the City from contracts, city loans, tax abatement agreements, tax increment financing agreements or other documents providing financing for development projects will be due and payable in event of a violation of this article. Upon the granting of a development project that meets the terms of this article, the City shall record a covenant in the Hartford Land Records that provides that the development manager shall abide by the terms of the living wage and labor peace ordinance.
(Ord. No. 06-10, 3-22-10)

Sec. 2-768. Responsibility for effectuation and enforcement.

The Director of the Office of Human Relations shall investigate violations of this article and make recommendations to the Mayor for enforcement. The Mayor shall consider these recommendations and direct City departments to take enforcement actions, if needed, as provided below.
(Ord. No. 06-10, 3-22-10)

Sec. 2-769. Enforcement and reporting.

(a) Monitoring of the provisions of this article shall be the responsibility, initially, of the Office of Human Relations. As appropriate or necessary, the Director of that division may require a covered employer to produce payroll records relevant to an audit or any inquiry into a claimed violation of this article. Every covered employer shall post copies of documents provided by the Director of the Office of Human Relations, stating the living wage applicable to covered workers. In addition, such posting shall include a form which may be used by covered workers to file a complaint with the Director of the Office of Human Relations for noncompliance with the provisions of this article. Such postings shall be made at the work site in a prominent place where all documents posted pursuant to this article may easily be seen and read by covered workers. A copy of such documents shall be given by the covered employer to any covered worker upon request no later than (i) the last hour of the said worker's next shift or (ii) the last hour of the next business day.

(1) *Failure to comply.* If the employer fails to comply with any component of subsection (a), the Director of Human Relations shall notify the employer to make immediate compliance to avoid the imposition of a fine of one hundred dollars ($100.00) per day for each violation. If the employer fails to comply within twenty-four (24) hours, such fines shall commence and the Director of Human Relations shall

notify Corporation Counsel to proceed with appropriate prosecution or cancellation of the contract.

(b) In the event that the Director of Human Relations shall determine that a covered employer has paid a covered worker a sum less than the living wage the Director of Human Relations shall require the covered employer to make full restitution to the covered worker (i) in the said worker's next paycheck or (ii) within five (5) business days if the said worker is no longer employed by the covered employer.

(1) *Full restitution* means the difference between the sum paid by the covered employer to the covered worker and the living wage.

(2) *Failure to comply.* For each violation of subsection (b) of this section, the Director of Human Relations shall notify the em-

ployer and demand immediate compliance with this article or a fine of one hundred dollars ($100.00) per day shall be imposed per violation. If full restitution is not met within five (5) business days, such fines shall commence and the Director of Human Relations shall notify Corporation Counsel to proceed with appropriate prosecution or cancellation of the contract.

(c) *Certified payroll submission.* Every covered employer shall be required to maintain electronic certified payroll records and detailed information about the health care and benefits provided to its covered workers, including the number of such workers covered and the type of health care coverage or benefit received. Such records shall be in the format designated by the Office of Human Relations.
(Ord. No. 06-10, 3-22-10)

Sec. 2-770. Termination of contract.

In addition to other provisions of law or contract which may constitute grounds for termination by the City of a covered contract, tax abatement agreement, grant or tax increment financing agreement, such contracts, agreements or grants may be terminated following a determination that a covered employer:

(a) Failed to fully rectify or correct any violation of any provision of this article within thirty (30) calendar days of receipt by the covered employer or its agents of the Director of Human Relations' notice of such violation.

(b) Failed to make full restitution to a covered worker within thirty (30) days of receipt of the Director of Human Relations' notice of a violation of such subsections.

(c) Failed to pay part or all of any fine levied by the City pursuant to any provision of Section 2-769 of this article within sixty (60) days of receipt of the City's notice of such levy.

(d) Failed to provide to the Office of Human Relations, verification of wages paid to covered employees; as required.

(e) Failed to cooperate with the City's audit of the covered employer's payroll records.
(Ord. No. 06-10, 3-22-10)

Sec. 2-771. Appeal process.

The Director of Office of Human Relations or designee shall investigate violations of this article and make recommendations to the Mayor. The Mayor shall consider the recommendations and direct the Office of Human Relations and Corporation Counsel to take enforcement actions, if needed. An enforcement action shall be appealable by written notice from the covered employer to the Labor and Workforce Development Committee of the Court of Common Council within five (5) days after receipt of said enforcement action. The Council may reverse the determination of enforcement action by a majority vote.
(Ord. No. 06-10, 3-22-10)

Sec. 2-772. Ineligibility of covered contractor to contract with or obtain city loans, other subsidies and covered contracts.

The purchasing agent is authorized to declare a covered contractor ineligible to obtain covered contracts as follows:

(1) The purchasing agent shall declare any covered contractor whose covered contract with the City was terminated pursuant to this article to be ineligible to contract with the City.

(2) The purchasing agent may declare any covered contractor who has committed three (3) or more violations of the provisions of this article to be ineligible to contract with the City.

(3) Ineligible to contract with the City means that such covered contractor, and any parent or subsidiary or related entity of such covered contractor, shall be ineligible to submit bids or proposals for any

contract or other agreement with the City and shall be ineligible to enter into any contract or agreement, with the City.

(4) Such period of ineligibility shall be for at least one (1) but not more than three (3) calendar years. After the first year of ineligibility has been completed, the purchasing agent, with the consent of the Director of Human Relations, may declare that the period of such ineligibility is terminated.

(5) Declarations made pursuant to this section shall be issued in writing to the covered contractor, and the City purchasing agent shall furnish copies of all such declarations promptly upon issuance to the Director of the Office of Human Relations and to the heads of all City offices, authorities, boards, bureaus, commissions, departments, and other entities.

(Ord. No. 06-10, 3-22-10)

Sec. 2-773. Annual report.

(a) Each January, the Director of the Office of Human Relations shall submit to the Mayor, the Court of Common Council and the Commission on Workplace Rights an annual report for the preceding fiscal year regarding implementation of this article, including its fiscal impact and its impact on hiring of Hartford residents. Included in this report shall be the following information: (1) the number of monitored contracts and development projects; (2) the number of reported complaints, violations and their resolutions; (3) a summary of certified payroll, health care and benefit information provided.

(b) Each January, the Commission on Workplace Rights shall submit to the Court of Common Council a report for the preceding fiscal year regarding evaluation of the economic and racial impact of this article, including recommendations concerning the benefits of this article's provisions for Hartford residents.

(Ord. No. 06-10, 3-22-10)

Sec. 2-774. Other requirements.

(a) Covered employers who maintain payroll information in the Greater Hartford Area shall make such information available for onsite audit by the Director of the Office of Human Relations or designee.

(b) Covered employers who do not maintain payroll information in a Greater Hartford area office shall be required to submit their payroll records to the Office of Human Relations within one (1) week of the payroll period in accordance with section 2-769 of this article.

(Ord. No. 06-10, 3-22-10)

Secs. 2-775—2-784. Reserved.

ARTICLE XIII. CRIMINAL RECORD CHECK SCREENING*

Sec. 2-785. Resolution.

The court of common council by substitute resolution dated January 12, 2009 cited practices that stigmatize individuals with criminal records, no matter how minor, during an initial employment interview process, serve to deter employers from hiring these individuals who may otherwise, with all things considered, be qualified for employment opportunities.

(Ord. No. 18-09, 5-11-09)

Sec. 2-786. Title.

Criminal record check screening procedure for the City of Hartford's vendors.

(Ord. No. 18-09, 5-11-09)

Sec. 2-787. Purpose.

It is the intent and purpose of this article to assist the successful reintegration of formerly-incarcerated people back into the community by removing barriers to gainful employment after their release from prison.

(Ord. No. 18-09, 5-11-09)

Sec. 2-788. Definitions.

Applicant means any current or prospective employee, licensee, or other person who requests

*__Editor's note—__Ord. No. 18-09, adopted May 11, 2009, set out provisions intended for use as Art. XIV, §§ 2-785—2-788. For purposes of classification, and at the editor's discretion, these provisions have been included as Art. XIII, §§ 2-785—2-788.

to be considered for employment by the city, not including board of education and the public schools, or by one (1) of its vendors.

Awarding authority means any department, agency, or office of the City of Hartford that purchases goods and/or services from a vendor.

City means the City of Hartford.

Conviction means any sentence arising from a plea or verdict of guilty, including a sentence of probation or a sentence of unconditional discharge.

Direct relationship means the nature of criminal conduct for which the person was convicted has a direct and/or specific negative bearing on a person's fitness or ability to perform one (1) or more of the duties or responsibilities necessarily related to the employment sought.

Otherwise qualified means any applicant who meets all other criteria for a position or consideration for a position.
(Ord. No. 18-09, 5-11-09)

Sec. 2-789. Criminal record check standards for the City of Hartford's vendors.

(a) The City of Hartford has implemented criminal record check policies and practices that are fair to all persons involved and seeks to do business with vendors that maintain substantially similar policies and practices.

(b) Vendor job applications shall not contain a "box" or inquiry regarding a job applicant's prior convictions.

(c) In connection with the licensing or employment of any person, it shall be unlawful discriminatory practice for a city vendor to make any inquiry about or to take any adverse action against any person on the basis of any arrest or criminal accusation made against such person, which is not then pending against that person and which did not result in a conviction. It shall further be an unlawful discriminatory practice for a city vendor to require any person to disclose or reveal any arrest or criminal accusation made against such person which is not then pending against that person and which did not result in a conviction.

(d) City vendors shall adhere to a policy in which an applicant's criminal record is not revealed to the individual or individuals, who are making a hiring decision, until a conditional offer of employment has been offered. Further, rejection of an applicant shall only be considered lawful if the contents of the criminal record have a direct bearing on the nature of employment or the offer of employment would violate state or federal law.

(e) The awarding authority shall review all vendors' criminal record check policies for consistency with city standards. The awarding authority shall consider any vendor's deviation from the criminal record check standards as grounds for rejection, rescission, revocation, or any other termination of the contract.

(f) The applicant shall have five (5) business days, after receipt of the notice and the photocopy of the criminal record from the awarding authority or vendor, to respond to the awarding authority or vendor regarding the criminal record report. The awarding authority or vendor shall provide the applicant with the opportunity to present information rebutting the accuracy and/or relevance of the criminal record report and must review any information and documentation received from the applicant prior to taking any final action with regard to the applicant.
(Ord. No. 18-09, 5-11-09)

Sec. 2-790. Retaliation and discrimination prohibited.

It shall be unlawful to retaliate against any person on account of his having claimed a violation of this article.
(Ord. No. 18-09, 5-11-09)

Sec. 2-791. Regulatory authority.

The department of human relations shall have the authority to promulgate rules and regulations necessary to implement and enforce these sections and may promulgate a form of the affidavit.
(Ord. No. 18-09, 5-11-09)

Sec. 2-792. Severability.

If any provision of these sections shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.
(Ord. No. 18-09, 5-11-09)

Sec. 2-793. Implementation.

The provision of these sections shall be effective ninety (90) days from their passage.
(Ord. No. 18-09, 5-11-09)

ARTICLE XIV. PUBLIC SAFETY INITIATIVE

Sec. 2-794. Purpose.

The purpose of the public safety initiative is to increase the number of Hartford residents employed by the City of Hartford in its public safety jobs, by creating pathways by which Hartford residents may prepare for and enter public safety careers.
(Ord. No. 14-15, 8-10-15)

Sec. 2-795. Goals.

The goals of the public safety initiative are to 1) hire more Hartford residents as police officers, 2) to interest, motivate, and support Hartford young people in pursuing careers in public safety, and 3) retain, as City employees, Hartford residents who have been hired as public safety staff.
(Ord. No. 14-15, 8-10-15)

Sec. 2-796. Programs.

The public safety initiative shall consist of four (4) programs.

(a) *Outreach and Recruitment:* The City shall implement ongoing outreach and recruitment campaigns to inform Hartford residents of all ages about the Public Safety Initiative and to recruit them as participants in the component programs.

(b) *Summer Youth Employment Program:* There shall be a program that employs, each summer, at least forty-five (45) high school students who live in Hartford and who have expressed interest in exploring a public safety career. The program shall include placement in Fire and Police departments, first aid and CPR training, physical fitness, team building, and experience with practical law enforcement skills.

(c) *Extended Year Program (EYP):* There shall be a program during the school year for youth who have participated in the public safety summer youth employment program. Participants shall meet monthly, take part in a monthly activity, receive mentoring and counseling by trained individuals, and receive stipends.

(d) *Post-Secondary Program:* There shall be a program of support for Hartford residents who have enrolled in a post-secondary or degree program and who plan to pursue a career in law enforcement. Such support shall include mentoring and counseling, tuition assistance, stipends for books and materials, activities during semester breaks, and summer employment and/or internships. There shall also be a program to prepare Hartford residents to take examinations to enter the Police Academy and to apply for other public safety jobs. The program shall include the Police and Fire Explorer and Cadet programs; counseling and mentoring, Integrated Basic Education Skills Training (I-BEST), provision of a written exam training manual, a test preparation course, and wellness and fitness training. All Explorers and Cadets shall be Hartford residents.

(Ord. No. 14-15, 8-10-15)

ARTICLES XV, XVI. RESERVED

Secs. 2-797—2-799. Reserved.

ARTICLE XVII. PENSIONS AND RETIREMENT*

Sec. 2-800. Commission permitted to defer income commencement date for members of firemen's relief fund or police benefit fund.

(A) A member of the firemen's relief fund or the police benefit fund upon retirement from the uniformed service to enter nonuniformed city service, thereby qualifying for membership in the municipal employees' retirement fund, may request the pension commission to defer the income commencement date of uniformed service pension payments to either the date on which said member's nonuniformed city service terminates or the mandatory retirement date under the municipal employees' retirement fund, whichever is the earlier. If the pension commission grants such request, service requirements for eligibility for municipal employees' retirement fund benefits will be waived. The decision of the pension commission to defer the income commencement date shall be irrevocable.

(B) If a deferred income commencement date is granted as provided in subsection (A), pension payments will be made commencing on the deferred income commencement date and the amount of such deferred payments shall be determined by the pension commission.
(Ord. No. 07-05, 8-8-05)

Sec. 2-801. Policemen and firemen permitted to waive benefits in employees' retirement fund and receive monthly retirement allowance.

(A) Any policeman or fireman who has completed twenty-five (25) years of continuous service in that capacity with the city and who is a member of the city municipal employees' retirement fund may elect to waive all benefits which said employee would otherwise be entitled to receive from that fund, in which case the employee may retire and receive a retirement allowance payable monthly at an annual rate amounting to two (2) percent of the employee's final average pay, multiplied by the number of years of said employee's service. Final average pay shall mean the average annual rate of pay for the highest five (5) years out of the ten (10) years immediately preceding retirement. Election of benefits shall be made on forms to be prepared by the pension commission, and shall be filed with the commission not earlier than thirty (30) days prior to the date on which retirement is to take place.

(B) After July 1, 1974 pension rights for policemen and firemen under the provisions of the municipal employees' retirement fund and this section shall become vested after twenty (20) years of continuous service, regardless of age, conditioned upon the employee leaving prior contributions in the pension fund. Such pension shall be payable on the date such employee would have completed twenty-five (25) years of continuous service and shall be computed at an annual rate amounting to two (2) percent of the employee's final average pay, multiplied by the number of years of such individual's active service as a policeman or fireman.

(C) After July 1, 1978 any policeman or fireman may elect early retirement under the municipal employees' retirement fund or this section after at least twenty (20) years of continuous service. Any policeman or fireman who elects such early retirement will receive pension benefits computed at an annual rate amounting to two (2) percent of the employee's final average pay multiplied by the number of years of active service as a policeman or fireman and reduced by four (4) percent for each whole year by which the date of early retirement precedes the date on which said individual would have completed twenty-five (25) years of continuous service, with proration for a fraction of a year.

(D) If a policeman or fireman who is a member of the city municipal employees' retirement fund dies before retirement, or after retirement if the

*__Charter references—__Pensions, Ch. XII; Pensions In General, App. to Charter, § 16 et seq.; Pensions (Charter 1949, Chapter XVI, As Amended), App. to Charter, § 20.1 et seq.

__Cross references—__Employees of pension commission, § 2-855; pensions, Ch. 2A.

employee is receiving a normal or disability retirement allowance from such fund, from any cause other than one arising out of and in the course of his employment as defined in the Workmen's Compensation Act, then there shall be paid to his survivors certain allowances as follows:

(1) To the surviving widow a monthly pension of one hundred dollars ($100.00) payable for life, beginning when she attains the age of sixty-two (62) years, or beginning immediately if that age has already been attained.

(2) If there is a surviving dependent child or children, a monthly pension of fifty dollars ($50.00), plus an additional fifty dollars ($50.00) for each such child. The total payable shall be divided equally among the eligible dependent children. As each such child ceases to be a dependent child, the allowance and the share of the total allowance with respect to said child shall cease. The pension of surviving children shall be payable to the surviving widow if she has the children in her care; otherwise it shall be payable to their guardian.

(3) A surviving widow who has not remarried and who is less than sixty-two (62) years of age shall receive a monthly pension of one hundred dollars ($100.00) for any period during which she has in her care surviving dependent children for whom a pension is being paid under paragraph (2). This additional pension to the surviving widow shall cease when she attains the age of sixty-two (62) years and qualifies for a pension under paragraph (1).

(4) The payment of these survivors' allowances shall be conditioned upon a waiver of any benefits which the payee would otherwise be entitled to receive from the municipal employees' retirement fund and shall not in the aggregate exceed a rate equal to one hundred (100) percent of the deceased member's pay at the time of said member's death or retirement.

(5) Notwithstanding the provisions of paragraph (1), the surviving widow of any police department or fire department member of the municipal employees' retirement fund who is covered under this section and who dies before or after retirement from any cause other than one arising out of and in the course of employment as defined in the Workmen's Compensation Act, shall receive an annual pension equal to twenty-five (25) percent of such member's highest earnings in the last twelve (12) consecutive months' period during which the employee is receiving full salary prior to his retirement or death, as the case may be, beginning immediately and payable monthly for life until her death or remarriage.

(6) Any surviving widow of any fire department member of the municipal employees' retirement fund who is covered under this section and who died prior to April 1, 1969, shall be covered by the benefits of paragraph (5), except that such improved benefits shall be effective from April 1, 1969. Any surviving widow of any police department member of the municipal employees' retirement fund who is covered under this section and who dies prior to December 1, 1971, and any police department member of the municipal employees' retirement fund who was retired because of nonservice-connected disability prior to December 1, 1971, shall be covered by the benefits provided in this section, except that such improved benefits shall not take effect until December 1, 1971.

(7) The provisions of paragraph (5), only as it applies to benefits in the case of widows of retirees who are retired on a normal retirement allowance, shall take effect on April 1, 1971. The remaining provisions of paragraph (5) shall take effect on April 1, 1969.

(E) For the purpose of this section, the term "surviving widow" shall mean the surviving spouse of a policeman or fireman who shall have been married to him and living with him at the time of his death, if he dies while in active service, or who shall have been married to him prior to his

retirement and who shall have been living with him at the time of his death, if he dies after retirement.

(F) For the purpose of this section, the term "surviving dependent child" shall mean any unmarried child under the age of eighteen (18), or over eighteen (18) if physically or mentally incapacitated from engaging in gainful employment. It shall not include any child born to a policeman or fireman more than nine (9) months after said individual's retirement from active service, but shall include natural children, adopted children, stepchildren and foster children living with the policeman or fireman at the time of retirement from active service.

(G) Any disability retirement allowance payable under § 3(e) of the municipal employees' retirement fund to a policeman or fireman who is a member of the municipal employees' retirement fund if such disability arises out of and in the course of employment as defined in the Workmen's Compensation Act shall be one hundred (100) percent of the member's annual pay from City employment at the time the individual's disability commenced, less any weekly benefits received under the Workers' Compensation Act. This limitation shall supersede any limitations in effect on January 10, 1966.

(H) Any special disability allowance payable under § 3(f) of the municipal employees' retirement fund to a policeman or fireman who is a member of the municipal employees' retirement fund shall be calculated after excluding a portion of any earnings from gainful employment. The portion to be excluded shall not exceed the income which a social security beneficiary is entitled to earn without causing a reduction of the member's social security benefits, unless the disability arises out of and in the course of employment as defined in the Workmen's Compensation Act in which case the portion to be excluded shall not exceed seventy-five (75) percent of the member's annual pay from City employment at the time his disability commenced. Any weekly payments received under the Workmen's Compensation Act shall be considered earnings from gainful employment. This limitation shall supersede any limitations in effect on January 10, 1966.

(I) In addition to the regular contribution required of members of the municipal employees' retirement fund, each member who is a policeman or fireman shall make an additional contribution of two (2) percent of his pay. This additional contribution shall be deducted together with the regular contribution at each pay period and credited to the member's account in the fund, and shall be included in determining the amount of any refunds of contributions for which said member may become eligible.

(J) The benefits provided by this section shall be administered by the pension commission in the same manner that the commission administers the municipal employees' retirement fund. Allowances shall be paid from such fund and the value of the benefits provided in this section shall be included by the commission in determining the contribution to be paid by the City into such fund.

(K) In determining the amount of final average pay for the purpose of disability retirement allowance or special disability allowance because of nonjob-connected disability suffered by any police department or any fire department member of the municipal employees' retirement fund who is covered under this section, such final average pay shall mean the average annual rate of pay of such member for the highest five (5) years of the last ten (10) years immediately preceding the member's retirement.

(L) Any special disability allowance payable under § 3(f) of the municipal employees' retirement fund to a police officer or fireman who is a member of the municipal employees' retirement fund with fifteen (15) or more years of service at the time of the member's retirement shall be calculated without excluding any portion of any earnings from gainful employment.

(M) Any special disability allowance payable under § 3(f) of the municipal employees' retirement fund to a policeman or fireman who is a member of the municipal employees' retirement fund with less than fifteen (15) years of service at the time of the member's retirement shall be calculated after excluding a portion of any earnings from gainful employment. The portion to be excluded shall not exceed the income which a social security beneficiary is entitled to earn with-

out causing a reduction of the member's social security benefits, unless the disability arises out of and in the course of employment as defined in the Workers' Compensation Act in which case the portion to be excluded shall not exceed seventy-five (75) percent of the current rate of pay of a policeman or fireman of the same or a corresponding grade. Any weekly payments received under the Workers' Compensation Act shall be considered earnings from gainful employment.

(N) Any special disability allowance payable under § 3(f) of the municipal employees' retirement fund to a policeman or fireman who is a member of the municipal employees' retirement fund and whose disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the City, as defined by the Workers' Compensation Act shall be fifty (50) percent of said member's annual pay from the City at the time the member's disability commenced or two (2) percent of such annual pay multiplied by the number of years of service, whichever is greater, and which allowance shall be subject to the restrictions of subsections (L) and (M).

(O) Any policeman or fireman who has completed at least five (5) years of service and who is totally disabled as a result of a disability which arises outside the course of the member's employment as defined by the Workers' Compensation Act or any policeman or fireman who has completed at least ten (10) years of service and who is partially disabled as a result of a disability which arises outside the course of the member's employment as defined by the Workers' Compensation Act shall be eligible to receive a special disability allowance, which allowance shall be twenty-five (25) percent of said member's final average pay from the City at the time the member's disability commenced or two (2) percent of such final average pay multiplied by the number of years of his service, whichever is greater, and which allowance shall be subject to the restrictions of subsections (L) and (M).

(Ord. No. 07-05, 8-8-05)

Charter references—Police benefit fund, App. to Charter, § 31; firemen's relief fund, App. to Charter, § 32.

State law reference—Workers' Compensation Act, G.S. §§ 31-275—31-355a.

Sec. 2-802. Supplementary retirement allowances.

(A) This section shall apply for the benefit of the following classes of City employees and dependents:

(1) All permanent, full-time employees who are active or retired members of the firemen's relief fund, the police benefit fund, the retirement allowance fund and the municipal employees' retirement fund, and whose eligibility for pension payments has been or will be established either by reason of service or by reason of an occupational disability with the following exceptions:

(a) Employees with respect to whose City employment federal social security taxes are paid,

(b) Employees who are also members of the state teachers' retirement system,

(c) Employees more than half of whose retirement benefits are paid by the metropolitan district.

(2) Widows who are entitled to or who become entitled to widows' benefits from the firemen's relief fund or the police benefit fund.

(3) Joint annuitants who are entitled or who become entitled to retirement allowances as a result of an election of an optional form of retirement allowance by a City employee in an eligible class as defined in paragraph (I).

(B) It is declared to be the policy of the City that the minimum retirement allowance which should be paid to the above classes of individuals shall be one hundred fifty-five dollars ($155.00) monthly. However, any individual whose pension has been increased to such minimum shall not receive any further increase in the individual's allowance unless the amount of his original pension plus the supplementary allowances provided in the form of percentage increases, excluding the increment which produced the minimum payment, shall total more than one hundred fifty-five dollars ($155.00) monthly.

(C) If any individual in an eligible class as defined in subsection (A) is receiving a retirement allowance from the City which is less than the minimum provided by subsection (B), then a supplementary monthly retirement allowance shall be paid, sufficient to raise the total retirement allowance to the prescribed minimum.

(D) This section shall take effect April 1, 1973, and shall apply with respect to retirement allowances falling due thereafter. Payments provided by it shall be made from appropriations included in the City budget for this purpose. This section shall be administered by the pension commission, and the eligibility for inclusion of any individual in a class for which benefits are provided in this section shall be determined by the commission from its official records; provided, however, that no supplementary retirement allowance provided by previous ordinances shall be reduced.

(E) All schoolteachers, nurses, librarians, principals, dental hygienists and social workers retired on City pensions who have been employees of the board of education shall be entitled monthly to a cost-of-living allowance computed on the basis of current pension schedules, now in effect for the aforementioned retirees in accordance with the following schedule, effective April 1, 1968:

Year of retirement	*of increase*
1931	.4
1932	.6
1933	.4
1934	.5
1935	.4
1936	.6
1937	.7
1938	.8
1939	.8
1940	.1
1941	.7
1942	.0
1943	.5
1944	.5
1945	.8
1946	.1
1947	.6
1948	.0
1949	.4
1950	.1
1951	.6
1952	.0
1953	.5
1954	.1
1955	.5
1956	.6
1957	.5
1958	8.0
1959	7.2
1960	5.8
1961	4.6
1962	3.5
1963	2.0
1964	2.0
1965	2.0
1966	2.0
1967	2.0

(F) That portion of the pension paid by the City to any certified personnel nurse, board of education secretary hired prior to May 1, 1947, librarian, principal, dental hygienist and social worker who had been an employee of the board of education and who retired on or before July 1, 1970, and to each elected beneficiary of such certified personnel nurses, board of education secretaries hired prior to May 1, 1947, librarians, principals, dental hygienists and social workers receiving benefits as such beneficiary, shall be increased by three and one-half (3½) percent. The pensions payable by the City to all individuals in these classifications who retired prior to July 1, 1971 shall be further increased by three and one-half (3½) percent effective July 1, 1974, subject to the limitation prescribed in subsection (B) for any pensioner who is receiving payments in the minimum amount of one hundred fifty-five dollars ($155.00) monthly.

(G) All other service and disability pensioners, and surviving joint annuitants under option elections, who are receiving allowances from the City's retirement allowance fund, with commencement dates prior to July 1, 1970, shall receive a seven-percent increase in their pension payments effective July 1, 1974, subject to the limitation prescribed in subsection (B) for any pensioner

who is receiving payments in the minimum amount of one hundred fifty-five dollars ($155.00) monthly; provided, however, that the seven-percent supplementary allowance shall not apply to individual pensions granted by special legislative acts. Nonuniformed pensioners of the police benefit fund whose benefits commenced prior to July 1, 1970, and disabled-child survivor annuitants of the firemen's relief fund whose benefits commenced prior to July 1, 1970, and who had received no other supplements to their original allowances shall also receive a seven (7) percent increase in their pension payments effective July 1, 1974.

(H) All pensioners and surviving joint annuitants under option elections, who are receiving allowances from the City's retirement allowance fund, with commencement dates on or before August 1, 1974, shall receive a four-percent increase in their pension benefits retroactive to July 1, 1977, subject to the limitation prescribed in subsection (B) for any pensioner who is receiving payments in the minimum amount of one hundred fifty-five dollars ($155.00) monthly; provided, however, that the four (4) percent supplementary allowance shall not apply to individual pensions granted by special legislative acts.

(I) All members of the municipal employees' retirement fund who are receiving allowances from the fund who retired or will retire on or before December 31, 1981, and spouses of such members who have died, shall be entitled to increases in benefits effective July 1, 1981, in accordance with the following table:

Year of retirement of increase	
1978—1981	1
1977	2
1976	4
1975	6
1974	8
1973	
1972	
1971	
1970	
1969	
1968 and earlier	

(J) All pensioners and surviving joint annuitants under option elections, who are receiving allowances from the City's retirement allowance fund on the date of adoption of this section shall receive a five (5) percent increase in their pension benefits commencing with the first full month following adoption of this section.

(K) Each member of the retirement allowance fund who is receiving an allowance from such fund shall, in addition to the allowance received from such fund, on or before June 30, 1985 receive a lump sum payment equal to the amount of ten dollars ($10.00) multiplied by the number of full years' service upon which the deceased member's retirement allowance is based. The surviving spouse of each deceased member of such fund who is receiving an allowance from the fund shall, in addition to the allowance received from the fund, on or before June 30, 1985 receive a lump sum payment equal to the amount of five dollars ($5.00) multiplied by the number of full years' service upon which the deceased member's retirement allowance was based.

(L) Each member of the municipal employees' retirement fund who is receiving a retirement allowance payment of which allowance commenced on or before December 31, 1980 shall, in addition to the allowance received from such fund, on or before June 30, 1985, receive a lump sum payment equal to the amount of six dollars ($6.00) multiplied by the number of full years' service upon which the member's retirement allowance is based. In the case of any such member who is deceased the surviving spouse of such deceased member who is receiving an allowance from such fund, on or before June 30, 1985, shall receive a lump sum payment equal to the amount of three dollars ($3.00) multiplied by the number of full years' of service upon which the deceased member's retirement allowance was based.

(M) Each member of the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 1985, their qualified spouses and their qualified dependent children shall be entitled to an increase in the member's monthly retirement pension which shall be known as the cost-of-living adjustment. The

cost-of-living adjustment shall be equal to sixty (60) percent of the Consumer Price Index (CPI) increase occurring since the date of retirement and shall be applied to the initial retirement benefit received, but offset by any previous cost-of-living adjustments received by retirees not covered by Social Security. The cost-of-living adjustment for those covered by Social Security shall be equal to forty (40) percent of the CPI increase occurring since the date of retirement applied to the initial retirement benefit received and offset by any previous cost-of-living adjustment received. For those classes of retirees who are already the beneficiaries of increases which are part of automatic adjustments currently in force as a result of terms and conditions previously agreed upon through the process of collective bargaining, the cost-of-living increase will further offset by any increases resulting from bargaining agreements effective on or after July 1, 1987. The provisions of this subsection shall not apply to any beneficiary of the police benefit fund who is receiving benefits under the provisions of § 234(j) of the City of Hartford Charter of 1941.

(N) Each member of the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 1988, their qualified spouses and their qualified dependent children, shall be entitled to an increase in the member's monthly retirement pension which shall be known as the cost-of-living adjustment. The cost-of-living adjustment shall be equal to sixty (60) percent of the Consumer Price Index (CPI) increase occurring since the date of retirement and shall be applied to the initial retirement benefit received, but offset by any previous cost-of-living adjustments received by retirees not covered by Social Security. The cost-of-living adjustment for those covered by Social Security shall be equal to forty (40) percent of the CPI increase occurring since the date of retirement applied to the initial retirement benefit received and offset by any previous cost-of-living adjustment received. For those classes of retirees who are already the beneficiaries of increases which are part of automatic adjustments currently in force as a result of terms and conditions of the police benefit fund and the firemen's relief fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council, the COLA increase equal to sixty (60) percent of the CPI increase will be further offset by any increases resulting from said terms and conditions of the police benefit fund and the Firemen's Relief Fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council. The provisions of this subsection shall not apply to any beneficiary of the police benefit fund who is receiving benefits under the provisions of § 234(j) of the City of Hartford Charter of 1941. The minimum increase for each eligible retiree under this section shall be ten dollars ($10.00) per month or for each eligible survivor under this section shall be five dollars ($5.00) per month. The maximum increase for each eligible retiree under this section shall be ten dollars ($10.00) per month for each year of service upon which the retiree's pension is based or for each eligible survivor under this section shall be five dollars ($5.00) per month for each year of service upon which the survivor's pension is based.

(O) Each member of the municipal employee's retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 1995, their qualified spouses and their qualified dependent children, shall be entitled to an increase in the member's monthly retirement pension which shall be known as the cost-of-living adjustment. The cost-of-living adjustment for retirees whose City service is not covered by social security shall be equal to sixty (60) percent of the Consumer Price Index (CPI) increase occurring since the date of retirement and shall be applied to the initial retirement benefit received, but offset by any previous cost-of-living adjustments received. The cost-of-living adjustment for retirees whose City service is covered by Social Security shall be equal to forty (40) percent of the CPI increase occurring since the date of retirement applied to the initial retirement benefit received and offset by any previous cost-of-living adjustments received. For those classes of retirees who are already the beneficiaries of increases which are part of automatic adjustments currently in force

as a result of terms and conditions of the police benefit fund and the firemen's relief fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council, the COLA increase equal to sixty (60) or forty (40) percent of the CPI increase will be further offset by any increases resulting from said terms and conditions of the police benefit fund and the firemen's relief fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council. The provisions of this subsection shall not apply to any beneficiary of the police benefit fund who is receiving benefits under the provisions of § 234(j) for the City of Hartford Charter of 1941. The minimum increase for each retiree eligible for any allowance under this section shall be ten dollars ($10.00) per month or for each survivor eligible for any allowance under this section shall be five dollars ($5.00) per month. The maximum increase for each eligible retiree under this section shall be ten dollars ($10.00) per month for each year of service upon which the retiree's pension is based or for each eligible survivor under this section shall be five dollars ($5.00) per month for each year of service upon which the survivor's pension is based.

(P) Each member of the municipal employee's retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 1997, their qualified spouses and their qualified dependent children, shall be entitled to an increase in the member's monthly retirement pension which shall be known as the cost-of-living adjustment. The cost-of-living adjustment for retirees whose City service is not covered by social security shall be equal to sixty (60) percent of the Consumer Price Index (CPI) increase occurring since the date of retirement and shall be applied to the initial retirement benefit received, but offset by any previous cost-of-living adjustments received. The cost-of-living adjustment for retirees whose City service is covered by Social Security shall be equal to forty (40) percent of the CPI increase occurring since the date of retirement applied to the initial retirement benefit received and offset by any previous cost-of-living adjustments received. For those classes of retirees who are already the beneficiaries of increases which are part of automatic adjustments currently in force as a result of terms and conditions of the police benefit fund and the firemen's relief fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council, the COLA increase equal to sixty (60) or forty (40) percent of the CPI increase will be further offset by any increases resulting from said terms and conditions of the police benefit fund and the firemen's relief fund, previously approved collective bargaining agreements, or ordinances adopted by the Court of Common Council. The provisions of this subsection shall not apply to any beneficiary of the police benefit fund who is receiving benefits under the provisions of § 234(j) for the City of Hartford Charter of 1941. The minimum increase for each retiree eligible for any allowance under this section shall be ten dollars ($10.00) per month or for each survivor eligible for any allowance under this section shall be five dollars ($5.00) per month. The maximum increase for each eligible retiree under this section shall be ten dollars ($10.00) per month for each year of service upon which the retiree's pension is based or for each eligible survivor under this section shall be five dollars ($5.00) per month for each year of service upon which the survivor's pension is based.

(Q) (1) For purposes of this § 2-802(Q), the following words and phrases shall have the meanings ascribed thereto below:

(a) The "adjusted CPI increase" applicable to any individual shall be that portion of the percentage change in the CPI specified therefor in subsection (4) below;

(b) "Alternate payee" shall mean any person designated as such pursuant to a qualified domestic relations order approved by the pension commission who is not otherwise to be deemed to be a retiree as provided in subparagraph k. below;

(c) "Consumer Price Index" or "CPI" shall mean the Consumer Price Index—Urban Wage Earners and Clerical Workers, U.S. City Average, All Items (1982-84-100);

(d) The "CPI retirement date" applicable to surviving spouses of deceased members of the police benefit fund or firemen's relief fund shall be June 30 of the year in which the deceased member died; the "CPI retirement date" applicable to surviving spouses and dependents of deceased members of the municipal employees' retirement fund whose benefits have been calculated based upon a percentage of a deceased retiree's final pay shall be June 30 of the year in which the deceased member retired; otherwise, the "CPI retirement date" applicable to any retiree, and to any surviving spouse, surviving dependant or alternate payee of any retiree, shall be June 30 of the year in which the retiree first commenced receiving a monthly retirement allowance;

(e) The "current monthly retirement allowance" payable to any person shall mean the "initial monthly retirement allowance" payable to that person as the same may have been adjusted to account for any previous COLAs;

(f) The "funds" shall mean the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund;

(g) The "initial monthly retirement allowance" payable to any person shall mean the gross monthly retirement allowance that initially was awarded to such individual by the pension commission, as the same has been (or may hereafter be) adjusted by the pension commission to account for any errors that may have been made in the calculation or award of any benefit or to otherwise reflect the proper amount payable to such individual as of the commencement of the individual's monthly retirement allowance;

(h) The "gross monthly retirement allowance" payable to any person shall mean that amount that was awarded to such individual as a monthly retirement allowance, including such amounts, if any, as are (or were) properly payable through the § 415(m) fund at the time of said award, prior to the commission's effecting any offsets or other reductions in that benefit to account for workers compensation, social security, or other income, and prior to the commission's making any adjustments in said benefit to implement any previous COLA(s);

(i) A "monthly retirement allowance" shall mean any allowance that is payable to any person from any of the funds on a monthly basis, whether for or by reason of normal or early retirement, any form of disability or the death of any retiree;

(j) A "previous COLA" shall mean any adjustment that has been made in the benefit payable to a recipient, and/or to the retiree's benefit upon which such recipient's benefit is based, as a result of any prior COLAs pursuant to this § 2-802 and/or (other than such adjustments as may have been made to the pensions payable to members of the police benefit fund or firemen's relief fund to account for changes in the rates of pay of members or employees of the same or corresponding grade) as a result of any automatic adjustments that have been (or were) required to be made to any of said persons' monthly retirement allowance pursuant to the terms and conditions of any previously approved collective bargaining agreements, or the provisions of Chapter XVII, §3(z)(3)(d) of the Charter as set forth in said Charter prior to January 1, 2004 and remaining in full force and effect in accordance with Chapter XII, §1 of the Charter ("Historical Charter"), or any ordi-

nances adopted by the Court of Common Council (whether in the form of amendments to Historical Charter Chapter XVII or otherwise);

(k) The term "retiree" shall include any alternate payee who is or was eligible to commence receiving a retirement benefit prior to the date the participant from whom the alternate payee has derived a benefit begins to receive a monthly retirement allowance; and

(l) A "qualified recipient" shall mean any retiree, or any surviving spouse, surviving dependent, or alternate payee of any retiree, who, in any case, is entitled to receive an adjustment in the recipient's monthly retirement allowance pursuant to this § 2-802(Q). A "qualified retiree" shall mean any retiree who is entitled to receive an adjustment in said qualified retiree's monthly retirement allowance pursuant to this § 2-802(Q);

(m) "Section 415(m) fund" shall refer to that fund established, and governed, pursuant to the provisions of Historical Charter Chapter XVII, § 3(bb).

(2) Subject to the provisions of subsection (5)(B), below, effective as of July 1, 2001, each member of the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 1999, and each surviving spouse, surviving dependent and alternate payee of any such retiree who was receiving a monthly retirement allowance as of July 1, 2001, shall be entitled to a cost-of-living adjustment (or "COLA") in their current monthly retirement allowance, subject to and in accordance with the provisions of this § 2-802(Q). The amount of such adjustment which shall be made in the current monthly retirement allowance payable to each qualified recipient shall be that amount specified in subsection (3) below, subject to the limitations that apply to such adjustments pursuant to subsection (5) below.

(3) (a) *Qualified retirees living as of July 1, 2001.* Subject to subsection (5) below, the current monthly retirement allowance payable to each qualified retiree shall be adjusted by the amount derived by multiplying such retiree's initial monthly retirement allowance by the adjusted CPI increase applicable to such individual as determined in accordance with subsection (4) below;

(b) *Qualified recipients whose benefit is based upon a percentage of the benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund.* Subject to subsection (5) below, the current monthly retirement allowance payable to any qualified recipient whose benefit has been calculated based upon a percentage (hereinafter, a "survivor's percentage") of a benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund shall be adjusted by that sum necessary for such recipient to receive a monthly retirement allowance which is equal to the product of (1) the survivor's percentage, multiplied by (2) the monthly retirement allowance that otherwise would now be payable to the deceased retiree were the retiree still living as determined in accordance with subparagraph a. above; and

(c) *Qualified recipients not otherwise covered by subparagraphs (a) or (b). above.* Subject to subsection (5) below, the current monthly retirement allowance payable to any qualified recipient not otherwise covered by subparagraph a. or b. above shall be adjusted by the amount derived by

multiplying (1) such individual's initial monthly retirement allowance, by (2) the adjusted CPI increase applicable to such individual as determined in accordance with subsection (4) below.

(4) For each retiree whose City service was not covered by social security, and for each surviving spouse, alternate payee and surviving dependent of any such retiree, the adjusted CPI increase shall equal that percentage which is sixty (60) percent of the increase in the CPI which has occurred from that individual's CPI retirement date through December 31, 2000. For each retiree whose City service was covered by Social Security, and for each surviving spouse, alternate payee, and surviving dependent of any such retiree, the adjusted CPI increase shall equal that percentage which is forty (40) percent of the increase in the CPI which has occurred from that individual's CPI retirement date through December 31, 2000.

(5) (a) Except as otherwise provided in subparagraph (b) below, the minimum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this § 2-802(Q) shall be ten dollars ($10.00) per month, while the minimum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month. The maximum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this § 2-802(Q) shall be ten dollars ($10.00) per month for each year of service upon which the retiree's or alternate payee's pension is based, respectively, while the maximum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month for each year of service upon which the retiree's pension was based.

(b) Nothing in this § 2-802(Q) shall require or be deemed to require that any monthly retirement allowance currently payable to any qualified recipient be reduced in any manner or that any adjustment be made in any benefit if the affect of doing so would be to jeopardize the tax exempt status of the funds. Additionally, no adjustment shall be made in the current monthly retirement allowance payable to any retiree, or to any surviving spouse, surviving dependent or alternate payee of any retiree, pursuant to the first sentence of subparagraph (a) above unless such person otherwise would be entitled to an increase in their current monthly retirement allowance by operation of subsection (4) above.

(6) The benefits provided by this § 2-802(Q) shall be administered by the pension commission and (except, and then only to the extent otherwise provided in the following sentence) payable from the respective funds from which any qualified recipient otherwise is currently receiving a monthly retirement allowance. Any such benefits not properly payable from any of the funds shall be paid from the § 415(m) fund as, but then only to the extent, any qualified recipient otherwise is entitled to participate in said § 415(m) fund. The value of said benefits also shall be included by the commission in determining the contribution to be paid by the City into said funds.

(7) Notwithstanding anything to the contrary which may be contained in this § 2-802(Q), the provisions of this section 2-802(Q) shall not apply to any beneficiary of the police benefit fund to the extent said beneficiary is receiving benefits under the provisions of § 234(j) of the City of Hartford Charter of 1941.

(8) The pension commission shall have the authority to refrain from correcting any error that was made in the calculation or award of any benefit under, in connection with or by reason of any previous COLA if the adjustment required to correct any such error would involve adjusting a benefit by less than ten dollars ($10.00) a month, or if, in the commission's opinion, any such correction would cause a hardship on any retiree or any surviving spouse, surviving dependent or alternate payee of a retiree.

(R) (1) For purposes of this § 2-802(R), the following words and phrases shall have the meanings ascribed thereto below:

(a) The "Adjusted CPI Increase" applicable to any individual shall be that portion of the percentage change in the CPI specified therefor in subsection (iv) below;

(b) "Alternate payee" shall mean any person designated as such pursuant to a qualified domestic relations order approved by the pension commission who is not otherwise to be deemed to be a retiree as provided in subparagraph (K) below;

(c) "Consumer Price Index" or "CPI" shall mean the Consumer Price Index—Urban Wage Earners and Clerical Workers, U.S. City Average, All Items (1982–84 = 100);

(d) The "CPI Retirement Date" applicable to surviving spouses of deceased members of the police benefit fund or firemen's relief fund shall be June 30th of the year in which the deceased member died; the "CPI Retirement Date" applicable to surviving spouses and dependents of deceased members of the municipal employees' retirement fund whose benefits have been calculated based upon a percentage of a deceased retiree's final pay shall be June 30th of the year in which the deceased member retired; otherwise, the "CPI Retirement Date" applicable to any retiree, and to any surviving spouse, surviving dependent or alternate payee of any retiree, shall be June 30th of the year in which the retiree first commenced receiving a monthly retirement allowance;

(e) The "current monthly retirement allowance" payable to any person shall mean the "initial monthly retirement allowance" payable to that person as the same may have been adjusted to account for any Previous COLAs;

(f) The "Funds" shall mean the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund;

(g) The "initial monthly retirement allowance" payable to any person shall mean the gross monthly retirement allowance that initially was awarded to such individual by the pension commission, as the same has been (or may hereafter be) adjusted by the pension commission to account for any errors that may have been made in the calculation or award of any benefit or to otherwise reflect the proper amount payable to such individual as of the commencement of his or her monthly retirement allowance;

(h) The "gross monthly retirement allowance" payable to any person shall mean that amount that was awarded to such individual as a monthly retirement allowance, including such amounts, if any, as are (or were) properly payable through the Section 415(m) Fund at the time of said award, prior to the commission's effecting any offsets or other reductions in that benefit to account for workers compensation, social security, or other income, and prior to the commission's making any adjustments in said benefit to implement any Previous COLA(s);

(i) A "monthly retirement allowance" shall mean any allowance that is payable to any person from any of the Funds on a monthly basis, whether for or by reason of normal or early retirement, any form of disability or the death of any retiree;

(j) A "Previous COLA" shall mean any adjustment that has been made in the monthly retirement allowance payable to a retiree, or any surviving spouse, surviving dependent, or alternate payee of any retiree, and/or to the retiree's monthly retirement allowance upon which any surviving spouse, surviving dependant, or alternate payee's benefit is based, as a result of any prior COLAs pursuant to this § 2-802 and/or as a result of any automatic adjustments that have been (or were) required to be made to any of said persons' monthly retirement allowance pursuant to the terms and conditions of any previously approved collective bargaining agreements, or former Charter Chapter XVII, § 3(z)(3)(d), or any ordinances adopted by the court of common council (whether in the form of amendments to former Charter Chapter XVII or otherwise);

(k) The term "retiree" shall include any alternate payee who is or was eligible to commence receiving a retirement benefit prior to the date the participant from whom the alternate payee has derived a benefit begins to receive a monthly retirement allowance;

(l) A "qualified recipient" shall mean any retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree, who, in any case, is entitled to receive an adjustment in his or her monthly retirement allowance pursuant to this § 2-802(R). A "qualified retiree" shall mean any retiree who is entitled to receive an adjustment in his or her monthly retirement allowance pursuant to this § 2-802(R); and

(m) "Section 415(m) Fund" shall refer to that fund established, and governed, pursuant to the provisions of the City of Hartford Municipal Code Article 1, Division I, Sec. 2A-15.

(2) Subject to the provisions of subsection (5)(b) below, effective as of July 1, 2005, each member of the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 2003, and each surviving spouse, surviving dependent and alternate payee of any such retiree who was receiving a monthly retirement allowance as of July 1, 2005, shall be entitled to a cost-of-living adjustment (or "COLA") in their current monthly retirement allowance, subject to and in accordance with the provisions of this § 2-802(R). The amount of such adjustment which shall be made in the current monthly retirement allowance payable to each qualified recipient shall be that amount specified in subsection (3) below, subject to the limitations that apply to such adjustments pursuant to subsection (5) below.

(3) (a) *Qualified retirees living as of July 1, 2005.* Subject to subsection (5) below, the current monthly retirement allowance payable to each qualified retiree shall be adjusted by the amount derived by multiplying such retiree's initial monthly retirement allowance by the Adjusted CPI Increase applicable to such individual as determined in accordance with subsection (4), below;

(b) *Qualified recipients whose benefit is based upon a percentage of the benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund.* Subject to subsection (5) below, the current monthly retirement allowance

payable to any qualified recipient whose benefit has been calculated based upon a percentage (hereinafter, a "survivor's percentage") of a benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund shall be adjusted by that sum necessary for such recipient to receive a monthly retirement allowance which is equal to the product of (1) the survivor's percentage, multiplied by (2) the monthly retirement allowance that otherwise would now be payable to the deceased retiree were he or she still living as determined in accordance with subparagraph (a) above; and

(c) *Qualified recipients not otherwise covered by subparagraphs (a) or (b), above.* Subject to subsection (5) below, the current monthly retirement allowance payable to any qualified recipient not otherwise covered by subparagraph (a) or (b) above shall be adjusted by the amount derived by multiplying (1) such individual's initial monthly retirement allowance, by (2) the Adjusted CPI Increase applicable to such individual as determined in accordance with subsection (4), below.

(4) For each retiree whose city service was not covered by social security, and for each surviving spouse, alternate payee and surviving dependent of any such retiree, the Adjusted CPI Increase shall equal that percentage which is sixty (60) percent of the increase in the CPI which has occurred from that individual's CPI Retirement Date through December 31, 2004 provided however, the Adjusted CPI Increase shall be offset by any Previous COLA. For each retiree whose city service was covered by social security, and for each surviving spouse, alternate payee, and surviving dependent of any such retiree, the Adjusted CPI Increase shall equal that percentage which is forty (40) percent of the increase in the CPI which has occurred from that individual's CPI Retirement Date through December 31, 2004 provided however, the Adjusted CPI Increase shall be offset by any Previous COLA.

(a) Except as otherwise provided in subparagraph (b) below, the minimum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this Section 2-398(r) shall be ten dollars ($10.00) per month, while the minimum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month. The maximum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this Section 2-398(r) shall be ten dollars ($10.00) per month for each year of service upon which the retiree's or alternate payee's pension is based, respectively, while the maximum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month for each year of service upon which the retiree's pension was based.

(b) Nothing in this § 2-802(R) shall require or be deemed to require that any monthly retirement allowance currently payable to any qualified recipient be reduced in any manner or that any adjustment be made in any benefit if the affect of doing so would be to jeopardize the tax exempt status of the Funds. Additionally, no adjustment shall be made in the current monthly retirement allowance payable to any retiree, or to any surviving spouse, surviving de-

pendent or alternate payee of any retiree, pursuant to the first sentence of subparagraph (a), above, unless such person otherwise would be entitled to an increase in their current monthly retirement allowance by operation of subsection (4), above.

(5) (a) Except as otherwise provided in subparagraph (b) below, the minimum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this § 2-802(R) shall be ten dollars ($10.00) per month, while the minimum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month. The maximum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this § 2-802(R) shall be ten dollars ($10.00) per month for each year of service upon which the retiree's or alternate payee's pension is based, respectively, while the maximum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month for each year of service upon which the retiree's pension was based.

(b) Nothing in this § 2-802(R) shall require or be deemed to require that any monthly retirement allowance currently payable to any qualified recipient be reduced in any manner or that any adjustment be made in any benefit if the affect of doing so would be to jeopardize the tax exempt status of the Funds. Additionally, no adjustment shall be made in the current monthly retirement allowance payable to any retiree, or to any surviving spouse, surviving dependent or alternate payee of any retiree, pursuant to the first sentence of subparagraph (a), above unless such person otherwise would be entitled to an increase in their current monthly retirement allowance by operation of subsection (4) above.

(6) The benefits provided by this § 2-802(R) shall be administered by the pension commission and (except, and then only to the extent otherwise provided in the following sentence) payable from the respective Funds from which any qualified recipient otherwise is currently receiving a monthly retirement allowance. Any such benefits not properly payable from any of the Funds shall be paid from the Section 415(m) Fund as, but then only to the extent, any qualified recipient otherwise is entitled to participate in said Section 415(m) Fund. The value of said benefits also shall be included by the commission in determining the contribution to be paid by the city into said Funds.

(7) Notwithstanding anything to the contrary which may be contained in this § 2-802(R), the provisions of this § 2-802(R) shall not apply to:

(a) Any retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree who was a member of Local 1716 or Local 566 and is receiving benefits from the State of Connecticut Municipal Employees' Retirement System;

(b) Any beneficiary of the police benefit fund to the extent he or she is receiving benefits under the provisions of section 234(j) of the City of Hartford Charter of 1941; and

(c) Any retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree who retired under the 2003 retirement incentive program pursuant to the provisions of the former City Charter Chapter XVII, Sec. 3(z)(5) through (8).

(8) The pension commission shall have the authority to refrain from correcting any error that was made in the calculation or award of any benefit under, in connection with or by reason of any Previous COLA if the adjustment required to correct any such error would involve adjusting a benefit by less than ten dollars ($10.00) a month, or if, in the commission's opinion, any such correction would cause a hardship on any retiree or any surviving spouse, surviving dependent or alternate payee of a retiree.

(S) (1) For purposes of this section 2-802(S), the following words and phrases shall have the meanings ascribed thereto below:

(A) The "adjusted CPI increase" applicable to any individual shall be that portion of the percentage change in the CPI specified therefor in subsection (4) below:

(B) "Alternate payee" shall mean any person designated as such pursuant to a qualified domestic relations order approved by the pension commission who is not otherwise to be deemed to be a retiree as provided in subparagraph (K) below:

(C) "Consumer Price Index" or "CPI" shall mean the Consumer Price Index—Urban Wage Earners and Clerical Workers, U.S. City Average, All Items (1982-84 = 100);

(D) The "CPI retirement date" applicable to surviving spouses of deceased members of the police benefit fund or firemen's relief fund shall be June 30th of the year in which the deceased member died; the "CPI retirement date" applicable to surviving spouses and dependents of deceased members of the municipal employees' retirement fund whose benefits have been calculated based upon a percentage of a deceased retiree's final pay shall be June 30th of the year in which the deceased member retired; the "CPI retirement date" applicable to any retiree, or any surviving spouse, surviving dependant, or alternative payee of any retiree who retired under the 2003 retirement incentive program pursuant to the provisions of the former City Charter Chapter XVII, section 3(z)(5) through (8), shall be June 30, 2005; otherwise, the "CPI retirement date" applicable to any retiree, and to any surviving spouse, surviving dependant or alternate payee of any retiree, shall be June 30th of the year in which the retiree first commenced receiving a monthly retirement allowance;

(E) The "current monthly retirement allowance" payable to any person shall mean the "initial monthly retirement allowance" payable to that person as the same may have been adjusted to account for any previous COLAs:

(F) The "funds" shall mean the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund:

(G) The "initial monthly retirement allowance" payable to any person shall mean the gross monthly retirement allowance that initially was awarded to such individual by the pension commission, as the same has been (or may hereafter be) adjusted by the pension commission to account for any errors that may have been made in the calculation or award of any benefit or to otherwise reflect the proper amount payable to such individual as of the commencement of his or her monthly retirement allowance:

(H) The "gross monthly retirement allowance" payable to any person shall mean that amount that was awarded to such individual as a monthly retirement allowance, including such amounts, if any, as are (or were)

properly payable through the Section 415(m) Fund at the time of said award, prior to the commission's effecting any offsets or other reductions in that benefit to account for workers compensation, social security, or other income, and prior to the commission's making any adjustments in said benefit to implement any previous COLA(s);

(I) A "monthly retirement allowance" shall mean any allowance that is payable to any person from any of the funds on a monthly basis, whether for or by reason of normal or early retirement, any form of disability or the death of any retiree;

(J) A "previous COLA" shall mean any adjustment that has been made in the monthly retirement allowance payable to a retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree, and/or to the retiree's monthly retirement allowance upon which any surviving spouse, surviving dependant, or alternate payee's benefit is based, as a result of any prior COLAs pursuant to this section 2-802 and/or as a result of any automatic adjustments that have been (or were) required to be made to any of said persons' monthly retirement allowance pursuant to the terms and conditions of any previously approved collective bargaining agreements, or former Charter Chapter XVII, section 3(z)(3)(d), or any ordinances adopted by the court of common council (whether in the form of amendments to former Charter Chapter XVII or otherwise);

(K) The term "retiree" shall include any alternate payee who is or was eligible to commence receiving a retirement benefit prior to the date the participant from whom the alternate payee has derived a benefit begins to receive a monthly retirement allowance;

(L) A "qualified recipient" shall mean any retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree, who, in any case, is entitled to receive an adjustment in his or her monthly retirement allowance pursuant to this section 2-802(S). A "qualified retiree" shall mean any retiree who is entitled to receive an adjustment in his or her monthly retirement allowance pursuant to this section 2-802(S); and

(M) "Section 415(m) Fund" shall refer to that fund established, and governed, pursuant to the provisions of the City of Hartford Municipal Code Article I, section 2A-15.

(2) Subject to the provisions of subsection (5)(b) below, effective as of July 1, 2007, each member of the municipal employees' retirement fund, retirement allowance fund, firemen's relief fund and police benefit fund who retired on or before December 31, 2005, and each surviving spouse, surviving dependent and alternate payee of any such retiree who was receiving a monthly retirement allowance as of July 1, 2007, shall be entitled to a cost-of-living adjustment (or "COLA") in their current monthly retirement allowance, subject to and in accordance with the provisions of this section 2-802(S). The amount of such adjustment which shall be made in the current monthly retirement allowance payable to each qualified recipient shall be that amount specified in subsection (3) below, subject to the limitations that apply to such adjustments pursuant to subsection (5) below.

(3) (a) *Qualified retirees living as of July 1, 2007.* Subject to subsection (5) below, the current monthly retirement allowance payable to each qualified retiree shall be adjusted by the amount derived by multiplying such

retiree's initial monthly retirement allowance by the adjusted CPI increase applicable to such individual as determined in accordance with subsection (4) below;

(b) *Qualified recipients whose benefit is based upon a percentage of the benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund.* Subject to subsection (5) below, the current monthly retirement allowance payable to any qualified recipient whose benefit has been calculated based upon a percentage (hereinafter, a "survivor's percentage") of a benefit previously payable to a deceased retiree who was a member of the municipal employees' retirement fund or retirement allowance fund shall be adjusted by that sum necessary for such recipient to receive a monthly retirement allowance which is equal to the product of (1) the survivor's percentage, multiplied by (2) the monthly retirement allowance that otherwise would now be payable to the deceased retiree were he or she still living as determined in accordance with subparagraph (a) above; and

(c) *Qualified recipients not otherwise covered by subparagraphs (a) or (b) above.* Subject to subsection (5) below, the current monthly retirement allowance payable to any qualified recipient not otherwise covered by subparagraph (a) or (b) above shall be adjusted by the amount derived by multiplying (1) such individual's initial monthly retirement allowance, by (2) the adjusted CPI increase applicable to such individual as determined in accordance with subsection (4) below.

(4) For each retiree whose city service was not covered by social security, and for each surviving spouse, alternate payee and surviving dependent of any such retiree, the adjusted CPI increase shall equal that percentage which is sixty (60) percent of the increase in the CPI which has occurred from that individual's CPI retirement date through December 31, 2006, provided however, the adjusted CPI increase shall be offset by any previous COLA. For each retiree whose city service was covered by social security, and for each surviving spouse, alternate payee, and surviving dependent of any such retiree, the adjusted CPI increase shall equal that percentage which is forty (40) percent of the increase in the CPI which has occurred from that individual's CPI retirement date through December 31, 2006 provided however, the adjusted CPI increase shall be offset by any previous COLA.

(5) (a) Except as otherwise provided in subparagraph (b) below, the minimum increase in the current monthly retirement allowance of each retiree and alternate payee eligible for any adjustment under this section 2-802(S) shall be ten dollars ($10.00) per month, while the minimum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month. The maximum increase in the current monthly retirement allowance of each retiree and alternate payee eligible/for any adjustment under this section 2-802(S) shall be ten dollars ($10.00) per month for each year of service upon which the retiree's or alternate payee's pension is based, respectively, while the maximum increase in the current monthly retirement allowance of each surviving spouse and surviving dependent eligible for any adjustment hereunder shall be five dollars ($5.00) per month for each year of service upon which the retiree's pension was based.

(b) Nothing in this section 2-802(S) shall require or be deemed to require that

any monthly retirement allowance currently payable to any qualified recipient be reduced in any manner or that any adjustment be made in any benefit if the affect of doing so would be to jeopardize the tax exempt status of the funds. Additionally, no adjustment shall be made in the current monthly retirement allowance payable to any retiree, or to any surviving spouse, surviving dependent or alternate payee of any retiree, pursuant to the first sentence of subparagraph (a) above unless such person otherwise would be entitled to an increase in their current monthly retirement allowance by operation of subsection (4) above.

(6) The benefit provided by this section 2-802(S) shall be administered by the pension commission and (except, and then only to the extent otherwise provided in the following sentence) payable from the respective funds from which any qualified recipient otherwise is currently receiving a monthly retirement allowance. Any such benefits not properly payable from any of the funds shall be paid from the Section 415(m) Fund as, but then only to the extent, any qualified recipient otherwise is entitled to participate in said Section 415(m) Fund. The value of said benefits also shall be included by the commission in determining the contribution to be paid by the city into said funds.

(7) Notwithstanding anything to the contrary which may be contained in this section 2-802(S), the provisions of this section 2-802(S) shall not apply to:

(a) any retiree, or any surviving spouse, surviving dependant, or alternate payee of any retiree who was a member of Local 1716 or Local 566 and is receiving benefits from the State of Connecticut Municipal Employees' Retirement System; and

(b) any beneficiary of the police benefit fund or the firemans' relief fund to the extent he or she is receiving benefits under the provisions of section 234(j) of the City of Hartford Charter of 1941.

(8) The pension commission shall have the authority to refrain from correcting any error that was made in the calculation or award of any benefit under, in connection with or by reason of any previous COLA if the adjustment required to correct any such error would involve adjusting a benefit by less than ten dollars ($10.00) a month, or if, in the commission's opinion, any such correction would cause a hardship on any retiree or any surviving spouse, surviving dependent or alternate payee of a retiree.

(Ord. No. 07-05, 8-8-05; Ord. No. 13-07, 8-13-07)

Sec. 2-803. Widows' benefits.

(A) This section shall apply for the benefit of the following classes of widows:

(1) Widows who are entitled to or who become entitled to widows' benefits from the firemen's relief fund and whose husbands are killed in the performance of duty.

(2) Widows who are entitled to or who become entitled to widows' benefits from the firemen's relief fund and whose husbands die from the effects of injuries received or exposure endured in the performance of duty.

(B) It is declared to be the policy of the City that the minimum retirement allowance which should be paid to the above classes of widows shall be two hundred sixty-six dollars and sixty-seven cents ($266.67) per month.

(C) If any widow in an eligible class as defined in subsection (a) is receiving a retirement allowance from the City which is less than the minimum provided by subsection (b), then a supplementary monthly retirement allowance shall be paid, sufficient to raise the total retirement allowance to the prescribed minimum.

(D) This section shall apply with respect to retirement allowances falling due after November 27, 1967. Payments provided by it shall be made

from appropriations included in the City budget for this purpose. This section shall be administered by the pension commission, and the eligibility for inclusion of any individual in a class for which benefits are provided in this section shall be determined by the commission from its official records.
(Ord. No. 07-05, 8-8-05)

Sec. 2-804. Incentive bonus for retirements prior to July 31, 1976.

(A) As used in subsection (C) the term "employee" shall mean any employee of the City who is not included in a bargaining unit for collective bargaining purposes, and shall also mean any employee who is in a bargaining unit that has ratified a contract which includes a provision similar to the provisions of subsection (C).

(B) As used in subsection (C) the term "employee" shall not include employees of the board of education, the Hartford Public Library, or any employee who is in a bargaining unit that has not ratified a contract which includes a provision similar to the provisions of subsection (C).

(C) An incentive bonus for retirement shall be paid to any employee who is eligible for either normal retirement or early retirement under one (1) of the City pension plans. The bonus shall be paid to those eligible members who submit a retirement application between May 1, and July 31, 1976, and whose last day of work is on or before July 31, 1976. Such an employee may continue on pay status to utilize accrued vacation and will be eligible for longevity pay and any pay increases that may affect the computation of said employee's retirement benefit. The bonus shall be five hundred dollars ($500.00) per year for a period of ten (10) years and shall be paid to the retiree or the survivors of said retiree as a lump sum payment on October first of each year, beginning October 1, 1976.

(D) An incentive bonus for retirement shall be paid to any employee, except those excluded under subsection (B), who is eligible for either normal retirement or early retirement under one (1) of the City pension plans. The bonus shall be paid to those eligible members who submit a retirement application between June 15, 1979 and August 15, 1979 and whose last day of work is on or before August 15, 1979. Such an employee may continue on pay status to utilize accrued vacation and will be eligible for longevity pay and any pay

increases that may affect the computation of the retirement benefit. The bonus shall be five hundred dollars ($500.00) per year for a period of ten (10) years and shall be paid to the retiree or the survivors of said retiree as a lump sum payment on October first of each year.

(E) In those instances where an August 15, 1979 retirement would cause an undue hardship to City operations, the Mayor or designee may grant a deferment in such cases to City employees which would enable those employees to receive the retirement incentive pay, but not be required to leave City employment on or before August 15, 1979.
(Ord. No. 07-05, 8-8-05)

Sec. 2-805. Hartford Federation of School Secretaries; retirement allowance adjustment.

(A) Commencing May 1, 1991, any member of the Hartford Federation of School Secretaries who retired between July 1, 1988 and September 11, 1989 shall have said member's retirement allowance adjusted so that the retirement allowance on and after May 1, 1991 shall amount to two (2) percent of the employee's final average pay per whole year of service to a maximum of seventy (70) percent of the final average pay. Final average pay will be computed on the basis of the employee's highest five (5) of the last ten (10) years of the member's gross earnings.

(B) The survivor of any member of the Hartford Federation of School Secretaries who retired between July 1, 1988 and September 11, 1989 and who died or dies prior to May 1, 1991 shall have the member's survivor's allowance adjusted to reflect the adjustment provided for in paragraph (a) above.
(Ord. No. 07-05, 8-8-05)

Sec. 2-806. Incentive bonus for retirements prior to September 30, 1992.

(A) As used in this section, the term "employee" shall mean any employee of the City, to include the library, who is not included in a bargaining unit for collective bargaining purposes, and shall also mean any employee who is in a bargaining unit that enters into an agreement with the City which includes a provision similar to the provisions of this section.

(B) As used in this section, the term "employee" shall not include employees of the board of education or any employee who is in a bargaining unit that does not enter into an agreement which includes a provision similar to the provisions of this section.

(C) An incentive bonus for retirement shall be paid to any employee who is eligible for either normal retirement or early retirement under one (1) of the City pension plans. The bonus shall be paid to those eligible members who are retiring from City service and whose last day of work is between May 1, 1992 and September 30, 1992, both dates inclusive. Such an employee may continue on pay status after said employee's last day of work to utilize accrued vacation as well as to obtain longevity pay and any pay increases that may affect the computation of the retirement benefit without affecting the employee's eligibility for the bonus provided under this section. The bonus shall be two thousand dollars ($2,000.00) per year for a period of ten (10) years and shall be paid to the retiree or the survivors of said retiree as a lump sum payment in January of each year, beginning January 1, 1993.

(D) In those instances where a September 30, 1992 retirement would cause an undue hardship to City operations, the Mayor or designee may grant a deferment in such cases to City employees which would enable those employees to continue to work beyond September 30, 1992 and still receive the retirement incentive pay, providing their last day of work for the City occurs on or before December 31, 1992.

(E) Any employee eligible for the incentive bonus, provided in this section may waive the payments due under this section and in lieu thereof the City shall pay the annual payments of two thousand dollars ($2,000.00) toward the cost of the employee's health insurance, which payments shall be in addition to any other payments for health insurance to which the employee may be entitled.
(Ord. No. 07-05, 8-8-05)

Sec. 2-807. Incentive bonus for retirements of members of Hartford Federation of Paraprofessionals prior to December 31, 1993.

(A) As used in this section the term "HFP employee" shall mean any employee of the City who is a member of Local #2221, Hartford Federation of Paraprofessionals.

(B) An incentive bonus for retirement shall be paid to any HFP employee eligible for either normal or early retirement under the municipal employees' retirement fund who takes an early or normal retirement in the manner and within the time periods set forth below (hereinafter referred to as an "eligible HFP employee"). The bonus shall be paid to those eligible HFP employees who, on or before May 15, 1993, notify the board of education of their intent to avail themselves of the bonus, and then retire from City service with an effective date of retirement between June 1, 1993 and January 1, 1994, both dates inclusive. Any eligible HFP employee who has earned any longevity pay prior to the effective date of retirement shall be entitled to have such longevity pay included within such employee's pension calculations even though the employee does not receive such pay until after his or her effective date of retirement. The bonus shall be two thousand dollars ($2,000.00) per year for a period of ten (10) years and shall be paid to the retiree, or the survivors of said retiree under the fund, as a lump sum payment beginning in April 1994 and then continuing in April of each succeeding year through April 2003.

(C) In those instances where a January 1, 1994 retirement of any HFP employee would cause an undue hardship to board of education operations and such employee otherwise would qualify for the aforementioned bonus, the superintendent may grant a deferment which enables that employee to continue to work beyond January 1, 1994 and still receive the retirement incentive bonus, providing his or her effective date of retirement occurs on or before March 1, 1994.
(Ord. No. 07-05, 8-8-05)

Sec. 2-808. Retirement incentive for retirements on or before July 31, 1993.

(A) As used in this section, the term "employee" shall mean any employee of the City, to include the library, who is not included in a bargaining unit for collective bargaining purposes, and shall also mean any employee who is in a bargaining unit that enters into an agreement with the City which includes provisions the same as the provisions of this section.

(B) As used in this section, the term "employee" shall not include employees of the board of education or any employee who is in a bargaining unit that does not enter into an agreement with the City, which includes provisions the same as the provision of this section.

(C) Any employee who is eligible for a normal or early retirement, or who, by operation of the provisions of Chapter XVII, § (3)(z) of the Historical Charter, becomes eligible for a normal or early retirement, and who files a retirement application with the pension commission between, and whose last day of work is between June 15, 1993 and July 31, 1993, both dates inclusive, shall be entitled to the following:

(1) In addition to any periods of City-paid coverage as provided for by contract, ordinances or resolution, and in lieu of any partial payments made by the City toward the cost of health insurance as provided for by contract, ordinances or resolution, said employee shall be entitled to up to five (5) years of City-paid health insurance for themselves and any enrolled dependents under the City's health insurance plan, commencing upon retirement but ending as of the month the employee turns sixty-five (65) years of age or dies, whichever occurs first.

(D) Any employee so eligible for the benefit stated in this section may continue on pay status after the employee's last day of work to utilize accrued vacation time without affecting eligibility for the benefit provided hereby.

(E) In those instances where an employee's retirement prior to August 1, 1993 would cause an undue hardship to City operations, the Mayor or designee may grant a deferment to such employee which enables such employee to continue to work beyond July 31, 1993 and still be eligible for the benefits provided under this section provided,

however, that (subject to subparagraph (D) above) any such employee's last day of work occurs on or before December 31, 1993.
(Ord. No. 07-05, 8-8-05)

Sec. 2-809. Incentive bonus for retirements of nonbargaining unit members and certain noncertified collective bargaining unit members of the board of education on or before December 30, 1994.

(A) As used in this section, the term "employee" shall mean any nonbargaining unit employee of the board of education and any noncertified employee of the board of education who is a member of a collective bargaining unit which has agreed to the provisions of this section.

(B) Any employee who is eligible for a normal or early retirement, or who, by operation of the provisions of Chapter XVII, § (3)(z)(4) of the Historical Charter, becomes eligible for a normal or early retirement, and who takes an early or normal retirement under such § (3)(z)(4) with a last day of work between November 10, 1994 and December 30, 1994, both dates inclusive, and any employee who, by operation of the provisions of Chapter XVII, § (3)(z)(4)(i) of the Historical Charter, becomes eligible for a normal or early retirement, and who takes an early or normal retirement under such § (3)(z)(4)(i) with a last day of work of June 30, 1994, shall be entitled to the following:

(1) In addition to any periods of City-paid coverage as provided for by contract, ordinance or resolution, and in lieu of any partial payments made by the City toward the cost of health insurance as provided for by contract, ordinance or resolution, such employee shall be entitled to up to five (5) years of City-paid health insurance for themselves under the City's health insurance plan, commencing upon retirement, but ending as of the month the employee turns sixty-five (65) years of age or dies, whichever occurs first.

(2) In addition to the benefits described in subsection (1) above, any such employee also may elect to obtain such health insurance for their dependents during the same such period of time, all at such employee's sole cost and expense.

(C) Any employee so eligible for the benefit stated in this section must utilize accrued vacation time prior to the employee's last day of work as set forth in subparagraph (B), above, or be paid for such accrued vacation time upon retirement. Such accrued vacation time may not be utilized in order to continue such employee on pay status after the last day of work.

(D) In those instances where an eligible employee's retirement prior to December 31, 1994 would cause an extreme hardship to board of education operations, the superintendent may grant a deferment to such employee which enables such employee to continue to work beyond December 30, 1994 and still be eligible for the benefits provided under this section, provided, however, that any such employee's last day of work occurs on or before March 31, 1995.
(Ord. No. 07-05, 8-8-05)

Sec. 2-810. Retirement incentives for retirements on or before June 30, 2002.

(A) As used in this section, the term "employee" shall mean any employee of the City who is not in a bargaining unit for collective bargaining purposes, and any members of the following bargaining units, providing that the respective bargaining unit enters into an agreement with the City regarding the proposed benefits discussed below: AFSCME, Local 1716, CHPEA, HMEA and the MLA.

(B) Any employee who is eligible for a normal or early retirement, or who, by operation of the provisions of the Charter or applicable collective bargaining agreement, becomes eligible for a normal or early retirement, and who files a retirement application with the pension commission between, and whose last day of work is between June 1, 2002 and June 30, 2002, both dates inclusive, shall be entitled to choose one (1) of the following benefits:

Option 1: In addition to any partial payments made by the City toward the cost of health insurance as provided for by contract, ordinances or resolution, said employee shall be

entitled to a City paid subsidy toward the cost of health insurance up to a maximum of three hundred dollars ($300.00) per month for a period of three (3) years; or

Option 2: Incentive payment of one week's pay for each year of service with the City, to a maximum of ten (10) weeks' pay.

(C) Any employee so eligible for the benefit stated in this section may continue on pay status after the employee's last day of work to utilize accrued vacation time without affecting eligibility for the benefit provided hereby.

(D) In those instances where any employee's retirement prior to June 30, 2002 would cause an undue hardship to City operations, the Mayor or designee may grant a deferment to such employee which enables such employee to continue to work beyond June 30, 2002 and still be eligible for the benefits provided under this section provided, however, that (subject to subparagraph (C) above) any such employee's last day of work occurs on or before September 30, 2002.
(Ord. No. 07-05, 8-8-05)

Sec. 2-811. Benefits for employees laid-off as a result of the 2002-2003 budget.

(A) As used in this section, the term "employee" shall mean any employee of the City who is not a bargaining unit for collective bargaining purposes, and any member of the following bargaining units, providing that the respective bargaining unit enters into an agreement with the City regarding the proposed benefits discussed below: AFSCME Local 1716, CHPEA, HMEA and the MLA.

(B) Any employee who is not eligible for a normal or early retirement, nor who, by operation of the provisions of the chapter or applicable collective bargaining agreement, becomes eligible for a normal or early retirement, and who is laid off as a result of the City of Hartford 2002-2003 budget, shall be entitled to choose one (1) of the following benefits:

Option 1: Medical coverage paid by the City for a period of six (6) months; or

Option 2: Separation payment of one (1) week's pay for each year of service with the City, to a maximum of six (6) weeks' pay.
(Ord. No. 07-05, 8-8-05)

Sec. 2-812. Benefits for employees laid-off as a result of the 2003-2004 budget.

(A) As used in this section, the term "employee" shall mean any employee of the City or Hartford Public Library who is not in a bargaining unit for collective bargaining purposes, and any members of the following bargaining units, providing that the respective bargaining unit enters into an agreement with the City regarding the proposed benefits discussed below: AFSCME Local 1716, CHPEA, HMEA, the Communication Workers of America, Local 1289 and the MLA.

(B) Any employee who is not eligible for a normal or early retirement, nor who, by operation of the provisions of the Charter or applicable collective bargaining agreement, becomes eligible for a normal or early retirement, and who is laid off as a result of the City of Hartford 2003-2004 budget, shall be entitled to receive the same health insurance benefits as the individual received while an employee of the City, under the same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or equivalent monthly premium, for a period of six (6) months after the employee's last day of work.
(Ord. No. 07-05, 8-8-05)

Secs. 2-813—2-849. Reserved.

ARTICLE XVIII. OFFICERS AND EMPLOYEES*

Sec. 2-850. Residency requirements.

(A) All council and Mayor appointees and Unclassified Employees employed by the City, shall maintain a continuous residence in the City dur-

*__Charter references__—Removal of elective officers and other officers and employees, Ch. IV, § 3; pensions, Ch. XII.

__Cross references__—Mayor and council, § 2-31 et seq.; internal audit unit, § 2-41; city clerk, § 2-56 et seq.; construction managers, § 2-601 et seq.; fire department, § 13-21 et seq.; appointment of meat inspectors, § 14-62; police, Ch. 29.

ing the period of such appointment or employment. This section shall not apply to new employees or appointees during the first six (6) months of such employment or appointment. If such individual ceases to be a bona fide resident of the City once the residency has been established or fails to become a bona fide resident within six (6) months of the appointment or employment, the Council shall, by a vote of seven (7) members, send notice to the mayor that pursuant to the provisions of Chapter V, section 3(c) of the Hartford Charter, the office or position of the individual who has failed to remain a bona fide resident of Hartford shall thereupon become vacant, and such appointment or employment shall terminate.

Bona fide resident is defined as:

(1) An employee who has a Hartford mailing address. A post office address does not qualify as a bona fide Hartford address;

(2) Be a registered Hartford voter; and

(3) If the employee owns a motor vehicle, said motor vehicle must be registered in the City of Hartford

(B) The provisions of subsection (A) above shall not apply to individuals who were employees and appointees at the time of the effective date of this section.

(C) Notwithstanding the requirements established in Section (A) above, the Mayor may request from the Court of Common Council a waiver of the bona fide residency requirement by resolution for directors of the following departments: i) Management, Budget and Grants, ii) Metro Hartford Innovation Services, iii) Emergency Services and Telecommunications, and iv) Finance, provided that (a) prior to making such a request for any individual for whom the Mayor requests a waive the residency requirement, the open position shall have been publicly posted and advertised for a period of not less than one month, (b) shall have been actively promoted on public message boards, city newsletters, city website, and social media accounts, as well as through Neighborhood Revitalization Zones, and (c) the Mayor shall interview any applicants who are Hartford residents and who have been deemed to meet the eligibility requirements for these positions prior to requesting the waiver. A resolution by the Court of Common Council granting the waiver of the bona fide residency requirement at the request of the Mayor shall specify (a) the means by which the open position was made known to the public, and (b) the nature of the technical knowledge or specific training, experience or certification required to effectively perform the responsibilities of the position. The waiver of the requirements of Section (A) may be granted by a majority of the Council members present and voting.

(D) The maximum salary for any Department Head for whom the residency requirement is waived pursuant to subsection (C) shall be reduced by ten percent (10%) from that set forth in the applicable pay scale. The maximum salary will no longer be subject to said reduction if the Department Head ultimately establishes Hartford residency as defined in subsection (A) and provides proper notice to the Department of Human Resources and Labor Relations.
(Ord. No. 07-05, 8-8-05; Ord. No. 38-11, 7-11-11; Ord. No. 004-21, 7-21-21)

Sec. 2-851. Personal injury protection for Employees in unclassified service.

Each member of the Unclassified Service shall be entitled to the same coverage for personal injuries sustained by the member arising out of and in the course of the member's employment as provided in the personnel rules for each member of the Classified Service.
(Ord. No. 07-05, 8-8-05)

State law reference—Workers' Compensation Act, G.S. § 31-275 et seq.

Sec. 2-852. position of confidential secretary created.

The position Class of confidential secretary is established and authorized as a Class title in the Unclassified Service.
(Ord. No. 07-05, 8-8-05)

Sec. 2-853. Assistants and Employees of the corporation counsel.

(A) In addition to the corporation counsel, the office of the corporation counsel may consist of one (1) full-time assistant corporation counsel designated as deputy corporate counsel, two (2) full-time assistant corporation counsels designated as senior assistant corporation counsels, two (2) special counsels, nine (9) full-time assistant corporation counsels, one (1) legal assistant, one (1) senior administrative analyst, two (2) administrative assistants, one (1) secretary, three (3) legal stenographers, one (1) claims investigator, all of whom shall be appointed by the corporation counsel. Except as otherwise may be provided by the City Charter, the corporation counsel and the two (2) special counsels shall be in the unclassified service, and the full-time assistant corporation counsels designated as senior assistant corporation counsels and the full-time assistant corporation counsel designated as deputy corporation counsel, the nine (9) full-time assistant corporation counsels and all other employees of the corporation counsel's office shall be in the Classified Service.

(B) When the corporation counsel is absent, the deputy corporation counsel shall serve as acting corporation counsel, and shall have all of the powers of the corporation counsel under the Charter. In the absence of the corporation counsel and the deputy corporation counsel either of the senior assistant corporation counsels shall serve as acting corporation counsel and shall have all of the powers of the corporation counsel under the Charter; providing that, in the event both senior assistant corporation counsels are present, the senior assistant corporation counsel with the longest seniority in the office of the corporation counsel, shall serve as acting corporation counsel.
(Ord. No. 07-05, 8-8-05)

Charter reference—Corporation counsel generally, Ch. VIII, § 3.

Sec. 2-854. Investment analyst under City Treasurer; other Employees.

(A) In addition to the City Treasurer and assistant City Treasurer as provided in the Charter, there shall be a principal investment officer, whose duties shall be as prescribed by the City Treasurer and shall include review of investments by the City and recommendations to the City Treasurer in connection therewith, and who shall have all the powers and duties of the City Treasurer in the absence or disability of both the City Treasurer and assistant City Treasurer.

(B) The City Treasurer shall appoint such other employees as may be necessary to perform the work incident to the duties of said office, in accordance with the positions authorized in the budget.
(Ord. No. 07-05, 8-8-05)

Charter reference—City treasurer, Ch. VI, § 1.

Sec. 2-855. Employees of pension commission.

The pension commission shall appoint such employees as may be necessary to perform the work incident to the duties of such commission.
(Ord. No. 07-05, 8-8-05)

Charter references—Pension commission as appointive board required by Special Act, Ch. VII, § 4; pension commission, App. to Charter, § 20.2.

Cross reference—Pensions and retirement, § 2-800 et seq., pensions, Ch. 2A.

Sec. 2-856. Moonlighting by police officers and firefighters.

Police officers and firefighters shall be permitted to secure outside employment and to work for a limited number of hours on a limited type of job, in the City and contiguous towns, all subject to the approval of the chief of the department. All City employees in these departments who obtain such work shall register with the chief of the department and shall be subject to call to duty twenty-four (24) hours a day.
(Ord. No. 07-05, 8-8-05)

Sec. 2-857. Official Bonds.

(A) *Required of Certain Personnel.* In addition to the officers required by law to give bonds, such other officers as may be required by ordinance shall execute bonds with good and sufficient surety, payable to the City and conditioned for the faithful performance of the duties of their offices and the payment of all moneys received by such officers; provided, however, that no

officer who, by virtue of the individual's office, is required or authorized to act in any other capacity, shall be required to execute an additional bond before entering upon the duties of the office ex officio.

(1) *City Clerk and City Treasurer.* The City Clerk and City Treasurer may require any of their subordinate officers or employees to give bond payable to the City, with good and sufficient surety and conditioned for the faithful performance of the duties of their office or position and the payment of all moneys received by them.

(2) *Other Subordinate Officers or Employees.* Any subordinate officer or employee may be required by the head of the department or agency of the City to which such officer or employee has been appointed, or by the council, to give bond payable to the City, with good and sufficient surety and conditioned for the faithful performance of the duties of the office or position and the payment of all moneys received by such officer or employee. All subordinate officers and employees of the City who receive or have the care, custody or handling of any City moneys, property or other valuable thing belonging to the City shall be required to give such bond.

Bond shall be given in every case before the officer or employee required to give such bond shall enter upon the individual's official duties.

(B) *Procurement and approval.* All bonds of officers or employees payable to the City shall be procured in accordance with the requirements of the Code of Ordinances and any regulations adopted thereunder and insurance and the form and sufficiency of such bonds, as well as the sureties thereon, shall be approved by the Chief Operating Officer.

(C) *Premiums to be paid by City.* The cost of obtaining all bonds of officers and employees payable to the City and the premiums thereon shall be paid out of the funds of the City.

(D) *Control and custody.* After the approval of the bond of any officer or employee, as required by subsection (B), above, the date of approval shall be endorsed thereon and the bond shall be filed with the division of purchases and insurance, which shall have control and custody of the bond.

(E) *Termination and cancellation.* All bonds of officers and employees shall continue in effect so long as the officers and employees named therein continue in office and until an accounting is had and payment made by such officers and employees of all moneys received by them; provided, however, that liability under any such bond may be terminated by the surety in respect of any official act which shall be taken or occur after thirty (30) days' written notice to the chief operating officer or the designee thereof by the surety by registered mail of the termination or cancellation of such bond. In case of termination or cancellation of any bond by any surety during the continuance in office or employment of any officer or employee, such officer or employee shall execute a new bond in the same manner, of the same type, and with the same conditions and penalties as were required originally.
(Ord. No. 07-05, 8-8-05)

Sec. 2-858. Reserved.

Editor's note—Ord. No. 46-11, adopted Sept. 12, 2011, deleted § 2-858, which pertained to group insurance and service benefits and derived from Ord. No. 07-05, adopted Aug. 8, 2005; and Ord. No. 13-08, adopted May 12, 2008.

Sec. 2-859. Use of private automobiles for official business.

The heads of the respective departments, with the written consent of the mayor or a designee thereof, may authorize persons employed in their departments to use privately-owned automobiles in the performance of their official duties. Such persons shall be reimbursed and such automobiles shall be used upon such terms and conditions as the mayor or a designee thereof may determine in writing.
(Ord. No. 07-05, 8-8-05)

Sec. 2-860. [Motor vehicles policy.]

(A) Use of City Vehicles. It shall be the policy of the City of Hartford that motor vehicles will be provided to only the following City employees on a twenty-four-hour basis:

- Mayor of the City of Hartford.
- Police Chief of the City of Hartford Police Department.
- Fire Chief of the City of Hartford Fire Department.

(B) No City of Hartford employee shall be provided a motor vehicle of any kind on a twenty-four (24) hour basis unless the Court of Common Council specifically authorizes the use of the motor vehicle in a resolution solely for the purpose of granting authorization for twenty-four (24) hour usage.

(C) The City of Hartford shall determine the taxable benefit of the use of a motor vehicle owned by the City and shall report said benefit to the appropriate state and federal authorities. The City of Hartford's determination of the taxable benefit shall be a matter of public record.

(D) Every vehicle owned by the City of Hartford shall be equipped with a global positioning system with the capabilities to identify the location of any vehicle and to determine its mileage usage.
(Ord. No. 17-13, 11-25-13)

Sec. 2-861. Authorization for monetary settlements.

Pursuant to Chapter VIII, Section 3 of the Charter of the City of Hartford, the Corporation Counsel, is hereby authorized and may enter into monetary settlements in amounts up to Twenty- Five Thousand Dollars ($25,000.00) per claim or action brought against the City of Hartford, without further Council approval.

The Corporation Counsel, with the approval of the Mayor, is further hereby authorized and may enter into monetary settlements in amounts in excess of Twenty-Five Thousand Dollars ($25,000.00) and up to Fifty Thousand Dollars ($50,000.00) per claim or action brought against the City of Hartford without further Council approval.

The Corporation Counsel shall submit a report to the Council every six (6) months indicating the nature of the claims or actions settled and the settlement amounts for the same, except those settlements that are required by court order to remain confidential.
(Ord. No. 01-11A, 1-10-11)

Editor's note—Ord. No. 01-11A, adopted Jan. 10, 2011, has been codified as § 2-861 at the request of the city.

Secs. 2-862—2-899. Reserved.

ARTICLE XIX. CODE OF ETHICS

Sec. 2-900. Generally.

(A) *Short title.* This article shall be known and referred to as the "Code of Ethics of the City of Hartford".

(B) *Applicability.* The code of ethics shall be applied to and be binding on every officer, official or employee of the City and every member of any board, commission or agency of the City.

(C) *Statement of policy.*

(1) It is the policy of the City to uphold, promote and demand the highest standards of ethics from all its officers, officials, employees and members of boards, commissions, and agencies, whether elected or appointed. Accordingly, they shall maintain the highest standards of personal integrity, truthfulness, honesty and fairness in carrying out their public duties, avoid any improprieties in their roles as public servants and never use their City position or powers for personal gain.

(2) A conflict of interest occurs when any officer, official or employee of the City, or any member of a board, commission or agency of the City, engages in any act which advances personal interests and private financial interests over the interests of the general public. Such conflicts of interest undermine the public trust that City officials and employees will always act impartially in the public

interest. Public officials should be particularly scrupulous in avoiding even the appearance of conflict of interest.

(Ord. No. 07-05, 8-8-05; Ord. No. 19-09, 5-11-09; Ord. No. 43-11, 9-12-11; Ord. of 11-28-22(1))

Sec. 2-901. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(A) *An appearance of a conflict of interest* occurs where an officer, official, or employee of the City of Hartford, or any member of a board, commission or agency of the City, acts in a manner which would cause a reasonable person, having knowledge of the relevant circumstances, to conclude that any person can improperly influence or unduly enjoy his favor in the performance of his official duties, or that he is likely to act or fail to act as a result of kinship, rank, position, or undue influence of any party or person. It shall be unreasonable to so conclude if such officer or employee has disclosed in writing to his appointing authority, or if no appointing authority exists, discloses in a manner which is public in nature, the facts which would otherwise lead to such a conclusion.

(B) *Blind trust* means a trust established by an individual who is a City officer, official, employee, or a member of any board, commission or agency or member of the individual's immediate family for the purpose of divestiture of all control and knowledge of assets.

(C) *Business with which the individual is associated* means any sole proprietorship, partnership, firm, corporation, trust or other entity through which business for profit or not for profit is conducted in which an officer or official or City employee or any member of any board, commission or agency or member of the individual's immediate family is a director, officer, owner, limited or general partner, beneficiary of a trust or holder of stock constituting five (5) percent or more of the total outstanding stock of any class. Officer refers only to the president, executive or senior vice president or treasurer of such business.

(D) *Commission* means the City ethics commission established in section 2-473 of this article.

(E) *Contract management authority* means personal involvement in or direct supervisory responsibility for the formulation or execution of a City contract, including without limitation the preparation of specifications, evaluation of bids or proposals, negotiations of contract terms or supervision of performance.

(F) *Crime related to City office or employment* means any of the following criminal offenses committed by a person while serving as a City officer, official or employee:

(1) The committing, aiding or abetting of an embezzlement of public funds from the City;

(2) The committing, aiding or abetting of any felonious theft from the City;

(3) Bribery in connection with service as a City officer, official or employee; or

(4) The committing of any felony by a City officer, official or employee who, willfully and with the intent to defraud, realizes or obtains, or attempts to realize or obtain, a profit, gain or advantage for himself or herself or for some other person, through the use or attempted use of the power, rights privileges or duties of his or her position as a City officer, official or employee.

(G) *Employee* means each and every person employed by the City in any capacity whether elected or appointed, whether as a classified employee, unclassified employee, or on a contractual basis, permanent or temporary, full-time or part-time and all employees of the board of education. Employee also includes any person employed by any City department, office or agency, or any person, whether appointed or under contract,

who provides services for the City, or any other political subdivision of the City for which a pension is provided.

(H) *Financial gain* means money, thing of value or other pecuniary benefit received worth in excess of fifty dollars ($50.00).

(I) *Financial interest* means:

(1) Any source of income, direct or indirect, from which a person has received, within the past three (3) years, or is presently receiving, or in the future is entitled to receive, more than five hundred dollars ($500.00) per year; or

(2) Ownership, or the ownership of securities of any kind representing or convertible into ownership, of more than three (3) percent of a business entity; or

(3) Ownership of any other interest worth more than one thousand dollars ($1,000.00).

(J) *Gift* means a payment, subscription, advance, forbearance, rendering of services, deposit of money, or anything of value unless consideration of equal or greater value is received, including but not limited to money, meals, services, loans, travel, entertainment, hospitality, promises, or any other forms which can reasonably be inferred as seeking to influence or reward an officer, official, employee or member of a board, commission or agency in the carrying out of their official City duties. "Gift" shall not include a political contribution otherwise reported as required by law; services provided without compensation by persons volunteering their time; a commercially reasonable loan made on terms not more favorable than loans made in the ordinary course of business; a gift received from an individual's spouse or the parent, brother or sister of such spouse or such individual, or the child or spouse of such child; a certificate, plaque or other ceremonial award costing less than one hundred dollars ($100.00); gifts costing less than one hundred dollars ($100.00) in the aggregate or food or beverage provided at a hospitality suite at a meeting or conference of an interstate or national municipal or governmental association, by a person who is not doing business with the City; food or beverage or both, costing less than fifty dollars ($50.00) per person and consumed on a single occasion at which the person paying, directly or indirectly, for the food or beverage, or the representative of the person paying, is in attendance; anything having a value of not more than twenty-five dollars ($25.00), provided the aggregate value of all things provided by a donor to a recipient under this exception shall not exceed one hundred dollars ($100.00) in any calendar year; or admission to a charitable or civic event, including food and beverage provided at such event, but excluding lodging or travel expenses, at which a public official or City employee participates in his or her official capacity, provided such admission is provided by the primary sponsoring entity.

(K) *Immediate family* means any spouse, children or dependent relatives who reside in the individual's household.

(L) *Individual* means a natural person.

(M) *Individual with which one is associated* means an individual with whom the person or member of the person's immediate family mutually has an interest in any business.

(N) *Interest* means any legal or equitable interest, of value or capable of valuation, whether or not subject to an encumbrance or a condition, which was or is owned or held, in whole or in part, jointly or severally, directly or indirectly.

(O) *Member of any board, commission or agency* means each and every person appointed by the council or the mayor, to any authority, board, commission or agency, whether autonomous or not, of the City.

(P) *Officers and officials* means each and every person elected or appointed to City office including but not limited to members of the council, the mayor, department heads, corporation counsel, town and City clerk of the City, members of the board of education and officials of the board of education.

(Q) *Person* means any individual, entity, corporation, partnership, firm, association, union, trust, estate, as well as any parent or subsidiary of any of the foregoing, whether or not operated for profit.

(R) *Personal gain* means an advantage or benefit not of a financial nature.

(S) *Personal interest* means a private involvement of an individual or a relative of the individual from which the individual or the relative may derive an advantage or benefit of a nonfinancial nature.

(T) *Relative* means a person who is related to an officer, official, employee or member of any board, commission or agency as spouse or as any of the following, whether by blood, by marriage or by adoption: parent, child, brother or sister, aunt or uncle, niece or nephew, grandparent, grandchild, father-in-law, mother-in-law, son-in-law, daughter-in-law, stepfather or stepmother, stepson or stepdaughter, stepbrother or stepsister, half-brother or half-sister.

(Ord. No. 07-05, 8-8-05; Ord. No. 19-09, 5-11-09; Ord. No. 43-11, 9-12-11; Ord. No. 01-17, 1-9-17; Ord. of 11-28-22(1))

Sec. 2-902. Prohibited generally.

(A) No individual who is an officer, official, employee or member of any board, commission or agency, whether paid or unpaid, shall engage in any business or transaction or have a financial, or personal interest, direct or indirect, which is incompatible with the proper discharge of the individual's official duties in the public interest or would tend to impair the individual's independence of judgment and action in the performance of the individual's official duties. Nor shall the individual engage in any financial dealings with any persons whose activities are regulated or supervised by the individual's department, board, commission or agency or accept a gift from such persons.

(B) Personal use of any and all City equipment or supplies to which an individual who is an officer, official or employee has access in the course of the individual's City duties must not interfere with the individual's City responsibilities and duties and must be in accordance with the City's Information Technology Resources Policy and Social Media Policy. An individual shall not use City equipment for his own personal or financial gain, as defined herein, or to benefit or cause injury to a third party, nor shall the individual's use of equipment result in a financial or other loss or injury to the City. The individual shall not pressure or otherwise coerce other City officers, officials or employees to use such equipment in ways and for purposes prohibited under this section. No labor shall be performed for any person or on any job while on City time except that which is part of the individual's official duties. No supervisor shall pressure or otherwise coerce City employees to perform labor outside City time. Supervisors shall be especially sensitive to the fact that even asking for labor may be perceived by the employee as a subtle form of pressure.

(C) A conflict of interest exists if an individual who is an officer, official or employee or member of any board, commission or agency or their relatives, directly or indirectly, may receive financial gain or personal gain from the outcome of, or have a financial interest in, any matter under consideration before the individual in the individual's official capacity. In the case of a member of council or a member of a board, commission or agency, such member shall disclose on the public record of such public body, the existence of any such interest and the member may not vote or otherwise act on such matters.

(D) A conflict of interest exists if any officer, official, employee or member of any board, commission or agency, has a financial or personal interest in any matter which may be adverse to the public interest in the proper performance of their governmental duties or an interest in

speculative or investment activities that would benefit from use of confidential information gained from such officers, officials, employees or members.

(E) No officer, official or employee shall hold two (2) or more positions in City government, whether paid or unpaid, if any of those positions constitute a conflict of interest or have the appearance of a conflict of interest.

(F) No provision of this code of ethics shall be understood to deny employees or other officials or officers who have not been elected to represent a public constituency the right to participate in political activities provided that they do not actively represent candidates or electoral issues in the course of or in connection with official duties. Employees shall not identify support of or opposition to a candidate or issue with their official position or use City resources in this regard. No officer, official, employee or member of any board, commission or agency of the City shall compel, coerce or intimidate any other officer, official, employee or member of any board, commission or agency of the City to make or refrain from making, or solicit any political contribution.

(G) All financial or personal interests of an officer, official, employee or member of any board, commission or agency which have the potential for a conflict of interest shall be disclosed in writing to the mayor or a designee thereof and City council whenever such potential presents itself.

(H) To insure that the financial and professional integrity of the City is maintained, employees shall abide by the City's nepotism policy which generally prohibits conferring benefits and privileges based upon familial relationships, rather than on merit.

(I) No public official or City employee shall use his public office or position or any confidential information received through his holding such office or position to obtain financial gain for himself, his spouse, child, child's spouse, parent, brother or sister or a business with which he is associated.
(Ord. No. 07-05, 8-8-05; Ord. No. 19-09, 5-11-09; Ord. No. 43-11, 9-12-11; Ord. No. 01-17, 1-9-17; Ord. of 11-28-22(1))

Sec. 2-903. Disclosure of confidential information.

(A) No individual, who is an officer, official, employee or member of any board, commission or agency, shall use or disclose confidential information concerning the property, government or affairs of the City for the purpose of advancing the financial or personal interests of the individual or other persons.

(B) Former officers and officials shall not use confidential information gained in their service to the City for the financial gain or personal gain of any person.

(C) Information that is shared in council executive sessions and caucuses as confidential shall not be disclosed.
(Ord. No. 07-05, 8-8-05; Ord. No. 19-09, 5-11-09; Ord. No. 43-11, 9-12-11; Ord. of 11-28-22(1))

Sec. 2-904. Appearance and intervention on behalf of others.

(A) No individual, who is an officer, official or employee shall appear before the council or any board, commission, department or agency of the City on behalf of private persons in any matter which will be in conflict with the individual's duties as such officer, official or employee. Any such officer, official or employee may appear before City agencies on behalf of the individual's constituents in the course of the individual's duties as a representative of the electorate or the performance of civil obligations provided that no retainer, compensation or gift shall be accepted in connection with such representation.

(B) Former officers and officials shall be prohibited from representing for compensation any persons in their business with the City for two (2) years after the end of their service if the officer or official participated personally and substantially in the subject matter of the transaction during the officer's or official's term of office or employment; provided that if the officer or official exercised contract management authority with respect to a contract, this prohibition shall be permanent as to that contract.

(C) Former employees shall be prohibited from representing for compensation any persons in their business with the City for one (1) year after the end of their service, if the employee participated personally and substantially in the subject matter of the transaction during the employee's employment; provided that, if the employee exercised contract management authority with respect to a contract, this prohibition shall be permanent as to that contract.

(D) If members of the council, in the course of their business or profession, currently represent persons with matters before council for determination by that body, then in such cases the council member shall disclose such representation and shall promptly abstain from such consideration, determination and council action. If a matter connected with such representation requires solely administrative action by a department or agency of the City, then no direct personal intervention or representation shall be undertaken by the council member with such department or agency. If a council member does desire to intervene personally in such a matter before a department head or agency, the council member shall formally present the matter under consideration in writing to the Mayor and any action required shall thereafter be undertaken through the office of the Mayor.

(E) If a member of the council has a conflict of interest involving a zoning matter or amendment, the council member in conflict shall be disqualified from acting on the amendment or change, shall abstain from voting thereon, shall in no fashion attempt to influence the vote of other members of council, and shall place on the public record at the public hearing the reasons for the disqualification and conflict of interest including relationships with any parties that may be interested in the zone change or amendment.
(Ord. No. 07-05, 8-8-05; Ord. No. 19-09, 5-11-09; Ord. No. 43-11, 9-12-11; Ord. of 11-28-22(1))

Sec. 2-905. Violations; contracts.

Any contract, agreement or business engagement entered into in violation of this code of ethics shall render the transaction void where so provided in the charter, otherwise same shall be voidable.
(Ord. No. 07-05, 8-8-05; Ord. No. 43-11, 9-12-11; Ord. of 11-28-22(1))

Sec. 2-906. Disclosure of financial interests; filing requirements.

(A) Every person holding the following positions, including acting or interim positions, regardless of length of service, or any such equivalent positions created as a result of department and/or commission consolidations/re-organizations, shall file, under penalty of false statement, a statement of financial interests for the preceding calendar year with the ethics commission on or before the first of May of the following year in which they hold such a position:

(1) Mayor;

(2) Mayoral Appointees;

(3) Members of the Court of Common Council;

(4) Council Executive Assistants;

(5) City Treasurer;

(6) Assistant city treasurers;

(7) Chief Operating Officer;

(8) Chief Operating Officer Appointees;

(9) Chief of Staff;

(10) Corporation counsel;

(11) Deputy corporation counsel;

(12) Department heads;

(13) Deputy and assistant department heads/Chiefs;

(14) Directors of Planning; Economic Development; Housing; Licenses and Inspections; Marketing, Events and Cultural Affairs (MECA); Management and Budget and staff of Management and Budget; and Assessor and Deputy/Assistant Assessor;

(15) Executive director of redevelopment;

(16) Members of the board of education;

(17) Superintendent of schools;

(18) Deputy and Assistant Superintendents of Schools;

(19) Members of the Superintendent's Cabinet;

(20) Members of the redevelopment agency;

(21) Members of the zoning board of appeals;

(22) Members of the Hartford parking authority;

(23) Hartford Parking Authority Executive Director and Deputy/Assistant Director;

(24) Manager of Capital Projects;

(25) Energy Manager;

(26) Pension Commission Members;

(27) Pension Commission Employees;

(28) Internal Audit Commission Members;

(29) Internal Audit Commission Staff;

(30) Members of the board of assessment appeals;

(31) Registrars of voters;

(32) Deputy and Assistant Registrars of Voters;

(33) City clerk;

(34) Deputy and Assistant Town Clerks;

(35) Members of the ethics commission;

(36) School Building Committee Members;

(37) Planning and Zoning Commission Members; and

(38) Historic Properties Commission Members;

(39) Hartford Golf Oversight Commission Members;

(40) Hartford Commission on Housing Members;

(41) Fair Rent Commission Members;

(43) Inspector General; and

(44) Any other position for which the Corporation Counsel determines in his or her discretion that a statement of financial interest is necessary and appropriate.

Any such individual who leaves said office or position shall file a statement of financial interests covering that portion of the year during which the individual held the office or position. In addition, any individual who is appointed to such an office or position shall file a statement of financial interest for the calendar year preceding the year of appointment to the office or position. The commission shall notify all such individuals of the requirements of this subsection within thirty (30) days after their departure from, or appointment to, such office or position. Such individuals shall file such statement within sixty (60) days after receipt of the notification.

(B) The statement shall include the following information for the preceding calendar year in regard to the individual required to file the statement and the individual's immediate family:

(1) The names of all businesses with which associated;

(2) The names of all individuals with which associated;

(3) The names of all employers;

(4) The existence of any known blind trust and the names of the trustees;

(5) All real property located within the City, and its location, owned or leased for a term of five (5) years or more by such individual or the individual's immediate family, and all such real property owned or so leased held in the name of a corporation, partnership or trust for the benefit of such individual or the individual's immediate family; and

(6) Any active leases or contracts with the City held or entered into by the individual or a business with which the individual was associated.

(C) The statement filed pursuant to this section shall be a matter of public information.

(D) Any individual who is unable to provide information required under the provisions of subsection (B) of this section by reason of impossibility may petition the commission for a waiver of the requirements.

(E) Any individual who fails to file the statement of financial interests or other information as required by this section and is found by the

ethics commission to be in violation of this section, may be fined up to twenty-five dollars ($25.00) per day, by the commission, for each violation. Each violation of this section shall be a separate offense and in the case of a continued violation, each day thereof shall be deemed a separate offense. In no event shall the aggregate penalty imposed for failing to file the statement or other information exceed one thousand dollars ($1,000.00).
(Ord. No. 07-05, 8-8-05; Ord. No. 43-11, 9-12-11; Ord. No. 01-17, 1-9-17; Ord. of 11-28-22(1))

Sec. 2-907. Duty to disclose.

(A) All officers, officials, employees and members of any board, commission or agency who have knowledge of or believe there to be violations of any provisions in this code of ethics are duty-bound to report those violations to the ethics commission. Such reports shall be in good faith and the city in turn guarantees that no reprisals against a reporter of such violations will be taken, provided that such charges are not later proven to have been both malicious and false. All persons against whom such charges have been made will have full access to all the protections of due process as spelled out by the ethics commission. Appropriate sanctions will also be taken against any person who is found to have falsely and maliciously charged another with violations of the code of ethics.

(B) Persons who are proven to have had knowledge of violations of the code of ethics and who failed to report such violations will be regarded as having condoned those violations.
(Ord. No. 07-05, 8-8-05; Ord. of 11-28-22(1))

Sec. 2-908. Commission created; memberships; terms; vacancies.

(A) *Created.* There shall be an ethics commission, hereinafter referred to as the commission, consisting of five (5) electors of the City who shall serve for three-year terms without compensation, except reimbursement for expenses incurred in performance of commission duties, and who shall be appointed by the mayor with the approval of council. This commission is established pursuant to G.S. § 7-148h, and shall be bound by that section in its proceedings and determinations. No member shall:

(1) Hold or campaign for public office;

(2) Have held or been a candidate for public office during the three-year period prior to appointment;

(3) Hold office in any political party or political committee;

(4) Be a City employee;

(5) Employ or be employed as a person required to register as a lobbyist; or

(6) Hold any financial interest in any work or business of the City or official action by the City.

(B) *Terms.* The terms of membership will be three (3) years and staggered (of the first members appointed two (2) shall serve for three (3) years, two (2) for two (2) years, and one (1) for one (1) year). No more than three (3) members may have the same political party affiliation. Members may be removed by a two-thirds (⅔) majority vote of the commission only for neglect of duty, misconduct in office, or inability to discharge powers and duties, provided the member shall have been served with a written notice of the intention to remove the member, containing a clear statement of the grounds for such removal and of the time and place, not less than ten (10) days after the service of such notice, at which the member shall be given an opportunity to be heard thereon. After such hearing, which shall be public at the option of the member and at which the member may be represented by counsel, the action of the commission shall be final. From the service of notice until final action by the commission the member shall be ineligible to perform the duties of the commission. Each member shall be a resident of the City and shall serve for the term for which the member is appointed and qualified. At the expiration of each member's term, the member may be reappointed or a successor appointed for another term. An incumbent shall remain in office until reappointed or a successor is appointed. No member may serve more than two (2) consecutive terms. In the event of the death, resignation

or removal of any member of the commission, the successor to the member shall be appointed by the mayor to serve the unexpired period of the term for which such member has been appointed. The commission shall annually designate one (1) member to act as chairperson of the commission.

(C) *Duties.* The duties of this commission are:

(1) To investigate and hear any reported allegations, make findings, and to take any appropriate disciplinary or enforcement actions pursuant to this code of ethics;

(2) To render advice, which may include written advisory opinions, to the City council, corporation counsel, or any other public employee or official on this code of ethics;

(3) To recommend legislative action as it may deem appropriate to effect the policy of this Code;

(4) To prepare and publish, from time to time but at least annually, reports summarizing the commission's activities, which reports shall be presented to the mayor and City council; and

(5) To educate all current and new officers, officials, employees, and members of any board, commission or agency about the code of ethics.

(D) *Meetings; quorum; voting; chairperson.* In order to be eligible to vote, attendance is mandatory at all prior meetings on the issue. Three (3) members of the five-member commission constitute a quorum, and a majority vote of the quorum is necessary for any action to take place. The chairperson will serve a full term even when the initial membership is staggered. The chairperson will preside over all meetings and may call special meetings. Otherwise, the chairperson has power equal to all other members.

(E) *Procedural regulations.* The commission shall establish its bylaws and all other regulations governing its operations, meetings, and hearings. No hearing shall be held by the commission until such time as the commission has adopted rules of procedure governing said hearings and such rules have been approved by the council.

(F) *Assistance of the corporation counsel.* The corporation counsel shall be available to the commission to advise the commission on legal matters and to represent the commission when necessary.

(G) *Staff.* Staff for the commission shall include a secretary and other personnel as is necessary to enable the commission to carry out its functions.

(H) *Enforcement.* The primary responsibility of the commission is to enforce the code of ethics. The commission shall have the power to investigate any reported allegations, to hold hearings, and to recommend disciplinary action to appropriate parties in accordance with City procedures and policies. Sanctions may include but are not limited to fines, termination of employment, suspension without pay, and/or censure. If the commission believes an activity to be illegal, it shall report its findings to the appropriate authority for investigation.

(I) *Counsel.* The commission may retain outside counsel to assist it with its duties. Such contract for assistance shall not exceed two (2) years in length and be within funds appropriated by the council. The corporation counsel shall publicly bid the services on behalf of the commission and provide the commission with no less than three (3) attorneys or firms from which to select.
(Ord. No. 07-05, 8-8-05; Ord. No. 05-08, 2-13-08; Ord. No. 19-09, 5-11-09; Ord. of 11-28-22(1))

Sec. 2-909. Convictions or pleas to criminal conduct.

(A) If any public officer, official or City employee is convicted of or pleads guilty or nolo contendere to a crime related to City office or employment in state or federal criminal court. Corporation counsel shall apply to the superior court for an order to reimburse the City for any costs and attorney's fees it incurred related to indemnifying the City officer, official or employee in the legal action resulting in the conviction or plea.

(B) If such an order issues, as permitted by law, corporation counsel shall seek to attach and/or garnish any pension benefit owed to a City officer, official or employee in the amount of any cost and attorney's fees the City expended.

(C) In all criminal proceedings in state or federal court in which the defendant is a City officer, official or employee and is charged with a crime related to City office or employment, corporation counsel shall notify the prosecutor if the individual participates in the City's pension plan.
(Ord. No. 19-09, 5-11-09; Ord. of 11-28-22(1))

ARTICLE XIXB. FRAUD POLICY

Sec. 2-910. Generally.

(a) *Short title.* This article shall be known and referred to as the "Fraud Policy of the City of Hartford".

(b) *Statement of Policy.*

(1) The City of Hartford ("City") is committed to protecting its revenue, property, information, reputation and other assets from any attempt by others, whether they be members of the public, or contractors, or vendors, or City employees, to gain by deceit, financial or other benefits at the expense of City taxpayers.

(2) City officials and employees must, at all times, comply with all applicable laws and regulations. The City will not tolerate illegal acts or unethical business dealings of officials or employees.

(c) *Purpose.* The purpose of this policy is to prevent any form of fraud as defined herein. This policy sets out specific guidelines and responsibilities regarding appropriate actions that must be followed for investigation of fraud and other similar irregularities. This policy also seeks to emphasize the goals and objectives of the City's Code of Ethics, which specifically provides for dealing with conflicts of interest and describes the City's commitment to upholding, promoting and demanding the highest standards of ethics for its employees, officers, officials and City board, agency and commission members.

(d) *Applicability.* This fraud policy applies to all elected and appointed City officers and officials, City employees, members of City boards, agencies and commissions, as well as any entity or individual doing business with or on behalf of the City.
(Ord. No. 42-11, 7-11-11)

Sec. 2-911. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Occupational Fraud* is defined as the use of one's occupation for personal enrichment through the deliberate misuse or misapplication of the employing organization's resources or assets.

(b) *Asset Misappropriations* is a category of occupational fraud which involves the theft or misuse of an employing organization's assets.

(c) *Corruption* is a category of occupational fraud which involves wrongfully using influence in a business transaction in order to procure some benefit for oneself or another person, contrary to a duty to the employer or to the rights of another.

(d) *Fraudulent Statements* is a category of occupational fraud which involves the falsification of an employing organization's financial statements.

(e) *Fraud Hotline* is a City-established hotline, through which individuals may report known or suspected cases of fraud, waste, or abuse of resources in governmental agencies, including but not limited to, the City of Hartford, the Hartford Public School System, the Hartford Parking Authority and the Hartford Public Library. The contact phone number for this hotline is and shall continue to be available on the City

of Hartford website and can also be obtained by contacting the Internal Audit Department of the City of Hartford.

(Ord. No. 42-11, 7-11-11)

Sec. 2-912. General duties and responsibility.

(a) Any suspected acts of fraud or other similar irregularities which come to the City's attention shall be investigated by whatever legally permissible means are appropriate. An objective and impartial investigation will be conducted regardless of position, title, length of service or relationship with the City of any party who might be, or become involved in, or becomes/is the subject of such investigation.

(b) Managers, including elected officials and department directors, are responsible for instituting and maintaining a system of internal control to provide reasonable assurance for the prevention and detection of fraud, misappropriations and other irregularities. Managers should be familiar with the types of improprieties that might occur within their area of responsibility and be alert for any indication of irregularity.

(c) The Internal Audit Commission will be the primary contact for requesting and/or initiating an investigation of all activity defined in this policy, and will have the primary responsibility for audit related aspects of any related investigation. The Corporation Counsel's Office will provide support to the Internal Audit Commission, as deemed mutually agreeable, in the areas of assisting, advising, counseling and, where appropriate, litigating any related matters. Further, the Internal Audit Commission, working with and through the Corporation Counsel's Office, will provide for a fair process geared to the protection of the rights of all parties involved.

(d) All information received by the Internal Audit Commission, Corporation Counsel, Human Resources and/or any other parties during the course of a fraud investigation will be treated confidentially. Whistle blowers will remain anonymous and investigation results will not be disclosed or discussed with anyone other than those who have a legitimate need to know, as determined by the Human Resources Department, Corporation Counsel's Office and the Internal Audit Commission. This is important in order to avoid damaging the reputations of persons suspected but subsequently found innocent of wrongful conduct and to protect the City from potential civil liability. This confidentiality will be limited only to the extent that is required according to Freedom of Information statutes or any other applicable law, upon the advice of the Corporation Counsel's Office.

(e) Upon conclusion of the investigation, the results generated will be reported to others as deemed necessary.

(f) In all circumstances where there is cause or reason to believe an activity to be potentially illegal, and upon consultation with the Corporation Counsel's Office, the findings shall be reported to the Hartford Police Department and/or other appropriate authority for investigation.

(g) If, after an investigation and any necessary coordination with the Internal Audit Department, the Corporation Counsel's Office, Police Department and/or other appropriate authority, it is determined that a fraud has occurred, the City will pursue every legal and reasonable means, including court ordered restitution, to obtain recovery of the City's losses from the offender or other appropriate source.
(Ord. No. 42-11, 7-11-11)

Sec. 2-913. Fraud investigations generally.

(a) *All Employees.*

(1) Any City employee who has knowledge of an occurrence of irregular conduct as defined herein, or has reason to suspect that a fraud has occurred, shall immediately notify his/her supervisor. If the employee has reason to believe that his/her supervisor may be involved or does not feel comfortable reporting the occurrence to the supervisor, the employee shall immediately notify the proper authorities through the Fraud Hotline.

(2) Employees have a duty to cooperate during a fraud investigation. An employee's failure to cooperate with a fraud investigation could result in disciplinary action up to and including termination.

(b) *City Management, Elected Officials and Officers, and City board, commission and agency members.*

(1) City managers, including elected officials and officers, and City board, commission and agency members, on notification or discovery of suspected fraud, or if they have reason to suspect that a fraud has occurred, shall immediately notify the Internal Audit Commission through the Fraud Hotline.

(2) Said managers, elected officials and officers, and City board, commission and agency members have a duty to cooperate with the Internal Audit Commission, the Police Department and/or other appropriate authority during the course of an investigation.

(c) *Internal Audit Commission.*

(1) Upon notification or discovery of suspected fraud, the Internal Audit Commission will promptly notify the Chief Operating Officer, respective department management and the Corporation Counsel's Office as deemed appropriate and proceed accordingly with an investigation of the suspected fraud. In all circumstances where there are reasonable grounds to indicate fraud has occurred, the Internal Audit Commission will coordinate related activities with the Corporation Counsel's Office. Subject to the advice of the Corporation Counsel, the Internal Audit Commission shall notify the Hartford Police Department and/or other appropriate agencies to undertake an investigation in such instances where a finding of suspected fraud has been made.

(2) If a suspicion of fraud committed by a City employee is substantiated by an investigation, the Internal Audit Commission, in coordination with the Corporation Counsel's Office, shall recommend to the appropriate appointing authority that disciplinary action be taken in accordance with City policy and procedures. Such action may include termination, prosecution and restitution.

(3) If, after investigation of the alleged fraud, and after seeking advice from the Corporation Counsel's Office as necessary, the Internal Audit Commission determines that the fraudulent conduct of the City employee, official, officer, board, commission or agency member constitutes an ethics violation pursuant to Section 2-900,

et seq. of the City of Hartford Ethics Code, it shall (i) File an ethics complaint with the City of Hartford Ethics Commission ("Ethics Commission"), or (ii) Refer the matter to the Ethics Commission, which may then initiate its own ethics complaint in compliance with its rules of procedure.

(4) The Internal Audit Commission, with applicable advice from the Corporation Counsel's Office, shall refer for disciplinary action any employee who knowingly makes a false allegation of fraud.

(d) *Corporation Counsel.*

(1) The Corporation Counsel's Office will provide the Internal Audit Commission with legal advice as required regarding fraud investigations and related proceedings.

(2) The Corporation Counsel's Office will assist the Internal Audit Commission and other parties involved in fraud investigations in maintaining confidentiality of anonymous informants and whistle blowers. This confidentiality will be limited only to the extent that is required according to Freedom of Information statutes.

(e) *Human Resources Department.*

(1) The Human Resources Department will assist in fraud investigations as required especially in those areas requiring the application or interpretation of City personnel rules and regulations.

(2) Upon completion of a Fraud investigation, advice of the Corporation Counsel's Office and notification by the Internal Audit Commission, the Human Resources Department, in cooperation with the appointing authority, will take appropriate disciplinary action against the individual in accordance with City policy and procedures.

(3) The Human Resources Department will establish training protocols designed to educate existing and newly hired or elected City employees, officials, officers, members of City boards, agencies and commissions, as well as any entity or individual doing business with or on behalf of the City, about this Fraud Policy. All current City employees will be given a copy of this policy and all newly hired City employees will be provided a copy of this policy as part of orientation. All City employees will be asked to provide a written acknowledgement upon receipt and review of the policy, and a signed copy will be maintained in their respective personnel file.

(f) *Ethics Commission.*

(1) The Ethics Commission will review all complaints referred to it in connection with an actual or alleged fraud in compliance with its rules of procedure.

(Ord. No. 42-11, 7-11-11)

Sec. 2-914. Reserved.

ARTICLE XX. GROUP INSURANCE AND SERVICE BENEFITS*

Sec. 2-915. Authorized.

(A) The director of human resources shall, from annual appropriations made by the council for employee group insurance and service benefits, purchase in accordance with the rules and regulations in section 2-917 the following insurance and service benefits for all full-time, permanent, active employees of the City, its several municipal departments and agencies, as defined in the charter and amendments thereto, listed on the payrolls of the City and appointed, unclassified, salaried personnel and for those eligible for benefits under this division by virtue of the charter, resolutions and ordinances of the City, and such other employees presently covered under the existing insurance plan:

(1) Group term life insurance and accidental death and dismemberment insurance;

(2) Hospitalization services;

(3) Medical and surgical services;

(4) Extended medical catastrophic indemnity insurance;

*__State law reference—__Authority to provide group insurance, G.S. § 7-464.

(5) Dental insurance with the following coverages:

(a) Caps and Crowns,

(b) Bridges and Dentures,

(c) Periodontics (Gum Disease), and

(d) Orthodontics.

(B) In addition, said director shall purchase group term life insurance for eligible pensioners under the City pension plan at a reduced principal sum in accordance with rules and regulations in section 2-917.

(C) In lieu of purchasing insurance for any of these benefits, the director of human resources may establish a self-insurance program to underwrite their costs. Such self-insurance program shall include claims processing service, maintenance of actuarially-determined reserve funds and purchase of excess insurance or other provisions to limit the City's risk exposure.

(D) Commencing July 1, 2008, all full-time, non-bargaining unit employees in the administrative series, appointees of the mayor, council and elected officials and their unclassified appointees shall pay, via payroll deduction, eleven (11) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(E) Commencing July 1, 2009, all full-time, non-bargaining unit employees in the administrative series, appointees of the mayor, council and elected officials and their unclassified appointees shall pay, via payroll deduction, twelve (12) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(F) Commencing July 1, 2010, all full-time, non-bargaining unit employees in the administrative series, appointees of the mayor, council and elected officials and their unclassified appointees shall pay, via payroll deduction, thirteen (13) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(G) Commencing July 1, 2011, all full-time, non-bargaining unit employees in the administrative series, appointees of the mayor, council and elected officials and their unclassified appointees shall pay, via payroll deduction, fourteen (14) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(H) Commencing July 1, 2008, all non-bargaining unit employees not covered by section (D) above shall pay, via payroll deduction, eleven (11) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(I) Commencing July 1, 2009, all non-bargaining unit employees not covered by section (E) above shall pay, via payroll deduction, twelve (12) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(J) Commencing July 1, 2010, all non-bargaining unit employees not covered by section (F) above shall pay, via payroll deduction, thirteen (13) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section

(A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(K) Commencing July 1, 2011, all non-bargaining unit employees not covered by section (G) above shall pay, via payroll deduction, fourteen (14) percent of the allocation rate as determined by the City's insurance carrier towards the cost of the group health insurance coverage provided in section (A)(2), (3), (4) and (5) above or twenty dollars ($20.00) per week, whichever is greater.

(L) Commencing July 1, 2012, the Mayor is hereby authorized to determine and establish the amounts to be paid by all full-time non-bargaining unit employees towards the cost of group health insurance coverage provided in section (A)(2), (3), (4) and (5) above; and the Mayor shall provide the Council with a report of such determined amounts at the beginning of each fiscal year.

(Ord. No. 07-05, 8-8-05; Ord. No. 15-08, 5-12-08; Ord. No. 45-11, 9-12-11)

Sec. 2-916. Eligibility.

All eligible employees shall be entitled to the coverages listed in section 2-915 without premium cost for employee coverages except group term life insurance and accidental death and dismemberment insurance in accordance with the rules and regulations in section 2-917.
(Ord. No. 07-05, 8-8-05)

Sec. 2-917. Regulations authorized; filing, approval.

The director of human resources and labor relations shall be empowered to make rules and regulations governing the detailed administration of this division. Said director shall file with the city clerk a copy of such rules and regulations and benefits and amendments thereto and revisions thereof. The city clerk shall cause these to be presented to the council in the form of a resolution for its approval or disapproval as required by sections 2-1 and 2-2 and they shall become effective five (5) days after approval by the council.
(Ord. No. 07-05, 8-8-05; Ord. No. 14-08, 5-12-08)

Sec. 2-918. Reserve for contingencies.

For the purpose of providing for group term life insurance and accidental death and dismemberment insurance contingencies, the director of finance is authorized to establish an insurance reserve for contingency fund with the insurance carriers, such fund to be limited to five (5) times the monthly premium payment for this coverage.
(Ord. No. 07-05, 8-8-05)

Sec. 2-919. Group accident insurance for unpaid members of boards, commissions, etc.

The director of finance shall purchase yearly, pursuant to section 31-275 of the Connecticut General Statutes, at the expense of the city from sums appropriated by the council, workers' compensation insurance covering elected and appointed members of official city boards, commissions and committees, established by charter, statute, ordinance or resolution, while such members are on official city business or acting within the scope of responsibilities required of them in their capacity as a city official.
(Ord. No. 07-05, 8-8-05)

Sec. 2-920. Benefits for nonbargaining unit employees retiring pursuant to incentive program.

(A) Any nonbargaining unit employee of the city, any nonbargaining unit member of the Hartford Public Library and any member of the collective bargaining unit Communication Workers of America, Local 1298 ("CWA"), provided that CWA has agreed to the provisions of this paragraph (hereinafter referred to in this paragraph as "employee"), who either is, or, by operation of subsection (1) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30

a.m. EST, March 10, 2003 and 4:30 p.m. EST, April 15, 2003, both dates and times inclusive, notifies, the personnel department, in writing, on a form provided by the personnel department or its equivalent, of his or her intention to retire on or before May 30, 2003, shall be entitled to the benefit listed below. In those instances where a May 30, 2003 retirement would cause an undue hardship to city operations, the city manager may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond May 30, 2003, and still receive the benefit as set forth herein, providing their last day of work for the city occurs on or before September 26, 2003.

(1) In addition to any payments made by the city toward the cost of health insurance as provided for by contract, ordinances or resolution, any such employee shall be entitled to receive the same health insurance benefits as he or she was receiving while employed by the city, under the same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or equivalent monthly premium, for a period of one (1) year from the date of retirement.

(B) Any member of the following collective bargaining units, MLA CHPEA and HMEA, provided that the members respective collective bargaining unit has agreed to the provisions of this paragraph, (hereinafter referred to in this paragraph as "employee"), who either is, or, by operation of subsection (1) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST. March 10, 2003 and 4:30 p.m. EST, April 15, 2003, both dates and times inclusive, notifies, the personnel department, in writing, on a form provided by the personnel department or its equivalent, of the individuals intention to retire on or before May 30, 2003, shall be entitled to the benefit listed below. In those instances where a May 30, 2003 retirement would cause an undue hardship to city operations, the Chief Operating Officer may grant a deferment in such cases to city employees which would enable those employees to continue to work beyond May 30, 2003, and still receive the benefit as set forth herein, providing their last day of work for the city occurs on or before September 26, 2003.

(1) In addition to any payments made by the city toward the cost of health insurance as provided for by contract, ordinances or resolution, any such employee shall be entitled to receive the same health insurance benefits as the individual was receiving while employed by the city, under the same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or equivalent monthly premium, for a period of one (1) year from the date of retirement.

(C) Any member of the collective bargaining unit AFSCME, Local 1716, provided that the collective bargaining unit has agreed to the provisions of this paragraph, (hereinafter referred to in this paragraph as "employee"), who either is eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who notifies, in writing, the personnel department of his or her intention to retire on or before April 22, 2003, shall be entitled to the benefit listed below.

(1) In addition to any payments made by the city toward the cost of health insurance as provided for by contract, ordinances or resolution, any such employee shall be entitled to receive the same health insurance benefits as he or she was receiving while employed by the city, under the same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or

equivalent monthly premium, for a period of one (1) year from the date of retirement.

(Ord. No. 07-05, 8-8-05)

Sec. 2-921. Benefits for collective bargaining unit employees retiring pursuant to incentive program.

Any employee of the Hartford Public Library who is a member of the collective bargaining unit Evelyn Ball Professional/Non-Professional Units, Local 1716, Council 4, American Federation of State, County and Municipal Employees, AFL-CIO ("Evelyn Ball"), provided that Evelyn Ball has agreed to the provisions of this paragraph (hereinafter referred to in this paragraph as "employee"), who either is, or, by operation of subsection (1) below, becomes, eligible to take an early or normal retirement between April 15, 2003 and May 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between April 15, 2003 and May 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST, March 10, 2003 and 4:30 p.m. EST, April 15, 2003, both dates and times inclusive, notifies, the head librarian, in writing, on a form provided by the head librarian or its equivalent, of his or her intention to retire on or before May 30, 2003, shall be entitled to the benefit listed below. In those instances where a May 30, 2003 retirement would cause an undue hardship to library operations, the head librarian may grant a deferment in such cases to employees which would enable those employees to continue to work beyond May 30, 2003, and still receive the benefit as set forth herein, providing their last day of work for the city occurs on or before September 26, 2003.

(1) In addition to any payments made by the city toward the cost of health insurance as provided for by contract, ordinances or resolution, any such employee shall be entitled to receive the same health insurance benefits as he or she was receiving while employed by the city, under the same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or equivalent monthly premium, for a period of one (1) year from the date of retirement.

(Ord. No. 07-05, 8-8-05)

Sec. 2-922. Benefits for employees of the Hartford Board of Education retiring pursuant to incentive program.

(A) Any nonbargaining unit employee of the Hartford Board of Education (the "HBOE"), and any other employee of the HBOE who is a member of the HFSPO, HSSSA, HFSHP, HFSS, Local 818 or HFP collective bargaining units, provided that the member's bargaining unit has agreed to the provisions of this subsection (8), (hereinafter referred to in this subsection as an "employee") who either is, or, by operation of subparagraph (B) below, becomes, eligible to take an early or normal retirement between May 15, 2003 and June 30, 2003, both dates inclusive, and who takes an early or normal retirement and whose last day of work is between May 15, 2003 and June 30, 2003, both dates inclusive, and who, between 8:30 a.m. EST, April 14, 2003 and 4:30 p.m. EST, May 15, 2003, both dates and times inclusive, notifies the human resources department of the HBOE, in writing, on a form provided by such department or its equivalent, of his or her intention to retire on or before June 30, 2003, shall be entitled to the adjustments in both his or her eligibility to qualify for a pension and in the calculation of his or her pension benefits as described in this subsection. In those instances where a June 30, 2003 departure date would cause an undue hardship to HBOE operations, the superintendent may grant a deferment in such cases to employees which would enable those employees to continue to work beyond June 30, 2003, and still receive their retirement allowance as set forth herein, providing their last day of work for the HBOE occurs on or before September 26, 2003.

(1) In addition to any payments made by the city toward the cost of health insurance as provided for by contract, ordinances or resolution, any such employee shall be entitled to receive the same health insurance benefits as he or she was receiving while employed by the city, under the

same terms as said health insurance benefits had been provided, except that such employee shall not be required to make payments for the insurance premium or equivalent monthly premium, for a period of one (1) year from the date of retirement.

(Ord. No. 07-05, 8-8-05)

Secs. 2-923, 2-924. Reserved.

ARTICLE XXI. CITY SERVICES RELATING TO IMMIGRATION STATUS

Sec. 2-925. Purpose.

The purpose of this article is to codify the policy of the City of Hartford regarding its residents and usage of city services as it relates to their immigration status. Policies set forth in this article make Hartford officially a Sanctuary City.

(Ord. No. 20-08, 8-11-08; Ord. No. 03-16, 3-14-16)

Sec. 2-926. Definitions.

Administrative warrant means a noncriminal, civil warrant that is created by an administrative agency of the United States.

Confidential information means any information obtained and maintained by a city agency relating to an individual's sexual orientation, status as a victim of domestic violence, status as a victim of sexual assault, status as a crime witness, receipt of public assistance, or immigration status, and shall include all information contained in any individual's income tax records.

Criminal activity means participation in an activity that violates federal or state criminal law, or Hartford Municipal Code.

Immigration status means a person's classification as determined by the sections of the United States Code covered by the Immigration and Nationality Act (Public Law No. 82-414) and its amendments.

National crime information center means the computerized index of criminal justice information maintained by the Federal Bureau of Investigation of the United States Department of Justice.

Resident means any person whose primary place of habitation falls within the geographic boundaries of the City of Hartford, as defined by Chapter 1, § 2 of the Charter of the City of Hartford.

United States Bureau of Immigration and Customs Enforcement (ICE) refers to said branch of the Department of Homeland Security as defined in Title 6, Chapter 1, Subchapter XII, Part A, § 542 of the U.S. Code.

(Ord. No. 20-08, 8-11-08)

Sec. 2-927. Usage of city services—Generally.

(a) Any service provided by a City of Hartford department shall be made available to residents, regardless of immigration status.

(b) Referrals to medical or social service agencies will be made in the same manner for all residents, without regard to immigration status.

(c) Nothing in this section shall be construed to prohibit any employee of the City of Hartford from cooperating with federal immigration authorities as required by law.

(Ord. No. 20-08, 8-11-08)

Sec. 2-928. Usage of city services—Police matters specifically.

(a) Hartford police officers shall not inquire about a person's immigration status unless such an inquiry is necessary to an investigation involving criminal activity as defined in section 2-926 above.

(b) Hartford police shall not inquire about the immigration status of crime victims, witnesses, or others who call, approach or are interviewed the Hartford Police Department.

(c) The Hartford Police will not arrest or detain a person based solely on their immigration status unless there is a criminal warrant.

(d) Hartford police officers shall not make arrests or detain individuals based on administrative warrants for removal entered by ICE into the National Crime Information Center database.

(e) The Hartford Police Department shall conduct necessary training and education to ensure that its officers are knowledgeable about provisions set forth in this article.

(f) Nothing in this section shall be construed to prohibit any Hartford police officer from cooperating with federal immigration authorities as required by law.
(Ord. No. 20-08, 8-11-08)

Sec. 2-929. Privacy.

No employee of the City of Hartford shall inquire about or disclose confidential information as defined in section 2-926 or other personal or private attributes except when either required by law or when this information is necessary to the provision of the city service in question.
(Ord. No. 20-08, 8-11-08)

ARTICLE XXII. MUNICIPAL IDENTIFICATION CARD PROGRAM

Sec. 2-930. Establishment and purpose.

The City of Hartford shall create a Hartford municipal identification card for the purpose of improving the quality of life for residents, enhancing the City's reputation as a welcoming and inclusive community, and promoting a sense of shared identity for those who live in Connecticut's capital city.
(Ord. No. 10-15, 6-8-15)

Sec. 2-931. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Administering Agency shall mean the department or other entity designated by the Mayor to administer the Hartford Municipal Identification Card Program.

Hartford City ID Card shall mean an identification card issued by the City of Hartford pursuant to Section 2-933.

Resident shall mean a person who can establish that he or she is a current resident of the City of Hartford pursuant to Section 2-934.
(Ord. No. 10-15, 6-8-15)

Sec. 2-932. Program administration.

A. The Mayor shall designate an administering agency to administer the Hartford City ID Card program. The administering agency shall develop and promulgate all rules necessary to carry out the program and shall oversee its implementation. The administering agency shall designate access sites where persons may pick up and submit applications for ID cards and shall also make applications available on-line. The administering agency, consistent with all federal, state, and local laws, shall provide language assistance to applicants for the Hartford City ID Cards to facilitate access thereto. The administering agency shall identify and implement measures to address the needs of limited English proficient individuals in the administration of the Hartford City ID Card program. Such measures shall include, but shall not be limited to, staff training, community outreach, and language assistance tools.
(Ord. No. 10-15, 6-8-15)

Sec. 2-933. Issuance.

A. *Card Design:* The Hartford City Card shall display, at a minimum, the cardholder's photograph, name, date of birth, address, an expiration date, and, at the cardholder's option, gender identity. The card shall be designed in such a manner as to deter fraud. The Administering Agency may, by rule, establish procedures to protect the addresses of victims of domestic violence or alternate requirements for applicants who lack a permanent address.

B. *Availability:* The Hartford City ID Card shall be available to any resident of Hartford without regard to race, color, creed, age, gender, sexual orientation, national origin, citizenship status, marital or partnership status, disability, lawful source of income, housing status, arrest or

conviction record, or status as a victim of domestic violence or of sex offenses or stalking, provided that such resident is able to meet the requirements for establishing his or her identity and residency as set forth in Section 2-934.

C. *Fee:* The fees for issuance of a Hartford City ID Card shall be ten dollars ($10.00) for adults and children eighteen (18) years and younger. The administering agency may adopt rules permitting residents who cannot afford to pay such fee to be granted a full or partial waiver of the fee.
(Ord. No. 10-15, 6-8-15)

Sec. 2-934. Eligibility.

A. *Requirements:* In order to obtain a Hartford City ID Card, an applicant must establish proof of identity and proof of Hartford residency.

B. *Documentation of Identity:* In order to establish identity, an applicant shall be required to produce one (1) or more of the following documents. Such documents shall be current or expired not more than five (5) years prior to the date of the application. The administering agency may determine, by rule, the weight to be given each document and may require that an applicant produce more than one (1) document to establish identity.

- United States or foreign passport;
- U.S. or foreign driver's license;
- U.S. state identification card;
- Social Security card;
- Certified copy of a U.S. or foreign birth certificate;
- U.S. or foreign military identification card;
- Current visa issued by a government agency;
- United States permanent resident card;
- U.S. individual taxpayer identification number (ITIN) authorization letter;
- Electronic Benefit Transfer (EBT) card;
- Consular identification card;
- Photo identification card with name, address, date of birth, and expiration date which has been issued by another country to its citizens or nationals as an alternative to a passport for re-entry to the issuing country;
- National identification card with photograph, name, address, date of birth, and expiration date;
- Any other documentation that the administering agency deems acceptable.

C. *Documentation of Residency:* In order to establish residency, an applicant shall be required to produce one (1) or more of the following documents, each of which must show the applicant's name and residential address located within the city and must be dated no more than sixty (60) days prior to the date such document is presented, except as otherwise indicated in this section. The administering agency may determine, by rule, the weight to be given each document and may require that an applicant produce more than one (1) document to establish residency. The administering agency shall create alternative methods by which individuals who are homeless can establish residency, not withstanding the lack of fixed address.

- Utility bill;
- Current residential property lease;
- Hartford property tax statement dated not more than one (1) year prior to the date application is submitted;
- Mortgage payment receipt for real property located within Hartford;
- Bank account statement;
- Proof that applicant has a minor child currently enrolled in a school located in Hartford;
- Employment pay stub;
- Jury summons or court order issued by a federal or state court;
- Federal or state income tax or refund statement dated not more than one (1) year prior to the date of application;
- Bill for homeowner, renter, health, life, or automobile insurance;

- Written verification issued by a homeless shelter located in Hartford confirming at least fifteen (15) days residency;
- Written verification issued by a hospital, health clinic, or social services agency located in Hartford confirming at least fifteen (15) days residency; or
- Any other documentation that the administering agency deems acceptable.

(Ord. No. 10-15, 6-8-15)

Sec. 2-935. Confidentiality of information.

A. *Retention of Documentation:* The City of Hartford shall not retain originals or copies of records provided by an applicant to prove identity or residency when applying for a Hartford City ID Card.

B. *Disclosure:* The City of Hartford shall not disclose personal information, obtained from applicant for a Hartford City ID Card, to any public or private entity or individual, including federal, state, or city immigration or law enforcement entities, unless required to do so by federal or state law.

(Ord. No. 10-15, 6-8-15)

Sec. 2-936. Access to services.

A. All City of Hartford agencies and officers shall accept the Hartford City ID Card as proof of identity and residency unless such acceptance is prohibited by state or federal law or unless the agency or officer has reasonable grounds to believe that the individual presenting the card is not the individual to whom the card was issued.

B. The City of Hartford shall seek to expand the benefits associated with the Hartford City ID Card, including encouraging eligible persons to apply for the card and promoting the acceptance of the Card by banks, public and private institutions, businesses, and other entities.

C. No City of Hartford agency or officer shall require the possession of a Hartford City ID Card where or when identification is not already required to obtain City services, provided, however, that agencies may require the possession of the Card to obtain benefits or privileges that are offered exclusively to those possessing a Hartford City ID Card as an incentive to apply for such Card.

(Ord. No. 10-15, 6-8-15)

Sec. 2-937. Counterfeit and fraudulent cards.

It is a violation of this section of the Municipal Code for any person or entity to do any of the following acts. A fine of one hundred dollars ($100.00) may be imposed for each violation.

i. To knowingly present false information in the course of applying for a Hartford City ID Card;

ii. To alter, copy, or replicate a Hartford City ID Card without the authority of the City of Hartford; or

iii. To use the Hartford City ID Card issued to another person, with the intent to cause a third person or entity to believe the holder of the Card is the person to whom the card was issued.

(Ord. No. 10-15, 6-8-15)

Chapter 2A

PENSIONS*

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*__Charter reference—__Pensions, Ch. XII.

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Sec. 2A-50. Administration.
Sec. 2A-51. Defined contribution plan.

ARTICLE I. GENERAL PROVISIONS

Sec. 2A-1. Purpose.

This chapter is intended to define the retirement rights of those employees of the City of Hartford (the "city"), the Hartford Public Library (the "library"), the Hartford Board of Education (the "board") and the pension commission who are members of the City of Hartford Municipal Employees' Retirement Fund, and the interests of such employees in the municipal employees' retirement fund, as such rights and interests exist on the date of adoption of this chapter pursuant to: Chapter XVII of the former Charter of the City of Hartford, designated Ordinance Number 28-67 and enacted November 7, 1967, as amended; Chapter 2, Article VI, Division 4 of the Municipal Code of the City of Hartford; and duly executed collective bargaining agreements between the city, library or board and labor unions representing city, library or board employees for purposes of collective bargaining under General Statutes section 7-467 et seq. This chapter is not intended to, and hereby does not, amend, or otherwise supplement or diminish those rights and interests.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-2. Retirement allowances for present city employees.

The rights of all persons in the service of the city, library, board or pension commission actually receiving or entitled to receive, prior to the effective date of this chapter, pensions or retirement allowances under the municipal employees' retirement fund, as provided in Chapter XVII of the Charter of the City of Hartford, designated Ordinance Number 28-67 and enacted November 7, 1967, as amended, or the retirement system for city employees, the police benefit fund or the firemen's relief fund, as provided in sections 233, 234 and 235 of "An Act Revising the Charter of the City of Hartford," approved June 24, 1941, as amended, are expressly validated and the city shall continue to pay such pensions or allowances in accordance with the respective provisions of said sections. All persons in the service of the city, library or board prior to the effective date of this chapter who were actually contributing to the retirement system for city employees, the police benefit fund or the firemen's relief fund, shall, unless they voluntarily withdraw from the same, continue to be members thereof, and the provisions of said sections 233, 234, and 235, as amended, shall remain in full force and effect for their benefit, but said sections shall not be applicable to any person entering the service of the city, library or board subsequent to the effective date hereof.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-3. Pension commission.

There shall be a pension commission of three (3) members none of whom shall hold any other office in the city government and one (1) of whom shall be a fellow or associate of either the Actuarial Society of America or the American Institute of Actuaries, appointed by the mayor, one (1) each year for a term of three (3) years commencing on the first Monday of February. Vacancies shall be filled by the mayor for the unexpired portion of the term. The city treasurer shall act as secretary of the pension commission and the personnel director shall attend all meetings of the pension commission but neither shall have a vote. The pension commission shall continue to administer the retirement system for city employees as provided in section 233 of "An Act Revising the Charter of the City of Hartford," approved June 24, 1941, as amended, and shall succeed to all the powers and duties of the board of police commissioners as trustees of the police benefit fund and of the board of fire commissioners as members of the board of trustees of the firemen's relief fund. The pension commission shall administer the municipal employees' retirement fund as hereinafter established. In addition to the three (3) voting members, there shall be one (1) nonvoting member of the pension commission elected by members of the municipal employees' retirement fund.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-4. Municipal employees' retirement fund; membership.

(a) There shall be a municipal employees' retirement fund (hereinafter referred to as the "MERF" or "fund").

(b) All persons who are members of the fund on the date of enactment of this chapter, all persons entering the classified service of the city as full time permanent employees subsequent to said date, all employees of the board, except teachers, and those employees of the library, unclassified employees of the city, and employees of the pension commission specified hereunder who so elect, except teachers, shall be members of the fund. Any other employee of the city, except a teacher, who is a member of the retirement system for city employees, the police benefit fund or the firemen's relief fund may become a member of the fund upon application and withdrawal from the retirement system for city employees, the police benefit fund or the firemen's relief fund, as the case may be, upon such conditions as to the payment of arrears of contributions as the pension commission may require.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-5. Definitions.

As used in this chapter, the following terms shall have the meanings ascribed thereto below, unless, and then only to the extent, a subsequent definition specifically provides for a different meaning with respect to any such term within the context of a particular section or subsection.

(1) "*Actual service*" shall consist, for purposes of establishing both vested (i.e. nonforfeitable) rights to, and eligibility to receive, any benefits provided herein which are conditioned upon the completion of such service, of the following:

a. Any period or periods during which a member provided service to the city, library or board by working a full time schedule and for which a member has contributed the requisite portions of his or her earnings to the fund;

b. Any of those periods referenced in subsections (1)b.1 through 5 below, during which a member provided service to the city, library or board by working anything less than a full time schedule, and for which a member has contributed the requisite portions of his or her earnings to the fund, including:

1. Periods of employment in a position in the unclassified service of the city for which the member has timely elected to receive credit for such service pursuant to the provisions of Ordinance Number 50-98;

2. Periods of employment with the city during which a member worked at least twenty (20) hours a week and was represented for collective bargaining purposes by the Municipal Lawyers Association;

3. Periods of employment during which a member is, or was, classified as a part time professional employee of the library;

4. Periods of employment during which a member is, or was, classified as a part time employee of the board; and

5. Periods of employment after returning from maternity or paternity leave, so long as the member worked a full time schedule immediately prior to such leave and subsequently returned to full time employment, provided that the member was eligible for, and timely elected to receive, credit for such service pursuant to the provisions of Ordinance No. 18-03.

c. Any period or periods of qualified USERRA service as defined in section 2A-7, regardless of whether a member has purchased or otherwise elected to receive USERRA credit pursuant to section 2A-7(d); and

d. Any period or periods during which an employee received weekly pay-

ments representing income replacement under the Workers' Compensation Act.

(2) A member's "*basic weekly pay*" shall mean the gross wages that a member would be paid per week based upon the rate of pay used to calculate the lump sum amounts paid to a member on account of accrued vacation and sick time upon his or her termination of employment.

(3) A "*break-in-service*" results from any absence, without pay, which lasts more than ninety (90) consecutive days, unless:

a. The break-in-service is longer than the period of the employee's prior service, and the member applies for, and is granted, a leave of absence, by the Hartford Court of Common Council;

b. The break-in-service is equal to or less than the period of the employee's prior service, and the member applies for, and is granted, a leave of absence by the Pension Commission, provided that an employee whose request for a leave of absence has been denied by the Pension Commission shall have the right, within thirty (30) days of the denial, to apply to the Court of Common Council, which shall make a de novo determination of the employee's request for a leave of absence;

c. The absence is caused by a disability that routinely requires the regular attendance of a physician;

d. The member was receiving weekly payments representing income replacement under the Worker's Compensation Act during the period of absence; or

e. The absence resulted from the member's provision of qualified USERRA service as defined in section 2A-7(a), and, after completing that service, the member returned immediately to city, library or board employment.

(4) "*Continuous service*" shall refer to any period of actual service that is not interrupted by a break-in-service.

(5) "*Creditable accrued sick time*" shall mean that period of time commencing with the member's effective date of retirement, for which such member would continue to receive his or her basic weekly pay if such member were to receive amounts paid thereto for accrued sick time upon his or her termination of employment on a weekly basis, as opposed to in a lump sum, without regard to whether any days in such time period are or have been designated holidays for active employees.

(6) "*Creditable accrued vacation time*" shall mean that period of time between the day following a member's last day of work and the date upon which such member's last day of work would have occurred had such member remained an active employee and received payments for his or her accrued vacation on a weekly basis, as opposed to a lump sum basis, both dates inclusive.

(7) "*Creditable accrued vacation and sick time*" shall mean the sum of a member's creditable accrued vacation time and creditable accrued sick time.

(8) "*Creditable actual service*" shall include all actual service except: (1) periods of qualified USERRA service for which the member has not purchased or received USERRA credit pursuant to section 2A-7(d); and (2) periods of absence in excess of ninety (90) days, even if such absences do not constitute a break in service for purposes of determining continuity of service, if during such absence the member was receiving neither weekly payments representing income replacement under the Workers' Compensation Act nor earnings from

which employee contributions are properly deducted pursuant to the provisions of this chapter.

(9) A member's "*date of retirement*" shall be established by an application signed by both the member's appointing officer and either the mayor (or his or her designee), or the superintendent of schools (or his or her designee) for employees of the board of education. Payment of a member's retirement allowance shall be subject to the approval of the pension commission as to the member's eligibility and the amount of his or her allowance.

(10) *Employee references.* For purposes of this chapter, the following terms shall be utilized in referencing employees.

a. *"NBU-GG employees"* shall refer to those nonbargaining unit general government employees of the city who are not: (a) sworn police officers or firefighters, (b) board employees, or (c) library employees.

1. *"Pre-2011 NBU-GG employees"* shall refer to those NBU-GG employees whose initial date of hire with the City is before January 1, 2011, who are members of the fund.

2. *"Post-2011 NBU-GG employees"* shall refer to those NBU-GG employees whose initial date of hire with the City is on or after January 1, 2011, but before July 1, 2017, who are members of the fund.

3. *"Post-2019 NBU-GG employees"* shall refer to those NBU-GG employees whose initial date of hire with the City is on or after July 1, 2019, who shall not be eligible to be members of the fund.

b. "*CWA employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by the Communication Workers of America.

c. "*CHPEA employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by the City of Hartford Professional Employees' Association.

1. "*Pre-1997 CHPEA employees*" shall refer to those CHPEA employees who were hired into the CHPEA bargaining unit before October 1, 1997.

2. "*Post-1997 CHPEA employees*" shall refer to those CHPEA employees hired into the bargaining unit on or after October 1, 1997 but before June 23, 2003.

3. "*2003 CHPEA employees*" shall refer to those CHPEA employees whose initial date of employment with the city is on or after June 23, 2003.

d. *"HMEA employees"* shall refer to those employee members of the fund who are represented for collective bargaining purposes by the Hartford Municipal Employees' Association ("HMEA").

1. *"Post-2003 HMEA employees"* shall refer to those HMEA employees whose initial date of hire with the city is on or after July 1, 2003.

2. *"Pre-2003 HMEA employees"* shall refer to those HMEA employees whose initial date of hire with the city is before July 1, 2003.

3. *"ISD HMEA employees"* shall refer to those members of the fund to whom all of the following criteria apply:

(i) Where HMEA employees, employed in the city's former Information Services Department ("ISD"), immediately prior

to their layoff or retirement from city employment;

(ii) Whose job duties in the ISD were transferred to the city's Metro Hartford Information Services Department ("MHIS");

(iii) Were not offered comparable employment in MHIS within twenty-four (24) months following their layoff or retirement;

(iv) Whose last day worked with the city due to subsection (ii), above was between the dates of July 1, 2002 and May 30, 2003; and

(v) Are currently receiving a retirement allowance from the fund as of June 9, 2008, the date on which the court of common council adopted a resolution affirming the terms of a settlement agreement between HMEA and the city.

e. "*MLA employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by the City of Hartford Municipal Lawyers' Association.

f. "*NBU-P/F employees*" shall refer to those employee members of the fund who are sworn police officers not represented for collective bargaining purposes by the Hartford Police Union and those employee members of the fund who are firefighters who are not represented for collective bargaining purposes by Local 760, International Association of Firefighters.

1. "*Pre-1997 NBU-P/F employees*" shall refer to those NBU-P/F employees who were employed as sworn police officers or firefighters before December 31, 1996.

2. *"Post-1997 NBU-P/F employees"* shall refer to those NBU-P/F employees who were employed as sworn police officers or firefighters on or after December 31, 1996 but before January 1, 2011.

3. *"2011 NBU-P/F employees"* shall refer to those NBU-P/F employees whose initial date of hire with the City is on or after January 1, 2011.

g. "*HPU sworn officers*" shall refer to those employee members of the Fund who are sworn police officers represented for collective bargaining purposes by the Hartford Police Union.

1. "*Post-1999 HPU sworn officers*" shall refer to those HPU sworn officers hired after July 1, 1999.

2. "*Pre-1999 HPU sworn officers*" shall refer to those HPU sworn officers hired on or before July 1, 1999.

h. "*HPU non-sworn employees*" shall refer to those employee members of the Fund who are not sworn police officers but are represented for collective bargaining purposes by the Hartford Police Union.

i. "*Local 760 employees*" shall refer to those employee members of the Fund who are represented for collective bargaining purposes by Local 760, International Association of Firefighters.

1. "*Post-2003 Local 760 employees*" shall refer to those Local 760 employees hired into the bargaining unit on or after July 1, 2003.

2. "*Pre-2003 Local 760 employees*" shall refer to those Local 760 employees hired into the bargaining unit before July 1, 2003.

j. "*SCGA employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by the School Crossing Guards' Association.

k. "*NBU-HPL employees*" shall refer to those nonbargaining unit employees of the library who are members of the fund.

l. "*Local 1716-HPL employees*" shall refer to those employees of the library who are represented for collective bargaining purposes by Local 1716 who are members of the fund.

m. "*NBU-BOE employees*" shall refer to those nonbargaining unit employees of the board who are members of the fund.

n. "*Local 78 employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 78, Hartford Schools Support Supervisors.

o. "*Local 82 employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 82, Hartford Education Support Personnel.

p. "*Local 818 employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 818, Building and Grounds Supervisors.

q. "*Local 1018A/B employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 1018A/B, Hartford Federation of School Health Professionals who are members of the fund.

r. "*Local 1018C employees*" shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 1018C, Hartford Federation of School Secretaries.

s. "*Local 1018D employees*" shall refer to those employee members of the Fund who are represented for collective bargaining purposes by Local 1018D, Hartford Federation of Corridor Supervisors.

t. "*Local 2221 employees*" shall refer to those employee members of the Fund who are represented for collective bargaining purposes by Local 2221, Hartford Federation of Paraprofessionals.

u. *"HFCDA-BOE"* shall refer to those employee members of the fund who are represented for collective bargaining purposes by Local 1018F, AFT, AFL-CIO.

(11) A member's "*effective date of retirement*" shall be the day after the period of time following such member's last day of work which is equal to his or her creditable accrued vacation time.

(12) A member's "*final average pay*" shall be based upon his or her gross earnings only to the extent that: (1) the provisions of this chapter specifically provide for his or her final average pay to be calculated in that manner; and (2) such final average pay is calculated in accordance with subsection (14). Unless, and then only to the extent, this chapter provides that a member's final average pay is to be based upon his or her gross earnings over a stated period of time, a member's final average pay shall not include any amounts paid to such member upon or by reason of his or her termination of employment either for accrued sick time or as a severance payment.

(13) The "*final average pay period*" for each member shall mean those total number of such member's final years of service

from which some subset thereof is to be used for purposes of determining such member's final average pay. Thus, for example, if a member is entitled to have his or her pension benefit calculated on the basis of his or her highest two (2) of his or her last five (5) years of gross earnings, then such member's final average pay period is such five (5) year period. Except as otherwise provided in subsection (14) below, a member's final average pay period shall end on the day prior to his or her effective date of retirement.

(14) Commencing on August 1, 1993, a member's "*gross earnings*" with respect to any year of service shall mean and include all amounts payable by the city directly to such member for services rendered by such member to the city (including, but not limited to, any and all of its agencies, commissions, boards, offices and departments) within such time period which amounts shall include, but not necessarily be limited to, such member's basic salary, payments for or in lieu of overtime, longevity pay, and retroactive pay increases, as and to the extent each is attributable to such services, but, except as provided in this subsection below, shall not include either any amounts paid for services rendered in some other time period or any payments made to a member upon and by reason of his or her termination of employment (including, but not limited to any and all severance payments and lump sum payments for accrued vacation and sick time).

Calculation of gross earnings. Commencing on August 1, 1993, any member whose final average pay is based upon his or her gross earnings over a stated period of time shall have his or her gross earnings adjusted to account for any lump sum payments made to such member for accrued vacation and sick time upon his or her termination of employment by, and only by, adjusting such member's final average pay period such that the last day of that period corresponds to what such member's last day of work would have been had such member continued to work beyond his or her actual last day of work for that period of time equal to his or her creditable accrued vacation and sick time; providing however, that nothing herein shall be construed to permit or require the adjustment of the length of time included within a member's final average pay period. Thus, expressed as a formula, and subject to the foregoing provisos, a member whose final average pay is based on gross earnings shall have his or her final average pay period adjusted as follows:

Last day of final average pay period	=	Last day of work	+	Creditable accrued vacation and sick time

(15) Commencing on August 1, 1993, a member's "*last day of work*" prior to retirement shall be that date designated by the city as the last day on which he or she was expected to provide services to the city, which, in any case, shall not include any period of time that an employee is carried on the city's books and records as an employee to account for the lump sum payment of accrued vacation time to such member in connection with his or her termination of employment with the city. A member's bona fide absence from work on any date under and in accordance with the city's personnel rules and/or such member's collective bargaining agreement, as applicable, shall not be considered a basis for determining that such member was not expected to provide services to the city on such date.

(16) "*Member*" shall mean an individual who, by virtue of his or her employment with the city, library or board:

a. Is, or was, eligible to participate in the fund;

b. Has in fact participated in the fund by satisfying applicable employee contributions; and

c. Is either: (1) receiving an allowance provided hereunder; (2) eligible to receive an allowance provided hereunder at some future date certain; (3) continuing to provide employee contributions to the fund as provided hereunder; or (4) no longer providing employee contributions but has not withdrawn such contributions pursuant to the terms hereof.

(17) "*Qualified surviving spouse*" shall mean the surviving spouse of a member who shall have been married to the member prior to his or her retirement, which, for purposes of this definition only, shall be deemed to mean the date of termination of active employment, including any service attributable to creditable accrued vacation time.

(18) *"401(a) Plan Participants"* shall refer to all Post-2019 NBU-GG employees who elect to contribute to the City's 401(a) plan, pursuant to Section 2A-46.

(Ord. No. 02-05, 3-14-05; Ord. No. 01-07, 1-22-07; Ord. No. 22-08, 9-8-08; Ord. No. 03-11, 1-10-11; Ord. No. 04-11, 1-10-11; Ord. No. 20-15, 12-28-15; Ord. No. 08-19, 5-28-19)

Sec. 2A-6. Contributions.

(a) *City contributions.* The city shall pay annually into the fund such proportion of the pay of all members employed by the city, library or board as may be determined from time to time by the pension commission on sound actuarial principles to be necessary in addition to the contributions by members to provide future pensions based on service rendered by members. The pension commission shall make a complete actuarial study of the experience of the retirement system established by this chapter at intervals of no more than five (5) years and shall thereupon readjust the contributions to be made by the city.

(b) *Employee contributions.* Employees participating in the fund shall contribute to the fund in the amounts and manner as may hereafter be required in this chapter.

(1) *Section 414(h)(2) pickup plan—The City of Hartford pickup of mandatory retirement contributions to the fund.* The city hereby establishes a 414(h)(2) pickup plan (the "plan") under section 414(h)(2) of the Internal Revenue Code (the "code") subject to and in accordance with the terms set forth in this subsection (b)(1). The purpose of the plan is to enable certain employees' mandatory contributions to the fund to be made in such a manner that the value of such contributions are neither subject to the payment of federal income taxes until such contributions are distributed to such employees, nor withholding of such taxes when such contributions are made, all as and to the extent permitted by the code. The employee contributions of those members who are expressly identified as "414(h)(2) plan participants" shall be governed by this subsection (b)(1).

a. "414(h)(2) plan participants" shall refer to: CHPEA employees; CWA employees; HMEA employees; HPU sworn officers; HPU non-sworn employees; Local 78 employees; Local 760 employees; Local 1716-HPL employees; MLA employees; NBU-BOE employees; NBU-GG employees; NBU-HPL employees; and NBU-P/F employees.

b. The city shall pick up and pay all contributions which are required to be made to the fund by section 414(h)(2) plan participants in respect of earnings earned by such employees. Nothing herein shall relieve any employee from any obligation to make any contributions to the fund, it being the intent and effect hereof instead, that the city shall simply pay each 414(h)(2)

plan participant's contributions to the fund in lieu of such employee paying such contributions.

c. In consideration of the city's picking up such contributions, section 414(h)(2) plan participants shall have their earnings reduced by an amount equal to the contributions so picked up by the city. Additionally, 414(h)(2) plan participants shall not have the option of electing to receive their pension contributions directly rather than having such amounts paid by the city to the fund. Other than for federal income tax and withholding purposes, however, all employee pension contributions so picked up by the city on behalf of any employee shall be considered to be included in such employee's annual gross salary and shall for all purposes of this chapter and the fund be deemed to be included in such employee's earnings and otherwise be treated in the same manner and to the same extent as employee pension contributions made prior to January 10, 1993.

d. Notwithstanding anything set forth in section 2A-4 or any other provision of this chapter, to the contrary: (1) on or after January 10, 1993, each and every NBU-GG employee who is a member of the unclassified service also shall be a member of the fund, unless (i) he or she has elected not to be a member of such fund prior to said date, or (ii) if he or she becomes a member of the unclassified service after January 10, 1993, he or she elects not to be a member of such fund within thirty (30) days of becoming a member of such service; and (2) any election not to be a member of the fund which is made by, or is effective with respect to, any nonbargaining unit employee who is a member of the unclassified service on or after January 10, 1993 shall be irrevocable, unless (and then, only to the extent) he or she becomes a classified employee, in which case, he or she shall thereby become a member of such fund.

e. Notwithstanding anything set forth in section 2A-4 or any other provision of this chapter, to the contrary, all members of any collective bargaining unit (whether classified or unclassified) whose collective bargaining agreement provides for the implementation of a 414(h)(2) plan, and who otherwise are eligible to participate in the fund, shall be members of such fund.

f. Notwithstanding anything set forth in this subsection (b)(1), or in any other provisions of this chapter to the contrary, any member of the fund who makes contributions pursuant to the provisions of section 2A-7 or section 2A-8 shall not have such amounts picked up by the city pursuant to these provisions.

(2) *Participation in section 125 plan.* Notwithstanding any other provisions of this chapter to the contrary, whenever any contributions to the fund by any member are required to be made based upon a percentage of the employee's earnings on which Social Security taxes are paid (hereinafter "Social Security wages"), or any member's pension benefits are based upon such member's Social Security wages, and in either event, such member is or was a participant in any plan offered by the city under section 125 of the Internal Revenue Code (the "code") or any like provisions of the code whereby the employee's earnings on which Social Security taxes are paid, are or were reduced by such employee's contributions under such plan (hereinafter, a "pre-tax benefit plan"), such contributions shall be made and such benefits shall be provided in the same amounts and in the same manner as if such member was not a participant in such pre-tax benefit plan; it being the intent

hereof that any member's participation in a pre-tax benefit plan shall not have any effect on the timing and amounts of such member's contributions to or benefits from the fund. Without limiting the generality of the foregoing, any member who participates in a pre-tax benefit plan whose contributions to the fund are calculated based upon such member's Social Security wages shall contribute to the fund in those amounts and in that manner such that (i) such member's Social Security wages shall be deemed to include any amounts not subject to taxation by reason of such member's participation in such pre-tax benefit plan, and (ii) any increased contributions which otherwise are required to be made by such member in any given year on the balance of such member's earnings on which Social Security taxes are not paid (hereinafter, "excess wages"),

shall commence only when such member has earned that amount when, but for such member's participation in a pre-tax benefit plan, such member otherwise would be required to begin making such increased contributions, but thereafter shall be made in respect of the total of such member's social security wages and his or her excess wages. Additionally, if any member's pension benefits are based upon such member's final average pay and/or social security wages, such pay and wages shall include any amounts not subject to taxation by reason of such member's participation in a pre-tax benefit plan.

(3) *Interest on employee contributions.* Interest on employee contributions shall be credited to members only, if at all, to the extent as may hereafter be provided in this chapter.

(4) *Refund of employee contributions.* Section 2A-6(b)(4) employees shall have their employee contributions to the fund refunded as provided hereunder.

a. "Section 2A-6(b)(4) employees" shall mean: CWA employees; CHPEA employees; HMEA employees; HPU nonsworn employees; Local 78 employees; Local 82 employees; Local 818 employees; Local 1018A/B employees; Local 1018C employees; Local 1018D employees; Local 1716-HPL employees; Local 2221 employees; MLA employees; NBU-BOE employees; NBU-GG employees; NBU-HPL employees; those NBU-P/F employees who have elected to receive NBU-GG benefits pursuant to section 2A-30; and SCGA employees.

b. Upon separation from city service, the interest and contributions credited to a section 2A-6(b)(4) employee are payable to that employee except that no such payment will be made to an employee granted a normal, early or disability retirement allowance.

c. In case of the death of a member before his or her rights to and/or interests in any normal or early retirement allowance have vested, or in the case of the death of the member and, as applicable, his or her qualified surviving spouse, after the member's rights to and/or interests in any normal or early retirement allowance have vested but before any such allowance has been paid to the member or his or her surviving spouse, the interest and contributions credited to the subject employee are payable to the beneficiary or beneficiaries, if any, named by such member. In case of the death of a member and, as applicable, his or her qualified surviving spouse, after the member or his or her qualified surviving spouse has commenced receiving a retirement allowance provided hereunder, the contributions credited to the subject employee, less any retirement allowance paid to the member or a qualified surviving spouse, are payable to the beneficiary or beneficiaries, if any, named by such member.

If no named beneficiaries survive the member, or the qualified surviving spouse of the member and his or her spouse or domestic partner, payment shall be made to the executors or administrators of such member or his or her qualified surviving spouse, as the case may be, except that, if the amount is less than one thousand dollars ($1,000.00), the refund may be made, at the option of the pension commission, in accordance with the terms of section 45-266 of the General Statutes or any amendment thereto.

d. All payments of interest and/or contributions provided hereunder shall be made upon request to, and order of, the pension commission. If no

request is made within ten (10) years, such interest and/or contributions shall revert to the fund.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-7. Pension rights upon reemployment after periods of service in the uniformed services.

(a) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) "*Service in the uniformed services*" has the same meaning ascribed to that phrase in the Uniformed Services Employment and Reemployment Rights Act of 1994, as amended ("USERRA"), 38 U.S.C. section 4301 et seq., and means the performance of duty on a voluntary or involuntary basis in a uniformed service under competent authority and includes (without expansion or limitation) active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, and a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty.

(2) The term "*uniformed services*" has the same meaning ascribed to that phrase in USERRA and includes (without expansion or limitation) service in: any branch of the Armed Forces of the United States; the Army National Guard and the Air National Guard; the commissioned corps of the Public Health Service; and any other category of service designated as uniformed service by the President of the United States in the time of war or national emergency.

(3) "*Qualified USERRA service*" consists of any service in the uniformed services by any member for or by reason of which the city is required under USERRA to permit said member to provide pension service credit or other rights with the fund upon his or her reemployment with the city. In no event shall qualified USERRA service include disqualified USERRA service.

(4) "*Disqualified USERRA service*" means any service in the uniformed services from or for which a member (A) left on other than honorable conditions (including, but not limited to, under or with a dishonorable or bad conduct discharge), or (B) was dismissed or dropped from the rolls pursuant to 10 U.S.C. sections 1161 (a) or (b).

(5) A member's "*effective USERRA earnings*" shall be (A) the total earnings (including, but not limited to, overtime pay, private duty pay, holiday pay, sick leave and vacation pay, and shift differential pay) the member would have received but for his or her being absent during the period of his or her qualified USERRA service, or (B) in the event that the pension commission cannot determine that amount with reasonable certainty, the product of (i) such member's USERRA effective weekly rate of pay, times (ii) the number of weeks and parts thereof during which said member was absent performing qualified USERRA service.

(6) The "*prescribed time period*" in which any contributions hereunder must be paid shall equal the lesser of (A) three (3) times the period of the member's qualified USERRA service, or (B) five (5) years, commencing, in either case, with the member's USERRA reemployment date.

(7) A member's "*USERRA effective weekly rate of pay*" shall equal the quotient of (A) the member's total earnings during his or her USERRA measuring period, divided by (B) the number of weeks and parts thereof in the member's USERRA measuring period.

(8) A member's "*USERRA measuring period*" shall mean that period of time, expressed in weeks, but not exceeding fifty-two (52) weeks in length, during which the member was employed by the city immediately prior to his or her USERRA commencement date.

(9) A member's "*USERRA commencement date*" is that day following his or her last day of employment with the city before he or she began his or her qualified USERRA service.

(10) "*USERRA reemployment date*" means that date on which a member is first reemployed by the city pursuant to or otherwise in accordance with USERRA after having performed any qualified USERRA service.

(b) Effective December 12, 1994, any member who leaves the service of the city in order to serve in any of the uniformed services shall, upon submission of satisfactory evidence of such uniformed service to the pension commission, have his or her actual service include his or her qualified USERRA service upon reemployment by the city, library or board.

The period of any actual service consisting of qualified USERRA service hereunder shall, regardless of whether the member has purchased or received USERRA credit pursuant to subsection (c) below, be combined with those periods of the member's other continuous service occurring immediately before and after the member's qualified USERRA service, and, as combined, deemed to constitute one (1) period of continuous service for purposes of establishing both vested (i.e. nonforfeitable) rights to, and eligibility to receive, any benefits provided herein which are conditioned upon the completion of such continuous service.

(c) Except as otherwise provided in subsection (d), no member shall have his or her qualified USERRA service constitute creditable actual service (and no period of such service shall therefore be included in the computation of any retirement allowance based upon the provision of a specified percentage of final pay for each year of creditable service).

(d) Effective December 12, 1994, any member who leaves the service of the city in order to serve in any of the uniformed services may, for purposes of computing the amount of any retirement allowance provided in this chapter that is based upon the provision of a specified percentage of final average pay for each year of creditable service, have his or her qualified USERRA service constitute creditable actual service upon reemployment by the city, library or board by purchasing or otherwise requesting pension credit for such service (hereinafter "USERRA credit") in the manner prescribed below in subsections (d)(1) through (4).

(1) Any NBU-GG employee, NBU-BOE employee, NBU-P/F employee who has elected pursuant to section 2A-30 to receive those benefits provided to NBU-GG employees, or NBU-HPL employee wishing to receive USERRA credit for their qualified USERRA service must purchase such credit by paying into the fund such amounts as are equivalent to those which the member would have contributed in the form of employee contributions during the period of his or her qualified USERRA service had the member, during that period of time, been employed by the city and paid his or her effective USERRA earnings as herein defined.

Any contributions required to be made by any member pursuant to this subsection (c)(1) may be paid in a lump sum, or, at the option of the member, in various increments, prior to the expiration of the prescribed time period. No contributions which are required to be made by any member pursuant to this subsection (c)(1) will be "picked up" and paid by the city pursuant to the provisions of section 2A-6(b)(1).

(2) Any member wishing to receive USERRA credit for their qualified USERRA service who is not specifically required in subsection (d)(1) herein to purchase such credit may receive USERRA credit for their qualified USERRA service upon submission of satisfactory evidence of such uniformed service to the pension commission.

(3) Without limiting the generality of the foregoing, no member shall be entitled to purchase or receive USERRA credit for, or have his or her creditable actual service include, any period before or after his or her qualified USERRA service during

which he or she has, but fails to exercise or delays in exercising, his or her reemployment rights under USERRA.

(4) Any qualified USERRA service for which USERRA credit is provided hereunder shall constitute creditable actual service as defined in section 2A-5(8).

(e) A member's eligibility to have his or her actual service include qualified USERRA service, to have his or her creditable actual service include USERRA service, and/or for any other rights provided under this section shall be established by such documentary and/or other evidence as is reasonably required for that purpose by the pension commission consistent with the requirements of 38 U.S.C. section 4312(f).

(f) The provisions of this section are intended to implement, and only implement, the requirements of USERRA. Accordingly, no right or benefit not otherwise required to be provided to any member with regard to his or her rights and/or benefits in or with respect to the fund shall be deemed to be conferred hereby. Likewise, in the event any provision of this section conflicts with or is otherwise in contravention of the requirements of USERRA, the provisions of USERRA shall control. The rights and benefits conferred by this section shall be in addition to any other rights or benefits any member has or may have to include within his or her year(s) of creditable service any military service under any other provision governing the accrual or payment of benefits to or from the fund (hereinafter, for purposes of this subsection only, "other military service"), providing, however, that no member shall be entitled to have his or her year(s) of creditable service include such other military service (in whole or in part) under any of said provisions for any period of military or other service to the extent such service is included in the member's "creditable actual service" pursuant to the provisions of this section.

(g) Nothing in this section shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter. In the event that any member's retirement allowance would exceed any such limit if he or she were credited service as provided hereunder, the fund shall refund such member any amounts provided by the member hereunder to effectuate such credit, with interest at the rate of three (3) percent per annum from the date such contributions were fully paid to the date they are refunded by the pension commission.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-8. Credited service.

(a) For purposes of calculating the amount of any retirement allowance based upon the provision of a specified percentage of final average pay for each year of creditable service, a member's year(s) of creditable service may include, in addition to creditable actual service, such service as may be credited pursuant to the provisions of this section. Any additional pension service credited to any member pursuant to this section shall not be used for purposes of establishing either a vested (i.e. nonforfeitable) right to, or eligibility for, any benefits provided herein which are conditioned upon the completion of a specified period of actual service, but instead shall be used as additional service credits for eligible members who are qualified or become qualified for a retirement allowance under this chapter.

(1) *Transferred service.* Any person who has not attained his or her sixtieth birthday and who has been credited with service in, and is a member of, the employees' retirement system of the federal government of the United States or the retirement system of a state or any political subdivision thereof within the United States which is being operated on an actuarial basis with contributions being made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on his or her account may, upon the approval of the pension commission, have his or her year(s) of creditable service include the length of such service by transferring his or her membership to the fund upon

accepting employment with the city, library or board, provided, however, such transfer may not become effective unless an appropriate agreement of reciprocity is executed. In order to have his or her year(s) of creditable service include such transferred service, the member shall pay or cause to be paid into the fund the amount of money required, as determined by the pension commission to purchase in full such credited service. In no event shall there be any city contribution made toward the purchase of such transferred service. Whenever such employee enters the fund, he or she must elect within thirty (30) days of entrance into said fund to purchase transferred service credits. If the pension commission approves the payment of money due on an extended payment basis, interest at a rate to be determined by the pension commission, but not exceeding six and one-half (6½) percent per annum, may be charged. No transferred service credits under the fund shall be granted, however, for any period of prior service for which the employee is either receiving a retirement benefit or has retained a vested benefit.

(2) *Prior military service.* A member who, prior to his or her date of employment with the city, served in any branch of the armed forces of the United States, during any part of the times set forth in section 27-103 of the General Statutes of Connecticut may have his or her year(s) of creditable service include the length of such prior military service, including periods before or after said times. Any member electing to have his or her year(s) of creditable service include such service must: (1) provide written notice to the pension commission of such election by the date(s) specified in the provisions defining said member's creditable year(s) of service, if any; and (2) make contributions to said fund for all or any part of such service, not to exceed four (4) years. Such contributions shall be at the same rate as said employee was charged when he or she first became a member of the fund with interest at the rate of seven (7) percent per annum and shall be paid by the date(s), if any, specified in the provisions defining said member's year(s) of creditable service.

(3) *Sick exchange credit.* Section 2A-8(a)(3) employees shall, to the extent required hereunder, have their year(s) of creditable service include credit for sick leave exchange (hereinafter "*sick exchange credit*").

a. "*Section 2A-8(a)(3) employees*" shall mean: Pre-1997 CHPEA employees; CWA employees; pre-2003 HMEA employees; pre-1999 HPU sworn employees, if, and then only to the extent, such employees elect to make such exchange; Local 760 employees; MLA employees; Pre-2011 NBU-GG employees; those Pre-1997 NBU-P/F employees who elect, pursuant to section 2A-30 to receive those benefits provided Pre-2011 NBU-GG employees; those Pre-1997 NBU-P/F employees who have not elected to receive those benefits provided to NBU-GG employees if, and then only to the extent, such employees are otherwise entitled to, and do so, elect, to make such exchange; and SCGA employees.

b. If any section 2A-8(a)(3) employee has at least twenty (20) days of accumulated, but unused, sick leave upon his or her retirement and the retirement allowance that otherwise would be payable to such employee in the absence of this subsection (a)(3) would be less than the maximum amount of final average pay to which the employee is otherwise entitled under his or her normal retirement provisions, (hereinafter, for purposes of subsection (a)(3) a "qualifying retiree"), then the employee's year(s) of creditable service, and the number of days of accumulated, but unused, sick leave for which such person otherwise would be entitled to be paid upon retirement, shall be ad-

justed in accordance with the terms of this subsection (a)(3). Such adjustments shall be effected by increasing the amount of the qualifying retiree's year(s) of creditable service by one (1) whole year of creditable service for each twenty (20) days of accumulated, but unused, sick leave that were credited to such person's account prior to the calculation of any amounts that otherwise would have been or will be paid to such person pursuant to the sick pay reduction formula applicable to that person, up to a maximum of four (4) whole years of creditable service or the maximum percentage of final average pay to which the employee is otherwise entitled, whichever results first. Likewise, the amount of accumulated sick leave for which the employee otherwise is entitled to be paid a lump sum upon retirement shall be concomitantly reduced by twenty (20) days for each additional year of creditable service that is provided to such retiree as aforesaid. Fractional years of creditable service shall not be awarded pursuant to this provision.

c. As an example, assume that a qualifying retiree, as of his or her last day paid, is working a thirty-five (35) hour work week and being paid a salary of one thousand dollars ($1,000.00) per week (or two hundred dollars ($200.00) per day). Assume further that he or she has one hundred (100) days of accumulated sick leave and otherwise is entitled to be paid fifty (50) percent of the value of such leave upon retirement or ten thousand dollars ($10,000.00) (i.e. (100 days × 50%) × $200.00 a day). Assume further that the retiree's normal retirement allowance amounts to two and one-half (2.5) percent of final average pay to a maximum of eighty (80) percent of final average pay. Finally, assume that the retiree has thirty (30) years of creditable service and, thus, pursuant to the above, otherwise would be entitled to a normal retirement allowance equal to seventy-five (75) percent of his or her final average pay (i.e. 30 years × 2.5% per year). In that case, the retiree shall be credited with an additional two (2) whole years of creditable service and the number of days of accumulated sick leave for which he or she will be paid upon retirement will be reduced by forty (40) days. As a result, such retiree's normal retirement allowance shall equal eighty (80) percent of the retiree's final average pay (i.e. 75% + (2 years × 2.5% per year)) and the amount of his or her lump sum payment on account of accumulated sick leave will equal six thousand dollars ($6,000.00) (i.e. (100 days - 40 days = 60 days × 50%) × $200.00 per day).

(4) *Prior qualified non-city service credit.* Section 2A-8(a)(4) employees may have their year(s) of creditable service include prior qualified non-city service pursuant to the provisions of this subsection (a)(4).

a. *Definitions.* For purposes of this subsection (a)(4) the following terms shall have the meanings ascribed thereto below:

1. "*Qualified non-city service*" shall mean that period of any service provided to a qualified non-city organization as a full time employee (which, in the case of government service shall also include any service as an elected or appointed official) (A) for which said member is neither receiving a retirement benefit nor has retained a vested benefit, (B) during which he or she did not hold any office or position with the city or any other qualified non-city organization for which such member seeks

to be or has been given credit hereunder, and (C) for which said member, if his or her post non-city service employment date is on or after October 1, 1998, neither is, has been, nor will become, eligible to receive any credit pursuant to subsection (a)(1) governing transferred service credits.

2. A "*qualified non-city organization*" shall mean the State of Connecticut or any political subdivision thereof and the Hartford Housing Authority.

3. A member's "*post non-city employment date*" shall be that date on which he or she was first employed by the city after accruing the qualified non-city service for which he or she seeks to be given credit pursuant to subsection (a)(4).

4. A member's "*qualified non-city earnings*" shall equal the greater of (A) the actual earnings received by such member from the qualified non-city organization for which, and during the time, he or she provided the service sought to be included in the member's year(s) of creditable service, or (B) such member's effective non-city earnings during such period.

5. A member's "*effective non-city earnings*" shall equal such member's actual earnings as a city employee during the first year following his or her post non-city employment date (hereinafter, his or her "post non-city earnings"), except when, and then only if, such member is a returning member, in which case, such member's effective non-city earnings shall equal the lesser of (A) his or her post non-city earnings, or (B) the average of (i) such member's post non-city earnings, and (ii) his or her earnings during the last year in which he or she served as a city employee before accruing the qualified non-city service at issue.

6. A "*returning member*" shall mean any member who, pursuant to section 2A-9 or any ordinance enacted by the court of common council, has or will have his or her year(s) of creditable service include at least one (1) year of prior city service in the computation of his or her retirement allowance.

7. A member shall be deemed to have "*prior city service*" if he or she was a member of the fund prior to providing the service to the qualified non-city organization for which he or she may be given credit hereunder.

8. "Section 2A-8(a)(4) employees" shall mean: CWA employees; NBU-GG employees; those NBU-P/F employees who had previously elected pursuant to section 2A-30 to receive those benefits provided to NBU-GG employees.

b. Any section 2A-8(a)(4) employee whose effective date of retirement occurs on or after October 1, 1998, shall have the option to have his or her year(s) of creditable service include up to four (4) years of any of his or her qualified non-city service. A section 2A-8(a)(4) employee who elects to exercise this option must provide written notice of such election by the date(s) specified in the provisions defining said member's creditable year(s) of service, if any, and shall thereafter pay the fund an amount equal to the contributions required pursuant to subsection (a)(4)c below (hereinafter, his or her

"non-city service contribution") in the manner and on the terms specified by the pension commission.

c. Any section 2A-8(a)(4) employee who elects to have his or her year(s) of creditable service include qualified non-city service shall make a contribution to the fund therefore equal to the sum of (1) the product of his or her qualified non-city earnings times the contribution rate which was in effect for such member as of his or her post non-city employment date, and (2) interest on the amount derived pursuant to the foregoing calculation at the rate of seven (7) percent per annum from said post non-city employment date to the date the pension commission approves such member's application to purchase any credits hereunder. All such amounts shall be paid to the fund in the manner and on the terms specified by the pension commission, providing, however, that no contributions which are required to be made pursuant to this subsection (a)(4) shall be "picked-up" and paid by the city pursuant to the provisions of section 2A-6(b)(1) of this chapter.

d. Notwithstanding the provisions of subsection (a) to the contrary, once a section 2A-8(a)(4) employee, other than a MLA employee, has obtained a vested interest in his or her retirement benefit, that period of such member's qualified non-city service which the member is otherwise entitled to include, pursuant to the provisions of this section, in his or her creditable year(s) of service, shall also be considered actual service for the limited purpose of determining such member's eligibility to receive his or her early or normal retirement allowance. Notwithstanding any other provision of this chapter to the contrary, in no event shall a member's qualified non-city service constitute creditable actual service.

(5) *Prior qualified Hartford Economic Development Commission service credit.* Section 2A-8(a)(5) employees may have their year(s) of creditable service include prior qualified Hartford Economic Development Commission service pursuant to the provisions of this subsection (a)(5).

a. *Definitions.* For purposes of this subsection (a)(5) the following terms shall have the meanings ascribed thereto below:

1. "*Qualified Hartford Economic Development Commission service*" shall mean that period of any service provided to the Hartford Economic Development Commission as a full time employee pursuant to former Code Sec. 28-156 (repealed on September 12, 2005) (A) for which said member is neither receiving a retirement benefit nor has retained a vested benefit and (B) during which he or she did not hold any office or position with the city, any other qualified non-city organization as defined in Section 2A-8(a)(4)a.2., or the federal government of the United States or any State or political subdivision thereof within the United States for which such member seeks to be or has been given credit under Section 2A-8.

2. A member's "*post Hartford Economic Development Commission employment date*" shall be that date on which he or she was first employed by the city after accruing the qualified Hartford Economic Development Commission service for which he or she seeks to be given credit pursuant to subsection (a)(5).

3. A member's "*qualified Hartford Economic Development Commission earnings*" shall equal the

greater of (A) the actual earnings received by such member from the Hartford Economic Development Commission for which, and during the time, he or she provided the service sought to be included in the member's year(s) of creditable service, or (B) such member's effective Hartford Economic Development Commission earnings during such period.

4. A member's "*effective Hartford Economic Development Commission earnings*" shall equal such member's actual earnings as a city employee during the first year following his or her post Hartford Economic Development Commission employment date (hereinafter, his or her "post Hartford Economic Development Commission earnings"), except when, and then only if, such member is a returning member, in which case, such member's effective Hartford Economic Development Commission earnings shall equal the lesser of (A) his or her post Hartford Economic Development Commission earnings, or (B) the average of (i) such member's post Hartford Economic Development Commission earnings, and (ii) his or her earnings during the last year in which he or she served as a city employee before accruing the qualified Hartford Economic Development Commission service at issue.

5. A "*returning member*" shall mean any member who, pursuant to section 2A-9 or any ordinance enacted by the court of common council, has or will have his or her year(s) of creditable service include at least one (1) year of prior city service in the computation of his or her retirement allowance.

6. A member shall be deemed to have "*prior city service*" if he or she was a member of the fund prior to providing the service to the Hartford Economic Development Commission for which he or she may be given credit hereunder.

7. "Section 2A-8(a)(5) employees" shall mean: NBU-GG employees and employees who are members of a collective bargaining unit whose collective bargaining agreement with the City agrees to the provisions of this subsection (a)(5).

b. Any section 2A-8(a)(5) employee whose effective date of retirement occurs on or after June 30, 2005, shall have the option to have his or her year(s) of creditable service include up to four (4) years of any of his or her qualified Hartford Economic Development Commission service. A section 2A-8(a)(5) employee who elects to exercise this option must provide written notice of such election by the date(s) specified in the provisions defining said member's creditable year(s) of service, if any, and shall thereafter pay the fund an amount equal to the contributions required pursuant to subsection (a)(5)c below (hereinafter, his or her "Hartford Economic Development Commission service contribution") in the manner and on the terms specified by the pension commission.

c. Any section 2A-8(a)(5) employee who elects to have his or her year(s) of creditable service include qualified Hartford Economic Development Commission service shall make a contribution to the fund therefore equal to the sum of (1) the product of

his or her qualified Hartford Economic Development Commission earnings times the contribution rate which was in effect for such member as of his or her post Hartford Economic Development Commission employment date, and (2) interest on the amount derived pursuant to the foregoing calculation at the rate of seven (7) percent per annum from said post Hartford Economic Development Commission employment date to the date the pension commission approves such member's application to purchase any credits hereunder. All such amounts shall be paid to the fund in the manner and on the terms specified by the pension commission, providing, however, that no contributions which are required to be made pursuant to this subsection (a)(5) shall be "picked-up" and paid by the city pursuant to the provisions of section 2A-6(b)(1) of this chapter.

d. Notwithstanding the provisions of subsection (a) to the contrary, once a section 2A-8(a)(5) employee, has obtained a vested interest in his or her retirement benefit, that period of such member's qualified Hartford Economic Development Commission service which the member is otherwise entitled to include, pursuant to the provisions of this section, in his or her creditable year(s) of service, shall also be considered actual service for the limited purpose of determining such member's eligibility to receive his or her early or normal retirement allowance. Notwithstanding any other provision of this chapter to the contrary, in no event shall a member's qualified Hartford Economic Development Commission service constitute creditable actual service.

(b) Nothing in this section shall be deemed to entitle any member to receive a retirement allowance in excess of that amount which may be specified to be, or which operates as, a maximum limit on the amount of any benefit which may be paid to such member pursuant to any other provisions of this chapter. In the event that any member's retirement allowance would exceed any such limit if he or she were credited service as provided hereunder, the fund shall refund such member any amounts provided by the member hereunder to effectuate such credit, with interest at the rate of three (3) percent per annum from the date such contributions were fully paid to the date they are refunded by the pension commission.

(Ord. No. 02-05, 3-14-05; Ord. No. 10-06, 4-24-06; Ord. No. 05-11, 1-10-11)

Sec. 2A-9. Repurchase of credit for prior actual service.

If a member terminates his or her employment, withdraws his or her employee contributions to the fund and is subsequently reemployed, he or she may request that he or she be allowed to repurchase credit for his or her prior actual service. Such request and repayment must be made no later than ninety (90) days after the completion of the probationary period. If such request is not made within the prescribed period of time, the member shall be deemed to have waived this right.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-10. Limitation on credited service.

Notwithstanding any other provision of this chapter, any credited service earned, given or purchased by a member may not be used for qualifying that member for retirement benefits before normal retirement age and at least five (5) years of actual service.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-11. Disability retirement.

(a) The disability retirement allowances provided in this section shall be available to section 2A-11 employees.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) A section 2A-11 employee's "*adjusted normal retirement benefit*" shall be calculated in the same manner as the member's normal retirement benefit, except that the member's average annual pay is utilized in lieu of the member's final average pay.

(2) A section 2A-11 employee's "*average annual pay*" shall refer to the member's average pension earnings for the ten (10) years immediately preceding a member's disability retirement (or average of the member's total years of pension earnings if the members has less than ten (10) years).

(3) A section 2A-11 employee's "*annual pay*" shall equal the sum of: (a) the member's weekly rate of pay at the time his or her disability was incurred multiplied by fifty-two (52) weeks; plus (b) any longevity pay that would have been payable to the member had the member continued to work during the year following the date he or she incurred the disability.

(4) A member's "*pension earnings*" shall consist of those earnings which would be considered for purposes of establishing the member's final average pay, including the regular, overtime, holiday, vacation and longevity pay that the member was entitled to, and did, receive while working, and includes any payment for the member's accrued but unpaid vacation, holiday and sick leave that the member was entitled to, and did, receive upon the member's separation from city, library or board employment.

(5) A member's "*reduction in income*" shall equal the difference between what the member can earn from gainful employment despite his or her disability and the member's rate of pay at the time of disability.

(6) "*Section 2A-11 employees*" shall mean: CHPEA employees; CWA employees; HMEA employees; HPU non-sworn employees; Local 78 employees; Local 82 employees; Local 818 employees; Local 1018A/B employees; Local 1018C employees; Local 1018D employees; Local 1716-HPL employees; Local 2221 employees; MLA employees; NBU-BOE employees; NBU-GG employees; NBU-HPL employees; those NBU-P/F employees who elect, pursuant to section 2A-30, to receive those benefits provided NBU-GG employees; and SCGA employees.

(c) Administration of disability retirement allowances.

(1) *Disability determination.* The existence and continuance of a disability shall be determined by the pension commission upon such medical evidence and other investigation as it may require.

(2) *Continuance of allowance.* Any disability allowance provided hereunder shall continue during the period of such disability.

(3) *Application.* In order to obtain any of the disability retirement allowances provided hereunder, a member shall apply in writing for such allowance to the pension commission within one (1) year after incurring the disability, and the allowance may be made retroactive to the date at which the pay of the disabled member ceased.

(4) *Annual statement of earnings.* Every member receiving any of the disability retirement allowances provided hereunder shall, by March 31st of each year, file with the pension commission a sworn statement of all earnings received by the member from employment of any kind during the year ending December 31st preceding the filing of the statement, or, if no such earnings have been earned, a sworn statement to that effect. If any member shall fail to make the report, the payment of the member's retirement allowance shall be suspended until such report has been filed.

(d) *Service connected full disability.* There shall be a service connected full disability retirement allowance for section 2A-11 employees who become eligible hereunder.

(1) *Service connected full disability eligibility.* Any section 2A-11 employee shall be eligible for retirement and to receive a service connected full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, library or board as defined by the Workers' Compensation Act.

Misconduct or intoxication. No service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

(2) *Service connected full disability allowance.* The amount of the section 2A-11 employee's service connected full disability retirement allowance shall equal the greater of: (a) the member's adjusted normal retirement benefit, minus any payments representing income replacement under the Workers' Compensation Act; or (b) fifty (50) percent of the member's annual pay, minus any payments representing income replacement under the Workers' Compensation Act. However, no disability retirement allowance under this section, plus payments representing income replacement under the Workers' Compensation Act, if any, plus any amounts payable by reason of social security coverage attributable to city, library or board employment, shall exceed two-thirds (2/3) of the member's average annual pay, nor shall any such allowance be less than thirty dollars ($30.00) a month.

(e) *Non-service connected full disability.* There shall be a non-service connected full disability retirement allowance for section 2A-11 employees who become eligible hereunder.

(1) *Non-service connected full disability eligibility.* Any section 2A-11 employee shall be eligible for retirement and to receive a non-service connected full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided the member has completed at least ten (10) years of continuous service.

Misconduct or intoxication. No non-service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

(2) *Non-service connected full disability allowance.* The amount of the section 2A-11 employee's non-service connected full disability retirement allowance shall equal the member's adjusted normal retirement benefit. However, no disability retirement allowance under this section, plus any amounts payable by reason of social security coverage attributable to city, library or board employment, shall exceed two-thirds (2/3) of the member's average annual pay, nor shall any such allowance be less than thirty dollars ($30.00) per month.

(f) *Service connected partial disability.* There shall be a service connected partial disability retirement allowance for section 2A-11 employees who become eligible hereunder.

(1) *Service connected partial disability eligibility.* Any section 2A-11 employee who suffers a permanent disability which does not prevent him or her from engaging in any gainful employment may nevertheless be eligible to receive a service connected partial disability retirement allowance if such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, library or board as defined by the Workers' Compensation Act, and if it is shown to the satisfaction of the pension commission that as the result of said disability the income which he or she can derive from gainful employment has been reduced at least ten (10) percent below the income he or she was earning at the time he or she

incurred such disability. Such partial disability retirement allowance may continue during the period of such reduced income.

(2) *Service connected partial disability allowance.* The amount of the section 2A-11 employee's service connected partial disability retirement allowance shall equal the greater of: (a) the member's adjusted normal retirement benefit, minus any payments representing income replacement under the Workers' Compensation Act; or (b) fifty (50) percent of the member's reduction in income, minus any payments representing income replacement under the Workers' Compensation Act. However, no disability retirement allowance under this section, plus payments representing income replacement under the Workers' Compensation Act, if any, plus any amounts payable by reason of social security coverage attributable to city, library or board employment, shall exceed two-thirds (⅔) of the member's average annual pay, nor shall any such allowance be less than ten dollars ($10.00) a month.

(g) *Non-service connected partial disability.* There shall be a non-service connected partial disability retirement allowance for section 2A-11 employees who become eligible hereunder.

(1) *Non-service connected partial disability eligibility.* Any section 2A-11 employee who suffers a permanent disability which does not prevent the member from engaging in any gainful employment may nevertheless be eligible to receive a non-service connected partial disability retirement allowance if he or she has completed at least ten (10) years of continuous service and if it is shown to the satisfaction of the pension commission that as the result of said disability the income which the member can derive from gainful employment has been reduced at least ten (10) percent below the income the member was earning at the time he or she incurred such disability. Such partial disability retirement allowance may continue during the period of such reduced income.

(2) *Non-service connected partial disability allowance.* The amount of the section 2A-11 employee's non-service connected partial disability retirement allowance shall equal the member's adjusted normal retirement benefit. However, no disability retirement allowance under this section, plus any amounts payable by reason of social security coverage attributable to city, library or board employment, shall exceed the lesser of: (1) two-thirds (⅔) of the member's average annual pay; or (2) one and two-thirds (1⅔) percent of the reduction in income multiplied by the member's year(s) of creditable service, nor shall any such allowance be less than ten dollars ($10.00) a month.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-12. Survivorship.

A qualified surviving spouse of any section 2A-12 employee who shall retire or who shall be eligible for retirement, or whose rights and/or interests in any normal or early retirement have become vested as provided herein, shall, upon the death of said member, but not prior to the date on which said member would have been eligible to receive a normal or early retirement allowance, receive a monthly allowance from the Fund equal to one-half (½) the monthly allowance being received by said section 2A-12 employee, or which said employee would have been entitled to receive if retired, at the time of his or her death until said spouse dies or remarries.

(1) "*Section 2A-12 employees*" shall mean: CHPEA employees; CWA employees; HMEA employees; HPU non-sworn employees; Local 78 employees; Local 82 employees; Local 818 employees; Local 1018A/B employees; Local 1018C employees; Local 1018D employees; Local 1716-HPL employees; Local 2221 employees; MLA employees; NBU-BOE employees; NBU-GG employees; NBU-HPL employees; those NBU-P/F employees who have

elected to receive NBU-GG benefits pursuant to section 2A-30; and SCGA employees.

(2) Any qualified surviving spouse's rights to and/or interests in receiving a survivor's allowance hereunder shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for receiving any normal or early retirement allowance.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-13. Transferring employees.

(a) *Employees transferring into certain positions in the uniformed services.* Any employee who transfers into a position rendering him or her subject to those provisions governing benefits provided to Local 760 employees or HPU sworn officers, shall retain the same rights and benefits provided to either Local 760 employees or HPU sworn officers, as applicable, provided that: (1) such employee pays, at the time of transfer, a sum of money equal to the difference between what the employee has paid into the fund and what the employee would have paid into the fund had his or her entire city, library or board service been as a Local 760 employee or HPU sworn officer, as applicable, together with interest thereon as determined by the pension commission; and (2) the transferring employee completes at least ten (10) years of continuous service as a Local 760 employee or HPU sworn officer, as applicable. Subsequent to the transfer, the employee's eligibility for, and the amount of, any retirement allowance provided to Local 760 employees or HPU sworn officers, as applicable, shall be based on the original date of hire into city, library or board service, unless the employee fails to pay the contributions differential referenced above. If the transferring employee fails to pay the contributions differential referenced above, the employee's eligibility for, and the amount of, any retirement allowance provided to Local 760 employees or HPU sworn officers, shall be based upon the date of transfer.

(b) *Employees transferring into the Hartford Municipal Employees' Association ("HMEA").* Any employee who transfers into a position rendering him or her subject to those provisions governing benefits provided to HMEA employees, shall retain the same rights and benefits provided to HMEA employees, provided that the transferring employee pays, at the time of transfer, a sum of money equal to the difference between what the employee has paid into the fund since his or her date of hire and what the employee would have paid into the fund since either: (1) his or her date of hire; or (2) January 1, 2004, whichever is later, had his or her city, library or board service been as a HMEA member during that period, together with interest thereon as determined by the pension commission. Employees transferring into HMEA whose date of hire with the city, library or board is prior to July 1, 2003 shall, upon payment of the required amount into the fund, be considered "pre-2003 HMEA employees" for purposes of this chapter. Employees transferring into HMEA whose date of hire with the city, library or board is on or after July 1, 2003 shall, upon payment of the required amount into the fund, be considered "post-2003 HMEA employees" for purposes of this chapter.

(c) *Certain employees transferring into the City of Hartford Professional Employees' Association ("CHPEA").* Any individual who becomes a member of the CHPEA bargaining unit after October 1, 1997 but before June 23, 2003, who at all times between September 30, 1997 and the date immediately prior to his/her hire into the CHPEA bargaining unit, both dates inclusive, was a qualified member of HMEA and/or a member of the City of Hartford non-bargaining unit, and, as such, also was a member of the fund, shall be considered a pre-1997 CHPEA employee for purposes of this chapter. For purposes of this subsection (c) a "qualified member of HMEA" shall mean any employee who was a member of the City of Hartford Municipal Employees' Association (HMEA) who was employed as such prior to December 1, 1998.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-14. Amendments required to conform to section 401(a) of the Internal Revenue Code of 1986, as amended (the "code") and related provisions.

(a) The provisions of this section shall control, notwithstanding any provision of this chapter to the contrary:

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) A member's "*required beginning date*" shall mean the April 1st following the calendar year in which the member attains age seventy and one-half (70½) or April 1st following the calendar year in which the member retires, whichever is later.

(2) The term "beneficiary" and "beneficiaries" shall refer to and include:

a. Qualified surviving spouses, as may be defined within this chapter;

b. Any alternate payees under any domestic relations orders which are determined by the pension commission to constitute qualified domestic relations orders in accordance with regulations adopted by the pension commission with respect to such matters; and

c. Such other persons as lawfully constitute beneficiaries pursuant to section 2A-6(b)(4) or other proper authority.

(3) "*IRC maximum benefit*" shall mean the maximum benefit amount which is permitted under the Internal Revenue Code (the "code") in order for both the fund, and its members' interests therein, to retain the tax favored treatment provided by the code thereto.

(4) "*Maximum allowable annual benefit*" shall mean the maximum annual benefit which may be paid to a member from a qualified trust pursuant to sections 401(a)(16) and 415(b)(2) of the code. As provided in the code, effective with the plan year commencing July 1, 2002, the maximum allowable annual benefit payable to any member during any plan year is one hundred sixty thousand dollars ($160,000.00).

(5) "*Maximum allowable annual compensation*" shall mean the maximum annual compensation which may be taken into account in the context of calculating any benefit due to any member of a qualified trust pursuant to section 401(a)(17) of the code. As provided by the code, effective with the plan year commencing July 1, 2002, the maximum allowable annual compensation which may be included in the calculation of any member's benefit is two hundred thousand dollars ($200,000.00).

(c) As required under sections 401(a)(1) and (2) of the code, no part of the corpus or income of the fund may be used for, or diverted to, purposes other than for the exclusive benefit of its members and their beneficiaries prior to the satisfaction of all liabilities of the fund thereto; it being the intent of this chapter that all contributions which have been and hereafter may be made to the fund shall be made for the purpose of distributing the corpus and income of the fund to such members and their beneficiaries in accordance with the terms governing the payment of benefits from the same.

(d) As required by section 401(a)(9) of the code, effective July 1, 1997, any member who is eligible to receive any benefit payments from the fund shall commence receiving the same no later than his or her required beginning date; likewise, any member who is not eligible to receive any benefit payments from the fund or who, although eligible, prefers to withdraw his or her contributions to the fund in lieu of receiving any benefits, shall commence receiving the same no later than on his or her required beginning date.

(e) Except as may be provided in section 2A-15, no member shall be entitled to receive a pension benefit in excess of the IRC maximum benefit. Without limiting the generality of the foregoing:

(1) As required by section 401(a)(16) of the code (and except as otherwise provided

in that section in respect of ancillary benefits and/or rollover contributions, if any, as apply to any member), no member shall be entitled to receive any benefit from the fund if, when expressed as an 'annual benefit' as provided in section 415(b)(2) of the code, such annual benefit is greater than the maximum allowable annual benefit, as the same may be adjusted by the Secretary of the Treasury from time to time pursuant to section 401(a)(16) of the code; and

(2) As required by section 401(a)(17) of the code, the total amount of compensation paid to any employee in any year which may be taken into account in the calculation of any benefit which may be due to any member or any of his or her beneficiaries shall not exceed the maximum allowable annual compensation, as the same may be adjusted by the Secretary of the Treasury from time to time pursuant to section 401(a)(17)(B) of the code.

(f) *Actuarial assumptions.* As required by section 401(a)(25) of the code, whenever any benefit otherwise payable under this chapter is required to be determined on the basis of actuarial equivalency, the analysis used in establishing that benefit shall be based upon assumed mortality rates as set forth in the "UP-94 Mortality Table Projected by Scale AA to 2011" with compounded interest at the rate of eight (8) percent per annum.

(g) Effective January 1, 1993, except to the extent that any contributions (and interest on those contributions, if any) are required to be paid to a member or a beneficiary pursuant to subsection (d) above in conformance with section 401(a)(9) of the code, any member or beneficiary who elects to be paid any member's contributions (and interest on those contributions, if any) in lieu of receiving any benefits from the fund may elect to have such contributions (and any interest on those contributions, if any) paid directly to another qualified retirement plan, subject to and in accordance with the terms of this subsection (g). Any such distribution shall be effected on behalf of a member or beneficiary if he or she specifies the qualified retirement plan to which such distribution is to be made in writing (in such form and within such time period as may be prescribed by the pension commission). Any contributions (and interest on those contributions, if any) with respect to which any member or beneficiary makes the election provided by this subsection (g) shall be distributed thereto in the form of a direct trustee-to-trustee transfer to the qualified retirement plan so specified. For the purposes of these direct rollover provisions, a qualified retirement plan shall mean (A) a qualified defined benefit or defined contribution plan, an individual retirement account, effective January 1, 2002, an annuity contract described in section 403(b) of the code and an eligible plan under section 457(b) of the code which is maintained by a state, political subdivision of a state (or any agency or instrumentality of a state or political subdivision of a state), which (B) effective January 1, 2002, in any case, agrees to separately account for amounts transferred into such plan from this plan, as contemplated by section 401(a)(31)(C) of the code.

(h) As contemplated by section 457(e)(17) of the code, effective July 1, 2002, any member who is a participant in the city's deferred compensation plan maintained under section 457 of the code (the "city's 457 plan") may transfer all or any portion of the amounts held in his or her account in such plan to the fund in order to pay for any pension service credit which said member otherwise is eligible to, and has elected to, purchase with the fund to the extent the code and the provisions governing the city's 457 plan permit such a transfer to be made from that plan for that purpose; it being the intent of this provision that the fund shall accept such transfers for such purposes as permitted under sections 401(a)(31)(E) and 457(e)(17) of the code. Any transfer of moneys from the city's 457 plan which is received by the fund for said purpose shall be separately accounted for by the pension commission based on the extent to which such sums otherwise would or would not be includable in the member's gross income if they were distributed from the city's 457 plan directly to the member. Any 457 plan participant may select a Roth account or other account allowed by law within the city's 457 plan.

(i) The provisions set forth in subsections (g) and (h) above are intended to reflect certain provisions of the Economic Growth and Tax Relief Reconciliation Act of 2001 ("EGTRRA"). These provisions are intended as good faith compliance with the requirements of EGTRRA and are to be construed in accordance with EGTRRA and any guidance issued thereunder. These provisions shall supersede any other provisions governing the fund to the extent those other provisions are inconsistent with the terms set forth in subsections (g) and (h) above.
(Ord. No. 02-05, 3-14-05; Ord. No. 17-15, 11-9-15)

Sec. 2A-15. Section 415(m) fund.

(a) Members shall be eligible to receive benefits from the section 415(m) fund pursuant to the provisions of this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) "*Benefit determination date*" shall mean the date an employee first commences receiving benefits under this chapter.

(2) "*IRC maximum benefit*" shall have the same meaning as ascribed thereto in section 2A-14(b).

(c) Except as provided in this section, no employee shall be entitled to receive a pension benefit in excess of the IRC maximum benefit applicable to such employee as of his or her benefit determination date.

(d) The IRC maximum benefit applicable to any employee shall be increased in the years following his or her benefit determination date to reflect (i) any post retirement increases which are made to the applicable limitations of section 415 of the Internal Revenue Code of 1986 as amended from time to time ("section 415") in such years, and (ii) any applicable adjustments or other changes which may be made to any applicable limitations imposed by section 415 by virtue of any changes which are made to the provisions of section 415 or the regulations promulgated thereunder.

(e) Effective January 1, 1995, any employee who, but for the operation of the limitations imposed on the level or amount of pension benefits which may be paid by a qualified plan pursuant to section 415 as implemented by the provisions of section 2A-14 and this section 2A-15 (together, the "section 415 limitations"), would be entitled, in any year, to receive a benefit from the fund which is different than that which actually is payable to such employee by reason of said section 415 limitations, shall be entitled to receive the difference between the actual benefit such employee otherwise would have been entitled to receive but for the section 415 limitations and the benefit such employee actually is entitled to receive by virtue of the operation of said limitations.

(f) A separate retirement fund is hereby established for the purpose of providing the benefits payable under this section pursuant to section 415(m) of the Internal Revenue Code of 1986, as amended, which fund shall be known as the section 415(m) fund and shall be administered by the pension commission subject to and in accordance with the provisions of section 2A-50 of this chapter.

(g) Notwithstanding any provision of this chapter to the contrary (including without limitation, this section 2A-15, any amounts paid or payable to any employee by reason of this subsection (g) shall not be paid or payable from the fund, but, rather, only shall be paid and payable from the section 415(m) fund. All benefits payable from the section 415(m) fund shall be subject to all of the terms and conditions that would apply thereto if they were paid from the fund; providing, however, that, in lieu of the provisions of section 2A-6(a) of this chapter, the city only shall be required to make such contributions to the section 415(m) fund in any year as may be determined from time to time by the pension commission to be necessary to provide the benefits payable therefrom in said year.

(h) No benefits shall be paid from the section 415(m) fund except as provided in this section.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-16. Reemployment after retirement.

(a) Notwithstanding any other provision of this chapter to the contrary, any member who is determined by the pension commission to be eligible to receive any of the benefits provided under this chapter who, on or after the date such benefits become payable, is entitled to and in fact does contribute to the fund by reason of his or her election or appointment to, or employment in, a position with the city (including, but not limited to, any of its agencies, departments, boards or commissions) shall not be entitled to collect such benefits during the period he or she holds such position; providing, however, that this restriction shall not apply in respect to any benefits to the extent they were first payable on or before May 23, 1995. Any benefits which otherwise would be payable to any member under this chapter but for the restrictions set forth in this section shall be paid thereto (without interest) at such time when such member no longer holds a position by reason of which he or she is entitled to contribute to the fund.

(b) No member shall be deemed to have retired, or to otherwise be eligible to qualify for any benefits otherwise payable under this chapter, as and to the extent he or she is employed by the city or any of its agencies, departments, boards or commissions in a position for which he or she applied, received an offer, or was accepted, prior to the date on which such benefits otherwise would first be payable; providing, however, that nothing in this sentence shall constitute a basis for denying any member any benefits to the extent they first became payable prior to May 23, 1995. In no event shall the level of any benefits payable to any member by reason of his or her participation in the fund prior to qualifying for and electing to receive any benefits under this chapter be increased as a result of his or her renewed participation in the fund at any time after he or she has made such an election.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-17. Assignments prohibited.

Any assignment by a member, beneficiary or spouse of any allowance or benefit payable under the terms of this chapter shall be void. Each such allowance and benefit shall be for the support of the member, beneficiary or spouse entitled thereto and shall be exempt from the claims of creditors of such member, beneficiary or spouse, provided, if the provisions of this section are contrary to the laws governing a particular set of circumstances, as to that set of circumstances, any allowance or benefit payable hereunder shall be exempt to the maximum extent permitted by law.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-18. Transfers from the fund.

Any member leaving the employment of the city, library or board or other covered employment may transfer, if he or she is eligible for such transfer, to the employees' retirement system of the federal government of the United States, or the retirement system of a state or any political subdivision thereof within the United States, which is being operated on an actuarial basis with contributions made during the active service of new members which are computed to be sufficient to provide the reserves needed to cover the retirement benefits payable on his or her account. Such transfer may not become effective, however, unless an appropriate agreement of reciprocity is executed. Upon approval of the pension commission, the actuarial reserve for the member's vested annuity benefit, as determined by the pension commission shall be transferred to the retirement system under which the employee will be covered in his or her new position.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-19. Coordination with federal Social Security coverage.

In the case of any employee who was a member of the fund prior to June 14, 1941, and who is included in Social Security coverage thereby, if the pension commission should find that the sum of a normal retirement allowance or a disability retirement allowance plus the Social Security benefit which such member is entitled to receive resulting from city service should be less than the allowance he or she would receive under the terms of the fund in existence prior to the effective date of this act, then the pension com-

mission shall increase his or her allowance accordingly for the period during which the lower total benefits would otherwise apply.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-20. Effect of repeal.

In case of the repeal of this chapter, the liability of the city to members of the fund shall be limited to the amount of their respective contributions thereto, provided all retirement allow-

ances, vested rights/and or benefits shall be paid in full in accordance with the provisions of this chapter.
(Ord. No. 02-05, 3-14-05)

Secs. 2A-21—2A-24. Reserved.

ARTICLE II. RIGHTS AND BENEFITS

Sec. 2A-25. NBU-GG provisions.

(a) The pension rights and benefits of NBU-GG employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) Definitions. As used in this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Final average pay*" for all NBU-GG employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings, unless the employee had previously elected to have his or her average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings as provided in this subsection (b)(1) below.

Alternate final average pay election. Commencing July 1, 1988, any NBU-GG employee may elect to have his or her final average pay equal the average gross earnings for the highest two (2) of the last five (5) years of his or her gross earnings. Any NBU-GG employee who elects to have his or her final average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings shall make such election by filing a notice thereof with the City treasurer on or before November 1, 1988, or within thirty (30) days of his or her commencement of employment as a NBU-GG employee, whichever is later.

(2) *Year(s) of creditable service.*

a. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Pre-2011 NBU-GG employee's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);
3. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3);
4. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of the member's employment, whichever is later; and
5. Qualified non-City service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(4) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by December 31, 1999, or within one (1) year of his or her employment, whichever is later.
6. Qualified Hartford Economic Development Commission service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of Section 2A-8(a)(5) and provided that the employee has submitted writ-

ten notice to the Pension Commission of his or her election to do so by April 30, 2007, or within one (1) year of his employment, whichever is later.

b. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Post-2011 NBU-GG employee's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);
3. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of the member's employment, whichever is later; and
4. Qualified non-City service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(4) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by December 31, 1999, or within one (1) year of his or her employment, whichever is later.
5. Qualified Hartford Economic Development Commission service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of Section 2A-8(a)(5) and provided that the employee has submitted written notice to the Pension Commission of his or her election to do so by April 30, 2007, or within one (1) year of his employment, whichever is later.

(c) Employee contributions.

(1) *Final average pay based upon the highest five (5) of the last ten (10) years of service.* NBU-GG employees whose final average pay is based upon the highest five (5) of the last ten (10) years of service shall contribute to the fund a total of four percent (4%) of the employee's earnings on which Social Security taxes are paid and seven percent (7%) on the balance of the employee's earnings. Effective the pay period beginning July 5, 2009 (pay date July 24, 2009), NBU-GG employees shall contribute to the fund a total of five percent (5%) of the employee's earnings on which Social Security taxes are paid and eight percent (8%) on the balance of the employee's earnings. Effective the first pay period in January 2014, NBU-GG employees who have not exercised the Alternate Final Average Pay election shall contribute to the fund a total of six and one-half percent (6½%) of the employee's earnings on which Social Security taxes are paid and nine and one-half percent (9½%) on the balance of the employee's earnings.

(2) *Final average pay based upon the highest two (2) of the last five (5) years of service.* NBU-GG employees whose final average pay is based upon the highest two (2) of the last five (5) years' gross earnings shall contribute to the fund five percent (5%) of the employees' earnings on which Social Security taxes are paid and eight percent (8%) on the balance of the employee's earnings. Effective the pay period beginning July 5, 2009 (pay date July 24, 2009), this classification of NBU-GG employees shall contribute to the fund a total of six percent (6%) of the employee's earnings

on which Social Security taxes are paid and nine percent (9%) on the balance of the employee's earnings. Effective the first pay period in January 2014, NBU-GG employees having exercised the Alternate Final Average Pay election shall contribute to the fund a total of seven and one-half percent (7½%) of the employee's earnings on which Social Security taxes are paid and ten and one-half percent (10½%) on the balance of the employee's earnings.

(1) Section 414(h)(2) plan participants. NBU-GG employee contributions to the fund are picked up by the City pursuant to section 2A-6(b)(1), and each NBU-GG employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the City pursuant to that section.

(2) Interest on contributions. Effective July 1, 1980, the City will credit to a NBU-GG employee's contributions to the fund three percent (3%) interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three percent (3%) interest.

(3) Refund of contributions. NBU-GG employees may have their contributions refunded in accordance with subsection 2A-6(b)(4).

(d) Vesting. A NBU-GG employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions. Any NBU-GG employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member's, and, as applicable, his or her qualified surviving spouse's, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) Normal retirement. There shall be a normal retirement allowance for eligible NBU-GG employees.

(1) *Normal retirement eligibility.*

a. Pre-2011 NBU-GG employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of actual service, or upon attaining age sixty (60) and completing at least five (5) years of continuous service.

Alternate normal retirement eligibility. A Pre-2011 NBU-GG employee may elect to retire without reduction of benefits after fifteen (15) years of continuous service provided such employee elects to leave his or her contributions in the fund until the date on which he or she would have first become eligible for a normal retirement allowance, at which time he or she shall receive a retirement allowance calculated on the same basis described below for a normal retirement allowance.

b. Post-2011 NBU-GG employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty (20) years of actual service, or upon at-

taining age sixty-two (62) and completing at least five (5) years of continuous service.

(2) *Normal retirement allowance.*

a. The normal retirement allowance for Pre-2011 NBU-GG employees shall amount to two and one-half (2.5%) percent of final average pay for each whole year of creditable service to a maximum of eighty (80%) percent of final average pay.

b. The normal retirement allowance for Post-2011 NBU-GG employees shall amount to one and three-quarters (1.75%) percent of final average pay for each whole year of creditable service to a maximum of eighty (80%) percent of final average pay.

c. Employees who retire on or after June 1, 2014 shall be paid accrued vacation leave and any sick leave remaining after mandatory sick exchange in accordance with Section 2A-8(a)(3) of the Code, to which the employee may be entitled, as a lump sum payment. Any vacation time lump sum payment shall not be used to increase the employee's years of creditable service and any vacation and/or sick time lump sum payment shall not be included or utilized in any manner in determining or calculating the employee's final average pay period, final average pay, and retirement allowance. The effective date of retirement shall be the day immediately following the employee's last day of work. This Paragraph shall apply prospectively and shall not apply to any employee on vacation run-out on the effective date of the ordinance.

(f) Early retirement. There shall be an early retirement allowance for eligible NBU-GG employees.

(1) *Early retirement eligibility.* NBU-GG employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.*

a. The early retirement allowance for Pre-2011 NBU-GG employees shall be based on the normal retirement allowance formula but reduced by four (4%) percent for each whole year the employee retires short of age sixty (60).

b. The early retirement allowance for Post-2011 NBU-GG employees shall be based on the normal retirement allowance formula but reduced by four (4%) percent for each whole year the employee retires short of age sixty-two (62).

c. Employees who retire on or after the June 1, 2014 will be paid accrued vacation leave and any sick leave remaining after mandatory sick exchange in accordance with Section 2A-8(a)(3) of the Code, to which the employee may be entitled, as a lump sum payment. Any vacation time lump sum payment shall not be used to increase the employee's years of creditable service and any vacation and/or sick time lump sum payment shall not be included or utilized in any manner in determining or calculating the employee's final average pay period, final average pay, and retirement allowance. The effective date of retirement shall be the day immediately following the employee's last day of work. This Paragraph shall apply prospectively and shall not apply to any employee on vacation run-out on the effective date of the ordinance.

(g) *Disability retirement.* NBU-GG employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* NBU-GG employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.

(i) Voluntary Retirement Incentive Program (VRIP) for NBU-GG employees whose last day of Work is December 31, 2010.

(1) For purposes of this subsection an "eligible NBU-GG employee" refers to a vested Non-Bargaining Unit General Government (NBU-GG) employee, a vested Non-Bargaining Unit Police or Fire (NBU-P/F) employee, who in accordance with the provisions of Section 2A-30 has elected to receive non-bargaining pension benefits, and a vested non-bargaining unclassified general government employee who is a member of the fund.

(2) An eligible NBU-GG employee, who is eligible for a normal, alternate normal, or early retirement, on or before December 31, 2010, may elect one (1) of the following retirement incentive options:

OPTION 1:

Up to a maximum of three (3) years of City-paid health insurance under one (1) of the City's retiree health insurance plan options. The duration of such City-paid health insurance eligibility shall be dependent upon the employee's age. Such City-paid health insurance shall be provided only at the employee's current level of coverage (Individual, 2-Person, Family) as of July 1, 2010. Any spouse or dependent not currently covered under the employee's active health insurance plan cannot be added in the future, with the exception of the birth or adoption of a child who may be added to the retired employee's plan, provided, the retired employee pays one hundred (100%) percent of the difference between the new level of coverage (if applicable) and the level of coverage at the time of retirement. Such City-paid health insurance shall begin immediately upon the effective date of the employee's retirement and run continuously until the expiration of the eligibility period. Upon the employee or his or her spouse turning age sixty-five (65) while receiving City-paid health insurance, such City-paid health insurance shall cease for the employee or his or her spouse effective in the month in which he or she turns age sixty-five (65).

An employee who elects to retire under this VRIP, elects this Option 1, and is subsequently employed full-time by the City of Hartford or the Board of Education while receiving the City-paid health insurance, will immediately forfeit any right to receive or resume at any point such City-paid health insurance, or any portion thereof, that was provided under the VRIP.

OPTION 2:

The addition of up to four (4) years of additional pension service credit. Such service credit will be deemed actual service for purposes of determining the employee's eligibility for a normal retirement, for purposes of determining whether the employee is eligible to commence receiving a retirement allowance and for determining or calculating the employee's final average pay period, final average pay, and retirement allowance.

(3) An eligible NBU-GG employee who is eligible for an alternate normal retirement by December 31, 2010, and elects to retire under the VRIP, shall be credited with up to four (4) years of additional service credit. Such service credit will be deemed actual service for purposes of determining the employee's eligibility for a normal retirement and for purposes of determining whether the employee is eligible to commence receiving a retirement allowance. (Examples: (A) An employee who has fifteen (15) years of continuous service will be credited with four (4) years of additional service credit, will be deemed to have nineteen (19) years of actual service and will be eligible to commence receiving a retirement allowance after the passage of one (1) year; and (B) An employee who has sixteen (16) years of con-

tinuous service will be credited with four (4) years of additional service credit, will be deemed to have twenty (20) years of actual service and will be eligible for a Normal Retirement as set forth in Section 2A-25 (e) of the Code.

(4) An eligible NBU-GG employee, who on or before December 31, 2010 has at least eleven (11) years of continuous service, but less than fifteen (15) years of continuous service, may elect to retire under this VRIP and be credited with up to four (4) years of "incentive service credit" for the sole purpose of establishing eligibility for an alternate normal retirement. The crediting of such "incentive service credit" shall not increase the employee's years of creditable service for purposes of calculating the employee's retirement allowance and shall not be included or utilized in any manner to determine or calculate the employee's final average pay period, final average pay, or retirement allowance. (Examples: (A) An employee with eleven (11) years of continuous service will be credited with four (4) years of "incentive service credit" and the employee will be deemed to have fifteen (15) years of continuous service solely for purposes of establishing eligibility for an alternate normal retirement, the employees' retirement benefits will be calculated based on eleven (11) years of service and any sick exchange credit, the employee will be eligible for sick exchange in accordance with Section 2A-8(a)(3), and may commence receiving a retirement allowance after the passage of five (5) years; and (B) An employee with thirteen (13) years of continuous service will be credited with two (2) years of "incentive service credit", the employee will be deemed to have fifteen (15) years of continuous service solely for purposes of establishing eligibility for an alternate normal retirement, the employees' retirement benefits will be calculated based on eleven (11) years of service and any sick exchange credit, the employee will be eligible for sick exchange in accordance with Section 2A-8(a)(3), and may commence receiving a retirement allowance after the passage of five (5) years.

(5) Additional terms and conditions applicable to eligible NBU-GG employees electing to retire under this VRIP:

a. An employee will receive any accrued vacation time, and any sick time remaining after any mandatory sick leave exchange in accordance with Section 2A-8(a)(3) of the Code, to which the employee may be entitled, as a lump sum payment. Employee pension contributions shall not be deducted from any such lump sum payment. Any vacation time lump sum payment shall not be used to increase the employee's years of creditable service and any vacation and/or sick time lump sum payment shall not be included or utilized in any manner in determining or calculating the employee's final average pay period, final average pay, and retirement allowance.

b. The employee's effective date of retirement shall be the day immediately following the employee's last day of work.

c. An employee who is eligible for an early retirement, and who elects to retire under this VRIP, shall be subject to any early retirement allowance reduction pursuant to Section 2A-25(f)(2) of the Code.

d. This VRIP shall not apply to any employee whose last day worked was prior to September 24, 2010 and/or is currently on vacation run-out.

e. An employee will be eligible for the benefits described in [subsection] (3) above only if the employee's fifteen (15) years of service are continuous, as required by Section 2A-5 of the Code. If an employee purchased one (1) or more years of pension service credit for time served in the United States Uniformed Services pursuant

to Section 2A-7 of the Code, that service credit may not be used to establish the employee's eligibility to retire under this VRIP. However, said service credit may be used for purposes of determining the employee's retirement allowance if otherwise eligible to retire.

f. The maximum allowable retirement allowance payable to an employee is set forth in Section 2A-25 (e) of the code.

g. An employee's retirement allowance shall be calculated based upon the same percentage of final average pay for each whole year of the employee's credited service that otherwise would pertain to such employee,

h. Any retirement allowance payable to any employee shall be subject to and paid in accordance with the provisions of Section 2A-15, "Section 415(m) Fund".

i. An eligible NBU-GG employee who is eligible for a normal, alternate normal, or early retirement, or by operation of [subsection] (2), (3) or (4) above can become eligible for a normal or alternate normal retirement, who desires to retire under this VRIP, must elect to retire during the "window period" as set forth below.

j. The "window period" for said election will commence on the Friday after the Court of Common Council adopts the ordinance establishing the VRIP and will end no later than the close of business thirty (30) days thereafter (in the event the thirtieth day falls on a non-business day, the window period shall end on the next business day).

k. The employee last day worked with the City must be Friday, December 31, 2010 (the last day worked may not occur prior to such date). Notwithstanding the foregoing, in those situations where the retirement of such an employee would cause undue hardship to City operations, the Mayor may elect, except as in hardship cases as further defined below, to defer the employee's last day of work and subsequent retirement, thereby requiring the employee to work beyond December 31, 2010 in order to remain eligible for the benefits provided under the VRIP, provided such employee's last day of work must occur on or before June 30, 2011. A deferment must be requested in writing by the employee's Department Head or Chief Operating Officer (as applicable) no later than five (5) calendar days after the employee submits the VRIP election form referenced below. A copy of the request shall be provided to the employee. All deferment decisions will be made by the Mayor, in his sole discretion, and will be determined on a case by case basis, including any modification of the same in the event the mayor has determined that the employee has encountered unforeseeable circumstances between the date the employee submits the VRIP election form and the date determined by the Mayor to be the employee's last day of work. The Mayor shall advise the Department Head or Chief Operating Officer within seven (7) calendar days, after receipt of the deferment request, whether the deferment request was granted, and if granted the date designated as the employee's last day of work. The Department Head or Chief Operating Officer shall notify the employee within three (3) calendar days of receiving the Mayor's deferment decision.

l. The employee must submit his or her election in writing on the prescribed 2010 NBU-GG and Eligible NBU P/F Employees Voluntary Retirement Incentive Election Form to

the Human Resources Department, with a copy to the Department Head or Chief Operating Officer (if the employee is the Department Head), by the close of business on the date set forth in [subsection] j. above. The election form will include a commitment to an effective date of retirement of January 1, 2011, which commitment shall be irrevocable, provided, however; the Mayor may elect to defer such date as set forth in [subsection] k. above.

m. The employee must file an application for retirement with the Pension Commission with a last day worked of Friday, December 31, 2010.

(Ord. No. 02-05, 3-14-05; Ord. No. 09-06, 4-24-06; Ord. No. 33-09, 9-14-09; Ord. No. 14-10, 10-25-10; Ord. No. 07-11, 1-10-11; Ord. No. 19-13, 12-9-13; Ord. No. 09-14, 5-12-14)

Sec. 2A-26. CWA provisions.

(a) The pension rights and benefits of CWA employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* As used in this section, the following terms shall have the meanings ascribed thereto below:

(1) *Final average pay.* Final average pay for all CWA employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings, unless the employee had previously elected to have his or her average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings as provided below.

Alternate final average pay election. Any CWA employee may elect to have his or her final average pay equal the average gross earnings for the highest two (2) of the last five (5) years of his or her gross earnings. Any CWA employee who elects to have his or her final average pay computed on the basis of the employee's highest two (2) of the last five (5) years of his or her gross earnings shall make such election by filing a notice thereof with the City Treasurer on or before November 1, 1988, within thirty (30) days of his or her commencement of employment as a NBU-GG employee or within thirty (30) days of his or her commencement of employment as a CWA employee, whichever is later.

(2) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a CWA employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);

c. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3);

d. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of the member's employment, whichever is later; and

e. Qualified non-city service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(4) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by December 31, 1999 or within one (1) year of his or her employment, whichever is later.

(c) *Employee contributions.* CWA employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which Social Security taxes are paid and seven (7) percent of the balance of the employee's earnings. CWA employees whose final average pay is based upon the highest two (2) of the last five (5) years' gross earnings shall contribute to the fund five (5) percent of the employee's earnings on which Social Security taxes are paid and eight (8) percent on the balance.

(1) *Section 414(h)(2) plan participants.* CWA employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each CWA employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a CWA employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1980. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* CWA employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A CWA employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years' continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any CWA employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible CWA employees.

(1) *Normal retirement eligibility.* CWA employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

Alternate normal retirement eligibility. A CWA employee may elect to retire without reduction of benefits after fifteen (15) years of continuous service provided such employee elects to leave his or her contributions in the fund until the date on which he or she would have first become eligible for a retirement allowance at which time he or she shall receive an allowance calculated on the same basis described below for a normal retirement allowance.

(2) *Normal retirement allowance.* The normal retirement allowance for CWA employees shall amount to two and one-half (2.5) percent of final average pay for each whole year of creditable service to a maximum of eighty (80) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible CWA employees.

(1) *Early retirement eligibility.* CWA employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for CWA employees shall be based on the normal retirement

allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* CWA employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* CWA employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder. (Ord. No. 02-05, 3-14-05)

Sec. 2A-27. CHPEA provisions.

(a) The pension rights and benefits of CHPEA employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* As used in this section, the following terms shall have the meanings ascribed thereto below, unless, and then only to the extent, a definition of particular application hereafter specifically provides for a different meaning with respect to any such terms within the context of said subsection.

(1) *Final average pay.* Final average pay for all CHPEA employees shall equal the average earnings for the highest two (2) of the last five (5) years' earnings.

(2) *Year(s) of creditable service.*

a. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a pre-1997 CHPEA employee's year(s) of creditable service may include:

1. Creditable actual service;

2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);

3. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3); and

4. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 22, 2001, or within one (1) year of employment, whichever is later.

b. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a post-1997 CHPEA employee's, and a 2003 CHPEA employee's, year(s) of creditable service may include:

1. Creditable actual service;

2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

3. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(3).

(c) *Employee contributions.* Pre-1997 CHPEA employees shall contribute to the fund six and one-half (6.5) percent on the social security covered portion of earnings and nine and one-half (9.5) percent on the excess. Post-1997 CHPEA employees and 2003 CHPEA employees shall contribute to the fund five (5) percent on the social security covered portion of earnings and eight (8) percent on the excess.

(1) *Section 414(h)(2) plan participants.* CHPEA employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each CHPEA employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1985, the city will credit to a CHPEA employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1984. Commencing July 1, 1986, and each July 1st thereafter, pension contributions and any inter-

est credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* All CHPEA employees may have contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A CHPEA employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

A CHPEA employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible CHPEA employees.

(1) *Normal retirement eligibility.* Pre-1997 CHPEA employees shall be eligible for a normal retirement allowance upon the completion of at least twenty (20) years of actual service or upon attaining age sixty (60) and completing at least five (5) years of continuous service. Post-1997 CHPEA employees shall be eligible for a normal retirement allowance upon completion of at least twenty-five (25) years of actual service or upon attaining age sixty (60) and completing at least five (5) years of continuous service. 2003 CHPEA employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service or upon attaining age sixty (60) and completing at least five (5) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for pre-1997 CHPEA employees shall be calculated on the basis of two and one-half (2.5) percent of the employee's final average pay for each whole year of creditable service to a maximum allowance of seventy (70) percent of final average pay. The normal retirement allowance for post-1997 CHPEA employees and 2003 CHPEA employees shall be calculated on the basis of two (2) percent of the employee's final average pay for each whole year of creditable service to a maximum allowance of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible CHPEA employees.

(1) *Early retirement eligibility.* CHPEA employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous city service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the CHPEA employee's normal retirement allowance and then reduced by four (4) percent for each year the employee retires short of age sixty (60) with prorations for fractions of a year. Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* CHPEA employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* All CHPEA employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-28. HMEA provisions.

(a) The pension rights and benefits of HMEA employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* As used in this section, the following terms shall have the meanings ascribed thereto below:

(1) *Final average pay.* Final average pay for all HMEA employees shall equal the average earnings for the highest two (2) of the last five (5) years' earnings.

(2) *Year(s) of creditable service.*

a. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a pre-2003 HMEA employee's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);
3. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3); and
4. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of employment, whichever is later.

b. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a post-2003 HMEA employee's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and
3. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one year of employment, whichever is later.

(c) *Employee contributions.* Post-2003 HMEA employees shall contribute to the fund five (5) percent on the social security covered portion of earnings and eight (8) percent on the excess earnings. Pre-2003 HMEA employees shall contribute to the fund seven and eight-tenths (7.8) percent of their weekly salary.

(1) *Section 414(h)(2) plan participants.* HMEA employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each HMEA employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1985, the city will credit to a HMEA employee's contributions to the fund three (3) percent interest on such contributions

in the fund on June 30, 1984. Commencing July 1, 1986, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* All HMEA employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A HMEA employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any HMEA employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible HMEA employees.

(1) *Normal retirement eligibility.* All pre-2003 HMEA employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of continuous full time service, or upon attaining age sixty (60) and completing five (5) years of continuous service. All post-2003 HMEA employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of continuous service, or upon attaining age sixty (60) and completing five (5) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for pre-2003 HMEA employees shall amount to two and three-quarters (2.75) percent of the employee's final average pay for each whole year of creditable service, and two and one-half (2.5) percent for each year of credit obtained through sick exchange under section 2A-8(a)(3), to a maximum of seventy (70) percent of the employee's final average pay. The normal retirement allowance for post-2003 HMEA employees shall amount to two (2) percent of the employee's final average pay for each whole year of creditable service, to a maximum of seventy (70) percent of the employee's final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible HMEA employees.

(1) *Early retirement eligibility.* HMEA employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the HMEA employee's normal retirement allowance and then reduced by four (4) percent for each year the employee retires short of age sixty (60), with prorations for fractions of a year. Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* HMEA employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* HMEA employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.

(i) *Recalculation of retirement allowance for ISD HMEA employees.* Pursuant to the terms of this subsection, an ISD HMEA employee may elect to have his/her retirement allowance recalculated. The retirement allowance for such retiree shall be recalculated no later than the pension payroll date occurring in the second month immediately following passage of this subsection, subject to all other terms and conditions of this chapter, except as modified by this subsection, (hereinafter the "Recalculated Allowance") and shall:

(1) Include creditable service through June 30, 2006;

(2) Be based upon the sum of the ISD HMEA employee's final average pay used for calculation of the ISD HMEA employee's original retirement allowance and the amount of retroactive wage payments made to the ISD HMEA employee, if any, on May 9, 2003;

(3) Equal two and three-quarters (2¾) percent of the ISD HMEA employee's final average pay for each whole year of creditable service;

(4) Be subject to the same maximum retirement allowance limit as applied to the ISD HMEA employee's original retirement allowance that is, no more than seventy (70) percent/eighty (80) percent of the final average pay and subject to any limits under Section 415(m) of the Internal Revenue Code;

(5) Not be subject to an early retirement reduction pursuant to subsection 2A-28(f)(2);

(6) Include cost of living adjustments, if any, that applied to the ISD HMEA employee's original retirement allowance;

(7) Reflect June 30, 2006 as the last day worked and the last day paid of the ISD HMEA employee; and

(8) Be paid on the regularly scheduled pension payroll no later than the second calendar month following passage of this subsection.

Each ISD HMEA employee electing to receive a recalculated allowance must make an employee contribution to the fund equal to the product of six (6) percent of the ISD HMEA employee's final average pay used to calculate the employee's original retirement allowance and the period of service between such employee's effective retirement date and June 30, 2006 (the "ISD Contribution Amount").

The fund shall pay each ISD HMEA employee electing to receive a recalculated allowance an amount equal to:

(1) The total recalculated allowance that would have been payable to the ISD HMEA employee from the ISD HMEA employee's effective date of retirement and the pension payroll date immediately prior to the pension payroll date on which payment of the recalculated allowance commences, had the recalculated allowance been paid in lieu of the original retirement allowance; minus

(2) The total original retirement allowance paid to the ISD HMEA employee from such employee's effective date of retirement to the pension payroll date immediately prior to pension payroll date on which payment of the recalculated allowance commences; and minus

(3) The ISD contribution amount. The aforesaid resulting amount shall constitute the "ISD HMEA Payment" payable to the respective ISD HMEA employee.

The ISD HMEA payment, payable to each ISD HMEA employee, shall be paid by the fund in two (2) equal installments, with no interest due. The first installment shall be paid on the same date the ISD HMEA employee receives payment of the recalculated allowance and the second installment shall be payable on the regularly scheduled pension payroll date in January 2009.

Each ISD HMEA employee must affirmatively elect the receipt of a recalculated allowance. Such election must:

(1) Be in writing on an election form provided by the city;

(2) Be made and received by the secretary of the pension commission within 15 (fifteen) calendar days after passage of this subsection; and

(3) Authorize the city to deduct the ISD HMEA employee's ISD contribution amount from the first installment of the ISD HMEA payment.

(Ord. No. 02-05, 3-14-05; Ord. No. 23-08, 9-8-08)

Sec. 2A-29. MLA provisions.

(a) The pension rights and benefits of MLA employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) *Final average pay.* Final average pay for all MLA employees shall equal the average earnings for the highest two (2) of the last five (5) years' earnings.

(2) *Qualified non-city service credit.* Qualified non-city service credit shall mean that credit available to eligible members under section 2A-8(a)(3), except that: (1) MLA employees may not receive more than four (4) years' credit for qualified non-city service; and (2) qualified non-city service shall not be considered actual service for purposes of determining a MLA employee's eligibility for any retirement allowance provided herein. For purposes of this definition, otherwise qualifying prior part time service under section 2A-8(a)(4) with a qualified non-city organization, as defined therein, shall constitute qualified non-city service time for which a MLA member may receive qualified non-city service credit hereunder.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a MLA employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(3);

c. Sick exchange credit, to the extent the employee is otherwise required to make such exchange under section 2A-8(a)(3);

d. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1988, or within one (1) year of the member's employment, whichever is later; and

e. Qualified non-city service, to the extent that the employee is otherwise eligible for such credit under section 2A-8(a)(4) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by February 28, 2001 or within one (1) year of his or her employment, whichever is later.

(c) *Employee contributions.* A MLA employee's contribution rate to the fund shall be five (5) percent on the social security covered portion of earnings and eight (8) percent on the excess.

(1) *Section 414(h)(2) plan participants.* MLA employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each MLA employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a MLA employee's contributions to the fund three (3) percent interest on such contributions as of June 30, 1979. Each July 1st, thereafter, contributions and interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* MLA employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A MLA employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years' continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any MLA employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible MLA employees.

(1) *Normal retirement eligibility.* All MLA employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of continuous service or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for MLA employees shall be calculated on the basis of two and one-half (2.5) percent of the employee's final average pay for each whole year of creditable service to a maximum allowance of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible MLA employees.

(1) *Early retirement eligibility.* MLA employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the MLA employee's normal retirement allowance and then reduced by four (4) percent for each year the employee retires short of age sixty (60). Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* MLA employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* MLA employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder. (Ord. No. 02-05, 3-14-05)

Sec. 2A-30. NBU-P/F provisions.

(a) The pension rights and benefits of NBU-P/F employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) For purposes of this section only, the phrase "nonbargaining pension benefits" shall mean those pension rights and benefits provided to NBU-GG employees under this chapter that, subject to the terms of this section, are afforded to NBU-P/F employees.

(c) *Rights and benefits of Pre-1997 NBU-P/F employees.* Any provision of this Municipal Code to the contrary notwithstanding, Pre-1997 NBU-P/F employees may elect to receive the nonbargaining pension benefits provided to Pre-2011 NBU-GG employees under this chapter by notifying the City treasurer of their desire to do so on or before March 31, 1997, or within thirty (30) days of the commencement of his or her employment as a nonbargaining unit sworn police officer or firefighter, whichever is later.

Effective December 31, 1996, any Pre-1997 NBU-P/F employee who may, but does not, elect to receive nonbargaining pension benefits pursuant to this subsection (c), shall continue to be a member of the fund, with such rights, benefits and obligations under or in connection with the fund (including, but not limited to, the right to continue to accrue and, to the extent he or she is or thereafter becomes eligible, to receive benefits with and from the fund), as applicable to said member as a sworn police officer or firefighter and a member of either the Hartford Police Union (hereinafter the "HPU") or Local 760, International Association of Firefighters (hereinafter "Local 760") immediately prior to his or her appointment to the position within the nonbargaining unit, pursuant to the terms and conditions of the applicable collective bargaining agreement in effect immediately prior to said appointment. Nothing herein shall entitle such member to participate in or receive any additional or different pension or retirement benefits that may become effective, may be negotiated with, or awarded to any members of the HPU or Local 760 on, after, or effective as of, any date after the date any said member is appointed to the nonbargaining unit, nor entitle such member to any other benefits which are not the subject of this chapter; it being the intent of this subsection (c) that any NBU-P/F employee who may, but does not, elect to receive nonbargaining pension benefits pursuant to section 2A-30(c) above shall (in lieu of any other pension or retirement benefits to which any member may or could become entitled under this chapter or the Municipal Code) be provided with such pension and retirement benefits (on and subject to the eligibility criteria and other terms and conditions affecting the provisions of pension and retirement benefits to members of the fund) pursuant to the terms and conditions of the collective bargaining agreement in effect immediately prior to said appointment as applicable to such member under the terms of this chapter as of the date immediately prior to his or her appointment to a position within the nonbargaining unit, as if such benefits (and the terms and conditions governing them) remained unchanged thereafter.

Effective February 7, 2003, any Pre-1997 NBU-P/F employee who may, but does not, elect to receive nonbargaining pension benefits pursuant to this subsection (c) shall at the time of notification of his or her intent to retire to management elect one (1) of the following options with respect to the payment and use of accrued vacation, holiday, earned leave and compensatory time (sick time and sick exchange are excluded):

Option 1: An employee will be deemed to have retired on his or her last day of work as determined by the Department. The accrued time will not be used to extend service beyond the last day of actual work nor will the associated payment for such accrued time be included in the determination of the final average pay period or final average pay. Pension benefits will begin as soon as practicable following receipt of the Application for Pension in the Pension Unit. The member will receive his or her pension, retroactive to the day following the last day worked.

Option 2: All of the accrued time will be used to extend the member's pension service from the day following the last day worked, as determined by the Department, through the date when the accrued time would have been exhausted had it been paid in the normal manner (last day paid). Partial use of the accrued time in this manner is not allowed. The additional service and the payment associated with the accrued time will be used in the determination of final average pay period and the final average pay. Pension benefits will begin as soon as practicable following the last day paid as long as the Pension Unit has received the completed Application for Pension. The member will receive his or her pension, retroactive to the day following the last day paid.

Once an option is elected, the election is irrevocable. Under both options, unless otherwise elected, payment for the accrued time will be made in a lump sum as soon as practicable following the last day of work.

(d) *Rights and benefits of Post-1997 NBU-P/F employees.* All Post-1997 NBU-P/F employees shall be entitled to receive, and only shall be paid, the nonbargaining pension benefits provided to Pre-2011 NBU-GG employees in this chapter.

(e) *Rights and benefits of 2011 NBU-P/F employees.* All 2011 NBU-P/F employee shall be entitled to receive, and only shall be paid, the nonbargaining pension benefits provided to Post-2011 NBU-GG employees in this chapter.

(f) Nonbargaining pension benefits provided in lieu of any other pension or retirement benefits. Any NBU-P/F employee who elects to or otherwise is entitled or required to receive nonbargaining pension benefits shall be provided with such benefits in lieu of any other pension or retirement benefits to which they otherwise would be entitled under this chapter, the Municipal Code or any collective bargaining agreement and only in accordance with the provisions of this section and otherwise with the eligibility criteria and other terms and conditions affecting the provisions of benefits to NBU-GG employees as are set forth in this chapter.

(g) *Nonbargaining pension benefits for NBU-P/F employees may include alternate final average pay and military service credit.* Any NBU-P/F employee who elects to or is otherwise entitled to receive nonbargaining pension benefits also shall have the option (a) to have his or her final average pay computed on the basis of the highest two (2) of the last five (5) years of his or her gross earnings ("Option A"), as well as (b) to receive credit in the calculation of his or her retirement allowance pursuant to subsection 2A-8(a)(2) for periods during which he or she served in the armed forces of the United States but for which he or she previously has not made contributions to the fund ("Option B"), so long as, in either case, he or she notifies the City treasurer of his or her desire to exercise such option (and, in the case of Option B above, also makes the contributions required under subsection 2A-8(a)(2)) on or before March 31, 1997, or within thirty (30) days of the commencement of his or her employment as a nonbargaining unit sworn police officer or firefighter, whichever is later. Any employee who exercises Option A above, shall thereafter contribute to the fund one (1%) percent of his or her earnings above the four (4%) percent of the employee's earnings on which Social Security taxes are (or would otherwise be) paid and the seven (7%) percent on the balance of the employee's earnings, to be deducted at each pay period in accordance with subsection 2A-25(c). Effective the pay period beginning July 5, 2009 (pay date July 24, 2009) any employee who exercises Option A above, shall thereafter contribute to the fund one (1%) percent of his or her earnings above the five (5%) percent of the employee's earnings on which Social Security taxes are (or would otherwise be) paid and the eight (8%) percent on the balance of the employee's earnings, to be deducted at each pay period in accordance with subsection 2A-25(c).

(h) *Contributions.* Any contributions to the fund which have been made by any NBU-P/F employee prior to the time when he or she elects to or otherwise becomes entitled to receive nonbargaining pension benefits shall remain in the fund and be applied toward the nonbargaining pension benefits to be provided to such employee hereunder. Thereafter, and subject to the provisions of subsection (g) above, any NBU-P/F employee who elects to or otherwise is entitled to receive nonbargaining pension benefits shall make such contributions to the fund in the same manner and on the same terms as are required of, and shall be entitled to earn interest on any contributions which have been or thereafter are made to the Fund in the same manner and on the same terms as apply to, NBU-GG employees pursuant to section 2A-25(c), providing, however, that no such employee shall be entitled to receive any additional or different interest on any contributions which were made prior to his or her making the aforesaid election at any time prior thereto other than such interest, if any, which was then required to be provided in respect thereof. Nothing herein shall be deemed to preclude a member or his or her beneficiaries, if any, from withdrawing or otherwise being paid any such member's con-

tributions as provided in section 2A-25(c)(3) upon termination of his or her employment or otherwise.

(Ord. No. 02-05, 3-14-05; Ord. No. 08-05, 6-27-05; Ord. No. 34-09, 9-14-09; Ord. No. 06-11, 1-10-11)

Editor's note—Ord. No. 34-09, adopted Sept. 14, 2009 provided for an effective date of July 5, 2009.

Sec. 2A-31. HPU sworn officer provisions.

(a) The pension rights and benefits of HPU sworn officers enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below:

(1) "*Annual pay*" means an employee's weekly rate of pay immediately preceding the start of retirement multiplied by fifty-two (52).

(2) "*Final average pay*" for pre-1999 HPU sworn officers shall equal the average earnings, including overtime and private duty work for the highest three (3) of the last five (5) years. "*Final average pay*" for post-1999 HPU sworn officers shall equal the average earnings for the highest three (3) of the last five (5) years' earnings, exclusive of overtime and private duty pay, added to a figure for overtime and private duty which is based on the officer's total overtime and private duty hours averaged over the officer's last twenty-five (25) years of service or actual years of service, whichever is less and shall include all earnings inclusive of overtime and private duty work.

(3) *Immediate effective date of retirement.* HPU sworn officers may elect to have their effective date of retirement occur immediately upon termination of actual service to the city, prior to that period of time during which their creditable accrued vacation would have run out, provided that the final average pay of an employee who elects this immediate effective date of retirement shall not include such accrued time. The election to receive an immediate effective date of retirement must be made at the time the application for retirement is filed with the pension commission and is irrevocable.

(4) "*Qualified dependent child[ren]*" shall mean those children of HPU sworn officers, who are unmarried and under the age of eighteen (18) (or those over the age of eighteen (18) if incapacitated from engaging in gainful employment).

(5) "*Qualified surviving spouse*" shall mean the surviving spouse of a member who was living with the member at the time of the member's death and who shall have been married to the member at the time of the member's retirement, which for purposes of this definition only shall be deemed to mean the date of termination of active employment, if the member's death occurs after retirement.

(6) "*Sick exchange credit*" shall mean that credit available to eligible members under section 2A-8(a)(3). Pre-1999 HPU sworn officers shall be section 2A-8(a)(3) employ-

ees for purposes of that section, except that pre-1999 HPU sworn officers are not required to make such exchange, but may elect to receive sick exchange credit to the extent they are so eligible in the same manner such credit is provided to other members pursuant to the section.

(7) *Workers' Compensation Act payments.* Any reference to any payments or benefits made or payable under the Workers' Compensation Act, or received or paid as workers' compensation, shall refer only to those benefits provided thereunder as income replacement, and shall include any such payments or benefits for heart or hypertension disease payable under section 7-433(c) of the Connecticut General Statutes.

(8) *Year(s) of creditable service.*

a. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a pre-1999 HPU sworn officer's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);
3. Sick exchange credit, to the extent the employee is otherwise entitled to such credit pursuant to the provisions of section 2A-8(a)(3); and
4. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2).

b. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a post-1999 HPU sworn officer's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and
3. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2).

(c) *Employee contributions.* Pre-1999 HPU sworn officers shall contribute to the fund eight (8) percent of total earnings. Post-1999 HPU sworn officers shall contribute to the fund six and one-half (6.5) percent of total earnings.

(1) *Section 414(h)(2) plan participants.* HPU sworn officer contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each HPU sworn officer's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *No interest on contributions.* HPU sworn officers shall not be credited with interest on employee contributions to the fund.

(3) *Refund of contributions.* Upon separation from city service, contributions credited to a HPU sworn officer, without interest, are payable to that employee upon request to the pension commission, except that no such payment will be made to an employee granted a normal, early or disability retirement allowance. If no request is made within ten (10) years, such contributions shall revert to the fund. In case of the death of a member without a qualified surviving spouse or qualified dependent child[ren], or the death of a member and the termination of all survivorship allowances to a qualified surviving spouse and/or qualified dependent chil-

d[ren], member contributions credited to a HPU sworn officer, without interest, less any retirement or survivorship allowance paid to the member, his or her qualified surviving spouse and/or qualified dependent child[ren], shall be paid from the fund on the order of the pension commission to the beneficiary or beneficiaries, if any, named by such member. If no named beneficiaries survive the member, or the survivor of the member and his or her spouse, payment shall be made to the executors or administrators of such member or his or her spouse, as the case may be, except that, if the amount is less than one thousand dollars ($1,000.00), the refund may be made, at the option of the pension commission, in accordance with the terms of section 45-266 of the General Statutes or any amendment thereto.

(d) *Vesting.* A HPU sworn officer's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years' continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any HPU sworn officer's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's and/or qualified dependent child[ren]'s rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse and or qualified dependent child[ren]'s leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse and or qualified dependent child[ren], if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's allowance, provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible HPU sworn officers.

(1) *Normal retirement eligibility.* Post-1999 HPU sworn officers shall be eligible for a normal retirement allowance upon completing twenty-five (25) years of continuous service. Pre-1999 HPU sworn officers shall be eligible for a normal retirement allowance upon completing twenty (20) years of continuous service.

(2) *Normal retirement allowance.*

a. The normal retirement allowance for pre-1999 HPU sworn officers shall amount to:

1. two and sixty-five hundredths (2.65) percent of the officer's final average pay for each whole year of creditable service for the first twenty (20) years of creditable actual service; and

2. three (3) percent of the officer's final average pay for the twenty-first (21st) year of creditable actual service; and

3. two (2) percent of the officer's final average pay for the twenty-second (22nd) through twenty-fifth (25th) years of creditable actual service; and

4. one (1) percent of the officer's final average pay for the twenty-sixth (26th) through thirty-first (31st) years of creditable actual service; and

5. two and one-half (2.5) percent of the officer's final average pay for each year of creditable service obtained through sick exchange or military service credit,

to a maximum of seventy (70) percent of final average pay without credit for sick exchange or to a max-

imum of eighty (80) percent of final average pay with credit for sick exchange.

b. The normal retirement allowance for post-1999 HPU sworn officers shall amount to:

1. two and one-half (2.5) percent of the officer's final average pay for each whole year of creditable service for the first twenty (20) years of creditable actual service; and

2. two (2) percent of the officer's final average pay for each whole year of creditable actual service in excess of twenty (20) years; and

3. two and one-half (2.5) percent of the officer's final average pay for each year of creditable service obtained through prior military service,

to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible HPU sworn officers.

(1) *Early retirement eligibility.* Pre-1999 HPU sworn officers and post-1999 HPU sworn officers shall be eligible for an early retirement allowance upon attaining age fifty (50) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for all pre-1999 HPU sworn officers and post-1999 HPU sworn officers shall, at the election of the employee, consist of one (1) of the following: (1) to leave his or her contributions in the fund until the date on which the employee would have first become eligible for a normal retirement allowance at which time he or she shall receive a retirement allowance computed in the manner as the officer's normal retirement allowance; or (2) to receive an immediate allowance equaling the actuarial equivalent, as determined by the pension commission, of the retirement allowance which the employee would have received if he or she left his or her contributions in the fund until the date he or she would have first become eligible for a normal retirement allowance.

(g) *Disability retirement.* There shall be a disability retirement allowance for eligible HPU sworn officers.

(1) *Administration of disability allowances.*

a. *Disability determination.* The existence and continuance of a disability shall be determined by the pension commission upon such medical evidence and other investigation as it may require.

b. *Continuance of allowance.* Any disability allowance provided hereunder shall continue during the period of such disability.

c. *Application.* In order to obtain any of the disability retirement allowances provided hereunder, a member shall apply in writing for such allowance to the pension commission within one (1) year after incurring the disability, and the allowance may be made retroactive to the date at which the pay of the disabled member ceased.

d. *Annual statement of earnings.* Every HPU sworn officer receiving any of the disability retirement allowances provided hereunder shall, by March 31st of each year, file with the pension commission a sworn statement of all earnings received by the member from employment of any kind during the year ending on December 31st preceding the filing of the statement, or, if no such earnings have been earned, a sworn statement to that effect. If any member shall fail to make the report, the payment of the member's retirement allowance shall be suspended until such report has been filed.

(2) *Service connected full disability.* There shall be a service connected full disability allowance for eligible HPU sworn officers.

a. *Service connected full disability eligibility.* A HPU sworn officer shall be eligible for retirement and to receive a full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, as defined by the Workers' Compensation Act.

Misconduct or intoxication. No service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

b. *Service connected full disability allowance.* The amount of the service connected full disability retirement allowance for a HPU sworn officer shall equal one hundred (100) percent of the member's annual pay, less any weekly payments representing income replacement under the Workers' Compensation Act.

(3) *Non-service connected full disability.* There shall be a non-service connected full disability allowance for eligible HPU sworn officers.

a. *Non-service connected full disability eligibility.* A HPU sworn officer shall be eligible for retirement and to receive a full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided the member has completed at least five (5) years of continuous service.

Misconduct or intoxication. No non-service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

b. *Non-service connected full disability allowance.* The amount of the non-service connected full disability retirement allowance for a HPU sworn officer shall be computed in a manner consistent with the officer's normal retirement allowance, but no such disability allowance shall equal less than twenty-five (25) percent of the officer's annual pay.

(4) *Service connected partial disability.* There shall be a service connected partial disability allowance for eligible HPU sworn officers.

a. *Service connected partial disability eligibility.* A HPU sworn officer who suffers a permanent disability which does not prevent him or her from engaging in any gainful employment may nevertheless be eligible to receive a partial disability retirement allowance if such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, as defined by the Workers' Compensation Act, and if it is shown to the satisfaction of the pension commission that as the result of said disability the income which he or she can derive from gainful employment has been reduced at least ten (10) percent below the income he or she was earning at the time he or she incurred such disability. Such partial disability retirement allowance may continue during the period of such reduced income.

b. *Service connected partial disability allowance.*

1. For HPU sworn officers who have completed fifteen (15) years of continuous service, the amount of the service connected

partial disability retirement allowance shall equal fifty (50) percent of the member's annual pay at the time of disability, provided that the amount of the allowance for officers who have completed twenty (20) years of continuous service shall equal the amount that the employee would have received had the employee qualified for and received a normal retirement allowance.

2. For HPU sworn officers who have not completed fifteen (15) years of continuous service and suffer the injury causing the disability on or after July 1, 1986, the initial amount of the service connected partial disability allowance shall equal fifty (50) percent of the member's annual pay at the time of disability, which amount shall be reduced by any income from gainful employment which, together with the partial disability retirement allowance, exceeds one hundred (100) percent of the current rate of pay for any employee of the same or corresponding job classification held by the employee at the time of his or her retirement. For purposes of this subsection (b)(2), weekly payments representing income replacement under the Workers' Compensation Act do not constitute income from gainful employment.

   For HPU sworn officers who have not completed fifteen (15) years of continuous service and suffer the injury causing the disability before July 1, 1986, the initial amount of the service connected partial disability allowance shall equal fifty (50) percent of the member's annual pay at the time of disability, is subject to reduction for a portion of his or her subsequent earnings from other employment as follows: the amount of such reduction is limited to fifty (50) percent of the excess, if any, of the member's earnings from gainful employment, including any Workers' Compensation Act payments, over seventy-five (75) percent of the current rate of pay for a member of the same or corresponding grade. In no event shall the amount of the service connected partial disability allowance exceed the amount of a service connected full disability allowance which would be payable for total disability.

(5) *Non-service connected partial disability.* There shall be a non-service connected partial disability allowance for eligible HPU sworn officers.

   a. *Non-service connected partial disability eligibility.* A HPU sworn officer who suffers a permanent disability which does not prevent the member from engaging in any gainful employment may nevertheless be eligible to receive a partial disability retirement allowance provided the employee has completed at least ten (10) years of continuous service and if it is shown to the satisfaction of the pension commission that as the result of said disability the income which the member can derive from gainful employment has been reduced at least ten (10) percent below the income the member was earning at the time he or she incurred such disability.

   b. *Non-service connected partial disability allowance.*

      1. The amount of the non-service connected partial disability retirement allowance for a HPU sworn officer shall be computed

in the same manner as the officer's normal retirement allowance, using the appropriate specified percentage of final average pay, provided it shall not be less than twenty-five (25) percent of the officer's annual pay.

2. If a HPU sworn officer has completed less than fifteen (15) years of continuous service, his or her non-service connected partial disability retirement allowance is determined each year by reducing his or her initial allowance by the same specified percentage of the excess, if any, of the member's earnings from gainful employment over the amount of income which a social security beneficiary is entitled to earn without causing a reduction in his or her social security benefits.

(h) *Survivorship.* A qualified surviving spouse and/or the qualified dependent child[ren] of any HPU sworn officer shall be entitled to the benefits provided below, provided that any qualified surviving spouse's, or qualified dependent child[ren]'s, rights to and/or interests in receiving a survivor's allowance hereunder shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse or qualified dependent child[ren]'s, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for receiving any normal or early retirement allowance.

(1) *Non-service connected cause of death.* Where the cause of a HPU sworn officer's death does not arise out of and in the course of the member's employment as defined in the Workers' Compensation Act, a qualified surviving spouse shall receive a survivor's allowance equal to twenty-five (25) percent of the member's earnings during the last twelve (12) months of employment at full salary, payable monthly until the qualified surviving spouse's death or remarriage. In addition, the first qualified dependent child shall receive a survivor's allowance of one hundred dollars ($100.00), and each additional qualified dependent child shall receive fifty dollars ($50.00), payable monthly to the spouse if the child[ren] are in the spouse's care, or otherwise to their guardian, until the child or children attain the age of eighteen (18), unless incapacitated from engaging in gainful employment.

(2) *Service connected cause of death.* Where the cause of a HPU sworn officer's death arises out of and in the course of the member's employment as defined in the Workers' Compensation Act, a qualified surviving spouse shall receive a survivor's allowance equal to fifty (50) percent of the member's annual pay at the time of death, payable monthly until the spouse's death or remarriage. In addition, each qualified dependent child shall receive a survivor's allowance equal to ten (10) percent of such annual pay if there exists a qualified surviving spouse or a survivor's allowance equal to fifteen (15) percent of such annual pay if no qualified surviving spouse exists, payable monthly until the child or children attain the age of eighteen (18), unless incapacitated from engaging in gainful employment. The total annual survivor's allowances for a qualified surviving spouse and surviving dependent child[ren] are limited to a maximum of seventy-five (75) percent of the member's annual pay. Such survivor's allowances for the qualified surviving spouse and qualified dependent child[ren] are subject to reduction during their compensable period so that the total annual amount including workers' compensation payments shall not exceed one hundred (100) percent of the member's annual pay at the time of death.

If the death of a HPU sworn officer occurs after the member retires with a service connected disability retirement allowance, a similar survivor's allowance is payable to a qualified surviving spouse and qualified dependent child[ren], the

amounts of such survivors' allowances being based upon the member's annual pay at the time of his or her retirement.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-32. HPU non-sworn employee provisions.

(a) The pension rights and benefits of HPU non-sworn employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below

(1) "*Final average pay*" for all HPU non-sworn employees shall equal the average earnings for the highest three (3) of the last five (5) years' earnings.

(2) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a HPU non-sworn employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);

c. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3); and

d. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* A HPU non-sworn employee shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings.

(1) *Section 414(h)(2) plan participants.* HPU non-sworn employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each HPU non-sworn employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a HPU non-sworn employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* HPU non-sworn employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A HPU non-sworn employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any HPU non-sworn employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for

any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible HPU non-sworn employees.

(1) *Normal retirement eligibility.* HPU non-sworn employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of service, or upon attaining age sixty (60) and completing at least five (5) years of continuous service.

Alternate normal retirement eligibility. A HPU non-sworn employee may elect to retire without reduction of benefits after fifteen (15) years of continuous service provided such employee elects to leave his or her contributions in the fund until the date on which he or she would have first become eligible for a normal retirement allowance, at which time he or she shall receive a retirement allowance calculated on the same basis as described below for a normal retirement allowance.

(2) *Normal retirement allowance.* The normal retirement allowance for a HPU non-sworn employee shall amount to two and one-half (2.5) percent of final average pay for each whole year of creditable service to a maximum of eighty (80) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible HPU non-sworn employees.

(1) *Early retirement eligibility.* HPU non-sworn employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for a HPU non-sworn employee shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* HPU non-sworn employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* HPU sworn employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-33. Local 760 provisions.

(a) The pension rights and benefits of Local 760 employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Additional sick exchange credit*" shall refer to that credit available to those pre-2003 Local 760 employees whose retirement allowance reaches eighty (80) percent of final average pay, including basic sick exchange credit and prior military service.

a. Pre-2003 Local 760 employees whose retirement allowance reaches eighty (80) percent of final average pay, including basic sick exchange credit and prior military service may, upon retirement and prior to any formula reduction, exchange a portion of their accumulated sick leave for up to an additional two (2) years of additional sick exchange credit. Such credit may only be used as additional service credits for purposes of computing the amount of any retirement allowance provided hereunder that is based upon a specified percentage of final average pay for each year or service. For the purposes of additional sick

exchange credit hereunder, twenty (20) days shall equal one (1) year of additional pension service credit, provided rather that an eligible employee may purchase a partial year of pension service credit with each four (4) days of accumulated sick leave equaling one-half of one (0.5) percent of final average pay/annual pay.

(2) "*Annual rate of pay*" or "*annual pay*" means an employee's weekly rate of pay immediately preceding the start of retirement multiplied by fifty-two (52), plus the total amount of holiday pay for an employee who regularly performs fire fighting duties and receives the additional twelve (12) hours of pay for each holiday in the fifty-two (52) week period immediately preceding retirement.

(3) "*Basic sick exchange credit*" shall mean that credit required to be taken by eligible members under section 2A-8(a)(3). This sick exchange shall not be taxable to the Local 760 employee.

(4) "*Final average pay*" for all Local 760 employees shall equal the Local 760 employee's annual rate of pay.

(5) "*Prior military service credit*" shall mean that credit available to eligible members pursuant to section 2A-8(a)(2) and shall include credit for military service in additional conflicts to the extent Connecticut General Statutes section 27-103 is amended to include such additional conflicts, provided that such member either purchases said additional military time within one (1) year from the effective date of the amendment or pays a two (2) percent per year penalty.

(6) "*Qualified dependent child[ren]*" shall mean those children of the member who are unmarried and under the age of eighteen (18) (or those over the age of eighteen (18) if incapacitated from engaging in gainful employment).

(7) "*Qualified surviving spouse*" shall mean the surviving spouse of a member who was living with the member at the time of the member's death and who shall have been married to the member at the time of the member's retirement, which for purposes of this definition only shall be deemed to mean the date of termination of active employment, if the member's death occurs after retirement.

(8) "*Total amount of holiday pay*" means the employee's normal total gross holiday pay. Said total amount of holiday pay shall be used in calculating final average pay even when an employee is on a reduced or non-pay status.

(9) "*Weekly rate of pay*" means the employee's normal total gross weekly pay including both college incentive pay and the five (5) percent provided as additional compensation under the collective bargaining agreement. "Weekly rate of pay" does not include private job earnings, overtime earnings, and standby pay of the five (5) percent additional compensation provided to deputy chiefs assigned as shift commander. In the event an employee experiences a reduction in rank, "weekly rate of pay" is based upon the final rate of pay, immediately preceding the start of retirement at their highest growth step of the highest rank held by the employee within two (2) years prior to retirement. Said weekly rate of pay shall be used in calculating final average pay even when an employee is on a reduced or non-pay status.

(10) *Workers' Compensation Act payments.* Any reference to any payments or benefits made or payable under the Workers' Compensation Act, or received or paid as workers' compensation, shall refer only to those benefits provided thereunder as income replacement, and shall include any such payments or benefits for heart or hypertension disease payable under section 7-433(c) of the Connecticut General Statutes.

(11) *Year(s) of creditable service.*

a. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 760 employee's year(s) of creditable service may include:

1. Creditable actual service;
2. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);
3. Sick exchange credit, to the extent the employee is otherwise required to make such exchange pursuant to the provisions of section 2A-8(a)(3); and
4. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 13, 1994, within one (1) year of employment, or paid a two (2) percent per year penalty.

b. For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a pre-2003 Local 760 employee's year(s) of creditable service may also, if eligible pursuant to the provisions of subsection (b)(1), include additional sick exchange credit to the extent provided therein.

(c) *Employee contributions.* Local 760 employees shall contribute eight (8) percent of earnings (including holiday pay for forty-two (42) hours a week employees), excluding overtime and private jobs.

(1) *Section 414(h)(2) plan participants.* Local 760 employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each Local 760 employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *No interest on contributions.* Local 760 employees shall not be credited with interest on employee contributions to the fund.

(3) *Refund of contributions.* Upon separation from city service, contributions credited to a Local 760 employee, without interest, are payable to that employee upon request to the pension commission, except that no such payment will be made to an employee granted a normal, early or disability retirement allowance. If no request is made within ten (10) years, such contributions shall revert to the fund. In case of the death of a member without a qualified surviving spouse or qualified dependent child[ren], or the death of a member and the termination of all survivorship allowances to a qualified surviving spouse and/or qualified dependent child[ren], member contributions credited to a Local 760 employee, without interest, less any retirement or survivorship allowance paid to the member, his or her qualified surviving spouse and/or qualified dependent child[ren], shall be paid from the fund on the order of the pension commission to the beneficiary or beneficiaries, if any, named by such member. If no named beneficiaries survive the member, or the survivor of the member and his or her spouse, payment shall be made to the executors or administrators of such member or his or her spouse, as the case may be, except that, if the amount is less than one thousand dollars ($1,000.00), the refund may be made, at the option of the pension commission, in accordance with the terms of section 45-266 of the General Statutes or any amendment thereto.

(d) *Vesting.* A Local 760 employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 760 employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's and/or qualified dependent child[ren]'s rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse and or qualified dependent child[ren]'s leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse and or qualified dependent child[ren], if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's allowance, provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 760 employees.

(1) *Normal retirement eligibility.* Effective January 1, 2004, Local 760 employees shall be eligible for a normal retirement allowance upon completing twenty (20) years of continuous service.

(2) *Normal retirement allowance.*

a. The normal retirement allowance for pre-2003 Local 760 employees shall amount to:

1. two and eight-tenths (2.8) percent of the employee's final average pay for each whole year of creditable service for the first twenty-five (25) years of continuous service; and
2. two (2) percent of final average pay for each whole year of actual service thereafter provided; and
3. two and one-half (2.5) percent of final average pay for each year of creditable service obtained through basic sick exchange credit or prior military service,

to a maximum of eighty (80) percent of the employee's final average pay, provided that any pre-2003 Local 760 employee who reaches eighty (80) percent of final average pay, including military buyback and/or sick leave exchange, may purchase up to two (2) years of additional sick exchange credit for up to an additional five (5) percent of final average pay, to a maximum of eighty-five (85) percent of final average pay, including military buyback and/or sick leave exchange.

b. The normal retirement allowance for post-2003 Local 760 employees shall amount to:

1. two and one-half (2.5) percent of the employee's final average pay for each whole year of creditable service for the first twenty (20) years of continuous service; and
2. two (2) percent of final average pay for each whole year of actual service thereafter; and
3. two and one-half (2.5) percent of final average pay for each year of creditable service obtained through basic sick exchange credit or prior military service,

to a maximum of eighty (80) percent of the employee's final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 760 employees.

(1) *Early retirement eligibility.* Local 760 employees shall be eligible for an early re-

tirement allowance upon attaining age fifty (50) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for all Local 760 employees shall, at the election of the employee, consist of one (1) of the following: (1) an allowance equaling the actuarial equivalent, as determined by the pension commission, of the retirement allowance which the employee would have received if he or she left his or her contributions in the fund until the date he or she would have first become eligible for a normal retirement allowance; or (2) an allowance calculated in the same manner as the Local 760 employee's normal retirement allowance and then reduced by two (2) percent for each whole year by which the date of his or her termination of service falls short of the date on which he or she would have first become eligible for a normal retirement allowance, with prorations for any fraction of a year.

(g) *Disability retirement.* There shall be a disability retirement allowance for eligible Local 760 employees.

(1) *Administration of disability allowances.*

a. *Disability determination.* The existence and continuance of a disability shall be determined by the pension commission upon such medical evidence and other investigation as it may require.

b. *Continuance of allowance.* Any disability allowance provided hereunder shall continue during the period of such disability.

c. *Application.* In order to obtain any of the disability retirement allowances provided hereunder, a member shall apply in writing for such allowance to the pension commission within one (1) year after incurring the disability, and the allowance may be made retroactive to the date at which the pay of the disabled member ceased.

d. *Annual statement of earnings.* Every member receiving any of the disability retirement allowances provided hereunder shall, by March 31st of each year, file with the pension commission a sworn statement of all earnings received by the member from employment of any kind during the year ending on December 31st preceding the filing of the statement, or, if no such earnings have been earned, a sworn statement to that effect. If any member shall fail to make the report, the payment of the member's retirement allowance shall be suspended until such report has been filed.

(2) *Service connected full disability.* There shall be a service connected full disability allowance for eligible Local 760 employees.

a. *Service connected full disability eligibility.* A Local 760 employee shall be eligible for retirement and to receive a service connected full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided that such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, as defined by the Workers' Compensation Act.

Misconduct or intoxication. No service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

b. *Service connected full disability allowance.* The amount of the service connected full disability retirement allowance shall equal one hundred (100) percent of the member's annual pay, less any weekly payments representing income replacement under the Workers' Compensation Act.

(3) *Non-service connected full disability.* There shall be a non-service connected full disability allowance for eligible Local 760 employees.

a. *Non-service connected full disability eligibility.* A Local 760 employee shall be eligible for retirement and to receive a full disability retirement allowance if the member becomes permanently and totally disabled from engaging in any gainful employment, provided the member has completed at least five (5) years of continuous service.

Misconduct or intoxication. No non-service connected full disability retirement allowance shall be paid if the disability has been caused by the willful misconduct or intoxication of the disabled member.

b. *Non-service connected full disability allowance.* The amount of the non-service connected full disability retirement allowance shall be computed in a manner consistent with the Local 760 employee's normal retirement allowance, but no such disability allowance shall equal less than twenty-five (25) percent of the employee's final average pay.

(4) *Service connected partial disability.* There shall be a service connected partial disability allowance for eligible Local 760 employees.

a. *Service connected partial disability eligibility.* A Local 760 employee who suffers a permanent disability which does not prevent him from engaging in any gainful employment may nevertheless be eligible to receive a partial disability retirement allowance if such disability is shown to the satisfaction of the pension commission to have arisen out of and in the course of the member's employment by the city, as defined by the Workers' Compensation Act, and if it is shown to the satisfaction of the pension commission that as the result of said disability the Local 760 employee is prevented from performing the full duties of his or her class.

b. *Service connected partial disability allowance.*

1. For Local 760 employees who have completed fifteen (15) years of continuous service, the amount of the service connected partial disability allowance shall equal the amount the employee would have received had the employee completed twenty (20) years of continuous service and qualified for a normal retirement, provided that the amount of the allowance for employees who have completed twenty (20) years of continuous service shall equal the amount that the employee would have received had the employee qualified for and received a normal retirement allowance.

2. For Local 760 employees who have not completed fifteen (15) years of continuous service, the amount of the service connected partial disability allowance shall equal the amount that the employee would have received had the employee completed twenty (20) years of continuous service and qualified for a normal retirement, but the allowance shall be reduced by any income from gainful employment which, together with the allowance, exceeds one hundred (100) percent of the current rate of pay for an employee of the same or corresponding job classification held by the employee at the time of his or her retirement. For purposes of this subsection (b)(2), weekly payments representing income replacement un-

der the Workers' Compensation Act do not constitute income from gainful employment.

(5) *Non-service connected partial disability.* There shall be a non-service connected partial disability allowance for eligible Local 760 employees.

a. *Non-service connected partial disability eligibility.* A Local 760 employee who suffers a permanent disability which does not prevent the member from engaging in any gainful employment may nevertheless be eligible to receive a partial disability retirement allowance provided the employee has completed at least ten (10) years of continuous service and it is shown to the satisfaction of the pension commission that as the result of said disability the Local 760 employee is prevented from performing the full duties of his or her class.

b. *Non-service connected partial disability allowance.* The amount of the non-service connected partial disability retirement allowance shall be computed in a manner consistent with the calculation of the Local 760 employee's normal retirement allowance, provided it shall not be less than twenty-five (25) percent of the employee's final average pay.

If the Local 760 employee has less than fifteen (15) years of service, the non-service connected partial disability retirement allowance is reduced by the same percentage (the percentage applied to final average pay to determine the allowance) of the excess, if any, of the member's earnings from gainful employment over the amount of income which a social security beneficiary is entitled to earn without causing a reduction in his or her social security benefits.

(h) *Survivorship.* A qualified surviving spouse and/or the qualified dependent child[ren] of any Local 760 employee shall be entitled to the benefits provided below, provided that any qualified surviving spouse's, or qualified dependent child[ren]'s, rights to and/or interests in receiving a survivor's allowance hereunder shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse or qualified dependent child[ren]'s, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for receiving any normal or early retirement allowance.

(1) *Non-service connected cause of death.* Where the cause of death does not arise out of and in the course of the member's employment as defined in the Workers' Compensation Act, a qualified surviving spouse shall receive a survivor's allowance equal to twenty-five (25) percent of the member's earnings during the last twelve (12) months of employment at full salary, or fifty (50) percent of the member's retirement allowance, whichever is greater, payable monthly until the qualified surviving spouse's death or remarriage. In addition, the first qualified dependent child shall receive a survivor's allowance of one hundred dollars ($100.00), and each additional qualified dependent child shall receive fifty dollars ($50.00), payable monthly to the spouse if the children are in the spouse's care, or otherwise to their guardian, until the child or children attain the age of eighteen (18), unless incapacitated from engaging in gainful employment.

(2) *Service connected cause of death.* Where the cause of death arises out of and in the course of the member's employment as defined in the Workers' Compensation Act, a qualified surviving spouse shall receive a survivor's allowance equal to fifty (50) percent of the member's annual pay at the time of death, payable monthly until the spouse's death or remarriage. In addition, each qualified dependent child shall receive a survivor's allowance equal to ten (10) percent of such annual pay if there exists a qualified surviving spouse or a survivor's allowance equal to fifteen (15) percent of such annual pay if no qualified

surviving spouse exists, payable monthly until the child or children attain the age of eighteen (18), unless incapacitated from engaging in gainful employment. The total annual survivor's allowances for a qualified surviving spouse and surviving dependent child[ren] are limited to a maximum of seventy-five (75) percent of the member's annual pay. Such survivor's allowances for the qualified surviving spouse and qualified dependent child[ren] are subject to reduction during their compensable period so that the total annual amount including weekly workers' compensation payments shall not exceed one hundred (100) percent of the member's annual pay at the time of death.

If the death of a Local 760 member occurs after the member retires with a service connected disability retirement allowance, a similar survivor's allowance is payable to a qualified surviving spouse and qualified dependent child[ren], the amounts of such survivor's allowances being based upon the member's annual pay at the time of his or her retirement.

(Ord. No. 02-05, 3-14-05)

Sec. 2A-34. SCGA provisions.

(a) The pension rights and benefits of SCGA employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Final average pay*" for all SCGA employees shall equal the average earnings for the highest five (5) years of the last ten (10) years of service.

(2) "*Social Security average earnings*" shall equal the total of the member's Social Security covered earnings while the member was employed by the city divided by the member's years, months and days of actual service.

(3) "*Social Security covered earnings*" shall mean the earnings that are paid to a member upon which the member is subject to Social Security taxes.

(4) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a SCGA employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1);

[c. *Reserved*;]

d. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by October 30, 2001, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* SCGA employees shall contribute to the fund three percent (3%) of the employee's Social Security covered earnings and six percent (6%) on the balance of the employee's earnings. Effective the pay period beginning July 5, 2009 (pay date July 24, 2009), SCGA employees shall contribute to the fund four percent (4%) of the employee's Social Security covered earnings and seven percent (7%) on the balance of the employee's earnings. SCGA employee contributions to the fund are deducted at each pay period and credited to his or her account in the fund.

(1) SCGA employees are not section 414(h) plan participants.

(2) *Interest on contributions.* Effective July 1, 1981, the city will credit to a SCGA employee's contributions to the fund three percent (3%) interest on such contributions in the fund on June 30, 1980. Com-

mencing July 1, 1982, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three percent (3%) interest.

(3) *Refund of contributions.* SCGA employees may have their contributions refunded in accordance with subsection 2A-6(b)(4).

(d) *Vesting.* A SCGA employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any SCGA employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible SCGA employees.

(1) *Normal retirement eligibility.* All SCGA employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of continuous service or upon attaining age sixty (60) and completing ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for an SCGA employee shall amount to one (1) percent of Social Security average earnings and two (2) percent of the balance of his or her final average pay, multiplied by the number of whole years of the employee's service.

(f) *Early retirement.* There shall be an early retirement allowance for eligible SCGA employees.

(1) *Early retirement eligibility.* SCGA employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous city service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the SCGA employee's normal retirement allowance then reduced by two (2) percent for each whole year by which his early retirement precedes his or her normal retirement date with prorations for fractions of a year. Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* SCGA employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* SCGA employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05; Ord. No. 35-09, 9-14-09)

Sec. 2A-35. NBU-HPL provisions.

(a) The pension rights and benefits of NBU-HPL employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Final average pay*" for all NBU-HPL employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

(2) *Alternate final average pay election.* A NBU-HPL employee may elect to have his or her final average pay equal the average

gross earnings for the highest two (2) of the last five (5) years' gross earnings, provided such election is made by November 1, 1988, or within thirty (30) days of the commencement of his or her employment, whichever is later.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a NBU-HPL employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* NBU-HPL employees whose final average pay is based upon the highest five (5) of the last ten (10) years' gross earning shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent on the balance of the employee's earnings. NBU-HPL employees whose final average pay is based upon the highest two (2) of the last five (5) years' gross earnings shall contribute to the fund five (5) percent of the employee's earnings on which social security taxes are paid and eight (8) percent on the balance.

(1) *Section 414(h)(2) plan participants.* NBU-HPL employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each NBU-HPL employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1985, the city will credit to a NBU-HPL employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1984. Commencing July 1, 1986, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* NBU-HPL employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A NBU-HPL employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years' continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any NBU-HPL employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible NBU-HPL employees.

(1) *Normal retirement eligibility.* All NBU-HPL employees shall be eligible for a normal retirement allowance upon completing twenty-five (25) years of continuous service or upon attaining age sixty (60) and completing five (5) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for NBU-HPL employees shall amount to two (2) percent of the employee's final average pay for each whole year of creditable service to a maximum of seventy (70) percent of the employee's gross final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible NBU-HPL employees.

(1) *Early retirement eligibility.* NBU-HPL employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the NBU-HPL employee's normal retirement allowance and then reduced by four (4) percent for each year the employee retires short of age sixty (60). Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* NBU-HPL employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* NBU-HPL employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-36. Local 1716-HPL provisions.

(a) The pension rights and benefits of Local 1716-HPL employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Final average pay*" for all Local 1716-HPL employees shall equal the average earnings for the highest five (5) of the last ten (10) years' gross earnings.

(2) "*Alternate final average pay election.*" A Local 1716-HPL employee may elect to have his or her final average pay equal the average earnings for the highest two (2) of the last five (5) years of his or her gross earnings, provided such election is made by November 1, 1988, or within thirty (30) days of the commencement of his or her employment, whichever is later.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 1716-HPL employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 1, 1985, or within one year of employment, whichever is later.

(c) *Employee contributions.* Local 1716-HPL employees whose final average pay is based upon the highest five (5) of the last ten (10) years' gross earning shall contribute to the Fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent on the balance of the employee's earnings. A Local 1716-HPL employee whose final average pay is based upon the highest two (2) of the last five (5) years' gross earnings shall contribute to the fund five (5) percent of the employee's earnings on which social security taxes are paid and eight (8) percent on the balance.

(1) *Section 414(h)(2) Plan participants.* Local 1716-HPL employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each Local 1716-HPL employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1985, the city will credit to a Local 1716-HPL employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1984. Commencing July 1, 1986, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 1716-HPL employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 1716-HPL employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years' continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 1716-HPL employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 1716-HPL employees.

(1) *Normal retirement eligibility.* All Local 1716-HPL employees shall be eligible for a normal retirement allowance upon completing twenty-five (25) years of continuous service or upon attaining age sixty (60) and completing ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 1716-HPL employees shall amount to two (2) percent of the employee's final average pay for each whole year of creditable service to a maximum of seventy (70) percent of the employee's gross final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 1716-HPL employees.

(1) *Early retirement eligibility.* Local 1716-HPL employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance is calculated in the same manner as the Local 1716-HPL employee's normal retirement allowance and then reduced by four (4) percent for

each year the employee retires short of age sixty (60), with prorations for fractions of a year. Said reduction shall apply for the duration of the early retirement allowance.

(g) *Disability retirement.* Local 1716-HPL employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 1716-HPL employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-37. NBU-BOE provisions.

(a) The pension rights and benefits of NBU-BOE employees enumerated in chapter 2A, article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

Actual service and *creditable actual service* shall, for NBU-BOE employees furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day.

Final average pay for all NBU-BOE employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

Year(s) of creditable service, for purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a NBU-BOE employee's year(s) of creditable service may include:

(1) Creditable actual service;

(2) Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of subsection 2A-8(a)(1); and

(3) Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of subsection 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by February 27, 1990, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* NBU-BOE employees shall contribute to the fund a total of four and one-half (4½) percent of the employee's earnings on which social security taxes are paid and seven and one-half (7½) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) *Section 414(h)(2) plan participants.* NBU-BOE employee contributions to the fund are picked up by the city pursuant to subsection 2A-6(b)(1) and each NBU-BOE employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a NBU-BOE employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* NBU-BOE employees may have their contributions refunded in accordance with subsection 2A-6(b)(4).

(d) *Vesting.* A NBU-BOE employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of five (5) years of continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any NBU-BOE employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

Any NBU-BOE employee that:

(1) Has completed at least twenty-five (25) years of continuous full-time service,

(2) Has separated from city service and is not eligible to receive a retirement allowance at such time of separation; and

(3) Has elected to leave his or her contributions in the fund shall have a vested right to his or her normal retirement allowance upon attaining age fifty-five (55).

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible NBU-BOE employees.

(1) *Normal retirement eligibility.* All NBU-BOE employee shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least five (5) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for NBU-BOE employees shall amount to two (2) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible NBU-BOE employees.

(1) *Early retirement eligibility.* NBU-BOE employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least five (5) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for NBU-BOE employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* NBU-BOE employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* NBU-BOE employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05; Ord. No. 21-09, 5-26-09)

Sec. 2A-37A. HFCDA-BOE.

(a) The pension rights and benefits of HFCDA-BOE employees enumerated in Chapter 2A, Article I, shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for HFCDA-BOE employees furloughed for one (1) day during the 1990-91 school years, include the one furlough day.

(2) "*Final average pay*" for all HFCDA-BOE employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final

average pay for each year of creditable service, a HFCDA-BOE employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by February 27, 1990, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* HFCDA-BOE employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) *Section 414(h)(2) Plan participants.* HFCDA-BOE employee contributions to the Fund are picked up by the city pursuant to section 2A-6(b)(1) and each HFCDA-BOE employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a HFCDA-BOE employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1 thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* HFCDA-BOE employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A HFCDA-BOE employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous city service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any HFCDA-BOE employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible HFCDA-BOE employees.

(1) *Normal retirement eligibility.* All HFCDA-BOE employee shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for HFCDA-BOE employees shall amount to two (2) percent of final average pay for each whole year of

creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible HFCDA-BOE employees.

(1) *Early retirement eligibility.* HFCDA-BOE employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for HFCDA-BOE employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* HFCDA-BOE employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* HFCDA-BOE employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.

(i) *Status of benefits.* All the above pension rights and benefits of the HFCDA-BOE employees, including those enumerated in Chapter 2A, Article I, shall be effective as of and retroactive to January 23, 2003; and all the pension rights and benefits of NBU-BOE employees, as set forth in Chapter 2A, Article 1 and Chapter 2A, section 2A-37, shall only be effective up to and through January 22, 2003.
(Ord. No. 01-07, 1-22-07)

Sec. 2A-38. Local 78 provisions.

(a) The pension rights and benefits of Local 78 employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* As used in this section, the following terms shall have the meanings ascribed thereto below, unless, and then only to the extent, a definition of particular application hereafter specifically provides for a different meaning with respect to any such terms within the context of said section.

(1) *Final average pay.* Final average pay for all Local 78 employees shall equal the average gross earnings for the highest three (3) of the last five (5) years' gross earnings.

(2) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 78 employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so made the request required by that section within one (1) year of employment.

(c) *Employee contributions.* Local 78 employees shall contribute to the fund a total of eight and seventy-five hundredths (8.75) percent of the employee's earnings on which social security taxes are paid and eleven and seventy-five hundredths (11.75) percent of the balance of the employee's earnings.

(1) *Section 414(h)(2) plan participants.* Local 78 employee contributions to the fund are picked up by the city pursuant to section 2A-6(b)(1) and each Local 78 employee's earnings for each pay period are reduced by an amount equal to his or her contributions so picked up by the city pursuant to that section.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a Local 78 employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous year's June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 78 employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 78 employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 78 employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 78 employees.

(1) *Normal retirement eligibility.* All Local 78 employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 78 employees shall amount to two and one-half (2.5) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 78 employees.

(1) *Early retirement eligibility.* Local 78 employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 78 employees shall be based on the normal retire-

ment allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 78 employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 78 employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-39. Local 82 provisions.

(a) The pension rights and benefits of Local 82 employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) *Final average pay.* Final average pay for all Local 82 employees shall equal the average gross earnings for the highest three (3) of the last five (5) years' gross earnings.

(2) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 82 employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so within one (1) year of employment.

(c) *Employee contributions.* Local 82 employees shall contribute to the fund a total of eight and forty-one hundredths (8.41) percent of the employee's earnings on which social security taxes are paid and eleven and forty-one hundredths (11.41) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 82 employees are not section 414(h)2 plan participants.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a Local 82 employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 82 employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 82 employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 82 employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for

any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 82 employees.

(1) *Normal retirement eligibility.* All Local 82 employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 82 employees shall amount to two and one-half (2.5) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 82 employees.

(1) *Early retirement eligibility.* Local 82 employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 82 employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 82 employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 82 employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-40. Local 818 provisions.

(a) The pension rights and benefits of Local 818 employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for Local 818 employees furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day.

(2) "*Final average pay*" for all Local 818 employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 818 employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 13, 1993, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* Local 818 employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 818 employees are not section 414(h)(2) plan participants.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a Local 818 employee's contributions to the Fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 818 employees shall have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 818 employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 818 employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 818 employees.

(1) *Normal retirement eligibility.* All Local 818 employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 818 employees shall amount to two (2) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 818 employees.

(1) *Early retirement eligibility.* Local 818 employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 818 employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 818 employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 818 employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-41. Local 1018A/B provisions.

(a) The pension rights and benefits of Local 1018A/B employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for Local 1018A/B employees furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day.

(2) "*Final average pay*" for all Local 1018A/B employees shall equal the average gross earnings for the highest three (3) of the last five (5) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 1018A/B employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 13, 1993, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* Local 1018A/B employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 1018A/B employees are not section 414(h)(2) plan participants.

(2) *Interest on contributions.* Effective July 1, 1988, the city will credit to a Local 1018A/B employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1987. Commencing July 1, 1989, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 1018A/B employees shall have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 1018A/B employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 1018A/B employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 1018A/B employees.

(1) *Normal retirement eligibility.* All Local 1018A/B employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 1018A/B employees shall amount to two (2) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 1018A/B employees.

(1) *Early retirement eligibility.* Local 1018A/B employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 1018A/B employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 1018A/B employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 1018A/B employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-42. Local 1018C provisions.

(a) The pension rights and benefits of Local 1018C employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for Local 1018C employees furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day.

(2) "*Final average pay*" for all Local 1018C employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 1018C employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 13, 1993, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* Local 1018C employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 1018C employees are not section 414(h)(2) plan participants.

(2) *Interest on contributions.* Effective July 1, 1988, the city will credit to a Local 1018C

employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1987. Commencing July 1, 1989, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 1018C employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 1018C employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 1018C employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 1018C employees.

(1) *Normal retirement eligibility.* All Local 1018C employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 1018C employees shall amount to two (2) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 1018C employees.

(1) *Early retirement eligibility.* Local 1018C employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 1018C employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 1018C employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 1018C employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-43. Local 1018D provisions.

(a) The pension rights and benefits of Local 1018D employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for Local 1018D employees furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day.

(2) "*Final average pay*" for all Local 1018D employees shall equal the average gross earnings for the highest five (5) of the last ten (10) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 1018D employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so by January 13, 1993, or within one (1) year of employment, whichever is later.

(c) *Employee contributions.* Local 1018D employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 1018D employees are not section 414(h)(2) plan participants.

(2) *Interest on contributions.* Effective July 1, 1988, the city will credit to a Local 1018D employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1987. Commencing July 1, 1989, and each July 1st thereafter, pension contributions and any interest credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 1018D may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 1018D employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 1018D employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 1018D employees.

(1) *Normal retirement eligibility.* All Local 1018D employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of actual service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 1018D employees shall amount to two (2) percent of final average pay for each whole year of creditable service up to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 1018D employees.

(1) *Early retirement eligibility.* Local 1018D employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 1018D employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 1018D employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 1018D employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-44. Local 2221 provisions.

(a) The pension rights and benefits of Local 2221 employees enumerated in Chapter 2A, Article I shall include those rights and benefits enumerated below in this section.

(b) *Definitions.* For purposes of this section, the following terms shall have the meanings ascribed thereto below.

(1) "*Actual service*" and "*creditable actual service*" shall, for Local 2221 employee furloughed for one (1) day during the 1990-91 school years, include the one (1) furlough day. Any Local 2221 employee who, but for having been furloughed at any time during the 1992-93 school years, would have completed an entire year of creditable service by June 30, 1993, shall have his or her actual service and creditable actual service include that additional year of creditable service provided that the member contributes such additional amounts to the fund as such member would have contributed had such member not been furloughed (without interest) on or before the earlier of (i) December 31, 1993 or (ii) his or her effective date of retirement.

(2) "*Final average pay*" for all Local 2221 employees shall equal the average gross earnings for the highest three (3) of the last five (5) years' gross earnings.

(3) *Year(s) of creditable service.* For purposes of calculating the amount of any retirement allowance that is based upon the provision of a specified percentage of final average pay for each year of creditable service, a Local 2221 employee's year(s) of creditable service may include:

a. Creditable actual service;

b. Transferred service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(1); and

c. Prior military service, to the extent the employee is otherwise entitled to have such service credited pursuant to the provisions of section 2A-8(a)(2) and provided that the employee has submitted written notice to the pension commission of his or her election to do so within one (1) year of employment.

(c) *Employee contributions.* Local 2221 employees shall contribute to the fund a total of four (4) percent of the employee's earnings on which social security taxes are paid and seven (7) percent of the balance of the employee's earnings to be deducted at each pay period and credited to the employee's account in the fund.

(1) Local 2221 employees are not section 414(h)(2) plan participants.

(2) *Interest on contributions.* Effective July 1, 1980, the city will credit to a Local 2221 employee's contributions to the fund three (3) percent interest on such contributions in the fund on June 30, 1979. Commencing July 1, 1981, and each July 1st thereafter, pension contributions and any inter-

est credited as of the previous calendar year June 30th will be credited with three (3) percent interest.

(3) *Refund of contributions.* Local 2221 employees may have their contributions refunded in accordance with section 2A-6(b)(4).

(d) *Vesting.* A Local 2221 employee's rights to and/or interests in any normal or early retirement allowance shall vest upon completion of ten (10) years of continuous service, regardless of age. The survivor benefits herein provided with respect to any normal or early retirement shall attach to the vesting privilege, but shall be payable only at such time as the member becomes eligible, or, in the case of a deceased member, would have become eligible, for an allowance under the member's normal or early retirement provisions.

Any Local 2221 employee's rights to and/or interests in receiving any normal or early retirement allowance, and any surviving spouse's rights to and/or interests in receiving a survivor's allowance, from the fund shall be subject to and remain contingent upon the member and, as applicable, his or her qualified surviving spouse, leaving the member's contributions in the fund and otherwise satisfying all of the eligibility requirements for any normal, early or survivor's allowance. Likewise, any normal or early retirement allowance or survivor's allowance that is or may become payable to any such member and/or his or her qualified surviving spouse, if any, shall be paid under and in accordance with the member's normal or early retirement, or survivor's, allowance provisions, as applicable.

(e) *Normal retirement.* There shall be a normal retirement allowance for eligible Local 2221 employees.

(1) *Normal retirement eligibility.* All Local 2221 employees shall be eligible for a normal retirement allowance upon attaining age fifty-five (55) and completing twenty-five (25) years of continuous service, or upon attaining age sixty (60) and completing at least ten (10) years of continuous service.

(2) *Normal retirement allowance.* The normal retirement allowance for Local 2221 employees shall amount to two and one-half (2.5) percent of the employee's final average pay for each whole year of creditable service for the first twenty (20) years of actual service, and two (2) percent of final average pay for each whole year of creditable service thereafter and for prior military service, to a maximum of seventy (70) percent of final average pay.

(f) *Early retirement.* There shall be an early retirement allowance for eligible Local 2221 employees.

(1) *Early retirement eligibility.* Local 2221 employees shall be eligible for an early retirement allowance upon attaining age fifty-five (55) and completing at least ten (10) years of continuous service.

(2) *Early retirement allowance.* The early retirement allowance for Local 2221 employees shall be based on the normal retirement allowance formula but reduced by four (4) percent for each whole year the employee retires short of age sixty (60).

(g) *Disability retirement.* Local 2221 employees shall be entitled to those disability retirement allowances provided in section 2A-11 to the extent eligible thereunder.

(h) *Survivorship.* Local 2221 employees shall be entitled to those survivorship allowances provided in section 2A-12 to the extent eligible thereunder.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-45. Section 401(a) plan established.

There is hereby established a City of Hartford Section 401(a) Defined Contribution Plan ("401(a) Plan"). Post-2019 NBU-GG employees are not eligible to be members of the MERF, but may, upon hire, elect to participate in the City's 401(a) plan.
(Ord. No. 08-19, 5-28-19)

Sec. 2A-46. Contributions.

(a) *Internal Revenue Code Section 414(h) Pick-up Contributions*. The 401(a) Plan will contain a pick-up contribution provision as defined under section 414(h) of the Internal Revenue Code subject to and in accordance with the terms set forth in this subsection. The purpose of this provision is to enable pick-up contributions to the plan to be made in such a manner that the value of such contributions are neither subject to the payment of federal income taxes until such contributions are distributed to such employees, nor withholding of such taxes when such contributions are made to the extent permitted by the Internal Revenue Code. The pick-up contributions of those members who are expressly identified as "401(a) Plan Participants" shall be governed by subsections (a) and (b) of this section.

a. Post-2019 NBU-GG employees shall elect, within thirty (30) days of the date of hire whether to:

   i. make a one-time irrevocable election to not participate in the 401(a) Plan; or

   ii. elect for the City to make pick-up contributions in an amount which must be a minimum of three percent (3.0%) of the 401(a) Plan Participant's base rate of pay ("Pay"). The election to participate and the percentage amount of pick-up contributions, if applicable, is irrevocable and cannot thereafter be changed during the term of that individual's employment as a NBU-GG employee.

b. The city shall pick up and deposit to the 401(a) Plan all 401(a) Plan Participants' pick-up contributions, as elected by the 401(a) Plan Participant, in accordance with paragraph (i) of this subsection. Nothing herein shall relieve any 401(a) Plan Participant from any obligation to make pick-up contributions to the 401(a) Plan, it being the intent and effect hereof instead, that the city shall deposit each 401(a) plan participant's pick-up contributions to the 401(a) Plan in lieu of such employee making such contributions.

c. In consideration of the city picking up such pick-up contributions, 401(a) Plan Participants shall have their Pay reduced by an amount equal to the contributions so picked up by the city.

(b) *City Contributions*. The city shall pay on into the designated account, on an annual basis, an amount equal to the proportion of pay contributed by each 401(a) Plan Participant, provided that the city contribution shall not exceed seven percent (7.0%) of the base rate of pay the 401(a) Plan Participant.
(Ord. No. 08-19, 5-28-19)

Sec. 2A-47. Vesting.

(a) A 401(a) Plan Participant's rights to and/or interests in the city contributions, as set forth in Section 2A-46 (b), vest upon completion of the following schedule of continuous years of service, regardless of age:

Year one (1):	zero percent (0.0%)
Year two (2):	twenty percent (20.0%)
Year three (3):	fifty percent (50.0%)
Year four (4):	eighty percent (80.0%)
Year five (5):	one hundred percent (100.0%)

(Ord. No. 08-19, 5-28-19)

Secs. 2A-48, 2A-49. Reserved.

ARTICLE III. ADMINISTRATION

Sec. 2A-50. Administration.

(a) For purposes of this section, the following terms shall have the meaning ascribed thereto below:

(1) "*Savings accounts*" shall mean any of such deposits in or accounts with (including, without limitation, certificates of deposit issued by) any banking institutions as referenced in C.G.S. sections 45a-203(a)(2) and (3);

(2) "*Equity investments*" shall mean and include any and all securities, real property and other investments (including, without limitation, common stocks, and shares of (or units in) any closed or open-end investment companies or trusts) except the following: (A) cash and cash-equivalent securities, (B) savings accounts, (C) any corporate or government bonds, (D) mortgages, or (E) other fixed-income instruments or securities;

(3) A "*qualified custodian*" shall be any state bank, trust company, state bank and trust company or national banking association located in the states of Connecticut or New York or in the commonwealths of Massachusetts or Pennsylvania which is a member of the federal system and whose capital, surplus and undivided profits in the aggregate are not less than fifty million dollars ($50,000,000.00);

(4) "*Administrative expenses*" shall mean and include (A) the salaries of all personnel hired by the pension commission, (B) that portion of the salaries, benefits and other compensation of those other city officials and employees who provide services to the funds to the extent their duties are fairly allocable to performing such work as determined by the pension commission, and (C) the cost and expense of all goods and services (other than investment expenses) which are procured on the funds' behalf; and

(5) "*Investment expenses*" shall mean and include (A) the cost and expense of any and all custodial arrangements and investment advisory, consultant and management services, and (B) any and all costs and expenses such as brokerage fees and commissions which are typically added to, or subtracted from, the purchase price, or proceeds realized from the disposition, of any investment.

(b) In addition to its other responsibilities hereunder, the pension commission shall administer any and all of the city's other retirement and savings plans and benefits, which, together with the funds, shall be known as the city's retirement system. It shall appoint a plan administrator of, and, with the approval of the corporation counsel, a general counsel for, the system. It also shall appoint a chief investment officer and, subject in all cases to the provisions of subsections (e) and (j) below, may appoint and remove such other employees as it deems necessary or desirable to carry out its responsibilities hereunder. At the pension commission's election, the general counsel may serve either as an employee or, pursuant to section 2A-50(h) below, an independent contractor, and, if and so long as he or she serves as an employee, also as the plan administrator. Except as otherwise provided in this section, the pension commission shall have the sole authority for determining the titles, qualifications, duties, compensation and terms of office or employment of each official or employee which is appointed by it. All such personnel who are employed by the pension commission shall, however, be members of the fund and entitled to the same retirement and insurance benefits as nonbargaining unit employees of the city in the unclassified service, and, at the discretion of the pension commission, other benefits similar to nonbargaining unit employees of the city in the unclassified service; providing that all the employer contributions required to fund or otherwise purchase or pay for such benefits, as well as the salaries and any other compensation payable to such personnel, shall be paid from the income of the funds. The pension commission shall be the sole authority capable of removing any employee which it has appointed from office. The pension commission shall only exercise such authority after (i) an employee has been served with written notice of the pension commission's intent to consider removing him or her therefrom, containing a clear statement of the grounds for such removal and of the time and place, not less than ten (10) days after the service of such notice, at which he or she will be given the opportunity to be heard thereon, and (ii) such hearing is then concluded. After such hearing, which shall be public at the option of such employee, the action of the pension commission shall be final. The pension commission may suspend any such employee from duty for not

more than thirty (30) days pending such final action at any time after the aforesaid notice has been served thereon. The pension commission shall select, appoint, retain and discharge any employees within its jurisdiction only in accordance with the standard of care set forth in section 2A-50(e) below.

(c) The plan administrator shall be the head of the retirement system and, in that capacity, shall have responsibility for implementing the administration of the provision of benefits from the funds, including, without limitation, the calculation and payment thereof, and shall perform such other duties relative to the funds as may be prescribed by the pension commission. Such duties may include, without limitation, providing such assistance to the city treasurer in the performance of any of his or her duties under this section as is required by the pension commission. No changes shall be made in the nature or level of any pension benefits provided to any members of the funds, or to the qualifications for membership, unless the plan administrator is first given an opportunity to comment on the impact any proposed changes would have on the interpretation, administration or other matters affecting the provision of benefits from the funds, any of which comments shall be provided in writing within ten (10) days of the mayor's written request therefore or such additional period of time as is reasonably required in the circumstances. The general counsel shall represent the pension commission and the system in all legal proceedings affecting the same and provide such advice and counsel to the pension commission, plan administrator and city treasurer in connection with the system as the pension commission directs, providing, however, that no claims which are made or actions which are brought by or against, or which otherwise affect, the system, or any one (1) or more of its plans or funds, or any person or body acting on their behalf shall be compromised without the approval of each of the pension commission, corporation counsel and the city council.

(d) The city treasurer shall have the care and custody of all of the assets in all of the pension funds and, with the approval of the pension commission and subject to the other provisions of this section, shall have power to invest and reinvest the same in securities, real property and other investments permissible by law for the investment of trust funds pursuant to the Connecticut Uniform Prudent Investor Act, Public Act 97-140; providing, however, that no more than sixty (60) percent of the assets of any fund shall be invested in equity investments, at any one (1) time. For purposes of making the foregoing calculations only, assets shall be taken at book value (carrying value) rather than market value, and assets held by insurance companies on behalf of any fund, including actuarial reserves for annuity contracts, shall be included within the fixed dollar portion of the account. Any investment which was made prior to April 27, 1998, and any investment which complies with the provisions of this section in effect at the time it is made, may be retained even though its purchase otherwise would be prohibited hereunder unless the standard of care set forth in subsection (e) below requires its sale or other disposition.

(e) The city treasurer, plan administrator and the pension commission shall be fiduciaries of the system and, in that capacity, shall fulfill their duties hereunder with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in like capacity and familiar with such matters would then use in the conduct of an enterprise of like character and purpose. Without limiting the generality of the foregoing, the city treasurer, plan administrator and the pension commission shall discharge their duties:

(1) Solely in the interests of, and for the purpose of providing benefits to, participants and beneficiaries of the applicable fund or plan consistent with the other provisions of this chapter and applicable law;

(2) Impartially, taking into consideration any differing interests of various participants and beneficiaries within each fund and plan;

(3) By diversifying the investments of the assets of the funds so as to minimize the

risk of large losses unless under the circumstances it is clearly prudent not to do so;

(4) Except to the extent they may be paid by the city as contemplated by subsections (g) and (i) below, incurring and paying all reasonable and appropriate expenses of administering the funds and plans; and

(5) In accordance with a good faith interpretation of the terms of this chapter and other applicable law.

(f) Circumstances which shall be considered by the city treasurer, pension commission and any other fiduciaries when investing and managing any funds' assets also shall include, but not be limited to the following, to the extent relevant thereto:

(1) General economic conditions;

(2) The possible effect of inflation or deflation;

(3) The expected tax consequences, if any, of investment decisions, strategies and distributions;

(4) The role that each investment or course of action plays within a fund's overall portfolio, which, except as otherwise provided in this section, may include financial assets, interests in closely held enterprises, tangible and intangible personal property and real property;

(5) The expected total return from income and the appreciation of capital;

(6) Related trusts and other income and resources of the participants and beneficiaries;

(7) Needs for liquidity, regularity of income and preservation or appreciation of capital;

(8) An asset's special relationship or special value, if any, to the purposes of the fund;

(9) The size and actuarial funding status of the fund; and

(10) The nature and estimated duration of the fund.

The fiscal integrity and economic well being of the city being of primary significance in its ability to ultimately fulfill its obligations to financially support the funds, the city treasurer and the pension commission, also may, when possible and consistent with their other fiduciary duties imposed hereunder and applicable law, consider whether the investment of any assets of, or expenditure of any income from, any fund will enhance or promote the general welfare of the city and its residents.

(g) The city treasurer, with the approval of the pension commission, may provide by contract with any qualified custodian for the care and custody of any or all securities and other assets of the pension funds by such custodian, or for investment advice with respect to such funds, or for both such care and custody and investment advice. any securities held by the city treasurer or any qualified custodian also may, in turn, be deposited in a clearing corporation subject to and in accordance with the provisions of section 45a-208 of the Connecticut General Statutes. Subject to approval by the pension commission, each of the city treasurer and plan administrator also may procure such other goods and services (including, but not limited to, the services of investment counsel, investment advisors, investment managers, actuaries, and pension benefit administrators) as may be reasonably required by them in connection with the efficient and effective administration of, or investment of any of the assets in, the funds. Subject to approval by the pension commission and the corporation counsel, the general counsel also may procure additional legal and other services as may be reasonably required in connection with his or her representation of the funds.

(h) The selection of and award of contracts to any persons or entities which are to provide any goods or services to any plan or fund shall be governed by the standard of care set forth in subsection (e) above, but shall not be subject to the provisions of Charter Chapter VIII, section 5(d). The charges for all goods and services which are procured pursuant to subsection (g) above, together with any and all other administra-

tive expenses, shall be paid from the income of the funds, except to the extent that any appropriations have been made therefore.

(i) Any person or entity (including, but not limited to, any qualified custodian) which is contracted to invest, or direct or manage the investment of, any assets of the funds shall be, and shall specifically acknowledge in writing that such advisor is, (i) a fiduciary of the assets of the fund(s) for which such advisor has agreed to provide such services, (ii) registered as an investment company or investment adviser in good standing under the Investment Company and Advisers Acts of 1940, as amended, unless exempt from such registration, (iii) subject to the same limitations and standards governing the investment and reinvestment of such assets as apply to the city treasurer and the pension commission under or by reason of this section (unless, and then only to the extent, with respect to the standard set forth in subsection (g)(3) above, the city treasurer, with the pension commission's approval, agrees that such is not the case), and (iv) in compliance, and that such advisor will comply, with all applicable laws and regulations governing the investment of the assets of the funds. Any duty or responsibility which is imposed or otherwise pertains to the investment of the assets of any fund hereunder shall apply, without limitation, to the selection, acquisition, retention and disposition of each security or other investment vehicle which is, or is to be, held by such fund; provided, however that any investment decisions with respect to individual assets shall be evaluated not in isolation, but in the context of the entire portfolio of the fund of which they constitute a part and as a portion of an overall investment strategy for such fund which is consistent with the requirements of this section; and, provided, further, that the city treasurer and the pension commission shall not be liable for any specific investments which are made by any investment advisor, custodian or other fiduciary so long as said person or entity is selected, appointed and retained (and the performance of such person or entity is therefore reviewed), and any assets of the fund for which the same is delegated investment responsibility are allocated, in accordance with the standards and limitations otherwise set forth in this section. Except as otherwise provided by the city treasurer or the pension commission, the limitations placed on the percentage of any fund's assets which may be invested in equity investments as set forth in subsection (d) above shall be calculated on the basis of all of the assets in a fund as opposed to any portions thereof for which the city treasurer retains, or any investment managers or custodians may be delegated, investment responsibility hereunder.

(j) On or before the thirtieth day prior to the date set by the city manager for submitting budget requests in any year, the city treasurer, after consultation with the plan administrator, shall provide the pension commission with the city treasurer's recommended budget for all of the administrative expenses to be incurred in connection with the administration of the funds in the ensuing fiscal year. Each such budget shall identify (i) the amounts anticipated to be required to be paid for all administrative expenses in the ensuing year, (ii) the nature and source of all such expenses, (iii) the source of revenue (including, without limitation, soft dollars) which are anticipated to be used to pay such expenses, and (iv) the extent to which any of the foregoing differs from both the current and prior year's budgeted and actual expenses. At the time set by the mayor for making budget requests, the pension commission shall submit estimates of the sums necessary to be appropriated for the ensuing fiscal year for the purpose of meeting the obligations of the city under the provisions of this chapter, and an estimate of the appropriation necessary to meet the expenses of the pension commission in the performance of its duties during such year. The pension commission shall have sole authority to establish its budget each year, providing, however, that none of its expenses shall be paid from the city's general fund except within the amounts appropriated by the city council therefore. Additionally, except as clearly may be required to fulfill the city treasurer's, plan administrator's and/or pension commission's duties pursuant to the standard of care set forth in subsection (e) above, the cumulative amount of any administrative expenses which are to be paid from the income of

the funds in any fiscal year shall not exceed the total of such expenses reflected in the city treasurer's recommended budget for, or one (1) percent of the carrying value of the funds as of the first day of, said year, whichever is less.

(k) The pension commission shall adopt a statement of investment policies and objectives for each fund which includes, without limitation, the following: (i) the desired rate of return for the fund as a whole; (ii) the desired rate of return and acceptable levels of risk for each asset class within the fund; (iii) the asset allocation goals for the fund; (iv) the guidelines which will apply to the selection and retention of custodians and investment managers for the fund; and (v) information on the types of reports which will be used to evaluate investment performance for the fund. The pension commission shall review such statement, and either change it or reaffirm it at least once each year.

(l) The city treasurer, with the approval of the pension commission, may provide part or all of the pensions to which retired employees of any class, as determined by the rules of the pension commission, are entitled by contracting with one (1) or more life insurance companies authorized to do business in the State of Connecticut for the payment of annuities to such employees, and the purchase of an annuity for any employee shall satisfy the pension obligations of the city to such employee to the extent of the annuity payments made under such contract.

(m) The pension commission shall have the power to make rules and regulations for the purpose of carrying out the provisions of this chapter.
(Ord. No. 02-05, 3-14-05)

Sec. 2A-51. Defined contribution plan.

(a) All non-union employees hired on or after July 1, 2017 shall be enrolled in a defined contribution plan. The plan design and other requirements shall be developed by the city treasurer and the appropriate departments within the city and approved by the mayor and the council on or before March 31, 2017, and such plan shall be administered by the pension commission.

(b) The commission shall conduct its oversight function and act: (1) with the care, skill prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims; (2) in accordance with strict fiduciary standards and responsibilities; and (3) in accordance with the plan details as approved by the mayor and council.

(c) The pension commission may contract with a third party administrator to manage the investments and other aspects of the defined contribution plan, as approved.
(Ord. No. 02-17, 1-23-17)

Chapter 3

ADVERTISING*

*Cross references—Commission on cultural affairs, § 2-176 et seq.; office of cultural affairs, § 2-196 et seq.; employment resource development commission, § 2-311 et seq.; auctions and auctioneers, Ch. 8; civic center and coliseum authority, Ch. 10; close-out sales, Ch. 11; gasoline dealers, Ch. 16; licenses and permits generally, Ch. 21; noisy advertising prohibited, § 23-2(13).

Sec. 3-1. Placing without authorization.

No person shall place or maintain any poster, placard, sign or advertising device of any kind upon any private premises, pole or tree or in any public place, without obtaining the written consent of the owner of the property. If the property is owned by the city, the written consent of the director of the department having charge of such property shall be obtained.
(Code 1977, § 3-1)

Sec. 3-2. Distribution on private premises.

No person shall distribute or cause to be distributed handbills or other advertising matter at buildings, houses, dwellings, stores or other structures other than by placing them inside screen doors, under doors or in the jambs of doors.
(Code 1977, § 3-2)

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Chapter 4

ALCOHOLIC BEVERAGES*

Sec. 4-1. Liquor—Bottle clubs.
Sec. 4-2. Same—Sunday sales.
Sec. 4-3. Regulation of the consumption and possession of alcoholic liquor within and upon public highways, public areas and parking areas.

*__Cross references—__General penalty, § 1-4; commission on alcohol and drug abuse, § 2-211 et seq.; health and sanitation, Ch. 17; motor vehicles and traffic, Ch. 22; offenses—miscellaneous, Ch. 25; alcoholic beverages prohibited generally in parks, § 26-41; police, Ch. 29; streets and sidewalks, Ch. 31; vehicles for hire, Ch. 33.

Sec. 4-1. Liquor—Bottle clubs.

It shall be unlawful to conduct or operate any bottle club within the city other than in compliance with the General Statutes.
(Code 1977, § 24-11)

State law reference—Bottle clubs, G.S. § 30-100.

Sec. 4-2. Same—Sunday sales.

All hotels, restaurants and clubs which are operated by permittees under the Liquor Control Act as amended, shall be permitted to sell alcoholic liquor between the hours of 12:00 noon on Sundays and 1:00 a.m. on Monday.
(Code 1977, § 24-12; Ord. No. 97-89, 9-25-89)

State law reference—Authority to allow Sunday sales, G.S. § 30-91.

Sec. 4-3. Regulation of the consumption and possession of alcoholic liquor within and upon public highways, public areas and parking areas.

(a) *Definitions.* For the purposes of this section:

Alcoholic liquor has the same meaning as set forth in section 30-1 of the general statutes.

Open container means any open bottle; any bottle which was sealed by a liquor tax stamp, which seal has been broken, whether or not stopped; any can which has been opened in any way; any keg or dispensing device which is set up to dispense; or any glass, cup, jar, or other vessel.

Parked vehicle has the same meaning as set forth in G.S. § 14-1.

Parking area means lots, areas or other accommodations for the parking of motor vehicles off the street or highway and open to public use, with or without charge.

Public area means any park, plaza, mall, arena, stadium, cemetery, or other public-owned place which is open to the public. For purposes of this section, except as provided in subsection (c) below, public area shall not mean any privately-owned business of public accommodation that is operated on or within City-owned property, under a lease or agreement granting such use to a private business entity.

Public highway means a highway, road, street, avenue, boulevard or other way within and under the control of the city and open to public use, including the sidewalks of any such highway.

(b) *Prohibited acts.* Except as permitted in subsection (c), no person shall consume any alcoholic liquor, or possess any open container of alcoholic liquor, upon or within the limits of any public highway, public area, or parking area within the city. For the purposes of this section, without limiting the generality of this subsection, the consumption of alcoholic liquor or the possession of an open container of alcoholic liquor in parked vehicles within or upon parking areas or a public highway or sidewalk is a violation of this section.

(c) *Exception.* Consumption of alcoholic liquor and possession of an open container of alcoholic liquor is permitted during any function, festival, event or celebration conducted on or within a public highway, public area, or parking area pursuant to any law, statute, ordinance, resolution or permit authorizing sale and consumption of liquor in or upon such public highway, public area or parking area.

(d) *Penalty.* A person who violates any provision of this chapter shall be summoned or brought to community court pursuant to P.A. 97-199. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this chapter.
(Code 1977, § 24-21; Ord. No. 17-82, § 1, 12-13-82; Ord. No. 103-89, 10-10-89; Ord. No. 23-97, 11-24-97; Ord. of 11-25-24)

Cross references—Assemblies and parades generally, Ch. 7; motor vehicles and traffic, Ch. 22; parks and recreation, Ch. 26; streets and sidewalks, Ch. 31.

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Chapter 5

AMUSEMENTS*

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Sec. 5-96. Gambling and other illegal devices not permitted.
Secs. 5-97—5-115. Reserved.

***Cross references—**Commission on cultural affairs, § 2-176 et seq.; office of cultural affairs, § 2-196 et seq.; assemblies, festivals and parades generally, Ch. 7; fire prevention in places of public assembly, § 13-91 et seq.

State law reference—Authority to license and regulate amusements, G.S. § 7-194(3).

Article V. Shooting Galleries

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ARTICLE I. IN GENERAL

Sec. 5-1. License required.

No person shall display or produce publicly in the city to be seen or heard any sport, public amusement, musical, operatic, dramatic, theatrical or pictorial performance, circus or other exhibition, or any public assemblage for any purpose whatsoever which is held or conducted wholly or partly under a tent or other temporary structure, or advertise the same by any illustrated bill, poster, hanger or display card, or open for business any billiard parlor or bowling alley, without a license to do so issued by the bureau of licenses and inspections approved by the chief of police. However, no license shall be required when such activity is presented in the public portion of the Hartford Civic Center.
(Code 1977, § 4-1)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 5-2. License fees.

Before any license required by section 5-1 is issued for any performance to which admission is obtained by the payment of money or the delivery of any valuable thing, or by any ticket or voucher obtained for money or any valuable thing, the applicant shall pay for such license the fee as follows:

(1) Circuses, wild west shows and other outdoor and tent performances of an itinerant or transient character, one hundred fifty dollars ($150.00) per day;

(2) Athletic contests, baseball games, football games, hockey games and basketball games, for each game or contest, one dollar ($1.00); provided, however, that no fee shall be paid in any case where such athletic contest or game is conducted or played by a regularly organized team of an educational institution incorporated under the laws of the state on the premises of the institution, or of a high school or public school of the city;

(3) Theaters, for all performances that may be held in them, as follows:

a. Any theater having a seating capacity of one thousand (1,000) persons or more, and which gives performances during the year for seven (7) consecutive days in any week, two hundred dollars ($200.00) per year;

b. Any theater having a seating capacity of less than one thousand (1,000) persons and more than five hundred (500) persons, and which gives performances during the year for seven (7) consecutive days in any week, one hundred fifty dollars ($150.00) per year;

c. Any theater having a seating capacity of five hundred (500) persons or less and which gives performances during the year for seven (7) consecutive days in any week, one hundred dollars ($100.00) per year;

d. Any theater which gives performances for only six (6) consecutive days in any week, one hundred fifty dollars ($150.00) per year;

(4) Athletic halls used exclusively for holding athletic games, contests and exhibitions, seventy-five dollars ($75.00) per year;

(5) All other performances, public shows, public performances, or exhibitions other than for charitable or benevolent purposes, two dollars ($2.00) per day;

(6) Public dance halls, whether operated in connection with hotels or restaurants or otherwise, one hundred dollars ($100.00) per year, or two dollars ($2.00) per day;

(7) Public dances not held in public dance halls, two dollars ($2.00) per day.

(Code 1977, § 4-2)

Sec. 5-3. Inspection facilities to be provided.

Every licensee, as a condition of obtaining the license required by section 5-1, shall, when applying therefor, provide facilities for the chief of police to enter and inspect his place of amusement and view the exhibition or performances conducted therein at any time while such license is in force and effect.
(Code 1977, § 4-3)

Sec. 5-4. Revocation of license.

The chief of police may notify the bureau of licenses and inspections to revoke any license issued under the provisions of this article at any time for cause, and the operations conducted thereunder shall cease immediately upon such revocation and shall not be resumed until the license is reinstated.
(Code 1977, § 4-4)

Sec. 5-5. Records of chief of police.

The chief of police shall keep a record, in a book provided for that purpose, of all licenses issued under the provisions of this article, containing the name of the person licensed and the date of revocation of any license revoked.
(Code 1977, § 4-5)

Sec. 5-6. When smoking prohibited.

It shall be unlawful for any person to smoke in any place in or connected with any theater or other public place of amusement in the city having accommodation for an audience of one hundred (100) persons or more, during a performance or when such place of amusement is occupied by the public, except in rooms designated as smoking rooms and used exclusively for that purpose, and which meet the requirements of the building code of the city; provided, however, that this section shall not apply to the outer lobby of a theater or other public place of amusement when such lobby is not a part of the theater or place of amusement and is only connected therewith by doors. It shall be unlawful for the owner, manager, lessee or person in charge of any such theater or public place of amusement to permit smoking therein, except as provided in this section.
(Code 1977, § 4-9)

Sec. 5-7. Drinking water to be provided.

The owner or manager of any theater or other public place of amusement in the city shall be required to have at every public performance or gathering at such place, a sufficient quantity of good drinking water for the use of patrons.
(Code 1977, § 4-10)

Sec. 5-8. Theater inspections; fees.

(a) Theaters may be inspected at any time during regular business hours by inspectors from the fire department, which inspections shall be carried out under the direction of the fire chief.

(b) All theaters having a seating capacity of one thousand (1,000) or less shall pay to the city each month the sum of thirty dollars ($30.00) and all theaters having a seating capacity of more than one thousand (1,000) shall pay to the city each month the sum of forty dollars ($40.00).
(Code 1977, § 4-11)

Sec. 5-9. Carnivals prohibited; exceptions.

Except as otherwise provided, it shall be unlawful for any person to exhibit, open, maintain or operate performances or shows commonly known as carnivals anywhere in the city; provided, however, that this section shall not apply to any amateur show, bazaar, festival or other similar amusement conducted for the benefit of a church or religious society, whether or not it is carried on in a hall used occasionally for such affairs and located in a church edifice or maintained in connection with or as a part of the religious work of a church, religious society, public or parochial school, or upon the grounds of a church, school or religious society.
(Code 1977, § 4-12)

Cross reference—Districts in which and conditions under which carnivals permitted, § 35-884.

Sec. 5-10. Admission tax on places with parimutuel betting.

(a) There is imposed a tax of ten (10) percent of the admission charge to any place licensed by the gaming policy board and containing a parimutuel system therein or to any off-track betting facility, in accordance with sections 12-579 through 12-582 of the general statutes.

(b) This section shall be enforced and all taxes due hereunder collected by the tax collector in accordance with the provisions of sections 12-579 through 12-582 of the general statutes.
(Code 1977, § 4-13)

Sec. 5-11. Sale of admission tickets subject to city regulation; unlawful practices; exemption.

(a) *Matters of public interest.* It is hereby determined and declared that the price of, or charge for, admission to any place of public amusement, performance, sport, exhibition or athletic contest, is a matter affected with a public interest and subject to the supervision of and regulation by the city for the purpose of safeguarding the public against fraud, extortion, exorbitant rates and similar abuses.

(b) *Sale of tickets of admission at advanced price.* No person shall sell, offer for sale or attempt to sell any ticket, privilege or license of admission to an entertainment event, including, but not limited to, any place of amusement, arena, stadium, theater, performance, sport, exhibition or athletic contest given in this state, at a price greater than the price, including tax, printed thereon, or at a price greater than the price fixed for admission, including tax, and a reasonable service charge for services actually rendered not to exceed three dollars ($3.00). The owner or operator of the property on which such entertainment event is to be held or is being held may authorize, in writing, any person to sell such ticket, privilege or license of admission at a price in excess of that authorized under this section. Such writing shall specify the price for which such ticket, privilege or license of admission is to be sold. Any person violating any provision of this section shall be guilty of ticket scalping. The sale of each ticket, privilege or license of admission in violation of any provision of this section shall constitute a separate offense.
(Code 1977, § 4-14; Ord. No. 7-75, 3-24-75)

State law reference—Similar provisions, G.S. § 53-289.

Secs. 5-12—5-30. Reserved.

ARTICLE II. CIRCUSES AND OUTDOOR ASSEMBLAGES*

Sec. 5-31. Definition.

The term "circus or outdoor assemblage," as used in this article shall include circuses, sideshows, bazaars, revival meetings and any other outdoor show or assemblage for any purpose whatsoever conducted under tents or providing temporary structures to seat the public.
(Code 1977, § 4-24)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 5-32. Lease of city property.

No premises owned or controlled by the city shall be leased or let for any circus or outdoor assemblage except by written lease, the form and contents of which are first approved by the corporation counsel.
(Code 1977, § 4-25)

Sec. 5-33. Use of Dillon Stadium.

(a) The City of Hartford may enter into an agreement with any person or entity for the use of Dillon Stadium, subject to obtaining any and all approvals as(determined by the Office of the Corporation Counsel, and subject to the terms and conditions set forth in a certain Stadium Use Agreement by and among the City of Hartford and Hartford Athletic, LLC dated February 25, 2019.

(b) The rules and regulations related to the use of Dillon Stadium shall be set forth in a Dillon Stadium Use Policy and, in their initial form, notwithstanding any provision in this Code that may be to the contrary, shall be approved by the Court of Common Council and, thereafter, notwithstanding any provision in this Code that may be to the contrary, may be revised and adopted, from time to time, by the Director of Public Works and the Director of Development Services, without having to seek additional authority and/or approval. The aforementioned rules and regulations shall be maintained and made available for inspection by the Department of Public Works.

(c) The Dillon Stadium Use Policy shall be posted on the City of Hartford's Parks and Recreation webpage at http://hartfordct.myrec-.com and shall be made available in hard copy at the offices of the Department of Public Works, 50 Jennings Road, Hartford, CT.
(Code 1977, § 4-26; Ord. No. 05-19, 4-22-19)

*

Sec. 5-34. Preliminary inspections required.

(a) No license issued for any circus or outdoor assemblage shall become operative and no such circus or outdoor assemblage shall be permitted to proceed until an inspection has been made by the police and fire departments and the department of licenses and inspections and, where sanitary facilities are provided, by the department of health.

(b) Such inspection shall be made by representatives of each department acting in cooperation with each other for the purpose of determining that, insofar as is practicable, all factors are present to preclude and prevent danger to the public from injury, fire and panic, and that the requirements of this article have been met.
(Code 1977, § 4-27)

Sec. 5-35. Safety requirements to be met.

No circus or outdoor assemblage shall be permitted in the city and no license therefor shall be issued unless the proper representative of each of the departments making the inspection required by section 5-34 shall, by written endorsement on such license, or otherwise, signify that in the matters within the jurisdiction of the respective departments it has been determined that:

(1) The grounds are safe for use by the public, that no conditions exist which are liable to cause injury, and that the premises are sufficiently clear of straw, dry grass or combustible trash;

(2) The seats, platforms, poles and all other portions of the structure are sufficiently sound, stable and secure to ensure the public safety;

(3) Provision has been made for a sufficient number of aisles and exits to ensure lighted and unobstructed passageways to areas well away from the tent or other place of the circus or outdoor assemblage;

(4) Adequate provision has been made for first aid in case of injury and for first-aid fire appliances, properly distributed throughout the grounds, and the operating personnel are familiar with the use and location of such appliances;

(5) If a canvas tent or temporary structure of any other material is used to house the circus or outdoor assemblage, such tent or other temporary structure is fireproof or flameproof or has been rendered fireproof or flameproof insofar as it is practicably possible by the use of recognized standards;

(6) Where toilet or other sanitary facilities have been provided, such facilities are adequate to ensure the public health and so located as to avoid endangering the public safety.

(Code 1977, § 4-28)

Sec. 5-36. Policemen and firemen to be assigned.

Sufficient policemen shall be provided by the chief of police at each circus or outdoor assemblage for the protection of the public and the prevention of injury and panic. When deemed reasonably necessary by the fire marshal, a sufficient number of firemen shall be assigned. Such firemen shall familiarize themselves with the nature and location of all fire protection features and the location of all exits. They shall be so stationed that all sections where the public is admitted are under constant surveillance. They shall assist the police

in the prevention of smoking and overcrowding and in the clearing of aisles and exits.
(Code 1977, § 4-29)

Cross references—Fire department, § 13-21 et seq.; police, Ch. 29.

Sec. 5-37. Fire prevention and regulations established.

(a) No smoking shall be permitted at any circus or outdoor assemblage. A policeman or responsible employee shall be stationed at each entrance to require lighted cigars, cigarettes and pipes to be extinguished. Arrangements shall be made to give frequent no-smoking announcements while the public is assembling and during the performance. No overcrowding shall be permitted. Aisles and exits shall be kept open and unobstructed at all times, except that if a sufficient number of other exits are provided, one (1) of such exits or entrances may be reserved during performances for the use of performers and animals used in performances. All areas where rubbish and debris may accumulate, especially under seats, shall be kept reasonably serviced and clear by the operating personnel.

(b) If any acts using fire or open flames are to be given, suitable safeguards shall be provided or the use of such devices curtailed or forbidden. Proper facilities for calling fire apparatus to the scene shall be provided and, when deemed necessary by the fire marshal, a sufficient amount of hose and other fire apparatus shall be kept and maintained at or near the premises in instant readiness to combat any probable fire.

(c) The chiefs of the police and fire departments shall make suitable and proper rules and regulations to implement and render more fully effective the provisions of this section. The violation of any such rule or regulation shall be unlawful.
(Code 1977, § 4-30)

Cross reference—Fire prevention generally, Ch. 13.

Sec. 5-38. Violation of fire prevention regulations.

The chief of police shall have the power, if any of the provisions of section 5-37 or the rules or regulations made thereunder are violated, to stop any circus or outdoor assemblage immediately and debar it from continuing.
(Code 1977, § 4-31)

Secs. 5-39—5-55.

ARTICLE III. BINGO

Sec. 5-56. Definitions.

As used in this article:

Bingo means a game in which each player receives a card containing several rows of numbers and, as numbers are drawn or otherwise obtained by chance and publicly announced, the player first having a specified number of announced numbers appearing on his card in a continuous straight line or covering a previously designated arrangement of numbers on such card is declared the winner.

Person or *applicant* means the officer or representative of the sponsoring organization or the organization itself.

Session means a series of games played in one (1) day.
(Code 1977, § 4-43)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 5-57. Compliance with law.

The playing of bingo shall not be allowed in the city unless played in accordance with the provisions of the G.S. § 7-169, revised to 1987.
(Code 1977, § 4-44)

Sec. 5-58. Compliance with law.

No bazaar or raffle shall be allowed in the city unless promoted, operated or conducted in accordance with the provisions of G.S §§ 7-170—7-186.
(Ord. No. 1-98, 1-12-98)

Secs. 5-59—5-85. Reserved.

ARTICLE IV. COIN-OPERATED DEVICES

Sec. 5-86. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Distributor means any person who owns or distributes any music vending machine or mechanical amusement device.

Mechanical amusement device means any machine which, upon the insertion of a coin, slug or token or upon payment of a charge, releases balls which are propelled by a plunger across a board and registers scores by striking pins, posts, levers or bumpers or by falling into holes or slots, or any machine which, upon insertion of a coin or slug or the payment of a charge, is operated to register a score or tally of any kind. It shall include such devices as pinball or pin game machines.

Music vending machine means any contrivance or device which, upon the insertion of a coin, slug, token, plate, disc or key into any slot, crevice or other opening, emits or may emit songs, music or similar amusement. It shall include jukeboxes.

Operator means any person in whose place of business any such machine or device is placed for use by the public. "Operator" shall also include any person in charge of an apartment complex or residential development containing such machines for the use of tenants and their guests.
(Code 1977, § 4-65)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 5-87. Licenses—Required.

(a) Every distributor shall obtain a license from the bureau of licenses and inspections, approved by the chief of police, for each music vending machine or mechanical amusement device placed in operation by him.

(b) Every operator shall obtain a license from the bureau of licenses and inspections, approved by the chief of police, for each music vending machine or mechanical amusement device in operation in his place of business.

(c) Not more than one (1) such machine or device shall be operated or placed in operation under one (1) license.
(Code 1977, § 4-66)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 5-88. Same—Applications.

(a) *To whom made.* Applications for the licenses required in section 5-87 shall be made to the bureau of licenses and inspections upon a form supplied by it for that purpose.

(b) *Contents.* Each such application shall contain the following information under oath:

(1) Name of applicant; if a partnership, names of all partners; if a corporation, club or association, names of officers;

(2) Residence of applicant;

(3) Age of applicant; if a corporation, club or association, date organized and under laws of what state;

(4) Type of business or activities;

(5) Whether applicant, or if a corporation, club or association, its officers, has ever been convicted of a crime;

(6) Place where machine or device is to be displayed or operated and the business or activity conducted at that place. This shall apply only to the operator;

(7) Description or type of machine to be covered by the license.

(c) *Exception.* Any distributor may be permitted, at the discretion of the chief of police, to file with him the information required under this section, and thereafter the distributor need not be required to furnish such information upon the signing of each separate application.

(d) *Change of information.* Each applicant for or holder of a distributor's or operator's license shall notify the chief of police promptly of any change in the information set forth in the application.
(Code 1977, § 4-67)

Sec. 5-89. Same—Investigation of applicants; criteria for approval.

The chief of police shall investigate the character and record of the applicant for a distributor's or operator's license under this article and the location wherein it is proposed to operate the machine described in the application. He shall not

approve the application unless he finds that the applicant is over eighteen (18) years of age and is a person of good moral character and that the business or activity carried on in such location is a bona fide and lawful one.
(Code 1977, § 4-68)

Sec. 5-90. Same—Denial of application or refusal.

In case of the denial of an application or refusal to issue or renew a license because of the disapproval of the chief of police, the bureau of licenses and inspections shall notify the applicant of such action and the chief of police shall set a day and place for a hearing thereon, giving the applicant reasonable notice in advance thereof and an opportunity to be represented by counsel at such hearing.
(Code 1977, § 4-69)

Sec. 5-91. Same—Issuance; substitution of machines; not transferable.

A license shall be issued by the bureau of licenses and inspections only in the name of the applicant. One (1) music vending machine or mechanical amusement device may be substituted by a licensee for another similar machine or device under his license. However, in the event of a sale or transfer of his business by an operator, a new operator's license shall be obtained by the transferee, and the operator shall notify the chief of police of such sale or transfer.
(Code 1977, § 4-70)

Sec. 5-92. Same—Fees.

(a) *Amounts.* Annual license fees shall be paid for each machine or device licensed under this article as follows:

(1) *Distributor.* Music vending machine, three dollars ($3.00) per machine; mechanical amusement device, twelve dollars ($12.00) per machine;

(2) *Operator.* Music vending machine, three dollars ($3.00) per machine; mechanical amusement device, twelve dollars ($12.00) per machine.

(b) *Exception.* The maximum license fee for all such machines or devices placed in any one (1) establishment or place of business for the use of the public shall be one hundred dollars ($100.00) per annum, irrespective of the number of such machines or devices so placed and operated therein.

(c) *Duration.* License fees shall become due on the day on which the license is issued, and shall be prorated from the first day of the month in which the machine is placed in operation to and including the following September thirtieth. Fees for renewal of licenses shall become due on October first of each year.
(Code 1977, § 4-71)

Sec. 5-93. Same—To be displayed.

Operator's and distributor's licenses shall be posted permanently and conspicuously at the location of the machine or device on the premises where the machine or device is to be operated or maintained.
(Code 1977, § 4-74)

Sec. 5-94. Same—Revocation.

The chief of police may notify the bureau of licenses and inspections to revoke any license issued under this article for cause, after due notice in writing to the licensee and a hearing to be held not less than ten (10) days after the date of such notice. Cause shall be deemed to include, but shall not be limited to, conviction for a crime involving moral turpitude subsequent to the issuance of the license, false information in the application knowingly given, or any violation of this article.
(Code 1977, § 4-72)

Sec. 5-95. Conduct of operator's place of business.

Each operator shall maintain good order on the premises and shall not permit any mechanical amusement device to be used for gambling. No operator of any mechanical amusement device shall harbor where such machines are located persons under sixteen (16) years of age or allow them to congregate therein or play any such device, unless accompanied by their parents or guardians.
(Code 1977, § 4-73)

Sec. 5-96. Gambling and other illegal devices not permitted.

Nothing in this article shall be construed to authorize, license or permit any gambling device whatsoever, or any mechanism judicially determined to be a gambling device, or declared contrary to law.
(Code 1977, § 4-75)

Secs. 5-97—5-115. Reserved.

ARTICLE V. SHOOTING GALLERIES*

Sec. 5-116. License—Required.

No person shall conduct or operate any shooting gallery or other place where firearms are discharged in the city without obtaining a license to do so issued by the bureau of licenses and inspections and approved by the chief of police.
(Code 1977, § 4-87)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 5-117. Same—Application.

Application for a license under this article shall be made in writing to the bureau of licenses and inspections and shall give the following information:

(1) Name;

(2) Residence;

(3) Citizenship;

(4) Employment or business of applicant during previous five (5) years;

(5) Whether or not the applicant was ever convicted of a felony or misdemeanor;

(6) Whether or not the applicant owns any real estate, and if so, the value of the real estate.

(Code 1977, § 4-88)

*Cross references—Offenses—miscellaneous, Ch. 25; police, Ch. 29.

Sec. 5-118. Same—Insurance prerequisite to issuance.

Before the issuance of any license to any applicant for a license under this article, such applicant shall file with the division of purchases and insurance a policy of insurance issued by a solvent and responsible company authorized to do business in the state and approved by the purchasing agent, providing for bodily injury liability insurance and property damage liability insurance in the maximum amounts of one million dollars ($1,000,000.00) for personal injury to any one (1) person, three million dollars ($3,000,000.00) for personal injury arising out of any single occurrence, and one million dollars ($1,000,000.00) for property damage, to indemnify, save and keep the city harmless from all loss, damage, cost, expense or liability of any kind whatsoever which the city may suffer or be put to, or which may be recovered from it, by reason of the issuance of such license, or by reason of any act or thing done or neglected to be done by the licensee or any of his employees under and by virtue of the authority granted in such license, or the failure or neglect of such licensee or his employees to observe and comply with the provisions of the general statutes or any ordinance relating to the use of firearms.
(Code 1977, § 4-90)

Sec. 5-119. Same—Fee.

The annual license fee for the license required in this article shall be ten dollars ($10.00).
(Code 1977, § 4-91)

Sec. 5-120. Same—Assignment; transfer.

No license granted under this article shall be assigned or transferred by the licensee to any other person, nor shall any such license authorize any person, other than the licensee named therein, to do business or act under such license, unless the licensee and the applicant for such transfer have obtained the written consent of the chief of police.
(Code 1977, § 4-92)

Sec. 5-121. Inspection of premises.

When application is made as provided in section 5-117, the chief of police shall cause an inspection to be made of the premises in or upon

which it is intended or desired to conduct or operate a shooting gallery or other business where firearms are discharged, to determine whether such premises are properly located and of sufficient size, and whether the equipment of such premises will be placed, kept and maintained in such manner and in such condition as to provide the greatest possible safety.
(Code 1977, § 4-89)

Sec. 5-122. Closing hours.

No person shall keep open or operate any shooting gallery or other place where firearms are discharged between the hours of 1:00 a.m. and 8:00 a.m. On Saturday night the hour of closing shall be 12:00 midnight.
(Code 1977, § 4-93)

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Chapter 6

ANIMALS AND FOWL

Sec. 6-1. Animals running at large or unattended.

Except in compliance with section 6-2, it shall be unlawful for any person to permit an animal to go or run at large in the city, or to leave a draft animal unattended in any street or public place in the city without having securely fastened such animal.
(Code 1977, § 5-1)

State law reference—Authority to regulate, prohibit animals at large, G.S. § 7-148(c)(7)(D)(i).

Sec. 6-2. Dogs at large in violation of statutes.

(a) No dog shall be permitted to leave the property of its owner, keeper or harborer and run at large in violation of the General Statutes.

(b) No dog shall be allowed to leave the confines of its owner, keeper or harborer's property unless the dog has been properly fitted with and is presently wearing a proper dog leash or chain.

(c) Similarly, the owner, keeper or harborer of a dog shall be held liable for violation of this section should a third party, who has authorized custodial control of the dog, allow such dog to run at large without a proper dog leash or chain.

(d) Any violation of any provision of this section shall be punished by a fine of fifty dollars ($50.00). Any person issued a citation for a violation of the provisions of this section may, within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.

(e) The animal control officer of the city, pursuant to the powers vested in him by the General Statutes, shall promulgate all regulations necessary and proper in executing the provisions of this section. The animal control officer and his duly authorized assistants shall have full authority to enforce the provisions of this section.
(Code 1977, § 5-2; Ord. No. 22-80, 12-22-80; Ord. No. 99-89, 10-10-89; Ord. No. 23-94, 8-8-94)

State law reference—Roaming at large generally, G.S. § 22-364.

Sec. 6-3. Mischievous animals.

If any person makes a complaint to the chief of police that any animal owned or harbored in the city is a nuisance or is damaging or has damaged private or public property, the chief of police shall investigate such complaint. If the facts sustain such complaint it shall be unlawful for the owner or keeper or guardian of a minor owner, after proper warning, to fail to restrain or control such animal.
(Code 1977, § 5-3)

Sec. 6-4. Keeping poultry or pigeons.

It shall be unlawful for any person to keep poultry or pigeons in any location or condition deemed by the director of health to be detrimental to the public health or offensive to the neighborhood.
(Code 1977, § 5-4)

State law reference—Authority to regulate and prohibit keeping of poultry, G.S. §§ 7-148(c)(7)(D)(ii), 7-194(36).

Sec. 6-5. Where live poultry may be sold.

It shall be unlawful for any person to sell or offer for sale for slaughter live poultry of any kind, except in such places as may be designated by the director of health.
(Code 1977, § 5-5)

Sec. 6-6. Keeping swine.

It shall be unlawful for any person to keep swine in any sty, pen or other place in the city without a permit to do so issued by the bureau of licenses and permits and approved by the director of health.
(Code 1977, § 5-6)

Cross reference—Licenses and permits generally, Ch. 21.

State law reference—Authority to regulate and prohibit keeping of wild or domestic animals, G.S. § 7-148(c)(7)(D)(ii).

Sec. 6-7. Permit required for animal hospitals.

It shall be unlawful for any person to maintain or operate any hospital or other place for the care of sick animals without a permit to do so issued by the bureau of licenses and inspections and approved by the director of health.
(Code 1977, § 5-7)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 6-8. Killing animals in streets.

It shall be unlawful for any person to kill an animal in any street in the city, unless through necessity or as an act of mercy.
(Code 1977, § 5-8)

Sec. 6-9. Depositing dead animals in street or public place.

It shall be unlawful for any person to deposit the body of any dead animal in any street or public place in the city.
(Code 1977, § 5-9)

State law reference—Authority to regulate disposal of dead animals, G.S. § 7-148(c)(8)(B).

Sec. 6-10. Failure to bury dead animals.

It shall be unlawful for any person owning, keeping or having the care or custody of any animal to allow its body to lie exposed or unburied in any place in the city for a longer period than twelve (12) hours after its death.
(Code 1977, § 5-10)

Sec. 6-11. Powers of director of health relating to dead animals.

The director of health may approve the issuance of licenses to responsible persons for the removal of the bodies of animals dying in the city.
(Code 1977, § 5-11)

Sec. 6-12. Removal of dog litter.

(a) *Owner to remove from property.*

(1) If any dog shall defecate upon any property or area, then the owner, keeper and person then walking or otherwise in charge of such dog shall immediately remove or cause to be removed from such property or area all feces so deposited by the dog. Unless the feces are removed, the owner, keeper and the person then walking or otherwise in charge of the dog; or if such owner, keeper, or person is a minor, then the parent or guardian; shall each be deemed to have committed a punishable offense.

(2) The phrase *property or area* referred to in paragraph (1) means any public property or the common areas of any privately owned property or any private property owned or occupied by any person who is not a member of the family of the owner or keeper of or the person then walking or otherwise in charge of the dog.

(b) *Exceptions.* The provisions of this section shall not apply to a guide dog accompanying any blind person.
(Code 1977, § 5-12; Ord. No. 3-81, 2-10-81; Ord. No. 100-89, 10-10-89)

Cross reference—Garbage, refuse and weeds, Ch. 15.

Sec. 6-13. Ownership of dangerous dogs.

(a) *Definitions.* As used in this section, "dangerous dog" shall mean:

(1) Any dog with a propensity, tendency, or disposition to attack, to cause injury to, or to otherwise endanger the safety of humans or other domestic animals; or

(2) Any dog which attacks or has attacked a human being or other domestic animal without provocation; and

(3) Any dog for which an owner, keeper or harborer has received an infraction or misdemeanor summons for the attack of his/her dog upon a human being or domestic animal prior to the adoption of this section [March 12, 1990];

Enclosure shall mean a fence or structure of at least four (4) feet in height, and effective in containing a dangerous dog. Such enclosure shall be securely enclosed and locked and equipped with secure sides, top, and bottom, and shall be designed to prevent the animal from escaping from the enclosure.

(b) *Ownership and/or possession of dangerous dogs.*

(1) All registered and licensed dangerous dogs shall be kept within the city subject to the standards and requirements set forth in subsection (c) so long as the dangerous dog remains registered and licensed with the town clerk.

(2) Any unregistered and unlicensed dangerous dog may be impounded by the chief of po-

lice or his/her representative. Such impounded dangerous dogs shall be destroyed.

(3) Any owner, keeper or harborer of a dog designated a dangerous dog by a police canine control officer may appeal to the city dog warden by written notice within five (5) days from the date of notification of the canine control officer's determination.

(c) *Keeping of registered dangerous dogs.* Those dangerous dogs registered and licensed in the city shall be subject to the following standards:

(1) *Leash and muzzle.* No person shall permit a registered and licensed dangerous dog to be kept outside of a building without being confined in an enclosure away from the public. No person shall permit such dog to go outside the enclosure unless such dog is securely restrained with a leash no longer than four (4) feet in length and in the physical control of its owner. In addition, all dangerous dogs on a leash outside an enclosure must be muzzled by a muzzling device sufficient to prevent such dog from biting persons or other animals. The leash and muzzle requirement shall not apply to dogs owned by any police department, law enforcement officer, or any private security organization, while such dogs are used in the performance of police or security work or to any dog in attendance at, and participation in, any lawful dog show, contest, or exhibition sponsored by a dog club, association, society or similar organization.

(2) *Confinement indoors.* No dangerous dog may be kept on a porch, patio or in any part of a house or structure that would allow the dog to exit such building on its own volition. In addition, no such animal may be kept in a house or structure when the windows are open or when screen windows or screen doors are the only obstacle preventing the dog from exiting the structure.

(3) *Notification.* Any owner, keeper or harborer of a dangerous dog must notify the police canine control unit should his/her dangerous dog escape from its enclosure or custody of its owner, keeper or harborer and cannot be immediately found.

(4) *Signs.* All owners, keepers or harborers of registered and licensed dangerous dogs within the city shall, within ten (10) days of the effective date of this section [March 12, 1990], display in a prominent place on their premises a sign easily readable by the public using the words "Beware of Dangerous Dog."

(5) *Insurance.* All owners, keepers or harborers of registered and licensed dangerous dogs must within thirty (30) days of the effective date of this section or notification by the police department that his/her dog has been identified as dangerous, provide proof to the city clerk of liability insurance with minimum coverage of one hundred thousand dollars ($100,000.00) for bodily injury to or death of any person or persons or for damage to property owned by any persons which may result from the ownership, keeping or maintenance of such animal during the registered period. Alternatively, owners, keepers or harborers of dangerous dogs may post with the city clerk a surety bond of one hundred thousand dollars ($100,000.00) conditional upon the payment of such damages during the period of such registration or other equivalent evidence of financial responsibility such as a personal bond secured by a mortgage in real property or security interest in personal property.

(d) *Sale or transfer of ownership prohibited.* No person shall sell, barter, give or in any other way dispose of a dangerous dog registered and licensed with the city to any person within the city unless the recipient person resides permanently in the same household and on the same premises as the owner of such registered and licensed dangerous dog; provided that the owner of a registered and licensed dangerous dog may sell or otherwise dispose of a registered and licensed dangerous dog to persons who do not reside within the city and who do not intend to reside in the city with the dangerous dog.

(e) *Failure to comply.* It shall be unlawful for the owner, keeper or harborer of a dangerous dog registered and licensed with the city to fail to comply with the requirements and conditions set forth in this section. Any dog found to be the subject of a violation of this section shall be subject to immediate seizure, impoundment or destruction.

(f) *Severability.* If any section, sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity or the remaining portions of this section.

(g) *Appeal of citation.* Any person issued a citation for violating the provisions of this section may, within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.

(h) *Penalty for violation of section.* Any person who violates any of the provisions of this section shall be punished by a fine not to exceed $99.00. Each day this section is violated shall be considered a separate offense. (Ord. No. 7-90, §§ 1—3, 3-12-90)

Editor's note—The provisions of Ord. No. 7-90, §§ 1—3, adopted Mar. 12, 1990, have been included as § 6-13, with former § 6-13 redesignated § 6-14.

Sec. 6-14. Penalty for violation; hearing.

A person who violates any provision of this chapter shall be summoned or brought to community court pursuant to P.A. 97-199. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this chapter.
(Ord. No. 101-89, § 1, 10-10-89; Ord. No. 24-97, 11-24-97)

Note—See the editor's note to § 6-13.

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Chapter 7

SPECIAL EVENTS*

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Secs. 7-21—7-60. Reserved.

*__Editor's note—__An Ordinance adopted May 11, 2026, repealed the former ch. 7, §§ 7-1, 7-2, 7-16, 7-17, 7-31—7-43, 7-61—7-64, 7-76—7-87, 7-88—7-118, and enacted a new ch. 7 as set out herein. The former ch. 7 pertained to assemblies, festivals and parades and derived from Ord. No. 41-11, adopted July 11, 2011; Ord. No. 01-13, adopted June 25, 2012; Ord. No. 08-16, adopted Aug. 8, 2016.

__Cross references—__Circuses and outdoor assemblages, § 5-31 et seq.; auctions and auctioneers, Ch. 8; buildings and building regulations, Ch. 9; fire protective and alarm devices required in public premises, § 13-1; fire prevention in places of assembly, § 13-91 et seq.; licenses and permits generally, Ch. 21; planning and development, Ch. 28; police, Ch. 29; streets and sidewalks, Ch. 31; vehicles for hire, Ch. 33.

Sec. 7-1. Purpose and definition for special events.

(a) *Purpose of special events.* Special Events are an important feature of a culturally vibrant community. It is the purpose of this Chapter to provide for the orderly, predictable, and efficient administration of Special Events.

(b) *Definitions.* For the purposes of this chapter, the following terms shall mean:

City-affiliated property means property owned by the City of Hartford, or by any other agency, department, or authority of the City of Hartford.

Deposit means a sum payable as a first installment as a pledge for expenses incurred for services rendered, the balance being payable later. A deposit is not considered a full or partial payment associated with any permit fee.

Non-business areas are those parts of the premises of a retail establishment where retail business is not conducted, including parking lots and sidewalks.

Permit means an express written document giving an individual or organization authorization to do something.

Permit fee means a cost associated with the issuance of a permit in order to commence the permit application review process. A permit fee is not considered a deposit.

Retail establishment means a retail store located on city-affiliated property.

Special event, as used herein, means any one (1) or more of the following:

(1) *Block party* means a community sponsored street event for all the residents of a block or neighborhood requiring the closure of a single block of a street, or a portion thereof, and does not otherwise fall into any other category.

(2) *Festival* means an event, staged by a local community or organization, that centers on and celebrates a certain aspect of that community, culture, or organization. A festival can include, but is not limited to, a ceremony, show, or exhibition of any kind.

(3) *Parade* means any march or procession of persons or vehicles organized for marching or moving on the streets or sidewalks in an organized fashion or manner. This term is not meant to encompass funeral processions or any movement conducted by active armed forces in the course of their duty.

(4) *Athletic event* means an occasion in which a group of persons collect to engage in or watch a sport or a form of exercise, including but not limited to, in any park, field, or open space; or on a street, sidewalk, alley, or other street right-of-way. Athletic events may include, but are not limited to, marathons, footraces, walks, bike tours, and bike races.

(5) *Carnival* means an enterprise offering amusement or entertainment to the public in, upon, or by means of amusement devices or rides or concession booths.

(6) *Wedding* means a marriage ceremony and includes any associated celebrations of the union.

(7) The meaning of the term "special event" does not include public speeches, political rallies, political marches, protests, demonstrations, or any other similar event.

(Ord. of 5-11-26)

Sec. 7-2. Department with authority over special events.

All special events will be overseen by the City of Hartford's Office of the Chief Operating Officer. The Chief Operating Officer will have final decision making authority over special events. The Chief Operating Officer is hereby authorized to appoint an agent ("designee") to oversee special event applications and management at his or her discretion.

(Ord. of 5-11-26)

Sec. 7-3. City services available for special events.

For a fee, City services may be available for a special event. A list of City services available for

special events and the estimated fees will be made available upon completion of the special events application provided for and managed within the Office of the Chief Operating Officer. The fees for City services shall be set annually by resolution in the same manner Permit Fees, as described in Section 7-15. All costs for City services shall increase annually, at the start of each calendar year, in the percentage amount of the most recent Q4 Employment Cost Index, as determined by the United States Bureau of Labor and Statistics, and not the actual wages of City employees in a given fiscal year. However, the cost of City services shall not exceed the actual cost of City staff in providing services for any special event. The fees for City services are not waivable under Section 7-15.
(Ord. of 5-11-26)

Sec. 7-4. Permit required.

For any special event held in the City of Hartford, no person shall organize, promote, engage in, participate in, or conduct any such event requiring exclusive use of any park, street or public place, or portion thereof, unless a permit has been obtained from the Chief Operating Officer, or their designee. After a permit has been issued, the permittee or their designated representative must carry the special events permit for the full duration of any special event, including any duration of time for set up or cleaning up the event.
(Ord. of 5-11-26)

Sec. 7-5. Application; time of filing; contents.

The Office of the Chief Operating Officer, or their designee, will make an application available to the public to apply for a special event permit. Application for a permit required by this article shall be filed with the Office of the Chief Operating Officer, or their designee, not less than ninety (90) days before the date on which it is proposed to conduct any such event. Such application shall be sworn to and shall state:

(1) The name address, and telephone number of the applicant;

(2) The name, address, and telephone number of the person or organization to whom the permit shall be issued;

(3) If the event is proposed to be conducted for, on behalf of, or by a sponsor organization, the name, address and telephone number of the headquarters of the organization and of the authorized representative of such organization;

(4) The name, address and telephone number of the person who will be the point of contact for such event and who will be responsible for its conduct, and shall be on-site and available to city personnel at all hours of the event;

(5) The date when such event is to be conducted;

(6) The location for which such permit is desired, and a map of the assembly area indicating the layout of activities;

(7) An estimate of the anticipated attendance;

(8) The dates and hours when such event will start and terminate;

(9) If the event is designed to be held by, and on behalf of or for, any person other than the applicant, the applicant for such permit shall file with the Chief Operating Officer, or their designee, a communication in writing from the person proposing to hold such activity, authorizing the applicant to apply for the permit on his behalf;

(10) Whether any sound amplification equipment is proposed to be used, and if so, information describing such sound amplification equipment;

(11) Any vendors or concessions doing business during the activity, specifically the total number of vendors or concessions, the types of vendors or concessions, and the locations where vendors or concessions will be operating during the special event. This information must be given to the Chief Operating Officer, or their designee, at least twenty-one (21) days prior to the special event;

(12) The number, type, and location of toilet facilities to be provided for use during the event;

(13) Whether the sale or consumption of alcoholic beverages will be permitted on the premises upon which the activity is conducted and to what extent;

(14) What provisions have been made for the cleanup of the event after its conclusion;

(15) What emergency services are available; if the director of licenses and inspections finds the emergency services to be inadequate, he may order additional services be provided;

(16) Complete plans and times of different activities that will be taking place. Plans must include, but not be limited to, proposed layout and access control on a map to the reasonable satisfaction of the Department of Public Works;

(17) That the permittee and/or sponsor organization shall indemnify, defend and hold harmless the city, its officials, its officers, employees, and agents from and against all liability, claims, suits, demands, judgment, interest and expense arising from any injury to or death of any person or damage to property including loss thereof; and

(18) That the permittee and/or sponsor organization will provide, in form and in substance as shall be reasonably determined by the City, insurance covering all risks involved in the use of public property. A determination of the minimum requirement shall be made by the purchasing and insurance division; and the City, its officers, employees and agents shall be named as additional insureds on all policies required by the City.

In addition to the foregoing, such application shall include a communication to the Office of the Chief Operating Officer, or their designee, attesting to the payment of the deposit by the permittee and/or sponsor organization to such office to cover the potential damage to any turf, street or other city property and to cover the city's anticipated cost to clean up litter, if necessary, following any special event.

The Chief Operating Officer, or their designee, has the ability to add or remove any requirements at his or her discretion.
(Ord. of 5-11-26)

Sec. 7-6. Late applications.

The Chief Operating Officer shall have the authority to consider any application for a permit required by this article which is filed less than sixty (60) days before the date such activity is proposed to be conducted; provided that good cause exists and that sufficient review of the application can be made to ensure that the safety and welfare of the city and its citizens is protected. A non-waivable fee of fifty dollars ($50.00) shall be assessed for any late application. Special events sponsored solely by the City of Hartford shall not be subject to such late application fee.
(Ord. of 5-11-26)

Sec. 7-7. Issuance of permits.

The Chief Operating Officer, or their designee, shall grant and issue a permit required by this article if, from a consideration of the application and such other information as may otherwise be obtained, he or she finds that:

(1) The proposed event's use of the park, street or public place will not unreasonably interfere with or detract from the general public use or enjoyment of the park, street, or public place;

(2) The proposed event will not unreasonably interfere with or detract from the promotion of public health, welfare, safety, and recreation;

(3) The facilities desired have not been reserved for other use at the day and hour required in the application;

(4) The conduct of such event will not unreasonably interrupt the safe and orderly movement of vehicle or pedestrian traffic contiguous to it;

(5) The conduct of such event will not require the diversion of so great a number of police officers of the city to properly police such event and the areas contiguous thereto, as to prevent normal police protection to the city;

(6) The conduct of such event is not reasonably likely to cause injury to persons or property, based on the anticipated size of the crowd and the physical capacity of the area in which the event is to occur, the proposed duration of the event, the nature of the physical use of the area in question, including the type and size of any equipment, booths, stands, stages, or similar features which the proposed activity would utilize;

(7) Such event is not to be held for the sole purpose of advertising any product, goods or event, and is not designed to be held purely for private profit;

(8) The applicant has never had a previous special events permit revoked;

(9) The applicant or sponsoring entity does not have any outstanding bills owed to the City;

(10) The applicant will be in conformance with all regulations and orders of the fire marshal; and

(11) If applicable, any relevant Friends of Park Groups shall be provided notice by the Office of the Chief Operating Officer to assure no conflicts exist between the proposed event and any Friends of Park Group activity.

(Ord. of 5-11-26)

Sec. 7-8. Timeline for action.

The Chief Operating Officer, or their designated agent, shall act upon the application for a permit required by this article after the filing of the permit. The Chief Operating Officer, or their designee, shall approve or disapprove the application within ten (10) days following the next available Special Events Task Force meeting. If the application is denied, the Chief Operating Officer, or their designee, shall send a notice stating in general terms the reason for the denial of the permit. This timeline for action may be extended with the consent of the applicant.
(Ord. of 5-11-26)

Sec. 7-9. Acceptance, denial, and alternative issuance.

(a) *Contents of an application acceptance.* Each notice of an application acceptance must include:

(1) Language notifying party of application acceptance;

(2) List of the services that the City has agreed to provide from those selected by the applying party;

(3) Outstanding costs for the City services and the designated date for final payment;

(4) The deadline for making a deposit;

(5) The required amount of the deposit; and

(6) Information on when the permit will be issued and how the party will be able to obtain the permit.

(b) *Contents of an application denial.* Each notice of an application denial must include:

(1) Language notifying party of the application denial;

(2) Language providing a reason for the denial of the application;

(3) A copy of the process which must be followed in order to file an appeal; and

(4) Indication for a date by which an appeal may be filed.

(c) *Contents of an alternative issuance.* The Chief Operating Officer, or their designee, in denying any application for a permit required by this article, may authorize the conduct of such activity, or modified activity, on a date, at a time or at a place different from that requested by the applicant. If the applicant desires to accept the modified activity, proposed date, time, or place, he shall, within seven (7) days after notice of the action of the Chief Operating Officer, or their designee, file a notice of acceptance with the Chief Operating Officer, or their designee. The

Chief Operating Officer, or their designee, shall thereupon issue an Application Acceptance and a special events permit.
(Ord. of 5-11-26)

Sec. 7-10. Appeals process.

In the event of a denial or an alternative issuance, an appeal may be filed with the Chief Operating Officer, or their designee. Any appeal that is submitted following an alternative issuance or a denial of a permit by the Office of the Chief Operating Officer, must be received within five (5) days after notice of such denial or alternative issuance. The Chief Operating Officer, or their designee, shall act upon the appeal within fourteen (14) days. The methodology and requirements for submitting an appeal will be prepared in writing by the Office of the Chief Operating Officer and provided to all parties who have their applications denied or who have been given an alternative issuance.
(Ord. of 5-11-26)

Sec. 7-11. Special events task force shall be convened.

Prior to the issuance of a permit under this article, the Chief Operating Officer, or their designee, shall convene a Special Events Task force, which shall include the following individuals, or their designees, to the extent applicable:

(1) The Chief Operating Officer;

(2) The Fire Chief;

(3) The Police Chief;

(4) The Director of Public Works;

(5) The Director of Sports and Recreation;

(6) The Director of Development Services;

(7) The Director of Emergency Services and Technology;

(8) The Director of Health and Human Services;

(9) The general manager or responsible head of each public transportation utility, if the regular routes of whose vehicles will be affected by the location of the proposed special event;

(10) The Chief Executive Officer/Executive Director of the Hartford parking authority; and

(11) Duly authorized representatives of friends of park groups, where applicable.

(Ord. of 5-11-26)

Sec. 7-12. Duties of permittee.

A permittee under this article shall comply with all permit directions and conditions and with all applicable laws, ordinances and rules and regulations as though they were inserted in the permit. A permittee shall also maintain possession of his or her issued permit for the duration of the approved special event, including any time it takes to set up the event or clean up the event.
(Ord. of 5-11-26)

Sec. 7-13. Revocation.

The Chief Operating Officer, or their designee, shall have the authority to revoke a permit issued under this article upon application of the standards for issuance as set forth in this article. Upon his or her decision to revoke a special event permit, the Chief Operating Officer, or their designee, shall provide notification to the party whose permit has been revoked. Within that notification, the person revoking the permit shall provide a reason as to why the revocation has occurred. These reasons may include, without limitation, the conduct of the permitee, failure to pay a City services deposit, or other good cause at the discretion of the Chief Operating Officer, or their designee.

Once a permit has been revoked, the permittee may follow the appeals process outlined in Section 7-10 of this chapter in the event they would like to appeal the decision to revoke their permit.
(Ord. of 5-11-26)

Sec. 7-14. Public conduct during special events.

(a) *Interference.* No person shall unreasonably hamper, obstruct, impede, or interfere with any special event or with any person, vehicle, or animal participating or used in a special event.

(b) *Driving through special events.* No driver of any vehicles shall drive between the vehicles or persons in a special event when such vehicles or persons are in motion and are conspicuously designated as a special event.

(c) *Parking on a route affected by a special event.* The Director of the Department Public Works in conjunction with the Police Department and the Hartford Parking Authority shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a highway or part thereof constituting a part of the route or location of a special event. The Director of the Department of Public Works in conjunction with the Police Department and Hartford Parking Authority shall cause to be posted signs to such effect. It shall be unlawful for any person to park or leave unattended any vehicle in violation thereof.
(Ord. of 5-11-26)

Sec. 7-15. Special event permit fees—Fees for city services.

The Chief Operating Officer, or their designee, shall, from time to time, have the authority, subject to Court of Common Council approval, to set fees associated with special events by way of resolution. At or before the start of each calendar year, and subsequent to the calendar year in which this amendment is enacted, the Chief Operating Officer, or their designee, may release a fee schedule for each Permit Fee for special event applications which will be posted for the public's viewing. It is from this fee schedule that all prices for special event applications, fees for City services, as well as relevant deposit fees shall be determined.

Upon the written request of an applicant, the Mayor, or the Chief Operating Officer if designated by the Mayor, is hereby empowered and authorized to waive special event Permit Fees described herein associated with a special event application. The fees for City services, described in Section 7-3 and Section 7-16, are not waivable, pursuant to this section.
(Ord. of 5-11-26)

Sec. 7-16. Fees for city services associated with special events.

An estimate of all costs for City services will be made available to any interested party before they avail themselves of those City services. If a party would like to make use of available City services, that party will be responsible for the cost associated with all selected services at a time determined by the Chief Operating Officer, or their designee, unless there is an appropriation, authorization or grant of funds for that purpose, or fees delineated in said sections are sufficient to pay for the provision of services by the City. City services may be required for any Special Event at the sole discretion of the Chief Operating Officer, or their designee, to be paid by the permitee. A final estimate of the fees for City services shall be provided to every permitee that uses City services for a Special Event. These fees may be adjusted if day-of costs change for any reason.

If the day-of costs for City services exceed the estimated costs by ten (10) percent or less, the permitee shall pay any difference between the estimated costs and the day-of costs. The permitee shall not be responsible for the day-of costs for City services that exceed the estimated City services by more than ten (10) percent. Notwithstanding the above, the City reserves the right to adjust the cost of fees whenever the permitee's failure to comply with the approved event plan results in additional costs; in such case, the permitee shall be solely responsible for the additional cost of City Services.

At the time of the issuance of a permit pursuant this section, the sponsoring entity holding the permit shall execute a document guaranteeing payment in full, for the costs of the event, within sixty (60) days following the event, based upon the estimated cost of services provided by the City. At the time of the execution of this document, the sponsoring entity will pay a deposit covering the cost of the determined estimate for city services. The cost for City services, is not waivable pursuant to Section 7-15.
(Ord. of 5-11-26)

Sec. 7-17. Collection of outstanding balances.

All costs for Special Events permits or City services may be collected in accordance with all legal means available.
(Ord. of 5-11-26)

Sec. 7-18. Discounts for special events sponsored by friends of park groups.

As described in Chapter 26, Section 26-14 of the City of Hartford Municipal Code, a Friends of Parks group shall be defined as a non-commercial entity recognized by the City of Hartford, composed of individuals committed to the betterment of one (1) or more City parks. Friends of Parks groups may receive a discount in any special event permit fee associated with fundraising for any City of Hartford park. Fundraisers for activities that do not directly relate to the benefit, beautification, financial support and otherwise improvement of a Hartford park shall not be eligible. Any discount for special event fees shall not apply to fees for additional City services, pursuant to Section 7-3 and 7-16. Friends of Parks groups are still required to follow all other procedures and requirements for hosting or sponsoring a Special Event, pursuant to the Hartford Municipal Code, as outlined in this Chapter, and the Connecticut General Statutes.
(Ord. of 5-11-26)

Sec. 7-19. Repealer.

All ordinances, bylaws, orders, resolutions, or parts thereof, inconsistent herewith are hereby repealed to the extent only of such inconsistency. This repealer shall not be construed to revive any ordinances, bylaws, orders, resolutions, or parts thereof, heretofore repealed.
(Ord. of 5-11-26)

Sec. 7-20. Severability.

If any provision of this Article or any application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or application of this Article which can be given effect without the invalid provision or application, and to this end the provisions of this Article are declared to be severable.
(Ord. of 5-11-26)

Secs. 7-21—7-60. Reserved.

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Chapter 8

AUCTIONS AND AUCTIONEERS*

*Cross reference—Licenses and permits generally, Ch. 21.

State law references—Authority to regulate auctions, G.S. § 7-148(c)(7)(H)(iii); authority to regulate, license, etc., auctioneers, G.S. § 7-148(c)(7)(H)(iv).

Sec. 8-1. Scope of chapter.

The provisions of this chapter shall not apply to any auction held under the direction of any executor or administrator in the process of settling his decedent's estate, or to an auction held pursuant to any court order.
(Code 1977, § 7-1)

Sec. 8-2. Fee for license generally.

All persons licensed by the bureau of licenses and inspections with the approval of the city manager, to sell at auction under the provisions of the general statutes, shall pay therefor a license fee of five dollars ($5.00) a day for the period covered by such license.
(Code 1977, § 7-2)

State law reference—Licensing of auctioneers, G.S. § 21-1 et seq.

Sec. 8-3. Fee for license for jewelry auctioneers.

All persons licensed by the state commissioner of consumer protection to sell jewelry at auction under the provisions of the general statutes shall, in addition to such license, secure a license from the bureau of licenses and inspections, approved by the city manager, to sell such jewelry at auction, and shall pay therefor a license fee of fifty dollars ($50.00) a day for the period covered by the license.
(Code 1977, § 7-3)

State law reference—License for auctioneer of jewelry, G.S. § 21-3.

Sec. 8-4. Qualifications for jewelry auctioneers.

No auctioneer shall hold an auction for any person in the jewelry business unless such person has been in business continuously in the city at the same location at which the auction is to be held for a period of one (1) year immediately preceding such auction, or conduct any auction for a person who has sold watches, diamonds, jewelry, sterling silverware, clocks or any other goods commonly sold by jewelers at auction in the city for an aggregate period of thirty (30) days during a period of one (1) year immediately preceding such contemplated auction.
(Code 1977, § 7-4)

Sec. 8-5. Hours for sales of jewelry.

No person shall sell, offer for sale, or dispose of jewelry, watches, diamonds, sterling silverware, clocks or any other goods commonly sold by jewelers, at public auction in the city prior to 8:00 a.m. or after 6:00 p.m. of any day, except where the state commissioner of consumer protection has extended the hours of sale for a particular licensee to 11:00 p.m.
(Code 1977, § 7-5)

State law reference—Hours for auction of jewelry, G.S. § 21-3.

Sec. 8-6. Duration of sale.

No auctioneer shall conduct any auction sale for more than thirty (30) days from the date of beginning of such sale.
(Code 1977, § 7-6)

State law reference—Duration of sale of jewelry, G.S. § 21-3.

Sec. 8-7. False representations by auctioneers.

No auctioneer shall make any false representations as to the type, quality, condition, value or present or previous ownership of any watches, diamonds, jewelry, sterling silverware, clocks or any other goods commonly sold by jewelers which are offered for sale by him, or substitute another article for any article sold by him.
(Code 1977, § 7-7)

State law reference—Penalty for false statements by auctioneers, G.S. § 21-4.

Sec. 8-8. Mock bids.

No person shall act as an accomplice for the purpose of making mock bids at any auction sale.
(Code 1977, § 7-8)

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Chapter 9

BUILDINGS AND PROPERTY*

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ARTICLE I. IN GENERAL

Sec. 9-1. Encroachments on public property or streets.

Except as otherwise provided, it shall be unlawful for any person to erect, locate or maintain any building or part of a building upon any public property or street in the City.
(Code 1977, § 9-2)

State law reference—Authority to prohibit encroachments, G.S. § 7-148(c)(6)(C)(ii).

Sec. 9-2. Obstructing area between building line and street line.

Except as otherwise provided, it shall be unlawful for any person to erect, locate or maintain any building or part of a building, or any appurtenance thereto, between any building line lawfully established upon any street and the line of such street, or to obscure the prospect between such building line and street as requested. However, entrance steps may be built between the established street line and the veranda line on streets where veranda lines are established and may be built between the building line and the street line if no veranda line has been established, provided that the ground story elevation of the veranda floor proper (either a stoop or porch entrance type) is not more than four (4) feet, six (6) inches in height above the grade of the sidewalk if no tread is over fourteen (14) inches wide, and if such entrance steps do not encroach upon the street line.
(Code 1977, § 9-3; Ord. No. 05-18, 7-9-18)

State law reference—Establishment of building lines, G.S. § 7-148(c)(7)(A)(v).

Sec. 9-3. Building line and veranda line defined.

Building line means a line between which and the street on which such line is established, no part of a building shall be built, except an open veranda or an enclosed veranda on streets where veranda lines are established.

Veranda line means a line between which and the street on which such line is established, no part of a veranda shall be built.
(Code 1977, § 9-4)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 9-4. Posts, rails, fences, wires.

Posts, rails, fences and wires are governed by section 6.13 of the City of Hartford Zoning Regulations (the "Regulations"). Copies of the regulations are available for review and purchase at the Division of Licenses and Inspections, the Planning Division, the Office of the Corporation Counsel and the Office of the Town and City Clerk and are also available online.
(Code 1977, § 9-5; Ord. No. 1-89, 1-9-89; Ord. No. 96-89, 9-25-89; Ord. No. 17-90, 5-14-90; Ord. No. 71-90, 11-13-90; Ord. No. 15-91, 5-13-91; Ord. No. 23-91, 5-28-91; Ord. No. 1-96, 1-9-96; Ord. No. 31-11, 6-13-11; Ord. No. 05-18, 7-9-18)

State law reference—Authority to prohibit obstructions, G.S. § 7-148(c)(6)(C)(ii).

Sec. 9-5. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-5, which pertained to license required for encroaching fire escapes; fee; duration and derived from Code 1977, § 9-6.

Sec. 9-6. Proof of financial responsibility for encroaching fire escape.

The owner of a building who is maintaining an existing fire escape is subject to annual inspection by the Fire Marshal's Office. As a condition to the inspection approval by the Fire Marshal, the owner of any fire escape that encroaches on/above the public right of way must provide proof of insurance pursuant to the requirements below:

(a) Owner must agree to maintain in force at all times during the license period the following minimum coverages with carriers approved in the State of Connecticut and with a minimum AM Best's Rating of "A-":

  a. Bodily injury Liability insurance in the amount of one million dollars ($1,000,000.00) per occurrence, two million dollars ($2,000,000.00) general aggregate. and

  b. Property damage insurance of one million dollars ($1,000,000.00)

(b) Owner must name the City of Hartford as an additional insured on a primary

and non-contributory basis to all policies except workers compensation. All policies must also include a waiver of subrogation.

(c) Original completed certificates of insurance must be presented to the Finance Department prior to license issuance. Licensee agrees to provide replacement/renewal certificates at least thirty (30) days prior to the expiration date of the policies.

(d) City Risk Manager may waive certain provisions or increase liability limits at his or her discretion. In addition, all carriers are subject to approval by the City of Hartford.

(e) Licensee must agree to indemnify, save and keep the City harmless from all loss, damage, cost, expense or liability of any kind whatsoever which the City may suffer or be put to, or which may be recovered from it, by reason of the issuance of such license, or by reason of any act of thing done or neglected to be done by the licensee or any of his or her employees or assigns under and by virtue of the authority granted in such license, or the failure or neglect of such licensee or his employees or assigns to observe and comply with the provisions of the General Statutes of the State of Connecticut or any ordinance relating to the use of firearms.

(Code 1977, § 9-7; Ord. No. 05-18, 7-9-18)

Sec. 9-7. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-7, which pertained to removal of encroaching fire escapes and derived from Code 1977, § 9-8.

Sec. 9-8. Permit to move building through streets.

No person shall move any habitable building through any street in the city or permit any building in process of removal to remain in any street without a permit issued by the Division of Licenses and Inspections and approved by the director of public works.

(Code 1977, § 9-9; Ord. No. 05-18, 7-9-18)

Cross reference—Licenses and permits generally, Ch. 21.

State law reference—Authority to regulate moving of buildings, G.S. § 7-148(c)(7)(A)(iii).

Sec. 9-9. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-9, which pertained to heating of occupied buildings and derived from Code 1977, § 9-10.

Sec. 9-10. Water and sewage facilities required generally.

The owner of any building or area which is used as a place of assembly or amusement shall, while such building or area is so used, provide potable water and waste disposal facilities as required by the Director of Health. Toilet facilities shall be provided for the use of workmen during the construction of any building. Such facilities shall be maintained in a sanitary condition.

(Code 1977, § 9-11; Ord. No. 05-18, 7-9-18)

Sec. 9-11. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-11, which pertained to permit for premises not connected with public system and derived from Code 1977, § 9-12.

Sec. 9-12. Permit to demolish buildings and structures.

(a) No person shall demolish any building, structure, or part thereof without first obtaining a permit for demolition from the Director of Licenses and Inspections. The application forms for such permits will be furnished by the Director of Licenses and Inspections. Such permit will be valid for no longer than six (6) months after the date on which it is issued. The Director of Licenses and Inspections may issue a permit for demolition at any time that is the later of sixty (60) days after all public notice is provided under section 9-13 hereof, or sixty (60) days after the application is complete, including evidence of all utility shutoffs and all other material required by the State Building Code and statutes. The

sixty (60) day waiting period will not apply to demolitions ordered by the City Building Inspector, to demolition on property acquired by the State Department of Transportation for a transportation project, or to demolition of buildings or structures containing less than five hundred (500) square feet of floor space as shown on the records of the City Assessor. Notwithstanding the foregoing, a demolition permit for any property identified as historic pursuant to section 9-12(e) hereof may not be issued until the later of ninety (90) days after all public notice is provided under section 9-13 hereof, or ninety (90) days after the application is complete including all evidence of utility shutoffs and all other material required by the State Building Code and statutes.

(b) No person will be eligible to receive a demolition permit unless the demolition permit application complies with the provisions of G.S. § 29-401, et seq., the state building code, and other applicable law pertaining to the issuance of such permits, as both may be amended from time to time.

(c) Each person who applies for a demolition permit must notify the owners of adjoining property pursuant to the requirements of G.S. § 29-407, as amended. The applicant must notify such owners at such owner's last address according the records of the City Assessor, by sending registered or certified mail. No permit application will be complete until the applicant provides the Director with receipts for such registered or certified mail. The Director of Licenses and Inspections may require an affidavit of such mailing from the applicant.

(d) No building, structure or part thereof shall be demolished unless the owner thereof obtains from the Director of Health, and files with the Director of Licenses and Inspections, a written document certifying that the premises are free from rodent infestation. It shall be the duty of the director of health, when a request for such a certificate is made to him, to inspect the premises which are the subject of the request, to determine whether the premises are free from rodent infestation. If he finds that the premises are free from rodent infestation, he shall issue a certificate to that effect. If, however, his inspection discloses a rodent infestation, he shall require the owner of the premises to exterminate the rodents forthwith; and, upon receipt of satisfactory evidence by him that the premises have been exterminated, he shall then certify that the premises are free from rodent infestation. The words "extermination" and "infestation" shall be defined, for the purposes of the interpretation and enforcement of this section, as they are defined in chapter 18 of this Code.

(e) Any applicant for a permit for demolition of a building or structure or any part thereof that is designated as a historic building or structure on the National Historic Register or State Historic Register or has been nominated for study to be listed under either of them, or is located in a municipally designated historic district, must simultaneously refer a copy of such application to the City's Historic Preservation Commission for a certificate of appropriateness required by C.G.S § 7-147s. A demolition permit will not be issued until such certificate of appropriateness has been submitted to the Division of Licenses and Inspections.

Any property for which an application for demolition permit has been submitted but which is not designated as historic as defined in section 9-12(e) above will still be subject to the 90 day minimum waiting period and Historic Preservation Commission Review and will require a certificate of appropriateness, if during the 60 day period outlined in section 9-12(a), the property is referred to the State Historic Preservation Office for review for potential historic designation.

(Code 1977, § 9-14; Ord. No. 6-78, 8-14-78; Ord. No. 05-18, 7-9-18; Ord. No. 15-19, 10-28-19)

Cross references—Pest extermination in dwellings, § 18-140; licenses and permits generally, Ch. 21.

Sec. 9-13. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-13, which pertained to dust control during building operations and derived from Code 1977, § 9-15.

Sec. 9-14. Notice of intention to apply for permit to demolish buildings.

Any application for a permit to demolish any building or structure must contain, in addition to

such information as may be required by the Director of Licenses and Inspections, the following: the address of the building or structure to be demolished, the name, address and signature of the owner of building or structure, the signature of the licensed demolition contractor who will perform the demolition, and the date on or after which the proposed demolition will take place. Upon receipt of such information, the Director of Licenses and Inspections must publish a copy of it on the Department of Development Services' website and must send notice of such information by email to any person that has requested to be included on an email list giving notice of demolition permit applications. The email list must include the email address of the local Neighborhood Revitalization Zone president. The purpose of such notice is to provide interested persons with the opportunity to seek legal redress from proposed demolitions. Failure of notice will not invalidate any permit issued hereunder.
(Code 1977, § 9-16; Ord. No. 5-78, § 7-24-78; Ord. No. 05-18, 7-9-18)

Sec. 9-15. Building permit fees and required state inspections.

(a) The fees for building, heating, plumbing, refrigeration, sprinkler, electrical and elevator permits shall be determined by council by resolution and shall be made available to the public by and within the Division of Licenses and Inspections, plus any amount due and owing to the City for permit fees for permits issued for work on the same premises or for permits issued to the same permit applicant. If the building official retains a consultant pursuant to the requirements of Public Act 88-359, the additional fee for the cost of this consultant's services to the City shall be added to the permit fee and shall be paid at the time the permit application is submitted. When substantial revisions occur in the project after the issuance of the permit, the consultant's fee for reviewing these revisions shall be added to the permit fee.

(b) The Chief Operating Officer shall present to the council at a regular meeting during the month of August a report which shall list the number of permit fees waived during the preceding fiscal year, and the dollar amount of those fees. The City of Hartford, with the exception of the Hartford School Building Committee and its Board of Education shall not be required to pay any fees in filing for an application or having an application filed on its behalf for building, heating, plumbing, refrigeration, sprinkler, electrical and elevator permits pursuant to this Code. This exemption does not apply to the State-mandated education fee required on each building permit application. Notwithstanding the foregoing, where work to be performed by or on behalf of the City is funded by revenue bonds or grant funds and permit fees are allowable as a reimbursable expense, such applicable fees shall be charged.

(c) The initial fee for a (TCO), temporary certificate of occupancy for projects requiring the payment of building permit fees, shall be the amount shown in the current Buildings & Property Fee and Fine Schedule. Fee exempt projects are not required to pay fees as described in this section. For each calendar month following the first month of the issuance of a TCO until the issuance of a CO, the fee shall be the amount shown in the current Buildings & Property Fee and Fine Schedule. Notwithstanding the foregoing, if circumstances beyond a TCO holder's control prevent the completion of necessary work and the subsequent issuance of a CO, such fees may be waived through an appeal of such fees to the City's hearing procedure as described in Chapter 1 Article 5 of this Municipal Code. The fee for a (CO) certificate of occupancy shall be the amount shown in the Buildings & Property Fee and Fine Schedule. All requests for TCO's and CO's shall be in writing and shall contain a statement of the names, addresses and contract values of all contractors participating on the project site and identifying the minority and women owned companies that participated on the project.

(d) The fee for the issuance of a certificate of approval (COA) shall be the amount shown in the current Buildings & Property Fee and Fine Schedule payable by check or money order. All requests for a COA shall be in writing and shall contain a statement of the names, addresses and contract values of all contractors participating in

the project site and identifying the minority and women owned companies that participated on the project.

(e) Where work for which a permit is required (including demolition) is initiated prior to obtaining said permit, a penalty fee shall be administered which is equal to and in addition to the amount of the permit fee. The penalty fee shall be collected whether or not a permit is subsequently issued. The payment of such penalty fee shall not relieve the responsible party from compliance with all applicable codes, or from any other penalties for violation of the code.

(f) Prior to the application for any permit required by this section, the applicant may schedule a pre-application meeting with representatives of the Division of Licenses and Inspections, the Division of Planning and Economic Development, the Department of Public Works and the Fire Marshal's office to ensure that applications submitted are complete when submitted. There shall be a fee in the amount shown in the current Buildings & Property Fee and Fine Schedule collected at the time of permit application in addition to any other fees to cover the administrative cost of such meeting.

(g) A plan review fee will be charged to all applicants with construction costs estimated at one million dollars ($1,000,000.00) or more at the time plans are submitted. Such fee will be equal to ten percent (10%) of the total projected permit fee. Such paid amount will be applied to the final permit fee determined at the conclusion of the project. If the project is not completed or if no permit is ever sought, the plan review fee will not be refunded.

(h) An inspection fee in the amount shown in the current Chapter 9 Fee/Fine Schedule will be required for any inspection performed by a Licenses and Inspections inspector that is mandated by state law including, but not limited to, daycare facilities.

(i) The Buildings & Property Fee and Fine Schedule shall be set forth by resolution and may be amended from time to time by resolution.
(Code 1977, § 9-17; Ord. No. 17-81, 6-8-81; Ord. No. 11-83, 3-14-83; Ord. No. 2-87, 1-12-87; Ord. No. 39-88, 6-27-88; Ord. No. 65-88, 10-24-88; Ord. No. 73-88, 12-12-88; Ord. No. 16-91, 5-13-91; Ord. No. 12-93, 5-10-93; Ord. No. 55-96, 11-25-96; Ord. No. 10-97, 4-28-97; Ord. No. 48-98, 6-8-98; Ord. No. 53-98, 10-13-98; Ord. No. 9-99, 4-26-99; Ord. No. 9-02, 4-08-02; Ord. No. 36-02, 9-12-02; Ord. No. 09-09, 3-9-09; Ord. No. 34-11, 6-13-11; Ord. No. 05-18, 7-9-18)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 9-16. Reserved.

Editor's note—Ord. No. 36-11, adopted June 13, 2011, repealed § 9-16, which pertained to accessibility of new construction for persons with physical disabilities and derived from Ord. No. 2-89, adopted Jan. 9, 1989.

Sec. 9-17. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-17, which pertained to rodent control plan for new development and derived from Ord. No. 58-02, 11-25-02.

Sec. 9-18. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-18, which pertained to accessibility to ownership information and derived from Ord. No. 18-05, adopted Nov. 28, 2005; Ord. No. 21-08, adopted Aug. 11, 2008.

Secs. 9-19—9-30. Reserved.

ARTICLE II. HOUSE AND LOT NUMBERS

Sec. 9-31. Assignment.

The Director of Public Works, or his/her designee, may, at his/her discretion and without notice, assign to each house, or to any part of a house, or to each lot or any part of a lot fronting upon any street in the city, a number by which it shall be known, and may alter such numbers and renumber such houses, parts of houses, lots and parts of lots. It shall be the duty of the director, whenever a new street is accepted by the council, to assign to the land abutting on such street numbers at such measured intervals or distances as, in his/her opinion, the public interest shall require.
(Code 1977, § 9-27; Ord. No. 05-18, 7-9-18)

Sec. 9-32. Notice to property owner to affix.

Whenever the Director of Public Works or his/her designee, acting in accordance with section 9-31, has assigned numbers to or has renumbered any property fronting on any street, he/she shall send promptly to the owner of every building fronting upon the street a written statement and notice informing the owner of the numbering or renumbering and directing the owner to affix to the premises figures indicating the number thereto assigned. It shall become the duty of the owner to affix the figures within ten (10) days after the sending of the notice.
(Code 1977, § 9-28; Ord. No. 05-18, 7-9-18)

Sec. 9-33. Specifications authorized.

The Director of Public Works may make rules concerning the size, style, color and materials of all house numbers, and the method of affixing such numbers.
(Code 1977, § 9-29; Ord. No. 05-18, 7-9-18)

Sec. 9-34. Removal of nonconforming numbers; when city may affix.

The Director of Public Works or his/her designee may remove from any premises any number which does not conform to the rules specified in section 9-33 or is not the number assigned by him/her, and may place upon any premises its properly assigned number at the expense of the owner if the notice provided in section 9-32 is not complied with within thirty (30) days of the date on which it was sent.
(Code 1977, § 9-30; Ord. No. 05-18, 7-9-18)

Sec. 9-35. Collection of expense by city.

The Director of Public Works or his/her designee shall deliver to the tax collector the bill of any contractor for numbering premises in the City. The tax collector shall collect from the property owner designated by the director the total amount of such bill, plus a penalty of six (6) percent of such amount; provided, however, that on each bill the minimum penalty shall be the amount shown in the current Buildings & Property Fee and Fine Schedule and the maximum shall be the amount shown in the current Buildings & Property Fee and Fine Schedule. Such expense shall become a lien upon the premises in connection with which it was incurred, and such lien shall exist from the date such numbers were affixed.
(Code 1977, § 9-31; Ord. No. 05-18, 7-9-18)

Sec. 9-36. Report of violations.

It shall be the duty of the Director of Public Works to report to the prosecuting attorney of the circuit court any case of refusal or neglect to comply with the notice provided in section 9-32 within thirty (30) days after the issuance of such notice.
(Code 1977, § 9-32; Ord. No. 05-18, 7-9-18)

Secs. 9-37—9-50. Reserved.

ARTICLE III. RESERVED*

Secs. 9-51—9-70. Reserved.

ARTICLE IV. REHOUSING ASSISTANCE PROGRAM†

Sec. 9-71. Established.

A rehousing assistance program is hereby established.
(Ord. No. 5-96, 2-13-96; Ord. No. 9-96, 4-22-96; Ord. No. 18-96, 6-24-96)

Sec. 9-72. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Editor's note—__Ord. No. 05-18, adopted July 9, 2018, repealed art. III, §§ 9-51—9-54, which pertained to unsafe buildings and derived from Code 1977, §§ 9-44—9-47; Ord. No. 17-97, adopted Sept. 8, 1997; Ord. No. 7-98, adopted May 26, 1998; Ord. No. 58-98, adopted Oct. 26, 1998.

†__Editor's note—__Ordinance No. 4-96, adopted February 13, 1996, deleted §§ 9-71—9-82 in their entirety. Formerly, such sections pertained to housing preservation and replacement program and derived from ordinances listed in the Code Comparative Table. Subsequently, Ordinance No. 5-96, adopted February 13, 1996, added §§ 9-71—9-75.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Affordable housing means a rental housing unit for which the monthly contract rent does not exceed thirty (30) percent of sixty (60) percent of family income inclusive of all utilities as defined by HUD HOME program income limits.

Converted use means the conversion of any housing unit, whether occupied or vacant, from a residential to a nonresidential use.

Demolition means the destruction of any housing unit.

Housing unit has the meaning ascribed in section 18-3 of this Code.

Notice means a written notice unless otherwise specified.

Owner means any person, firm, partnership, association, joint venture, corporation or other entity who undertakes the demolition or change of use of any housing unit. The word "owner" also includes agent and any other person acting on the owner's behalf.

Rental unit means any housing unit that is occupied pursuant to a lawful rental agreement, oral or written.

Residential uses means the use of any housing unit designed, arranged, intended, occupied, maintained, leased or rented as the primary residence of any person.

Standard unit means any housing unit that meets the minimum standards of the City of Hartford's Housing, Building, Zoning, and Fire codes.

Tenant means any person who occupied a unit pursuant to a lawful lease or rental agreement with the owner, whether oral or written. For purposes of this article, two (2) or more persons who live together in a rental unit shall be considered one (1) tenant.
(Ord. No. 5-96, 2-13-96; Ord. No. 9-96, 4-22-96; Ord. No. 18-96, 6-24-96; Ord. No. 05-18, 7-9-18; Ord. No. 003-20, 6-22-20)

Sec. 9-73. Demolition of housing units or building permit requirements.

In addition to the requirements set forth in chapter 18, any owner, as a condition to receiving a demolition or building permit for the purpose of demolishing or converting residential units, must:

(1) Submit to the Director of Licenses and Inspections or his/her designee a list containing the name of each tenant currently residing in the structure to be demolished or converted and a list containing the name and last known address of each tenant who had resided in the structure during the one hundred eighty-day period immediately preceding the date of application, indicating those whose tenancies were terminated and the reason for each termination. If the housing unit has been vacant for one hundred twenty (120) days or less, the owner will be required to make a contribution to the housing fund in an amount not to exceed the amount shown in the current Buildings & Property Fee and Fine for each vacant residential unit located within the building.

(2) Submit to the Director of Licenses and Inspections or his/her designee written verification of compliance with the tenant notice, eviction and rehousing assistance requirements of this article.

(Ord. No. 5-96, 2-13-96; Ord. No. 9-96, 4-22-96; Ord. No. 18-96, 6-24-96; Ord. No. 05-18, 7-9-18)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 9-74. Rehousing assistance.

(a) *Payments*. Tenants who must vacate a rental unit because of demolition or change of use shall be eligible to receive from the owner, and the owner must pay, a rehousing assistance payment in the amount shown in the current Buildings & Property Fee and Fine Schedule. This rehousing assistance payment must be paid at least thirty (30) days before the tenant is required to vacate the rental unit. Rehousing assistance payments shall be in addition to the

refund of any deposits or sums to which the tenant is entitled. Any tenant who had been evicted for other than good cause during the six-month period immediately preceding any owner's application for demolition or building permit shall be entitled to rehousing assistance as provided in this section.

(b) *Payment exceptions.* Owners shall not be required to make rehousing assistance payments to eligible tenants when:

(1) The owner will provide for the actual cost to move the tenant to a standard unit that is affordable housing;

(2) The tenant is able to secure a standard unit that can be made affordable by a supplemental rental assistance payment. The supplemental rental assistance payment shall be the actual difference in rent between the unit being converted or demolished and the new unit multiplied by twelve (12) months. The supplemental rental assistance payment shall be made to the tenant within thirty (30) days of the commencement of the new rental agreement;

(3) The tenant's tenancy is terminated for good cause pursuant to G.S. § 47a-23c(b); or

(4) The tenant establishes tenancy in the unit after one hundred twenty (120) days' notice required by section 9-75 was delivered to the tenants in the building; provided, that the owner must advise the tenant, in writing, prior to the tenant's acceptance of tenancy, that the unit will be demolished or changed in use within one hundred twenty (120) days. Any eligible tenant who is not advised of the intended demolition or change in use shall be entitled to full rehousing assistance.

(c) Instances where a dispute arises between the owner and tenant as to compliance of rehousing assistance payment, such dispute shall be submitted in writing to the Director of the Division of Housing. Where necessary, the Director of the Division of Housing must, within ten (10) days from the notice of dispute, hold a hearing on the dispute and shall issue a decision within five (5) business days of the hearing.
(Ord. No. 5-96, 2-13-96; Ord. No. 9-96, 4-22-96; Ord. No. 05-18, 7-9-18)

Sec. 9-75. Tenant notice.

At least one hundred twenty (120) days prior to application for a demolition or building permit, the owner must deliver to each tenant in the building written notice of his intention to apply for a demolition or building permit and the rehousing assistance available to eligible tenants and shall explain the tenant's right to remain in possession unless evicted for good cause. Notice shall be delivered by registered or certified mail with return receipt requested. In addition, a copy of the notice shall be posted at every entrance to the building. If the unit has been vacant for less than one hundred twenty (120) days and the tenants who vacated were not given written notice of owner's intentions to apply for a demolition permit or building permit, then no permits will be issued until one hundred twenty (120) days from the date that the last tenant vacated the building.
(Ord. No. 5-96, 2-13-96)

Sec. 9-76. Application of article.

(a) The provisions of this article shall apply to the demolition and converted use of all housing units in the City, including those demolished pursuant to any order, decision or other action of the Director of Licenses and Inspections. No owner shall cause the demolition or converted use of any housing unit without first obtaining a demolition permit zoning permit, and/or building permit.

(b) Any housing unit ordered demolished by the Director of Licenses and Inspections because of damage caused by civil commotion or natural disaster shall not be subject to the terms of this article.

(c) This article shall also not apply to the demolition or converted use of any housing unit owned by the City, the Hartford Redevelopment Agency, the Housing Authority of the City of

Hartford, any public development authority, or to the demolition or converted use of a detached, single-family house which is owner-occupied.

(d) The Director of Licenses and Inspections shall not issue a demolition permit or building permit until the Director of the Division of Housing has certified that the owner has complied with the provisions of this article.

(e) These exceptions (b) through (e), inclusive, in this article shall be effective retroactive to February 13, 1996.
(Ord. No. 9-96, 4-22-96; Ord. No. 18-96, 6-24-96; Ord. No. 05-18, 7-9-18)

Sec. 9-77. Housing fund.

There is created in the office of the City Treasurer a housing fund into which all housing replacement contributions made pursuant to section 9-73 shall be deposited. Money deposited in the fund shall be used only for costs related to the preservation of housing. Notice of fund availability shall be published by the City in a newspaper of general local circulation or on the website of the City of Hartford.
(Ord. No. 18-96, 6-24-96; Ord. No. 54-98, 10-13-98; Ord. No. 05-18, 7-9-18)

Secs. 9-78—9-89. Reserved.

ARTICLE V. ANTI-BLIGHT AND PROPERTY-MAINTENANCE PROGRAM*

Sec. 9-90. Title.

This article and the regulations contained herein are to be known as the "Anti-Blight and Property-Maintenance Program," hereinafter referred to as "this article," and is enacted and authorized pursuant to G.S. § 7-148(c)(7)(H)(xv).
(Ord. No. 11-17, 3-13-17)

*__Editor's note—__Ord. No. 11-17, adopted March 13, 2017, repealed the former Art. V, §§ 9-91—9-98F, and enacted a new Art. V as set out herein. The former Art. V pertained to anti-blight program and derived from Ord. No. 28-09, adopted July 13, 2009; Ord. No. 50-11, adopted Nov. 28, 2011; Ord. No. 51-11, adopted Nov. 28, 2011; Ord. No. 11-12, adopted Oct. 9, 2012; Ord. No. 08-13, adopted Sept. 9, 2013; Ord. No. 9-15, adopted May 26, 2015.

Sec. 9-91. Reserved.

__Editor's note—__Ord. No. 05-18, adopted July 9, 2018, repealed § 9-91, which pertained to definitions and derived from Ord. No. 11-17, adopted March 13, 2017.

Sec. 9-91A. Declaration of policy.

There exists within the City of Hartford a large number of properties which are vacant or in blighted condition. The existence of vacant and blighted properties contributes to the overall decline of neighborhoods, which, in turn, affects the health, safety, welfare and economic well-being of Hartford's residents. Many of the vacant and blighted properties can be rehabilitated, reconstructed, demolished, and/or reused so as to provide decent, safe, and sanitary housing and commercial facilities. Such rehabilitation, reconstruction, demolition, and/or reuse will eliminate, remedy, and prevent the adverse conditions described above while increasing revenue to the City of Hartford.

It is further found that there are many instances where property maintenance of real properties in the City of Hartford is deficient or lacking leading to a progressive deterioration of such properties and the creation of blighted conditions. Accordingly, it is in the best interests of the citizens of the City of Hartford that the City set minimum standards for property maintenance so as to assure that properties within the city be maintained in conformity with such standards and so as to assure that none of these structures and properties will deteriorate and adversely affect their surrounding neighborhoods.

It is found and declared that by reason of lack of maintenance and progressive deterioration, certain structures and properties have the further effect of creating blighted conditions and initiating slums, and that if the same are not curtailed and removed, the aforesaid conditions will grow and spread and will necessitate in time the expenditures of large amounts of public funds to correct and eliminate the same. By reason of timely regulations and restrictions, as herein contained, the growth of blight may be prevented and neighborhood and property values may thereby be maintained, the desirability and ameni-

ties of residential and nonresidential uses and neighborhoods enhanced, and the public health, safety, and welfare protected and fostered.
(Ord. No. 11-17, 3-13-17; Ord. No. 05-18, 7-9-18)

Sec. 9-92. Prohibition on creating or maintaining blight violations or property-maintenance violations.

No person, firm, or corporation, including any owner of real property in the City of Hartford, shall cause or allow, any such real property or premises to exist or be created or maintained in a manner that constitutes a blight violation or a property-maintenance violation as defined in this article.
(Ord. No. 11-17, 3-13-17)

Sec. 9-93. Applicability of article; exemptions; severability.

(a) It is unlawful for any person, firm, corporation, or any owner of real property in the City of Hartford to be in conflict with or in violation of any of the provisions of this article.

(b) Any building or structure undergoing remodeling, restoration, repair, or renovation under a current building permit, provided that any violations of this article will be corrected thereby and that the building official determines that the work is proceeding in a reasonably expeditious timeframe, is exempt from this article. Repairs, additions, or alterations to a structure, or changes of occupancy, shall be done in accordance with all other applicable ordinances and laws. Nothing in this article shall be construed to cancel, modify, or set aside any provisions of the Hartford Zoning Regulations or the Building Code, as may be amended from time to time.

(c) This article applies to only vacant, unoccupied real property during the first year after it is adopted, or until March 31, 2018, whichever is earlier.

(d) If any provision of this article or the application thereof to any real property or any person, firm, corporation, or owner of real property is held invalid, such invalidity shall not affect other provisions or application of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(Ord. No. 11-17, 3-13-17)

Sec. 9-93A. Blight violations.

The following conditions existing on any real property within the city constitute blight violations under this article:

(1) It is becoming dilapidated as determined by the Department of Development Services through inspections showing that two (2) or more property-maintenance violations exist on the real property. When two (2) or more property-maintenance violations exist on real property, each property-maintenance violation shall be treated as a separate blight violation; or

(2) It is determined by the building official or by health department reports that existing conditions pose a serious or immediate danger to the community that is life-threatening or poses a health or safety risk to the public; or

(3) It is attracting illegal activity as documented in police department reports; or

(4) It is a fire hazard as determined by the fire marshal, or as documented in fire department reports; or

(5) It constitutes a health or sanitary problem, as determined by the Director of Health and Human Services, or any designee(s) thereof; or

(6) It contains unauthorized storage or accumulation of junk, trash, rubbish, litter, or refuse of any kind; the parking of inoperable vehicles (unless otherwise licensed to do so); or the presence of any inoperable machinery and equipment; or

(7) It is a factor creating a substantial and unreasonable interference with the lawful use and enjoyment of other space within the building, or of other premises, as documented by complaints or cancellation of insurance on nearby properties; or

(8) Extended vacancy of a dwelling, dwelling unit, or multiple-dwelling property, or commercial or industrial property that has remained continuously vacant for not less than one hundred twenty (120) days.
(Ord. No. 11-17, 3-13-17)

Sec. 9-93B. Property-maintenance violations.

The following conditions existing on any real property within the City of Hartford constitute property-maintenance violations under this article. The existence of two (2) or more property-maintenance violations is a blight violation, and each property-maintenance violation will be enforced as a separate blight violation when two (2) or more exist on real property.

(1) Property-maintenance violation means a violation of the following standards with respect to lots or parcels:

(a) *Grading*. All premises shall be graded, drained, and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon. Drainage systems shall divert water away from the property and away from adjacent property lines. All drainage systems should discharge towards the public right-of-way. Approved stormwater management systems are exempt from this section.

(b) *Shopping Baskets, Carts, and Wagons*. No shopping baskets, carts, or wagons shall be left unattended or standing, and the baskets, carts, or wagons shall be collected as often as necessary and removed to an appropriate enclosure intended for such purpose or to the interior of the building or buildings from which they were taken.

(c) *Fences*. All fences shall be maintained. Such maintenance shall include, but is not limited to, painting as needed, removal or covering of graffiti, and the replacement or repair of fences, which may become in disrepair.

(d) *Weeds and Plant Growth*. All landscaping shall be maintained so that lawns, hedges, bushes, and trees are kept neatly and free from becoming overgrown and unsightly where exposed to public view and where the same may have a tendency to depreciate adjoining property. The maintenance shall include, but is not limited to, the replacement of trees and shrubs, which may die or otherwise be destroyed. Grass, weeds, or similar plant growth shall not reach a height greater than one (1) foot on any premises, including on the planting strip fronting the premises. Front yards shall not be allowed to deteriorate into unattended bare, dirt patches.

(e) *Walks and Driveways*. Steps, walks, driveways, parking spaces, and similar paved areas shall be maintained to afford safe passage under normal use and weather conditions. Any holes or other hazards that may exist shall be filled and necessary repairs or replacement accomplished. All off-street parking facilities shall be swept and maintained free of debris.

(f) *Rodent Infestation*. Yards, courts, and vacant lots shall be kept clean and free of rodent infestations.

(g) *Physical Hazards and Garbage*. Yards, courts, and vacant lots shall be kept clean and free of physical hazards and shall be maintained in a manner that will prevent accumulation of trash, garbage, litter, debris, waste, rubbish, and similar materials. The owner of the property shall maintain the premises litter-free.

(h) *Inoperable Appliances*. The owner of the property shall maintain the

premises free of discarded or inoperative appliances, furnishings, or machinery.

(i) *Signs*. All signs exposed to the public view shall be maintained in sound condition. Excessively weathered or faded signs shall be removed or restored to sound condition. A nonoperative or broken electrical or other sign shall be repaired or removed.

(j) *Trash Receptacles*. Trash receptacles shall be emptied on a regular basis.

(k) *Cigarette Disposal*. All places of business that serve food or drink to patrons (e.g., restaurants, cafes, bars) shall maintain receptacle(s) for the disposal of cigarettes on their premises and shall empty the receptacle(s) on a regular basis.

(2) Property-maintenance violations also mean the violation of the following standards with respect to all buildings and structures on real property:

(a) *Exterior Surfaces*. All exterior surfaces, including but not limited to doors, door and window frames, cornices, porches, trim, balconies, decks, fences, decorative features, and overhang extensions shall be maintained so that they are not dilapidated or decaying, not open to the elements, and free of graffiti. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Substantial peeling, flaking, and chipped paint shall be eliminated and surfaces repainted. All siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors, and skylights shall be maintained weather resistant and water tight. All metal surfaces subject to rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Surfaces designed for stabilization by oxidation are exempt from this requirement. Exterior walls shall be free from holes, breaks, and loose or rotting materials.

(b) *Exterior Structural Members and Walls*. All structural members and walls shall be maintained free from deterioration and shall be capable of safely supporting the imposed dead and live loads of the structure's legal use and occupancy.

(c) *Exterior Foundation Walls*. The foundation walls of every building shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests. Foundations, floors, and walls shall be in good painted or finished condition without peeling.

(d) *Roofs and Openings*. Roofs and flashing shall be sound, tight, and not have defects that admit rain. Roofs shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters, and downspouts shall be maintained and free from obstructions. Roof water shall be discharged in a manner so that it does not fall onto adjacent property. Roof tiles, shingles, and any other attachments shall be properly attached and kept in good condition.

(e) *Exhaust Vents*. Pipes, ducts, conductors, fans, or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors, or other gaseous or particulate wastes directly upon abutting or adjacent public or private property.

(f) *Decorative Features*. All cornices, belt courses, corbels, terra cotta trim, wall facings, and similar decorative

features shall be maintained with proper anchorage and in a safe condition.

(g) *Overhang Extensions*. All overhang extensions including but not limited to canopies, marquees, signs, metal awnings, fire escapes, standpipes, and exhaust ducts shall be properly anchored and maintained in a safe condition.

(h) *Stairways, Handrails, Decks, Porches, and Balconies*. Every exterior stairway, handrail, deck, porch, balcony, gallery, and all appurtenances attached thereto shall be maintained structurally sound and safe, with proper anchorage and capable of supporting the imposed loads.

(i) *Chimneys and Towers*. All chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally sound and safe.

(j) *Windows, Skylights, Door Frames, and Insect Screens*. All windows, including skylights, and door frames shall be kept in sound condition and weather-tight. All glazing materials shall be maintained free from substantial cracks and holes. Boarded windows and doors shall comply with Section 9-98 and shall not be boarded for more than twelve (12) months. Windows, other than fixed windows, shall be operable and capable of being held in position by window hardware. All existing insect screens shall be intact, free from holes or breaks, and tightly fitted.

(k) *Rodent Harborage*. Buildings and structures shall be maintained free of insect, vermin, pigeon, and rodent harborage and infestation.

(l) *Clean and Sanitary Conditions*. Buildings and structures shall be maintained in a clean and sanitary condition free from health, safety, and fire hazards.

(m) *Storefronts*. All storefronts, both occupied and non-occupied, and their walls exposed to public view shall be kept in a good state of repair and free of graffiti.

(n) *Interior Structure*. All interior walls, stairs, porches, floors, ceilings, support pillars, and beams shall be maintained so as not to be damaged, collapsing, or deteriorating.

(3) Property-maintenance violations also include any conditions that unreasonably hinder the use of adjacent properties, block or interfere with the use of the public sidewalk or public or private street or right of way, obstruct the sighting of any road sign, obstruct utility lines or other cables to or around the premises, or extend or infringe beyond the boundaries of the premises.

(4) Property-maintenance violations also include situations in which the overall condition of the premises causes an unreasonable impact on the enjoyment of or value of neighboring properties as expressed by persistent complaints from adjoining and nearby property owners.

(Ord. No. 11-17, 3-13-17; Ord. No. 05-18, 7-9-18)

Sec. 9-94. Enforcement.

(a) *Administration and enforcement*. There shall be a Division of Blight Remediation within the Department of Development Services that is the division responsible for the administration and enforcement of this article and the executive official in charge of the Division of Blight Remediation is known as the Director of Blight Remediation. The Director of Blight Remediation may issue rules, regulations, and policies needed for the enforcement of this article, subject to review and approval by the Blight Review Action Committee. The Division of Blight Remediation shall enforce the provisions of this article and any rules or policies promulgated under this article. The Director of Blight Remediation, or any

designee(s) thereof, may undertake inspections of complaints for the purpose of documenting violations of this article. The Director of Blight Remediation, or any designee(s) thereof, may order any owner who violates this article to abate such violation, and is hereby authorized and empowered to issue citations for violations of this article. The Director of Blight Remediation, or any designee(s) thereof, is also authorized and empowered to effectuate the removal or abatement of the blight violation or property-maintenance violation under the procedures set forth in this article.

(b) *Inspections*. The Director of Blight Remediation, or any designee(s) thereof, may initiate inspections and investigations and shall receive information and complaints concerning blight violations of the provisions of this article. The Division of Blight Remediation shall maintain written status reports indicating the number of complaints, violations identified, active and closed cases, and other information as requested by the Mayor, the Court of Common Council, or the Blight Review Action Committee.

(c) *Complaint of blight violation*. Any individual, any civic organization, or any appropriate municipal agency may file in writing a complaint of a blight violation of this article with the Division of Blight Remediation.

(d) *Notice of violation; order to correct; time limit for compliance.* If the Director of Blight Remediation has reasons to believe, pursuant to an inspection of the premises, that two (2) or more blight violation(s) of this article exist, the Director of Blight Remediation or any designee(s) thereof may serve a written notice of violation(s) and an order to correct such violation(s) to the owner's last-known address by certified mail, return-receipt requested. If the owner's last-known address is the same as the property where the violation has occurred, then a copy of the notice of violation(s) and order to correct may be posted on the property at the time the violations are noted. The notice requirements of this section are deemed satisfied upon: (1) in the case of certified mail upon receipt by the City of either a signed confirmation of delivery or the entire letter returned as non-deliverable, or(2) in the case of the owner's address being the same as the address of the property where the violation has occurred, upon leaving a copy of the notice of violation and order to correct at the property at the time the violations are noted, or (3) in the case of a copy sent electronically to an owner via email and receipt thereof is acknowledged in return. The notice of violation(s) and order to correct shall direct the removal, correction, or abatement of the violation(s) in the manner specified in the order within ten (10) calendar days after receipt of the notice except that such time frame may be shortened in cases wherein the director of blight remediation determines that the cited violations are detrimental to the life or health of any person. Such notice shall notify the owner that failure to remove, correct, or abate the violation will result in the issuance of a citation in accordance with this article. Such notice shall further notify the owner that failure to remove, correct, or abate the violation will result in fines being imposed that may be enforced subsequently as a lien on the owner's property and may be converted into a court judgment, and the City may cause the removal or abatement of the violation at the expense of the owner, which may likewise result in a lien on the owner's property that may be converted into a court judgment.

(e) *Failure to correct deficiencies: citation*. If an owner of property has been served with a notice of violation(s) and order to correct and has failed to remove, correct, or abate the violation(s) within ten (10) calendar days after receiving a notice of violation and order to correct, as determined upon subsequent inspection, then the owner shall be presumed to be in violation of this article for every day thereafter until the owner submits appropriate evidence that the violations have been corrected.

(1) However, if the owner, within that ten (10) day period, demonstrates to the City that the owner intends in good faith to rehabilitate or demolish the premises, or that the violation has occurred as a result of a casualty loss for which insurance is available but the owner needs additional time to remove, correct, or abate the violation, then the Director of

Blight Remediation, or any designee(s) thereof, in his/her discretion, may issue a written stay of the enforcement of the citation and the enforcement of any fines imposed against the owner. Any stay is expressly conditioned upon the rehabilitation or demolition of the premises within a specified period of time not to exceed thirty (30) days, unless the owner requests an extension of time in writing to the Blight Review Action Committee, within the time specified in the stay and demonstrates that work to remove, correct, or abate the violation(s) is progressing in good faith. The Blight Review Action Committee may grant an extension up to sixty (60) days. The owner may request additional extensions up to sixty (60) days each. If the conditions of the stay have not been met within the specified time period, or the time period as it may be extended, the stay will be terminated and all fines assessed against the owner will be enforced against the owner in accordance with this article.

(2) The Division of Blight Remediation may issue a citation against the owner(s) assessing a civil penalty of not more than one hundred fifty dollars ($150.00) for each day that a violation continues at an occupied property, or two hundred fifty dollars ($250.00) for each day that a violation continues at a vacant property, or the maximum authorized by G.S. § 7-148(c)(7)(H)(xv) or other state statutes or the Municipal Code.

(3) Any citation issued pursuant to this article shall be served upon the owner by mailing the citation to the owner's last-known address by certified mail, return receipt requested, and by posting the citation in a visible manner on the subject property. A copy of the citation shall be filed with the town clerk, and any subsequent purchaser of the property shall be subject to such citation. The citation shall provide the owner with the following information:

(i) The allegations made against the property and the amount of the proposed fines per day of continued violation of the ordinance;

(ii) That the owner(s) may contest their liability before the City's duly appointed hearing officer by requesting an appeal pursuant to Section 9-95 of this article, "Citation hearing officer; appointment; appeals";

(iii) That if the owner(s) does not demand such a hearing within ten (10) calendar days of the date of the citation, the owner(s) shall be deemed to have admitted liability, and the hearing officer may assess a fine without further notice;

(iv) That the City may file a lien against the property in accordance with G.S. § 7-148aa for the amount of any unpaid fine for a blight violation or property-maintenance violation imposed by the City in accordance with this article;

(v) That a lien may be enforced in the same manner as a property tax lien pursuant to G.S. § 7-148aa and this article;

(vi) That fines imposed may be converted to a court judgment for money damages with additional court cost imposed; and

(vii) That in the case of violations that pose a danger to the public health, welfare, and safety, the City may cause the conditions to be corrected, removed, or abated at the expense of the owner, and that the amount of costs for correction, removal, or abatement may also become a lien against the owner's real property.

(f) *Failure to pay.* If the owner(s) fail to pay, within forty-five (45) days of the citation, any and all civil penalties levied pursuant to this article, a one (1) percent interest charge shall be applied to the outstanding balance. The interest shall accrue and be compounded daily. Failure to pay any fee or civil penalties arising from the enforcement of this article constitutes a debt in favor of the City and shall constitute a lien upon the real estate against which the fee or civil penalty was imposed from the original date of

such fee or civil penalty. Each such lien may be continued, recorded, and released in the manner provided by the Connecticut General Statutes for continuing, recording, and releasing property tax liens. Each such lien shall take precedence over all other liens and encumbrance filed after July 1, 1997, to the fullest extent permitted by law, except taxes, and may be enforced in the same manner as property tax liens. In addition to placing a lien against the property for failure to pay any fee arising from the enforcement of this article, the City may bring civil action against the debtor in a court of competent jurisdiction to recover such debt.

(g) *Anti-Blight Special Fund.*

(1) All monies collected by the City as fees and civil penalties for violation(s) of this article and revenue collected pursuant to the special assessment pursuant to this article shall be deposited into a special fund. This special fund shall be called the Anti-Blight Special Fund. The purpose of this fund is to provide a source of funds to be used for all associated costs in securing, remediating, and remedying blight and enforcing the Anti-Blight and Property-Maintenance Program.

(2) Revolving Fund. The account shall be a permanent revolving account and shall not lapse at the end of the fiscal year. All the monies and interests deposited in the Anti-Blight Special Fund shall not be transferred, appropriated, or deposited in the general fund or any other fund. All monies in this revolving fund shall be used exclusively for the purposes of the Anti-Blight and Property-Maintenance Program as set forth herein.

(3) Civil Penalties, Violations, and Liens. Any civil penalties or liens placed on any property as a result of any violation of the Anti-Blight & Property-Maintenance Program which have been assessed and collected from a foreclosure, sale, or judicial settlement shall be deposited in the Anti-Blight Special Fund.

(h) *Appeal for relief of citation*. Any owner served with a citation in accordance with this article may, within ten (10) days of receipt of the citation, appeal in writing for relief from the citation hearing officer in accordance with sections 1-5 and section 9-95 of the Municipal Code. (Ord. No. 11-17, 3-13-17; Ord. No. 05-18, 7-9-18; Ord. of 3-14-22, § 1; Ord. of 3-25-24)

Sec. 9-95. Citation hearing officer; appointment; appeals.

The Corporation Counsel shall appoint individuals to hear appeals concerning citations issued under Section 9-94, pursuant to the provisions of section 1-5 of the Municipal Code. The City Council may make recommendations to the Corporation Counsel concerning the individuals to be appointed to serve as citation hearing officers. The individuals appointed to serve as citation hearing officers shall serve for a term of up to one (1) year or until a successor is appointed. All citation hearing officer appointees shall have backgrounds in law and/or issues relating to housing. Each hearing officer appointed pursuant to this section shall hear appeals under this article. In deciding to appoint an individual as a citation hearing officer under this section, the Corporation Counsel shall give preference first to City residents and second to those with a place of business in the City and students attending a law school located in the City. Individuals appointed as citation hearing officers under this section shall serve at the pleasure of the Corporation Counsel.

(1) An owner may appeal for relief of each citation issued pursuant to section 9-94 to a citation hearing officer in accordance with the provisions of section 1-5 of the Municipal Code. Relief shall be requested in writing within ten (10) days of the citation. Relief may be granted if the owner can establish to the hearing officer's satisfaction that:

a. The owner cited was not the owner of record of the property at the time the notice of violation and order to correct was issued; or

b. Notice of the violation was not properly served upon the owner of record in accordance with subsection 9-94; or

c. The notice of violation was not in proper form; e.g., failed to inform the owner of the section of the Municipal Code being cited for, failed to give owner sufficient time to cure violation, etc.; or

d. The notice of citation was not properly served to the owner of record in accordance with subsection 9-94; or

e. The notice of citation was not in proper form; e.g., failed to contain the amount of the penalty incurred under subsection 9-94, failed to inform the owner of the right to appeal, etc.; or

f. The Director of Blight Remediation incorrectly determined that the violations cited were not corrected within the ten-day period, or time period granted by a stay of enforcement, as required by subsection 9-94; or

g. The property is subject to a stay of enforcement issued pursuant to section 9-94; or

h. The real property and its structures are actively undergoing repairs that are required to be made to correct violations of state or local codes; or

i. The owner has in good faith corrected all cited violations and it would work a substantial economic hardship on the owner of the real property to require further payment of penalties in compliance with this article.

(2) Full documentation, such as code violation reports, engineering reports, and any other information deemed necessary by the hearing officer shall be provided by the owner(s).

(Ord. No. 11-17, 3-13-17; Ord. No. 05-18, 7-9-18)

Sec. 9-96. Blight review action committee report; hearing.

(a) The Blight Review Action Committee shall present a bi-annual status report at the regular meetings of the Court of Common Council listing all properties deemed to be blighted within the meaning of this article. The report shall include the following:

(1) The factors which, in the Blight Review Action Committee's opinion, warrant the determination that the premises so listed are blighted;

(2) The efforts undertaken by the City to eliminate the blighting condition, such as clearing the premises of debris or barricading the structures on the premises, and that such actions were unsuccessful;

(3) That either (a) the owner of the premises cannot or will not eliminate the blight violation, or (b) the owner has not responded to a lawful order by the City to take action to eliminate the blight violation within ten (10) days after due notice or order has been served by means set forth in subsection 9-94(d).

(b) At the regular meeting at which the Council receives the report from the Blight Review Action Committee, the Council shall set a date no later than thirty (30) days thereafter at which time a public hearing shall be held in regard to the existence of blight violations on the named premises, except that no public hearing shall be held on those properties which are the subject of a pending section 1-5 hearing.

(c) At the public hearing the report of the Blight Review Action Committee shall be treated as prima facie evidence of blight on the premises. (Ord. No. 11-17, 3-13-17)

Sec. 9-97. Acquisition of properties.

The Director of the Department of Development Services is authorized to take the necessary steps to acquire any properties covered by the provisions of this article and which have been certified by the building official to be abandoned pursuant to the Urban Homestead-

ing Act, G.S. § 8-169(o), et seq., as it may be amended from time to time, or any other ordinance or state statute. The Director of the Department of Development Services is further authorized to take necessary steps to acquire any properties covered by the provisions of this article, provided there are funds available, using other state and federal means as they may be available.
(Ord. No. 11-17, 3-13-17)

Sec. 9-98. Securing and painting of openings in buildings.

The Director of Licenses and Inspections or the Director of Blight Remediation, or any designee(s) thereof, may order the owner of a vacant or abandoned building to secure all doors and windows, including any or all windows in the upper floors of the building, of any building which is vacant or abandoned. The Director of Licenses and Inspections or the Director of Blight Remediation, or any designee(s) thereof, shall designate the materials and procedures to be used to comply with such order. The Director of Licenses and Inspections or the Director of Blight Remediation, or any designee(s) thereof, shall order all property owners of vacant or abandoned buildings to paint all boards of raw plywood or other similar materials used to cover all doors, windows, or other areas, with a color which matches the color of the building. If the owner of the building fails, neglects, or refuses to comply properly with the terms of the order issued pursuant to this section by the Director of Licenses and Inspections or the Director of Blight Remediation, the Director of Licenses and Inspections or the Director of Blight Remediation or any designee(s) thereof may cause the required work to be performed by City staff or an independent contractor; the Director of Licenses and Inspections or the Director of Blight Remediation is not obligated to secure any building that is not deemed unsafe. The Corporation Counsel's Office may institute an action against the owner of the building to recover the cost of any work performed at the expense of the City pursuant to this section.
(Ord. No. 11-17, 3-13-17; Ord. No. 05-18, 7-9-18)

Sec. 9-98A. Reserved.

Editor's note—Ord. No. 05-18, adopted July 9, 2018, repealed § 9-98A, which pertained to registration of vacant buildings and vacant lots and derived from Ord. No. 11-17, adopted March 13, 2017.

Sec. 9-98B. Reduction in assessment for rehabilitated structures.

(a) The assessment on real property, which is determined to have two (2) or more existing blight violations under this article and is within one thousand five hundred (1,500) feet of residential property, shall, at the discretion of the City Assessor, be adjusted as provided for in subsection (c) and pursuant to G.S. § 12-121e, provided all other criteria established in this section are met.

(b) Before such real property will be considered for a deferral under this section, a "request for deferral" application shall be filed with the department of assessment which shall include:

(1) A description of the parcel;

(2) A description of the planned improvements thereon and intended use;

(3) An itemized estimate of the cost of those improvements; and

(4) A timetable detailing the schedule of improvements.

(c) Real property that meets the requirements of subsections (a) and (d) of this section shall have the assessment on the building to be rehabilitated reduced for a period of nine (9) years from the time such improvement has been completed and a certificate of occupancy has been issued pursuant to section 35-69. Such adjusted assessment shall reflect the value of the structure prior to rehabilitation and shall defer any increase in assessment attributable to such improvement according to the following schedule:

Year	*Percentage of increase deferred*
1	100
2	100
3	100
4	100
5	100
6	80
7	60
8	40
9	20

Year	*Percentage of increase deferred*
10	0

(d) For a building to be considered for an assessment deferral under this section, the following criteria shall be met:

(1) Residential (one- to four-family, co-ops and condominiums) and apartments (five-family and up).

a. The building shall be at least fifteen (15) years old.

b. The investment in the building to be improved shall be at least thirty (30) percent of the assessed value of said property as of the last revaluation.

c. No building shall be eligible unless appropriate building permits have been acquired and applications for such permits are made at the same time as the filing for an assessment deferral with the City Assessor.

d. Any rehabilitated structure shall meet all zoning regulations of the planning and zoning commission.

e. Within seven (7) days of completion of improvements and issuance of a certificate of occupancy, the Assessor shall be notified by the owner.

(2) Commercial and industrial.

a. The building shall be at least twenty (20) years old.

b. The investment in the building to be improved shall be at least forty (40) percent of the assessed value of said property as of the last revaluation.

c. No building shall be eligible unless appropriate building permits have been acquired and applications for such permits are made at the same time as the filing for an assessment deferral with the City Assessor.

d. Any rehabilitated structure shall meet all zoning regulations of the planning and zoning commission.

e. Within seven (7) days of completion of improvements and issuance of a certificate of occupancy, the Assessor shall be notified.

(e) For the purposes of revaluation, the market value prior to rehabilitation and the post rehabilitated market value will fluctuate with the revaluation. The market value of the property prior to rehabilitation will be adjusted by a factor equal to the median change in value for the property use code as a result of the revaluation. The post rehabilitated market value of the property will be recalculated with the revaluation. In cases where rehabilitation has not been completed prior to the implementation of a revaluation, the market value of the property will be recalculated with the revaluation.

(f) If rehabilitation work is not completed or a certificate of occupancy has not been obtained within two (2) years of the date of the approval of the Assessment Deferral application, a new application shall be filed with the Assessment Division and re-approved for the property to maintain eligibility of the program. If the property is transferred after program approval and before a certificate of occupancy for the rehabilitation work has been issued, the new owner shall file a new application with the Assessment Division prior to the commencement or recommencement of work and would require re-approval for the property to maintain its program eligibility.
(Ord. No. 11-17, 3-13-17; Ord. No. 003-20, 6-22-20)

Sec. 9-98C. Blight review action committee.

(a) The Blight Review Action Committee is established and comprised of the Corporation Counsel or his or her designee within the Office of Corporation Counsel, Tax Assessor or his or her designee, Director of Blight Remediation or her or his designee, Director of Licenses and Inspections or his or her designee, Director of the Department of Public Works or his or her deputy, Director of Health and Human Services or his or

her deputy, and Tax Collector or his or her designee and has the authority conferred upon the Committee by this article. The Chair of the Blight Review Action Committee shall be the Director of Blight Remediation.

(b) The Committee has the authority to administer the provisions of this article through the Director of Blight Remediation, to determine when and under what circumstances entry upon private property shall be authorized, and to settle, based on the recommendation of the Director of Blight Remediation, any fines, citations, civil penalties, or liens placed on any property for violations of this article if such settlements are deemed, in the Committee's discretion, necessary to promote the policy set forth in Section 9-91A, Declaration of policy.
(Ord. No. 11-17, 3-13-17)

ARTICLE VI. RESERVED*

*__Editor's note—__Ord. No. 11-17, adopted March 13, 2017, repealed Art. VI, § 9-99, which pertained to urban homestead and derived from Ord. No. 16-08, adopted June 2, 2008.

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Chapter 10

PARKING AUTHORITY*

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***Editor's note—**Ord. No. 03-05, adopted March 14, 2005, amended and restated Ch. 10 of the Code in its entirety to read as herein set out. Prior to amendment, Ch. 10 pertained to similar subject matter and derived from Ord. No. 55-98, adopted Oct. 26, 1998; Ord. No. 26-02, adopted June 24, 2002; Ord. No. 32-02, adopted Aug. 13, 2002; Ord. No. 53-02, adopted Oct. 15, 2002; and Ord. No. 10-04, adopted June 14, 2004.

Cross references—Motor vehicles and traffic, Ch. 22; parking, stopping and standing, § 22-21 et seq.

ARTICLE I. IN GENERAL

Sec. 10-1. Authority created.

(a) Pursuant to Chapter 100 of the General Statutes (C.G.S. § 7-202 et seq.), there is hereby created a parking authority, which shall be a body corporate and politic to be known as the "Hartford Parking Authority." The purpose of the authority shall be to create, establish, finance, maintain, and operate the city-owned parking facilities, and to manage and operate other regulated parking facilities, as provided in this chapter; and

(b) Regulate the uses and collect and receive revenues from parking meters pursuant to G.S. § 7-207a, and to enforce and administer rules and regulations respecting meters and on-street parking throughout the City of Hartford, as provided in this chapter and in Chapter 22 of the Municipal Code.
(Ord. No. 03-05, 3-14-05)

Sec. 10-2. Definitions.

For purposes of this chapter, parking facilities shall mean the following:

(1) The city's parking garages known as the Church Street, MAT, the Morgan Street Garage, and the Hartford Public Library Garage, together with any additions or extensions to, or replacements for, such garages in, and any garages which may be acquired or constructed by the city or the authority for the purpose of parking motor vehicles within, the City of Hartford, plus;

(2) Surface lots, garages, terminals, structures and other accommodations that are owned by the city or the authority and used for parking motor vehicles off any street or highway within the City of Hartford to the extent (i) they have been leased by the city as a part of or in conjunction with other property which is not used for, or in a manner which is directly related to the business of, parking motor vehicles, and (ii) the city has nonetheless reserved the right to regulate the rates to be charged the public for parking motor vehicles therein or thereat; and

(3) Non-metered parking facilities on any street within the City of Hartford.
(Ord. No. 03-05, 3-14-05)

Sec. 10-3. Reserved.

Sec. 10-4. Composition of authority; terms; vacancies.

(a) The authority shall consist of five (5) members, all of whom shall be residents of the city.

(b) Authority members shall be appointed by the mayor and approved by the council, provided, that not more than three (3) members of the authority shall be of the same political party at any one (1) time.

(c) Those members first appointed to the authority shall be designated to serve terms of one (1), two (2), three (3), four (4) and five (5) years, respectively. Thereafter, any member appointed to the authority shall be appointed to serve for a term of five (5) years, except that any member appointed to fill a vacancy shall be appointed to serve for the balance of the term thereof. Nothing herein shall preclude any member from being reappointed to the authority.
(Ord. No. 03-05, 3-14-05)

Sec. 10-5. Compensation for authority members.

The members of the authority shall serve without pay, but shall be reimbursed by the authority for their necessary expenses incurred in the performance of their duties as set forth in the budget approved by the council pursuant to section 10-19.
(Ord. No. 03-05, 3-14-05)

Sec. 10-6. Rights and duties of authority; succession.

The authority shall succeed to all of the city's rights (other than revenues from the city's parking facilities) and honor all of the city's obligations with respect to the city's parking facilities. The authority shall operate and maintain the

city's parking facilities pursuant to the terms and conditions of this chapter and any applicable leases, licenses or other agreements.
(Ord. No. 03-05, 3-14-05)

Sec. 10-7. Selection of chairman; by-laws; residency.

The members of the authority shall annually elect a chairman and vice-chairman from among their number. The chairman, or, in his or her absence, the vice-chairman, shall conduct each meeting of the authority in accordance with such by-laws as may be adopted thereby. If a member of the authority ceases to be a resident of the city, such member shall be deemed to have resigned and a new member shall be appointed as provided in section 10-4.
(Ord. No. 03-05, 3-14-05)

Sec. 10-8. Authority meetings.

At its first meeting, and on or before the first day of each calendar year thereafter, the authority shall adopt a schedule of its regular meetings which shall be held through the following December, which schedule, in turn, shall be filed with the town clerk and available for public inspection. The authority shall hold its regular meetings in accordance with such schedule and shall hold special meetings on the call of the chairman or any two (2) members upon giving notice thereof to all members of the authority at least twenty-four (24) hours in advance. All meetings shall be held and notices filed in accordance with the Freedom of Information Act.
(Ord. No. 03-05, 3-14-05)

Sec. 10-9. Executive director; other support personnel.

The authority shall appoint an executive director and may hire such other officers, employees, agents and technical consultants as it deems necessary to carry out its purposes within the scope of the budget approved by the council therefore pursuant to section 10-19.
(Ord. No. 03-05, 3-14-05)

Sec. 10-10. Authority employees not city employees.

Neither the executive director nor any other employees of the authority shall be employees of the city.
(Ord. No. 03-05, 3-14-05)

Sec. 10-11. Powers, duties of executive director.

The executive director shall be the chief executive officer of the authority, and shall subject to the direction of the authority, have general supervision over the administration and operation of authority projects and facilities and shall appoint and remove all other officers and employees of the authority as prescribed by the personnel rules and regulations of the authority. The executive director shall attend all authority meetings and shall have the right to speak at such meetings, but shall have no vote.
(Ord. No. 03-05, 3-14-05)

Sec. 10-12. Reserved.

Sec. 10-13. City assistance.

The chief operating officer and the corporation counsel may provide such assistance to the authority (including, without limitation, city employees) as may be requested by the authority and, subject to Chapter VI of the Charter and Division 2 of Chapter 2 of the Code entitled "Budgets", to charge the cost incurred by the city of providing such goods and services to the authority, or the department from which they are forthcoming, as an expense properly allocable thereto.
(Ord. No. 03-05, 3-14-05)

Sec. 10-14. Powers of the authority.

Subject to the other provisions of this chapter, the authority shall have such powers with respect to parking within the City of Hartford as are generally conferred upon parking authorities by the General Statutes, including the following powers and duties:

1. The authority shall have the power to regulate, maintain and control parking within the City of Hartford.

2. The authority shall assume all parking-related duties of the traffic engineer as delineated in Chapter 22, and the authority shall be designated by the traffic authority to carry out parking-related duties specified in that chapter.

3. The authority shall further have the power to:

   a. Contract and be contracted with; to sue and be sued; to make and from time to time, amend and repeal by-laws, rules and regulations not inconsistent with general law to carry out its purposes; and to adopt a corporate seal and alter it at its pleasure;

   b. Recruit, interview and employ personnel;

   c. Prepare and submit to the mayor or designee an annual budget for review and submission to the council as part of the budget of the city which proposed annual budget shall be subject to modification and amendment as in the case of a city departmental budget;

   d. Arrange for audits of its operations, including an annual independent audit of its operations and an annual appraisal of the physical condition of the parking facilities by a professional engineering firm experienced with parking facilities, for submission to the council;

   e. Recommend to the city that the city (a) acquire any surface lot, garage, terminal, structure, accommodation or other property by purchase gift or lease as lessee, (b) acquire, by gift, purchase or lease as lessee, lands or rights-in-land in connection therewith or (c) sell, lease as lessor, transfer or dispose of any property or interest therein;

   f. Enter into all contracts and agreements necessary or incidental to the performance and execution of its duties and the execution of its powers under this chapter;

   g. Do all acts and things necessary or convenient to carry out the duties established in this chapter as well as in Chapter 22 of the Municipal Code, to the extent that such duties may be related to parking, including, but not limited to, the direct purchase of necessary supplies, materials, equipment and contractual services; and

   h. Collect and receive all revenue from all parking facilities and revise from time to time, upon approval of the authority following public notice and the opportunity for public comment, the fees, rates, rents or other charges for the use of all parking facilities, services furnished or to be furnished at such parking facilities and parking violations within the city as provided herein. Notwithstanding the foregoing, facility fees, rates, rents or other charges shall not exceed ninety (90) percent of the average fees, rates, rents or other charges for comparable non-authority facilities located in comparable zoning districts within the City. Said average fees, rates, rents or other charges for comparable non-authority facilities shall be determined through periodic surveys conducted by authority staff or consultants. Such surveys shall be made available for public review at the offices of the authority at least fifteen (15) calendar days prior to the increase of any such fees, rates, rents or other charges.

(Ord. No. 03-05, 3-14-05; Ord. No. 39-11, 7-11-11)

Sec. 10-15. Additional powers.

Subject to the other provisions of this chapter, the authority also shall have the power to:

(1) Subject to council approval, construct, reconstruct, improve, or extend any parking facility;

(2) Subject to council approval, lease as lessor all or any part of any parking facility where such lease is for commercial uses related to the public uses of the facility or unrelated to the public uses of the facility but necessary and feasible for the financing or operation of the facility;

(3) Regulate the uses of all parking within the City of Hartford, including parking facilities, subject to land use regulations of the municipality in which such facilities are located;

(4) Reserved.

(5) Enter into contracts with the city, the state, or any political subdivision, agency or instrumentality thereof, any federal agency or any private corporation, limited liability company, partnership, association or individual, for or in connection with parking (including, but not limited to, the design, development, construction, operation or use thereof);

(6) Accept grants and gifts from the city, the state, or any political subdivision, agency or instrumentality thereof, any federal agency and from any private corporation limited liability company, partnership, association or individual;

(7) Establish rules and regulations for the purchase of supplies, materials, equipment and contractual services necessary and incidental to the performance and execution of its duties and the execution of its powers, including adoption of the provisions of those ordinances and resolutions as shall be adopted by the council as set forth in section 10-18;

(8) Establish salary schedules, organization charts and staffing levels;

(9) Hire auditors for the purposes set forth in sections 10-14(3)d, and 10-25;

(10) Establish personnel rules and regulations for its officers and employees; and

(11) Subject to the approval of the council, issue bonds to finance all or any portion of the cost to acquire or to design, develop, construct, refurbish or reconstruct any dedicated parking facility, subject to and in accordance with the General Statutes.

(Ord. No. 03-05, 3-14-05; Ord. No. 40-11, 7-11-11)

Sec. 10-16. Exercise and effect of authority powers.

(a) No action of the authority shall be valid unless authorized by a vote of the majority of its members.

(b) The authority shall not enter into any contract, or compromise or settle any claim which may be made by or against the authority, except in accordance with section 4 of Article XVIII of the Charter.

(c) The authority shall have the power and authority to enter into any contract or agreement which would obligate the authority to pay for any goods or services provided in one (1) fiscal year with funds budgeted for use by the authority in any prior or subsequent year.

(Ord. No. 03-05, 3-14-05)

Sec. 10-17. Residency requirements for employees.

At the discretion of the parking authority, the executive director of the authority may be subject to the same residency requirements as are set out in the Code for city department heads.

(Ord. No. 03-05, 3-14-05)

Sec. 10-18. Authority subject to resolutions, ordinances, etc.

Except as otherwise provided by this chapter, the authority shall be subject to all provisions of all city ordinances and resolutions which have been or may hereafter be adopted by the council pertaining to affirmative action and/or preferences for woman and minority owned business enterprises, city businesses and/or its residents.

(Ord. No. 03-05, 3-14-05)

Sec. 10-19. Budgets; expenditures.

(a) The authority shall annually submit a proposed budget to the mayor or designee at the same time as budget requests are required by the mayor or designee to be submitted by city depart-

ments. The proposed budget shall contain an estimate of all revenues and expenses for each parking facility, and the authority as a whole, with estimated expenses being segregated within an operating budget, a maintenance and equipment budget, a parking enforcement budget, and a capital budget. All such budgets shall be prepared in that format and contain such detail as may be specified by the mayor or designee consistent with sections 2-503 through 2-505 and 2-516. The mayor shall include the authority's budget request, together with the mayor's recommended revisions thereto, as a part of the budget submitted to the council pursuant to section 2-501. The budget submitted to the council shall contain an expense line item to cover the cost of maintenance for the parking facilities that is equal to the best practices of the parking industry in the northeast quadrant of the United States (commencing with the fiscal budget year ending June 30, 2009), such funds to be deposited into the renewal and replacement account established pursuant to section 10-20 and used by the authority.

(b) Subsequent to the adoption of the city's budget each year, the authority shall submit its work program to the director of finance and thereafter shall make only such expenditures as are authorized pursuant to the allotment(s) approved by the director of finance for the authority as is provided for other departments and agencies of the city pursuant to section 2-511 and 2-515. If at any time during any fiscal year the executive director shall ascertain that the authority's cash receipts from its operations that year, plus any subsidies, grants or other moneys which are to be provided to the authority by the city or any other entity that year, will be less than the total amount which the authority has been allotted pursuant to this section that year, then he or she shall revise the authority's work program, and request a revised allotment from the director of finance, so as to forestall the incurring of a deficit. In no event shall the authority approve or make any expenditure beyond the amounts authorized therefor in the city's annual budget unless the authority previously has obtained the council's approval to do the same.

(c) No payment shall be made and no obligation incurred against any allotment unless the director of finance shall first certify that there is a sufficient unexpended and unencumbered balance in such allotment to meet such obligation. Every expenditure or obligation authorized or incurred in violation of the provisions of this section or the charter shall be void. Every payment made in violation of the provisions of this section or the charter shall be deemed illegal, and all officials who shall knowingly authorize or make such payment or take part therein and all persons who shall knowingly receive such payment or any part thereof shall be jointly and severally liable to the city and the authority for the full amount so paid or received. If any officer or employee of the city or the authority shall knowingly incur any obligation or shall authorize or make any expenditure in violation of the provisions of this section or the charter or take part therein, such action shall be cause for his or her removal.

(Ord. No. 03-05, 3-14-05)

Sec. 10-20. Business accounts.

The authority shall establish a business enterprise account in the name of the authority and the city into which all revenues received by the authority shall be deposited, and from which all expenditures of the authority shall be made. Subject to all contractual and other legal requirements, all or any portion of any moneys remaining in the account at the end of any fiscal year after payment by the authority of all of its expenses attributable thereto may be transferred to the city's general fund or such other accounts as is directed by the council by resolution.

The authority shall establish a renewal and replacement account and a construction account in the name of the authority and the city. Amounts deposited into the renewal and replacement account pursuant to section 10-19(a) or otherwise shall be used by the authority for renewal and replacement expenses at parking facilities. Amounts deposited into the construction account from the proceeds of city bonds or from any other source shall be used for capital expenditures with respect to the parking facilities for which such bond proceeds or other source shall be designated.

The authority may establish sub-accounts within such accounts for the purpose of segregating moneys on deposit therein.
(Ord. No. 03-05, 3-14-05)

Sec. 10-21. Authority members.

The names and addresses and terms of office of the members of the authority shall be kept on file in the office of the city clerk.
(Ord. No. 03-05, 3-14-05)

Sec. 10-22. Assumption of existing rights and obligations.

Notwithstanding any provision of this chapter to the contrary, any and all property rights which exist in, over, under or through any parking facility, or the land on or over which the same is situate, which neither are dependent upon, nor derive from the operation of, the parking facility, and are not otherwise reasonably required to support parking operations, are hereby reserved to the city absolutely. Without limiting the generality of the foregoing, the city's fee interests in the land underlying each city-owned parking facility and all of the air rights and easements which have been (or may hereafter be) leased or otherwise granted by the city over, under and/or through any such facility for or in connection with the erection, maintenance and/or support of any structure or equipment located (or to be located) over any such facility, and any and all revenues which may flow to the city under or by virtue of such leased property, are hereby reserved unto and shall remain solely within the control of the city.
(Ord. No. 03-05, 3-14-05)

Secs. 10-23, 10-24. Reserved.

Sec. 10-25. Books, records, and accounts.

The authority shall maintain accurate records of all revenues collected and expenses. Within thirty (30) days of the close of each calendar quarter, and within sixty (60) days of the close of each fiscal year, the authority also shall provide the director of finance with a report detailing its financial operations for said time periods. All books, records, and reports of the authority required pursuant to this section shall be prepared and maintained, and all disbursements of any of the authority's funds only shall be effected, in such form and in accordance with such standards and procedures as are promulgated by the city's director of finance and thereafter approved by the council. All books, records and documents of the authority shall be public records as defined in G.S. § 1-19(a) and shall be subject to public disclosure, except as provided in G.S. § 1-19(b) and (c).
(Ord. No. 03-05, 3-14-05)

ARTICLE II. VALET PARKING

Sec. 10-26. Declaration of policy.

(a) The authority recognizes that the use of public streets and rights of way for valet parking operations, while providing a public benefit, may also impede travel, interfere with the rights of others using the streets and rights-of-way, and may affect the public safety and create a public nuisance. The authority may therefore permit and restrict valet parking operations as a special privilege, not as a matter of right.

(b) The executive director, or his designee, may from time to time issue written regulations for distribution to applicants and permittees regarding the implementation of the provisions of this chapter, including, but not limited to, the safe and lawful conduct of all valet operations, permit application procedures and permit standards.
(Ord. No. 54-11, 12-12-11)

Sec. 10-27. Definitions.

Operator means any person engaged in the business of a valet parking operation.

Special event means any event held on city property, in city buildings and/or on private property that requires specific city or state permits or authorizations, as well as the use of city services and assets and for which a special permit from the city is required to ensure the health, safety and welfare of event participants, residents and visitors, and to minimize the financial and legal risks to the event organizers and the city. Special

events can include parades, sports events, concerts, theater productions, celebrations, outings, weddings, ceremonies and fairs, among others.

Sponsor means any person who utilizes a valet parking operation at the sponsor's place of business or function.

Valet parking means parking arrangements provided where patrons leave their cars at the street curb line and attendants park and retrieve them for a fee.

Valet parking permit means a permit used in accordance with this section for the approved use of valet parking in a valet parking zone.

Valet parking zone means an area for one (1) or more standard single passenger vehicles on the public right-of-way which has been set aside by the city for valet parking.
(Ord. No. 54-11, 12-12-11)

Sec. 10-28. Valet application process and requirements.

(a) No valet parking operation is permitted unless a permit allowing such activity at each valet parking zone has been issued by the authority pursuant to this section.

(b) An application for a valet parking permit shall be made in writing on forms prescribed by the authority, submitted by the operator and co-signed by the sponsor. Such application shall include, at a minimum, the following:

(1) Name, address and contact information for the operator and sponsor;

(2) Location of the proposed valet parking operation;

(3) Off-site location for vehicle storage;

(4) Proof of insurance in accordance with section 10-30;

(5) Sketch of traffic plan; and

(6) Other information deemed necessary by the authority or the traffic authority to fully evaluate an application.

(c) The authority may charge an annual fee for the processing of the valet parking permit which shall be due at the time of application. This annual application fee shall be based on the reasonable cost of the application, plan, review, study and other services as required for permit approval. The annual application fee shall be two hundred dollars ($200.00). Any adjustments of said fees may be allowed with the approval of the authority.

(d) At the time that the application is submitted for review, the valet parking operator's disclaimer and/or statement of parking conditions, as usually printed on the back of the receipt or ticket stub given to valet parking customers, must also be submitted for review and approval. At a minimum, the disclaimer and/or statement of parking conditions must contain an authority phone number, as specified by the executive director of the authority, where a parking customer can report violations or register complaints.

(e) The authority shall consult with the City of Hartford Department of Public Works prior to the issuing of any permit and permits will not be issued following such consultation where the drop-off and pick-up of vehicles interferes with the safe operation of driveways, street intersections, crosswalks or other protected areas; when a snow or other emergency is declared; when construction of the public way, within a block of the valet parking zone, is being conducted; or when parking is restricted at the valet parking zone for any reason.

(f) A determination that a false statement was knowingly made on the permit application is grounds for revocation of a valet parking permit as detailed in section 10-31 below.

(g) A permit for valet parking may be obtained by an applicant for use at a one-time, special event, provided:

(1) The applicant complies with all rules and regulations as specified in this ordinance and pursuant to other applicable state and local laws.

(2) The applicant completes the permit application for temporary, special event valet parking as provided by the authority;

(3) An application fee of fifty dollars ($50.00) is submitted with said application and the

fee per parking space, in the amount of fifteen dollars ($15.00), is paid upon issuance of the special event permit.

(h) The executive director of the authority reserves the right to approve or disapprove any valet parking application for any reason he or she may deem appropriate, or approve or disapprove an amended application for any reason he or she may deem appropriate. Should the executive director disapprove an application, the reasons for such disapproval shall be provided in writing.
(Ord. No. 54-11, 12-12-11)

Sec. 10-29. Operational regulations, restrictions and requirements for valet parking operations and services; fees for valet parking spaces.

(a) Upon approval of permit application, the authority shall charge an annual street usage fee for the use of the city streets and properties as valet parking zones. The fees, chargeable to the operator, shall be one thousand dollars ($1,000.00) per the first eighteen (18) feet of the valet parking zone, plus twenty-five dollars ($25.00) per linear foot of the valet parking zone thereafter. Such annual street usage fee shall be paid upon issuance of such annual permit. Any adjustments of said annual fees resulting from an increase in the size of the valet parking zone during the pendency of any such annual permit may be allowed with the prior approval of the authority. Such fees shall not apply in the case of valet parking for a one-time special event. The fee schedule provided in subsection 10-28(g) shall apply for special events valet parking.

(b) The following rules and procedures shall apply to all valet parking operations and services:

(1) A valid permit for operation of valet parking services must be obtained prior to offering valet parking services to customers, and be available for inspection at each permitted location:

(2) All employees of valet parking operators engaged in valet parking shall wear an identification badge that identifies the operator, the particular employee's name and said employee's badge number, which shall not be greater than three (3) digits;

(3) Passengers and drivers shall not be loaded or unloaded from their vehicles within traffic lanes that are open to through traffic;

(4) Valet parked cars shall not be permanently parked in the valet parking zone or in any other public right-of-way;

(5) The valet parking service shall not interfere with the regular flow of vehicular or pedestrian traffic;

(6) The only signs, markings or devices that will mark the valet zone will be the legal traffic authority signs owned, installed and maintained by the city and/or any signs approved by the city in accordance with applicable regulations;

(7) There must be legal parking in the area designated as the valet parking zone, and the City of Hartford Department of Public Works must approve that such area be used for the valet parking zone;

(8) No vehicles shall be permanently parked by a valet parking operator on city streets and the operator must guarantee to valet parking customers that their vehicles will be stored in an off-street parking facility;

(9) The waiting time for retrieval of a vehicle that has been parked by a valet operator shall not exceed ten (10) minutes. It is the responsibility of the valet parking operator to insure that sufficient staff is available for moving vehicles to and from off-street parking facilities;

(10) Hours of operation for the valet parking service are restricted to 6:00 p.m. until 2:00 a.m., unless permission is otherwise granted by the executive director of the authority with the consent of the City of Hartford Department of Public Works to extend said hours;

(11) Any permit issued under this section shall not be valid during a declared snow or other emergency, construction of the public way within a block of the valet parking zone, or when parking is restricted at the valet parking zone for any public purpose. In the event that a permit is deemed

invalid under such circumstances, the valet parking sponsor or operator shall not be entitled to any refund, from the authority, of any fees for permits or other valet parking operational expenses;

(12) The operation of a valet parking service must not cause congestion, as determined by the authority in consultation with the city, which endangers the health, safety or welfare of persons or property or unreasonably interfere with the use of any pole, sign, fire hydrant, traffic signal or other object already permitted at or near the valet parking service area;

(13) Valet parking operators must only use the valet space(s) as assigned by permit; and

(14) Vehicles shall not be double or triple parked or stacked in valet parking zones.

(Ord. No. 54-11, 12-12-11)

Sec. 10-30. Insurance and indemnification.

(a) The valet parking operator shall maintain proper liability insurance, as determined by the authority, naming the authority and the city as additional insureds, in an amount satisfactory to the executive director of the authority in order to protect the authority and the city from any claims which may arise from the valet parking operation.

(b) The valet parking operator shall agree to indemnify the authority and the city with an indemnification agreement satisfactory to the executive director of the authority and hold the authority and the city harmless for any loss claimed to be a result of any use or performance under the permit; for the activities and operations of the operator or sponsor and their employees, subcontractors or agents; for any condition of property used in the valet parking operations and/or for any acts, errors or omissions of the operator or sponsor and their employees, subcontractors, or agents in the operation of the valet parking operation;

(Ord. No. 54-11, 12-12-11)

Sec. 10-31. Enforcement; fine schedules; revocation of valet parking permits.

(a) In the event that there is a violation of any provision of this chapter or any applicable state or local law, the authority or its designee, the Department of Public Works or the Hartford Police Department may issue a fine to said violator. The notice of fine shall be in writing and shall state the nature of the violation, the amount of fine, and instructions and due date for paying the fine.

(b) Any person who is found to be operating a valet parking operation without a valid permit shall be subject to a civil penalty of one hundred ($100.00). Any person who violates any other provision of this chapter shall be subject to a civil penalty of ninety-nine dollars ($99.00) for each violation. In the event that an employee, agent or subcontractor of the valet parking operator is found to be in violation of said provisions, the fine shall be charged to the valet parking operator.

(c) Any person fined for a violation of this chapter may contest his/her liability at a hearing, pursuant to the hearing procedure for citations as set forth in section 1-5 of the City of Hartford Municipal Code. For purposes of such proceedings, the mayor, being the traffic authority for the city, designates the corporation counsel of the city, or his or her designee, as the hearing officer.

(d) The authority may revoke a valet parking permit license if a permit holder violates any of the rules and requirements prescribed in this chapter or in any other applicable state or local law. Any person whose permit is revoked for a violation of this chapter or any other applicable law may contest the revocation at a hearing, pursuant to the hearing procedure for citations as set forth in section 1-5 of the City of Hartford Municipal Code. For purposes of such proceedings, the mayor, being the traffic authority for the city, designates the corporation counsel of the city, or his or her designee, as the hearing officer.

(e) Any person who has had a permit revoked may apply for a new permit. A new permit may be obtained, at the discretion of the executive director of the authority, provided that:

(1) The sponsor and/or operator who is found to be in violation of this chapter, or any other applicable state or local law, reapplies for a permit;

(2) The appropriate application fees are paid;

(3) The specific cause for prior revocation no longer exists;

(4) A bond, in the amount of one thousand dollars ($1,000.00), is paid to the authority. In the event that the sponsor or operator commits additional violations, the authority may use the bond for payment of fines and penalties for said violations; and

(5) All outstanding fines are paid.

(Ord. No. 54-11, 12-12-11; Ord. No. 06-12, 5-14-12)

Sec. 10-32. Temporary suspension of operation of valet parking services.

Valet parking services may be suspended by the authority or by the Hartford Police Department as necessary upon the occurrence, in said location of the valet parking services operation, of any traffic accident arising out of operating conditions within or around a valet parking area or where suspension is otherwise required because of an emergency situation whether or not arising from the operation of the valet parking services operation. In the event that valet parking services are suspended under these circumstances, the valet parking sponsor or operator shall not be entitled to any refund, from the authority, of any fees for permits of other valet parking operational expenses and shall not be entitled to contest the suspension at a hearing.

(Ord. No. 54-11, 12-12-11)

Sec. 10-33. Conformance with applicable laws.

Nothing in this chapter is intended to authorize the parking of vehicles by valet parking services operators contrary to or in violation of any applicable state law and local parking and traffic regulations.

(Ord. No. 54-11, 12-12-11)

Sec. 10-34. Transition of existing permits

As of the date of final passage of the ordinance from which this chapter derives, all existing valet parking permits issued under Chapter 22 of this Code are hereby invalidated. First time permit fees for applicants whose permits are invalidated pursuant to this section may be prorated at the discretion of the authority to reflect the cost for such invalidation.

(Ord. No. 54-11, 12-12-11)

ARTICLE III. RESIDENT PARKING PERMITS

Sec. 10-35. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section:

Resident parking permit means a permit issued in accordance with this article to a resident of the City of Harford for on-street parking in specified areas.

Resident parking permit zone means a specified section of a city street or streets that has been set aside by the traffic authority for resident parking permit holders in accordance with this article.

(Ord. No. 18-13, 12-9-13)

Sec. 10-36. Resident parking permits process and requirements.

(a) The authority may establish resident parking permit programs in accordance with the provisions of this Article III. The authority shall consult with, and consider the recommendations of the City of Hartford Department of Public Works, the traffic authority, the relevant neighborhood revitalization zone committee (NRZ), relevant neighborhood associations, and residents, community organizations, business establishments, property owners and churches located in the resident parking permit zone before implementing any program that establishes resident parking permits.

(b) No resident parking permit shall be issued unless done so by the authority pursuant to this article.

(c) An application for a resident parking permit shall be made in writing on forms prescribed by the authority. Such application shall include, at a minimum, the following:

(i) Name, address and contact information for the applicant;

(ii) Evidence of residency within the resident parking permit zone;

(iii) Vehicle information and proof of registration;

(iv) Any other information deemed necessary by the authority to fully evaluate an application.

(d) No resident parking permit shall be issued to any applicant who is not current on property taxes, parking citations or any other financial obligation due to the city or the authority.

(e) The authority may charge a fee for the processing of a resident parking permit which shall be due at the time of application or at the time of any renewal. The application fee shall be twenty-five dollars ($25.00). The authority may charge a fee for processing a request for a renewal of a resident parking permit, which fee shall not exceed twenty-five dollars ($25.00). Residents eligible for tax relief under G.S. § 12-129n or Chapter 32, Article I, Section 32-18 of the Municipal Code, who are physically disabled as defined by G.S. §§ 1-1f and 12-129n, or an owner of a motor vehicle that has been specially equipped to accommodate a handicapped driver or passenger shall be exempt from all permit processing fees.

(f) The authority may approve or disapprove any resident parking permit application, or amended application, for any reason he or she may deem appropriate, provided the reasons for such disapproval are provided in writing.

(g) A permit holder may apply to the authority for a visitor parking permit. The authority shall issue regulations establishing the guidelines for the application and issuance of a visitor parking permit and such other regulations as may be necessary to implement the intent of this subsection.

(h) The authority, from time to time, may issue written regulations regarding the implementation of the provisions of this article. All regulations made by the authority shall be in writing and copies of such regulations shall be placed and maintained on file with the Hartford Parking Authority, the traffic engineer, the City Clerk, the Chief of Police and the Corporation Counsel.
(Ord. No. 18-13, 12-9-13; Ord. No. 03-14, 3-24-14)

Sec. 10-37. Operational restrictions.

(a) The only signs, markings or devices that mark a resident parking permit zone will be the traffic authority signs owned, installed and maintained by the city and/or any signs approved by the city in accordance with applicable regulations.

(b) No person shall stop, stand or park a motor vehicle in any resident parking permit zone where signs, markings or devices are erected or placed giving notice that a resident parking permit zone has been established unless the motor vehicle displays a valid resident parking permit.

(c) Any permit issued under this section shall not be valid during a declared snow or other emergency, or when parking is restricted within the resident parking permit zone for any public purpose.

(d) Nothing in this chapter is intended to authorize the parking of motor vehicles contrary to or in violation of any applicable state or local law.
(Ord. No. 18-13, 12-9-13; Ord. No. 09-17, 3-13-17)

Sec. 10-38. Notice to be attached to violating vehicle; penalty.

(a) Whenever any vehicle is found parked in violation of any of the provisions of this article which relates to parking, a police officer, parking controller or parking enforcement officer shall attach to such vehicle a notice to the owner or operator thereof stating that such vehicle has been parked unlawfully.

(b) The notice shall state which provision of the city ordinances or rule and regulation of the traffic or parking authority has been violated; the date, time and location of the violation; and shall moreover, contain the following declaration:

"WARNING"

"The accumulation of three (3) or more unsatisfied municipal vehicle parking citations upon any vehicle registrant may result in the impoundment or immobilization of said vehicle."

(c) A copy of any such notice shall be transmitted and delivered to the authority within three (3) business days of the time of such attachment. Failure of any copy to be so transmitted and delivered shall not relieve the owner or operator from any liability for the payment of any fines or penalties, except that no penalties shall be imposed until after a citation hearing has been scheduled and the owner or operator fails to appear at the same. Upon such failure, imposition of such penalties may be implemented on a retroactive basis. A citation hearing shall be held not less than fifteen (15) days nor more than thirty (30) days from the date of the notice.

(d) Each owner or operator may, within twenty-six (26) days of the date of the notice, pay in person in the form of cash, money order or check to the authority, the amount of the fine in full satisfaction for such violation. The failure of such owner or operator to appear at such citation hearing or to make such payment within twenty-six (26) days of the time such notice is so attached shall cause the authority to send a letter by first-class mail setting forth the amount of the fine and the additional penalties that may be assessed. The failure of such owner or operator to appear at such citation hearing, or to make such payment within twenty-six (26) days of the time such notice is so attached, shall render the owner or operator liable to an initial penalty as provided in section 10-39. The failure of such owner or operator to make such payment within forty-five (45) days of the time such notice is so attached shall render the owner or operator liable to an additional penalty as provided in section 10-39.

(e) The owner or operator may contest the violation by appearing at the citation hearing. Such appearance shall suspend the accumulation of additional penalties and leave the amount of the fine as it was as of the date of the hearing until such time as a final determination is made.

(f) Nothing contained in this section shall be construed as a limitation on the power of the superior court to impose a fine as provided in section 1-4.

(g) For purposes of this section, the term "business days" shall mean those days on which the City Hall offices of the City of Hartford, Connecticut are open for business, and the term "days" shall mean calendar days.
(Ord. No. 18-13, 12-9-13; Ord. No. 09-17, 3-13-17)

Sec. 10-39. Fine and penalties for unlawful parking.

(a) The fine for a violation of this Article shall be forty-five dollars ($45.00). Failure to pay the fine within twenty-six (26) days of the notice of the violation shall, in addition, result in an initial penalty of twenty-five dollars ($25.00) and, in the case of continued failure to pay, an additional penalty of twenty-nine dollars ($29.00), as provided in subsection (d) of Section 10-38. Any fines and penalties imposed under this section are in addition to the motor vehicle being subject to towing.

(b) Any person fined for a violation of this Article may contest his or her liability at a hearing pursuant to the hearing procedures for citations as set forth in this Article III.
(Ord. No. 18-13, 12-9-13)

Sec. 10-40. Misuse; revocation of permit.

(a) No person shall sell, offer for sale, give, trade or otherwise transfer his or her resident parking permit or visitor parking permit to another person, or affix said permit to a vehicle other than the one for which it was issued, nor shall any person alter any such permit.

(b) No person shall fail to surrender a residential parking permit or a visitor parking permit when directed to do so by the authority.

(c) The authority may revoke a resident parking permit or a visitor parking permit if a permit holder violates this section 10-40. Notice of the revocation shall be sent to the permit holder by first-class mail at the address stated on the permit application or permit renewal.

(d) Any person who has a resident parking permit or a visitor parking permit revoked may apply for a new permit. A new permit may be issued, provided the resident reapplies for a new parking permit in accordance with section 10-36 and the specific cause for revocation no longer exists.
(Ord. No. 18-13, 12-9-13)

Chapter 11

CLOSEOUT SALES*

Art. I. In General, §§ 11-1—11-25
Art. II. License, §§ 11-26—11-31

*Cross references—Advertising, Ch. 3; auctions and auctioneers, Ch. 8; licenses and permits generally, Ch. 21.
State law reference—Closing-out sales, G.S. §§ 21-35a—23-35k.

ARTICLE I. IN GENERAL

Sec. 11-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fire and other altered goods sale means a sale held out in such a manner as to reasonably cause the public to believe that the sale will offer goods damaged or altered by fire, smoke, water or other means.

Going-out-of-business sale means a sale held out in such a manner as to reasonably cause the public to believe that upon the disposal of the stock of goods on hand the business will cease and be discontinued, including but not limited to the following sales: Adjuster's; adjustment; alteration; assignee's; bankrupt; benefit of creditor's; building coming down; closing; creditor's committee; creditor's end; final days; flood damage; forced out; forced out of business; last days; lease expires; loss of lease; mortgage; receiver's; trustee's; quitting business.

Licensing authority means the bureau of licenses and inspections.

Liquidation sale means a sale held out in such a manner as reasonably to cause the public to believe that the merchandise offered for sale was acquired by the licensee from a bankrupt, insolvent, assignee, liquidator, adjustor, administrator, trustee, executor or receiver, or that such merchandise was acquired by the licensee from a person who was or is liquidating or closing out his business or a particular part or department thereof or who was or is being forced out of business.

Merchandise means any goods, wares, merchandise or other property capable of being the object of a sale regulated under this chapter.

Removal-of-business sale means a sale held out in such a manner as to reasonably cause the public to believe that the person conducting the sale will cease and discontinue business at the place of sale upon disposal of the stock of goods on hand and will then move to and resume business at a new location in the city.

(Code 1977, § 11-1)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-2. Exclusions.

The provisions of this chapter shall not apply to nor affect the following persons:

(1) Persons acting pursuant to an order or process of a court of competent jurisdiction;

(2) Persons acting in accordance with their powers and duties as public officials;

(3) Duly licensed auctioneers, selling at auction;

(4) Any operator of a newspaper, news or advertising medium who publishes in good faith any advertisement without knowledge of its false, deceptive or misleading character, or without knowledge that the provisions of this chapter have not been complied with;

(5) Persons who are regularly engaged, in whole or in part, in the business of purchasing damaged or unclaimed merchandise from railroad and transportation companies and of selling the same at retail and whose advertising clearly indicates the regular and continuous, rather than the periodic and intermittent, operation of such business; provided however, that this exception shall extend only to the sale of such merchandise.

(Code 1977, § 11-2)

Sec. 11-3. Extension of sale period.

The period of time during which a sale may be conducted under a closing-out-sale license may be extended by the licensing authority with the approval of the chief of police beyond the sixty-day license period if, at any time during the term of the license a written application for such extension, duly verified by affidavit of the applicant, is filed by the licensee with the licensing authority. The application shall state the amount of the merchandise listed in the original inventory which shall have been sold since the issuance of the li-

cense and the merchandise contained in the original inventory which still remains in the possession of the applicant for sale, and shall state the length of time for which an extension is requested. No extension of the license shall be granted if any merchandise has been added to that listed in the inventory, and the applicant shall satisfy the licensing authority by affidavit or otherwise as directed by him that no merchandise has been added to the stock since the date of issuance of the license. If the licensing authority determines that a further period of time is necessary to dispose of the unsold merchandise listed in the inventory, he may grant a further extension of not exceeding thirty (30) days from the expiration of the sixty-day period on the payment of an additional license fee of five dollars ($5.00) per day for the period of such extension.
(Code 1977, § 11-16)

Sec. 11-4. Duties of licensee.

A licensee under this chapter shall:

(1) Make no additions whatsoever, during the period of the licensed sale, to the stock of goods set forth in the inventory attached to the application for license;

(2) Declare in his advertising of the sale the total retail value of the merchandise set forth in the inventory which is being offered for sale under the license;

(3) Refrain from employing any untrue, deceptive or misleading advertising;

(4) Conduct the licensed sale in strict conformity with any advertising or holding out incident thereto;

(5) Keep available at the place of sale a duplicate copy of the inventory submitted with the application and present such duplicate to inspecting officials upon request;

(6) Keep any other goods separate and apart from the goods listed in the filed inventory as being objects of sale and make such distinction clear to the public by placing tags on all inventoried goods in and about the place of sale apprising the public of the status of all such goods.

(Code 1977, § 11-9)

Sec. 11-5. Verification of inventory and merchandise.

The chief of police shall verify the details of the inventory filed in connection with an application for a license pursuant to this chapter and shall verify the items of merchandise sold during any sale under the license. It shall be unlawful for any person to whom a closing-out-sale license has been issued to refuse to furnish to the chief of police on demand or to any person designated by him for that purpose all the facts connected with the stock on hand or any other information which he may require in the enforcement of this chapter.
(Code 1977, § 11-10)

Sec. 11-6. Merchandise to be excluded from sale.

If the sale to be conducted under the closing-out-sale license is a going-out-of-business sale, or a removal-of-business sale, such inventory shall not include merchandise ordered in contemplation of the conduct of the sale licensed under this chapter. Any abnormal purchase or addition to the stock of goods of the applicant within a period of sixty (60) days prior to the date of the application for a license under this chapter, or any such purchases or additions that exceed fifty (50) percent of the personal property assessed in the name of the applicant on the last completed grand list of the city shall be deemed to be of such character. During the licensed closing-out sale, no additions shall be made to the stock of merchandise set forth in the inventory and nothing shall be offered for sale or sold at such sale which is in addition to that listed in the inventory or which has been acquired on a consignment basis.
(Code 1977, § 11-11)

Sec. 11-7. Continuance of business after sale.

If the closing-out-sale licensee continues in business at the location at which a closing-out sale was conducted after the termination of the license period, the licensee shall discontinue any further advertising of such sale and shall remove from

the premises and from the merchandise licensed to be sold under such license all and every kind of advertising of such sale.
(Code 1977, § 11-12)

Sec. 11-8. Interval between sales.

Any person who has held a going-out-of-business or a removal-of-business sale at the location stated in his application under a license issued pursuant to this chapter within a period of one (1) year last past from the date of such application shall not be granted a license for the conduct of either of such type of sales at such location.
(Code 1977, § 11-13)

Sec. 11-9. Enforcement.

It shall be the duty of the police department under the direction of the chief of police to see that the provisions of this chapter are strictly complied with, and to report for prosecution all cases of violation of, or refusal or neglect to comply with such provisions.
(Code 1977, § 11-15)

Secs. 11-10—11-25. Reserved.

ARTICLE II. LICENSE

Sec. 11-26. Required.

No person shall conduct any sale of merchandise at retail in the city which shall be advertised or held out by any means as a going-out-of-business sale, a removal-of-business sale, a fire or other altered stock sale or a liquidation sale and no person shall advertise any such sale, unless and until a license shall have been issued to such person by the licensing authority and approved by the chief of police, which license shall be known as a "closing-out-sale license." The advertising of such sale shall include any advertisement or notice thereof appearing in any newspaper, magazine or other publication, or in any handbill, poster, bill, circular, pamphlet, letter, sign, placard, card, label or telegram, or broadcast as a part of any radio or television program.
(Code 1977, § 11-3)

Sec. 11-27. Application.

(a) Application for a closing-out-sale license shall be made in writing to the licensing authority and shall contain the following information:

(1) The names and addresses of the persons to be licensed, including the names of all partners and, if a corporation, the names and addresses of the officers and directors thereof;

(2) The name and address of the owner of the merchandise to be sold under the license if the applicant is acting as an agent of the owner;

(3) An attached inventory containing a complete and accurate list of the merchandise on hand which is to be sold under the license which shall set forth the cost price of the enumerated articles, the manufacturer's name and stock number, the date of the purchase and the name of the person from whom such articles were purchased. If the merchandise to be sold under the license was purchased for a lump sum so that it is not practicable to list the cost price thereof, the inventory shall state the lump sum paid therefor. The inventory shall have an affidavit attached thereto from which it shall appear that the information set forth therein is true to the knowledge of the applicant. Provided, however, that in lieu of the inventory required by this paragraph, the applicant may file the inventory required for a state license;

(4) The place at which the sale is to be conducted;

(5) The date and the period of time during which the sale is to continue;

(6) A full and complete statement of the facts in regard to the sale and the manner in which the sale will be conducted;

(7) The means to be employed in advertising the sale together with the proposed content of any advertisements;

(8) Facts establishing that all taxes previously levied on the merchandise by the city have

been paid, and no license shall be issued for the closing-out-sale thereof until any tax so payable to the city thereon shall have been paid.

(Code 1977, § 11-4)

State law reference—Inventory required for state license, G.S. § 21-33.

Sec. 11-28. Scope of license.

Under any closing-out-sale license, the licensee shall be permitted to conduct only the type of sale described by him in his application for such license and shall be authorized to sell, under such license, only merchandise described in the inventory attached to the application.

(Code 1977, § 11-7)

Sec. 11-29. Fees.

(a) The license fee for the license provided under this chapter shall be as follows:

For a period not exceeding 15 days $25.00

For a period not exceeding 30 days 50.00

For a period not exceeding 60 days 75.00

(b) For each instance listed in subsection (a), there shall be a further fee of one dollar ($1.00) per thousand dollars ($1,000.00) of the cost of the merchandise to be sold under such license as set forth in the inventory filed with the application for the license.

(Code 1977, § 11-8)

Sec. 11-30. Revocation or suspension.

The licensing authority may at any time revoke or suspend any license granted under this chapter if any licensee shall, in violation of this chapter, offer any merchandise for sale in addition to that listed in the inventory attached to his application or shall otherwise violate any of the provisions of this chapter.

(Code 1977, § 11-14)

Sec. 11-31. Term.

The license to be issued pursuant to this chapter shall be for such period as may be requested by the applicant in his application for such license, not exceeding sixty (60) successive days, Sundays and holidays excluded, from the date of the issuance of the license. If a license shall have been issued for a period less than the maximum license period, the license may be extended on application of the licensee for a further period which, with the original license period, will not exceed the maximum license period upon payment of an additional license fee which shall be the difference between the license fee previously paid and that which would have been paid thereunder if the original license period had extended to the date to which the same shall be extended.

(Code 1977, § 11-5)

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Chapter 12

ELECTIONS*

Sec. 12-1. How municipal elections warned.
Sec. 12-2. Voting districts.
Sec. 12-3. Polling places.
Sec. 12-4. Hours polls open.
Sec. 12-5. Election, terms of registrars of voters.
Sec. 12-6. Sessions of board for admission of electors.
Sec. 12-7. Compensation of election officers.
Sec. 12-8. Board of canvassers; composition; quorum; presiding officer.
Sec. 12-9. Powers and duties of canvassers.
Sec. 12-10. Duties of city clerk as clerk of canvassers.
Sec. 12-11. Preservation of order.
Sec. 12-12. Compensation of selectmen.

*__Charter reference—__Elections generally, Ch. IV.
__Cross references—__Administration generally, Ch. 2; improper conduct of police at elections, § 29-11.
__State law reference—__State election laws, G.S. Title 9.

Sec. 12-1. How municipal elections warned.

Notice of municipal elections or referenda shall be given in the manner provided in G.S. § 9-226, as amended.
(Code 1977, § 12-1)

Sec. 12-2. Voting districts.

(a) The Voting Districts for the City of Hartford, pursuant to Sec. 9-169 of the Connecticut General Statutes, resulting from the reapportionment approved by the Reapportionment Commission of the General Assembly on November 18, 2021, as a result of the 2020 Decennial Census, shall be as more particularly shown on a Map of "January 4, 2022, Time Stamped: 10:35 AM. and entitled, January 4, 2022, City of Hartford Senatorial, Assembly, and Voting Districts with Polling Locations'" prepared by the City of Hartford - GIS Services and on file in the Town Clerk's Office in said City of Hartford.

(b) Any changes to Voting District lines shall require an amendment to said Map, as approved as an Ordinance change by the Court of Common Council.

(c) References on said Map to polling locations are for convenience and any changes or additions to polling locations shall not require approval of the Court of Common Council.
(Code 1977, § 12-2; Ord. No. 8-82, 3-8-82; Ord. of 2-14-21)

Sec. 12-3. Polling places.

All elections or referenda shall be held at such places in the respective voting districts as the city clerk shall designate, pursuant to instructions from the registrars of voters, in his warrant warning the same.
(Code 1977, § 12-3)

Sec. 12-4. Hours polls open.

At all city and town elections or referenda the polls shall remain open for the reception of ballots from 6:00 a.m. until 8:00 p.m.
(Code 1977, § 12-4)

State law reference—Similar provisions, G.S. § 49-174.

Sec. 12-5. Election, terms of registrars of voters.

By authority of G.S. § 9-189a, there shall be elected at a town and city election to be held coincidentally with the general state election on the Tuesday after the first Monday in November, 1972, and quadrennially thereafter, two (2) registrars of voters for whom no elector shall vote for more than one (1) and no more than one (1) of whom shall be a member of the same political party. The terms of registrars of voters shall be for four (4) years from the first Wednesday after the first Monday in January following their election until the Wednesday following the first Monday of the fifth January succeeding their election.
(Code 1977, § 12-5)

Sec. 12-6. Sessions of board for admission of electors.

The selectmen and town clerk, acting as the board for admission of electors, shall hold sessions to examine the qualifications of electors and to administer the elector's oath to those found qualified as authorized by provisions of the General Statutes. The monthly sessions authorized by state statute shall be held on the first Wednesday of the months of April, June, August and December; however, if said Wednesday is a legal holiday, such session shall be held on the next business day.
(Code 1977, § 12-6)

Charter reference—Sessions for admission of electors, Ch. IV, § 11.

Sec. 12-7. Compensation of election officers.

The compensation for officers or persons engaged in their respective duties at any city election shall be such as may be fixed from time to time by the registrars of voters, but shall not exceed in the aggregate, in any one (1) year, the sum allotted for this specific purpose in the annual budget and approved by the council. Any allowance to any officer or person engaged in any city election shall be approved and certified by one (1) of the registrars, and no other expenses of

any kind shall be incurred at any such election in behalf of the city except as otherwise provided by law.
(Code 1977, § 12-7)

Sec. 12-8. Board of canvassers; composition; quorum; presiding officer.

The mayor, director of finance and city clerk or, in their absence their deputies qualified and serving at the date of any town or city election, shall constitute a board of canvassers of such election. A majority of the members of such board shall constitute a quorum. The mayor shall be the presiding officer and in his absence the presiding officer shall be chosen by the board.
(Code 1977, § 12-9)

Sec. 12-9. Powers and duties of canvassers.

The board of canvassers shall meet for the purpose of canvassing every election of town and city officers and every municipal primary election. It shall meet within the two (2) days following every such election, and shall compare all the returns of votes and ascertain what officers, whether town or city, are duly nominated or elected. It shall furnish to each person found to be duly elected to any office a certificate of his election certified by the city clerk. The mayor or other presiding officer of such board shall, upon its order, issue to the public his proclamation of the nomination or election of such persons. If the board finds that no person has been duly elected to an office, whether town or city, either by reason of a tie vote or otherwise, the mayor or other presiding officer of the board shall make public proclamation thereof, and the mayor shall issue his warrant for a special election to fill such vacancy for the purpose of dissolving such tie and nominating or electing such town or city officer.
(Code 1977, § 12-10)

Sec. 12-10. Duties of city clerk as clerk of canvassers.

The city clerk shall be clerk of the board of canvassers. He shall appoint a deputy city clerk who shall, in the absence of the clerk, be the clerk pro tem of the board of canvassers. The city clerk shall have the custody and care of all the records and papers of the board after final action thereon has been taken by the board, and it shall be the duty of the clerk to give true and attested copies thereof whenever required so to do by the council or by law.
(Code 1977, § 12-11)

Sec. 12-11. Preservation of order.

The presiding moderator at all town and city elections shall have full power and authority to preserve order thereat, and for that purpose he may call to his aid any police officer.
(Code 1977, § 12-12)

Sec. 12-12. Compensation of selectmen.

When acting in the discharge of the duties imposed upon them by the constitution and General Statutes in relation to the admission of electors, each selectman shall be paid thirty-five dollars ($35.00) per day for each day actually spent in the discharge of such duties. The sum herein provided shall in each instance be in full payment for the time actually spent in the discharge of duties and no extra allowance shall be made for any expense for meals or other personal expenses of such selectmen.
(Code 1977, § 12-8)

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Chapter 13

FIRE PROTECTION AND PREVENTION*

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ARTICLE I. IN GENERAL

Sec. 13-1. Devices required in public premises.

(a) Every asylum, almshouse, orphanage, convalescent home, hospital, hotel, roominghouse, lodginghouse, furnished apartment or similar establishment, having provision for the rooming of twenty-five (25) or more persons, shall be equipped with one (1) or more fire alarm boxes of a type approved by the fire chief, and with such fire-extinguishing equipment as is deemed necessary by the fire chief.

(b) Such fire alarm boxes shall be located on the premises of the establishment or in the building on such premises. They shall be inspected by and shall meet with the approval of the fire chief. Upon the installation of such fire alarm boxes the fire chief may cause them to be connected with the general fire alarm system of the city. The master box connected with the city fire alarm system shall be maintained in good repair by the department of fire, whose officers or members shall have the right of access to each such fire alarm box at any reasonable time for the purpose of inspecting and testing.

(c) The expense of acquiring, installing and connecting such fire alarm boxes and fire-extinguishing equipment shall be borne by the person owning or operating such asylum, almshouse, hospital, orphanage, convalescent home, roominghouse, lodginghouse, furnished apartment or similar establishment.

(d) Violation of this section shall constitute grounds for revocation of the license of such institution or establishment. Such revocation shall be in addition to any other penalty provided by law.
(Code 1977, § 13-1)

Sec. 13-2. Means of egress for roominghouses.

Every roominghouse in the city as defined in chapter 18-3 of this Code shall be provided with means of egress which will be adequate in case of fire. Means of egress shall be deemed inadequate in any building used or occupied for roominghouse purposes in which there are less than two (2) means of exit, either by stairways on the inside or fire escapes on the outside from each floor used or occupied for such purposes. Such outside fire escapes shall be accessible through a door without a locking device or bolt of any kind and shall be located as remotely as possible from inside stairways.
(Code 1977, § 13-2; Ord. No. 003-20, 6-22-20)

Cross reference—Regulation of roominghouses generally, § 18-161 et seq.

Sec. 13-3. False alarms and false information.

It shall be unlawful for any person knowingly to give a false alarm of fire in the city, or knowingly to proclaim that any fire is extinguished or out when such is not the case.
(Code 1977, § 13-3)

State law reference—False alarms prohibited, G.S. § 53-50.

Sec. 13-4. Obstructing hydrants.

It shall be unlawful for any person to obstruct the use of any fire hydrant in the city in any manner or to deposit or cause to be deposited any snow or ice upon or around any such hydrant within a radius of three (3) feet from the center thereof.
(Code 1977, § 13-4)

Cross reference—Snow and ice removal generally, § 31-141 et seq.

State law reference—Parking near fire hydrants, G.S. § 14-251.

Sec. 13-5. Rapid entry key lock box system.

(a) *Statement of purpose.*

(1) The fire department strives to provide the best and most up-to-date service to the people in our fire protection area. Unfortunately, maintaining keys to alarmed buildings has become unmanageable and is causing delays when responding to emergencies. The intent of this section is to permit the fire department to assess a one hundred dollar ($100.00) application fee to property owners and/or property managers who are required to

purchase and maintain the rapid entry key lock box system and to provide a penalty for failure to do so.

(2) The rapid entry key lock box system will eliminate forced entries into structures thereby avoiding costly and time consuming efforts in gaining access to locked structures during an emergency, protecting both property and lives.

(b) *Definitions.* The following terms shall have the meanings indicated unless the context clearly requires a different meaning:

Rapid entry key lock box system consists of a box, typically made of steel and approximately 5"W × 4"L × 3"D. It will contain property ingress keys and may also contain other keys to locked mechanical equipment rooms, electrical rooms, elevator controls, boiler rooms, etc. as deemed necessary by the fire chief.

(c) *Lock box system required in various structures.*

(1) The following structures shall be equipped with a rapid entry key lock box at an accessible location near the main entrance of the structure or at such other location approved by the fire chief:

a. All buildings within the city, having an automatic alarm system, or equipped with an automatic fire suppression system except one- and two-family owner-occupied dwellings as identified in this Code;

b. Multi-family residential structures, including senior citizen housing complexes, that have restricted access through locked doors and have a common corridor for access to the living units;

c. All high rise buildings;

d. Commercial and industrial buildings.

(2) Any building or structure having on-site 24-hour security personnel may be exempt from the requirements of this section at the discretion of the fire chief.

(3) All new construction subject to this section shall have the rapid entry key lock box installed and operational prior to the issuance of a certificate of occupancy.

(4) All structures in existence on the effective date of this section and subject to this section shall have six (6) months from the effective date of this section to have the rapid entry key lock box installed and operational.

(d) *Operation and enforcement.*

(1) The fire chief shall be authorized to implement rules and regulations for the use of the rapid entry key lock box system.

(2) The owner or operator of a structure required to have a rapid entry key lock box shall, at all times, keep a key or keys, in the lock box that will allow for complete and unobstructed access to the structure interior. The lock box may also contain other keys to locked mechanical equipment rooms, electrical rooms, elevator controls, boiler rooms, etc. as deemed necessary by the fire chief. These keys are to be marked and identified in a manner approved by the fire chief.

(3) Any property owner or manager required to purchase and maintain the rapid entry key lock box system pursuant to this section shall submit to the fire prevention chief or his designee a timely application for said system with a one hundred dollar ($100.00) fee payable to the city. Upon receipt of the application and fee, the chief or his designee will advise the applicant how to obtain the lock box system from the appropriate company so designated by the city. The property owner will be required to install the equipment.

(4) Failure to purchase and/or maintain the rapid entry key lock box system as required under this section will result in a penalty fine of one hundred dollars ($100.00).

(Ord. No. 03-07, 4-24-07)

Sec. 13-6. Establishment of fee schedule; violation of section—Penalties.

(a) Pursuant to the CT Fire Prevention Code and appropriate CT General Statutes, the Fire Marshal is authorized to establish a permit fee schedule for the operation of certain occupancies, outdoor special events, use of temporary tents, construction, alteration, or renovations to structures and/or Fire/Life Safety Systems, use and transportation of explosives, and pyrotechnic or fireworks displays.

(b) The Fire Marshal shall establish such fees and post them in public areas with type of permits requiring such fees and amount of such fees.

(c) The Fire Marshal shall review such fee schedule annually and adjust fees accordingly after a 15-day public review and comment.

(d) Such fees shall be collected prior to operation, use or approval of such permits.

(e) Violations of this section may result in a penalty of twice the permit fee.

The effective date of this fee schedule is the date of adoption of the ordinance from which this section derives.
(Ord. No. 10-14, 5-12-14)

Sec. 13-7. Records of inspections, testing, and maintenance of Life Safety Systems—Required; fees.

(a) Any and all hard copies of records of the inspections, testing, and/or maintenance of any Fire and Life Safety Systems installed and/or required by the CT Fire Safety and Fire Prevention Codes, shall be kept on premises for a minimum of three (3) years.

(b) Any and all copies of records of the inspection, testing, and/or maintenance of any Fire and Life Safety Systems installed and/or required by the CT Fire Safety and Fire Prevention Codes that are conducted by the inspection, testing or maintenance company, shall be submitted by the inspection, testing or maintenance company to the third party reporting company pursuant to the requirements of the Fire Marshal and third party company.

(c) The inspection, testing, or maintenance company will pay any required user fee per Fire and Life Safety System installed in any building to the third party reporting company.
(Ord. No. 05-14, 3-24-14)

Secs. 13-8—13-20. Reserved.

ARTICLE II. FIRE DEPARTMENT*

Sec. 13-21. Composition.

In addition to the fire chief and the fire marshal, the department of fire shall be composed of the officers and members of the ranks and grades prescribed by the council in the annual budget.
(Code 1977, § 13-21)

Charter references—Composition of fire department, Ch. X, § 4; powers and duties of chief of fire department, Ch. X, § 5.

Sec. 13-22. Establishment of companies.

Engine and truck companies shall be established in the department of fire in such numbers and in such manner as the fire chief may deem necessary for the protection of the city.
(Code 1977, § 13-22)

Sec. 13-23. Uniforms.

The division of purchases and insurance shall renew and keep in repair, out of city funds appropriated for the purpose, uniforms for all officers and privates in the department of fire.
(Code 1977, § 13-23)

Sec. 13-24. Unauthorized use of uniform.

It shall be unlawful for any person not an officer or member of the department of fire to use the uniform of officers or members of the department.
(Code 1977, § 13-24)

State law reference—Criminal impersonation, G.S. § 53a-130.

***Cross references—**City departments generally, § 2-81 et seq.; division of civil preparedness established in fire department, § 2-97; firemen to be assigned to circuses and outdoor assemblages, § 5-36.

Sec. 13-25. Emergency powers of chief and deputies.

(a) The fire chief and the officers designated by him may exercise the powers of police officers in going to and returning from and while at any fire that may occur, and during any fire alarm. They shall have the use and control of the hydrants and reservoirs belonging to the city during the continuance of any fire.

(b) The fire chief, and in case of his absence the senior officer present, may, when the duties of the department of fire require it, interrupt and prevent travel upon any street or portion thereof for such period as he may deem necessary, and may remove any person or property from such street or portion thereof or from private property in the vicinity of a fire.

(c) Whenever it is necessary to demolish any building in the city in order to stop the progress of a fire, the fire chief may cause the demolishing to be done.
(Code 1977, § 13-25)

Sec. 13-26. Fire alarm, police telegraph systems—Powers, duties of superintendent.

(a) It shall be the duty of the superintendent of fire alarm to maintain the fire alarm service and the police telegraph system of the city. He shall inspect, as often as necessary, all wires and conduits for carrying currents of electricity within the city that may at any time obstruct or interfere with fire alarm or police telegraph transmission lines, for the purpose of determining the safety and proper maintenance of such transmission lines.

(b) Whenever the superintendent of fire alarm finds, in any such wires or conduits, any condition which in his opinion obstructs or interferes with or is likely to obstruct or interfere with fire alarm and police telegraph transmission lines, the superintendent of fire alarm shall notify the person owning or operating such wires or conduits in writing of such condition, recommending such remedy therefor as he deems best suited to meet the circumstances of the case. In case of emergency, the superintendent of fire alarm may summarily remove or cause to be removed any wires or conduits, or correct or cause to be corrected any condition that obstructs or may obstruct or that interferes or may interfere with such transmission lines.
(Code 1977, § 13-26)

Sec. 13-27. Same—Enforcement of recommendations of superintendent.

If any person, having received a notice from the superintendent of fire alarm as provided in section 13-26, neglects or refuses to carry out within a reasonable time the recommendations made therein, the superintendent of fire alarm shall report such neglect or refusal to the council at its next meeting, and shall request action thereon. He shall submit with such report a draft of such order as, in his judgment, is necessary in the premises, and shall recommend the passage of the order. The council shall, at the same or at its next meeting, act upon such order pursuant to the provisions of the general statutes relating to the direction and control of electrical construction by municipal bodies.
(Code 1977, § 13-27)

Sec. 13-28. Use of apparatus outside of city.

The city manager may, in case of serious emergency in any other city or town, permit the use of apparatus of the department of fire in places outside the city, and may confer upon the fire chief authority to permit such use, subject, however, to such regulations and instructions as the city manager may impose.
(Code 1977, § 13-28)

State law reference—Use of apparatus outside city, G.S. § 7-310.

Sec. 13-29. Acceptance of gratuities.

No officer or member of the department of fire shall demand or accept from any person, directly or indirectly, any money, present or other valuable article for any services rendered or to be rendered, except the pay or legally established charges prescribed for such services. Any person violating the provisions of this section shall, in addition to any other penalty provided by law, be immediately discharged from the service of the department, and shall forfeit all claims to any money due him from the city for services rendered.
(Code 1977, § 13-29)

Sec. 13-30. Injuring equipment; obstructing operations of department.

It shall be unlawful for any person to injure, deface or destroy any city fire apparatus or fire department equipment, or to hinder or obstruct any fire department personnel or equipment passing along the streets of the city to or from a fire, or in any manner to hinder or prevent any officer or member of such department from operating at any fire. It shall be unlawful for any person to remove or assist in removing any property or obstruction placed by the department of fire in the course of its duties in, upon or across any street or portion thereof or upon any premises under the control of such department during a fire.
(Code 1977, § 13-30)

Sec. 13-31. Obedience to commands of officers.

It shall be unlawful for any person to neglect or refuse to obey any order or command of any officer of the department of fire in charge at a fire.
(Code 1977, § 13-31)

Sec. 13-32. Collection of funds for hazardous material response and special rescue operations.

(a) *Purpose.* Increases in environmental protection requirements and Homeland Security regulations involving equipment and training have created additional demands on all operational aspects of the City of Hartford fire department. The fire department has investigated different methods to maintain a high level of quality of emergency service capability in an era of constantly increasing service demands, where maintaining an effective response by the fire department decreases the costs of incidents to all parties involved through timely and effective management of emergency situations. As a result of the fire department's investigations, it has been determined that raising real property tax to meet certain emergency service demands would not be fair to the property owners, when a majority of motor vehicle incidents and other emergency services involve individuals not owning property or paying taxes in the City of Hartford. In response to these concerns it is the City Council's desire to implement a fair and equitable procedure by which to charge mitigation rates for the provision of certain emergency services.

(b) *Mitigation Rates.* The fire department of the City of Hartford shall charge mitigation rates for the delivery of emergency services by the fire department for personnel, supplies and equipment to the scene of motor vehicle incidents and other emergency incidents as listed in subsection (e). The mitigation rates shall be based on actual costs of the services actually provided which are usual, customary and reasonable as further described herein.

(c) *Claim Costs.* Mitigation rate charges shall be recovered by the fire department from parties benefiting from such services and shall represent an add-on cost to claims for damages of vehicles,

property and/or injuries as applicable. The claim costs shall be filed against the insurance coverage of the owner of a vehicle, owner of property, or other responsible parties utilizing services subject to mitigation rate charges. Responsible parties may be billed directly where insurance coverage does not exist or is inadequate.

(d) *Application.* Unless otherwise specified by this Section, mitigation rates shall only be charged to persons who are not residents of the City of Hartford. Notwithstanding the foregoing, fire department responses involving intoxicated drivers, hazmat clean-up, intentional and negligent acts or any act that violates any ordinance, local, state or federal statute may be subject to all applicable mitigation rates regardless of the residency of the parties. For purposes of this Section, a resident is defined as: (a) any person who maintains his or her full time residence within the City of Hartford; or (b) any person who is the majority owner of a business that operates primarily from real property owned by the business located within the City. For purposes of this Section a business includes any joint stock company, corporation, association, joint venture, limited liability company, or partnership).

(e) *Fees.* The following mitigation rates will be charged on a per hour basis:

(1) *Motor Vehicle Incidents.*

Level 1 - $435.00. Provision of hazardous materials assessment and scene stabilization.

Level 2 - $495.00. Provision of Level 1 services as well as clean up costs and materials used for hazardous fluid clean up and disposal. Hazardous materials shall include, but not be limited to, gasoline and other automotive fluids.

Level 3 - $605.00. Provision of scene stabilization, fire suppression, breathing air, rescue tools, hand tools, hose, tip use, foam, structure protection, and clean up of gasoline or other automotive fluids that are spilled as a result of a vehicle fire related to an accident or incident.

Level 4 - $1,800.00. Provision of Level 1 and 2 services as well as extrication using heavy rescue tools, ropes, airbags, cribbing etc. Mitigation rates charged only if equipment is deployed to free or otherwise remove individuals from vehicles.

Level 5 - $2,200.00. Provision of Level 1, 2, and 4 services as well as air care, multi-engine company response, mutual aid, and helicopter services.

Level 6 - Itemized Response. The fire department may bill each incident as an independent event with custom mitigation rates for each incident using itemized rates deemed usual, customary and reasonable. Bills associated with such incidents shall be itemized per apparatus, personnel, products and equipment used.

(2) *HAZMAT.*

Level 1 - $700.00. Basic Response. Provision of engine response, first responder assignment, perimeter establishment, evacuations, operational set-up and site command.

Level 2 - $2,500.00. Intermediate Response. Provision of engine response, first responder assignment, perimeter establishment, evacuations, operational set-up and site command, donning of Level A or B suits, breathing air and detection equipment by fire personnel and robot deployment. Set-up and removal of decontamination centers, detection equipment, recovery and identification of materials involved.

Level 3 - $5,900.00. Advanced Response. Provision of engine response, first responder assignment, perimeter establishment, evacuations, operational set-up and site command, donning of Level A or B suits, breathing air and detection equipment by fire personnel and robot deployment. Set-up and removal of decontamination centers, detection equipment, recovery and identification of materials involved. Post response disposal of material and contaminated equipment and material used at scene and environmental clean up as needed. The mitigation charge associated with this level covers three (3)

hours of on scene time. Beyond three (3) hours, $300.00 per hour per HAZMAT team deployed.

(3) *Pipeline Incidents or Power Line Incidents (Including, but not limited to: Gas, Sewer, Septic to Sewer, and Water Pipelines).*

Level 1 - $400.00 Basic Response. Provision of engine response and first responder assignment, perimeter establishment, evacuations, operational set-up and site command. Includes inspection without damage or breakage.

Level 2 - $1,000.00 Intermediate Response. Provision of engine response, first responder assignment, and appropriate equipment, perimeter establishment, evacuations, operational set-up and site command. May include deployment of HAZMAT team, Level A or B suit donning, breathing air and detection equipment use by fire personnel. Supervision and/or assistance provided in pipeline repair.

Level 3 - Itemized Claim Charges. Advanced Response. Provision of engine response, first responder assignment, and appropriate equipment, perimeter establishment, evacuations, operational set-up and site command. May include deployment of HAZMAT team, Level A or B suit donning, breathing air and detection equipment use by fire personnel. Supervision and/or assistance provided in pipeline repair of intermediate to major damage. May include set-up and removal of decontamination centers, detection equipment, recovery and identification of materials involved. Post response disposal of material and contaminated equipment and material used at scene and environmental clean up as needed.

(4) *Fire Investigation.*

Fire investigation team. $275.00 per hour. Includes: scene safety, investigation, source identification, K-9 or Arson dog unit, identification equipment, mobile detection unit, fire report. The claim begins when the Fire Investigator responds to the incident and is billed for logged time only.

(5) *Fires.*

Each Assignment - $400.00 per hour, per engine or $500.00 per hour, per truck. Provision of scene safety, investigation, fire and hazard control.

(6) *Water Incidents.*

Level 1 - Billed at $400.00 base plus $50.00 per hour per rescue person. Basic Response. Provision of engine response, first responder assignment, and appropriate equipment, perimeter establishment, evacuations, operational set-up and site command, scene safety and investigation (including possible patient contact and hazard control where necessary).

Level 2 - Billed at $800.00 base plus $50.00 per hour, per rescue person. Intermediate Response. Includes Level 1 services as well as clean up and materials used in clean up (sorbents), minor hazardous material clean up and disposal.

Level 3 - Billed at $2,000.00 base plus $50.00 per hour per rescue person, plus $100.00 per hour per HAZMAT team member. Advanced Response: Includes Level 1 and Level 2 services as well as D.A.R.T. activation, donning breathing apparatus and detection equipment. Set up and removal of decontamination centers, detection equipment, recovery and identification of materials involved. Post response disposal of material and contaminated equipment and material used at scene and environmental clean up as needed.

Level 4 - Itemized Response: The fire department may bill each incident as an independent event with custom mitigation rates for each incident using itemized rates deemed usual, customary and reasonable. Bills associated with such incidents shall be itemized per apparatus, personnel, products and equipment used.

(7) *Special Rescue.*

Itemized Response: Minimum billed $400.00 for the first response vehicle plus $50.00 per rescue person. Additional rates of $400.00 per hour per response vehicle and $50.00 per hour per rescue person. Each incident will be billed with custom mitigation rates deemed usual, customary and reasonable (UCR). Bills associated with such incidents shall be itemized per apparatus, personnel, products and equipment used.

(8) *Chief Response.*

Billed at $250.00 per hour. This includes command set-up and operation, as well as supervision of the incident response.

(9) *Miscellaneous.*

Engines billed at $400.00 per hour.

Trucks billed at $500.00 per hour.

Miscellaneous equipment billed at $300.00 per hour.

The mitigation rates above are average charges, and are deemed typical for the incident responses listed. When claims are submitted, they will be itemized and based on the actual services provided.

(f) Any individual charged mitigation rates under the provisions of this Section may appeal each bill issued to a citation hearing officer in accordance with the provisions of section 1-5 of the Municipal Code. Relief must be requested in writing within ten (10) days of the individual's receipt of bills issued pursuant to this Section.
(Ord. No. 16-05, 10-24-05; Ord. No. 14-11, 5-9-11)

Secs. 13-33—13-45. Reserved.

ARTICLE III. FIRE PREVENTION AND FIRE SAFETY*

DIVISION 1. GENERALLY

Sec. 13-46. Bureau established; composition.

There shall be in the department of fire, and under the supervision of the fire chief, a bureau of fire prevention. The fire marshal shall act as chief of the bureau of fire prevention. The fire chief shall from time to time detail such other officers or members of the department of fire as he deems necessary to be inspectors for such bureau.
(Code 1977, § 13-43)

Sec. 13-47. Powers and duties of bureau.

It shall be the duty of the chief and the inspectors of the bureau of fire prevention to enforce all provisions of the Code and ordinances of the city pertaining to the:

(1) Prevention of fires;

(2) Storage and use of explosives and inflammables;

(3) Installation and maintenance of automatic and other private fire alarm systems and of all fire-extinguishing equipment;

(4) Maintenance and regulation of fire escapes, fire doors and other fire safety devices;

(5) Adequacy of the means of exit in case of fire from factories, schools, hotels, lodginghouses, tenement houses, asylums, hospitals, churches, halls, theaters, amphitheaters and all other places in which numbers of persons work, live or congregate for any purpose;

(6) Investigation of the cause, origin and circumstances of fire.

(Code 1977, § 13-44)

Sec. 13-48. Delegation to bureau of duties of fire chief.

The fire chief may delegate to the chief and the inspectors of the bureau of fire prevention any powers and duties conferred upon him by this Code or ordinances of the city relating to the making of tests and inspections, and the approval of structures, appliances, devices, installations

*__Cross references—__Building regulations, Ch. 9; regulation of gasoline dealers, Ch. 16; smoking prohibited in places of amusement, § 5-6; fire inspections for theaters, § 5-8; firemen to be assigned to circuses and outdoor assemblies, § 5-36; fire prevention regulations for circuses and outdoor assemblies, § 5-37.

State law reference—Fire marshals and fire hazards generally, G.S. § 29-39 et seq.

and equipment, and may delegate to the chief of the bureau of fire prevention any powers and duties conferred upon him as to the approval of applications for licenses and permits.
(Code 1977, § 13-45)

Sec. 13-49. Compensation of bureau personnel.

No officer or member of the department of fire shall receive any extra compensation for any duties he may perform as an inspector of the bureau of fire prevention.
(Code 1977, § 13-46)

Sec. 13-50. Records of bureau.

The chief of the bureau of fire prevention shall keep, in the office of the bureau, a complete record of all inspections made under the provisions of this chapter. Such records shall be kept in such a manner that the condition of any building, structure, or premises inspected may be determined, together with any orders issued concerning such building, structure or premises and any action taken thereon. The chief of the bureau of fire prevention shall also keep a record of all fires and of all facts concerning the same.
(Code 1977, § 13-47)

Sec. 13-51. Authority to enter to inspect.

The fire chief, the chief of the bureau of fire prevention or any inspector may, at any reasonable hour, enter any building or premises in the city for the purpose of making any inspection or investigation which he may deem necessary to be made under this chapter or any other provision of the Code or ordinances of the city relating to fire.
(Code 1977, § 13-48)

Sec. 13-52. Authority to inspect buildings, premises.

The fire chief shall inspect or cause to be inspected by the bureau of fire prevention or by officers or members of the department of fire, as often as may be necessary, but not less than twice a year, all buildings and premises in the city except the interiors of private dwellings, for the purpose of ascertaining and causing to be corrected any condition liable to cause fire, or any violation of the provisions of this Code or ordinances of the city aggravating an allowable fire hazard or creating an unlawful one.
(Code 1977, § 13-49)

Sec. 13-53. Inspection of hazardous conditions, required equipment.

The fire chief, the chief of the bureau of fire prevention or any inspector specially designated to do so shall inspect, as often as may be necessary, but not less than twice a year, all especially hazardous manufacturing processes, all storages or installations of gases, chemicals, oils, explosives and inflammable materials, all interior fire alarm and automatic sprinkler systems, and such other fire hazards and fire appliances as the fire chief may designate, for the purpose of enforcing the laws and ordinances governing the same and of safeguarding life and property from fire.
(Code 1977, § 13-50)

Sec. 13-54. Inspections on complaint.

Upon complaint of any person, the fire chief, the chief of the bureau of fire prevention or an inspector shall inspect any building or premises within his jurisdiction for the purposes mentioned above.
(Code 1977, § 13-51)

Sec. 13-55. Bonfires.

No bonfire shall be made or maintained in the city without written permission from the fire chief.
(Code 1977, § 13-52)

Sec. 13-56. Permits for operation—Required; fees; revocation of permits.

(a) All occupancies, the use of certain effects or displays, or operation of outdoor events, pursuant to the Regulations of Connecticut State Agencies Section 29-291(a)-1 inclusive, also known as the CT State Fire Prevention Code and as amended, shall not operate unless inspected by the Fire Marshal or his/her designee and, upon successful completion of required inspection, issued an annual permit to operate.

(b) A fee for such annual permits shall be in accordance with Section 13-6 of the Municipal Code.

(c) The Fire Marshal or his/her designee may, at any time, upon inspection or verification of a complaint, revoke a permit for violations of the CT Fire Safety Code or CT Fire Prevention Code and in accordance with G.S. § 29-306.

(d) Annual operational permit requirements are effective upon adoption of this section.
(Ord. No. 07-14, 5-12-14)

Secs. 13-57—13-70. Reserved.

DIVISION 2. DANGEROUS CONDITIONS

Sec. 13-71. Ordering correction generally.

Whenever any officer or member finds any violation of this Code or ordinances of the city relating to fire, or any other condition aggravating an allowable fire hazard or creating an unlawful one, he shall make such orders as may be necessary for the enforcement of the Code and ordinances and the safeguarding of life and property from fire.
(Code 1977, § 13-61)

Sec. 13-72. Ordering correction of structures.

Whenever any officer of the department of fire in making an inspection as provided in section 13-52 shall find any building or other structure which, for want of repairs, for lack of sufficient fire escapes, fire alarm apparatus or fire-extinguishing equipment, or by reason of age or dilapidated condition, or from any other cause, is especially liable to fire, and which is so situated as to endanger other property or the occupants thereof, he shall order such dangerous condition to be remedied.
(Code 1977, § 13-62)

Sec. 13-73. Ordering correction of conditions.

Whenever any officer finds in any building or upon any premises combustible or explosive matter, or dangerous accumulation of rubbish, or unnecessary accumulation of wastepaper, boxes, shavings or any highly inflammable materials dangerous to the safety of such building or the occupants thereof or so situated as to endanger property, he shall order the same to be removed or remedied.
(Code 1977, § 13-63)

Sec. 13-74. Ordering remedy of egress obstructions.

Whenever any officer finds obstructions to or on fire escapes, stairs, passageways, doors or windows, liable to interfere with the operations of the department of fire or with the egress of occupants in case of fire, he shall order the obstruction to be removed or remedied.
(Code 1977, § 13-64)

Sec. 13-75. Issuance and service of orders.

(a) The officer making an order as provided in this division shall cause such order to be put in writing and served upon the owner of the premises affected, or upon the owner's agent in charge of such premises, or upon the occupant thereof, as the circumstances may require.

(b) Such order shall be personally served upon such owner, agent or occupant by a member of the department of fire, by delivering to such owner, agent or occupant a true copy thereof; provided, however, that when such owner or agent cannot be found within the city, or when the premises are unoccupied, service may be made upon such owner or agent by registered mail and by posting on the entrance to the property. The person serving such order shall certify upon the original order the date of the service, and how and upon whom it was made, and shall return the original order to the officer who issued it.
(Code 1977, § 13-65)

Sec. 13-76. Hearings on orders.

The owner or occupant of the premises or the owner's authorized agent in charge thereof may, within five (5) days after the service of an order as provided in section 13-75, request a hearing upon such order before the fire chief. The fire chief shall conduct such a hearing, after due notice to such owner, occupant or agent of the time and place thereof, and shall review such order, and may

affirm, repeal or modify it. The fire chief shall render his decision upon such order within ten (10) days from the time of the request for such hearing.
(Code 1977, § 13-66)

Sec. 13-77. Compliance with orders.

Any person upon whom an order has been served as provided in section 13-75 shall comply with such order within ten (10) days after the service thereof, or, if a hearing is requested, within ten (10) days after the fire chief has rendered his decision upon such hearing.
(Code 1977, § 13-67)

Secs. 13-78—13-90. Reserved.

DIVISION 3. PLACES OF ASSEMBLY*

Sec. 13-91. Defined.

For the purpose of this division, the term "place of assembly" means a room or space, in a building, in which over seventy-five (75) people assemble for religious, recreational, educational, political, social or amusement purposes or for the consumption of food or drink, except theaters as defined in the state building code. Such rooms or space shall be deemed to include any occupied connecting room or space in the same story or in a story above or below having an entrance in common with the room or space used for the purposes specified above.
(Code 1977, § 13-77)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 13-92. Scope; modifications.

Except as otherwise provided by the general statutes or the state building code all places of assembly as defined in section 13-91 shall comply with the provisions of this division. In the application of this division to places of assembly in existence on June 11, 1945, the fire chief, or any officer of the fire department designated by him, may modify such of its provisions as would require structural changes if, in his opinion, adequate safety may be obtained otherwise, and provided that a permanent record is kept of such modifications and reasons therefor.
(Code 1977, § 13-76)

Sec. 13-93. Location above second floor.

No place of assembly shall be allowed above the second floor of any frame building. No dance hall or hall for dancing and other entertainments having a seating capacity of more than five hun-

*__Cross reference—__Regulation of assemblies generally, § 7-16 et seq.

dred (500) shall be located above the second floor of any building. Exception; buildings protected throughout by an approved automatic sprinkler system.
(Code 1977, § 13-78; Ord. No. 15-06, 6-12-06)

Sec. 13-94. License required; application; expiration; revocation; charge.

The owner or operator of any place of assembly in the city shall obtain a license therefore, issued by the bureau of licenses and permits and approved by the fire chief. Upon application for such license, the fire chief may require the applicant to furnish building plans showing the type of construction, exits, aisles and seating arrangements and proposed decorations of the place of assembly. No application shall be approved until the provisions of this division have been complied with. Such license shall expire one (1) year from the date of issuance and shall be revocable for cause. The fee for such license shall be one hundred dollars ($100.00).
(Code 1977, § 13-80; Ord. No. 16-06, 6-12-06; Ord. No. 10-09, 3-9-09)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 13-95. Inspections; authority to order correction or close.

The fire chief shall inspect or cause to be inspected all places of assembly in buildings at least twice each year, and more often if necessary, and shall satisfy himself that the provisions of this division and the general statutes are being complied with. Such inspections shall be at such times, including time of occupancy and use, as will assure compliance with this division and with such orders as may be issued under this division. Where conditions are unsatisfactory, written orders for immediate correction shall be given, as provided in sections 13-71 through 13-77, and, if the hazard is great, the fire chief or other officer of the fire department making such inspection may order a place of assembly closed summarily; the city may for this violation impose a fine of one hundred dollars ($100.00).
(Code 1977, § 13-81; Ord. No. 02-06, 3-13-06)

Sec. 13-96. Capacity limit and adequacy of exits.

The rules for determining the number, width and adequacy of exit doorways, hallways, passageways or stairways, and the capacity limit of any place of assembly shall be as set forth in the state building code and the general statutes.
(Code 1977, § 13-82)

Sec. 13-97. Ash trays and match receivers to be provided.

Where smoking is permitted there shall be provided on each table and at other convenient places a sufficient number of suitable, noncombustible ash trays or match receivers.
(Code 1977, § 13-84)

Sec. 13-98. When seats to be fastened to floor.

Seats in places of public assembly seating more than five hundred (500) persons need not be securely fastened to the floor. Where the seating capacity does not exceed five hundred (500) persons, seats shall be fastened together in rows, in a manner approved by the fire chief, except as otherwise permitted in section 13-99. All seats in balconies and galleries shall be securely fastened to the floor, except that in railed-in enclosures, boxes or loges, with level floors and having not more than fourteen (14) seats, they need not be fastened.
(Code 1977, §§ 13-86, 13-87)

Sec. 13-99. Seating in restaurants, nightclubs and similar occupancies.

(a) Chairs not secured to the floor may be permitted in restaurants, nightclubs and similar occupancies where the fastening of seats to the floor would be impracticable, provided that in the area used for seating, excluding dance floors, stages and similar spaces, there shall be not more than one (1) seat for each fifteen (15) square feet of floor area, and adequate aisles to reach exits shall be maintained at all times.

(b) If at any time the fire chief finds that the above conditions are not maintained, he may require that chairs be fastened, even though this may interfere with the normal operation of the establishment.
(Code 1977, § 13-89; Ord. No. 17-06, 6-12-06)

Sec. 13-100. Doors to be kept unfastened.

During periods of occupancy, no exit door shall be locked, bolted or otherwise fastened so that the door cannot be opened from the inside by the use of the ordinary doorknob, or by pressure on the door or on a panic release device.
(Code 1977, § 13-94)

Secs. 13-101—13-110. Reserved.

DIVISION 4. FLAMMABLE LIQUIDS*

Sec. 13-111. Scope.

This division shall apply to all plants, stores, garages, equipment and installations.
(Code 1977, § 13-109)

Sec. 13-112. "Volatile inflammable fluid" defined.

For the purpose of this division, the term "volatile inflammable fluid" means any fluid that will give inflammable vapor at a room temperature of less than one hundred (100) degrees Fahrenheit, to be ascertained by the application of the Tag, Abel-Pensky or Pensky-Martens method of testing. It shall include such fluids as gasoline, ether, carbon bisulphide, naphtha, benzole and collodion.
(Code 1977, § 13-110)

Sec. 13-113. Permit for use, storage, manufacture, sale or transportation—Required; fees.

(a) No person shall keep, use, store, manufacture, sell or transport in the city any volatile inflammable fluid in quantity exceeding five (5) gallons, unless he has obtained a permit to do so issued by the bureau of licenses and inspections, following inspection and approval by the fire chief; provided, however, that nothing in this division shall be construed as requiring a permit for the storage or transportation of gasoline or diesel fuel in the tanks of motor vehicles for use as fuel for generating motive power.

(b) A fee of one hundred dollars ($100.00) shall be charged for the initial inspection for a permit upon the installation of each tank of volatile inflammable fluid, including its pump.

(c) Fees for annual inspections for permit renewal shall be charged in accordance with the following schedule:

(1)	For each gasoline or diesel fuel tank and one (1) pump.	$50.00
(2)	For each additional gasoline or diesel fuel tank on the same premises.	25.00
(3)	For each additional gasoline or diesel fuel pump on the same premises.	25.00
(4)	For each tank of volatile inflammable fluids, other than gasoline or diesel fuel, including its pump	25.00
(5)	For each tank truck which is registered in the city by the commissioner of motor vehicles	100.00

(d) Fees for inspections for permit reinstatements following replacement or reinstallation of equipment; repairs in response to orders from the fire chief or revocation of a permit for equipment upon the discontinuing of its use, shall be charged in accordance with the following schedule:

(1)	For each tank of volatile inflammable fluid.	$50.00
(2)	For each pump	25.00

Provided, that if the fire chief determines that an inspection for permit reinstatement can be

*__Cross reference—__Gasoline dealers, Ch. 16.
__State law reference—__State regulations governing flammable liquids, G.S. § 29-62 et seq.

done simultaneously with an annual inspection, only the fee for the annual inspection shall be charged.

(Code 1977, § 13-111; Ord. No. 7-85, 2-25-85; Ord. No. 18-06, 6-12-06)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 13-114. Same—Inspection; approval.

When required under this division, the fire chief shall make an inspection of the premises, location and equipment, including vehicles, to be

used for the storage, manufacture, sale or transportation of volatile inflammable fluid, and the means of distribution thereof. If the conditions, surroundings and arrangements are such that the intent of this article can be observed, he shall approve the issuance of a permit.
(Code 1977, § 13-112; Ord. No. 7-85, 2-25-85)

Sec. 13-115. Same—To state maximum quantity of fluid to be stored.

The permit pursuant to this division shall state the maximum quantity of volatile inflammable fluid which may be stored.
(Code 1977, § 13-113)

Sec. 13-116. Same—To whom not to be issued.

No permit under this division shall be issued to any person under eighteen (18) years of age, or to any person who has not a sufficient knowledge of the English language to understand the requirements of this division.
(Code 1977, § 13-114)

Sec. 13-117. Same—Notices; hearings.

Any action of the fire chief or any other officer or member of the department of fire relative to the issuance, modification, revocation or suspension of a permit as provided in this division, except emergency actions under section 13-117(f), shall only be effective after written notice to the person to whom such permit has been issued. Any person aggrieved by any such action who wishes to appeal shall, within ten (10) days of receipt of notice of such action, request a hearing upon such action before the fire chief. Promptly thereafter, the fire chief shall conduct such a hearing, after due notice to the person who requested it of the time and place thereof, and shall review such action and render his decision thereon within ten (10) working days after the hearing.
(Code 1977, § 13-116; Ord. No. 7-85, 2-25-85)

Sec. 13-118. Same—Expiration; annual inspection and renewal; replacement or reinstallation; repairs; discontinuance of use; revocation and suspension; emergencies.

(a) All permits issued or reinstated under this division shall expire on the first day of the twelfth month following their issuance or reinstatement and may be renewed annually thereafter upon approval of the fire chief following inspection and payment of the required fee.

(b) The permit for equipment which is replaced or reinstalled shall be revoked. Following replacement or reinstallation, the equipment shall be inspected and, if approved by the fire chief, the permits shall be reinstated.

(c) When repair of equipment is ordered by the fire chief, the permit for such equipment shall be suspended. Following repair, such equipment shall be inspected and, if approved by the fire chief, the permit shall be reinstated.

(d) Any person subject to the provisions of this division shall notify the fire chief immediately upon discontinuing the use of any equipment for which a permit is required. For purposes of this subsection, "discontinuing the use of any equipment" shall mean that the premises on which such equipment is located are unattended for a period of thirty (30) or more days. The fire chief may thereupon modify or revoke as appropriate any permit issued for such equipment as necessary to protect the public health and safety. The use of any equipment for which a permit has been so revoked shall not be recommended unless, following inspection, the fire chief reinstates the permit.

(e) The fire chief may, for cause, direct the bureau of licenses and inspections to revoke any permit at any time. Initial inspection and permit procedures shall be followed if a new permit is sought for any equipment for which a permit was so revoked.

(f) If the fire chief determines that the condition of any equipment constitutes an actual and immediate threat to life or property and the owner cannot or will not immediately correct such condition and the city may take a lien on the premises for the cost of such work.
(Code 1977, § 13-115; Ord. No. 7-85, 2-25-85)

Sec. 13-119. Sales to unauthorized persons.

No person shall sell or deliver, or cause to be sold or delivered, in the city, volatile inflammable fluid in larger quantity than five (5) gallons to any person who under the provisions of section 13-113

is required to secure a permit and has failed to do so. No person shall sell or deliver, or cause to be sold or delivered, to any person who has secured such a permit a quantity of such fluid exceeding the maximum quantity authorized in the permit.
(Code 1977, § 13-117)

Sec. 13-120. Fuel oil delivery vehicles, insurance, license.

(a) No oil dealer who peddles or delivers fuel oil from trucks in the city shall be permitted to peddle or deliver such fuel oil without having obtained a license for each vehicle operated by him issued by the bureau of licenses and inspections and approved by the sealer of weights and measures. Such license shall contain such provisions as the sealer may deem expedient as to tests by him at proper intervals of meters or measures on such vehicles. No license shall be issued unless the applicant has filed evidence of a public liability policy satisfactory to the purchasing agent with public works in a sum sufficient to indemnify the city for any liability incurred by it, and to hold the city harmless for injuries to persons or property as a result of the exercise of such license, but with limits not less than two hundred fifty thousand dollars ($250,000.00) for personal injury to any one (1) person and five hundred thousand dollars ($500,000.00) for personal injury for any one (1) occurrence and two hundred fifty thousand dollars ($250,000.00) for property damage or five hundred thousand dollars ($500,000.00) combined single limit (CSL), and has obtained a permit as required by section 13-47.

(b) A license fee of fifty dollars ($50.00) shall be paid annually for each vehicle, at the time application for such license is filed. Such licenses shall expire on September 30th of each year. Each vehicle licensed shall carry on its right side, prominently displayed, a license plate containing the license number and expiration date, which shall be furnished without charge by the bureau of licenses and inspections when the license is issued. The minimums in this section may be increased from time to time as may be necessary to adequately protect the city's interests. Any increases shall take effect after approval by the council upon recommendation of the city manager.
(Code 1977, § 34-19; Ord. No. 22-85, 4-8-85; Ord. No. 66-93, 11-22-93)

Cross references—Licenses and permits generally, Ch. 21; weights and measures generally, Ch. 34.

Sec. 13-121. Inspection, approval of vehicles used in transporation.

No person shall transport for sale or delivery in the city volatile inflammable fluid in a tank car, tank truck or other similar vehicle, unless such car, truck or other vehicle has been inspected and approved by the fire chief. Such inspection shall be repeated annually.
(Code 1977, § 13-118)

Sec. 13-122. Storage.

(a) *Safety containers.* No volatile inflammable fluid in quantity exceeding five (5) gallons shall be stored or kept except in safety containers or tanks approved by the fire chief. No such fluid in quantities of five (5) gallons or less shall be stored or kept for any use whatsoever except in safety containers.

(b) *Underground tanks.* Insofar as practicable, volatile inflammable fluid shall be stored outside of buildings in underground tanks.

(c) *Aboveground tanks.* Such fluid, in quantity not exceeding sixty-five (65) gallons, may, at the discretion of the fire chief, be kept aboveground in tanks approved by him. Such fluid may also be stored in unlimited quantity outside the fire limits of the city, as fixed by the state building code, in specially constructed tanks aboveground, by persons engaged in the business of sale and distribution of such fluid, provided that the installation is approved by the fire chief.

(d) *Unlawful storage.* No volatile inflammable fluid shall be stored by any person in larger quantity than the maximum amount authorized by the permit issued to him under the provisions of this division.
(Code 1977, § 13-119)

Sec. 13-123. Material and construction of tanks.

(a) Storage tanks pursuant to this division with a capacity of not more than sixty-five (65) gallons shall be constructed of galvanized steel not thinner than No. 16 U.S. standard gauge.

(b) Underground storage tanks with a capacity of more than sixty-five (65) and less than five hundred sixty (560) gallons shall be constructed of not thinner than No. 14 U.S. standard gauge galvanized, or three-sixteenths-inch black, steel.

(c) Storage tanks with a capacity of more than five hundred sixty (560) and less than eleven hundred (1,100) gallons shall be constructed of not thinner than No. 12 U.S. standard gauge galvanized, or three-sixteenths-inch black, steel.

(d) Tanks shall be riveted, welded or brazed and shall be soldered, caulked or otherwise made tight, in a mechanical and workmanlike manner.
(Code 1977, § 13-120)

Sec. 13-124. Tanks located near buildings having cellars or basements.

A tank containing volatile inflammable fluid, if located within ten (10) feet of a building having a cellar or basement and not placed below the level of the floor of such cellar or basement, shall be protected from leakage in such manner as shall be directed by the fire chief and to his satisfaction. No tank having a capacity of one hundred ten (110) gallons or more shall be located less than ten (10) feet from a cellar wall. No tank having a capacity of five hundred (500) gallons or more shall be located less than fifteen (15) feet from a cellar wall. No tank having a capacity of one thousand (1,000) gallons or more shall be located less than twenty (20) feet from a cellar wall.
(Code 1977, § 13-121)

Sec. 13-125. Tanks located inside buildings.

(a) If it is impracticable to locate a storage tank outside of a building, such tank may be placed underground inside the building, provided the top of the tank is located at least two (2) feet below the basement floor level.

(b) Where two (2) or more tanks are installed underground inside a building they shall not be located less than three (3) feet apart.

(c) No tank having a total capacity in excess of five hundred sixty (560) gallons shall be installed underground inside of a building unless such building is of fireproof construction as provided in the building code.
(Code 1977, § 13-122)

Sec. 13-126. Underground tanks—Installations.

Underground tanks pursuant to this division shall be placed upon a solid foundation, which may be of earth, and shall be satisfactorily covered with asphaltum or other suitable rust-resisting material. The top of such tank shall be at least two (2) feet below the surface of the ground. No such tank shall be installed without first being inspected and approved by the fire chief.
(Code 1977, § 13-123)

Sec. 13-127. Same—Pipes.

Each underground storage tank under this division shall be provided with a fill pipe, a draught pipe, a vent pipe and a gauge pipe. The opening to the gauge pipe shall be protected to the satisfaction of the fire chief. When a tank is located under the building, the fill pipe and the vent pipe must run to the outside of such building. The vent pipe shall be of galvanized wrought iron not less than one and one-quarter (1¼) inches in diameter. It shall run from the top of the tank and shall terminate not less than twelve (12) feet above the surface of the ground and not less than ten (10) feet measured horizontally and vertically from any window or other opening in any adjacent building. It shall terminate with a double gooseneck opening downward. Such opening shall be protected by a brass wire screen not coarser than thirty-by-thirty mesh or the equivalent.
(Code 1977, § 13-124)

Sec. 13-128. Inspection required before covering installation.

Before any installation pursuant to this division is covered from sight, notification in writing

shall be given to the fire chief, who shall, within forty-eight (48) hours after the receipt of such notification, Sundays and holidays excepted, inspect the installation and approve or disapprove it. If the fire chief fails to make the inspection within the specified time the installation may be covered, but it shall still be subject to inspection by the fire chief at the expense of the city.
(Code 1977, § 13-125)

Sec. 13-129. Device for drawing fluid from tank.

Volatile inflammable fluid shall be drawn from tanks by means of a suction pump which shall have a tight shutoff valve. The pump or drawing-off device shall not be located above the ground floor of a garage or other building and shall be in a well ventilated portion of such building. In no case shall there be a return waste pipe to the tank.
(Code 1977, § 13-126)

Sec. 13-130. Portable filling tanks in garages and distributing stations.

Sealed portable filling tanks having a capacity of not more than sixty (60) gallons may be used in garages and in wholesale and retail distributing stations for the handling or measuring of volatile inflammable fluid. Such tanks shall be constructed of steel in thickness not less than No. 7 U.S. standard gauge, supported on steel wheels not less than thirty (30) inches in diameter, with rubber tires, and provided with an approved pump for the removal of the contents. A filling hose, if used, shall be of an approved type and shall not exceed eight (8) feet in length. It shall be a single section of hose without coupling joints between the connection to the tanks and the nozzle.
(Code 1977, § 13-127)

Sec. 13-131. Fueling motor vehicles.

When the gasoline tank of any motor vehicle is being filled, the engine of such vehicle shall be stopped and shall not be restarted until the tank has been properly closed.
(Code 1977, § 13-128)

Sec. 13-132. Smoking, lighting matches restricted; signs.

In all rooms or parts of buildings which contain volatile inflammable fluid in open containers, or in which vapor from such fluid is present, or in which inflammable fluid is used in any manufacturing process, smoking and the carrying of lighted matches are prohibited. Suitable signs lettered "SMOKING PROHIBITED BY ORDER OF THE FIRE DEPARTMENT" shall be conspicuously displayed in such places.
(Code 1977, § 13-129)

Sec. 13-133. Open flames.

The handling or storing of any volatile inflammable fluid within dangerous proximity to open flame or fire is prohibited.
(Code 1977, § 13-130)

Sec. 13-134. Use of sawdust to absorb oil or grease.

Sawdust shall not be used to absorb oil or grease in any building where volatile inflammable fluid is used.
(Code 1977, § 13-131)

Sec. 13-135. Firefighting equipment.

Where volatile inflammable fluid is kept, used or handled, dry sand, ashes, chemical extinguishers or other fire retardants shall be provided in such quantities and with such pails, scoops and other appliances as may be directed by the fire chief.
(Code 1977, § 13-132)

Secs. 13-136—13-150. Reserved.

DIVISION 5. STOVES USING FUEL OIL*

Sec. 13-151. Scope.

This division shall apply to all sales and installations of oil burners in stoves and ranges or

*__Cross references—__Flammable liquids generally, § 13-111 et seq.; flammable finishes, § 13-256 et seq.; gasoline dealers, Ch. 16.

similar devices, and the servicing thereof and the storage and handling of oil fuels in connection therewith, in the city.
(Code 1977, § 13-141)

Sec. 13-152. "Light fuel oil" defined.

For purposes of this division, "light fuel oil" means oil used as fuel in oil burners in stoves or ranges or similar devices.
(Code 1977, § 13-142)

Cross reference—Definitions and rules of contruction generally, § 1-2.

Sec. 13-153. What fuel to be used.

Fuel used in oil burners in stoves or ranges or similar devices shall be a topped or distilled oil having a flashpoint of not less than one hundred ten (110) degrees Fahrenheit closed cup, of a quality recommended by manufacturers and shown by test to be suitable for use in such burners. No fuel oil heavier than Grade 1, U.S. Department of Commerce, Commercial Standard Specification CS12-29 shall be used. The flashpoint shall be determined either by the Elliot, Abel, Abel-Pensky or Tag closed cup testers.
(Code 1977, § 13-143)

Sec. 13-154. Permits to sell, deliver, etc., oil burners—Required; duration; fees.

(a) No person shall sell oil burners in stoves or ranges or similar devices unless he has obtained a permit to do so issued by the bureau of licenses and permits and approved by the fire chief. Such permit shall be renewable annually. A fee of two dollars ($2.00) shall be charged for each such permit.

(b) No person shall install or service oil burners in stoves or ranges or similar devices unless he has obtained a permit to do so issued by the bureau of licenses and inspections and approved by the fire chief. Such permit shall be renewable annually. A fee of two dollars ($2.00) shall be charged for each such permit.

(c) No person shall sell or deliver light fuel for the operation of oil burners in stoves or ranges or similar devices unless he has obtained a permit to do so issued by the bureau of licenses and inspections and approved by the fire chief. Such permit shall be renewable annually. A fee of one dollar ($1.00) shall be charged for each such permit, and an additional fee of two dollars ($2.00) shall be charged for each tank truck to be used in such sale or delivery which is registered in the city by the commissioner of motor vehicles.

(d) No person shall keep or store light fuel oil in a quantity of fifty-five (55) gallons or more unless he has obtained a permit to do so issued by the bureau of licenses and inspections and approved by the fire chief. Such permit shall remain in effect until revoked or suspended. A fee of one dollar ($1.00) shall be charged for each storage tank to be used under such permit.

(e) The sale of portable, flueless, oil-fired heaters, cooking stoves or similar oil-burning devices, is hereby prohibited in the city.

(f) The use or installation of portable, flueless, oil-fired heaters, cooking stoves or similar oil-burning devices, is hereby prohibited in the city.
(Code 1977, § 13-144)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 13-155. Same—Qualifications of applicants.

Before any permit required in section 13-154 may be issued, the applicant must establish his fitness and his knowledge of range oil burner installation and the proper handling of fuel oil to the satisfaction of the fire chief.
(Code 1977, § 13-145)

Sec. 13-156. Same—Revocation and suspension.

The fire chief may, for cause, direct the bureau of licenses and inspections to revoke or suspend any permit issued under this division.
(Code 1977, § 13-146)

Sec. 13-157. Same—Hearings on permits.

Any person aggrieved by any action of the fire chief or any other officer or member of the department of fire relative to the issuance, revocation or suspension of a permit as provided in this division, may, within a reasonable time, request a hearing upon such action before the fire chief. The

fire chief shall conduct such a hearing, after due notice to the person who requested it of the time and place thereof, and shall review such action and render his decision thereon within a reasonable time from the time of the request for such hearing.
(Code 1977, § 13-147)

Sec. 13-158. Storage of light fuel oil on premises where used—Quantity.

Light fuel oil as a supply for oil burners in stoves or ranges or similar devices may be kept in storage on the premises where used, in approved tanks of eleven (11) to sixty (60) gallons' capacity placed in an upright position. Tanks of from sixty (60) to one hundred eighty (180) gallons' capacity may also be used, but shall be of an approved type equipped with adequate fill and vent pipes extending from the tank to the outside air and above the surface of the ground. The material of such tanks shall be not less than No. 16 U.S. gauge iron or steel.
(Code 1977, § 13-148)

Sec. 13-159. Same—Location of tanks.

The number and location of storage tanks in any one (1) building shall be determined by the fire chief. Tanks within buildings or other structures for the storage and keeping of light fuel oil in excess of ten (10) gallons shall not be installed above the lowest floor of the buildings where used.
(Code 1977, § 13-149)

Sec. 13-160. Same—How tanks to be filled and oil drawn.

Tanks for the storage of light fuel oil shall be filled in such manner, at such times and by such methods as may be prescribed by the fire chief. Oil shall be drawn from such tanks by a pump approved by the fire chief.
(Code 1977, § 13-150)

Sec. 13-161. How light fuel oil to be delivered.

Light fuel shall be delivered only by equipment recommended by the fire chief. No light fuel oil shall be delivered to a storage tank unless the permit authorizing storage of such oil is posted on or near the tank.
(Code 1977, § 13-151)

Secs. 13-162—13-175. Reserved.

DIVISION 6. OIL-BURNING EQUIPMENT*

Sec. 13-176. Scope.

This division shall apply to all oil burners and oil-burning equipment with the exceptions of burners in stoves and ranges and portable burners such as oil stoves, oil heaters and oil lamps equipped with a wick or mechanical device, the movement of which is essential to flame adjustment, and such portable apparatus as blowtorches and soldering pots.
(Code 1977, § 13-161)

Sec. 13-177. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Oil burner means any device designed to burn fuel oil having a flashpoint of one hundred fifteen (115) degrees Fahrenheit or higher as determined by the Tag closed tester in accordance with the method of test adopted by the American Society for Testing Materials (serial designation D 56-36), and having a fuel tank or container with a capacity of more than ten (10) gallons connected thereto.

Oil-burning equipment means oil burners and all tanks, piping, pumps, control devices and accessories connected to the burners.
(Code 1977, § 13-162)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 13-178. Permit to install, use or maintain—Required.

No person shall install, maintain or use oil-burning equipment in any building or other struc-

*__Cross references—__Flammable liquids, § 13-111 et seq.; stoves using fuel oil, § 13-151 et seq.; flammable finishes, § 13-256 et seq.; gasoline dealers, Ch. 16.

ture, or keep or store oil for use in connection with such equipment, unless he has obtained a permit to do so issued by the bureau of licenses and inspections and approved by the fire chief. Such permit shall be issued without charge. The fee for such permit shall be fifty dollars ($50.00).
(Code 1977, § 13-163; Ord. No. 19-06, 6-12-06)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 13-179. Same—Preliminary inspection of premises.

Upon receipt of an application for the permit required by section 13-178, the fire chief shall make an inspection of the premises proposed for such installation.
(Code 1977, § 13-164)

Sec. 13-180. Same—Approval of burner and equipment required.

(a) No oil burner shall be installed, maintained or used in any building or other structure unless the burner has been approved by the fire chief, and no change shall be made in any such burner or equipment connected therewith unless such change has been approved by him.

(b) The fire chief may require an applicant for approval of an oil burner to install the complete equipment at such place as the fire chief may designate and to furnish such plans and specifications of equipment as he may require.
(Code 1977, § 13-165)

Sec. 13-181. Same—Duration, revocation and suspension.

Permits issued under this division shall remain in effect until revoked or suspended. The fire chief may, for cause, direct the bureau of licenses and inspections to revoke or suspend any such permit.
(Code 1977, § 13-166)

Sec. 13-182. Same—Hearings on.

Any person aggrieved by any action of the fire chief or any other officer or member of the department of fire relative to the issuance, revocation or suspension of a permit as provided in this division, may, within a reasonable time, request a hearing upon such action before the fire chief. The fire chief shall conduct such a hearing, after due notice to the person who requested it of the time and place thereof, and shall review such action and render his decision thereon within a reasonable time from the time of the request for such hearing.
(Code 1977, § 13-167)

Sec. 13-183. Compliance with rules and regulations of manufacturers.

All oil burners shall be installed and operated in accordance with rules and regulations of the manufacturers thereof approved by the state fire marshal.
(Code 1977, § 13-168)

Sec. 13-184. Use of nonautomatic burner limited.

Oil burners that are not equipped with automatic means for preventing abnormal discharge of oil at the burner shall not be installed or operated in any location where a competent attendant will not be constantly on duty in the room where

the burner is located while the burner is in operation.
(Code 1977, § 13-169)

Sec. 13-185. Gravity feed to burner.

(a) *When to be used.* Gravity feed shall be used only with burners arranged to prevent abnormal discharge of oil at the burner by automatic means specifically approved for the burner with which it is used.

(b) *Supply tanks.* Gravity supply tanks shall not exceed two hundred seventy-five (275) gallons' individual capacity. Where more than one (1) gravity supply tank is permitted, such tanks shall be connected to the feed pipe leading to the burner through a manually operated, approved three-way valve in such a way that only one (1) tank can discharge its contents at one (1) time.

(c) *Level valve.* Where oil is supplied to the burner by gravity and a constant level valve is not incorporated in the burner assembly or in an auxiliary tank used in connection with an automatic pump, an approved constant level valve shall be installed in the oil feed line at the gravity tank or as close thereto as practicable. The vent opening of such constant level valve shall be connected by piping or tubing to the outside of the building unless the constant level valve is provided with an antiflooding device. Vent pipes or tubing of constant level valves shall not be connected to tanks or tank vents.
(Code 1977, § 13-170)

Sec. 13-186. Pressure tank feed.

Pressure tank feed shall be used only with burners arranged to prevent abnormal discharge of oil at the burner by automatic means specifically approved for the burner with which it is used. Pressure tanks shall not exceed a capacity of sixty (60) gallons and shall not be operated at pressures exceeding fifty (50) pounds per square inch. They shall be equipped with a reliable pressure gauge and with an automatic relief valve piped to discharge outside of buildings.
(Code 1977, § 13-171)

Sec. 13-187. Installation of underground tanks.

(a) Underground tanks shall be so buried as to have a cover of earth not less than two (2) feet thick or shall be covered with not less than one (1) foot of earth on top of which shall be placed a slab of reinforced concrete not less than four (4) inches thick. The slab shall be set on a firm well-tamped earth foundation and shall extend at least one (1) foot beyond the tank in all directions. Where tanks are buried underneath buildings, such a concrete slab shall be provided in every instance.

(b) Underground tanks shall be set on a firm foundation and surrounded with soft earth or sand, well tamped in place. Where necessary to prevent floating, they shall be securely anchored or weighted.
(Code 1977, § 13-172)

Sec. 13-188. Installation of tanks inside buildings.

(a) Oil supply tanks larger than sixty (60) gallons in capacity shall not be located in buildings above the lowest story, cellar or basement.

(b) Unenclosed inside storage tanks and auxiliary tanks shall not be located within seven (7) feet, horizontally, of any fire or flame.

(c) Inside storage and auxiliary tanks shall be securely supported by substantial, incombustible supports to prevent settling, sliding or lifting.

(d) Oil supply tanks located inside buildings shall not exceed two hundred seventy-five (275) gallons' individual capacity or five hundred fifty (550) gallons aggregate capacity in one (1) building unless installed in an enclosure or casing constructed as follows: The walls of the enclosure shall be constructed of reinforced concrete at least six (6) inches thick or of brick at least eight (8) inches thick and shall be bonded to the floor. The space between the tank and the enclosure shall be completely filled with sand or well-tamped earth. Where the floor or other construction immediately above the tank is of fire-resistive construction capable of sustaining safely a load of one hundred fifty (150) pounds per square foot, the walls of the enclosure shall be carried to a height of not less than one (1) foot above the tank, and the space

filled with sand or well-tamped earth to the top; otherwise the enclosure shall have a top of reinforced concrete at least five (5) inches thick or of equivalent construction. Instead of an enclosure as above described, the tank may be encased in reinforced concrete not less than six (6) inches thick applied directly to the tank so as to eliminate completely any air space. Tanks of reinforced concrete construction as provided in section 13-189 may be installed without additional concrete enclosure.

(e) In ordinary buildings, the nominal gross capacity of tanks shall not exceed five thousand (5,000) gallons.

(f) In fire-resistive buildings, the nominal gross capacity of tanks shall not exceed fifteen thousand (15,000) gallons.

(g) In any building, if in a fire-resistive or detached room cut off vertically and horizontally in an approved manner from other floors of the main building, the nominal gross capacity of tanks shall not exceed fifty thousand (50,000) gallons with an individual tank capacity not exceeding twenty-five thousand (25,000) gallons.
(Code 1977, § 13-173)

Sec. 13-189. Construction of tanks.

(a) Underground tanks and tanks inside buildings shall be constructed of steel or wrought iron of a minimum U.S. standard gauge in accordance with the following table. Steel or wrought iron thinner than No. 7 gauge used in the construction of underground and enclosed tanks shall be galvanized.

Capacity gallons	*Minimum thickness*	*Weight pounds per square foot*
180 or less	16 guage	2.50
181 to 285	14 guage	3.125
286 to 1,100	12 guage	4.375
1,101 to 4,000	7 guage	7.50
4,001 to 12,000	1/4 inch (nominal)	10.00
12,001 to 20,000	5/16 inch (nominal)	12.50
20,001 to 30,000	3/8 inch (nominal)	15.00

If adequate internal bracing is provided, tanks of twelve thousand one (12,001) to thirty thousand (30,000) gallons' capacity may be built of one-quarter-inch plate. For tanks larger than one thousand one hundred (1,100) gallons' capacity, a tolerance of twenty (20) percent in capacity is permitted.

(b) Joints shall be riveted, calked, brazed, welded or made tight by some equally satisfactory process. Tanks shall be tight and sufficiently strong to bear without injury the most severe strains to which they may be subjected in practice. Shells of tanks shall be properly reinforced where connections are made. All connections to underground tanks and tanks inside buildings shall be made through the top of the tank above the liquid level, except that tanks of not over two hundred seventy-five (275) gallons' capacity may have one (1) bottom connection for gravity feed and one (1) opening for an approved key stem gate valve to facilitate cleaning or for a scavenging line to be run to the outside and capped oiltight when not in use.

(c) Pressure tanks shall be designed for at least six (6) times the maximum working pressure.

(d) Prior to installation, underground and enclosed tanks shall be protected against corrosion on the outside in a manner satisfactory to the fire chief, but in every case by at least the equivalent to two (2) preliminary coatings of red lead followed by a heavy coating of hot asphalt.

(e) Tanks labeled by Underwriters' Laboratories will be accepted as complying with the requirements of subsections (a) through (d).

(f) For fuel oil heavier than thirty-five (35) degrees A.P.I., tanks may be made of concrete in accordance with the standards of the National Fire Protection Association for the design of concrete fuel oil storage tanks.
(Code 1977, § 13-174)

Sec. 13-190. Tank vents.

(a) Storage tanks shall be equipped with an open vent or an approved automatic vent arranged to discharge to the open air. Vent openings and vent pipes shall be of ample size to prevent abnormal

pressure in the tank during filling, but not smaller than a one-and-one-quarter-inch size.

(b) Vent pipes shall be arranged to drain to the tank. The lower end of the vent pipe shall not extend through the top into the tank for a distance of more than one (1) inch.

(c) Vent pipes shall terminate outside of buildings at a point not less than two (2) feet, measured vertically or horizontally, from any window or other building opening. Outer ends of vent pipes shall be provided with a weatherproof hood. Vent pipes shall terminate sufficiently above the ground to prevent their being obstructed with snow and ice. Vent pipes of tanks containing heaters shall be extended to such a height that oil vapors discharging from the vent will be readily diffused without danger of ignition.

(d) Vent pipes shall not be cross-connected with fill pipes or return lines from burners.
(Code 1977, § 13-175)

Sec. 13-191. Tank fill and overflow pipes.

(a) Underground and storage tanks inside buildings shall be filled only through fill pipes terminating outside of buildings at a point at least five (5) feet from any building opening at the same or lower level. Fill terminals shall be closed tight when not in use by a metal cover designed to prevent tampering.

(b) Auxiliary tanks shall be filled by pump from storage tanks.

(c) Auxiliary tanks other than vacuum tanks shall be equipped with an overflow pipe draining to the storage tank at least one (1) size larger than the supply pipe.

(d) Overflow pipes of auxiliary gravity tanks shall have no valves or obstructions. Overflow pipes of auxiliary pressure tanks shall be provided with interconnected valves or other means for automatically venting the tank during filling.
(Code 1977, § 13-176)

Sec. 13-192. Oil gauging.

(a) All tanks in which a constant oil level is not maintained by an automatic pump shall be equipped with an approved method of determining the oil level.

(b) Test wells shall not be installed inside buildings and where permitted for outside service shall be closed tight, when not in use, by a metal cover designed to prevent tampering.

(c) Gauging devices such as liquid leveling indicators or signals shall be installed so that oil or vapor will not be discharged into the building from the fuel supply system.
(Code 1977, § 13-177)

Sec. 13-193. Oil pumps.

(a) Oil pumps shall be of an approved type and secure against leaks, and shall be rigidly fastened in place.

(b) Automatic pumps not an integral part of a burner shall be arranged so as to stop automatically in case of total breakage of the supply line to the burner.
(Code 1977, § 13-178)

Sec. 13-194. Piping.

(a) All piping shall be standard full-weight, wrought-iron, steel or brass pipe with standard fittings or approved brass or copper tubing with approved fittings, except that approved flexible metal hose may be used for reducing the effects of jarring and vibration or where rigid connections are impracticable.

(b) Pipe used in the installation of domestic-type burners shall not be smaller than one-quarter-inch pipe size; pipe used in the installation of industrial-type burners shall not be smaller than one-half-inch iron pipe size. Copper or brass tubing shall not be smaller in size than the equivalent of the iron pipe sizes mentioned in this subsection, with wall thickness not less than 0.049 inch. Flexible metal hose shall be installed strictly in accordance with the limitations of its approval.

(c) Piping shall be rigidly secured in place and protected from injury in a workmanlike manner, and, where necessary, shall be protected against corrosion. Where practicable, oil piping shall be buried underground or in a concrete floor or placed in a metal-covered pipe trench.

(d) Pipe joints and connections shall be made tight in a workmanlike manner. Unions and tubing fittings shall be of approved type. Unions requiring gaskets or packing and right and left couplings shall not be used in oil lines.

(e) Proper allowance shall be made for expansion, contraction, jarring and vibration. Pipelines, other than tubing, connected to underground tanks, except fill lines and test wells, shall be provided with double swing joints arranged to permit the tank to settle without impairing the efficiency of the pipe connections.

(f) Opening for pipes through outside walls below the ground level shall be made oiltight by securely packing with flexible material.

(g) Oil supply lines to burners shall be provided with approved strainers.
(Code 1977, § 13-179)

Sec. 13-195. Valves.

(a) Readily accessible shutoff valves of approved type shall be installed in oil supply lines near each burner and close to gravity and pressure supply tanks. On automatic-type burners, the valve in the supply line near the burner shall be of an automatic or fusible link type so arranged and located that the oil will be automatically shut off before the tank can be subjected to undue heat. Shutoff valves of approved type shall be located on each side of oil strainers, which are not a part of the oil burner unit, and on the discharge and suction side of oil pumps which pump directly to the burner, but which are not a part of the burner unit.

(b) Valves need not be installed on the supply line from underground outside tanks where the oil-burning equipment is located above the capacity level of storage tank, nor when the capacity of all oil distribution piping above the burner does not exceed five (5) gallons. Where oil-burning equipment is below the top level of oil storage or where siphoning might occur, positive means shall be provided, accessible from both inside and outside of the building, for shutting off the oil supply in case of an emergency. Manually operated valves, where required, shall be located at a safe distance from the burner, plainly visible, and labeled with a red tag not less than two (2) inches in width and four (4) inches in length, printed on both sides, with the words "OIL SHUTOFF."
(Code 1977, § 13-180)

Sec. 13-196. Preheating of oil.

Preheating of oil, where necessary, shall be done by steam, hot water or approved electric heaters. Heaters shall be substantially constructed with all joints made oiltight. Thermometers shall be installed at suitable locations to indicate the temperature of the heated oil. Heaters shall be bypassed or provided with suitable means to prevent abnormal pressure.
(Code 1977, § 13-181)

Sec. 13-197. Tests of tanks and piping.

After installation and before being covered, tanks and piping shall be tested hydrostatically, or with equivalent air pressure, at a pressure not less than one and one-half (1½) times the maximum working pressure but not less than five (5) pounds per square inch at the highest point of the system. Instead of a pressure test, suction lines may be tested under a vacuum of not less than twenty (20) inches of mercury. Tests shall continue for at least thirty (30) minutes without a noticeable drop in pressure or vacuum.
(Code 1977, § 13-182)

Sec. 13-198. Burner controls.

(a) Oil-burning equipment shall be provided with some means of manually stopping the flow of oil to the burners from a conveniently located point at a safe distance from the burner.

(b) Automatically operated oil burners, used in connection with hot water, steam or warm air heating systems, shall be equipped with approved automatic devices to shut down the burners in the vent of undue pressure in a steam boiler or overheating in a hot water boiler or warm air furnace. In systems where steam or air is used for atomizing the oil, the equipment shall be so arranged that in case of an interruption of the atomizing supply the oil supply will be immediately shut off.
(Code 1977, § 13-183)

Sec. 13-199. Electric wiring and equipment.

Electric wiring and equipment in connection with oil-burning equipment shall be installed in accordance with the provisions of the electrical code of the city.
(Code 1977, § 13-184)

Sec. 13-200. Installation of burners.

(a) Oil burners shall be securely installed in a workmanlike manner in accordance with the instructions of the manufacturers, by qualified mechanics, licensed as provided under the general statutes.

(b) Where oil burners are installed in furnaces originally designed for solid fuel, the ash door of the furnace shall be removed or bottom ventilation provided to prevent the accumulation of vapors in the ash pit, unless the burner is of the type which mechanically purges the ash pit.

(c) Boilers and furnaces in which oil burners are installed shall be connected to flues having sufficient draft at all times to assure safe operation of the burner.

(d) Rooms in which oil burners are located shall be provided with adequate ventilation to assure complete combustion of the oil.

(e) Complete instructions for the care and operation of the oil-burning equipment shall be conspicuously posted near the oil burner and maintained in a readable condition.

(f) Contractors installing industrial oil-burning systems shall furnish diagrams showing the main oil lines and controlling valves, one (1) of which shall be posted near the oil-burning equipment and another at some point which will be accessible in case of fire at the burners.
(Code 1977, § 13-185)

Sec. 13-201. State building code to apply.

In addition to the regulations herein provided, the requirements of the state building code shall also apply to the installation and use of oil-burning equipment.
(Code 1977, § 13-186)

Sec. 13-202. Modification of requirements in unusual circumstances.

Where the circumstances or conditions of any particular installation are unusual and such as to render the strict application of this division impracticable, the fire chief may permit such modifications as will provide a substantially equivalent degree of safety.
(Code 1977, § 13-187)

Sec. 13-203. Fuel oil to be used.

The grade of fuel oil used with any burner shall be one which tests and experience have shown to be suitable for use with that burner. The oil shall have a flashpoint of not less than one hundred fifteen (115) degrees Fahrenheit determined as specified in section 13-177, and shall be free from acid, grit and fibrous or other foreign matter likely to clog or injure the burners or valves.
(Code 1977, § 13-188)

Secs. 13-204—13-215. Reserved.

DIVISION 7. EXPLOSIVES

Sec. 13-216. Permit—Required.

No person shall keep or have for sale or for any other purpose on any premises in the city, or, except as provided in section 13-226, upon any watercraft within the jurisdiction of the city, any quantity of gunpowder in excess of five (5) pounds in weight, or any quantity of dynamite or other explosive of a like nature, in excess of one (1) pound in weight, unless he has obtained a permit to do so issued by the bureau of licenses and inspections and approved by the fire chief.
(Code 1977, § 13-196)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 13-217. Same—Place of keeping to be designated in.

The permit required in section 13-216 shall designate the place in which explosives are to be kept and sold by the permittee, and such place shall not be changed or altered without the consent of the fire chief endorsed on such permit.
(Code 1977, § 13-197)

Sec. 13-218. Same—Records required.

The fire chief shall keep a record of all permits issued under this division and of the place designated in each permit for keeping and selling explosives.
(Code 1977, § 13-203)

Sec. 13-219. Same—Revocation.

The fire chief may, at any time, direct the bureau of licenses and inspections to revoke any permit issued under this division.
(Code 1977, § 13-202)

Sec. 13-220. Attention of permittee to be directed to regulations.

The chief of the fire department, at the time the permit under this division is issued, shall direct the attention of the permittee to the provisions of this division.
(Code 1977, § 13-198)

Sec. 13-221. Signs to be displayed.

Every person to whom a permit to keep and sell explosives has been issued shall give notice thereof by a conspicuous sign bearing the words "licensed to keep and sell explosives," placed over the door or principal entrance to the premises where such explosives are deposited.
(Code 1977, § 13-199)

Sec. 13-222. How to be stored.

Every person to whom a permit to keep and sell explosives has been issued shall store such explosives in a suitable copper, zinc or galvanized iron chest, approved by the fire chief. Such chest shall be marked on its front with the word "gunpowder," or the word "explosives," and shall be provided with two (2) strong handles and with a tight cover or lid, attached with brass hinges and secured with a brass padlock and key. It shall be kept locked except when opened to put in or take out explosives. Explosives shall be put in and taken out as speedily as is possible and consistent with proper care. It shall be kept on the ground floor, and within six (6) feet of the principal door or entrance from the street to the premises where such explosives are kept, and in no other place in the building, except by special permission of the fire chief, expressed in the permit.
(Code 1977, § 13-200)

Sec. 13-223. Maximum amount of explosives that may be kept.

No person to whom a permit to keep and sell explosives has been issued shall have on hand at any time in one (1) building or store more than fifty (50) pounds of explosives. However, the fire chief may, in his discretion, allow such person to keep or store explosives in greater quantity in accordance with the regulations of the department of state police.
(Code 1977, § 13-201)

Sec. 13-224. Inspections.

The fire chief may, at any reasonable time, enter the premises of any person to whom a license to keep and sell explosives has been issued, to ascertain if the laws and regulations relating thereto are being strictly observed.
(Code 1977, § 13-204)

Sec. 13-225. Removal or destruction of explosives in case of fire.

In case of an alarm of fire in the vicinity of the premises where any explosives are kept, the fire chief may cause such explosives to be removed to a place of safety, or to be destroyed, as the circumstances may require.
(Code 1977, § 13-205)

Sec. 13-226. Watercraft carrying explosives.

(a) No watercraft on board of which any gunpowder, dynamite or explosive of a like nature is laden shall come to or lie at any wharf, slip or landing place in the city, or come to anchor or otherwise make fast on the Connecticut River within the jurisdiction of the city, except as provided in this section.

(b) Any such watercraft, if of suitable construction with regard to safety, may be allowed to receive or deliver such explosives at any wharf or landing place on the Connecticut River below the mouth of the Hockanum River, and may remain at such wharf or landing place a reasonable time

for such purpose, not to exceed three (3) days. No fire of any kind shall be allowed on or near such watercraft at any time while it is within the jurisdiction of the city. When such watercraft has received such explosives on board at such wharf or landing place, or at the expiration of three (3) days, whichever sooner occurs, it shall be removed from the jurisdiction of the city and shall not return thereto while any of such explosives are on board.
(Code 1977, § 13-206)

Secs. 13-227—13-240. Reserved.

DIVISION 8. FIREWORKS*

Sec. 13-241. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Blank guns means any article designed or used for the purpose of producing a visible or an audible effect by combustion, explosion, deflagration or detonation and includes pistols, revolvers, rifles, cannons or guns in which explosives are used, except that the term "blank guns" shall not include toy pistols, toy canes, toy guns or other devices in which paper caps manufactured in accordance with the United States Interstate Commerce Commission regulations for packing and shipping of toy paper caps are used and toy pistol paper caps manufactured as provided therein.

Fireworks means and includes any combustible or explosive composition, or any substance or combination of substances or article prepared for the purpose of producing a visible or an audible effect by combustion, explosion, deflagration or detonation, and includes blank cartidges, toy pistols, toy cannons, toy canes or toy guns in which explosives are used, the type of balloons which require fire underneath to propel them, firecrackers, torpedoes, skyrockets, Roman candles, Daygo bombs, sparklers or other fireworks of like construction and any fireworks containing any explosive or flammable compound, or any tablet or other device containing any explosive substance, except that the term "fireworks" shall not include toy pistols, toy canes, toy guns or other devices in which paper caps manufactured in accordance with the United States Interstate Commerce Commission regulations for packing and shipping of toy paper caps are used and toy pistol paper caps manufactured as provided therein.
(Code 1977, §§ 13-215, 13-217)

Cross reference—Definitions and rules and construction generally, § 1-2.

Sec. 13-242. Transportation.

No person shall carry or transport in the city fireworks containing any explosive except gunpowder. No person shall carry or transport through the streets of the city fireworks exceeding in wholesale market value the sum of ten dollars ($10.00), unless they are securely packed in sparkproof wooden or metal packages, having plainly marked on the outside thereof in large, legible letters, the words "FIREWORKS—EXPLOSIVES."
(Code 1977, § 13-216)

Sec. 13-243. Blank guns; sales and purchases.

The sale to or purchase of blank guns by any person under the age of twenty-one (21) years is prohibited in the city.
(Code 1977, § 13-218)

Sec. 13-244. Storage and sale of consumer fireworks—Permits; revocation of permit; fees.

(a) No person, firm or corporation shall sell or store any Consumer Fireworks, as defined in section 13-241 of the Municipal Code and pursuant to G.S. § 29-357 in a building or a tent without first obtaining a permit from the Fire Marshal. Permits shall be renewed annually.

(b) All applications to sell or store Consumer Fireworks shall comply with the provisions of Section 65.11 as amended of the CT Fire Prevention Code and NFPA 1124, Standard for the Manufacture, Transportation, Storage, and Retail Sales of Fireworks and Pyrotechnic Articles, 2006 Edition.

*__Cross reference—__Fireworks in parks, § 26-39.

State law reference—Fireworks regulations, G.S. § 29-356 et seq.

(c) Prior to issuance of permit, the Fire Marshal shall ascertain that all requirements are met and conduct an inspection.

(d) Upon issuance, the Fire Marshal shall inspect, at any time, the place where consumer fireworks are being sold for compliance with Section 65.11 of the CT Fire Prevention Code.

(e) The Fire Marshal, upon verification that a place where consumer fireworks are being sold, has violations that are contrary to the CT Fire Prevention Code and are found, may revoke the consumer fireworks permit after notice and opportunity for a hearing in accordance with the municipal code and order the consumer fireworks to be removed from City limits forthwith as an abatement of a fire hazard pursuant to G.S. § 29-306.

(f) An annual fee of two hundred fifty dollars ($250.00) shall be assessed for each person, firm, corporation, or place or location of business for the sale and storage of consumer fireworks.
(Ord. No. 11-14, 5-27-14)

Secs. 13-245—13-255. Reserved.

DIVISION 9. FLAMMABLE FINISHES*

Sec. 13-256. Application by spraying except in accordance with division prohibited.

No paint, varnish, lacquer or like finish which is inflammable or explosive shall be applied indoors by spraying, whether by air brush or direct pressure or any other means, except in accordance with the provisions of this division. However, this section shall not be construed to prevent such treatment or painting of buildings or parts thereof if all windows in rooms being treated are left open during such treatment.
(Code 1977, § 13-226)

*__Cross references—__Dangerous conditions, § 13-71 et seq.; flammable liquids, § 13-111; stoves using fuel oil, § 13-151 et seq.; oil-burning equipment, § 13-176 et seq.; gasoline dealers, Ch. 16.

Sec. 13-257. Storage and handling of solvents, etc.

The main supply of solvents, paints, lacquers and other inflammable or explosive mixtures or solutions used in the application of explosive or inflammable finishes by spraying shall be stored and handled outside the building in which such operation is carried on.
(Code 1977, § 13-227)

Sec. 13-258. Building where operations to be conducted.

No explosive or inflammable finish shall be applied by spraying in any building or structure of more than one (1) story in height unless the same is of fireproof or mill construction, as provided in the state building code, or is wholly detached from any other structure and used exclusively for such operation.
(Code 1977, § 13-228)

Sec. 13-259. Booth or spray room—Construction.

No explosive or inflammable finish may be applied by spraying except in a booth or spray room provided with noncombustible partitions. Such booth or spray room shall be constructed of metal with heavy metal frame, and the ceilings and walls shall be as smooth as possible, to promote cleanliness. If such booth or spray room is not provided with a noncombustible floor, the floor shall be protected within the booth and for a reasonable distance outside thereof with zinc or other metal which is nonsparking. All windows shall be glazed with wired glass. Each such booth or spray room shall be equipped with one (1) or more independent exhaust pipes. If fans are inside of booths or pipes, the blades shall be of nonsparking material with ample clearance. Power shall be supplied by outside approved motors or other approved means. Power shall be so arranged as not to be intercepted by fire in the booth or spray room.
(Code 1977, § 13-229)

Sec. 13-260. Same—Electrical appliances.

All electrical appliances used in a booth or spray room shall conform to the provisions of the

National Electrical Code governing such apparatus in hazardous places. Only incandescent or mercury vapor lamps shall be used for lighting and they shall be protected by vaporproof globes or shall be double glazed. No spark-producing cutouts, switches, detachable plugs or portable lamps shall be used.
(Code 1977, § 13-230)

Sec. 13-261. Same—Automatic sprinkler.

Each booth or spray room shall be equipped with one (1) or more approved automatic sprinklers. Such sprinklers may be supplied from the regular sprinkler system, when available, or, in unsprinklered rooms, from the nearest convenient adequate water supply pipe.
(Code 1977, § 13-231)

DIVISION 10. NOVELTY LIGHTERS

Sec. 13-262. Purpose.

It is the purpose of this division to prohibit the selling or distributing of novelty lighters for retail sale in the City of Hartford; the toy-like design, visual effects, sound-making capabilities, flashing lights and overall appearance of novelty lighters pose an immediate danger to children who are attracted to said characteristics which are distinctly associated with novelty lighters.
(Ord. No. 44-11, 9-12-11)

Sec. 13-263. Definitions.

For the purposes of this division, "novelty lighter" shall mean a mechanical or electrical device manufactured for the purpose of producing a flame to light cigarettes, cigars or pipes that may operate on any fuel, including, without limitation, butane, isobutene or liquid fuel, and which, due to the physical or audio features of the device, excluding its capability of producing a flame, would reasonably be expected to cause the lighter to be appealing or attractive to a child under the age of ten (10) including, but not limited to, lighters that resemble a cartoon character, toy, gun, watch, musical instrument, vehicle, animal, beverage, sporting equipment or that is capable of playing musical notes or displaying flashing lights. The term considers the shape of the lighter and ancillary functions of the lighter to be the most important characteristics when determining whether a lighter can be considered a novelty lighter.
(Ord. No. 44-11, 9-12-11)

Sec. 13-264. Exceptions.

For purposes of this division, the definition of "novelty lighter" shall not include:

(a) A lighter manufactured before January 1, 1980 and which is considered to be a collectible item within the collectible trade;

(b) A lighter incapable of being fueled or lacking a device necessary to produce combustion or a flame;

(c) Any mechanical or electrical device primarily used to ignite fuel for fireplaces or for charcoal or gas grills;

(d) A lighter not intended for sale or use in the City of Hartford, to the interstate transportation of a novelty lighter or to the temporary storage of a novelty lighter while in interstate commerce; or

(e) Standard disposable lighters that are printed or decorated, including, without limitation, through the use of a heat shrinkable sleeve, with logos, labels, decals or artwork, but which does not otherwise resemble a novelty lighter.

(Ord. No. 44-11, 9-12-11)

Sec. 13-265. Prohibition.

Whoever manufactures, offers for sale, sells, exchanges, gives away, stores or transports any novelty lighter shall be punished by a fine of not more than one hundred dollars ($100.00) or by imprisonment for not more than thirty (30) days, or both.
(Ord. No. 44-11, 9-12-11)

Sec. 13-266. Enforcement.

This division may be enforced by the Fire Marshal's Office of the Hartford Fire Department, the Hartford Police Department or a municipal code enforcement officer.
(Ord. No. 44-11, 9-12-11)

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Chapter 14

FOOD AND FOOD ESTABLISHMENTS*

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***Cross references—**Operation of bottle clubs, § 4-1; Sunday sales of liquor, § 4-2; fire protective and alarm devices required in public premises, § 13-1; seating in restaurants, nightclubs, etc., § 13-99; regulation of food and ice cream vendors on streets, § 27-121 et seq.

State law reference—Pure food and drugs, G.S. § 19-170 et seq.

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Sec. 14-72. Transportation of meat.
Sec. 14-73. Rules of Director of Health.

ARTICLE I. IN GENERAL*

Sec. 14-1. Purpose.

This article is in aid of enforcement of Section 19-13-B42, Section 19-13-B48, and Section 19-13-B49, inclusive of the Public Health Code of the State of Connecticut and of any amendments thereof hereafter adopted, all of which deal with sanitation of restaurants, food operations and other places and other places preparing and serving food and beverages.
(Ord. No. 05-09, 2-9-09)

Sec. 14-1.5. Authority.

This section is enacted pursuant to the provisions of G.S. § 7-194.

The Director of Health shall be charged with the enforcement of the provisions of this article.
(Ord. No. 05-09, 2-9-09)

Sec. 14-2. Definitions.

As used in this article, the following terms shall have the meaning indicated:

Food establishment means an establishment, sometimes referred to as a food operation, engaged in the retail sale or service or distribution of food, including itinerant vendors who transport food for the purpose of retail sale within the City, temporary food service operations and caterers whose fixed base of operation are located within the City's boundaries.

Foods or *beverages* means any substance, composed of carbohydrates, water, fats and/or proteins, that is either eaten or drunk by any animal, including humans.

Not-for-profit organization is a nonprofit tax exempt organization.

Public event means one (1) to which the general public is invited by advertisement or advertisements circulated or directed to the public at large and where food is served or made available.
(Ord. No. 05-09, 2-9-09; Ord. No. 12-09, 3-23-09; Ord. No. 02-11, 1-10-11)

Sec. 14-3. License—Required.

(a) No person shall operate a food establishment who does not have a valid license issued by the Director of Health. Only a person who complies with the requirements of this section and the Public Health Code of the State of Connecticut shall be entitled to receive or retain such license. Licenses are not transferable and shall be renewed annually. A valid license shall be posted in a conspicuous public location, visible to the patrons of the establishment.

(b) The provisions of this section shall apply to every food establishment engaged in the city in the business of manufacturing for sale or dispensing of food and/or beverages intended for human consumption, and every person operating a hotel, restaurant, store or vehicle for selling or dispensing food and/or beverages to the public.

(c) The provisions of this section shall not apply to fixed and mobile nonresident food establishments and caterers delivering food and/or beverages to private homes in the City of Hartford, provided that they have a valid food service license issued by the Director of Health in the town in which the business is based. The license shall be prominently displayed or produced by the aforementioned fixed and mobile nonresident food establishments and caterers upon request.
(Ord. No. 05-09, 2-9-09)

Sec. 14-4. Application.

(a) Licensing procedure, contents, and exemptions. Every person proposing to operate a food establishment shall make written application on forms provided by the Director of Health. Such application shall include the name and the business and residence address of the applicant, the nature and location by street and number of the business to be carried on and such other information as the Director of Health may deem neces-

*__Editor's note—__Ord. No. 05-09, adopted Feb. 9, 2009, amended Art. I, §§ 14-1—14-19 in its entirety to read as herein set out. Former Art. I, §§ 14-1—14-19, pertained to in general. See the Code Comparative Table for complete derivation.

sary for the enforcement of sanitary regulations in connection with the operation of such business.

(b) The Director of Health shall issue a license to the applicant when the food establishment is found to be in compliance with the requirements of this chapter, the Public Health Code of the State of Connecticut, and all other applicable regulations and policies within the City of Hartford, and said applicant shall not be found to be delinquent with respect to any taxes owed to the City of Hartford.
(Ord. No. 05-09, 2-9-09)

Sec. 14-5. Plans prerequisite.

(a) Plans shall be required when:

(1) Any person proposes to remodel or alter an existing building or portion thereof which is being used or is proposed to be used as a food establishment;

(2) Any person proposes to construct a new building which is to be used in whole or in part as a food establishment;

(3) Any person proposes a menu change resulting in a reclassification of the existing food establishment to a Class III or Class IV as described in section 14-7;

(4) Any person takes over ownership of an existing food establishment;

(5) Any person seeks to reopen an existing food establishment that has been closed for more than thirty-one (31) days;

(6) Any person proposes to be an itinerant vendor as defined in section 27-26 of this Code;

(7) Deemed necessary by the Director or his authorized agent.

(b) Prior to the start of such opening, reopening, remodeling or construction, submit plans therefore in duplicate to the director of health for approval. Such plans shall be drawn to a scale of no less than one-fourth (¼) inch equals one (1) foot. The plans and specifications shall indicate the proposed floor plan or layout, construction materials of work areas and the type and model of proposed equipment. The director of health or his/her authorized agent shall determine compliance with the approved plans, specifications and requirements of the Public Health Code of the State of Connecticut and this chapter. These plans are in addition to those required by the state building code and do not constitute an application for a building permit. Whenever section 14-4 requires as part of the application, plans and specifications, the director of health or his/her agent shall inspect the food establishment prior to its commencing operations. The director of health or his/her authorized agent shall determine compliance with the Public Health Code of the State of Connecticut and the City's ordinance and regulations.

(c) The director of health or his/her agent shall have a minimum of thirty (30) days to complete the plan review process once all necessary documentation is provided by the owner of the food establishment.

d) No application for a license to operate a food establishment will be accepted when construction or remodeling is involved until such plans have been submitted and approved.

(e) The provisions of this section shall apply for all foodservice license classifications regulated in this Chapter by the Department of Health and Human Services.
(Ord. No. 05-09, 2-9-09; Ord. No. 12-09, 3-23-09; Ord. No. 02-11, 1-10-11)

Sec. 14-6. Temporary food establishment licensing: submittal, procedures, and approvals.

(a) Temporary food establishment means a food establishment that operates at a fixed location for a temporary period of time, not to exceed two (2) weeks, in connection with a carnival, circus, public exhibition, festival, celebration, or similar transitory gathering.

(b) Any person required to be licensed for temporary food service under this article shall make application to the department health and human services, environmental health division. The event coordinator or the event operator is the individual required to complete the application.

All applicants shall make the required application at least thirty (30) days prior to the opening event.

(c) Prior to issuing a license, the Director of Health or his/her authorized agent shall inspect the proposed temporary food establishment to determine compliance with the provisions of this section and the Public Health Code of the State of Connecticut.

(d) The Director of Health shall issue a license to the applicant if the inspection reveals that the proposed temporary food establishment complies with the requirements of this section and the Public Health Code of the State of Connecticut.

(e) Temporary licenses shall not exceed a period of five (5) days.

(f) Applicants shall be subject to the fee schedule as outlined in section 14-7 of this chapter and shall not be granted any waiver.
(Ord. No. 05-09, 2-9-09; Ord. No. 12-09, 3-23-09)

Sec. 14-6.1. Catering food establishment licensing; submittal, procedures, and approvals.

Caterer means a person, firm, or corporation who operates or maintains a licensed catering food service within the City of Hartford. A catering food service will mean the sale or distribution of food and drink prepared in bulk at one (1) geographic location for service of individual portions at another location, or the preparation and service of food on public or private premises that are not under the ownership or control of the operator of the service and which operate outside the scope of temporary food service events/special events as defined in Sec. 14-6. A valid license will mean a license issued by the pertinent health regulatory agency having jurisdiction. The food establishment must be operated in conformance with Section 19-13-B49 of the Connecticut Public Health Code.

Reciprocal registration/licensure means any caterer wishing to cater or serve food within the City of Hartford must either (1) be licensed with the City of Hartford; or, if not based within the City of Hartford, (2) hold a valid caterer's registration or license from another local or district health department in the State of Connecticut or from another state within the United States. A copy of this registration or license must be submitted with a temporary food service application as defined in section 14-6 of the Hartford Municipal Code and the appropriate fee before the caterer may operate within the City of Hartford.
(Ord. No. 05-09, 2-9-09; Ord. No. 12-09, 3-23-09; Ord. No. 02-11, 1-10-11)

Sec. 14-6.2. Itinerant food vending.

Itinerant Food Vendors must be operated in conformance with Section 19-13-B48 of the Connecticut Public Health Code. Itinerant Food Vendors must operate from a base of operations or commissary which has been approved by the Department of Health and Human Services during the licensing process.
(Ord. No. 02-11, 1-10-11)

Sec. 14-7. Classification; fees; revocation; nontransferability; penalties.

(a) *Classification.* For purposes of this article, the following classifications of retail food establishments shall be applied:

(1) *Class I* is a food establishment with commercially prepackaged foods and/or hot or cold beverages only. No preparation, cooking or hot holding of potentially hazardous foods is included except that commercially packaged pre-cooked foods may be heated and served in the original package within four (4) hours.

(2) *Class II* is a food service establishment using cold or ready-to-eat commercially processed food requiring no further heat treatment and/or hot or cold beverages. No cooking, heating or hot holding of potentially hazardous foods is included, except that commercially packaged precooked foods may be heated and served in the original package within four (4) hours, and commercially precooked hot dogs, kielbasa and soup may be heated if transferred directly out of the original package and served within four (4) hours.

(3) *Class III* is a food establishment having on the premises exposed potentially haz-

ardous foods that are prepared by hot processes and consumed by the public within four (4) hours of preparation.

(4) *Class IV* is a food establishment having on the premises exposed potentially hazardous foods that are prepared by hot processes and held for more than four (4) hours prior to consumption by the public.

(5) *Caterer* is a food service establishment which meets one (1) of the above listed classifications and provides food services as defined in section 14-6-1.

(b) *Fees.* The following annual fees shall be collected by the department of health for each license or renewal issued for a food establishment:

(1)

Class I	$125.00
Class II	200.00
Class III	300.00
Class IV	400.00
Caterer	200.00
Not-for-profit organization license processing fee	50.00
Itinerant vendor/mobile vendor	500.00

The above fees may be prorated on a quarterly basis. Notwithstanding the above fees, not for profit organizations shall not be subject to any fee for licenses issued hereunder except for other fees and a license processing fee of fifty dollars ($50.00) as set forth herein.

Plan review:

Class I and II	$100.00
Class III and IV	200.00
Lost or replacement of the original food service license fee	25.00
Return check fee	50.00

(2) *Other fees:*

Late fees for lapsed licenses, permits for Class I, II, III, IV, one hundred dollars ($100.00) initially and two hundred dollars ($200.00) each month or portion of a month in arrears thereafter.

Re-inspection fee; as provided for in this article	$100.00.

(c) *Temporary food service event.* All applications shall be subject to the following fee schedule:

Applications received fifteen (15) or more days prior to the day of event:

Processing fee for all temporary food service events except those sponsored by not-for-profit organizations	$75.00
Processing fee for not-for-profit organizations	25.00

Applications received between five (5) through fifteen (15) days prior to the day of event:

All applicants including not-for-profit organizations	125.00

Applications received less than five (5) days prior to the day of event:

All applicants including not-for-profit organizations	150.00

(d) A seasonal food license may issue to a food establishment that operates less than six (6) months per year, operates outside the scope of temporary food service events/special events as defined herein and meets all state and local public health code requirements. Facilities that qualify for a seasonal license are at the discretion of the department of health and human services and shall generally be limited to little league/school snack bars and other similar facilities. Individuals or entities seeking a seasonal food license shall be required to submit an application, subject to plan review and provide other supporting documentation. A fee of two hundred dollars ($200.00) is required per applicant per year except that a fee of fifty dollars ($50.00) per year will be charged to not-for-profit organizations.

(e) *Farmers market license.*

(1) *Definitions:*

Farmers market means, pursuant to G.S. § 22-6r(1), a cooperative or nonprofit enterprise or association that consistently occupies a given site throughout the season, which operates principally as a common marketplace for a group of farmers, at least two (2) of whom are selling Connecticut-grown fresh produce, to sell Connecticut-grown farm products in conformance with the applicable regulations of Connecticut state agencies and where the farm products sold are produced by the participating farmers with the sole intent and purpose of generating a portion of household income.

Season means a one (1) year period commencing from the date of issuance of a food vending license for a farmers market.

(2) Farmers market food vendor licenses shall be issued only to vendors who comply with the regulations set forth in the appropriate sections of Connecticut Public Health Code and are subject to the discretion of the Director of Public Health.

(3) A fee of fifty dollars ($50.00) is required for non-farmer food vendors for each season and a fee of twenty-five dollars ($25.00) is required for non-profit food vendors. Said licenses shall only be issued to vendors operating in compliance with the appropriate sections of Connecticut Public Health Code and are subject to the discretion of the Director of Public Health.

(4) To ensure public safety, farmers providing cold samples shall obtain a license, but said license shall be free of charge provided that such license is obtained concurrently with the initial farmer's license. Should a cold sample license be applied for following the initial license a fee of twenty-five dollars ($25.00) shall be required.

(5) The aforementioned license shall be valid for one (1) season and only be valid at certified Farmers markets, but at any certified Farmers market throughout the City of Hartford. Any food vendor wishing to operate in other locations shall procure the appropriate license for their desired activity.

(f) *Amnesty Program for Certain Late Fees.*

An amnesty program which shall include a waiver of fifty (50%) percent of late fees due for food service establishments who received reinstated food service licenses after January 1, 2008 despite their failure to pay outstanding late fees prior to reinstatement is hereby created.

The amnesty program will require that all amounts due following any waiver shall be paid on or before January 14, 2011 and that the program shall cease to exist on that date.

Any late fees remaining due and outstanding on January 15, 2011 shall not be subject to the waiver described herein and shall be due in full.

(Ord. No. 05-09, 2-9-09; Ord. No. 12-09, 3-23-09; Ord. No. 10-10, 5-10-10; Ord. No. 02-11, 1-10-11)

Sec. 14-8. Nontransferability.

Licenses and renewals issued under this section are not transferable by address, owner or change of classification. Any change of address, owner or classification shall require a new license. Any attempted license transfer shall be deemed void and shall immediately invalidate the license.

(Ord. No. 05-09, 2-9-09; Ord. No. 02-11, 1-10-11)

Sec. 14-9. Penalties.

Any person who violates any of the provisions of this section and/or the Public Health Code of the State of Connecticut shall be guilty of an infraction and upon conviction thereof, shall be punished by a fine of not more than one hundred dollars ($100.00). Each day of the violation thereof shall be deemed a separate offense. If criminal prosecution is the result of noncompliance of any of the provisions of this section, the defendant shall be subject to the City of Hartford costs,

together with reasonable attorney's fees. Any person who operates a food and/or beverage establishment:

(1) Without a valid food license, and/or

(2) While his establishment is tax delinquent, and/or

(3) While failing to remedy a previously cited violation by the time specified, shall be subject to a fine of not more than one hundred dollars ($100.00) or imprisoned not more than thirty (30) days or both. Each day the violation continues shall constitute a separate offense.

(Ord. No. 05-09, 2-9-09)

Sec. 14-10. License expiration.

All licenses shall expire annually on June 30, unless otherwise noted, and be renewed for another year upon application and payment of the annual fee. Licenses received after June 30 shall be subject to late fees as described in subsection 14-7(b)(2).

(Ord. No. 05-09, 2-9-09; Ord. No. 10-10, 5-10-10)

Sec. 14-11. Suspension or revocation.

(a) The director of health may suspend any license to operate a food establishment if the license holder does not comply with the requirements of this chapter, chapter(s) 21, 24, 27 as described herein or the Public Health Code of the State of Connecticut. If the director of health or his/her authorized agent finds unsanitary conditions in the operation of a food establishment which in his/her judgment constitute a substantial hazard to public health, he/she shall immediately notify the license holder or operator in writing, citing such conditions and specifying the corrective action to be taken and the time period within which such action shall be taken. If deemed necessary, he/she will order immediate correction. If the corrections are not made in the stated time, the license shall be suspended. Suspension is effective upon service of a notice as stated in this article. When a license is suspended, food service activities shall immediately cease.

(b) Whenever a license is suspended, the license holder or person in charge may, within forty-eight (48) hours, file a written appeal with the director of health. If no appeal is filed within forty-eight (48) hours, the suspension becomes final and the license is subject to revocation. If an appeal is filed, the director of health or his/her appointed designee shall schedule a hearing within a reasonable time, rendering a decision within ten (10) days. The director of health may, revoke a food service license for serious or repeated violations of any of the requirements of this section or the Public Health Code of the State of Connecticut or for interference with the director of health or his authorized agent in the performance of their duties. Prior to revocation, the director of health shall notify the license holder or person in charge, in writing, of the reason for which the license is subject to revocation and that the license shall be revoked at the end of fourteen (14) days following service of such notice unless an appeal is filed within forty-eight (48) hours, if no appeal is filed within forty-eight (48) hours, the revocation of the license becomes final. If any appeal is filed, the director of health shall thereupon immediately examine the merits of such revocation and may vacate or affirm such revocation.

(c) The director of health may, at any time, suspend any license issued under this chapter whenever the licensee or an officer or partner thereof commits any of the following:

i. Falsification of information provided in an application for a license.

ii. Interference with the department in the performance of its duties.

iii. Serious or repeat violations which remain non-compliant beyond time frames for correction approved, directed, or ordered by the director of health.

iv. A crime leading to conviction in any court of competent jurisdiction of violating any criminal statute of the United States or the state of Connecticut or of any ordinance of the City of Hartford upon the business premises stated in the license or in connection with the business stated in the license or, where the place of business

does not conform to the ordinances of the City of Hartford, provided, the holder shall have the ability to appeal such revocation or suspension in the same manner of an appeal of an order of the director of health.

(Ord. No. 05-09, 2-9-09; Ord. No. 02-11, 1-10-11)

Sec. 14-12. Reapplication for license.

(a) *Suspension.* Whenever a license has been suspended, the holder of the suspended license may make written request for reinstatement of the suspended license with the reinspection fee. Within ten (10) days following receipt of such written request, including a statement signed by the applicant that in his opinion the conditions causing the suspension have been corrected, the Director of Health or his/her authorized agent shall make a reinspection. If the applicant is found to be complying with the requirements of this section and the Public Health Code of the State of Connecticut, the license shall be reinstated.

(b) *Revocation.* Following a revocation, a written application must be made a new license for the food establishment. Upon payment of the annual fee and following a successful reinspection, the license shall be reinstated.

(Ord. No. 05-09, 2-9-09)

Sec. 14-13. Service of notice.

A notice of service as provided for in this article is deemed to be properly served when it is delivered to the license holder or person in charge of the food establishment or when it is sent by registered or certified mail, return receipt requested, to the address of the food establishment shown on the last completed application of the license holder. A copy of any notice shall be filed in the records of the Director of Health.

(Ord. No. 05-09, 2-9-09)

Sec. 14-14. Examination and condemnation of food.

Food establishments may be inspected and food samples therefrom may be analyzed by the Director of Health or his/her authorized agent as often as deemed necessary for enforcement of this section or the Public Health Code of the State of Connecticut. The Director of Health or his/her authorized agent shall notify the owner or person in charge of the food establishment specifying the reasons to place a hold order on any food or beverage believed to be unfit for human consumption. The Director of Health or his/her authorized agent shall tag, label or otherwise identify any food subject to the hold order. No food subject to a hold order shall be used, served or removed from the establishment. The Director of Health shall permit storage of the food under conditions specified in the hold order, unless storage is not possible without risk to the public health. In such a case, an order for destruction will be issued by the Director of Health or his/her agent which shall be accomplished by the food establishment. The hold order shall state that a request for hearing may be filed with the Director of Health within forty-eight (48) hours, if in the event no hearing is requested, the food shall be destroyed. The Director of Health or his/her designee shall hold a hearing, if requested and on the basis of evidence produced at the hearing, the hold order may be vacated or the owner or person in charge of the food may be directed, by order, to denature or destroy such food or bring it into compliance with the provisions of this section or the Public Health Code of the State of Connecticut. The requested hearing must take place within twenty four (24) hours from the issuance of the hold order.

(Ord. No. 05-09, 2-9-09)

Sec. 14-15. Standards for vehicles.

The Director of Health shall establish rules, regulations and standards for the use of any vehicle or the sale of food or drink intended for human consumption.

(Ord. No. 05-09, 2-9-09)

Cross references—Motor vehicles and traffic, Ch. 22; vehicles for hire, Ch. 33.

Sec. 14-16. Protection from contamination.

No person who, either as principal or agent, has charge of or is interested or engaged in the care or custody of any foodstuffs or article mentioned in section 14-3 shall keep, sell, offer for sale, display or transport such foodstuffs or arti-

cles unless the same are protected from dust, dirt, flies, soiled papers, newspapers and any other sort of contamination; provided, however, that fresh fruits and vegetables may be exposed without covering during sale.
(Ord. No. 05-09, 2-9-09)

Sec. 14-17. Unwholesome food prohibited.

No person shall sell or offer for sale or have in his possession with intent to sell for human food in the city, any unwholesome, decayed or stale fruit, vegetables or provisions of any kind whatsoever, or any tainted, diseased or unwholesome meat, fowl or fish or any milk or other liquid used as food or drink by human beings that shall be so contaminated as to be injurious to the public health.
(Ord. No. 05-09, 2-9-09)

State law reference—Adulterated food, G.S. § 29-221.

Sec. 14-18. Sales or displays on sidewalks.

Any food offered for sale, exhibited or in front of the place of business where such food is sold, offered for sale or exhibited, shall be transported, displayed, stored, and served in a manner in keeping with the requirements of Section 19-13-B42 of the Public Health Code for the State of Connecticut and all the requirements set forth within chapter 14 of this Code. Any violation of this section shall be deemed a nuisance.
(Ord. No. 05-09, 2-9-09)

Sec. 14-19. Dressing, cleaning fish in public places.

No fish shall be dressed and cleaned in any public place in the city. Any violation of this section shall be deemed a nuisance.
(Ord. No. 05-09, 2-9-09)

Sec. 14-20. Enforcement.

In addition to other available remedies, enforcement of the provisions of this section may be carried out in accordance with Municipal Code section 14-33.
(Ord. No. 02-11, 1-10-11)

Sec. 14-21. Food establishment inspection grading.

The Director of Health and Human Services shall establish and implement a system for grading and classifying inspection results for food establishments using letters to identify and represent an establishment's degree of compliance with the provisions of this Section, the Public Health Code and other applicable laws that require such establishments to operate in a sanitary manner so as to protect public health. The letter "A" shall be the grade representing the highest degree of compliance with such laws followed by the letter "B". Nothing in this provision shall prohibit the Director of Health and Human Services from any other actions or duties necessary to protect the public health.

(a) *Definitions.*

(1) "Inspection Report" means the Connecticut Department of Public Health Food Service Establishment written report prepared and issued by the Authorized Agent after conducting an inspection of a food establishment to determine compliance with all applicable federal, state and local statutes, orders, ordinances, quarantines, rules, regulations or directives relating to the public health.

(2) "Authorized Agent" means any individual certified by the Connecticut Department of Public Health and/or the Director of Health and Human Services (as applicable) to inspect food service establishments and enforce the provisions of section 19-13-B42 of the Regulations of Connecticut State Agencies under the supervision and/or authority of the Director of Health and Human Services.

(3) "Grading" means the letter grade issued by the Authorized Agent at the conclusion of the routine inspection of a food establishment. The grade shall be based upon the scoring method set forth in the following section resulting from the Inspection

Report and shall reflect the food establishment's degree of compliance with all applicable federal, state and local statutes, orders, ordinances, quarantines, rules, regulations or directives relating to the public health.

(4) "Letter Grade Card" means an eight (8) inch by eleven and one-half (11.5) inch card that shall be provided by the Authorized Agent and posted by the food establishment upon completion of a routine inspection; the card indicates the letter grade of the establishment as determined by the Authorized Agent using the scoring method set forth in the following section.

(b) *Scope and applicability.* This section shall not apply to mobile or itinerant food vending units, temporary food establishments, food establishments operated in or by primary and secondary schools, hospital-operated cafeterias, licensed seasonal vendors, farmers markets, correctional facilities, or charitable organizations, including soup kitchens and other prepared food distribution programs, nor to food service establishments operated by not for profit membership organizations for service to their members only.

(c) *Grading and Letter Grade Card.*

(1) The letter grade shall be based upon the final numerical percentage score set forth in the Inspection Report, as follows:

(a) A grade of "A" shall indicate a final score of ninety (90) percent or higher with no four (4) point demerits as determined by the Authorized Agent;

(b) A grade of "B" shall indicate a final score of less than ninety (90) percent but not less than eighty (80) percent with no four (4) point demerits as determined by the Authorized Agent.

(2) The letter grade card (the "Letter Grade Card") shall be provided by the Department of Health and Human Services.

(3) For any food establishment receiving an inspection score of less than eighty (80) percent or with a four (4) point demerit, the Authorized Agent shall advise the establishment of its inspection grade and the findings upon which it was based. The Authorized Agent shall conduct a subsequent re-inspection in accordance with the Public Health Code. At the conclusion of the re-inspection, the Authorized Agent shall provide the establishment with a letter grade card indicating the inspection grade that the establishment received on that inspection or routine enforcement action if applicable.

(d) *Posting Requirements—Penalty for Non-Compliance-Documents Available for Public Review.*

(1) Upon completion of the routine inspection and issuance of a percentage score, the food establishment shall post the applicable Letter Grade Card so as to be visible to the general public and to patrons entering the establishment. "Clearly visible to the general public and to patrons" shall mean:

(a) Posted in the front window of the establishment within five (5) feet of the front door;

(b) Posted in a display case mounted on the outside front wall of the establishment within five (5) feet of the front door;

(c) Posted on the drive-through menu board of a drive-through establishment, in addition to posting in locations (a) or (b) of this section;

(2) In the event that a food establishment is operated in the same building or space as a separately licensed

or permitted business, or in the event that a food establishment shares a common patron entrance with such a separately licensed or permitted business, such as a shopping mall food court, the Authorized Agent shall post the Letter Grade Card in the initial patron contact area, on the menu board or counter of the establishment, or in a location as determined in the discretion of the Director of Health and Human Services to ensure proper notice to the general public and to patrons.

(3) The Letter Grade Card shall not be defaced, marred, camouflaged, hidden, or removed. It shall be unlawful to operate a food establishment unless the Letter Grade Card is in place as set forth hereunder. Removal of the Letter Grade Card is a violation of this chapter and may result in the suspension or revocation of the license and shall be punishable as specified in Section 14-9, 14-11 and 14-12.

(4) In the event that the Letter Grade Card is stolen or damaged, the food establishment shall notify the Environmental Health Division of the Department of Health and Human Services immediately. A replacement Letter Grade Card will be available within one business day from the date of a request for a twenty-five dollar ($25.00) fee. Failure to request a replacement card within twenty-four (24) hours of the theft of the Letter Grade Card is a violation of this chapter and may result in the suspension or revocation of the food establishment's permit and shall be punishable as specified in Sections 14-9, 14-11 and 14-12.

(5) The Inspection Report upon which the Letter Grade Card is based and all subsequent reports issued by the Authorized Agent shall be maintained at the food establishment and shall be available to the general public and to patrons for review upon request. The food establishment shall keep the Inspection Report until such time as the Authorized Agent completes the next routine inspection of the establishment and issues a new Inspection Report.

(e) *Period of Validity—Authority.* A Letter Grade Card shall remain valid until such time as the Authorized Agent completes the next routine inspection of the establishment and issues a new Letter Grade Card if applicable.

(f) *Letter Grade Card—Right to Appeal.*

(1) Any food establishment wishing to contest the results of an Inspection Report that has led to a Letter Grade Card lower than the establishment believes is warranted may make a written request for re-inspection, within seven (7) calendar days after receipt of the Letter Grade Card, to the Director of Health and Human Services. The written request for re-inspection must show cause why the Letter Grade Card awarded is inappropriate. Failure to request a re-inspection within seven (7) calendar days after receipt of the Letter Grade Card shall be deemed a waiver of the right to re-inspection.

(2) A re-inspection granted under this chapter shall be performed within fifteen (15) calendar days of the receipt of a written request for re-inspection for a fee of one hundred dollars ($100.00).

(3) Re-inspections will not be granted for food establishments receiving an "A" grade, but for which the numerical score on the Food Official Inspection Report is lower than desired:

(a) For example, a food establishment receiving a Letter Grade Card of "A" with a numerical score of ninety-two (92) is not eligible for re-inspection.

(g) *No effect on other enforcement.* Nothing in this section shall affect the Director of Health and Human Services's authority to take any other action necessary to protect the public health or to enforce the provisions of this Code or any other law or rule applicable to operation of a food establishment.

(Ord. No. 37-11, 6-27-11)

Sec. 14-22. Foods containing artificial trans fat.

(a) *Artificial trans fat restricted.* No foods containing artificial trans fat, as defined in this section, shall be stored, distributed, held for service, used in preparation of any menu item or served in any food establishment, as that term is defined in Section 14-2 of this Article, except food that is being served directly to patrons in a manufacturer's original sealed package.

(b) *Definition.* For the purposes of this section, a food shall be deemed to contain artificial trans fat if the food is labeled as, lists as an ingredient, or has vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil. However, a food whose nutrition facts label or other documentation from the manufacturer lists the trans fat content of the food as less than 0.5 grams per serving, shall not be deemed to contain artificial trans fat.

(c) *Labels required.*

(1) *Original labels.* Food establishments shall maintain on site the original labels for all food products:

a. That are, or that contain, fats, oils or shortenings, and

b. That are, when purchased by such food establishments, required by applicable federal and state law to have labels, and

c. That are currently being stored, distributed, held for service, used in preparation of any menu items, or served by the food establishment.

(2) *Documentation instead of labels.* Documentation acceptable to the Director of Health, from the manufacturers of such food products, indicating whether the food products contain vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil, or indicating trans fat content, may be maintained instead of original labels.

(3) *Documentation required when food products are not labeled.* If baked goods, or other food products restricted pursuant to subdivision (a) of this section, that are or that contain fats, oils or shortenings, are not required to be labeled when purchased, food establishments shall obtain and maintain documentation acceptable to the Director of Health, from the manufacturers of the food products, indicating whether the food products contain vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil, or indicating trans fat content.

(d) *Violations and penalties.* Notwithstanding any provisions in this Article to the contrary, the penalties for a violation of this section shall be as follows:

(1) For a first violation, the Director of Health or his authorized agent shall issue a written warning providing notice of the specific violation and the time period within which it shall be corrected.

(2) If the food establishment receiving the written warning fails to correct the violation within the time period specified in the warning, the Director of Health or his authorized agent shall issue a fine of ninety dollars ($90.00). Any continuing violation that is discovered during any subsequent re-inspection shall result in a fine of ninety dollars ($90.00). Each re-inspection at which a violation is discovered shall constitute a separate violation.

(3) A repeated failure to comply with the requirements of this section or a repeated failure to pay any fines issued for violations of this section may result in the suspension by the Director of Health of the license to operate a food establishment. Suspension is effective upon service of a notice as provided for in section 14-13

of this Article. When a license is suspended, food service operations shall immediately cease. Section 14-11 shall control the right to appeal a suspension that has been ordered under this paragraph. Section 14-12 shall control the reapplication for license in connection with a suspension that has been ordered under this paragraph.
(Ord. No. 12-11, 4-25-11)

Sec. 14-23. Establishments based outside city limits.

Food from food establishments outside the jurisdiction of Director of Health of the City of Hartford may be sold within the City of Hartford if such food establishments conform to the provisions of this Article or to substantially equivalent provisions. To determine the extent of compliance with such provisions the Director of Health may accept reports from responsible authorities in other jurisdictions where such food establishments are located.
(Ord. No. 12-11, 4-25-11)

Sec. 14-24. Violations and penalties.

Any person who shall violate any of the provisions of this Article and/or the Public Health Code of the State of Connecticut shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than one hundred dollars ($100.00). In addition thereto, such persons may be enjoined from continuing such violations. Each day upon which such a violation occurs shall constitute a separate violation.
(Ord. No. 12-11, 4-25-11)

Sec. 14-25. Quality Food Operator training and examinations.

The Health and Human Services Department may offer Quality Food Operator training and examinations, in accordance with Connecticut Public Health Code Sections 19-13B-42(S)(4), B48(j)(3), B49(t)(3), in order to make test preparation and exams accessible to Hartford residents and Class III and IV food service establishments, as defined in Section 14-7(a) of this Article. The Department of Health and Human Services may charge a fee of one hundred seventy-five dollars ($175.00) per participant. Such fees shall be deposited in an account set up by the City of Hartford specifically for these fees.
(Ord. No. 12-15, 6-22-15)

Secs. 14-26—14-30. Reserved.

ARTICLE II. MILK AND CREAM*

Secs. 14-31, 14-32. Reserved.

Sec. 14-33. Assistance by police.

It shall be the duty of the department of police to assist the Director of Health, when required so to do, in the performance of the duties prescribed herein, and to report to such department, to any person designated by the Director of Health to receive such reports, any violation of this article or of the general statutes in respect to the handling, transportation or sale of food.
(Ord. No. 11-07, 6-25-07)

Cross reference—Police generally, Ch. 29.

Secs. 14-34—14-38. Reserved.

Sec. 14-39. Record of licenses to be kept.

The Director of Health shall keep a record of all licenses issued under this article, which shall set forth the information contained in the license.
(Ord. No. 11-07, 6-25-07)

Secs. 14-40—14-60. Reserved.

ARTICLE III. MEAT AND MEAT PRODUCTS

Sec. 14-61. Scope of article.

This article shall not apply to cattle, calves, sheep, swine or goats slaughtered under the supervision of the United States Government in

*__Editor's note—__Ord. No. 11-07, adopted June 25, 2007, amended art. II in its entirety to read as herein set out. Former art. II, §§ 14-31—14-43, pertained to similar subject matter, and derived from Code 1977, §§ 14-36—14-48; Ord. No. 15-81, adopted May 11, 1981.

accordance with the regulations relating to the inspection of meats as prescribed by the Department of Agriculture of the United States and bearing the stamp of such inspection, or to any such meats slaughtered under the supervision of and bearing the stamp of an official meat or food inspector of the commissioner of agriculture of the state or of another city or town in the state in which the inspection of meat has been approved by the Director of Health of this city, showing that such meat has been inspected and passed by the meat or food inspector of the commissioner of agriculture of the state or of such other city or town.
(Code 1977, § 14-61)

Sec. 14-62. Appointment of inspectors.

The Director of Health shall appoint such inspectors as may be necessary for the enforcement of the provisions of this article.
(Code 1977, § 14-62)

Cross reference—City officers and employees generally, § 2-331 et seq.

Sec. 14-63. Inspection fees.

(a) Persons operating slaughterhouses, who are furnished inspection services by city inspectors directed toward maintaining adequate sanitation and providing ante-mortem and post-mortem inspection of all animals slaughtered, as required by the general statutes or federal or local regulations, shall pay to the city treasurer fees as herein set forth. Poultry slaughterhouses shall be provided such ante-mortem and post-mortem inspection services when requested, at the same fee scale.

(b) The Director of Health shall designate the number of inspectors necessary for the conduct of an efficient inspection service at each establishment and the fee for such services shall be at the rate of seventy-five dollars ($75.00) per man-week. Such fees shall be paid not later than thirty (30) days after the establishment is billed for such services by the Director of Health.
(Code 1977, § 14-63)

Sec. 14-64. Slaughtering to be supervised.

It shall be unlawful for any person to have, keep, sell or expose for the sale or have in possession with intent to sell, for human food, the flesh of any cattle, calves, sheep, swine or goats, unless the same have been slaughtered under the supervision of the department of health in accordance with the provisions of this article.
(Code 1977, § 14-64)

Sec. 14-65. Inspection required before sale.

It shall be unlawful for any person to sell, have, keep or expose for sale or have in possession with intent to sell, for human food, the flesh of any cattle, calves, sheep, swine or goats, unless there has been placed on each primal part thereof, by or under the personal supervision of an inspector of the department of health a mark, stamp or brand showing that the same has been inspected and passed for food purposes.
(Code 1977, § 14-65)

Sec. 14-66. Unlawful marks, stamps or brands.

It shall be unlawful for any person except inspectors appointed by the Director of Health to

have in his possession, keep or use any mark, stamp or brand provided or used for marking, stamping or branding as inspected and passed, any meat herein required to be so marked, stamped or branded, or any mark, stamp or brand having thereon a device or words similar in character or import to the marks, stamps or brands provided or used for such purposes by the department of health.
(Code 1977, § 14-66)

Sec. 14-67. Inspections in slaughterhouses.

It shall be the duty of the inspectors of the department of health, and they shall have the power, to enter all places in which the slaughtering of animals for food is being carried on, and to make such inspections of the animals therein as the inspectors may deem necessary to determine their fitness for human food.
(Code 1977, § 14-67)

Sec. 14-68. Unlawful removal of meat from slaughterhouse.

It shall be unlawful for any person owning or having charge of any place in the city in which animals are slaughtered for food to permit the removal therefrom of any carcass or part thereof until the same has been inspected and stamped as approved or condemned by an inspector of the department of health. Condemned carcasses or parts shall not be removed from a slaughterhouse until they have been treated, in the presence of the inspector, in such a way as to prevent their future use for human food.
(Code 1977, § 14-68)

Sec. 14-69. Inspection of meat slaughtered outside city limits.

Carcasses of animals slaughtered outside the limits of the city which are to be sold within the city may be offered for inspection on the following conditions: Carcasses presented for inspection must have the head, heart, liver and lungs held by the natural attachments. Such carcasses shall be inspected, and if found to be free from disease and otherwise sound and healthful, and if slaughtered and transported in a sanitary manner, shall be passed and stamped. If found to be diseased, unsound, unwholesome or otherwise unfit for human food, such carcasses shall be condemned for food purposes and destroyed.
(Code 1977, § 14-69)

Sec. 14-70. Sanitary conditions in slaughterhouses outside city.

(a) It shall be the duty of the inspectors of the department of health to visit, from time to time, places in the vicinity of the city where animals are slaughtered and sent to the city for sale, to see whether such places are clean and sanitary. If, in their opinion, conditions are such as to render meat from such places unfit for food, they shall refuse to allow any such meat to be brought into the city.

(b) If the proprietor or person in charge of any such place refuses to allow the inspectors to enter and inspect the premises, the Director of Health shall refuse to allow meat or other food products from such places to be brought into the city.
(Code 1977, § 14-70)

Sec. 14-71. Inspections in food establishments; condemnations.

It shall be the duty of the inspectors of the department of health, and they shall have power to enter any place where the meat or flesh of any animal mentioned in this article, or the products thereof, may be stored, held, kept, exposed or offered for sale, and every establishment where meat is manufactured into articles of food or preserved, cured, canned or otherwise prepared for food, and inspect the same. Whenever such meat or flesh shall, upon inspection and examination, be found not marked, stamped or branded so as to show that the same has been inspected and passed for food purposes under the provisions of this article, the inspectors shall condemn the same and shall order such disposal thereof as will prevent its use as human food.
(Code 1977, § 14-71)

Sec. 14-72. Transportation of meat.

It shall be unlawful for any person to transport or cause to be transported in any vehicle through the streets of the city any meat, unless the same is securely wrapped in paper or a tightly sewed

cloth covering, or unless such vehicle is provided with a tight cover which shall be kept closed at all times during transportation, so as not to expose such meat to dust, dirt, filth or other deleterious substances.
(Code 1977, § 14-72)

Sec. 14-73. Rules of Director of Health.

The Director of Health shall adopt and promulgate such additional rules and regulations as are necessary to carry into effect the provisions of this article. The violation of any such rule or regulation shall be unlawful.
(Code 1977, § 14-73)

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Chapter 15

SOLID WASTE AND WEEDS*

Article I. In General

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*__Editor's note—__Ord. No. 22-17, adopted Oct. 23, 2017, changed the title of Ch. 15 from "Garbage, Refuse and Weeds" to read as herein set out.

ARTICLE I. IN GENERAL*

Sec. 15-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bulky Waste means large or unwieldy portions of the solid waste stream generated by households or commercial establishments, including appliances, tree limbs, tires, furniture, mattresses, box springs, and other items too large to fit in standard collection containers, and those that require special collection or disposal treatment, but shall in no case include any hazardous or toxic waste as defined in G.S. § 22a-115.

Bulky Waste and Recycling Center or *"recycling center"* means the state-permitted Hartford solid waste facility located at 180 Leibert Road, Hartford, Connecticut.

Commercial establishments means any business commercial, industrial, and office operations, as well as institutions, transient housing units and the buildings in which they are located.

Director of the Department of Public Works, "Public Works Director", or "Director" means the Director of the City of Hartford Public Works Department or his/her designee.

Garbage means all solid waste composed of putrescible animal and vegetable wastes resulting from the handling, preparation, cooking, serving and consumption of foods.

Mixed use means any combination of commercial and residential units.

Multi-unit residence means buildings which contain seven (7) or more residential housing units.

Person in control means the owner, lessee, manager, person in control or agent of any premises.

Premises means property which is owned, occupied or controlled by any person, business establishment or any other entity.

Recyclables means solid waste which may be reclaimed and which is considered saleable and/or reusable by the city and/or any private entity. These items include all corrugated cardboard, glass food and beverage containers; metal food and beverage containers; leaves; newspapers; storage batteries; office paper (high-grade white and manila); and waste motor oil. These items are required to be recycled in accordance with the department of public works rules and regulations. Any amendment to the list of items which are required to be recycled will be announced by the department of public works within one hundred eighty (180) days, but not less than ninety (90) days, of the effective date of the amendment.

Refuse means garbage plus rubbish.

Regulated waste means any solid waste which is regulated by the state or the U.S. Environmental Protection Agency, including "special," "regulated" and "hazardous" wastes, as those terms may be defined in the federal, state and city regulations.

Residence means buildings that contain six (6) or fewer residential housing units.

Rubbish means waste materials that ordinarily accumulate in and around a home or business, that are not restricted from acceptance at a waste-to-energy facility by contract with such facility, nor by federal, state, or local laws, rules, or regulations.

Solid waste means unwanted, discarded, or abandoned materials, including solid, liquid, semisolid or contained gaseous material. This is an all-encompassing term, including but not limited to bulky waste, recyclables, refuse, regulated waste, rendering (fats, oils, and grease), yard debris, organic matter and other separately identi-

*__Editor's note—__Ord. No. 22-17, adopted Oct. 23, 2017, repealed the former art. I, §§ 15-1—15-40, and enacted a new art. I as set out herein. The former art. I pertained to similar subject matter and derived from Code 1977, §§ 15-1—15-5, 15-7—15-24, 15-55, 15-56; Ord. No. 17-84, adopted April 23, 1984; Ord. No. 102-89, adopted Oct. 10, 1989; Ord. No. 2-91, adopted Jan. 28, 1991; Ord. No. 28-91, adopted June 10, 1991; Ord. Nos. 7-93, 9-93, adopted March 8, 1993; Ord. No. 26-97, adopted Nov. 24, 1997; Ord. Nos. 10-02, 11-02, 12-02, adopted April 8, 2002; Ord. Nos. 19-05, 20-05, adopted Nov. 28, 2005; Ord. No. 03-06, adopted March 13, 2006; Ord. No. 08-06, adopted April 10, 2006; Ord. No. 13-09, adopted March 23, 2009; Ord. No. 12-10, adopted June 14, 2010; Ord. No. 35-11, adopted June 13, 2011.

fied waste streams. It includes material left for recycling collection, or regulated by the state or the U.S. Environmental Protection Agency, as well as material that is accumulated or stored before being discarded, recycled or treated.

Solid waste collector means any person, firm, or corporation engaged for hire in the business of collecting, or transporting, solid waste from commercial establishments, household or residential sources, or municipal or public sources within the city. When the term "refuse collector" is used on older documents or permits, it shall have the same meaning as "solid waste collector".

Street litter container means any receptacle maintained by the city for the purpose of providing pedestrians with a depository for litter.
(Ord. No. 22-17, 10-23-17; Ord. No. 01-18, 3-12-18)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 15-2. Enforcement.

(a) *Generally.* This chapter shall be enforced by the director of public works or the director of health or both, who may call upon the chief of police and the chief of the fire department for assistance in obtaining compliance with any orders issued by either of them. The director of health may designate the director of licenses and inspections to enforce this chapter in his or her name. The director of public works or the director of health, or both, may refer violations under this chapter to the division of blight remediation for enforcement under chapter 9, article V, of the Hartford Municipal Code.

(b) *Recycling agents.*

(1) The director of public works shall provide the commissioner of the department of energy and environmental protection with the name, address and telephone number of a person to receive information and to respond to questions regarding recycling from the department of environmental protection on behalf of the city.

(2) The director of public works shall designate an agent to receive from collectors of solid waste including recyclables and from operators of resource recovery facilities and solid waste facilities the notices required to be sent to the city pursuant to subsection (c) of this section and the general statutes. The person designated as the city's agent by the director of public works may also serve as an agent for other municipalities.

(c) *Notification when recyclables not separated.* Any collector who has reason to believe that a residence, multi-unit residence, mixed-use property or commercial establishment from which it collects solid waste has failed to separate recyclables from other solid wastes shall notify the designated municipal agent. In accordance with the department of public works rules and regulations, each collector shall provide a warning notice, by tag or other means, to any person suspected by the collector or city of violating separation requirements. Each collector shall also notify the city of the identity of any owner responsible for loads generated on the premises containing significant quantities of recyclable items mixed with solid waste. The city must receive notice on a monthly basis for all buildings that are in violation of this section.
(Ord. No. 22-17, 10-23-17)

Cross reference—Administration generally, Ch. 2.

Sec. 15-3. Disposal and accumulations on premises or public walk.

(a) It shall be unlawful for any person to throw, drop or place any solid waste or litter on any premises in the city whether public or private except in receptacles provided for that purpose. No person in control shall allow such waste material or recyclables to accumulate on his/her premises or in the area abutting his/her premises or in the area abutting his/her premises up to the curbline other than in such receptacles. Such person in control shall keep the public walk abutting on his/her premises clean at all times.

(b) In addition to the requirements of subsection (a), each person in control of premises in the city, occupied wholly or in part by a business establishment, shall cause the public walk abutting on the premises to be swept at the opening and close of each business day and shall cause the sweepings to be picked up. No such sweep-

ings shall be swept onto the street, roadway or gutter, nor shall non-litter material, such as sand be placed in any street litter container
(Ord. No. 22-17, 10-23-17)

Sec. 15-4. Household waste prohibited in street litter containers.

It shall be unlawful for any person to deposit any household or commercial solid waste in any street litter container.
(Ord. No. 22-17, 10-23-17)

Sec. 15-5. Dumping in city or watercourses.

Except as provided in this chapter, it shall be unlawful for any person, either as principal or agent, to dump any solid waste in any vacant lot, the closed city landfill, public parks or in any other place in the city, for the purpose of filling, or otherwise, or into or upon the banks or margin of any watercourse within the boundaries of the city. The penalty after reinspection for continued violation of such provision shall be a fine of two hundred fifty dollars ($250.00). Each day any such violation shall continue, it shall constitute a separate offense. Any commercial establishment found to be in violation of this section shall have any permits, licenses and/or contracts entered into with the city suspended or revoked until the fine has been paid.
(Ord. No. 22-17, 10-23-17)

Sec. 15-6. Garbage disposal and trash compactor units authorized.

Nothing in this chapter shall be construed as forbidding the operation on private premises of any private trash compactor, or any device for grinding garbage and flushing, it into the public sanitary sewer system, provided such devices were designed for such purposes and are in compliance with the rules and regulations of the department of health and do not create a nuisance or fire hazard. Residential household compacted refuse and commercial compacted refuse must be free of recyclable material and may be inspected for such by the director of public works.
(Ord. No. 22-17, 10-23-17)

Sec. 15-7. Regulations, contracts and collections authorized.

(a) The director of public works shall have the authority to, and shall establish rules and regulations covering the storage, collection, conveyance and disposal of solid waste within the city. The director of public works is also authorized to amend rules and regulations concerning the storage, collection, conveyance and disposal of solid waste, including but not limited to regulations concerning scheduling, prohibiting or limiting material types, limiting material quantities and setting fees for collection of materials by the city in order to provide cost-effective service while promoting public health, safety and environmental protection.

(b) The director of public works, in conjunction with the director of health, may, subject to the authority of procurement, arrange for contracts, or otherwise provide for the removal and disposition of solid waste, and require bonds in such form and for such amounts as they may jointly approve for the performance of the provisions of such contracts. All such contracts shall be signed by the mayor. Such contracts when made shall be carried out under the supervision and control of the department of public works, but cognizance shall always be taken of any complaint or request of the department of health. Subject to the terms of each contract, such contracts may be canceled or revoked by the director of public works and the director of health whenever the contractor refuses or neglects to perform any of the terms thereof.

(c) The department of public works shall collect and remove, or cause to be removed under its direction, such solid waste from all residences as provided for in this chapter and such limited quantities of solid waste from multi-unit residences, mixed use properties, and commercial establishments, as provided for in the rules and regulations of such department. Nothing in this section shall establish a right of any multi-unit residence, mixed-use property with seven (7) or more residential units, or any commercial establishment, to receive such service by or through the city, nor shall anything in this section forbid the city from offering such service, including for a fee, from such premises.
(Ord. No. 22-17, 10-23-17)

Sec. 15-8. Separation and recycling required.

Each occupant of a residence, multi-unit residence, or mixed use property, and each person in control of a multi-unit residence, mixed use property, or commercial establishment shall be responsible for separating recyclables from the other solid waste generated on the premises. All individuals, commercial establishments, enti-

ties, and properties shall participate in the recycling program in accordance with department of public works rules and regulations.
(Ord. No. 22-17, 10-23-17)

Section 15-9. Person in control to arrange for collection.

Each person in control of any multi-unit residence, mixed use property, or commercial establishment shall arrange for private collection of solid waste. Separate collections shall be provided for refuse, for recyclables, and for bulky wastes. All collections shall be provided at an appropriate frequency that precludes containers from overflowing with any category of solid waste. It shall be the responsibility of said persons in control to ensure that no loose refuse or recyclables are placed outside of containers because the container(s) are full and have inadequate capacity, and that bulky wastes are either containerized, or otherwise protected from the elements in a fashion that protects public health, safety, the environment, and maintains the marketability of any recyclable item.
(Ord. No. 22-17, 10-23-17)

Section 15-10. Specifications for solid waste containers, and use thereof.

All containers intended to contain any category of solid waste located outside of a building shall conform to the specifications in this section. Unless otherwise specified, all specifications described herein refer to containers for refuse, for recyclables, for bulky wastes, or for rendering, provided by any person for residents and for any occupant of any multi-unit residence, mixed use property, or commercial establishment, regardless of who provided said container. Additional details and exceptions may be provided for in the rules and regulations of the department of public works.

(a) All solid waste containers shall provide for the containment of solid waste in a fashion that protects and promotes public health, safety, and environmental protection. All such containers shall be of durable initial construction such that access by rodents is precluded, and shall have an attached lid that can be fully closed when any material is placed therein.

(b) All solid waste containers shall be maintained to continue to provide for the containment of solid waste in a fashion that protects and promotes public health, safety, and environmental protection. All such containers shall not be allowed to deteriorate to the point that holes occur in the body of the container that will allow access by rodents and shall continue to have an attached lid that can be fully closed when any material is placed therein.

1) Public works rules and regulations shall specify policies for repair and replacement of containers provided by public works, when such containers become damaged.

2) Deteriorated containers and containers without lids will be considered a violation and subject to citation in accordance with Code section 15-21.

(c) All solid waste containers shall be used to provide for the containment of solid waste in a fashion that protects and promotes public health, safety, and environmental protection. All solid waste shall be placed within the appropriate container and lids on all such containers shall be fully closed when any material is placed therein, to prevent access by rodents.

1) Loose solid waste placed outside containers shall be considered a violation for which a property owner is subject to citation in accordance with Code section 15-21.

2) Containers, such as larger commercial dumpsters that have a side access panel, shall be maintained in the closed position any time solid waste is placed within the container.

(d) Notwithstanding the provisions of this section and that of section 15-11, the department of public works is expressly

authorized to establish rules and regulations to design programs to address bulky waste and overflow refuse. Such programs shall continue to promote public health, safety, and environmental protection, but may allow for the use of bags, tying, or other mechanisms not otherwise allowable under this section, for containing solid waste that does not fit in containers for reasons of quantity, size, or shape, and for materials requiring special handling.

(Ord. No. 22-17, 10-23-17)

Sec. 15-11. Containers to be furnished by public works department.

(a) The public works department shall provide refuse containers to each property owner of a building designated as residential use with one (1) to six (6) units at a cost equal to thirty-five dollars ($35.00) and pursuant to the rules and regulations of the department of public works. The refuse containers will be sufficient in size for holding all normal quantities of refuse accumulated between regular collection days, provided that recyclables have been appropriately separated and placed in the provided containers. Homeowners shall contact the department of public works when an initial issue, repair, or replacement of a refuse container is required.

(b) The public works department shall provide recycling containers to each property owner of a building designated as residential use with one (1) to six (6) units pursuant to the rules and regulations of the department of public work. The recycling containers will be sufficient in size and quantity for holding all designated recyclables accumulated between regular collection days. Homeowners shall contact the department of public works when an initial issue, repair, or replacement of a recycling container is required.

(Ord. No. 22-17, 10-23-17)

Sec. 15-12. Containers to be furnished by person in control.

(a) It shall be the duty of each person in control of all multi-unit residences and commercial establishments to provide for and maintain approved containers sufficient in number and size for holding refuse accumulated between regular collections.

(b) It shall also be the duty of each, person in control of a multi-unit residences and commercial establishment to provide separate approved containers sufficient in number and size for holding all recyclables accumulated between regular collections.

(Ord. No. 22-17, 10-23-17)

Sec. 15-13. Time and location for set out of solid waste.

(a) All solid waste shall be set out in some accessible part of the premises for removal. The department of public works may designate the location of such placement.

(b) A drop-off area for recyclables may be established to enable small businesses to jointly sponsor storage containers for their recyclables.

(c) No containers nor bulky wastes shall be placed at curbside prior to 4:00 p.m. on the day before regular collections, whether for collection by the department of public works or a private solid waste hauler.

(Ord. No. 22-17, 10-23-17)

Sec. 15-14. Special preparation of certain wastes.

The following materials shall require special preparation:

(1) *Garbage.* All garbage shall be drained and securely contained to minimize access by vectors.

(2) *Food and beverage containers.* Plastic, metal and glass food and beverage containers shall be drained of excess liquids, cleaned of garbage, and rinsed before being placed in recycling containers.

(3) *Ashes.* All ashes shall be cool and kept dry and stored in a separate, approved container.

(4) *Compost piles.* All compost piles shall be maintained in such a manner as to not constitute a threat to public health or safety.

(Ord. No. 22-17, 10-23-17)

Sec. 15-15. Regulated, hazardous waste.

(a) No regulated, including hazardous, waste will be collected by the department of public works but shall be transported by the owner, responsible person or agent to the municipal disposal area and disposed of as prescribed by the director of public works and the rules and regulations of the state resource recovery authority and the state department of energy and environmental protection.

(b) Radioactive materials, drugs, poisons and like substances shall be disposed of under the supervision of the director of health and the rules and regulations of the state resource recovery authority and the state department of energy and environmental protection.

(Ord. No. 22-17, 10-23-17)

Sec. 15-16. Bulky waste.

(a) The city shall collect up to five (5) bulky waste items up to two (2) times each calendar year at no charge from each occupied unit in a residence. Any additional pick-ups of bulky waste are subject to bulky waste fees as recommended by the department of public works and approved by city council.

(b) City collections described in section 15-16(a) shall be on an appointment basis only. Bulky waste set out for collection without an approved appointment, in excess of the approved quantities, for materials that were not authorized for appointment, by units not eligible for collection, or set out in a manner other than that designated by this chapter or by regulations of the director shall be a violation subject to the penalties set forth in section 15-21 of this chapter.

(Ord. No. 22-17, 10-23-17)

Sec. 15-17. Licenses for landfills and dumping grounds.

The department of licenses and inspections shall, with the approval of the director of health and at his or her discretion, issue and revoke licenses authorizing the dumping of solid waste, ashes, and waste material, except garbage, and other offensive material on premises in the city, subject to the rules and regulations of the department of health as to the time and conditions of use, the materials that may be deposited in a particular location, and the placing and maintaining of signs indicating permitted uses.

(Ord. No. 22-17, 10-23-17)

Sec. 15-18. Maintenance of landfill or dumps.

It shall be the duty of the owner of any dumping ground to keep the grounds in an orderly condition, and when ordered by the director of health, to erect and maintain suitable fences to prevent the use of such place by unauthorized persons, or at times other than those specified in the license.

(Ord. No. 22-17, 10-23-17)

Sec. 15-19. Allowing use of premises as dump.

Except as provided in section 15-18, no owner or occupant in control of any premises in the city shall allow the premises to be used as a place for dumping or depositing solid waste, recyclables, garbage, rubbish, ashes, waste material or any offensive matter.

(Ord. No. 22-17, 10-23-17)

Sec. 15-20. Salvage operations by private operators prohibited.

No salvage operations by private operators will be permitted from solid waste, including recyclables, placed at the curb for collection by the department of public works unless such salvage operation is authorized by the director of public works.

(Ord. No. 22-17, 10-23-17)

Sec. 15-21. Violations and penalties; hearing.

(a) If the director of public works or the director of health, upon inspection of any building, structure or premises observes a violation of this Chapter, the director may:

(1) Refer the violation to the Division of Blight Remediation for enforcement under Chapter 9, Article V, of the Hartford Municipal Code; or

(2) Issue a violation notice ordering the person in control or occupant or person causing or responsible for such violation to correct the violation within a specified reasonable period of time. The notice requirements of this section shall be satisfied upon the notice being left at said premises.

(3) If the violation is not remedied by the specified time period

i. The property owner shall be issued a citation, and

ii. The property owner shall be subject to additional charges, if the City has to pick up and dispose of any solid waste.

(b) A person or entity who is issued a citation shall be subject to a fine of ninety-nine dollars ($99.00), except where a specific penalty is otherwise provided. Each day such violation shall continue shall constitute a separate offense.

(c) Any person or entity issued a citation for violating the provisions of this chapter may within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.

(d) In addition to the above penalty, the sections of this chapter which concern recycling shall also be subject to the following additional fines:

(1) Residences and multi-unit residences that do not have their recyclables separated from their other solid waste will be subject to a penalty not in excess of fifty dollars ($50.00) for the first offense, and ninety-nine dollars ($99.00) for each offense thereafter during a one-year period.

(2) Commercial establishments that do not separate their recyclables from their other solid waste in accordance with state statute will be subject to a penalty of one hundred dollars ($100.00) for the first offense, two hundred dollars ($200.00) for the second offense, and five hundred dollars ($500.00) for each offense thereafter occurring during a one-year period.

(3) Solid waste collectors who dump more than one (1) cubic foot in volume of solid waste at one (1) time in an area not designated for such disposal or who knowingly mix other solid waste with items required to be recycled will be subject to a penalty of ninety-nine dollars ($99.00). Each dumping or mixing shall constitute a separate violation

(4) The city reserves the right to refuse to collect any resident's solid waste, including but not limited to recyclables, garbage, and commercial and industrial waste, where the spirit or letter of this chapter or the regulations enacted hereunder are ignored.

(5) The director of public works shall have the authority to refer all violators of this chapter to the city's hearing officer.

(Ord. No. 22-17, 10-23-17)

Sec. 15-22. Additional code sections.

Tenants, occupants, owners, or other persons in control of any premises should refer to chapter 31, article V of this Code for additional duties regarding removal of snow and ice and chapter 31, article I of this code for additional information regarding removal of unlawful obstruction.
(Ord. No. 22-17, 10-23-17)

Sec. 15-23. Permitting of solid waste collector; registration of vehicles and permanent containers.

(a) *Permit registration authority designated*. The director of public works or the director's designee shall be the permit registration authority for solid waste collectors, vehicles, and permanent containers. The director or the director's designee shall grant a permit within a reasonable time following the filing of a proper permit application and payment of the prescribed fee unless the director of public works or the director's designee finds one (1) or more of the following conditions to prevail:

(b) *Permit required*. Each solid waste collector shall annually, on or before July 1, apply for a permit from the director of public works or the director's designee on such permit registration

application as the director of public works or the director's designee shall prescribe to engage in the business of refuse collection in the city.

(1) The applicant has had a previous suspension or revocation of permits.

(2) The applicant lacks suitable and safe equipment with which to collect solid waste in a safe and nuisance-free manner and in compliance with this article.

(c) *Certificate of insurance*. No such permit shall be issued until the solid waste collector files with the city a certificate of liability insurance demonstrating coverage in the amount of one million dollars ($1,000,000.00) for property damage, one hundred thousand dollars ($100,000.00) per person and three hundred thousand dollars ($300,000.00) per occurrence for liability claims, together with such workers' compensation insurance as provided by state law.

(d) *Permit of vehicle and containers*. Each solid waste collector shall obtain a separate permit for each vehicle he/she operates to transport refuse within the city. Permits shall also be required for all permanent containers used by solid waste collectors in a capacity greater than ten (10) cubic yards. Permits shall not be transferable from vehicle to vehicle or from permanent container to permanent container; provided, however, the director of public works or the director's designee may allow temporary transfer of permits in hardship situations, including but not limited to temporary breakdowns of individually licensed vehicles.

(e) *Permit registration term, fee, and renewals*. All permit registrations shall be issued for a term not to exceed one (1) year and shall be renewable on or before the first day of July of each year. Fees shall not be prorated.

(f) *Applicability/form of registration*. All persons intending to act as solid waste collectors shall apply for registration before the first day of July of each year with the director of public works or the director's designee on registration applications provided. These forms shall require the applicant to furnish all information requested, including, but not limited to:

(1) The name of the business and whether a corporation, partnership or sole proprietorship.

(2) The names of all stockholders (if corporation not publicly held), directors, partners, officers or proprietors of the business.

(3) A listing and description of the vehicles to be used for hauling all types of waste with VIN numbers.

(4) The names and addresses of all customers presently served, if any, within the city.

(5) Estimated tonnage of solid waste expected to be collected each week.

(6) The names of all other communities served by the applicant.

(7) Evidence of insurance in amounts specified under subsection 15-23(c).

(8) Assurance that applicants will abide by Connecticut General Statutes recycling mandates.

(g) A permitted solid waste collector shall update the information required by subsections 15-23 (f)(1)—(8) at least once each year at the time of permit registration renewal.

(1) Once approved, the permit registration shall be effective until the following June 30 and unless properly renewed shall lapse.

(2) The initial permit registration fee program will apply to FY 08-09, retroactive to July 1, 2008 in accordance with established fee schedule, and shall not be prorated.

(3) The permit registration is not transferable and no licensee shall permit another person other than the licensee's own agents and employees, to operate under said license.

(4) Each body of each vehicle used to transport solid waste, whether or not the body is

permanently affixed to the vehicle or removable, shall have a legibly painted or otherwise displayed sign on at least one (1) side, so as to be easily read proclaiming the cubic yard capacity of the body. Each removable body that may be used by the permit shall also have so painted or displayed an identifying number which is to be listed with the city in the same manner as vehicles. No vehicle will be allowed to dispose of solid waste if it does not comply with this section. Any private vehicle used to haul solid waste shall be clearly marked with the business name and address of the solid waste collector.

(5) Re-inspection upon sale or transfer of vehicle during permit registration year. Whenever a duly registered vehicle is sold or transferred from one (1) permitted solid waste collector to another during the permit registration year, the purchaser of such vehicle must provide certification of vehicle inspection by a reputable automotive business with seven (7) days of such transfer date. No additional fee shall be required for the remainder of a permit year following such a transfer.

(6) Display of permit registration. The permit registration issued shall be conspicuously displayed on the left windshield of each vehicle and on each container, or as otherwise may be directed.

(7) Notification required upon sale, transfer of route. When any permitted solid waste collector shall sell or transfer all or part of its route to another permitted solid waste collector the selling solid waste collector shall forthwith give written notice to the director of public works or the director's designee at least seven (7) days before the date of the sale or transfer, stating the name of the buyer or transferee and the intended date of sale.

(8) Permits are not transferable to nonpermitted solid waste collectors. When any permitted solid waste collector shall sell or transfer all or part of its route to a solid waste collector not permitted in the city the selling solid waste collector shall first notify the director of public works or the director's designee, in writing, of the selling solid waste collector's intent to sell, and the proposed transferee shall, at the same time, make application for a permit to operate in the city.

(Ord. No. 22-17, 10-23-17)

Sec. 15-24. Registration fees for solid waste collector vehicles and permanent containers.

(a) *The schedule of fees*. The fees below are to be reviewed annually and updated periodically to reflect market conditions. Fees shall not be prorated.

(1) Gross vehicle weight twelve thousand one (12,001) pounds and above: Two hundred fifty dollars ($250.00) per unit

(2) Gross vehicle weight at or below twelve thousand (12,000) pounds: One hundred twenty-five dollars ($125.00) per unit

(3) Permanent containers ten (10) cubic yards and above: Thirty dollars ($30.00) per unit

(b) *Discount*. Any vehicle or roll-off container garaged in the city paying property tax will benefit from a ten (10) percent discount in fees per unit provided the permit application is accompanied by a copy of proof of paid property taxes

(Ord. No. 22-17, 10-23-17)

Sec. 15-25. Denial, revocation or suspension of permit.

(a) *Generally*. A permit to engage in solid waste collection in the city and to use solid waste facilities provided by the city is a privilege not a right. Failure to comply with the provisions of this article shall be grounds for revocation or suspension of any permit issued under the provisions of this article in addition to any other penalty imposed by law.

(b) *Notice*. Written notice of revocation or suspension shall be sent by certified mail and shall become effective five (5) calendar days after

receipt of such notice (as evidenced by the date of acceptance, refusal or inability to deliver noted on the return receipt) from the department of public works authorized permit registration designee.

(c) *Filing request for review, effect of failure to file*. If a solid waste collector objects to the revocation or suspension, described in paragraph (b) above, he or she may, within the five (5) calendar days of receipt of the notice, file a written request for review with the director of public works. Failure to timely file such request for review shall make action final and binding on the affected solid waste collector.

(d) *Effect of timely filing*. Timely filing of such request for review shall operate as an automatic stay of the revocation or suspension.

(e) *[Permit registration refusal.]* The director of public works may refuse to grant permit registration to any applicant, or may suspend the registration of any registered solid waste collector, if that person:

(1) Has violated or does violate any provision of state statute pertaining to solid waste including recyclables,

(2) Violates the provisions of this article,

(3) Is not insured in accordance with the provisions of this article,

(4) Is otherwise deemed unsuitable as a solid waste collector.

A suspension of registration may not exceed a period of one hundred eighty (180) days for any one (1) violation; provided that repeated or willful violation of this article may result in permanent revocation of registration without right to reapply.
(Ord. No. 22-17, 10-23-17)

Sec. 15-26. Prohibition of unpermitted collectors.

Beginning thirty (30) days after the effective date of this article all persons not properly registered as solid waste collectors and all solid waste collectors whose registrations have been suspended or revoked are prohibited from engaging in collection, hauling, transporting or disposing of solid waste generated within the city.
(Ord. No. 22-17, 10-23-17)

Sec. 15-27. Administration; promulgation of rules and regulations.

Director of public works shall establish administrative procedures associated with the permitting of any solid waste collector engaged in the collect and transport of solid waste in the city. The director of public works may promulgate additional rules concerning collection and disposal procedures from time to time as the director deems proper, but such rules shall not be inconsistent with this article or applicable state statutes.
(Ord. No. 22-17, 10-23-17)

Sec. 15-28. Solid waste collector's responsibilities and obligations.

(a) *Place of delivery*. Each solid waste collector shall deliver all municipal solid waste meeting contractual standards and collected within the territorial limits of the city to the municipally designated facility and pay the disposal charge. All other solid waste shall be delivered to appropriate disposal sites and any applicable charge shall be paid by the solid waste collector.

(b) *Prohibition on delivery*. No permitted solid waste collector shall deliver any solid waste meeting the contractual standard to any place other than the municipally designated facility unless the facility is incapable of accepting such solid waste at the time of delivery, in which event such solid waste shall be delivered to the place designated by the Municipality or as determined by the solid waste collector.

(c) *Construction and maintenance of vehicles and containers*. All vehicles registered to collect and transport solid waste shall be automatic unloading vehicles of watertight construction, but shall be completely enclosed. If any such vehicle shall have a capacity of less than ten (10) cubic yards, it may have an open top, provide that it be covered when it is in motion to prevent the escape of solid waste.

(d) *Spilled solid waste*. Solid waste collectors shall clean solid waste that may spill when in any municipal right of way or roadway when being carried or transferred.

(e) *Noise ordinance*. Solid waste collectors are to abide by municipal noise ordinance, section 23-3 of this Code.
(Ord. No. 22-17, 10-23-17)

Sec. 15-29. Severability.

If any provision of this article or the application thereof shall be held invalid or unenforceable, the remainder of this article, or application of such terms and provision to persons or circumstances other than those to which it is held invalid or unenforceable shall not be affected thereby and each remaining term and provision hereof shall be deemed valid and shall be enforced to the fullest extent permitted by law.
(Ord. No. 22-17, 10-23-17)

Sec. 15-30. Administration.

The provisions of this article shall be in addition to and not in derogation of any and all provisions of the Connecticut General Statutes, the Municipal Code of Hartford, and other applicable regulations or ordinances.
(Ord. No. 22-17, 10-23-17)

Sec. 15-31. Bulky waste and recycling center.

(a) The department of public works will recommend fees for the bulky waste and recycling transfer center on an annual basis. Initial fees are as follows:

(1) *Resident permit fee:* Ten dollars ($10.00) for initial four (4) visits, additional visits ten dollars ($10.00) each up to ten (10) visits.

(2) *City small businesses:* Fifty dollars ($50.00) for a permit plus eighty-five dollars ($85.00) per ton tip fee with a tonnage cap to be established by the director of public works.

(3) *Bulky waste tip fee:* Eighty-five dollars ($85.00) per ton.

(4) *Metal recycling:* Market pricing via municipal bid.

(b) The director of public works shall establish all transfer station operations and use procedures including limitations on tonnage delivered by resident and business users and pricing for recyclables commodities through establishment of regulations that comply with the Connecticut Department of Energy & Environmental Protection permitting regulations.
(Ord. No. 22-17, 10-23-17)

Sec. 15-32. Ordinance to create and become a member of the Central Connecticut Solid Waste Authority.

a. *Statement of Purpose.* Pursuant to Section 7-273aa of the Connecticut General Statutes Annotated, which provides that any two or more Connecticut municipalities may, by concurrent ordinances of their legislative bodies, create a regional solid waste authority under the provisions of Sections 7-273aa to 7-273oo, inclusive ("Chapter 103b"), as amended from time to time, to jointly manage solid waste and recycling services on behalf of its members, the purpose of this section is to create such a regional authority to be known as the Central Connecticut Solid Waste Authority ("CCSWA"). Upon adoption of this section by two (2) or more municipalities, CCSWA shall be created.

b. *Creation of the Regional Solid Waste Authority.* CCSWA is hereby created as a regional authority under the provisions of Chapter 103b and shall have all the rights, powers, duties and obligations of a regional authority pursuant to Chapter 103b and Chapters 446d and 446e of the Connecticut General Statutes Annotated, as amended from time to time.

c. *Designation of Regional Solid Waste Authority.* The City of Hartford (the "Municipality") hereby designates CCSWA as its regional solid waste authority, including its regional resource recovery authority, and adopts the provisions of Chapter 103b in connection with this election to become a member of CCSWA; provided, however, that this designation and membership election shall not constitute a commitment of the

Municipality's solid waste, food waste/organics, and/or recycling streams, and provided further that the Municipality agrees that it shall take no action, now or in the future, contrary to its currently existing legal obligations and commitments, including, without limitation, making any pledge of its municipal solid waste, food waste/organics, and/or recycling streams to a disposal, diversion, or recycling option chosen through CCSWA which has an effective date commencing prior to the expiration date of any currently existing waste stream commitment to another disposal, diversion, or recycling arrangement. By adopting the ordinance from which this section derives, the Municipality shall not be obligated now or in the future to make any such commitment of its solid waste, food waste/organics, and/or recycling streams, or to commit any funding toward CCSWA, without further express authorization by its legislative body.

d. *Purpose of the Authority.* The purpose of CCSWA shall be to collaboratively explore, coordinate, and implement solid waste, food waste/organics, and recycling disposal, diversion, and management, including education and outreach, programs, services, funding opportunities and related activities on behalf of its municipal members in conjunction with CTDEEP, CCSMM, and other public/private stakeholders.

e. *Principal Address of the Authority.* The principal address of CCSWA shall be the principal place of business of the Capitol Region Council of Governments.

f. *Members of the Authority.* The members of CCSWA shall be the municipalities, including each Municipality which adopts this Ordinance. Each member municipality shall be assigned to one (1) of the sub-regions of CCSWA: (1) the Northwest Sub-Region, (2) the Naugatuck Valley Sub-Region, (3) the Greater Capitol Sub-Region, (4) the Shoreline Sub-Region, or (5) other sub-regions as may be added or amended from time to time.

g. *Voting System for Meetings of the Authority's Full Membership.* The number of votes to be cast by each municipal member of CCSWA at any meeting of the Authority's full membership shall be determined in accordance with the current CCSWA Bylaws.

h. *Appointment, Removal, and Term of Office of a Municipal Member Representative.* Each municipal member shall appoint one (1) representative to CCSWA, which shall be the current chief elected official of the municipality or that official's designee(s). Such representative(s) shall exercise the voting powers established for that municipal member as set forth in this Ordinance and in the CCSWA By-Laws, as may be amended from time to time. As long as the method of appointment and removal and the term of office of each municipal member representative shall be consistent with the first sentence of this section, the details of such appointment, removal, and term of office shall be as determined by the appointing municipality.

i. *Annual Meeting and Bylaws of the Authority.* There shall be at least one (1) Annual Meeting of all municipal members of CCSWA, to elect the members of the Executive Committee and enact such other business as shall be deemed advisable at such meeting, all as provided in the CCSWA By-Laws to be adopted after its formation. It shall require the affirmative vote of a majority of all CCSWA municipal members to enact the authority By-Laws or adopt any amendments thereto, such vote to take place at a duly called meeting of the full membership of CCSWA.

j. *Prohibition Against Member Monetary Compensation.* The members and member representatives of CCSWA shall receive no monetary compensation solely for their service as members and member representatives of CCSWA.

k. *Executive Committee of the Authority.* The full membership of CCSWA shall elect an Executive Committee to manage the operations of CCSWA; provided, however, that the specific division of responsibilities for such management between the Executive Committee, the full membership of CCSWA and any other body or officer of CCSWA shall be consistent with the CCSWA By-Laws, as adopted and/or amended from time to time. Each member of the Executive Committee shall have one (1) vote, consistent

with the Bylaws and by this Ordinance for meetings of the authority's full membership. The members of the Executive Committee shall constitute an odd number and shall be elected consistent with the provisions of the CCSWA Bylaws, as amended from time to time.
(Ord. No. 22-17, 10-23-17; Ord. of 3-10-25)

Sec. 15-33. Appointment, removal and term of office of a municipal member representative.

(a) Each municipal member shall appoint one (1) representative to CCSWA, who shall be the chief elected official of the municipality, or that official's designee, and that representative shall exercise the voting powers established for that municipal member as set forth in sections 15-32 through 15-34. The method of appointment and removal and the term of office of each municipal member representative shall be as determined by the appointing municipality; provided, however, that not more than one-half (½) of the terms of all such municipal representatives shall expire within any one (1) fiscal year.

(b) Annual meeting and by-laws of the authority. There shall be at least one (1) annual meeting of all municipal members of CCSWA, to elect the members of the Executive Committee and to enact such other business as shall be deemed advisable at such meeting, all as provided in the by-laws of CCSWA to be adopted after its formation. It shall require the affirmative vote of two-thirds (⅔) of the collective voting power present at a duly-called meeting of the authority's full membership to enact the by-laws or adopt any amendments thereto.

(c) Prohibition against monetary compensation. The members and member representatives of CCSWA shall receive no monetary compensation for their service as members and member representatives of CCSWA; provided, however, that the ability of CCSWA to pay host community compensation to municipal members which agree to host solid waste facilities within their municipal borders shall not be affected by this prohibition
(Ord. No. 22-17, 10-23-17)

Sec. 15-34. Executive committee of the authority.

The full membership of CCSWA shall elect an executive committee to manage the operations of CCSWA, provided, however, that the specific division of responsibilities for such management between the executive committee, the full membership of CCSWA and any other body or officer of CCSWA shall be consistent with the by-laws of CCSWA to be adopted after its formation. Each member of the executive committee shall have one (1) vote, without regard to the voting system established by subsection 15-32(g) of this article for meetings of the authority's full membership. The members of such executive committee shall constitute an odd number, shall include at least one (1) representative of each of the five (5) voting tiers established pursuant to subsection 15-32(g) of this article for meetings of the authority's full membership, and shall also be determined by considerations of geographical representation, based on the four (4) sub-regions established under subsection 15-32(f) of this article. All such matters and the terms of office and appointment of such executive committee members and other matters pertaining thereto to be specifically determined in a manner consistent with the by-laws of CCSWA to be adopted after its formation.
(Ord. No. 22-17, 10-23-17)

Secs. 15-35—15-40. Reserved.

ARTICLE II. RESERVED*

Secs. 15-41—15-60. Reserved.

ARTICLE III. WEEDS AND VEGETATION

Sec. 15-61. Growths prohibited generally.

It shall be unlawful for any person to allow grass to grow more than one (1) foot in height, or

*__Editor's note—__Article II, §§ 15-41—15-47, regulating private collection and disposal, was repealed by Ord. No. 2-91, adopted Jan. 28, 1991. The article was derived from Code 1977, §§ 15-37—15-43; Ord. No. 15-79, adopted Apr. 9, 1979; Ord. No. 16-79, adopted Apr. 9, 1979; and Ord. No. 11-80, adopted June 3, 1980.

to allow any weeds or similar growth to grow more than one (1) foot in height, or to allow any weed to other plant which may, in the opinion of the director of health, cause hay fever or similar diseases, to grow, or to allow any wild and untrimmed bushes to grow or remain on any land fronting on a macadamized or paved street in the city, or on any interior lot bounded on three (3) or more sides by land fronting on any such street.
(Code 1977, § 15-55)

Sec. 15-62. Poison ivy and poison sumac.

It shall be unlawful to allow any poison ivy or poison sumac to grow or remain on any premises in the city within twenty-five (25) feet of a street line or to grow or remain within twenty-five (25) feet of adjoining property, except with the written consent of the owner of the adjoining property.
(Code 1977, § 15-56)

Cross reference—Similar provisions, § 18-149.

Chapter 16

GASOLINE DEALERS*

Sec. 16-1.	Standard measures for testing automatic measuring devices required.
Sec. 16-2.	Daily tests of automatic measuring devices to be made.
Sec. 16-3.	Price signs.
Sec. 16-4.	Enforcement of sections 16-5 through 16-7.
Sec. 16-5.	Pumps and similar appliances—Declared to be structures; approval required.
Sec. 16-6.	Same—Location.
Sec. 16-7.	Dispensing gasoline, etc., on, over or under street or sidewalk prohibited.
Sec. 16-8.	Sale of gasoline for illegal purposes.

*__Cross references—__Flammable liquids, § 13-111 et seq.; stoves using fuel oil, § 13-151 et seq.; oil-burning equipment, § 13-176 et seq.; flammable finishes, § 13-256 et seq.; licenses and permits generally, Ch. 21.

Sec. 16-1. Standard measures for testing automatic measuring devices required.

Every person using a gasoline pump or other automatic liquid measuring device for the sale of gasoline and other volatile inflammable fluids shall provide himself with proper standard measures, duly sealed by the sealer of weights and measures.
(Code 1977, § 16-1)

Cross reference—Weights and measures generally, Ch. 34.

Sec. 16-2. Daily tests of automatic measuring devices to be made.

Tests of each pump or other automatic measuring device for the sale of gasoline or other volatile inflammable fluids shall be made by the seller daily before dispensing fluids for sale therefrom.
(Code 1977, § 16-2)

Sec. 16-3. Price signs.

Every retail dealer in gasoline shall conspicuously mark each of his pumps and other dispensing devices with the price of the motor fuel dispensed therefrom.
(Code 1977, § 16-3)

Sec. 16-4. Enforcement of sections 16-5 through 16-7.

The director of public works and the director of the department of licenses and inspections shall be charged with the enforcement of the provisions of sections 16-5 through 16-7.
(Code 1977, § 16-4)

Sec. 16-5. Pumps and similar appliances—Declared to be structures; approval required.

Gasoline pumps, oil pumps and other appliances for the sale or supply of gasoline or other volatile inflammable fluids or motor oil or other lubricants, are declared to be structures. No such pump or other appliance shall be installed unless the location of such pump or other appliance and the material to be used in its construction have been approved by the chief inspector of licenses and inspections.
(Code 1977, § 16-5)

Sec. 16-6. Same—Location.

No gasoline pump, oil pump or other appliance for the sale or supply of gasoline or other volatile inflammable fluid or motor oil or other lubricant, shall be located within the limits of any street in the city or located in front of any established building line. On streets where a veranda line not coincident with the building line has been established, such pumps and other appliances may be located in front of the building line but not in front of the veranda line.
(Code 1977, § 16-6)

Sec. 16-7. Dispensing gasoline, etc., on, over or under street or sidewalk prohibited.

No gasoline or other volatile inflammable fluid or motor oil or other lubricant shall be dispensed from any gasoline pump, oil pump or other appliance across, over or under any sidewalk or in, upon or over any part of any street in the city. The provisions of this section shall not apply to the dispensing of fuel oil for domestic heating.
(Code 1977, § 16-7)

Sec. 16-8. Sale of gasoline for illegal purposes.

(a) No retail dealer of gasoline shall sell, offer for sale, or attempt to sell, any article or product represented as gasoline for use in an all-terrain vehicle or mini-cycle as defined in section 22-119 of the Municipal Code, unless that vehicle is conveyed to and from the retailer's premises by a registered motor vehicle, as defined in G.S. § 14-1, and no individual shall purchase or attempt to purchase gasoline for this purpose.

(b) Signs with the words "FUELING OF UNAUTHORIZED VEHICLES PROHIBITED" in English and "PROHIBIDO DESPACHAR GASOLINA A VEHICULOS NO AUTORIZADOS" in Spanish at least one (1) inch in height with a contrasting margin shall be posted at all

dispensing locations. The location of warning signs shall be based on local conditions but shall be visible and legible from all gas pumps.

(c) Section 16-8 shall be enforced by the Hartford Police Department.

(d) An individual or retail dealer of gasoline who violates any provision of subsections (a) or (b) shall be summoned or brought to Community Court pursuant to G.S. § 51-181c. A person who is summoned or brought before the Community Court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The Superior Court Judge assigned to the Community Court may impose a penalty of community service and a fine up to ninety-nine dollars ($99.00) upon any person who is convicted of violating any provision of this chapter.
(Ord. No. 16-15, 9-14-15)

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Chapter 17

HEALTH AND SANITATION*

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***Charter reference—**Health generally, Ch. XIV, §§ 1, 2.

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State law reference—Authority to provide for public health, G.S. § 7-194(44).

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ARTICLE I. IN GENERAL

Sec. 17-1. Composition of department.

The Department of Health shall be under the supervision of the Director of Health and shall comprise the following divisions:

Administration;

Vital records and public health statistics;

Employee health services;

Health education;

Communicable diseases;

Tuberculosis control;

Laboratory;

Food and sanitation;

Maternal and child hygiene;

Services for the aging;

Home care;

Mental retardation.

(Code 1977, § 17-1; Ord. No. 14-80, 8-12-80)

Cross reference—City departments generally, § 2-81 et seq.

Sec. 17-2. Employees of department.

There shall be such employees in the Department of Health as may be necessary to perform the duties of such department.
(Code 1977, § 17-2)

Sec. 17-3. Manure and compost heaps.

(a) Composting of compostable material, provided that the composting operation does not attract rodents or other vectors and does not create a nuisance, as defined by section 24-1, is permitted.

(b) In the case of composting by a non-owner occupant, the occupant shall obtain the prior written permission of the owner. Such written proof shall be made available upon request by the Department of Health and Human Services.

(c) In the case of a community garden, it shall be the responsibility of the managing organization of the garden to ensure that a nuisance is not created. A community garden is defined as a shared public plot for the cultivation of fruits, vegetables, decorative flowers and other plants wherein the gardeners may or may not be owners of the land.

(d) Printed examples of encouraged methods of composting shall be kept on file at the Environmental Health Division of the Health and Human Services Department.
(Code 1977, § 17-3; Ord. No. 29-09, 7-13-09)

Sec. 17-4. Discharge of pollutants, contaminants, etc.; penalty.

It shall be unlawful for any person to directly or indirectly cause pollution and contamination of any land or waters of the city through the discharge, spillage, seepage, filtration or otherwise of oil or any petroleum or chemical liquid or product which pollution or contamination will result in either damages to the environment or containment and removal costs. Each day's failure to correct such pollution or contamination shall constitute a separate offense.

A person who violates any provision of this section, shall be summoned or brought to community court pursuant to P.A. 97-199. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence of up to twenty-five (25) days to any person who is convicted of violating any provision of this section.
(Code 1977, § 24-20; Ord. No. 27-97, 11-24-97)

Sec. 17-5. Public pools.

(a) *Definitions.*

Pool operator shall be a person at least eighteen (18) years of age who is responsible for the daily operation of a public pool and who shall be held responsible for compliance with the provisions of the Public Health Code of the State of Connecticut and all other applicable rules and policies of the City of Hartford.

Public pool is an artificial basin as defined in Section 19-13-B33b of the Public Health Code of the State of Connecticut.
(Ord. No. 08-07, 6-11-07)

Sec. 17-6. Operation of public pools.

(a) No person shall operate, maintain or permit the operation of any public pool in the City of Hartford without having a permit from the Director of Health. Any person desiring to operate a public pool in the City of Hartford shall at least ten (10) days before the opening date, make application for such a permit on the forms provided by the Director of Health. Such application shall include the name and address of the pool, the name and mailing address of the owner(s) of the pool including the names and residence of the corporate officers if applicable. The applicant shall also provide the name and current contact information of the pool operator who shall be legally responsible for the daily operation of the pool and for compliance with all applicable codes and ordinances, and such other information as shall be deemed necessary by the Director of Health. The application shall be accompanied by the annual permit fee. Public pools operated by schools, government organizations or not for profit organizations must obtain a permit, but shall be exempt from the permit fee.

(b) Prior to issuance of the final approval for a permit, the Director of Health, the Director's authorized agent, shall inspect the pool to determine compliance with the provisions of the Public Health Code of the State of Connecticut and any other applicable statues, ordinances, or rules and regulations.

(c) The Director of Health shall issue a permit to the applicant if the inspection reveals that the pool meets the requirements of this section and the Public Health Code.

(1) Permits shall be renewed annually and shall be valid from the date they are issued until April 30 unless revoked by the Director of Health, or until such time as the pool changes ownership, closes or goes out of business.

(2) Permits shall not be transferable. The valid permit shall be posted in a location easily observed by patrons.

(3) Each pool at a single location, which has its own recirculation and water treatment system, shall be deemed to be a separate pool and shall be required to have a separate permit.

(d) *Fees.* The following fees shall be collected by the Department of Health and Human Services for each permit or renewal issued for a public pool and whirlpool:

Public swimming pools permit . . .	$200.00
Whirlpool permit	100.00
Environmental safety plan review/ preoperational approval	100.00
Late fees for lapsed permits	
Permits for all public swimming pools and whirlpools	100.00 and each day thereafter, $10.00 per day

(e) *Supervision of public pools.* Every person in the employ of or under the immediate supervision of a pool shall be held responsible for compliance with all provisions and regulations relating to equipment, pool operation, maintenance, testing and safety of bathers. The operator shall be competent in the operation of the pool and in pool water chemistry and pool testing; competency may be demonstrated by the successful completion of a written exam administered by the environmental health division or other training acceptable to the Director of Health. Information on how to contact the pool operator shall be posted at the pool. The name(s) of the pool operator(s) shall be submitted to the Director of Health at the time of application for a pool permit and shall be kept updated whenever there is a change in personnel.
(Ord. No. 08-07, 6-11-07; Ord. No. 14-09, 3-23-09)

Secs. 17-7—17-20. Reserved.

ARTICLE II. FUMIGATION*

Sec. 17-21. Scope.

This article shall not apply to fumigation of greenhouses or mushroom houses or to horticultural and farm fumigations or the control of burrowing animals outside of buildings.
(Code 1977, § 17-16)

Sec. 17-22. Defined.

For the purpose of this article, the word "fumigation" means any process or procedure used for the purpose of destroying or controlling vermin, rodents, insects, fungi, germs or other similar pests, which depends upon and involves the liberation, generation or production of any gas, fume or vapor, or any combination of gases, fumes or vapors, which, when used in such a process, is lethal, poisonous, explosive, dangerous or otherwise harmful to human beings.
(Code 1977, § 17-15)

Cross reference—Definitions and rules of construction generally, § 1-2.

*__State law reference—__Pesticide control, G.S. § 19-300a.

Sec. 17-23. License—Required.

No person shall use or cause to be used any substance for the purpose of fumigating any building, vessel, special room, vault, tank or other enclosed space in the city without first obtaining a license for such purpose issued by the bureau of licenses and inspections and approved by the director of health.
(Code 1977, § 17-17)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 17-24. Same—Classes; scope.

There shall be two (2) classes of licenses. The first shall permit the holder as master fumigator to engage in the business of fumigation as well as in its performance, and the second shall permit the holder as assistant fumigator to perform or engage in fumigations only as an employee of the holder of a master fumigator's license.
(Code 1977, § 17-18)

Sec. 17-25. Same—Fees; expiration; renewal.

The annual fee for a master fumigator's license shall be five dollars ($5.00) and for an assistant fumigator's license two dollars ($2.00). All licenses shall expire on June thirtieth following their issuance and may be renewed from year to year upon the payment of the required license fee.
(Code 1977, § 17-19)

Sec. 17-26. Rules and regulations authorized.

The director of health may make such rules and regulations concerning the conduct of the business licensed under this article as are necessary in his opinion for the protection of human life. The violation of any such rule or regulation shall be unlawful.
(Code 1977, § 17-20)

Secs. 17-27—17-40. Reserved.

ARTICLE III. TATTOOING AND BODY PIERCING

Sec. 17-41. Purpose.

To regulate the provision of body arts; including but not limited to body piercing and tattooing services in the city so as to ensure the safety of these procedures and the cleanliness of the facilities in which they are provided.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-42. Definitions.

The following definitions apply to terms used throughout this document:

Anesthetics means any federally controlled substances used to inhibit pain response whether delivered topically, orally, parenterally, or by inhalation.

Antibacterial solution means any liquid used to retard the growth of bacteria which is approved for application to human skin and is so labeled.

Antiseptic means a substance which inhibits the growth of microorganisms but does not necessarily kill them.

Approved means acceptable to the department of health or its authorized agents.

Aseptic technique means the use of a procedure to minimize or eliminate exposure of surfaces to contaminating agents.

Autoclave means a device which automatically achieves and maintains time, temperature and pressure requirements for sterilization.

Biohazardous waste means waste products, including sharps, regulated because of the presence of blood or other potentially infectious materials.

Blood means human blood, human blood components, and products made from human blood.

Blood and body fluid precautions means a method of infection control in which all human fluids are treated as if infectious for Human Immunodeficiency Virus (HIV), hepatitis, or other bloodborne pathogens.

Bloodborne pathogens means pathogenic microorganisms present in human blood which can cause disease in humans. These pathogens include but are not limited to hepatitis viruses and Human Immunodeficiency Virus (HIV).

Body arts means those services which include but are not limited to tattooing or piercing of the

human body intended to alter permanently the human body for nonmedical reasons. "Body arts," for the purposes of this Code, does not include the piercing of the lobe and/or outer perimeter of the ear, excluding the tragus, when performed with a mechanical device which utilizes pre-sterilized earrings in a single-unit, single-use cartridge system or is a disposable device.

Body piercing means the piercing of the human body by someone other than a physician, dentist or doctor of osteopathy, who inserts an object into the body for nonmedical purposes. "Body piercing," for the purposes of this Code, does not include the piercing of the lobe and/or outer perimeter of the ear, excluding the tragus, when performed with a mechanical device which utilizes pre-sterilized earrings in a single-unit, single-use cartridge system or is a disposable device.

Chemical detection markers means any detection device placed on an item prior to sterilization which indicates that the object has been exposed to the steam sterilization process.

Client means any person who presents himself to a body arts facility for the performance of a body arts procedure.

Contaminated means the presence or anticipated presence of blood or other potentially infectious materials on a surface or an object.

Critical items means those aspects of a procedure which, if violated, constitute an imminent hazard to health and safety.

Critical violations means one (1) or more of the following findings:

(1) Autoclave not in proper working order or in proper use.

(2) Lack of a monthly spore test properly recorded.

(3) Nondisposable instruments and equipment improperly sterilized or stored.

(4) Reuse of single use articles.

(5) Improper hazardous waste disposal methods.

(6) Improper operator scrub technique before and after a procedure.

(7) Improper glove technique during a procedure.

(8) No hepatitis vaccination program in place.

Decontamination means the use of chemical or physical means to remove pathogens on a surface so that the surface is incapable of transmitting infectious materials.

Department means the City of Hartford Health Department or its authorized agents.

Disinfectant means a solution intended to destroy infectious agents on clean inanimate surfaces.

Ear piercing instrument means a mechanical device which pierces the lobe and/or outer perimeter of the ear, excluding the tragus, utilizing pre-sterilized earrings in a single-unit, single-use cartridge system or is a disposable device.

Easily cleanable means that surfaces are readily accessible and so fabricated that residue may be easily removed by simple cleaning methods.

Exposure incident means a person's direct contact with human blood, human fluids, or other potentially infectious materials.

Extensively remodeled means an alteration of a work space which results in an increase or decrease of floor space, or of wall location, or of changes to existing equipment, or addition of new equipment used in the provision of body arts procedures.

Facility means the physical location of a tattooing or body piercing establishment.

Germicide means an agent that kills pathogenic microorganisms and is so labeled.

Handwashing facilities means a facility which provides an adequate supply of potable hot and cold water, liquid soap or other antibacterial solution, single use towels, and an adequate container to dispose of waste from washing.

Health officer means the director of health or an authorized agent.

Imminent health hazard means any condition or practice which is very likely to result in injury or loss of life.

Infection means the pathological response of the body to an invasion by a pathogenic agent which results in injury to the body. The five (5) classic signs of infection include pain, redness, swelling, heat production, and dysfunction.

Infectious waste means biohazardous waste or regulated waste.

Inflammation means the normal healing response of the body to insult or injury. Inflammation may be characterized by pain, redness, swelling, heat production, or dysfunction.

Law means any provision of the state or municipal codes controlling a procedure or a facility.

License means to authorize any individual who satisfies the department's stated requirements to practice one (1) or more of the body arts.

Microbiological monitoring means the use of a standard spore, Bacillus stearothermophilus, to monitor the effectiveness of the sterilization process.

Occupational exposure means the same as exposure incident as defined above.

Parenteral means piercing skin or mucous membranes.

Permit means to authorize any facility which satisfies the department's stated requirements to be open for the conduct of the business of the body arts.

Personnel means any persons employed or working in a body arts establishment.

Personal protective equipment means specialized clothing or equipment worn by an employee to protect against a hazard. General clothing not specifically designed to protect against a hazard is not considered protective equipment.

Piercing means body piercing as defined above.

Piercing artist means any individual licensed by the department to practice the art of body piercing.

Potentially infectious material means human body fluids or any item or surface contaminated with human fluids.

Regulated waste means biohazardous waste or infectious waste, including sharps, capable of releasing potentially infective materials upon contact with human skin.

Sanitary means a surface or object clean and free of agents of infection.

Sanitization means an effective germicidal process which applies enough heat or concentration of chemicals for a sufficient time to reduce the pathogens to a safe level.

Sharps means any objects which can penetrate the skin, including but not limited to needles, razor blades, scalpels, and broken glass or capillary tubes.

Single use means a disposable item used one (1) time on one (1) client.

Sterilize means an approved microbicidal process which applies enough heat or concentration of chemicals to a surface for a sufficient period of time to eliminate the microbial count, including highly-resistant bacterial endospores.

Sterilization means holding an object in an autoclave at a minimum of fifteen (15) pounds of pressure per square inch (PSI) at a minimum of two hundred fifty (250) degrees Fahrenheit or one hundred twenty-one (121) degrees Celsius for a minimum of fifteen (15) minutes.

Surgical revision of scar tissue means any procedure whose intent is to mechanically alter or remove existing scar tissue.

Tattoo means any method of applying marks under human skin utilizing needles or other instruments to alter the appearance of the skin for nonmedical reasons.

Tattoo artist means any individual, other than a physician, dentist, or doctor of osteopathy currently licensed by the State of Connecticut, who is licensed by the department to practice the art of tattooing.

Universal precautions means a technique whereby all bodily fluids are assumed to contain bloodborne pathogens and are handled according to established safety principles.

Waste means any substance or object which is the result or by-product of a body arts procedure.

Work area means a specified area within an establishment where body arts procedures are conducted.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-43. Prohibited acts.

No person shall perform a body arts procedure on another person under the age of eighteen (18) years. However, a minor may have a piercing procedure with the written consent of a parent or legal guardian who is physically present at the time of the procedure and presents proper identification. No one under the age of sixteen (16) years may receive a tattoo procedure unless (a) performed by a licensed physician, dentist, or doctor of osteopathy, or a technician under their direct supervision, for approved medical reasons and (b) approved in writing by a parent or legal guardian who is physically present at the time of the procedure and presents proper identification.

No person shall perform a body arts procedure when the person receiving the procedure is under the influence of drugs or alcohol.

No person other than a licensed physician, dentist, or doctor of osteopathy shall employ the use of federally controlled substances, including topical, oral, parenteral or inhaled anesthetics, while providing body arts procedures. Topical anesthetics which are licensed for sale over-the-counter may be used at the discretion of the artist for the desensitization of the skin, as long as manufacturer's directions are followed carefully.

No person shall perform a body arts procedure in the presence of evidence of unhealthy conditions in the area of the body to receive the procedure.

No person except a licensed physician, doctor of osteopathy, or dentist may remove a tattoo or other permanent mark on human skin.

No person may perform a body arts procedure without a current license.

No person may perform a body arts procedure in a facility which does not possess a current permit.

No person or facility may conduct body arts procedures in the presence of any critical violations as defined above.

No person shall perform an ear-piercing procedure with an ear-piercing instrument unless the instrument utilizes pre-sterilized earrings in a single-unit, single-use cartridge system or is a disposable device.

Under no circumstances may an ear-piercing instrument be used on any body part other than the lobe and/or outer perimeter of the ear, excluding the tragus.

Violation of any of these prohibitions shall result in the suspension or revocation of the artist's license and/or the facility's permit, and shall be subject to additional penalties and fines as defined in this document. Repeated violations (three or more) shall result in permanent revocation of licenses or permits.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-44. Minimum safety and sanitation standards for body arts facilities.

A business offering body arts services shall comply with the following provisions:

The premises in which body arts procedures are performed shall have an area of at least one hundred (100) square feet.

The entire area, including fixtures and equipment directly or indirectly related to the body arts procedures, must be maintained in a clean, sanitary condition and in good repair.

The area must be equipped with artificial light sources which provide a minimum of forty (40) foot-candles of light at the level where the procedure is being performed. Spotlighting may be used to meet this requirement.

All floors directly under a procedures area must be constructed of a smooth, impervious, washable surface with a minimum dimension of six (6) feet by six (6) feet. Floors and walls will be maintained in a sanitary manner at all times.

All tables, work surfaces and adjacent wall surfaces shall be constructed of a smooth, impervious, and washable material and must be maintained in a sanitary manner at all times.

A lavatory or handwashing sink shall be located in close proximity to each work area for the express usage of employees. Hot and cold potable running water, liquid soap or other antibacterial agent which will not harm human skin, and single-use towels shall be available at this location.

Restroom facilities shall be located within the premises and shall be available to clients at all times when the premises are open for business. The restroom shall be equipped with a toilet, toilet paper properly installed on a holder, a handwashing sink with hot and cold potable water, liquid soap or other antibacterial agent which will not harm human skin, and single-use towels. Equipment or supplies used in body arts procedures shall be neither used nor stored in the restroom.

Sufficient and appropriate receptacles shall be provided for the disposal of used gloves, dressings, and other waste. Each receptacle shall have a lid and be kept closed at all times when not in use.

All water supplies, lavatory and plumbing systems, waste disposal systems, and infectious waste disposal shall meet the requirements of the Connecticut Public Health Code.

At no time shall an operator or a client consume food or drink in an area specifically designated for body arts procedures. At no time shall alcoholic beverages be dispensed on the premises where a body arts facility is located.

Smoking or other use of tobacco by the operator or the client in an area designated for body arts procedures is specifically prohibited.

No live animals shall be allowed in areas designated for body arts procedures. Guide dogs or other support animals accompanying handicapped persons shall be the single exception to this requirement.

Violations of these standards shall be grounds for suspension or revocation of the operating permit for the facility.

(Ord. No. 4-00, 2-14-00)

Sec. 17-45. Requirements for issuing an operating permit for a facility.

No person shall operate a business offering body arts procedures within the city without obtaining a permit from the Director of the Hartford Health Department.

No person shall conduct a business offering body arts services in the city without the presence of a duly licensed artist on the premises during all hours of operation.

No person shall build a new facility, or extensively alter an existing facility, without first submitting written plans to the health department for approval prior to the commencement of the project.

Persons seeking a permit for a business offering body arts services including but not limited to tattooing, body piercing, and ear piercing, shall apply on the prescribed forms supplied by the department. All applications shall be fully completed and accompanied by applicable fees.

Once the application, documentation, and fees have been received, the proposed facility will be inspected by the city health department according to an approved format. Upon satisfactory passage of the inspection, a permit will be issued to the facility by the department which shall be valid for a period of one (1) year, unless the permit is suspended or revoked according to the provisions of this document. The permit shall be displayed prominently in the facility.

Applications for renewal of the permit must be received, along with appropriate fees, within ten (10) working days prior to the date of expiration of the current permit. Applications received after this date are subject to the addition of a late fee. No renewal permit will be issued without a satisfactory reinspection of the facility by the department. All written records relevant to compliance with this document shall be made available to the inspector upon request. Failure to apply for re-

newal of the operating permit as described in this section may result in immediate revocation of the operating permit.

Permit approval is nontransferable. Each facility for performance of the body arts must be permitted separately. Any planned change in ownership or renovation of a facility must be reported promptly to the department and such changes must be approved by the department prior to the issuance of an operating permit.

The department reserves the right to inspect the facility at any time without prior announcement to ensure compliance with the provisions of this document. Each facility will be inspected at least once annually. Failure to pass inspection may result in suspension or revocation of the permit.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-46. Temporary permits.

A permit to operate a body arts facility on a temporary or time-limited basis may be issued at the discretion of the department, usually in conjunction with a specific event or gathering to be held within the city, if the applicant can present evidence of his ability to comply substantially with the provisions of this document, including safety and sterilization procedures. Applications and fees for a temporary permit must be submitted on a department-approved form and received at least fifteen (15) working days prior to the event. No temporary permit shall be issued until the department has conducted a satisfactory inspection of the site.

Businesses in possession of a current valid permit from the department shall be assumed to be in substantial compliance with the provisions of this document. A temporary permit will be issued to these businesses upon receipt of the application for a temporary permit and appropriate fees, as well as satisfactory passage of the inspection of the temporary location.

Businesses applying for a temporary permit which are not currently approved by the department but wish to do business within the city on a time-limited basis shall submit an application approved by the department which provides all necessary documentation to attest to the facility's ability to substantially comply with the provisions of this document. The application must be received no later than fifteen (15) days prior to the event, and must be accompanied by all applicable fees. No permit shall be issued without satisfactory inspection of the temporary facility by the department in advance of the event.

A holder of a temporary permit must maintain written records of services as described in this document. Temporary facilities are subject to inspection without notice, and written records must be made available to the department on request.

Violation of any of the standards of care described in this document may result in the immediate revocation of a temporary permit.

A business receiving approval for a temporary permit shall prominently display the permit on site.

No business may obtain more than three temporary permits per year.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-47. Records requirements for permit holders.

Holders of permits to operate a body arts facility shall maintain the following records:

(1) Written records that all artists who practice in the facility are currently licensed by the city health department, and have satisfactorily completed approved courses or seminars in first aid, universal precautions, and basic safety and sanitation requirements.

(2) Written records of maintenance and sanitation of operating equipment, including repairs of autoclaves and ultrasonic devices.

(3) Written records of biological monitoring of sterilization devices conducted monthly, including spore test reports prepared by an independent testing agency approved by the department.

(4) Written records of Heptavax™ or other hepatitis B vaccination for each employed artist or other employee who may come in

contact with bloodborne pathogens. An employee may refuse vaccination for hepatitis B, but a signed statement attesting to his refusal must be a part of his record.

(5) Written records on a department-approved health questionnaire for each client who has received a body arts procedure at the facility.

(6) Written records of reports of infection on a department-approved form.

The records must be maintained for two (2) years, and are to be made available to the department upon request. Failure to maintain proper records shall result in suspension or revocation of the operating permit.
(Ord. No. 4-00, 2-14-00)

Sec. 17-48. Requirements for licensure of an artist.

No person shall perform a body arts procedure within the city who is not currently licensed by the Director of the Hartford Health Department.

Persons seeking to provide body arts services in the city, including but not limited to tattooing and body piercing, shall apply for a license on the prescribed forms supplied by the department.

Applicants may apply for a license to practice in any one (1) of the following categories:

(1) Tattooing services.

(2) Body piercing services.

(3) Combined tattooing and piercing services.

All applications shall be fully completed and accompanied by the applicable fees.

All applicants must pass a written examination administered by the department prior to obtaining a license. Applicants will be tested on the following materials:

(1) The provisions of this document.

(2) First aid pertinent to body arts procedures.

(3) Universal precautions to prevent the spread of bloodborne pathogens.

(4) Basic safety and sanitation requirements for providing body arts procedures, including knowledge of post-procedural precautions and post-operative infections, and knowledge of disinfection and sterilization processes.

Once a satisfactory score has been achieved on the written examination, and all documentation and fees to support the application have been accepted, the department shall issue to the applicant a license to practice one (1) or more of the body arts in the city.

Licenses are issued for a period of three (3) years. Failure of the artist to comply with the provisions of this document may result in the suspension or revocation of the license at the discretion of the department.

Licenses must be prominently displayed at the artist's place of business.

Application for renewal of the license on a form provided by the department and all applicable fees must be received at least thirty (30) days prior to the expiration of the current license. Late applications shall be subject to the addition of a late fee. The applicant for renewal must provide all requested documentation and must satisfactorily pass a written examination prior to renewal of the license by the department. The decision to renew a license shall be at the discretion of the department and shall take into account any history of violations of the provisions of this document during the current licensure period.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-49. Fees.

Fees for licenses, permits, renewal of licenses and permits, and for temporary permits shall be as follows:

(1) One (1) year permit for a tattoo and body piercing facility: $250.00.

(2) Three (3) year license for a body piercing artist: $300.00.

(3) Three (3) year license for a tattoo artist: $300.00.

(4) Three (3) year license for a tattoo and body piercing artist: $450.00.

(5) All temporary permits: $50.00 per day.
(Ord. No. 4-00, 2-14-00; Ord. No. 14-09, 3-23-09)

Sec. 17-50. Additional requirements for tattoo artists.

In addition to any requirements specified elsewhere in this document, any person licensed to perform tattooing services or permitted to operate a facility for the provision of tattooing services shall comply with the following provisions pertaining specifically to tattoo operations:

Immediately prior to and immediately following the performance of a tattoo procedure, the artist shall scrub hands and forearms with liquid soap or other approved antibacterial agent.

A clean, new pair of latex or similar plastic disposable gloves shall be worn for each procedure. If the gloves tear, or if contact is made with a contaminated surface during a procedure, or if any other break in the sterility chain occurs, the gloves shall be discarded immediately and replaced with a new pair of gloves.

The artist must use a clean lap cloth for each procedure. Under no circumstances is a lap cloth to be re-used, and lap cloths shall be disposed or placed into a closed container for later laundering immediately following a procedure.

Tattoos may be applied only to clean, healthy skin surfaces. Evidence of abrasion, laceration, skin eruptions, or infection shall cause the artist to refuse to perform the procedure.

If shaving of the site is indicated, one of the following procedures is required:

1. Use of a disposable razor with prompt disposal after use.
2. Use of a straight edge razor which shall be sterilized in an autoclave following each procedure.

After shaving, the skin shall be cleansed with an approved antibacterial solution applied with a clean, single-use disposable cloth or cotton.

Only a sterile ointment shall be applied to the area with single-use cotton or tongue depressors. Under no circumstances may fingers be used for this procedure.

The use of styptics or alum blocks to control bleeding is expressly prohibited.

Single-use containers shall be used to hold inks and dyes for each procedure, and shall be discarded immediately after use.

The completed tattoo shall be washed using a department-approved antibacterial agent applied with a single-use applicator. The area shall be allowed to air-dry, after which the artist shall apply a sterile ointment to the surface and cover it with a single-use, sterile dressing. Use of plastic wrap, napkins, paper towels, or any other material other than a single-use sterile dressing is prohibited.

Each client shall be provided with department-approved written instructions for the aftercare of the tattoo procedure, and the artist verbally shall review the provisions of the instructions with the client before dismissal.

The artist shall maintain a written record of the procedure on a form approved by the department, including the client's name, address, phone number, date of service, and description of the tattoo, for a minimum of two (2) years. A copy of the record shall be provided to the client prior to his dismissal. Records shall be made available to the department upon request. In the event of a business closing, copies of the records shall become the property of the department and must be delivered promptly to the department by the artist.

Written records of injuries and infections shall be kept on forms approved by the department, and shall be retained for two (2) years. Copies of reports shall be delivered to the department within five (5) working days upon the request of the department. Information so acquired by the department shall be kept confidential, and shall be used solely to gather statistical data.

The artist shall comply with all local and state regulations regarding the disposal of biohazard-

ous waste, including sharps. Failure to comply with this provision may result in the immediate revocation of the artist's license.

An artist shall not perform a piercing procedure outside of a business establishment holding a current valid permit from the department. Violation of this requirement shall result in the immediate revocation of the artist's license.

(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Sec. 17-52. Approved sterilization and disinfection procedures.

All reusable or nondisposable items used to provide body arts services shall be thoroughly cleaned prior to sterilization using one (1) of the following methods:

(1) The instruments shall be placed in an approved ultrasonic machine filled with an approved ultrasonic solution and cleansed of all foreign materials according to the manufacturer's directions.

(2) Instruments unable to be cleaned ultrasonically are to be placed in an EPA-approved hospital disinfectant solution for a minimum of twenty (20) minutes.

Following cleaning, instruments are to be dried and then placed into individual autoclave sterilization bags, then sealed and marked with the date of sterilization and a tape marker to indicate that the packet has been exposed to autoclaving.

Sterilization shall be accomplished in an approved autoclave by exposure to steam for a minimum of fifteen (15) minutes at fifteen (15) pounds per square inch at a temperature of two hundred fifty (250) degrees Fahrenheit or one hundred twenty-one (121) degrees Celsius. Chemical sterilization (Chemiclave™) under pressure is also an acceptable method of sterilization, and the process recommended by the manufacturer must be followed meticulously to ensure adequate sterilization.

If the indicator tape indicates that the packets have been exposed to sterilizing conditions, the instrument packets shall be stored in a clean, covered container to minimize contamination until used.

The sterilizer shall be monitored monthly for effectiveness by the use of a spore test (Bacillus stearothermophilus) provided by an independent testing service. Records of testing reports shall be maintained in a log for two (2) years.

Sterilizers shall be maintained in adequate working condition at all times. A sterilizer which does not provide adequate levels of time, temperature, and pressure so as to achieve sterilization shall be repaired or replaced immediately. A log of repair procedures shall be maintained for two (2) years.

All surfaces which are directly in contact with the client or with the instruments used to provide a body arts procedure, as well as the surfaces immediately adjacent to the work area, including lights, chairs, tables, telephones, and walls, shall be cleansed immediately following a procedure using an approved disinfectant solution in a spray-wipe-spray method; the surfaces are sprayed, wiped with a clean, disposable cloth, then sprayed again and allowed to air dry.

Disposables and single-use items shall be disposed into an approved container immediately following completion of the procedure. Under no circumstances is a single-use item to be re-used. Sharps containers must be located in close proximity to each work area. One (1) container may be used for multiple operators, but a minimum of one (1) sharps container for each separate room shall be provided.

Failure to meet all provisions of this section shall be considered a critical violation of these regulations and an imminent health hazard shall be declared by the department, and such a violation shall be grounds for immediate suspension or revocation of the operating permit and/or the artist's license.

(Ord. No. 4-00, 2-14-00)

Sec. 17-53. Ear piercing instruments and services.

Any facility providing ear piercing services with a department-approved ear piercing instrument must maintain the procedure area, includ-

ing fixtures and equipment directly or indirectly related to the piercing procedure, in a clean, sanitary condition, and in good repair.

Persons who provide ear-piercing services shall wear a clean, new pair of latex or similar plastic disposable gloves for each procedure.

All persons providing ear piercing services must be provided with appropriate training materials, including department-approved information on safety, universal precautions, and sanitation. It is the responsibility of the owner of the facility to maintain written training records for each employee engaged in the provision of ear piercing services. Such records shall be kept on the premises, and shall be made available to the department upon request.
(Ord. No. 13-00, 6-26-00)

Sec. 17-54. Sanctions and appeals.

The director of the city health department or an authorized representative shall have the authority to enter a business offering body arts services at reasonable times to conduct inspections of conditions relating to the enforcement of the sections of this document or of applicable sections of the Connecticut Public Health Code or applicable sections of this Code.

The department may deny, suspend, or revoke approval of a business or an artist offering tattoo or body piercing or tattoo and body piercing services if the business or the artist has made any material misrepresentation to the department, does not meet or no longer meets, or has a history of noncompliance with the requirements of the applicable sections of this document or of the Connecticut Public Health Code. The department may issue a stop-work order, or institute legal action for injunctive relief, to enforce any provision of this section.

Additionally, the department may impose an administrative fine for the violation of any provision of this document, not to exceed ninety-nine dollars ($99.00) per day per day for each specified violation. In determining the amount of the administrative fine, the department shall consider the severity of the violation, and the extent to which the provisions of this document or the Connecticut Public Health Code were violated, as well as the good faith efforts of the owner or artist to correct the stated violations.

In the case of a proposal to deny, suspend, or revoke approval of a business or artist providing body arts services, the department shall provide the business or artist with a citation or written notice of the proposed action and the cause for the action. The citation shall describe the procedure for appealing the proposed denial, suspension, or revocation.

The written notice shall be provided by certified mail, return receipt requested, or by hand delivery. If the notice is returned because of failure of delivery, the department shall either send the notice by certified mail to the address listed on the application, or conspicuously post the notice at an entrance of the business. In either case, the notice shall be deemed to have been received on the date it was mailed or posted.

The notice shall state that the business or artist may obtain a hearing under this rule if a written request for a hearing is mailed or hand-delivered to the department's address specified in the notice, within ten (10) days after the affected business or artist receives or is deemed to have received the notice.

Upon receiving a timely hearing request, the department shall schedule a hearing before a board or a hearing officer designated by the director. If the director provides a hearing officer, that officer shall not have participated in any manner in the decision to take the action against the business or artist.

The department shall mail or hand-deliver notice of the date, time, and place of the hearing to the business or artist no less than ten (10) days before the scheduled date. The department may additionally post the notice of hearing at the entrance of the business.

The business or the artist and the department each shall have one (1) opportunity to reschedule the hearing date upon specific request to the other party. Any other postponements of the hearing shall be by agreement of the department, the business or artist, and the hearing officer, if one is designated.

At the hearing, the business or artist shall have the opportunity to present its case orally or in writing. If the department has designated a hearing officer, a member of the department does not have to be present at the hearing.

If the hearing is before a hearing officer, he or she shall prepare a written recommendation as to the validity of the department's action, which shall rest solely on the evidence presented at the hearing and the statutory and regulatory provisions governing the department's action. The hearing officer shall describe the basis for his or her recommendation, but need not prepare a full opinion or formal findings of fact and conclusions of law. The hearing officer shall mail by certified mail, return receipt requested, or hand-deliver the recommendation to the department and to the business or artist, within ten (10) business days following the date of the hearing. Either party may file objections to the recommendation provided that the objections are received by the department within five (5) days of receiving a copy of the recommendation.

After reviewing any timely objections, the director may take additional evidence or approve, modify, or disapprove the recommendation and shall enter an order in the record of department proceedings.

If the department does not receive a timely request for hearing, the director may enter immediately an order as proposed in the notice.

In the case of an immediate suspension of approval for a violation presenting an imminent danger to the public health, the department shall provide the business or artist with written notice of the action, the cause of the action, and the effective date of the action. The written notice shall specify the procedure for appealing the suspension and shall list the address to which a hearing request shall be sent or delivered. The business or artist may appeal the suspension by mailing or hand-delivering a written request for hearing to the address specified in the notice. If a hearing is requested, it shall be heard not later than two (2) business days after the request is received by the department. At the hearing, the business or artist shall have the opportunity to present its case orally or in writing and to confront and cross-examine adverse witnesses. The business or artist may be represented by its counsel, if desired, and may review the case record before the hearing. At the hearing, the director, or an appointed hearing officer, shall determine whether the immediate danger to the public health continues to exist according to the provisions of this document or of the Connecticut Public Health Code.

Following the hearing, the director may render immediately a decision denying, suspending, or revoking approval, or render a decision removing or continuing an approval suspension. The determination or order may be considered and made without publication or advertisement, and may become effective without such publication or advertisement, recording or certifying. An order is not effective until it is recorded in the department's record of its proceedings.
(Ord. No. 4-00, 2-14-00; Ord. No. 13-00, 6-26-00)

Secs. 17-55—17-70. Reserved.

ARTICLE IV. SMOKEFREE HEALTH CARE FACILITIES*

Sec. 17-71. Purpose.

The 2006 U.S. Surgeon General's Report. The Health Consequences of Involuntary Exposure to Tobacco Smoke, has concluded that:

(1) Secondhand smoke exposure causes disease and premature death in children and adults who do not smoke;

(2) Children exposed to secondhand smoke are at an increased risk for sudden infant death syndrome (SIDS), acute respiratory problems, ear infections, and asthma attacks, and smoking by parents causes respiratory symptoms and slows lung growth in children;

*__Editor's note—__Ord. No. 32-09, adopted Sept. 14, 2009, included provisions to be included in the Code as Art. IV, §§ 17-55—17-70, however, these provisions have been redesignated as Art. IV, §§ 17-71—17-86 to allow for future expansion of Art. III, at the editor's discretion.

(3) Exposure of adults to secondhand smoke has immediate adverse effects on the cardiovascular system and causes coronary heart disease and lung cancer;

(4) There is no risk-free level of exposure to secondhand smoke;

(5) Establishing smokefree workplaces is the only effective way to ensure that secondhand smoke exposure does not occur in the workplace, because ventilation and other air cleaning technologies cannot completely control for exposure of nonsmokers to secondhand smoke; and

(6) Evidence from peer-review studies shows that smokefree policies and laws do not have an adverse economic impact on the hospitality industry. (U.S. Department of Health and Human Services. The Health Consequences of Involuntary Exposure to Tobacco Smoke: A Report of the Surgeon General. U.S. Department of Health and Human Services, Centers for Disease Control and Prevention, National Center for Chronic Disease Prevention and Health Promotion, Office on Smoking and Health, 2006.)

Scientific evidence has firmly established that there is no safe level of exposure to secondhand tobacco smoke, a pollutant that causes serious illness in adults and children. There is indisputable evidence that implementing one hundred percent (100%) smoke-free environments is the only effective way to protect the population from the harmful effects of exposure to secondhand smoke. ("Protection from Exposure to Secondhand Smoke: Policy Recommendations." World Health Organization (WHO), 2007.)

The smoking of tobacco is a form of air pollution, a positive danger to health, and a material public nuisance.

Accordingly, the City of Hartford finds and declares that the purposes of this ordinance are (1) to protect the public health and welfare by prohibiting smoking in health care facilities; and (2) to guarantee the right of nonsmokers to breathe smokefree air, and to recognize that the need to breathe smokefree air shall have priority over the desire to smoke in such areas.
(Ord. No. 32-09, 9-14-09)

Sec. 17-72. Definitions.

The following words and phrases, whenever used in this article, shall have the meaning indicated:

Business means a sole proprietorship, partnership, joint venture, corporation, or other business entity, either for-profit or not-for-profit, including retail establishments where goods or services are sold; and professional corporations and other entities where legal, medical, dental, engineering, architectural, or other professional services are delivered; and private clubs.

Employee means a person who is employed by an employer in consideration for direct or indirect salary or monetary wages or profit, and for the purposes of this article means a person in a position who may be a volunteer.

Employer means a person a public or private business entity, partnership, association, corporation, including a municipal corporation, trust, or non-profit entity, that employs the services of one (1) or more individual persons.

Health care facility means an office or institution providing persons with care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, other physicians, psychiatrists, dentists, and all specialists within these professions. This definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms and wards within health care facilities.

Place of employment for this article means an area under the control of an employer in which employees are located during the course of employment, including, but not limited to, work areas, private offices, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, em-

ployee cafeterias, hallways, and employer vehicles. A private residence is not a "place of employment" unless it is used as a child care, adult day care, or health care facility.

Service line means an indoor or outdoor line in which one (1) or more persons are waiting for or receiving service of any kind, whether or not the service involves the exchange of money, including but not limited to, ATM lines, food vendor lines, event ticket lines and/or any other service line on or off the health care facility building and/or premises.

Smoking means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, or pipe in any manner or in any form.
(Ord. No. 32-09, 9-14-09)

Sec. 17-73. Applicability of article to health care facilities.

All enclosed facilities, including buildings and vehicles owned and outdoor campus premises owned, leased to or by or operated by a health care facility, shall be subject to the provisions of this article.
(Ord. No. 32-09, 9-14-09)

Sec. 17-74. Prohibition of smoking in places of employment.

(a) Smoking shall be prohibited in all enclosed facilities within places of employment without exception; this includes common work areas, auditoriums, classrooms, conference and meeting rooms, service lines, private offices, elevators, hallways, health care facilities, cafeterias, employee lounges, stairs, restrooms, vehicles both private and public within places of employment, and all other enclosed facilities.

(b) This prohibition on smoking shall be communicated to all existing employees by the effective date of this article and to all prospective employees upon their application for employment. An employer should acknowledge said prohibition in writing and secure acknowledgement of same with all prospective employees.
(Ord. No. 32-09, 9-14-09)

Sec. 17-75. Prohibition of smoking in enclosed residential health care facilities.

Smoking shall be prohibited in all enclosed residential health care facilities including private and semi-private rooms in such health care facilities.
(Ord. No. 32-09, 9-14-09)

Sec. 17-76. Prohibition of smoking in outdoor areas.

Smoking and the use of cannabis products shall be prohibited throughout all areas of a health care facility campus that includes the outside sidewalks, driving surfaces, parking lots, garages and public transportation stations, platforms and all common outdoor gathering areas within ten (10) feet of the health care facility campus boundaries. The outer boundary of the health care facility campus shall be clearly marked by a painted blue line and such marked area shall be labeled every twenty (20) feet with the words "Smoke Free Zone".

(1) Smoking of tobacco and cannabis products is hereby explicitly prohibited within all splash pads and playgrounds. Signage shall be displayed in the mentioned areas. The prohibition of this activity should be a twenty-five (25) feet proximity around the playgrounds and splash pads. This prohibition is enacted to reduce exposure to secondhand smoke in areas commonly frequented by children and families.

(2) "Smoking" shall be defined as the act of burning or vaporizing a lighted cigar, cigarette, pipe, e-cigarette, or any other matter or substance that contains tobacco, marijuana, or similar products.

(Ord. No. 32-09, 9-14-09; Ord. of 4-17-24)

Sec. 17-77. Where smoking not regulated.

Smoking is not regulated by this arcticle in private residences, except when such private residences are used as a health care facilities.
(Ord. No. 32-09, 9-14-09)

Sec. 17-78. Declaration of establishment as nonsmoking.

Notwithstanding any other provision of this section, an owner, operator, manager, or other person in control of an establishment, facility, or outdoor area may declare that entire establishment, facility, or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of subsection 17-79(a) is posted.
(Ord. No. 32-09, 9-14-09)

Sec. 17-79. Posting of signs.

(a) "No Smoking" signs or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) shall be clearly and conspicuously posted in every public place and place of employment where smoking is prohibited by this section, by the owner, operator, manager, or other person in control of that place.

(b) Every public place and place of employment, except employer vehicles, where smoking is prohibited by this article shall have posted at every entrance a conspicuous sign clearly stating that smoking is prohibited. Every employer vehicle shall have at least one (1) conspicuous sign, visible from the exterior of the vehicle, clearly stating that smoking is prohibited.

(c) All ashtrays shall be removed by the owner, operator, manager, or other person having control from any area where smoking is prohibited by this article.

(d) Signage shall be in multi-languages to be consistent with other facility postings.
(Ord. No. 32-09, 9-14-09)

Sec. 17-80. Enforcement.

(a) This article shall be enforced by the City of Hartford Police Department authorized designees.

(b) Any citizen who desires to register a complaint under this article may initiate enforcement with the City of Hartford Police Department.

(c) The health department, fire department, license and inspection division of development services, or their respective designees shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this article.

(d) An owner, manager, operator, or employee of an establishment regulated by this article shall inform persons violating this article of the appropriate provisions thereof.

(e) Notwithstanding any other provision of this article, an employer, employee and/or private citizen may bring legal action to enforce this article, though this provision does not assume standing.
(Ord. No. 32-09, 9-14-09)

Sec. 17-81. Violations and penalties.

(a) A person who smokes in an area where smoking is prohibited by the provisions of this article shall be guilty of an infraction. Each time a violation of this article occurs is a separate violation and shall be considered a separate and distinct infraction. A fine of ninety-nine dollars ($99.00) will be imposed for each infraction.

(b) Except as otherwise provided in subsection (a), a person who owns, manages, operates, or otherwise controls a public place or place of employment and who fails to comply with the provisions of this article shall be guilty of an infraction. Each day on which a violation of this article occurs shall be considered a separate and distinct infraction.
(Ord. No. 32-09, 9-14-09)

Sec. 17-82. Public education.

The City of Hartford, Department of Health & Human Services shall engage in a continuing public health education program to explain and clarify the purposes and requirements of this article to citizens affected by it, and to guide owners, operators, and managers in their compliance with it. The program may include publication of a brochure for affected businesses and individuals explaining the provisions of this article.
(Ord. No. 32-09, 9-14-09)

Sec. 17-83. Other applicable laws.

This article shall not be interpreted or construed to permit smoking where it is otherwise prohibited or restricted by other applicable laws, rules or regulations.
(Ord. No. 32-09, 9-14-09)

Sec. 17-84. Liberal construction.

This article shall be liberally construed so as to further its purposes.
(Ord. No. 32-09, 9-14-09)

Sec. 17-85. Severability.

If any provision, clause, sentence, or paragraph of this article or the application thereof to any person or circumstances shall be held invalid,

that invalidity shall not affect the other provisions of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(Ord. No. 32-09, 9-14-09)

Sec. 17-86. Effective date.

This article shall be effective thirty (30) days from and after the date of its adoption.
(Ord. No. 32-09, 9-14-09)

ARTICLE IVa. SALE AND DISTRIBUTION OF TOBACCO/NICOTINE PRODUCTS

Sec. 17-87. [Title.]

An Ordinance raising minimum age for sale and distribution of tobacco/nicotine products.
(Ord. No. 07-18, 10-22-18)

Sec. 17-88. Purpose.

Tobacco use is the foremost preventable cause of premature death in the United States, responsible for more than half a million deaths per year in the United States and costing the nation approximately $300 billion in healthcare and lost worker productivity costs each year; and

(1) About ninety-five percent (95%) of all adult smokers began smoking before age twenty-one (21), and adolescence is a critical period when smokers move from experimental smoking to addictive, daily use;

(2) There is strong evidence that those who begin smoking at an early age are more likely to develop a severe addiction to nicotine than those who start at a later age;

(3) Electronic nicotine delivery system use among adolescents has recently tripled, and use of these systems are associated with and clearly encourage the use of conventional tobacco products;

(4) Raising the minimum legal sale and distribution age for all tobacco products to twenty-one (21) reduces access to these products by youth, as teens often acquire such products from social networks, including older friends: the vast majority of those providing nicotine and tobacco products for youth 17 and under are themselves between eighteen (18) and twenty (20) years old and are able to purchase legally.

(5) Select findings from the 2017 Connecticut School Health Survey, known nationally as the Youth Tobacco Survey (YTS), reflect over one-third of Connecticut high school students (nearly 59,000) report having ever tried some form of tobacco, and current tobacco use is reported at 17.9%.

(6) The YTS survey shows the vast majority of youth are using flavored tobacco products, e-cigarettes and vaping devices, and although cigarette smoking has decreased among Connecticut youth, the use of electronic cigarettes and vaping devices continues to increase at an alarming rate, with current use reported at 14.7%, and shows usage increasing with age. Studies have shown that this type of nicotine use by teens increases their risk of also using combustible tobacco.

(7) When asked how they accessed these products, the majority of youth surveyed (59.3%) reported they obtained their e-cigarettes from a friend.

(8) The Connecticut Department of Revenue Services lists 240 licensed tobacco retailers within Hartford city limits, a density that, based on the population of Hartford, is 1.5 times higher than the U.S. density rate. The list of retailers does not include all the retailers who may sell vape products exclusively and not tobacco, so this density is likely higher. Greater density and higher numbers of tobacco retailers have been associated with higher rates of smoking among youth.

The Institute of Medicine predicted in a 2015 report that raising the minimum legal sales age for tobacco products to 21 nationwide will have a substantial positive impact on public health and

provide long-term declines in smoking rates by reducing tobacco initiation among adolescents aged 15 to 17 by twenty-five percent (25%) and overall prevalence of tobacco use by twelve percent (12%). This report also projects that 4.2 million young people alive today would be protected from premature death related to tobacco use as a result of raising the minimum legal sales age for tobacco products to 21.
(Ord. No. 07-18, 10-22-18)

Sec. 17-89. Definitions.

For the purpose of this title, the following definitions shall apply:

Tobacco product means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco product also means electronic smoking devices, including any device that can be used to deliver aerosolized or vaporized nicotine or any other substance to the person inhaling from the device, and any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes, e-cigarettes, e-cigars, e-pipes, vape pens, e-hookahs and liquids used in electronic smoking devices, whether or not they contain nicotine. Tobacco product does not include drugs, devices, or combination products authorized for sale as proven cessation products by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.

Sale or *sell* means selling, giving, bartering, exchanging, delivering, or otherwise distributing tobacco products, unless the person is delivering or accepting delivery in such person's capacity as an employee. Sale or sell also includes offers to sell, barter, or exchange.

Retailer means any person or business that owns, operates, or manages any place at which tobacco products are sold. Retailer also includes any person or business that is required to purchase a dealer's license under G.S. § 12-287.
(Ord. No. 07-18, 10-22-18)

Sec. 17-90. Licensing.

Each retailer engaging in the sale of tobacco products, at each location conducting sales in the city, shall secure a license from the State of Connecticut, Department of Revenue Services before engaging or continuing to engage in such business. An application for a license shall contain the full name of the application, the applicant's business address and telephone number, the name of the business for which the license is sought, and any additional information the state deems necessary.

Such license shall be renewed annually and valid for a period beginning with the date of license unless sooner revoked as allowed by the state. A license shall not be transferred from one (1) location to another unless as prescribed by the state. A license shall be transferable from one (1) retailer to another upon a transfer of ownership, subject to the new owner submitting a new application for a license within thirty (30) days of such transfer to the Department of Revenue Services.

A license shall be displayed at all times and shall be exhibited to any person upon request. In the event of mutilation or destruction of such license, a duplicate copy, marked as such, shall be issued by the State of Connecticut, Department of Revenue Services upon application accompanied by a fee set by the state.

Licensed retailers, including those licensed to sell marijuana products, shall not be located within five hundred (500) feet of any kindergarten through twelfth grade school. Retailers licensed as of July 1, 2023 are exempt from this requirement, provided any such issued license is timely renewed, unless there has been a violation of selling tobacco products to any person under twenty-one (21) years of age.

Licensed retailers shall sign a city form stating that the retailer has provided training to all employees on the sale of tobacco products and

such training includes information that the sale of tobacco products to a person under twenty-one (21) years of age is illegal, what proof of age is legally acceptable, and that a sale to a person under twenty-one (21) years of age can subject the retailer to a monetary fine.

No license shall be issued to a person under twenty-one (21) years of age.
(Ord. No. 07-18, 10-22-18; Ord. of 6-26-23(3))

Sec. 17-91. License fee.

The fee for a license to sell tobacco products shall be set by the State of Connecticut, Department of Revenue Services and thereafter annually reviewed by that department.

The license fee should cover the administrative cost for the licensing program, retailer education and training, retail inspections and enforcement costs, including the conduct of unannounced compliance checks, but should not exceed the cost of the regulatory program authorized beyond the state.

Licensing fees are due at the time of application and are not refundable. A license cannot be renewed if the licensee has outstanding fines owed to the state.
(Ord. No. 07-18, 10-22-18; Ord. of 6-26-23(3))

Sec. 17-92. Minimum legal sales age.

No retailer or retailer's agent or employee shall give, sell, or otherwise distribute any tobacco product to any person under twenty-one (21) years of age.

The person selling any tobacco product must examine the identification card issued in accordance with the provisions of G.S. § 1-1h for anyone who appears to be under the age of 30 and verify proof of age demonstrating the recipient is at least twenty-one (21) years of age before selling any tobacco product.

(1) That a person appeared to be over the age of twenty-one (21) shall not constitute a defense to a violation of this section. If a person fails to provide such proof of age, such retailer or retailer's agent or employee shall not sell any tobacco product to the person.

(Ord. No. 07-18, 10-22-18)

Sec. 17-93. Signage.

"The Sale of Tobacco or Nicotine Products or Devices to Persons Under 21 is Prohibited" signs shall be legibly printed in letters at least one-half inch high and shall be posted clearly and conspicuously in every location where the products are available for purchase. Signage shall be in multiple languages as needed to be consistent with other facility postings.

Selling tobacco products in any place that does not have a sign posted in a conspicuous place to a person under twenty-one (21) years of age is prohibited by law and punishable consistent with this article.
(Ord. No. 07-18, 10-22-18)

Sec. 17-94. Enforcement.

(a) This article shall be enforced by the Hartford Department of Health and Human Services or its authorized designees.

(b) The health department, fire department, license and inspection division of development services, or their respective designees shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this article.

(c) An owner, manager, operator, or employee of an establishment regulated by this article shall inform persons violating this article of the appropriate provisions thereof.

(d) Any citizen who desires to register a complaint under this article may initiate enforcement by the Hartford Department of Health and Human Services.

(e) Hartford Department of Health and Human Services shall be responsible to conduct, or have conducted on its behalf, at least two under-age youth-based, unannounced compliance checks per retailer per year. Random re-inspections of all non-compliant retailers are required within three (3) months of any violation of this article.

(f) The result of these compliance inspections shall be published on the Hartford Department of Health and Human Services website at least annually.
(Ord. No. 07-18, 10-22-18)

Sec. 17-95. Violations and penalties.

Any retailer who violates any of the provisions in this article shall be guilty of an infraction and subject to a civil penalty fine no less than two hundred fifty dollars ($250.00) for each infraction. Each violation, and every day in which a violation occurs, shall constitute a separate and distinct infraction. The decision that a violation has occurred shall be in writing mailed or emailed to the retailer by the Hartford Department of Health and Human Services, which notice should specify the article and section with which the retailer is in violation no later than thirty (30) days from the date of the violation.

A license issued under this article may be denied, suspended, or revoked by the State of Connecticut, Department of Revenue Services and may constitute a civil penalty to the Hartford Department of Health and Human Services through written notice should the retailer or retailer's agent, directly or indirectly:

(1) Sell tobacco products to any person under the age of twenty-one (21).

   a. The license of a licensee who has sold tobacco products to persons under age twenty-one (21) on two (2) separate occasions within a three-year period shall be suspended for a minimum of seven (7) days.

   b. The license of a licensee who has sold tobacco products to persons under age twenty-one (21) on three (3) separate occasions within a three-year period shall be suspended for a minimum of thirty (30) days.

   c. The license of a licensee who has sold tobacco products to persons under age twenty-one (21) on four (4) separate occasions within a three-year period shall be revoked.

(2) Fail to remove all tobacco products from the premises upon suspension or revocation of a tobacco retail sales license.

(3) Fail to post signage as required.

(4) Fail to pay fines issued in accordance with this Chapter.

(5) Have a license revoked within the preceding twelve (12) months.

(6) Fail to provide required information or provide false or misleading information.

(7) Violate state or local tobacco product sales and use laws.

(8) Conduct business in violation of this article.

All fees and fines collected from licensing and infractions of this article are to be deposited into a "Tobacco Enforcement and Education Fund" administered by the Hartford Department of Health and Human Services, to be reinvested for enforcement, community education, and efforts to improve compliance with state and local tobacco product sales and use laws.
(Ord. No. 07-18, 10-22-18; Ord. of 6-26-23(3))

Sec. 17-96. Appeals.

Retailers have the right to appeal civil penalties in accordance with this section. In the case of violation, the department shall provide the retailer with a written notice. The written notice shall be provided by certified mail, return receipt requested, or by hand delivery, or by email. If the notice is returned because of failure of delivery, the department shall either send the notice by certified mail to the address listed on the application, or conspicuously post the notice at an entrance of the retailer. In either case, the notice shall be deemed to have been received on the date it was mailed or posted.

The notice shall state that the retailer may obtain a hearing under this rule if a written request for a hearing is mailed or hand-delivered to the department's address specified in the notice, within ten (10) days after the affected retailer receives or is deemed to have received the notice.

Upon receiving a timely hearing request, the department shall schedule a hearing before a board or a hearing officer designated by the director. If the director provides a hearing officer, that officer shall not have participated in any manner in the decision to take the action against the retailer.

The department shall mail or hand-deliver notice of the date, time, and place of the hearing to the retailer no less than ten (10) days before the scheduled date. The department may additionally post the notice of hearing at the entrance of the retailer.

The retailer and the department each shall have one (1) opportunity to reschedule the hearing date upon specific request to the other party. Any other postponements of the hearing shall be by agreement of the department, the retailer, and the hearing officer, if one is designated.

At the hearing, the retailer shall have the opportunity to present its case orally or in writing. If the department has designated a hearing officer, a member of the department does not have to be present at the hearing.

If the hearing is before a hearing officer, he or she shall prepare a written recommendation as to the validity of the department's action, which shall rest solely on the evidence presented at the hearing and the statutory and regulatory provisions governing the department's action. The hearing officer shall describe the basis for his or her recommendation, but need not prepare a full opinion or formal findings of fact and conclusions of law. The hearing officer shall mail by certified mail, return receipt requested, or hand-deliver the recommendation to the department and to the retailer, within ten (10) business days following the date of the hearing. Either party may file objections to the recommendation provided that the objections are received by the department within five (5) days of receiving a copy of the recommendation.

After reviewing any timely objections, the director may take additional evidence or approve, modify, or disapprove the recommendation and shall enter an order in the record of department proceedings.

If the department does not receive a timely request for hearing, the director may enter immediately an order as proposed in the notice.
(Ord. No. 07-18, 10-22-18)

Sec. 17-97. Public education.

The Hartford Department of Health & Human Services shall engage in a continuing public health education program to explain and clarify the purposes and requirements of this article to citizens affected by it, and to guide retailers, owners, operators, and managers in their compliance. The program may include publication of a brochure for affected retailers explaining the provisions of article and signage mandated by this article.
(Ord. No. 07-18, 10-22-18)

Sec. 17-98. Rulemaking authority.

The Hartford Department of Health & Human Services is hereby authorized to promulgate rules and regulations to carry out the purpose and intent of this article in order to protect the public health, safety and welfare.
(Ord. No. 07-18, 10-22-18)

Sec. 17-99. Liberal construction.

This article shall be liberally construed so as to further its purposes.
(Ord. No. 07-18, 10-22-18)

Sec. 17-100. Severability.

The provisions of this section are hereby declared severable, and if any provision, clause, sentence, or paragraph of this section or the application thereof to any person or circumstances held by a court of competent jurisdiction to be unconstitutional or otherwise invalid, such a ruling shall not affect the other parts of this section that can be given effect.
(Ord. No. 07-18, 10-22-18)

Sec. 17-101. Effective date.

This ordinance shall take effect upon adoption, and the Hartford Department of Health and Human Services or its authorized designees shall implement the licensing, enforcement, and

public education requirements within one hundred and eighty (180) days from the date of adoption. (Ord. No. 07-18, 10-22-18)

Secs. 17-102—17-110. Reserved.

ARTICLE V. BARBERSHOPS AND NAIL SALONS*

Sec. 17-111. Purpose.

The purpose of this chapter is to safeguard the health and well-being of persons who work in or patronize nail salons, barbershops, and hairdressing and cosmetology shops in Hartford through a system of licensing, regulation and inspection and to protect the public health in general. (Ord. No. 15-17, 6-12-17)

Sec. 17-112. Definitions.

Barbering includes the following described practices when performed by a barber or master barber licensed in the State of Connecticut, upon the head, face, scalp or neck for cosmetic purposes only:

(1) The cutting, trimming, or shaving of the hair.

(2) Singeing, shampooing, dyeing, coloring or styling of the hair.

(3) The application of cosmetic preparations, hair tonics, antiseptics, powders, oils, clays, creams or lotions.

(4) Giving facial and scalp massage or the application of oils, creams, lotions or other preparations, either by hand or mechanical appliances.

(5) Shaving or trimming the beard.

Barbershop means any establishment engaged in the practice of barbering for the public.

Hairdressing and cosmetology includes the following described practices performed by a licensed hairdresser/cosmetician in the State of Connecticut upon the head, face, scalp, arms, hands, body, legs and feet for cosmetic purposes only:

(1) Treating the scalp, face, neck and arms by massaging, cleansing, exercising, stimulating or manipulating, with the hands, mechanical appliances, or water.

(2) Application of cosmetics, preparations, antiseptics, tonics, lotions, creams, powders, oils, clays, sprays, or any product pertaining to the skin, including tanning spray.

(3) Manicuring fingernails of the hand for cosmetic purposes only.

Pedicures involving trimming, filing and painting the healthy toenails of the feet, excluding cutting nail beds, corns, calluses, or other medical treatment involving the foot or ankle.

(4) Removing hair from, or destroying hair on any part of the body by using an electric needle only.

(5) Dressing, arranging, curling, waving, weaving, cutting, singeing, bleaching and coloring hair.

Director of Health means the Director of Health of the City of Hartford, or his/her duly authorized representative.

Disinfect means to use a chemical or physical process to destroy harmful organisms, including bacteria, viruses, germs, and fungi.

Hairdressing or cosmetology shop means any establishment engaged in the practice of hairdressing, cosmetology, or barbering for the public.

Independent contractor means a person who works in an independent trade, business, or profession in which they offer their services to the public. They are generally not employees of the company and perform services for another person under an expressed or implied agreement.

Multi-use tool means an item constructed of hard materials with smooth nonporous surfaces such as metal, glass, or plastic that can be

*__Editor's note—__Ord. No. 15-17, adopted June 12, 2017, set out provisions to be codified as §§ 17-55—17-82. Inasmuch as certain said sections already exist, the provisions have been codified as §§ 17-111—17-137 at the discretion of the editor.

effectively cleaned and disinfected for uses on more than one (1) client. The term includes but is not limited to such items as clippers, scissors, combs, nippers, manicure bowls, and some nail files.

Nail salon means an indoor establishment or kiosk that offers, provides, permits or allocates space for the manicuring of healthy finger nails and pedicuring of healthy toe nails or enlists the use of chemicals which include but is not limited to resins, plasticizers, solvents, pigments, creams, emollients, adhesives, paints or compressed air brush equipment for the purpose of treating, painting, repairing, and enhancing of the human finger nails and toe nails.

Nail technician means a person, who works at a nail salon as defined herein, who cuts, shapes, polishes or enhances the appearance of the healthy nails of the hands and feet, including but not limited to, the application and removal of sculptured or artificial nails.

Inspection report means Hartford Department of Health and Human Services report prepared and issued by the authorized agent after conducting an inspection of a barbershop or salon to determine compliance will all applicable federal, state, and local statutes, order, ordinances, quarantines, rules, regulations or directives relating to the public health.

Operator means any person, including, but not limited to, a licensed, hairdresser/cosmetician or barber, or unlicensed person who is performing tasks allowed under the scope of this Code and the Public Health Code of the State of Connecticut.

Single use tool means a non-metal and/or porous item that is made or constructed of cloth, wood, sponge, pumice stone or other absorbent materials having rough surfaces which cannot be effectively cleaned and disinfected.

Salon means any shop, store, day spa or other commercial establishment at which the practice of barbering, hairdressing and cosmetology, or the services of a nail technician, or any combination thereof, is offered and provided.

Sanitize means effective antibacterial treatment by a process that provides sufficient concentration of chemicals for enough time to reduce the bacteria count including pathogens to a safe level on equipment.
(Ord. No. 15-17, 6-12-17)

Sec. 17-113. Establishment license required.

(a) As of January 1, 2018, no person, firm, or corporation shall operate a barbershop or salon that does not have a valid license issued by the Director of Health. Only a barbershop or salon that complies with the requirements of this section and the Public Health Code of the State of Connecticut shall be entitled to receive or retain such license. Licenses are not transferable and shall be renewed annually. A valid license shall be posted in a conspicuous public location, visible to patrons of the establishment.

(b) The provisions of this section shall apply to every barbershop and salon, in the City, that is engaged in the practice of barbering, hairdressing and cosmetology, or that provides the services of a nail technician, or any combination thereof.

(c) The Director of Health shall have the authority to adopt regulations for the purposes of licensing, inspecting and maintaining oversight of barbershops and salons pursuant to the provisions of this Code and the State of Connecticut General Statutes.

(d) A copy of all regulations governing the licensing, inspecting and oversight of barbershops and salons, adopted by the Director of Health, shall be provided free of charge, to all applicants seeking a license for a barbershop or salon at the time the application is made.
(Ord. No. 15-17, 6-12-17)

Sec. 17-114. Application and issuance of establishment license.

(a) Any person desiring to operate a barbershop or salon shall make written application for a license on forms provided by the Director of Health. Such application shall be submitted prior to the start of construction, remodeling, converting, or taking ownership of a new barbershop or salon. A plan review will be required as part of the license application process.

1. Prior to any change of ownership, and prior to opening a new barbershop or salon, a plan review application must be completed and the appropriate application fee paid.

2. No barbershop or salon having a permanent location shall be relocated, constructed, remodeled or extensively altered, nor shall a structure be converted to use as a barbershop, salon, hairdressing and/or cosmetology shop, or tanning salon, except in accordance with plans and specifications approved by the Hartford Department of Health and Human Services.

3. Two (2) sets of properly prepared plans drawn to a scale of not less than 1/4":1', and equipment specifications for such construction, remodeling or alteration shall be submitted to the Director of Health, or authorized agent, for review and approval before relocation, construction, remodeling, alteration, or conversion is begun. The plans and specifications shall indicate the proposed layout, arrangement and construction materials of work areas and the type and model of proposed fixed equipment, flooring material, and facilities. The plans and specifications shall be submitted, along with a completed plan review application to the Director of Health. The Director of Health shall approve the plans and equipment specifications if they meet the requirements of this Code and the Public Health Code of the State of Connecticut.

4. Applicants shall additionally submit, to the Director of Health, in writing, cleaning procedures describing the process by which too are to be cleaned, disinfected, and sanitized. Demonstration of these procedures is required prior to receiving a license.

5. Prior to the barbershop or salon opening, the Director of Health, or authorized agent, shall conduct a pre-operational inspection to determine compliance with the approved plans and specifications and with the requirements of this Code and the Public Health Code of the State of Connecticut.

6. The owner/operator must also obtain a certificate of occupancy (CO) from the Hartford Development Services Division of Licenses and Inspections, if applicable. The Director of Health shall issue a license upon receipt of the CO, and a completed application and submission of the appropriate fee.

7. Until one (1) year after the effective date of the rules promulgated under this Section of the Hartford Municipal Code, the City of Hartford Department of Health and Human Services shall issue a license to an applicant barbershop or salon that presents:

    a. Evidence that the establishment was operating as a barbershop or salon prior to January 1, 2018; and

    b. Evidence that the establishment's employees are in compliance with all state and local personal licensing requirements; and

    c. Floorplans of the establishment indicating the operation's layout and arrangement of work areas; and

    d. Evidence that the establishment is in compliance with all state and local tax requirements; and

    e. A valid certificate of occupancy from the Division of Licenses and Inspections, if applicable; and

8. License and application payments in accordance with Section 17-67.

   (a) All licenses shall expire on December 31 of each year, unless otherwise indicated, and may be renewed for another year upon application and payment of an annual fee, provided that the barbershop or salon is in compliance with this Code, the Public Health Code of the State of Connecticut, and all other applicable municipal ordinances.

   (b) In the case of a transfer of ownership of an existing barbershop or salon to a new owner, the establishment shall be brought into compliance with this Code, the Public Health Code of the State of Connecticut, and all other municipal ordinances by correcting all violations before a license to operate can be issued, unless with specific application for time-limited waiver. The license is not transferable from one (1) owner to another. All new owners shall apply for and maintain a current license.

   (c) Licensed operators in a barbershop or salon shop shall maintain and display an appropriate current license or registration from the State of Connecticut.

   (d) A temporary license to operate a barbershop or salon may be granted for a period not to exceed fourteen (14) consecutive calendar days. A temporary license would be required for conducting a public demonstration, a fund-raising event or a public convention.

(Ord. No. 15-17, 6-12-17)

Sec. 17-115. Inspection and right of entry.

(a) The Director of Health and his authorized agents are authorized, after proper identification, to enter at any reasonable time any barbershop or salon for the purpose of making inspections, as deemed necessary by the Director of Health or his authorized agent, to determine compliance with this Code, the Public Health Code of the State of Connecticut, and any other applicable codes, regulations or statutes.

(b) Assistance by police: The City of Hartford Police Department shall assist the Director of Health, when required to do so by statute or ordinance, in the performance of the duties prescribed herein. The City of Hartford Police Department shall report to the Director of Health or his authorized agent, any violation of this article or of the general statues in respect to the operation or maintaining of any barbershop or salon within the City.
(Ord. No. 15-17, 6-12-17)

Sec. 17-116. License suspensions.

(a) The Director of Health may suspend any license to operate a barbershop or salon if the license holder does not comply with the requirements of this Code, the Public Health Code of the State of Connecticut, or any applicable municipal ordinance.

(b) In the event that the Director of Health, or authorized agent, finds conditions not in compliance with the requirements of this ordinance in the operation of a barbershop or salon, or if a violation or set of violations appears on more than one (1) consecutive inspection report, the Director of Health may immediately issue an order to correct to the license holder or person in charge, as well as the renter (if applicable), citing such conditions, specifying the corrective action to be taken and time frame within which action shall be taken. If correction is not made in the allotted time, the license may be suspended or revoked.

In the event that the license is suspended or revoked, one (1) copy of the order to cease barbershop or salon operations shall be posted by the owner upon the inner surface of the window of the front entrance door of the barbershop or salon or upon the nearest window thereto in such a manner as to be clearly visible to the general public from the exterior of such barbershop or salon. Said order to cease opera-

tions shall not be defaced or removed by any person except the Director of Health, or his/her authorized agent.

(c) The Director of Health may suspend, without warning, prior notice or hearing, any license to operate a barbershop or salon:

(1) If the operation constitutes an imminent hazard to public health, (as defined in section (d) below); or

(2) If the owner, operator or person in charge has interfered with the performance of the Director of Health's duties, or

(3) If an unlicensed individual is performing procedures, including but not limited to haircutting and hairstyling, requiring licensure by the State of Connecticut.

(d) An imminent health hazard shall include, but is not limited to, any one (1) of the following:

(1) An ongoing outbreak of an infectious, pathogenic or toxic agent capable of being transmitted to clients; or

(2) The absence of an approved sanitizer/ disinfectant or evidence that sanitizer/ disinfectant is not being used properly to thoroughly clean implements and equipment after each client; or

(3) The absence of potable water, supplied under pressure, in a quantity which, in the opinion of the Director of Health, is capable of meeting the needs of the facility; or

(4) The absence of adequate hot water supply (water to be maintained at one hundred ten (110) degrees Fahrenheit); or

(5) A sewage backup into the facility; or

(6) A nuisance condition deemed imminent by the Director of Health and Human Services; or

(7) Operating without a valid license issued by the City of Hartford Department of Health and Human Services.

(e) Suspension shall be effective immediately upon documentation of imminent public health hazard and/or interference with the Director of Health's duties per items (c) and (d) of this section. A written order to cease and desist to the license holder of the facility from the Director of Health will follow within twenty-four (24) hours. When a license is suspended, all barbering and cosmetology operations within the establishment shall cease immediately and shall not resume until written approval to resume has been issued by the Director of Health. The Director of Health, or authorized agent, shall remove a suspended license from the premises.

(f) When a license is suspended, the holder of a license, or the person in charge, shall be notified in writing of the suspension, and an opportunity for a hearing will be provided if a written request for a hearing is filed with the Director of Health by the holder of the license within seventy-two (72) hours of notification. The Director of Health may end the suspension at any time by giving written notice to the license holder if reasons for suspension no longer exist.
(Ord. No. 15-17, 6-12-17)

Sec. 17-117. Service of notice.

Written notices and orders provided for in this Code shall be deemed to have been properly served when a copy of the notice or order has been delivered personally or sent by certified mail, return receipt requested, to the owner, license holder or person in charge of the barbershop or salon. A copy of any such notice or order shall be filed in the records of the Director of Health.
(Ord. No. 15-17, 6-12-17)

Sec. 17-118. License non-renewal.

(a) The Director of Health, after providing an opportunity for a hearing, may refuse to renew the license of any establishment for serious or repeated violations of any of the provisions of this Code, or for interference with the Director of Health in the performance of official duties, or for cases where the license to operate has been obtained through nondisclosure, misrepresentation or intentional misstatement of a material fact.

(b) Prior to non-renewal, the Director of Health shall notify the license holder, or person in charge, of the specific reason(s) for such non-renewal. The license shall be revoked at the end of ten (10) calendar days following the service of such notice, unless a written request for a hearing is filed with the Director of Health within seventy-two (72) hours of such notice. If no request for a hearing is filed within seventy-two (72) hours of receipt of such notice, the non-renewal becomes final.
(Ord. No. 15-17, 6-12-17)

Sec. 17-119. License reinstatements.

(a) *Post-suspension period*. Whenever a license has been suspended, the holder of the suspended license may request a hearing with the Director of Health for permit reinstatement. Within five (5) working days following the receipt of a written request, including a statement signed by the applicant that, in his opinion, the conditions causing the suspension have been corrected, the Director of Health, or his/her authorized agent, shall make a re-inspection. If the Director of Health, or authorized agent determines that the applicant has complied with the requirements of this Code and the Public Health Code of the State of Connecticut, the license shall be reinstated and returned to the license holder.

(b) *Post non-renewal period*. After a period of sixty (60) calendar days from the date of refusal to renew, a written application may be made for the issuance of a new license. This application will be treated as a new application. All appropriate procedures, fees and inspections will be required, including a plan review.
(Ord. No. 15-17, 6-12-17)

Sec. 17-120. Hearings.

The Director of Health shall conduct the hearings provided for in this chapter at a designated place and time. The Director of Health shall make a final finding based upon the complete hearing record, and shall sustain, modify or rescind any notice or order considered in the hearing. The Director of Health shall furnish a copy of the written report of the hearing decision to the license holder within ten (10) calendar days of the hearing date.
(Ord. No. 15-17, 6-12-17)

Sec. 17-121. Appeals.

The owner or operator of a barbershop or salon aggrieved by a written notice or order may, within seventy-two (72) business hours after the receipt of such notice and/or order, appeal to the Director of Health who shall thereupon immediately examine the merits of such case and may vacate, modify or affirm such written notice or order. The owner or operator of a barbershop or salon who is aggrieved by such action of the Director of Health may, no later than three (3) business days after the date of receipt of such notice or order appeal to the State of Connecticut Commissioner of Health who shall thereupon immediately notify the authority from whose order the appeal was taken and examine the merits of such case and may vacate, modify or affirm such action in accordance with the Connecticut General Statutes.
(Ord. No. 15-17, 6-12-17)

Sec. 17-122. Licenses.

(a) *Classification*. For purposes of this article, the following classifications for annual licenses of barbershops and salons shall be applied:

(1) *Class 1*. Barbershops and salons with between one (1) and three (3) workstations.

(2) *Class 2*. Barbershops and salons with four (4) or more workstations.

(b) *Fees*. As of January 1, 2018, the following annual fees shall be collected by the Department of Health for each license or renewal issued for barbershops and salons:

(1)	Class 1:	$150.00
(2)	Class 2:	$200.00
	The above fees may be prorated on a quarterly basis.	
	Plan review:	
	Class 1 and 2:	$100.00

Lost or replacement of the original barbershop and salon license fee:	$25.00
Return check fee:	$50.00

(c) *Other fees*:

Late fees for lapsed licenses for barbershops and salons shall be one hundred dollars ($100.00) initially and two hundred dollars ($200.00) each month or portion of a month in arrears thereafter.

Re-inspection fee, as provided for in this article, shall be one hundred dollars ($100.00).

(d) *Penalties*. Any person who violates any of the provisions of this section and/or the Public Health Code of the State of Connecticut may be cited for an infraction of not more than one hundred dollars ($100.00). Each day of the violation thereof shall be deemed a separate offense, applied to any person who operates a salon/barbershop establishment:

(1) Without a valid salon license, and/or

(2) While his establishment is tax delinquent, and/or

(3) While failing to remedy a previously cited violation by the time specified, shall be subject to a fine of not more than one hundred dollars ($100.00). Each day the violation continues shall constitute a separate offense.

If criminal prosecution is the result of noncompliance of any of the provisions of this section, the defendant shall be subject to the City of Hartford costs, together with reasonable attorney's fees as allowable by law.

(Ord. No. 15-17, 6-12-17)

Sec. 17-123.. Independent contractors.

Any barbershop or salon owner contracting out a chair "work station," or floor space shall state such on the permit application form and:

(1) The contractor must comply with all regulations set forth in this Code as well as the Public Health Code of the State of Connecticut.

(2) The shop owner will ensure that the contractor safely performs his/her duties within their scope of practice.

(Ord. No. 15-17, 6-12-17)

Sec. 17-124. Annual inspections.

At least once a year, the Director of Health, or authorized agent, shall inspect each barbershop or salon and shall make as many additional inspections as are necessary for the enforcement of this Code and the Public Health Code of the State of Connecticut.

(Ord. No. 15-17, 6-12-17)

Sec. 17-125. Equipment and facilities.

a. *Water supply*. An adequate supply of hot and cold water from a municipal or approved private source shall be provided for service for customers, cleanliness of employees and for washing floors, walls, ceiling and equipment.

b. *Waste disposal*. Wastewater from all plumbing fixtures shall be discharged into municipal sewers where available. Otherwise, suitable facilities shall be installed for the absorption of the wastes by the soil in underground systems in accordance with provisions of the Public Health Code of the State of Connecticut and the Code of Ordinances of the City of Hartford.

c. *Plumbing fixtures*.

1. Plumbing fixtures shall be of impervious material and of a type which is readily cleanable. They shall be free from cracks and from parts which are not readily accessible for cleaning. They shall be of a type which does not constitute a hazard to a public water supply through back siphonage.

2. There shall be one (1) wash bowl for each shampoo chair and three (3) operators.

3. Shampoo bowls shall be used for barbering, hairdressing and cosmetology work only.

4. A utility sink shall be provided for proper cleansing of instruments.

d. *Floors*. Floors shall be nonporous and of such construction as to be easily cleaned. Floors where tinting or shampooing is done or where chemicals for bleaching hair are used shall have hard and washable surfaces. Floors shall be kept clean and in good repair. If carpeting or similar material is used for floor covering, it shall be of a light color with a single loop pile of not more than one-fourth (¼) inch in height. Such floor covering shall be kept clean by vacuuming at least daily and shampooing at least once annually and more frequently if the covering is not clean.

e. *Lighting and ventilation*.

1. Lighting shall be sufficient to provide adequate illumination in the work area.
2. Windows shall be effectively screened against insects, rodents, and other vermin.
3. The shop shall be adequately ventilated so as to remove chemical vapor emissions, excess heat and odors. Ventilation shall comply with state and local building codes and ordinances.
4. Nail salons using nail polishes, enamels, basecoats, hardeners, and chemical solvents are deemed to create indoor vapor emissions and shall not pollute nor negatively affect the indoor air quality of adjacent premises.
5. Salons providing nail technician services shall be equipped with ventilation systems in compliance with the requirements of the Connecticut Building Code.

f. *Cabinets*. Cabinets shall be provided for storage of clean linen and towels. They shall have tight-fitting doors that shall be kept closed to protect the linen and towels from dust and dirt.

g. *Receptacle for used towels*. A covered receptacle which can be readily emptied and cleansed shall be provided exclusively for soiled towels or linen.

h. *Refuse*. Covered containers for hair droppings, paper and other waste material shall be provided and maintained so that they are not offensive.

i. *Toilet facilities*.

1. Adequate toilet facilities and washbasins must be provided for patrons and employees. Where both male and females are employed, toilet facilities shall be provided for separate use of each sex. Such facilities and washbasins shall be kept clean and in working order.
2. Handwashing facilities shall be provided with hot and cold running water, a sanitary soap dispenser and service towels for patrons and attendants.
3. The use of common soap for more than one (1) person is prohibited.

j. *Working areas*.

1. Working areas shall be thirty-six (36) square feet at a minimum for each operator employed in the shop. Work areas shall not include any space devoted to waiting room and other purposes.
2. Three-foot wide passageways shall be maintained throughout the shop.
3. No dryers shall be placed in any waiting room or in any passageway.

k. *Barbershop or hairdressing and/or cosmetology shop in residence*.

1. A barbershop or salon located in a residence must be confined to a separate room, separated with ceiling-high partitions and provided with a door to be closed at all times.
2. The area within a home operated as a barbershop or hairdressing and/or cosmetology shop must be equipped with the facilities and instruments required in all such establishments.

(Ord. No. 15-17, 6-12-17)

Sec. 17-126. Maintenance and operation.

a. *General cleanliness*.

1. The licensed owner of every barbershop or salon shall keep it in a clean and sanitary condition at all times.

2. No hair droppings shall be allowed to accumulate on floors. Hair droppings shall be removed frequently and as soon as possible in such a manner as not to cause objectionable conditions.

b. *Walls, ceilings and fixtures*.

1. Ceilings shall be kept in good repair, and cracks in walls, especially around baseboards, shall be filled in so as to prevent the harboring and breeding of insects.

2. Cabinets, shelves, furniture, shampoo bowls and fixtures shall be kept clean and free of dust, dirt and hair droppings. Arms, seats and rests of chairs shall be wiped of hair droppings after serving each customer.

c. *Sanitary services*.

1. A towel shall not be used for more than one (1) person without being properly laundered before each use.

2. The headrest of the chair shall be covered by a properly laundered towel or paper for each customer before the customer is permitted to recline in such chair.

3. A sanitary paper strip shall be placed completely around the neck of each customer before any apron or hair cloth or any other protective device is fastened around the neck.

4. Clean towels shall be delivered in bags and kept in a clean, closed cabinet or closet.

d. *Sanitation of equipment and implements*.

1. Hair brushes, combs and all other implements used on a customer shall be kept clean and sanitary at all times and shall undergo thorough cleansing and disinfection after serving each customer.

2. Sanitary covered containers shall be provided and maintained, which shall contain a disinfectant for the mandatory storage of the aforesaid implements when not in use.

3. After handling a customer affected with an eruption or whose skin is broken out or is inflamed or contains pus, the instruments shall be effectively cleaned, washed with soap or a detergent and water, then rinsed with water having a temperature of at least one hundred seventy (170) degrees Fahrenheit or allowed to remain for five (5) minutes in alcohol (seventy (70) to eighty (80) percent) or some other equally efficient disinfectant.

4. Shaker-top containers must be provided for dispensing lotions and powders.

5. Single-service towels, papers and other material shall be disposed of in the proper receptacle immediately after use and shall not be used again.

e. *Shaving brushes, mugs and finger bowls*. The use of shaving brushes and shaving mugs is prohibited. The use of finger bowls for manicuring purposes is prohibited unless a separate sanitary inner paper liner or cup is used for each customer and discarded immediately after use.

f. *Alum and other astringents*. Alum or other material used to stop the flow of blood shall be applied in powdered or liquid form only.

g. *Neck dusters, powder puffs and sponges*. The use of brush neck dusters and powder puffs is prohibited.

h. *Foods and beverages*. Foods and beverages are not to be prepared, stored or sold in the licensed premises, except coffee and tea prepared and kept for the convenience of employees and patrons, but no charge therefore is to be made to patrons who are served therewith. Foods and nonalcoholic beverages may, however, be brought into the licensed premises for immediate consumption and also may be dispensed by means of automatic vending machines on the premises, provided that such machines comply with all federal, state and local laws and the rules and regulations promulgated by any board, bureau or subdivision having jurisdiction thereof, and provided that such vending machines are maintained and operated in accordance with such laws, rules and regulations.

i. *Animals or pets*. No animals or pets shall be kept in any barbershop or salon.
(Ord. No. 15-17, 6-12-17)

Sec. 17-127. Cleanliness of operators.

a. The hands of the operator shall be thoroughly washed with soap and warm water before serving each customer and immediately after using the toilet.

b. Attire. Operators shall wear, while attending any patron in a barbershop or salon, clean, washable garments having at least one-quarter-length sleeves.
(Ord. No. 15-17, 6-12-17)

Sec. 17-128. Smoking prohibited.

Smoking (including e-cigarettes) shall be prohibited in all barbershops and salons.
(Ord. No. 15-17, 6-12-17)

Sec. 17-129. First aid kit required.

All barbershops and salons must keep on premises a first aid kit which must be replenished as necessary. The first aid kit must be easily accessible to salon employees and technicians at all times.
(Ord. No. 15-17, 6-12-17)

Sec. 17-130. Recommended disinfectants.

All barbershops and salons must use wet sanitizers with hospital grade or U.S. Environmental Protection Agency (EPA) approved disinfectant. A wet sanitizer is any receptacle with a proper cover large enough to completely immerse items to be sanitized which contains an approved disinfectant. A hospital grade or EPA approved disinfectant shall be defined as:

a. For all combs, brushes, tools, metal implements, instruments with a cutting edge and implements which have not come into contact with blood or body fluids: a disinfectant which indicates on its label that it has been registered with the EPA as a hospital grade bactericide, viricide and fungicide.

b. For all combs, brushes, tools, metal implements, implements with a cutting edge and implements which have come into contact with blood or body fluids: a disinfectant which indicates on its label that it has been registered with the EPA as a hospital grade tuberculocidal.
(Ord. No. 15-17, 6-12-17)

Sec. 17-131. Display of registration certificate.

Each licensed or registered barber, hairdresser and/or cosmetician in the State of Connecticut must display a current license or registration certificate in a conspicuous place adjacent to or near each barber's, hairdresser's or cosmetician's work station so that it may be seen by the public.
(Ord. No. 15-17, 6-12-17)

Sec. 17-132. Mandatory procedures for maintaining a nail salon.

Purpose. The City of Hartford has determined that standardization of the practice of professional nail enhancement is necessary in order to protect the health of nail technicians, clients, and visitors of nail salons from the risk of injury or infection due to unsanitary conditions and exposure to hazardous chemicals. In addition to sections 17-55 through 17-76 of this chapter, the following sections are promulgated to set forth the implementation of Hartford's Nail Salon Regulation.
(Ord. No. 15-17, 6-12-17)

Sec. 17-133. United States Department of Labor OSHA requirements—Safety Data Sheets (SDSs); Material Safety Data Sheets (MSDS); and chemical storage.

1. The following categories of chemical products, if present in the salon, must be stored in closable containers properly labeled with the product/chemical name (this includes smaller dispensing bottles as well as original packaging) and must have a Safety Data Sheet (SDS, formerly Material Safety Data Sheet or MSDS) available and on file in the salon:

2. SDSs must be available and accessible to salon employees at all times. The Hartford Department of Health and Human Services recom-

mends a salon maintain all SDSs in a binder or file folder in a central location that is easily accessible to employees.

3. An SDS for a chemical product is available from the distributor and/or manufacturer of the product and should be obtained at the time of purchase. An SDS may also be available on the product manufacturer's website.

4. All flammable chemicals shall be kept away from heat and shall be stored in a flammable storage cabinet in compliance with applicable law and approved fire reference standards when not in use. Applicants must secure all necessary permits from the Hartford Fire Department as soon as possible. Whenever possible, small-mouthed dispensers or pump dispensers shall be used.

5. All chemical storage containers (including smaller dispenser bottles as well as original packaging) must be kept closed when not in use.
(Ord. No. 15-17, 6-12-17)

Sec. 17-134. Eye wash station.

1. The nail salon eye wash can be either a station connected to the building plumbing and capable of continual operation, a stand-alone system specifically designed and marketed for use as an eye wash station, or a clearly marked station containing two (2) or more personal eye wash bottles. Stand-alone eye wash stations are typically a plastic wall-mounted unit that holds several gallons of sterile water or saline solution while a personal eye wash bottle station may have a plastic or metal shelf that mounts to the wall to hold two (2) or more sealed bottles of sterile saline or water. A hand-washing sink is not an acceptable eyewash station.

2. Manufacturer guidelines for installation and maintenance of any stand-alone systems or bottles must be followed to prevent contaminants from getting into the wash water. Eye wash bottle nozzles must remain clean and clear and the water must be replaced regularly. Adhering to the manufacturer recommended water or saline replacement schedule as well as expiration dates is required. Should the liquid in the eye wash device ever become cloudy or odorous, it must be discarded and replaced immediately regardless of the manufacturer recommendation.

3. The eyewash station cannot be located in the salon bathroom. The eye wash station must be easily accessible to staff and customers within the main work area — within ten (10) feet of the work area or reachable within ten (10) seconds.
(Ord. No. 15-17, 6-12-17)

Sec. 17-135. Single-use tools.

Single-use tools are any salon tools made of foam, wood, or other porous materials that cannot be effectively cleaned and disinfected between clients and/or are degraded by use on a client. These must be discarded into a covered, labeled waste container at the work station immediately after use on a single client. Examples of common single-use tools include, but are not limited to, toe separators, flip-flops, non-metal cuticle pushers, cotton swabs/balls, non-metal nail files, pumice stones, gloves, and waxing sticks/spatulas.
(Ord. No. 15-17, 6-12-17)

Sec. 17-136. Multi-use tools.

Multi-use tools must be disinfected between uses by immersion/soaking/rinsing the tool(s) in an EPA-registered hospital grade disinfectant following the manufacturer directions for use in disinfecting objects. This should be followed by a thorough rinse with clean, cold tap water. The tool(s) can then be dried with disposable paper towels.
(Ord. No. 15-17, 6-12-17)

Sec. 17-137. Public health notice.

a. Every nail salon shall display a public health notice in a manner and location conspicuous to employees, clients, or visitors of the salon upon entry.

b. The public health notice must be permanently affixed and shall be:

a. Made of durable material;

b. At least eight and one-half (8.5) inches by eleven (11) inches in size;

c. Printed in twelve (12) point or larger type;

d. In strongly contrasted text on a bright background (for example, black text on a white or yellow background, white text on a dark blue or red background, etc.) to allow for ease of reading; and

e. An exact replica of the language included on the Hartford Department of Health and Human Services public health notice template.

c. An approved public health notice may be obtained from the Department of Health and Human Services 131 Coventry St, Hartford, CT 06112.
(Ord. No. 15-17, 6-12-17)

Secs. 17-138—17-160. Reserved.

ARTICLE VI. PREGNANCY INFORMATION DISCLOSURE AND PROTECTION*

Sec. 17-161. Findings.

(a) The Council's intention is to ensure that individuals in Hartford have access to comprehensive information about, and timely access to, all types of reproductive health services including, but not limited to, pregnancy, prenatal care, emergency contraception, and abortion.

(b) Pregnancy decisions are time sensitive, and care early in pregnancy is important, whether a woman chooses to continue her pregnancy and needs prenatal care or wants to end her pregnancy and needs an abortion. Connecticut prioritizes the health of women and families, and low-income women can receive immediate access to free or low-cost comprehensive family planning services and pregnancy-related care through Connecticut's Medicaid program.

(c) Prenatal care, abortion and emergency contraception are all time sensitive services. Increasing the proportion of women receiving adequate and early prenatal care is a pronounced objective of the United States Department of Health and Human Services. The federal Centers for Disease Control and Prevention urges that comprehensive prenatal care begin as soon as a woman decides to become pregnant. Similarly to prenatal care, delayed access to abortion and emergency contraception poses a threat to public health. Delay in accessing abortion or emergency contraception creates increased health risks and financial burdens and may eliminate a women's ability to obtain these services altogether, severely limiting her reproductive health options. Delays in deciding to terminate a pregnancy, in particular, may mean that a less invasive method is no longer available or that the woman is prevented from choosing an abortion altogether.

(d) A woman's right to choose whether to terminate a pregnancy is protected by both the federal and state Constitutions, and is protected from interference by third parties and the government.

(e) Many people have deeply held religious and moral beliefs both supporting and opposing abortion, and the City respects the right of individuals to express and promote such beliefs.

(f) In recent years, clinics that seek to counsel clients against abortion have become common throughout Connecticut, with more than twenty (20) such clinics in the state. These clinics are often referred to as crisis pregnancy centers ("CPCs"). Although some CPCs are licensed to provide various medical services to pregnant women, most CPCs are not licensed medical clinics.

(g) While some CPCs openly acknowledge, in their advertising and their facilities, that they do not provide abortions or emergency contraception or refer clients to other providers of such services, many CPCs, through their appearance and services offered, appear to offer abortion services and unbiased and comprehensive counseling. Moreover, some CPCs have engaged in conduct that intentionally leads clients to believe that they are in a reproductive health care

*__Editor's note—__Ord. No. 25-17, adopted Dec. 11, 2017, enacted provisions set out as §§ 17-138—17-143, however, in order to allow for reserved sections preceding this article, said provisions have been redesignated as §§ 17-161—17-166, at the discretion of the editor.

facility and/or have received reproductive health care and counseling from a licensed medical provider when, in fact, they have not.

(h) The Council finds that there are CPCs in Hartford that advertise as medical facilities and use signage similar to actual medical facilities.

(i) It is vital that pregnant women in Connecticut know whether they are getting medical care from licensed professionals. Facilities that advertise and provide pregnancy testing and care must advise clients, at the time they are seeking or obtaining care, whether or not these facilities have licensed medical professionals on staff who provide or directly supervise that care.

(j) Many CPCs advertise on billboards, mass-transit facilities, and through websites, and some CPCs utilize a technology that allows them to target social media advertisements to women when they approach or enter an abortion clinic.

(k) Most clients do not come to CPCs as a result of a referral from a medical professional. Clients with an unplanned pregnancy or at risk of an unplanned pregnancy are often experiencing emotional and physical stress and are therefore especially susceptible to false or misleading elements in advertising by CPCs. These circumstances raise the need for regulation that is more protective of consumers of pregnancy center services.

(l) Because of the time-sensitive and constitutionally protected nature of the decision to terminate a pregnancy, false and misleading advertising by clinics that do not offer or refer clients for abortion or emergency contraception is of special concern to the City. When a woman is misled into believing that a clinic offers services that it does not in fact offer, she loses time crucial to the decision whether to terminate a pregnancy. Under these circumstances a client may also lose the option to choose a less invasive method, or to terminate the pregnancy at all.

(m) The City respects the right of pregnancy services centers to counsel against abortions, if the centers are otherwise operating in compliance with this Chapter, and the City does not intend by this Chapter to regulate, limit, or curtail such advocacy. However, women seeking medical care or those who have chosen to terminate a pregnancy should not be misled and delayed by the actions or false advertising of CPCs.

(n) After carefully balancing the constitutionally protected right of a woman to choose to terminate her pregnancy, the right of individuals to express their religious and ethical beliefs about abortion, and the harm to women effected by even slight delays that can be caused by false advertising for pregnancy and/or abortion services, the City has determined that there exists a need to regulate false and misleading advertising by pregnancy services centers and to require that pregnancy centers make certain disclosures to ensure that patients are adequately informed when they seek services at a pregnancy services center.
(Ord. No. 25-17, 12-11-17)

Sec. 17-162. Definitions.

For the purposes of this Chapter, the following terms shall have the following meanings:

Abortion shall mean the termination of a pregnancy for purposes other than producing a live birth. "Abortion" includes, but is not limited to, a termination using pharmacological agents.

Client shall mean an individual who is inquiring about or seeking services at a pregnancy services center.

Emergency contraception shall mean one (1) or more prescription drugs (1) used separately or in combination, to prevent pregnancy, when administered to or self-administered by a patient, within a medically-recommended amount of time after sexual intercourse, (2) dispensed for that purpose in accordance with professional standards of practice, and (3) determined by the United States Food and Drug Administration to be safe for that purpose.

Health information shall mean any oral or written information in any form or medium that relates to health insurance and/or the past, present, or future physical or mental health or condition of a client.

Licensed medical provider shall mean a person licensed under the provisions of federal, state, or local law to provide medical services.

Pregnancy services center shall mean a facility, including mobile facilities, the primary purpose of which is to provide services to women who are or may be pregnant, that either (1) offers to provide or does provide obstetric ultrasounds, obstetric sonograms or prenatal care to pregnant women, or (2) has the appearance of a medical facility. A pregnancy service center has the appearance of a medical facility if two (2) or more of the following factors are present:

(1) The facility offers pregnancy testing and/or pregnancy diagnosis;

(2) The facility has staff or volunteers who wear medical attire and uniforms;

(3) The facility contains one (1) or more examination tables;

(4) The facility contains a private or semi-private room or area containing medical supplies and/or medical instruments;

(5) The facility has staff or volunteers who collect health information from clients; or

(6) The facility is located on the same premises as a state-licensed medical facility or provider or shares facility space with a state-licensed medical provider.

It shall be prima facie evidence that a facility has the appearance of a medical facility if it has two (2) or more of the characteristics listed above. "Pregnancy service center" does not include or mean any facility or office that is licensed by the state of Connecticut or the United States government to provide medical or pharmaceutical services or where a licensed medical provider is present to directly provide or directly supervise the provision of all medical services mentioned in this section at all times during which these services are being provided at the facility, including abortion, emergency contraception, prenatal care, pregnancy diagnosis and testing, obstetric ultrasounds or sonograms.

Premises shall mean land and improvements or appurtenances or any part thereof.

Prenatal care shall mean services consisting of physical examination, pelvic examination, or clinic laboratory services provided to a woman during pregnancy. Clinic laboratory services refers to the microbiological, serological, chemical, hematological, biophysical, cytological, or pathological examination of materials derived from the human body, for the purposes of obtaining information, for the diagnosis, prevention, or treatment of disease or the assessment of health condition.
(Ord. No. 25-17, 12-11-17)

Sec. 17-163. Required disclosures.

(a) A pregnancy services center shall disclose if it does not have a licensed medical provider on the premises who provides or directly supervises the provision of all medical services provided at such pregnancy services center at all times during which these services are being provided.

(b) The disclosures required by this section must be provided:

(1) In writing, in English and Spanish in a size and style as determined in accordance with rules promulgated by the City Department of Health and Human Services on (A) at least one (1) sign conspicuously posted in the entrance of the pregnancy services center; (B) at least one (1) additional sign posted in any area where clients wait to receive services; and (C) on any website of the pregnancy services center; and

(2) Orally, whether in person or by telephone communication, whenever a client or prospective client requests any of the following services: (A) abortion, (B) emergency contraception, or (C) prenatal care.

(c) Penalty. Covered facilities that fail to comply with the requirements of this Section (Required Disclosures) of this Chapter are liable for a civil penalty of one hundred dollars ($100.00) per offense. Each day any such violations continue shall constitute a separate offense.
(Ord. No. 25-17, 12-11-17)

Sec. 17-164. Prohibition of false, misleading, or deceptive advertising.

(a) It is unlawful for any pregnancy services center, with intent directly or indirectly to perform pregnancy-related services (professional or otherwise), to make or disseminate or cause to be made or disseminated any statement concerning those services, professional or otherwise, or concerning any circumstance or matter of fact connected with the proposed performance or disposition thereof, which is untrue, misleading, or deceptive, whether by statement or omission, that the pregnancy services center knows, or which by the exercise or reasonable care should know, to be untrue or misleading. This prohibition applies to statements made before the public in the city or statements that are made, disseminated or caused to be disseminated from the city before the public anywhere, in any newspaper or other publication, or in any other manner or means whatsoever, including over the Internet.

(b) It is unlawful for any pregnancy services center, with intent directly or indirectly to perform pregnancy-related services (professional or otherwise), to make or disseminate or cause to be so made or disseminated any such statement identified in subsection (a) as part of a plan or scheme with the intent not to perform the services expressly or impliedly offered, as advertised.

(c) Penalty. Covered facilities that fail to comply with the requirements of this Section (Prohibition of False, Misleading, or Deceptive Advertising) of this Chapter are liable for a civil penalty of one hundred dollars ($100) per offense. Each day any such violations continue shall constitute a separate offense.
(Ord. No. 25-17, 12-11-17)

Sec. 17-165. Enforcement and opportunities to cure.

(a) The City Department of Health and Human Services may enforce the provisions of Section 17-163 (Required Disclosures) and Section 17-164 (Prohibition of False, Misleading, or Deceptive Advertising) of this Chapter through a civil action in any court of competent jurisdiction, following exhaustion of administrative remedies. Prior to initiating a civil action, the City shall:

(1) Provide the covered facility with written notice of noncompliance, which informs the facility that it is subject to a civil penalty if it does not correct the violation within ten (10) days from the date the notice is sent to the facility.

(2) Verify that the violation was not corrected within the ten-day period described in paragraph (1).

(b) Any civil penalties imposed by the court pursuant to Sections 17-163(e) or 17-164(c) of this Chapter shall be paid to the City of Hartford.

(c) Upon a finding by a court of competent jurisdiction that a pregnancy services center has violated Section 17-163 or 17-164 of this Chapter, the City shall be entitled to recover penalties from each and every party responsible for the violation. In addition, if the City prevails it shall be entitled to reasonable attorney's fees and costs pursuant to order of the court.

(d) Nothing in this Chapter shall be interpreted as restricting or otherwise limiting the enforcement authority that state law or the Charter or Municipal Code vest in the City, its agencies, officers or employees or any state agency.

(e) Nothing in this Chapter shall be interpreted as creating a right of action for any party other than the City.

(f) Nothing in this Chapter shall be interpreted as restricting, precluding or otherwise limiting a separate or concurrent criminal prosecution under the Municipal Code or state law. Jeopardy shall not attach as a result of any court action to enforce the provisions of this Chapter.
(Ord. No. 25-17, 12-11-17)

Sec. 17-166. General provisions.

(a) *Severability*. If any section, subjection, sentence, clause, or phrase of this ordinance is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of the ordinance.

(b) *No Conflict with State or Federal Law*. Nothing in this ordinance shall be interpreted or applied so as to create any requirement, power, or duty in conflict with any federal or state law.

(c) *Undertaking for the General Welfare*. In adopting and implementing this ordinance, the City of Hartford is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing in its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury. (Ord. No. 25-17, 12-11-17)

Secs. 17-167—17-200. Reserved.

ARTICLE VII. ENVIRONMENTAL STEWARDSHIP—PLASTIC BAGS*

Sec. 17-201. Generally.

This Article shall be known and referred to as the "City of Hartford Plastic Bag Ordinance." (Ord. No. 09-19, 6-10-19)

Sec. 17-202. Background.

The City of Hartford (the "City") has shown leadership in initiatives that result in a positive impact on our environment. Consequently, the City now seeks to protect its and other waterways, including, but not limited to, the Connecticut River, local streams, Long Island Sound and ultimately the oceans, and reduce the volume and toxicity of waste materials in the solid waste stream that are directed to resource recovery and sanitary landfill facilities.

Single-use plastic carryout bags pollute, among other places, our local streams and rivers, disintegrate into smaller bits that contaminate soil and waterways, and enter into the food supply of humans, animals and aquatic life. In the United Sates alone, the production of single-use plastic carryout bags requires the use of more than twelve million (12,000,000) barrels of crude oil per year, which, in and of itself, has a significant negative environmental impact.
(Ord. No. 09-19, 6-10-19)

*__Editor's note—__Ord. No. 09-19, adopted June 10, 2019, enacted provisions designated as §§ 17-167—17-175, however, to conform to the style of this Code, said provisions have been redesignated as §§ 17-201—17-207 at the discretion of the editor.

Sec. 17-203. Purpose.

The intent of this Article is to advance the environmental stewardship of the City through the Climate Action Plan, by improving and protecting the built and natural environment in Hartford, Connecticut, by encouraging the use of reusable bags and banning the use of certain plastic bags. (Ord. No. 09-19, 6-10-19)

Sec. 17-204. Findings.

Single-use plastic carryout bags have a significant negative impact on the environment. Their use contributes to: the potential death of wildlife and livestock through ingestion and entanglement; pollution of both land and marine environments; increased burdens for solid waste collection and recycling facilities; clogging of storm drainage and sewer systems; and the creation of unsightly litter. Production of single-use plastic carryout bags requires the use of oil, a non-renewable resource. Many chemicals in plastic products are now known to cause harm. Plastic bags also last hundreds of years in landfills and are not biodegradable, Across the globe, many countries have taken steps in recent years to address the growing problem of plastic waste - including plastic bags. In the United States, single-use plastic bags have been banned entirely in California, New York, Hawaii, Puerto Rico and over two hundred (200) municipalities in twenty (20) states. Creating such a ban in Hartford would reduce waste and environmental impact.
(Ord. No. 09-19, 6-10-19)

Sec. 17-205. Definitions.

Terms used in this Article shall be construed as follows, unless another meaning is expressed or is clearly apparent from the language or context:

Biodegradable paper bag means a paper bag that can be broken down by bacteria into carbon dioxide, water, and biomass within a reasonable amount of time in a natural environment.

Checkout bag means a carryout bag that is provided to the customer at the point of sale.

Covered sales means the transfer to a customer of goods, merchandise, materials, and/or services in exchange for payment occurring at a retail facility or food establishment.

Food Establishment means those establishments, in Hartford, defined in section 14-2 of this Code.

Gross floor area has the same meaning as the definition in the zoning regulations, or if the zoning regulations do not define gross floor area, then the sum of all gross horizontal areas of a building under the roof, measured from the exterior faces of the exterior walls (and from the center lines of party walls), including basement space where one-half (½) of the basement height is above the finished lot grade average along the exterior walls of the building; elevators and stairwells on each floor; attic space with headroom of more than seven (7) feet; and enclosed porches, interior balconies and mezzanines, and penthouses; and excluding floor space using mechanical equipment used in the operation and maintenance of a building and floor space devoted to parking space(s) or parking facilities.

Post-consumer recycled content means a material that would otherwise be destined for solid waste disposal, having completed its intended end use and product life cycle. "Post-consumer recycled content" does not include materials and byproducts generated from, and commonly reused within, an original manufacturing and fabrication process.

Produce bag means a flexible bag made of very thin plastic material, with a maximum thickness of .75 mils, with a single opening that is used to contain produce, meats, or other items selected by the customer at the point of sale.

Recyclable paper bag means a paper bag that has the following characteristics: contains no old growth fiber; is one hundred (100) percent recyclable overall and contains a minimum of forty (40) percent post-consumer recycled content; and displays the words "reusable" and "recyclable" on the outside of the bag.

Retail facility means any facility, in Hartford, that is in any way involved in the sale and/or provision of goods, merchandise, materials and/or services to the general public for personal and/or household consumption, including, but not limited to, retail stores, sidewalk sales, farmers' markets, flea markets, pharmacies, grocery stores, and convenience stores. It excludes residences where one (1) or more resident(s) has/have organized yard sales, tag sales, political fundraisers, or similar activities.

Reusable bag means a bag with handles that is specifically designed and manufactured:

a. For multiple reuses; and

b. Is made of cloth or other fabric; and/or durable plastic at least 3 mils thick; and/or any other comparable material; and

c. Has a minimum lifetime of one hundred twenty-five (125) uses.

Single-use plastic carryout bag means a checkout bag made predominantly or entirely of plastic, with a minimum thickness of 0.76 mils and a maximum thickness of 3.0 mils, that is provided to a customer at the point of sale and intended for the single-use transport of any purchased products and/or items. The term "single-use plastic carryout bag" does not include the following: produce bags; reusable bags; or plastic bags measuring twenty-eight (28) inches by thirty-six (36) inches or larger in size.
(Ord. No. 09-19, 6-10-19)

Sec. 17-206. Restriction on single-use plastic carryout bags.

(a) Beginning one hundred and eighty (180) days following the effective date of this Article, single-use plastic carryout bags shall not be distributed, used, or sold as checkout bags or for other purposes at food establishments or retail facilities with eight thousand (8,000) square feet of gross floor area or more.

(b) Beginning three hundred and sixty-five (365) days following the effective date of this Article, single-use plastic carryout bags shall not be distributed, used, or sold as checkout bags or for other purposes at food establishments or retail facilities with less than eight thousand (8,000) square feet of gross floor area.

(c) All recyclable paper bags and/or biodegradable paper bags provided to customers at the point of sale at retail facilities shall be sold at a cost of not less than ten (10) cents per bag. The foregoing requirement concerning a minimum charge shall not be applicable to the extent that it would violate any Federal or State law(s).

(d) Nothing in this Article shall preclude persons engaged in covered sales from making available or selling reusable bags to customers.
(Ord. No. 09-19, 6-10-19)

Sec. 17-207. Enforcement, violations, fines/penalties, and appeals.

The City's Department of Health and Human Services (the "Department") is hereby empowered and authorized to enforce the provisions and requirements of this Article in accordance with the applicable provisions of Section 1-5 of this Code. Violation of the requirements in this Article may be subject to the fines/penalties set forth in this section.

(a) If the Department determines that a violation of this Article has occurred, the Department may issue a written warning notice to the relevant food establishment or retail facility for the violation with an order to cease and desist from the activity that is the basis of the violation within a reasonable amount of time, as determined by the Department.

(b) If the Department subsequently determines that, despite the issuance of the written warning notice and cease and desist order, the violation continues, the Department may issue a citation to and impose a fine/penalty on and against the relevant food establishment or retail facility.

(c) For each violation that occurs after the issuance of the written warning notice and cease and desist order, the fine/penalty imposed by the Department shall be two hundred and fifty dollars ($250.00), and each day in which the violation continues shall constitute a separate and distinct violation for which the fine/penalty imposed shall be two hundred and fifty dollars ($250.00) per day.

(d) Appeals may be made pursuant to the applicable provisions of Section 1-5 of this Code.

(e) Without limiting any of the foregoing, the Department is hereby empowered and authorized to request that the City take any legal action to enforce this Article, including, but not limited to, the collection of any fines/penalties, which legal action, prior to its initiation, must first be deemed to be appropriate and in the best interests of the City by the City's Office of the Corporation Counsel.
(Ord. No. 09-19, 6-10-19)

Sec. 17-208. Severability.

The provisions of this Article are hereby declared severable, and if any provision, clause, sentence, or paragraph in this Article, or the application thereof, to any person(s) or circumstance(s) is held by a court of competent jurisdiction to be unconstitutional or otherwise invalid, such a ruling shall not affect the other parts of this Article that can be given effect.
(Ord. No. 09-19, 6-10-19)

Sec. 17-209. Effective date.

This Article shall take effect upon adoption.
(Ord. No. 09-19, 6-10-19)

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Chapter 18

HOUSING*

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***Editor's note—**Ord. No. 15-19, adopted Oct. 28, 2019, repealed the former ch. 18, §§ 18-1—18-13, 18-31—18-38, 18-56—18-72, 18-91—18-98, 18-116—18-121, 18-136—18-149, 18-161—18-181, 18-191—18-203, 18-221, 18-231—18-233, and enacted a new ch. 18 as set out herein. The former ch. 18 pertained to similar subject matter and derived from Code 1977, §§ 18-1—18-191; Ord. No. 8-80, adopted May 12, 1980; Ord. No. 30-81, adopted Dec. 14, 1981; Ord. No. 12-83, adopted March 14, 1983; Ord. No. 54-83, adopted Nov. 28, 1983; Ord. No. 9-84, adopted March 12, 1984; Ord. No. 10-84, adopted March 12, 1984; Ord. No. 29-84, adopted Aug. 13, 1984; Ord. No. 4-85, adopted Jan. 16, 1985; Ord. No. 61-88, adopted Sept. 26, 1988; Ord. No. 80-88, adopted Dec. 12, 1988; Ord. No. 7-91, adopted Feb. 13, 1991; Ord. No. 11-91, adopted April 8, 1991; Ord. No. 17-91, adopted May 13, 1991; Ord. No. 29-91, adopted June 10, 1991; Ord. No. 25-95, adopted Nov. 27, 1995; Ord. No. 19-96, adopted Aug. 12, 1996; Ord. No. 14-00, adopted Sept. 25, 2000; Ord. No. 33-02, adopted Sept. 12, 2002; Ord. No. 59-02, adopted Nov. 25, 2002; Ord. No. 11-09, adopted March 9, 2009; Ord. No. 03-12, adopted March 12, 2012; Ord. No. 02-15, adopted Jan. 26, 2015; Ord. No. 13-15, adopted July 13, 2015.

Charter reference—Powers relating to housing, Ch. II, § 3.

Cross references—Commission on human relations, § 2-156 et seq.; design review board, § 2-296 et seq.; buildings and property, Ch. 9; fire protection and prevention, Ch. 13; garbage, refuse and weeds, Ch. 15; health and sanitation, Ch. 17; state tenement house law adopted, § 24-9; parks and recreation, Ch. 26; planning and development, Ch. 28; rehabilitation homes, Ch. 30; zoning regulations, Ch. 35.

State law reference—Authority to provide for safe and sanitary housing, G.S. § 7-148(c)(7)(A)(i).

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ARTICLE I. GENERALLY

Sec. 18-1. Title.

This chapter shall be known and referred to as the "Housing Code of the City of Hartford." (Ord. No. 15-19, 10-28-19)

Sec. 18-2. Purpose

The purpose of this chapter is to promote the public health, safety, and general welfare with respect to housing in the city of Hartford by achieving all of the following:

A. Enacting citywide standards for clean, safe, and habitable housing to, among other things, promote the general health and well-being of residents, improve indoor air quality, prevent asthma, reduce symptoms of allergies, and minimize the presence of toxic levels of lead.

B. Empowering city officials to inspect properties to assess compliance.

C. Clarifying the scope of enforcement authority.

D. Aligning city ordinance with building code, anti-blight and property-maintenance code, health code, fire code, and the zoning regulations adopted by the planning and zoning commission.

E. Promoting sustainable practices.

(Ord. No. 15-19, 10-28-19)

Sec. 18-3. Definitions.

A. Whenever the words "building," "dwelling," "dwelling unit," "rooming house," "rooming unit," "hotel," "hotel unit," "premises," and "structure" are used in this chapter, they shall be construed as if they were followed by the words "or any part thereof."

B. Except as otherwise provided, the following definitions shall apply in the interpretation and enforcement of this chapter:

Accessory structure means a detached structure (including a building) detached from, but located on the same lot as, a principal structure.

Approved means approved by the local or state authority having administrative authority.

Attic means any story situated wholly or partly within the roof, so designed, arranged or built as to be used for business, storage, or to the extent allowed by the building code habitation.

Authorized agent means an executor, executrix, administrator, administratrix, trustee, conservator, or guardian of the estate, or other individual or entity who is legally authorized to serve as the agent of an owner through a written, executed, unrevoked power of attorney, court order, or other document type acceptable to the director of licenses and inspections, and who is legally bound, through such document, to comply with the provisions of this chapter and the rules and regulations adopted pursuant thereto to the same extent as if he or she were the owner.

Basement means a story of a building located partly underground and having at least half of its height above the level of the grade.

Bathroom means a room or group of connected rooms, containing the equipment, fixtures, and materials identified in section 18-51 G. of this code.

Bed and breakfast has the definition in the zoning regulations

Cellar means a story of a building located partly or wholly underground and having half or more of its height below the level of the grade.

Director of health means the legally designated health authority of the city or his or her designee.

Director of licenses and inspections means the individual leading the office of the division of licenses and inspections within the city department of development services, or such successor agency or subagency, and any designee of such individual.

Dwelling means any enclosed space, other than a group living dwelling, hotel, or rooming house, which is wholly or partly used or arranged or designed to be used for living or sleeping by human occupants.

Dwelling unit means any room or group of rooms connected together that include a bathroom

and facilities for living, sleeping, cooking, and eating that are arranged, designed, or intended to be used as living quarters for one (1) household, regardless of form of ownership in which such dwelling unit is held or whether such dwelling unit is used for short-term rentals or long-term rentals. Dwelling units include efficiency/micro units, condominium units rented for residential use.

Efficiency or *micro unit* has the definition in the zoning regulations.

Egress means a place or means of going out, as defined by the ordinances, statutes, and regulations of the city and the state.

Extermination means the control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as food: by poisoning, spraying, fumigating, trapping, or by any other recognized and legal pest elimination methods approved by the director of health; and exterminate means the act of extermination.

Group living has the definition in the zoning regulations.

Group living for health reasons has the definition in the zoning regulations, as revised and amended from time to time, and also includes rehabilitation homes (as defined in and regulated by prior city ordinance section 30-1. Namely, "a dwelling housing a group of persons during a period in which such persons are being housed for periods of more than one (1) day for the purpose of undertaking a program of social rehabilitation or other similar programs, and not required to be licensed by the state as a child care facility pursuant to G.S. § 17-48, or as an institution (hospital, home for the aged, nursing home or rest home) pursuant to G.S. §§ 19a-490 through 19a-503") that as of August 1, 2019 have a valid license from the city for a rehabilitation home.

Group living dwelling means a dwelling that is used as group living, group living for health reasons, residential care, or temporary shelter facility.

Group living unit is any room or group of rooms connected together, intended for living by a person or persons who do not constitute a household, and which does not have a kitchen, and is located within a group living dwelling.

Guest means any person who occupies a housing unit at no charge for rent or occupancy on a nonpermanent status for not more than thirty (30) days.

Habitable room means a room or enclosed floor space used or intended to be used for living, sleeping, cooking or eating purposes, excluding bathrooms, water closet compartments, laundries, pantries, foyers or communicating corridors, closet and storage spaces, furnace rooms, kitchenettes and utility rooms, stairways and workshops, and hobby and recreation areas in unsealed or uninsulated parts of a structure below ground level or in attics.

Heated water means water heated to a temperature of no less than one hundred twenty degrees Fahrenheit (120° F.).

Heating facility means all equipment, facilities and plumbing necessary to produce heat or hot water or both and deliver same to all habitable space in and around a dwelling unit.

Hotel means a commercial establishment offering temporary lodging to transient guests, including but not limited to bed and breakfasts, motels, apartment hotels, and fraternal clubs.

Hotel unit means a room or group of rooms located within a hotel and forming a single habitable unit used or intended to be used primarily for living and sleeping but not primarily for cooking or eating purposes.

Housing means dwelling, group living dwelling, hotel, or rooming house, and the premises of such dwelling, group living dwelling, hotel, or rooming house, except where the word "housing" is used as an adjective immediately before another noun, where the context would suggest a more limited definition.

Housing unit means a dwelling unit, group living unit, hotel unit, or rooming unit.

Household has the definition of household in the zoning regulations.

Infestation means the presence, within or around a dwelling, of any insects, rodents or other pests.

Insect means unwanted members of the class insecta, including but not limited to houseflies, lice, bees, cockroaches, moths, silverfish, beetles, bedbugs, ants, termites, hornets, mosquitos, and wasps, and such unwanted members of the phylum arthropoda as spiders, mites, ticks, centipedes, and wood lice.

Kitchen means a room used for food preparation and storage and containing the equipment, fixtures, and materials identified in section 18-51 G. of this code.

Kitchenette means a small kitchen or an alcove containing cooking facilities.

Lead statute means the State Lead Poisoning Prevention and Control Act, G.S. §§ 19a-111-1—19a-111-11, and all accompanying rules and regulations.

Long-term rental has the meaning in the zoning regulations.

Multi-unit dwelling means any dwelling containing two (2) or more dwelling units, including two-unit dwellings and three-unit dwellings. Attached or row buildings shall be considered a multi-unit dwelling if two (2) contiguous dwelling units in one (1) or more buildings are owned by the same person.

Occupant means any person over one (1) year of age living, sleeping, cooking, eating in, or having actual possession of, a housing unit, except that in dwelling units, a guest will not be considered an occupant.

One-unit dwelling means a dwelling containing one (1) dwelling unit, without any other dwelling units located on the same lot.

Operator means any person who has charge, care or control of a building or part thereof in which housing units are let.

Ordinary summer conditions means an outdoor temperature of ten (10) degrees Fahrenheit (10° F) below the highest recorded temperature in the locality for the prior ten-year period.

Owner means any person who, alone or jointly or severally with others shall have legal or equitable title to any housing or housing unit with or without accompanying actual possession thereof, provided that an owner shall include an authorized agent.

Permissible occupancy means the maximum number of persons permitted to reside in a housing unit.

Plumbing means all of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, garbage disposal units, waste pipes, water closets, sinks, faucets, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes-washing machines, catch basins, drains, vents and any other similar supplied fixture, together with all connections to water, sewer, or gas lines.

Premises means a platted lot or part thereof or unplatted lot or parcel of land or plot of land, either occupied or unoccupied by any dwelling or nondwelling structure, and includes any such building, accessory structure, or other structure thereon.

Privacy means the ability of a person to carry out an activity without interruption, observation, or interference by unwanted persons.

Residential care has the meaning in the zoning regulations.

Rooming house means any dwelling or that part of any dwelling containing one (1) or more rooming units in which space is let by the owner or operator to three (3) but no more than six (6) persons, or any dwelling that as of August 1, 2019, has a valid license from the city for a rooming house. Rooming houses include boarding houses as defined in the zoning regulations.

Rooming unit means a room or group of rooms designed for living and sleeping which may or may not have a bathroom and does not have a kitchen.

Rubbish means combustible and noncombustible waste materials, and the term shall include the animal and vegetable waste resulting from the handling, preparation, cooking, and consumption of food; residue from the burning of wood, coal, coke, and other combustible material; paper; plastic containers; rags; cartons; boxes; wood; excelsior; rubber; leather; tree branches; yard trimmings; tin cans; metals; mineral matter; glass; crockery; and dust.

Safety means the condition of being free from danger and hazards which may cause accidents, fire, or disease, resulting in injury or death.

Short-term rental has the meaning in the zoning regulations.

Space heater means a self-contained, automatically controlled, electric or vented fuel-burning appliance of either the circulating type or the radiant type.

Supplied means paid for, furnished or provided by or under the control of the owner or operator.

Temporary housing means any tent, trailer, mobile home, or any other structure used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure, or to any utility system on the same premises for more than thirty (30) consecutive days.

Temporary shelter facility has the meaning in the zoning regulations.

Three-unit dwelling means a dwelling containing three (3) dwelling units.

Two-unit dwelling means a dwelling containing two (2) dwelling units.

Valid means current, unrevoked, and duly-issued by the appropriate authority.

Visible mold means mold in an amount greater than ten (10) square feet, which is readily identifiable by visual inspection, including mold that is behind furniture or other interior obstructions but excluding mildew on tile or grout.

Water under pressure means pressure sufficient to supply at least one (1) gallon per minute from each outlet.

Zoning regulations means the zoning regulations for the city of Hartford, as adopted by the planning and zoning commission, and as amended from time to time.
(Ord. No. 15-19, 10-28-19)

Sec. 18-4. Scope and applicability.

A. This chapter shall apply to all public and private housing and housing units within the city of Hartford, except as provided by state or federal law, except:

(1) Any dwelling unit in which an owner resides.

(2) Mobile manufactured homes.

B. This chapter shall have the effective date of November 1, 2019.

C. This chapter shall not be construed to suspend or revoke any valid license or valid certificate of apartment occupancy from the city, provided, however, that suspension or revocation may occur in accordance with section 18-30 of this code.

D. Conflicts.

(1) In any case where a provision of this chapter is found to be in conflict with a provision of any zoning, building, fire, safety, health, or other ordinance or code of the city, the provisions which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail.

(2) In any case where a provision of this chapter is found to be in conflict with a provision of the State Building Code, State Fire Safety Code, or State statutes or regulations, the State provision shall prevail.

E. Designated authority.

(1) Pursuant to G.S. §§ 47a-50 et seq., the city may adopt regulations involving various aspects of housing, and pursuant to that statute and the general authority granted to the council, the authority

executing and enforcing the statute, and this ordinance more generally, is given to the director of licenses and inspections.

(2) Pursuant to G.S. §§ 47a-56 et seq., the city hereby adopts the provisions of such statute and appoints the director of licenses and inspections to carry out the provisions of said sections.

(3) Pursuant to G.S. §§ 47a-57 et seq., the city hereby adopts the provisions of such statute and appoints the director of licenses and inspections to carry out the provisions of said sections.

(Ord. No. 15-19, 10-28-19)

Sec. 18-5. Records access.

The public shall have access to applications, inspection reports, and third party reports, in accordance with and subject to the city and State freedom of information acts. The name and identifying characteristics of someone submitting a complaint pursuant to this code may be withheld from the public where, in the opinion of the corporation counsel, disclosure of the name or identifying characteristics of the person may result in retaliation by the owner or other harm to person or liberty, as may be the case where the complainant is a victim of domestic violence or an undocumented individual.
(Ord. No. 15-19, 10-28-19)

Sec. 18-6. Reporting.

The director of licenses and inspections shall establish a system for reporting violations of this chapter. After receipt of a credible report, such director may inspect and enforce, as further described in this chapter.
(Ord. No. 15-19, 10-28-19)

Secs. 18-7—18-19. Reserved.

ARTICLE II. RENTAL LICENSING PROGRAM

Sec. 18-20. Application required for rental license.

A. An owner operating or seeking to operate housing containing three (3) or more housing units, or otherwise allowing such housing to be occupied, shall apply to the director of licenses and inspections, on an application form to be provided for that purpose, for a license, provided that the following housing shall not be subject to the preceding requirement to apply for a license where the owner affirmatively declares the applicable exemption and provides proof in a form requested by the Director of Licenses and Inspections at the time when an application would otherwise be required:

(1) Housing containing three (3) or fewer housing units, which is occupied by an owner.

(2) A dormitory facility owned and operated by a college or university and inhabited primarily by students of such college or university.

(3) A parsonage facility owned and operated by a non-profit religious organization and inhabited by bona fide employees of such organization.

(4) Housing containing dwelling units created under the Common Interest Ownership Act, the Condominium Act, or the Unit Ownership Act of the State of Connecticut, wherein seventy-five (75) percent of such units are in individual ownership by distinct entities other than by the declarant or by any other single owner.

(5) Housing owned by a housing authority organized under the provisions of G.S. ch. 128 and constructed or altered pursuant to a contract with the federal government or the state providing for annual contributions or other financial assistance.

(6) Housing that is subject to inspection and licensure by the State of Connecticut Departments of Public Health, Children and Families, Mental Health and Addiction Services, or Development Services pursuant to the Connecticut General Statutes or the Regulations of Connecticut State Agencies.

B. Notwithstanding subsection A of this section 18-20, to effectuate the purposes of this chapter and to ensure the orderly processing of applications, no license for a dwelling or dwelling unit shall be required:

(1) Prior to July 1, but no later than October 31, 2026, for buildings containing three (3) dwelling units.

(2) Prior to July 1, 2025, but no later than June 30, 2026, for buildings containing four (4) to nine (9) dwelling units.

(3) Prior to July 1, but no later than October 31, 2024, for buildings containing ten (10) to thirty-nine (39) dwelling units.

(4) Prior to July 1, but no later than October 31, 2023, for buildings containing forty (40) or more dwelling units.

On any date between the effective date of this ordinance and July 1, 2026, the director of licenses and inspections may demand that the owner of any dwelling with five (5) or more violations of this chapter for which citations have been finally issued (without further administrative appeals available) within any ninety-day period within the preceding two-year period submit an application for a license within sixty (60) days after the notice of such demand is sent, even if such demand would accelerate the date on which an initial application would otherwise be required by this chapter.

C. Notwithstanding subsection A of this section 18-20, to effectuate the purposes of this chapter and to ensure the orderly processing of applications, no license for a group living dwelling or group living unit shall be required prior to July 1, 2023, for group living and residential care.

On any date between the effective date of this ordinance and July 1, 2023, the director of licenses and inspections may demand that the owner of any group living dwelling with five (5) or more violations for which citations have been finally issued (without further administrative appeals available) within any ninety-day period within the preceding two-year period submit an application for a license within the sixty (60) days after the notice of such demand is sent, even if such demand would accelerate the date on which an initial application would otherwise be required by this chapter.

D. Notwithstanding subsection A of this section 18-20, to effectuate the purposes of this chapter and to ensure the orderly processing of applications, no license for a hotel shall be required prior to the effective date of this ordinance or prior to the expiration of an applicable current hotel license, whichever is earlier.

E. Notwithstanding subsection A of this section 18-20, to effectuate the purposes of this chapter and to ensure the orderly processing of applications, no license for a rooming house or a rooming unit shall be required prior to the effective date of this ordinance or prior to the expiration of an applicable current rooming house license, whichever is earlier.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23; Ord. of 11-24-25)

Sec. 18-21. Application period.

A. The director of licenses and inspections shall accept applications for licenses for the following types of housing or housing units at any time:

(1) New housing or new housing units that have received a certificate of occupancy within the preceding year, provided that a Rental License may be granted without inspection upon the Division of Licenses and Inspections receipt of a complete application and fees as required under this Article.

(2) Housing previously subject to an exemption, which no longer qualifies for said exemption due to change in occupancy, ownership, or other circumstance.

B. To provide sufficient time for the issuance of licenses and for appropriate inspections, the application period for license renewals shall take place between July 1 and October 31 of each year. The director of licenses and inspections

may, in his or her discretion, subject to staffing and availability, accept applications for license renewals at other times.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-22. Application fees.

A. The fees for applications for licenses required by this chapter shall be as provided below. Unit fees listed apply to all units, whether occupied or not at the time of application or inspection.

(1) Dwelling unit license: three (3) to nine (9) dwelling units: sixty dollars ($60.00), plus fifty dollars ($50.00) per dwelling unit.

(2) Dwelling unit license: ten (10) to thirty-nine (39) dwelling units: sixty dollars ($60.00), plus forty-five dollars ($45.00) per dwelling unit.

(3) Dwelling unit license: forty (40) or more dwelling units: sixty dollars ($60.00), plus forty dollars ($40.00) per dwelling unit.

(4) Group living license: two hundred dollars ($200.00), plus thirty dollars ($30.00) per group living unit.

(5) Hotel license: two hundred dollars ($200.00), plus thirty dollars ($30.00) per hotel unit.

(6) Rooming house license: five hundred dollars ($500.00) for one (1) to six (6) rooming units, seven hundred fifty dollars ($750.00) for seven (7) to twelve (12) rooming units, and one thousand dollars ($1,000.00) for more than twelve (12) rooming units.

B. Failure to submit an application for a license as required under this article, including failure to submit a complete application and failure to submit a license renewal application within the applicable application period set forth in section 18-21 B. of this chapter, will result in an additional fee of one thousand dollars ($1,000.00) per application required, in addition to other penalties that apply for violating this chapter, which shall include penalties described in sections 18-104 A. and 18-104 C. The Director of Licenses and Inspections may waive the additional fees and/or other penalties required by this subparagraph if the Director, in his or her sole discretion, determines that there was good cause for the failure to submit a complete or timely application, except that in no case may the Director waive additional fees or other penalties for an owner who has three (3) or more citations that have been finally issued (without further administrative appeals available) against the owner for any of the owner's property within the boundaries of the City of Hartford within a period of two years prior to the application.

C. Application fees include an initial housing code inspection and an initial fire code inspection. Additional inspections may be charged to the applicant in accordance with the fees set forth in article III of this chapter.

D. License application fees shall be nonrefundable.
(Ord. No. 15-19, 10-28-19; Ord. of 3-14-22, § 2; Ord. of 2-27-23)

Sec. 18-23. Application procedures.

A. An application for a license required by this chapter shall consist of an application form, attachments required by the application form, and supplemental materials required by the director of licenses and inspections.

B. Such application shall be considered complete only if it is submitted in the required number and form, includes all required information, does not contain significant inaccuracies or omissions, does not contain multiple minor inaccuracies or omissions, and is accompanied by the required fee amount (including the license application fee as well as the fee for any inspections conducted in accordance with article III of this chapter).

C. The director of licenses and inspections shall identify the date on which a complete application was submitted. Such date shall be deemed to be the submission date of the application.

D. An application must be signed by the individual owner or, where owned by an entity, a minimum of one (1) principal.

E. In addition to information to be submitted by the application form, the director of licenses and inspections may require the submission of

additional information, documentation, and evidence, including but not limited to a circumstance where such information, documentation, and evidence is reasonably necessary to assess the veracity of the contents of the application, to ensure that the appropriate scope of review is undertaken, and to ensure sound decision-making as required in section 18-25 of this Code.

F. The director of licenses and inspections may, in his or her discretion, refer any application, attachment, or supplemental material to any city or state official, including but not limited to the chief of the fire department, the zoning administrator, the director of planning, the director of housing, the director of the department of health, or their designees, for guidance, analysis, evaluation, inspection, and recommendations relevant to the decision on granting the license.

G. Prior to the issuance or renewal of a license, the housing or housing unit to be licensed must comply with the provisions of this chapter. Compliance may be determined by an inspection conducted by the City in accordance with article III of this chapter. Such inspections may occur on any building subject to licensure under this Article at the direction of the Director of Licenses and Inspections, even absent submission of an application. The director of licenses and inspections may accept inspections conducted by a state or federal agency in accordance with a state or federal housing program.

H. A separate application must be filed for each building containing any dwelling, group living dwelling, hotel, or rooming house.

I. In all cases, the burden is on the applicant to show that an application complies with all applicable review or approval criteria.

J. It shall be a violation of this chapter for an applicant to provide false or misleading information on any application submitted hereunder.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-24. Application form.

The application form for a license for the operation of housing or housing units shall require the submission of the following information:

A. The contact information, consisting of full legal name, address, telephone number, email address (if any), and full legal name of the owner and registered agent, and the operator (if any).

(1) *Name.* In the case where the owner or operator is a partnership, the name of the managing partner must be provided, but if there is no managing partner, the names of each general partner must be provided. In the case of a limited liability company, the name of the managing member and the name of the agent(s) registered with the State must be provided. In the case of a corporation or other business entity, the name of the president, the name of the secretary, and the name of the agent(s) registered with the State of said business entity must be provided. In the case of a trust, the name of at least one (1) trustee must be provided. In the case of an estate, the name of the executor, administrator, conservator, or other fiduciary responsible for the estate must be provided.

(2) *Address.* An address must be a location described by the full street number, if any, the street name, the city or town, and the state, and not a mailing address such as a post office box. If the owner or owners are a person or people who do not reside in the city, each owner must provide his or her residential or bona fide business address that is a physical address and not a post office box. In the case of a partnership, limited liability company, corporation, or other business entity, each registered agent must provide his or her residential or bona fide business address that is a physical address and not a post office box, and the address of each other individual required to be named in subsection (1) of this section must be provided.

(3) *Registered agent.* In the case of an owner-occupant, the registered agent shall be a human being who is a resident of the city who shall act as the agent of the owner-occupant for the receipt of violation notices and for service of process issued pursuant to the provisions of this chapter, where such owner-occupant is absent from the city for thirty (30) or more days. In the case of a nonresident owner, the registered agent shall be, in the case of a rooming house, a human being who is a resident of the city, or in the case of any other type of housing, a human being who is a resident of the State of Connecticut, who shall act as an authorized agent of the owner for the receipt of violation notices and for service of process issued pursuant to the provisions of this chapter.

B. A copy of a driver's license or comparable state-issued photo identification showing the name, photo, and address of the owner or owners required to be named in section 18-24(A)(1) and the address of the registered agent and operator (if any), or an affidavit with the name of the owner or owners required to be named in section 18-24(A)(1) stating that the business address given is a bona fide business address that is a physical address and not a post office box.

C. The full legal name, address, telephone number, and email address (if any) of the person or persons responsible for emergency response related to the subject property who can be reached at any time as needed, changes to which must be reported to the Department of Licenses and Inspections within twenty-four (24) hours.

D. The number of rooms in the building, the number of housing units, and the number of persons proposed to be accommodated or allowed in each housing unit.

E. A heating facility inspection report, dated within the twelve (12) months preceding the application submission date and indicating that the heating facility for such premises has been inspected within the last year by a person licensed to design, construct or repair a heating facility and that such heating facility meets the requirements of this chapter, except that no such report shall be required for a heating facility that has a City Building Department certificate of approval for all primary components and is ten (10) years old or less.

F. A lead risk assessment report by a certified lead inspector documenting that the housing or housing unit is lead safe for buildings constructed before 1978, if a unit is being or will be rented to an individual the age of six (6) years or younger. Where the owner affirmatively declares that no unit is or will be occupied by an individual under the age of six (6) years and provides proof in a form requested by the Director of Licenses and Inspections, the requirement of a lead risk assessment report may be waived.

G. At the discretion of the director of licenses and inspections, a description of rubbish disposal facilities (including recycling), extermination and pest control plans and practices, energy efficiency plans and practices, water efficiency plans and practices, snow removal plans, and, if applicable, other sustainability measures, lead paint evaluations, and landscape and weed control plans.

H. If available, a copy of the latest energy efficiency audit completed for the housing or the housing unit.

I. The signature of the applicant, including the owner, certifying to the truthfulness and accuracy of the information tendered and an acknowledgement that there will be penalties for false representation.

(Ord. No. 15-19, 10-28-19; Ord. of 3-14-22, § 3; Ord. of 2-27-23)

Sec. 18-25. Decision-making on an application.

A. Decision-making criteria considered by the director of licenses and inspections shall include:

(1) Satisfaction of application requirements.

(2) Satisfactory results of any inspection conducted.

(3) Compliance with any applicable life safety code, such as the State Building Code, Housing Code or the State Fire Safety Code, provided that lack of compliance shall result in an immediate denial, except where the lack of compliance is solely technical in nature and does not impact life safety. In the case of a lack of compliance deemed technical by the Director of Licenses and Inspections or the City's Fire Marshal, a conditional approval may be granted, provided that the technical lack of compliance is remedied within sixty (60) calendar days.

(4) Adequate provision (number), operability, and general condition of supplied amenities and fixtures, including but not limited to heat, heated water, lighting, plumbing, bathrooms, and kitchens.

(5) Overall condition of the building and premises, including the presence of fire hazards, infestations, lead paint, or any other material regulated in this chapter.

(6) In the case of a renewal, number and nature of violations documented during prior inspections or visits by any officer of the city or State.

(7) Whether applicant or property owes any fees, fines, or taxes to the city.

B. When an application for a license for housing or housing units pursuant to this chapter is complete, the director of licenses and inspections shall review the application and shall approve, approve with conditions, or deny the application.

(1) An approval of the application will result in the issuance of a license.

(2) An approval with conditions of the application will result in the issuance of a license, subject to conditions that the applicant must satisfy in order to obtain and maintain the license.

(3) A denial will result in no license.

(a) Where the building is denied a license and is not occupied, the units may not be rented until a subsequent application is filed and license approved.

(b) Where the building is occupied, the owner is subject to any and all applicable fines, penalties, and other enforceability provisions of Chapter 18 of the Hartford Municipal Code until a subsequent application is filed and license approved.

C. Notice of decisions shall be provided to applicants.

D. The director of licenses and inspections shall make best efforts to render a decision on an application within sixty (60) days of the date on which the applicant has submitted a complete application. If the city fails to render a formal decision by such date, a temporary license shall be deemed to have been issued while the application review proceeds, provided, however, that if the owner or owners allow occupancy of the housing prior to such formal decision, the owner or owners shall hold the city harmless and may not recover from the city for damages or losses that may result if the formal decision is a denial. (Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-26. Changes to information in application.

A. Within thirty (30) days of a change in any of the information required in an application for a rental license, such change must be submitted to director of licenses and inspections, in the same format, with the same required documents required by section 18-24. Following review, the Director of Licenses and Inspections may (1) accept the change and incorporate it within an existing rental license, (2) require reinspection before making a decision on acceptance, or (3) require a full and complete new application, including fees, and the attendant approval process

as set forth in this Article. A change in address of a registered agent shall not be accepted by the director of licenses and inspections if it purports to change the address of the registered agent to a location otherwise prohibited by this Code.

B. Pursuant to section 18-30 of this Code, certain changes in information may result in revocation of a license.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-27. Effect of license.

A. A license provides the right to operate the housing or housing units as set forth in the application, as amended or supplemented pursuant to section 18-26 of this Code.

B. Upon receipt of the license, and for the terms and duration and subject to the conditions of the license, an owner of housing or housing units may operate the housing or housing units, as applicable, and otherwise allow the housing or housing units to be occupied.

C. The issuance of a license shall not relieve the owner and operator of the responsibility to make general repairs pursuant to chapter 9 of the Code, maintain fire protection equipment pursuant to chapter 13 of the Code, manage solid waste pursuant to chapter 15 of the Code, maintain housing standards consistent with chapter 18 of the Code, maintain and preserve historic housing as required by chapter 28 of the Code, repair and clear of sidewalks and public ways pursuant to chapter 31 of the Code, maintain landscaping (including trees and green infrastructure) pursuant to the zoning regulations and chapter 28 of Code, and perform other responsibilities required by any other law, rule, or regulation.

D. Failure to obtain a license or the operation of housing without a license as required by this chapter shall be a violation of this chapter and may result in fines and penalties as prescribed herein, and each housing unit that is occupied without such a license shall be a separate violation.

E. A valid and unexpired license shall be deemed to be a certificate of apartment occupancy for the purposes of satisfying the requirement established in G.S. § 47a-57. No application for or issuance of a separate certificate of apartment occupancy is required of any building which is licensed pursuant to this Article.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-28. Transferability of license.

A. Licenses for dwellings, dwelling units, hotels, hotel units, group living, group living units, rooming houses, and rooming units shall automatically be transferred to a subsequent owner, subject to satisfaction of the requirements of section 18-26, upon transfer of the applicable property. A quit claim, warranty or other deed form shall be sufficient to accomplish that transfer even if the deed does not specifically mention the transfer.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-29. Duration of license.

A. A license shall start upon the effective date indicated in the notice of approval of the application, or if no effective date is indicated, on the date on the notice of approval.

B. Every new license, and every license renewal, shall be effective for a maximum of four (4) years, starting from the date of issuance of the license until the fourth October 31 following the date of issuance, unless earlier suspended or revoked pursuant to section 18-30 of this Code, provided that any such license granted following an application submitted prior to July 1, 2023 will be effective through October 31, 2027.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Sec. 18-30. Suspension or revocation of license.

A. The director of licenses and inspections shall provide notice of a decision of the suspension or revocation of a license pursuant to section 18-100 of this chapter, except in emergency situations identified in section 18-102, in which case no such notice shall be required prior to a suspension or revocation being effective.

B. A suspension of a license may result in an order by the director of licenses and inspections to cease some or all licensable activities until

such reasonable time as set by the director of licenses and inspections to cure a violation under this chapter or other reason provided by the director of licenses and inspections.

C. A revocation of a license shall result in the permanent ceasing of all licensable activities until and unless another license is obtained. In such a circumstance, the director of licenses and inspections may order occupants (if any) to vacate, and such occupants shall be relocated pursuant to state statutes and section 18-110.

D. A license for housing or housing units, whether issued pursuant to previous ordinance provisions related to the licensing of housing or issued pursuant to current ordinance provisions, may be suspended or revoked by the director of licenses and inspections for significant and repeated instances of the following activities or occurrences:

(1) Violation of any provision of this ordinance or other applicable law, rule, or regulation.

(2) Failure to comply with any applicable life safety code after written notice and opportunity to cure in accordance with article IX of this chapter, such as the State Building Code, Housing Code, the State Fire Safety Code, or any of the State laws and regulations pertaining to housing, including but not limited to lead poisoning prevention and control.

(3) Abandonment of the licensed activities, as indicated by licensed housing or housing units being vacated for a period of sixty (60) days or more, unless such vacancy is caused by reasons beyond the owner's control such as damage by flood, fire or storm and owner is diligently working to repair such damage.

(4) Conducting, or knowingly allowing to be conducted, illegal activities on the premises as such activities may be documented by police reports.

(5) Loss, failure to renew, or cancellation of any document granting authority to an authorized agent to act on behalf of an owner or operator, where the director of licenses and inspections reviewed and approved such document.

(6) Refusal by the owner to consent to inspections requested by the director of licenses and inspections within 21 days. The owner is responsible for notifying all occupants of the date of any inspection required under this Article to obtain access as required by G.S. § 47a-16.

(7) Property taxes for the housing or housing unit, or any fixtures or personal property contained therein or housed thereon, are delinquent.

E. In making a decision to suspend or revoke a license, the director of licenses and inspections must exercise reasonableness and discretion in considering the criteria in section 18-25 A. of this Code, and: the severity of the threat to health, safety, and general welfare; remedial measures that have been taken by the owner or operator; the timeline for remedial action to be taken; and other facts and information as may be provided to him or her by city and State officials and by members of the general public, including occupants and owner.

F. Notice of suspension or revocation shall be in writing.

G. Suspension or revocation of a license may also result in the appointment of a receiver responsible for the collection of rents pursuant to G.S. § 47a-56a.
(Ord. No. 15-19, 10-28-19; Ord. of 2-27-23)

Secs. 18-31—18-39. Reserved.

ARTICLE III. INSPECTIONS

Sec. 18-40. Authority for inspections.

A. An inspection conducted pursuant to this chapter shall be conducted for one (1) or more of the purposes of: evaluating a license application, assessing ongoing compliance with the license, assessing compliance with the provisions of this chapter, fulfilling the city's obligation to conduct

investigations regarding toxic levels of lead pursuant to the lead statute, and ensuring the satisfaction of the goals of this chapter.

B. The director of licenses and inspections is hereby authorized and directed to make inspections (including re-inspections of previously inspected locations) to determine the condition of housing and housing units, for the purpose of determining compliance with the provisions of this chapter.

C. The director of health, the chief of the police department or his or her designee, and the chief of the fire department or his or her designee, and any other city official deemed appropriate or necessary by the director of licenses and inspections are authorized to assist with such inspections, subject to the provisions in this article applicable to the director of licenses and inspections. Any person or entity duly authorized in accordance with this section to conduct inspections pursuant to this chapter shall be called an inspector.
(Ord. No. 15-19, 10-28-19)

Sec. 18-41. Consent for inspections.

A. For the purpose of making such inspections, the inspector, with consent of the owner, or occupant, or judicial authority, is hereby authorized to enter, examine, and survey between the hours of 8:30 a.m. and 4:30 p.m. or as otherwise mutually agreed by the inspector and the owner or occupant, all housing and housing units. For the purpose of consenting to an inspection and/or receiving notices relating thereto, a minor child under the age of eighteen (18) shall not be considered an occupant.

B. Whenever an owner, operator, or occupant of a housing unit shall deny an inspector the right of entry for the purpose of inspection, the inspector shall not so enter until he or she presents a duly issued search warrant for the housing or housing unit to the owner, operator, or occupant.

C. Nothing in this section shall be construed to preclude the entry of the inspector at any time when, in his or her judgment, an emergency tending to create an immediate danger to the public health, welfare, or safety exists.
(Ord. No. 15-19, 10-28-19)

Sec. 18-42. Nature of inspections.

A. An inspection conducted pursuant to this chapter shall not have for its purpose the undue harassment of the owner, operator, or occupant. Landlords may make a written complaint about the manner or nature of inspection to the director of licenses and inspections or to the director of development services.

B. Such inspection shall be made so as to cause the least amount of inconvenience to said owner, operator, or occupant, consistent with an efficient performance of the duties of the director of licenses and inspections.

C. Among other things documented in the report, all inspection reports must indicate for each housing and housing unit inspected whether a smoke detector and carbon-monoxide detector have been installed in each unit and in each area as required by the State Fire Safety Code, and, if so, the status and location of the smoke detector and carbon-monoxide detector. Inspectors shall report missing or inoperative detectors to the fire marshal and owner of record within twenty-four (24) hours of inspection.

D. During an inspection, the inspector may collect or be made aware of information and evidence that may result in a fine or form the basis for a criminal prosecution.

E. The director of licenses and inspections may choose to conduct, or ask another inspector to conduct, a re-inspection for any reasonable reason, including but not limited to: the observance or report of a possible violation of any applicable law, rule, or regulation in the conduct of licensed activities; determination of compliance with conditions set forth in the applicable license: determination of compliance with conditions of any applicable law, rule, or regulation in the conduct of licensed activities; assessment of whether there are toxic levels of lead for which abatement would be required pursuant to the lead statute: assessment of whether and to what extent remedial action has been undertaken; and the need to respond to a complaint.

F. In the sole discretion of the director of licenses and inspections, for any inspection for any building with twenty-five (25) or more housing units, in connection with a license application pursuant to article II of this chapter, the director of licenses and inspections may select for inspection twenty-five (25) percent of the total number of hotel units within a hotel, with a minimum of twenty (20) hotel units, or forty (40) percent of the total number of dwelling units within a dwelling, with a minimum of twenty (20) dwelling units, provided that the specific hotel units or dwelling units to be inspected shall be chosen randomly and in the sole discretion of the director of licenses and inspections. In no circumstance shall the preceding sentence be construed to prohibit the director of licenses and inspections from inspecting all housing units for which a license is sought nor shall it be construed to reduce the fees required under Section 18-22. (Ord. No. 15-19, 10-28-19)

Sec. 18-43. Inspections related to toxic levels of lead.

A. Notwithstanding anything to the contrary in this chapter, this section may be applied to all properties (including buildings and their premises) in the city, not just to properties containing housing and housing units to which the rest of this chapter is otherwise limited in applicability.

B. Pursuant to the lead statute, the city hereby designates the director of health as the official with the authority to coordinate with the State the identification, assessment, and enforcement of State laws and regulations on toxic levels of lead.

C. The director of licenses and inspections or the director of health may conduct or cause to be conducted inspections related to toxic levels of lead in any property in the city, whether housing or not, if he or she have reason to believe, as a result of reports of elevated blood levels in occupants or through visual observation or otherwise, that the property contains toxic levels of lead for which abatement would be required pursuant to the lead statute.

D. In order to carry out the inspections authorized in Section 18-43(C), the director of licenses and inspections or the director of health may hire, or cause to be hired, third parties, such as certified lead inspectors and other professionals, to provide information to the city regarding toxic levels of lead. The cost of such professionals shall be borne by the property owner exclusively.

E. After the inspection occurs, an inspection report shall be completed using the State inspection form and shall be postmarked and sent by certified mail or hand delivery by the second working day following completion of the inspection. The inspection form shall indicate all defective and intact lead-based surfaces.

F. Within two (2) days after receipt of an inspection report identifying toxic levels of lead requiring abatement, the owner shall post to each entrance to the housing unit or common area of dwelling affected. The notice shall measure at least eight-and-one-half (8 ½) inches by eleven (11) inches, with letters measuring at least one half (½) inch. The notice shall state that the dwelling unit contains a toxic level of lead which may be dangerous and which a child should not be allowed to mouth or chew. The notice shall not be removed until the dwelling unit has been found to comply with the lead statute.

G. The owner shall provide a summary report of the lead inspection and/or lead management plan, and the post-abatement inspection report to the residents and to the director of licenses and inspections. This summary inspection report shall contain the results of lead-based surface testing as required by section 19a-111-3 of the regulations for the lead statute and will include a description of the testing methods used.

H. The owner shall also provide the residents with information prescribed by the department concerning the toxicity of lead and precautions that should be taken to avoid exposure.

I. The director of health shall have full authority under the lead statute to issue an order for a property owner to conduct a lead abatement plan and correct all defective lead-based surfaces requiring abatement and soil areas identified as a source, or potential source for elevated blood

within the time period specified by section 19a-111-5 of the regulations for the lead statute and within acceptable statutory and industry standards.
(Ord. No. 15-19, 10-28-19)

Sec. 18-44. Fees for inspections.

A. The fees for inspections conducted in accordance with this chapter shall be one hundred dollars ($100.00) per inspection, including but not limited to re-inspections and inspections related to toxic levels of lead. Such cost shall not be applied to one (1) inspection associated with a license application, pursuant to section 18-22 of this code. Such cost shall not be applied to inspections conducted by an inspector on behalf of an occupant seeking to report or document a violation.

B. The fee for an owner's failure to appear, or to send a representative to appear, at a scheduled inspection within twenty (20) minutes of a scheduled appointment shall be one hundred dollars ($100.00).

C. Inspection fees and failure to appear at inspection fees shall be nonrefundable.
(Ord. No. 15-19, 10-28-19)

Secs. 18-45—18-49. Reserved.

ARTICLE IV. REQUIREMENTS FOR ALL HOUSING

Sec. 18-50. Generally.

A. No person shall operate housing or housing units unless he or she holds a valid license, in accordance with Article II of this chapter, approved in the name of the person operating the specific named housing or housing units, subject to the transfer provision of section 18-28 of this code.

B. No building now in existence or hereafter constructed or erected, nor any portion thereof, shall be used as housing or housing units unless such building and every part thereof shall conform to the requirements of this chapter and to such other requirements of the law, including, without limitation, the State Basic Building Code, the Fire Safety Code, Hartford Municipal Code, rules and regulations of the city department of development services, and zoning regulations as may apply.
(Ord. No. 15-19, 10-28-19)

Sec. 18-51. Owner's responsibilities.

Every owner of housing or a housing unit must:

A. Maintain at all times in a clean and sanitary condition every surface, including walls, floors, installed carpets, stairwells, passages, windows, doors, water closets, cesspools, drains, halls, cellars, roofs, porches, decks, stoops, ceilings, and elevators, for the housing or housing unit, whether occupied or not, including the entire exterior structure of the housing or housing unit and any common areas.

B. Protect all exterior wood surfaces, other than decay-resistant woods, from the elements and from decay by paint or other protective covering or treatment, using lead-free materials upon any surface that is readily accessible to children.

C. Ensure that all painted surfaces of every building used or intended to be used in whole or in part for human habitation are kept free of cracked, chipped, blistered, flaking, loose, or peeling paint.

D. Maintain in sound condition and good repair every foundation, floor, wall, ceiling and roof, door, skylight, basement hatch, and window so that it shall be reasonably weathertight, watertight, rodentproof, secure, and capable of affording privacy, and:

(1) Ensure windows designed with insulated glass and thermal pane windows do not exhibit seal leakage, such as condensation or discoloration between glass panes.

(2) Ensure that windows that are the means of emergency egress from a floor area open without the need of keys, tools, or special knowledge.

(3) Ensure that windows and doors accessible from the outside have working locks.

(4) Ensure that door locks to individual housing units, or to shared facilities or rooms associated thereto, function as designed and as prescribed by the manufacturer.

(5) Change the keys or combination for each positive locking device to individual housing units when occupants change.

(6) Windows to bedrooms shall be provided with blinds, draw drapes, curtains, or shades, in good working condition and capable of providing occupants with privacy.

E. Ensure light and air to every habitable room and bathroom by satisfying the following criteria:

(1) Every habitable room and bathroom has one (1) window or skylight facing the outdoors, where minimum total window area, measured between stops, shall be one-eighth (1/8) the net floor area of the room, or if the room has only a skylight, where minimum total window area is fifteen (15) percent of the net floor area of the room. Whenever walls or other portions of structures face a window of any such room from the exterior and such light obstruction structures are located less than three (3) feet from the window and extend to a level above that of the ceiling of the room, such a window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area.

(2) Every habitable room and bathroom has one (1) operable window or skylight facing the outdoors, where forty-five (45) percent of the minimum size prescribed in subsection (1) above or such other device as will adequately ventilate the room.

(3) The director of health may grant an exception for the requirement that each habitable room and bathroom have one (1) operable window or skylight, where he or she determines that such room is equipped with a ventilation system which is kept in efficient operation.

(4) All clothes dryer exhaust must adequately be ventilated to the outdoors except where there is supplied some other device affording adequate ventilation.

F. Supply rubbish disposal facilities or containers, including containers for recyclable materials as required by chapter 15 of the city code, sufficient in number and size for holding rubbish and recycling accumulated between regular collections; arrange for regular collections of rubbish and recycling; provide for the regular disposal of litter in and around the premises; and arrange for proper disposal of bulky waste.

G. Properly install and maintain in sound condition and good repair all supplied amenities and facilities therein, including but not limited to bathrooms, electrical outlets and fixtures, heat, heated water, kitchens, lighting, and plumbing, and:

(1) Provide, in the case of a bathroom, all of the following:

a. A flush water closet.

b. A lavatory basin.

c. A bathtub or shower in working condition, free of deterioration and installed and maintained in a manner prescribed by city and state regulations and codes.

d. Flooring that is reasonably impervious to water, level, and able to be kept in a clean and sanitary state condition.

e. Such fixture group must be properly connected to an

approved sewer system and to an approved hot and cold water running water system under pressure, except that the flush water closet must be connected to an approved sewer system and to an approved cold water running water system under pressure.

f. The flush water closet, lavatory basin, and bathtub or shower must be installed in the same room, or in an adjacent room, in a configuration and design that affords privacy to a person using said facilities.

(2) Provide, in the case of electrical outlets and fixtures, all the following:

a. Every habitable room and nonhabitable room used for food preparation shall have at least one (1) floor-or wall-type electrical convenience duplex outlet for each sixty (60) square feet or fraction thereof of total floor area, and in no case fewer than two (2) such duplex outlets per room.

b. Every water closet compartment, bathroom, kitchen or kitchenette, laundry room, furnace room and public hall shall contain at least one (1) supplied ceiling-or wall-type electric light fixture.

c. Every bathroom and laundry room shall be provided with at least one (1) electric outlet.

(3) Provide, in the case of heat, heating units that: heat all habitable rooms, bathrooms, and water closet compartments to a minimum temperature of at least sixty-five (65) degrees Fahrenheit whenever the outer or street temperature falls below fifty (50) degrees Fahrenheit; and are equipped with a control valve or thermostat to allow the occupant to regulate the heat supplied.

(4) Provide, in the case of a kitchen, or in location that is within three (3) feet of a kitchen and in an adjacent room within the housing unit, all of the following:

a. A kitchen sink installed, and properly connected to hot and cold running water system under pressure and sewer systems, and maintained in accordance with city and state regulations and codes, and which provides at all times an adequate amount of heated and unheated water under pressure and which has the capacity to handle dish washing.

b. Cabinets or shelving for the storage of eating and drinking and cooking equipment and utensils and of food that does not, under ordinary summer conditions, require refrigeration for safekeeping, and a counter for food preparation. Said cabinets and/or shelves and counter shall be adequate for the permissible occupancy of the dwelling unit and shall be of sound construction, furnished with surfaces that are easily cleanable and that will not impart any toxic or deleterious effect to food.

c. A stove or equivalent device for cooking food and a refrigerator or equivalent device for the safe storage of food at temperatures less than fifty degrees Fahrenheit (50° F) but more than thirty-two degrees Fahrenheit (32° F) under ordinary summer conditions, which are properly installed with all necessary connections for safe, sanitary and efficient

operation. Such stove or equivalent device, or refrigerator or equivalent device, need not be installed where an agreement between the owner and occupant has been executed which so provides, but sufficient space and adequate electrical outlets must nevertheless be provided for the safe and efficient installation and operation of said stove or equivalent device and refrigerator or equivalent device.

d. Flooring that is reasonably impervious to water, level, and kept in a clean and sanitary state condition.

(5) Provide, in the case of lighting, adequate lighting at every exterior entrance, porch, public hall, and stairway so as to provide at least three (3) foot-candles of light at the tread or floor level at all times, provided that for two-unit dwellings, such lighting may be controlled by switches and turned off when not in use; and adequate lighting in any bathroom, kitchen, and other habitable room, provided that replacement of light bulbs within a housing unit after the first month of occupancy shall be the responsibility of the occupant.

H. For housing with three (3) or more housing units, properly install prior to June 1 of each year and remove by October 31 of each year a properly fitting screen of not less than sixteen (16)-mesh per inch and a self-closing device in good operating condition, for at least one (1) door opening directly from a housing unit to an outdoor space; for any door, window, hatch, or other opening from a basement to any outdoor space; or for a window intended to be used for ventilation.

I. Exterminate to prevent or eliminate an infestation of bed bugs in accordance with G.S. § 47a-7a; exterminate to prevent or eliminate infestations throughout a group living dwelling, hotel, or rooming house, or exterminate to prevent, or eliminate infestations in a dwelling. Glue traps, and other temporary measures that do not address the root causes of the infestation, will not be deemed acceptable methods for preventing or eliminating an infestation.

J. Ensure that every water closet compartment floor surface and bathroom and kitchen floor surface shall be constructed and maintained so as to be reasonably impervious to water and so as to permit such floor to be easily kept in a clean and sanitary condition.

K. Maintain the housing, including repairing leaky faucets and plumbing and ensuring a watertight building envelope, in such a physical condition so as to prevent the accumulation of moisture and visible mold; remediate visibly moldy surfaces through measures recommended by the State department of health, including but not limited to installing dehumidifiers, fixing structural problems, using bleach on nonporous surfaces, and replacing porous surfaces such as wallboard that have become moldy; and promptly respond to any notices from an occupant regarding the existence of an accumulation of moisture and visible mold, provided, however, that nothing in this subsection shall be construed to prevent an owner from pursuing legal action against an occupant whose actions caused the accumulation of moisture or visible mold.

L. Prevent from being removed, shut off, or discontinued any service, facility, equipment, or utility required under this chapter, except for such temporary interruption as may be necessary while actual repairs or alterations are in process or during temporary emergencies when discontinuance of service is approved by the director of health.

M. Allow an occupant at occupant's expense to implement energy conservation measures (including but not limited to removable weatherstripping around doors and windows, removable interior storm windows, and insulation wrap around hot water heating tanks), in any dwelling or dwelling unit, but not any group living unit, hotel unit, or rooming unit. Nothing in this section shall be construed to authorize the occupant to make structural changes to a building or otherwise restrict the availability to the occupant of other legal remedies.

N. Ensure compliance of construction, materials, and means of egress, and install and use all equipment, as required by laws dealing with fire protection of the city and the state, and:

(1) For smoke detectors required in dwelling units by the State Fire Safety Code and the State Building Code, owners must replace a smoke detector that malfunction for reasons other than the fault of the occupant and must test a smoke detector and replace batteries when an occupant vacates a let unit.

(2) For smoke detectors required in group living units, hotel units, and rooming units by the State Fire Safety Code and the State Building Code, owners must periodically test a smoke detector and replace batteries.

(3) No person may remove or render a smoke detector inoperative except for its periodic maintenance or maintenance or repair to the housing or housing unit.

(4) Each floor of a structure used, any part of which is used, for housing shall have a fire extinguisher in a common area.

O. Maintain vegetation on the premises such that:

(1) Trees are maintained in a healthy condition pursuant to the zoning regulations and chapter 28 of the code.

(2) Grass, weeds, or similar growth does not grow more than one (1) foot in height.

(3) Invasive species do not grow.

(4) Weeds or other plant which may, in the opinion of the director of health, cause hay fever or similar diseases, do not grow.

(5) Poison ivy and poison sumac does not grow within twenty-five (25) feet of a street line or within twenty-five (25) of adjoining property, except with the written consent of the owner of such adjoining property.

(6) Wild and untrimmed bushes do not grow or remain on any land fronting on a public street in the city, or on any interior lot bounded on three (3) or more sides by land fronting on any such street.

P. Address issues related to lead hazards in accordance with the lead statute, including (using terms as defined in such statute and related regulations):

(1) When a child under the age of six (6) resides in a housing unit, abatement of all defective lead-based surfaces, and abatement of all accessible lead-based surfaces shall be abated to a level of six hundredths percent (0.06%) and nonaccessible abated to a level of forty-nine hundredths percent (0.49%).

(2) When a child under the age of six (6) resides in a housing unit and has an elevated blood lead level, abatement to a level of forty-nine hundredths percent (0.49%) of all lead-based chewable surfaces, whether or not that surface is defective, and all lead-based movable parts of windows and surfaces that rub against movable parts of windows.

(3) When a child under the age of six (6) resides in a dwelling unit requiring lead abatement, assessment of

interior dust, drinking water, and exterior soil: abatement of soil or sand areas not covered by materials specified in the statute and regulations which are found to contain lead concentrations in excess of four hundred (400) parts per million; reduction of lead dust hazards to a safe level; and reduction of lead in drinking water through means approved by the director of health.

(4) Under no circumstances shall an owner take eviction action to avoid abatement actions described in this section and in the lead statute.

Q. Arrange room dimensions and locations to comply with all of the following:

(1) At least seventy-five (75) percent of the floor area of every habitable room shall have a ceiling height of at least seven (7) feet eight (8) inches, except for attic rooms which shall each be at least seven (7) feet four (4) inches high in half of its area; and the floor area of that part of any room where the ceiling height is less than five (5) feet shall not be considered as part of the floor area in computing the floor area of the room for the purpose of determining the maximum permissible occupancy thereof.

(2) No basement space shall be used as a habitable room unless: floor and walls are impervious to leakage of underground and surface runoff water and are insulated against dampness; total window area in each room is equal to at least the minimum window area sizes as required in this section; required minimum window area is located entirely above the grade of the ground adjoining such window area: total of openable window area in each room is equal to at least the minimum as required in this section, except where there is supplied some other device affording adequate ventilation and approved by the director of health; and rooms shall be at least eight (8) feet six (6) inches high in each part from the floor to the ceiling and the ceiling shall be at least four (4) feet six (6) inches above the outside ground level.

(3) No cellar space shall be used as a habitable room or housing unit.

(4) No housing or housing unit containing two (2) or more sleeping rooms shall have such arrangements that access to a bathroom or water closet compartment, intended for use by occupants of more than one (1) sleeping room, can be had only by going through another sleeping room, nor shall room arrangements be such that access to a sleeping room can be had only by going through another sleeping room or a bathroom or water closet compartment.

R. Maintain in good repair any porch, stoop, stair, or elevator.

S. Refrain from installing wall-to-wall carpeting or replacing existing wall-to-wall carpeting in any kitchen, kitchenette, or bathroom, to assist with asthma prevention, allergy control, and mold prevention.

T. Report to the police department any illegal activity taking place within the housing or housing unit of which the owner has actual knowledge or should reasonably be expected to have knowledge.

U. Provide to each occupant known to be over age seventeen (17) a voter registration form, in the form then available by the office of the registrar of voters of the city and the State, at the time such occupant or occupants take possession of a housing unit.

V. Post, in a size and format as may be prescribed by the director of licenses and inspections, any license issued pursuant to this chapter and the contact informa-

tion for the person responsible for the maintenance of the housing, in a location that is within ten (10) feet of the front door, or in a common mailroom accessible by tenants, or in a weather-proof display case mounted outside of the front wall of the housing; ensure that such posting not be defaced, marred, camouflaged, hidden, or removed; and within three (3) business days of a defacement, marring, or removal, replace the posting or, if available from the director of licenses and inspections, request a replacement copy of the posting, pay a twenty-five dollar ($25.00) fee to the city, and promptly post upon receipt.

W. Upon turnover of a housing unit, remediate any visible mold and infestations, and thoroughly clean and vacuum all carpeting and furniture provided by such owner to incoming occupants.

(Ord. No. 15-19, 10-28-19)

Sec. 18-52. Occupant's responsibilities.

While in all circumstances the owner shall have the ultimate responsibility of timely repairs, and no dispute about occupant responsibilities shall delay repairs, every occupant of a housing unit must:

A. Keep in a clean and sanitary condition that part of the housing unit and premises thereof which he or she occupies and controls.

B. Dispose of all rubbish in a clean and sanitary manner and in appropriate containers, separating recyclables from other rubbish in accordance with chapter 15 of the municipal code.

C. Keep all supplied fixtures and facilities therein in a clean and sanitary condition and exercise reasonable care in the proper use and operation thereof.

D. Allow the owner, subject to the terms of a written lease and state law, to access any part of such housing unit or its premises at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this chapter, with any lawful rule or regulation adopted or any lawful order issued pursuant to the provisions of this chapter.

E. Maintain or replace screens, once properly installed in any one (1) season, where the occupant has damaged such screens.

F. Notify an owner orally or in writing when he or she knows or reasonably suspects that the housing unit is infested and cooperate with any inspection and treatment, pursuant to G.S. § 47a-7a; and refrain from taking any action which would increase the likelihood that the infestation spreads to other units.

G. Use reasonable efforts to maintain the housing unit and any other part of the premises and he or she occupies in such a condition as to prevent accumulation of moisture and the growth of mold, and to promptly notify the owner of any moisture accumulation that occurs or of any visible evidence of mold discovered.

H. Replace light bulbs within the occupant's housing unit if they are extinguished, after the first month of occupancy, unless an executed lease for the housing unit places responsibility for this task on another party.

I. Deposit with the owner any key to any locking device, upon termination of the occupant's interest in the housing unit.

J. Prevent from being removed, shut off, or discontinued any service, facility, equipment, or utility required under this chapter, except when any of the following conditions occur:

(1) Such temporary interruption as may be necessary while actual repairs.

(2) Alterations are in process or during temporary emergencies when discontinuance of service is approved by the director of health.

(3) The occupant is in financial distress and demonstrates an inability to

pay the costs of maintaining such a service, facility, equipment, or utility, which shall provide such occupant special consideration in accordance with section 18-109.

K. Periodically test smoke detectors installed within dwelling units and replace batteries, provided that this obligation does not apply to occupants of group living units, hotel units, and rooming units; and pay if requested by the owner for the replacement of a smoke detector if it malfunctions due to the fault of the applicant.

L. Ensure that maximum occupancy is maintained at the levels represented in the application and at the maximum level allowed by the building code, the zoning regulations, or any other law, code, or regulation, whichever number is less.

(Ord. No. 15-19, 10-28-19)

Sec. 18-53—18-59. Reserved.

ARTICLE V. ADDITIONAL REQUIREMENTS FOR DWELLINGS AND DWELLING UNITS

Sec. 18-60. Space, use, and location.

A. Each dwelling unit shall contain at least one hundred fifty (150) square feet of floor space for the first occupant thereof and at least one hundred thirty (130) square feet of floor space for every additional occupant, the floor space to be calculated on the basis of total habitable room area. An owner shall not be penalized if a tenant has misrepresented the number of occupants in a dwelling.

B. In each dwelling unit of two (2) or more rooms, each room occupied for sleeping purposes shall contain at least seventy (70) square feet of floor space for the first occupant and at least fifty (50) square feet of floor space for each additional occupant thereof. An owner shall not be penalized if a tenant has misrepresented the number of occupants in a dwelling.

C. Each dwelling unit shall have adequate closet or other storage space for the personal effects of each permissible occupant. If it is lacking, an amount of space equal in square footage to the deficiency shall be subtracted from the area of habitable room space used in determining permissible occupancy.

D. Each dwelling unit must contain a kitchen and a bathroom.

(Ord. No. 15-19, 10-28-19)

Secs. 18-61—18-69. Reserved.

ARTICLE VI. ADDITIONAL REQUIREMENTS FOR GROUP LIVING DWELLINGS AND GROUP LIVING UNITS

Sec. 18-70. Supervision.

Each group living dwelling, other than a temporary shelter facility or a group living for health reasons, shall have a supervisor or supervisors who live on site at all times. The director of health shall promulgate rules and regulations establishing minimum standards of supervision, minimum qualifications of supervisors, registration of supervisors and minimum office and meeting room requirements to ensure the orderly operation of group living facilities.

(Ord. No. 15-19, 10-28-19)

Sec. 18-71. Bathrooms.

If group living unit is located within a building primarily operated as a group living dwelling (other than a temporary shelter facility), the group living unit shall have a bathroom.

(Ord. No. 15-19, 10-28-19)

Secs. 18-72—18-79. Reserved.

ARTICLE VII. ADDITIONAL REQUIREMENT FOR HOTELS AND HOTEL UNITS

Sec. 18-80. Space, use, and location.

A. Each hotel unit shall contain at least one hundred fifty (150) square feet of floor space.

B. Each hotel unit must have at least two (2) approved remote means of egress, both of which lead to safe and open space at ground level (as required by the laws of the State and this city), except that windows shall not be considered means of egress.
(Ord. No. 15-19, 10-28-19)

Sec. 18-81. Bathrooms.

Each hotel unit shall have at least one (1) bathroom.
(Ord. No. 15-19, 10-28-19)

Sec. 18-82. Cooking.

A. Cooking in a hotel unit shall be prohibited except in those hotels operating as residential hotels, which include kitchens.

B. Communal cooking and dining facilities shall be prohibited in a hotel, except as approved by the director of health in writing.
(Ord. No. 15-19, 10-28-19)

Sec. 18-83. Other requirements.

A. The owner or operator shall ensure that doors to hotel units from outdoor areas, common areas, hallways, and lobbies shall have operating locks to ensure privacy.

B. The owner or operator must provide clean linens and towels upon letting any hotel unit to a guest and at least once each week. The owner and operator shall maintain supplied bedding in a clean and sanitary manner.
(Ord. No. 15-19, 10-28-19)

Secs. 18-84—18-89. Reserved.

ARTICLE VIII. ADDITIONAL REQUIREMENTS FOR ROOMING HOUSES AND ROOMING UNITS

Sec. 18-90. Space, use, and location.

A. Each rooming unit shall contain at least seventy (70) square feet of floor space for one (1) occupant using the rooming unit for sleeping purposes, and at least fifty (50) additional square feet of floor space per additional occupant using the rooming unit for sleeping purposes, exclusive of wardrobe and closet space.

B. Each rooming unit must have at least two (2) approved remote means of egress, both of which lead to safe and open space at ground level (as required by the laws of the State and this city), except that windows shall not be considered means of egress.

C. No rooming unit shall be located in any accessory structure. No accessory structure shall be used as a rooming house.
(Ord. No. 15-19, 10-28-19)

Sec. 18-91. Bathrooms.

In every rooming house, there shall be at least one (1) toilet, one (1) sink and one (1) shower or bathtub for each four (4) rooming units shown on the plans submitted with the application for the rooming house license or for each five (5) occupants, whichever requirement provides more bath facilities per occupant. All such facilities shall be so located within the rooming house as to be reasonably accessible from a common hall or passageway to all of the persons sharing such facilities and shall be on the same floor as the rooming units which such facilities serve.
(Ord. No. 15-19, 10-28-19)

Sec. 18-92. Cooking.

A. Cooking in a rooming unit shall be prohibited.

B. Communal cooking and dining facilities shall be prohibited in a rooming house, except as approved by the director of health in writing.
(Ord. No. 15-19, 10-28-19)

Sec. 18-93. Other requirements.

A. The owner or operator shall ensure that doors to rooming units from outdoor areas, common areas, hallways, and lobbies shall have operating locks to ensure privacy.

B. The owner or operator must provide clean linens and towels upon letting any rooming unit, and at least once each week thereafter, for occupants who occupy a rooming unit on a daily

or weekly basis. The owner and operator shall maintain supplied bedding in a clean and sanitary manner.

C. The person who obtains a license for a rooming house shall reside in the rooming house. No license or license renewal for a rooming house shall be issued when neither an owner nor operator is a bona fide resident of the property.

D. The owner must display a copy of any city license in a conspicuous place within the common areas of the housing, and the floor plan must be displayed in a central common area, in a conspicuous place, on the main floor of the rooming house, together with a notice that violations of this article may be reported anonymously by calling 311.

E. The licensee of every such rooming house must keep in the office, or other place on the premises, a register in which shall be entered the name and permanent residence, if any, of every person who becomes an occupant thereof. Such register shall also show the number or location of the room or bed occupied by such person, with dates of arrival, and departure. The register shall also be accessible, without charge, to any duly authorized agent of the department of development services.

F. Each rooming house shall have a doorbell at the principal entrance for the rooming house, which rings in a common area and is audible within the rooming units. Each rooming unit shall have a doorbell.
(Ord. No. 15-19, 10-28-19)

Secs. 18-94—18-99. Reserved.

ARTICLE IX. VIOLATIONS, REMEDIAL ACTION, AND PENALTIES

Sec. 18-100. Notice of violation.

A. Whenever the director of licenses and inspections determines that there are reasonable grounds to believe that there has been a violation of any provision of this chapter or any rule or regulation adopted pursuant thereto, including but not limited to failure to provide adequate housing pursuant to section 18-51 and failure to apply for a required license, before issuing any citation, such director shall give notice of such alleged violation to the person responsible therefor, provided that no notice shall be required in the case of emergency action as provided in section 18-102 of this code.

B. Such notice of violation shall:

(1) Be put in writing.

(2) Include a statement of the reasons why it is being issued, including appropriate code citation.

(3) Allow a reasonable time, not fewer than twenty-one (21) days or more than sixty (60) days for the correction of any alleged violation, except that in the case of a condition, which in the reasonable judgment of the director of licenses and inspections is or in its effect is dangerous or detrimental to life or health, the date specified shall be not more than five (5) days from the date of service of such notice as provided in 100 (B) (4).

(4) Be served upon the owner or the occupant, as the case may require; provided, that such notice shall be deemed to be properly served upon such owner or upon such occupant, if a copy thereof is served upon him or her personally; or if a copy thereof is sent by registered mail to his or her last known address; or if a copy thereof is posted in a conspicuous place in or about the housing or housing unit affected by the notice; or if he or she is served with such notice; or if a copy is sent electronically to his or her email and receipt thereof is acknowledged in return; or by any other method authorized or required by the laws of this state.

(5) State that unless violations cited are corrected within the time period offered, the division of licenses and inspection will issue a citation imposing fines, penalties, costs, and fees due and the license may be denied, suspended, or revoked; in addition to the penalties provided in accordance with the General Statutes of CT in section 7-148(c)(10)(A).

(6) Upon written request, the director of licenses and inspections may grant one or more extensions of time for correction of any alleged violations if deemed reasonable and for good cause.

C. Such notice of violation may contain an outline of remedial action that, if taken, will effect compliance with the provisions of this chapter and with rules and regulations adopted pursuant thereto. For example, in the case of an infestation, an inspector may require an extermination plan and the complete elimination of infestation; and in the case of a safety concern, an inspector may require that the owner, at the owner's expense, install security cameras, hire a police detail, or take other measures to improve safety.
(Ord. No. 15-19, 10-28-19; Ord. of 3-14-22, §§ 4—7)

Sec. 18-101. Citation.

A. If any violation documented in any notice of violation is not remedied within the specified time period, the owner shall be issued a citation.

B. Such citation shall:

(1) Be put in writing.

(2) Include a statement of the reasons why it is being issued, including appropriate code citation.

(3) Be served upon the owner or the occupant, as the case may require; provided, that such citation shall be deemed to be properly served upon such owner or upon such occupant, if a copy thereof is served upon him or her personally; or if a copy thereof is sent by registered mail to his or her last known address; or if a copy thereof is posted in a conspicuous place in or about the housing or housing unit affected by the notice; or if he or she is served with such notice by any other method authorized or required by the laws of this state; and, if an email address has been provided, an electronic copy of a citation may be sent to the alleged violator, provided that failure to send such a copy shall not be considered a failure to serve.

(4) State the fines, penalties, costs, or fees due, or action required to be taken.

(5) State that the recipient may contest his or her liability before a hearing officer in person or by mailed written notice within ten (10) days of the date thereof, and that if he or she does not demand such a hearing, an assessment shall be entered against him or her, and that such assessment may issue without further notice.

C. The owner shall be presumed to shall bear primary responsibility for violations of this chapter that arise from obligations of the owner: however, operators or occupants may be jointly or severally liable depending on the factual circumstances.
(Ord. No. 15-19, 10-28-19)

Sec. 18-102. Emergency actions.

A. Notwithstanding any other provisions of this chapter, whenever the director of licenses and inspections or director of health finds that an emergency exists which requires immediate action to protect the public health or safety, he or she may, without notice or hearing, issue an order reciting the existence of such an emergency and requiring: immediate remedial action in accordance with section 18-105 of this code, the vacation of the housing for a temporary or permanent period, or any other action he or she deems necessary to meet the emergency, and such order shall be effective immediately.

B. The following are example, non-exclusive, circumstances justifying emergency action pursuant to this chapter for any housing regulated by this chapter:

(1) The operation of any illegal or unpermitted primary or accessory use (including but not limited to a drinking place, eating place, entertainment assembly, private club, smoking place, or tattoo/piercing parlor as such uses are defined in the zoning regulations) on the premises.

(2) Prima facie evidence of illegal activities being conducted on the premises, which are not being remedied by the owner. In such instances, the Director of Licenses and Inspections may order an appropri-

ate action against the owner, but may not bypass the provisions of G.S. §§ 47a-23 et seq.

(3) A noncompliance with an applicable life safety code which poses an immediate threat to health, safety, or welfare, including noncompliance resulting from an accident, such as a fire, or unexpected Act of God.

(4) An infestation that renders the premises unfit for human habitation.

C. Any person to whom such order is directed shall comply therewith immediately but, upon petition to the director of licenses and inspections or director of health, as applicable, shall be afforded a hearing as soon as possible, in accordance with article X of this chapter.
(Ord. No. 15-19, 10-28-19)

Sec. 18-103. Post-notice procedures.

A. The director of licenses and inspections may, in his or her discretion, postpone the last day by which a violation shall be corrected upon a showing by the owner or other responsible person that he or she has begun to correct the violation, but that full correction of the violation cannot be completed within the time provided because of technical difficulties, inability to obtain necessary materials or labor, or inability to gain access to the dwelling unit wherein the violation exists, provided that such postponement shall not exceed sixty (60) days from the date by which corrections would be made pursuant to the original notice, unless the affected party seeks an additional extension pursuant to article X of this chapter.

B. When the violation has been corrected, the responsible party shall promptly, but not later than two (2) weeks after such correction, report to the director of licenses and inspections in writing, indicating the date when each violation was corrected. It shall be presumed that the violation was corrected on the date so indicated, unless a subsequent inspection by the director of licenses and inspections reveals the existence of the condition giving rise to the earlier notice of violation.

C. If the person who is sent notice pursuant to section 18-100 wishes to admit liability for any alleged violation, he may, without requesting a hearing, pay the full amount of the fines, penalties, costs, or fees admitted to in person or by mail to the city.

D. Any person who does not deliver or mail written demand for a hearing within ten (10) days of the date of the first notice of violation shall be deemed to have admitted liability, and the corporation counsel shall certify such person's failure to respond.
(Ord. No. 15-19, 10-28-19)

Sec. 18-104. Penalties and costs.

A. Any penalties imposed by, and costs incurred by. the city pursuant to this chapter shall be due and payable to the city the business day after any appeals period has expired.

B. Any person or entity who shall violate any provision of this chapter, or any provision of any rule or regulation adopted by any city agency or department pursuant to authority granted in this chapter, or shall fail to correct any violation prior to the date set forth in the notice of violation shall be subject to a civil penalty of up to one hundred dollars ($100.00) per day for each violation from the date of the citation to the date such violation is corrected, and to the extent required by G.S. § 47a-59 the total penalty shall not exceed seven thousand five hundred dollars ($7,500.00) per violation.

C. Any person or entity who shall violate any provision of this chapter, or any provision of any rule or regulation adopted by any city agency or department pursuant to authority granted in this chapter, or shall fail to correct any violation prior to the date set forth in the notice of violation, or as extended in writing by the director of licensing and inspections, shall in addition to the penalties in section 18-100 (B) (5), be subject to a fine of two hundred fifty dollars ($250) per day of violation in accordance with the General Statutes of CT Section 7-148(c)(10)(A), if convicted.

D. Any nonresident owner that does not file a true and accurate residential address shall be fined a civil penalty of two hundred fifty dollars ($250.00) for the first violation and one thousand dollars ($1,000.00) for any subsequent violation.

E. The director of licenses and inspections shall maintain a current record of all properties with respect to which such penalty remains unpaid in the office of such agency. Such record shall be available for inspection by the public.

F. The city shall recover from the responsible party all expenses, including legal and administrative charges and charges by third party consultants, incurred by the city as a result of any inspection, abatement, or enforcement action.

G. When the department of health certifies that any rented dwelling or dwelling unit is unfit for human habitation, by reason of defects which may cause sickness or endanger the health of the occupants, the department may issue an order requiring the rented dwelling or dwelling unit, or any portion thereof, to be vacated within not less than twenty-four (24) hours or more than ten (10) days. Any person who violates or assists in violating, or fails to comply with, any provision of this section or any legal order of a department of health made under any such provision shall be guilty of a class C misdemeanor.
(Ord. No. 15-19, 10-28-19; Ord. of 3-14-22, § 8)

Sec. 18-105. Remedial actions.

A. In the event of the failure of any person to perform remedial action (including but not limited to inspections, repairs, demolition, maintenance, and removal, among other actions) to correct a violation or comply with any other order, the director of licenses and inspections or director of health may cause compliance therewith, and the expense of the compliance may be collected as a debt against such person, and the city may place a lien on the property.

B. Ten (10) days prior to the commencement of undertaking any such remedial action that may incur costs, the city shall provide to the owner notice of the city's intention to undertake such work, except in cases of emergency action pursuant to section 18-102 of this code, in which case no such notice shall be required.

C. Notice required by this section shall be satisfied if the director of licenses and inspections or the director of health leaves with such owner, or mails to such owner's usual place of abode, a copy of a statement of the city's intent to perform remedial action upon the owner of the housing subject to remedial action. If the owner does not reside in the city, but has a registered agent therein, the notice may be so left with or mailed to the registered agent. When there are two (2) or more owners, the notice shall be so served on each owner, but the city's failure to notify each and every owner shall not relieve such owners of liability under this code. If an email address has been provided, an electronic copy of a notice required by this section may be sent to the alleged violator, provided that failure to send such a copy shall not be considered a failure to serve.
(Ord. No. 15-19, 10-28-19)

Sec. 18-106. Judicial actions.

A. Whenever any person violates or threatens to violate any provision of this chapter or any provision of any rule or regulation adopted by a city department or agency pursuant to authority granted by this chapter or any order of the director of health, the city is authorized to institute before any court having jurisdiction a civil action praying for an injunction restraining any such person from committing such violation.

B. The city may bring an action in superior court for the recovery of penalties, together with costs and disbursements.

C. In any judicial action, the city shall seek to recover from the responsible party all expenses, including legal and administrative charges and charges by third party consultants, incurred by the city as a result of any inspection, abatement, or enforcement action.

D. Notwithstanding anything to the contrary in this chapter, the city shall be entitled to pursue the maximum fines available to it pursuant to state law.

E. The city may pursue any other legal remedy available to it at law or in equity.

F. The city, including among other officials the director of licenses and inspections and the director of health, is authorized to submit information to the office of the state attorney to aid in prosecutions of violations of this chapter.
(Ord. No. 15-19, 10-28-19)

Sec. 18-107. Liens.

A. The city shall have authority to file a lien on the land records upon the real property against which costs were incurred or a penalty was imposed, as applicable, in either or both of the following circumstances:

(1) Costs incurred in review of applications or conducting inspections, enforcement, repairs, demolition, maintenance, removal, or other disposition, or in the execution of remedial action pursuant to this chapter.

(2) Any penalty imposed pursuant to this chapter.

B. Prior to filing such lien, the director of licenses and inspections must:

(1) In the case of costs incurred, satisfy notice requirements if any pursuant to section 18-105(B) of this code and record on the land records a certificate subscribed and sworn to by the director of licenses and inspections giving the address of the housing or housing unit, identifying the record owner of the housing or housing unit, the amount claimed as a lien (which may include an additional overhead and administration charge of up to six (6) percent of the costs incurred), the date of commencement of the activities undertaken, and the date of completion of the activities undertaken; and stating that the amount is justly due and that the expenses have been incurred in pursuance of review of applications. inspections, enforcement, or other disposition, or in the execution of remedial action pursuant to this chapter. The director of licenses and inspections shall file such certificate not later than thirty (30) days after the completion of the activities giving rise to the cost, and not later than thirty (30) days after lodging the certificate, provide notice to the owner in accordance with the following requirements. Notice shall be satisfied if the director of licenses and inspections or the director of health shall serve a true and attested copy of a certificate upon the owner of the housing for which costs have been incurred by leaving with such owner or at such owner's usual place of abode a true and attested copy thereof. If the owner does not reside in the city, but has a registered agent therein, the notice may be so served upon the registered agent; otherwise it may be served by any indifferent person, state marshal or other proper officer, by mailing a true and attested copy of the notice by registered or certified mail to the owner at the place where such owner resides. If such copy is returned unclaimed, notice to such owner shall be given by publication in accordance with the provisions of G.S. 1-2. When there are two (2) or more owners, the notice shall be so served on each owner.

(2) In the case of a penalty imposed pursuant to a violation, record on the land records a notice of violation and index such violation in the name of the property owner no later than thirty (30) days after the penalty was imposed.

C. Each such lien shall be effective from the time of the recording on the land records.

D. Each lien for costs incurred shall take precedence over all transfers and encumbrances recorded after such time, and all other liens and encumbrances, except municipal taxes and assessments, recorded previously to the existence of such lien, except for liens done for work for demolition, for which chapter 2 of the charter may limit precedential effect. Each lien for penalties imposed shall have the same priority as judgment liens in accordance with G.S. § 7-152c(f).

E. Unless proceedings to discharge such lien are taken by the party against whom or whose real property a lien is claimed, the filing shall, as to all persons having actual notice, become conclusive evidence that the amount claimed in the notice of lien with interest is due and is a just lien upon the premises.

F. Any lien pursuant to this section may be foreclosed in the same manner as a mortgage.

G. Any lien pursuant to this section may be discharged or dissolved in the manner provided in G.S. §§ 49-35a to 49-37, inclusive.

H. The recovery or repayment of any penalties or costs incurred pursuant to this chapter may be obtained by the city by collecting rents directly from any tenants of the dwelling involved, or by a suit against the owner of the dwelling, or both, pursuant to procedures contained in G.S.

chapter 833a, or by the appointment of a receiver responsible for the collection of rents pursuant to G.S. § 47a-56a.

I. If the city does not file a lien to recover costs per section 18-107(A)(1) of this code, then the city may assess the amount of such costs against the property for which such costs were incurred. Upon certification by the city agency incurring such cost of the assessment amount due and owing reasonably related to the city's actual cost, the tax collector shall add the amount of such assessment to the extent unpaid to the taxes due on such real estate and such amount shall become part of the taxes to be collected at the same time and shall bear interest at such rates and in such manner as provided for delinquent taxes in accordance with the general statutes. Any amount added to the assessment under this section shall constitute a lien upon the property for which such costs were incurred, from the date such amount was due. Each such lien may be continued, recorded, and released in the manner provided by the general statutes for continuing, recording, and releasing property tax liens. Each such lien may be enforced in the same manner as property tax liens.
(Ord. No. 15-19, 10-28-19)

State law reference—Similar provisions, G.S. §§ 12-169b, 49-34, 49-35, 49-73b.

Sec. 18-108. Condemnation.

A. The director of licenses and inspections or director of health may condemn as unfit for human habitation any housing or housing unit he or she may deem to be so damaged, decayed, dilapidated, insanitary, unsafe, or vermin-infested that it creates a serious hazard to the health or safety of the occupants or the public.

B. Any housing or housing unit condemned as unfit for human habitation and so designated and placarded shall be vacated within a reasonable time as ordered by the enforcing officer, and occupants shall be vacated in accordance with applicable relocation provisions in 18-110.

C. No housing or housing unit which has been condemned and placarded as unfit for human habitation shall again be used for human habitation until written approval is secured from, and such placard is removed by, the condemning authority.

D. The condemning authority shall remove such placard whenever the defect upon which the condemnation and placarding action was based has been eliminated.

E. No person shall deface or remove the placard from any housing or housing unit which has been condemned as unfit for human habitation and placarded as such, except as provided in paragraph D.

F. Where no corrective action is taken by the owner, operator, or occupant of a housing or housing unit designated as unfit for human occupancy within six (6) months following the date of the placarding action and when no hearing is pending, the director of licenses and inspections shall seek judicial remedies and may consider pursuing an order that the structure in violation to be demolished as soon as practicable, provided that reasonable notice is given to said owner, operator, or occupant within a reasonable time prior to said demolition.

G. Nothing herein contained shall be interpreted as precluding any private right of action of any person against an owner, operator, or occupant of the placarded structure.
(Ord. No. 15-19, 10-28-19)

Sec. 18-109. Special consideration.

Notwithstanding anything herein to the contrary, special consideration may be given to an individual human owner-operator-occupant, or to an individual human occupant, who is sixty-two (62) years of age or older or is disabled, and who demonstrates that the violation results from an inability to maintain a housing unit and no person with that ability resides therein, and to an individual human owner-operator-occupant, or to an individual human occupant, who is in financial distress and demonstrates an inability to pay the costs of remedying any violation issued pursuant to this chapter, provided that under no circumstances shall special consideration be given to an entity other than a human being, nor shall such special consideration

be given to any human being who does not own, operate, and occupy the property subject to the violation. Such special consideration shall be limited to the reduction or elimination of fines, or an agreement that the city or its agents may perform the necessary work and place a lien against the premises for the cost thereof in accordance with the provisions of this code.
(Ord. No. 15-19, 10-28-19)

Sec. 18-110. Relocation.

A. The director of licenses and inspections may order occupants to vacate housing units that: are unfit for human habitation, including but not limited to situations requiring emergency action; have been condemned pursuant to this chapter for any reason; or have been the subject of a license that has been revoked.

B. Whenever any tenant in any dwelling unit, group living unit, or rooming unit is displaced as the result of the enforcement of this code, the owner of such dwelling unit, group living unit (other than a temporary shelter facility), or rooming unit shall be liable for, and shall be liable to the city for any payments made by the city for, all of the following:

(1) Actual reasonable expenses in moving the tenant.

(2) Actual direct losses of tangible personal property as a result of moving or discontinuing the housing unit use.

(3) Actual reasonable expenses in searching for new housing.

(4) For a tenant occupying the unit for at least ninety (90) days preceding the order to vacate, the amount necessary for the tenant to lease or rent for a period not to exceed four (4) years, a decent, safe, and sanitary dwelling of standards adequate to accommodate such displaced person in areas not generally less desirable with regard to public utilities and public and commercial facilities, and reasonably accessible to such displaced person's place of employment, but not to exceed four thousand dollars ($4,000.00) or the amount necessary to enable such displaced person to make a down payment, including reasonable expenses incurred by such displaced person for evidence of title, recording fees, and other closing costs incident to the purchase of a decent, safe, and sanitary dwelling of standards adequate to accommodate such person in areas not generally less desirable with regard to public utilities and public and commercial facilities, but not to exceed four thousand dollars ($4,000.00), except that if such amount exceeds two thousand dollars ($2,000.00), such person must equally match any such amount in excess of two thousand dollars ($2,000.00) in making the downpayment.

C. To secure repayment to the city of sums expended in accordance with this section, the city may place a lien in the amount of sums expended on any real property owned by such owner, which lien shall have the same priority as and shall be filed, enforced, and discharged in the same manner as a lien for municipal taxes under G.S. chapter 205. The city may also bring a civil action against such landlord in superior court for the recovery of such payments, and for the costs, together with reasonable attorney's fees, of the city.
(Ord. No. 15-19, 10-28-19)

State law reference—Similar provisions, G.S. §§ 8-268, 8-270, 8-270a.

Sec. 18-111. Other laws.

Citations, penalties, fines, fees, liens, and remedial action ordered pursuant to this chapter shall not be deemed to substitute for, replace, or exclude citations, penalties, fines, fees, liens, and remedial action that other laws, including but not limited to chapter 9 of this code, may require or allow.
(Ord. No. 15-19, 10-28-19)

Secs. 18-112—18-119. Reserved.

ARTICLE X. APPEALS

Sec. 18-120. Right to appeal.

A. Any person adversely affected by any order which has been issued in connection with the enforcement of any provisions of this chapter

may request and, upon payment of a ten dollar ($10.00) fee to the city, shall be granted a hearing on the matter before a hearing officer established under section 1-5 of the code and with expertise in law or issues related to housing; provided that such person, within ten (10) days of the date of service of the order, shall file in the office of the director of licenses and inspections a written petition containing a request for such hearing and setting forth a brief and concise statement of the error alleged to be contained in the order. The person filing such a petition shall be called the petitioner.

B. Appeals of a suspension (including a request for an extension of such suspension, rather than revocation) or revocation may be filed in accordance with this article, provided, however, that any suspended license shall be deemed to be automatically revoked if a request for hearing is not filed in the office of the director of licenses and inspections within twenty (20) days after notice of suspension is served.

C. This article shall not apply to any person who is assessed a civil penalty pursuant to section 18-104(D) of this code, and who may appeal to the superior court in accordance with state law.

D. This article shall not apply to any appeal from an order of the director of health pursuant to section 18-104(G) of this code, which is appealable to the State director of health in accordance with state law.
(Ord. No. 15-19, 10-28-19)

Sec. 18-121. Effect of appeal.

The filing of an appeal shall not automatically stay operation of the order.
(Ord. No. 15-19, 10-28-19)

Sec. 18-122. Appeal procedures.

A. Timing.

(1) If a petitioner is appealing an order related to an emergency action pursuant to section 18-102 of this code, or is requesting a stay pursuant to section 18-125 of this code, the hearing officer shall hold a hearing as soon as possible, but whenever possible no later than ten (10) days from the filing of the petition.

(2) For all hearings other than those requested pursuant to subsection (1), the hearing officer shall hold a hearing not less than fifteen (15) days nor more than thirty (30) days from the date of mailing of the notice.

(3) Upon application of the petitioner, said hearing officer may postpone the date of the hearing for a reasonable time if, in his or her judgment, the petitioner submitted a good and sufficient reason for such postponement; but in no event shall said hearing be postponed longer than sixty (60) additional days.

B. Any person who requests a hearing pursuant to this article shall be given written notice of the date, time, and place for the hearing.

C. At such hearing the petitioner shall be given an opportunity to be heard and to show why such order shall be modified, extended, or withdrawn, or a waiver granted.

D. The petitioner shall have the right to be represented by counsel, to cross-examine and to call witnesses, and to introduce evidence on his own behalf.

E. The corporation counsel or his designee shall represent the city and shall cross-examine and call witnesses, and introduce evidence on behalf of the city. The presence of the issuing official shall be required at the hearing if the petitioner so requests.

F. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation.
(Ord. No. 15-19, 10-28-19)

Sec. 18-123. Decisions in appeals.

A. The hearing officer shall announce his or her decision at the end of the hearing.

B. If the hearing officer determines that the petitioner is not liable for the violation, the order shall be withdrawn, and the ten dollar ($10.00) fee shall be returned to the petitioner.

C. If the hearing officer determines that the petitioner is liable for the violation, the order shall be sustained, and the hearing officer shall forthwith enter and assess the fines, penalties, costs, or fees against such person as provided by this chapter.

D. The hearing officer may grant an extension or waiver in accordance with the conditions set forth in section 18-125 of this code.

E. If the petitioner fails to appear, the hearing officer may enter an assessment by default against him or her upon a finding of proper notice and liability under the applicable statutes or ordinances.
(Ord. No. 15-19, 10-28-19)

Sec. 18-124. Extension or waiver.

A. *Extension*. The time for performance of any act required by the order may be extended for not more than eighteen (18) months subject to appropriate conditions and provided that the hearing officer makes specific findings of fact based on evidence relating to the following factors:

(1) That there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of any provisions of this title; and

(2) That such extension is in harmony with the general purpose and intent of this title in securing the public health, safety and general welfare.

B. *Waiver*. A waiver (including partial wavier) may be granted in a specific case and from a specific provision of this chapter subject to appropriate conditions and provided that the hearing officer makes specific findings of fact based on evidence relating to the following factors:

(1) That there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of the provision;

(2) That the effect of the application of the provisions would be arbitrary in the specific case;

(3) That an extension would not constitute an appropriate remedy for these practical difficulties or unnecessary hardships and this arbitrary effect; and

(4) That such waiver is in harmony with the general purpose and intent of this title in securing the public health, safety and general welfare.
(Ord. No. 15-19, 10-28-19)

Sec. 18-125. Request to stay during appeal.

A. A party filing the petition, within the time allowed for such filing, may make written request of the director of licenses and inspections for a stay of operation of the order pending the hearing by the hearing officer.

B. Such request shall set forth a brief and concise statement of the reasons for which good cause for a stay of the operation of the order shall be had.

C. Upon receipt of such petition, the director of licenses and inspections shall request that the hearing officer set a time and place for a hearing.
(Ord. No. 15-19, 10-28-19)

Sec. 18-126. Record of hearings.

The proceedings at any hearing conducted pursuant to this section, including the findings and decision of the hearing officer and a copy of notices and orders issued in connection with the matter, shall be summarized, reduced to writing, and entered as a matter of public record in the office of the hearing officer or the director of licenses and inspections.
(Ord. No. 15-19, 10-28-19)

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Chapter 19

JUNK COLLECTORS AND RAGPICKERS*

*Cross references—Auctions and auctioneers, Ch. 8; buildings and property, Ch. 9; close-out sales, Ch. 11; fire protection and prevention, Ch. 13; garbage, refuse and weeds, Ch. 15; health and sanitation, Ch. 17; licenses and permits, Ch. 21.

Sec. 19-1. License—Required.

No person shall engage in the business of collecting rags, paper, glass, old metal, junk, cinders or other waste matter in the city, or go about the streets and public places in the city for the purpose of collecting, purchasing or bartering for the same, without having obtained a license to do so issued by the bureau of licenses and inspections.
(Code 1977, § 19-1)

Sec. 19-2. Same—Records of chief of police.

It shall be the duty of the chief of police to keep a record of all licenses granted pursuant to this chapter in a book provided for the purpose, giving the number and date of each license, the name, age and residence of the person licensed, and the date of revocation of any licenses revoked.
(Code 1977, § 19-4)

Sec. 19-3. Same—Badge.

Every person licensed under this chapter shall, while exercising his vocation, carry his license with him and exhibit it to any person demanding to examine it.
(Code 1977, § 19-5)

Sec. 19-4. Same—Term; revocation; fee.

The licenses required by section 19-1 shall contain such conditions as the chief of police may deem expedient. The fee for such license shall be two dollars ($2.00). The chief shall adopt uniform regulations for junk collectors and ragpickers. The licenses may be revoked for violation of such regulations. Such regulations shall include a right to hearing on any alleged violation.
(Code 1977, § 19-2)

Sec. 19-5. Same—Expiration date.

All licenses pursuant to this chapter shall, unless sooner revoked, expire on June thirtieth after the date of their issuance.
(Code 1977, § 19-3)

Sec. 19-6. Working hours.

No person licensed pursuant to this chapter shall pursue his vocation between the hours of 6:00 p.m. and 7:00 a.m.
(Code 1977, § 19-6)

Sec. 19-7. Removal of rubbish and waste material set out for collection by city prohibited.

No person licensed pursuant to this chapter shall remove any rags, paper, glass, old metal, junk, cinders, rubbish or other waste matter placed upon the street to be removed by the department of public works or by any person having an arrangement or contract with such department for the removal of the same.
(Code 1977, § 19-7)

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Chapter 20

LAUNDRIES AND DRY CLEANING*

Art. I. In General, §§ 20-1—20-15
Art. II. Self-Service Laundries, §§ 20-16—20-40
Art. III. Self-Service Dry Cleaning Establishments, §§ 20-41—20-48

*Cross reference—Licenses and permits generally, Ch. 21.

ARTICLE I. IN GENERAL

Secs. 20-1—20-15. Reserved.

ARTICLE II. SELF-SERVICE LAUNDRIES

Sec. 20-16. Enforcement of article.

The director of the department of licenses and inspections shall be charged with the enforcement of the provisions of this article.
(Code 1977, § 20-16)

Sec. 20-17. License—Required.

It shall be unlawful for any person to engage in the business of coin-operated automatic self-service laundries without having obtained an annual license to conduct such business issued by the bureau of licenses and inspections and approved by the director of the department of licenses and inspections. The provisions of this section shall apply to every person engaged in the business in the city of operating, for the use of the general public, automatic self-service laundries which do not have attendants on the premises during business hours.
(Code 1977, § 20-17)

Sec. 20-18. Same—Application.

Every person required to be licensed under this article shall make application to the bureau of licenses and inspections upon blanks to be furnished by such bureau for such license. Such application shall state the name and the business and residence address of the applicant, the location, by street and number, of the business to be carried on, and such other information as the director of the department of licenses and inspections may deem necessary for the enforcement of regulations in connection with the operation of such business.
(Code 1977, § 20-18)

Sec. 20-19. Same—Issuance without charge.

The license required by section 20-17 shall be issued without charge.
(Code 1977, § 20-19)

Sec. 20-20. Same—Display.

The license required by this article shall be prominently displayed on the licensed premises at all times.
(Code 1977, § 20-20)

Sec. 20-21. Same—Suspension or revocation.

The director of the department of licenses and inspections may, for cause, suspend or revoke any license issued under this article, after due notice to the licensee and a hearing before the director, if a hearing is requested by the licensee within forty-eight (48) hours after service of the notice. Such notice shall be in writing and signed by the director of the department of licenses and inspections and shall state the nature of the complaint and shall be served on the licensee personally or by leaving it at the residence address as given in the application for such license.
(Code 1977, § 20-22)

Sec. 20-22. Same—Expiration and renewal.

Each license issued under this article shall expire annually on June thirtieth and shall be renewed only upon application as provided in section 20-18.
(Code 1977, § 20-21)

Sec. 20-23. Safety regulations.

Businesses licensed under this article shall be subject to the following specific rules and regulations:

(1) *Compliance with building, electrical, etc., regulations.* All applicable provisions of the building, electrical, plumbing, heating and ventilating codes and fire department regulations must be complied with;

(2) *Unused electrical outlets.* All unused electrical outlets located in public areas must be disconnected or covered with plates;

(3) *Vent flues.* Vent flues for gas-fired equipment must conform to the standards established by the fire marshal;

(4) *Lighting.* The area used by the public must be adequately lighted during business hours;

(5) *Obstruction of view.* The area used by the public must not be obstructed to view from the outside;

(6) *Enclosure for water-heating system.* The water-heating system must be completely enclosed and locked to the general public;

(7) *Soft drink vending machines.* Soft drink vending machines shall be of the type which dispense the drink from the machine directly into paper containers;

(8) *Public telephones.* Public telephones shall be wall hung and may not be enclosed;

(9) *Coin-operated music and amusement machines.* Coin-operated music and amusement machines may not be located within the licensed premises;

(10) *Drier tops and backs.* Driers shall be installed so that their tops and backs are inaccessible to the general public;

(11) *Drier doors.* Drier doors shall be so equipped that they can be opened from the inside;

(12) *Drier capacity.* Driers shall not exceed fifty (50) pounds' capacity;

(13) *Drier shutoff device.* Driers shall be equipped with a device which will cause them to cease operating upon opening of their doors;

(14) *Washer backs to be inaccessible to public.* Washers shall be installed so that their backs are inaccessible to the general public;

(15) *Washer shutoff device or safety lock.* Washers shall be equipped with a device that causes them to cease operating upon the opening of their doors, or with safety locks on their doors so that they cannot be opened during the spin dry cycle of the washer;

(16) *Washer capacity; floor anchor.* Washers shall not exceed twenty-five (25) pounds' capacity. Washers having over twenty (20) pounds' capacity shall be anchored to the floor so as to prevent them from moving;

(17) *Separate extractor machines.* Separate extractor machines shall not exceed sixteen (16) pounds' capacity, shall be securely anchored to the floor and shall be equipped with safety locks so that their doors cannot be opened while the machine is in operation. Installation of separate extractor machines, whether an original installation or a replacement of an existing one, shall not be allowed;

(18) *Minors on premises.* Children under twelve (12) years of age shall not be permitted on the licensed premises unless accompanied by an adult, and a sign to that effect shall be displayed in a prominent place on the licensed premises.

(Code 1977, § 20-23)

Sec. 20-24. Rules and regulations authorized.

The director of the department of licenses and inspections may adopt such rules and regulations consistent with the provisions of this article as may be necessary to secure the intent and purposes of this article and a proper enforcement of its provisions. Copies of such rules and regulations shall be obtainable from the department of licenses and inspections upon request.

(Code 1977, § 20-24)

Secs. 20-25—20-40. Reserved.

ARTICLE III. SELF-SERVICE DRY CLEANING ESTABLISHMENTS

Sec. 20-41. License—Required.

It shall be unlawful for any person to engage in the business of self-service or coin-operated dry cleaning without having obtained an annual license to conduct such business issued by the bureau of licenses and inspections and approved by the director of the department of licenses and inspections.

(Code 1977, § 20-36)

Sec. 20-42. Same—Application.

Every person required to be licensed under this article shall make application to the bureau of licenses and inspections upon blanks to be furnished by such bureau for such license. Such ap-

plication shall state the name and the business and residence address of the applicant, the location by street and number of the business to be carried on, and such other information as the director of the department of licenses and inspections may deem necessary for the enforcement of regulations in connection with the operation of such business.
(Code 1977, § 20-37)

Sec. 20-43. Same—Fee.

Prior to the issuance of a license to establish, maintain and operate a self-service or coin-operated dry cleaning business, each applicant shall pay an annual fee in the sum of fifty dollars ($50.00).
(Code 1977, § 20-38; Ord. No. 67-93, 11-22-93)

Sec. 20-44. Same—Display.

The license required by this article shall be prominently displayed on the licensed premises at all times.
(Code 1977, § 20-39)

Sec. 20-45. Same—Suspension or revocation.

The director of the department of licenses and inspections may, for cause, suspend or revoke any license issued under this article, after due notice to the licensee and a hearing before the director, if a hearing is requested by the licensee within five (5) days after service of the notice. Such notice shall be in writing and signed by the director and shall state the nature of the complaint and shall be served on the licensee personally or by leaving it at the residence as given in the application for such license.
(Code 1977, § 20-41)

Sec. 20-46. Same—Expiration and renewal.

Each license issued under this article shall expire annually on June thirtieth and shall be renewed only upon application as provided in section 20-42.
(Code 1977, § 20-40)

Sec. 20-47. Safety regulations.

Businesses licensed under the provisions of this article shall be subject to the following specific rules and regulations:

(1) *Compliance with building, electrical, etc., regulations.* All applicable provisions of the building, electrical, plumbing, heating and ventilation codes and the rules and regulations of the state fire marshal concerning self-service or coin-operated dry cleaning, and fire department regulations must be complied with;

(2) *Unused electrical outlets.* All unused electrical outlets located in public areas must be disconnected or covered with plates;

(3) *Lighting.* The area used by the public must be adequately lighted electrically during business hours;

(4) *Obstruction of view.* The area used by the public must not be obstructed to view from the outside;

(5) *Soft drink vending machines.* Soft drink vending machines shall be of a type which dispenses the drink from the machine directly into paper containers;

(6) *Public telephones.* Public telephones shall be wall hung and may not be enclosed;

(7) *Coin-operated music and amusement machines.* Coin-operated music and amusement machines may not be located within the licensed premises;

(8) *Minors on premises.* Children under twelve (12) years of age shall not be permitted on the licensed premises unless accompanied by an adult, and a sign to that effect shall be displayed in a prominent place on the licensed premises;

(9) *Capacity of machines.* The size of individual dry cleaning machines as operated by a customer shall be limited to a maximum of twenty (20) pounds' capacity each;

(10) *Coin-operated equipment.* All equipment on the premises shall be of a self-service or coin-operated type;

(11) *Manual pressing and finishing equipment prohibited.* No manually operated equipment for pressing or finishing purposes shall be permitted on the premises of a self-service coin-operated dry cleaning establishment.

(Code 1977, § 20-42)

Sec. 20-48. Rules and regulations of director authorized.

The director of the department of licenses and inspections may adopt such rules and regulations consistent with the provisions of this article as may be necessary to secure the intent and purposes of this article and a proper enforcement of its provisions.

(Code 1977, § 20-43)

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Chapter 21

LICENSES AND PERMITS GENERALLY*

Article I. In General

Sec. 21-1. Issuance by bureau of licenses and inspections.
Sec. 21-2. Application forms.
Sec. 21-3. Application to be forwarded to approving officer.
Sec. 21-4. Investigation and action by approving officer.
Sec. 21-5. Issuance; form.
Sec. 21-6. Fees, proration.
Sec. 21-7. Transfer and assignment.
Sec. 21-8. Expiration date.
Sec. 21-9. Suspension and revocation.
Sec. 21-10. Records.
Sec. 21-11. Moratorium on the granting and issuance of pawnbroker licenses.
Sec. 21-12. Declaration.
Sec. 21-13. Definitions.
Sec. 21-14. Licensing requirements.
Sec. 21-15. Extended hours convenience store security.
Sec. 21-16. Creating or maintaining non-compliant extended hours convenience stores prohibited.
Sec. 21-17. Enforcement.
Sec. 21-18. Declaration.
Sec. 21-19. Definitions.
Sec. 21-20. Licensing requirements.
Sec. 21-21. Complaints and review of incidents by chief of police.
Sec. 21-22. Enforcement.
Sec. 21-23. Appeals.
Secs. 21-24—21-30. Reserved.

Article II. Pistol Permits

Division 1. Generally

Sec. 21-31. Definitions.

***Charter reference—**Department of licenses and inspections, Ch. X, § 6.

Cross references—Department of licenses and inspections, § 2-86; amusement license fees, § 5-2; coin-operated devices licenses, § 5-87 et seq.; license requirements for shooting galleries, § 5-116 et seq.; permit required for keeping of swine, § 6-6; permit required for animal hospitals, § 6-7; permits for festivals, § 7-31 et seq.; parade permits, § 7-76 et seq.; auctions and auctioneers, Ch. 8; license required for encroaching fire escapes, § 9-5; permit required to move building through streets, § 9-8; permit required for premises not connected with public water and sewer system, § 9-11; permit to demolish buildings and structures, § 9-12; building permit fees, § 9-15; demolition or building permit requirements for demolishing or converting residential units, § 9-74; close-out sales, Ch. 11; license required for places of assembly, § 13-94; permit required for use, storage, manufacture, sale or transportation of flammable liquids, § 13-113 et seq.; license requirements for fuel oil delivery vehicles, § 13-120; permits to sell and deliver oil burners, § 13-154 et seq.; permit required to install, use or maintain oil-burning equipment, § 13-178; permit required for explosives storage, etc., § 13-216; license required for food and food establishments, § 14-2 et seq.; license required to sell milk and cream, § 14-34 et seq.; licenses for garbage dumping grounds, § 15-19; license required for private collection of garbage, § 15-41 et seq.; fumigation, § 17-21 et seq.; license required for fumigators, § 17-23 et seq.; licensing regulations for massage parlors, § 17-41 et seq.; certificate of occupancy required for dwelling units, § 18-2; license required to operate roominghouses, § 18-162; license required for junk collectors and ragpickers, § 19-1; laundry license required, § 20-17; license required for self-service dry cleaning establishments, § 20-41 et seq.; license for use of unopened part of public way as parking area, § 22-88; registration required for open-air parking commercial parking lots, § 22-107; license required for peddlers and itinerant vendors, § 27-28; license required for street vendors, § 27-57; work permit for minors working as street vendors required, § 27-78; license authorized for newsstands, § 27-96 et seq.; registration of bicycles required, § 29-36; license required for rehabilitation homes, § 30-2; license required for curb and walk layers, § 31-56 et seq.; permit required for curb and walk laying, § 31-62; excavation license required, § 31-87; license required for vaults, § 31-92; permit required for flag displays, § 31-237; taxation and assessments generally, Ch. 32; taxicab driver's license, § 33-27 et seq.

Secs. 21-32—21-50. Reserved.

Division 2. Sale or Transfer of Pistols and Revolvers

Sec. 21-51. Permit—Required.
Sec. 21-52. Same—Application.
Sec. 21-53. Same—Issuance.
Sec. 21-54. Same—Expiration.
Sec. 21-55. Same—Fee.
Sec. 21-56. Same—Revocation.
Sec. 21-57. Same—Display at place of sale.
Sec. 21-58. Required records.
Sec. 21-59. Application to purchase.
Sec. 21-60. Report of sale or transfer.

Division 2A. Lost or Stolen Firearms

Sec. 21-61. Statement of intent.
Sec. 21-62. [Owner to report loss or theft of firearm.]
Sec. 21-63. [Failure to report loss or theft of firearm.]
Secs. 21-64—21-70. Reserved.

Division 3. Permit to Carry Pistol or Revolver

Sec. 21-71. Required.
Sec. 21-72. Application.
Sec. 21-73. Issuance, fee.
Sec. 21-74. Exceptions to division.
Secs. 21-75—21-100. Reserved.

ARTICLE I. IN GENERAL

Sec. 21-1. Issuance by bureau of licenses and inspections.

Every license and permit required under this Code or any ordinance or the general statutes to be issued under authority of the city or any department, office or agency thereof, shall be issued by the bureau of licenses and inspections.
(Code 1977, § 21-1)

Sec. 21-2. Application forms.

The application form for each license or permit under this Code shall contain such information as may be required by this Code or by ordinance or the general statutes, and such other information as may be deemed necessary by the director of the department of licenses and inspections and any officer whose approval of such license or permit is required. The bureau of licenses and inspections shall cause such forms to be prepared and made available for the use of any applicant.
(Code 1977, § 21-2)

Sec. 21-3. Application to be forwarded to approving officer.

When any person makes application for a license or permit, the bureau of licenses and inspections shall, where approval of such license or permit is required, forward the application form executed by the applicant to the officer whose approval of such license or permit is required, together with any information regarding such application which the director of the department of licenses and inspections may have received regarding such application.
(Code 1977, § 21-3)

Sec. 21-4. Investigation and action by approving officer.

Upon receipt of an executed application the approving officer, within a reasonable time, shall make such investigation as may be necessary to support his decision to approve or disapprove a license or permit. Upon the completion of such investigation the approving officer shall return such application to the bureau of licenses and inspections with his approval or disapproval endorsed thereon. The director of the department of licenses and inspections shall promptly notify the applicant of the action taken on his application.
(Code 1977, § 21-4)

Sec. 21-5. Issuance; form.

Upon the approval of an application, the bureau of licenses and inspections shall issue the license or permit applied for to the applicant. The form for each license or permit shall be as required by law or as may be determined by the director of the department of licenses and inspections and any approving officer. No license or permit shall be issued by the bureau of licenses and inspections without the approval required therefor endorsed thereon.
(Code 1977, § 21-5)

Sec. 21-6. Fees, proration.

No license or permit shall be issued by the bureau of licenses and inspections until the fee required therefor has been paid by the applicant. Except as otherwise provided in this Code or the ordinance or statute under which such license or permit is required, no fee for any license or permit shall be prorated.
(Code 1977, § 21-6)

Sec. 21-7. Transfer and assignment.

Except as otherwise provided in this Code or the ordinance or statute under which it is issued, no license or permit issued by the bureau of licenses and inspections shall be transferable or assignable. It shall be the duty of the holder of any license or permit to notify the bureau of licenses and inspections if he ceases to operate under the authority of the license or permit held by him before its expiration date, and if requested by the director of the department of licenses and inspections to do so, to surrender such license or permit to the bureau.
(Code 1977, § 21-7)

Sec. 21-8. Expiration date.

Except as otherwise provided in this Code, or the ordinance or statute under which a license or

permit is required, all licenses and permits shall expire on June thirtieth following their issuance.
(Code 1977, § 21-8)

Sec. 21-9. Suspension and revocation.

Any license or permit issued by the bureau of licenses and inspections shall be suspended or revoked promptly by such bureau upon notification to the director of the department of licenses and inspections by the officer who approved the issuance of such license or permit. Notice of such suspension or revocation shall be promptly communicated to the holder of the license or permit by the director by mailing the notice to the applicant at the address set out in the application for the license or permit. When the approving officer deems it necessary, the director of the department of licenses and inspections shall request the surrender of any license or permit so suspended or revoked.
(Code 1977, § 21-9)

Sec. 21-10. Records.

The bureau of licenses and inspections shall maintain such records of applications for licenses and permits, their issuance or denial, and any subsequent action thereon, as the director of the department of licenses and inspections may prescribe. All officers whose approval is required for the issuance of licenses and permits shall keep such records and preserve such documents in connection therewith as may be prescribed by this Code or the ordinances or statutes under which such licenses or permits are required, and shall keep such other records in regard to such licenses and permits as they may deem necessary.
(Code 1977, § 21-10)

Sec. 21-11. Moratorium on the granting and issuance of pawnbroker licenses.

A moratorium is declared with respect to the granting and issuance of pawnbroker licenses. For a period of two (2) years following the adoption of this section [December 11, 1995], no pawnbroker licenses may be granted or issued. This section shall not apply to existing pawnbrokers who apply for renewal of their license for their current business location.
(Ord. No. 27-95, 12-11-95)

Sec. 21-12. Declaration.

The city has experienced significant problems with extended hours convenience store security and illegal activity within and surrounding extended hours convenience stores in the city for several years including but not limited to problems with loitering, the illegal sale of narcotics, and other serious criminal activity.

This article is intended to aid in preventing crimes and nuisance, to protect employees of extended hours convenience stores and the consumer public at extended hours convenience stores between the hours of 11:30 p.m. and 5:00 a.m. and to establish security standards for these extended hours convenience stores that are uniform throughout the city.

The city now declares, in order to permit the development and implementation of reasonable controls that will effectively protect the public, extended hours convenience store operators and their patrons, that this article be enacted.
(Ord. No. 06-07, § 21-12, 5-29-07; Ord. No. 12-07, § 21-12, 7-9-07; Ord. No. 14-07, § 21-12, 9-24-07)

Sec. 21-13. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

Business premises means the main structure and the property belonging to or associated with the business premises.

Extended hours convenience store means any building, structure, or grounds primarily used for the retail sale of groceries, consumables, commodities or both groceries, consumables, commodities and gasoline open for business throughout the day, but particularly between the hours of 11:30

p.m. and 5:00 a.m., or any part thereof. The term extended hours convenience store does not include:

(1) A business that is solely or primarily a restaurant.

(2) A business that has at least ten thousand (10,000) square feet of retail floor space within the main structure.

Disorderly establishment means and includes any business and business premises where acts are performed or activities are conducted or condoned, whether inside or outside the business premises, which are contrary to the rules of good order and behavior, violative of the public peace, indecent, or which tend to corrupt the morals of the community and promote criminal activity.

Owner means the person, corporation, partnership, joint venture or other entity or group enterprise licensed to do business at an extended hours convenience store at a particular location or locations, in lawful possession of said location by virtue of a deed, license, lease, sublease or other contract or agreement.
(Ord. No. 06-07, § 21-13, 5-29-07; Ord. No. 12-07, § 21-13, 7-9-07; Ord. No. 14-07, § 21-13, 9-24-07)

Sec. 21-14. Licensing requirements.

(a) No extended hours convenience store shall be open between the hours of 11:30 p.m. and 5:00 a.m. or any portion of that time without first applying for and receiving a license in accordance with article I of this chapter.

(b) The fee for this license will be one hundred dollars ($100.00) per annum.
(Ord. No. 06-07, § 21-14, 5-29-07; Ord. No. 12-07, § 21-14, 7-9-07; Ord. No. 14-07, § 21-14, 9-24-07)

Sec. 21-15. Extended hours convenience store security.

(a) Every extended hours convenience store shall be equipped with the following security devices and standards:

(1) A fully operative security camera system in place with at least two (2) cameras that are capable of recording and retrieving an image to assist in offender identification and apprehension. At least one (1) camera shall be positioned to record the main entrance/exit area and another camera shall be positioned to record the parking lot area or other area assigned for customer parking.

(2) A drop safe or cash management device for restricted access to cash receipts.

(3) A lighted parking lot illuminated at an intensity of at least two (2) foot-candles per square foot at eighteen (18) inches above the surface, if applicable.

(4) A conspicuous notice at the entrance which states that the cash register contains fifty dollars ($50.00) or less.

(5) Window signage that allows a clear and unobstructed view from outside the building and in a normal line of sight of the cash register and sales transaction area.

(6) Height markers at the entrance of the extended hours convenience store which display height measures.

(7) A cash management policy to limit the cash on hand at all times.

(b) An extended hours convenience store shall not have window tinting that reduces exterior or interior view in the normal line of sight.

(c) Every extended hours convenience store shall be equipped with a silent alarm to a central station alarm monitoring company.
(Ord. No. 06-07, § 21-15, 5-29-07; Ord. No. 12-07, § 21-15, 7-9-07; Ord. No. 07-17, 3-13-17)

Sec. 21-16. Creating or maintaining non-compliant extended hours convenience stores prohibited.

(a) *Complaint of violation.* Any individual or any civic organization affected by the action or inaction of an extended hours convenience store subject to the provisions of this article may contact the Hartford Police Department to initiate a complaint.

(b) *Notice of violation; order to correct; time limit for compliance.* If the director of development services acting himself or by an appropriate inspector, has reason to believe, pursuant to an inspection of the premises, that an owner or agent of an extended hours convenience store has violated provisions of this article, the director or inspector shall serve a notice of violation and an order to correct such violation on the owner of record. If the owner's address is the same as the property where the violation has occurred, then a notice may be left at the time the violation is noted. The order shall require the owner to comply with the requirements of this article in the manner specified in the order within thirty (30) days of receipt of the notice.

(c) *Failure to correct deficiencies.* If an owner of property has been served with a notice of violation and order to correct deficiencies, and has failed to do so within thirty (30) days as determined upon subsequent inspection, the division of licenses and inspections shall cause the owner to be fined, by way of citation, one hundred dollars ($100.00) for each day that each non-compliant condition persists beyond thirty (30) days from the effective date of the order until the owner presents appropriate evidence that the cited non-compliant conditions have been corrected and the premises have been reinspected and approved.

(d) *[Failure to pay.]* Should an owner fail to pay, within thirty (30) days, a fine levied pursuant to this article, one (1) percent interest charges shall be applied to the outstanding balance. The interest shall accrue along with the fines and shall be compounded daily. In addition, the city may bring civil action against the debtor in a court of competent jurisdiction to recover such debt.

(e) *Appeal from citation.* Any owner may appeal a citation in accordance with section 1-5 of the Code.

(f) *[Public safety.]* In addition to the provisions for fines and other penalties herein provided, extended hours convenience stores are premises subject to public safety police details pursuant to section 29-17 of this Code.
(Ord. No. 06-07, § 21-16, 5-29-07; Ord. No. 12-07, § 21-16, 7-9-07)

Sec. 21-17. Enforcement.

(a) No owner of any extended hours convenience store shall operate his, her or its business between the hours of 11:30 p.m. and 5:00 a.m. or any portion thereof, without a license nor allow, create, or maintain an environment that attracts or encourages criminal activity.

(b) If an extended hours convenience store owner operates his, her or its business without a license between the hours of 11:30 p.m. and 5:00 a.m. or any portion thereof, the Hartford Police Department, the director of health and human services or the director of development services has the authority to close the business and issue citations for each violation of operating without a license.

(c) If serious criminal activity, as defined by the Hartford Police Department, including, but not limited to felonious conduct or narcotics or controlled drug offenses, as defined by Connecticut Law occurs, that extended hours convenience store shall implement one (1) of the following security measures:

(1) Provide at least two (2) employees on the premises at all times after 10:00 p.m. and before 5:00 a.m.; or

(2) Install for use by employees at all times after 10:00 p.m. and before 5:00 a.m. a secured safety enclosure of transparent polycarbonate or other appropriate material.

(d) *License suspension.* Upon the occurrence of any events involving serious criminal activity, or upon the recommendation of any of the agents or representatives of the city, the director of development services may reasonably conclude that the business constitutes a disorderly establishment, and the extended hours convenience store license may be suspended for up to thirty (30) days in accordance with section 14-6 of this Code. Such license may thereafter be suspended again or may be revoked if two (2) or more serious criminal activity events occur during a twelve-month period. The director of development services may also at his discretion revoke

the owner's extended hours convenience store license to operate if the taxes on the business premises are delinquent.

(e) *Appeal from suspension/revocation.* Any owner or person designated by the owner may appeal his, her or its suspension or revocation of

the license of an extended hours convenience store in accordance with the following procedure:

(1) Any person served with a notice of suspension or revocation shall be granted a hearing on the matter before the division of licenses and inspections upon petition. Such person shall file in the office of the division of licenses and inspections a written petition requesting such hearing and setting forth a brief statement of the grounds therefor, within three (3) business days after the date notice was served. Upon receipt of such petition, the division of licenses and inspections and/or its agents shall set a time and place for such hearing and shall give the petitioner written notice thereof. At such hearing, the petitioner shall be given the opportunity to be heard and to show why such notice should be modified or withdrawn.

(2) After such hearing, the division of licenses and inspections and/or its agents shall sustain, modify or withdraw the notice, depending upon the finding as to whether the provisions of this chapter and of rules and regulations adopted pursuant thereto have been complied with. The license which has been suspended by a notice shall be deemed to be automatically revoked if a petition for hearing is not filed with the division of licenses and inspections within three (3) days after such notice is served.

(Ord. No. 06-07, § 21-17, 5-29-07; Ord. No. 12-07, § 21-17, 7-9-07; Ord. No. 14-07, § 21-17, 9-24-07)

Sec. 21-18. Declaration.

The city has experienced significant problems with extended hours food service establishments and illegal activity within and surrounding extended hours food service establishments in the city for several years including but not limited to problems with loitering, violent crimes and other serious criminal activity.

This article is intended to aid in preventing crimes and nuisance, to protect employees of extended hours food service establishments and the consumer public at extended hours food service establishments between the hours of 1:30 a.m. and 5:00 a.m. and to establish safety and nuisance abatement standards for these extended hours food service establishments that are uniform throughout the city.

The city now declares, in order to permit the development and implementation of reasonable controls that will effectively protect the public, extended hours food service establishment operators and their patrons, that this article be enacted.

(Ord. No. 30-09, 8-10-09)

Sec. 21-19. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

Business premises means the main structure and the property belonging to or associated with the business premises.

Extended hours food service establishment means any business establishment where food or meals may be purchased between the hours of 1:30 a.m. and 5:00 a.m. The term extended hours food service establishment does not include extended hours convenience stores.

Disorderly establishment means and includes any business and business premises where acts are performed or activities are conducted or condoned, whether inside or outside the business premises, which are contrary to the rules of good order and behavior, violative of the public peace, indecent, or which tend to corrupt the morals of the community and promote criminal activity.

Owner means the person, corporation, partnership, joint venture or other entity or group enterprise licensed to do business at an extended hours food service establishment at a particular location or locations, in lawful possession of said location by virtue of a deed, license, lease, sublease or other contract or agreement.

(Ord. No. 30-09, 8-10-09)

Sec. 21-20. Licensing requirements.

(a) No extended hours food service establishment shall be open between the hours of 1:30 a.m. and 5:00 a.m. or any portion of that time without first applying for and receiving a license in accordance with section 21-1 of this chapter.

(b) The fee for this license will be ten dollars ($10.00) per annum.
(Ord. No. 30-09, 8-10-09)

Sec. 21-21. Complaints and review of incidents by chief of police.

(a) *Complaint of violation.* Any individual or any civic organization affected by the action or inaction of an extended hours food service establishment subject to the provisions of this article may contact the Hartford Police Department to initiate a complaint.

The chief of police shall review all incident reports for property locations to which public safety personnel reported or were summoned or for which a complaint was filed with the police department for any loud, disturbing, illegal or violent conduct at any extended hours food service establishment ("premises"). Such incident reports shall contain the name and address of the premises and the name of the permittee(s) or owner(s) in charge of the premises.

(b) *Public safety.* In addition to the provisions for fines and other penalties herein provided, extended hours food service establishment are premises subject to public safety police details pursuant to section 29-17 of this Code.
(Ord. No. 30-09, 8-10-09)

Sec. 21-22. Enforcement.

(a) No owner of any extended hours food service establishment shall operate his, her or its business between the hours of 1:30 a.m. and 5:00 a.m. or any portion thereof, without a license nor allow, create, or maintain an environment that attracts or encourages criminal activity.

(b) If an extended hours food service establishment owner operates his, her or its business without a license between the hours of 1:30 a.m. and 5:00 a.m. or any portion thereof, the Hartford Police Department, the director of health and human services or the director of development services has the authority to close the business and issue citations for each violation of operating without a license.

(c) If serious criminal activity, as defined by the Hartford Police Department, including, but not limited to felonious conduct or narcotics or controlled drug offenses, as defined by Connecticut Law occurs on the premises of an extended hours food service establishment, that extended hours food service establishment shall be notified by the Hartford Police Department that failure to abate serious criminal activity on the premises may lead to the suspension of the business' extended hours food service establishment license. The Hartford Police Department may also recommend that said business hire a police detail to improve safety on the premises. Any citation issued pursuant to the terms of this article may be appealed with section 1-5 of the Code.

(d) *License suspension.* Upon the occurrence of two (2) or more events involving serious criminal activity, or upon the recommendation of any of the agents or representatives of the city, the director of development services may reasonably conclude that the business constitutes a disorderly establishment, and the extended hours food service establishment license may be suspended for up to thirty (30) days. Such license may thereafter be suspended again or may be revoked if any serious criminal activity events occur during a twelve-month period. The director of development services may also at his discretion revoke the owner's extended hours food service establishment license to operate if the taxes on the business premises are delinquent.
(Ord. No. 30-09, 8-10-09)

Sec. 21-23. Appeals.

(a) *Appeal from suspension/revocation.* Any owner or person designated by the owner may appeal his, her or its suspension or revocation of the license of an extended hours food service establishment in accordance with the following procedure:

(1) Any person served with a notice of suspension or revocation shall be granted a

hearing on the matter before the division of licenses and inspections upon petition. Such person shall file in the office of the division of licenses and inspections a written petition requesting such hearing and setting forth a brief statement of the grounds therefor, within three (3) business days after the date notice was served. Upon receipt of such petition, the division of licenses and inspections and/or its agents shall set a time and place for such hearing and shall give the petitioner written notice thereof. At such hearing, the petitioner shall be given the opportunity to be heard and to show why such notice should be modified or withdrawn.

(2) After such hearing, the division of licenses and inspections and/or its agents shall sustain, modify or withdraw the notice, depending upon the finding as to whether the provisions of this chapter and of rules and regulations adopted pursuant thereto have been complied with. The license which has been suspended by a notice shall be deemed to be automatically revoked if a petition for hearing is not filed with the division of licenses and inspections within three (3) days after such notice is served.

(Ord. No. 30-09, 8-10-09)

Secs. 21-24—21-30. Reserved.

ARTICLE II. PISTOL PERMITS

DIVISION 1. GENERALLY

Sec. 21-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ammunition means any projectile or other device which will or is designed to or may readily be converted to be expelled from any pistol or revolver.

Antique pistol or revolver means any pistol or revolver which was manufactured in or before 1898 and any replica of such pistol or revolver provided such replica is not designed or redesigned for using rimfire or conventional centerfire fixed ammunition except rimfire or conventional centerfire fixed ammunition which is no longer manufactured in the United States and not readily available in the ordinary channel of commercial trade.

Chief of police means the chief of police of the city police department.

Permit includes the word "license."

Person means any individual, corporation, company, association, firm, partnership, society, joint stock company, or organization of any kind.

Pistol and *revolver* mean any firearm having a barrel less than twelve (12) inches in length.

Transfer includes to sell, assign, lease, loan, give away, or otherwise cause the lawful title or rightful possession of a firearm to vest in another.
(Code 1977, § 28-61)

Secs. 21-32—21-50. Reserved.

DIVISION 2. SALE OR TRANSFER OF PISTOLS AND REVOLVERS

Sec. 21-51. Permit—Required.

It shall be unlawful for any person to advertise, sell, deliver, or offer or expose for sale or delivery, or have in his possession with intent to sell or deliver, or loan, exchange, give away or otherwise transfer the lawful ownership or possession of any pistol or revolver at retail without having a permit therefor issued as provided in this division.
(Code 1977, § 28-66)

Sec. 21-52. Same—Application.

An application for a permit to sell or transfer pistols and revolvers shall be made in writing to the chief of police on such suitable forms provided or approved by him, setting forth the name and social security number of the applicant, the applicant's residence or registered address, and

the address where business is to be conducted. The applicant must be a bona fide resident of, or have a place of business in the city in order to be eligible for a permit. The application for a permit shall also state that the applicant (including in the case of a corporation, partnership, or association, any individual possessing, directly or indirectly, the power to direct or cause the direction of the management and policies of the corporation, partnership or association) is eighteen (18) years of age or older, that he is not under indictment for nor has been convicted in any court of a felony, is not a fugitive from justice, is not addicted to the use of narcotics, has not been a patient in a mental institution within the past five (5) years, and is not mentally retarded.
(Code 1977, § 28-67)

Sec. 21-53. Same—Issuance.

(a) The chief of police shall issue a permit to sell or transfer pistols and revolvers to applicants who have satisfactorily complied with the requirements of this division. It shall be the duty of the chief of police to refuse the permit to any applicant who fails, refuses or is unable to comply with all of the requirements specified in this division.

(b) The chief of police shall notify the applicant not later than eight (8) weeks after a sufficient application has been submitted that the request for a permit has been approved or denied.
(Code 1977, § 28-68)

Sec. 21-54. Same—Expiration.

A permit for the sale or transfer of pistols and revolvers shall expire five (5) years after the date it becomes effective; and renewal thereof shall expire five (5) years after the expiration date of the permit being renewed.
(Code 1977, § 28-69)

Sec. 21-55. Same—Fee.

The fee for each permit issued under the provisions of this division shall be fifteen dollars ($15.00).
(Code 1977, § 28-70)

Sec. 21-56. Same—Revocation.

The chief of police shall have the authority to revoke a permit issued under this division upon determining that the permit holder has violated any provision of this division or is no longer able to fully comply with all of the requirements specified in this division, and the money paid for such permit shall be forfeited to the city.
(Code 1977, § 28-71)

Sec. 21-57. Same—Display at place of sale.

No sale of any pistol or revolver shall be made except in the room, store or place described in the permit for the sale of pistols and revolvers, and such permit or a copy thereof certified by the authority issuing the same shall be exposed to view within the room, store or place where pistols or revolvers are sold or offered or exposed for sale.
(Code 1977, § 28-72)

Sec. 21-58. Required records.

(a) *Content of records.* Any seller of pistols and revolvers other than a manufacturer selling to a bona fide wholesaler or a retailer or a wholesaler selling to a bona fide retailer shall keep a record of all such pistols and revolvers sold, leased, loaned, given away or otherwise transferred. Such record shall contain the following information:

(1) The name, social security number, age, address, and permit number of the transferor;

(2) The name, social security number, age, address, and permit number of the transferee;

(3) The date of the sale;

(4) The name of the manufacturer, the caliber, make, model and serial number of the pistol or revolver.

(b) *Inspection.* Records of transfers shall be open for inspection by any duly authorized law enforcement official or by the chief of police or city clerk of the city at all reasonable times.

(c) *Evidence of identification of transferee.* The person to whom the pistol or revolver is to be delivered must provide evidence of his identification. Such evidence must include a picture iden-

tification, as well as information as to the bearer's age and address. The record of transfer shall be signed by the transferor and the transferee, each in the presence of the other.
(Code 1977, § 28-73)

Sec. 21-59. Application to purchase.

(a) *Required; delivery; waiting period.* No person shall transfer a pistol or revolver at retail or otherwise transfer except upon written application on a form prescribed and furnished by the commissioner of public safety in triplicate. A copy of the application is to be mailed by first class mail on the day of receipt to the chief of police and one (1) to the commissioner of public safety. No sale or delivery of any pistol or revolver shall be made until the expiration of two (2) weeks from the date of the mailing of such copies.

(b) *Exceptions.* The waiting period specified in subsection (a) of this section during which delivery may be made shall not apply to the holder of a valid state permit to carry pistols and revolvers, nor to any federal marshal, sheriff, parole officer or peace officer. The provisions of this section shall not apply to antique pistols or revolvers.

(c) *Prohibited acts.* No person shall sell at retail, deliver or otherwise transfer any pistol or revolver to any alien. No person shall make any false statement or give any false information connected with any purchase or other transfer of any pistol or revolver. No person shall sell or otherwise transfer any pistol or revolver to any other person under the age of eighteen (18) years of age.
(Code 1977, § 28-74)

Sec. 21-60. Report of sale or transfer.

Any transferor of pistols and revolvers shall, upon selling or otherwise transferring a pistol or revolver, make a report of the sale or gift, which report shall contain the date of sale or transfer, name, age, address, occupation, physical description of purchaser or donee, the purpose for which purchased, the kind, description, including serial number of the pistol or revolver, and the consideration paid therefor, the city and state permit number, if any, and/or the driver's license number, if any. Such report of sale shall be open for inspection by any duly authorized law enforcement official or by the chief of police or the city clerk at all reasonable times. In addition, the information contained in this section shall be provided by the seller to the chief of police no later than the last business day of each calendar month representing all sales, lease, loans, gifts, or other transfers of any pistol or revolver by the seller.
(Code 1977, § 28-75)

DIVISION 2A. LOST OR STOLEN FIREARMS

Sec. 21-61. Statement of intent.

The city's experience is that many firearms used in violent crimes are weapons which have been stolen. Existing state law provides for a statewide firearms tracking task force within the division of state police. Requiring owners of firearms to promptly report to the police the loss or theft of firearms will enable the Hartford Police Department to timely investigate and hopefully solve the incidents of initial theft and may well result in taking firearms off the street before they can be used to perpetrate a violent crime. In addition, this legislation provides the city with a vehicle to recover costs expended in connection with police services from owners who fail to report stolen firearms. The section is within the city's police powers authority and its power to protect the public interest.
(Ord. No. 04-07, 5-14-07)

Sec. 21-62. [Owner to report loss or theft of firearm.]

In the city, any person who is the lawful owner of a firearm and any permitted firearm's owner shall report the loss or theft thereof from premises in the city or from their person to the Hartford Police Department within seventy-two (72) hours of becoming aware of said theft or loss.
(Ord. No. 04-07, 5-14-07)

Sec. 21-63. [Failure to report loss or theft of firearm.]

In the event that a lost or stolen firearm is determined to have been used to aid or abet the commission of a felony in the city and it shall become known to the Hartford Police that the

owner of said firearm failed to report its loss or theft within seventy-two (72) hours of becoming aware of such loss or theft to the organized local police department in the municipality, or the Connecticut State Police, then the Corporation Counsel for the City of Hartford, on a showing of good cause, and consistent with state law, may sue the said owner to recover the costs to the city of police services and other expenses associated with the investigation and prosecution of said felony.
(Ord. No. 04-07, 5-14-07)

Secs. 21-64—21-70. Reserved.

DIVISION 3. PERMIT TO CARRY PISTOL OR REVOLVER

Sec. 21-71. Required.

It shall be unlawful for any person to have in his possession in the city any pistol or revolver, except when such person is within his dwelling house or place of business, unless a permit to carry a pistol or revolver has been issued in accordance with the provisions of this division.
(Code 1977, § 28-81)

Sec. 21-72. Application.

(a) *Documents required generally.* Every person applying for a permit to carry a pistol or revolver in the city shall provide the following documents to the Hartford police department, records division, between 8:00 a.m. and 6:00 p.m., Monday through Friday, or 8:00 a.m. to 12:00 noon on Saturday:

(1) A completed, notarized application form to be provided by the police department;

(2) Proof of citizenship in the form of a birth certificate or naturalization papers;

(3) Character references from three (3) persons who can testify to the applicant's character and reputation in the community. The three (3) persons cannot be relatives, city police officers, or civilian employees of the city police department. Character references must indicate how long the person has known the applicant, and an evaluation of the character, reputation and suitability of the applicant to carry a pistol or revolver. Character references shall be mailed to:

Hartford Police Department
50 Jennings Road
Hartford, CT 06120
c/o Pistol Permit Unit

(4) A certified check, cashier's check or money order in the amount of fourteen dollars ($14.00) made payable to the Federal Bureau of Investigation, for the cost of an investigation by that agency of the applicant's fingerprints.

(b) *Documents required for specific use.* If you are applying for a permit to carry a pistol or revolver for one (1) of the following reasons, the appropriate documents listed below must accompany the application:

(1) *Security guard:* A letter from the company, on company letterhead, stating the need for a permit.

(2) *Business use:* In the case of a business owner, a state sales tax certificate. In the case of an employee required to carry large sums of money, a notarized letter on the employer's letterhead indicating that fact.

(3) *Target practice:* A club membership card, or a notarized letter of permission to use a pistol range, or a minimum of four (4) receipts in the applicant's name for use of any range. NRA membership alone does not constitute membership in a club.

(c) *Fingerprinting.* The applicant must be fingerprinted at the police department evidentiary services division, between 10:00 a.m. and 2:00 p.m. on Tuesdays or Thursdays (except holidays).

(d) *Range safety and qualification test.* The applicant must contact the police department, records unit, permit section, six (6) weeks after being fingerprinted to make an appointment for a range safety and qualification test. Range tests are to be conducted on Wednesdays at 8:00 a.m., by appointment only. The applicant is to report on the day of his appointment to the records unit

with his pistol or revolver wrapped in paper and secured with string and shall bring ten (10) rounds of ammunition wrapped separately.
(Code 1977, § 28-82(a)—(d))

Sec. 21-73. Issuance, fee.

Upon satisfactorily completing all aspects of the application requirements for a permit to carry a pistol or revolver, the applicant will be scheduled to meet with the commander of the records unit of the police department. At that time, a fee of fifteen dollars ($15.00) in cash, check or money order made payable to the city shall be paid and a permit issued. If, at any point in the process an application is denied, the payment to the Federal Bureau of Investigation shall be nonrefundable, however, no other charges for processing the application shall be made.
(Code 1977, § 28-82(e))

Sec. 21-74. Exceptions to division.

The provisions of this division shall not apply to the carrying of any pistol or revolver by any sheriff, parole officer or peace officer of any other state while engaged in the pursuit of his official duties, or federal marshal or federal law enforcement agent, or to any member of the armed forces of the United States, or of this state, when on duty or going to or from duty, or to any member of any military organization when on parade or when going to or from any place of assembly, or to the transportation of pistols or revolvers as merchandise, or to any person carrying any pistol or revolver while contained in the package in which it was originally wrapped at the time of sale and while carrying the same from the place of sale to the purchaser's residence or place of business, or to any person removing his household goods or effects from one (1) place to another, or to any person while carrying any such pistol or revolver from his place of residence or business to a place or person where or by whom such pistol or revolver is to be repaired or while returning to his place or residence or business after the same has been repaired, or to any person carrying a pistol or revolver in or through the state for the purpose of taking part in competitions or attending any meeting or exhibition of an organized collectors' group if such person is a bona fide resident of the United States having a permit or license to carry a firearm issued by the authority of any other state or subdivision of the United States, or to any person carrying a pistol or revolver to and from a testing range at the request of the issuing authority, or to any person carrying an antique pistol or revolver.
(Code 1977, § 28-83)

Secs. 21-75—21-100. Reserved.

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Chapter 22

MOTOR VEHICLES AND TRAFFIC*

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*__Cross references—__Identification of city vehicles, § 2-8; vehicle insurance required, § 2-9; division of traffic engineering reassigned to public works department, § 2-95; parade regulations, § 7-61 et seq.; powers and duties of purchasing agent relating to insurance, § 10-10; maintenance of food vendor vehicles, § 14-7; standards for food vendor vehicles, § 14-8; use of noisy vehicles prohibited, § 23-2(4); mufflers required, § 23-2(6); public order; pedestrian and vehicle traffic, § 25-15; vehicles and traffic in parks, § 26-43; vehicles of peddlers and itinerant vendors to be marked, § 27-34; regulation of use of vehicles by peddlers and itinerant vendors, § 27-36.

__State law references—__Authority to regulate traffic generally, G.S. § 7-148(c)(7)(B)(i); authority to regulate speed of vehicles, G.S. § 7-148(c)(7)(B)(ii).

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ARTICLE I. IN GENERAL

Sec. 22-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized emergency vehicle means a fire department vehicle, a police vehicle or a public service company or municipal department ambulance or emergency vehicle designed or authorized for use as an authorized emergency vehicle by the state commissioner of motor vehicles.

Parking means the standing of a vehicle, whether occupied or not, upon a street otherwise then temporarily for the purpose of and while actually engaged in receiving or discharging passengers, loading or unloading merchandise, or in obedience to traffic regulations or signs or signals.

Parking meter means a mechanism having a visible time indicator, a coin-receiving and a coin-actuating mechanism, all enclosed and mounted on top of a post.

Parking meter zone means any restricted street upon which parking meters are installed and in operation.

Traffic means pedestrians, parades, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any street for purposes of travel.

Unlawful repairs means any repairing, overhauling, adjusting, assembling or disassembling of motor vehicles, other than city-owned motor vehicles, in any street, park or city-owned property, not under lease or rent, excepting minor emergency repairs, i.e. changing a flat tire, jump-start, etc.

Vehicle means every device in, upon or by which any person or property may be transported or drawn upon a street, except devices used exclusively upon stationary rails or tracks. The term "vehicle" shall also refer to carts and wagons used by itinerant vendors or peddlers for the sale of goods, wares and merchandise pursuant to section 27-27.

(Code 1977, § 32-1; Ord. No. 19-88, 2-22-88; Ord. No. 30-91, 6-10-91)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Definitions, G.S. § 14-1.

Sec. 22-2. Assistants to traffic engineer.

The traffic authority shall appoint such assistants to the traffic engineer as may be necessary to perform the work incident to the duties of the traffic authority.

(Code 1977, § 32-2)

Charter reference—City managers as city traffic authority, Ch. V, § 7.

Sec. 22-3. Erection of traffic signs and signals.

The director of public works shall make, erect and maintain at such places in the city and in such manner as the traffic authority may designate, signs for the direction and regulation of traffic upon the streets. The chief of police shall be responsible for the erection and maintenance of all traffic-control signal lights authorized by the traffic authority.

(Code 1977, § 32-3)

Sec. 22-4. Obedience to regulations, directions; requirements for regulations.

(a) It shall be unlawful for any person to fail to comply with any order, rule or regulation made by the traffic authority, or for any person to fail to comply with any direction by voice, hand or sign, of any member of the police department in connection therewith, or for any person to fail to comply with any traffic sign or signal unless otherwise directed by a member of the police department.

(b) All orders, rules and regulations made by the traffic authority shall be in writing. Copies of all such orders, rules and regulations shall be placed and maintained on file with the city manager, the traffic engineer, the city clerk, the chief of police and the corporation counsel.

(Code 1977, § 32-4)

Sec. 22-5. Stealing rides and riding on rear of vehicles.

No one shall steal a ride upon any vehicle and no one shall ride upon the rear of any vehicle without the consent of the person in charge thereof.
(Code 1977, § 32-5)

Secs. 22-6—22-20. Reserved.

ARTICLE II. PARKING, STOPPING AND STANDING*

DIVISION 1. GENERALLY

Sec. 22-21. Reserved.

Editor's note—Ord. No. 56-98, adopted Oct. 26, 1998, repealed the former § 22-21 which pertained to the city manager designated parking division, and derived from Code 1977, § 32-17.

Sec. 22-22. Presumption of violation from ownership of vehicle.

In any prosecution or proceeding for unlawful parking, the registered owner of the vehicle so parked shall be presumed to be the operator thereof and prima facie guilty of having parked unlawfully.
(Code 1977, § 32-18)

Sec. 22-23. Impeding of traffic.

No person shall stop, stand or park a vehicle in such a manner as will impede the free flow of traffic. Double parking, parking at the curb improperly, parking in no-parking zones, parking in restricted areas at a time when parking is prohibited, or any parking impairing the free flow of traffic shall be interpreted as impeding traffic.
(Code 1977, § 32-19)

*__Cross references—__Obstructing fire hydrants generally, § 13-4; off-street parking and off-street loading provisions under zoning regulations, § 35-941 et seq.

__State law reference—__Parking authorities and divisions, G.S. § 7-202 et seq.

Sec. 22-24. Parking on city-owned property; parking on certain public rights-of-way.

(a) No person shall park any vehicle on city-owned property upon which parking is restricted and upon which signs indicating such restrictions are erected.

(b) No person shall park any vehicle on a sidewalk or on any property between the street line and the traveled portion of any street.
(Code 1977, § 32-20; Ord. No. 33-84, 10-9-84)

Sec. 22-25. Citation to be attached to violating vehicles; penalty.

(a) Whenever any vehicle is found parked in violation of any of the provisions of this article or any ordinance or rule or regulation of the traffic or parking authority which relates to parking, a police officer, parking controller or parking enforcement officer shall attach to such vehicle a citation with an accompanying fine to the owner or operator thereof stating that such vehicle has been parked unlawfully.

(b) The citation shall state which provision of the city ordinances or rule and regulation of the traffic or parking authority has been violated and shall moreover, contain the following declaration:

"WARNING"

"The accumulation of three (3) or more unsatisfied municipal vehicle parking citations upon any vehicle registrant may result in the impoundment or immobilization of said vehicle."

A copy of any such citation shall be transmitted and delivered to the parking authority. Failure of any copy to be so transmitted and delivered shall not relieve the owner or operator from any liability for the payment of any fines or penalties, except that no penalties shall be imposed until after a citation hearing has been scheduled and the owner or operator fails to appear at the same. Upon such failure, imposition of such penalties may be implemented on a retroactive basis.

(c) Each owner or operator may, within seventy-two (72) hours or three (3) business days of the time when such citation is attached to such vehicle, pay in person in the form of cash, money order or check to the parking authority, in full satisfaction for such violation; provided, if the citations are for over the posted limit or over the limit at a meter, such owner or operator shall receive a five dollar ($5.00) reduction in the amount of the stated fines for each such citation. Each such owner or operator may, within fourteen (14) days of the time when such notice is attached to such vehicle, pay in person or remit by mail in the form of cash, money order or check to the parking authority, as a fine for and in full satisfaction of such violation, the sum of twenty-five dollars ($25.00), thirty dollars ($30.00), forty-five dollars ($45.00), seventy-five dollars ($75.00), ninety-nine dollars ($99.00), one hundred dollars ($100.00), or one hundred twenty-five dollars ($125.00), as the case may be, in accordance with section 22-26. The failure of the owner or operator to make payment to the parking authority within the fourteen (14) days of the time such citation is attached to such vehicle shall cause the parking authority to schedule a citation hearing for the hearing date generated on the citation and mail a letter setting forth a date such owner or operator shall appear at a citation hearing. The failure of such owner or operator to appear at such citation hearing or to make such payment within twenty-six (26) days of the time such notice is so attached shall render the owner or operator liable to an initial penalty as provided in section 22-26. The failure of such owner or operator to make such payment within thirty-one (31) days of the time such notice is so attached shall render the owner or operator liable to an additional penalty as provided in section 22-26.

(d) If an owner or operator wishes to contest a violation, no reduction in the amount of the fine, as set forth in subsection (c), will apply. The owner or operator may contest the violation by appearing at the citation hearing. Such appearance shall suspend the accumulation of additional penalties and leave the amount of the fine as it was as of the date of the hearing until such time as a final determination is made.

(e) Nothing contained in this section shall be construed as a limitation on the power of the superior court to impose a fine as provided in section 1-5.

(f) For purposes of this section, the term *"business days"* shall mean those days on which the city hall offices of the City of Hartford, Connecticut are open for business, and the term *"days"* shall mean calendar days.
(Code 1977, § 32-21; Ord. No. 16-80, 8-12-80; Ord. No. 6-82, 2-22-82; Ord. No. 63-88, § 1, 10-11-88; Ord. No. 25-92, 6-8-92; Ord. No. 22-09, 5-26-09; Ord. No. 12-17, 3-27-17; Ord. No. 10-19, 6-24-19)

Sec. 22-26. Fines and penalties for unlawful parking.

(a) Definitions: For purposes of this section, and unless otherwise specified, the definition of terms contained in title 14, chapter 246, section 14-1 and 14-260n of the Connecticut General Statutes shall govern this section. For purposes of this section the words "park" and "parked" shall mean to leave a vehicle stationary.

(b) The fine shall be twenty-five dollars ($25.00), with an initial penalty of thirty-eight dollars ($38.00) and an additional penalty of thirty-eight dollars ($38.00), for any vehicle to be and/or remain parked:

(1) During a state of emergency following public notice of the declaration of such emergency, on private property without the permission of the owner, for a period of time and in such a condition as to constitute a nuisance, or otherwise in violation of state or local parking order, regulations or restrictions;

(2) For a period exceeding a posted duration or restriction or otherwise allowable by law;

(3) For a period exceeding the authorized time duration purchased at any parking meter;

(4) In violation of the posted parking regulation;

(5) Over the legal limit at any parking meter by making additional payment to extend the authorized parking time where restricted according to the posted parking regulation; or

(6) In any space or area that is demarcated as a downtown parking meter zone, and to not utilize the appropriate parking meter zone designation to park.

(c) The fine shall be thirty dollars ($30.00) and the vehicle subject to removal at the owner's expense, with an initial penalty of forty-three dollars ($43.00) and an additional penalty of forty-three dollars ($43.00), for parking:

(1) A distance greater than twelve (12) inches from a curb, measured from the vehicle's passenger side wheels; or

(2) Within twenty-five (25) feet of an intersection or a marked crosswalk thereat, or within twenty-five (25) feet of a stop sign erected by the traffic authority.

(d) The fine shall be forty-five dollars ($45.00) and the vehicle subject to removal at the owner's expense, with an initial penalty of thirty-eight dollars ($38.00) and an additional penalty of forty-two dollars ($42.00), for parking:

(1) On the wrong side of a street or facing opposite traffic;

(2) In a no-parking area, tow zone or the odd/even side of a street according to the posted days;

(3) In a marked bus stop;

(4) In a no standing area;

(5) In a loading zone;

(6) Within five (5) feet of or obstructing a driveway or curb cut;

(7) In a vending space;

(8) By a vendor in an unauthorized vending space;

(9) By trespassing on private property;

(10) While unlawfully repairing a motor vehicle within any city street or on public property; or

(11) So as to block a park entrance;

(12) Non-payment of the meter parking;

(13) Parked over the line (marked boundary) of a parking space; or

(14) On the grass within a City-owned park, open space, or green space, unless authorized in writing consistent with section 22-31(a) of this article.

(e) The fine shall be seventy-five dollars ($75.00) and subject to removal at owner's expenses, with an initial penalty of twenty-three dollars ($23.00) and an additional penalty of twenty-seven dollars ($27.00), for parking:

(1) Within ten (10) feet of a hydrant;

(2) In violation of fire and park rules and regulations;

(3) On or obstructing a sidewalk;

(4) On or obstructing a crosswalk;

(5) So as to double park;

(6) Within or obstructing an intersection;

(7) So as to impede or obstruct pedestrian or vehicular traffic;

(8) On any property between the street line and traveled portion of any street.

(f) The fine shall be one hundred dollars ($100.00) and the vehicle subject to removal at owner's expense, with an initial penalty of thirteen dollars ($13.00) and an additional penalty of thirteen dollars ($13.00), for parking:

(1) In any area that is demarcated or otherwise designated a temporary no-parking area to allow the removal of snow or ice; or

(2) In violation of the zoning regulations of the planning and zoning commission; or

(3) Recreational vehicles, as defined in G.S. § 14-1, between the hours of 11:00 p.m. and 6:00 a.m.

(g) The fine shall be one hundred twenty-five dollars ($125.00) and the vehicle subject to removal at the owner's expense, with an initial penalty of thirteen dollars ($13.00) and an additional penalty

of thirteen dollars ($13.00), for parking by an unauthorized person in a parking space designated for the handicapped and so marked.

(h) There shall be a fine for the parking of any tractor, tractor-trailer, trailer, tractor-trailer unit, semi-trailer, commercial vehicle combination or box truck on any city street(s) or arterial highway, per the provisions below:

(1) For the purposes of this section, the terms tractor, tractor-trailer, semi-trailer, commercial vehicle combination and truck are as defined in G.S. § 14-260n:

Commercial vehicle combination means a combination of vehicles consisting of a truck tractor and two (2) trailers, with the length of each trailer being not more than twenty-eight (28) feet, exclusive of safety and energy conservation devices, such as rear view mirrors, turn signal lamps, marker lamps, steps and handholds for entry and egress, flexible fender extensions, mud flaps and splash and spray suppressant devices, load-induced tire bulge, refrigeration units, air compressors or air shields and other devices, which the secretary of the federal Department of Transportation may interpret as necessary for the safe and efficient operation of such vehicles, provided no such device has by its design or use the capability to carry cargo.

Semitrailer means any vehicle of the trailer type so designed and used in conjunction with a motor vehicle that some part of its own weight and load rests upon or is carried by another vehicle.

Tractor or *truck tractor* means a motor vehicle that is a non-cargo-carrying power unit used for drawing a trailer or two (2) trailers for commercial purposes, except that a truck tractor and semitrailer engaged in the transportation of automobiles may transport motor vehicles on part of the power unit.

Tractor-trailer unit means a combination of a tractor and trailer or a combination of a tractor and a semitrailer.

Trailer means any rubber-tired vehicle without motive power drawn or propelled by a motor vehicle, including, but not limited to, a semitrailer.

Truck means a motor vehicle designed, used or maintained primarily for the transportation of property.

(2) For the purposes of this section, the term box truck shall mean a truck with a cuboid-shaped cargo storage area connected to the cabin by a single chassis or frame.

(3) The fine shall be two hundred fifty dollars ($250.00) per violation and the vehicle subject to removal at owner's expense, with a separate violation incurred for every additional three (3) hours of noncompliance, for parking any vehicle defined in section 22-26 (h)(1) or (2) on city streets, except for the purpose of active delivery, unloading, or service.

This section shall take effect May 12, 2025.
(Code 1977, § 32-22; Ord. No. 17-80, 8-12-80; Ord. No. 19-81, 7-15-81; Ord. No. 29-81, 12-14-81; Ord. No. 34-84, 10-9-84; Ord. No. 16-86, 6-9-86; Ord. No. 64-88, 10-11-88; Ord. No. 31-91, 6-10-91; Ord. No. 24-92, 5-12-92; Ord. No. 16-01, 11-26-01; Ord. No. 22-09, 5-26-09; Ord. No. 07-13, 8-12-13; Ord. No. 06-16, 6-27-16; Ord. No. 10-19, 6-24-19; Ord. No. 003-20, 6-22-20; Ord. of 3-27-23; Ord. of 5-12-25(1))

Editor's note—Ord. No. 22-09, adopted May 26, 2009 amended § 22-26 as herein set out. Former § 22-26 pertained to penalties for unlawful parking. See the Code Comparative Table for complete derivation.

Sec. 22-27. Handicapped parking spaces.

(a) *Application.* This section shall apply to all new and existing nonresidential sites, including but not limited to garages, shopping centers, office buildings, commercial buildings, mercantile buildings, warehouses, storage buildings, manufacturing buildings, convalescent homes, schools and public buildings. In addition, the traffic authority may designate handicapped parking spaces on town roads which shall be of such size and location as he may specify.

(b) *Prohibition; display of designation on vehicle.* After establishment of specially marked parking spaces for handicapped persons, no person shall park a motor vehicle in such space unless a handicapped person is either a passenger or occupant of the vehicle and the vehicle contains a designation issued by the commissioner of motor vehicles pursuant to the general statutes, which designation shall be visible as per the general statutes, or a handicapped designation issued by other governmental authority.

(c) *Number of spaces.* The number of spaces to be provided shall be in accordance with the following table:

Total parking on site	*Required number of reserved accessible parking spaces*
Up to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
101 to 150	5
151 to 200	6
201 to 300	7
301 to 400	8
401 to 500	9
501 to 1000	2% of total
Over 1000	20 plus 1 for each 100 over 1000

All such spaces shall be designated as reserved for the exclusive use of persons who have mobility impairments and shall be as close as possible to elevators, ramps, walkways and entrances, and so located that the handicapped person is not compelled to wheel or walk behind parked vehicles to reach entrances, ramps, walkways and elevators.

(d) *Location.* The exact location of the parking spaces shall be designated by the traffic authority.

(e) *Design of spaces; signs; installation by town upon failure of owner to install.* Each such space designated for persons who have mobility impairments shall be not less than fifteen (15) feet in width, including three (3) feet of crosshatch. Each space shall be designated by above-grade signs with white lettering against a blue background and shall bear the words "Handicapped Parking—State Permit Required" and "Violators Will Be Fined." Such signs shall also bear the international symbol of access. Such signs shall be purchased or created, installed and maintained by and at the expense of the owner, operator, lessee or tenant of the site. If the signs and markings called for by this subsection are not installed within thirty (30) days after written request by the town traffic authority, the town may proceed to install the same and impose the costs thereof against the owner of the site.

(f) *Parking garage; height of entrance and exit.* All parking garages constructed on or after adoption of this subsection shall have a vertical clearance of nine (9) feet six (6) inches at its entrance and exit as well as along the route to and from at least two (2) handicapped accessible parking spaces which also shall have a vertical clearance of nine (9) feet six (6) inches. These spaces shall be clearly reserved for drivers of high-topped vans with a permit or license plate with access symbol.

(Code 1977, § 32-23; Ord. No. 20-81, 7-15-81; Ord. No. 7-88, 2-8-88; Ord. No. 8-88, 2-8-88; Ord. No. 9-88, 2-8-88)

Cross references—Commission on human relations, § 2-156 et seq.; commission on disability issues, § 2-276 et seq.; affirmative action plan, § 2-626 et seq.

Sec. 22-28. Fire lanes established; penalties.

(a) When it is determined by the fire chief that fire lanes are necessary to ensure access to a building by emergency personnel and vehicles, he shall establish the length, width and location of such fire lanes necessary to facilitate access and emergency operations for that building.

(b) Once such fire lanes have been established, they shall be clearly marked and signed by the owner of the building, in a manner approved by the fire chief.

(c) The violation of any provision of this section where no specific penalty is otherwise provided for therein shall be punishable by a fine of ninety-nine dollars ($99.00).

(d) Any person issued a citation for violating the provisions of subsection (b) of this section may, within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.

(e) Any person found parking in or obstructing such fire lanes shall be subject to the fine imposed by section 22-26.
(Ord. No. 26-90, 6-11-90)

Sec. 22-29. Hearing procedure for parking violations.

(a) *Appointment of parking violations hearing officers.* There shall be a hearing procedure for parking violations established in accordance with section 7-152b of the general statutes. The mayor shall appoint up to five (5) persons to act as parking violations hearing officers to conduct hearings authorized by this section, except that no police officer, Hartford Parking Authority employee or representative, member of the corporation counsel's office, the police department or employees or other persons who issue citations shall be authorized to conduct hearings.

(b) *Notice of violation, fines, rights.* At any time within two (2) years from the expiration of the final period for the uncontested payment of fines and penalties, adopted pursuant to section 7-148 or sections 14-305 to 14-308, inclusive, a hearing administrator shall provide notice to the motor vehicle operator, if known, or the registered owner of the motor vehicle by first class mail at his address according to the registration records of the department of motor vehicles of the alleged violation. Such notice shall inform the operator or owner: (1) of the allegations against him and the amount of the fines, penalties, costs or fees due; (2) that he may contest his liability before a hearing officer by delivering in person or by mail written notice to the hearing administrator within ten (10) days of the date thereof of his request for a hearing to protest the violation; (3) of a date assigned by the office of parking management when he may contest the allegation should he choose to appeal (4) that if he does not demand such a hearing, an assessment and judgment shall enter against him; and (5) that such judgment may issue without further notice. Whenever a violation of such an ordinance occurs, proof of the registration number of the motor vehicle involved shall be prima facie evidence in all proceedings provided for in this section that the owner of such vehicle was the operator thereof; provided, the liability of a lessee under section 14-107 shall apply.

(c) *Admission of liability.* If the person who is sent notice pursuant to subsection (b) wishes to admit liability for any alleged violation, he may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to online, by telephone, by mail via good check or money order, U.S. funds only, or in person to the office of parking management. Such payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment. Any person who does not deliver or mail written demand for a hearing within ten (10) days of the date of the first notice provided for in subsection (b) shall be deemed to have admitted liability. The hearing officer shall thereupon enter and assess the fines, penalties, costs or fees provided for by the applicable ordinances and shall follow the procedures set forth in this section.

(d) *Conduct of hearing.* Any person who requests a hearing shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than fifteen (15) days nor more than thirty (30) days from the date of the mailing of notice, provided the hearing administrator shall grant upon good cause shown any reasonable request by any interested party for postponement or continuance. The city shall retain the original violation or one scanned copy of the original violation. The city will maintain all correspondence of all individuals requesting a hearing. The record for each hearing will be filed according to the ticket number and retained either in paper or electronic form. Each file shall be deemed to be a business record within the scope of section 52-180 and be evidence of the facts contained therein. The presence of a policeman or an issuing officer shall be required at the hearing if such person so requests. A person wishing to contest his liability shall appear at the hearing and may present evidence

in his behalf. If such person fails to appear, the hearing officer may enter an assessment by default against him upon a finding of proper notice and liability under the applicable statutes or ordinances. In all other cases, the hearing officer shall conduct the hearing in the order and form and with such methods of proof as he deems fair and appropriate. Evidence may be considered but will not be retained by the hearing officer following the hearing as part of the final record. All testimony shall be given under oath or affirmation. The hearing officer shall mail the decision on the same day of the hearing. If he determines that the person is not liable, he shall dismiss the matter and enter his determination in writing accordingly. If he determines that the person is liable for the violations, he shall forthwith enter and assess the fines, penalties, costs or fees against such person as provided by the applicable ordinance. A fifteen dollar ($15.00) hearing fee will be assessed for each hearing where a person is defaulted or found liable of the parking violation(s).

(e) *Notice of assessment.* The hearing officer shall send by U.S. mail a notice of the assessment to the person found liable. Said notice of assessment may contain an offer for a weekly and/or monthly payment plan of the total assessment until paid in full. Not less than thirty (30) days nor more than twelve (12) months after such mailing and where there is no payment plan, a certified copy of the notice of assessment may be filed by corporation counsel or its designee with the Clerk of the Superior Court for the Judicial District of Hartford together with an entry fee of eight dollars ($8.00). The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment. Where there is to be a payment plan, the person will have only thirty (30) days to respond with a completed weekly and/or monthly payment plan that shall be reviewed, negotiated and approved by the corporation counsel or any of its designees in a timely manner. Once a payment plan is in place, timely payments must be made in accordance with the plan. Nonpayment or late payments under the plan entitles City of Hartford or its designees the authority to issue a default notice and Notice of Assessment by sending by U.S. mail such notice to the person. A certified copy of the notice of assessment may be filed by the City of Hartford or its designee with the Clerk of the Superior Court for the Judicial District of Hartford together with an entry fee of eight dollars ($8.00). Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment.

Upon receipt of the record of assessment, the Clerk of the Superior Court shall enter judgment, in the amount of such record of assessment and court costs of eight dollars ($8.00), against such person in favor of the city. Notwithstanding any other provision of the general statutes, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment and levy of execution on such judgment may issue without further notice to such person.

(f) *Appeal.* A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty (30) days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to section 52-259, in the Superior Court for the Judicial District of Hartford, which shall entitle such person to a hearing in accordance with the rules of the judges of the superior court.
(Ord. No. 21-91, 5-13-91; Ord. No. 09-07, 6-11-07)

Sec. 22-30. Reserved.

Editor's note—Ord. No. 53-11, adopted Dec. 12, 2011, deleted §§ 22-30—22-37, pertaining to valet parking. See §§ 10-26—10-34 for similar provisions. Former §§ 22-30—22-37 derived from Ord. No. 04-08 adopted Jan. 28, 2008.

Sec. 22-31. Parking in city-owned parks, open spaces, and green spaces.

(a) No person shall park any vehicle upon the grass within a city-owned park, open space, or green space, unless expressly authorized, in writing, by the Director of Development Services

(or his or her designee), the Director of Public Works (or his or her designee), or the Mayor (or his or her designee).

(b) No person shall park any vehicle within a city-owned park, open space, or green space in violation of:

i. Any applicable parking regulations and/or ordinances;

ii. Any posted parking signage; and/or

iii. Any other posted signage.

(c) Parking a vehicle within a city-owned park, open space, or green space is only permitted in designated parking spaces and/or parking lots, and in compliance with all parking regulations, posted parking signage, and all other posted signage.

(d) Without waiving the city's complete and total control and authority over the regulation of public parking within the city, the enforcement of parking regulations and/or ordinances within city-owned parks, open spaces, and/or green spaces may be guided by the advice of parks organizations, foundations, and conservancies.

This section shall take effect upon adoption. (Ord. of 5-12-25(2))

Secs. 22-32—22-37. Reserved.

Editor's note—See editor's note for § 22-30.

Secs. 22-38—22-40. Reserved.

DIVISION 2. IMPOUNDING OF VEHICLES

Sec. 22-41. Establishment of vehicle pounds.

The chief of police shall create vehicle pounds to which automobiles and other vehicles may be removed by a police officer, or under the direction of a police officer, as provided in section 22-42. Such pounds shall be such storage garages, or such other appropriate places as may be designated by the chief of police. Before any such garage or place shall be designated as a vehicle pound, the operator thereof shall furnish to the chief of police satisfactory evidence of insurance coverage to make the city whole for any claims for damages paid by the city arising from the towing or storage of any impounded vehicle. (Code 1977, § 32-28)

Sec. 22-42. Impounding and immobilization authorized.

(a) Whenever any vehicle is found parked in violation of any municipal traffic ordinance, rule or regulation, it may be removed and conveyed by or under the direction of a member of the police department by means of towing or otherwise to a vehicle pound.

(b) Whenever any vehicle is found parked upon the streets and public grounds of the city and where there are two (2) or more municipal parking citations issued after September 30, 2012 for the violation of any municipal traffic ordinance, rule or regulation against the vehicle's registered owner, which are delinquent, unpaid, otherwise unsettled and uncontested, upon the issuance of a third citation a member of the police department may place or direct a person or persons so authorized by the chief of police to place an immobilization device upon such vehicle or, in the alternative, the member of the police department may remove and convey such vehicle by means of towing or otherwise, to a vehicle pound or he may order such person so authorized by the chief of police to remove and convey such vehicle by means of towing, or otherwise, to a vehicle pound.

(c) The fee for placing and removing an immobilization device shall be forty-five dollars ($45.00). The fee shall be applied to all immobilized vehicles regardless if the vehicle is subsequently towed prior to payment of unsettled fines.

(d) Once an immobilization device has been placed upon an unlawfully parked vehicle pursuant to subsection (b) then such device may not be removed or otherwise tampered with by anyone who has not been authorized to do so by the chief of police. The penalty for unlawfully removing or otherwise tampering with such device shall be one hundred dollars ($100.00).

(e) The owner of any vehicle impounded or immobilized under this section shall have the right to contest such impoundment or immobilization by application, on a form prescribed by the traffic authority.
(Code 1977, § 32-29; Ord. No. 6-82, 2-22-82; Ord. No. 31-84, 9-10-84; Ord. No. 10-16, 9-12-16)

Sec. 22-43. Notice to owner of vehicle.

The owner of any vehicle impounded or otherwise rendered immobile by application of a mechanical device shall be duly informed as to which provisions of this article, the city ordinances and rules and regulations of the traffic authority have necessitated the impoundment or the immobilization of the vehicle.
(Code 1977, § 32-30; Ord. No. 6-82, 2-22-82)

Sec. 22-44. Release of impounded or immobilized vehicle.

(a) Before the owner or person in charge of any impounded vehicle shall be permitted to remove the vehicle from a vehicle pound, he shall furnish to the operator of such pound, or such other person as the chief of police shall designate, evidence of his identity and ownership, shall sign a receipt for such vehicle, and shall pay the cost of impoundment and administration, not to exceed the fee determined by the city manager, plus the cost of storage not to exceed a fee determined by the city manager, for each day or portion of a day that such vehicle is stored in the vehicle pound in excess of the first twenty-four (24) hours. Such fees are to be subject to the approval of the council. These fees may be altered by the city manager subject to the approval of the council. The operator of such pound shall refuse the release of any impounded vehicle lawfully seized that the chief of police has authorized to hold as evidence in a criminal investigation or proceeding. Such operator shall obtain written permission from the chief of police on any form or document prescribed by the chief of police prior to the release of such impounded vehicle.

(b) The chief of police shall not authorize or direct the release of any vehicle placed within a vehicle pound pursuant to subsection 22-42(b), until such time as the owner or person in charge of such vehicle shall have:

(1) Supplied the chief of police with evidence of his identity and ownership;

(2) Satisfied all outstanding municipal parking citations against the subject vehicle to the satisfaction of the chief of police;

(3) Paid the cost of removal, impoundment, and administration; and

(4) Signed a receipt for such vehicle.

(c) All fees contemplated under subsection (b) shall be set by the city manager and shall thereafter be subject to the approval of the council.

(d) Where the owner or person in charge of the impounded or immobilized vehicle complies with any of the provisions of subsection (b) under protest then the chief of police shall take note of such protest and enter it upon the receipt required by subsection (b) prior to the time the owner or person in charge of the vehicle issues such receipt.

(e) The chief of police shall not authorize or direct the removal of an immobilization device from any vehicle until such time as the owner or person in charge of the vehicle shall have:

(1) Supplied the chief of police with evidence of his identity and ownership;

(2) Satisfied all outstanding municipal parking citations against the subject vehicle to the satisfaction of the chief of police;

(3) Paid the cost of immobilization and administration; and

(4) Signed a receipt for such vehicle.

(f) All fees contemplated under subsection (e) shall be set by the city manager and shall thereafter be subject to the approval of the council.

(g) Where the owner or person in charge of the impounded or immobilized vehicle complies with any of the provisions of subsection (e) under

protest then the chief of police shall take note of such protest and enter it upon the receipt required by subsection (e) prior to the time the owner or person in charge of the vehicle signs the receipt.
(Code 1977, § 32-31; Ord. No. 1-79, 1-8-79; Ord. No. 6-82, 2-22-82)

Sec. 22-45. Duty of poundkeeper and police officer where pound fees paid under protest.

If protest is made against the payment of any towing or storage fees provided in section 22-44, the person in charge of the vehicle pound shall mark upon the receipt evidencing payment of the towing and storage fees the words "Paid under protest." In such case it shall be the duty of the police officer having knowledge of the facts forthwith to institute proper proceedings in court, charging the owner or driver of such vehicle with the violation on account of which the vehicle was impounded.
(Code 1977, § 32-32)

Sec. 22-46. Record of impoundment or immobilization of vehicles.

It shall be the duty of the chief of police, or such other police officer as he shall designate, to keep a record of the names of the owners of all vehicles impounded or immobilized, the numbers of their state license plates, the place where each vehicle was impounded or immobilized, the nature and circumstances of each violation and the disposition of each case.
(Code 1977, § 32-33; Ord. No. 6-82, 2-22-82)

Sec. 22-47. Removal and disposition of abandoned or inoperable motor vehicles.

(a) *Generally; definition.* It shall be unlawful for any person to abandon any motor vehicle within the limits of the city. The word "abandon" shall have the same meaning as it does in section 14-150(a) of the general statutes.

(b) *Disposition; exception.* No person in charge or control of any property within the city, whether as owner, tenant, occupant, lessee or otherwise, shall allow abandoned or inoperable motor vehicles to remain on such property, and no person shall leave any such vehicle on any property within the city, except that this section shall not apply with regard to a vehicle in an enclosed building, a vehicle on the premises of a business enterprise operated in a lawful place and manner when necessary to the operation of such business enterprise or a vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city.

(c) *New regulation, exceptions for restored vehicles.* Further excepted from the application of this section is any motor vehicle which is in the active process of being restored to operable condition, subject to the following criteria:

(1) Only one (1) such vehicle shall be permitted at any one (1) time on the property in question;

(2) Automobile parts used in the restoration must be stored in the vehicle or in a structure;

(3) Such restoration work is not to take place in the required yard areas as set forth in the zoning regulations;

(4) One (1) vehicle, in addition to the vehicle being restored, which is being used for parts may be maintained on the property for no more than thirty (30) days.

(d) *Removal.* The director of licenses and inspections or his designee or agent is hereby authorized to remove or have removed any motor vehicle which is abandoned, or inoperable within the limits of the city which remains unmoved for thirty (30) days after:

(1) Notice by personal service or by mail to the owner of the property on which such motor vehicle so remains, ordering the removal of such motor vehicle; and

(2) Notice in a newspaper having a substantial circulation in the city prior to removal.

The fire chief and his designee shall have the authority to make referrals to the director of licenses and inspections of any abandoned or inoperable motor vehicles.

(e) *Penalties, generally.* Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined in an amount not exceeding ninety-nine dollars ($99.00). Each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such pursuant to this section. After giving the required notice and after waiting the required thirty (30) days, the director of licenses and inspections or his designee or agent may so remove the vehicle by commercial tow truck to a commercial garage or an automobile wrecking yard or any suitable place for the disposal of rubbish and he may thereafter file an action in the name of the city in the appropriate court upon any person upon whom he served the aforesaid demand, for the purpose of recovering the cost of removing and storing such vehicle if the proceeds of any sale thereof shall be insufficient to recover such costs. Nothing in this section shall be construed to require the director of licenses and inspections or any member of his department to hold a sale of such vehicle.

(f) *Fine for dismantling abandoned motor vehicles.* Any person found dismantling a motor vehicle which has been abandoned shall be subject to a fine of not more than ninety-nine dollars ($99.00).
(Code 1977, § 32-34; Ord. No. 27-87, §§ 1—6, 8-13-87; Ord. No. 38-87, 12-28-87)

Secs. 22-48—22-60. Reserved.

DIVISION 3. PARKING METERS

Sec. 22-61. Authorized.

Whenever the parking of vehicles on any street or part thereof cannot, in the opinion of the traffic authority, be adequately and efficiently regulated and controlled otherwise, he may authorize the installation of parking meters and designate parking meter zones, fix the zone parking fee and the legal parking time in such zones, and also fix the hours during which the use of parking meters shall be required.
(Code 1977, § 77, 32-39)

Sec. 22-62. Installation and maintenance; collections.

The traffic authority shall have charge of the installation, replacement, removal, maintenance and repair of parking meters, together with all standards and attachments used in connection therewith, and shall also have charge of the collection of coins from such parking meters. It shall be the duty of the police department to carry out the orders of the traffic authority under the provisions of this section.
(Code 1977, § 32-40)

Sec. 22-63. Manner of parking; deposit of coin and operation of meter's mechanism.

When any vehicle is parked in a space adjacent to which a parking meter is located, the operator of such vehicle shall park it parallel to the curb within the lines or marks established, unless such vehicle's length, width or load overlaps such lines or marks, and upon entering such space, shall immediately deposit or cause to be deposited in such parking meter, such coin of the United States as

is required by the traffic authority for such parking meter and as is designated by proper directions on the meter. When required by directions on the meter, the operator of such vehicle, after the deposit of the coin, shall also completely turn, or cause to be so turned, the crank handle on the meter for the purpose of starting the timing mechanism.
(Code 1977, § 32-41)

Sec. 22-64. Parking time limit in meter space.

Upon the deposit of the required coin and the placing of a parking meter in operation, the meter space may be lawfully occupied by a vehicle during the period of parking time which has been prescribed for the part of the street in which such meter space is located.
(Code 1977, § 32-42)

Sec. 22-65. Extension of time by deposit of additional coin.

It shall be unlawful for any person to deposit or cause to be deposited in any parking meter additional coins of the United States for the purpose of increasing or extending the legal parking time which has been established by the traffic authority for the parking meter space adjacent to which such meter is placed.
(Code 1977, § 32-43)

Sec. 22-66. Use of meter spaces by commercial vehicles.

Vehicles bearing commercial license plates may occupy the space adjacent to any parking meter for the purpose of loading or unloading merchandise or packages without the deposit of a proper coin in the meter, provided that such loading or unloading is done as expeditiously as possible.
(Code 1977, § 32-44)

Sec. 22-67. Parking overtime.

If a vehicle remains parked in any parking meter space beyond the parking time limit fixed for such space and the parking meter by its dial and pointer, or otherwise, indicates such unlawful parking, such vehicle shall be deemed unlawfully parked.
(Code 1977, § 32-45)

Sec. 22-68. Depositing slugs in meters.

It shall be unlawful to deposit or cause to be deposited in any parking meter any slug, device or substitute for a coin of the United States.
(Code 1977, § 32-46)

Sec. 22-69. Defacing, opening or injuring meters.

It shall be unlawful for any unauthorized person to deface, damage, tamper with, open or willfully to break, destroy or impair the usefulness of any parking meter installed under the provisions of this division, or to aid, abet or conspire in doing the same.
(Code 1977, § 32-47)

Cross reference—Injuries to public property generally, § 25-7.

Secs. 22-70—22-85. Reserved.

DIVISION 4. CUSTOMER AND *PATRON PARKING*

Sec. 22-86. Compliance required.

No person shall keep and maintain an open-air motor vehicle parking space for two (2) or more motor vehicles for the accommodation of customers or patrons of any business except in conformity with the provisions of this division.
(Code 1977, § 32-53)

Sec. 22-87. Delineation of area.

All open-air parking spaces which abut upon a public highway shall have and maintain a permanent substantial barrier, constructed of metal or masonry, either as a wall not less than two (2) feet above the ground, or metal or masonry posts placed not more than five (5) feet apart nor less than thirty (30) inches above the ground and connected with metal pipes, rods, fencing or chains. Such barrier shall be erected on private property adjacent to the highway line of such parking space, with openings therein, conforming to lawfully authorized ramps, authorized by the director of public works of the city, but which openings shall in no event exceed twenty-four (24) feet in width.
(Code 1977, § 32-54)

Sec. 22-88. Use of unopened part of public way.

(a) When a portion of the public highway upon which an open-air parking space abuts has not been opened up to public travel, the bureau of licenses and inspections, upon application, may issue a license to the person keeping and maintaining such parking space to use as a part thereof such unopened portion of the public highway, provided:

(1) The director of public works finds that such use will not interfere with the enjoyment of the public easement in such public highway;

(2) That such person constructs and maintains a permanent substantial barrier, as described in section 22-87 at the place approved by the director of public works, but which barrier shall not be constructed or maintained within three (3) feet of the edge of the public sidewalk adjacent to such parking space;

(3) That such person enters into an agreement with the city to save and protect the city harmless from any and all claims, including death, that may arise by reason or on account of the use of such unopened portion of the public highway, and also furnishes to the purchasing agent of the city a policy of insurance in kind and amount to his satisfaction, to provide such protection, and in which policy the city will be named assured or co-assured;

(4) That the fee for such license shall be twenty-five dollars ($25.00) for the original license, payable at the time written application for such license is made, and twenty-five dollars ($25.00) yearly for renewal thereof, payable on or before June thirtieth of each year, following the date of issuance of the original license.

(b) Each such license issued under this section shall be revocable at any time by the city.
(Code 1977, § 32-55)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 22-89. Maintenance and required facilities.

Each person keeping and maintaining an open-air parking space shall:

(1) Keep such space in a neat, clean and sanitary condition;

(2) If such space is kept open for customers or patrons during the nighttime, provide ample lighting so as to permit owners of motor vehicles to have reasonable access to all vehicles in such space during the hours of darkness;

(3) Not place or deposit upon the public street, curb or sidewalk any accumulation of snow, ice, rubbish or other dangerous or unwholesome substance;

(4) At all times keep the entrances and exits leading into or from such space, and the sidewalks in front of such space, free and clear of all accumulations of snow, ice, rubbish or other dangerous or unwholesome substance;

(5) Have not more than two (2) entrances and two (2) exits over the public sidewalks on any one (1) public highway, and the number, location and width of such entrances and exits shall be as approved by the director of public works.

(Code 1977, § 32-56)

Secs. 22-90—22-105. Reserved.

DIVISION 5. COMMERCIAL LOTS

Sec. 22-106. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercial parking lot means an outdoor space or uncovered plot, place, lot, parcel or enclosure or any portion thereof where more than fifteen (15) motor vehicles may be parked, stored or kept at any one (1) time for which any charge is made.

Downtown parking district means the area contained generally within the boundaries of the DT (Downtown) zoning districts as defined in the zoning regulations of the planning and zoning commission.

Motor vehicle means any automobile, truck, bus or other self-propelled vehicle not operated on tracks or from trolleys.
(Code 1977, § 32-62; Ord. No. 20-02, 6-10-02; Ord. No. 003-20, 6-22-20)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 22-107. Permit required.

(a) No person shall keep and maintain a commercial parking lot where charges are made for the parking of motor vehicles without first obtaining a permit for such lot from the department of licenses and inspections. No such permit shall be issued until the applicant has filed an application therefore in accordance with section 22-108, together with a plat or drawing showing the location, size and capacity of such lot.

(b) Permits shall expire two (2) years from the date of issuance unless revoked pursuant to section 22-115.
(Code 1977, § 32-63; Ord. No. 20-02, 6-10-02)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 22-108. Application for permit.

(a) Application for a permit required by this division shall be made upon forms furnished by the department of licenses and inspection and shall set forth the following:

(1) Whether the applicant is an individual, partnership or corporation; if an individual, the name and residence and business addresses of the applicant; if a partnership, the name and residence and business addresses of each partner; if a corporation, the name, date and state under which the corporation was organized, the names and business and residence addresses of the officers and managers in charge thereof;

(2) Whether the parking lot is owned or leased by the applicant;

(3) The maximum number of motor vehicles which may at any one (1) time be accommodated upon such parking lot;

(4) The hours during which the motor vehicles may be accommodated upon such parking lot;

(5) The lighting plan for such parking lot;

(6) Whether the applicant has insurance to furnish protection against loss on account of legal liability because of the maintenance of such parking lot, and the nature of such insurance.

(b) Such application and any required plat or drawing shall be signed and verified under oath by the applicant and shall be filed in triplicate with the department of licenses and inspection. In case the applicant is a partnership, each partner shall execute the same.

(c) A permit application shall not be accepted by the department of licenses and inspections unless the applicant submits a statement from the City of Hartford Tax Collector's Office stating that the taxes on the real property on which the commercial parking lot is situated are paid to date and the real property is not tax delinquent.

(d) Prior to being approved for a permit, the applicant must furnish the following policies or certificates of insurance covering the applicant and the City of Hartford in a form approved by the corporation counsel and risk manager, which shall be issued by an insurance company authorized to do business in the State of Connecticut and shall remain in effect for the full period of time for which such permit is effective:

(1) For bodily injury liability in the sum of one million dollars ($1,000,000.00) for any one (1) bodily injury, including death, with a total limit of three million dollars ($3,000,000.00) for all damages arising out of bodily injury or death of more than one (1) person, and

(2) For property damage liability in the sum of one million dollars ($1,000,000.00).
(Code 1977, § 32-64; Ord. No. 20-02, 6-10-02)

Sec. 22-109. Permit fees.

The permit fee for the operation of a commercial parking lot shall be paid at the time of the filing of the application as set forth in section 22-108, in accordance with the following schedule:

Commercial parking lots in the downtown parking district:

(1)	Lots having a capacity of 16 to 30 motor vehicles	$500.00
(2)	Lots having a capacity of 31 to 50 motor vehicles	750.00
(3)	Lots having a capacity of over 50 motor vehicles	1,000.00

Commercial parking lots not in the downtown parking district:

(1)	Lots having a capacity of 16 to 30 motor vehicles	$250.00
(2)	Lots having a capacity of 31 to 50 motor vehicles	375.00
(3)	Lots having a capacity of over 50 motor vehicles	500.00

(Code 1977, § 32-65; Ord. No. 20-02, 6-10-02)

Sec. 22-110. Prohibited acts of permittee.

It shall be unlawful for the permittee of any commercial parking lot to:

(1) Use or permit the use of any part of the public sidewalk for the storage, parking or change of location of any motor vehicle parked therein;

(2) Deposit or shovel upon the public highway or sidewalk any accumulation of snow, ice, rubbish or other dangerous or unwholesome substance;

(3) Transfer the location of a parked motor vehicle from one commercial parking lot to another commercial parking lot during the period of parking without the written consent of the owner or bailor of such parked motor vehicle.

(Code 1977, § 32-66; Ord. No. 20-02, 6-10-02)

Sec. 22-111. Duties of permittee.

(a) The permittee of a commercial parking lot shall:

(1) When a vehicle is left for parking, furnish the owner or operator with a claim check which shall have printed thereon the full name and address of the parking lot and a number corresponding to a coupon attached thereto which shall be placed upon the vehicle. The permittee shall not deliver any such vehicle without presentation of the proper claim check or without satisfactory proof of ownership of such vehicle. This provision shall not apply where a vehicle is parked on a weekly or monthly basis and a memorandum bearing the full name and address of the parking lot is given to the owner thereof stating the arrangement;

(2) Provide for such parking lot proper and adequate fire extinguishing apparatus which shall be subject to the approval of the chief of the department of fire;

(3) Post prominently at the entrance on each street of such parking lot a sign bearing the name of the permittee, the hours of the day and night during which such lot shall be open, the rates charged and the closing hours of such lot. Such sign shall be uniformly displayed in conspicuous letters and figures of the same size;

(4) Keep such lot lighted by some type of approved lighting device in such locations and to such extent as shall be adequate to permit the owners of motor vehicles to have reasonable access to all portions of such lot during the period from one-half hour after sunset to one-half hour before sunrise for which such lot shall be open for parking;

(5) Place a conspicuous sign at the entrance of the lot, reading "FILLED," whenever such lot is filled with motor vehicles to its legalized capacity. Such sign shall be displayed continuously as long as such condition exists.

(6) Post in a prominent location the provisions of sections 22-110 and 22-111 and the phone number of the director of licenses and inspections.

(7) Comply with the zoning regulations of the planning and zoning commission when making improvements requiring site plan review or other zoning permit review.

(b) In addition to the duties in subsection (a) above and applicable duties of the zoning regulations, commercial parking lots in the downtown parking district shall comply and be subject to the following:

(1) All entrances and exits shall be approved by the city traffic engineer and shall satisfy the following criteria:

a. All exits and entrances shall be so located as to provide the least amount of interference with the movement of pedestrians and vehicular traffic;

b. There shall be no exits or entrances on Main Street;

c. There shall be no exits or entrances located within a designated bus loading or unloading zone;

d. There shall be a minimum distance of forty (40) feet between any two (2) curb cuts and a minimum distance of seventy-five (75) feet between any curb cut and the corner of any lot which is adjacent to two (2) streets;

e. All entrances and/or exits shall be located a minimum distance of one hundred (100) feet from the nearest entrance and/or exit ramp to a limited access highway, to be measured along the street line from the point at which the street line intersects the nearest highway taking line to the private, commercial and/or public parking lot entrance and/or exit.

(2) A private, commercial and/or public parking lot shall be used solely for the parking of passenger vehicles. There shall be no commercial repair work or service of any kind, no display of vehicles for purposes of sale or rental and no parking or storage of inoperable or unregistered motor vehicles on such premises.

(3) A landscaped area at least three (3) feet in width shall be provided between the private, commercial and/or public parking lot and the existing street line or the existing inner sidewalk line, whichever is furthest from the curb, for the full length of all street frontages excluding those areas required for curb cuts.

(4) No sign of any kind other than those designating entrances, exits and conditions of use shall be erected or maintained, within a private, commercial and/or public parking lot. Such sign shall not exceed twenty (20) square feet in area each, shall be limited to one (1) sign per street frontage exclusive of exit/entrance signs, shall not exceed an overall height of fifteen (15) feet, shall maintain the visibility at intersections required in section 35-26 and shall not be located forward of the building line.

(5) All private, commercial and/or public parking lots shall be surfaced so as to provide a durable and dustless all weather surface, and shall be so graded and drained as to dispose of all surface water accumulations within the site. No surface water from any such parking lot shall be permitted to drain onto adjoining property or across a public sidewalk or right-of-way.

(6) There shall be provided a wheel stop of either wood, metal or concrete not more than one (1) foot in height and securely anchored into the ground on all sides of the parking lot where there is a sidewalk, an existing structure, fence or required landscaping. Such wheel stops shall be located at such a distance so that automobiles will not strike the wall, fence or landscaping, nor will the automobile extend over the sidewalk. As an alternative, a concrete or asphalt berm, serving the same purpose may be provided.

(7) Each commercial and/or public parking lot must be properly lighted. All lighting used to illuminate such parking premises shall be so arranged as to reflect the light away from any public street or right-of-way and from any adjoining premises located in a residential district or any premises used for residential purposes.

(8) Any person, partnership, or corporation operating a commercial parking lot without a permit will be charged a fee of no less than two thousand five hundred dollars ($2,500.00) a day to operate such lot after proper notice has been posted on the lot by the department of license and inspection. Individuals, officers of corporations and partners operating commercial parking lot without a permit shall be fined no more than one hundred dollars ($100.00) or imprisoned for no more than thirty (30) days. This subsection will not apply to any corporation partnership or individual with a pending permit application.

(9) Any commercial parking lot in the downtown parking district in compliance with all the requirements of Chapter 22, Article II, Division V of the Code with the exception of subsection (5) of this section on July 1, 2002 may receive a one-time permit for a period not to exceed one (1) year from the date of issuance.

(10) Any commercial parking lot in the downtown parking district in compliance with all the requirements of Chapter 22, Article II, Division V of the Code with the exception of subsection (b)(1)b. of this section on July 1, 2002, provided that the exit or entrance on Main Street was in existence prior to April 1, 2002, may receive a permit notwithstanding noncompliance with subsection (b)(1) b. of this section.

(Code 1977, § 32-67; Ord. No. 20-02, 6-10-02; Ord. No. 003-20, 6-22-20)

Sec. 22-112. Display of rates.

The rates for parking in a commercial parking lot shall be prominently displayed before 8:00 a.m. of each day and shall remain in effect for a period of not less than twenty-four (24) hours thereafter or as otherwise required by this section. The permittees of commercial parking lots shall file their monthly, hourly and special event rates with the director of licenses and inspections on July 1 of each year and send a copy of the rates to the Hartford Parking Authority. The rates filed with the director of licenses and inspections shall remain the rates for that lot unless the permittee changes the parking rates by filing the new rates with the director of licenses and inspections ninety (90) days prior to the date on which the new rates take effect.

(1) Rates for parking in the downtown parking district shall be prominently displayed in a uniform manner as determined by the Hartford Parking Authority.

(2) Violation of this section shall be punishable by a fine of one hundred dollars ($100.00) per occurrence.

(Code 1977, § 32-68; Ord. No. 20-02, 6-10-02)

Sec. 22-113. Attendants.

(a) There shall be an attendant in charge of a commercial parking lot present at all times during which such parking lot is open for parking motor vehicles.

(b) In addition to the requirement of subsection (a) above, there shall be an attendant in charge of a commercial parking lot located in the downtown parking district present from the time the parking lot opens in the evening until one-half hour after the closing time of establishments serving alcoholic beverages for such days and through such times as set forth below:

(1) Thursday evenings through 1:30 a.m. Friday;

(2) Friday evening through 2:30 a.m. Saturday; and

(3) Saturday evening through 2:30 a.m. Sunday.

(Code 1977, § 32-69; Ord. No. 20-02, 6-10-02; Ord. No. 12-05, 10-11-05)

Sec. 22-114. Exceptions.

(a) The provisions of this division shall not apply to any commercial parking lot which is maintained or operated for the parking or storage of motor vehicles of residents in the immediate neighborhood of such parking lot and is not open for service to the general public.

(b) The provisions of subsection 22-111(a)(1) shall not apply to commercial parking lots wherein means of ingress or egress are mechanically or automatically controlled.

(c) The provisions of subsection 22-113 shall not apply providing that a permittee:

(1) properly installs and maintains a device that provides for payment and recording/acknowledgement of payment of the levied parking fee and provides for unattended access and egress from the parking lot; and

(2) provides on-site ongoing monitoring through routine security/parking management mobile patrols or other on-site monitoring.

(Code 1977, § 32-70; Ord. No. 20-02, 6-10-02; Ord. No. 48-11, 9-12-11)

Sec. 22-115. Enforcement.

The director of licenses and inspections shall enforce the provisions of sections 22-106 through 22-118. The chief of police is authorized to assist the director in the enforcement of those provisions.
(Ord. No. 20-02, 6-10-02)

Sec. 22-116. Suspension or revocation of permit.

The director of licenses and inspections may suspend or revoke a permit for a commercial parking lot for violation or noncompliance with any provision of this division by sending written notice to the permittee.
(Ord. No. 20-02, 6-10-02)

Sec. 22-117. Hearing upon denial, suspension or revocation of permit.

Any person, entity or permittee may submit a written request for a hearing, with the director of licenses and inspections, within ten (10) of the date of the mailing of notice of denial, suspension or revocation of a commercial parking permit.

The city manager shall appoint a hearing officer and the office of corporation counsel shall establish rules and regulations for hearings to be held under this section.
(Ord. No. 20-02, 6-10-02)

Sec. 22-118. Barricading commercial parking lot.

Upon suspension or revocation of a commercial parking permit, the department of licenses and inspection may barricade the parking lot until further notice, provided that no barricade shall be installed prior to the passage of the ten-day period within which a hearing regarding suspension or revocation may be requested or until such time as a decision is rendered after a hearing held pursuant to section 22-117.
(Ord. No. 20-02, 6-10-02)

ARTICLE III. ALL TERRAIN VEHICLES, POCKET BIKES, MINI BIKES, MINI CYCLES, MINI SPORT BIKES, MINI MOTORCYCLES, MINI DIRT BIKES, CHOPPER SCOOTERS, MOTOR SCOOTERS AND BICYCLES WITH HELPER MOTORS*

Sec. 22-119. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section:

Motorized recreational vehicle shall mean a wheeled vehicle, with a motor, intended to be

*__Editor's note—__Ord. No. 24-08, adopted Sept. 8, 2008 amended Art. III, §§ 22-119—22-121 in its entirety to read as herein set out. Former Art. III, pertained to pocket bikes, mini bikes, mini cycles, mini sport bikes, mini motorcycles, mini dirt bikes, chopper scooters, motor scooters and bicycles with helper motors. See the Code Comparative Table for complete derivation.

ridden by one (1) or more persons, and shall include "all-terrain vehicle," "dirt bike," "motor-driven cycle," "snow mobile" and "mini-cycle," all as defined herein.

All-terrain vehicle means a self-propelled vehicle designed to travel over unimproved terrain as defined in G.S. § 14-379 and which has been determined by the Commissioner of Motor Vehicles to be unsuitable for operation on the public highways.

Dirt bike means a two-wheeled motorized recreational vehicle designed to travel over unimproved terrain and not designed for travel on a highway, as defined in G.S. § 14-1. "Dirt bike" does not include an all-terrain vehicle, as defined in G.S. § 14-379, or a motor-driven cycle, as defined in G.S. § 14-1.

Motor-driven cycle means any motorcycle, motor scooter, or bicycle with an attached motor, with a seat height of not less than twenty-six (26) inches, and a motor having a capacity of less than fifty (50) cubic centimeters of piston displacement.

Snow mobile means a vehicle with a motor, with runners in the front and caterpillar tracks in the rear, intended to be used by one (1) or more persons for travelling over ice and snow.

Mini cycle means pocket bikes, miniature (hereafter "mini") bikes, mini cycles, mini sport bikes, mini motorcycles, chopper scooters, and any other similar wheeled vehicle designed to transport one (1) or more persons that is powered by any type of motor.

Motorized recreational vehicle shall not be deemed to include any of the following:

(1) Any registered "motorcycle" as defined in the G.S. § 14-1(46);

(2) Any registered "motor vehicle" as defined in G.S. § 14-1(47);

(3) Any moped that meets Federal Department of Transportation guidelines for use on streets and is approved by the State of Connecticut Department of Motor Vehicles for use on streets, provided, however, the moped is operated pursuant to all applicable state laws, rules, and regulations and all City of Hartford ordinances;

(4) Any wheelchair or similar mobility assisting device utilized by a person with a physical disability or whose ambulatory mobility has been impaired due to age or physical ailment;

(5) Any self-propelled snow plow, snow blower or lawn mower when used for the purpose for which it was designed and operated at a speed not to exceed four (4) miles per hour;

(6) Any vehicle owned or leased by the City of Hartford;

(7) Any EPAMD as defined herein.

(8) Any bicycle or trail bike without a motor;

(9) Any golf cart;

(10) Any agricultural equipment such as tractors and farm implements;

(11) Any construction machinery; and

(12) Any vehicle that is used solely for amusement, or as a novelty display item, and is operated during a parade or any other special event that is properly permitted and approved by the city of Hartford.

Motorized recreational vehicle dealer means any person engaged in the business of manufacturing or selling any motorized recreational vehicles, having an established place of business for the manufacture, sale, trade and display of such vehicles.

EPAMD shall mean any electric personal assistive mobility device (hereinafter "EPAMD") that is self-balancing, has two (2) non-tandem wheels, is designed to transport one (1) person, and has an electric propulsion system that limits the maximum speed of the device o twelve and one-half (12 ½) miles per hour or less.
(Ord. No. 24-08, 9-8-08; Ord. No. 09-13, 10-28-13; Ord. No. 21-17, 10-23-17)

Sec. 22-120. Operations prohibited.

(a) It shall be unlawful for any person to operate a motorized recreational vehicle and/or for any owner of motorized recreational vehicle to knowingly permit the operation of such vehicle on any street or sidewalk in the City of Hartford or on any public property, including but not limited to school property, playgrounds and parks, within the City of Hartford.

(b) It shall be unlawful for any person to ride as a passenger on a motorized recreational vehicle and/or for any owner of a motorized recreational vehicle to knowingly permit any person to ride as a passenger on such vehicle operated in violation of subsection (a) above.

(c) It shall be unlawful for any person to operate a motorized recreational vehicle ride as a passenger on a motorized recreational vehicle and/or for any owner of a motorized recreational vehicle to knowingly permit its operation on any private property, within the City of Hartford, without first obtaining the written permission of the property owner if the property is not owned by the operator, passenger, and/or owner of such vehicle. Any such operator or passenger allowed to operate or ride by a private property owner may not operate that vehicle on private property in violation of the City of Hartford noise ordinance as defined in section 23-1 et seq.

(d) It shall be unlawful for any person to operate an EPAMD and/or for any owner of an EPAMD to knowingly permit the operation of his/her EPAMD on any street in the City of Hartford, provided, however, an EPAMD may be operated on any public sidewalk and/or crosswalk in the City of Hartford. An operator of an EPAMD shall yield to pedestrians and any wheelchair or similar mobility assisting device as defined in subsection 22-119 above and shall comply with any applicable State of Connecticut laws or regulations.
(Ord. No. 24-08, 9-8-08; Ord. No. 09-13, 10-28-13; Ord. No. 21-17, 10-23-17)

Sec. 22-121. Penalty.

(a) Any person who operates a motorized recreational vehicle in violation of subsection 22-120(a) above, or is the owner of any such vehicle who knowingly permits its operation in violation of subsection 22-120(a) above, may be summoned to community court pursuant to G.S. § 51-181c. Upon finding of a violation, the community court may impose a penalty of community service, a fine, and/or a jail sentence in the discretion of the court.

(b) Any person who rides as a passenger on a motorized recreational vehicle in violation of subsection 22-120(b) above, or is the owner of such a vehicle who knowingly permits a passenger to ride on such vehicle in violation of subsection 22-120(b) above may be summoned to community court pursuant to G.S. § 51-181c. Upon finding of a violation, the community court may impose a penalty of community service, a fine and/or a jail sentence in the discretion of the court.

(c) Any person who operates a motorized recreational vehicle in violation of subsection 22-120(c) above, or is the owner of any such vehicle who knowingly permits its operation in violation of subsection 22-120(c) above may be summoned to community court pursuant to G.S. § 51-181c. Upon finding of a violation, the community court may impose a penalty of community service, a fine, and/or a jail sentence in the discretion of the court.

(d) Any person who operates an EPAMD in violation of subsection 22-120(d) above, or is the owner of an EPAMD who knowingly permits its operation in violation of subsection 22-120(d) above, may be summoned to community court pursuant to G.S. § 51-181c. Upon finding of a violation, the community court judge may impose a penalty of community service, a fine and/or a jail sentence in the discretion of the court.
(Ord. No. 24-08, 9-8-08; Ord. No. 09-13, 10-28-13; Ord. No. 21-17, 10-23-17)

Sec. 22-122. Seizure of motorized recreational vehicles; disposal.

Any person who operates a motorized recreational vehicle in violation of subsection 22-120(a) above, or is the owner of any such vehicle who knowingly permits its operation in violation of subsection 22-120(a) above, and any

operator or owner of an EPAMD who violates subsection 22-120 (d) above, will be subject to seizure of said vehicle(s) or EPAMD pursuant to C.G.S. § 54-33g which allows for seizure of property. A police officer who observes any motorized recreational vehicle or EPAMD being operated in violation of subsection 22-120(a), subsection 22-120(b), subsection 22-120(c), and/or subsection 22-120(d) above may detain such person for purposes of enforcing the provisions of this article, and may remove or tow such motorized recreational vehicle or EPAMD to a secure location for impoundment. Before the owner of any such impounded property may remove the vehicle from a vehicle pound, he or she shall furnish to the operator of such pound, or such other person as the chief of police shall designate, evidence of registration and ownership, shall sign a receipt for such property, and shall pay the cost of impoundment and administration, plus the cost of storage for each day or portion of a day that such property is stored in excess of the first twenty-four (24) hours after seizure. The operator of such pound shall refuse the release of any such property lawfully seized that the chief of police has authorized to hold as evidence in a criminal investigation or proceeding. Such operator shall obtain written permission from the chief of police on any form or document prescribed by the chief of police prior to the release of such property held for evidence.

Any such motorized recreational vehicle or EPAMD that is not claimed by its owner under the terms of this section for a period of forty-five (45) days after seizure, or in the case of a vehicle being held as evidence, not claimed by its owner within forty-five (45) days of the cessation of such investigation or disposition of such criminal proceeding, whichever is later, may be disposed of at the direction of the chief of police after serving notice in the same manner as that required for the disposal of abandoned vehicles under G.S. § 14-150(e), except in the case that a vehicle that is not registered, such notice shall not require mailing to persons whose names are registered with the state department of motor vehicles.

(Ord. No. 21-17, 10-23-17)

Editor's note—Ord. No. 21-17, adopted Oct. 23, 2017, amended § 22-122 in its entirety to read as herein set out. Former § 22-122, pertained to seizure of motorized recreational vehicles; disposal and derived from Ord. No. 24-08, adopted Sept. 8, 2008; Ord. No. 09-13, adopted Oct. 28, 2013.

Sec. 22-123. Posting by motorized recreational vehicle dealer.

Each motorized recreational vehicle dealer offering for sale, lease or rental any motorized recreational vehicle shall post this ordinance in a prominent location at said all-terrain vehicle dealer's place of business.

Any such dealer who violates any provision of this section shall have committed an infraction. For a first violation, the chief of police or his or her authorized agent shall issue a written warning providing notice of the specific violation and the time period within which it shall be corrected. If the dealer receiving the written warning fails to correct the violation within the time period specified in the warning, the chief of police or his or her authorized agent shall issue a fine of ninety-nine dollars ($99.00). Any continuing violation that is discovered during any subsequent re-inspection shall result in a fine of ninety-nine dollars ($99.00). Each re-inspection at which a violation is discovered shall constitute a separate violation.

(Ord. No. 24-08, 9-8-08; Ord. No. 09-13, 10-28-13; Ord. No. 21-17, 10-23-17)

Sec. 22-124. Designation of intersections subject to Section 14-250b of the Connecticut General Statutes (2015).

Pursuant to Section 14-250b(b) of the Connecticut General Statutes (2015), the following intersections are hereby designated as intersections to which the provisions of Section 14-250b(a) apply:

1. Market Street and North Morgan Street.
2. Market Street and South Morgan Street.
3. Main Street and North Morgan Street.
4. Main and South Morgan Street.
5. Trumbull Street and North Chapel Street.
6. Trumbull Street and South Chapel Street.
7. Main Street and Pearl Street.

8. Main Street and Trumbull Street.
9. Main Street and Pleasant Street.
10. Pleasant Street and Windsor Street.
11. Pleasant Street and Market Street.
12. Trumbull Street and Market Street.
13. Farmington Avenue and Broad Street.
14. Asylum Avenue and Broad Street.
15. Capitol Avenue and Broad Street.
16. Farmington Avenue and Sisson Avenue.
17. Albany Avenue and Bloomfield Avenue.
18. Albany Avenue and Main Street.
19. Asylum Avenue and Sigourney Street.

(Ord. No. 04-16, 4-25-16)

Sec. 22-125. Marking and posting of designated intersections.

The Director of the Department of Public Works shall proceed expeditiously to post signs and mark the designated intersections in accordance with the requirements of Section 14-250b(b) of the Connecticut General Statutes (2015).
(Ord. No. 04-16, 4-25-16)

Sec. 22-126. [Enforcement of Section 14-250b(b) of the Connecticut General Statutes (2015).]

The police chief shall begin enforcing Section 14-250b(b) of the Connecticut General Statutes (2015) at a designated intersection upon the latter of (1) two (2) weeks after the completion of the posting of signs and marking of the intersection and (2) the effective date of the ordinance from which this section derives.
(Ord. No. 04-16, 4-25-16)

ARTICLE IV. USE OF AUTOMATED TRAFFIC ENFORCEMENT SAFETY DEVICES

Sec. 22-127. Use of automated traffic enforcement safety devices.

Pursuant to the authority granted in Public Act 116, Section 11, of the 2023 Session of the Connecticut General Assembly (the "Public Act"), the City of Hartford (the "City") hereby authorizes the use of automated traffic enforcement safety devices at locations within school zones, pedestrian safety zones, and other places within the boundaries of Hartford, Connecticut, provided that the locations of such devices will be identified in a plan submitted to and approved by the Connecticut Department of Transportation.
(Ord. of 9-25-23)

Sec. 22-128. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated traffic enforcement safety device shall mean a device designed to detect and collect evidence of alleged traffic violations by recording images that capture the number plate, date, time, and location of a motor vehicle that (i) exceeds the posted speed limit by ten (10) or more miles per hour or (ii) fails to stop such vehicle when facing a steady red signal on a traffic control signal.

Automated traffic enforcement safety device operator shall mean a person who is trained and certified to operate an automated traffic enforcement safety device.

Number plate shall mean any sign or marker furnished by the commissioner of motor vehicles on which is displayed the registration number assigned to a motor vehicle by the commissioner.

Owner shall mean any person holding title to a motor vehicle, or having the legal right to register the same.

Pedestrian safety zone shall mean an area designated by the Office of State Traffic Administration or the traffic authority of the City pursuant to G.S. § 14-307a.

Personally identifiable information shall mean information created or maintained by the City or a vendor that identifies or describes an owner and includes, but need not be limited to, the owner's address, telephone number, number plate, photograph, bank account information, credit

card number, debit card number, or the date, time, location, or direction of travel on a highway.

School zone shall mean an area designated by the Office of State Traffic Administration or the traffic authority of the City pursuant to G.S. § 14-212b.

Traffic authority, *traffic control sign*, and *traffic control signal* shall all have the same meanings as provided in G.S. § 14-297.

Vendor shall mean a person who provides services to the City under this article; operates, maintains, leases, or licenses an automated traffic enforcement safety device; or is authorized to review and assemble the recorded images captured by an automated traffic enforcement safety device and forward such recorded images to the City.
(Ord. of 9-25-23)

Sec. 22-129. Vendors.

The City may enter into agreements with vendors for the design, installation, operation, or maintenance, or any combination thereof, of automated traffic enforcement safety devices. If a vendor designs, installs, operates, or maintains an automated traffic enforcement safety device, the vendor's fees may not be contingent on the number of citations issued or fines paid pursuant to this article.
(Ord. of 9-25-23)

Sec. 22-130. Operation of automated traffic enforcement safety device.

All automated traffic enforcement safety devices shall be operated by an automated traffic enforcement safety device operator.
(Ord. of 9-25-23)

Sec. 22-131. Violation.

(a) The owner of a motor vehicle commits a violation of this article if the person operating such motor vehicle:

(i) Exceeds the posted speed limit by ten (10) or more miles per hour and such operation is detected by an automated traffic enforcement safety device; or

(ii) Fails to stop such motor vehicle when facing a steady red signal on a traffic control signal and such failure is detected by an automated traffic enforcement safety device.

(b) Automated traffic enforcement safety devices shall be used solely for identifying violations of this article.

(c) For the first thirty (30) days after a location is equipped with an operational automated traffic enforcement safety device, the owner of a motor vehicle that allegedly violates this article that is detected by such device shall receive a written warning instead of a citation.
(Ord. of 9-25-23)

Sec. 22-132. Penalty for violation.

(a) Whenever an automated traffic enforcement safety device detects and produces recorded images of a motor vehicle allegedly committing a violation of this article, a sworn member or employee of the City's Police Department, or an employee of the City as designated by the traffic authority, shall review and approve the recorded images provided by such device. If, after such review, the member or employee determines that there are reasonable grounds to believe that a violation occurred, the member or employee may issue by first class mail a citation to the owner of such motor vehicle.

(b) A citation under this article shall include the following:

(i) The name and address of the owner of the motor vehicle;

(ii) The number plate of the motor vehicle;

(iii) The violation charged;

(iv) The location of the automated traffic enforcement safety device and the date and time of the violation;

(v) A copy of or information on how to view, through electronic means, the recorded images that captured the alleged violation;

(vi) A statement or electronically generated affirmation by the member or employee who viewed the recorded images and determined that a violation occurred;

(vii) Verification that the automated traffic enforcement safety device was operating correctly at the time of the alleged violation and the date of the most recent calibration check performed pursuant to the Public Act;

(viii) The amount of the fine imposed and how to pay such fine; and

(ix) The right to contest the violation and request a hearing pursuant to G.S. § 7-152c.

(c) In the case of an alleged violation involving a motor vehicle registered in Connecticut, the citation shall be sent by first class mail not later than thirty (30) days after the identity of the owner is determined and shall be mailed to the address of the owner that is in the records of the Department of Motor Vehicles. In the case of an alleged violation involving a motor vehicle registered in another jurisdiction, the citation shall be sent by first class mail not later than thirty (30) days after the identity of the owner is determined and shall be mailed to the address of the owner that is in the records of the official in the other jurisdiction issuing such registration.

(d) A citation shall be invalid unless mailed to an owner not later than sixty (60) days after the alleged violation.
(Ord. of 9-25-23)

Sec. 22-133. Fine for violation.

(a) The City shall impose a fine against the owner of a motor vehicle that commits a violation of this article.

(b) The fine for a first violation of this article shall be fifty dollars ($50.00). The fine for each subsequent violation of this article shall be seventy-five dollars ($75.00). These fines shall be imposed against the owner of the motor vehicle committing a violation of this article.

(c) Payment of a fine and any associated fees may be made by electronic means.

(d) A reasonable fee, not to exceed fifteen dollars ($15.00), may be imposed for the costs associated with the electronic processing of the payment of a fine.

(e) Any funds received by the City from fines imposed pursuant to this article shall be used for the purposes of improving transportation mobility, investing in transportation infrastructure improvements, or paying the costs associated with the use of automated traffic enforcement safety devices within Hartford, Connecticut.
(Ord. of 9-25-23)

Sec. 22-134. Appeal.

Any owner issued a fine for violating the provisions of this article may, within ten (10) days of the receipt of the fine, appeal in writing to a citation hearing officer in accordance with Section 1-5 of the City Code and G.S. § 7-152c.
(Ord. of 9-25-23)

Sec. 22-135. Defenses.

The defenses available to the owner of a motor vehicle that is alleged to have committed a violation of this article shall include, but are not limited to, any one (1) or more of the following:

(a) The operator was driving an emergency vehicle in accordance with the applicable provisions of G.S. § 14-283.

(b) The traffic control signal was inoperative, which is observable on the recorded images.

(c) The violation was necessary for the operator to comply with an order or direction from a law enforcement officer, which is observable on the recorded images.

(d) The violation was necessary to allow the passage of an authorized emergency vehicle, which is observable on the recorded images.

(e) The violation took place during a period of time in which the motor vehicle had been reported as being stolen to a law enforcement unit, as defined in G.S. § 7-294a, and had not yet been recovered prior to the time of the violation.

(f) The automated traffic enforcement safety device was not in compliance with the calibration check required pursuant to the applicable provisions of the Public Act.

(Ord. of 9-25-23)

Sec. 22-136. Disclosure of personally identifiable information.

(a) No personally identifiable information shall be disclosed by the City or a vendor to any person or entity, including any law enforcement unit, except where the disclosure is made in connection with the charging, collection, and enforcement of the fines imposed pursuant to this article.

(b) No personally identifiable information shall be stored or retained by the City or a vendor unless such information is necessary for the charging, collection, and enforcement of the fines imposed pursuant to this article.

(c) The City or a vendor shall destroy all personally identifiable information and other data that specifically identifies a motor vehicle and relates to a violation of this article not later than thirty (30) days after any fine is collected or the resolution of a hearing conducted for the alleged commission of such violation, whichever is later.

(d) Any information and other data gathered from automated traffic enforcement safety devices shall be subject to disclosure under the Freedom of Information Act, as defined in G.S. § 1-200, except that no personally identifiable information may be disclosed.

(Ord. of 9-25-23)

Sec. 22-137. The Public Act.

To the extent of applicability, the provisions in the Public Act that are necessary to further and/or effectuate this article are hereby incorporated and adopted in toto, herein.

(Ord. of 9-25-23)

Sec. 22-138. Severability.

If any section, subsection, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by any decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this article.

(Ord. of 9-25-23)

Sec. 22-139. Repealer.

All ordinances, bylaws, orders, resolutions, or parts thereof, inconsistent herewith are hereby repealed to the extent only of such inconsistency. This repealer shall not be construed to revive any ordinances, bylaws, orders, resolutions, or parts thereof, heretofore repealed.

(Ord. of 9-25-23)

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Chapter 23

NOISE*

Sec. 23-1. Definitions.
Sec. 23-2. Noise level measurement procedures.
Sec. 23-3. Noise levels.
Sec. 23-4. Prohibited noise activities.
Sec. 23-5. Motor and recreational vehicle noise.
Sec. 23-6. Inspections.
Sec. 23-7. Enforcement.
Sec. 23-8. Penalties.

*__Editor's note—__Ord. No. 04-09, adopted Feb. 9, 2009, amended ch. 23, §§ 23-1—23-8 in its entirety to read as herein set out. Former ch. 23, §§ 23-1—23-8, pertained to noise. See the Code Comparative Table for complete derivation.

__Cross references—__Amusements, Ch. 5; animals and fowl, Ch. 6; assemblies and parades, Ch. 7; auctions and auctioneers, Ch. 8; civic center and coliseum authority, Ch. 10; health and sanitation, Ch. 17; motor vehicles and traffic, Ch. 22; nuisances generally, Ch. 24; offenses and miscellaneous provisions, Ch. 25; parks and recreation, Ch. 26; peddlers, itinerant vendors and street vendors, Ch. 27; police, Ch. 29; streets and sidewalks, Ch. 31; vehicles for hire, Ch. 33; zoning regulations, Ch. 35.

__State law reference—__Authority to prevent disturbing noises, G.S. § 7-148(c)(7)(H)(viii).

Sec. 23-1. Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

Ambient noise or *background noise* shall mean noise of a measurable intensity which exists at a point as a result of a combination of many distant sources individually indistinguishable. In statistical terms, it is the level which is exceeded ninety (90) percent of the time (L90) in which the measurement is taken.

Chief of police shall mean the chief of police of the City of Hartford or a duly authorized officer subject to his orders.

Commercial zone shall mean the DT Downtown and MS Main Street zoning districts, as defined in the zoning regulations of the planning and zoning commission. Any use which is nonconforming shall be deemed to be in the zone which corresponds to the actual use.

Construction shall mean any site preparation, assembly, erection, substantial repair, alteration, or similar action, but excluding demolition, for or of public or private rights-of-way, structures, utilities, or similar property.

Construction equipment shall mean any equipment or device operated by fuel or electric power, used in construction or demolition work.

Day shall mean the hours between 7:00 a.m. and 10:00 p.m., Monday through Saturday, and the hours 9:00 a.m. through 10:00 p.m. on Sundays.

Decibel shall mean a logarithmic unit of measure used in measuring magnitudes of sound. The symbol is dB.

Demolition shall mean any dismantling, intentional destruction or removal of structures, utilities, public or private right-of-way surfaces or similar property.

Domestic power equipment shall mean, but not be limited to, power saws, drills, grinders, lawn and garden tools and other domestic power equipment intended for use in residential areas by a homeowner.

Emergency shall mean any occurrence or set of circumstances involving actual or imminent physical trauma or property damage, which demands immediate action.

Emergency vehicle shall mean any motor vehicle authorized by the City of Hartford to have sound warning devices, such as sirens and bells, which can lawfully be used when responding to an emergency.

Emergency work shall mean work made necessary to restore property to a safe condition following an emergency, or work required to protect persons or property from exposure to imminent danger.

Impulse noise shall mean sound of short duration, usually less than one (1) second, with an abrupt onset and rapid decay.

Industrial zone shall mean the CX Commercial-Industrial Mix, and ID Industrial zoning districts, as defined in the zoning regulations of the planning and zoning commission. Any use which is nonconforming shall be deemed to be in the zone which corresponds to the actual use.

Loud amplification device or *similar equipment* shall include, but not be limited to, a radio, television, phonograph, stereo, record player, tape player, cassette player, compact disc player, loud speaker or sound amplifier which is operated in such manner that it creates noise.

Motor vehicle shall be defined as per G.S. § 14-1(47).

Muffler shall mean a device for abating sounds such as escaping gases.

Noise shall mean any sound, the intensity of which exceeds the standards set forth in section 23-3 of this chapter or that is plainly audible at a distance of one hundred (100) feet from its source.

Night shall mean the hours between 10:00 p.m. and 7:00 a.m., Sunday evening through Saturday morning, except, that night shall mean the hours between 10:00 p.m. Saturday and 9:00 a.m. Sunday.

Noise level shall mean the sound pressure level as measured with a sound level meter using the A-weighting network. The level so read is designated dB(A) or dBA.

Person shall mean any individual, firm, partnership, association, syndicate, company, trust, corporation, municipality, agency, or political or administrative subdivision of the state or other legal entity of any kind.

Premises shall mean any building, structure, land, or portion thereof, including all appurtenances, and shall include yards, lots, courts, inner yards, and real properties without buildings or improvements, owned or controlled by a person. The emitter's premises includes contiguous publicly dedicated street and highway rights-of-way, all road rights-of-way and waters of the state.

Property line shall mean that real or imaginary line along the ground surface and its vertical extension which:

(1) Separates real property owned or controlled by any person from contiguous real property owned or controlled by another person; and

(2) Separates real property from the public right-of-way.

Public right-of-way shall mean any street, avenue, boulevard, highway, sidewalk, alley, park, waterway, railroad or similar place which is owned or controlled by a governmental entity.

Recreational vehicle shall mean any internal combustion engine powered vehicle which is being used for recreational purposes.

Residential zone shall mean the N Neighborhood, NX Neighborhood Mix, and MX Multi-Use Mix zoning districts, as defined in the zoning regulations of the planning and zoning commission. Any use which is nonconforming shall be deemed to be in the zone which corresponds to the actual use.

Sound shall mean a transmission of energy through solid, liquid, or gaseous media in the form of vibrations which constitute alterations in pressure or position of the particles in the medium and which, in air, evoke physiological sensations, including, but not limited to, an auditory response when impinging on the ear.

Sound level meter shall mean an instrument used to take sound level measurements and which should conform, as a minimum, to the operational specifications of the American National Standards Institute for Sound Level Meters S1.4—1971 (Type S2A).

Sound pressure level shall mean twenty (20) times the logarithm to the base ten (10) of the ratio of the pressure of a sound to the reference pressure of twenty (20) micronewtons per square meter (20 × 10 - 6 Newtons/meter 2), and is expressed in decibels (dB).
(Ord. No. 04-09, 2-9-09; Ord. No. 003-20, 6-22-20)

Sec. 23-2. Noise level measurement procedures.

For the purpose of determining noise levels as set forth in this chapter, the following guidelines shall be applicable:

(1) Where and when a sound level meter is used:

a. All personnel conducting sound measurements shall be trained, including but not limited to training in the current techniques and principles of sound-measuring equipment and instrumentation;

b. Instruments used to determine sound level measurements shall conform to the sound level meters, as defined by this chapter;

c. The general steps listed below shall be followed when preparing to take sound level measurements:

1. The instrument manufacturer's specific instructions for the preparation and use of the instrument shall be followed;

2. The sound level meter shall be calibrated before and after each set of measurements;

3. When measurements are taken out-of-doors, a wind screen shall be placed over the microphone of the sound level meter, as per the manufacturer's instructions;
4. The sound level meter shall be placed at an angle to the sound source, as specified by the manufacturer's instructions, and

at least four (4) feet above the ground. It shall be so placed as not to be interfered with by individuals conducting the measurements;

5. Measurements shall be taken at a point that is located about one (1) foot beyond the boundary of the emitter's premises within the receptor's premises. The emitter's premises includes his/her individual unit of land or group of contiguous parcels under the same ownership as indicated by public land records.

(2) In the absence of a sound level meter, noise will be plainly audible when noise can be heard at a distance of one hundred (100) feet from its source, by a person of normal hearing.

(Ord. No. 04-09, 2-9-09)

Sec. 23-3. Noise levels.

(a) It shall be unlawful for any person to emit or cause to be emitted any noise beyond the boundaries of his/her premises in excess of the noise levels established in these regulations.

(b) Noise level standards:

(1) No person in a residential zone shall emit noise beyond the boundaries of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Emitter's zone:

Residential

Receptor's zone—Maximum level:

Industrial	62 dBA
Commercial	55 dBA
Residential/day	55 dBA
Residential/night.	45 dBA

(2) No person in a commercial zone shall emit noise beyond the boundaries of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Emitter's zone:

Commercial

Receptor's zone—Maximum level:

Industrial	62 dBA
Commercial	62 dBA
Residential/day	55 dBA
Residential/night.	45 dBA

(3) No person in an industrial zone shall emit noise beyond the boundary of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Emitter's zone:

Industrial

Receptor's zone—Maximum level:

Industrial	70 dBA
Commercial	66 dBA
Residential/day	61 dBA
Residential/night.	51 dBA

(4) Any use which is nonconforming shall be deemed to be in the zone which corresponds to the actual use.

(c) In the absence of a sound level meter, any noise plainly audible pursuant to subsection 23-2(b) constitutes prima facie evidence of a violation of this section.

(d) High background noise levels and impulse noise:

(1) In those individual cases where the background noise levels caused by sources not subject to these regulations exceed the standards contained herein, a source shall be considered to cause excessive noise if the noise emitted by such source exceeds the background noise levels by five (5) dBA, provided that no source subject to the provisions of this chapter shall emit noise in excess of eighty (80) dBA at any time, and provided that this section, does not decrease the permissible levels of other sections of this chapter.

(2) No person shall cause or allow the emission of impulse noise in excess of eighty (80) dB peak sound pressure level during the nighttime to any residential noise zone.

(3) No person shall cause or allow the emission of impulse noise in excess of one hundred (100) dB peak sound pressure level at any time to any zone.

(e) Exclusions: These levels shall not apply to noise emitted by or related to:

(1) Natural phenomena;

(2) Any bell or chime from any building clock, school, or church;

(3) Any siren, whistle, or bell lawfully used by emergency vehicles or any other alarm systems used in an emergency situation; provided, however, that burglar alarms on motor vehicles not terminating within ten (10) minutes or on buildings not terminating within thirty (30) minutes after being activated shall be unlawful. Notwithstanding the foregoing, repetitive activation of any alarm system due to malfunction or lack of proper maintenance shall not be excluded;

(4) Warning devices required by OSHA or other state or federal safety regulations;

(5) Farming equipment or farming activity.

(f) Exemptions: The following shall be exempt from these regulations, subject to special conditions as spelled out:

(1) Noise generated by any construction equipment which is operated between the hours of 7:00 a.m. and 6:00 p.m. on weekdays and Saturdays, provided the operation of the same on Saturday has been approved by the director of licenses and inspections or the director of public works, which approval shall be applied for at least seven (7) days prior to the date for which approval is sought, and which approval shall be granted upon payment by the person in advance for the actual cost of such inspection services as may be required during such hours in accordance with rules and regulations adopted by the director of licenses and inspections or the director of public works in accordance with the provisions of sections 2-1 and 2-2; provided that the director of licenses and inspections or the director of public works or their respective designees, may, for good cause and upon reasonable condition(s) shown, upon application, made no less than seven (7) days prior to the proposed construction activity, and upon payment for all the actual costs of application and inspection services, allow construction work operations within the city without limitation as to days or hours of operation.

(2) Noise created as a result of, or relating to an emergency;

(3) Noise from domestic power equipment such as, but not limited to, power saws, sanders, grinders, lawn and garden tools or similar devices operated between the hours of 7:00 a.m. and 9:00 p.m., Monday through Saturday, and between the hours of 9:00 a.m. and 8:00 p.m. on Sundays, provided that noise discharge from exhaust is adequately muffled;

(4) Noise from snow removal equipment, provided equipment is maintained in good repair and exhaust is adequately muffled;

(5) Noise from demolition work conducted between the hours of 7:00 a.m. and 6:00 p.m., provided that when considered emergency work, demolition shall be exempted at all times from the noise levels set in this regulation;

(6) Noise created by any aircraft flight operations that are specifically preempted by the Federal Aviation Administration;

(7) Noise created by any religious or recreational activities which are permitted by law and for which a lease, license or permit has been granted by the city, including but not limited to outdoor evangelistic meetings and preaching or parades, sporting events, concerts and firework displays;

(8) Noise created by blasting other than that conducted in connection with construction activities shall be exempted, provided that the blasting is conducted between 8:00 a.m. and 5:00 p.m., local time, at specified hours previously announced to the local public, or provided that a permit for such blasting has been obtained from local authorities;

(9) Noise created by aircraft, or aircraft propulsion components designed for or utilized in the development of aircraft, under test conditions;

(10) Noise created by products undergoing tests, where one (1) of the primary purposes of the test is evaluation of product noise characteristics and where practical noise control measures have been taken;

(11) Noise generated by transmission facilities, distribution facilities and substations of public utilities providing electrical power, telephone, cable television or other similar services and located on property which is not owned by the public utility and which may or may not be within utility easements.

(Ord. No. 04-09, 2-9-09)

Sec. 23-4. Prohibited noise activities.

The following activities are prohibited:

(1) *Vehicle horns.* No person shall at any time sound any horn or other audible signal device of a motor vehicle, unless it is necessary as a warning to prevent or avoid a traffic accident;

(2) *Advertising.* No person shall at anytime use any drum, bell or other instrument or device for the purpose of attracting attention to any performance, show or sale, or to the display or advertisement of merchandise.

(Ord. No. 04-09, 2-9-09)

Sec. 23-5. Motor and recreational vehicle noise.

(a) All motor and recreational vehicles operated within the limits of the City of Hartford shall be subject to the noise standards and decibel levels as found in G.S. Title 14, § 14-80a, which states in pertinent part that:

(1) No person shall operate a vehicle or combination of vehicles, nor shall the owner of any vehicle allow the vehicle to be operated, at any time or under any condition of grade, surface, speed, load, acceleration, deceleration or weather condition in such a manner as to exceed the decibel levels established under subsection (c) of this section. This subsection applies to the total noise generated by a vehicle and shall not be construed as limiting or precluding the enforcement of any other motor vehicle noise provisions of this title.

(2) No person shall sell or offer for sale a new vehicle which produces a maximum decibel level which exceeds the decibel levels established under subsection (c) of this section.

(3) The commissioner of motor vehicles shall, with the advice of the commissioner of environmental protection, adopt regulations in accordance with the provisions of chapter 54 establishing the maximum decibel levels permissible for motor vehicles, which shall not exceed the maximum decibel levels established for motor vehicles by federal law or regulation. The commissioner of motor vehicles shall establish the procedure for checking maximum decibel levels. The decibel level shall be measured fifty (50) feet from the centerline of the vehicle. The commissioner of motor vehicles may provide for measuring at distances closer than fifty (50) feet from the centerline of the vehicle. In such a case, the measuring devices shall be calibrated to provide for measurements equivalent to the noise limit established by this section measured at fifty (50) feet.

(4) Violation of the provisions of this section shall be an infraction.

(b) No motor or recreational vehicles shall emit noise from a loud amplification device or similar equipment plainly audible at a distance of one hundred (100) feet from such vehicles by a person of normal hearing, except that loud speakers or public address systems are allowed provided prior to use thereof a permit has been obtained from the Hartford Police Department.
(Ord. No. 04-09, 2-9-09)

Sec. 23-6. Inspections.

(a) For the purpose of determining compliance with the provisions of this chapter, the chief of police or his designated representative is hereby authorized to make inspections of all noise sources and to take measurements and make tests, whenever necessary, to determine the quantity and character of noise. In the event that any person refuses or restricts entry and free access to any part of a premises, or refuses inspection, testing or noise measurement of any activity, device, facility, or process where inspection is sought, the chief of police or his designated representative may seek from the appropriate court a warrant, without interference, restriction or obstruction, at a reasonable time, for the purpose of inspecting, testing or measuring noise.

(b) It shall be unlawful for any person to refuse to allow or permit the chief of police or his designated representative free access to any premises, when the chief of police or his designated representative is acting in compliance with a warrant for inspection and order issued by the appropriate court.

(c) It shall be unlawful for any person to violate the provisions of any warrant or court order requiring inspection, testing or measurement of noise sources.

(d) No person shall hinder, obstruct, delay, resist, prevent in any way, interfere or attempt to interfere with any authorized person while in the performance of his/her duties under this chapter.
(Ord. No. 04-09, 2-9-09)

Sec. 23-7. Enforcement.

(a) Any person aggrieved by any act constituting a violation of this chapter may complain to the police department who shall enforce this chapter.

(b) The police are also authorized to enforce this chapter without any such complaint.
(Ord. No. 04-09, 2-9-09)

Sec. 23-8. Penalties.

A person who violates any provision of this chapter shall be summoned or brought to community court pursuant to G.S. § 51-181c. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this chapter.
(Ord. No. 04-09, 2-9-09)

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Chapter 24

NUISANCES GENERALLY*

Sec. 24-1. Defined.
Sec. 24-2. Committing unlawful; aiding and abetting.
Sec. 24-3. Powers and duties of director of health.
Sec. 24-4. Police to enforce orders of director of health.
Sec. 24-5. Service of order to abate or remove.
Sec. 24-6. Request for stay of execution or modification; hearing.
Sec. 24-7. Noncompliance with orders.
Sec. 24-8. Abatement by city; collection of expense.
Sec. 24-9. Reserved.
Sec. 24-10. Removal and disposition of nuisance vehicles.

*__Cross references—__General penalty for code violations, § 1-4; public emergencies, § 2-576 et seq.; animals and fowl, Ch. 6; assemblies and parades, Ch. 7; fire protection and prevention, Ch. 13; garbage, refuse and weeds, Ch. 15; gasoline dealers, Ch. 16; health and sanitation, Ch. 17; junk collectors and ragpickers, Ch. 19; noise, Ch. 23; offenses and miscellaneous provisions, Ch. 25; peddlers, itinerant vendors and street vendors, Ch. 27.

__State law reference—__Authority to define, prohibit, abate nuisances, G.S. § 7-148(c)(7)(E).

Sec. 24-1. Defined.

Every condition or activity in the city which is offensive or prejudicial to the health and welfare of the residents of the city shall be deemed to be a nuisance. Where an activity or condition is not expressly declared to be a nuisance in this Code or any ordinance of the city, the director of health shall have the power and authority to determine that such activity or condition constitutes a nuisance as defined in this section.
(Code 1977, § 23-1)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 24-2. Committing unlawful; aiding and abetting.

It shall be unlawful for any person to commit, or aid, advise, abet or encourage the commission of any act declared to be a nuisance or prohibited by this Code or any ordinance relating to the health and welfare of the city.
(Code 1977, § 23-2)

Sec. 24-3. Powers and duties of director of health.

It shall be the duty of the director of health to cause all nuisances and activities and conditions prohibited by this Code or any ordinance relating to the health and welfare of the city to be removed or abated. The director and officers and employees of the department of health designated by him may enter for the purpose of inspection all places in which they deem it likely that nuisances or activities or conditions prejudicial to health exists. The director shall order the person owning or occupying the premises on which any such nuisance, activity or condition is found to abate or remove the same in accordance with the terms of such order within a time specified therein. All such orders shall be in writing.
(Code 1977, § 23-3)

Sec. 24-4. Police to enforce orders of director of health.

It shall be the duty of the members of the department of police to execute any order of the director of health issued under this chapter when called upon by him to do so. The director of health may designate the director of licenses and inspections to enforce this chapter in his name.
(Code 1977, § 23-4; Ord. No. 18-84, 4-23-84)

Sec. 24-5. Service of order to abate or remove.

The director of health shall cause any order for the abatement or removal of a nuisance to be served on the owner of the premises on which such nuisance exists, or his agent, or on the occupant or tenant of such premises, or on such of them as can be found in the city. The order shall require that the nuisance be abated or removed from the premises within forty-eight (48) hours from the date of receipt of such order.
(Code 1977, § 23-5; Ord. No. 32-91, 6-10-91)

Sec. 24-6. Request for stay of execution or modification; hearing.

If any person served with an order from the director of health as provided in this chapter, before the date specified in such order for compliance therewith, applies to the director to have its execution stayed or terms modified, it shall be the duty of the director to suspend such order temporarily and to allow such person a reasonable and fair opportunity to be heard and to present argument and proof against the execution of the order or in favor of its modification.
(Code 1977, § 23-6)

Sec. 24-7. Noncompliance with orders.

It shall be unlawful for any person to fail or neglect to obey and comply with any order given by the director of health under the provisions of this chapter. Pursuant to P.A. 97-199, the Hartford Police Department shall summon or bring before the community court any person who fails or neglects to obey any order given by the director of health pursuant to the provisions of this chapter. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine of up to ninety dollars ($90.00) or a jail sentence up

to twenty-five (25) days to any person who has failed to comply with an order given by the director of health.
(Code 1977, § 23-7; Ord. No. 29-97, 11-24-97)

Sec. 24-8. Abatement by city; collection of expense.

If any person upon whom an order to abate or remove a nuisance is served fails or neglects to comply with the terms of such order in the manner and time specified by the director of health, the director may cause such nuisance to be removed or abated and the expense thereof shall be collected by the corporation counsel in an action in the name of the city.
(Code 1977, § 23-8)

Sec. 24-9. Reserved.

Editor's note—Ord. No. 15-19, adopted Oct. 28, 2019, repealed § 24-9, which pertained to state tenement house act adopted and derived from Code 1977, § 23-9.

Sec. 24-10. Removal and disposition of nuisance vehicles.

Declaration of purpose:

This code section is adopted in order to combat the public health threat presented by nuisance vehicles and the real, monetary and public health costs associated with them, which are incurred by the City of Hartford and its residents. Such vehicles are a nuisance to the public health, safety and welfare and pose an offensive blight which burdens the community and its residents.

(a) Definition: *Nuisance vehicle* is a motor-vehicle that creates a condition that is offensive or prejudicial to the health and welfare of the residents of the city and includes one (1) or more of the following conditions:

1. Harboring of rodents or their nests;
2. Overgrown vegetation:
3. Broken or missing windows:
4. Trash and debris:
5. Conditions otherwise determined by the Director of Health and Human Services to be detrimental or offensive to the health of the public.

(b) It shall be unlawful for any person to maintain a nuisance vehicle on private property or on any public highway or right-of-way except that this section shall not apply with regard to a vehicle in an enclosed building a vehicle on the premises of a business-enterprise operated in a lawful place and manner when necessary to the operation of such business enterprise or a vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the City.

(c) Further excepted from the application of this section is any motor vehicle which is in the active process of being restored to operable condition subject to the following criteria:

(1) Only one (1) such vehicle shall be permitted at any one (1) time on the property in question:

(2) Automobile parts used in the restoration must be stored in the vehicle or in a structure;

(3) Such restoration work is not to take place in the required yard areas as set forth in the zoning regulations;

(4) One (1) vehicle in addition to the vehicle being restored which is being used for parts may be maintained on the property for no more than thirty (30) days.

(d) The Director of Health and Human Services or his/her designee shall issue a notice of violation to the owner of a nuisance vehicle, or in the case where ownership is undeterminable, to the owner of the property on which the nuisance vehicle is located. The notice of violation shall allow the owner ten (10) days from the receipt of the notice to remove and/or abate the nuisance. The notice of violation shall be mailed certified mail, return receipt requested to the address of the

owner of the nuisance vehicle and to the owner of the property at which the nuisance vehicle is located.

(e) Ten (10) days after the return receipt of the notice of violation is received, the Director of Health and Human Services or his/her designee shall conduct a re-inspection in order to determine if the nuisance vehicle remains. If the nuisance vehicle remains, the Director of Health and Human Services or his/her designee shall affix a "violation sticker" upon the nuisance vehicle. The "violation sticker" shall serve as further notice to the owner. At this time the Director of Health and Human Services or his/her designee shall additionally issue a ninety-nine-dollar citation to the owner of the vehicle where applicable or owner of the property.

(f) If the violation remains after the re-inspection, the Director of Health and Human Services or his/her designee shall issue an order to the owner of any nuisance vehicle to remove and dispose of the vehicle within forty-eight (48) hours. If the nuisance vehicle is located on private property, in which the owner of the vehicle does not reside the Director of Health and Human Services or his/her designee shall order the owner of the vehicle to remove and dispose of the same. If the vehicle is abandoned and the owner is not readily identifiable, then the Director of Health and Human Services or his/her designee shall order the owner of the premises to remove and dispose of the same.

(g) Any person who receives an order from the Director of Health and Human Services or his/her designee pertaining to the removal and disposal of a nuisance vehicle shall have forty-eight (48) hours to notify the Director of Health and Human Services or his/her designee of their intent to appeal such an order in writing. Requests for appeal shall be made to the Citation Hearing Office within ten (10) days of receipt of the order. Failure of any person to notify the Director of Health and Human Services or his/her designee of an intent to appeal in writing, within forty-eight (48) hours shall result in the Director of Health and Human Services or his/her designee proceeding with an abatement action to remove and dispose of the nuisance vehicle.

(h) The Director of Health and Human Services or his/her designee shall refer orders to remove nuisance vehicles to the City of Hartford Police Department. The City of Hartford Police Department shall remove the nuisance vehicles pursuant to G.S. § 14-150.

(i) The owner of a nuisance vehicle shall be responsible for any towing, impounding costs, fees. and fines associated with any action taken by the City pursuant to this chapter. The City shall have the right to recover any costs and expenses incurred by it for any tow or remediation effort that it undertakes pursuant to this chapter.

(Ord. No. 08-12, 9-10-12)

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Chapter 25

OFFENSES—MISCELLANEOUS*

Sec. 25-1. Penalty.
Sec. 25-2. Public indecency.
Sec. 25-3. Blockbusting.
Sec. 25-4. Curfew for minors.
Sec. 25-5. Depositing harmful substances in streets.
Sec. 25-6. Iceboxes and refrigerators accessible to children, abandoning.
Sec. 25-7. Injuries to public property.
Sec. 25-8. Loitering.
Sec. 25-9. Selling on school property.
Sec. 25-10. Spitting in public.
Sec. 25-11. Streetlamps; extinguishing or damaging.
Sec. 25-12. Strikebreakers.
Sec. 25-13. Watercourses; obstruction or diversion.
Sec. 25-14. Alarm systems.
Sec. 25-15. Public order; pedestrian and vehicular traffic.
Sec. 25-16. Prohibiting the sale of lead, brass and copper pipe and tubing.
Sec. 25-17. Graffiti.
Sec. 25-18. Facsimiles of firearms.
Sec. 25-19. Waste associated with natural gas and oil extraction prohibited.

*__Cross references—__General penalty for code violations, § 1-4; public emergencies, § 2-576 et seq.; alcoholic beverages, Ch. 4; animals and fowl, Ch. 6; motor vehicles and traffic, Ch. 22; noise, Ch. 23; nuisances generally, Ch. 24; police, Ch. 29.

__State law reference—__Public indecency, G.S. § 53a-186.

Sec. 25-1. Penalty.

A person who violates any provision of this chapter, with the exception of a person who violates section 25-14, shall be summoned or brought to Community Court pursuant to P.A. 97-199. A person who is summoned or brought before the Community Court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The Superior Court Judge assigned to the Community Court may impose a penalty of community service and a fine up to ninety dollars ($90.00) upon any person who is convicted of violating any provision of this chapter.
(Ord. No. 104-89, 10-10-89; Ord. No. 30-97, 11-24-97; Ord. No. 04-10, 3-22-10)

Sec. 25-2. Public indecency.

(a) *Public place*, for the purposes of this section, means any place where the conduct may reasonably be expected to be viewed by others.

(b) A person who performs any of the following acts in a public place is guilty of public indecency:

(1) An act of sexual intercourse as defined in subdivision (2) of G.S. § 53a-65;

(2) A lewd exposure of the body with intent to arouse or to satisfy the sexual desire of the person; or

(3) A lewd fondling or caress of the body of another person.

(Code 1977, § 24-3)

Sec. 25-3. Blockbusting.

It shall be unlawful for any person to:

(1) Induce directly or indirectly or attempt to induce directly or indirectly the sale, rental or listing of sale or rental of real property by representing that a change has occurred or will or may occur with respect to the racial, religious or ethnic composition of the block, neighborhood or area in which the property is located;

(2) Induce directly or indirectly or attempt to induce directly or indirectly the sale, rental or listing for sale or rental of real property by representing that the presence or anticipated presence of persons of any particular race, religion or national origin in the area will or may result in:

a. The lowering of property values;

b. A change in the racial, religious or ethnic composition of the block, neighborhood or area in which the property is located;

c. An increase in criminal or antisocial behavior in the area; or

d. A decline in the quality of the schools serving the area;

(3) Make any representation, as set forth in paragraphs (1) and (2), concerning the listing for sale or rental or the anticipated listing for sale or rental or the sale or rental of any real property in the area for the purpose of inducing or attempting to induce the sale, rental or listing for sale or rental of real property;

(4) Make any representation to any prospective purchaser that any block, neighborhood or area has, will or might undergo a change with respect to the religious, racial or nationality composition of the block, neighborhood or area for the purpose of discouraging the purchase of property in a particular area;

(5) Refer to race, color, creed or national origin in any advertisement offering property for sale or rental; or

(6) Advertise for sale or rental property which is nonexistent or which is not actually for sale or rental.

(Code 1977, § 24-4.1; Ord. No. 3-77, 3-17-77; Ord. No. 5-81, 2-23-81)

Cross references—Commission on human relations, § 2-156 et seq.; affirmative action plan, § 2-626 et seq.; housing, Ch. 18.

Sec. 25-4. Curfew for minors.

It shall be unlawful for any child under the age of eighteen (18) years to loiter on the streets or in any theater or other public place in the City after 9:00 p.m., unless such child is accompanied by his/her parents or guardian, or other adult

person into whose care and custody such child has been committed by his/her parent or guardian.
(Code 1977, § 24-5; Ord. No. 57-93, 9-16-93)

Sec. 25-5. Depositing harmful substances in streets.

It shall be unlawful for any person to place or cause to be placed in any street, sidewalk, driveway or yard, whether public or private, any nails, spikes, screws, glass or other similar substances, with intent to leave the same therein.
(Code 1977, § 24-6)

Cross reference—Streets and sidewalks generally, Ch. 31.

Sec. 25-6. Iceboxes and refrigerators accessible to children, abandoning.

It shall be unlawful for any person to leave or allow to be left outside of any building or dwelling, or in a common area of any building, or within any unoccupied building or structure, or in a place accessible to children, any abandoned, unattended or discarded icebox, refrigerator or any other appliance or container of any kind which has an airtight door or lid, without first removing such door or lid from said icebox, refrigerator, appliance or container.
(Code 1977, § 24-9; Ord. No. 32-84, 9-24-84)

State law reference—Similar provisions, G.S. § 53-215.

Sec. 25-7. Injuries to public property.

It shall be unlawful for any person wantonly to deface or injure any public building or enclosure thereof or to injure any tree, shrubbery, grass or other ornamental planting or any fence, rail, chain or post in any street or public place in the City.
(Code 1977, § 24-10)

Cross reference—Defacing, opening or injuring parking meters, § 22-69.

State law reference—Criminal mischief generally, G.S. § 53a-115 et seq.

Sec. 25-8. Loitering.

(a) As used in this section, "to loiter" means standing around, moving slowly about, spending time idly, sauntering, delaying, lingering or lagging behind.

(b) It shall be unlawful for any person or group of persons to loiter on the streets, sidewalks, crosswalks, walks in public parks or any other public area so as to impede and interfere with the use of the street, sidewalk, crosswalk, walk in a public park or other public area by any other person. Any police officer may order any person violating this subsection to cease and desist from interfering with the right of any other person to use the streets, sidewalks, crosswalks, walks in public parks or any other public area.

(c) It shall be unlawful for any person or group of persons to loiter on the grounds or within any building of a school within the City so as to in any way impede, interfere with or interrupt the operation of any school or class within such school. Any person in charge of such school or his designee may order any person violating this subsection to immediately quit such premises.

(d) It shall be unlawful for any person to loiter on private property within the City if ordered to quit the private property by the owner thereof or his agent.
(Code 1977, § 24-13)

State law reference—Authority to prohibit loitering, G.S. § 7-148(c)(7)(F)(i), (ii).

Sec. 25-9. Selling on school property.

It shall be unlawful for any person to sell or offer for sale any item of any nature on school grounds or within any school building in the City without the prior permission and approval of the person in charge of such school.
(Code 1977, § 24-14)

State law reference—Loitering about school grounds, G.S. § 53a-185.

Sec. 25-10. Spitting in public.

It shall be unlawful for any person to spit on any sidewalk or park walk or in any railway station, public building, steamboat, railway car or licensed vehicle, unless into a spittoon or other proper receptacle.
(Code 1977, § 24-16)

Sec. 25-11. Streetlamps; extinguishing or damaging.

It shall be unlawful for any person to extinguish the light in any streetlamp or to damage any such lamp.
(Code 1977, § 24-17)

Sec. 25-12. Strikebreakers.

(a) As used in this section, "professional strikebreaker" means any person who has been employed anywhere more than once in place of employees involved in strikes or lockouts.

(b) No person shall recruit, procure, supply or refer any professional strikebreaker for employment in place of an employee involved in a strike or lockout in which such person is not directly interested. No public service or motorbus company, or officer or agent thereof, shall employ or engage any professional strikebreaker for employment in place of an employee involved in a strike or lockout when the employment or act of such strikebreaker causes or threatens to cause any civil disturbance that may result in physical injury to persons or destruction of property. No professional strikebreaker shall take or offer to take the place in employment of employees involved in a strike or lockout.
(Code 1977, § 24-18)

State law reference—Professional strikebreakers, G.S. § 31-48a.

Sec. 25-13. Watercourses; obstruction or diversion.

It shall be unlawful and a nuisance for any person to obstruct or alter the course of any watercourse which flows through the City.
(Code 1977, § 24-19)

State law reference—Obstructing watercourses, G.S. § 19a-336.

Sec. 25-14. Alarm systems.

(a) *Purpose and intent*. The purpose and intent of this section is to establish uniform standards of control and regulations for the installation, use and maintenance of burglary, hold-up or fire alarm units and systems within the City which require the dispatching or response of the police or fire personnel.

(b) *Scope*. The provisions of this section shall apply to alarm owners and operators who utilize alarm units to protect real property located within the boundaries of the City and property owners who own their own alarm systems and have direct connections from the building to the public safety communication center, except that nothing contained herein shall be construed to require the verification of fire alarms prior to the dispatch of fire or emergency medical personnel, nor shall anything contained herein be construed to require verification of a "hold up" or panic alarm prior to dispatch of police personnel.

(c) *Definitions*. For the purpose of this section, the following definitions shall apply:

Alarm administrator means the individual designated by the mayor to issue permits and enforce provisions of this section.

Alarm condition means a dangerous or unwanted condition sensed by an alarm system such as intrusion, fire or hold-up and which requires a city emergency service response from police or fire personnel.

Alarm dispatch request means a notification to the police by the alarm monitoring company that an alarm, either manual or automatic, has been activated at a particular alarm site.

Alarm installation company means a person or entity in the business of selling, providing, maintaining, servicing, repairing, altering, replacing, moving or installing an alarm system in an alarm site.

Alarm monitoring company means a business which contracts with subscribers or alarm installation companies to monitor alarm system signals which are transmitted to, recorded in and monitored from a central station and notifies the proper authorities.

Alarm operator means an individual, company or corporation that is responsible for activation or deactivation of alarm unit signals, but does not monitor alarm unit signals.

Alarm owner and/or alarm user means an individual, company or corporation that is the owner, operator or user of an alarm system or the permittee with the City.

Alarm permit means authorization granted by the alarm administrator to an alarm user to operate an alarm system.

Alarm site means a single premises or location served by an alarm system, or systems. Each location, if served by a separate alarm system in a multiunit building or complex, shall be considered a separate alarm site.

Alarm system means any mechanism, equipment, or device which is designated to detect an unauthorized entry into any building or onto any property, to direct attention to a robbery, burglary, or other emergency in progress, or to signal the above occurrences either by a local or audible alarm or by transmission of a signal to a remote location.

City means the City of Hartford, Connecticut or its agent.

Enhanced Call Confirmation (ECC) means an attempt by the alarm monitoring company to contact the alarm site and/or alarm user by telephone and/or other means, whether or not actual contact with a person is made, to determine whether an alarm signal is valid before requesting law enforcement response. A second call shall be made to an alternate number provided by the alarm user if the first attempt fails, EXCEPT in case of a fire, panic or robbery-in-progress alarm or in cases where a crime-in-progress has been verified.

False alarm means any alarm signal which causes an emergency response to the location of the alarm which is caused by mistake or misuse or malfunction, or unintentional activation caused by flaw or defect in design, installation, maintenance or equipment of the alarm system. Specifically excluded from this definition are acts of God or nature such as wind and rain storms, earthquakes, tornadoes, hurricanes, electrical storms or power failures.

Local alarm system means any alarm system, which is not monitored, that annunciates an alarm only at the alarm site.

Priority Response means that the agency having public safety jurisdiction to respond to verified alarms has the autonomy and authority to prioritize the response to verified alarm calls.

SIA Control Panel Standard CP-01 means the ANSI — American National Standard Institute approved Security Industry Association — SIA CP-01 Control Panel Standard, as may be updated from time to time, that details design features to reduce the incidence of false alarms. Control panels that comply with this standard will be marked to state: "Design evaluated in accordance with SIA CP-01 Control Panel Standard Features for False Alarm Reduction".

Verified Alarm means that an electronic security system event in which a trained central station operator utilizing a standardized protocol has determined a human presence using audio technology, video technology and/or some other method or technology, and has determined the high probability that a criminal offense is in progress.

(d) *General provisions*.

(1) *Registration permit—Existing alarm systems*. Within ninety (90) days of the effective date of this section, any alarm owner or alarm operator must apply for an alarm permit to operate an alarm system in the City. The alarm owner or alarm operator shall apply for such alarm permit to the City's alarm administrator. Every alarm owner or alarm operator shall be responsible for registering and obtaining an alarm permit from the alarm administrator to operate an alarm system. All such alarm permits shall expire twelve (12) months after being issued. The application should be on a form provided by the alarm administrator. A permanent registration number shall be assigned to each alarm system and the cost of registration shall be twenty-five dollars ($25.00).

An alarm installation company may purchase blocks of registration numbers on behalf of its alarm owners from the City and assign them to the alarm systems in existence. An alarm installation

company may submit completed alarm registration forms to the alarm administrator for the alarm owner.

It shall be the responsibility of the alarm monitoring company or the alarm owner or alarm operator to notify in writing the alarm administrator of any changes in the information contained in the current registered permit on record within ten (10) working days of any changes. The fine for not registering the alarm system shall be ninety-nine dollars ($99.00).

(2) *Registration permit—New alarm system installations*. After the effective date of this section, applications for installation of new alarm systems must be obtained prior to the installation of an alarm system as defined in this section. The alarm owner or alarm operator shall apply for such alarm permit to the City's alarm administrator. Every alarm owner or alarm operator shall be responsible for registering and obtaining an alarm permit from the alarm administrator to operate an alarm system. All such alarm permits shall expire twelve (12) months after being issued. The application shall be on a form provided by the alarm administrator. A permanent registration number shall be assigned to each alarm system and the cost of the registration shall be twenty-five dollars ($25.00). An alarm installation company can purchase blocks of registration numbers on behalf of their alarm owners from the City and assign them to the alarm systems being installed. An alarm installation company may submit completed alarm registration forms to the alarm administrator for the alarm owner.

It shall be the responsibility of the alarm monitoring company or the alarm owner or alarm operator to notify in writing the alarm administrator of any changes in the information contained in the current registered permit on record within ten (10) working days of any changes. The fine for not registering the alarm system shall be ninety-nine dollars ($99.00). In addition to applying for an alarm permit to operate an alarm system, the alarm installation company must also obtain an electrical permit from the City. The electrical permit number shall be listed in the appropriate space on the alarm permit registration form.

(e) *Unacceptable alarm systems*. Except as provided for in subsection "o" of this section, no new alarm system may be installed in the City which is directly connected to the public safety dispatch center via common carrier lines or data circuits. No automated voice systems or devices shall be operated within the City for the purpose of obtaining a police response.

(f) *Direct connected fire systems*. Within ninety (90) days of the effective date of this section, any property owner who has a direct fire alarm box connection to the fire department shall pay an annual service fee of two hundred dollars ($200.00) to the City to cover maintenance of fire alarm circuits to that location and any resetting or interior alarm work done by the City. The annual service fee will be renewable on January 1 of any given year and shall not be prorated.

(g) *Monitoring company protection*. Any alarm monitoring company shall be responsible for the proper and reasonable functioning of all alarm systems located on or within their property.

(h) *Alarm dispatch requests*. Subject to (b) above concerning fire or emergency medical or hold up or panic alarms, an alarm dispatch request shall not be made to the public safety dispatch center until an attempt to verify the alarm condition has been completed, which will assist the public safety dispatch center in evaluating and conducting a priority response. The following information which is to be included in the alarm permit application is to be provided to the City when communicating an alarm dispatch request by an alarm monitoring company:

(1) Business name of alarm monitoring company;

(2) Address of alarm site;

(3) Nature of location (type of building);

(4) Nature of call/type of alarm;

(5) Call back number;

(6) Any unusual or dangerous circumstances at alarmed premises;

(7) Other responders from the alarm monitoring company or alarmed premises in question;

(8) Permit number of alarmed premises;

(9) Nearest cross street;

(10) Identity of two (2) other keyholders who will respond within twenty (20) minutes and who have authority to reset the alarm and to secure the premises;

(11) Identification of any other responders or occupants to or at the alarm site; and

(12) The results of attempted enhanced call confirmation calls to the alarm owner or his agent.

(i) *False alarm, fines*.

(1) Commencing ninety (90) days after the effective date of this section, an alarm owner or alarm operator shall be subject to fines, warnings or revocation of an alarm permit depending on the number of false alarm dispatches emitted from an alarm system within a twelve-month period based upon the following schedule:

Number of Action Taken-Fines:
False Alarm Fee Schedule:

Dispatches:	**Fees**
1st False Alarm = On site written notice and warning letter #1 Assessed	No Fee
2nd False Alarm = On site written notice and warning letter #2 Assessed	No Fee
3rd False Alarm = On site written notice	$50.00
4th False Alarm = On site written notice and warning letter	$100.00
5th False Alarm = On site written notice and revocation of permit	$125.00

(2) In addition, any operator of a nonpermitted alarm system (whether revoked or never acquired) will be subject to a citation and assessment of one hundred-dollar ($100.00) fine for each false alarm dispatch, in addition to any other fines. The alarm administrator may waive this additional fine for an alarm system if the alarm owner upgrades the system to incorporate a CP — 01 compliant control panel or some other electronic means of verification.

(3) Alarm dispatch requests, caused by actual criminal offense or which evidence a criminal attempt shall not be counted as false alarm dispatches.

(j) *Appeal from fines*. An alarm owner or alarm operator may appeal assessment of a fine to a hearing officer as designated in section 1-5 of the Code, by filing a written request for hearing setting forth the reasons for the appeal within ten (10) days after receipt of the assessment of the fine. The filing of a request for an appeal hearing with the hearing officer stays the assessment of the fine until the hearing officer makes a final decision.

(k) *Revocation of alarm permit*.

(1) In addition to revocation allowed pursuant to section (i) above the alarm administrator shall revoke an alarm permit if it is determined that:

a. There is a false statement of a material matter in the application for an alarm permit; or

b. The alarm permit holder has failed to make payment of a fine assessed under section (i)(1) within thirty (30) days of assessment of the fine or within thirty (30) days of a final decision by a hearing officer.

(2) Unless there is separate indication that there is a crime in progress, the public safety dispatch center may refuse police response to an alarm dispatch request at an alarm site for which the alarm permit is revoked.

(3) If the alarm permit is reinstated pursuant to section (m)(1), the alarm administrator may revoke the alarm permit if it is determined that three (3) subsequent false alarm dispatches occur within sixty (60) days after the reinstatement date.

(l) *Appeal from denial or revocation of an alarm permit*.

(1) If the alarm administrator denies the issuance or renewal of an alarm permit or revokes an alarm permit, he or she shall send written notice of his or her action and a statement of the right to a review, by certified mail, return receipt requested, to either the applicant or alarm owner.

(2) Filing of a request for review shall stay the action by the alarm administrator revoking an alarm permit until the alarm administrator has completed his/her review. If a request for review is not made within fifteen (15) days of receipt of the written notice, the action of the alarm administrator is final.

(m) *Reinstatement of permit*. A person or entity whose alarm permit has been revoked may be issued a new alarm permit if he/she or it:

(1) Submits a new application and pays a two hundred-dollar ($200.00) permit fee to the City;

(2) Pays, or otherwise resolves, all citations and fines; and

(3) Submits a certification from an alarm installation company that complies with the requirements of this section, stating that the alarm system has been inspected and, if necessary, repaired or upgraded by the alarm installation company.

(n) *Central station fire*. Any central station that provides fire alarm monitoring must comply with the National Fire Protection Association's Code (pamphlet 72) entitled "National Fire Alarm and Signaling Code" 2016.

(o) *Direct connection*. The public safety dispatch center, in coordination with the fire chief, shall receive, issue and control applications for direct connections. It shall approve such applications if it finds:

(1) They are necessary to the proper and efficient handling of emergency calls to the specific agency.

(2) The installation of such a telephone line shall constitute no hindrance to regular city activities.

(3) The applicant seeking the installation agrees that no message will be telephoned on said lines, except by an agent of applicants with access to customer files and the means to provide access to the premises.

(4) The applicant seeking the installation maintains adequate equipment work force to repair, maintain and otherwise service alarms sold or leased by applicant.

(5) Adequate procedures to test and prevent false alarms as determined by the department head concerned are in place.

(p) *Local energy systems*. All fire alarm systems that are tied into the municipal fire alarm circuit must be powered by a local energy system, as defined by the National Fire Protection Association Code. All private alarm owners/operators of these fire alarm systems will be notified by the department of licenses and inspections by mail that they must convert their system to local energy within one (1) calendar year of the date of the letter. Failure to comply will result in the tie being terminated by the City.

(q) *Monitoring panels*. No person shall place any monitoring panels and annunciation or receiving equipment in the public safety dispatch center, other than private line telephones, as provided herein.

(r) *Audible devices—Burglar alarms only*. Within ninety (90) days of the effective date of this section, any alarm system that utilizes an audible device (e.g., bell, siren or horn) shall be equipped with an automatic shut-off device which will deactivate the alarm system within ten (10) minutes and shall not be equipped so as to reset itself.

(Ord. No. 32-93, 8-9-93; Ord. No. 68-93, 11-22-93; Ord. No. 3-97, 2-24-97; Ord. No. 4-97, 2-24-97; Ord. No. 12-03, 5-12-03; Ord. No. 01-05, 1-10-05; Ord. No. 18-17, 8-14-17)

Sec. 25-15. Public order; pedestrian and vehicular traffic.

(a) *Generally.* The purpose of this section is to regulate certain behavior to preserve the public order, to protect the citizens of Hartford and to

ensure the safe and uninterrupted passage of both pedestrian and vehicular traffic, without unconstitutionally impinging upon protected speech, expression or conduct.

(b) *Definitions.* For the purposes of this section, the term:

Aggressive manner means

(1) Approaching, speaking to, or following a person in a manner as would cause a reasonable person to fear bodily harm or the commission of a criminal act upon the person, or upon property in the person's immediate possession;

(2) Touching another person without that person's consent in the course of asking for alms;

(3) Continuing to ask, beg or solicit alms from a person after the person has made a negative response;

(4) Following the person solicited before, after or while asking, begging or soliciting alms;

(5) Intentionally blocking or interfering with the sale or free passage of a person or vehicle by any means, including unreasonably causing a person or driver of a vehicle take evasive action to avoid physical contact; or

(6) Directing abusive or profane language toward the person solicited, either while asking, begging or soliciting alms, or following a refusal by the person solicited.

Ask, beg or solicit alms includes the spoken, written or printed word or such other act conducted for the purpose of obtaining an immediate donation or money or thing of value.

False or misleading manner includes, but is not limited to, the asking, begging or soliciting of alms, including money and other things of value through utilization of any of the following representations:

(1) Stating or expressing that the donation is needed to meet a specific need, when the solicitor already has sufficient funds to meet that need and does not disclose that fact;

(2) Stating that the donation is needed to meet a need that does not exist;

(3) Stating that the solicitor is from out of town and stranded, when that is not true;

(4) Wearing or displaying an indication of physical disability, when the solicitor does not suffer the disability indicated; or

(5) Use of any makeup or device to simulate deformity.

Solicitor means anyone who asks, begs or solicits alms, including money and other things of value.

(c) *Unlawful acts.*

(1) No person may ask, beg or solicit alms, including money and other things of value, in an aggressive manner in any place open to the general public, including sidewalks, streets, alleys, driveways, parking lots, parks, plazas, buildings, doorways and entrances to buildings and gasoline service stations and the grounds enclosing buildings.

(2) No person may ask, beg or solicit alms, including money and other things of value in a false or misleading manner.

(3) No person may ask, beg or solicit alms in any public transportation vehicle; or within twenty-five (25) feet of any bus or train station or stop.

(4) No person may ask, beg or solicit alms within twenty-five (25) feet of any automatic teller machine (ATM).

(5) No person may ask, beg or solicit alms from any operator or occupant of a motor vehicle that is in traffic on a public street.

(d) *Interpretation.* No provision of this section shall be interpreted or construed to prohibit speech, expression or conduct protected by the laws of the United States or the state.

(e) *Penalties.* Any person convicted of violating any provision of subsection (c) shall be fined not more than ninety dollars ($90.00) or be imprisoned not more than 30 days or both.
(Ord. No. 4-95, 4-24-95)

Sec. 25-16. Prohibiting the sale of lead, brass and copper pipe and tubing.

(a) *Purpose and intent.* The purpose of this section is to deter and limit vandalism of unoccupied buildings and dwellings by prohibiting the sale of lead, brass and copper pipe and tubing unlawfully removed from buildings.

(b) *General provisions.* It shall be unlawful for any person, retail or wholesale business establishment, scrap dealer or salvage business to purchase lead, brass or copper pipe or tubing without documentation as to the address and/or location of the property the pipe was obtained from and without proof of title or ownership of such property. It shall be a violation of this section for any individual to sell lead, brass or copper pipe and tubing without proof of title or ownership.

(c) *Penalties.* Any person convicted of violating any provisions of subsection (b) of this section shall be fined not more than ninety ($90.00) dollars or be imprisoned not more than thirty (30) days or both.
(Ord. No. 2-96, 1-9-96)

Sec. 25-17. Graffiti.

No person shall write, paint or draw any inscription, figure or mark of any type on any public or private building or other structure or any other real or personal property owned, operated or maintained by a public benefit corporation, city or any agency or instrumentality thereof or by any person, firm or corporation unless the expressed permission of the owner or operator of the property has been obtained.
(Ord. No. 31-97, 11-24-97; Ord. No. 60-98, 11-23-98; Ord. No. 04-10, 3-22-10)

Sec. 25-18. Facsimiles of firearms.

(a) For the purposes of this section:

(1) *Facsimile of a firearm* means (A) any nonfunctional imitation of an original firearm which was manufactured, designed and produced since 1898, or (B) any nonfunctional representation of a firearm other than an imitation of an original firearm, provided such representation could reasonably be perceived to be a real firearm. Such term does not include any look-a-like, nonfiring, collector replica of an antique firearm developed prior to 1898, or traditional BB or pellet-firing air gun that expels a metallic or paint-contained projectile through the force of air pressure.

(2) *Firearm* means firearm as defined in G.S. § 53a-3.

(b) No person shall give, offer for sale or sell any facsimile of a firearm. The provisions of this subsection shall not apply to any facsimile of a firearm, which, because of its distinct color, exaggerated size or other design feature, cannot reasonable be perceived to be a real firearm.

(c) Except in self defense, no person shall carry, draw, exhibit or brandish a facsimile of a firearm or simulate a firearm in a threatening manner, with intent to frighten, vex or harass another person.

(d) No person shall draw, exhibit or brandish a facsimile of a firearm or simulate a firearm in the presence of a peace officer, firefighter, emergency medical technician or paramedic engaged in the performance of his duties knowing or having reason to know that such peace officer, firefighter, emergency medical technician or paramedic is engaged in the performance of such duties.
(Ord. No. 9-00, 3-27-00)

Sec. 25-19. Waste associated with natural gas and oil extraction prohibited.

(a) *Purpose*. The prohibition of waste associated with the drilling and extraction of natural gas and oil is hereby declared necessary for the

protection of the health, safety, welfare and property of the residents of the City pursuant to the provisions of G.S. § 7-148 that pertain in any way to the protection of health, safety, welfare and property, as the same may be amended from time to time.

(b) *Definitions for the purposes of this section.* For the purposes of this section, the following terms, phrases, and words shall have the meanings given here, unless otherwise clearly indicated by the context:

Hydraulic fracturing shall mean the fracturing of underground rock formations, including shale and non-shale formations, by man-made fluid-driven techniques for the purpose of stimulating oil, natural gas, or other subsurface hydrocarbon production.

Natural gas extraction activities shall mean all geologic or geophysical activities related to the exploration for or extraction of natural gas, including, but not limited to, core and rotary drilling and hydraulic fracturing.

Oil extraction activities shall mean all geologic or geophysical activities related to the exploration for or extraction of oil, including, but not limited, to core and rotary drilling and hydraulic fracturing.

Natural gas waste shall mean: a) any liquid or solid waste or its constituents that is generated as a result of natural gas extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals, or other contaminants; b) leachate from solid wastes associated with natural gas extraction activities: c) any waste that is generated as a result of or in association with the underground storage of natural gas; d) any waste that is generated as a result of or in association with liquefied petroleum gas well storage operations: and e) any products or byproducts resulting from the treatment, processing, or modification of any of the above wastes.

Oil waste shall mean: a) any liquid or solid waste or its constituents that is generated as a result of oil extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals, or other contaminants; b) leachate from solid wastes associated with oil extraction activities: and c) any products or byproducts resulting from the treatment, processing, or modification of any of the above wastes.

Application shall mean the physical act of placing or spreading natural gas waste or oil waste on any road or real property located within the City.

(c) *Prohibitions*.

(1) The application of natural gas waste or oil waste, whether or not such waste has received Beneficial Use Determination or other approval for use by the Department of Energy and Environmental Protection ("DEEP") or any other regulatory body, on any road or real property located within the City for any purpose is prohibited.

(2) The introduction of natural gas waste or oil waste into any wastewater treatment facility within or operated by the City is prohibited.

(3) The introduction of natural gas waste or oil waste into any solid waste management facility within or operated by the City is prohibited.

(4) The storage, disposal, sale, acquisition, transfer, handling, treatment and/or processing of natural gas waste or oil waste is prohibited within the City.

(d) *Provision to be included in bids and contracts related to the construction or maintenance of publicly owned and/or maintained roads or real property within the City:*

(1) All bids and contracts related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the City shall include a provision stating that no materials containing natural gas or oil waste shall be utilized in providing such a service.

(2) All bids and contracts related to the purchase or acquisition of materials to be used to construct or maintain any publicly

owned and/or maintained road or real property within the City shall include a provision stating that no materials containing natural gas or oil waste shall be provided to the City.

(3) The following statement which shall be a sworn statement under penalty of perjury, shall be included in all bids related to the purchase or acquisition of materials to be used to construct or maintain any publicly owned and/or maintained road or real property within the City and all bids related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the City: "We hereby submit a bid for materials, equipment and/or labor for the City of Hartford.. The bid is for bid documents titled _____. We hereby certify under penalty of perjury that no natural gas waste or oil waste will be used by the undersigned bidder or any contractor, sub-contractor, agent or vendor agent in connection with the bid; nor will the undersigned bidder or any sub-contractor, agent or vendor agent thereof apply any natural gas waste or oil waste to any road or real property within the City of Hartford as a result of the submittal of this bid if selected."

(e) *Penalties*. This chapter shall apply to any and all actions occurring on or after the effective date of the ordinance from which this chapter derives. In response to a violation of this chapter, the City is empowered to a) issue "Cease and Desist" orders demanding abatement of the violation, b) seek any appropriate legal relief, including immediate injunctive relief, as a result of any violation of this ordinance; c) file a complaint with any other proper authority; and d) require remediation of any damage done to any land, road, building, aquifer, well, watercourse, air quality or other asset, be it public or private, within the City. The City may recoup from the offending person(s), jointly and severally, all costs, including experts, consultants and reasonable attorney's fees, that it incurs as a result of having to prosecute or remediate any infraction of this chapter. For any violation of this chapter, the City may also impose fines in the amount of two hundred and fifty dollars ($250.00) per violation per day, or such other amount as is allowed by law, and seek any other remedies allowable under the law.

(f) *Enforcement*. The City's Department of Public Works is hereby empowered and authorized to, if appropriate, issue orders and other directives under this section and refer matters in connection therewith to the City's Office of the Corporation Counsel. City employees, officers and officials are not required to personally carry out testing of waste products to determine chemical contents, as this work may be done via contacting the State of Connecticut Department of Energy and Environmental Protection or the appropriate analytical laboratory or laboratories. If appropriate, the City's Department of Public Works may request that the State of Connecticut Department of Energy and Environmental Protection pursue civil penalties allowable under the law.

(g) *Severability*. If any clause, sentence, paragraph, subdivision, section or part of this section or the application thereof to any person, individual, corporation, firm, partnership, entity or circumstance shall be adjudged by any court of competent jurisdiction to be invalid or unconstitutional, such order or judgment shall not affect, impair, effect or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, section or part of this section or in its application to the person, individual, corporation, firm, partnership, entity or circumstance directly involved in the controversy in which such order or judgment shall be rendered. To further this end, the provisions of this section are hereby declared to be severable.

(h) *Conflicts with other Ordinances or Codes*. In any case where a provision of this section is found to be in conflict with a provision of any other ordinance or code of the City, the provision that establishes the higher standard for the protection of the health, safety, welfare and property of the residents of the City shall prevail. In any case where a provision of this section is found to be in conflict with a provision of any

other ordinance or code of the City, which other ordinance or code establishes a lower standard for the protection of the health, safety, welfare and property of the residents of the City, the provisions of this section shall be deemed to prevail, and such other ordinances or codes are hereby declared to be repealed to the extent that they may be found in conflict with this section.

(i) *Transportation*. Nothing in this chapter shall be interpreted to ban the transportation of any product or by-product described herein on any roadway or real property within the City.
(Ord. No. 19-17, 9-11-17)

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Chapter 26

PARKS AND RECREATION*

Article I. In General

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*__Editor's note—__Ord. No. 39-90, adopted June 25, 1991, changed the title of this chapter from "Parks and Recreation" to "Community Services". In order to maintain alphabetical sequence of chapter titles and in order to completely reflect the contents of the chapter, the editor has titled the chapter "Parks, Recreation and Community Services".

__Charter reference—__Department of parks and recreation, Ch. XV.

__Cross references—__Commission on cultural affairs, § 2-176 et seq.; contracts for public works and improvements, § 2-550; amusements, Ch. 5; maintenance and construction of public ways in parks, § 31-31.

__State law reference—__Authority to provide for parks and recreation, G.S. § 7-148(c)(6)(A)(i).

ARTICLE I. IN GENERAL

Sec. 26-1. Composition of department; duties.

Reserved.
(Code 1977, § 25-1; Ord. No. 8-86, 5-27-86; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 40-96, 9-9-96)

Cross reference—Departmental coordinator for physical services, § 2-85.

Sec. 26-2. Use of names of parks and recreational facilities.

(a) Unless authorized by the Director of Public Works no club or other organization shall use the name of any municipal park or recreational facility in its official name or designation, nor shall any such club or organization be designated as an official or unofficial representative or affiliate of any municipal park or recreation facility unless so authorized by the Director of Public Works.

(b) The authorization by the Director of Public Works provided for in subsection (a) shall not be granted unless by laws or rules and regulations of the organization are submitted to and approved by the Director of Public Works. In addition to any other provisions, such by-laws or rules and regulations must contain the following provisions:

(1) Membership in such organization shall be open to all residents of the city without regard to race, color, creed or nationality;

(2) All fees for initiation and membership in such organization shall be uniform for all members and shall be subject to the approval of the Director of Parks and Recreation.

(c) Application blanks for membership in any club or organization approved as provided in this section shall at all times be available to prospective members at the office of the Director of Public Works.
(Code 1977, § 25-2; Ord. No. 26-11, 5-23-11)

Sec. 26-3. Batterson Park fees.

(a) The fee for admission to Batterson Park, including parking, shall be fifty cents ($0.50) for city residents fourteen (14) years of age and under, one dollar and twenty-five cents ($1.25) for city residents over fourteen (14) years of age, seventy-five cents ($0.75) for residents sixty (60) years of age and older, three dollars ($3.00) for non-residents over fourteen (14) years of age and seventy-five cents ($0.75) for non-residents fourteen (14) years of age and under.

(b) Any further adjustments of the fees in subsection (a) shall be made with the approval of the Council upon the recommendation of the City Manager.
(Code 1977, § 25-3; Ord. No. 19-91, 5-13-91; Ord. No. 7-95, 5-22-95)

Sec. 26-4. Golf, greens fees on municipal courses.

The fees for playing golf on municipal courses will be set by the Council from time to time by resolution on the recommendation of the City Manager. Copies of such greens fees will be available for public inspection at each of the golf courses and at the office of the Director of Parks and Recreation.
(Code 1977, § 25-4; Ord. No. 21-83, 6-13-83; Ord. No. 19-89, 5-22-89)

Sec. 26-5. Lawn bowling fees.

(a) The fees for lawn bowling shall be as follows:

For season play on Elizabeth Park Bowling Greens	$100.00

(b) Any further adjustments of the fee in subsection (a) shall be made with the approval of the Council upon the recommendation of the Director of Parks and Recreation.
(Code 1977, § 25-5; Ord. No. 15-09, 4-13-09)

Sec. 26-6. Elizabeth Pond Memorial House, Goodwin Park Pond House, Keney Pond House, Metzner Center, Willie Ware Center, Hyland Center, Blue Hills Community Center, Pope Park Recreation Center and the Kelvin D. Anderson Center rental fees; application fee for weddings in Elizabeth Park.

(a) The fees for rental of the Elizabeth Pond Memorial House, Goodwin Park Pond House, Keney Pond House, Metzner Center, Willie Ware

Center, Hyland Center, Blue Hills Community Center, Pope Park Recreation Center, and the Kelvin D. Anderson Center shall be as follows, excepting there from any above facility whose fees are otherwise determined pursuant to any contract with the City of Hartford:

(1) Functions at which no food is served:

a.	Hartford residents, for each four-hour period or less	$ 75.00
b.	Other than Hartford residents, for each four-hour period or less	125.00

(2) Functions at which food is served:

a.	Hartford residents, for each four-hour period or less	$100.00
b.	Other than Hartford residents, for each four-hour period or less	150.00

(3) There shall be no fee for meetings sponsored by a civic or community group open to the general public.

(b) The application fee for weddings in Elizabeth Park shall be as follows:

(1)	Hartford or West Hartford residents	$ 50.00
(2)	Other than Hartford or West Hartford residents	100.00

(c) The application fee for photography reservations in Elizabeth Park shall be as follows:

(1)	Hartford or West Hartford residents	$ 25.00
(2)	Other than Hartford or West Hartford residents	50.00

(d) Any further adjustment of the fees in subsections (a), (b) and (c) shall be made with the approval of the Council upon the recommendation of the Mayor.
(Code 1977, § 25-5.1; Ord. No. 19-91, 5-13-91; Ord. No. 17-94, 6-13-94; Ord. No. 12-04, 8-9-04; Ord. No. 13-04, 10-12-04)

Sec. 26-7. Senior center rental fees.

(a) The fees for rental of space within the City of Hartford's senior centers shall be four hundred dollars ($400.00) for rentals of seven (7) hours or less and fifty dollars ($50.00) for every additional hour or portion of an hour.

(b) All fees generated from rentals shall be deposited into the senior centers' respective donation accounts and the use of such funds shall be overseen by the Director of Health and Human Services.

(c) The Department of Health and Human Services shall create and implement an application process and guidelines for the use of senior center space to assure that all uses are compatible with the purposes of the senior centers.

(d) Any adjustment of fees in subsection (a) above shall be made with the approval of Council upon the recommendation of the Mayor.
(Ord. No. 8-15, 5-26-15)

Editor's note—Ord. No. 15-09, adopted Apr. 13, 2009, deleted former § 26-7, which pertained to ice rink fees. See the Code Comparative Table for complete derivation. Subsequently, Ord. No. 8-15, adopted May 26, 2015 enacted new provisions to read as herein set out.

Secs. 26-7.1. Reserved.

Editor's note—Ord. No. 15-09, adopted Apr. 13, 2009, deleted § 26-7.1, which pertained to boat launch fees. See the Code Comparative Table for complete derivation.

Sec. 26-7.2 Playing field user fees.

(a) User fees to utilize a city playing field shall be established by resolution of the court of common council upon the recommendation of the director of public works and the director of families, children, youth and recreation.

(b) The Hartford Public Schools shall pay fees for the use of city parks, fields, and Dillon Stadium, for both practice and games. Such fees shall be established from time to time by resolution of the court of common council upon the recommendation of the director of public works and the director of families, children, youth and recreation.
(Ord. No. 19-91, 5-13-91; Ord. No. 15-02, 5-28-02; Ord. No. 12-12, 11-13-12)

Sec. 26-8. [Cemetery grave opening fees.]

(a) [The fees for] cemetery grave opening in city cemeteries shall be as follows:

Northwood Cemetery:

Burials—Privately paid

Infant or child	$350.00
Adult	1,000.00

Burials—Title 19 benefit

Infant or child	300.00
Adult	600.00

Burials—Private lots

Infant or child	350.00
Adult	1,000.00

Soldier's Field Cemetery:

Single veteran	1,000.00
Married veteran (with reserve vault for spouse)	1,500.00
Burial of spouse in reserved vault	500.00
Married veteran or spouse in no vault section	1,000.00

Double depth vault burials for married veterans with reserve grave for spouse available only at Soldier's Field. Veteran must be honorably discharged and a Hartford resident. Discharge information must be provided (in writing) by funeral director.

Privately owned lots—Zion Hill and Old North Cemeteries:

All burials privately paid or with Title 19	$500.00
Cremations and amputations	350.00
Disinterments (child/adult)—All cemeteries	500.00

Overtime charges—All cemeteries:

Saturdays and holidays: 8:00 a.m. to 12:00 p.m.	300.00
Saturdays and holidays: 12:00 p.m. to 4:00 p.m.	550.00
Weekdays: After 3:00 p.m.	200.00

Holiday burials are rare and discouraged by funeral directors except in unusual or extreme circumstances.

(b) Any further adjustments of the fees in subsection (a) shall be made with the approval of the Council upon the recommendation of the Mayor.

(Code 1977, § 25-5.4: Ord. No. 21-05, 11-28-05)

Sec. 26-9. Dillon Stadium fee schedule.

(a) The fees for the public use of Dillon Stadium through the City of Hartford for events shall be set forth in a schedule of rates that have been approved by the Court of Common Council and maintained and made available for inspection by the Department of Public Works.

(b) Any future adjustments to the aforementioned fees shall be made with the approval of the Court of Common Council upon the recommendation of the Director of Public Works and the Director of Development Services.

(c) The fees for the public use of Dillon Stadium, shall be posted on the City of Hartford's Parks and Recreation webpage at http://hartfordct.myrec.com and shall be made available in hard copy at the offices of the Department of Public Works, 50 Jennings Road, Hartford, CT.

(Code 1977, § 25-5.5; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 15-09, 4-13-09; Ord. No. 12-12, 11-13-12; Ord. No. 06-19, 4-22-19)

Sec. 26-10. Cemetery regulations.

It shall be unlawful for any person in any municipal cemetery to:

(1) Misuse or abuse cemetery property or gather any trees, shrubs and plants, or parts thereof;

(2) Deface or injure any sign, notice, monument, marker, shrubbery or planting;

(3) Throw or deposit any litter or rubbish;

(4) Engage in any recreation activity;

(5) Walk or allow any dog to roam;

(6) Have intoxicating liquors or be intoxicated;

(7) Give driving instructions to any person;

(8) Park or drive any vehicle off any road except in designated areas;

(9) Enter or remain in any cemetery except within the hours between sunrise and sunset;

(10) Exceed a speed of fifteen (15) miles per hour in any motor vehicle;

(11) Loiter or gather in groups except for funeral and memorial services;

(12) Plant any tree, shrub or vine without authorization from the Director of Parks and Recreation;

(13) Make, aid or countenance any loud or raucous noise or disturbance;

(14) Erect a fence, hedge, railing or coping to enclose a lot.

(Code 1977, § 25-5.3)

Sec. 26-11. Care of plantings in streets, public parks and on public grounds transferred to Department of Parks and Recreation.

(a) The City Manager having made recommendation, the duty of the Department of Parks and Recreation in the care of city trees, shrubs and vines is transferred to the Department of Parks and Recreation.

(b) Any and all powers, duties and authority of the City in reference to the care, control, preservation and removal of trees, shrubs or vines standing in the highways, public parks and public grounds within the City, and the setting out of additional trees, shrubs or vines within such highways, public parks and public grounds are hereby imposed upon the Department of Parks and Recreation of the City. The setting out of such trees within the lines of any street within the City shall be approved as to location by the Director of Public Works as set forth in Section 31-19 of the Municipal Code.

(c) Whenever, in the opinion of the Director of Parks and Recreation or the City Forester appointed under the provisions of section 26-13, the public safety demands the removal or pruning of any tree or shrub under the control of the Department of Parks and Recreation, he may cause such tree or shrub to be removed or pruned. Unless such tree or shrub constitutes an immediate public hazard, he shall, at least five (5) days before such removal, post thereon a suitable notice stating his intention to remove such tree or shrub. If any person objects to such removal, he may appeal to the Director of Parks and Recreation in writing, who shall hold a public hearing at some suitable time and place after giving reasonable notice of such hearing to all persons known to be interested therein and posting a notice thereof on such tree or shrub. Within three (3) days after such hearing, the Director of Parks and Recreation shall render his decision granting or denying the application.

(Code 1977, § 25-6; Ord. No. 1-87, 1-12-87; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91)

Charter reference—Authority to transfer care of street trees to Department of Parks and Recreation, Ch. XV, § 2.

Sec. 26-12. Powers of Director of Parks and Recreation as to vegetation growing outside street lines.

Whenever a tree, shrub or vine located outside the limits of any street line in the City is, in the opinion of the Director of Parks and Recreation, deemed to be in a condition dangerous to persons or property upon any highway, or afflicted with a disease which might spread and affect other trees, shrubs or vines, the Director of Parks and Recreation may order the owner of such tree, shrub or vine to remove, treat or trim such tree, shrub or vine so as to eliminate such danger, within such reasonable time as may be limited in such order. Upon the owner's failure to do so, the Director of Parks and Recreation may remove, treat or trim such tree, shrub or vine and may collect, on behalf of the City, the expense thereof from the owner of such tree, shrub or vine. However, in any case where such tree, shrub or vine is not dangerous to persons or property upon any highway but is deemed by such director to be afflicted with a disease, he shall order the same to be removed, treated or trimmed for that reason. If the owner within ten (10) days after the receipt of such notice claims in writing to the director that such tree, shrub or vine is not so afflicted, the question shall be referred by the director to the state entomologist for a report.

Unless such state entomologist finds such tree, shrub or vine to be so afflicted, it shall not be so removed, treated or trimmed. However, if such state entomologist fails to make any report within thirty (30) days after such reference to him, such tree, shrub or vine may be removed, treated or trimmed by the director at the owner's expense as provided in this section. Nothing in this section shall preclude an appeal or other court proceeding by either the City or the owner.
(Code 1977, § 25-7; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91)

Sec. 26-13. City forester.

The Director of Parks and Recreation shall, for the purpose of carrying out the provisions of sections 26-11 and 26-12, appoint a City Forester. The City Forester shall in general act under the direction of the Department of Parks and Recreation, in reference to the duties placed upon the Department of Parks and Recreation by sections 26-11 and 26-12 and shall perform such other special duties in reference to trees, shrubs or vines in highways, public parks and public grounds as may be required of him by such department under the provisions of the Charter and ordinances of the City and the laws of the state.
(Code 1977, § 25-8; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 48-91, 8-12-91)

Sec. 26-14. Advisory commission.

(a) *Established; membership.* There is hereby established a parks and recreation advisory commission consisting of twenty-one (21) members. These members shall include representatives of the active friends of parks groups and the remaining members shall be nominated by the Mayor and subject to approval by the Council on an at-large basis without regard to the neighborhood in which they reside. A Friends of Parks group shall be defined as a noncommercial entity recognized by the City of Hartford, composed of individuals committed to the betterment of one (1) or more City parks. Each Friends of Parks group shall be permitted a maximum of one (1) representative. However, each Friends of Parks group shall have the ability to select their representative in a process of their own choosing and such representatives shall be confirmed subject to the confirmation procedures outlined in chapter VII, section 1 of the Charter of the City of Hartford. All members shall serve without compensation. Each member shall serve for a term of three (3) years; except that of those first appointed, one (1) member shall be appointed for a term of three (3) years, one (1) member shall be appointed for a term of two (2) years, and one (1) member shall be appointed for a term of one (1) year. One (1) member shall be designated as chairman of the Commission. Thereafter one (1) member of the Commission chosen at large shall be appointed each year to succeed the member whose term has expired. Each commissioner shall serve for the term for which he/she is appointed and until his successor is appointed. The Mayor shall nominate, subject to the approval of the Council, one (1) member of the Commission as its chairman. The chairman shall serve for a period of one (1) year or until the appointment of a new chairman. The Mayor and chairman of the Court of Common Council's Public Works, Parks and Environment Committee, the Director of Public Works or his or her designee responsible for park maintenance and the Director of Families, Children, Youth, and Recreation or his or her designee responsible for recreation services shall be ex officio members of the Commission. In the event of the death or resignation of any member of the Commission, his/her successor shall be nominated by the Mayor and be confirmed by the City council to fill the unexpired period of the term for which such member had been appointed.

(b) *Function and duties.* The Commission shall be an advisory body to the Department of Public Works, the Director of Families, Children, Youth, and Recreation and to the Council in matters relating to recreation and park maintenance services. It shall make studies and recommendations to the Mayor, the Council and the Director of Public Works concerning the use of parks by the general public, park management, and park policies and to the Director of Families, Children, Youth, and Recreation concerning recreation program formulation. It shall also seek working relationships with schools, community and civic organizations and shall provide the general public

with information and education as regards recreation and park maintenance. The Commission shall also serve as the contact point for the public to express their opinions and requests relative to recreational programming in Hartford.

(c) *Meetings.* The Commission shall meet not less than once every three (3) months and may meet sooner by call of the chairman or by a call of at least five (5) members of the Commission.

(d) *Appropriations.* The Council may make appropriations to cover the expenses of the Commission. All appropriations to cover the expenses of the Commission shall be made in the budget of the public works department in an account for that purpose. The Director of Public Works shall provide clerical services to the Commission as needed and within the appropriation made therefor.
(Code 1977, § 25-9; Ord. No. 3-78, 3-13-78; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 23-92, 4-27-92; Ord. No. 05-10, 3-22-10; Ord. No. 18-11, 5-23-11)

Sec. 26-15. Municipal garden program.

(a) The Parks and Recreation Advisory Commission is hereby empowered to develop and administer a program to encourage the use of vacant public land owned by the City for gardening purposes by the general public. This Commission may:

(1) Maintain an inventory of vacant public lands owned by the City;

(2) Establish and administer a procedure for selection of persons to use public lands for gardening purposes; and

(3) Adopt regulations governing the use of vacant public lands for gardening purposes.

(b) The Commission shall obtain the permission of the appropriate department, agency, officer or board charged with the lawful responsibility to manage and control the vacant public land prior to using the property for the municipal garden program. Nothing in this section shall limit the right of the City to enter and take control at any time those public lands being used for the municipal garden program; nor shall the City be limited by any of the actions of its employees or officers from ejecting and denying access to these public lands to any and all individuals when the City deems it desirable and in the best interests of the City.

(c) The City shall be held harmless and indemnified by all participants and persons in the municipal garden program from all suits, claims of liability of each name and nature arising out of or in consequence of the use of public land in the municipal garden program.

(d) The Commission may recommend a schedule of user fees to the Council to cover the administrative costs of the municipal gardens program. Those fees shall reflect the actual cost of administering and maintaining the municipal garden program.
(Code 1977, § 25-10; Ord. No. 12-80, 6-3-80; Ord. No. 39-90, 6-25-90)

Secs. 26-16—26-30. Reserved.

ARTICLE II. CONDUCT AND USE REGULATED

Sec. 26-31. Unlawful conduct generally.

It shall be unlawful for any person to annoy other persons or to disturb the animals, birds or fish, or commit any act of nuisance in any park, except that lawful fishing in parks is permitted only at Batterson Park Pond, Waltermere Pond in Keney Park, Charter Oak Landing, Riverside Park, Mortensen Riverfront Plaza, and Goodwin Park, provided that no person fishing in Goodwin Park shall be permitted to do so while being positioned in or on any land that is within the Goodwin Park Golf Course, during the fishing season as established by the State of Connecticut for such waters, and subject to the applicable hours of operation for the respective parks in which such waters are situated.
(Code 1977, § 25-20; Ord. No. 39-90, 6-25-90; Ord. No. 10-07, 6-11-07; Ord. No. 10-18, 11-26-18)

Editor's note—Ord. No. 10-07, adopted June 11, 2007, shall be retroactive to, and effective as of April 21, 2007.

Sec. 26-32. Injuring property or plants.

It shall be unlawful for any person to misuse or abuse park property, or to injure or gather trees, shrubs or plants in any park.
(Code 1977, § 25-21; Ord. No. 39-90, 6-25-90)

Cross reference—Injuring public property generally, § 25-7.

Sec. 26-33. Injuring official signs and notices.

It shall be unlawful for any person to deface or injure any sign or notice placed in any park by the City.
(Code 1977, § 25-22; Ord. No. 39-90, 6-25-90)

Cross reference—Injuring public property generally, § 25-7.

Sec. 26-34. Litter and rubbish.

No person shall throw or deposit or leave any litter or rubbish in any park.
(Code 1977, § 25-23; Ord. No. 39-90, 6-25-90)

Sec. 26-35. Games.

It shall be unlawful for any person to throw balls or play active games in parks where prohibited.
(Code 1977, § 25-24; Ord. No. 39-90, 6-25-90)

Sec. 26-36. Wading and swimming.

It shall be unlawful for any person to wade or swim in any pond or lake in the parks of the City, except Batterson Park Lake, where wading and swimming shall be limited to the public beach area as designated by the Director of Parks and Recreation, and only when lifeguards are on duty.
(Code 1977, § 25-25; Ord. No. 15-84, 4-9-84; Ord. No. 39-90, 6-25-90; Ord. No 33-91, 6-10-91)

Sec. 26-37. Dogs.

It shall be unlawful for any person to take any dog into any park except on a leash, except that no dogs, other than guide dogs for the blind, deaf or mobility impaired pursuant to G.S. § 23-346a, are allowed in the Batterson Park swimming and picnic area.
(Code 1977, § 25-26; Ord. No. 39-90, 6-25-90)

Sec. 26-38. Sales, solicitations and advertising.

It shall be unlawful for any person to sell or offer for sale any article in any park, or to advertise or solicit for any purpose, other than a noncommercial purpose, or display any sign unless prior approval is obtained from the director of parks and recreation.
(Code 1977, § 25-27; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91)

Sec. 26-39. Firearms and fireworks.

It shall be unlawful for any person to discharge or have any firearms or fireworks in any park. This section shall not apply to fireworks displays by municipal authorities.
(Code 1977, § 25-28; Ord. No. 39-90, 6-25-90)
Cross reference—Fireworks generally, § 13-241 et seq.

Sec. 26-40. Fires.

Except where cooking facilities are provided, it shall be unlawful for any person to make a fire in any park except by permission of the director of parks and recreation.
(Code 1977, § 25-29; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91)
Cross reference—Fire protection and prevention generally, Ch. 13.

Sec. 26-41. Alcoholic beverages prohibited generally; exceptions.

(a) *Definitions:*

"*Alcoholic beverage*" or "*alcoholic liquor*" includes all varieties of liquor defined in this section including alcohol, beer, spirits and wine and every liquid or solid, patented or not, containing alcohol, spirits, wine or beer and capable of being consumed by a human being for beverage purposes.

"*Beer*" means a beverage obtained by alcoholic fermentation of an infusion or concoction of barley or other grain, malt and hops in water, and includes among other things beer, ale, stout, lager beer, porter and the like.

"*Bring your own beverage*" is a term which means that the owner of an establishment or host of an event will not be providing alcoholic beverages but that guests are welcome to bring their own if they choose.

"*Events*", for purposes of this section, shall mean any public or private function held on the grounds of a park, which may include the lawn area, clubhouse, pond house, recreational facility, pavilion, carousel or other amusement area of the park.

"*Golf course*" includes the area designated for play of the game of golf as well as the property adjoining and used in conjunction with said area, including the driving range area, practice green, club house, pro shop, restaurant, lounge, snack shop and any areas adjacent thereto, all of which make up the golf course.

"*Spirits*" means any beverage which contains alcohol obtained by distillation, and includes brandy, rum, whiskey, gin or other spirituous liquors when rectified, blended or otherwise mixed with alcohol or other substances.

"*Wine*" means any alcoholic beverage obtained by the fermentation of natural contents of fruit or vegetables, containing sugar, including such beverages when fortified by the addition of alcohol, or other spirits, as above defined.

(b) *General prohibitions and exceptions:*

(1) It shall be unlawful for any person to have alcoholic beverages or to be intoxicated in any park, except that alcoholic beverages may be consumed under the following circumstances:

a. Beer and wine only may be sold and consumed at any event held at Bushnell Park, excluding the Pump House Gallery and the Carousel Pavillion, provided that prior to the event, the proper permission has been obtained from the city to hold the event, the council adopts a resolution approving such sale and consumption and the location where said sale can take place within Bushnell Park, beverages are sold by a vendor licensed

by the Bureau of Licenses and Inspections under a permit issued by the State of Connecticut Department of Consumer Protection, and proper proof of liquor liability insurance is provided to the Risk Manager for the City of Hartford, in an amount to be determined by said risk manager;

b. Alcoholic beverages may be sold and consumed at the Carousel Pavilion in Bushnell Park, and adjacent secured areas within one hundred fifty (150) feet of the pavilion, at private functions during which the carousel is closed to the public, provided that prior to the event, the proper permission has been obtained from the city to hold the event, the council adopts a resolution approving such sale and consumption and the location where said sale can take place within the pavilion, beverages are sold by a vendor licensed by the Bureau of Licenses and Inspections under a permit issued by the State of Connecticut Department of Consumer Protection, and proper proof of liquor liability insurance is provided to the Risk Manager for the City of Hartford, in an amount to be determined by said risk manager;

c. Alcoholic beverages may be sold and consumed in connection with restaurant or bar services at the Pump House Gallery in Bushnell Park or other events held at the Pump House Gallery provided that the operator or manager of said facility obtains proper liquor liability insurance and a state liquor license;

d. Service of alcoholic beverages shall be allowed in the Elizabeth Park Pond House Restaurant, which includes the outside patio area and auditorium, provided that the operator or manager of said facility obtains proper liquor liability insurance and state liquor licenses. For purposes of this subsection, "service of alcoholic beverages" shall mean the service of alcoholic beverages on a "bring your own beverage" basis in the restaurant for personal consumption with meals, and the service of wine and beer provided by the sponsoring person or entity at events in the auditorium;

e. Beer and wine may be sold and consumed at an event held at the Keney and Goodwin Parks, not including the golf courses, Metzner Center, Willie Ware Center, Hyland Center, Blue Hills Community Center, Pope Park Recreation Center, Kevin D. Anderson Center and any other park in the City of Hartford not mentioned herein provided that prior to the event, the proper permission has been obtained from the city to hold the event, the council adopts a resolution approving such sale and consumption and the location where said sale can take place within said park or location, beverages are sold by a vendor licensed by the Bureau of Licenses and Inspections under a permit issued by the State of Connecticut Department of Consumer Protection, and proper proof of liquor liability insurance is provided to the Risk Manager for the City of Hartford, in an amount to be determined by said risk manager;

f. Alcoholic beverages may be sold and consumed at the Keney and Goodwin Park golf courses pursuant to any applicable provisions of this section and all provisions of section 26-42 of this chapter.

(2) If a private individual sponsors an event at any of the locations specified in (b)(1)a. of this section, but not including Keney and Goodwin Park golf courses, the Pump House Gallery and the Elizabeth Park Pond House Restaurant and Auditorium, and intends to serve alcoholic beverages, free of cost, the sponsor shall not be

required to obtain a permit from the state liquor control commission. Prior to the event, however, the sponsor must obtain (1) approval from the Council by way of resolution for the service of such beverages; and (2) proper liquor liability insurance approved by the City of Hartford Risk Manager. The service of such beverages may also be subject to any special and further requirements of the City;

(3) The sale or service of alcoholic beverages at the Elizabeth Park Pond House Restaurant and Auditorium, the Pump House Gallery, and the Keney and Goodwin Park golf courses is contingent upon the operator or manager of these facilities obtaining proper liquor liability insurance and a state liquor license.

(4) The sale and/or consumption of alcoholic beverages at events held in city parks pursuant to this and any other applicable section shall be subject to any further conditions and regulations required by the Mayor or the Council to promote public safety and welfare.

(5) Alcoholic beverages may be sold and consumed within Dillon Stadium during professional sporting events or other events promoted by the ownership group of a professional sports franchise under an agreement for use of the Stadium, provided that the Operator or Manager of the Stadium, or a vendor licensed by the Division of Licenses and Inspections under a permit issued by the State of Connecticut Department of Consumer Protection, provides proper proof of liquor liability insurance to the Risk Manager for the City of Hartford, in amounts determined by said Risk Manager, and a state liquor license is obtained by the requisite entity.

(6) Alcoholic beverages may be consumed within the city-owned lot located at 260 Huyshope Avenue during the time period beginning three (3) hours prior and ending thirty (30) minutes prior to the start of a professional sporting event or other event promoted by the ownership group of a professional sports franchise under an agreement for the use of Dillon Stadium, provided that proof of liability insurance, in amounts set by the Director of the Office of Management, Budget and Grants for the City of Hartford or their designee, is delivered to the City in advance of said event.

(Code 1977, § 25-30; Ord. No. 13-82, 6-14-82; Ord. No. 19-84, 5-29-84; Ord. No. 26-85, 5-13-85; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 4-01, 4-23-01; Ord. No. 02-07, 3-26-07; Ord. No. 03-18, 6-11-18; Ord. No. 13-19, 7-8-19; Ord. No. 003-20, 6-22-20)

Cross reference—Alcoholic beverages generally, Ch. 4.

Sec. 26-42. Conditions for sale of alcoholic beverages at golf courses.

(a) *Definitions:*

Alcoholic beverage or *alcoholic liquor* includes all varieties of liquor defined in section 26-41 including alcohol, beer, spirits and wine and every liquid or solid, patented or not, containing alcohol, spirits, wine or beer and capable of being consumed by a human being for beverage purposes.

Events, for purposes of this section, shall mean any public or private function held on the grounds of Keney or Goodwin Park golf courses.

Golf course includes the area designated for play of the game of golf as well as the property adjoining and used in conjunction with said area, including the driving range area, practice green, club house, pro shop, restaurant, lounge, snack shop and any areas adjacent thereto, all of which make up the golf course.

(b) *General conditions of sale and consumption of alcoholic beverages at golf courses:*

(1) Pursuant to G.S. § 30-91, as amended, the sale of alcoholic beverages at the Goodwin and Keney Park golf courses is hereby allowed subject to the following conditions:

a. The sale and consumption of alcoholic beverages shall be allowed

in all areas defined as part of the "golf course" under this section, including sale from beverage carts located on the golf courses;

b. Alcoholic beverages may be sold daily at the golf courses from 9:00 a.m. until one hour after sunset, but in any case not later than 10:00 p.m., Monday through Thursday, from 9:00 a.m. until 11:00 p.m. on Friday, from 9:00 a.m. until 11:30 p.m. on Saturday, and from 11:00 a.m. until 10:00 p.m. on Sunday;

c. Notwithstanding subsection (b)(1)b. above, if an event such as a wedding, birthday party, golf tournament or other function is being held at a golf course, the sale or service of alcoholic beverages shall cease thirty (30) minutes before the end of the event;

d. It shall be unlawful to possess any alcoholic beverages at any golf course, park, or playground except where proper licenses to serve and sell alcoholic beverages have been obtained;

e. Nothing in this section shall be construed to require any of the golf courses hereunder to continue the sale of alcoholic beverages until the closing hours established by this section;

f. As authorized under the provisions of this section, the lawful right to sell and serve alcoholic beverages at the golf courses located in Keney and Goodwin Parks shall be subject to an annual review and approval by the Mayor by way of resolution.

(Code 1977, § 25-30.1; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 02-07, 3-26-07)

Sec. 26-43. Vehicles and traffic.

It shall be unlawful for any person to drive any commercial vehicle into any park except on business of the City of Hartford, or to give instruction to any person in driving an automobile or to learn to drive an automobile in any park, or to drive any automobile at a rate of speed exceeding twenty-five (25) miles per hour, or to drive or propel any automobile or other vehicle except on regular park roads, or to park any car off any park road, except in areas designated for public parking.

(Code 1977, § 25-31; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 08-10, 4-12-10)

Cross reference—Motor vehicles and traffic generally, Ch. 22.

Sec. 26-44. Horseback riding.

Persons riding horses in any park shall:

(1) Ride on bridle trails only, keeping off the roads, meadows and woodland;

(2) Ride at a walk at intersecting roads and trails;

(3) Keep horses under control at all times and refrain from yelling, reckless riding, racing, stunt riding, or beating or tormenting their horses;

(4) Be courteous and considerate, especially on passing or overtaking other riders;

(5) Not tie horses to trees or shrubs or cut or break shrubs for whips.

(Code 1977, § 25-32; Ord. No. 39-90, 6-25-90)

Cross reference—Animals and fowl, Ch. 6.

Sec. 26-45. Opening and closing hours for parks, playgrounds and other recreational facilities.

(a) No person or vehicle shall enter or remain in any park, playground or other recreation facility under the direction or control of the Director of Public Works or the Director of Human Services, before dawn or after dusk except as provided in subsections (b) and (d) of this section. For purposes of this section, dawn shall mean a half-hour before sunrise and dusk shall mean a half-hour after sunset.

(b) Any person or entity who wishes to enter or remain in any park, playground or other such recreation facility before dawn or after dusk, respectively, must obtain a special event permit pursuant to the provisions of the City of Hartford Special Events Policy and Procedures Manual. In the event of exigent circumstances, the Director of Public Works or the Director of Human Services may designate other opening or closing times for any park, playground or other recreation facility under his/her direction and control if in his/her opinion such other opening or closing time is in the best interest of the City.

(c) The opening and closing time for each park, playground and recreation facility under the direction and control of the Director of Public Works or the Director of Human Services shall be prominently displayed at each such facility and the chief of police shall be notified of such opening and closing times and any exceptions thereto.

(d) The Director of Public Works in coordination with the Director of Human Services shall establish rules and regulations pertaining to the opening and closing times of pond houses, recreational facilities/centers, lighted areas and any other structures located in any park or playground.

(e) Subsections (a), (b) and (d) of this section shall not apply to any park, playground or other such recreation facility that is subject to an agreement with the City that contains any provision regarding opening and closing times or that is subject to rules or regulations regarding opening and closing times that are promulgated by appropriate entities.
(Code 1977, § 25-33; Ord. No. 19-79, 6-25-79; Ord. No. 39-90, 6-25-90; Ord. No. 33-91, 6-10-91; Ord. No. 61-02, 11-25-02)

Sec. 26-46. Boating at Batterson Lake Park.

(a) Boating at Batterson Lake Park is restricted to rowboats, canoes, kayaks, sailboats and other watercrafts not powered by combustion engines. Small electric motors are allowable. All watercrafts shall contain proper flotation devices and all other safety devices as prescribed by state boating regulations, which shall be in use by the occupants at all times. Watercrafts shall be launched and removed only at the state launching ramp.

(b) Use of any watercraft other than those referred to in subsection (a) shall be unlawful.
(Code 1977, § 25-34; Ord. No. 16-84, 4-9-84; Ord. No. 39-90, 6-25-90; Ord. No. 14-99, 6-28-99)

Sec. 26-47. Penalty.

A person who violates any provision of this chapter shall be summoned or brought to community court pursuant to P.A. 97-199. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this chapter.
(Ord. No. 32-97, 11-24-97)

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Chapter 27

ITINERANT VENDORS, STREET VENDORS, AND FOOD TRUCKS*

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***Editor's note—**Ord. No. 003-21, adopted June 14, 2021, repealed the former ch. 27, §§ 27-1, 27-26—27-62, 27-76—27-82, 27-96—27-100, 27-121—27-128, and enacted a new ch. 27 as set out herein. The former ch. 27 pertained to peddlers, itinerant vendors and street vendors. See the Code Comparative Table for complete derivation.

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ARTICLE I. IN GENERAL

Sec. 27-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Chair shall mean any portable, folding or easily movable seat.

Container shall mean anything used for storage. Containers shall fit under a table or within a vending pushcart or vending vehicle storage area. Containers shall be unbreakable.

Food Trucks as defined by the Hartford Zoning Regulations shall mean wheeled vehicles from which hot or cold food or beverages are served, irrespective of whether or not they are motorized or non-motorized and irrespective of whether they have two (2) or more wheels.

Ice cream truck means any motor vehicle requiring a license from the State of Connecticut Department of Motor Vehicles which is used to peddle, sell, or vend (A) Prepackaged frozen dairy or water-based food products; or (B) Soft-serve or hand-dipped frozen dairy or water-based products; irrespective of whether or not the truck carries other prepackaged food products.

Itinerant Vendor shall mean any person, whether principal or agent, who engages in a temporary or transient business, either in one (1) location or traveling from place to place, selling goods, wares or merchandise, excluding food, beverages, or ice cream, and who, for the purpose of carrying on such business, hires, leases or occupies any building or structure in the city for the exhibition and sale of such goods, wares and merchandise, or does so on foot or from any animal, vehicle, pushcart or table. Itinerant Vendors may also be referred to as *Street Vendors* when operating outdoors (also as defined in CGS Sec 21-36).

Licensee shall mean the person issued a license to operate a vending vehicle, pushcart or vending table pursuant to section 27-28.

Master license shall mean the license issued to the owner of a vending pushcart, vending vehicle or vending table.

Street Vendor shall mean any person, whether principal or agent, who engages in the business of an Itinerant Vendor outdoors (also as defined in CGS Sec 21-36).

Table shall mean a table that is portable and easily collapsed and which is on wheels. Table tops shall be covered with cloth or plastic which does not create a fire or safety hazard to the general public. The cloth or plastic used to cover a table may not extend more than half (½) the distance from the table top to the ground. Only merchandise and flowers may be sold from vending tables.

Temporary or transient business shall mean any exhibition and sale of goods, wares and merchandise which is carried on in any tent, booth, building or other structure, unless such place shall be open for business during usual business hours for a period of at least nine (9) months in each year.

Vehicle means any truck, automobile, bicycle, tricycle or any other contrivance designed for travel on the street.

Vending pushcart shall mean a nonmotorized cart which is permitted to sell food, beverages, flowers or merchandise.

Waste container shall mean a standard garbage can of not less than twenty-gallon capacity and no more than fifty-gallon capacity. Waste containers must be furnished by the licensee.

Worker or *agent* shall mean a person who is licensed to vend under a master permit.
(Ord. No. 003-21, 6-14-21)

Cross reference—Definitions and rules of construction generally, § 1-2.

Secs. 27-2—27-25. Reserved.

ARTICLE II. ITINERANT VENDORS AND STREET VENDORS*

DIVISION 1. GENERALLY

Sec. 27-26. Scope.

(a) This article shall not apply to sales made to dealers by commercial travelers or selling agents in the usual course of business, nor to bona fide sales of goods, wares and merchandise by sample for future delivery when full payment is not required at the time of solicitation, nor to any sale of goods, wares or merchandise on the grounds of any incorporated agricultural society during the continuance of any annual fair held by such society. This article shall also not apply to such sales made by farmers and gardeners of the product of their farms and gardens, or to the sale, distribution and delivery of milk, teas, coffees, spices, groceries, meats and bakery goods, to sales on approval, or to conditional sales of merchandise.

(b) No Itinerant Vendor shall be relieved or exempted from the provisions and requirements of this article by reason of associating himself temporarily with any local dealer, auctioneer, trader or merchant, or by conducting any temporary or transient business in connection with or in the name of any local dealer, auctioneer, trader or merchant.
(Ord. No. 003-21, 6-14-21)

Sec. 27-27. Reserved.

Sec. 27-28. Business license required—Exceptions.

(a) No Itinerant Vendor, except one (1) exempt under the general statutes, shall sell or offer for sale in the city any goods, wares or merchandise, unless they-have obtained a business license to do so issued by the Director of the Department of Development Services or their assign and approved by the chief of police.

(b) No Street Vendor-, except one (1) exempt under the general statutes, shall sell or offer for sale in the city any goods, wares or merchandise, or carry on any trade or business upon the streets or sidewalks unless they have-obtained a license to do so issued by the Director of the Department of Development Services or their assign; provided, however, that no such license shall be required for sales by farmers and gardeners of the produce of their farms and gardens, or for the sale, distribution and delivery of milk, teas, coffees, spices, groceries, meats and bakery goods, or for sales on approval, or for conditional sales of merchandise.

(c) A person who violates any provision of this article may be summoned or brought to community court pursuant to P.A. 97-199. A person who is so summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this article.
(Ord. No. 003-21, 6-14-21)

State law reference—Hawkers and peddlers, G.S. § 21-36 et seq.

Sec. 27-29. Same—Certification of weights and measures prerequisite to issuance.

No license required by this article shall be issued until the weights and measures of the applicant, if any are to be used by them in their-business, have been approved and stamped by the sealer of weights and measures, and a certificate to that effect issued by the sealer of weights and measures has been exhibited to the chief of police.
(Ord. No. 003-21, 6-14-21)

Sec. 27-30. Same—Fees.

(a) The annual license fee for vendors shall be two hundred fifty dollars ($250.00) per year or portion thereof. A lost license shall be replaced upon presentation of proper identification and payment of duplication fee in the amount of

*__State law reference—__Authority to regulate peddlers, G.S. §§ 7-148(c)(7)(H)(iv), 21-37.

seventy-five dollars ($75.00). The fee for replacement of a temporary license shall be twenty-five dollars ($25.00).

(b) The license fee for vendors- shall entitle the vendor to personal identification required by section 27-325 and one (1) set of vehicle or stand identification required by section 27-31. Additional agents of such vendor operating under their vehicle or stand identification shall also be licensed pursuant to the provisions of this chapter at an additional fee of twenty dollars ($20.00) per agent for which only personal identification shall be issued.

(c) Notwithstanding subsections (a) and (b), there shall be no fee for a license issued to handicapped individuals or nonprofit organizations selling or offering for sale foodstuffs, novelties, crafts and similar items in connection with parades, bazaars and similar community events located within the city. Handicapped individuals and nonprofit organizations qualifying under this subsection shall be issued a permit by the Development Services Director or their assign stating that they are exempt from the licensing fee. Such permit shall be valid for the duration of the event or for a period not to exceed five (5) days, whichever is shorter. Sales under such permit shall be limited to the route of the parade or the location of the bazaar or community event.
(Ord. No. 003-21, 6-14-21)

Sec. 27-31. Vehicles to be marked.

Each person licensed under section 27-28 who uses a wagon, cart or vehicle in exercising their vocation shall have visibly affixed on the front of such wagon, cart or vehicle a sign designed and furnished by the Department of Development Services bearing the number of their license and the year of its issuance; in alphanumeric numerals and the words "Licensed Vendor, Hartford, Conn." in alphanumeric letters. Such sign shall be furnished by the Department of Development Services without expense to the person licensed.
(Ord. No. 003-21, 6-14-21)

Cross reference—Motor vehicles and traffic, Ch. 22.

Sec. 27-32. Badges to be worn by itinerant vendors.

Each person licensed as a vendor pursuant to section 27-28 shall, while exercising their vocation, wear conspicuously on their left breast an identification badge designed and furnished by the Department of Development Services without cost to the licensee with the words "Licensed Vendor, Hartford, Conn." and the number of their license and year of its issuance in numerals, plainly inscribed thereon. The license number on the badge must match that of the license issued to the vendor pursuant to section 27-28. A lost badge shall be replaced upon presentation of proper identification and payment of a replacement fee in the amount of twenty dollars ($20.00).
(Ord. No. 003-21, 6-14-21)

Sec. 27-33. Vendor operations.

(a) Each Itinerant Vendor shall be operated in accordance with all applicable statutes, ordinances, and regulations of the state and the city, and each Itinerant Vendor shall have obtained any permits, certificates, permissions, licenses, and authorizations required, and shall be able to present such documents upon request.

(b) Itinerant Vendors may operate between the hours of 9:00 a.m. and 9:00 p.m. Street vendors shall not vend between the hours of 9:00 p.m. and 9:00 a.m. on any day of the week.
(Ord. No. 003-21, 6-14-21)

Sec. 27-34. Same—Encroachment permit for state highways.

Notwithstanding the foregoing, parking a vending vehicle or setting up a vending table or display on a State highway or State right-of-way, shall be subject to State law, including the Department of Transportation encroachment permit requirements.
(Ord. No. 003-21, 6-14-21)

Sec. 27-35. Same—Vehicle registration.

If a motor vehicle is to be used, it must be properly registered with CT DMV and the operator must have a valid operator's license in their possession while vending. If a trailer is to be used it must be properly registered with the State and must comply with all Connecticut motor vehicle laws.
(Ord. No. 003-21, 6-14-21)

Sec. 27-36. Same—Leased vehicles.

If a leased motor vehicle is used, the Itinerant Vendor must have a copy of the lease agreement on hand while conducting business from the vehicle.
(Ord. No. 003-21, 6-14-21)

Sec. 27-37. Same—Vehicle or vendor table location.

(a) Vending shall not be conducted immediately in front of the entrance or exit to any building or driveway, in front of any mailbox or traffic signal, closer than twenty (20) feet to any fire hydrant, or within any bus stop or loading zone.

(b) All vehicles must be at least twenty (20) feet from an intersection in any District.

(c) Vehicles must be parked against the curb, with no appurtenances thereof on the sidewalk.

(d) No licensee, agent thereof, or worker may operate their business in a manner which impedes the free flow of traffic, or which violates the posted regulations or parking restriction in effect.

(e) Trailers may not be parked on sidewalks.

(f) Vendors may set up vending tables along sidewalks where ample space exists to leave a minimum four-foot wide passage and where the flow of traffic shall not be impeded.
(Ord. No. 003-21, 6-14-21)

Sec. 27-38. Same—Unattended vehicles.

No licensee, agent thereof, or worker shall leave their truck, wagon, trailer, vehicle, table, or cart unattended during hours engaged in sales, nor shall any truck, wagon, trailer, vehicle, table or cart be left parked in the public ROW overnight.
(Ord. No. 003-21, 6-14-21)

Sec. 27-39. Same—Curbside service.

Vehicles must have doors and windows that open along the curb side of the street to allow for sales and servicing of customers. No vendor may conduct business on the street side of the vehicle.
(Ord. No. 003-21, 6-14-21)

Sec. 27-40. Same—Displays.

No vending location shall have racks, placards, display boards or any device that is more than sixty (60) inches from the ground. For the purposes of this section, lattice boards, clothes lines and other similar appendages shall not be classified as racks, placards or display boards and are prohibited for use by vendors.

Vending tables and vending pushcarts may not exceed a height of sixty (60) inches from the ground.

Umbrellas and canopies associated with tables and pushcarts may not exceed a height of eighty-four (84) inches from the ground. No freestanding or portable signs or umbrellas shall be permitted in association with vehicles or pushcarts.
(Ord. No. 003-21, 6-14-21)

Sec. 27-41. Same—Waste and waster containers.

No licensee shall use any chair, container or table that does not comply with the requirements of this chapter. Licensees shall pick up all paper, food, cardboard, wood or plastic containers, wrappers or any similar type of litter which is deposited by the licensee or customers of the licensee before leaving their vending location for the day. The licensee shall provide and use a suitable waste container for the placement of such litter. It shall be a violation of this section for any licensee to dispose of litter in a municipal receptacle.
(Ord. No. 003-21, 6-14-21)

Sec. 27-42. Same—Special events.

(a) Itinerant Vendors shall be prohibited in areas that have been temporarily set aside via an obstruction permit for festivals and special events which have been authorized pursuant to Chapter 7, Article II of the Code without written consent from the Special Event permit holder. This restriction shall take effect four (4) hours prior to, during, and shall last for four (4) hours after such event.

(b) In approved festival and special events areas, authorized and duly permitted Itinerant Vendors shall have temporary and exclusive use, except that such use shall be in accordance with the existing City Code and State Statutes.

(c) The Director of Development Services or their designee responsible for issuance of Special Events permits shall be able to extend Itinerant Vendor beyond the 9:00 p.m. time limitation for specialized approvals.

(d) Itinerant Vendors shall be prohibited from the area within five hundred (500) feet of Dillon Stadium on all game days except with a Special Event permit.
(Ord. No. 003-21, 6-14-21)

Sec. 27-43. Public safety.

All licensees must maintain their vending pushcarts, vehicles and vending tables in a safe operating condition so as not to be injurious to the public health and safety. Licensees and their agents must be in compliance with all applicable state and local laws, rules, regulations and ordinances, including the provisions of this article.

Nuisance Products—Vendors shall be prohibited from engaging in sale of nuisance products including, but not limited to, items commonly known as Silly String, an aerosol can from which string-shaped foam-like material may be sprayed, and Smoke Bag or Instant Smoke, a plastic bag or tube-like container holding material which when exposed to air produces a quantity of smoke-like emission

The provisions of this article shall be enforced by the police department and Hartford Parking Authority. Failure of any Street or Itinerant Vendor to comply with the provisions of the article shall result in a citation and be cause for revocation of their license.
(Ord. No. 003-21, 6-14-21)

Cross reference—Police generally, Ch. 29.

Sec. 27-44. Suspension, revocation of license.

(a) The Director of development services or their assign shall have the power to suspend or revoke the license of any itinerant vendor or agent of such itinerant vendor who violates any of the provisions of this article, after due notice to the licensee.

(b) For a first violation of any of the provisions of this article, the licensee shall be issued a summons for unlawful parking or a citation for failure to comply with licensing, permit, identification badge or other requirements of this article not related to parking.

(c) For a second violation of any of the provisions of this article within a fiscal year, the Director may suspend the license of the licensee for a period of not less than thirty (30) days.

(d) For subsequent violations of this article within a fiscal year, the Director may revoke the license of the licensee for a period of not less than one (1) year from the date of revocation.

(e) An accumulation of three (3) violations on one (1) cart by an Itinerant Vendor or their agent within one (1) fiscal year, shall result in the revocation of the Itinerant Vendor's license for a period of not less than one (1) year. Notwithstanding the above, an Itinerant Vendor with more than one (1) license shall not be prohibited from operating another cart for which the Itinerant Vendor has a valid license.

(f) Any Itinerant Vendor who has their license revoked shall not be permitted to apply for additional licenses within that fiscal year.

(g) Any agent of an Itinerant Vendor who has not accumulated three (3) violations of this article at the time the peddler or Itinerant Vendor's license is revoked pursuant to subsection (e) of this section may apply for another license within that fiscal year.

(h) Upon receipt of a notice of revocation or suspension, the licensee shall return their license to the Director. A hearing before the Director or their designee may be requested by the licensee within ten (10) days after service of the notice. The petition for a hearing must be made in writing and signed by the petitioner. The petition shall state the facts and the grounds for appeal.

(i) The notice referred to in subsection (h) of this section shall be in writing and signed by the Director or his designee. The notice shall state the nature of the complaint and it shall be served on the licensee personally or by leaving it at the residence address as given in the application for such license.
(Ord. No. 003-21, 6-14-21)

Sec. 27-45. Restricted and prohibited vending areas.

(a) Vending is prohibited in all districts except in accordance with this Section.

(b) No Itinerant Vendor shall sell or attempt to effect the sale of goods, wares, or merchandise at any location within five hundred (500) feet of any recreation center or school, regardless of the zoning district in which such facility is located.

(c) For the purposes of this section, a recreation center is defined as a municipal building designated for the recreational activities of persons of all ages and interests.

(d) Itinerant Vendors shall not be permitted to vend on City-owned park land, except in association with a permitted Special Event.

(e) Street Vendors shall be permitted in the public right-of-way on commercial connector streets, avenues, and boulevards adjacent to property zoned CX, ID, MS, and DT on both sides of the street.

(f) Section 27-45(e) notwithstanding, Street Vendor operations shall not be permitted on residential or neighborhood streets, as defined by the Hartford Zoning Regulations.
(Ord. No. 003-21, 6-14-21)

Sec. 27-46. City to be indemnified; security required.

Every person who carries on any trade or business on the streets or sidewalks of the City shall indemnify the City and save it harmless from claims arising from injuries to persons or property caused by such trade or business. Before a license to carry on any such trade or business is issued, a surety company bond, public liability policy or other security approved by the purchasing agent shall be filed in an amount deemed by him to be adequate to indemnify the City for such injuries; provided, however, that the purchasing agent may, when he deems it advisable, issue a certificate waiving the requirement of such bond, policy or other security, and such certificate may be filed in place thereof.
(Ord. No. 003-21, 6-14-21)

Sec. 27-47. License application.

An application for a license under this division shall be submitted to the Director of Development Services or their assign. The application shall include but not be limited to the following information:

(1) Name and address of the applicant;

(2) The applicant's social security number and driver's license number;

(3) Type of vending operation to be conducted (either vending pushcart, vending vehicle, or vending table;

(4) If the type of operation to be conducted is a vending pushcart, vehicle or table, the type of flowers or merchandise to be sold;

(5) If food or beverages are to be sold, food truck provisions shall apply (reference Article IV).

(Ord. No. 003-21, 6-14-21)

Sec. 27-48. Same—Expiration date.

All licenses issued under this division shall, unless sooner revoked, expire on June thirtieth after the date of issuance.
(Ord. No. 003-21, 6-14-21)

Sec. 27-49. Penalty; appeal.

(a) The penalty for violating any of the provisions of this article where no specific penalty is otherwise provided for shall be a fine of ninety-nine dollars ($99.00).

(b) Any person issued a citation for violating any of the provisions of this article may, within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.
(Ord. No. 003-21, 6-14-21)

Sec. 27-50. Recordkeeping.

(a) It shall be the duty of the Development Services Director, or their designee, to keep a record of all such licenses granted, including the:

(1) Number and date of each license;

(2) Name, age and residence of the person licensed;

(3) Most recent approved schedule of locations for the mobile vendor;

(4) Amount of license fee paid;

(5) Submitted application and supporting documents; and

(6) Date of revocation of any license revoked.

It shall be the duty of the Executive Director of the Hartford Parking Authority, or their designee, to keep a record of all citations issued in relation to vendors operating vehicles.

(b) It shall be the duty of the Development Services Director, or their designee, to maintain individual and complete records up-to-date and to share them with the Executive Director of the Hartford Parking Authority, Chief of Police, and Director of Public Works or their designee(s) as applicable.
(Ord. No. 003-21, 6-14-21)

Secs. 27-51—27-75. Reserved.

DIVISION 2. MINORS

Sec. 27-76. Liability of parent for violation.

It shall be unlawful for any parent or other person having control of any minor to compel or permit such minor to violate the provisions of this division.
(Ord. No. 003-21, 6-14-21)

Sec. 27-77. Sales by minors unlawful.

No child under the age of twelve (12) years shall be allowed to sell, offer for sale, or help to sell, any article of merchandise on the streets or in any public place in the city.
(Ord. No. 003-21, 6-14-21)

Sec. 27-78. Work permit—Required; hours of work.

No child between the ages of twelve (12) and sixteen (16) years shall be allowed to sell, offer for sale, or help to sell, any article of merchandise or newspaper on the streets or sidewalks or in any public place in the city during the hours in which the school in which they are enrolled is in session, or earlier than 4:30 a.m. or later than 8:00 p.m., except on those occasions when an extra edition of a local newspaper is published, nor until such child has obtained a badge and a permit to do so issued by the Department of Development Services and approved by the superintendent of schools.
(Ord. No. 003-21, 6-14-21)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 27-79. Same—Application.

Application for the permit required by section 27-78 shall be made in the applicant's behalf by their parent or guardian, and shall be accompanied by a statement from the principal of the applicant's school giving the applicant's age and such other information as may be required by the superintendent of schools together with the principal's approval indicating that the applicant's physical condition is such that they may ply their street trade without harmful effect, and that engaging in such street trade is not against the educational interests of the applicant. When the school is not in session or the principal is not available, the superintendent may make his determination on available evidence.
(Ord. No. 003-21, 6-14-21)

Sec. 27-80. Same—Issuance; renewal; revocation.

The permit required by section 27-78 shall be issued and renewed by the Department of Development Services in the discretion of the superintendent of schools under such restrictions as they shall deem expedient, and shall be revocable at their discretion after consultation with the parent or guardian of the holder of such permit.
(Ord. No. 003-21, 6-14-21)

Sec. 27-81. Same—Records of superintendent of schools.

The superintendent of schools shall keep a record of all permits issued to minors as required in section 27-78 in a file provided for that purpose, giving the number and date of each permit, the name, age and residence of the person to whom issued, and the date of revocation of all permits revoked.
(Ord. No. 003-21, 6-14-21)

Sec. 27-82. Same—Expiration date.

All permits for minors to carry on street sales issued under this division shall, unless sooner revoked, expire on June thirtieth after the date of issuance.
(Ord. No. 003-21, 6-14-21)

Secs. 27-83—27-95. Reserved.

DIVISION 3. NEWSSTANDS

Sec. 27-96. License—Authorized.

The Department of Development Services may, with the approval of the Director of Public Works, grant a license to persons to operate newsstands on sidewalks for the sale of newspapers, magazines, cigars, cigarettes and other tobacco products, candy and snacks such as potato chips, pretzels, nuts, etc., in sealed containers, provided that such persons qualify under rules and regulations promulgated by the Director of Public Works and approved by the City Council, and that the consent of the abutting owners and the abutting street-level lessees have been secured.
(Ord. No. 003-21, 6-14-21)

Sec. 27-97. Same—Order of priority for granting.

For the purpose of granting licenses under this division, the following order of priority shall be followed:

(1) Present operators;

(2) Persons certified or approved by the board of education and services for the blind;

(3) Other disabled or handicapped persons;

(4) Residents of the city;

(5) Other applicants.
(Ord. No. 003-21, 6-14-21)

Sec. 27-98. Same—Suspension and revocation; appeal procedure.

The Director of Public Works may suspend any license for thirty (30) days, or revoke any license or the renewal thereof in case the space occupied by any such stand is needed by the city for any purpose or for the violation of any regulation promulgated under section 27-96 and approved by the City Council. Any person aggrieved by such revocation or by failure to be granted a license or a renewal thereof may appeal to the Director of Development Services or their assign for a hearing. Such appeal may be filed by filing a notice of appeal in writing specifying the grounds thereof within fifteen (15) days of the making of the order, requirement or decision complained of, with the Director of Development Services or their assign. The Director of Development Services or their assign may, in their discretion, extend the time of filing the notice of appeal. If the aggrieved person has had their license suspended, revoked or a renewal thereof denied, the filing of the notice of appeal shall stay all proceedings in the action appealed from. The Director of Development Services or their assign shall fix a reasonable time for the hearing of any appeal, and shall give notice to the parties, and decide the same within a reasonable time. At such hearing, any party may appear in person or by agent or attorney. The Director of Development Services or their assign may reverse, affirm or modify the order, requirement or decision appealed from, and such decision shall be final. Any person aggrieved by a decision of the Director of Development Services or their assign in connection with such hearing may seek relief therefrom as provided by the laws of this state.
(Ord. No. 003-21, 6-14-21)

Sec. 27-99. Same—Fee, expiration.

The fee for a license pursuant to this division shall be fifteen dollars ($15.00) for the first year

or portion thereof and for each renewing year or portion thereof, shall be five dollars ($5.00). All licenses, unless revoked, shall expire on June thirtieth succeeding the date of the issue thereof.
(Ord. No. 003-21, 6-14-21)

Sec. 27-100. Furnishing, maintenance of stands.

Newsstands shall be furnished by the city according to specifications set by the Director of Public Works. Newsstand operators shall pay the amortized annual cost of installing the newsstands as determined by the City, together with the amortized annual cost of maintaining such newsstands as determined by the City. Such payment shall be made at the time licenses are issued and renewed and shall be in addition to license fees set forth in section 27-98. The licensee shall pay all operating utility costs.
(Ord. No. 003-21, 6-14-21)

Secs. 27-101—27-120. Reserved.

ARTICLE III. FOOD TRUCKS

Sec. 27-121. Licensing.

Food truck licensees, workers, and agents offering hot or cold food items or beverages to the public must obtain both, a food service license from the Department of Health and Human Services and a mobile vendor license from the Department of Development Services.

Failure to obtain and maintain both a food service license and mobile vendor license shall constitute an unlicensed Food Truck.

Unless sooner revoked, licenses shall be valid for one year, on a pro-rated basis and shall expire on June thirtieth after the date of issuance.
(Ord. No. 003-21, 6-14-21)

Sec. 27-122. Same—Vehicles to be marked.

Each licensed Vendor who uses a vehicle in offering food, beverages, ice cream or like novelty food items to the public shall have visibly affixed on the front of such vehicle a sign designed and furnished by the Department of Health and Human Services bearing the number of their license and the year of its issuance in alphanumeric numerals and the words "Licensed Vendor, Hartford, CT." in alphanumeric letters. Such sign shall be furnished by Department of Health and Human Services without expense to the person licensed.
(Ord. No. 003-21, 6-14-21)

Sec. 27-123. Same—Badges to be worn by vendors.

Each person licensed as a food truck operator, while offering food, beverages, ice cream or like novelty food items to the public, shall wear conspicuously an identification badge designed and furnished by the Department of Development Services without cost to the licensee with the words "Licensed Vendor, Hartford, CT" and the number of their license and year of its issuance in alphanumeric numerals, plainly inscribed thereon. The license number on the badge must match that of the license issued to the vendor pursuant to this section. All Food Truck operators must display their vending license, food service permit, and wear their City-issued badge at all times while vending. Licenses are not transferable to other vehicles or Vendors.

A lost badge shall be replaced upon presentation of proper identification and payment of a replacement fee in the amount of twenty dollars ($20.00).
(Ord. No. 003-21, 6-14-21)

Sec. 27-124. City to be indemnified; security required.

Every person who carries on any trade or business on the streets or sidewalks of the City shall indemnify the City and save it harmless from claims arising from injuries to persons or property caused by such trade or business. Before a license to carry on any such trade or business is issued, a surety company bond, public liability policy or other security approved by the purchasing agent shall be filed in an amount deemed by them to be adequate to indemnify the City for such injuries; provided, however, that the purchasing agent may, when they deem it advisable,

issue a certificate waiving the requirement of such bond, policy or other security, and such certificate may be filed in place thereof.
(Ord. No. 003-21, 6-14-21)

Sec. 27-125. Food truck operations.

(a) Each Food Truck shall be operated in accordance with all applicable statutes, ordinances, and regulations of the state and the City, and each Food Truck operator shall have obtained any permits, certificates, permissions, licenses, and authorizations required, and shall be able to present such documents upon request.

(b) Food Trucks may operate between the hours of 7:00 a.m. and 9:00 p.m. Food Trucks shall not vend between the hours of 9:00 p.m. and 7:00 a.m. on any day of the week.

(c) Section 27-125(b) notwithstanding, there shall be a minimum of two (2) designated zones identified on a Mobile Vendor Permitted Locations Map where operations in the public right-of-way may extend to midnight (12:00 a.m.).

(d) Section 27-125(b) notwithstanding, where specific permits, such as Special Event Permits for temporary festivals and events, have been obtained from the City and state as applicable, food trucks may operate in the public right-of-way past 9:00 p.m.

(e) Food Truck Operation shall be permitted in the public right-of-way on residential connector streets, commercial connector streets, avenues, and boulevards adjacent to property zoned CX, ID, MX (where property is designated as a Campus Overlay), and OS.

(f) Notwithstanding the foregoing, Food Truck operation shall not be permitted on neighborhood streets, as defined by the Hartford Zoning Regulations.

(g) In the right-of-way adjacent to the DT districts and TOD Overlay districts, Food Truck operation shall be permitted in and assigned to specific designated zones. These zones shall be accessed exclusively by pre-approved food truck operators.

(h) In Districts other than DT/TOD, no Food Truck will be permitted to reserve a parking space for operations either through its license application or other means.

(i) Food Trucks operating on private or City-owned property shall be subject to the City's zoning regulations.
(Ord. No. 003-21, 6-14-21)

Sec. 27-126. Same—Inspections.

Food Trucks shall be available for inspection by the City at all times that they are in operation. As used herein, the "City" shall refer to inspectors from the Department of Health & Human Services and/or the Department of Development Services. Inspection by the City shall also include Hartford Police inspections of permits and licenses.
(Ord. No. 003-21, 6-14-21)

Sec. 27-127. Same— Encroachment permit for State highways.

Notwithstanding the foregoing, parking a food truck on a State highway or State right-of-way, shall be subject to State law, including the Department of Transportation encroachment permit requirements.
(Ord. No. 003-21, 6-14-21)

Sec. 27-128. Same—Vehicle registration.

If a motor vehicle is to be used, it must be properly registered with CT DMV and the Vendor must have a valid operator's license in their possession while vending. If a trailer is to be used it must be properly registered with the State and must comply with all Connecticut motor vehicle laws.
(Ord. No. 003-21, 6-14-21)

Sec. 27-129. Same—Leased vehicles.

If a leased motor vehicle is used, the food truck licensee or operator must have a copy of the lease agreement while conducting business from the vehicle.
(Ord. No. 003-21, 6-14-21)

Sec. 27-130. Same—vehicle location.

(a) Vending shall not be conducted immediately in front of the entrance or exit to any building or driveway, in front of any mailbox or traffic signal, closer than twenty (20) feet to any fire hydrant, or within any bus stop or loading zone.

(b) All Food Trucks must be at least twenty (20) feet from an intersection in any District.

(c) Food Trucks and vehicles must be parked against the curb, with no appurtenances thereof on the sidewalk. No Food truck licensee, operator, or worker may operate in a manner which impedes the free flow of traffic, or which violates the posted regulations or parking restrictions in effect.

(d) Trailers may not be parked on sidewalks.
(Ord. No. 003-21, 6-14-21)

Sec. 27-131. Same—Unattended vehicles.

No food truck licensee, operator, or worker shall leave their truck, wagon, trailer, vehicle or cart unattended during hours engaged in sales, nor shall any truck, wagon, trailer, vehicle or cart be left parked in the public ROW overnight.
(Ord. No. 003-21, 6-14-21)

Sec. 27-132. Same—Curbside Service.

Food Trucks must have doors and windows that open along the curb side of the street to allow for sales and servicing of customers. No Food Truck may conduct business on the street side of the vehicle.
(Ord. No. 003-21, 6-14-21)

Sec. 27-133. Same—Waste containers.

All Food Trucks shall be equipped with their own waste container. Waste generated by the Vendor shall be disposed of in their own receptacle and hauled away from the site. Any waste left on the ground or in the area around the vehicle must be removed prior to vacating the area.
(Ord. No. 003-21, 6-14-21)

Sec. 27-134. Same—Power source.

All power sources, including but not limited to tanks or generators, used in connection with the vending operation shall either be placed inside or affixed to the vehicle or cart. No cords, hoses or other appurtenances shall create trip hazards, block or impede the free flow of traffic in the public right-of-way. Power sources shall be maintained in good working order and shall be shielded in a manner to effectively reduce noise levels.
(Ord. No. 003-21, 6-14-21)

Sec. 27-135. Same—Lighting and sound systems.

No person shall use, play or employ any sound, outcry, amplifier, loudspeaker, or any other instrument or device for the production of sound from a food truck or otherwise create a disturbance of the peace. Operators shall comply with the City's Noise Ordinance (reference Hartford Municipal Code Chapter 23)

Dynamic displays, as defined by the Hartford Zoning Regulations are not permitted.
(Ord. No. 003-21, 6-14-21)

Sec. 27-136. Same—Signage; awnings and umbrellas.

Signage and awnings shall be affixed to the vehicle so as to not interfere with motor vehicle site lines nor pedestrian sidewalk access. No freestanding or portable signs or umbrellas shall be permitted in association with vehicles or pushcarts.
(Ord. No. 003-21, 6-14-21)

Sec. 27-137. Same—Equipment and personal property.

No tents, dining tables, seating, equipment or personal property shall be permitted to be placed outside of the food truck, unless they are placed and managed by the City or on private property. Placing condiments and other related items on shelves which are attached to the vehicle is permitted.
(Ord. No. 003-21, 6-14-21)

Sec. 27-138. Same—Deliveries.

In the interest of public safety, including traffic safety, licensees shall be prohibited from

receiving deliveries in conjunction with their business operation when the food truck is located on a State highway, public street or City property.
(Ord. No. 003-21, 6-14-21)

Sec. 27-139. Restricted and special vending areas.

(a) No food truck licensee, operator, or worker shall sell or attempt to effect the sale food, beverages, or ice cream, from any vehicle at any location within five hundred (500) feet of any recreation center or school, regardless of the zoning district in which such facility is located. Food vending pushcarts shall be restricted to a fifty (50) foot buffer.

(b) For the purposes of this section, a recreation center is defined as a municipal building designated for the recreational activities of persons of all ages and interests.

(c) Notwithstanding the above, there shall be no prohibition on vending within five hundred (500) feet of a recreation center which is located in city-owned park land.

During emergency situations or periods of civil emergency, food trucks may be prohibited from stopping or vending along any roads or paths within any City of Hartford park (OS districts) while the emergency situations or periods of civil emergency restrictions remain in effect.
(Ord. No. 003-21, 6-14-21)

Sec. 27-140. Same—Special events.

(a) Food trucks shall be prohibited in areas that have been temporarily set aside via an obstruction permit for festivals and special events which have been authorized pursuant to Chapter 7, Article II of the Code without written consent from the Special Event permit holder. This restriction shall take effect four (4) hours prior to, during, and shall last for four (4) hours after such event.

(b) In approved festival and special events areas, duly permitted food truck licensees, operator and their workers shall have temporary and exclusive use, except that such use shall be in accordance with the existing City Code and State Statutes.

(c) The Director of Development Services or their designee responsible for issuance of Special Events permits shall be able to extend Food Truck operations beyond the 9:00 p.m. time limitation for specialized approvals.

(d) Food Trucks shall be prohibited from the area within five hundred (500) feet of Dillon Stadium on all game days except with a Special Event permit.
(Ord. No. 003-21, 6-14-21)

Sec. 27-141. Designated vendor zones.

(a) Vending is prohibited in all districts except where noted on the City of Hartford Mobile Vendor Permitted Locations Map or in accordance with Article VII of this chapter.

(b) Roadways and other public rights-of-way adjacent to DT, TOD zoning districts and other districts as assigned shall have delineated zones within which to accommodate Food Truck operations.

(c) Named vendor zones shall be identified on a map and physically delineated in public with signage by the Hartford Parking Authority. There shall not be additional fees imposed on food truck operators for the right to use these zones.

(d) Food truck licensees shall request assignment to these zones via the annual license renewal application. During such time, licensees shall identify the day(s) and time(s) they would like to use the zone.

(e) An approved Schedule of Locations, to be stamped and delivered by the Director of Development Services or their designee, with the operator's license, shall serve as proof for enforcement officials that the vendor may utilize a specific zone.
(Ord. No. 003-21, 6-14-21)

Sec. 27-142. Enforcement.

All food trucks shall be legally parked in full compliance with all parking provisions which apply to the location at which the food truck is parked. Whenever any food truck is found parked in violation of this section or found in violation of any ordinance, rule, or regulation as provided in

Municipal Code Chapter 22, a police officer or representative of Hartford Parking Authority shall attach to such vehicle a citation.

(1) Sections 27-125(c) and 27-125(d) notwithstanding, food truck parking in the public right-of-way is prohibited from 10:00 p.m.—6:00 a.m.

(2) Sections 27-125(c) and 27-125(d) notwithstanding, food truck operations in the public right-of-way is prohibited from 9:00 p.m.—7:00 a.m. notwithstanding the Restricted/Special Vending Areas section of this policy.

(3) Food trucks shall not be placed or operated so as to impede vehicular traffic's use of the streets or pedestrian traffic's use of the sidewalk.

(4) Any food truck operating without valid licenses and/or permits obtained, displayed, or worn as required by this ordinance shall be deemed a public safety hazard and may be ticketed, towed or impounded.

(5) Unattended Vehicles prohibited. Any Food Truck which is parked on the street overnight or left unattended and unsecured at any time shall be considered a public safety hazard and may be ticketed and impounded.

(6) A Food Truck operating in an unauthorized location, or beyond the hours for which the operation has been permitted shall be deemed operating without a permit in violation of this section and may be ticketed, towed or impounded.

(7) A Food Truck operating in the Public Right-of-Way in violation of any section of this article may be ticketed, towed or impounded.

(Ord. No. 003-21, 6-14-21)

Sec. 27-143. Same—Fines for violation.

Any Food Truck licensee found to be in violation of any provision of this section, ordinance, or applicable rules and regulations may be subject to a fine issued in the form of a ticket.

(1) Tickets/citations issued shall be two hundred dollars ($200.00) for each offense.

(2) Each day of violation shall constitute a separate and distinct offense.

(3) Appeals will be managed in accordance with Municipal Code Section 1-5.

(4) In addition to any other penalty prescribed for a violation of parking, any unpaid parking violations may also constitute grounds for denial of the issuance or renewal of a Vendor license.

(Ord. No. 003-21, 6-14-21)

Sec. 27-144. Same—Suspension, revocation of license.

Once a food service license has been issued, it may be revoked, suspended, modified, or not renewed by the Director of Health & Human Services, or their designee, in accordance with Chapter 14 of the Municipal Code.

Once a Food truck vendor license has been issued, it may be revoked, suspended, modified, or not renewed by the Director of Development Services ("the director"), or their designee, with due notice to the vendor or vendor's agent, in accordance with this section and/or by referral from the Director of Health & Human Services, Executive Director of the Hartford Parking Authority, or Chief of Police.

(1) The director, or their designee, may revoke the license of the licensee for a period of not less than thirty (30) days and not more than one (1) year from the date of revocation.

(2) Notwithstanding the above, a licensee with more than one (1) license shall not be prohibited from operating another food truck for which the licensee has a valid license.

(3) Any licensee who has accumulated three (3) violations of this article, whether consecutively or concurrently, at the time the license is revoked shall not be permitted to apply for additional licenses within that permit year.

(4) Upon receipt of a notice of revocation or suspension, the licensee shall return their license to the Director or their designee.

A hearing before the Director or their designee, may be requested by the licensee within ten (10) days after service of the notice. The petition for a hearing must be made in writing and signed by the petitioner. The petition shall state the facts and the grounds for appeal.

(5) The notice referred to in this section shall be in writing and signed by the Director or their designee. The notice shall state the nature of the complaint and it shall be served on the licensee personally or by certified mail delivered to the residence address as given in the application for such license.

(Ord. No. 003-21, 6-14-21)

Sec. 27-145. Reserved.

Sec. 27-146. Fees—Food truck vendor license—Issued by department of development services.

(a) The annual license fee for vendors shall be two hundred fifty dollars ($250.00) per year or portion thereof, in all cases. A lost license shall be replaced upon presentation of proper identification and payment of duplication fee in the amount of seventy-five dollars ($75.00). The fee for replacement of a temporary license shall be twenty-five dollars ($25.00).

(b) The license fee for vendors shall entitle the vendor to personal identification required by these regulations and one (1) vehicle or cart identification badge required by these regulations. Additional agents of such vendor shall be licensed pursuant to the provisions of this chapter at an additional fee of twenty dollars ($20.00) per agent.

(c) Notwithstanding subsections (a) and (b), there shall be no fee for a license issued to handicapped individuals or nonprofit organizations selling or offering for sale food stuffs or similar items in connection with parades, bazaars and similar community events located within the city. Disabled individuals and nonprofit organizations qualifying under this subsection shall be issued a permit stating that they are exempt from the licensing fee. Such permit shall be valid for the duration of the event or for a period not to exceed five (5) days, whichever is shorter. Sales under such permit shall be limited to the route of the parade or the location of the bazaar or community event.

(d) No person holding a permit for a Food Truck shall sell, lend, lease or in any manner transfer a vendor license, inclusive of when multiple vehicles are under common ownership. Licenses are issued to individual businesses.

(e) Licenses shall be renewed annually.

(Ord. No. 003-21, 6-14-21)

Sec. 27-147. Same—Food service license—Issued by health and human services.

(a) No person shall operate a food establishment who does not have a valid license issued by the Director of Health in accordance with Chapter 14 of the Municipal Code.

(b) Licenses are not transferable and shall be renewed annually.

(Ord. No. 003-21, 6-14-21)

Sec. 27-148. Recordkeeping.

(a) It shall be the duty of the Director of Development Services, or their designee, to keep a record of all such licenses granted, including the:

(1) Number and date of each license;

(2) Name, age and residence of the person licensed;

(3) Most recent approved schedule of locations for the mobile vendor;

(4) Amount of license fee paid;

(5) Submitted application and supporting documents;

(6) List of citations issued by Zoning Enforcement on private property and;

(7) Date of revocation of any license revoked.

It shall be the duty of the Executive Director of the Hartford Parking Authority, or their designee, to keep a record of all citations issued in relation to food trucks, and to share that

information with the Director of Development Services and Director of Health & Human Services or their designee(s). It shall be the duty of the Chief of Police, or their designee, to keep a record of all citations issued in relation to food trucks and to share that information with the Director of Development Services and Director of Health & Human Services or their designee(s).

(b) It shall be the duty of the Director of Development Services, or their designee, to maintain individual food truck vendor records up-to-date, complete with application information and records of violation, and to share that information with the Executive Director of the Hartford Parking Authority, Chief of Police, and Director of Health & Human Services or their designee(s) as applicable.
(Ord. No. 003-21, 6-14-21)

Secs. 27-149—27-169. Reserved.

ARTICLE IV. ICE CREAM TRUCKS

Sec. 27-170. General provisions.

Each food truck vendor license issued by the Department of Development Services specifically for ice cream trucks shall be subject to the terms and conditions set out in Section 27-125 Food Trucks unless otherwise specified herein.
(Ord. No. 003-21, 6-14-21)

Sec. 27-171. Reserved.

Sec. 27-172. Ice cream truck operations—Place of operation.

(a) Ice cream trucks shall be exempt from following the Permitted Locations Map. Sales from ice cream trucks shall be limited to streets that have a posted twenty-five (25) miles per hour speed limits or less.

(b) No sales shall be made while an ice cream truck is parked within fifty (50) feet of any intersection with any public street or streets as measured along the traveled way.

(c) No person shall stop to vend from an ice cream truck within one hundred and fifty (150) feet of another ice cream truck that has already stopped to vend.
(Ord. No. 003-21, 6-14-21)

Sec. 27-173. Same—Manner of operation.

(a) Ice cream trucks shall be equipped with warning flashers. Warning flashes shall be in operation immediately upon the truck stopping to vend and shall cease operation as the truck begins to move after vending.

(b) A sign or signs shall be painted or affixed to the rear of each truck and shall read "CAUTION CHILDREN" in English and Spanish.

(c) Ice cream trucks shall comply with additional safety requirements as specified by the State of Connecticut.

(d) No person shall back up or reverse an ice cream truck in order to make or attempt to make a sale.
(Ord. No. 003-21, 6-14-21)

Sec. 27-174. Same—Hours of operation.

Sales from ice cream trucks shall be limited to the hours of 10:00 a.m. to 7:00 p.m. or one-half hour after sunset whichever occurs first.
(Ord. No. 003-21, 6-14-21)

Sec. 27-175. Same—Noise restrictions.

(a) No person shall use, play or employ any sound, outcry, amplifier, loudspeaker, or any other instrument or device for the production of sound from an ice cream truck when the ice cream truck is stationary- stopped, standing, or parked.

(b) No person shall use, play or employ any sound, outcry, amplifier, loudspeaker, or any other instrument or device for the production of sound from an ice cream truck after one-half (½) hour after sunset.

(c) No person shall use, play or employ any sound, outcry, amplifier, loudspeaker, or any other instrument or device for the production of sound from an ice cream truck in such a manner as to create a disturbance of the peace.

(d) The chief of police may set reasonable restrictions on the type and use of any amplifier, loudspeaker, or any other instrument or device for the production of sound employed on an ice cream truck in order to prevent a disturbance of the peace, in alignment with Hartford Municipal Code Chapter 23.
(Ord. No. 003-21, 6-14-21)

Secs. 27-176—27-196. Reserved.

ARTICLE V. VENDING PUSHCARTS

Sec. 27-197. General provisions.

Each food truck vendor license issued by the Department of Development Services specifically for vending pushcarts shall be subject to the terms and conditions set out in Section 27-125 Food Trucks unless otherwise specified herein.
(Ord. No. 003-21, 6-14-21)

Sec. 27-198. Hours of operation.

Sales from vendor pushcarts shall be between the hours of 7:00 a.m. and midnight.
(Ord. No. 003-21, 6-14-21)

Sec. 27-199. Vending pushcart operations.

(a) Vendor pushcarts shall be permitted in the public right-of-way on commercial connector streets, avenues, and boulevards as defined by the Hartford Zoning Regulations.

(b) Vending carts are to be located fully within the boundaries of paved sidewalk surface and/or tree belt. On those streets where no paved sidewalk exists, carts shall be placed as to not interfere with pedestrian or vehicular traffic.

(c) Vending carts used on sidewalks can be no larger than four feet nine inches (4'9") high five feet eight inches (5'8") long and three feet six inches (3'6") wide. Each vending cart must be equipped with wheels.

(d) Carts must be positioned to allow an unobstructed pedestrian walkway of at least four (4) feet in width. Where a four-foot width is not possible, vending shall be prohibited.
(Ord. No. 003-21, 6-14-21)

Sec. 27-200. Same—Waste containers.

Each cart must be equipped with a trash container affixed to it for disposing of trash, litter, garbage and other waste connected with the vending operation. No street vendor shall leave any location without first picking up and removing all trash remaining from their sales.
(Ord. No. 003-21, 6-14-21)

Sec. 27-201. Same—Sales from pushcarts.

(a) Pushcart vendors shall not stop to make a sale or attempt to sell in any intersection in any District.

(b) Vending shall not be conducted immediately in front of the entrance or exit to any building or driveway.

(c) Pushcart vendors shall not block any mailbox, traffic signal, fire hydrant, crosswalk, handicap ramp, bus stop or loading zone.
(Ord. No. 003-21, 6-14-21)

Sec. 27-202. Signage, awning, and umbrellas.

(a) Umbrellas and canopies associated with vending pushcarts may not exceed a height of eighty-four (84) inches from the ground. No street vendor shall use, set up or attach any device to increase the selling display capacity of the cart.

(b) Restricted and Special Vending Areas. Food vending pushcarts shall be restricted and shall not attempt to vend within a fifty (50) foot buffer of any recreation center or school.
(Ord. No. 003-21, 6-14-21)

Secs. 27-203—27-223. Reserved.

ARTICLE VI. MOBILE VENDOR PERMITTED LOCATIONS MAP

Sec. 27-224. Mobile vendor permitted locations map.

(a) Permissible vending zones shall be identified on a map for ease of access and understanding by the public. The map shall be available on the City of Hartford website.

(b) The Hartford Parking Authority, together with the Department of Development Services and Hartford Police, may amend the locations from which vending shall be permitted under this section in the interest of the public health, safety, welfare, neighborhood quality of life and to accommodate traffic circulation.

(c) In the event that amendments are made to this map, all vendors licensed by the City of Hartford at the time of the change shall receive electronic or physically written notification.
(Ord. No. 003-21, 6-14-21)

Chapter 28

PLANNING AND DEVELOPMENT*

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ARTICLE I. IN GENERAL

Sec. 28-1. Alternate members of planning and zoning commission.

(a) There shall be three (3) alternate members nominated by the mayor and confirmed by the council as provided in chapter III of the Charter, to the planning and zoning commission, such alternate members to be electors of the city. Every year one (1) alternate member shall be appointed to serve for three (3) years. Such alternate members shall, when seated as provided in this section, have all the powers and duties set forth in the General Statutes and the Charter for the commission and its members. Such alternate members shall not be members of the council or of the zoning board of appeals and shall serve without compensation.

(b) If a regular member of the commission is absent, he may designate, in writing, an alternate member of the commission to act in his place. If he fails to make such designation or if he is disqualified, the chairman of the commission shall designate an alternate to so act, choosing alternates in rotation so that they shall act as nearly equal a number of times as possible. If any alternate is not available in accordance with such rotation, such fact shall be recorded in the minutes of the meeting.
(Code 1977, § 27-1; Ord. No. 003-20, 6-22-20)

Sec. 28-2. Alternate members of zoning board of appeals.

(a) There shall be three (3) alternate members nominated by the mayor and confirmed by the council as provided in chapter III of the Charter to the zoning board of appeals. Such alternate members shall be electors of the city. Every year, one (1) alternate member shall be appointed to serve for three (3) years. Such alternate members shall, when seated as provided in this section, have all the powers and duties set forth in the General Statutes and the Charter for the board and its members. Such alternate members shall not be members of the council or of the planning and zoning commission and shall serve without compensation.

(b) If a regular member of the board is absent, he may designate in writing an alternate member of the board to act in his place. If he fails to make such designation or if he is disqualified, the chairman of the board shall designate an alternate to so act, choosing alternates in rotation so that they shall act as nearly equal a number of times as possible. If any alternate is not available in accordance with such rotation, such fact shall be recorded in the minutes of the meeting.
(Code 1977, § 27-2; Ord. No. 003-20, 6-22-20)

Cross reference—Zoning board of appeals, Ch. XIX, § 9.

State law references—Alternates, G.S. § 8-5; designation of alternate to act, G.S. § 8-5a; authority for ordinance, G.S. § 8-5b.

Sec. 28-3. Reserved.

Editor's note—Ord. No. 003-20, adopted June 22, 2020, repealed § 28-3, which pertained to alternate members of zoning commission and derived from Code 1977, § 27-3.

Sec. 28-4. Adoption of General Statutes on planning and zoning; establishment of planning and zoning commission.

(a) As required by the Charter as revised, the city hereby adopts the provisions of Chapter 124 of the General Statutes.

(b) As required by the Charter as revised, the city hereby adopts the provisions of Chapter 126 of the General Statutes.

(c) Pursuant to the Charter as revised and the General Statutes, the commission on the city plan is hereby designated as the city's planning and zoning commission with all the powers and duties of both a planning commission and a zoning commission under the General Statutes. The planning and zoning commission hereby established supersedes the commission on the city plan as the city's planning commission and the council as the city's zoning commission.

(d) Said planning and zoning commission shall be comprised of seven (7) electors of the city, not counting nonvoting members who, pursuant to the Charter as revised, initially shall be the members of the commission on the city plan at the time of the establishment of the planning and zoning commission. Any rules of whatever nature governing the appointment, removal,

terms, alternates, officers, records, meetings, and organization of the commission on the city plan in effect immediately prior to the establishment hereby of the planning and zoning commission shall continue in full force and effect and shall govern the planning and zoning commission, insofar as permitted by and not superseded by the General Statutes.

(e) Without limiting the foregoing subsection in any way, all ordinances and regulations adopted by the council and the commission on the city plan related to planning and zoning in effect immediately prior to the establishment hereby of the planning and zoning commission shall continue in full force and effect, insofar as permitted by and not superseded by the General Statutes.

(f) The city council and municipal agencies shall not take final action on any of the activities defined in General Statutes section 8-24 until such action shall be referred to the planning and zoning commission, and the commission shall have reported thereon, provided the council or agency may assume that a failure of such commission to report within thirty-five (35) days after the date of official submission is an approval of such proposal. A proposal disapproved by the commission shall be treated in accordance with G.S. § 8-24.
(Ord. No. 54-03, 12-22-03; Ord. No. 003-20, 6-22-20)

Editor's note—Ord. No. 14-96, adopted June 24, 1996, deleted § 28-4 in its entirety. Formerly, such section pertained to department of planning and derived from § 27-4 of the 1977 Code; Ord. No. 9-86, 5-27-86; Ord. No. 40-90, 6-25-90; Ord. No. 29-94, 8-8-94; Ord. No. 16-95, 7-10-95. Ord. No. 54-03, adopted Dec. 22, 2003, added new provisions to the Code as § 28-4.

Sec. 28-5. Coordinator of planning and development.

There is hereby established the position of departmental coordinator whose title shall be coordinator of planning and development. The city manager is hereby authorized to appoint a coordinator of planning and development whose duties shall be as prescribed by the city manager, and who shall serve at the pleasure of the city manager.
(Code 1977, § 27-4.1)

Cross reference—City manager. Ch. V.

Sec. 28-6. Planning and zoning commission designated inland wetlands agency.

The planning and zoning commission of the city is designated as the inland wetlands agency of the city. Such inland wetlands agency shall have all powers which are granted to inland wetlands agencies, as provided by law.
(Code 1977, § 27-5; Ord. No. 003-20, 6-22-20)

State law reference—Authority to designate, G.S. § 22a-42(c).

Sec. 28-7. Reserved.

Editor's note—Ord. No. 003-20, adopted June 22, 2020, repealed § 28-7, which pertained to establishment of energy improvement districts and derived from Ord. No. 06-14, adopted April 28, 2014.

Secs. 28-8—28-25. Reserved.

ARTICLE II. REGIONAL COUNCIL OF ELECTED OFFICIALS

Sec. 28-26. Membership by city.

The city does hereby join the regional council of elected officials, as defined by G.S. § 4-124c created by ordinances of the towns, cities and boroughs within its planning region as defined by the director of the office of state planning.
(Code 1977, § 27-15)

Sec. 28-27. City's representative.

The representative to the regional council shall be a member of the council to be chosen by the council.
(Code 1977, § 27-16)

Sec. 28-28. Powers, purposes, responsibilities and duties.

The regional council shall have such powers, purposes, responsibilities and duties as stated in G.S. § 4-124d et seq.
(Code 1977, § 27-17)

Secs. 28-29—28-45. Reserved.

ARTICLE III. CAPITOL REGION PLANNING AGENCY

Sec. 28-46. Membership by city.

Pursuant to the provisions of G.S. § 8-31a, the city, having a duly constituted planning commission, hereby adopts Chapter 127 of the General Statutes, as amended, and joins in the creation of the capitol region planning agency as defined by the director of the office of state planning, which planning region includes the municipalities of Avon, Bloomfield, Bolton, East Granby, East Hartford, East Windsor, Ellington, Farmington, Glastonbury, Hartford, Manchester, Newington, Rockville, Rocky Hill, Simsbury, South Windsor, Tolland, Vernon, West Hartford, Wethersfield, Windsor and Windsor Locks.
(Code 1977, § 27-28)

Sec. 28-47. City representation.

(a) The city, according to the last census figure, shall have five (5) representatives on the capitol region planning agency, who shall be appointed as follows:

The mayor and council are hereby authorized to appoint to the capitol region planning agency four (4) electors of the city in the following manner:

All appointments shall be made for periods of two (2) years. The city planning commmission is hereby authorized to appoint to the capitol region planning agency one (1) elector of the city to serve two (2) years.

(b) Appointees under this section shall continue to serve after expiration of their term until their successor is appointed and takes office. Appointees

may be reappointed for successive terms. Terms of office of initial appointees shall commence upon establishment of such agency.
(Code 1977, § 27-29)

Sec. 28-48. Vacancy for absences.

Any representative who is absent from three (3) consecutive regular meetings of the capitol region planning agency and any intervening duly called special meetings thereof shall be considered to have resigned from the capitol region planning agency and the vacancy shall be filled by the appointing body. The requirements of this section may be waived where illness or other extenuating circumstances make it impossible for a representative to meet the attendance requirement of this section.
(Code 1977, § 27-30)

Secs. 28-49—28-65. Reserved.

ARTICLE IV. REDEVELOPMENT AGENCY

Sec. 28-66. Act adopted; dissolution; creation; successor.

(a) The Redevelopment Act, Chapter 130 of the general statutes, is hereby adopted for the city.

(b) Pursuant to section 8-126(b) of the general statutes, the council finding that such action will facilitate receipt and processing of federal funds and promote the purposes of said Chapter 130, the redevelopment agency heretofore existing, is hereby dissolved.

(c) In accordance with section 8-126 of the general statutes, as amended, effective upon the aforesaid dissolution of the redevelopment agency heretofore existing, a new redevelopment agency is hereby created.

(d) The new redevelopment agency hereby created is designated as the successor redevelopment agency to the redevelopment agency heretofore existing for any and all city redevelopment projects and housing site development projects.
(Code 1977, § 27-41; Ord. No. 5-99, 1-25-99; Ord. No. 09-05, 9-12-05)

Sec. 28-67. Membership.

The membership of the redevelopment agency created by this article shall consist of seven (7) members with the power to vote. Members shall be appointed and serve in accordance with section 8-126 of the general statutes, as amended. The term of office for each member shall be five (5) years; providing, however, that the terms of the initial members shall be as follows: one (1) member shall serve for one (1) year; one (1) member shall serve for two (2) years; one (1) member shall serve for three (3) years; two (2) members shall serve for four (4) years; and two (2) members shall serve for five (5) years.
(Code 1977, § 27-42; Ord. No. 5-99, 1-25-99)

Sec. 28-68. Purpose.

Any redevelopment agency created pursuant to Chapter 130 of the General Statutes is designated and constituted to carry out the purposes of the Redevelopment Act.
(Code 1977, § 27-43; Ord. No. 5-99, 1-25-99)

Sec. 28-69. Nelson-Clark-Clay Street, Phase III Housing Site Development Project.

The redevelopment agency, or any successor thereto, is designated as a housing site development agency to carry out the Nelson-Clark-Clay Street, Phase III Housing Site Development Project within the city.
(Ord. No. 64-90, 9-24-90; Ord. No. 5-99, 1-25-99)

Sec. 28-70. Designation as municipal development agency.

(a) The redevelopment agency is hereby designated the city's development agency pursuant to Chapter 130, Sec. 8-126 of the general statutes, as amended.

(b) The redevelopment agency is hereby designated the successor development agency to any previous development agency designated by the city pursuant to Chapter 132, Sec. 8-188 of the general statutes, as amended, for any and all past or current city municipal development projects.
(Ord. No. 09-05, 9-12-05)

Sec. 28-71. Director and secretary.

(a) The director of the department of development services shall be the redevelopment agency's director and secretary who shall serve as the chief administrative officer of the redevelopment agency.

(b) As the redevelopment agency's secretary, the director, or that individual's designee, shall attend all meetings of the redevelopment agency and be responsible for taking and publishing the minutes of the same. The director also shall have the right to speak, but not to vote, at all such meetings as well as to recommend and introduce resolutions, motions and other measures for the redevelopment agency's consideration as he or she deems appropriate. The director may assume additional duties in accordance with Chapter 130, Sec. 8-126 of the general statutes, as amended.
(Ord. No. 09-05, 9-12-05)

Secs. 28-72—28-85. Reserved.

ARTICLE V. SELECTION OF ARCHITECTS

DIVISION 1. GENERALLY

Secs. 28-86—28-150. Reserved.

DIVISION 2. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2010, repealed Art. V, Div. 2, §§ 28-106—28-109, which pertained to City projects and derived from Code 1977, §§ 27-93—27-95.

DIVISION 3. RESERVED

Editor's note—Ord. No. 07-09, adopted March 9, 2010, repealed Art. V, Div. 3, §§ 28-126—28-133, which pertained to school projects and derived from Code 1977, §§ 27-101—27-108.

ARTICLE VI. TREE ORDINANCE

Sec. 28-151. Generally.

This article shall be known and referred to as the "Tree Ordinance of the City of Hartford."
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-152. Purpose.

The City of Hartford is characterized by its rich heritage of trees. Hartford's Trees clean the air, calm traffic, increase property values, reduce storm water run-off, and otherwise enhance the quality of life. The goal of this Article is to maintain and grow Hartford's urban forest, maintain Trees in a healthy condition, protect existing Trees, and mitigate losses and damage to Hartford's Trees.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-153. Findings.

In 2007, the City of Hartford, the Knox Parks Foundation, the Connecticut Department of Environmental Protection, and the United States Forestry Service conducted a survey of the city of Hartford's Trees. This survey revealed that the city has approximately four hundred fifty thousand (450,000) Trees that cover about twenty-six (26%) percent of the city's landmass. That is almost four (4) Trees for each resident. Together, they remove two thousand four hundred (2,400) tons of carbon and seventy-three (73) tons of other pollutants from the air each year. Because Hartford has the highest asthma rate in the state, the fact that the removed pollutants include thirty-seven (37) tons of particulate matter, a major asthma trigger, is especially important. Cooling provided by the Trees reduces energy use in the city by one thousand eight hundred (1,800) megawatt hours each year. The estimated replacement value of these Trees is about five

hundred ninety million dollars ($590,000,000.00), an amount equal to about twenty-two (22%) percent of the gross value of the municipality's Real Property Grand List. The largest and oldest Trees, only twelve (12%) percent of the total number of Trees, provide fifty (50%) percent of the total tree canopy cover. Due to their age and vulnerability, it is clear that Hartford's urban forest is in jeopardy if these Trees are not maintained and more Trees are not planted each year.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-154. Definitions.

Terms used in this Article shall be construed as follows, unless another meaning is expressed or is clearly apparent from the language or context:

Alter means to take action by removing branches or by filling, surfacing, grading, compacting, channeling or changing the drainage pattern of the soil surrounding any Tree in a manner that threatens to diminish the vigor of the Tree. The term "alter" does not include normal seasonal pruning/shaping of a Tree necessary for normal growth.

Best Interest is a determination based on reviewing all relevant factors, including but not limited to the preservation of Trees, the impact on the streetscape, the maintenance of an effective Tree canopy, the importance of the particular Tree, the health of the Tree and its impact on safety and the overall impact that the loss of the Tree would have on the City's urban forest.

City Tree means a Public Tree and, depending on the relevant facts, may include a Streetscape Tree.

Damage means to act in a manner to jeopardize a Tree's health or cause its appearance to be defaced. Actions that constitute damage include, but are not limited to: posting bills; hanging streamers and/or decorations; driving any objects into a Tree; carving the bark of a Tree; digging/excavating/paving and/or parking a motor vehicle within the Drip Line in a way that impacts the root system; painting a Tree; setting fire to a Tree; or allowing harmful substances to come in contact with a Tree.

DBH (diameter at breast height) means the diameter of a Tree at fifty-four (54) inches above grade as indicated by the United States Forest Service method.

Drip Line means a conceptual line along the ground that conforms to the perimeter of the crown of the Tree and projects vertically to the ground.

Grove means a grouping often (10) or more Trees, as defined in this Section, located on one quarter (¼) acre or less.

Hazardous Tree means a tree that is likely to create hazardous conditions on roadways or sidewalks or to cause imminent damage to public property, private property or utility wires.

Legacy Tree means any Tree as determined by the Tree Advisory Commission to be of unique and intrinsic value to the general public because of its size, age, historic association, ecological importance or aesthetic value.

Master Tree Plan means a document prepared by the Tree Advisory Commission pursuant to section 28-156.

Public Place means any space owned and/or controlled by the City of Hartford, including but not limited to property operated or controlled by the Hartford Board of Education, by the Hartford Housing Authority and any space in a City park.

Public Tree means any Tree in a public place.

Public Utility, or language of similar import, means "Public service company" as defined in G.S. § 16-1(a)(3), as the same may be amended from time to time.

Remove means to cut down a tree or to take any other action that will cause a Tree to die within a two-year period.

Right-of-way means the area owned and/or controlled by the City of Hartford that abuts any City street, and as may be more particularly described in, among other places, the City of Hartford's Engineering Division street line maps.

Streetscape Tree means any Tree on private and/or public property with a base that originates, in whole or in part, in the right-of-way, or originates not more than five (5) feet from the right-of-way, and, in the sole and absolute judgment and/or discretion of the City Forester, serves as part of the tree line of a street.

Streetscape Tree Inventory means a recording of the size, condition, location, and species of all Streetscape Trees and of all planting locations without a Tree that could reasonably accommodate a Streetscape Tree.

Super Hazardous Tree is an otherwise Hazardous Tree which has been ordered removed by the City Forester or other assigns of the City of Hartford on an emergency basis because it represents so immediate a hazard to public safety that removal cannot be deferred and the structure cannot be protected, secured, or stabilized by reasonable measures specified by the City Forester.

Tree means any living woody, self-supporting plant that has a defined stem(s) with a DBH of at least two (2) inches using the United States Forest Service method of determination.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-155. City Forester, roles and responsibilities.

(a) The Director of Public Works, in accordance with the provisions of Sections 26-11, 26-12 and 26-13 of this Municipal Code shall, appoint a City Forester.

(b) The City Forester shall, in general, act under the direction of the Director of Public Works in reference to the duties placed upon the Department of Parks and Recreation by Sections 26-11, 26-12, and 26-13 of this Municipal Code and shall perform such other special duties in reference to Trees, shrubs or vines in highways, public parks and public grounds as may be required of him or her by such Director under the provisions of the Charter and ordinances of the City and the laws of the state.

(c) In particular, the City Forester shall have the rights, powers and responsibilities of a Tree Warden as defined in G.S. § 23-59.

(d) The City Forester shall also be advised by the Tree Advisory Commission established in Article VI of this Chapter and shall attend all meetings of the Tree Advisory Commission.

(e) The City Forester, or his or her designee, shall have the right to determine whether any specific plant be considered a Tree or shrub and whether a Tree is a Hazardous Tree or a Super Hazardous Tree, and is hereby authorized to remove or prune the same in accordance with G.S. § 23-59. He or she shall also have the right to determine the dollar value of any Tree for the purpose of assessment.

(f) The City Forester shall conduct or cause to be conducted an assessment of the Tree canopy of Hartford, which may include a description of the Tree canopy and a description of the extent and condition of Trees in Hartford, including those on private property, in parks, and other public places. This assessment of the Tree canopy may include a Streetscape Tree Inventory. When completed, the aforementioned assessment of the Tree canopy shall be available to the public and shall be updated at least-every ten (10) years.

(g) The City Forester shall have the authority to issue citations for violations of this article.

(h) The City Forester shall review plans for Trees associated with zoning permits submitted to the Planning and Zoning Commission, upon receipt of such plans, and shall advise Commission on such plans, in accordance with the Hartford Zoning Regulations.

(i) Removal of a City Tree shall be permitted only if authorized by the City Forester or his or her designee and only if removal is performed in accordance with G.S. § 23-59.

(j) The City Forester shall recommend a budget for expending the annually available funds in the Hartford Tree Account pursuant to Section 28-164 of this article.

(k) The City Forester shall assure that a copy of the alphabetical street list of City rights-of-way or other reference by which this information is named, as maintained by the City of Hartford Engineering Division of the Department of Public Works, is placed on the City's website so as to be easily accessible to property owners and other members of the public.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-156. Tree Advisory Commission.

(a) There is hereby created a Tree Advisory Commission, which shall consist of up to five (5) non-voting ex officio members and up to seven (7) voting members appointed by the Mayor and approved by the Court of Common Council.

(b) The ex officio members shall include: the City Forester; the chair of the Parks and Recreation Advisory Commission, or his or her designee; the chair of the Public Works, Parks, and Environment Committee of the Court of Common Council, or his or her designee; the Director of Planning, or his or her designee; and the Head of Buildings and Grounds for the Hartford Board of Education, or his or her designee.

(c) The appointed members shall include up to three (3) persons, who may or may not be Hartford residents, with established professional competence in a pertinent discipline, such as certified arborists, ornamental horticulturists, and landscape architects and designers, or with a technical background in a related field, and up to four (4) Hartford residents selected for their interest in the condition of Hartford's urban forest.

(d) The Commission shall meet as needed to diligently conduct its business and shall hold regular meetings no less often than once per quarter. A quorum shall be a majority of the voting members.

(e) Members shall serve without compensation. All members shall be appointed for three (3) year terms, except that appointments to fill vacancies shall be for unexpired terms only. Members shall serve in their positions until a replacement is appointed.

(f) The duties of the Commission shall include but shall not be limited to: advising the City Forester, the Court of Common Council, and the Mayor on Tree-related issues in the City and promoting awareness of Tree care, Hartford's arboreal heritage, and the benefits of an urban forest.

(g) The Commission shall develop and adopt a Master Tree Plan. The Master Tree Plan shall establish direction for the City's urban forestry program and shall include targets for Tree canopy cover and Tree diversity. It may also reference standards for Tree planting and Tree maintenance. It may also include guidelines for specifications relating to Trees and Tree care and for contract Tree work. In addition, the Master Tree Plan may outline a broad program for the improvement of the urban forest that may include recommendations for urban forestry activities in specific neighborhoods, along specific streets, and in areas of the City such as Historic Districts. The Master Tree Plan may also include a plan for management of City-owned woodlands, such as those that exist in City parks. The Master Tree Plan may be integrative with other City plans and activities. The Master Tree Plan shall incorporate the most recent Tree inventory as conducted by the City Forester and may, at the discretion of the Tree Advisory Commission, include additional studies of the urban forest. The Commission shall review the Master Tree Plan at least every five (5) years and shall amend it as needed. The Master Tree Plan may be consulted by all City Departments subject to the Master Tree Plan in the course of conducting City business.

(h) The Commission may create an annual "State of the Forest" report about what has occurred in the City's Tree Inventory and urban forest and shall also prepare recommendations of policy and action for the next year. This report may also identify priority locations for planting, so that the City's Tree planting will address any arboreal inequities and will give priority to filling in gaps resulting from the absence of

Streetscape Trees. The Commission shall present this report to the Mayor and Court of Common Council for their review and response.

(i) The Commission shall hear and, by majority vote of those present and voting, decide appeals from certain actions or decisions of the City Forester. Within forty-five (45) days of the postmarked date of the City Forester's stop work order or written decision for any permit contemplated in this Article, an affected person may appeal the decision of the City Forester to the Tree Advisory Commission by filing with the City Forester a written petition requesting a hearing before the Tree Advisory Commission and setting forth a brief statement of the grounds therefor. Upon receipt of such petition, the Tree Advisory Commission shall set a time and place for such hearing and shall give the petitioner written notice thereof. At such hearing, the petitioner shall be given the opportunity to be heard and to show why such decision should be overturned. Other parties may be allowed to speak about the petition, at the discretion of the Tree Advisory Commission. After reviewing any spoken testimony or written evidence, the Tree Advisory Commission shall determine whether the decision is in the best interest of the City's urban forest and shall notify the applicant of the Commission's decision either at the hearing or by first-class mail within forty-five (45) days of the conclusion of the hearing.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-157. Legacy Tree Program.

(a) The Tree Advisory Commission shall establish a Legacy Tree Program in order to catalog Legacy Trees in Hartford. The public shall be encouraged to give input to the Commission about which Trees should be included in the catalog.

(b) The City Forester shall keep a record of all Trees designated as Legacy Trees and their locations.

(c) The Commission shall also select a "City Tree" every three (3) years. This Tree shall be selected due to its uniqueness, age, historical significance, or other distinguishing characteristics.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-158. Planting trees in public places.

(a) To contribute to the urban forest of Hartford, members of the public shall be encouraged to support the planting of Trees in public places and in areas which fill in gaps in the Tree line in or near the right-of-way, as long as they follow the procedures outlined in this Article.

(b) Except for the planting of Trees resulting from the granting of zoning permits by the Planning and Zoning Commission, no organization or person shall plant a Tree in a public place or a right-of-way without first obtaining the written permission of the City Forester or his/her designee.

(c) Once such a Tree is planted in a public place or right-of-way, the Tree shall become the property of the City of Hartford.

(d) No plaque or other commemorative object on, at, near or relating to any tree in any public place shall be permitted unless and until such plaque or other commemorative object has been approved by the process in Section 2-197 of this Municipal Code, as the same may be amended from time to time.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-159. Altering or damaging certain trees.

(a) No person shall alter or damage a City Tree without a permit from the City Forester.

(b) Any person wishing to alter or damage a City Tree shall apply in writing for a permit to the City Forester prior to taking such action. There shall be a ten-dollar ($10) processing fee, per City Tree, for each application to alter or damage a City Tree.

(c) After reviewing such application, the City Forester shall determine whether such action is in the best interest of the City's urban forest and shall notify the applicant of the decision by first-class mail within forty-five (45) days of receiving a complete application.

(d) An affected person may appeal the decision of the City Forester regarding an application under this Section to the Tree Advisory Commission, pursuant to the procedure established in Section 28-156(i).

(e) Any person who violates the provisions of this Section, including but not limited to altering or damaging a City Tree without a permit, shall be subject to a fine up to two hundred fifty dollars ($250.00) per Tree, per violation. The City Forester or his or her designee shall have the authority to issue a citation for violations. All claims regarding citations shall be processed pursuant to Section 1-5 of the Municipal Code, as the same may be amended from time to time.

(f) It shall be an affirmative defense that it was necessary to alter or damage a Tree without a permit from the City Forester because a super hazard existed such that action was required due to the threat of imminent harm.

(g) This Article shall not apply to any alteration or damage that has been ordered by the City Forester or other officials of the City of Hartford on an emergency basis because the Tree is a Super Hazardous Tree that represents so immediate a hazard to public safety or structure integrity that alteration or damage cannot be deferred and that such Super Hazardous Tree cannot be protected, secured, or stabilized by reasonable temporary measures; or to any alteration or damage that has otherwise been properly noticed and authorized pursuant to G.S. § 23-59; or to any alteration or damage that has otherwise been permitted and/or authorized pursuant to the applicable provisions of G.S. § 23-65.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-160. Tree removal.

(a) No person shall remove a City Tree, or a Tree on private property with a DBH of thirteen (13) inches or more, or a Grove of Trees without a permit from the City Forester, except the City Forester, who may remove a City Tree or a Tree pursuant to G.S. § 23-59, and except for any removal that has been permitted pursuant to the applicable provisions of G.S. § 23-65. To grant permission to any other person to remove a Tree, the City Forester must determine within forty-five (45) days of receiving a complete application that either (1) the tree is in poor health or diseased with an expected life span of less than 2 years; (2) the tree's removal is unavoidable because the tree poses a threat to human health, safety, and welfare, or (3) the negative impact on the urban canopy caused by the tree's removal can be mitigated.

(b) Any person wishing to remove a City Tree, Tree, or Grove that is subject to subsection (a) of this Section shall apply in writing for a permit to the City Forester. There shall be a ten dollar ($10.00) per Tree processing fee for each permit application.

(c) After reviewing such application, the City Forester shall determine whether removal of the City Tree, Tree, or Grove is in the best interest of the City's urban forest and shall notify the applicant of the decision by first-class mail within forty-five (45) days of receiving the application.

(d) An affected person may appeal the decision of the City Forester regarding an application under this Section to the Tree Advisory Commission pursuant to the procedure established in Section 28-156(i).

(e) Any individual who removes a City Tree without a permit shall replace the Tree in accordance with Section 28-162 of this Article.

(f) It shall be an affirmative defense that it was necessary to remove a Tree without a permit from the City Forester because a super hazard existed such that action was required due to the threat of imminent harm.

(g) This Article shall not apply to any removal that has been ordered by the City Forester or other officials of the City of Hartford on an emergency basis because the Tree is a Super Hazardous Tree that represents so immediate a hazard to public safety or structure integrity that removal cannot be deferred and that such Super Hazardous Tree cannot be protected, secured, or stabilized by reasonable temporary measures; or to any removal that has otherwise been properly noticed and authorized pursuant

to G.S. § 23-59; or to any removal that has otherwise been permitted pursuant to the applicable provisions of G.S. § 23-65.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-161. Protection during construction.

(a) Property owners and other persons responsible for construction and excavation projects shall adhere to all relevant provisions of the latest edition of the American National Standards Institute, Inc., Standards for Tree Care Operations—Tree, Shrub, and other Woody Plant Maintenance—Standard Practices (Management of Trees and Shrubs During Site Planning, Site Development, and Construction) for the duration of the construction or excavation project. A copy of these standards shall be available to the public in the City Forester's office.

(b) The City Forester or his or her designee shall have the authority to issue a municipal citation to a property owner and other person responsible, in the amount of two hundred fifty dollars ($250.00) per day, per Tree affected, for each instance of an action inconsistent with the tree care standards referred to in subsection (a) of this Section. All claims regarding citation shall be processed pursuant to Section 1-5 of the Municipal Code, as the same may be amended from time to time.

(c) Any person found in violation of subsection (a) of this Section for which the City Forester determines there is substantial danger of damage to a Tree or Grove shall post a five (5) year bond in the amount of the replacement value of such Tree or Grove. Such bond shall be forfeited if the City Forester determines that the Tree or Grove is dead or moribund within the five (5) year period.

(d) Replacement value for Trees or Groves damaged or killed through negligent construction practices may be determined in accordance with Section 28-162 of this Article.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-162. Tree replacement.

(a) A property owner or other person responsible for replacement of a Tree pursuant to this Article shall follow the provisions of this Section. A property owner or other person responsible for the removal of any Tree with DBH of four (4) inches or more, whether public or private, may be required to replace such Tree, at the discretion of the City Forester, and if so, such person or persons shall also follow the provisions of this Section.

(b) The acceptable methods of replacement for a Tree other than a Legacy Tree are:

(1) Replacement of the Tree with a Tree of equal or greater DBH at the location of the Tree being replaced or at a different location identified or approved by the City Forester;

(2) An inch-for-inch replacement of the Tree with a number of replacement Trees with DBH of two (2) inches or more totaling the DBH of the original Tree at a location or locations identified or approved by the City Forester. For example, if a Tree with a DBH of twenty-four (24) inches is removed, it may be replaced with six (6) Trees with DBHs of four (4) inches; or

(3) A payment to the Hartford Tree Account, established in Section 28-164 of this Article, in the amount of the Tree's assessed value. The assessed value shall be based on the recommendation of the City Forester using as reference the latest revision of The Guide for Plant Appraisal, as published by the International Society of Arboriculture, Urbana, Illinois.

(c) The acceptable method of replacement for a Legacy Tree is:

(1) Replacement of the Legacy Tree with a number of replacement Trees with DBH of two (2) inches or more totaling four (4) times the DBH of the original Tree at a location or locations identified or approved by the City Forester; or

(2) A payment into the Hartford Tree Account of four (4) times the assessed value of the Legacy Tree.

(d) Any replacement Tree planted in accordance with this section must be maintained for at least a period of five (5) years from the date of planting by the responsible party. The responsible party, or the property owner if there is no responsible party, shall replace any Tree that dies during this time period, and such replacement Tree shall be maintained for at least a period of five (5) years from the date of planting by the responsible party.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-163. Planting requirement.

(a) The City Forester shall review plans for Trees associated with zoning permits submitted to the Planning and Zoning Commission, upon receipt of such plans, and shall advise Commission on such plans, in accordance with the Hartford Zoning Regulations.

(b) Any activity that requires a zoning permit shall include Tree planting that complies with the Hartford Zoning Regulations. Variances to this requirement shall be submitted to the Zoning Board of Appeals in compliance with the Hartford Zoning Regulations.

(c) Any activity, such as an individual Tree planting or Tree removal, which does not require a zoning permit shall comply with applicable portions of the Hartford Zoning Regulations on excavation, installation, maintenance, species type, tree removal, spacing, and similar provisions. Variances from compliance for activities not requiring a zoning permit shall be submitted to the City Forester, who may allow persons to pay four hundred dollars ($400.00) per instance of a Tree planted in a manner that does not comply with the applicable portions of the Hartford Zoning Regulations or best practices as determined by the City Forester, in exchange for granting the responsible party to proceed without such compliance. Any such payments collected shall be deposited in the Hartford Tree Account.

(d) All Tree planting permitted by a zoning permit or City Forester permit must be maintained for five (5) years from the conclusion of the permitted work.

(e) The City Forester or his or her designee shall have the authority to issue a municipal citation to a property owner and other person responsible, in the amount of two hundred fifty dollars ($250.00) per day, per Tree affected, for each instance of an action inconsistent with this Section, including failure to maintain a Tree in accordance with a permit. Any such payments collected shall be deposited in the Hartford Tree Account.

(f) An affected person may appeal the decision of the City Forester regarding an application under Section 28-163(c) to the Tree Advisory Commission, pursuant to the procedure established in Section 28-156(i). For appeals of applications under Section 28-163(a), consult the Hartford Zoning Regulations.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-164. Hartford Tree Account.

(a) There is hereby established a Demand Deposit Account known as the Hartford Tree Account. Such Account is established under authority of the Connecticut General Statutes and pursuant to Section 2-484 for the exclusive purpose of funding activities that implement or promote the purposes of this Article, as expressed in Section 28-152.

(b) The principal of the Hartford Tree Account shall consist of the following:

(1) Up to five (5%) percent of the investment income from the Hartford Park's Trust Fund received on an annual basis;

(2) All fines, processing fees, payments in lieu of planting, and other monies collected pursuant to this Article;

(3) All gifts and grants from any source, public or private, made to the City and designated for Trees or improvements to the urban forest;

(4) Any funds from any source designated by the Court of Common Council to be added to the Account; and

(5) All investment income earned by the Account.

(c) Expendable money in the Account may be spent for the purposes authorized by this Section upon recommendation of the Mayor and with the approval of the Court of Common Council. Expenditures may be made as follows:

(1) All moneys received by the Account under subsection (b)(2) of this Section shall be used only for the purchase and planting of Trees.

(2) Any restricted moneys received by the Account shall be expended in accordance with their restrictions.

(3) At least half of the remaining unrestricted funds shall be expended for the purchase and planting of Trees.

(4) All other unrestricted funds may be spent for any activity that is consistent with the purpose of the Account.

(d) Any budget proposed by the Mayor or approved by the Court of Common Council, and any appropriation made for the purchase and planting of Trees, must not be reduced, ratably or otherwise, in consideration of any moneys in the Account. Expenditures from the Account shall add to and not replace budgets and appropriations which also serve the purposes of the Account.

(e) Any remaining investment income shall be held in reserve for future transfer and appropriation.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Sec. 28-165. Enforcement.

(a) Any person who violates any of the provisions of this Article shall be notified by the City Forester of the specific violation by certified or registered mail, return receipt requested, or by hand delivery. The notice shall explain the nature of the violation and shall provide a reasonable time period within which compliance must be achieved.

(b) Upon verbal or written notice from the City Forester that work is being performed contrary to any provision of this Article, such work shall be immediately stopped by the person doing the work. Within seven (7) days of any verbal or written notice, a stop work order shall be provided to the owner of the subject lot, or to the owner's agent, or to the person doing the work, and the stop work order shall state the conditions under which work is permitted to resume, provided that if any such stop work order is not issued within seven (7) days, the owner of the subject lot may ask the Tree Advisory Commission for a hearing and decision in accordance with § 28-156(i). Any person who shall continue work after having been served with a stop work order, except such work as that person is directed by the City Forester or other City officials to perform to remove a violation or unsafe condition, shall be liable for a daily fine not exceeding two hundred fifty dollars ($250.00) per violation, per Tree affected.

(c) Whenever there is reasonable cause to believe that a person is violating any applicable Article provision, the City may institute a civil action in a court of competent jurisdiction for a mandatory or prohibiting injunction ordering the defendant to either correct the unlawful use of the property or cease the unlawful use.

(d) Each failure to replace a Tree or make a payment into the Hartford Tree Account or to post and maintain a bond in accordance with Section 28-161(c) equal to tree replacement value, or to follow any of the provisions of this Article shall constitute a separate violation of this Article for which there shall be a fine in the amount of two hundred fifty dollars ($250.00). Each day such violation continues shall constitute a separate offense.

(e) As an alternative or in addition to any fine stated in this Section, citations may be issued pursuant to the Hartford Zoning Regulations.

(f) The Commissioner of Public Works or his or her designee, the City Forester, and employees of the Department of Public Works shall be the authorized enforcement personnel.
(Ord. No. 09-18, 11-26-18)

Sec. 28-166. Cumulative effect and severability.

This Article shall be subject to all applicable State and Federal laws and shall not impede compliance with such laws. The provisions of this Article are in addition to and not in place of any powers, requirements, sanctions or other provisions of State or Federal law. If any provision of this article is held to be invalid by a court of competent jurisdiction, then such provision shall be considered separate and apart from the remaining provisions, which shall remain in full force and effect.
(Ord. No. 11-11, 3-28-11; Ord. No. 09-18, 11-26-18)

Editor's note—Ord. No. 09-18, adopted Nov. 26, 2018, renumbered § 28-165 as 28-166.

Sec. 28-167. Public utilities.

(a) Except as otherwise provided in any settlement agreement by and between the City and any public utility, any public utility maintaining any overhead wires or underground pipes or conduits shall obtain a public utilities permit from the City Forester before performing any maintenance work on the wires, pipes, or conduits which would cause injury to a City Tree. The public utility shall not injure, deface, prune, or scar any City Tree until its plans and procedures have been approved by the City Forester.

(b) When maintaining City Trees, a public utility must observe American National Standards Institute, Inc., Standards for Tree Care Operations—Tree, Shrub, and other Woody Plant Maintenance—Standard Practices and other standards noted in the Hartford Zoning Regulations and as articulated by the City Forester from time to time.

(c) The Metropolitan District, also known as the Metropolitan District Commission, is not exempt from the requirements in this section and, notwithstanding anything in this section that may be to the contrary, shall comply with the requirements in this section.
(Ord. No. 09-18, 11-26-18)

Secs. 28-168, 28-169. Reserved.

ARTICLE VII. HISTORIC DISTRICTS AND PROPERTIES

Sec. 28-170. Old State House Historic District Property.

The Old State House Historic Property is hereby defined as the area contained within and defined by the existing brownstone coping generally surrounding the existing structure known as the "Old State House" situated on the easterly side of Main Street within the City of Hartford at the location known as 800 Main Street. The Old State House Historic Property is hereby further defined as illustrated on the historic property boundary line site plan shown on page four of the document titled "Report of the City of Hartford, Connecticut Historic District-Historic Properties Study Committee Concerning the Old State House."

A. *Established; Composition.*

a. In order to perpetuate, preserve and protect those distinctive buildings, places and their environs which are associated with the history of Hartford, of Connecticut and of the United States; or which are indicative of a period; or which are characteristic of an architectural style; and through the development of appropriate settings for such buildings and places, there is hereby established the Old State House Historic Property.

b. A historic properties commission, hereinafter called historic properties commission, hereinafter called the commission, is hereby established, which shall consist of five (5) regular and three (3) alternate members, nominated by the mayor and confirmed by the court of common council. At least one (1) regular member will be an architect experienced in the rehabilitation of historic buildings; at least two (2) regular members will, as evidenced by schooling or by resume, be trained, and have experience in historic preservation; at least one (1) regular member will be an attorney, specializing in land use law; and at least one (1) regular member will be a property owner in a locally designated historic district or the owner of a historic property or designated representative of the owner of a historic property. Alternate members will have special training or experience in restoration architecture, historic preservation, real estate, or construction. All members will be electors of the city.

c. The City of Hartford Historic District - Historic Properties Study Committee is hereby abolished.

B. *Terms of Members.*

a. Regular and alternate members shall be appointed for terms of five (5) years, except that of the first five (5) regular members first appointed, one (1) shall be appointed for a term of five (5) years; one (1) shall be appointed for a term of four (4) years; one (1) shall be appointed for a term of three (3) years; one (1) shall be appointed for a term of two (2) years; and one (1) shall be appointed for a term of one (1) year. Any regular or alternate member may be appointed for another term or terms. Vacancies shall be filled for the unexpired term and in the same manner as the original appointment. Each member and alternate shall continue in office until a successor is duly appointed. Alternate members, when seated, shall have all powers and duties of a regular member of the commission.

b. The court of common council shall have the authority to remove a commission member for cause, which, among other things, will include the failure to attend commission meetings on a regular basis.

C. *Chairman; Rules.* The commission, by a majority of its membership, shall elect annually a chairperson, a vice-chairperson and a secretary from its own number. The commission shall, within a period of sixty (60) days after the appointment of the original members, adopt rules of procedure that are consistent with Chapter 97a of the Connecticut General Statutes.

D. *Function; Duties.*

a. The commission shall have those powers, will perform those functions and will be

subject to such limitations as provided by Chapter 97a of the Connecticut General Statutes and as it may from time to time be amended. The United States Secretary of the Interior's Standards for Rehabilitation, and Guidelines for Rehabilitating Historic Buildings will serve as the basis for review when the commission considers applications for certificates of appropriateness. These standards are hereby incorporated into this section by reference. Additional review criteria, consistent with the foregoing, may from time to time be adopted and promulgated.

b. The commission shall report to the court of common council, during the month of January, on its activities of the previous year.

E. *Conflicts of Interest.* No commission member shall appear for or represent any person, firm, corporation or other entity in any matter pending before the council, or any city board or commission. No member shall participate in the meeting or decision of the commission upon any matter in which the member is directly or indirectly interested in either a personal or financial sense. In the event of such disqualification, such fact shall be entered in the records of the commission, and the chairman will appoint an alternate member to participate in the meeting.

F. *Compensation.*

a. The members of the commission shall serve without compensation but shall be reimbursed for their necessary and reasonable expenses in the performance of their statutory duties.

b. The council may make appropriations to cover the reasonable expenses of the commission.

(Ord.No. 50-91, 8-12-91)

Sec. 28-171. George Keller Historic District.

(a) In order to perpetuate, preserve and protect those distinctive buildings, places, neighborhoods and their environs which are associated with the history of Hartford, of Connecticut and of the United States; or which are indicative of a period; or which are characteristic of an architectural style; and in order to develop appropriate settings for such buildings, places and neighborhoods, there is hereby established the George Keller Historic District.

(b) The legal description of the area included within the George Keller Historic District is as follows:

Beginning at the point of intersection of the southerly street line of Capitol Avenue and the westerly street line of Putnam Street;

Thence southerly along the said westerly street line of Putnam Street to the point of intersection of the aforementioned westerly street line of Putnam Street and the westerly extension of the northerly property line of 254 Putnam Street;

Thence easterly across Putnam Street and along the northerly property line of 254 Putnam Street, a distance of 190 feet more or less to a point marking the northeast corner of the said 254 Putnam Street;

Thence southerly, along the easterly property lines of 254, 252, 250, 248, 246, 242—244, 232—234, 228—230, 226 and 222—224 Putnam Street, partly by each, a distance of 480 feet more or less to a point marking the southeasterly property corner of 222—224 Putnam Street;

Thence westerly along the southerly property line of 222—224 Putnam Street and across Putnam Street; a distance of 195 feet more or less to a point in the west street line of Putnam Street;

Thence southerly along the said west street line of Putnam Street to a point of curvature;

Thence along a curve to the right, connecting the west street line of Putnam Street to the north street line of Russ Street; said curve having a radius of 40 feet, delta of 95°-50′-50″ and a length of 66.91 feet, more or less, to a point of compound curvature;

Thence along the north street line of Russ Street on another curve to the right hav-

ing a radius of 678.03 feet, delta of 9°-33′-57″ and a length of 113.2 feet more or less to a point of tangency;

Thence continuing along the said north street line of Russ Street, a distance of 424.10 feet to a point of tangency;

Thence along a curve to the right, connecting the north street line of Russ Street to the east street line of Park Terrace, said curve having a radius of 40 feet, delta of 76°-57′-38″ and length of 53.73 feet to a point of tangency;

Thence northerly along the said easterly street line of Park Terrace, a distance of 380.80 feet to a point of curvature;

Thence along a curve to the right, connecting the aforementioned east street line of Park Terrace to the south street line of Capitol Avenue; said curve having a radius of 40 feet, delta of 79°-10′-50″ and an arc of 55.28 feet;

Thence easterly along the south street line of Capitol Avenue, a distance of 246.48 feet to the point and place of beginning.

(c) The historic properties commission, established by section 28-170 of the Municipal Code of the City of Hartford and operating pursuant to Chapter 97a of the Connecticut General Statutes, is hereby designated to administer the George Keller Historic District.
(Ord. No. 18-95, 8-14-95)

Sec. 28-172. Grandview Terrace Boulevard Historic District.

(a) In order to perpetuate, preserve and protect the visual order, architectural cohesion and clear articulation of the park-like boulevard setting resulting from its development as a streetcar suburb during the course of the City of Hartford's historical evolution, the Grandview Terrace Boulevard Historic District is hereby established.

(b) The legal description of the area included within the Grandview Terrace Boulevard Historic District is as follows:

Beginning at the point of intersection of the easterly street line of Grandview Terrace and the southerly street line of White Street;

Thence, easterly along the said southerly street line of White Street, a distance of one hundred fifty and one-tenth (150.1) feet more or less, to a point;

Thence, southerly along the easterly property lines of properties known as 250—252, 254—256, 260, 266, 272, 278—280, 284 and 290—292 Grandview Terrace, partly by each, a distance of five hundred fifty-four and two-tenths (554.2) feet, more or less, to a point in the northerly street line of Linnmoore Street;

Thence, westerly along the said northerly street line of Linnmoore Street, a distance of four hundred five and zero-tenths (405.0) feet, more or less, to a point;

Thence, northerly along the westerly property lines of properties known as 297, 291—293, 287, 281, 275—277, 271—273, 267, 261—263 and 255—257 Grandview Terrace, partly by each, a distance of five hundred ninety-nine and three-tenths (599.3) feet, more or less, to a point in the aforementioned southerly street line of White Street;

Thence, easterly along the said southerly street line of White Street, a distance of two hundred fifty and five-tenths (250.5) feet, more or less, to a point and place of beginning.

(c) The historic properties commission, established by section 28-170 of the Municipal Code of the City of Hartford and operating pursuant to Chapter 97a of the Connecticut General Statutes, is hereby designated to administer the Grandview Terrace Boulevard Historic District.
(Ord. No. 3-01, 2-13-01)

Sec. 28-173. 410 Asylum Street.

(a) In order to preserve and protect those distinctive buildings, places and their environs, which are associated with the history of Hartford, the property known as 410 Asylum is hereby designated an historic property.

(b) The description of the area included within the 410 Asylum Street Historic Property is as follows:

Assessors map, block and parcel number 419-06-06 contained within an area bounded by Asylum Street, High Street, Union Street and Allyn Street and further described:

(1) Beginning at the point of the intersection of westerly street line of High Street and the northerly street line of Asylum Street;

(2) Thence westerly one hundred five and three-tenths (105.3) feet more or less to a point;

(3) Thence northerly one hundred forty-five (145) feet more or less to a point;

(4) Thence westerly four (4) feet more or less to a point;

(5) Thence northerly fifty (50) feet more or less to a point;

(6) Thence easterly one hundred ten (110) feet more or less to a point;

(7) Thence southerly one hundred ninety-nine and three-tenths (199.3) feet more or less to the point or origin.

(c) The historic properties commission established by section 28-170 of the Municipal Code of [the City of Hartford and operating pursuant to] Charter 972 [Chapter 97a] of the Connecticut Business [General] Statutes is hereby designated to administer the 410 Asylum Street Property. (Ord. No. 05-05, 5-23-05)

Sec. 28-174. Ridgefield Street Historic District.

(a) In order to perpetuate, preserve and protect those distinctive buildings, places, neighborhoods and their environs which are associated with the history of Hartford, of Connecticut and of the United States; or which are indicative of a period; or which are characteristic of an architectural style; and in order to develop appropriate settings for such buildings, places and neighborhoods, there is hereby established the Ridgefield Street Historic District.

(b) The legal description of the area included within the Ridgefield Historic District is as follows:

Beginning at the point of the intersection of the southerly street line of Plainfield Street and the westerly street line of Ridgefield Street;

Thence, southerly along the said westerly street line of Ridgefield Street a distance of one thousand eight hundred four and five-tenths (1804.5) feet more or less to the point of intersection of the northerly street line of Westbourne Parkway;

Thence, Westerly along the southerly property line of 75 Ridgefield Street, a distance of two hundred three (203) feet more or less to a point marking the southwesterly corner of said 75 Ridgefield Street;

Thence, Northerly, along the westerly property line of 75 Ridgefield Street, a distance of ninety-nine (99) feet more or less to a point marking the northwesterly corner of said 75 Ridgefield Street;

Thence, Easterly, along the northerly property line of said 75 Ridgefield Street a distance of thirty-nine (39) feet more or less to a point marking the intersection with the easterly property line of said 75 Ridgefield Street and the southwesterly corner of 81 Ridgefield Street;

Thence, Northerly, along the westerly property line of 81, 87, 93, 101, 103, 109, 115, 119 and 123 Ridgefield Street a distance of 585 feet more or less to a point of intersection of the westerly property line of 123 Ridgefield Street and the southerly property line of 127 Ridgefield Street.

Thence, Westerly along the southerly property line of said 127 Ridgefield Street a distance of ten (10) feet more or less to a point of intersection of the southerly property line of 127 Ridgefield Street and the westerly property line of 127 Ridgefield Street;

Thence, Northerly along the westerly boundary of 127, 131, 137, 141, 145, 149, 153, 157, 161, 169 and 175 Ridgefield Street for a distance of six hundred thirty-one (631)

feet more or less to a point of intersection of the westerly property line of 175 Ridgefield Street and the southerly property line of 108 Canterbury Street;

Thence, Easterly along the southerly property line of said 108 Canterbury Street for a distance of ten (10) feet more or less to a point of intersection with the westerly property line of 179 Ridgefield Street;

Thence, Northerly along the westerly boundary of 179, 185 and 189 Ridgefield Street for a distance of 177 feet more or less;

Thence, Northerly for a distance of nine (9) feet to the intersection of the easterly property line of 120 Canterbury Street;

Thence, Northerly along the westerly property line of 189, 195 and 197 Ridgefield Street for a distance of one hundred thirty-seven (137) feet more or less to the intersection of the southerly property line of 15 Plainfield Street;

Thence, Easterly along the northerly property line of 197 Ridgefield Street for a distance of seventeen (17) feet more or less to the point of intersection of the westerly property line of 203-205 Ridgefield Street;

Thence, Northerly along the westerly property line of said 203-205 Ridgefield Street for a distance of sixty-seven (67) feet more or less;

Thence, Easterly along the northerly property line of said 203-205 Ridgefield Street for a distance of thirteen and six-tenths (13.6) feet more or less to a point of intersection of the westerly property line of 211 Ridgefield Street;

Thence, Northerly along the westerly property line of 211 Ridgefield Street for a distance of seventy-six (76) feet more or less to the point of intersection with the southerly street line of Plainfield Street;

Thence, Easterly along the southerly street line of Plainfield Street for a distance of one hundred fifty-two and five-tenths (152.5) feet more or less to the point of origin.

(c) The historic properties commission, established by section 28-170 of the Municipal Code of the City of Hartford and operating pursuant to Chapter 97a of the Connecticut General Statutes, is hereby designated to administer the Ridgefield Street Historic District.
(Ord. No. 11-06, 4-24-06)

Secs. 28-175—28-179. Reserved.

ARTICLE VIII. COOPERATIVE AND REGIONAL SCHOOL BUILDING PROJECTS

Sec. 28-180. Preamble.

The provisions of this article are intended to address the manner in and method by which any and all interests in real property shall be used or conveyed, and any and all contracts shall be entered into, by or on behalf of the city in connection with any cooperative or regional school building projects which are undertaken within the city. (Ord. No. 5-97, 2-24-97)

Sec. 28-181. Definitions.

For the purpose of this article, the following definitions shall apply:

Affiliated entity shall mean and include any partnership, corporation, limited liability company or other business entity which has been (or is) formed by an independent educational institution and one (1) or more other entities for the purpose of implementing a real estate development project of which a cooperative or regional school building project is to constitute a substantial part as, but only so long as, at least twenty (20) percent of such business entity is owned and controlled by such independent educational institution.

City funded contracts shall mean and include any contract or order with respect to which the city shall be obligated to pay, or to reimburse, any host community, program manager or operator more than seven thousand five hundred dollars ($7,500.00), including, but not limited to, any and all contracts for, or in connection with, which the city has been or is to be paid or reimbursed by any special funding source. No transaction which is essentially a unit shall be divided for the purpose of evading this definition or any other provisions of this article.

Cooperative educational opportunities shall mean and include any educational programs which are (or are to be) provided to school children by any public school body in conjunction with, or with the substantial support of, the employees of, or other personal associated with, an independent educational institution.

Cooperative or regional school building project shall mean and include any program or project which is undertaken by, for, on behalf of or in conjunction with the city to design, develop, construct, rehabilitate and/or operate any building or series of buildings which are (or are to be) used primarily for or in connection with the provision of cooperative or regional educational opportunities to the extent that a substantial portion of the property and/or funding required for such project is (or is to be) provided by one or more special funding sources. Any building which is to be constructed or operated by, for or on behalf of the city whose purpose or funding does not fall within the preceding parameters shall nonetheless be considered to be a part of a cooperative or regional school building project so long as it is (or is to be) constructed and/or upon completion, is (or is to be) operated, as an integral part of a cooperative or regional school building project. Conversely, any building which is to be constructed or operated by, for or on behalf of any person or entity other than the city shall not be considered to be a part of a cooperative or regional school building project even though it is to be constructed and/or operated with one (1) or more buildings that are (or are to be) part of such a project.

Host community shall mean and include any independent educational institution or an affiliated entity thereof which has provided (or is to provide) the city with an interest in real property at or in close proximity to such institution's educational facilities for the purpose of, and subject to the condition that such property shall be used in connection with, the implementation or enhancement of a cooperative or regional school building project by one (1) or more public school bodies and such institution.

Independent educational institution shall mean and include any college, university or other educational body or institution whose primary purpose is providing educational services to students other than public school children.

Operator shall mean and include any person or entity which is (or is to be) given responsibility to

act on behalf of the city and/or any local or regional boards of education and/or any host community (which may, but need not, be the city, such host community or any of such local or regional boards of education) in connection with the operation of a building or buildings which constitute a part of a cooperative or regional school building project.

Program manager shall mean and include any person or entity which is (or is to be) given responsibility to act on behalf of the city and/or any host community (which may, but need not, be the city or such host community) in connection with the initial implementation of a cooperative or regional school building project including, but not limited to, contracting with, monitoring and coordinating the work of any and all architects, engineers, construction managers, general contractors and other persons or entities which are required in connection with the design, development, construction or rehabilitation of any building.

Public school body shall mean any local or regional public school board, a committee established under G.S. 10-158a et seq., a charter school or any other body empowered by the state to provide or administer the provision of educational services to public school children.

Regional educational opportunities shall mean and include any educational programs which are (or are to be) provided for school children from two (2) or more public school districts.

Special funding source shall mean and include any host community as well as any person, government, corporation or other entity (other than the city, or any of its agencies, boards or commissions) which has provided (or is to provide) the city with money for, and subject to the condition that such money shall be used in connection with, providing cooperative or regional educational opportunities within the city.
(Ord. No. 5-97, 2-24-97)

Sec. 28-182. Agreements with special funding sources.

The city manager, with the council's approval, may enter into any contract or other agreements necessary or desirable to obtain any money or any interest in real property for a cooperative or regional school building project whether by grant, gift, lease, bequest or otherwise, without competitive bid, subject, in each instance, to approval by the corporation counsel as to the form and legality thereof (any such contract or other agreement being hereinafter referred to as a "special funding source agreement"). Any such special funding source agreement shall set forth such restrictions and other terms and conditions which shall govern the provision or use of any money or real property interest provided (or to be provided) for or in connection with the pertinent cooperative or regional school building project, subject to applicable law. Notwithstanding any other provisions of the Charter or the Municipal Code to the contrary, any special funding source agreement which is entered into between the city and a host community also may include such provisions as are necessary or desirable to effect any one (1) or more of the following requirements:

(1) That the city donate, grant, transfer, convey, exchange, lease or otherwise dispose of any city land or any interest it may have in real property necessary or desirable for any cooperative or regional school building project, providing any such land or property interest has not been received by the city as a gift, devise or bequest for a specific purpose with respect to which a cooperative or regional school building project would not be compatible;

(2) Subject to sections 28-183 through 28-187 hereof, that the city assign, delegate or otherwise provide for the assumption of any obligations in respect of any cooperative or regional school building project to a program manager or operator acceptable to the host community, including, but not limited to, contracting with any and all architects, engineers, construction managers and general contractors which may be necessary or desirable for such project; and

(3) That the city agree to reimburse or otherwise pay any host community, program manager or operator for such of those costs and expenses associated with a co-

operative or regional school building project that are to be paid by the city or any other special funding source.

Any special funding source agreement which provides for the city to donate, grant, transfer, convey, exchange, lease or otherwise dispose of city land or any interest it may have in real property (including any such property which has been received by the city as a gift, devise or bequest for a purpose with respect to which a cooperative or regional school building project would be compatible) may be, and only shall be deemed to be, approved by the council upon an affirmative vote of at least two-thirds (⅔) of the members thereof, after a public hearing.
(Ord. No. 5-97, 2-24-97)

Sec. 28-183. Criteria affecting selection of construction professionals and contractors, generally; program managers and operators.

Any special funding source agreement with a host community which requires the city and/or such host community to hire any person or entity to fulfill the duties of a program manager or operator may provide for such program manager or operator, as applicable, to be selected, without competitive bid, by the city manager and a duly authorized representative of the host community. Except as otherwise provided in section 28-187 below, any and all city funded contracts which are (or are to be) advertised or awarded by any such program manager or operator shall be advertised and awarded in accordance with the provisions of sections 28-184 through 28-186 below.
(Ord. No. 5-97, 2-24-97)

Sec. 28-184. Selection of architects, engineers and construction managers, generally.

Contracts for any architectural, engineering, construction management or general contracting services which are required in connection with any cooperative or regional school building project shall be awarded to the lowest responsible qualified bidder who has submitted a proposal in response to a public request therefor which has been advertised in a newspaper of general circulation within the city.

Any proposals for architectural, engineering, construction management or general contracting services which are submitted in response to any request for proposals issued pursuant to this article shall be reviewed by a selection committee composed of (i) an equal number of representatives for each of the city and the pertinent host community, if any, upon whose real property all or any part of the subject project is to be implemented, together with (ii) such other representatives of such other entities as may be mutually agreed to by the city and such funding source. The selection committee shall advise the city manager in writing of which of such persons or entities the selection committee believes are qualified to perform the services involved, in rank order, and its reasons therefor (each of such persons or entities so listed by such committee being herein referred to as a "qualified candidate").

The city manager, may, but shall not be required to, enter into such negotiations as he or she deems advisable with one (1) or more of such qualified candidates and, thereafter, shall direct the program manager to award the contract at issue to that qualified candidate, if any, which, in the city manager's opinion, is the lowest responsible bidder. For purposes of this section, the term "lowest responsible bidder" shall mean that qualified candidate who or which has ultimately offered the best combination of price, quality, terms and other conditions in respect of the services sought to be acquired.
(Ord. No. 5-97, 2-24-97)

Sec. 28-185. Selection of other contractors.

Except for change orders, contracts or orders of an emergency nature, or as otherwise provided in this article, any city funded contracts for materials or services which are to be provided to or in connection with a cooperative or regional school building project pursuant to this article only shall be awarded by the program manager or operator, as applicable, to the lowest responsible qualified bidder who has submitted a bid or proposal in response to a public invitation to bid or request

for proposals which has been advertised in a newspaper of general circulation within the city. Additionally, any emergency contracts or orders, and any change orders which would result in an increase in the cost of any contract or order by the greater of seven thousand five hundred dollars ($7,500.00) or one (1) percent of the contract's original price, which are issued without competitive bid shall first be approved by the city manager. For purposes of this section, the term "lowest responsible qualified bidder" shall mean that person or entity who or which has ultimately offered the best combination of price, quality, terms and other conditions in respect of the materials or services sought to be acquired.
(Ord. No. 5-97, 2-24-97)

Sec. 28-186. Procedures governing the solicitation and acceptance of bids and proposals; form and substance of contracts.

Any and all invitations to bid and request for proposals which are issued pursuant to this article, and the award of any contracts pursuant thereto, shall be made in accordance with the provisions of this article and otherwise in accordance with written procedures governing the solicitation, acceptance and opening of sealed bids and proposals and the award of any contracts in respect thereof, including, in the case of sealed proposals, any evaluations pertaining thereto (herein defined as including the review, deliberation, selection, negotiation and other analyses and evaluations which commonly are performed in connection therewith), which shall have first been approved by the city manager. Any and all proposals submitted in response to a request for proposals issued pursuant to this article, and any and all evaluations conducted in respect thereof by any selection committee or others shall be and remain private records and proceedings, submitted and/or held in confidence, and shall be exempt from public disclosure until such time as a contract has been awarded in connection therewith, a decision has been made not to acquire the services or materials for which the request for proposals has been issued, or the proceedings under which they were sought to be acquired otherwise have been terminated or abandoned, at which time all of such proposals and any amendments or modifications which may have been made thereto shall become public records and subject to disclosure pursuant to applicable law.

All city funded contracts and other agreements to which the city is a party, or for, or by reason of, which any person or entity is to be reimbursed by the city, or which calls for the provision of materials or services to any property in which the city has (or is to have) a possessory or other legal interest, shall be awarded in accordance with and otherwise subject to the provisions of sections 2-558 through 2-560 and 2-626 through 2-720 of the Municipal Code and otherwise shall be in such form and contain such terms and conditions as have been prepared and/or approved by the corporation counsel.
(Ord. No. 5-97, 2-24-97)

Sec. 28-187. Special provisions pertaining to the selection and award of contracts for professional services.

(a) Notwithstanding any other provisions of this article to the contrary, the city manager may waive any or all of the requirements set forth in sections 28-184 and 28-186(a) above pertaining to the procedures to be followed in the selection of, and award of contracts to, architects, engineers, construction managers or other professionals whenever abiding by such requirements would materially delay, or increase the costs associated with, such project. Any such waiver only shall be effected by execution of a written instrument between the city and the pertinent host community or affiliated entity which has first been approved as to form and legality by the corporation counsel.

(b) Nothing in this article shall be construed as requiring any host community or affiliated entity to select, or to obtain the city's approval of any contract which may be entered into with, any professionals (other than any program managers or operators) so long as the costs associated with any such services neither are to be paid or reimbursed by the city nor constitute a basis upon which any fees or other amounts are to be paid by the city to any persons or entities.
(Ord. No. 5-97, 2-24-97; Ord. No. 5-98, 4-27-98)

Sec. 28-188. Relation to other provisions.

The provisions of this article have been adopted pursuant to G.S. 7-148 and 10-287, pertinent provisions of the city's Charter, and other laws in order to address the special circumstances attendant with the acquisition, retention and disposition of property, and expenditure of sums, for or in connection with the implementation and operation of cooperative and regional educational opportunities within the city for the city's school children. The provisions of this article shall take precedence over and supersede any and all other provisions of the City Charter or the Municipal Code which otherwise would pertain to the acquisition, retention or disposition of property, or the manner and method by which contracts are to be entered into, or architects, engineers, construction managers or other design or construction professionals or contractors are to be selected, in connection with the design, development, construction, rehabilitation or operation of any public school building by or within the city as, and to the extent, any of such other provisions conflict with the terms of this article; providing, however, that nothing herein shall preclude the city from acquiring, retaining or disposing of any property, or awarding one (1) or more of any such contracts, or selecting one (1) or more of any such professionals or contractors, in accordance with such other provisions should the city manager determine that the best interests of the city would be served thereby.

If any provision of this article shall be deemed to be unlawful or shall be superseded by other legislation, the validity of the other provisions of this article shall not be effected thereby; it being the intent hereof that each and every provision of this article shall be given effect to the fullest extent permitted by law.
(Ord. No. 5-97, 2-24-97)

ARTICLE IX. STANDING BUILDING COMMITTEE FOR SCHOOL BUILDING PROJECTS

Sec. 28-189. Creation of committee; general purpose.

A standing committee (hereinafter referred to in this article as the "committee") is hereby established to serve as the building committee for all school building projects which are, or which are in the process of being, undertaken on or after October 13, 1997, other than those specific projects which constitute special school building projects as herein defined. For purposes of this article, a special school building project shall be any regional or cooperative school building project undertaken pursuant to article VIII above or any other school building project which the court of common council exempts from the provisions of this article, after a public hearing. (Ord. No. 21-97, 10-14-97)

Sec. 28-190. Composition of committee; terms; vacancies.

(a) The committee shall consist of seven (7) members: three (3) members of which shall be appointed by the Hartford Board of Education, three (3) members of which shall be appointed by the court of common council (the "council"), one of whom shall be a person with professional experience in managing large scale construction projects, who shall not be eligible, nor shall any firm with which such member is affiliated, to compete for any school construction projects overseen by the committee, and one (1) member of which shall be chosen by a vote of the other members. The initial members appointed by the council and the board of education who are to serve on the committee shall be selected by their respective bodies within thirty (30) days of the adoption of this article. The board of education and the city council shall confer so that at least one member of the committee shall be a member or retired member of the Minority Construction Council or is a minority contractor or former contractor. Any such member so appointed shall not be eligible, nor shall any firm with which such member is affiliated, to compete for any contract or sub-contract for school construction projects overseen by the committee.

(b) The term of office for each member shall be coincident with his or her term of by reason of which he or she has been appointed to serve on the committee. Any member of the committee whose term thereon expires by virtue of the expiration of his or her term as a member of the council or board of education shall be replaced by

the respective body of which he or she was a member within thirty (30) days of the expiration of his or her term of office.

(c) The members of the committee who are not members of the board of education or the city council shall receive no compensation for their services as such but shall be reimbursed for their necessary expenses incurred in the performance of their official duties.
(Ord. No. 21-97, 10-14-97; Ord. of 11-22-21)

Sec. 28-191. Chairperson.

(a) The chief operating officer, or her designee, shall serve as the chairperson of the committee as a non-voting ex-officio member.

(b) The chairperson of the committee shall have full responsibility for determining the time, place and agenda of the committee's meetings and, subject to such procedures as may be adopted pursuant to section 28-192 below, the conduct thereof; providing, however, that the committee shall meet at least once every year; and providing further, that all of such meetings shall be held in compliance with the Freedom of Information Act (G.S. § 1-21) and other applicable laws and regulations. The chairperson may designate another member of the committee to act as the chairperson in his or her absence or in the absence of her designee.
(Ord. No. 21-97, 10-14-97; Ord. of 11-22-21)

Sec. 28-192. Organization; bylaws.

Except as otherwise provided in this article, the committee may draft and adopt bylaws, elect officers and do such other things as it deems necessary in the organization and implementation of its affairs.
(Ord. No. 21-97, 10-14-97)

Sec. 28-193. Staff support.

The city may provide staff and other indirect support to assist the committee as deemed necessary or appropriate by the city for that purpose from time to time, or the committee may delegate management responsibilities to an external entity approved by the Commissioner of Education.
(Ord. No. 21-97, 10-14-97; Ord. of 11-22-21)

Sec. 28-194. Powers and duties of committee.

The committee shall have all of the power and responsibilities granted to, or which of necessity must be exercised by, school building committees pursuant to the Connecticut General Statutes and any regulations adopted thereunder, and pursuant to the provisions of Special Act 01-7. Without limiting the generality of the foregoing, the committee also shall have the responsibilities and authority to:

(1) Provide oversight during all phases of design development for each school building project (including, without limitation, the development of final plans and specification and contract documents for each such project) and to make recommendations to the board of trustees regarding all of the same;

(2) Review and approve all change orders which are proposed to be entered into in respect of any project;

(3) Establish uniform standards for recurring capital expenditure items;

(4) Review and evaluate performance standards of all contractors (including but not limited to, all design and construction professionals) and subcontractors on each project;

(5) Review all deficiencies and delays which may occur in respect of any project; and

(6) Inspect all school facilities, along with appropriate staff, to determine that they have completed in accordance with the plans approved by the committee.
(Ord. No. 21-97, 10-14-97; Ord. of 11-22-21)

Sec. 28-195. Cooperation by other city agencies and departments.

Each officer, board, commission and department of the city government shall cooperate with the committee in the performance of its duties. Without limiting the generality of the foregoing, the director of public works, where applicable, shall provide periodic oral and written reports to the committee relative to the progress of each

school building project as and when requested by the committee. Further, no change order shall be executed by or otherwise approved on behalf of the city in respect of any school building project unless and until the committee has been given sufficient opportunity to review the same.
(Ord. No. 21-97, 10-14-97; Ord. of 11-22-21)

ARTICLE X. NEIGHBORHOOD REVITALIZATION

Sec. 28-196. Neighborhood revitalization zone committees.

There are hereby created, pursuant to G.S. § 7-600 the following neighborhood revitalization zone committees. The membership of each committee shall comply with the requirements of G.S. § 7-600 and their by-laws, as adopted and as hereafter may be properly amended. Such membership shall reflect the composition of the neighborhood revitalization zones and shall include, but not be limited to, tenants, property owners, community organizations, institutions and businesses. A majority of the members shall be residents of the neighborhood. Each neighborhood revitalization committee shall exercise, in accordance with G.S. § 7-600 et seq. and as may be amended, all of the powers and duties conferred by state law on such neighborhood revitalization zone committee.

The revitalization zone committees are: Parkville Revitalization Association, Asylum Hill Revitalization and Problem Solving Committee, the Coalition to Strengthen the Sheldon/Charter Oak Neighborhood, Maple Avenue Revitalization Group, Northeast Revitalization Association, Southend Neighborhood Revitalization Association, Upper Albany Revitalization Zone Organization, Clay Arsenal Revitalization Association, West End Civic Association Neighborhood Revitalization Zone, Blue Hills Neighborhood Revitalization Zone, South Downtown Neighborhood Revitalization Zone, Frog Hollow Neighborhood Revitalization Zone, and Southwest/Behind the Rocks Neighborhood Revitalization Zone. The Court of Common Council hereby approves the strategic plans filed with the city clerk by these committees on the following dates. These plans will serve as a guide for city and neighborhood actions.

Asylum Hill NRZ: December 20, 2009, amending plan filed November 15, 1999

Parkville NRZ: December 28, 2010, amending plan filed November 15, 1999

Sheldon/Charter Oak NRZ: January 18, 2008, amending plan filed March 28, 2000

Maple Avenue Revitalization Group: September 10, 2012, amending plan filed July 5, 2001

Northeast Revitalization Association: August 29, 2001

Southend Neighborhood Revitalization Association: August 29, 2001

Upper Albany Revitalization Zone Organization: October 3,2001

Clay Arsenal Revitalization Association: October 3, 2001

West End Civic Association NRZ: September 10, 2012, amending plan filed January 14, 2002

Blue Hills NRZ: April 17, 2002

South Downtown NRZ: May 22, 2002

Frog Hollow NRZ: April 6, 2011

Southwest/Behind the Rocks NRZ: August 13, 2018

Each neighborhood revitalization zone committee shall submit a report on implementation of their strategic plan to the Mayor, Hartford Court of Common Council, and the Secretary of the Connecticut Office of Policy and Management at intervals of six (6) months in the first year after adoption of this section and annually thereafter. Such report shall include any revisions that do not materially change the adopted strategic plan.

Each neighborhood revitalization zone committee shall adopt by-laws which shall include, at a minimum, the following provisions:

Members. Membership shall include representation of tenants, property owners, businesses and community organizations in accordance with G.S. § 7-600 et seq. A majority of members must reside within the boundaries of the neighborhood revitalization zone. The Mayor will appoint a representative who shall be a full member of the committee.

Meetings. An annual meeting shall be held to elect the members of the neighborhood revitalization zone committee. The time and place of all regular meetings for a calendar year shall be filed with the City Clerk no later than January 31 of the calendar year and

notice shall be published in a newspaper in general circulation as stated in G.S. § 7-600 et seq. The City will pay for reasonable costs of publishing such notice. Any committee member, except for the Mayor's representative, who is absent from three (3) regular meetings in one (1) calendar year may be replaced in accordance with committee by-laws. All meetings shall be held within the boundaries of the neighborhood revitalization zone or in city hall. The City shall provide space in a municipal facility for neighborhood revitalization zone meetings if requested by the neighborhood revitalization zone committee. All neighborhood revitalization zone committee meetings shall be open to the public.

Minutes and notices of meetings. Each neighborhood revitalization zone committee shall appoint or elect a secretary who shall be responsible for maintaining written records for the neighborhood revitalization zone committee. The secretary shall be responsible for keeping minutes of every neighborhood revitalization zone committee meeting and delivering notices for every meeting. Once approved by the neighborhood revitalization zone committee, minutes shall be filed with the City Clerk. The minutes shall include a tabulation of those committee members present as well as those who were absent. A meeting notice and agenda for each regular meeting shall be delivered or mailed to each committee member at least three (3) business days prior to the meeting. Notice of a special meeting shall be filed with the City Clerk and delivered to the residence of every committee member at least twenty-four (24) hours prior to the commencement of the special meeting.

(Ord. No. 7-00, 3-27-00; Ord. No. 12-00, 5-8-00; Ord. No. 8-01, 9-10-01; Ord. No. 13-01, 10-9-01; Ord. No. 14-01, 10-9-01; Ord. No. 17-01, 12-10-01; Ord. No. 18-01, 12-10-01; Ord. No. 8-02, 2-13-02; Ord. No. 16-02, 5-28-02; Ord. No. 28-02, 6-24-02; Ord. No. 05-03, 3-10-03; Ord. No. 13-03, 5-12-03; Ord. No. 10-08, 5-12-08; Ord. No. 09-10, 4-26-10; Ord. No. 10-11, 2-14-11; Ord. No. 13-11, 5-9-11; Ord. No. 10-12, 10-9-12; Ord. No. 08-18, 9-24-18; Ord. No. 02-21, 2-8-21)

ARTICLE XI. PARK STREET SPECIAL SERVICES DISTRICT

Sec. 28-197. Establishment.

There is hereby established a Park Street Special Services District as a body politic and corporate, in accordance with the powers vested in the city under Chapter 105a of the Connecticut General Statutes.
(Ord. No. 14-02, 4-22-02)

Sec. 28-198. Definitions.

[The following words, terms and phrases, as used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Assessed value of property for each fiscal year shall be the value of property shown on the grand list of the city effective October 1 of the prior year.

Board of commissioners shall be the executive body of the district elected by a majority vote of the members of the district.

Commissioner shall be any member of the board of commissioners with the exception of an ex-officio member.

District shall be the special services district established according to Chapter 105a of the Connecticut General Statutes, whose boundaries are delineated in section 28-201 of this article, including amendments made to the district boundaries under the provisions of section 28-202.

Ex-officio shall denote a non-voting member of the board of commissioners.

Fiscal year shall be from July 1 through June 30.

Holder of record of the taxable interest in real property shall be an individual, corporation, partnership; unincorporated association, trustee, fiduciary, guardian, conservator, or other legal entity or any combination thereof as identified in the city land records.

Lessee of property shall be a tenant occupying and in possession of premises located in a property in the district.

Member shall be either a property owner, as defined herein, or a lessee of a business within the district.

Property shall be real property within the district that is identified in the tax records of the city as a parcel of land and/or building or which constitutes an individual condominium unit as shown on the records of the city assessor's office.

Property owner shall be the holder of record of the taxable interest in property as defined in this section.
(Ord. No. 14-02, 4-22-02)

Sec. 28-199. Purpose.

The Park Street Special Services District is created under Chapter 105a of the Connecticut General Statutes to promote the economic and general welfare of the residents of Hartford, and especially the property owners and tenants of the district as defined by this article, through the preservation, enhancement, protection, and development of the economic health and vitality of the district.

Activities of the district to pursue this purpose shall include but not be limited to the preparation of economic or physical studies and plans, marketing and promotion, special events, business recruiting, cooperative leasing, and property management and maintenance.
(Ord. No. 14-02, 4-22-02)

Sec. 28-200. Powers of the district.

(a) Subject to the limitation set forth in subsection (b) of this section, the district shall have the following powers:

(1) To acquire, hold and convey any estate, real or personal;

(2) To enter into contracts;

(3) To borrow money provided any obligation incurred for this purpose shall be discharged not more than one (1) year after it is incurred, and such district may pledge any tax levies received against such obligations;

(4) To recommend to the council the imposition of a special tax levy upon a taxable interest in real property within the district, the revenues from which shall be used in carrying out any of the powers of the district;

(5) To construct, own, operate and maintain public improvements;

(6) To provide, within such district, some or all of the services which the city is authorized to provide in the district in accordance with Chapter 105a, Section 7-339t and other Connecticut General Statutes and provided that there be a formal agreement for providing such services between the district and the city;

(7) To retain legal counsel;

(8) To receive and use gifts and donations, including but not limited to, goods and services, for the activities necessary to meet the purpose of the district or to carry out the powers of the district;

(9) To operate revenue producing and promotional events and to use the revenues for district purposes otherwise permitted under this article;

(10) To carry out any functions or provide any services reasonable and necessary to carry out the aforementioned powers or to otherwise meet the purposes of the district;

(11) To construct, acquire, operate or obtain leasehold interests in motor vehicle parking facilities within the district or within any block immediately adjacent to the district, except that no parking facility open to the public shall be constructed, acquired, leased, subleased, or operated by the district without prior approval of the council;

(12) To sue and be sued.

(b) The district shall not enter into or make any contract, agreement, lease, commitment, pledge or undertaking of any sort for a period or term of longer than two (2) years, provided that, with the written approval of the city manager, said two-year limit may be extended to up to four (4) years. If any provision of this article requires a shorter period or term, such more restrictive provision shall govern.
(Ord. No. 14-02, 4-22-02)

Sec. 28-201. Boundary of the district.

(a) The geographic boundaries of the district shall include the following:

Parcel	*Address*	
401004004	981	Park St.
401004005	929—943	Park St.
401004006	911	Park St.
401004007	905—909	Park St.
401004008	897—891	Park St.
401004025	887—891	Park St.
402001001	863—869	Park St.
402001002	851—859	Park St.
402001003	841—847	Park St.
402001004	833—837	Park St.
402001005	821—829	Park St.
402001037	811—817	Park St.
402002001	787—795	Park St.
402002002	779—785	Park St.
402002003	769—773	Park St.
402002004	763—767	Park St.
402002005	751—757	Park St.
402002006	741—749	Park St.
402003001	721	Park St.
402003002	673—701	Park St.
402003024	711	Park St.
402004001	651—657	Park St.
402004002	637—643	Park St.
402004024	54	Lawrence St.
402004025	629—633	Park St.
402004026	623—627	Park St.
402004027	617—619	Park St.
403002028	762—764	Park St.
403002051	742—760	Park St.
403002053	778	Park St.
403002054	784	Park St.
403004009	680	Park St.
403004011	704—710	Park St.
403004015	686—688	Park St.
403004016	698—700	Park St.
403006015	820	Park St.
403006016	834—842	Park St.
403006017	844—850	Park St.
403006018	854—862	Park St.
403006019	866—870	Park St.
403006020	874—880	Park St.
403006021	886—888	Park St.
403006022	896—898	Park St.
403006023	906—908	Park St.
403006024	918—920	Park St.
403006025	926—928	Park St.
403006026	936	Park St.
403006027	946	Park St.
403006028	146—148	Park Ter.
403006029	142—144	Park Ter.
411005007	147	Washington St.
411006007	426—432	Park St.
411006008	454—456	Park St.
411006009	180	Oak St.
411006011	162—164	Oak St.
411007009	490—496	Park St.
411007010	510	Park St.
411007011	518—524	Park St.
411007012	528—546	Park St.
411007013	184—186	Hungerford St.
411008012	582—586	Park St.
411008013	590—596	Park St.
411008014	598—608	Park St.
411008015	804—806	Broad St.
411008016	794	Broad St.
411008020	560	Park St.
411008021	574	Park St.
411009011	799	Broad St.
411009012	630—638	Park St.
411009015	654—660	Park St.
411009024	646—648	Park St.
411009025	64	Lawrence St.
412001001	585—593	Park St.
412001002	577—581	Park St.
412001003	569—573	Park St.
412001004	557—563	Park St.
412001006	531—533	Park St.
412001007	517—523	Park St.
412001008	507—513	Park St.
412001009	13—15	Wolcott St.
412001038	547—553	Park St.
412001039	539—545	Park St.
412002002	457—495	Park St.
412003001	431—435	Park St.
412003002	421	Park St.
412003003	415	Park St.
412003013	14	Squire St.
412003014	10	Squire St.
412003018	161	Washington St.
412004001	315	Park St.

Parcel	*Address*	
412004003	287	Park St.
412004004	285	Park St.
412004005	275	Park St.
412004006	265	Park St.
412004032	162—168	Washington St.
412004033	176	Washington St.
415001013	231—233	Park St.
415001034	505	Hudson St.
415002001	204—208	Park St.
415002014	158—160	Park St.
415002015	162	Park St.
415002016	168—170	Park St.
415002018	186	Park St.
415002019	196—198	Park St.
415003001	122—136	Park St.
415003002	406	Hudson St.
415003009	86	Park St.
415003010	90—100	Park St.
415003011	108—110	Park St.
415004004	482—488	Hudson St.
415004006	452—456	Hudson St.
415004008	111—113	Park St.
415004009	95—99	Park St.
415004012	75	Park St.
415004013	57—91	Park St.
415004015	31—35	Park St.
415004016	23—29	Park St.
415004017	19—21	Park St.
415004018	11—17	Park St.
415004019	9	Park St.
415004020	115	Main St.
415004021	111	Main St.
415004022	109	Main St.
415004023	99—105	Main St.
415004025	89—97	Main St.
415005001	38—70	Park St.
415005002	14—16	John St.
415005009	135—157	Main St.
415005010	22—34	Park St.
416001001	150—152	Washington St.
416001015	296—298	Park St.
416002001	262—266	Park St.
416002043	220—226	Park St.
416002044	234—242	Park St.
416002045	250—252	Park St.

(b) All of the land area included in the above list of properties shall constitute the geographic area of the district, and any changes to the parcels shape or address or parcel identification number shall not eliminate any of the land from the district. For the purpose of establishing the district, the owners of tax-exempt property within the district will not be eligible to vote nor will they be subject to any tax levies unless the tax-exempt status changes. If the tax-exempt status changes the property shall be subject to the district tax levy in accordance with section 28-205 of this article. Such levies shall be prorated to cover the period from the change in the tax status to the end of the fiscal year during which the tax status changes.
(Ord. No. 14-02, 4-22-02)

Sec. 28-202. Procedures for additions to the district.

(a) Any property owner whose property has at least one (1) boundary abutting the properties listed in section 28-201 above may elect to join the district. Such owner shall notify the board of commissioners in writing of their intention to join the district. This request must be signed by the property owner having greater than fifty (50) percent interest in said property, or a representative of the owner authorized to sign such a request. No property added to the district utilizing the procedures in this section shall be deemed thereby to have been added to the list of properties set forth in section 28-201 above.

(b) The board of commissioners shall notify the city assessor and the city of additions to the district and record a copy of the written notification in the land records of the city. The tax levy imposed on a property that joins the district after its inception must be prorated to cover the period from the first meeting of the board of commissioners after the notification is received to the end of the fiscal year.
(Ord. No. 14-02, 4-22-02)

Sec. 28-203. Procedures for the referendum; establishing the district.

(a) This article shall not take effect unless, within sixty (60) days of the enactment of this article by the council, a referendum thereon shall be held and approved.

(b) The referendum shall be held among all holders of record of taxable interests in real property in the district on the question of whether this article shall take effect. The city clerk shall determine the identity of such holders in the city's land records and shall give notice of the referendum to such holders.

(c) The referendum question shall appear on a ballot created by the city clerk. Each ballot shall be accompanied by a copy of the ordinance from which this article is derived and a letter explaining how the ballot is to be cast. Only property owners inside the district are eligible to vote in the referendum. Each ballot shall be signed by the property owner or the duly authorized representative of said owner.

(d) In addition to the referendum question the ballot shall contain an identification of the property or properties owned by the property owner which are in the special services district and the assessed value of the real property of those premises as they appear in the city's grand list as of the October first preceding preparation of the ballot. The city administration shall prepare, prior to the mailing of said ballots, a list of the property owners within the district, and the assessed value of the properties and shall post the list in the city clerk's office.

(e) The ballot shall be mailed to the address used by the city assessor for tax collection purposes. The ballots must be returned to the city clerk by not later than 5:00 p.m. on the twenty-first day after the initial mailing.

(f) Each property owner shall be entitled to cast one (1) ballot for each property they own, which will be so counted in determining whether the necessary majority of property owners have voted in favor of the creation of the proposed district. Where there are multiple owners of a property the property shall be entitled to one (1) vote.

(g) The city clerk shall supervise the referendum and shall certify the results of the referendum. The referendum shall comply, to the extent applicable and practicable, with Chapter 145 (Absentee Voting) and Chapter 152 (Referenda) of the Connecticut General Statutes, except as Chapter 105a of the Connecticut General Statutes and the terms of this article may otherwise permit or direct.

(h) The referendum shall be approved if a majority of all such holders of record of taxable interests in real property in the district, voting one (1) vote per property, respond affirmatively and if such holders of record of taxable interests in real property in the district, the assessments of which constitute more than one-half (½) of the total of assessments for all taxable interests in real property within the district, respond affirmatively.
(Ord. No. 14-02, 4-22-02)

Sec. 28-204. District organization and operations.

(a) *Commencement of district operations.* Within thirty (30) days of the referendum creating the district, the mayor or a designee shall call a general meeting of the members to elect the board of commissioners in accordance with subsection (b) of this section. The board of commissioners shall meet within twenty (20) business days of the general meeting and establish a schedule of subsequent meetings and a schedule for adopting bylaws for the commission, said bylaws to be adopted within sixty (60) days of the first meeting of the board.

(b) *Board of commissioners.*

(1) There shall be established a board of commissioners consisting of nine (9) members. Six (6) commissioners must be property owners in the district and three (3) members shall be lessees. There shall be one (1) alternate commissioner elected to substitute for commissioners absent from any business meeting.

(2) The board of commissioners shall be the executive body governing the day to day operations of the district. The board shall make administrative decisions and establish or interpret policies of the district which are consistent with the purpose, intent and powers of the district. The board may designate such agents, includ-

ing a district manager, as it deems necessary and advisable to act on its behalf in the conduct of the business of the board.

(3) The board of commissioners shall be elected by a plurality vote of members present and voting at a general meeting. Nominations for candidates for elections to the board of commissioners shall be made at the time of the general meeting. Each member shall be entitled to cast nine (9) votes, but shall not be allowed to cast more than one (1) vote for any one (1) candidate. The six (6) property owner candidates and the three (3) lessee candidates receiving the highest total vote count shall be elected commissioners. The candidate with the highest vote count after those elected shall be elected alternate. In order to ensure broad representation of the district no more than one (1) candidate shall be elected from a street address.

(4) The board of commissioners shall elect officers, the positions to be determined at the first meeting of the board after the district is created and incorporated into the bylaws when written.

(5) The board of commissioners may hire such staff or consultants considered necessary to perform the duties and carry out the obligations of the district as approved in the annual budget.

(6) The terms of the nine (9) commissioners and one (1) alternate shall be for two (2) years.

(7) If any commissioner shall fail for any reason to serve through the end of the term, the remaining commissioners shall appoint a property owner to fill the remainder of the term vacated by a property owner, or a lessee to fill the remainder of a term vacated by a lessee.

(8) No commissioner shall receive any compensation for service as such, but may be reimbursed for reasonable expenses incurred on behalf of the district as determined and approved by the board.

(c) *Meetings of board of commissioners.*

(1) The board of commissioners shall establish a regular schedule of meetings and notify all members in the district of their regular meeting schedule including dates, times, and places for said meetings.

(2) The board of commissioners may call special meetings from time to time as necessary to conduct the business of the district. The board of commissioners shall notify members of the special meeting setting forth the date, time, place and subject matter of the meeting.

(3) There shall be at least one (1) annual meeting of district members to review the activities of the district, to review and make comments on the proposed budget for the district, and to conduct district elections when appropriate.

(Ord. No. 14-02, 4-22-02)

Sec. 28-205. Annual budget and tax levy for the special services district; financial reports; audit.

(a) The board of commissioners shall prepare and adopt the first annual budget from the district by February 28, 2003 and annually thereafter. The budget shall include proposed expenditures, revenues and a recommended tax levy for the district.

(b) The board of commissioners shall recommend to the city administration on or before March 15 of each year a levy upon taxable interest on real property within the district to support the district's annual budget. Said recommended levy shall not exceed a limit to be established periodically by resolution of the city council. The city shall be obliged to impose the recommended levy as a municipal levy, to collect the revenues, and to deposit the revenues into a special fund to be used by the district.

(c) The levy on the taxable interest in real property in the district shall be due and payable in two (2) parts, on July 1 and January 1, following the adoption of the levy for the fiscal year. On or before July 1 and January 1 each year the tax

collector of the city shall, accordingly, bill holders of taxable interest in real property in the district.

Delinquent charges shall be assessed on late district tax payments and shall be computed in the same manner used for establishing delinquent charges on regular property tax bills of the city.

(d) The city treasurer shall disburse funds from the account to the district upon written request of a duly authorized representative of the district, and only upon such request in accordance with the then current approved annual budget of the board of commissioners of the district. The district shall set forth in its bylaws the procedures for approving disbursement of funds and requesting disbursement from the treasurer.

(e) All orders or contracts for expenditures by the board of commissioners or their agents on behalf of the district which are greater than five thousand dollars ($5,000.00) shall be awarded to the lowest responsible qualified bidder only after a public invitation to bid, which shall be advertised in a newspaper having circulation in the district.

(f) All moneys, including but not limited to levies or any income, proceeds or fees issuing from the provision of services by the district or other business conducted by the district received by the board or by the city on behalf of the district shall be paid into the general fund of the city where an account shall be maintained of such moneys for the benefit of the district. Any provisions of the General Statutes, Special Acts or Charter to the contrary notwithstanding, the treasurer of the city shall disburse such moneys in accordance with an annual budget adopted by the board.

(g) An annual financial report of all district revenues and expenditures shall be submitted to the finance director of the city within sixty (60) days of the end of each fiscal year.

(h) The district shall have an independent financial audit of the district's financial affairs conducted by a certified public accountant within ninety (90) days of the end of the fiscal year. A copy of the audit shall be forwarded to the finance director of the city.
(Ord. No. 14-02, 4-22-02)

Sec. 28-206. Municipal service agreements.

The city may enter into a contract with the district in which the city is excused from providing to the district some or all of the services which the district is authorized to provide pursuant to this article and in which the district agrees to provide all such services from which the city has been excused. Any such contract is pursuant to Section 7-339t of the Connecticut General Statutes. The city and the district may also enter into contracts in which the district is given the right to elect to purchase from the city some or all of the services for which the district has become responsible. Any such contract is pursuant to Section 7-339t of the Connecticut General Statutes.
(Ord. No. 14-02, 4-22-02)

Sec. 28-207. Dissolution of the district.

(a) The district may be dissolved by an ordinance repealing this article or after a referendum is conducted by the board of commissioners among all property owners within the district on the question of whether the district shall be dissolved, provided a majority of property owners shall respond affirmatively or those so responding control more than one-half (½) the total assessments for all taxable interest in real property. The referendum shall be conducted in the same manner as the referendum establishing the district as provided herein.

(b) In the event the district is dissolved, the board of commissioners shall proceed to conclude the affairs of the district at the end of the then current fiscal year. If, after dissolution of the district there are outstanding liabilities or obligations, whether fixed or contingent, the council may impose, in addition to the regular municipal levy, a levy on the real property within such district pursuant to Section 7-339s of Chapter 105a of the Connecticut General Statutes for as many years as such liabilities remain outstanding. This levy shall be calculated to produce enough revenues to satisfy and release such liabilities. The revenue collected shall be deposited into the general fund of the city and disbursed at the direction of the city administrator solely for the purposes stated herein. If, after dissolution of

the district, there are assets that remain following the conclusion of the affairs of the district, the assets will be transferred to the city.
(Ord. No. 14-02, 4-22-02)

Sec. 28-208. Abatement of city property taxes.

The district's interest in real property held in the district, and personal property owned by the district, are subject to property taxes of the city but such tax may be abated prospectively by the council.
(Ord. No. 14-02, 4-22-02)

Sec. 28-209. Insurance and indemnity.

The district shall obtain and maintain, at its own cost and expense, issued by an insurance company licensed to conduct business in the State of Connecticut and having a Best's Key Rating of A-VIII or better, at least the following insurance coverage: commercial general liability, including contractual liability insurance, two million dollars ($2,000,000.00) combined single limit bodily injury and property damage. The City of Hartford shall be included as an additional insured, ATIMA. The district shall provide to the finance director of the city, prior to the commencement its operations, and thereafter upon renewal of any required insurance hereunder, certificate(s) of insurance evidencing coverage as required by this article. The insurance shall not be cancelled, altered or modified without the express written consent of the city, acting by its finance director. The coverages will not be canceled, non-renewed, or materially altered or changed by endorsement or through issuance of other policy(ies) without sixty (60) days advance written notice to the city finance director.

The district agrees to indemnify and hold the city and its officers, officials, employees, and agents, harmless from any liabilities, obligations, claims, actions, judgments, damages, or debts, amounts paid in settlement, and expenses, including attorney's fees, which are a result of the establishment of the district or of its operations and activities.

The commissioners, officers, agents and employees of the board shall be entitled to indemnification against judgments, fines, penalties, amounts paid in settlement and expenses including attorney's fees, in accordance with the standards and provisions of and to the extent that such indemnification is authorized by the Connecticut General Statutes, as may be amended from time to time. The board may purchase insurance providing indemnification in such amounts and with such coverage as the board may from time to time determine. The right of all indemnification provided for shall be in addition to and not exclusive of all other rights to which any commissioner, officer, agent or employee may be entitled, and such right of indemnification shall inure to the benefit of the heirs and personal representatives of such indemnified person.
(Ord. No. 14-02, 4-22-02)

ARTICLE XII. HISTORIC PRESERVATION COMMISSION

Sec. 28-210. Findings.

The court of common council ("council") finds that there exists within the City of Hartford ("city"), many structures, parks, neighborhoods and other areas that have had historic, architectural and economic significance during Hartford's past and which can continue to contribute towards a healthy and thriving future for the city. The council finds that the city's ability to protect, preserve and effectively utilize its architectural and historical heritage and character for aesthetic and economic recovery will be enhanced by an historic preservation ordinance that establishes a mechanism to identify, preserve and enhance distinctive areas, sites, structures and objects that have historic, cultural, architectural and archeological significance. The council finds that the city derives much of its charm and unique appearance from its architecture and from its history, especially as a former center of manufacturing, finances and literature during the Victorian era. The council further finds that historic and architectural preservation is a means of promoting the general welfare of the city and its residents. In furtherance thereof and pursuant to its authority under the Charter of the City of

Hartford and under the Home Rule Act, Connecticut General Statutes, section 7-148 the council has enacted this article.
(Ord. No. 06-05, 5-23-05)

Sec. 28-211. Purpose.

The purpose of this article is to promote the educational, cultural, economic, environmental, and general welfare of the city by:

(a) Strengthening the city's economy by stabilizing and improving property values and economic activity through the adaptive reuse of historic structures;

(b) Creating a mechanism to identify, preserve and enhance distinctive areas, sites, structures, features and objects that have historic, cultural, architectural and archeological significance;

(c) Fostering appropriate use and wider public knowledge and appreciation of such areas, sites, structures, features and objects;

(d) Protecting and enhancing the attractiveness of the city to homebuyers, homeowners, residents, tourists, visitors, businesses and shoppers;

(e) Providing a resource for information, education and expertise to those interested in rehabilitation or construction in a historic district or of an historic structure;

(f) Fostering civic pride in the city's history and development patterns;

(g) Protecting and enhancing neighborhood character;

(h) Fostering and encouraging preservation, restoration and rehabilitation that respects the historic, cultural, architectural and archeological significance of distinctive areas, sites, structures and objects; and

(i) Applying design standards in a reasonable and flexible manner to prevent the unnecessary loss of a community's historical features and to ensure compatible construction and rehabilitation in historic districts while not stifling change and development or forcing modern re-creations of historic styles.

(Ord. No. 06-05, 5-23-05)

Sec. 28-212. Established, purposes and duties.

There is hereby established a historic preservation commission whose purpose and duty shall be to carry out the purpose and to administer the provisions of this article.
(Ord. No. 06-05, 5-23-05)

Sec. 28-213. Members.

The members of the historic preservation commission shall be the members of the historic property commission as appointed pursuant to section 28-170 of the Municipal Code.
(Ord. No. 06-05, 5-23-05)

Sec. 28-214. Chairperson; rules.

The historic preservation commission shall elect annually a chairperson, a vice-chairperson and a secretary from its members. The commission shall, within a period of sixty (60) days from the adoption of this ordinance, adopt rules of procedure that are consistent with and carry out the intent of this article. Said rules of procedures are subject to council approval.
(Ord. No. 06-05, 5-23-05)

Sec. 28-215. Conflict of interest.

No member of the historic preservation commission shall appear for or represent any person, firm, corporation or other entity in any matter pending before the council, or any city board or commission. No member shall participate in the meeting or decision of the commission upon any matter in which the member is directly or indirectly interested in either a personal or financial manner. In the event of such disqualification, such fact shall be entered in the records of the commission, and the chairman will appoint an alternate member to participate in the meeting or decision. Members shall be subject to the provision of the city code of ethics.
(Ord. No. 06-05, 5-23-05)

Sec. 28-216. Compensation.

(a) The members of the historic preservation commission shall serve without compensation but shall be reimbursed for their necessary and reasonable expenses in the performance of their duties.

(b) The council may make appropriations to cover the reasonable expenses of the commission. (Ord. No. 06-05, 5-23-05)

Sec. 28-217. Meetings.

The historic preservation commission shall meet at least once per month in a location determined by the members. A quorum shall consist of a majority of the membership. The commission shall keep records of its meetings and activities and shall, no less than annually, apprise the council of its activities, progress and recommendations. (Ord. No. 06-05, 5-23-05)

Sec. 28-218. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commission means the historic preservation commission, as established pursuant to this article.

Connecticut Commission on Culture and Tourism means the state agency of that name established under section 210 of Public Act 03-6 of the June 30, 2003 Special Session of the General Assembly as amended under section 30 of Public Act 04-2 of the May 2004 Special Session.

Historic district means an area designated as a historic district on the National Register or the State Register.

Historic preservation council means the state agency of that name established pursuant to G.S. § 10-321b.

Local historic district means a historic district established pursuant to G.S. ch. 97a.

Local historic property means a historic property designated pursuant to G.S. ch. 97a.

National Register means the National Register of Historic Places, as maintained by the Secretary of the Interior pursuant to 16 U.S.C. § 1640a.

Protected property means (1) a property which is individually listed on the National Register or the State Register other than a local historic property and (2) an area, and all sites, structures, features and objects within such area which is part of a historic district.

Secretary of the Interior's Standards means the standards for rehabilitation established by the United States Secretary of the Interior.

State Register means the State Register of Historic Places, as maintained by the Connecticut Commission on Culture and Tourism pursuant to G.S. § 10-320b.
(Ord. No. 06-05, 5-23-05; Ord. No. 23-09, 5-26-09)

Sec. 28-219. Review by historic preservation commission.

(a) No person or entity may, without first applying and obtaining the approval of the commission, file an application for a demolition permit pursuant to section 9-12 of the Municipal Code, for a building permit pursuant to section 9-15 of the Municipal Code for (1) any demolition of any protected property or part thereof that is listed on the National or State Register of Historic Places, or, in regard to the National Register, for which a National Register application has been approved for study by the State Historic Preservation Office, (2) any alteration of any such protected property or part thereof if that alteration is visible from a street other than a street which faces only the back of the building, or (3) any construction of a new structure in a historic district.

(b) The commission shall adopt the Secretary of the Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings, shall develop rules of procedure and shall publish design guidelines to assist applicants in satisfying these standards. The design guidelines shall provide for flexibility in materials and design to promote economic feasibility. The design guidelines shall describe a variety of methods and designs for preserving the historic architectural character of buildings and neighborhoods. The

commission shall make reasonable efforts to guide owners in preserving historic architectural character in a cost-effective manner.

(c) The commission's procedures shall make provision for the consideration of economic hardship, including but not limited to consideration of the cost of historic preservation recommendations, the economic circumstances of the applicant, the availability of other architecturally appropriate alternatives, the relationship of the cost of historic preservation recommendations to the cost of the proposed project as a whole, and the impact of the historic preservation recommendations on the historic district as a whole and on the value of the property. The rules of procedure shall delineate submission requirements for at least four (4) types of hardship applications: (1) a provision for owner-occupied principal residences where exemption is granted based on demonstrated factors, such as age, ability to pay, and length of time living in the neighborhood; (2) a provision for non-owner occupied residential buildings containing six (6) or fewer dwelling units; (3) a provision for all other buildings, including commercial and industrial buildings; and (4) a provision for building demolition where there is no feasible and prudent alternative to demolition. If the applicant objects to compliance with this article because compliance will increase the cost of the alteration subject to review by the commission under this article by more than twenty (20) percent, the applicant shall provide the commission with at least two (2) realistic comparable professional estimates showing the difference in cost between the applicant's proposed alteration and alteration with the modifications requested by the commission. If the commission finds that such difference exceeds twenty (20) percent, the commission shall work with the applicant to find an alternative which will not increase the cost of the alteration by more than twenty (20) percent. The commission shall not require alterations which add more than twenty (20) percent to the cost of the alteration that is subject to review. To assist in the development of design guidelines the commission shall appoint an advisory committee with which it shall consult. The advisory committee shall include, but shall not be limited to, residents, design professionals, city planning, economic development and building code staff, developers, builders, preservation advocates including representatives of the Hartford Preservation Alliance, and such other persons or representatives as the commission may deem appropriate. The advisory committee shall present its recommendations to the commission within six (6) months of its first meeting. The commission shall hold at least one (1) public hearing on the design guidelines prior to voting on its adoption. The commission's procedures and design guidelines shall be subject to council approval prior to implementation. Any commission decision that denies an application or requires a modification of the alteration(s) and/or plan(s) shall state the reason(s) for denial, shall state what modification of the alteration(s) and/or plan(s) would result in approval of the application and shall refer to the relevant section(s) in the design guidelines in which the applicant can find appropriate guidance.

(d) The commission shall meet at least once a month. Any application for commission approval shall, at the latest, be placed on the agenda of the next commission meeting which occurs more than seven (7) days after receipt of the application. The commission may define one (1) or more classes of minor alterations to be delegated to the development services department ("department") for approval or rejection, based upon the applicable design standards. A copy of each approval or rejection by the department shall be transmitted to each member of the commission by the department. Any approval or rejection by the department shall become effective ten (10) days after its issuance. If within such ten-day period the applicant or the chairperson of the commission requests that the commission review the action of the development services department, the department's action shall not take effect and the application shall be placed on the next commission agenda for action by the commission. any application submitted pursuant to this article that is not acted upon by the commission within forty-five (45) days after its filing shall be deemed granted, provided that nothing in this section shall preclude the commission and an applicant from agreeing to a longer time period for the completion of commission action upon an application.

(e) Demolition of a protected property shall be approved by the commission only if the applicant establishes, to the satisfaction of the commission, that (1) there is no economically feasible alternative to demolition or (2) the property, through no fault of any owner of the property after the effective date of this chapter, does not contribute to the architectural or historic character of the district and its demolition will not detract from the architectural or historic character of the district.

(f) This article shall not apply to any structure which has been ordered demolished by the department of licenses and inspections or its successor on an emergency basis because it represents so immediate a hazard to public safety that demolition cannot be deferred and the structure cannot be protected, secured, or stabilized by reasonable measures specified by the department of licenses and inspections. Furthermore, this article shall not apply to any repair which has been ordered by the department of licenses and inspections or its successor on an emergency basis because the condition represents so immediate a hazard to public safety or structure integrity that repair cannot be deferred and that the structure cannot be protected, secured, or stabilized by reasonable temporary measures specified by the department of licenses and inspections.
(Ord. No. 06-05, 5-23-05)

Sec. 28-220. Challenges to final decisions.

There shall be a board of preservation appeals which shall be comprised of one (1) person appointed by the mayor, one (1) person appointed by the court of common council who is not a member of the court of common council, and one (1) person appointed by the historic preservation commission who is not a member of the historic preservation commission. Any person aggrieved by a final decision of the commission, in regard to an application for approval filed pursuant to this article, may appeal such decision to the board of preservation appeals within fifteen (15) days of receipt of the commission's decision. The board shall adopt rules and procedures for the aforesaid appeal right within sixty (60) days of its appointment. Any decision by the board shall be based upon the same standards as are to be applied by the commission under this article. Any decision by the board shall include a statement of the reasons for the decision.
(Ord. No. 06-05, 5-23-05)

Sec. 28-221. Policy of municipal departments and agencies.

It shall be the policy of the City of Hartford and its departments and agencies to give priority to the preservation of the city's historic architecture and character. All departments and agencies of the city, including but not limited to those dealing with planning, zoning, health, and safety, shall consider historic and architectural significance and preservation when making decisions concerning whether and how properties should be rehabilitated, mothballed, or demolished, including decisions concerning to whom dispositions of property will be made. Demolition shall be treated as an alternative of last resort and shall be utilized only when other reasonable alternatives do not exist.
(Ord. No. 06-05, 5-23-05)

ARTICLE XIII. HARTFORD SPECIAL SERVICES DISTRICT*

Sec. 28-222. Establishment.

There is hereby authorized a Hartford Special Services District (aka Hartford Business Improvement District) as a body politic and corporate, in accordance with the powers vested in the city under G.S. ch. 105a.
(Ord. No. 04-13, 5-13-13)

Sec. 28-223. Definitions.

The following words, terms, and phrases, as used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assessed value of property or properties, sometimes referred to herein as *assessed value*, shall

*__Editor's note—__*Ord. No. 04-13, adopted May 15, 2013, amended Article XIII in its entirety to read as herein set out. Former Article III, §§ 28-222—28-234, pertained to similar subject matter and derived from Ord. No. 20-09, adopted May 11, 2009.

be the value of property or properties calculated in the manner for determining the taxable interest in property.

Board of commissioners shall be the executive body of the district elected by a vote of the property owners of the district, pursuant to the provisions of section 28-229 of this article.

Commissioner shall be any member of the board of commissioners.

District shall be the special services district established according to G.S. ch. 105a, whose boundaries are delineated in section 28-226 of this article, including amendments made to the district boundaries under the provisions of section 28-227.

Fiscal year shall be from July 1 through June 30.

Holder of record of the taxable interest in real property shall be an individual, corporation, partnership, unincorporated association, fiduciary, guardian, conservator, or other legal entity or any combination thereof as identified in the city's land records, as the holder of the fee interest in a property that is not tax-exempt; holder of record of the taxable interest in real property is also sometimes referred to herein as property owner. For the purpose of this definition, "fee interest" shall also include a leasehold interest that has an initial term of at least fifty (50) years, so long as the lessee is responsible for the payment of the real property taxes on the property in question. In such case, the lessee, and not the lessor, of the leasehold interest shall be considered the holder of the fee interest, provided, however, if the lessor continues, directly or indirectly, to be responsible for the payment of a greater proportion of the real property taxes than the lessee on the property in question, then the lessor shall be considered the holder of the fee interest.

Lessee shall be a tenant occupying and in possession of premises located in the property in the district.

Property or *properties* shall be real property within the district that is identified in the tax records of the city as a parcel of land and/or building or which constitutes an individual condominium unit as shown on the records of the city assessor's office.

Super majority vote shall mean the vote of the board of commissioners required by subsection 28-229(d) of this article.

Taxable interest in property shall mean the full assessed value, based on the fair market value of the property in question, using normal methods for determining such assessment and specifically not taking into account any tax-fixing agreements, reduced assessment agreements or other methods for reducing the normal tax burden on the property in question, which might be otherwise applicable to the property in question.
(Ord. No. 04-13, 5-13-13)

Sec. 28-224. Purpose.

(a) The Hartford Special Services District is hereby created under G.S. ch. 105a.

(b) The purpose of the district is to provide:

(1) Public safety (excluding police and fire department services),

(2) Cleaning and beautification of streetscapes, and

(3) Marketing services in and for the district.

Activities of the district to pursue this purpose may include but not be limited to the preparation of economic or physical studies and plans, marketing and promotion, special events, business recruiting, hospitality, urban beautification, property maintenance, and deployment of public safety/hospitality ambassadors; provided, however, that the district shall not engage in any activity which would be inconsistent with its classification as an organization described in Section 501(c)3 of the Internal Revenue Code of 1986 ("Code"), as amended form time to time, or in an equivalent section of the Code in effect at any time. The district will work with existing entities in the city in the implementation of these services to accomplish a common goal.
(Ord. No. 04-13, 5-13-13)

Sec. 28-225. Powers and duties.

(a) The district shall have the following powers:

(1) To acquire, hold and convey any estate, real or personal;

(2) To enter into contracts;

(3) To recommend to the city council the imposition of a special tax levy upon the taxable interests in property within the district, the revenues from which shall be used in carrying out any of the powers of such district;

(4) To provide, within such district, some or all of the services which the city is authorized to provide in the district in accordance with G.S. ch. 105a, § 7-339t and other Connecticut General Statutes if authorized by a super majority vote in accordance with subsection 28-229(d) of this article and provided that there first be a formal agreement for providing such services between the district and the city;

(5) To retain legal counsel;

(6) To receive and use gifts and donations, including but not limited to, goods and services, for the activities necessary to meet the purpose of the district or carry out the powers of the district;

(7) To operate revenue producing and promotional events and to use the revenues for district purposes otherwise permitted under this article;

(8) To carry out any functions or provide any services reasonable and necessary to carry out the aforementioned powers or to otherwise meet the purposes of the district;

(9) To sue and be sued.

(Ord. No. 04-13, 5-13-13)

Sec. 28-226. Boundary of the district.

(a) The properties to be included in the district are listed by parcel number as shown on the maps of the tax assessor of the City of Hartford and enumerated in Schedule A, attached hereto.

(b) All of the land area included in Schedule A - 2013 shall constitute the geographic area of the district, and any changes to the parcels shape or address or parcel identification number shall not eliminate any of the land from the district. For the purpose of establishing the district, the owners of tax-exempt property within the district will not be eligible to vote nor will they be subject to any tax-levies unless their tax-exempt status changes. If the tax-exempt status changes the property shall be subject to the district tax levy in accordance with section 28-230 of this article. Such levies shall be pro-rated to cover the period from the change in the tax status to the end of the fiscal year during which the tax status changes.
(Ord. No. 04-13, 5-13-13)

Sec. 28-227. Procedures for additions to the district.

(a) A parcel of real property shall be included in the district among the properties already within the district if:

(1) All holders of record of the taxable interest in real property in said parcel shall submit a written request to the board of commissioners that said parcel be included in the district; and

(2) The board of commissioners shall approve inclusion of said parcel in the district by a super majority vote in accordance with subsection 28-229(d) of this article; and

(3) The city council shall amend this article to include said parcel in the district. Such proposed amendments shall be submitted to the city council during the months of March and September of any given year.

(b) The board of commissioners shall notify the city assessor and the city of additions to the district and record a copy of the written notification in the land records of the city. The tax levy imposed on a property that joins the district after its inception will be pro-rated to cover the period from the first meeting of the board of commissioners after the notification is received to the end of that fiscal year.
(Ord. No. 04-13, 5-13-13)

Sec. 28-228. Procedures for the referendum; establishing the district.

(a) This article shall not take effect unless, within sixty (60) days of the enactment of this article by the city council, a referendum shall be had and approved.

(b) The referendum shall be held among all holders of record of the taxable interests in real property in the district on the question of whether this article shall take effect. The city clerk shall determine the identity of such property owners in the city's land records and shall give notice of the referendum to such property owners.

(c) The referendum question shall appear on a ballot created by the city clerk. Each ballot shall be accompanied by a copy of the ordinance from which this article is derived and a letter explaining how the ballot is to be cast. Only property owners within the district are eligible to vote in the referendum. Each ballot shall be signed by the property owner or the duly authorized representative of said owner.

(d) In addition to the referendum question the ballot shall contain an identification of the property or properties owned by the property owner which are within the district and the assessed value of property as it appeared in the city's grand list as of the first day of the month of October immediately preceding preparation of the ballot. The city administration shall prepare, prior to the mailing of said ballots, a list of the property owners within the district, and the assessed value of properties and shall post the list in the city clerk's office.

(e) The ballot shall be mailed to the address used by the city assessor for tax collection purposes. The ballots must be returned to the city clerk by not later than 5:00 p.m. on the 21st day after the initial mailing.

(f) Each property owner shall be entitled to cast one (1) ballot for each property they own as separately reflected on the tax assessor's records, within the boundaries of the district, which will be so counted in determining whether the necessary majority of property owners have voted in favor of the creation of the proposed district. Where there are multiple owners of a property, the property shall be entitled to one (1) vote.

(g) The city clerk shall supervise the referendum and shall certify the results of the referendum. The referendum shall comply, to the extent applicable and practicable, with G.S. ch. 145 (absentee voting) and G.S. ch. 152 (referenda), except as G.S. ch. 105a and the terms of this article may otherwise permit or direct.

(h) The referendum shall be approved if a majority of all holders of the record of taxable interests in real property in the district, voting one (1) vote per property, respond affirmatively and if such holders of record of the taxable interests in real property in the district, the assessed values of which constitute more than one-half (½) of the total of the assessed values for all the taxable interests in property within the district, respond affirmatively.

(i) If the referendum is approved, the district will be established.

(j) This article may be amended only in the event that (i) the board of commissioners shall approve such amendment by a super majority vote in accordance with subsection 28-229(d) of this article and (ii) a referendum, held among the district property owners utilizing the procedures set forth in this section 28-228, approves the amendment.
(Ord. No. 04-13, 5-13-13)

Sec. 28-229. District organization and operations.

(a) *Commencement of district operations.* Within thirty (30) days after the approval of the referendum creating the district, the mayor or the mayor's designee shall call the general meeting of the property owners, on at least ten (10) days' written notice by U.S. mail, effective on mailing, to all property owners in the district, to elect the board of commissioners in accordance with subsection (b) of this section. The board of commissioners shall meet within twenty (20) business days of the general meeting to establish a schedule of subsequent meetings and a schedule for adopting bylaws (which bylaws shall include the provisions

set forth in subsections 28-229(b) and (c)) and rules of procedure for the board of commissioners, said bylaws to be adopted within sixty (60) days of the first meeting of the board of commissioners.

(b) *Board of commissioners.*

(1) There shall be established a board of commissioners consisting of twenty-three (23) members: fifteen (15) commissioners must be property owners or their designees in the district; three (3) commissioners must be lessees within the district; and five (5) commissioners must be ex-officio members. The board of commissioners shall be comprised as follows:

a. Class A commissioners. Six (6) separate property owners or their designees which are among the six (6) largest such owners, by assessed value of property, in the district.

b. Class B commissioners. Four (4) separate property owners or their designees which are among the next ten (10) largest such owners, by assessed value of property, in the district.

c. Class C commissioners. Three (3) separate property owners or their designees which are among the next seventy (70) largest such owners, by assessed value of property, in the district.

d. Class D commissioners. Two (2) separate property owners or their designees which are not included in Class A, Class B, or Class C.

e. Class E commissioners. Three (3) members not qualifying as Class A, B, C, or D commissioners who are lessees in the district. At least one (1) of these members must be a lessee who operates a retail operation.

f. Class F commissioners. Two (2) ex-officio members, one each appointed by the City of Hartford Mayor or his designee, and the City of Hartford Court of Common Council.

g. Class G commissioners. Three (3) ex-officio members, one (1) each appointed by the MetroHartford Alliance, Greater Hartford Arts Council, and Business for Downtown Hartford.

In calculating the assessed value of property for Class A, Class B and Class C, each property owner shall be determined by aggregating all properties within the district to include those properties which are owned by one (1) or more affiliates and for this purpose "affiliates" shall mean for any person or entity, any person or entity (i) which is owned by, under common ownership with or owns, whether beneficially, directly or indirectly through one (1) or more intermediaries, such entity or any interest in such entity, or (ii) which controls, is controlled by, or is under common control with such person or entity. The term "control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a person or entity, whether through ownership of voting securities, by contract or otherwise. No one (1) member of one (1) class may be a member of another class. Each Class A, B, C or D commissioner, or the property owner which the commissioner represents, must continue to own property within the class to which the commissioner was elected, If during his term, the aggregated assessed value of the property owned by a commissioner or the property owner who designated the commissioner changes such that his status in the class to which he was elected is no longer applicable, but the commissioner or the property owner who designated the commissioner still owns property in the district, the commissioner will serve out the remainder of his term in the class to which he was elected. At the end of said term, commissioners will be elected pursuant to the class designations in subsections 28-229(b)(1)a.—e.

Each commissioner, including ex-officio members, will be a voting member of the board of commissioners with one (1) vote each.

(2) The board of commissioners shall be the executive body of the district. The business and affairs of the district shall be conducted by the board of commissioners and by such agents as are authorized pursuant to this article. The board of commissioners shall make administrative decisions and establish or interpret policies of the district which are consistent with the purpose, intent and powers of the district The board of commissioners may designate such agents, including a district manager, as it deems necessary and advisable to act on its behalf in the conduct of the business of the board of commissioners.

(3) The board of commissioners shall be elected by a plurality vote of property owners within the district present and voting at the general meeting referred to in subsection 28-229(a). Nominations for candidates for elections to the board of commissioners shall be made at the time of the general meeting. The holders of record of the taxable interests in real property in the district, as to which properties the assessed values constitute more than one-half (½) of the total assessed values for all the taxable interests in property within the district, shall constitute a quorum at such meeting. Any property owner within the district may propose one (1) or more candidates for the class designations in subsection 28-229(b)(1)a.—e. Each property owner within the district shall be entitled to cast a total of eighteen (18) votes per property that it owns which must be allocated pursuant to the class designations in subsection 28-229(b)(1)a.—e., i.e., six (6) votes for Class A, four (4) votes for Class B, three (3) votes for Class C, two (2) vote for Class D, and three (3) votes for Class E. Each property owner shall not be allowed to cast more than one (1) vote for any one (1) candidate. The candidates receiving the highest vote count shall be elected commissioners subject to the class designations in subsection 28-229(b)(1)a.—e.

(4) The board of commissioners shall elect a chairman and vice chairman, who shall be members of the board of commissioners and such other officers as the board of commissioners shall determine.

(5) The board of commissioners may hire such staff or consultants considered necessary to perform the duties and carry out the obligations of the district as approved in the annual budget.

(6) The term of each commissioner of the board of commissioners, as elected at the general meeting referred to in subsection 28-229(a), shall be for five (5) years.

(7) If any commissioner or any property owner of which such commissioner is the designee ceases to own property within the district, ceases to lease property within the district (in the case of the Class E commissioners), or shall be unable or unwilling to continue to serve as a commissioner for any reason, such commissioner's term shall immediately cease, and the remaining commissioners shall immediately appoint a property owner or lessee, as the case may be, of the same class designation set forth in subsection 28-229(a)(1)a.—e. as the vacating commissioner, or the designee thereof, to fill such vacant property owner seat or lessee seat, for the remainder of the term vacated by said commissioner.

(8) Each commissioner who is the designee of a property owner or lessee which is a corporation, partnership, limited liability company or other business entity or who serves by appointment as a Class F or Class G commissioner shall serve at the discretion of the designating property owner, lessee or appointing party and until changed by such property owner, lessee or appointing party.

(9) No commissioner shall receive any compensation for service as a commissioner, but may be reimbursed for reasonable expenses incurred on behalf of the district as determined and approved by the board of commissioners.

(10) A majority of the number of commissioners entitled to vote then serving in office shall constitute a quorum for the transaction of business at any meeting of the board of commissioners. The act of a majority of the commissioners entitled to vote present at a meeting at which a quorum is present at the time shall be the act of the board of commissioners.

(c) *Meetings of board of commissioners.*

(1) The board of commissioners shall establish a regular schedule of meetings and notify all property owners in the district of their regular meeting schedule, including dates, times, and places for said meetings. The meetings of the board of commissioners shall be open to all property owners and lessees,

(2) The board of commissioners may call special meetings from time to time as necessary to conduct the business of the district. The board of commissioners shall notify property owners in writing, by U.S. mail, at least one (1) week in advance of the special meeting setting forth the date, time, place and subject matter of the meeting.

(3) There shall be at least one (1) annual meeting of district property owners to review the activities of the district, to review and make comments on the proposed budget for the district, and to conduct district elections when appropriate.

(d) *Restrictions and limitations.* The board of commissioners will not take any of the actions set forth below unless such action has been approved by the affirmative vote of two-thirds (⅔) of all of the commissioners entitled to vote on such matter at a meeting where at least two-thirds (⅔) of all of the commissioners entitled to vote on such matter are in attendance when the vote is taken:

(1) Recommend or authorize the amendment of this article in any manner;

(2) Adjust the revenue formula included in section 28-230 that is used to set the tax levy on an annual basis;

(3) Adopt or amend the bylaws of the district;

(4) Add parcels of real property to the district; pursuant to section 28-227 of this article; and

(5) Authorize the district to provide any services which the city is authorized to provide or to authorize a contract with the City of Hartford, pursuant to section 28-231 of this article.

(Ord. No. 04-13, 5-13-13)

Sec. 28-230. Annual budget and tax levy for the special services district; financial reports; audit.

(a) The board of commissioners shall prepare and adopt the first annual budget for the district within thirty (30) days after its first meeting as set forth in subsection 28-229(a) above, and annually thereafter. The budget shall include proposed expenditures, revenues and a recommended tax levy for the district.

(b) The board of commissioners shall recommend to the city administration on or before March 15 of each year a levy upon the taxable interest in property within the district to support the district's annual budget.

(c) The board of commissioners has set the levy upon the taxable interest at one point five (1.5) mills for fiscal year 2014, the first year of the new term. The levy on the taxable interest for subsequent years shall be the sum of the revenue derived from the previous year's levy plus the sum of multiplying the previous year's levy by the increase in the Consumer Price Index (CPI), as described herein. The resulting sum shall be the maximum total amount that the board of commissioners can generate from the mill rate assessment for that fiscal year, but in event less than the previous year.

(d) CPI shall mean the Consumer Price Index for The All Urban Consumers (U.S. City Average-All items 1982-84=100) in the Northeast Region metropolitan area, as promulgated by the U.S. Bureau of Labor Statistics of the United States

Department of Labor. Should the CPI be discontinued with no successor or comparable successor CPI, a substitute formula shall be mutually agreed upon by the board of commissioners.

(e) If authorized by a super majority vote in accordance with section 28-229(d) of the article, the board of commissioners can adopt modifications to the tax levy formula referenced in section 28-230(c) that sets the maximum annual assessment allowed.

(f) The levy on the taxable interest in property in the district shall be due and payable in two (2) parts, on July 1 and January 1, following the adoption of the levy for the fiscal year. On or before July 1 and January 1 each year, the tax collector for the city shall, accordingly, bill holders of taxable interests in real property in the district. Delinquent charges shall be assessed on late district payments and shall be computed in the same manner used for establishing delinquent charges on regular property tax bills of the city.

(g) The city treasurer shall disburse funds from the account to the district upon written request of a duly authorized representative of the district, and only upon such request in accordance with the current approved annual budget of the board of commissioners of the district. The district shall set forth in its bylaws the procedures for approving disbursement of funds and requesting disbursement from the treasurer.

(h) All orders or contracts for expenditures by the board of commissioners or its agents on behalf of the district which are greater than five thousand dollars ($5,000.00) shall be awarded to the lowest responsible qualified bidder only after a public invitation to bid, which shall be advertised in a newspaper having circulation in the district.

(i) All monies, including but not limited to levies or any income, proceeds or fees issuing from the provision of services by the district or other business conducted by the district received by the board of commissioners or by the city on behalf of the district shall be paid into the general fund of the city where an account shall be maintained of such moneys for the benefit of the district. Any provisions of the General Statutes, Special Acts, or Charter to the contrary notwithstanding, the treasurer of the city shall disburse such moneys in accordance with an annual budget adopted by the board of commissioners.

(j) An annual financial report of all district revenues and expenditures shall be submitted to the finance director of the city within sixty (60) days of the end of each fiscal year. A copy of the annual financial report shall be mailed to all property owners.

(k) The district shall have an independent financial audit of the district's financial affairs conducted by a certified public accountant within ninety (90) days of the end of the fiscal year. A copy of the audit shall be forwarded to the finance director of the city.
(Ord. No. 04-13, 5-13-13)

Sec. 28-231. Municipal service agreements.

If authorized by a super majority vote in accordance with subsection 28-229(d) of this article, the district may enter into a contract with the city in which the city is excused from providing to the district some or all of the services which the district is authorized to provide pursuant to this article and in which the district agrees to provide all such services from which the city has been excused. Any such contract is pursuant to G.S. ch. 105a § 7-339t(d). If authorized by a super majority vote in accordance with subsection 28-229(d) of this article, the city and the district may also enter into contracts in which the district is given the right to elect to purchase from the city some or all of the services for which the district has become responsible. Any such contract is pursuant to G.S. § 7-339t.
(Ord. No. 04-13, 5-13-13)

Sec. 28-232. Dissolution of the district.

(a) The district may be dissolved by an ordinance repealing this article or after a referendum is conducted by the board of commissioners among all property owners within the district on the question of whether the district shall be dissolved, provided a majority of property owners shall respond affirmatively or those responding affirmatively constitute more than one-half (½) of the assessed value of property for all the taxable interests in property within the district. In addi-

tion, the board of commissioners shall conduct a referendum among all property owners on the question of whether the district should be dissolved upon the written request of the property owners holding at least fifty (50) percent of the assessed value of property for all the taxable interests in property within the district. Any such referendum shall, be conducted in the same manner as the referendum establishing the district as provided herein.

(b) In the event the district is dissolved, the board of commissioners shall proceed to conclude the affairs of the district at the end of the then-current fiscal year. If, after dissolution of the district there are outstanding liabilities or obligations, whether fixed or contingent, the council may impose, in addition to the regular municipal levy, a levy on the property within such district pursuant to G.S. ch. 105a § 7-339s for as many years as such liabilities remain outstanding. This levy shall be calculated to produce enough revenues to satisfy and release such liabilities. The revenue collected shall be deposited into the general fund of the city and disbursed at the direction of the city administrator solely for the purpose of satisfying such outstanding liabilities or obligations. If, after dissolution of the district, there are assets that remain following the conclusion of the affairs of the district, the assets will be transferred to the city or, if the city shall have ceased to be a municipality, then to any successor municipality, and if none, then to the State of Connecticut, for public purpose or, if the city shall have ceased to be a municipality, then to any successor municipality, and if none, then to the State of Connecticut, for public purpose.
(Ord. No. 04-13, 5-13-13)

Sec. 28-233. Abatement of city property taxes.

The district's interest in property held in the district, and personal property owned by the district, are subject to property taxes of the city but such tax may be abated prospectively by the city council.
(Ord. No. 04-13, 5-13-13)

Sec. 28-234. Insurance and indemnity.

The district shall obtain and maintain, at its own cost and expense, issued by an insurance company licensed to conduct business in the State of Connecticut and having a Best's Key Rating of A-VII or better, at least the following insurance coverage: Commercial general liability, including contractual liability insurance, two million dollars ($2,000,000.00) combined single limit bodily injury and property damage. The City of Hartford, the board of commissioners and the agents of the board of commissioners shall be included as additional insureds. The district shall provide to the finance director of the city, prior to the commencement of its operations, and thereafter upon renewal of any required insurance hereunder, certificate(s) of insurance evidencing coverage as required by this article. The insurance shall not be cancelled, or materially altered or modified without the express written consent of the city, acting by its finance director. The coverage will not be canceled, nonrenewed, or materially altered or changed by endorsement or through issuance of other policy(ies) without sixty (60) days' advance written notice to the city finance director.

The district (but not the property owners within the district, individually or collectively) agrees to indemnify and hold the city and its officers, officials, employees, and agents, harmless from any liabilities, obligations, claims, actions, judgments, damages, debts, amounts paid in settlement, and expenses, including attorney's fees, which are a result of the district's negligent operations and activities.

The commissioners, as well as the board of commissioners' officers, agents and employees shall be entitled to indemnification against judgments, fines, penalties, amounts paid in settlement and expenses including attorney's fees, to the fullest extent permitted by law. The board of commissioners may purchase insurance providing indemnification in such amounts and with such coverage as the board of commissioners may from time to time determine. The right of all indemnification provided for shall be in addition to and not exclusive of all other rights to which any commissioner, officer, agent or employee may be entitled, and such right of indemnification shall inure to the benefit of the heirs and personal representatives of such indemnified person.

Schedule A—2013

Parcel ID Numbers						
180-411-071	268-351-017	269-346-001	245-331-088	201-426-038	270-077-038	245-332-080
180-411-083	201-321-005	269-346-002	245-332-002	223-279-007	270-077-047	246-348-761
180-414-111	201-321-009	269-351-008	245-332-003	179-319-046	270-077-049	246-348-763
245-333-068	179-319-045	269-353-003	245-332-004	179-319-048	180-412-077	268-344-005
245-334-063	179-319-047	269-353-004	245-332-005	223-329-029	180-412-081	268-350-019
245-339-095	179-320-241	269-353-006	245-332-006	223-330-036	180-412-082	201-321-001
245-339-098	201-321-006	269-358-022	245-332-076	245-339-097	180-412-083	245-332-081
268-355-026	201-321-008	269-359-009	245-332-077	246-341-014	180-414-113	201-321-004
223-330-035	223-279-002	269-359-010	245-332-078	246-347-034	202-416-097	245-331-085
179-406-044	223-326-025	269-360-011	245-332-082	268-344-003	223-278-011	179-320-265
179-320-175	245-332-079	223-328-020	245-332-083	268-351-015	180-412-076	201-426-037
179-320-176	245-333-066	179-414-243	245-333-069		222-326-071	201-426-039
179-320-177	245-333-071	245-334-062	245-333-070		223-277-017	201-426-044
179-320-179	245-333-073	244-324-105	245-334-008	223-325-027	223-278-012	222-278-003
245-334-059	245-345-121	269-360-014	245-334-009	201-321-007	223-326-022	246-342-019
245-334-060	245-346-126	179-321-278	245-334-064	269-077-023	223-327-018	268-350-018
245-334-061	245-346-127	246-342-020	245-334-065	269-077-024	223-327-019	269-362-005
268-350-010	246-335-009	269-360-012	245-337-091	269-077-027	245-331-089	223-328-021
268-350-011	246-339-023	179-404-015	245-337-092	269-077-028	268-356-030	244-324-010
268-350-012	246-341-018	245-339-096	245-337-093	269-077-030	268-357-031	
179-320-178	246-342-021	245-345-117	245-345-122	269-077-031	269-352-007	
268-350-022	246-347-028	245-345-118	245-345-123	269-077-032	246-335-010	
268-350-023	246-347-029	245-345-119	246-339-022	269-077-033	293-077-011	
180-412-078	246-347-030	245-333-007	246-341-012	269-077-034	223-322-001	
245-333-072	246-347-031	246-341-015	246-341-013	269-077-035	246-348-764	
245-333-074	246-347-033	245-344-112	246-342-011	269-359-020	246-348-765	
245-333-075	246-348-036	269-355-021	246-346-024	269-360-015	246-347-032	
179-318-016	246-348-037	269-359-021	268-345-001	269-360-016	245-337-102	
179-318-017	269-360-013	269-359-022	268-349-006	269-360-018	270-362-004	
179-320-180	201-269-034	180-411-079	268-349-021	270-077-037	223-277-016	
179-320-251	201-426-040	180-411-080	179-320-242	270-077-039	245-337-103	
179-320-252	202-416-001	180-411-081	179-320-245	270-077-040	245-338-094	
179-320-253	222-275-001	180-411-084	179-320-246	270-077-035	245-343-109	
180-411-082	223-330-032	180-412-079	179-320-247	270-077-074	246-348-762	
223-329-030	245-331-084	180-412-080	179-320-248	270-077-075	268-350-020	
245-346-124	245-340-099	201-321-010	246-341-016	270-360-005	268-354-028	
245-346-125	245-340-100	223-278-009	246-341-017	270-360-031	269-361-019	
246-346-026	245-343-110	223-278-010	179-320-249	270-360-032	179-406-043	
268-344-002	245-344-113	223-278-015	180-414-109	270-360-033	223-431-005	
268-350-007	245-344-114	223-279-006	156-318-446	270-360-034	268-350-014	
179-406-041	245-345-115	223-279-008	179-319-032	293-077-005	245-338-101	
245-333-067	245-345-116	223-326-023	179-320-250	293-077-006	269-077-029	
246-348-035	245-345-120	223-326-024	222-278-002	293-077-007	202-416-002	
179-406-042	246-346-034	223-326-026	222-278-004	293-077-008	268-350-017	
179-411-122	246-348-766	223-329-028	222-278-005	293-077-009	268-354-029	
201-322-035	268-349-022	223-329-031	222-278-006	293-077-010	245-337-104	
201-426-045	268-351-016	223-330-033	223-278-013	293-077-012	179-321-277	

Parcel ID Numbers						
245-331-001	268-355-025	223-330-034	223-278-014	268-350-008	179-411-121	
246-346-025	268-355-027	245-331-086	223-431-004	268-350-013	201-321-002	
246-347-027	268-357-032	245-331-087	268-351-018	223-431-003	201-321-003	

(Ord. No. 04-13, 5-13-13)

ARTICLE XIV. HARTFORD ENERGY IMPROVEMENT DISTRICT

Sec. 28-235. Establishment of the energy improvement district and board.

(a) In accordance with G.S. §§ 32-80a, 32-80b, and 32-80c, the city of Hartford hereby establishes the City of Hartford Energy Improvement District within and for the area more particularly defined as the municipal boundaries of the city of Hartford, to be created and operated according to the procedures set forth in G.S. §§ 32-80a, 32-80b, and 32-80c.

(b) The purpose of this article is to promote the planning, development, funding, acquisition, purchase, construction, reconstruction, improvement, extension or operation of an energy improvement district with the goals that include, without limitation:

(i) To promote a more reliable grid and a more secure power supply;

(ii) To assist businesses in their development and accounting by providing more predictable energy costs;

(iii) To reduce demand on the grid during peak hours;

(iv) To encourage the development of renewable technology;

(v) To promote the goals of energy sustainability contained in Hartford's One City, One Plan;

(vi) To promote the state's goals pertaining to Connecticut's Comprehensive Energy Strategy;

(vii) To help achieve Connecticut's renewable portfolio standard goals;

(viii) To decrease the negative externalities associated with fossil-fuel-based energy generation;

(ix) To increase energy supply to meet our state's growing energy demand; and

(x) To reduce the burden on Connecticut's aging energy grid.

(Ord. No. 07-16, 8-8-16)

Sec. 28-236. Definitions.

For the purpose of this article, the following definitions shall apply:

Board shall mean the energy improvement district board created by this chapter and as more particularly defined in G.S. § 32-80a;

District shall mean the energy improvement district, which shall be the municipal boundaries of the city of Hartford;

Energy improvement district distributed resources, as defined in subdivision (1) of subsection (a) of G.S. § 32-80a.

Connecticut General Statutes shall mean the revision of 1958, as revised and amended.

Project, as defined in subdivision (2) of subsection (a) of G.S. § 32-80a.

(Ord. No. 07-16, 8-8-16)

Sec. 28-237. Board members and qualifications.

(a) The board of the district shall consist of nine (9) voting members. The voting members shall be the Director of Development Services of the City of Hartford or the Director's designee, the Director of Public Works of the City of Hartford or the Director's designee, and the Superintendent of Hartford Public Schools or the Superintendent's designee; three (3) individuals who shall be electors of the City, who shall be appointed by the Mayor with the approval by the

Court of Common Council; and three (3) representatives of businesses located in the district, who shall be appointed by the Mayor with the approval by the Court of Common Council. The board of the EID shall also consist of five (5) non-voting members: the Hartford City Council President, the Mayor, the City Architect, the City Engineer, and a representative of the local electric utility, who shall be appointed by the Mayor with the approval of the Court of Common Council. All of the terms shall be for a period of four (4) years, staggered, except for the members appointed by virtue of their office, whose terms shall be simultaneous with their office. Any vacancy shall be filled in the same manner as the original appointment. The board members shall serve without compensation, except for reasonable and necessary expenses.

(b) To ensure that the members of the board have the highest knowledge of energy use and conservation, the members appointed by the Mayor shall have education or training and/or three (3) or more years of experience in one (1) or more of the following fields: accounting, business management, consumer advocacy, economics, engineering, environmental management, finance, law, public or government administration, or utility regulation.
(Ord. No. 07-16, 8-8-16)

Sec. 28-238. Powers of board.

(a) The energy improvement district and energy improvement district board shall have all the powers and duties conferred or imposed on it by the Connecticut General Statutes, including but not limited to the sole authority to enter into contracts for the acquisition, purchase, construction, reconstruction, improvement or extension of one (1) or more energy improvement district distributed resources. In accordance with G.S. §§ 32-80a, 32-80b, and 32-80c, the placement and use of plant and equipment necessary to operate and maintain one (1) or more energy improvement districts are subject to the review and/or approval mandated by all applicable federal, state and local statutes, regulations, and ordinances, and conformance with those laws, including but not limited to laws enforced by the State Department of Energy and Environmental Protection, the Connecticut Siting Council, and ISO New England.

(b) In addition to the powers described above, the Board shall have the power to receive funds from the city of Hartford and issue and secure bonds subject to the approval of the City's Court of Common Council and further subject to the conditions as more particularly set forth in G.S. § 32-80b.
(Ord. No. 07-16, 8-8-16)

Sec. 28-239. District properties.

The properties included in the district shall be bounded by the municipal boundaries of the city of Hartford. However, the Board may use its discretion to determine in which areas of the municipality it will pursue energy improvement projects.
(Ord. No. 07-16, 8-8-16)

Sec. 28-240. Regulations by the board.

Subject to the requirements of sections 2-1 and 2-2 of the Municipal Code of Hartford, the board may make and enforce any reasonable regulation which it may determine to be necessary relating to the energy improvement district distributed resources facilities owned or leased by any individual or corporation, limited liability company, partnership, or other business entity within the district, provided they are consistent with the laws of the United States, the State of Connecticut and the Charter and the Municipal Code of Hartford.
(Ord. No. 07-16, 8-8-16)

ARTICLE XV. COLUMBIA STREET/PARK TERRACE SPECIAL SERVICES DISTRICT

Sec. 28-241. Establishment.

There is hereby established a Columbia Street/Park Terrace Special Services District as a body politic and corporate, in accordance with the powers vested in the city under G.S. Ch. 105a.
(Ord. No. 11-18, 11-26-18)

Sec. 28-242. Definitions.

The following words, terms and phrases, as used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assessed value of property for each fiscal year shall be the value of property shown on the grand list of the city effective October 1 of the prior year.

Board of commissioners shall be the executive body of the district elected by a majority vote of the members of the district.

Commissioner shall be any member of the board of commissioners.

District shall be the special services district established according to G.S. Ch. 105a, whose boundaries are delineated in section 28-245 of this article.

Fiscal year shall be from July 1 through June 30.

Holder of record of the taxable interest in real property shall be an individual, corporation, partnership; unincorporated association, trustee, fiduciary, guardian, conservator, or other legal entity or any combination thereof as identified in the city land records.

Property shall be real property within the district that is identified in the tax records of the city as a parcel of land and/or building or which constitutes an individual condominium unit as shown on the records of the city assessor's office.

Property owner shall be the holder of record of the taxable interest in property as defined in this section.
(Ord. No. 11-18, 11-26-18)

Sec. 28-243. Purpose.

The Columbia Street/Park Terrace Special Services District is created under G.S. Ch. 105a to promote the economic and general welfare of the residents of Hartford, and especially the property owners and residents of the district as defined by this article, through the preservation, maintenance, improvement, protection, and development of the common areas, utility installations, and lanes of the district.

Activities of the district to pursue this purpose shall include but not be limited to the preparation of economic or physical studies and plans, contracting, and property management and maintenance.
(Ord. No. 11-18, 11-26-18)

Sec. 28-244. Powers of the district.

(a) Subject to the limitation set forth in subsection (b) of this section, the district shall have the following powers:

(1) To acquire, hold and convey any estate, real or personal;

(2) To enter into contracts;

(3) To borrow money provided any obligation incurred for this purpose shall be discharged not more than three (3) years after it is incurred, and such district may pledge any tax levies received against such obligations;

(4) To recommend to the council the imposition of a special tax levy upon a taxable interest in real property within the district, the revenues from which shall be used in carrying out any of the powers of the district;

(5) To construct, own, operate or maintain public improvements:

(6) To provide, within such district, some or all of the services which the city is authorized to provide in the district in accordance with G.S. Ch. 105a, G.S. § 7-339t and other Connecticut General Statutes and provided that there be a formal agreement for providing such services between the district and the City

(7) To retain legal counsel;

(8) To receive and use gifts and donations, including but not limited to, goods and services, for the activities necessary to meet the purpose of the district or to carry out the powers of the district;

(9) To operate revenue producing and promotional events and to use the revenues for district purposes otherwise permitted under this article;

(10) To carry out any functions or provide any services reasonable and necessary to carry out the aforementioned powers or to otherwise meet the purposes of the district;

(11) To sue and be sued.

(b) The district shall not enter into or make any contract, agreement, lease, commitment, pledge or undertaking of any sort for a period or term of longer than three (3) years, provided that, with the written approval of the city's mayor, said three-year limit may be extended to up to five (5) years. If any provision of this article requires a shorter period or term, such more restrictive provision shall govern.
(Ord. No. 11-18, 11-26-18)

Sec. 28-245. Boundary of the district.

(a) The geographic boundaries of the district shall include the following parcels:

Numbers 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and 24 Columbia Street;

Numbers 2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24 Park Terrace;

Numbers 245, 247 Putnam Street; and

Numbers 447-449-451-453, 461, 489-491 Capitol Avenue.

(b) All of the land area included in the above list of properties shall constitute the geographic area of the district, and any changes to the parcels' shape or address or parcel identification number shall not eliminate any of the land from the district. For the purpose of establishing the district, the owners of tax-exempt property within the district will not be eligible to vote nor will they be subject to any tax levies unless the tax-exempt status changes. If the tax-exempt status changes the property shall be subject to the district tax levy in accordance with this article. Such levies shall be prorated to cover the period from the change in the tax status to the end of the fiscal year during which the tax status changes.
(Ord. No. 11-18, 11-26-18)

Sec. 28-246. Procedures for the referendum; establishing the district.

(a) This article shall not take effect unless, within sixty (60) days of the enactment of this article by the council, a referendum thereon shall be held and approved.

(b) The referendum shall be held among all holders of record of taxable interests in real property in the district on the question of whether this article shall take effect. The city clerk shall determine the identity of such holders from the city's tax records and shall give notice of the referendum to such holders.

(c) The referendum question shall appear on a ballot created by the city clerk. Each ballot shall be accompanied by a copy of the ordinance from which this article is derived and a letter explaining how the ballot is to be cast. Only property owners inside the district are eligible to vote in the referendum. Each ballot shall be signed by the property owner or the duly authorized representative of said owner.

(d) In addition to the referendum question the ballot shall contain an identification of the property or properties owned by the property owner which are in the special services district and the assessed value of the real property of those premises as they appear in the city's grand list as of the October first preceding preparation of the ballot. The city administration shall prepare, prior to the mailing of said ballots, a list of the property owners within the district, and the assessed value of the properties and shall post the list in the city clerk's office.

(e) The ballot shall be mailed to the address used by the city assessor for tax collection purposes. The ballots must be returned to the city clerk by not later than 5:00 p.m. on the twenty-first day after the initial mailing.

(f) Each property owner shall be entitled to cast one (1) ballot for each property they own, which will be so counted in determining whether

the necessary majority of property owners have voted in favor of the creation of the proposed district. Where there are multiple owners of a property, the property shall be entitled to one (1) vote.

(g) The city clerk shall supervise the referendum and shall certify the results of the referendum.

(h) The referendum shall be approved if a majority of all such holders of record of taxable interests in real property in the district, voting one (1) vote per property, respond affirmatively and if such holders of record of taxable interests in real property in the district, the assessments of which constitute more than one-half (½) of the total dollar amount of assessments for all taxable interests in real property within the district, respond affirmatively.
(Ord. No. 11-18, 11-26-18)

Sec. 28-247. District organization and operations.

1. Commencement of district operations. Within thirty (30) days after the referendum creating the district, the mayor or a designee shall call a general meeting of the members to elect the board of commissioners in accordance with subsection (b) of this section. The board of commissioners shall meet within twenty (20) business days of the general meeting and establish a schedule of subsequent meetings and a schedule for adopting bylaws for the commission, said bylaws to be adopted within sixty (60) days of the first meeting of the board.

2. (a) Board of commissioners.

(b) There shall be established a board of commissioners consisting of five (5) members. There shall be one (1) alternate commissioner elected to substitute for commissioners absent from any business meeting.

(c) The board of commissioners shall be the executive body governing the day to day operations of the district. The board shall make administrative decisions and establish or interpret policies of the district which are consistent with the purpose, intent and powers of the district. The board may designate such agents, including a district manager, as it deems necessary and advisable to act on its behalf in the conduct of the business of the board.

(d) The board of commissioners shall be elected by a plurality vote of members of the district present and voting at a general meeting. Nominations for candidates for elections to the board of commissioners shall be made at the time of the general meeting. Each member shall be entitled to cast five (5) votes, but shall not be allowed to cast more than one (1) vote for any one (1) candidate. The candidates receiving the highest total vote count shall be elected commissioners. The candidate with the highest vote count after those elected shall be elected alternate. No more than one (1) candidate shall be elected from a street address.

(e) The board of commissioners shall elect officers, the positions to be determined at the first meeting of the board after the district is created and incorporated into the bylaws when written.

(f) The board of commissioners may hire such staff or consultants considered necessary to perform the duties and carry out the obligations of the district as approved in the annual budget.

(g) The terms of the five (5) commissioners and one (1) alternate shall be for two (2) years. Notwithstanding this term limit, each commissioner and alternate shall serve in good standing until replaced by a vote of the members of the district held at an annual meeting.

(h) If any commissioner or alternate shall fail for any reason to serve through the end of the term, the remaining commissioners shall appoint a property owner to fill the remainder of the vacated term.

(i) No commissioner shall receive any compensation for service as such, but may be reimbursed for reasonable expenses incurred on behalf of the district

as determined and approved by the board. Travel expenses may not be incurred or reimbursed.

3. Meetings of board of commissioners.

(a) The board of commissioners shall establish a regular schedule of meetings and notify all members in the district of their regular meeting schedule including dates, times, and places for said meetings. The board shall send the schedule to be filed in the town clerk's office within one week of its adoption.

(b) The board of commissioners may call special meetings from time to time as necessary to conduct the business of the district. The board of commissioners shall notify members of the special meeting setting forth the date, time, place and subject matter of the meeting.

(c) There shall be at least one (1) annual meeting each year of district members to review the activities of the district, to review and make comments on the proposed budget for the district. and to conduct district elections when appropriate.

(Ord. No. 11-18, 11-26-18)

Sec. 28-248. Annual budget and tax levy for the special services district; financial reports.

(a) The board of commissioners shall prepare and adopt the first annual budget from the district within 60 days of the election and annually thereafter. The budget shall include proposed expenditures, revenues and a recommended tax levy for the district.

(b) The board of commissioners shall recommend to the city administration on or before March 15 of each year a levy upon taxable interest on real property within the district to support the district's annual budget. Said recommended levy shall not exceed a limit to be established periodically by resolution of the city council. The city shall be obliged to impose the recommended levy on the properties in the district as a municipal levy, to collect the revenues, and to deposit the revenues into a special City controlled fund to be used to pay to the district the cost of obligations incurred by the district.

(c) The levy on the taxable interest in real property in the district shall be due and payable in two (2) parts, on July 1 and January 1, following the adoption of the levy for the fiscal year. On or before July 1 and January 1 each year the tax collector of the city shall, accordingly, bill holders of taxable interest in real property in the district.

(d) Delinquent charges shall be assessed on late district tax payments and shall be computed in the same manner and at the same rate used for establishing delinquent charges on regular real property tax bills of the city.

(e) The city treasurer shall disburse funds from the account to the district upon written request of a duly authorized representative of the district, and only upon such request in accordance with the then current approved annual budget of the board of commissioners of the district. The district shall set forth in its bylaws the procedures for approving disbursement of funds and requesting disbursement from the treasurer.

(f) All orders or contracts for expenditures by the board of commissioners or their agents on behalf of the district which are greater than five thousand dollars ($5,000.00) shall be awarded to the lowest responsible qualified bidder only after a public invitation to bid, which shall be advertised in a newspaper having circulation in the district.

(g) All moneys, including but not limited to levies or any income, proceeds or fees issuing from the provision of services by the district or other business conducted by the district received by the board or by the city on behalf of the district shall be paid into the general fund of the city where an account shall be maintained of such moneys for the benefit of the district. Any provisions of the General Statutes, Special Acts or Charter to the contrary notwithstanding, the treasurer of the city shall disburse such moneys in accordance with an annual budget adopted by the board of commissioners.

(h) An annual financial report of all district revenues and expenditures shall be submitted to the finance director of the city within sixty (60) days of the end of each fiscal year.
(Ord. No. 11-18, 11-26-18)

Sec. 28-249. Municipal service agreements.

The city may enter into a contract with the district in which the city is excused from providing to the district some or all of the services which the district is authorized to provide pursuant to this article and in which the district agrees to provide all such services from which the city has been excused. Any such contract is pursuant to G.S. § 7-339t. The city and the district may also enter into contracts in which the district is given the right to elect to purchase from the city some or all of the services for which the district has become responsible. Any such contract is pursuant to G.S. § 7-339t.
(Ord. No. 11-18, 11-26-18)

Sec. 28-250. Dissolution of the district.

(a) The district may be dissolved by an ordinance repealing this article or after a referendum is conducted by the board of commissioners among all property owners within the district on the question of whether the district shall be dissolved, provided a majority of property owners shall respond affirmatively or those controlling more than one-half (½) the total dollar amount of assessments for all taxable interest in real property shall respond affirmatively. The referendum shall be conducted in the same manner as the referendum establishing the district as provided herein.

(b) In the event the district is dissolved, the board of commissioners shall proceed to conclude the affairs of the district at the end of the then current fiscal year. If, after dissolution of the district there are outstanding liabilities or obligations, whether fixed or contingent, the council may impose, in addition to the regular municipal levy, a levy on the real property within such district pursuant to G.S. § 7-339s of Chapter 105a of the Connecticut General Statutes for as many years as such liabilities remain outstanding. This levy shall be calculated to produce enough revenue to satisfy and release such liabilities. The revenue collected shall be deposited into the general fund of the city and disbursed at the direction of the city finance director solely for the purposes stated herein. If, after dissolution of the district, there are assets that remain following the conclusion of the affairs of the district, the assets will be transferred to the city.
(Ord. No. 11-18, 11-26-18)

Sec. 28-251. Abatement of city property taxes.

The district's interest in real property held in the district, and personal property owned by the district, are subject to property taxes of the city but such tax may be abated prospectively by vote of the council.
(Ord. No. 11-18, 11-26-18)

Sec. 28-252. Insurance and indemnity.

The district shall obtain and maintain, at its own cost and expense, issued by an insurance company licensed to conduct business in the State of Connecticut and having a Best's Key Rating of A-VIII or better, at least the following insurance coverage: commercial general liability, including contractual liability insurance, two million dollars ($2,000,000.00) combined single limit bodily injury and property damage. The City of Hartford shall be included as an additional insured, ATIMA. The district shall provide to the finance director of the city, prior to the commencement its operations, and thereafter upon renewal of any required insurance hereunder, certificate(s) of insurance evidencing coverage as required by this article. The insurance shall not be cancelled, altered or modified without the express written consent of the city, acting by its finance director. The coverages will not be canceled, non-renewed, or materially altered or changed by endorsement or through issuance of other policy(ies) without sixty (60) days advance written notice to the city finance director.

The district agrees to indemnify and hold the city and its officers, officials, employees, and agents, harmless from any liabilities, obligations, claims, actions, judgments, damages, or

debts, amounts paid in settlement, and expenses, including attorney's fees, which are a result of the establishment of the district or of its operations and activities.

The commissioners, officers, agents and employees of the board of commissioners shall be entitled to indemnification against judgments, fines, penalties, amounts paid in settlement and expenses including attorney's fees, in accordance with the standards and provisions of and to the extent that such indemnification is authorized for unpaid voluntary municipal commissioners by the Connecticut General Statutes, as may be amended from time to time. The board shall purchase insurance providing coverage in such amounts and with such coverage as the board may from time to time determine. The right of all indemnification provided for shall be in addition to and not exclusive of all other rights to which any commissioner, officer, agent or employee may be entitled, and such right of indemnification shall inure to the benefit of the heirs and personal representatives of such indemnified person.
(Ord. No. 11-18, 11-26-18)

ARTICLE XVI. PARKVILLE SPECIAL SERVICES DISTRICT

Sec. 28-253. Establishment.

There is hereby authorized a Parkville Special Services District (aka Parkville Business Improvement District) as a body politic and corporate, in accordance with the powers vested in the City of Hartford (the "City") under G.S. ch. 105a.
(Ord. of 2-24-25)

Sec. 28-254. Definitions.

The following words, terms, and phrases, as used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assessed value of property or properties, sometimes referred to herein as *assessed value,* shall be the value of property or properties calculated in the manner for determining the taxable interest in property.

Board of commissioners shall be the executive body of the district elected by a vote of the property owners of the district, pursuant to the provisions of section 28-260 of this article.

Commissioner shall be any member of the board of commissioners.

District shall be the special services district established according to G.S. ch. 105a, whose boundaries are delineated in section 28-257 and Schedule A of this article, including amendments made to the district boundaries under the provisions of section 28-258.

Fiscal year shall be from July 1 through June 30.

Holder of record of the taxable interest in real property shall be an individual, corporation, partnership, unincorporated association, trustee, fiduciary, guardian, conservator, or other legal entity or any combination thereof as identified in the City's land records, as the holder of the fee interest in a property that is not tax-exempt.

Lessee shall be a tenant occupying and in possession of premises located in the property in the district.

Member shall be either a property owner, as defined herein, or a lessee of a business within the district.

Property or properties shall be real property within the district that is identified in the tax records of the City as a parcel of land and/or building or which constitutes an individual condominium unit as shown on the records of the City assessor's office.

Taxable interest in property shall mean the full assessed value, based on the fair market value of the property in question, using normal methods for determining such assessment and specifically not taking into account any tax-fixing agreements, reduced assessment agreements or other methods for reducing the normal tax burden on the property in question, which might be otherwise applicable to the property in question.
(Ord. of 2-24-25)

Sec. 28-255. Purpose.

(a) The Parkville Special Services District is hereby created under G.S. ch. 105a.

(b) The purpose of the district is to provide:

(1) Cleaning and beautification of streetscapes;

(2) Marketing services in and for the district; and

(3) Public safety (excluding police and fire department services).

Activities of the district to pursue this purpose may include but not be limited to the preparation of economic or physical studies and plans, marketing and promotion, special events, business recruiting, hospitality, urban beautification, property maintenance, and deployment of public safety/hospitality ambassadors; provided, however, that the district shall not engage in any activity which would be inconsistent with its classification as an organization described in Section 501(c)(3) of the Internal Revenue Code of 1986 ("Code"), as amended from time to time, or in an equivalent section of the Code in effect at any time. The district will work with existing entities in the City in the implementation of these services to accomplish a common goal.
(Ord. of 2-24-25)

Sec. 28-256. Powers and duties.

(a) The district shall have the following powers:

(1) To acquire, hold, and convey any estate, real or personal;

(2) To enter into contracts;

(3) To recommend to the City Council the imposition of a special tax levy upon the taxable interests in property within the district, the revenues from which shall be used in carrying out any of the powers of such district;

(4) To provide, within such district, some or all of the services which the City is authorized to provide in the district in accordance with G.S. ch. 105a, § 7-339t, and other Connecticut General Statutes, provided that there first be a formal agreement for providing such services between the district and the City;

(5) To retain legal counsel;

(6) To receive and use gifts and donations including but not limited to goods and services, for the activities necessary to meet the purpose of the district or carry out the powers of the district;

(7) To operate revenue producing and promotional events and to use the revenues for district purposes otherwise permitted under this article;

(8) To carry out any functions or provide any services reasonable and necessary to carry out the aforementioned powers or to otherwise meet the purposes of the district; and

(9) To sue and be sued.
(Ord. of 2-24-25)

Sec. 28-257. Boundary of the district.

(a) The properties to be included in the district are listed by parcel number as shown on the maps of the tax assessor of the City and enumerated in Schedule A, attached hereto.

(b) All of the land area included in Schedule A-2025 shall constitute the geographic area of the district, and any changes to the shape, address, or parcel identification number of the individual parcels shall not eliminate any of the land from the district. For the purpose of establishing the district, the owners of tax-exempt property within the district will not be eligible to vote nor will they be subject to any tax levies unless their tax-exempt status changes. If the tax-exempt status changes the property shall be subject to the district tax levy in accordance with section 28-261 of this article. Such levies shall be prorated to cover the period from the change in the tax status to the end of the fiscal year during which the tax status changes.

(c) If the registered owner of a one-, two-, or three-family home communicates in writing to the Town and City Clerk of the City of Hartford his, her, and/or their desire to be excluded from

the district, the boundaries of the district shall automatically be deemed to exclude said property owned by such owner(s). Use of this opt-out provision is expressly limited to one-, two-, and three-family homes within the Parkville Business Improvement District.
(Ord. of 2-24-25)

Sec. 28-258. Procedure for additions to the district.

(a) A parcel of real property shall be included in the district among the properties already within the district if:

(1) All holders of record of the taxable interest in real property in said parcel shall submit a written request to the board of commissioners that said parcel be included in the district; and

(2) The board of commissioners shall approve inclusion of said parcel in the district by a vote of the board of commissioners; and

(3) The City Council shall amend this article to include said parcel in the district. Such proposed amendments shall be submitted to the City Council during the months of March and September of any given year.

(b) The board of commissioners shall notify the City assessor and the City of additions to the district and record a copy of the written notification in the land records of the City. The tax levy imposed on a property that joins the district after its inception will be pro-rated to cover the period from the first meeting of the board of commissioners after the notification is received to the end of that fiscal year.
(Ord. of 2-24-25)

Sec. 28-259. Procedures for the referendum.

(a) This article shall not take effect unless, within sixty (60) days of the enactment of this article by the City Council, a referendum shall be had and approved.

(b) The referendum shall be held among all holders of record of the taxable interests in real property in the district on the question of whether this article shall take effect. The City Clerk shall determine the identity of such property owners in the City's land records and shall give notice of the referendum to such property owners.

(c) The referendum question shall appear on a ballot created by the City Clerk. Each ballot shall be accompanied by a copy of the ordinance from which this article is derived and a letter explaining how the ballot is to be cast. Only property owners within the district are eligible to vote in the referendum. Each ballot shall be signed by the property owner or the duly authorized representative of said owner.

(d) In addition to the referendum question the ballot shall contain an identification of the property or properties owned by the property owner which are within the district and the assessed value of property as it appeared in the City's grand list as of the first day of the month of October immediately preceding preparation of the ballot. The City administration shall prepare, prior to the mailing of said ballots, a list of the property owners within the district, and the assessed value of properties and shall post the list in the City Clerk's office.

(e) The ballot shall be mailed to the address used by the City assessor for tax collection purposes. The ballots must be returned to the City Clerk by not later than 5:00 p.m. on the 21st day after the initial mailing.

(f) Each property owner shall be entitled to cast one (1) ballot for each property they own as separately reflected on the tax assessor's records, within the boundaries of the district, which will be so counted in determining whether the necessary majority of property owners have voted in favor of the creation of the proposed district. Where there are multiple owners of a property, the property shall be entitled to one (1) vote. No property owner shall have more than one (1) vote.

(g) The City Clerk shall supervise the referendum and shall certify the results of the referendum. The referendum shall comply, to the extent applicable and practicable, with G.S. ch. 145 (absentee voting) and G.S. ch. 152

(referenda), except as G.S. ch. 105a and the terms of this article may otherwise permit or direct.

(h) The referendum shall be approved if a majority of all holders of the record of taxable interests in real property in the district, voting one (1) vote per property, respond affirmatively and if such holders of record of the taxable interests in real property in the district, the assessed values of which constitute more than one-half (½) of the total of the assessed values for all the taxable interests in property within the district, respond affirmatively.

(i) If the referendum is approved, the district will be established.
(Ord. of 2-24-25)

Sec. 28-260. District organization and operations.

(a) *Commencement of district operations.* Within thirty (30) days of the referendum creating the district, the mayor or a designee shall call a general meeting of the members to elect the board of commissioners in accordance with subsection (b) of this section. The board of commissioners shall meet within twenty (20) business days of the general meeting and establish a schedule of subsequent meetings and a schedule for adopting bylaws for the commission, said bylaws to be adopted within sixty (60) days of the first meeting of the board.

(b) *Board of commissioners.*

(1) There shall be established a board of commissioners consisting of eleven (11) commissioners. Six (6) commissioners must be property owners in the district, two (2) commissioners must be residential lessees in the district, and three (3) commissioners must be ex-officio. Two (2) ex-officio commissioners shall be appointed by the City of Hartford Mayor or his or her designee, and one (1) ex-officio commissioner shall be appointed by the Parkville NRZ.

(2) No property owner, majority owner, or group of owners shall have more than one (1) commissioner elected to the board.

(3) The board of commissioners shall be the executive body governing the day to day operations of the district. The board shall make administrative decisions and establish or interpret policies of the district which are consistent with the purpose, intent, and powers of the district. The board may designate such agents, including a district manager, as it deems necessary and advisable to act on its behalf in the conduct of the business of the board.

(4) The board of commissioners shall be elected by a plurality vote of members present and voting at a general meeting. Nominations for candidates for elections to the board of commissioners shall be made at the time of the general meeting. Each member shall be entitled to cast eight (8) votes, but shall not be allowed to cast more than one (1) vote for any one (1) candidate. The six (6) property owner candidates and the two (2) residential lessee candidates receiving the highest total vote count shall be elected commissioners. In order to ensure broad representation of the district no more than one (1) candidate shall be elected from a street address.

(5) The board of commissioners shall elect officers, the positions to be determined at the first meeting of the board after the district is created and incorporated into the bylaws when written.

(6) The board of commissioners may hire such staff or consultants considered necessary to perform the duties and carry out the obligations of the district as approved in the annual budget.

(7) The terms of the eleven (11) commissioners shall be for two (2) years.

(8) If any commissioner shall fail for any reason to serve through the end of the term, the remaining commissioners shall appoint a property owner to fill the remainder of the term vacated by a property owner, or a residential lessee to fill the remainder of a term vacated by a residential lessee, or an ex-officio to fill

the remainder of the term vacated by an ex-officio commissioner, unless the vacating ex-officio commissioner was appointed by the mayor or his or her designee, in which case the mayor shall appoint a replacement ex-officio commissioner.

(9) No commissioner shall receive any compensation for service as such, but may be reimbursed for reasonable expenses incurred on behalf of the district as determined and approved by the board.

(c) *Meetings of board of commissioners.*

(1) The board of commissioners shall establish a regular schedule of meetings and notify all members in the district of their regular meeting schedule including dates, times, and places for said meetings.

(2) The board of commissioners may call special meetings from time to time as necessary to conduct the business of the district. The board of commissioners shall notify members of the special meeting setting forth the date, time, place, and subject matter of the meeting.

(3) There shall be at least one (1) annual meeting of district members to review the activities of the district, to review and make comments on the proposed budget for the district, and to conduct district elections when appropriate.

(Ord. of 2-24-25)

Sec. 28-261. Annual budget and tax levy for the special services district; financial reports.

(a) The board of commissioners shall prepare and adopt the first annual budget for the district within thirty (30) days after its first meeting as set forth in subsection 28-260(a) above, and annually thereafter. The budget shall include proposed expenditures, revenues, and a recommended tax levy for the district.

(b) The board of commissioners shall recommend to the City administration on or before March 15 of each year a levy upon the taxable interest in property within the district to support the district's annual budget.

(c) The board of commissioners has set the levy upon the taxable interest at two (2.0) mills for fiscal year 2025-2026, the first year of the new term, with first billing to start on July 1, 2025. The levy on the taxable interest for subsequent years shall be the sum of the revenue derived from the previous year's levy plus the sum of multiplying the previous year's levy by the increase in the Consumer Price Index (CPI), as described herein. The resulting sum shall be the maximum total amount that the board of commissioners can generate from the mill rate assessment for that fiscal year, but in no event less than the previous year.

(d) CPI shall mean the Consumer Price Index for All Urban Consumers (U.S. City Average-All items 1982-84-100) in the Northeast Region metropolitan area, as promulgated by the U.S. Bureau of Labor Statistics of the United States Department of Labor. Should the CPI be discontinued with no successor or comparable successor CPI, a substitute formula shall be mutually agreed upon by the board of commissioners.

(e) The levy on the taxable interest in property in the district shall be due and payable in two (2) parts, on July 1 and January 1, following the adoption of the levy for the fiscal year. On or before July 1 and January 1 each year, the tax collector for the City shall, accordingly, bill holders of taxable interests in real property in the district. Delinquent charges shall be assessed on late district payments and shall be computed in the same manner used for establishing delinquent charges on regular property tax bills of the City.

(f) The City treasurer shall disburse funds from the account to the district upon written request of a duly authorized representative of the district, and only upon such request in accordance with the current approved annual budget of the board of commissioners of the district. The district shall set forth in its bylaws the procedures for approving disbursement of funds and requesting disbursement from the treasurer.

(g) All orders or contracts for expenditures by the board of commissioners or its agents on behalf of the district which are greater than five

thousand dollars ($5,000.00) shall be awarded to the lowest responsible qualified bidder only after a public invitation to bid, which shall be advertised in a newspaper having circulation in the district.

(h) All monies, including but not limited to levies or any income, proceeds, or fees issuing from the provision of services by the district or other business conducted by the district received by the board of commissioners or by the City on behalf of the district shall be paid into the general fund of the City where an account shall be maintained of such monies for the benefit of the district. Any provisions of the General Statutes, Special Acts, or Charter to the contrary notwithstanding, the treasurer of the City shall disburse such moneys in accordance with an annual budget adopted by the board of commissioners.

(i) An annual financial report of all district revenues and expenditures shall be submitted to the finance director of the City within sixty (60) days of the end of each fiscal year. A copy of the annual financial report shall be mailed to all property owners.
(Ord. of 2-24-25)

Sec. 28-262. Municipal service agreements.

If authorized by a vote of the board of commissioners, the district may enter into a contract with the City in which the City is excused from providing to the district some or all of the services which the district is authorized to provide pursuant to this article and in which the district agrees to provide all such services from which the City has been excused. Any such contract is pursuant to G.S. ch. 105a § 7-339t(d). If authorized by a vote of the board of commissioners, the City and the district may also enter into contracts in which the district is given the right to elect to purchase from the City some or all of the services for which the district has become responsible. Any such contract is pursuant to G.S. § 7-339t.
(Ord. of 2-24-25)

Sec. 28-263. Dissolution of the district.

(a) The district may be dissolved by an ordinance repealing this article or after a referendum is conducted by the board of commissioners among all property owners within the district on the question of whether the district shall be dissolved, provided a majority of property owners shall respond affirmatively or those responding affirmatively constitute more than one-half (½) of the assessed value of property for all the taxable interests in property within the district. In addition, the board of commissioners shall conduct a referendum among all property owners on the question of whether the district should be dissolved upon the written request of the property owners holding at least fifty (50) percent of the assessed value of property for all the taxable interests in property within the district. Any such referendum shall be conducted in the same manner as the referendum establishing the district as provided herein.

(b) In the event the district is dissolved, the board of commissioners shall proceed to conclude the affairs of the district at the end of the then-current fiscal year. If, after dissolution of the district there are outstanding liabilities or obligations, whether fixed or contingent, the council may impose, in addition to the regular municipal levy, a levy on the property within such district pursuant to G.S. ch. 105a § 7-339s for as many years as such liabilities remain outstanding. This levy shall be calculated to produce enough revenue to satisfy and release such liabilities. The revenue collected shall be deposited into the general fund of the City and disbursed at the direction of the City administrator solely for the purpose of satisfying such outstanding liabilities or obligations. If, after dissolution of the district, there are assets that remain following the conclusion of the affairs of the district, the assets will be transferred to the City or, if the City shall have ceased to be a municipality, then to any successor municipality, and if none, then to the State of Connecticut, for public purpose or, if the City shall have ceased to be a municipality, then to any successor municipality, and if none, then to the State of Connecticut, for public purpose.
(Ord. of 2-24-25)

Sec. 28-264. Abatement of city property taxes.

The district's interest in property held in the district, and personal property owned by the

district, are subject to property taxes of the City but such tax may be abated prospectively by the City Council.
(Ord. of 2-24-25)

Sec. 28-265. Insurance and indemnity.

The district shall obtain and maintain, at its own cost and expense, issued by an insurance company licensed to conduct business in the State of Connecticut and having a Best's Key Rating of A-VII or better, at least the following insurance coverage: Commercial general liability, including contractual liability insurance, two million dollars ($2,000,000.00) combined single limit bodily injury and property damage. The City, the board of commissioners, and the agents of the board of commissioners shall be included as additional insureds. The district shall provide to the finance director of the City, prior to the commencement of its operations, and thereafter upon renewal of any required insurance hereunder, certificate(s) of insurance evidencing coverage as required by this article. The insurance shall not be cancelled, or materially altered or modified without the express written consent of the City, acting by its finance director. The coverage shall not be canceled, nonrenewed, or materially altered or changed by endorsement or through issuance of other policy(ies) without sixty (60) days' advance written notice to the City finance director.

The district (but not the property owners within the district, individually or collectively) agrees to indemnify and hold the City and its officers, officials, employees, and agents harmless from any liabilities, obligations, claims, actions, judgments, damages, debts, amounts paid in settlement, and expenses, including attorney's fees, which are a result of the district's negligent operations and activities.

The commissioners, as well as the board of commissioners' officers, agents, and employees shall be entitled to indemnification by the district against judgments, fines, penalties, amounts paid in settlement, and expenses including attorney's fees, to the fullest extent permitted by law. The board of commissioners may purchase insurance providing indemnification in such amounts and with such coverage as the board of commissioners may from time to time determine. The right of all indemnification provided for shall be in addition to and not exclusive of all other rights to which any commissioner, officer, agent, or employee may be entitled, and such right of indemnification shall inure to the benefit of the heirs and personal representatives of such indemnified person.
(Ord. of 2-24-25)

Schedule A—2025

Parcel Identification Numbers						
113-370-031	116-474-019	136-393-225	137-481-083	158-403-113	159-484-054	159-486-130
113-370-032	116-474-020	136-393-226	137-481-084	158-403-114	159-484-055	159-486-131
113-370-033	116-474-021	136-393-227	137-481-085	158-403-115	159-484-056	159-486-132
113-370-039	116-474-022	136-393-228	137-481-086	158-403-116	159-484-057	159-486-133
113-374-072	116-474-023	136-393-229	137-481-087	158-403-117	159-484-058	159-486-134
113-374-073	116-474-024	136-393-230	137-481-088	158-403-118	159-484-063	159-486-135
113-374-075	116-474-025	136-393-231	137-481-089	158-403-119	159-484-064	159-486-136
113-374-076	116-474-026	136-393-232	137-481-090	158-403-120	159-485-059	159-486-137
113-374-077	116-474-027	136-393-233	137-481-091	158-403-121	159-485-061	159-486-138
113-374-078	116-474-028	136-393-234	137-481-092	158-403-122	159-485-062	159-486-139
113-374-079	116-474-029	136-393-235	137-481-093	158-403-123	159-485-064	159-486-140
113-374-080	116-474-030	136-476-006	137-481-096	158-403-124	159-485-065	159-486-141
113-374-081	116-474-031	136-476-007	137-482-117	158-403-125	159-485-066	159-486-142
113-374-082	116-474-032	136-476-008	137-482-118	159-399-018	159-486-079	159-486-143
113-374-083	116-474-033	136-476-009	137-482-136	159-399-019	159-486-080	159-486-144
113-471-005	116-475-022	136-476-010	137-482-137	159-399-020	159-486-081	159-486-145
113-471-006	116-475-023	136-476-011	138-472-001	159-399-021	159-486-082	159-486-146

Parcel Identification Numbers						
113-471-007	116-475-024	136-476-012	138-472-002	159-399-022	159-486-083	159-486-147
113-471-008	116-475-025	136-476-013	138-472-003	159-399-023	159-486-084	159-486-148
113-471-009	116-475-026	136-476-014	138-482-004	159-399-024	159-486-085	159-486-149
113-471-010	116-475-027	136-478-140	138-482-005	159-399-025	159-486-086	159-486-150
113-471-011	117-475-007	136-478-141	138-482-006	159-399-026	159-486-087	159-486-151
113-476-075	135-391-237	136-478-142	158-397-078	159-399-027	159-486-088	159-486-152
114-471-001	135-391-238	136-478-143	158-398-002	159-399-028	159-486-089	160-482-001
114-471-002	135-391-239	136-478-144	158-398-003	159-399-029	159-486-090	160-482-002
114-471-003	135-391-240	136-478-145	158-398-004	159-401-046	159-486-091	160-484-003
114-471-004	135-391-241	136-478-146	158-401-031	159-401-047	159-486-092	160-484-004
114-471-005	135-391-242	136-478-147	158-402-065	159-401-065	159-486-093	160-485-005
114-471-006	135-393-226	136-478-148	158-402-072	159-401-066	159-486-094	160-486-006
114-471-007	135-393-227	136-479-034	158-402-073	159-401-067	159-486-095	160-486-057
114-471-009	135-393-228	136-479-035	158-403-061	159-401-068	159-486-096	160-486-058
114-471-010	135-393-229	136-479-036	158-403-062	159-401-069	159-486-097	160-488-007
114-471-017	135-393-230	136-479-037	158-403-064	159-401-070	159-486-098	160-488-008
114-472-008	135-393-231	136-479-038	158-403-074	159-401-071	159-486-099	160-488-009
115-472-001	135-393-232	136-480-236	158-403-075	159-401-072	159-486-100	160-488-010
115-472-002	135-393-233	136-480-237	158-403-076	159-403-073	159-486-101	160-488-051
115-473-003	135-393-234	136-480-238	158-403-077	159-403-074	159-486-102	160-489-011
115-473-004	135-393-235	136-480-239	158-403-078	159-403-075	159-486-103	160-489-012
115-473-081	135-393-236	136-480-240	158-403-080	159-403-076	159-486-104	160-489-013
115-473-082	135-397-256	136-480-241	158-403-081	159-403-077	159-486-105	160-489-014
115-474-005	135-397-257	136-480-242	158-403-084	159-403-078	159-486-106	160-489-015
115-474-006	135-398-259	136-480-243	158-403-085	159-480-001	159-486-107	160-490-036
115-474-007	135-398-260	136-480-244	158-403-086	159-480-002	159-486-108	160-490-037
115-474-008	135-398-261	136-480-245	158-403-087	159-480-003	159-486-109	182-410-002
115-474-009	135-398-262	136-480-246	158-403-088	159-480-004	159-486-110	
115-474-010	135-398-263	136-480-247	158-403-089	159-480-005	159-486-111	
115-474-011	135-398-264	136-480-248	158-403-090	159-480-006	159-486-112	
116-474-001	136-378-019	136-480-250	158-403-091	159-480-007	159-486-113	
116-474-002	136-378-020	136-480-251	158-403-095	159-480-008	159-486-114	
116-474-003	136-378-021	136-480-252	158-403-096	159-480-009	159-486-115	
116-474-004	136-378-039	137-471-001	158-403-097	159-480-010	159-486-116	
116-474-005	136-381-098	137-471-002	158-403-098	159-480-011	159-486-117	
116-474-006	136-381-099	137-471-003	158-403-101	159-480-012	159-486-118	
116-474-007	136-381-100	137-471-004	158-403-102	159-480-013	159-486-119	
116-474-008	136-382-149	137-471-005	158-403-103	159-480-014	159-486-120	
116-474-009	136-382-150	137-471-006	158-403-104	159-480-015	159-486-121	
116-474-010	136-382-151	137-471-023	158-403-105	159-480-016	159-486-122	
116-474-011	136-382-152	137-479-076	158-403-106	159-480-017	159-486-123	
116-474-012	136-386-177	137-479-077	158-403-107	159-484-048	159-486-124	
116-474-013	136-386-178	137-479-078	158-403-108	159-484-049	159-486-125	
116-474-014	136-386-191	137-480-116	158-403-109	159-484-050	159-486-126	
116-474-016	136-392-203	137-481-080	158-403-110	159-484-051	159-486-127	
116-474-017	136-392-204	137-481-081	158-403-111	159-484-052	159-486-128	
116-474-018	136-393-224	137-481-082	158-403-112	159-484-053	159-486-129	

(Ord. of 2-24-25)

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Chapter 29

POLICE*

Art. I. In General, §§ 29-1—29-35
Art. II. Bicycles, §§ 29-36—29-65
Art. III. Auxiliary Police, §§ 29-66—29-77

*Charter reference—*Police generally*, Ch. X, § 1 et seq.*

Cross references—General penalty for Code violations, § 1-4; police officers to be assigned to circuses and outdoor assemblages, § 5-36; assistance by police in administration of milk and cream regulations, § 14-33; motor vehicles and traffic, Ch. 22; nuisances, Ch. 24; offenses and miscellaneous provisions, Ch. 25.

State law reference—Police departments generally, G.S. § 7-274 et seq.

ARTICLE I. IN GENERAL

Sec. 29-1. Composition of department.

In addition to the chief of police, the department of police shall consist of such other officers and employees as provided by the council.
(Code 1977, § 28-1)

Sec. 29-2. Purchase and upkeep of uniforms.

The division of purchases and insurance shall provide, renew and keep in repair, out of city funds appropriated to it for such purpose, uniforms for all regular officers and patrol officers of the department of police, except as otherwise provided by collective bargaining agreements.
(Code 1977, § 28-2)

Sec. 29-3. Group and compensation insurance.

(a) The division of purchases and insurance may take out group insurance on all regular patrol officers and detectives of the department of police and compensation insurance on all employees of such department.

(b) Upon recommendation of the chief of police, the city manager shall annually include in the budget an appropriation to be used for the purchase of such group and compensation insurance in case of nonoccupational accident or illness of any regular patrol officer or detective.
(Code 1977, § 28-3)

Sec. 29-4. Deductions from salaries for payments under compensation laws.

Any sum received by any salaried member of the department of police as indemnity for occupational accident or illness under the provisions of the compensation laws of the state shall be deducted from the salary of such member.
(Code 1977, § 28-4)

Sec. 29-5. General powers and duties of chief of police.

The chief of police shall have authority to suppress, with force when necessary, all tumults, riots and unlawful assemblies and to arrest without warrant, and commit to the station house for any time not exceeding twenty-four (24) hours, any person who behaves in a disorderly manner to the disturbance or annoyance of the peaceable inhabitants of the city. He shall have and exercise, within the limits of the city, all the powers given to sheriffs or other officers by the general statutes, and may at all times, if necessary, require the aid of any constable, police officer or other person in preserving peace and good order.
(Code 1977, § 28-5)

Sec. 29-6. Records of accidents; cost of copies.

The chief of police may establish rules and regulations concerning access to and examination of records in the files of the department of police of investigations of accidents in the city. He shall charge six dollars ($6.00) for each plain copy of any such record, and seventy-five cents ($0.75) in addition thereto for certifying each such copy. He may make available photographs taken in connection with accidents and shall charge two dollars ($2.00) for each photograph. Such sums shall be paid to the city treasurer.
(Code 1977, § 28-6)

Sec. 29-7. Committal to or discharge from the station house.

No person shall be committed to or detained in the station house or discharged therefrom except as provided by law.
(Code 1977, § 28-7)

Sec. 29-8. Duty of police officers as to fires.

All police officers not on duty shall, when a fire breaks out and when so ordered, immediately repair to the vicinity thereof, and make every effort to save and protect property.
(Code 1977, § 28-8)

Sec. 29-9. Grounds for suspension or dismissal of members generally.

The violation by a member of the department of police of any law of the state or ordinance of the city may, if proved, be punished by suspension or dismissal from the police force, and such suspension or dismissal shall be in addition to any other

penalty provided by law, subject to chapter XVI, section 7 of the Charter.
(Code 1977, § 28-9)

Sec. 29-10. Entering disorderly house while on duty.

Any member of the police force who, while on duty, enters any drinking, bawdy or otherwise disorderly house, unless to suppress disturbance or upon the order of his superior officer, shall be removed from his place in the department of police and shall be ineligible for reappointment for the term of one (1) year, subject to chapter XVI, section 7 of the Charter.
(Code 1977, § 28-10)

Sec. 29-11. Improper conduct as to elections.

Any member of the police force who interferes in any caucus or primary election, or attempts, either directly or indirectly, to influence any elector in the exercise of his right of voting, or attends at any poll or voting place unless directed to do so by his superior officer, shall be removed from his place in the department of police, and shall be ineligible for reappointment for the term of one (1) year, subject to chapter XVI, section 7 of the Charter.
(Code 1977, § 28-11)

Sec. 29-12. Obstructing police; refusing to assist.

It shall be unlawful for any person to hinder, obstruct, resist or physically abuse any constable, police or police officer in the execution of his office, or, when commanded to assist therein, to refuse or unreasonably to neglect to do so.
(Code 1977, § 28-12)

State law references—Resisting, hindering police officers, G.S. § 53a-167a; refusing to assist public officer, G.S. § 53a-167b.

Sec. 29-13. Falsely reporting an incident.

It shall be unlawful for any person to falsely report an incident. A person is guilty of falsely reporting an incident when, knowing the information reported, conveyed or circulated to be false or baseless, he:

(1) Initiates or circulates a false report or warning of an alleged occurrence or impending occurrence of a fire, explosion, crime, catastrophe or emergency under circumstances in which it is likely that public alarm or inconvenience will result;

(2) Reports, by word or action, to any official or quasi-official agency or organization having the function of dealing with emergencies involving danger to life or property, an alleged occurrence or impending occurrence of a fire, explosion or other catastrophe or emergency which did not in fact occur or does not in fact exist; or

(3) Gratuitously reports to a law enforcement officer or agency the alleged occurrence of an offense or incident which did not in fact occur, an allegedly impending occurrence of an offense or incident which in fact is not about to occur, or false information relating to an actual offense or incident or to the alleged implication of some person therein.

(Code 1977, § 28-13)

State law reference—Similar provisions, G.S. § 53a-180.

Sec. 29-14. Assumption of liability for negligence of police officer.

The city shall pay on behalf of any duly appointed police officer of the city all sums which such appointee shall become obligated to pay by reason of the liability imposed upon such appointee by law for damages to person or property, provided the appointee at the time of the occurrence, accident, injury or damages complained of was acting in the performance of his duties and within the scope of his employment, in the discharge of a duty imposed by law upon such appointee or the city and provided such occurrence, accident, injury or damage was not the result of any willful or wanton act of such employee in the discharge of such duty. A police officer of the city, although excused from official duty at the time, for the purposes of this section shall be deemed to be acting in the discharge of duty when engaged in the immediate and actual performance of a public duty imposed by law.
(Code 1977, § 28-14)

Sec. 29-15. Special services by police officers; charge therefor.

(a) Whenever the services of any member of the police force are required by a person other than the city, the chief of police may, if in his judgment

the interests of the city will not suffer thereby, detail to such duty such member of the force as he shall judge expedient. The chief shall charge such sums as he may think proper for the services so rendered, but he shall not charge less than the cost to the city for each member of the department performing such services, in addition to any necessary expenses incurred. Payment for such services shall be made in advance. No member of the police force shall perform any such services except by order of the chief.

(b) The chief of police shall enter in a book kept for that purpose a correct account of all services performed as provided in this section, with the names of the persons for whom, and the names of the police officers by whom, they were performed, the time spent and expenses incurred, the sums charged and the amount and dates of payment, and such other memoranda as in his opinion may be proper.
(Code 1977, § 28-15)

Sec. 29-16. Lost and found property.

(a) Any person who finds in the City of Hartford and takes possession of any article of the value of one dollar ($1.00) or more shall report the finding of such article to the police department within forty-eight (48) hours of such finding. The finder of such article shall, at the time of reporting, furnish to the police department the date, time and place of finding, his name and address and a description of the article found, and, within a period of one (1) week from such finding, shall deliver such article to the police department. Any person who violates or fails to comply with the provisions of this section shall be subjected to the penalties of section 1-4 of the Code and/or to such other penalties, as provided in the laws of the State of Connecticut.

(b) The police department shall, commencing within one (1) week from the date of receipt of any lost article, advertise a general description of such article once a week for at least two (2) successive weeks in a newspaper having a circulation in the City of Hartford and shall retain custody of such article for six (6) months from the date of receipt thereof, unless it is claimed by the rightful owner within such six (6) months' period. The requirement of advertising may be omitted when the value or estimated value of the article is less than two dollars ($2.00). Perishable or obnoxious property or articles of a dangerous or harmful nature may be sold or otherwise disposed of as soon as practicable on the best terms available.

(c) If the owner of any such article claims it within six (6) months from the date of receipt by the police department, the article or the proceeds thereof shall be restored to him upon payment or deduction of all proper charges.

(d) If no owner claims such article within six (6) months from the receipt thereof by the police department, the police department shall, within two (2) weeks thereafter, notify the finder of such fact by registered or certified mail at his last known address, and the article or the proceeds thereof shall be turned over to the finder, upon demand by him within thirty (30) days from the expiration of the six (6) months' period and upon payment or deduction of all proper charges; but, if such finder fails to demand such article or the proceeds thereof or refuses to pay such charges within thirty (30) days from the expiration of the six (6) months' period, such article or proceeds shall belong to the City of Hartford. The requirement of notification may be omitted when the value or estimated value of the article is less than five dollars ($5.00).

(e) The police chief shall sell at public auction any articles which the police department acquires as provided herein after the expiration of the time for the owner or finder to demand the same and after the time and place of such sale and a description of the articles to be sold have been advertised once a week for two (2) successive weeks in a newspaper having a circulation in the City of Hartford. The net proceeds from such sales and the unclaimed net proceeds from the sales of perishable or obnoxious property or articles of a dangerous or harmful nature shall be paid to the city treasurer who shall deposit them in the general fund.

(f) All bicycles which become the property of the city through the operation of sections (a) through (d), above, may be disposed of in the following manner:

(1) Any eligible organization may request the donation of any such bicycles on such terms and conditions as are established in this section;

(2) An eligible organization is any city organization which is nonprofit in nature and shall include religious and charitable organizations, whose activities shall include the operation and supervision of youth programs providing comprehensive bicycle riding and safety education, and which organization has applied for and received the designation of an eligible organization from the council;

(3) All requests for the donation of such bicycles shall be dependent upon the availability of such bicycles;

(4) All requests for the donation of such bicycles shall be made to the chief of police, who shall supervise and be responsible for the operation of this program;

(5) The chief of police shall be responsible for the equitable distribution of available bicycles to applying eligible organizations;

(6) Each eligible organization receiving bicycles under this program shall execute a donation agreement which shall include appropriate disclaimers and indemnification provisions protecting the city from claims by any donees or third parties for or resulting from or in connection with said bicycles, together with such other such provisions as may be deemed necessary by the corporation counsel;

(7) All agreements with eligible organizations shall be approved by the corporation counsel as to legality and form.

(Code 1977, § 28-16; Ord. No. 16-82, 10-12-82; Ord. No. 6-01, 5-29-01)

Sec. 29-17. Public safety police detail for places of public amusement and extended hours business premises.

(a) The city has experienced significant problems with security and illegal activity within and surrounding various businesses operating as places of public amusement, extended hours convenience stores and other businesses open between the hours of 11:30 p.m. and 5:00 a.m. for several years including but not limited to problems with loitering, the illegal sale of narcotics, fighting and other physical altercations and other serious criminal activity.

(b) This article is intended to aid in preventing crimes and nuisance, to secure for the citizens of and the visitors to the city the general welfare, public order, safety and peace, to protect employees of businesses such as those described herein and the consumer public at such businesses, and to establish security standards for such businesses that are uniform throughout the city.

(c) The city now declares, in order to permit the development and implementation of reasonable controls that will effectively protect the public, businesses such as those described herein and their patrons, that this article be enacted.

(1) The chief of police shall review all incident reports for property locations to which public safety personnel reported or were summoned or for which a complaint was filed with the police department for any loud, disturbing, illegal or violent conduct at any place of public amusement, extended hours convenience stores or any other business open between the hours of 11:30 p.m. and 5:00 a.m. ("premises"). Such incident reports shall contain the name and address of the premises and the name of the permittee(s) or owner(s) in charge of the premises.

(2) The chief of police shall review such incident reports together with any other reliable information available to him/her concerning the premises. After such review, the chief of police shall determine whether the public safety of the patrons, invitees, employees or the general public require the deployment of a police detail to the premises.

(3) For purposes of determining whether to deploy a police detail, the chief of police shall consider, but not be limited to the following factors in making such a determination:

a. The nature, scope, and seriousness of the incident(s);

b. The occurrence of violence and whether physical injuries resulted;

c. Historical information regarding the premises and the owner(s) or permittee(s) with respect to similar incidents;

d. The level of cooperation or lack of cooperation from the owner(s) or permittee(s) of the premises in addressing or correcting incident(s); and

e. The benefit to the public's safety of deploying a police detail to the premises.

(4) In the event it is determined that a police detail is necessary for public safety purposes the permittee(s) or owner(s) in charge of the premises will upon notice be required to pay the cost to the city of each police detail officer, in a number determined by the chief of police, as well as any necessary expenses incurred by the police department for providing such services. Said police detail shall initially be required for no more than four (4) weeks. After said period, the chief of police shall review the situation and any new information available to him/her. The chief of police may revise the number of detail police officers required or may terminate the requirement for police detail. The chief of police shall continue this four-week review cycle until such time as he/she determines that a police detail is not necessary.

(5) Prior to any determination by the chief of police of the necessity for a police detail, he or she shall notify the permittee(s) or owner(s), in charge of the premises, in writing, via in hand delivery or via certified mail mailed to the premises, and shall offer the permittee(s) or owner(s) an opportunity to present any evidence within ten (10) business days which he or she believes is relevant to the decision of whether to order a police detail.

(6) Upon determination that a police detail is so ordered, failure of any permittee(s) or owner(s) to promptly pay in full for a police detail or to abide by the decision of the chief of police shall be forthwith punishable by way of police action temporarily closing the premises and subject the permittee(s) or owner(s) to additional costs, legal fees and interest. The chief of police shall also report such failure to pay for police detail or to comply with orders or directives of the chief of police to the division of licenses and inspections for immediate action pursuant to section 21-9 of this Code suspending or, as appropriate, terminating both the permit or license to operate, where applicable.

(Ord. No. 13-05, 10-11-05; Ord. No. 05-07, 5-29-07; Ord. No. 31-09, 8-10-09)

Cross reference—Extended hours convenience stores, §§ 21-101 et seq.

Secs. 29-18—29-35. Reserved.

ARTICLE II. BICYCLES*

Sec. 29-36. Registration required; application.

Each bicycle owned by a resident of the city shall be registered with the chief of police within one (1) week after the resident becomes the owner thereof and annually thereafter during the month of June. To obtain such registration the owner shall file with the chief an application signed by him, except that an application by a minor shall be signed by his parent or guardian. Such application shall contain such information as the chief may require.

(Code 1977, § 28-26)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 29-37. Registration authority of chief of police.

The chief of police may register any bicycle, may assign to such bicycle a distinguishing registration number, and may issue to the owner a certificate of registration which shall contain the registration number assigned to such bicycle and

*__State law reference—__Authority to regulate bicycles, G.S. § 14-289.

which shall be in such form and shall contain such other information as the chief may determine.
(Code 1977, § 28-27)

Sec. 29-38. Number plate required; transfer; change in appearance.

Each bicycle so registered shall have displayed on it a number plate issued by the chief of police, which number shall correspond with the registration number assigned by the chief. Upon the sale or change of ownership of any registered bicycle, the registration shall expire and the registration and number plate shall be returned to the chief within one (1) week of such sale or change of ownership. Any change in appearance of the bicycle shall be reported to the chief within forty-eight (48) hours.
(Code 1977, § 28-28)

Sec. 29-39. Reports of used bicycle purchases, sales.

Any person engaged in the buying or selling of used bicycles shall report to the chief of police within one (1) week, on a form prescribed by him, the purchase or sale of any used bicycle.
(Code 1977, § 28-29)

Sec. 29-40. Registration expiration.

All registrations shall expire annually on June thirtieth.
(Code 1977, § 28-30)

Sec. 29-41. Registration fee.

There shall be no fee for the registration of any bicycle.
(Code 1977, § 28-31)

Sec. 29-42. Inspection; instruction of operator.

At the time of the annual inspection, the chief of police shall inspect each bicycle to determine the safety of its equipment. He shall further instruct the owner of the bicycle concerning established bicycle safety rules.
(Code 1977, § 28-32)

Sec. 29-43. Penalty.

Any person who violates any provision of this article shall be fined not more than five dollars ($5.00) for each offense.
(Code 1977, § 28-33)

Sec. 29-44. Reserved.

Editor's note—Ord. No. 7-01, adopted May 29, 2001, repealed former § 29-44 of the Code, which pertained to disposition of city-owned bicycles and derived from the 1977 Code, § 28-34, and Ord. No. 9-97, adopted April 14, 1997.

Secs. 29-45—29-65. Reserved.

ARTICLE III. AUXILIARY POLICE

Sec. 29-66. Established.

There is hereby established an auxiliary police force, to be a volunteer organization, members of which shall be selected from a list of applicants by the city department of personnel subject to the approval of the chief of police. The auxiliary police force shall have a membership not to exceed fifty (50) persons and shall be separate and distinct from the police department but shall be headed by and subject to the control of the chief of police.
(Code 1977, § 28-44)

Sec. 29-67. Membership.

Each applicant pursuant to this article shall have attained the age of eighteen (18) years and shall furnish, in suitable form, satisfactory proof of good character, temperate habits, freedom from communicable diseases, physical ability to perform the duties of the position for which he seeks appointment and such other qualification requirements and additional information as may be prescribed by the director of personnel or the chief of police. Preference in granting membership may be given to applicants having their actual residence within the city. No person shall be deemed a member of the auxiliary police force until he has been registered as such in a roster to be kept by the chief of police, and until he has taken his oath that he will observe and obey the Constitution of the United States, the constitution of this state, and the laws of this nation, this state, and this city, and that he will carry out the duties of a

member of the auxiliary police force of this city to the best of his ability. Applicants selected as members of the auxiliary police force shall be deemed employees of the city, regardless of compensation, for purposes of the Workers' Compensation Act, chapter 568 of the General Statutes, and each member shall receive benefits for injuries or death sustained in training for or incurred in the course of the performance of his duties under the provisions of this article at a statutory rate to be computed on the basis of the compensation he receives in his regular occupation, or if the injured party is not otherwise gainfully employed, on the basis of the compensation after one (1) year (3rd step), of a police cadet.
(Code 1977, § 28-45)

Sec. 29-68. Control.

The chief of police shall have complete authority, control and command, subject to the provisions of this article, over the auxiliary police force. He may appoint as members thereof any persons he may deem to be qualified, and he may reject any application for membership. He may provide for the training of candidates for membership and for the further training of members. Any procedures for the creation of superior ranks and promotion of members of the auxiliary police force within such organization shall be submitted by the chief of police to the director of personnel, who shall review the submitted proposals and forward his recommendations to the city manager for approval or disapproval.
(Code 1977, § 28-46)

Sec. 29-69. Duties.

The duties of the auxiliary police force, subject at all times to the direction, supervision and control of the chief of police, shall be to assist the regular members of the police department of this city in the enforcement of law and the maintenance of peace and order. The chief of police may by order establish rules and regulations to govern the auxiliary police force, to fix the specific duties of its members, and to provide for the maintenance of discipline. He may change such orders from time to time, and he may command members of the auxiliary police force to obey the instructions of regular police officers in carrying out their duties. The chief of police may prescribe other duties than those mentioned in this artile to be performed by the auxiliary police force, not inconsistent with the provisions in this article.
(Code 1977, § 28-47)

Sec. 29-70. Identification, uniform.

An identification card and such other uniform, insignia or evidence of identity as the chief of police may prescribe shall be issued to each member of the auxiliary police force, who must carry the card and other identification at all times while on duty. Such member must surrender them upon the termination of his membership.
(Code 1977, § 28-48)

Sec. 29-71. Removal from membership; resignation.

The membership of any person may be terminated by the chief of police at any time. Any member may resign from the auxiliary police force at any time, but it shall be his duty to notify the chief of police of his resignation.
(Code 1977, § 28-49)

Sec. 29-72. Weapons.

No member of the auxiliary police force, while on duty, shall carry or use any firearm or other weapon in violation of the provisions of this article. Each member of the auxiliary police force shall be issued a nightstick for his use and protection in the performance of his duties.
(Code 1977, § 28-50)

Sec. 29-73. Entry to private premises.

No member of the auxiliary police force shall forcibly enter upon any private property or enter the dwelling or habitation of another without the consent of the owner or occupant except when immediately accompanied by a regular member of the police or fire department of this city who then and there requests his aid in the enforcement of the law.
(Code 1977, § 28-51)

Sec. 29-74. Power of arrest.

A member of the auxiliary police force shall have the following powers of arrest and none other:

(1) He may effect a citizen's arrest upon a person who has, in fact, committed a felony in his presence; and

(2) He may lend physical aid to any regular member of the police department in making any lawful arrest.

(Code 1977, § 28-52)

Sec. 29-75. Chief to determine exact size of force.

The chief of police may, by order, diminish or expand the membership of the auxiliary police force as exigency may require, within the limit established by this article.

(Code 1977, § 28-53)

Sec. 29-76. Summary expulsion; publication.

In addition to the penalties provided by law, any violation of law under color of the performance of his duties as a member of the auxiliary police force and any breach of the rules and regulations established by the chief of police shall subject any member to summary expulsion, and the fact thereof may be published at the order of the chief.

(Code 1977, § 28-54)

Sec. 29-77. Impersonating.

Any person wearing, carrying or displaying an auxiliary police force identification card or insignia or otherwise deceitfully representing himself to be connected with the auxiliary police force, unless he is, in fact, a member thereof in good standing, shall be guilty of a misdemeanor in accordance with G.S. § 53a-130 and shall be subject to fine or imprisonment, or both, as provided in connection therewith.

(Code 1977, § 28-55)

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Chapter 30

RESERVED*

*__Editor's note—__Ord. No. 15-19, adopted Oct. 28, 2019, repealed ch. 30, §§ 30-1—30-6, which pertained to Rehabilitation Homes and derived from Code 1977, § 29-1—29-6.

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Chapter 31

STREETS AND SIDEWALKS*

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***Charter reference—**Authority to construct, alter, maintain or repair streets, alleys, boulevards, sidewalks and other public works and buildings, Ch. II, § 2.

Cross references—Construction managers, § 2-601 et seq.; assemblies, festivals and parades, Ch. 7; buildings and property, Ch. 9; housing, Ch. 18; motor vehicles and traffic, Ch. 22; depositing harmful substances in streets, § 25-5; parks and recreation, Ch. 26; street vendors, § 27-56 et seq.; planning and development, Ch. 28; vehicles for hire, Ch. 33; zoning, Ch. 35.

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ARTICLE I. IN GENERAL

Sec. 31-1. Streets to be defined and marked.

(a) The Director of Public Works shall cause the streets within his jurisdiction to be defined and marked by suitable merestones or bounds set upon a uniform offset line or upon the street line.

(b) It shall be the duty of the City engineer, at the direction of the Director of Public Works to supervise and direct the setting of all such merestones or bounds and he shall determine their size, shape and material and the manner of setting them.
(Code 1977, § 30-1)

Sec. 31-2. Reserved.

Editor's note—Ord. No. 003-20, adopted June 22, 2020, repealed § 31-2, which pertained to director of public works to exercise authority granted by statute to commission on city plan, concerning highways and derived from Code 1977, § 30-2.

Sec. 31-3. Malicious injuries.

It shall be unlawful for any person to break any sidewalk, gutter or curbstone with mischievous intent.
(Code 1977, § 30-3)

Cross reference—Injuring public property generally, § 25-6.

Sec. 31-4. Acts tending to obstruct streets unlawful.

It shall be unlawful for any person to commit any act which violates the provisions of this Code or of any ordinance of the City or rule or regulation of any officer thereof authorized by law to make such rule or regulation, relating to the obstruction of the streets and sidewalks or the interruption of free passage along them, or to aid, advise, abet or encourage the commission of any such act.
(Code 1977, § 30-4)

State law reference—Authority to keep streets open for public use, G.S. § 7-148(c)(6)(C)(ii).

Sec. 31-5. Reserved.

Editor's note—Ord. No. 13-10, adopted June 28, 2010, repealed § 31-5, which pertained to skateboards and derived from Code 1977, § 24-15.

Sec. 31-6. Authority to keep streets, etc., clear; resisting officers.

(a) Every police officer of the City shall have authority to keep the streets and public places of the City open and free of obstruction, and to require all persons unlawfully obstructing such streets and public places to desist therefrom whenever the act of obstruction is done in view of such officer.

(b) It shall be unlawful for any person to resist, molest, disobey or interfere with the Director of Public Works or his agent, while such officer or agent is engaged in the performance of the duty of keeping the streets or public places of the City free from obstruction and convenient for public use.
(Code 1977, § 30-5)

Sec. 31-7. Removal of unlawful obstructions by City.

Whenever anything unlawfully placed or kept on any street, sidewalk or public place in the City is removed by any department or officer of the City, the expense of such removal shall be paid to the City by the person liable for such obstruction; provided that, where practicable, such person has been given reasonable notice and a reasonable time within which to remove such obstruction. The expense of removal of such obstruction shall be the amount paid by the City for such removal, or the value of the work of removal if such work is done by any department, agency, officer or regular employee of the City.
(Code 1977, § 30-6)

Sec. 31-8. Lawful obstructions—Permit.

(a) *Required.* No person shall place any object which encroaches over or temporarily blocks off any portion of the public right-of-way unless he has applied for and secured a permit to do so issued by the Bureau of Licenses and Inspections and approved by the Director of Public Works. The fee for each such permit shall be fifty dollars

($50.00) plus an additional charge of three cents (0.03) per square foot per day for each square foot occupied within the public right-of-way. For obstructions which have been approved by the Director of Public Works under section 9-1 or 9-4 and which are permanent or semipermanent in nature, the permit fee only is required.

(b) *Application.* An application for the permit required by this section shall be signed by the owner or his authorized agent. The permit shall specify the exact nature, time and location of the obstruction or encroachment and shall contain an agreement to be signed by the applicant that the contemplated work will be done in accordance with the rules and regulations of the department of public works and that he will indemnify and save the City harmless from all damages caused by his acts or omissions while acting under the permit.

(c) *Posting on work site.* The permit required for all temporary obstructions shall be kept on the site during the continuance of the work and a permit notice shall be posted in a conspicuous place on the job.
(Ord. No. 43-88, 7-11-88; Ord. No. 44-88, 7-11-88; Ord. No. 15-05, 10-24-05)

Sec. 31-9. Same—Liability insurance required.

Each permit issued under sections 31-8, 31-62 and 31-87 and each license to maintain an areaway under the sidewalk shall be subject to the condition that the owner or agent retain liability insurance in an amount specified by the risk manager of the City, naming the City as an additional insured for the duration of the permit with a further provision that no insurance may be cancelled unless the City has been given at least thirty (30) days' notice thereof.
(Ord. No. 45-88, 7-11-88)

Sec. 31-10. Same—Annual renewal of permit and insurance.

(a) Unless otherwise noted on the permit, all permits shall expire annually on December thirty-first. Cancellation or nonrenewal of insurance automatically cancels the permit and a new permit must be applied for.

(b) Any person who after receiving ten (10) days' notice, fails to renew insurance and apply for a new permit shall be subject to a penalty of one hundred dollars ($100.00). Failure to pay the penalty and renew the permit will result in removal of designated obstruction by the City. The expense of such removal shall be paid to the City by the person liable for such obstruction. The expense of removal shall be double the amount paid by the City for such removal, or double the cost of the work of removal if such work is done by any department, agency, officer or regular employee of the City.
(Ord. No. 46-88, 7-11-88)

Sec. 31-11. Same—Collection of expense for removal of obstruction.

Upon notification by the Director of Public Works of any bill of a contractor or of the City for removing an obstruction within the public right-of-way, the Public Works Department is authorized to collect from the property owner or person as designated by the Director, the penalty and the total amount of such bill.
(Ord. No. 47-88, 7-11-88)

Sec. 31-12. Same—Lien for expense incurred by city.

The cost of any obstruction removed by the Director of Public Works under sections 31-7 and 31-10, shall be a lien in favor of the City upon the premises liable therefor and such lien shall exist from the date of removal of such obstruction. Such lien shall expire sixty (60) days after the date on which it begins to run unless a certificate thereof containing a statement of the amount of such lien and description of the premises upon which it is claimed shall be lodged for record by the Public Works Department in the Office of the City Clerk before the expiration of such period.
(Ord. No. 48-88, 7-11-88)

Sec. 31-13. Ejected tenant; sale of personal effects.

Whenever a tenant is ejected by legal process and his personal effects are set out on the sidewalk, street or highway, and are not immediately removed by the tenant, the City

manager shall remove and store the property and such removal and storage shall be at the expense of the tenant. If such effects are not called for by the tenant and the expense of such removal and storage is not paid to the City manager within fifteen (15) days after such ejectment, the manager shall sell the property after posting notice of such sale for one (1) week on the public signpost nearest to the place where the ejectment was made and shall deliver to such owner or tenant on demand the net proceeds of such sale, if any, after deducting a reasonable charge for removal and storage of such effects; and, if not so demanded within thirty (30) days, shall turn over such proceeds to the City treasurer.
(Code 1977, § 30-7)

State law reference—Similar provisions, G.S. § 47a-42(c).

Sec. 31-14. Goods, wares, cartons, etc., prohibited.

Except as provided in article III, chapter 27, it shall be unlawful for any person to place or maintain any article, merchandise or wares, or any case, box or container therefor, or any packing boxes, upon any sidewalk or street in the City, except for the purpose of transit or delivery and for such time and in such manner as shall be reasonably necessary for such purpose.
(Code 1977, § 30-8)

Sec. 31-15. Dropping material from vehicles.

It shall be unlawful for any person to cart manure, soil or other material through the streets of the City in such a manner as to drop or scatter such manure, soil or other material upon the streets.
(Code 1977, § 30-9)

Sec. 31-16. Wastewater in streets.

It shall be unlawful for any person to permit wastewater of any kind to pass or be thrown from premises under his control into any street in the City.
(Code 1977, § 30-10)

Sec. 31-17. Discharging on or under sidewalks, streets, etc.

(a) It shall be unlawful for any person to open, maintain, use or construct any drain or conductor pipe in such a manner that it is discharged upon or under any sidewalk, street or public place in the City.

(b) It shall be unlawful for any owner or occupant of any property to fill, excavate, or regrade property so as to cause water or other runoff from such property to flow upon any sidewalk, street, or public place in the City.
(Code 1977, § 30-11; Ord. No. 74-88, 12-12-88)

State law reference—Authority to regulate drainage into streets, G.S. § 7-148(c)(6)(B)(iv).

Sec. 31-18. Playing in streets.

(a) It shall be unlawful for any person to roller-skate, play ball, fly a kite or conduct any other recreational activity in any street in the City.

(b) The council may by resolution waive the provisions of subsection (a) upon recommendation of the department of parks and recreation in order to permit use of any given street for recreational activities. If such activities are to be conducted by any group other than the department of parks and recreation, such use shall be permitted only in accordance with a written agreement approved by the corporation counsel.
(Code 1977, § 30-12)

Sec. 31-19. Planting or removal of trees in streets.

(a) It shall be unlawful for any person to set out any tree within the lines of any street in the City without permission from the Director of Public Works to do so.

(b) It shall be unlawful for any person to remove or prune any tree within the lines of any street in the City without the permission of the director of parks and recreation or city forester in accordance with Chapter 26 of the Code.
(Code 1977, § 30-13; Ord. No. 39-91, 6-24-91)

State law reference—Authority to provide for public trees, G.S. § 7-148(c)(6)(A)(v).

Sec. 31-20. Steps required over skids laid on sidewalks.

It shall be the duty of any owner of property before which vehicles are frequently unloaded by means of skids laid across the sidewalk in front of such property to furnish and put in place steps over such skids.
(Code 1977, § 30-14)

Sec. 31-21. Penalty.

A person who violates any provision of this article shall be summoned or brought to community court pursuant to P.A. 97-199. A person who is summoned or brought before the community court cannot invoke any of the appeal rights provided by section 1-5 of the Hartford Municipal Code. The superior court judge assigned to the community court may impose a penalty of community service, a fine up to ninety dollars ($90.00) or a jail sentence up to twenty-five (25) days to any person who is convicted of violating any provision of this article.
(Ord. No. 34-97, 11-24-97)

Secs. 31-22—31-30. Reserved.

ARTICLE II. SIDEWALK, CURB AND GUTTER CONSTRUCTION AND REPAIR

DIVISION 1. GENERALLY

Sec. 31-31. Maintenance and construction in parks.

The Director of Public Works may adopt from time to time such rules, regulations and specifications for the conduct of the work provided for by this article as he may deem for the best interest of the City. It shall be unlawful for any person to violate any such rule, regulation or specification or any applicable provision of the zoning regulations of the planning and zoning commission.
(Code 1977, § 30-25; Ord. No. 003-20, 6-22-20)

Cross reference—Parks and recreation generally, Ch. 26.

Sec. 31-32. Regulations, specifications authorized.

The Director of Public Works may adopt from time to time such rules, regulations and specifications for the conduct of the work provided for by this article as he may deem for the best interest of the City. It shall be unlawful for any person to violate any such rule, regulation or specification or any applicable provision of the zoning regulations of the planning and zoning commission.
(Code 1977, § 30-26; Ord. No. 003-20, 6-22-20)

Sec. 31-33. Repairs to be made by city.

It shall be the duty of the Director of Public Works to repair all sidewalks, curbs and gutters located in streets and abutting property belonging to the City or under the control of any department or agency of the City, together with curbs and gutters abutting city streets, except driveways not owned by the City.
(Code 1977, § 30-27)

Sec. 31-34. Replacement, repair of flagstone sidewalks.

The Director of Public Works, when in his opinion a flagstone sidewalk is in such condition that it cannot be suitably repaired with flagstones and the public interest requires, may order the owner of land fronting upon any street in the City to replace or repair the flagstone sidewalk laid in front of such property by laying a cement, concrete or other similar sidewalk of such material, width and thickness and within such time as the director may prescribe. No such order shall be issued by the director without giving reasonable notice and an opportunity to be heard to the owner of the land or to his agent.
(Code 1977, § 30-28)

Sec. 31-35. Construction and maintenance by city where owner fails to comply.

Whenever the owner or occupant of any premises fronting upon any street in the City neglects to install new walks, curbs or gutters, or to make replacements ordered by the Director of Public Works, or neglects or refuses to keep his sidewalk, gutter or curb in good repair, it shall be

the duty of the Director of Public Works to install, replace or repair the same. For the purposes of this section and sections 31-36 and 31-37 only, the word "sidewalk" shall mean all the space between the back edge of the curb and the adjacent street or property line.
(Code 1977, § 30-29)

Sec. 31-36. Collection of expense from abutting owners.

Upon delivery to the tax collector by the Director of Public Works of any bill of a contractor for installing, replacing or repairing a sidewalk, gutter or curb, the collector is authorized to collect from the property owner designated by the director the total amount of such bill, plus an overhead charge of six (6) percent of the amount of the bill; provided, however, that the minimum overhead charge on any bill shall be fifty cents ($0.50) and the maximum overhead charge shall be fifteen dollars ($15.00).
(Code 1977, § 30-30)

Sec. 31-37. Lien for expense incurred by city.

The cost of any work done by the director of public works under section 31-35, plus an overhead charge of six (6) percent of the amount of the bill, shall be a lien in favor of the city upon the premises liable therefor and such lien shall exist from the date of the completion of such installing, replacing or repairing. Such lien shall expire sixty (60) days after the date on which it begins to run unless a certificate thereof containing a statement of the amount of such lien and a description of the premises upon which it is claimed shall be lodged for record by the tax collector in the office of the city clerk before the expiration of such period.
(Code 1977, § 30-31)

Sec. 31-38. When construction of sidewalks required.

(a) Any person who constructs a new building or reconstructs an old building on property where no sidewalk has been installed shall construct the legally laid-out sidewalk on such property prior to the issuance of a certificate of occupancy. Any exception to the issuance of such certificate of occupancy prior to the construction of such sidewalk during cold weather shall be made only on the written recommendation of the director of public works.

(b) At locations where there are no indications of future sidewalk grades, such person shall request from the department of engineering that stakes be put in showing the proposed sidewalk grade at the time the building line is staked.
(Code 1977, § 30-32)

Sec. 31-39. Deferred payments of costs.

All bills for work done under section 31-33, with overhead thereon, amounting to one hundred dollars ($100.00) or less shall be paid in full within two (2) months of the date of notice. The property owner shall pay all bills, with overhead thereon and in excess of one hundred dollars ($100.00) within two (2) months of the date of notice or shall notify the tax collector within that time of his election to pay the amount in six (6) equal installments. The first installment shall be paid within such period of two (2) months, the second installment within one (1) year from the date of such notice, the third installment within two (2) years from the date of such notice, the fourth installment within three (3) years from the date of such notice, the fifth installment within four (4) years from the date of such notice, and the sixth and final installment shall be paid within five (5) years from the date of such notice. All bills unpaid after thirty (30) days from the date they become due shall be delinquent and shall bear interest at the rate of six (6) percent per annum from the date they become due.
(Code 1977, § 30-33)

Sec. 31-40. Deferred payment for elderly persons.

(a) In any instance where notification has been given that a bill is due the city for work performed pursuant to section 31-33, wherein all of the owners of record of such property are sixty-two (62) years of age or older, the property owners may notify the tax collector within two (2) months of the date of the notice of their election to defer the collection of such bill.

(b) Such election shall be made by filing a written request, in the form provided by such tax collector, executed by all of such owners, that collection of such bill be deferred until the death of the property owners or the disposition of their property, whichever shall sooner occur. Such written election shall also:

(1) Expressly acknowledge the lien of the city for the expense incurred by it;

(2) Acknowledge that such deferment shall expire upon their death or disposition of the property and that payment must be made at that time; and

(3) Authorize the collection of the amount due from their estate upon their death.

(c) Upon receipt of a duly executed election and satisfactory proof of age, the tax collector shall make out and file with the town clerk a certificate of continuance of lien, in accordance with section 31-41, and a certificate of deferment which shall contain the following information:

(1) The names of the persons owing such bill to the city;

(2) A description of the property improved;

(3) The amount due; and

(4) The fact that payment of such amount has been deferred until the death of the property owners or their disposition of the property and that payment will be due upon the occurrence of either of those contingencies.

(d) No interest shall accrue against any bill deferred under the provisions of subsection (a).

(e) Whenever notification is given that a bill is due the city, for work performed pursuant to section 31-33, such notification shall contain provisions informing the recipients of the existence and content of this section.
(Code 1977, § 30-34)

Sec. 31-41. Radius curb and sidewalk; installation and maintenance.

(a) It shall be the duty of the department of public works to make the original installation of radius curb at all street corners in the arc from the point of curvature to the point of tangency, at the city's expense.

(b) It shall be the duty of the department of public works to make the original installation of and to maintain new sidewalk adjacent to radius curb at all street corners between lines perpendicular to the curbline at the point of curvature and point of tangency of the arc of the curb, at the city's expense.

(c) Subsections (a) and (b) shall not apply to curb and sidewalk on or part of an areaway.
(Code 1977, § 30-35)

Secs. 31-42—31-55. Reserved.

DIVISION 2. CURB AND WALK LAYERS*

Sec. 31-56. License—Required.

No person shall lay in any street any new curb or sidewalk or combined curb and gutter, or relay any existing curb or sidewalk, or combined curb and gutter, unless he is licensed as a curb and walk layer. However, this section shall not prevent the making without such license of minor repairs to an existing curb or sidewalk, or combined curb and gutter, by the owner of the property in front of which such curb or sidewalk or combined curb and gutter is located, or by such owner's agent without remuneration.
(Code 1977, § 30-39)

*Cross reference—Licenses and permits generally, Ch. 21.

Sec. 31-57. Same—Application.

The applicant for the license required by section 31-56 shall state in his application his actual place of business, together with the name under which the business is done, and shall notify the director of public works of any subsequent change in either.
(Code 1977, § 30-40)

Sec. 31-58. Same—Bond to be filed.

Every person making application for a license as a curb and walk layer shall file with the bureau of licenses and inspections a satisfactory bond, of a surety company authorized to do business in the state, in the minimum sum of ten thousand dollars ($10,000.00) or an amount to be established by the director of public works, and conditioned substantially that the applicant shall indemnify and save the city and the department of public works and its agents harmless from all suits and actions brought against the city or any officer thereof for or on account of any injuries or damage received or sustained by any person in consequence of, or resulting from, any work performed by the applicant, his servants or agents, or any negligence in guarding such work, or any act or omission of the applicant, his servants or agents; and that the applicant shall faithfully perform such work in all respects and shall replace and restore that portion of any street in which the applicant, his servants or agents shall make any excavation, to as good condition as that in which the street was before such work was performed and guarantee such work for five (5) years.
(Code 1977, § 30-41; Ord. No. 49-88, 7-11-88)

Sec. 31-59. Same—Issuance.

The bureau of licenses and inspections shall issue, with the approval of the director of public works, a license as a curb and walk layer to any

person believed by the director to be suitable and competent, upon satisfactory completion of a written test and compliance with the conditions governing such license. Such license shall expire annually on December thirty-first and shall be renewed upon application as provided in section 31-57 pending the satisfactory completion of prior permits. A fee of seventy-five dollars ($75.00) shall be collected by the bureau of licenses and inspections from persons who have not previously been licensed or who have not had their license renewed in five (5) years. The annual renewal fee of the license shall be fifty dollars ($50.00). The public services utilities will not be required to obtain licenses for utility personnel.
(Code 1977, § 30-42; Ord. No. 50-88, 7-11-88)

Sec. 31-60. Same—Duties under.

The licensee under this division shall comply in all respects with the rules and regulations established by the Director of Public Works relative to the work for which he is licensed and with the terms of the permits therefor which may be issued to him. The licensee shall also pay all fines imposed upon him for violation of any such rules or regulations. He shall give personal supervision to the work done under his license and shall employ thereon only competent workers.
(Code 1977, § 30-43)

Sec. 31-61. Same—Revocation or suspension.

Whenever, in the opinion of the Director of Public Works, any licensed curb and walk layer violates any of the provisions of this article, or any of the rules, regulations and specifications adopted by the director, the director may instruct the bureau of licenses and inspections to suspend or revoke the license of such curb and walk layer.
(Code 1977, § 30-44)

Sec. 31-62. Permit—Required.

No curb and walk layer shall commence any work upon any street in the City until he has applied for and secured a permit to do so issued by the bureau of licenses and inspections and approved by the Director of Public Works. A separate permit shall be required for each location or address at which the curb and walk layer proposes to work except that only one (1) permit shall be necessary for adjacent locations that belong to the same owner. Such work shall be conducted according to regulations established by the Director of Public Works. The fee for each such permit shall be fifty dollars ($50.00). Permits that require survey services shall cost an additional seventy-five dollars ($75.00).
(Code 1977, § 30-45; Ord. No. 51-88, 7-11-88)

Sec. 31-63. Same—Application.

Applications for the permits required by section 31-62 shall be signed by the curb and walk layer, or his authorized agent. The permits shall specify the ownership and location of the property where the work is to be done and shall contain an agreement to be signed by the curb and walk layer that he will do the contemplated work in accordance with the rules and regulations of the department of public works and the City specifications pertaining to such work and that he will indemnify and save the City harmless from all damages caused by his acts or omissions while acting under the permit applied for.
(Code 1977, § 30-46)

Sec. 31-64. Same—To be kept on job.

The permit required by this division shall be kept on the job during the continuance of the work and shall be available for inspection by all authorized persons.
(Code 1977, § 30-47)

Sec. 31-65. Work to be guaranteed.

A curb and walk layer shall guarantee the work done under each permit issued him for a period of five (5) years after completion against any failure caused by defective materials or defective workmanship, and, if so ordered, shall at his own expense make good any such defects to the satisfaction of the Director of Public Works.
(Code 1977, § 30-48; Ord. No. 52-88, 7-11-88)

Sec. 31-66. Inspection of work by city officers.

The Director of Public Works shall supervise the construction of all new curbs, walks, combined curbs and gutters, driveways and all other work of a similar nature laid under the provisions of this chapter. However, such inspection shall not relieve the curb and walk layer from any obligation to perform the work strictly in accordance with the agreement contained in his application for a permit, or from his responsibility under his license.
(Code 1977, § 30-49)

Sec. 31-67. Unauthorized construction.

It shall be unlawful for any person to lay any sidewalk, curb or gutter in the City without the authorization or order of the Director of Public Works, and any such work may be removed as an obstruction of the street.
(Code 1977, § 30-50)

Secs. 31-68—31-85. Reserved.

ARTICLE III. EXCAVATIONS, OPENINGS AND UNDERGROUND INSTALLATIONS*

Sec. 31-86. Excavation regulations generally.

(a) The Director of Public Works may adopt from time to time such rules, regulations and specifications for the conduct of work incidental to the excavation of streets and sidewalks as he may deem for the best interests of the City. As part of the rules, regulations and specifications, he shall designate certain streets as critical areas, based on traffic flow, the interruption of which would seriously inconvenience the public. No person shall cut, excavate, open, repair or do any other work within a critical area street except between the hours of 8:30 a.m. and 3:30 p.m. The Director of Public Works may grant special permission for doing such work before 8:30 a.m. and after 3:30 p.m. when it can be shown that the nature of the work or the public convenience requires extended hours.

(b) No restriction in subsection (a) shall be constructed to prevent emergency work that is necessary for the preservation of life or property, or work for the continuation of essential service to the public. The violation of any such rule or regulation shall be unlawful.
(Code 1977, § 30-61; Ord. No. 3-79, 3-12-79)

Sec. 31-87. Excavation license; bond; permit required.

(a) No person shall make any excavation in or dig below the surface of any street or sidewalk in the city unless he has obtained a license to do so issued by the bureau of licenses and inspections and approved by the director of public works. The bureau of licenses and inspections shall issue such license with the approval of the director of public works to any person believed by the director to be suitable and competent, upon satisfactory completion of a written test and compliance with the conditions governing such license. Such license shall expire annually on December thirty-first and shall be renewed upon application provided the contractor has satisfactorily completed the restoration of all prior inspections. A fee of seventy-five dollars ($75.00) shall be collected by the bureau of licenses and inspections from persons who have not previously been licensed or who have not had their license renewed in five (5) years. The annual renewal fee of the license shall be fifty dollars ($50.00). The public service utilities and the Metropolitan District Commission will not be required to obtain licenses for their respective personnel engaged in this work.

(b) No person or utility shall dig within the public right-of-way in the city until they have applied for and secured a permit to do so issued by the bureau of licenses and inspections and approved by the director of public works. A separate permit shall be required for each location or address at which the excavator proposes to work except that only one (1) permit shall be necessary for main line construction or for adjacent locations at the same property. Such work shall

*__State law reference—__Authority to regulate excavations, etc., G.S. § 7-148(c)(6)(C)(iii), (v).

be constructed according to regulations established by the director of public works. The fee for each such permit shall be fifty dollars ($50.00). An application for the permit required by this section shall be signed by the person doing the work or an authorized agent. The applicant must agree that he will:

(1) Do the contemplated work in accordance with the rules, regulations and specifications of the director of public works;

(2) Maintain the cut pavement at all times with a temporary patch until final restoration has been completed;

(3) Restore the pavement as required, including restoration of all pavement markings, decorative crosswalks, etc.;

For all trenches of a length of five (5) feet or greater, a milling operation will be required. The pavement surrounding and including the excavation shall be milled to a depth of two (2) inches for the width of the traffic lane in which the excavation was made or for a width of ten (10) feet, whichever is greater. The milled area shall extend a minimum of ten (10) feet beyond the beginning and end of the excavation. The milled edges shall be vertically faced and not tapered. The entire milled areas, including the edges, shall be swept and tack coated with approved material at the appropriate rate.

The milled area will then be overlaid with bituminous concrete of the type specified by the city engineer, compacted with a steel drum roller of at least ten (10) tons to a thickness of two (2) inches. The surface of the new overlay shall be flush with the adjacent existing pavement. Pavement joints shall be sealed with an approved asphaltic material.

(4) Maintain the disturbed area for five (5) years after the permanent pavement repair has been made; and

(5) If the work is not done or the surface is not maintained in a condition satisfactory to the director of public works, pay the cost of all repairs thereto which may be made by the director. A minimum charge of two hundred fifty dollars ($250.00) will be charged to cover city expense for each occurrence which requires city maintenance.

(c) Every person making application for a street excavation license shall file with the bureau of licenses and inspections satisfactory bond of a surety company authorized to do business in the state, in the minimum sum of ten thousand dollars ($10,000), or an amount to be established by the director of public works and conditioned substantially that the applicant shall indemnify and save the city and the department of public works and its agents harmless from all suits and actions brought against the city or any officer thereof for or on account of any injuries or damage received or sustained by any person in consequence of, or resulting from, any work performed by the applicant, his servants or agents, or any negligence in guarding such work, or any act or omission of the applicant, his servants or agents; and that the applicant shall faithfully perform such work in all respects and shall replace and restore that portion of any street in which the applicant, his servants or agents shall make any excavation, to as good condition as that in which the same was before such work was performed, and guarantee such work for five (5) years. The applicant must also agree to indemnify and save the city harmless from all damages caused by his acts or omissions while acting under the inspections issued and shall supply evidence of insurance as required by the risk manager of the city.

(d) The provisions of subsections (a) and (c) of this section shall not apply to the Metropolitan District Commission, provided that the Metropolitan District Commission shall be liable to any person who receives actionable injury through excavations which it makes or causes to be made in or below any street, sidewalk or public way in the city, and the Metropolitan District Commission shall be liable to indemnify

and reimburse the city for any loss sustained by it by reason of any such excavation or negligent maintenance of such excavation.
(Code 1977, § 30-62; Ord. No. 4-79, 3-12-79; Ord. No. 53-88, 7-11-88; Ord. No. 79-88, 12-12-88; Ord. No. 22-95, 9-25-95; Ord. No. 14-05, 10-11-05; Ord. of 4-14-25)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 31-88. Safety measures to be taken during excavation.

It shall be the duty of every person who makes any excavation in or digs below the surface of any street or sidewalk to protect the public against injury therefrom by providing fences or barriers and warning lights and taking any other precautions that may be necessary or that the Director of Public Works may order.
(Code 1977, § 30-63)

Sec. 31-89. Location of underground construction to be approved.

Before constructing any part of any underground conduit, pipeline or structure, the person causing such underground construction shall submit detailed plans showing the proposed location of such construction to the Director of Public Works for his inspection and approval.
(Code 1977, § 30-64)

Sec. 31-90. Underground construction plans, specifications to be approved.

Before constructing any part of any underground conduit system, pipeline or other structure, any person undertaking such underground construction shall file with the Director of Public Works for his inspection and approval detailed plans and specifications showing the kind of materials to be used and the method of construction to be followed.
(Code 1977, § 30-65)

Sec. 31-91. Underground work to conform to plans; approval; final plans to be filed.

All construction done on underground conduits, pipelines and structures shall conform as nearly as is practicable to the plans and specifications required by sections 31-89 and 31-90 as approved by the Director of Public Works, and shall be done under the supervision and to the satisfaction of the Director of Public Works. Upon completion of such work, the person who has caused the work to be done shall file with the department of public works detailed plans showing the work as actually constructed.
(Code 1977, § 30-66)

Sec. 31-92. License required for vaults, etc.

(a) No person shall construct or maintain any vault, cellarway or areaway, or any cover, grating or door above the same, in any street or sidewalk in the City without a license to do so issued by the bureau of licenses and inspections and approved by the Director of Public Works.

(b) A fee of fifty dollars ($50.00) shall be paid for the original license at the time application for the license is filed, and a fee of fifty dollars ($50.00) shall be paid yearly for each renewal thereof on or before the thirty-first day of December of each year following the date of issuance of the original license.
(Code 1977, § 30-67; Ord. No. 54-88, 7-11-88)

Cross reference—Licenses and permits generally, Ch. 21.

Sec. 31-93. Liability of licensee for vault, etc.

Each license issued under section 31-87 or 31-92 shall be subject to the conditions that the person to whom it is granted shall be liable to any person who receives actionable injury through the exercise of such license and shall be liable to indemnify and reimburse the City for any loss sustained by it by reason of the exercise of such license. Such conditions shall be obligatory upon any person who shall receive such license, without other notice than that to be implied from this section.
(Code 1977, § 30-68; Ord. No. 5-79, 3-12-79)

Sec. 31-94. Security to be given for vaults, etc.

The bureau of licenses and inspections shall require each licensee under section 31-87 or

31-92 to a file a surety bond, public liability policy or other form of security satisfactory to the purchasing agent in a sum sufficient to indemnify the City for any liability incurred by it as a result of the exercise of such license.
(Code 1977, § 30-69; Ord. No. 6-79, 3-12-79)

Sec. 31-95. Restoration and maintenance of pavement in streets and above vaults, etc.

(a) *Maintenance.*

(1) Each person who has installed, operates or uses any vault, cellarway, areaway, pipe, conduit or other structure under the surface of any street or sidewalk in the city, shall maintain said structure at all times in such a manner as to not interfere with the safe use of said street or sidewalk by the public.

(2) Upon notice from the city of the re-paving, re-surfacing, re-laying or other improvement to any street or sidewalk which will affect any such structure, including specifically that which will affect any vault, cellarway, areaway, manhole or other access from the surface of the street or sidewalk to such structure, each person shall coordinate with the director of public works to ensure that such structures are adequately identified and preserved through the completion of the improvement. If the improvement results in a change in the height of the surface of the street or sidewalk, each person whose access in the surface is affected shall, within ninety (90) days of completion of the improvement, adjust its access up or down as required to maintain an even surface of the street or sidewalk. In the case of vaults, cellarways, areaways or other structures attached to adjacent buildings which extend into the city's right of way, it shall be the operator's responsibility to coordinate with the director of public works to ensure they are structurally sound and adequately waterproofed. Any modifications necessary to maintain or upgrade the structural integrity and/or watertightness of these structures before, during or after construction of the city's improvement will be the responsibility of the operator and will be performed at the operator's expense.

(3) On or before January 1, 2026, each person shall coordinate with the director of public works to confirm that all manholes and other access controlled by each person in any city street or sidewalk are adequately identified. The director of public works shall maintain a log of all such manholes and other access for the purposes of this section.

(b) *Repair schedule.* Each person who has made a cut, excavation or other opening in a street shall make a permanent repair of the pavement disturbed by the work in a manner satisfactory to the director of public works and according to the following schedule:

(1) All temporary repairs must be permanently restored within twelve (12) months unless approved by the director of public work, provided however that all pavement markings shall be restored with any temporary patch awaiting permanent repair.

(c) *Extension.* The director of public works may, for sufficient reason and by agreement with the person, grant an extension beyond the time for completion of permanent repairs specified in this section.

(d) *Applicability.* The provisions of subsections (a), (b) and (c) above shall apply to all persons who have installed, operate or use any pipe, conduit or other structure under the surface of any street or sidewalk in the city, including without limitation all public service utilities and the Metropolitan District Commission.

(e) *Enforcement.* Failure to perform any permanent repair required by this section shall allow the city immediate access to the applicable bond for the purpose of paying for said work.

(f) *Restoration of surrounding surface.* Any person constructing and maintaining a vault, cellarway or areaway, manhole, utility access cover, or other street penetration, etc. in a street or sidewalk shall restore the surrounding surface

of such street or sidewalk to its former condition after the construction work is completed, and shall keep such surface paved to the satisfaction of the director of public works for a space of two (2) feet from the outer edges of the frame of such opening.

(g) *License conditioned on compliance.* No license shall be issued as provided in section 31-87 or 31-92 except on condition that the licensee will comply with the provisions of this section.
(Code 1977, § 30-70; Ord. No. 6-79, 3-12-79; Ord. No. 30-85, 6-24-85; Ord. of 4-14-25)

Sec. 31-96. When guards to be erected for vaults, etc.

No person maintaining a vault, cellarway or areaway in any street or sidewalk in the City shall uncover such opening until a suitable cage or guard is placed around it.
(Code 1977, § 30-71)

Sec. 31-97. Permit to be kept on job for inspection.

The license (permit) required by section 31-87 shall be kept at the site during the continuance of the work and be available for inspection by any duly authorized person.
(Code 1977, § 30-72; Ord. No. 8-79, 3-12-79)

State law reference—Authority to regulate pipes, drains, etc., G.S. § 7-148(c)(6)(B)(iii).

Secs. 31-98—31-115. Reserved.

ARTICLE IV. POLES, WIRES AND CONDUITS*

Sec. 31-116. Erection of poles for street lighting.

The Director of Public Works may, in his discretion, permit the erection of poles at designated points in the streets of the City to provide additional lighting when public necessity or convenience requires. Such poles and their lighting fixtures shall be of a type approved by the director and by the commission of the City plan.
(Code 1977, § 30-85)

Sec. 31-117. When overhead wires to be placed underground.

The Director of Public Works, after public hearing and notice to any person maintaining overhead electric wires on streets in the City, may order such wires to be placed underground by such person, within such territorial limits as the director, after such hearing, may determine to be required by the public interest. No order shall be issued by the director which would compel the building by any one (1) person maintaining overhead wires of more than four (4) linear miles of conduits in any one (1) year. No such order shall specify a shorter period than three (3) months for compliance with its terms.
(Code 1977, § 30-86)

Sec. 31-118. Joint construction of conduits.

Whenever the Director of Public Works, after hearing all parties in interest, deems it advisable, two (2) or more persons maintaining electric wires in the streets of the City may be ordered to begin and carry on the construction work required by section 31-117 at the same time, and conduits for similar classes of electrical conductors shall be located as closely together as practicable without causing mutual injury.
(Code 1977, § 30-87)

Sec. 31-119. Removal of poles after completion of conduit system.

As soon as the conduit system of any person maintaining electric wires on the streets of the City is constructed and ready for use in any street or portion thereof such person shall remove from such street or portion thereof all other electrical conductors and poles, except such as are used for local distribution and such as may be permitted by the Director of Public Works to remain.
(Code 1977, § 30-88)

*__State law reference—__Authority to regulate poles, wires, conduits, etc., G.S. § 7-148(c)(6)(B)(iii).

Sec. 31-120. When location of poles to be changed.

Any order given by the Director of Public Works assigning a location for service equipment may, after due notice and hearing, be revoked or altered by the director; but in such case another location suitable for the accommodation of the service shall be assigned by him.
(Code 1977, § 30-89)

Sec. 31-121. Telephone and telegraph poles to be labeled.

Every person owning, erecting, maintaining or using telephone or telegraph poles located in the streets and public places of the City shall cause to be placed and kept on each pole owned, erected, maintained or used by him a legible and durable sign, containing the name of such person and the words "Post no bills."
(Code 1977, § 30-90)

Sec. 31-122. Tampering with signs on poles unlawful.

It shall be unlawful for any person willfully to injure, deface, or remove any authorized sign from any pole under this article.
(Code 1977, § 30-91)

Sec. 31-123. Failure to comply with orders of Director of Public Works.

It shall be unlawful for any person charged with compliance with any order given by the Director of Public Works under the authority of this article to fail to carry out the order as directed.
(Code 1977, § 30-92)

Secs. 31-124—31-140. Reserved.

ARTICLE V. SNOW, ICE AND SLEET REMOVAL*

Sec. 31-141. Enforcement.

This chapter shall be administered and enforced by the director of public works or chief of police or both, who may designate duly authorized representatives to enforce this chapter in their respective names.
(Ord. No. 07-19, 5-13-19)

Sec. 31-142. Duty of persons in control to remove snow, ice, sleet or other forms of freezing precipitation from sidewalks.

(a) The property owner, occupant, tenant, or agent in control of any premises in the City which is in front of, along or adjoining any graded, paved or planked sidewalk shall cause all snow, ice, sleet, and/or freezing precipitation to be removed from the entire width of the sidewalk, including any adjacent curb-cut, following the conclusion of the weather event.

(b) If such fall of snow, ice, sleet or freezing precipitation is in the daytime, it shall be removed within six (6) hours of the ceasing of such fall or freezing; or if such fall or freezing is in the nighttime, it shall be removed before 9:00 am of the succeeding day.
(Ord. No. 07-19, 5-13-19)

Sec. 31-143. Abatement.

Whenever any sidewalk mentioned in section 31-142, or any part thereof, is covered with snow, sleet or ice, that cannot be entirely removed within the parameters prescribed in section 31-142(a), the property owner, occupant, tenant, or agent in control of the premises, following the conclusion of the weather event, shall cover the affected portion(s) of such sidewalk with sand or other suitable substance so that such sidewalk shall be safe for public travel.
(Ord. No. 07-19, 5-13-19)

Sec. 31-144. Fire hydrants to be cleared.

All snow and ice accumulating in the street higher than a point four (4) inches below the bottom of the lowest outlet on any fire hydrant, and within a radius of three (3) feet from the center of such hydrant, shall be removed by the tenant, occupant, owner or agent of the premises

*__Editor's note—__Ord. No. 07-19, adopted May 13, 2019, amended article V in its entirety to read as herein set out. Former art. V, §§ 31-141—31-152, pertained to snow and ice removal, and derived from Code 1977, §§ 30-103—30-114; Ord. No. 5-85, §§ 1—3, adopted Jan. 16, 1985; Ord. No. 9-85, adopted Feb. 25, 1985; Ord. No. 04-06, adopted March 13, 2006; Ord. No. 24-17, adopted Nov. 27, 2017.

fronting on that portion of the street, within six (6) hours after such snow and ice has ceased to fall or accumulate, or within three (3) hours after sunrise when the snow has fallen in the nighttime.
(Ord. No. 07-19, 5-13-19)

Sec. 31-145. Removal of snow from roofs.

Every property owner, occupant, tenant or agent having control of a building standing upon or so near the line of a street that snow sliding from the roof may endanger public travel, shall within a reasonable time after the termination or abatement of a snowstorm, cause the snow to be removed from the roof thereof, in such manner as will not endanger travelers.
(Ord. No. 07-19, 5-13-19)

Sec. 31-146. Throwing snow and ice into the streets.

No person shall throw or put, or cause to be thrown or put, any snow or ice from any private property or from any area in the rear or outside of the legally laid-out sidewalk into any street in the City that creates a safety hazard.
(Ord. No. 07-19, 5-13-19)

Sec. 31-147. Violations and penalties; hearing.

(a) If the Director of Public Works or his/her designee, upon any inspection of any sidewalks observes a violation of this Chapter, the Director may:

(1) Issue a notice of violation ordering the property owner, occupant, tenant or agent in control of land abutting such sidewalk to correct the violation within a specified reasonable period of time. The notice requirements of this section shall be satisfied upon the notice being left at said premises.

(2) If the violation is not remedied by said specified period of time:

i. The property owner shall be issued a citation, and

ii. The property owner shall be subject to additional charges, if the City has to shovel or treat the sidewalk that is the subject of the citation.

(b) A person or entity who is issued a citation shall be subject to a fine of ninety-nine dollars ($99.00). Each day such violation shall continue shall constitute a separate offense.

(c) Any person or entity issued a citation for violating the provisions of this chapter may within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.

(d) If the Chief of Police or his/her designee, upon inspection of any sidewalk observes a violation of this Chapter, the Chief of police may:

(1) Issue an infraction. Every day that the violation continues is a separate violation and shall be considered a separate and distinct infraction. A fine of ninety-nine dollars ($99.00) will be imposed for each infraction.
(Ord. No. 07-19, 5-13-19)

Sec. 31-148. Liability of officers and directors of corporations.

Whenever a corporation violates the provisions of section 31-142 through 31-146, the officers and directors of such corporation shall be personally liable to pay any fine incurred by such corporation.
(Ord. No. 07-19, 5-13-19)

Sec. 31-149. Duty of city officers to clear sidewalks owned by city; liability.

It shall be the duty of all such city officers to cause to be cleared, in accordance with this article, all sidewalks fronting on land under their official charge. The Director of Public Works and other city officers shall be personally liable to the same penalties for any neglect in relation to the sidewalks under their official charge as are private persons for a like offense.
(Ord. No. 07-19, 5-13-19)

Sec. 31-150. Snow and ice on public sidewalks.

(a) *State law adopted*. The provisions of G.S. § 7-163a are hereby adopted, and are set forth in subsections (b) and (c).

(b) *Liability of city*. Notwithstanding the provisions of G.S. § 13a-149 or any other general statute or special act, the City shall not be liable to any person injured in person or property caused by the presence of ice or snow on a public sidewalk unless the City is the owner or person in possession and control of land abutting such sidewalk, other than land used as a highway or street provided the City shall be liable for its affirmative acts with respect to such sidewalk.

(c) *Liability*. duty of abutting landowner:

(1) The owner or person in possession and control of land abutting a public sidewalk shall have the same duty of care with respect to the presence of ice or snow on such sidewalk toward the portion of the sidewalk abutting his property as the municipality had prior to the effective date of this section adopted pursuant to the provisions of G.S. § 7-163a and shall be liable to persons injured in person or property where a breach of such duty is the proximate cause of such injury;

(2) No action to recover damages for injury to the person or to property caused by the presence of ice or snow on a public sidewalk against a person who owns or is in possession and control of land abutting a public sidewalk shall be brought but within two (2) years from the date when the injury is first sustained.

(Ord. No. 07-19, 5-13-19)

Sec. 31-151. Additional code sections.

Property owner, tenants, occupants, owners or agents of any premises should refer to Chapter 15, Article I of this Code for additional duties regarding garbage and refuse.
(Ord. No. 07-19, 5-13-19)

Secs. 31-152—31-175. Reserved.

ARTICLE VI. SUBDIVISIONS AND RESUBDIVISIONS*

Sec. 31-176. Generally.

For the purpose of this article, the words subdivision and resubdivision shall have the meaning defined in the subdivision regulations of the planning and zoning commission. The nature of the applications and their submission, required notices and hearings, and decision-making criteria shall be as prescribed by such subdivision regulations.
(Ord. No. 003-20, 6-22-20)

Sec. 31-177. Approval prerequisite to recording.

No map or plan of land in the City showing any proposed street or subdivision or any proposed extension or change in the established layout of any existing street or subdivision shall be filed or recorded in the Office of the City Clerk without having been endorsed as approved by the planning and zoning commission. Such endorsement shall be made by the secretary or chairman of such commission and shall indicate the date of the commission's action.
(Ord. No. 003-20, 6-22-20)

Secs. 31-178—31-200. Reserved.

ARTICLE VII. STREET PERFORMANCES AND DISPLAY OF FLAGS

DIVISION 1. GENERALLY

Secs. 31-201—31-215. Reserved.

DIVISION 2. STREET PERFORMANCES IN PUBLIC AREAS

Sec. 31-216. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings

*__Editor's note—__Ord. No. 003-20, adopted June 22, 2020, repealed the former art. VI, §§ 31-176—31-181, and enacted a new art. VI as set out herein. The former art. VI pertained to extensions, subdivisions and developments and derived from Code 1977, §§ 30-125—30-130.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Perform includes, but is not limited to, the following activities: acting, singing, playing musical instruments, pantomime, juggling, magic, dancing and reciting.

Public areas include sidewalks, parks, playgrounds and all other public ways located in the City, as appropriate.
(Code 1977, § 30-140(b); Ord. No. 11-86, §§ 1—6, 6-9-86)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 31-217. Purpose.

The purpose of this division is to encourage and permit street performance in public areas.
(Code 1977, § 30-140(a); Ord. No. 11-86, §§ 1—6, 6-9-86)

Sec. 31-218. Permitted locations; conduct.

(a) Performance may be permitted in outdoor public areas in the following zoning districts: the DT (Downtown) Districts, the MS Districts, and the Transit-Oriented Development Overlay District. If the zoning code is changed or new zoning districts created, this division will be amended to comply with such changes or amendments.

(b) A performer may not block the passage of the public through a public area. If a crowd gathers to see or hear a performer such that the passage of the public through a public area is blocked, a police officer may disperse that portion of the crowd that is blocking the passage of the public. If the blocking of passage persists, the officer shall cause the performer to relocate to a less congested area.

(c) It shall be unlawful for any performer to totally obstruct streets and sidewalks or to interrupt free passage along them.

(d) No performer or group of performers shall perform at a distance of less than two hundred (200) feet from another performer or group of performers that already is performing.

(e) Street performing shall not infringe on events for which a permit has been issued so as not to detract from the stated purpose of the permittee or permit organization.
(Code 1977, § 30-140(c); Ord. No. 11-86, §§ 1—6, 6-9-86; Ord. No. 003-20, 6-22-20)

Sec. 31-219. Exclusion of certain areas.

At the discretion of the Director of Public Works and the commission of cultural affairs, certain designated areas may be excluded from further performances.
(Code 1977, § 30-140(d); Ord. No. 11-86, §§ 1—6, 6-9-86)

Sec. 31-220. Acceptance of contributions.

(a) A performer may accept contributions during the performance.

(b) The performance and acceptance of contributions, if such occur in a permitted area as provided in section 31-218, will not constitute disorderly conduct under the provisions of section 29-5.
(Code 1977, § 30-140(e); Ord. No. 11-86, §§ 1—6, 6-9-86)

Sec. 31-221. Compliance.

The conduct and behavior of all street performers will be in compliance with the Municipal Code, which includes but is not limited to the noise and vibration act, the truancy laws, the public decency codes and the laws on the obstruction of sidewalks and other passageways, as well as pamphleteering, advertising, solicitation or littering.
(Code 1977, § 30-140(f); Ord. No. 11-86, §§ 1—6, 6-9-86)

Secs. 31-222—31-235. Reserved.

DIVISION 3. RESERVED*

Secs. 31-236—31-260. Reserved.

*__Editor's note—__Ord. No. 003-20, adopted June 22, 2020, repealed div. 3, §§ 31-236—31-239, which pertained to flag displays and derived from Code 1977, §§ 30-141—30-144; Ord. No. 23-85, adopted April 8, 1985.

ARTICLE VIII. PREVENTION OF DETERIORATION OF HIGHWAYS

Sec. 31-261. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized emergency vehicle includes fire department vehicles, police vehicles and such ambulances and emergency vehicles of municipal departments or public service companies as are designated or authorized by the commissioner of the state department of motor vehicles.

Highway includes any public highway, road, street, avenue, alley, driveway, parkway or place, under the control of the City.

Motor vehicle means any vehicle suitable for operation on a highway which is propelled or drawn by any power other than muscular, except aircraft, motorboats, road rollers, baggage trucks used about railroad stations, electric battery-operated wheelchairs when operated by physically handicapped persons at speeds not exceeding fifteen (15) miles per hour, golf carts operated on highways solely for the purpose of crossing from one (1) part of the golf course to another, agricultural tractors, farm implements, such vehicles as run only upon rails or tracks, and self-propelled snowplows, snow blowers and lawn mowers, when used for the purpose for which they were designed and operated at speeds not exceeding four (4) miles per hour, whether or not the operator rides on or walks behind such equipment.

(Code 1977, § 30-152)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 31-262. Purpose.

This article is enacted to prevent deteriorating highways and to safeguard and protect the surface of highways and alleys, to ensure the safe and ready movement of fire, police and other vehicles necessary and vital to the protection of life and property, and to prevent serious injury to people and property utilizing or residing near such highways.

(Code 1977, § 30-150)

Sec. 31-263. Legislative policy and findings.

It is declared and found that:

(1) Many of the City's highways are built on clay surfaces withjout any concrete base and are incapable of carrying heavy loads without severe damage to the pavement;

(2) Such severe damage to the pavement threatens the health, safety and welfare of residents and property due to rocks flying from the tires of vehicles;

(3) Such severe damage to the pavement threatens the vehicles traveling over them, thereby increasing the risk of accidents;

(4) Such severe damage to the pavement increases vibrations and noise which destroys contiguous properties and structures;

(5) Such severe damage to the pavement impedes the safe and ready movement of fire, police and other vehicles necessary for the protection of life and property;

(6) The deterioration of city highways promotes and fosters the decay of neighborhoods into ghettos and slums;

(7) It is necessary to protect the City from being subjected to legal actions resulting from the deterioration of its highways.

(Code 1977, § 30-151)

Sec. 31-264. Institution of tonnage limitation.

If the Director of Public Works finds that any highway has deteriorated to a level or is in imminent danger of deteriorating to a level which threatens the health, safety and welfare of those traveling on, or living near, the affected highway, he or she shall report this to the City manager with a recommendation of a maximum allowable tonnage limit per vehicle. Such tonnage limit shall be the maximum amount of

weight consistent with the safe and ready movement of vehicles and the health, safety and welfare of the public and contiguous properties. The city manager may then impose a tonnage limit on such highway and shall notify the state traffic commissioner of any such action taken hereunder.
(Code 1977, § 30-153)

Sec. 31-265. Exceptions.

This article shall not prohibit:

(1) The operation of emergency vehicles upon any highway in the City;

(2) The operation of trucks owned and operated by the City, public service companies, contractors or material men engaged in the repair, maintenance or construction of highways, highway improvements or utilities on, over or under the affected highways;

(3) Any vehicle owned and operated by the United States and the state in the proper performance of their duties;

(4) Any vehicle engaged in construction, moving or the delivery of heating fuel, appliances or furniture, provided that reasonable access to the property which is the subject of such delivery, construction or moving may only be accomplished through the use of a highway with a tonnage limit imposed under the provisions of this article.

(Code 1977, § 30-154)

Sec. 31-266. Violations; penalties.

Any person or any agent, officer, official, member or employee thereof, who violates any of the provisions of this article shall be punished by a fine not exceeding one hundred dollars ($100.00) or imprisonment not exceeding thirty (30) days, or both, for each offense. Each day any such violations continue shall constitute a separate offense.
(Code 1977, § 30-155)

Sec. 31-267. Enforcement.

The city manager shall keep and maintain accurate lists of all highways upon which there is a tonnage limit per vehicle. The list shall be kept

on file in the office of the city manager and shall be available to the public. The city manager shall also notify the department of police about any highways upon which there is a tonnage limit per vehicle, and he shall require the posting of sufficient traffic signs notifying the public of such action.
(Code 1977, § 30-156)

ARTICLE IX. NEWSRACKS

Sec. 31-268. Purpose.

It is not the intent of this article to discriminate against, hinder, regulate or interfere with the publication, circulation or distribution of any printed material which is protected by the United States Constitution. However, uncontrolled placement and lack of maintenance of newsracks in the public right-of-way can present a hazard to the safety and welfare of pedestrians, persons entering and leaving vehicles and buildings, and persons performing essential utility, traffic control and emergency services and also contributes to litter. Newsracks located as to interfere with or to cause a hazard to persons using the public right-of-way, including handicapped parking and access areas, and unsightly newsracks constitute public nuisances and interfere with the comfortable enjoyment of life and property by the community.

The City of Hartford recognizes, however, that the use of such public right-of-way is so historically associated with the sale and distribution of newspapers and publications that reasonable access to those areas for such purposes should not be overly restricted. The City of Hartford further recognizes that these strong and competing interests require a reasonable accommodation, which can only be satisfactorily achieved through the means of this article, which is designed to accommodate such interests by regulating the place and manner of using such newsracks.

The purpose of this article is to establish uniform guidelines to regulate the installation, operation and maintenance of newsracks within the public right-of-way in the City of Hartford so that such newsracks shall not unduly obstruct sidewalks; interfere with the public's right to unhampered passage therein; create vehicular traffic congestion caused by illegal parking or stopping by motorists in order to purchase or obtain newspapers; damage municipal property because of the chaining of newsracks to poles, traffic standards, trees or other fixtures; interfere with the performance of municipal services or otherwise endanger the safety and welfare of the inhabitants of the City of Hartford.
(Ord. No. 27-06, 11-27-06)

Sec. 31-269. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings given herein.

Block means two (2) sides of a street between two (2) consecutive intersecting streets.

Curb return means the point at which the curve of the curb on intersecting streets becomes the straight curb of either one (1) of those streets.

Director of public works means the head of the Hartford Public Works Department or his/her duly designated representative.

Distributor means any person who owns or is responsible for the installation, operation or maintenance of a newsrack in a public right-of-way.

Newsrack means any self or coin-operated box container, storage unit or other dispenser, installed, operated or maintained for the display and sale or free distribution of newspapers, periodicals or other printed matter.

Person means an individual person, firm, corporation or other entity.

Public right-of-way means any area owned and/or maintained by the City of Hartford or any other governmental entity, open to the public for vehicular or pedestrian travel, including but not limited to sidewalks, roadways, streets, alleys, public grounds or other public spaces.

Roadway means that portion of any highway improved, designated, or ordinarily used for vehicular travel, exclusive of the berm or shoulder.

Sidewalk means that portion of the street between the curb lines or lateral lines of a roadway and the adjacent property lines and any surface provided for exclusive use by pedestrians.

Unimproved tree belt means the area of the public right-of-way between the curb and sidewalk containing only grass, pavers, concrete, or bituminous concrete.
(Ord. No. 27-06, 11-27-06)

Sec. 31-270. Newsrack permit required.

It shall be unlawful for any person to erect, place, maintain or operate, on any public right-of-way, within the City of Hartford any newsrack without first having obtained a newsrack permit to do so from the director of public works.

(1) Application for such permit shall be made, in writing, to the director of public works upon such form as shall be provided by him and shall contain the name and address of the applicant, telephone number or numbers at which the applicant may be reached during normal business hours, the proposed specific location of said newsrack(s) and shall be signed by the applicant. One (1) permit may be issued to include more than one (1) newsrack.

(2) The application form shall include a statement, to be signed by the applicant, whereby the applicant agrees to indemnify and hold harmless the City of Hartford, its officers, elected officials, agents and employees from any loss, liability, or damage, including expenses and costs, for bodily or personal injury, and for property damage sustained by any person as a result or consequence of the installation, existence, use and/or maintenance of such newsrack(s) within the City of Hartford.

(3) Prior to the issuance of a newsrack permit and during the term of the permit a distributor shall obtain, maintain and provide proof of liability insurance coverage, in a form acceptable to the director of public works, issued by an insurance company licensed to do business in the State of Connecticut. Said insurance shall name the City of Hartford, its officers, elected officials, agents and employees as additional insureds. The minimum coverage of said insurance shall be one million dollars ($1,000,000.00) aggregate personal injury claim; five hundred thousand dollars ($500,000.00) aggregate property damage claim; and two hundred fifty thousand dollars ($250,000.00) per each occurrence.

(4) A fee of twelve dollars ($12.00) shall be charged for each proposed newsrack location in addition to a fee of twenty-five dollars ($25.00) per application.

(5) The director of public works shall approve or reject the proposed locations and shall be guided therein solely by the standards and criteria set forth or referenced in this article.

(6) The director of public works shall assign a number to each newsrack permit approved and issued. Permits shall be issued or denied within ten (10) business days after the application was filed.

(7) Such newsrack permits shall be conditioned upon the observance of the provisions of this article.

(8) Such permits shall be valid for three (3) years and shall be renewable pursuant to the procedures and regulations in place at the time of renewal and upon payment of a renewal fee of twelve dollars ($12.00) per location.

(Ord. No. 27-06, 11-27-06)

Sec. 31-271. Newsrack identification required.

Every distributor who places or maintains a newsrack within a public right-of-way in the City of Hartford shall have his/her permit number, name, address and telephone number affixed to an area of each newsrack where such information may be easily seen.
(Ord. No. 27-06, 11-27-06)

Sec. 31-272. Location, placement of and number of newsracks.

Any newsrack, which rests in whole or in part upon or over any part of a public right-of-way shall be located in accordance with the provisions of this section:

(1) No newsrack shall be used or maintained which projects onto, into, or over any part

of the roadway of any public street or which rests, wholly or in part upon, or over any portion of the roadway of any public street.

(2) No newsrack shall be bolted or otherwise attached to the sidewalk or to any fixture located in the public right-of-way, except to other newsracks, without the prior written approval of the director of public works. However, newsracks may be chained by means of a rubber or plastic coated chain except it may not be chained to a decorative fixture, a tree, or utility fixture that requires access for maintenance or service or any other fixture that would cause material public health or safety issues.

(3) Newsracks may be placed next to each other, provided that no group of newsracks shall extend for a distance of more than ten (10) feet along a curb, and a space of not less than three (3) feet shall separate each group of newsracks.

(4) No newsrack shall be placed, installed, used or maintained:

a. So as to violate any relevant provision of the Federal Americans with Disabilities Act (ADA) legislation, in existence or as amended from time to time;

b. Within five (5) feet of any marked crosswalk;

c. Within five (5) feet of the curb return of any unmarked crosswalk;

d. Within five (5) feet of any fire hydrant, fire call box, police call box, or other emergency facility;

e. Within five (5) feet of any driveway;

f. In such a location as to cause a material public safety issue;

g. Within such distance from a designated bus stop, bus bench or bus shelter so as to impede the entry or exit from a bus;

h. At any location where the clear sidewalk space for the passageway of pedestrians is restricted to impede pedestrian traffic as determined by the director of public works;

i. Within three (3) feet of any public area permanently improved with lawn, flowers, shrubs, trees or other landscaping, excluding unimproved tree belt less than four (4) feet wide, or within three (3) feet of any display window of any building abutting the sidewalk or in such a manner as to impede or interfere with the reasonable use of such window for display purposes;

j. Within two hundred fifty (250) feet, on the same side of the block, of any other newsrack containing the same issue or edition of the same publication, within a commercial or business district;

k. Within five hundred (500) feet of any other newsrack containing the same issue or edition of the same publication, within a residential district;

l. On any access ramp for disabled persons;

m. Within the limits of any designated loading zone; or

n. So as to interfere with access to or egress from a handicapped parking space.

(5) In determining which newsracks shall be permitted to remain if already in place, the director of public works shall be guided by the following criteria:

a. First priority shall be daily newspapers published five (5) or more days per week;

b. Second priority shall be newspapers published weekly; and

c. Third priority shall be all other publications.

d. Fourth priority shall be newsracks in place for at least five (5) years,

provided they comply with the requirements of section 31-270 and section 31-272(1)-(4) hereof.

(6) To the extent that this article operates to nearly or totally eliminate existing newsracks within a block in the downtown business district and along the major arteries, a news organization or distributor may appeal to the director of public works for an exception. The director of public works, may designate specific sidewalk locations for the placement of newsracks that would otherwise be prohibited by this article as long as they do not affect the safety of the public. These locations may be required to have modular newsracks or other such devices that would permanently identify and affix the newsrack location. This exception may be rescinded by the director of public works for good cause.

(Ord. No. 27-06, 11-27-06)

Sec. 31-273. Standards for maintenance and installation.

Any newsrack, which in whole or in part rests upon any public right-of-way, shall comply with the following standards:

(1) No newsrack shall exceed four (4) feet in height, two (2) feet in width, or two (2) feet in depth.

(2) Each newsrack that offers newspapers or other publications for a charge shall be equipped with a coin-return mechanism to permit a person using the machine to secure an immediate refund in the event the person is unable to receive the paid-for publication. The coin-return mechanism shall be maintained in good working order. This subsection shall not apply to newsracks for publications offered free of charge.

(3) Each newsrack shall have affixed to it in a readily visible place so as to be seen by anyone using it, a notice setting forth the name, address, and permit number of the distributor and the telephone number(s) to call to report a malfunction, or to secure a refund in the event of a malfunction, or to give notices provided for in this article. Such notices shall be maintained in good, legible order.

(4) Each newsrack shall be maintained in a neat and clean condition and in good repair at all times.

(5) Each newsrack shall be so weighted and balanced as to prevent it from being tipped by the opening of its door, or the impact of snow cast by a passing snowplow. Plastic newsracks shall be weighted internally to prevent their tipping or blowing over.

(6) Each newsrack shall be made of metal or hard plastic and shall be painted in a color scheme consisting of a dark background color such as navy blue, royal blue, black or brown with white lettering.

(7) No advertising shall be allowed on a newsrack other than that of the distributor/owner with respect to the contents thereof.

(Ord. No. 27-06, 11-27-06)

Sec. 31-274. Violations.

Upon determination by the director of public works that a newsrack has been installed, used or maintained in violation of the provisions of this article, an order to correct the offending condition shall be issued and sent via regular mail and certified mail with return receipt requested to the distributor of the newsrack. The order shall specifically describe the offending condition and suggest actions necessary to correct the condition, and shall apprise the distributor of its appeal rights pursuant to this article. Failure to properly correct the offending condition within ten (10) business days after the mailing date of the order or to appeal the order pursuant to section 31-275 of this article shall result in the offending newsrack being summarily removed and processed as unclaimed property. If the offending newsrack is not properly identified as to the distributor or is not a properly permitted newsrack, it shall be removed immediately by the director of public works and processed as unclaimed property. An impound fee of one hundred dollars ($100.00), shall be levied against each newsrack summarily removed for which the distributor shall be liable for payment.

The director of public works shall cause inspection to be made of a newsrack reinstalled after removal under this section. The distributor of the said newsrack shall be charged an inspection fee of twenty-five dollars ($25.00) for each newsrack so inspected.

Nothing contained in this article shall be interpreted to limit or impair the exercise by the City of Hartford of its police powers to remove any newsrack, which presents a clear and present danger of imminent personal injury or property damage to users of the public right-of-way.
(Ord. No. 27-06, 11-27-06)

Sec. 31-275. Appeals.

A person aggrieved by a finding, determination, notice, order or action taken under the provisions of this article may appeal and shall be apprised of his/her right to appeal to a hearing officer appointed by the mayor. An appeal must be filed within seven (7) business days after receipt of notice of any protested finding, determination, notice, order or action by filing with the hearing officer a letter of appeal stating therein the basis for the appeal. A hearing shall be held on a date not more than twenty (20) business days after receipt of the letter of appeal. The appellant shall be given at least five (5) business days notice of the time and place of the hearing. The hearing officer shall give the appellant, and any other interested party, a reasonable opportunity to be heard, in order to show cause why the finding, determination, notice, order or action should not be upheld. At the conclusion of the hearing, the hearing officer shall make a final and conclusive decision. This decision shall be immediately appealable to a court of competent jurisdiction.
(Ord. No. 27-06, 11-27-06)

Sec. 31-276. Existing newsracks.

This article shall apply to existing newsracks within the City of Hartford except that the distributors thereof shall have sixty (60) days within which to comply with its provisions or such additional time as may be allowed in the discretion of the Director of Public Works.
(Ord. No. 27-06, 11-27-06)

Sec. 31-277. Abandonment.

In the event a newsrack remains empty of current issues for a period of thirty (30) continuous days, the same shall be deemed abandoned, and may be removed by the director of public works.
(Ord. No. 27-06, 11-27-06)

Sec. 31-278. Severability.

If any section, subsection, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by any decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this article.
(Ord. No. 27-06, 11-27-06)

Sec. 31-279. Scope.

This article is not intended, and should not be construed, to affect the rights of any private property owner.
(Ord. No. 27-06, 11-27-06)

Secs. 31-280—31-300. Reserved.

ARTICLE X. COMPLETE STREETS POLICY

Sec. 31-301. Purpose, goals.

(a) A complete streets policy ensures that all public rights-of-way are designed and operated to provide a safe, accessible, connected means of transportation for all users including pedestrians, bicyclists, transit riders, motor vehicle drivers, emergency vehicle operators, commercial vehicle operators, and utilities, and for users of all ages and abilities, including children, senior citizens, and persons with disabilities.

(b) A complete streets policy contributes toward the safety, health, economic vitality, and the quality of life in a community by providing safe, convenient, efficient connections between home, school, work, recreation, and other destinations. It will improve the city's existing transportation network by facilitating a variety of transportation modes and by creating a connected,

comprehensive network. It will improve the city's utility distribution network and stormwater drainage system.

(c) The following principles underlie a complete streets policy:

(i) Ensure that the design of our city's rights-of-way, including sidewalks, buffer areas, parking lanes, travel lanes, bicycle lanes, street furniture, lighting, landscaping, and medians, complements and enhances the surrounding land use and neighborhood character;

(ii) Increase the efficiency of the road network by reducing traffic congestion through improved and expanded transportation options for transit-takers, bicyclists and pedestrians for purposes of recreation and commuting, which in turn will reduce reliance on the single passenger automobile as a mode of transportation;

(iii) Recognize that Hartford is made up of a dense downtown core surrounded by historically significant neighborhoods; ensure that these neighborhoods of the City of Hartford remain vibrant and livable through context-appropriate street design; and improve the aesthetics, safety and quality of life for residents and users;

(iv) Make the public right-of-way safer and more inviting for all users, including bicyclists, pedestrians, and those taking transit or driving, by reducing the frequency and severity of vehicular, bicycle and pedestrian-related crashes and by designing and managing streets to encourage travel at appropriate volumes and safe speeds that will achieve, to the extent possible, "Vision Zero" principles to eliminate traffic-related fatalities;

(v) Protect and preserve the environment of the City of Hartford by reducing the emission of greenhouse gases, reducing the quantity of and improving the quality of stormwater runoff, diminishing the heat island effect, and reducing the consumption of non-renewable energy resources;

(vi) Improve and enhance the health, wellness, and physical fitness of the city's residents by providing more safe, convenient and accessible opportunities for bicycling and walking;

(vii) Improve the city's quality of life and local economy by providing a high-quality multi-modal transportation network that connects neighborhoods to places of employment, shopping, entertainment, social gathering, outdoor seating, historic assets, off-road pathways (such as those in public parks), and recreation opportunities;

(viii) Create a standard process and shared understanding that directs decision-makers to consistently plan, design, construct, operate, and maintain streets to accommodate all users in order to allow them to travel safely and independently;

(ix) Further support the development of streets, canopy coverage, and neighborhoods as described and regulated in the city zoning regulations.

(Ord. No. 07-16, 8-8-16; Ord. of 10-21-24)

Sec. 31-302. Definitions.

For purposes of this article the following definitions apply:

Complete street means a public right-of-way that is planned, designed, constructed, operated, and maintained in such a way as to enable safe, comfortable and convenient access along and across the right-of-way by users of all ages and abilities.

Improvement project means new construction, reconstruction, resurfacing, rehabilitation, repair or maintenance of the existing transportation network located within the public right-of-way or that may affect the public right-of-way, whether such improvement project is funded wholly, partly, or not at all by the city. An improvement project does not include ordinary repair designed to

keep transportation network facilities in safe working condition, such as, but not limited to, mowing, cleaning, sweeping, spot repair, pothole filling, water, sewer and drainage or other utility installation or repairs.

Phase means planning, design, construction, operation, and maintenance.

Public right-of-way means an area, public or private, dedicated for use by pedestrians and vehicles. Public right-of-way includes thoroughfares such as streets, highways, bike paths and walkways and normally incorporates curbs, lawn strips, street trees, sidewalks, lighting, signage, drainage facilities, street furniture, and other similar features.
(Ord. No. 07-16, 8-8-16; Ord. of 10-21-24)

Sec. 31-303. Implementation.

The principles of a complete streets policy shall be followed by all city departments during any phase of any improvement project in a public right-of-way. To this end:

(a) City departments shall review, revise, and recommend changes to all existing policies, procedures, and design standards to ensure conformance with this complete streets policy.

(b) The department of public works shall coordinate with the Metropolitan District Commission, utility companies, developers, and other agencies as necessary to ensure that utility maintenance and repairs on public streets are done in accordance with this policy, provided there is no statute, settlement agreement, or judicial decision to the contrary.

(c) The city shall maintain a map of existing bicycle infrastructure, including at minimum bicycle lanes and cycle tracks, and make it available to the public.

(d) The city shall develop a "Complete Streets Plan" consistent with this Article that, shall include, but not be limited to setting minimum standards for various types of complete streets, identifying placement of bicycle facilities such as bicycle racks and corrals throughout the city, establishing a multi-year plan for a connected and safe pedestrian network, and advancing the intent of city ordinances and commissions relating to historic preservation and trees. The city shall promulgate this Complete Streets Plan prior to the next adoption of the next city plan of conservation and development following the effective date of this Article. In developing the Complete Streets Plan, the city shall review current design standards and standard operating procedures to ensure that they reflect the best and latest design standards available, and the Urban Street Design Guide of the National Association of City Transportation Officials published in 2013, as amended from time to time, shall serve as a primary guide for the review.

(e) An existing employee of the department of public works or the department of development services shall be designated by the Mayor as the Bike/Pedestrian Coordinator for the city. The Bike/Pedestrian Coordinator shall be responsible for managing the development of the Complete Streets Plan. There is established a Complete Streets Working Group, which shall advise the city on the development of the Complete Streets Plan as provided for in subsection (d), which shall be convened by the Bike/Pedestrian Coordinator, and which shall include representatives of the department of public works, department of development services, bicycle and pedestrian advocacy groups, and neighborhood resident(s).

(f) In recognition of the unique nature of the built environment, public input, and the needs of many users, individual street designs shall be sensitive to residential and business area context, address neighborhood needs, provide safety for and balance the needs of all users, and ensure a strong sense of place.

(Ord. No. 07-16, 8-8-16; Ord. of 10-21-24)

Sec. 31-304. Exceptions.

The city recognizes that, under certain circumstances, it may not be feasible or practical to implement any one (1) or more elements of the complete streets policy. In such case, a petition documenting the reason for the exception shall be made to the city engineer and the head of planning within the department of development services, who shall act on the request for an exception within thirty (30) days of receipt thereof. A failure to act on the petition within that time period will result in a granting of an exception. The exceptions to the application of the complete streets policy shall include the following:

(a) Existing public rights-of-way which are not being significantly altered or modified.

(b) Improvement projects on public rights-of-way where one (1) or more categories of users are prohibited, such as interstate freeways or pedestrian malls.

(c) Cost of complete streets design is excessively disproportionate to the need or probable use.

(d) A documented absence of current and future need such as no existing or planned transit service in and around the project.

(e) Routine maintenance of the transportation network that does not change the roadway geometry or operations, such as moving, sweeping, and spot repair.

(f) Where a reasonable and equivalent project along the same corridor is already programmed to provide facilities exempted from the project at hand by being under contract for construction, currently under bid review, or advertised for construction prior to the effective date of this ordinance.

(g) Facilities that are under the jurisdiction of another entity, such as the federal government or the State of Connecticut Department of Transportation, with such facilities being addressed on an individual basis to achieve improvements that advance the city's complete streets policy.

(Ord. No. 07-16, 8-8-16; Ord. of 10-21-24)

Sec. 31-305. Reporting.

The department of public works shall annually report to the Mayor on the progress and the implementation of the complete streets policy including, but not limited to, the following performance measures, but only to the extent such information is available to the department:

(a) Total miles of bike lanes/trails built or striped;

(b) Linear feet of new sidewalks;

(c) Number and location of ADA accommodations built in public sidewalks and streets;

(d) Number of transit accessibility accommodations built or installed;

(e) Number of new curb ramps installed on city streets;

(f) Number of new street trees planted and removed by the department of public works;

(g) Crosswalk and intersection improvements;

(h) Rate of crashes, injuries and fatalities by mode;

(i) Performance of the transportation and complete streets network, including speeds volumes and comparison to goals;

(j) Number and location of exemptions granted from this policy;

(k) Bicycle and pedestrian counts at key locations, which may be conducted by city employees or obtained from other governmental or private entities; and

(l) Linear feet of overhead utility lines eliminated by placing utility conduit underground; and

(m) Linear feet of impervious pavement and sidewalk replaced with permeable surfaces and other stormwater catchment measures installed.

(Ord. No. 07-16, 8-8-16; Ord. of 10-21-24)

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Chapter 32

TAXATION AND ASSESSMENTS FOR IMPROVEMENTS*

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***Charter references—**Adoption of budget, Ch. VI; borrowing, Ch. VII; when taxes due and payable, Ch. VIII, § 6; abatement of taxes and assessments, Ch. VIII, § 7; City Assessor as head of department of assessment, Ch. VIII, § 13; powers and duties of City Assessor, Ch. VIII, § 14; City Assessor to assess property, Ch. VIII, § 16; board of tax review, Ch. VIII, §§ 17, 18.

Cross references—City finances generally, § 2-481 et seq.; licenses and permits generally, Ch. 21; planning and development, Ch. 28.

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ARTICLE I. IN GENERAL

Sec. 32-1. Personnel of department of assessment.

The city assessor shall appoint such number of deputies and other employees necessary to perform the duties of the department as shall be approved by the city manager. He shall assign an employee of his office to the board of tax review as clerk, who shall perform such duties as the board shall direct.
(Code 1977, § 31-1)

Charter references—City assessor as head of department of assessment, Ch. VIII, § 14; assessment of property for taxation, Ch. VIII, § 16.

Cross reference—City departments generally, § 2-81 et seq.

Sec. 32-2. Assessment date.

The assessment date for the city for the fiscal year beginning July 1, 1973, shall be July 1, 1972, and for each succeeding fiscal year shall be the first day of October preceding such fiscal year.
(Code 1977, § 31-2)

State law reference—Uniform assessment date, G.S. § 12-62a(a).

Sec. 32-3. Installment collection of taxes.

All city taxes in each fiscal year shall be due and payable in equal quarterly installments on the first days of July, October, January and April, except that any tax of less than one hundred dollars ($100.00) shall be due and payable in full on July first, and except that any tax in excess of one hundred thousand dollars ($100,000.00) shall be due and payable in equal semiannual installments on July first and January first. If any installment of such tax shall not be paid on or before the first business day of the month next succeeding that in which it shall be due and payable, such installment shall immediately become delinquent and shall be subject to interest at the rate and in the manner provided for in the general statutes. Any person may pay the total amount of any such tax for which he is liable at the time when the first installment shall be payable and, if such payment shall be made on or before the first business day of August following the date when such first installment became payable, the collector may allow a discount in such amount, not to exceed two (2) percent of the total amount of such tax, as shall be provided for by the council upon recommendation by the city manager at the same meeting of the council at which the tax rate is fixed.
(Code 1977, § 31-3; Ord. No. 16-81, 5-26-81)

Sec. 32-4. Procedures for assessment of property.

It shall not be necessary for the owners of any form of taxable property in the city to file lists thereof with the city assessor, but the assessment of all such property shall be made directly by the city assessor or his authorized deputy and entered by him on lists the form of which has been approved by the state tax commissioner. The city assessor shall complete the lists of all taxable property on or before January thirty-first and such lists shall be open to inspection in his office. Nothing in this section shall be taken to limit the power of the assessor under the general statutes to require information from the owners of taxable property for the purpose of assessing the same.
(Code 1977, § 31-4)

Sec. 32-5. Board of tax review—Powers and duties.

(a) The board of tax review shall have the same powers and perform the same duties as boards of tax review of towns. Each year on the first business day of February the board of tax review shall, after giving at least ten (10) days' notice in the manner provided by law, meet to hear appeals as provided in this article, and such meeting may be adjourned from time to time to a day not later than the last business day of such month, on or before which day such board shall complete the duties imposed upon it. All such hearings shall be public, and an accurate record open to public inspection shall be kept of all the proceedings. Appeals to the board of tax review shall be in writing and under oath, but the procedure before such board shall be informal and of a nature calculated to effect justice as simply as possible. All changes made by the board shall be certified immediately upon the completion of its deliberations to the city assessor, whose duty it shall be to make such corrections upon the assessment list as the board may determine. No appeal from the doings of the city assessor and no application for reduction of amount of indebtedness from the list of any debtor shall be heard or entertained by the board of tax review

unless referred to it at its meeting held on the first business day of February or at some adjourned meeting held within twenty (20) days thereafter. The board shall meet at least three (3) times during each yearly session.

(b) The board of tax review shall meet at least once in September for the sole purpose of hearing appeals related to the assessment of motor vehicles.

(Code 1977, § 31-5)

Cross reference—City boards, commissions and committees generally, § 2-121 et seq.

Sec. 32-6. Same—Compensation for members.

Each member of the board of tax review shall receive compensation at the rate of one hundred fifty dollars ($150.00) per meeting when the board of tax review meets between the hours of 8:30 a.m. and 4:30 p.m., and such compensation shall be paid when the board of tax review has completed the duties imposed upon it by law. During a year of property-tax revaluation, this rate of compensation shall be set at two hundred dollars ($200.00) per meeting.

(Code 1977, § 31-6; Ord. No. 11-79, 3-12-79; Ord. No. 1-84, 12-23-84; Ord. No. 9-90, 3-12-90)

Charter reference—Compensation of board of tax review, Ch. VIII, § 17.

Sec. 32-7. Information required of merchants.

No person shall enter into or begin business as a wholesale or retail merchant and sell or exhibit for immediate sale any goods, wares or merchandise whatsoever in any building or part thereof, railroad car, motor or other vehicle, street or other place or structure in the city, unless he has filed with the city assessor a statement under oath, which shall be administered by the city clerk without charge, setting forth:

(1) The full name and permanent home and business address of the proprietor of the proposed business and of any local agent in charge thereof;

(2) The full address at which such business is to be carried on in the city;

(3) The nature of the business and date of the proposed commencement thereof, and the length of time during which the business is proposed to be conducted;

(4) The approximate value of the merchandise, fixtures and personal property owned by the proprietor;

(5) Whether the proprietor is an individual, partnership or corporation;

(6) If a corporation, the state of its incorporation and its principal place of business.

(Code 1977, § 31-7)

Sec. 32-8. Scope of section 32-7.

(a) The provisions of section 32-7 shall not apply to farmers selling their own produce, commercial travelers or sales agents selling to dealers in the usual course of business, licensed peddlers, persons selling livestock, food or food products, registered pharmacists having a state license to operate a drugstore, persons selling goods donated by the owners thereof, the proceeds of which are to be applied exclusively to any charitable or philanthropic purpose, persons conducting judicial or other sales under legal proceedings, or persons selling wholesale by sample for future delivery, or at circuses or other places of business duly licensed by the bureau of licenses and inspections, or at branch locations of stores already lawfully operated in the city, provided that the branch is operated by exactly the same proprietor, without any addition or change in the ownership, under the same name or trade name, and for the sale of the same general type of merchandise as such other or original store.

(b) No person who would otherwise be required to give the information required by section 32-7 shall be exempt from the provisions thereof by reason of his being temporarily associated with any local dealer, merchant or auctioneer, or by conducting a retail business in connection with or as a part of the business of any such local person.

(Code 1977, § 31-8)

Sec. 32-9. Personal property placed in storage; notice to assessor by warehouse owner.

Each warehouse owner shall submit to the assessor, on a form prescribed by the assessor, a list

of the names and addresses of all owners of personal property which is stored in such warehouses on October first of each year. Any person violating the provisions of this section shall be fined not more than one hundred dollars ($100.00).
(Code 1977, § 31-9)

Sec. 32-10. Transfer of merchandise, notice to assessor.

Any person conducting a business in the City who shall transfer the whole of a stock of merchandise and fixtures pertaining to the conduct of the business of the transferor, otherwise than in the regular prosecution of such business, shall file with the assessor, on a form prescribed by the assessor, a written statement signed by such person, or in his name by his attorney, setting forth the name and address of the party to whom such stock of merchandise and fixtures was sold, within ten (10) days of such sale. Any person violating the provisions of this section shall be fined not more than one hundred dollars ($100.00).
(Code 1977, § 31-10)

Sec. 32-11. Storage of goods, wares and merchandise by nonresident, notice to assessor.

Any nonresident individual or organization who has shipped goods, wares and merchandise into the City and placed them in a public commercial storage warehouse or on a public wharf shall certify by a written statement, on a form prescribed by the assessor, on October first of each year to the assessor whether such nonresident individual or organization has an office or place of business in this state and whether such goods, wares and merchandise placed in storage are in the original package. Any person violating the provisions of this section shall be fined not more than one hundred dollars ($100.00).
(Code 1977, § 31-11)

Sec. 32-12. Committee on abatement of taxes and assessments; authority to contract for housing for low-income persons.

(a) The committee on abatement of taxes and assessments referred to in chapter VIII, section 7 of the Charter, is hereby authorized and empowered to enter into a contract on behalf of the City on terms and conditions stated in subsection (b) of this section, with any owner of housing the construction or rehabilitation of which shall have been commenced after July 1, 1967, and which housing is solely for low- or moderate-income persons or families, as such housing is defined in G.S. § 8-202(c), for the abatement, in part or in whole, of real property taxes on such housing.

(b) Such contract for the abatement of real property taxes shall provide that:

(1) Moneys equal to the amount of such abatement shall be used solely in one (1) or more of the following ways to:

a. Reduce rents below the levels which would be achieved in the absence of such abatement,

b. Improve the quality and design of such housing,

c. Effect occupancy of such housing by persons and families of varying income levels within limits determined by the state commissioner of housing,

d. Provide necessary related facilities and services in such housing;

(2) Such abatement shall terminate at any time when such housing is not solely for low- or moderate-income persons or families or when such housing ceases to fulfill the purposes stated in paragraph (1) of this subsection or the purposes stated in G.S. §§ 8-215 and 8-216, as amended;

(3) The owner shall give all assurances required by the City manager and by the commissioner of housing, if applicable, that the amount of the tax abatement shall be used for the purposes stated in paragraph (1) of this subsection and stated in G.S. §§ 8-215 and 8-216, as amended;

(4) The owner shall permit the City manager and the commissioner of housing, if applicable, to inspect such premises for any reasonable purpose, including

determining that the premises are being used for the purposes stated in paragraph (1) of this subsection and stated in G.S. §§ 8-215 and 8-216, as amended;

(5) Such abatement shall be subject to annual review by the committee on abatement of taxes and assessments;

(6) Such abatement shall continue for not more than forty (40) consecutive fiscal years;

(7) In those instances where the City, as a condition precedent to granting tax abatement, will be seeking reimbursement from the state, the contract shall be conditional upon its approval by the commissioner of housing in order to qualify the City for reimbursement in the form of a grant-in-aid by the state, pursuant to G.S. §§ 8-215 and 8-216, as amended, for the amount of tax abatement provided under such contract. In those instances where tax abatement is to be granted unconditionally, the contract shall require that if the City thereafter seeks reimbursement from the state, the owner shall cooperate with the City in connection with its application for reimbursement by conforming to all of the provisions of this subsection (b);

(8) Such other terms and provisions not inconsistent with G.S. §§ 8-215 and 8-216, as amended;

(9) Such contract shall be subject to approval by the council.

(Code 1977, § 31-12; Ord. No. 18-79, 6-11-79)

Sec. 32-13. Certificates for refund of taxes.

Each certificate for refund of taxes erroneously collected by the City shall, after approval by the City manager and corporation counsel, be forwarded to the department of finance for payment.

(Code 1977, § 31-13)

Sec. 32-14. Tax lien certificates.

On or before June thirtieth of each year the tax collector shall take out and file in the office of the City clerk a certificate continuing the lien existing against any parcel of real estate for each unpaid tax, as provided in G.S. § 12-173. Such certificate shall provide a space and form for noting the release of such lien when the tax has been paid or otherwise legally disposed of. The city clerk shall incorporate such liens in the land records of the town and city by having such certificates bound into one (1) or more volumes on or before July thirty-first of each year.

(Code 1977, § 31-14)

Sec. 32-15. Realty acquired by city for taxes or assessments.

Whenever the City has acquired title to any real estate through the strict foreclosure of any tax or assessment lien, or through the conveyance of such title to the City to satisfy a claim for assessments or taxes, the tax collector shall report the acquisition of such real estate to the planning and zoning commission and shall submit to such commission an annual report of all real estate in his possession.

(Code 1977, § 31-15; Ord. No. 003-20, 6-22-20)

Sec. 32-16. Release of insurance proceeds subject to tax lien.

The tax collector is hereby authorized pursuant to this article to release or return to the insured any proceeds subject to a tax lien under the provisions of G.S. § 49-73a et seq., provided the insured enters into an agreement with the City to restore the affected premises to at least the same condition that they were prior to the time such lien arose. Such agreement shall be subject to the approval of the corporation counsel and shall contain such conditions necessary to guarantee performance of the obligation for restoration of the premises as the corporation counsel shall deem necessary.

(Code 1977, § 31-17; Ord. No. 18-80, § 1, 9-22-80)

State law reference—Authority, G.S. § 49-73f.

Sec. 32-17. Fixing of assessments in enterprise zones.

(a) Assessments on all real property which is improved and which is located in an enterprise zone as designated by the City and approved by

the commissioner of economic development, shall be fixed during the period when such area is designated as an enterprise zone. Such fixed assessment shall be for a period of seven (7) years from the time of such improvement and shall defer any increase in assessment attributable to such improvements according to the following schedule:

Year	*Percentage of increase deferred*
First	100
Second	100
Third	50
Fourth	40
Fifth	30
Sixth	20
Seventh	10

(b) Any fixed assessment on any residential property shall cease if for any:

(1) Residential rental property, any dwelling unit in such property is rented to any person whose income exceeds two hundred (200) percent of the median family income of the City; or

(2) Conversion condominium declared after the designation of the enterprise zone, any unit sold to any person whose income exceeds two hundred (200) percent of the median family income of the City.

(c) In the event of a general revaluation by the City in the year in which such improvement is completed, resulting in any increase in the assessment on such property, only that portion of the increase resulting from such improvement shall be deferred. In the event of a general revaluation in any year after the year in which such improvement is completed, such deferred assessment shall be increased or decreased in proportion to the increase or decrease in the total assessment on such property as a result of such revaluation.

(d) No improvements of any real property which qualifies as a manufacturing facility under G.S. § 32-9p(d) shall be eligible for any fixed assessment pursuant to this section.
(Code 1977, § 31-18; Ord. No. 15-82, 9-27-82)

Sec. 32-18. Tax relief for the elderly.

(a) Any person who is liable for taxes assessed on real property located in the City, which real property is occupied by such person as his personal residence, whether such person is an owner of the real property or is liable for taxes therein under the provisions of G.S. § 12-48 as a tenant for life or for a term of years, shall be allowed to pay said taxes quarterly without interest or penalty and entitled to tax relief in the form of a tax credit, provided that the:

(1) Person is sixty-five (65) years of age or over, or his spouse is sixty-five (65) years of age or over and resides with such person, or the person is sixty (60) years of age or over and the surviving spouse of a taxpayer who would have qualified for tax relief under this program at the time of his death;

(2) Person has been a resident of the City of a period of one (1) year immediately preceding the application for relief;

(3) Property for which the tax credit is claimed is the legal domicile of such person and is occupied by such person for at least one hundred eighty-three (183) days of each year;

(4) Person's qualifying income individually, if unmarried, during the calendar year preceding the claim for tax relief, shall not exceed seventy thousand nine hundred fifty dollars ($70,950.00) or jointly, if married, not exceed eighty-one thousand fifty dollars ($81,050.00).

Qualifying income is defined as adjusted gross income (Internal Revenue Code guidelines) plus tax-exempt interest, dividend exclusions, gifts, bequests, social security benefits, railroad retirement benefits, and income from all other tax-exempt sources, but not including any credits received under this program;

(5) Person shall have applied for property tax relief under any other existing state benefits programs for which he may be eligible; and

(6) Person makes application for tax relief afforded under this program biennially with the City Assessor no earlier than February first, nor later than May fifteenth. Person may make application to the City Assessor prior to August fifteenth of the claim year for an extension of the application period. The City Assessor may grant such extension in the case of extenuating circumstance due to illness or incapacitation as evidenced by a certificate signed by a physician or an advanced practice registered nurse to that extent, or if the secretary determines there is good cause for doing so.

(b) The amount of the tax credit afforded under this program shall be one thousand dollars ($1,000.00) for a residential property of three (3) dwelling units or less and one thousand five hundred dollars ($1,500.00) for a residential property of four (4) dwelling units. In any case where title to such real property is recorded in the names of more than one (1) taxpayer, the amount of credit shall be provided in accordance with the fractional share such eligible owner holds in the property.

(c) The City Assessor is hereby authorized to implement this program, and to adopt such rules and regulations as may be necessary for the proper administration of this program. He may designate agents to act in his name in collecting applications for this program.

(d) The City Assessor shall determine eligibility for tax relief under this program. He shall compute the amount of credit due each qualified taxpayer, make proper record thereof, and inform the City tax collector of his determination.

(e) If any person entitled to the tax credit afforded under this program dies or sells the real property on which the tax credit is granted, any credit previously allowed shall be disallowed to the extent of the portion of the fiscal year remaining following the date of death or sale of the property, except where such death or sale results in a surviving spouse, otherwise eligible, acquiring the interest formerly held by the taxpayer.

(f) The tax relief afforded under this program to a taxpayer in no event shall, together with any relief received by such residents under the provisions of G.S. §§ 12-129b to 12-129d inclusive, 12-129h, and 12-170aa, exceed, in the aggregate, seventy-five (75) percent of the tax which would, except for G.S. §§ 12-129b to 12-129d inclusive, 12-129h, and 12-170aa, and this program, be laid against such taxpayer.

(g) The City hereby waives any right to establish a lien which it may have under the provisions of G.S. § 12-129n(f).

(h) Affidavits, applications or other documents presented in support of the application for tax relief shall remain confidential and shall not be disclosed except in connection with an investigation of fraud or other misrepresentation as to eligibility.

(i) The total of all credits granted under the provisions of this program shall be limited to ten (10) percent of the total real property tax levied in the City in the preceding fiscal year. If the total of all credits which would be granted except for this section exceeds an amount equal to ten (10) percent of the total real property tax levied in the City in the preceding fiscal year, then each such credit shall be reduced on a pro rata basis so that the total credits equal ten (10) percent of the total real property tax assessed.

(j) This section shall apply for taxes due on the list of October 1, 2025, only.

(Code 1977, § 31-19; Ord. No. 10-83, §§ A—J, 3-14-83; Ord. No. 4-84, 2-14-84; Ord. No. 1-85, 1-16-85; Ord. No. 2-85, 1-16-85; Ord. No. 38-86, 11-24-86; Ord. No. 2-88, 1-11-88; Ord. No. 38-88, 6-27-88; Ord. No. 4-89, 2-14-89; Ord. No. 6-90, 3-12-90; Ord. No. 25-90, 6-11-90; Ord. No. 3-91, 1-28-91; Ord. No. 1-92, 1-13-92; Ord. No. 45-92, 12-14-92; Ord. No. 15-94, 2-28-94; Ord. No. 1-95, 1-23-95; Ord. No. 3-96, 1-22-96; Ord. No. 61-96, 12-16-96; Ord. No. 2-98, 1-12-98; Ord. No. 1-99, 1-11-99; Ord. No. 1-00, 1-24-00; Ord. No. 1-01, 1-25-01; Ord. No. 2-02, 1-14-02; Ord. No. 63-02, 1-13-03; Ord. No. 01-04, 1-12-04; Ord. No. 20-04, 12-13-04; Ord. No. 01-06, 1-9-06; Ord. No. 01-08, 1-14-08; Ord. No. 03-09, 2-9-09; Ord. No. 01-10, 1-11-10; Ord. No. 01-11, 1-10-11; Ord. No. 05-12, 4-9-12; Ord. No. 02-13, 2-25-13; Ord. No. 02-14,

3-24-14; Ord. No. 04-15, 3-23-15; Ord. No. 05-16, 5-23-16; Ord. No. 13-17, 3-27-17; Ord. No. 02-18, 4-9-18; Ord. No. 04-19, 4-8-19; Ord. No. 001-20, 3-9-20; Ord. No. 01-21, 2-8-21; Ord. of 5-23-22(1); Ord. of 6-27-22(1); Ord. of 1-23-23(4); Ord. of 6-26-23(2); Ord. of 2-13-24(2); Ord. of 1-27-25; Ord. of 1-26-26)

Sec. 32-19. Waiver of tax bills of five dollars or less.

(a) If after a property subject to taxation is assessed and a tax levied thereon it is determined that the correct amount of the tax is less than five dollars ($5.00), collection of the tax shall be waived. If the tax is reduced by payment to less than five dollars ($5.00), the balance remaining shall not be waived.

(b) This section shall apply to the taxes coming due with respect to the October 1, 1984, grand list and to taxes coming due on subsequent grand lists.
(Code 1977, § 31-20; Ord. No. 21-85, §§ 1, 2, 4-8-85; Ord. No. 2-86, 2-10-86; Ord. No. 3-86, 2-10-86)

Sec. 32-20. Certain ambulance-type motor vehicles and motor vehicles owned by and modified to accommodate persons with disabilities exempt from personal property taxes.

Commencing with the first assessment date following December 22, 1986, any ambulance-type motor vehicle which is used exclusively for the purpose of transporting any medically incapacitated individual, except any such vehicle used to transport any such individual for payment, shall be exempt from personal property taxation. No such vehicle shall be exempt from personal property taxation on any assessment date unless the owner thereof files with the assessor a sworn statement attesting that such vehicle is used exclusively for the purpose of transporting medically incapacitated individuals and that such transportation is without payment. Such sworn statement shall be filed with the assessor on or before November first following the assessment date for which the exemption is claimed.

In accordance with G.S. § 12-81c commencing with the 2013 Grand List, any motor vehicle owned by a person with disabilities, or owned by the parent or guardian of such person, which vehicle is equipped for purposes of adapting its use to the disability of such person shall be exempt from personal property taxation.

A "motor vehicle modified to accommodate a person with disabilities" shall be defined as any production vehicle which has been altered or reconfigured or has undergone mechanical or structural changes which permit an individual with a disability to safely drive or ride as a passenger.

No such vehicle shall be exempt from personal property taxation on any assessment date unless the owner thereof files with the assessor a sworn statement describing the vehicle, the modifications to accommodate the owner's or the owner's spouse, child or ward and the cost of modifications. Such sworn statement shall be filed with the assessor on or before November first following the assessment date for which the exemption is claimed.
(Code 1977, § 31-21; Ord. No. 39-86, 12-22-86; Ord. No. 14-13, 11-25-13)

Editor's note—Ord. No. 14-13, adopted Nov. 25, 2013, changed the title of § 32-20 from "Certain ambulance-type motor vehicles exempt from personal property taxes" to "Certain ambulance-type motor vehicles and motor vehicles owned by and modified to accommodate persons with disabilities exempt from personal property taxes."

Sec. 32-21. Reduction in assessment for home improvements.

(a) The assessment on residential real property, which has undergone improvements as approved by and with the assistance of the Connecticut Housing Finance Authority under the Urban Rehabilitation Homeownership Program, shall be reduced for a period of five (5) years from the time such improvement have been completed, pursuant to P.A. 01-9, Section 81, provided all other criteria established in this section are met.

(b) Before such real property will be considered for a deferral under this section, a "request for assessment deferral" application shall be filed with the department of assessment that shall include:

(1) A description of the parcel;

(2) A description of the planned improvements thereon and intended use;

(3) An itemized estimate of the cost of those improvements;

(4) A timetable detailing the schedule of improvements, with the completion of such rehabilitation by a date fixed; and

(5) The inspection and certification by the local building official that the completed rehabilitation is in conformance with such provisions of the state building and health codes and the local housing code as may apply.

(c) For a building to be considered for an assessment deferral under this section, the following criteria must be met:

(1) Must be one-to-four family, residential real property.

(2) No building shall be eligible unless appropriate building permits have been acquired.

(3) Any rehabilitated structure must meet all zoning regulations of the planning and zoning commission.

(4) Within seven (7) days of completion of improvements, the assessor must be notified.

(5) The applicant must continue to reside at the property during the period of said deferral.

(d) For purposes of revaluation, should a general revaluation happen in the year in which such rehabilitation is completed, resulting in an increase in the assessment of such property, only that portion of the increase resulting from such rehabilitation shall be deferred; and in the event of a general revaluation in any year after the year in which such rehabilitation is completed, such deferred assessment shall be increased or decreased in proportion to the increase or decrease in the total assessment on such property as a result of such general revaluation.
(Ord. No. 9-01, 9-24-01; Ord. No. 003-20, 6-22-20)

Sec. 32-22. Deferral of assessment for home improvements.

(a) Any increase in the assessment of residential real property attributable to the rehabilitation or improvement thereof with assistance provided by the Connecticut Housing Finance Authority under the Urban Rehabilitation Homeownership Program shall be deferred for a period of five (5) years from the date such rehabilitation or improvement is completed, in accordance with Public Act 01-9, section 81, provided that all other criteria established in this section are met.

(b) To be eligible for such deferral, real property owners must complete and file with the department of assessment an "assessment deferral application", which shall include:

(1) A description of the property including address, map, lot and block number;

(2) A description of the planned improvements thereon and intended uses;

(3) An itemized estimate of the cost of the said improvements; and

(4) A timetable detailing the schedule of improvements with the completion of such rehabilitation by a date fixed.

(c) As a prerequisite for consideration of a building for assessment deferral, the following criteria must be met:

(1) Such property must be classified as residential, owner-occupied one-to-four family property;

(2) Appropriate permits must be acquired;

(3) Rehabilitated building must meet all zoning regulations of the planning and zoning commission; and

(4) The assessor must be notified of completion of rehabilitation within seven (7) days thereof.

(d) Upon approval of the said application, the property owner shall enter into an agreement with the City of Hartford, which agreement shall provide for:

(1) The completion of such rehabilitation by a date fixed;

(2) The continued residence of the property owner in such property during the period of said deferral; and

(3) The inspection and certification by the local building official that the completed rehabilitation would be in conformance with such provision so the state building code and the local housing code as may apply.

(e) For purposes of revaluation, should a general revaluation be conducted in the year in which such rehabilitation is completed, resulting in an increase in the assessment of such property, only that portion of the increase resulting from such rehabilitation shall be deferred; and in the event of a general revaluation in any year after the year in which such rehabilitation is completed, such deferred assessment shall be increased or decreased in proportion to the increase or decrease in the total assessment on such property as a result of such general revaluation.

(f) At the end of the five-year period of assessment deferral, the subject residential property shall be assessed in accordance with G.S. § 12-40 et seq.
(Ord. No. 15-01, 10-9-01; Ord. No. 003-20, 6-22-20)

Sec. 32-23. Created.

Pursuant to the authority granted in G.S. ch. 203, § 12-81x.
(Ord. No. 01-09, 1-26-09)

Sec. 32-24. Tax relief for surviving spouses of police officers and firefighters.

(a) Any person who is liable for taxes assessed on real property located in the City, which real property is occupied by such person as his personal residence, whether such person is an owner of the real property or is liable for taxes therein under the provisions of G.S. 12-48 as a tenant for life or for a term of years shall be entitled to tax relief in the form of a tax credit, provided that the:

(1) Person is the surviving spouse of a police officer or firefighter who dies while in the performance of such officer's or firefighter's duties.

(b) The amount of the tax credit afforded under this program shall be five hundred dollars ($500.00) per property. In any case where title to such real property is recorded in the names of more than one (1) taxpayer, the amount of credit shall be provided in accordance with the fractional share such eligible owner holds in the property.

(c) The City Assessor is hereby authorized to implement this program, and to adopt such rules and regulations as may be necessary for the proper administration of this program. He may designate agents to act in his name in collecting applications for this program.

(d) The City Assessor shall determine eligibility for tax relief under this program. He shall compute the amount of credit due each qualified taxpayer, make proper record thereof, and inform the City tax collector of his determination.

(e) The tax relief afforded under this program to a taxpayer in no event shall, together with any relief received by such residents under other tax relief provisions, exceed, in the aggregate, seventy-five (75) percent of the tax which would be laid against such taxpayer.

(f) Affidavits, applications or other documents presented in support of the application for tax relief shall remain confidential and shall not be disclosed except in connection with an investigation of fraud or other misrepresentation as to eligibility.

(g) The total of all credits granted under the provisions of this program shall be limited to ten (10) percent of the total real property tax levied in the City in the preceding fiscal year. If the total of all credits which would be granted except for this section exceeds an amount equal to ten (10) percent of the total real property tax levied in the City in the preceding fiscal year, then each such credit shall be reduced on a pro rata basis so that the total credits equals ten (10) percent of the total real property tax assessed.
(Ord. No. 01-09, 1-26-09)

Sec. 32-25. Waiver of addition to assessments.

In accordance with G.S. § 12-119a(a), the City Assessor is hereby authorized to waive the twenty-

five (25) percent penalty only for those personal property tax declarations that were filed on time but due to neglect or mistake were improperly signed and/or notarized. This waiver is granted for the reason that the personal property tax declarations were received by the city in a timely manner and any defect was due to neglect or mistake by failure to sign and/or notarize the personal property tax declaration; the City assessor shall provide for the publication of the list of all such waivers that are granted by this section. This section shall be applicable to the October 1, 2013 Grand List and subsequent grand lists.
(Ord. No. 13-13, 11-25-13)

Sec. 32-26. Authority to waive income and expense statement penalty.

(a) In accordance with G.S. § 12-63c(a), the Owner of property used primarily for the purpose of producing rental income shall annually submit to the Assessor not later than the first day of June the best information disclosing the actual rental and rental-related income and operating expenses applicable to such property and submission of such information may be required whether or not the city is conducting a revaluation of all real property pursuant to G.S. § 12-62.

(b) Any owner of such real property required to submit such information to the City of Hartford Assessor, in accordance with G.S. § 12-63c(a), for any assessment year, who fails to submit the information or submits incomplete or false information shall be subject to a penalty equal to a ten (10) percent increase in the assessed value of such property for that assessment year.

(c) In accordance with G.S. § 12-63c(d), the City Assessor or the Board of Assessment Appeals for good cause shown may waive the ten (10) percent assessment penalty that is imposed if the owner of such real property does not disclose a complete rental income and operating expense statement by the first day of June in any taxable year.
(Ord. 15-13, 11-25-13)

Sec. 32-27. Exemption from taxation of certain real property.

(a) Commencing with the first assessment date following the effective date of this provision, any real property (or applicable portion thereof) that is (a) owned by an entity exempt from taxation for federal income tax purposes as a labor organization under Section 501(c)(5) of the Internal Revenue Code and (b) leased to an entity that is (i) exempt from taxation for federal income tax purposes under Section 501(c)(3) of the Internal Revenue Code and (ii) also subject to the Taft-Hartley Act (29 U.S.C. Sections 401-531), shall be exempt from real property taxation provided that such property is used exclusively for educational purposes related to the construction industry.

(b) Any property owner claiming exemption under this provision shall provide such evidence of initial and continuing eligibility as the Assessor may require.
(Ord. No. 15-15, 9-14-15)

Sec. 32-28. Tax deferral for federal employees.

It is Hereby found and declared that the partial shutdown of the Federal Government, which began on December 22, 2018, has caused many federal workers and their families enormous hardship as a result of the failure of the Federal Government to compensate them for either time worked or for those days they have been furloughed. As a result, the Connecticut General Assembly has passed and the Governor has signed legislation that authorizes municipalities to establish a deferment program of taxes on real property, personal property or motor vehicles due and owed during the period of the partial shutdown.

(a) "Affected employee" means a federal employee who, during the shutdown, is (A) a resident of the State of Connecticut and a taxpayer in the City of Hartford, and (B) required to work as a federal employee without pay or furloughed as a federal employee without pay.

(b) Upon the passage of this section, the Tax Collector shall not charge or collect interest on any tax, rate charge or assessment or part thereof that is payable by an affected employee and which tax became due during the period when such individual was an affected employee.

(c) Each affected employee seeking a deferment of taxes due and owed shall provide proof of their status as an affected employee. Such proof may include a paystub or bank statement, a federal employee identification card, the federal tax identification number of the employee's employer and a sworn affidavit from such employee indicating that such employee (i) is currently a federal employee residing in this state, (ii) may be eligible to receive back-pay when the shutdown ends, and (iii) shall present the tax bill for which the employee is seeking a deferral of payment.

(d) The Tax Collector may from time to time, but not less than once every thirty days require the recertification of individuals as affected employees.

(e) Each tax, rate, charge or assessment deferred under these provisions shall be due and payable without interest or penalty not later than sixty days after the date on which an individual is no longer and affected employee. Thereafter, any portion of the tax, rate, charge or assessment or installment or portion thereof which remains unpaid and all interest and penalties otherwise provided by law shall apply retroactively to the original due date for the tax, rate, charge or assessment or installment or portion thereof. All provisions of the general statutes relating to continuing, recording and releasing property tax liens and the precedence and enforcement of taxes, rates, charge and assessments shall remain applicable to any deferred tax, rate, charge or assessment or installment or portion thereof.

(f) Nothing in this section shall affect interest or penalties on, or lien rights or collection of, any tax, rate, charge or assessment due before December 22, 2018, or after the date on which an individual is no longer an affected employee.

(Ord. No. 02-19, 3-25-19)

Editor's note—Ord. No. 02-19, adopted March 25, 2019, enacted provisions designated as § 32-41. Inasmuch as the section so numbered already exists, said provisions have been redesignated as § 32-28 at the discretion of the editor.

Sec. 32-29. [Motor vehicle schedule of depreciation.]

In accordance with House Bill No. 7067, beginning with the October 1, 2024 Grand List, the City shall apply the modified schedule of depreciation with respect to motor vehicles based upon the manufacturer's suggested retail price of such motor vehicles, provided no motor vehicle shall be assessed at an amount less than five hundred dollars, as follows:

Age of Vehicle	*Percentage of Manufacturer's Suggested Retail Price*
Up to year one	Ninety per cent
Year two	Eighty-five per cent
Year three	Eighty per cent
Year four	Seventy-five per cent
Year five	Seventy per cent
Year six	Sixty-five per cent
Year seven	Sixty per cent
Year eight	Fifty-five per cent
Year nine	Fifty per cent
Year ten	Forty-five per cent
Year eleven	Forty per cent
Year twelve	Thirty-five per cent
Year thirteen	Thirty per cent
Year fourteen	Twenty-five per cent
Years fifteen to nineteen	Twenty per cent
Years twenty and beyond	Not less than five hundred dollars

(Ord. of 3-24-2025)

Secs. 32-30—32-40. Reserved.

ARTICLE II. ASSESSMENTS FOR IMPROVEMENTS

Sec. 32-41. Alternative use of statutory procedures.

In lieu of the procedures provided in sections 32-42 through 32-48 whenever real property is to be acquired in connection with any public work or improvement, the provisions for the acquisition of such property as provided in Chapter 130 of the General Statutes, may be followed.
(Code 1977, § 31-26)

Sec. 32-42. Initiation of work by council.

Every resolution of the council of intention to proceed with a public work or improvement, as required by Chapter XI, Section 3 of the Charter, shall also state briefly and intelligibly the general nature and give a description of the proposed work or improvement, but need not contain definite measurements, courses or termini. Such resolution may embrace one (1) or more of the works and improvements authorized by the Charter and where a new street or alteration of an established street is involved, shall designate the building lines of such street.
(Code 1977, § 31-27)

Sec. 32-43. Initiation of work by property owners.

A public work or improvement for the cost of which, in whole or in part, benefits are to be assessed by the City may be initiated by the council by petition signed by any person having any interest in land which may be affected by such public work or improvement. Such petition shall state the general nature and give a description of the proposed public work or improvement but need not contain definite measurements, courses or termini. Such petition shall further state the estimated cost of such public work or improvement and, as well as the petitioner is able to name them, the names of all of the individual property owners whose lands may be affected by such public work or improvement.
(Code 1977, § 31-28)

Sec. 32-44. Assessments where benefits and damages equal and nominal—Notice to property owners.

When, in connection with the opening, widening or changing of the grade of any street, or the establishing or altering of curb, sidewalk, building, veranda, porch or bay window lines, the amounts of benefits and damages as assessed by the director of public works are equal, and neither exceeds five dollars ($5.00), the director of public works shall cause his assessment of benefits and damages to be published as provided in section 2-4 once in a daily newspaper of general circulation in the City, and shall mail, postage paid, a notice of such assessment to each owner of property affected thereby as the names of such owners appear on the records of the City Assessor; provided, however, that failure on the part of any owner of property affected by such assessment to receive such notice shall not affect the validity of the assessment or of any proceedings relating thereto. Such notice shall provide a place and time, not less than ten (10) days after the publication of such notice, at which the council or a committee thereof shall hear the owners of property affected by such assessment.
(Code 1977, § 31-29)

Charter reference—Council to provide procedure, Ch. XI, § 4.

Sec. 32-45. Same—Notice to council or committee thereof.

The director of public works shall cause a copy of the notice required in section 32-49 to be served upon the council or the committee thereof which will conduct the hearing upon such assessment of benefits and damages by leaving such copy with the City clerk.
(Code 1977, § 31-30)

Sec. 32-46. Same—Hearing; final action by council.

The council, or a committee thereof, shall conduct a hearing upon the assessment of benefits and damages under this article at the time and place specified pursuant to this article. The council shall thereafter finally act upon such assessment by accepting the assessment or by making such changes in the amounts thereof as it may deem advisable, and shall notify the director of public works of its final action thereon.
(Code 1977, § 31-31)

Sec. 32-47. Same—Final assessment and notice thereof.

The director of public works shall, pursuant to this article, assess the benefits and damages in accordance with the action of the council thereon, and shall file a certified copy of such final assessment with the City clerk. The city clerk shall mail, postage paid, a notice of such assessment to each owner of land affected thereby, as the name of such owner appears on the records of the City Assessor. However, failure on the part of any owner of land to receive such notice shall not affect the validity of the assessment or of any proceedings relating thereto.
(Code 1977, § 31-32)

Sec. 32-48. Same—Action of council final.

The action of the council taken as provided in section 32-46 shall be final.
(Code 1977, § 31-33)

Sec. 32-49. Report of assessments; collection; discharge of lien.

All assessments for benefits by reason of public works and improvements under this article shall be reported by the director of public works to the tax collector, who shall enter the assessment in convenient form in a book kept for that purpose. Such assessments shall be collected only by or under the direction of the tax collector, and he alone shall be authorized and empowered to discharge of record any liens which are filed to secure them.
(Code 1977, § 31-34)

Sec. 32-50. Interest on unpaid assessments.

Any unpaid assessment made for public improvements under this article in the City shall bear interest at the rate of six (6) percent per annum, from the time a notice of lien therefor has been filed by the director of public works

with the City clerk, until such assessment is paid. Such interest shall be added to and made collectible as a part of such assessment.
(Code 1977, § 31-35)

Sec. 32-51. Sale of land to satisfy unpaid assessments.

Where assessments for public improvements are made by the director of public works pursuant to this article directly upon any land, such land shall be liable to be sold to pay such assessments unless such assessments are paid within six (6) months after public notice thereof has been given. The council shall give fifteen (15) days' notice by publication in accordance with section 2-4 of the amount of any such assessment and the time and place where such sale will be held. At the time and place named in such notice, the City treasurer may sell such land, or so much thereof as may be necessary to pay such assessment and the expense of the sale, and give a title thereto to the purchaser as provided in the case of a sale of land for taxes. The city treasurer shall pay the amount of such assessment to the tax collector and shall pay the balance of the purchase money, if any, to the owner of the land sold, or shall otherwise dispose of such balance as the law may direct.
(Code 1977, § 31-36)

Sec. 32-52. When assessment lien to be foreclosed.

Assessment liens under this article shall be foreclosed in the name and behalf of the City by the corporation counsel before the court having jurisdiction in the same manner that a mortgage may be foreclosed, unless the assessment is paid.
(Code 1977, § 31-37)

Sec. 32-53. Deferred payments of assessments.

The owner of any land and buildings assessed for benefits pursuant to this article by reason of public works and improvements shall pay for such assessment within thirty (30) days of the date of notice of such assessment or shall notify the tax collector within that time of his election to pay the amount so assessed in four (4) equal installments. The first installment shall be paid within such period of thirty (30) days, the second installment within one (1) year from the date of such notice, the third installment within two (2) years from the date of such notice, and the fourth and final installment shall be paid within three (3) years from the date of such notice. All assessments unpaid after thirty (30) days from the date of such notice and all unpaid balances in the case of installment payments which are delinquent shall bear interest at the rate of six (6) percent per annum from the date on which they become delinquent.
(Code 1977, § 31-88)

Sec. 32-54. Procedure for setting property tax assessment for the assessment year commencing October 1, 2006.

Pursuant to Section 2 of Public Act 06-183, the following described property tax system is hereby adopted by the City of Hartford, effective October 1, 2006, the City Assessor having determined that, without implementation of such property tax system, the share of the grand levy paid by the classes of apartment property and residential property in the City will increase by twenty (20) percent or more over the preceding year.

(1) Definitions. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Apartment property means a building containing five (5) or more dwelling units used for human habitation, the parcel of land on which such building is situated, and any accessory buildings or other improvements located on such parcel;

Base year means the fiscal year immediately preceding the fiscal year in which a municipality levies property taxes on the basis of assessments derived from a revaluation implemented pursuant to section 12-62 of the general statutes; and

Residential property means a building containing four (4) or fewer dwelling units used for human habitation, the

parcel of land on which such building is situated, and any accessory buildings or other improvements located on such parcel.

(2) Beginning in assessment year 2006, the assessor shall determine a rate of assessment for apartment property and residential property for the assessment year in which a revaluation is effective that will have the effect of increasing the average property tax as a result of revaluation, for the property classes composed of apartment property and residential property, by three and one-half (3½) percent over the property tax for said property classes in the base year. Tax increases on apartment property and residential property provided for in this subsection shall be used to reduce, in the amount derived from such increases, the surcharge under G.S. § 12-62d. The assessor shall recalculate the rate of assessment for apartment property and residential property for each of the four (4) assessment years following the assessment year in which the provisions of this section become effective such that the average property tax for the property classes composed of apartment property and residential property increases as a result of said revaluation by three and one-half (3½) percent over the average property tax provided by this subsection for such property classes in each prior fiscal year. Notwithstanding the provisions of G.S. § 12-62a(b), the assessor shall establish a rate of assessment for all real property other than apartment property and residential property, to effectuate the provisions of this section.

(3) Subject to the apartment and residential property tax relief described in subsection (2) of this section and concurrent with the assessment year in which a municipality adopts and implements the property tax system under this section, the City of Hartford shall begin to phase out proportionately the impact of the property tax surcharge under G.S. § 12-62d to the extent necessary to accomplish the purposes of this section. For the assessment year commencing October 1, 2010, such property tax surcharge shall not exceed seven and one-half (7½) percent of the property tax for all property other than apartment property and residential property.

(Ord. No. 28-06, 11-27-06)

Secs. 32-55—32-59. Reserved.

ARTICLE III. ADMISSIONS SURCHARGE

Sec. 32-60. Definition.

Admission surcharge means the amount paid, whether in the form of a ticket price, license fee, skybox, luxury suite or club seat rental charge or purchase price, or otherwise, for the right or privilege to have access to the Hartford Yard Goats Stadium, known as Dunkin' Donuts Park, exclusive of any charges for instruction, and including any preferred seat license fee or any other payment required in order to have the right to purchase seats or secure admission to any event at said location.

(Ord. No. 03-17, 1-30-17)

Sec. 32-61. Surcharge.

(a) Pursuant to Sec. 185 and Sec. 186 of Public Act No. 16-3 of the May Special Session of the General Assembly, there is hereby imposed a ten (10) percent admission surcharge, as defined in Sec. 32-60, to all events at Dunkin' Donuts Park, except when all of the proceeds from an event inure exclusively to an entity which is exempt from federal income tax under the Internal Revenue Code, provided such entity actively engages in and assumes the financial risk associated with the presentation of such event.

(b) The surcharge shall be imposed on the facility at which such event takes place, and reimbursement for the surcharge shall be collected from the purchaser upon payment of the admission charge.

(c) The surcharge, when added to the admission charge, shall be a debt from the purchaser to the facility and shall be recoverable at law. The facility shall remit the total amount of all surcharges imposed pursuant to this Ordinance to the City of Hartford in accordance with G.S. § 12-581. The surcharge hereby imposed shall be subject to the provisions of G.S. Ch. 226a in the same manner as a tax imposed pursuant to said chapter.
(Ord. No. 03-17, 1-30-17)

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Chapter 33

VEHICLES FOR HIRE*

Article I. In General

Secs. 33-1—33-25. Reserved.

Article II. Taxicabs

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Secs. 33-27—33-29. Reserved.
Sec. 33-30. Driver's license required.
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Sec. 33-37. Transportation of persons with contagious diseases.
Secs. 33-38—33-60. Reserved.

Article III. Transit District

Sec. 33-61. Established.
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Sec. 33-63. Compliance with statutory requirements.

Article IV. Pedal Cabs

Sec. 33-64. Definitions.
Sec. 33-65. License and registration required.
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Sec. 33-68. Equipment and operation.
Sec. 33-69. Revocation of registration or license.
Sec. 33-70. Penalties.
Sec. 33-71. Effective date.

*__Cross references—__Assemblies, festivals and parades, Ch. 7; civic center and coliseum authority, Ch. 10; maintenance of food vendor vehicles, § 14-7; standards for food vendor vehicles, § 14-8; licenses and permits generally, Ch. 21; motor vehicles and traffic, Ch. 22; planning and development, Ch. 28; police, Ch. 29; streets and sidewalks, Ch. 31.

ARTICLE I. IN GENERAL

Secs. 33-1—33-25. Reserved.

ARTICLE II. TAXICABS*

Sec. 33-26. Defined.

The word "taxicab" means any public service motor vehicle operated upon any street or on call or demand accepting or soliciting passengers indiscriminately for transportation for hire between such points along the streets as may be directed by the passengers so being transported; provided that nothing in this article shall be construed to include as a taxicab a motorbus as defined in the general statutes, or a motor vehicle in livery service when such motor vehicle shall be hired for specific trips and shall be subject to the direction of the person hiring the vehicle.
(Code 1977, § 33-16)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, G.S. § 13b-95.

Secs. 33-27—33-29. Reserved.

Editor's note—Ord. No. 20-91, adopted May 13, 1991, repealed §§ 33-27—33-29 and 33-31—33-35, which pertained to taxicab regulations and derived from Code 1977, §§ 33-17, 33-19—33-21, 33-23—33-25. See the Code Comparative Table for a detailed analysis of inclusion.

Sec. 33-30. Driver's license required.

Each person who drives a taxicab in the City shall have obtained the licenses required of taxicab drivers under the general statutes.
(Code 1977, § 33-18; Ord. No. 20-91, 5-13-91)

Secs. 33-31—33-35. Reserved.

Note—See the editor's note at §§ 33-27—33-29.

Sec. 33-36. Stands.

No taxicab shall stand at any place in the City waiting for employment except at places designated as taxicab stands by the traffic authority of the City.
(Code 1977, § 33-26)

*__State law reference—__Regulation of taxicabs, G.S. § 13b-95 et seq.

Sec. 33-37. Transportation of persons with contagious diseases.

No taxicab shall be used for transporting any person who is sick with any contagious disease, or the body of any person who has died of a contagious disease.
(Code 1977, § 33-27)

Cross reference—Health and sanitation, Ch. 17.

Secs. 33-38—33-60. Reserved.

ARTICLE III. TRANSIT DISTRICT†

Sec. 33-61. Established.

By the authority granted under G.S. § 7-273b, a transit district is hereby established.
(Code 1977, § 33-38)

Sec. 33-62. Management.

The affairs of the transit district shall be managed in accordance with the statutory authority made and provided pursuant to this article. The Directors shall be appointed by a majority vote of the Council.
(Code 1977, § 33-39)

Sec. 33-63. Compliance with statutory requirements.

All requirements necessary for the establishment of a transit district shall be complied with in accordance with the statutory authority as provided in this article.
(Code 1977, § 33-40)

ARTICLE IV. PEDAL CABS

Sec. 33-64. Definitions.

For purposes of this article, a "pedal cab" is defined as a multiwheeled vehicle propelled by human power, capable of transporting passengers other than the operator thereof and which is made available to the public as a mode of transportation. A pedal cab shall be deemed to be a type of bicycle for purposes of this chapter and for

†__Cross reference—__Administration generally, Ch. 2.

purposes of the application of Connecticut laws applicable to the use of bicycles on public highways.
(Ord. No. 02-10, 1-25-10)

Sec. 33-65. License and registration required.

(a) No person shall utilize any portion of any public street or highway for the operation of a pedal cab unless said person is licensed to do so in accord with the requirements of this article.

(b) No pedal cab shall be operated on any portion of any public street or highway unless said pedal cab is registered in accord with the requirements of this article.
(Ord. No. 02-10, 1-25-10)

Sec. 33-66. Pedal cab license.

(a) *Application.*

(1) Application for a license to drive a pedal cab or for renewal thereof shall be made to the Licenses and Inspections Division upon a form furnished by the Division and shall contain information set out in this article under oath. Licenses shall only be issued to individuals and shall not be issued to partnerships, corporations, limited liability companies or other similar legal entities. Information to be contained on said application (or provided therewith) shall include:

a. Name;

b. Residence address and business address;

c. Date and place of birth;

d. Motor vehicle driver's license information (if any), including any restrictions placed upon the applicant's operation of a motor vehicle;

e. A complete set of fingerprints;

f. Whether the driver has ever been convicted of any felony or a misdemeanor and, if so, the details thereof;

g. Whether the driver has ever been denied any form of driver's license or has had any driver's license suspended or revoked;

h. Proof of workers' compensation insurance coverage in accord with Connecticut law (if applicable); proof of liability insurance in such types and such amounts as approved by the Chief Operating Officer or his designee, including provision that the City of Hartford be named as an additional insured on the relevant policy or policies of insurance;

i. The name of the owner(s) of the pedal cab(s) to be operated by the driver; and

j. Such additional detailed information as may, in the opinion of the Licenses and Inspections Division, be necessary to evaluate the fitness of the applicant to be granted a pedal cab driver's license.

(2) The application form shall also require the driver to state, under oath, that he has read the provisions set forth in this article; that he understands those provisions; and that he agrees to abide by them at all times.

(b) Should any of the above-referenced information provided by the licensee become inaccurate or outdated, the licensee shall promptly provide correct and accurate information to the Licenses and Inspections Division in the form of an amended application. No license fee shall be charged for such an amended application.

(c) *License fee.* The license fee for each license to drive a pedal cab shall be twenty-five dollars ($25.00) annually.

(d) *License renewable, not transferable.* A driver's license shall be valid for not more than one (1) year. A driver's license may not be sold, assigned or otherwise transferred.

(e) *License to be posted.* The driver's license shall state that complaints about the licensee may be made to the Licenses and Inspections Division. The license shall be posted in any pedal

cab while it is being operated by the licensee in a place where it is clearly visible to the passengers being carried therein.
(Ord. No. 02-10, 1-25-10)

Sec. 33-67. Pedal cab registration.

(a) *Application.*

(1) Application for a pedal cab registration or for renewal thereof shall be made by the owner of the pedal cab to the Licenses and Inspections Division upon a form furnished by the Division and shall contain information set out in this article under oath. Information to be contained on said application (or provided therewith) shall include:

a. Name of the owner of the pedal cab.

b. Business address.

c. The following identifying information:

1. In the case of individual owners; date and place of birth.

2. In the case of corporations, partnerships, limited liability companies or any other form of legally recognized entity:

(i) State and date of establishment or creation.

(ii) Certificate of legal existence or similar documentation establishing that the existence and operation of the entity is in current compliance with the laws of the State of Connecticut and the state in which it was created.

d. A serial number, vehicle identification number or similar individual identification number permanently affixed to and by which the registered pedal cab may be identified.

e. Proof of insurance in such types and such amounts as approved by the Chief Operating Officer or his designee from time to time, including, without limitation, liability insurance and, if applicable, workers' compensation insurance for any employees of the owner and further including provision that the City of Hartford be named as an additional insured on the relevant policy or policies of insurance. In addition, the owner shall indemnify and hold harmless the City of Hartford from any liability associated with the operation of the licensed pedal cab.

f. A cash or surety bond or other form of security in the amount of two hundred dollars ($200.00) to ensure compliance with the provisions of this article and to ensure prompt surrender of the pedal cab registration in the event that it is no longer in active use. A single bond or other form of security may be tendered to cover more than one (1) registration issued to the same owner provided that the amount thereof shall, at all times, be maintained in an amount equal to two hundred ($200.00) multiplied by the number of pedal cab registrations issued to the same owner.

g. The fare schedule itemizing all charges which the owner and/or driver shall charge to passengers for transporting them.

h. Such additional detailed information as may, in the opinion of the Licenses and Inspections Division, be necessary to evaluate the fitness of the applicant or the pedal cab vehicle to be granted a pedal cab registration.

(2) The application form shall also require the signatory for the applicant to state, under oath, that he has read the provisions set forth in this article; that he understands those provisions; and that the applicant agrees to abide by them at all times.

(b) *Registration fee.* The fee for each pedal cab registration shall be fifty dollars ($50.00) annually.

(c) Should any of the above-referenced information provided by the owner become inaccurate or outdated, the owner shall promptly provide correct and accurate information to the Licenses and Inspections Division in the form of an amended application. No registration fee shall be charged for such an amended application.

(d) *Registration renewable, not transferable.* A pedal cab registration shall be valid for not more than one (1) year. A pedal cab registration shall be assigned to each individual pedal cab and may not be sold, assigned or otherwise transferred. Each pedal cab shall be inspected for compliance with the requirements of this article at the time of initial registration and annually thereafter at the time of registration renewal.

(e) *Registration to be posted.* The pedal cab registration shall state that complaints about the pedal cab may be made to the Licenses and Inspections Division. The registration shall be posted in the pedal cab at all times in a place where it is clearly visible to the passengers being carried therein.

(f) *Limitation upon number of registrations to be issued.* No more than ten (10) pedal cab registrations shall be issued and outstanding at any time. Applications for pedal cab registrations shall be processed in the order in which they are received. For purposes of submitting an application for a pedal cab registration, an applicant may temporarily satisfy the requirements of subsection 33-67(a)(1)e. for up to sixty (60) days by providing proof that a pedal cab has been ordered from the dealer or manufacturer thereof; provided, however, that no registration shall be delivered to an applicant until full compliance with section 33-67 has been achieved and further provided that the application fee shall not be refunded if the applicant fails to fully satisfy the requirements of section 33-67.
(Ord. No. 02-10, 1-25-10)

Sec. 33-68. Equipment and operation.

Pedal cabs shall be operated in accord with the laws of the State of Connecticut applicable to the use of bicycles on the public highways at all times, including, without limitation, the following requirements:

(a) Pedal cabs shall be equipped with the safety equipment described in G.S. § 14-288 at all times. In addition, pedal cabs shall:

(1) Display a battery- or generator-operated lighted lamp or lamps upon the rear part of such bicycle at all times when lamps are required to be lit pursuant to G.S. § 14-96a. Such lamp or lamps shall, when lighted, emit a red light which in clear weather shall be visible at a distance of not less than five hundred (500) feet in the direction from which such pedal cab is proceeding.

(2) Be equipped with battery- or generator-operated turn signal lamps. Such lamps shall, when lighted, emit a flashing yellow light which in clear weather shall be visible at a distance of not less than five hundred (500) feet, both in the direction to and from which such pedal cab is proceeding.

(3) Be equipped with a pedal-power delivery system of chains and gears (or the equivalent thereof) sufficient to permit the pedal cab to accelerate from a standing position at a rate which will not unduly impede the flow of traffic.

(4) Be equipped with a hydraulic or mechanical disc brake system which will permit the pedal cab to stop safely in an emergency situation without affecting the stability of the vehicle.

(5) Be equipped with spoke reflectors placed upon each wheel and reflective tape marking the side edges of the pedal cab at both front and rear.

(6) Be equipped with at least one (1) side view or rearview mirror designed to allow the driver to observe traffic to the rear of the pedal cab.

(b) Pedal cabs shall be operated in the manner described in G.S. §§ 14-286a and 14-288 at all times. In addition:

(1) Turn signals shall be given by the use of the turn signal lamps required pursuant to this section.

(2) Pedal cabs shall pick up and discharge passengers as close to the curb line of the street as possible.

(3) Pedal cabs shall be operated in a manner which does not impede or block the normal or reasonable movement of vehicular or pedestrian traffic, except where necessary to comply with applicable provisions of law.

(4) Passengers shall be required to remain seated at all times while the pedal cab is in motion.

(5) Not more than three (3) passengers shall be permitted in a pedal cab at any time.

(6) Pedal cabs shall be liable to pay for metered on-street or off-street parking operated by the City of Hartford in the same manner as is applicable to any motor vehicle utilizing such a metered parking space.

(7) Drivers of pedal cabs who also have a motor vehicle driver's license shall comply with any restrictions set forth on said license at all times while driving a pedal cab.

(8) A clearly legible copy of the fare schedule shall be posted in the pedal cab at all times in a place where it is clearly visible to the passengers being carried therein.

(9) Pedal cabs shall not be operated while the driver is under the influence of alcohol or controlled substances other than medication prescribed for the driver by a physician which does not adversely affect the ability of the pedal cab driver to operate the pedal cab.

(Ord. No. 02-10, 1-25-10)

Sec. 33-69. Revocation of registration or license.

(a) The Division shall also have the power to deny or revoke any registration or license issued hereunder for cause after due notice in writing to the applicant/owner/licensee and after affording the applicant/owner/licensee the opportunity to be heard thereupon. Cause shall be deemed to include, but not be limited to, conviction of any felony or a misdemeanor occurring subsequent to the granting of the license or registration, false information knowingly given in the application for a license or registration, physical or mental impairment which jeopardizes the safety of passengers or other members of the public, failure to maintain complete and accurate license or registration information on file, or for any violation of the provisions of this chapter. In addition, a pedal cab registration shall be revoked for any pedal cab which, in the determination of the Licenses and Inspections Division, is not in active service. This authority shall be in addition to any other means of enforcement of City ordinances.

(b) In addition to the denial/revocation procedure authorized pursuant to subsection (a) of this section, the Division may also suspend any registration or license immediately and for a period not to exceed five (5) days if he determines that the interests of public safety so require. In any such case, the owner/licensee shall be afforded the opportunity to be heard within seventy-two (72) hours following such suspension.
(Ord. No. 02-10, 1-25-10)

Sec. 33-70. Penalties.

The penalty for violation of the provisions of this article shall be in accordance with section 1-4 of the City of Hartford Municipal Code.

(a) *General penalty.* Whenever in this Code or any other ordinance of the City or rule or regulation promulgated by any officer thereof under authority vested in him by law or ordinance any act is prohibited or is declared to be unlawful or any offense or the doing of any act is declared to be unlawful, where no specific penalty is provided, the violation of such ordinance, rule or regulation shall be punished by a

fine of ninety dollars ($90.00). Each calendar day that any such violation shall continue shall constitute a separate offense.

(b) The imposition of any punishment hereunder shall not prevent the enforced abatement of any unlawful condition by the City.

(c) In addition to the fines set forth in subsection (a) of this section, an additional administrative fee of two dollars ($2.00) per ten dollars ($10.00) of the amount of the fine(s) payable hereunder, or any fraction thereof, shall be payable to the City of Hartford by each person to whom a citation is issued.

(Ord. No. 02-10, 1-25-10)

Sec. 33-71. Effective date.

The provisions of this section shall be effective ninety (90) days after its passage.

(Ord. No. 02-10, 1-25-10)

Chapter 34

WEIGHTS AND MEASURES*

*Cross references—Fuel oil delivery vehicles, § 13-120; standard measures for testing automatic measuring devices required for gasoline dealers, § 16-1.

Sec. 34-1. Sealer—Appointment.

The sealer of weights and measures shall be appointed by the city manager.
(Code 1977, § 34-1)

Cross reference—City officers and employees generally, § 2-331 et seq.

Sec. 34-2. Same—Powers, duties generally.

The sealer of weights and measures shall have the powers conferred upon, and shall perform the duties prescribed for such officer by the general statutes and shall devote all his time during ordinary business hours to the duties of his office.
(Code 1977, § 34-2)

State law reference—Powers, duties of municipal sealers, G.S. § 43-6.

Sec. 34-3. Same—Powers as special constable.

The sealer of weights and measures shall have power to arrest upon view, without warrant, any person found by him violating any of the provisions of the ordinances of the city relating to weights and measures.
(Code 1977, § 34-3)

Sec. 34-4. Standards, apparatus to be procured.

The city manager shall procure, at the expense of the city, and shall keep at all times, a complete set of weights and measures and other appratus of such materials and construction as the state commissioner of weights and measures may direct. All such weights, measures and other apparatus, having been tried and accurately proven by such commissioner, shall be sealed and certified to by him and shall then be deposited with and preserved by the sealer as public standards for such municipality. Whenever the city neglects for six (6) months to do so, the city clerk, on notification and request by the commissioner of weights and measures, shall provide such standards and cause them to be tried, sealed and deposited at the expense of the city.
(Code 1977, § 34-4)

State law reference—Similar provisions, G.S. § 43-4.

Sec. 34-5. Inspections; fees.

Fees for the inspection of weighing and measuring devices shall be as follows:

(1)	Vehicle tank meters	$ 50.00
(2)	Retail tank meters, per nozzle	25.00
(3)	Taxi cab meters	15.00
(4)	Scales	
	a. 0—50 pounds	25.00
	b. 51—1,000 pounds	50.00
	c. Over 1,000 pounds	100.00
(5)	Parking garage/lot timers, per entrance and exit	15.00
(6)	Laundry dryers, per dryer	10.00
(7)	Car wash vacuum timers, per vacuum	10.00
(8)	Car wash timer, per stall	15.00

(Ord. No. 65-93, 11-22-93; Ord. No. 11-96, 6-24-96)

Sec. 34-6. Penalty for violation; hearing.

(a) The violation of any provision of this chapter where no specific penalty is otherwise provided for therein shall be punishable by a fine of ninety-nine dollars ($99.00).

(b) Any person issued a citation for violating the provisions of this chapter may, within ten (10) days of receipt of the citation, appeal in writing to a citation hearing officer in accordance with section 1-5.
(Ord. No. 10-90, 3-12-90; Ord. No. 65-93, 11-22-93)

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Chapter 35

ZONING*

Sec. 35-1. Zoning regulations.
Sec. 35-2. Land use regulation fees.

***Charter references—**Authority of city to regulate height, number of stories, size of buildings and other structures, yard area and other zoning regulations, Ch. XIX, § 6; amendment and changes of zoning regulations and zoning boundaries, Ch. XIX, § 7; zoning board of appeals, Ch. XIX, § 9.

Cross references—Commission on cultural affairs, § 2-176 et seq.; office of cultural affairs, § 2-196 et seq.; design review board, § 2-296 et seq.; construction managers, § 2-601 et seq.; alcoholic beverages, Ch. 4; amusements, Ch. 5; assemblies, festivals and parades, Ch. 7; buildings and property, Ch. 9; civic center and coliseum authority, Ch. 10; housing, Ch. 18; licenses and permits generally, Ch. 21; parks and recreation, Ch. 26; planning and development, Ch. 28; rehabilitation homes, Ch. 30; streets and sidewalks, Ch. 31; taxation and assessments for improvements, Ch. 32; vehicles for hire, Ch. 33.

Sec. 35-1. Zoning regulations.

The City of Hartford Planning and Zoning Commission Zoning Regulations (the "Regulations") are the controlling zoning regulations of the City of Hartford. Copies of the regulations are available for review and purchase at the Division of Licenses and Inspections, the Planning Division, the Office of the Corporation Counsel and the Office of the Town and City Clerk.
(Ord. 32-11, 6-13-11)

Sec. 35-2. Land use regulation fees.

Pursuant to Section 1.0.1 H (3) of the Zoning Regulations of the City of Hartford the following fees are established for all applications for approvals and permits being sought from the planning and zoning commission, the zoning board of appeals, the inland wetlands commission, and the historic preservation and properties commissions, and other required administrative planning and zoning reviews and activities.

Zoning Permits, Liquor Permits, Temporary Uses, Accessory Structures, Signage	**Fee**	**S&C Fee**
Zoning permit	$100.00	Yes
Accessory uses and accessory structures not requiring site plan review	$100.00	Yes
Temporary outdoor events	$100.00	Yes
Temporary uses	$100.00	No
Permanent liquor permit	$250.00	No
Signage (excluding Exempt Signs)	$250.00 + $50.00 per additional sign	Yes

Site Plan Review (per section 1.3.3 of Zoning Regulations	**Fee**	**S&C Fee**
Household Living		
1—3 unit dwellings	$250.00	Yes
4—20 unit dwellings	$625.00	Yes
21+ unit dwellings	$1,000.00	Yes
All other Residential/Lodging Uses, including civic and institutional uses. Retail Uses, Service Uses (except approvals of location), employment uses, infrastructure uses (except transmission towers), and industrial uses		
≤ 8,000 gross square feet (gsf)	$250.00	Yes
> 8,000 & ≤ 50,000 gsf	$625.00	Yes
> 50,000 gsf	$1,000.00	Yes
Where no structure exists, these tiers shall be associated with the square footage of the lot, rather than the structure.		
Approvals of location for automobile-related uses as required by State Statute	$450.00	No
Accessory uses and accessory structures requiring site plan review, other than freestanding radio or wireless towers or small cell nodes	$250.00	Yes
Adult uses	$1,000.00	Yes
Transmission towers, freestanding radio or wireless towers, and small cell nodes for new location or modifications to existing location	$750.00	Yes
Open space uses	$250.00	Yes

Where there are a mix of uses proposed, the higher fee shall be submitted, plus 50% of the fees required for any additional uses. Use-specific zoning and site plan fees do not include signage or liquor permit fees.

The zoning and site plan fees are per building, per structure, per use, and per zoning lot, whichever is applicable, except for principal and accessory uses included in the same application, in which case the fee for principal uses applies.

The Planning & Zoning Commission shall reasonably interpret the fee schedule for uses not listed in the zoning regulations but determined to be "substantially similar" per section 3.2.3. of the zoning regulations.

Planning & Zoning Commission Review	**Fee**	**S&C Fee**
Non-public hearing application	$200.00 plus applicable site plan review fee	No
Public hearing application	$350.00 plus applicable site plan review fee	No
Campus Overlay Master Plan		
< 2 acres	$750.00	Yes
≥ 2 acres	$2,500.00	Yes
Application for text change of Zoning Regulations	$1,000.00	Yes
Application for Zoning Map change	$750.00 per parcel	Yes

Subdivision Regulations	**Fee**	**S&C Fee**
"First Cut" Subdivision creating no more than 2 lots	$250.00	Yes
Lot line revision	$250.00	Yes
Lot combination	$250.00	Yes
Subdivision creating 3 or more lots	$350.00 base + $150.00 per lot	Yes
Application for text change of Subdivision Regulations	$250.00	Yes
Violation of Subdivision Regulations	$500.00 per lot sold, offered for sale, or subdivided	No

Inland Wetlands & Watercourses (IWWW) Commission	**Fee**	**S&C Fee**
Administrative Review/No Significant Impact (no public hearing)	$200.00	Yes
Application requiring public hearing < 2 acres	$350.00	Yes
Application requiring public hearing ≥ 2 acres	$700.00	Yes
Application for text change of IWW Regulations	$250.00	Yes
Violation of IWW Regulations		
First violation	$1,000.00 per violation per day	No

Inland Wetlands & Watercourses (IWWW) Commission	Fee	S&C Fee
First violation if willful	$1,000.00 per violation per day plus + up to 6 months imprison-ment	No
Two or more violations	$2,000.00 per violation per day for any violation after first one cited.	No

Historic Properties and Preservation Commissions	Fee	S&C Fee
Application requiring administrative review	$50.00	No
Application requiring public hearing	$200.00	No
Violation of Historic Regulations	$100.00 per violation per day	No
Willful Violation of Historic Regulations	$250.00 per violation per day	No

Zoning Board of Appeals & Violations	Fee	S&C Fee
Appeal of decision by Zoning Administrator or Zoning Enforcement Officer by applicant or property owner	$200.00	Yes
Appeal of decision by Zoning Administrator or Zoning Enforcement Officer by aggrieved party	$40.00	Yes
Variance (other than Use Variance)	$350.00 per variance, per application	Yes
Use Variance (request for a use not permitted In the District where it is proposed to be located)	$750.00 per variance, per application	Yes
Violation of Zoning Regulations (not willful)	$100.00 per violation per day	No
Willful violation of Zoning Regulations	$250.00 per violation per day Or 10 days imprison-ment	No
Failure to comply with Order to Discontinue Violation	$2,500.00 per violation per day	No

General Fees	Fee	S&C Fee
Application for time extension for any approval, including time necessary to meet a condition of approval	$100.00	No
Additional fee for filing any application after receipt of an Order to Cease and Desist or an official violation of Land Use Regulations	$150.00	No
Deposit for posted notice signage	$50.00	No
Zoning verification letter	$50.00 per parcel	No
Additional research, including, but not limited to special permits, variances, other zoning approvals, Certificate of Occupancy, per parcel. (Fee does not include copies or scans of documents. Fee does include the pulling of files for inspection in the offices of the Department of Development Services).	$150.00 for research involving 5 or fewer years and 5 or fewer documents. $25.00 for each additional year and each additional document.	
Certificate of nonconformance	$250.00	No
Certificate of zoning compliance issued after land use approval and before Certificate of Occupancy	No charge for initial site visit. $100.00 for each subsequent inspection	No
Certificate of zoning compliance for existing use, unrelated to land use approval (requires site plan application	Application fee for site plan; review. No charge for initial site visit; $100.00 per subsequent inspection	No
Written determination of site plan review exemption	$40.00	No
Use of on-call consultant if required	Applicant invoiced for City's Expense	
State Soil & Conservation Fee	$60.00	NA

Maps, Publications, Copies, & Customer Service Charges (per copy)	Fee	S&C Fee
Maps printed larger than 11"×17" (color or black & white)	$35.00	No
Maps printed 11"×17" or smaller (color or black & white)	$5.00	No
Zoning Regulations (available in color only)	$50.00	No
Inland Wetland Regulations (black & white)	$25.00	No
Subdivision Regulations (black & white)	$25.00	No
Mailing via First Class Mail of application, map, or ordinance	$10.00	No
Copies or scans of documents	$1.00 per page	No

(Ord. No. 06-15, 4-13-15; Ord. No. 04-18, 7-9-18)

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Chapter 36

PERCENT FOR THE ARTS*

Sec. 36-1. Title.
Sec. 36-2. Background.
Sec. 36-3. Definitions.
Sec. 36-4. Statement of policy.
Sec. 36-5. Commission on cultural affairs standing committee on public art.
Sec. 36-6. Recommendation process.
Sec. 36-7. Council authority.
Sec. 36-8. Severability.

*__Editor's note—__Ord. No. 16-09, adopted Apr. 27, 2009, repealed former ch. 36, §§ 36-1—36-10, and enacted a new ch. 36, §§ 36-1—36-8 as set out herein. The former ch. 36 pertained to public art. See the Code Comparative Table for complete derivation.

Sec. 36-1. Title.

The "Percent for the Arts" ordinance for the City of Hartford.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Sec. 36-2. Background.

On January 26, 2009, the court of common council passed a resolution declaring its desire to create a "Percent for the Arts" public art policy in the City of Hartford for its capital improvement projects.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Sec. 36-3. Definitions.

(a) For purposes of this article, *capital improvement projects* means the following:

(1) Construction of buildings and structures such as city offices, administration buildings, school buildings, fire and police stations, airport terminals, and recreation centers;

(2) Construction or expansion of utilities such as power plants, electric substations, water plants, water towers and aboveground reservoirs, wastewater treatment plants, bus stations, parking structures and lots;

(3) Construction or renovations to maintenance facilities for public works and utilities, recycling centers and transfer stations; and

(4) Construction, renovations or expansions to parks, playgrounds, swimming pools, trails and playing fields.

(b) For purposes of this article, *public art* means permanent or portable pieces located on public property, arts integrated into the design of a public facility and garden landscaping.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Sec. 36-4. Statement of policy.

(a) Where fiscally appropriate and legally permissible, the city shall set aside one (1) percent of the cost of all above ground capital improvement projects which exceed five hundred thousand dollars $500,000.00 (including costs for architects and engineers but excluding land costs) to fund the creation and placement of public art according to the guidelines set forth in this resolution.

(b) Where feasible, amounts set aside for public art in connection with capital improvement projects shall be spent on public art which enhances the project and funds set aside for public art from a utility shall be spent on art which enhances the utility. No more than three (3) public art projects shall be initiated during any one (1) fiscal year. Each fiscal year an adequate amount shall be budgeted for the maintenance of existing public art.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Sec. 36-5. Commission on cultural affairs standing committee on public art.

(a) There is hereby established a commission on cultural affairs standing committee on public art. The committee shall consist of two (2) members of the commission on cultural affairs chosen by that commission; a member of the planning and zoning commission chosen by that commission; a representative from the Greater Hartford Arts Council; and shall be chaired by the head of marketing, events and cultural affairs or his or her designee. The head of marketing, events and cultural affairs will be permitted to vote in the event of a tie only. The planning and zoning commission shall appoint one (1) of its members to serve a two-year term on the standing committee beginning on July 1, 2009. The city council shall appoint to the standing committee on public art for terms beginning on July 1, 2009, one (1) member to serve a three-year term, one (1) member to serve a two-year term and one (1) member to serve a one-year term. After initial appointments, all members shall be appointed for three (3) year terms, except that

appointments to fill vacancies shall be for unexpired terms only. Members shall serve until their replacements are appointed.

(b) In addition to the regular members of the standing committee, up to three (3) temporary additional members may be appointed as hereafter provided for any specific public art project to serve until the public art work has been accepted by the city. The commission on cultural affairs may appoint two (2) of the additional members; one (1) shall be a representative of the neighborhood for the proposed site and the other shall be an appropriate artist/expert. At the request of the commission, the mayor may appoint as one (1) of the additional members a representative from the planning division of the department of development services.

(c) The standing committee shall receive city staff assistance as directed by the mayor.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Cross reference—Chapter 2, Article V, Division 4.

Sec. 36-6. Recommendation process.

(a) The mayor and staff shall use the following process when recommending percent for the arts projects:

(1) The mayor shall indicate on the capital improvements plan submitted in the proposed annual budget those capital improvement projects that meet the general criteria for percent for the arts.

(2) The capital improvements plan shall be forwarded to the cultural affairs commission and to the commission on cultural affairs standing committee on public art for their recommendations and priorities, which shall then be forwarded to the city council within forty-five (45) days of its receipt.

(3) The city council, by resolution, shall determine which capital improvement projects shall have a percent for the arts component and will authorize city staff to develop the public art component.

(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

Sec. 36-7. Council authority.

The final decision as to the type of art, location of the art, the work of art to be commissioned and the cost of the art shall rest solely with the court of common council subject to the zoning regulations.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12; Ord. No. 003-20, 6-22-20)

Sec. 36-8. Severability.

If any provision of these sections is held to be invalid by a court of competent jurisdiction, then such provision shall be considered separate and apart from the remaining provisions, which shall remain in full force and effect.
(Ord. No. 16-09, 4-27-09; Ord. No. 07-12, 5-29-12)

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Chapter 37

HARTFORD STADIUM AUTHORITY

Sec. 37-1. Creation.
Sec. 37-2. Articles of incorporation.
Sec. 37-3. Powers and responsibilities.
Sec. 37-4. Term of existence.
Sec. 37-5. Status.
Sec. 37-6. Membership; terms.
Sec. 37-7. Officers.
Sec. 37-8. Meetings.
Sec. 37-9. Compensation of authority members.
Sec. 37-10. Transfer of real property to the authority.
Sec. 37-11. Leaseback of ballpark properties.
Sec. 37-12. Authority bond offering.
Sec. 37-13. Other documents.
Sec. 37-14. Miscellaneous.

Sec. 37-1. Creation.

Pursuant to the provisions of G.S. §§ 7-130a through 7-130w, inclusive, Revision of 1958, as amended (the "Act"), there is hereby created the Hartford Stadium Authority ("Authority").
(Ord. No. 01-15, 1-26-15)

Sec. 37-2. Articles of incorporation.

The Articles of Incorporation of the Authority are as follows:

(a) The name of the Authority and address of its principal office shall be: Hartford Stadium Authority, 550 Main Street, Hartford, Connecticut 06103.

(b) The Authority is created under G.S. §§ 7-130a through 7-130w, inclusive, Revision of 1958, as amended.

(c) The City of Hartford shall be the sole participating municipality.

(d) The names, addresses and terms of the initial members of the Authority are as follows:

Name	*Address*	*Term Ending*
City Treasurer (currently Adam M. Cloud (D))	250 Constitution Plaza Hartford, CT 06103	December 31, 2015
Chief Operating Officer (currently Darrell V. Hill (D))	550 Main Street Hartford, CT 06103	December 31, 2015
R. Nelson "Oz" Griebel (R)	21 Temple Street, #404 Hartford, CT 06103	December 31, 2016
I. Charles Matthews (D)	4 Sunnydale Road West Hartford, CT 06117	December 31, 2016
Yolanda Rivera (D)	150 Ward Street Hartford, CT 06106	December 31, 2015

(e) The names and addresses of the initial ex officio participants are as follows:

Name	*Address*	*Term Ending*
Mayor (currently Pedro E. Segarra)	550 Main Street Hartford, CT 06103	December 31, 2015
COUNCIL PRESIDENT (currently Shawn T. Wooden)	550 Main Street Hartford, CT 06103	December 31, 2015

(f) The purpose of the Authority shall be to develop or to assist in the development by one (1) or more public or private entities of a Double A Minor League Ballpark located at 1214 Main Street and 271-273 Windsor Street in the Downtown North area of the City of Hartford, which may include support facilities, including but not limited to, parking and garage facilities to be located on a portion of 150 Windsor Street, and other facilities for public convenience, including but not limited to, restaurants and other concessions, and in aid thereof, to exercise the powers set forth in the Act.

(g) No part of the net earnings of the Authority shall inure to the benefit of any private person.
(Ord. No. 01-15, 1-26-15)

Sec. 37-3. Powers and responsibilities.

Subject to the provisions of the Act, the Authority shall have the following powers and responsibilities, to be exercised solely to accomplish the purposes set forth in section 37-2(f) hereof:

(a) To contract and be contracted with, to sue and be sued, to make and, from time to time, amend and repeal bylaws, rules and regulations not inconsistent with general law to carry out its purposes, and to adopt a corporate seal and alter the same at its pleasure;

(b) To acquire, purchase, lease as lessee, construct, reconstruct, improve, extend, operate and maintain projects within the city of Hartford and to acquire by gift or purchase lands or rights-in-land in connection therewith and to sell, lease as lessor, transfer or dispose of any property or interest therein acquired by it, at any time;

(c) To lease all or any part of any project upon any such terms or conditions and for such term of years as it may deem advisable where, in the opinion of the Authority, such leasing is for commercial uses related to the public uses of the project or unrelated to the public uses of the project but necessary and feasible for the financing or operation of the project;

(d) To regulate the uses of all lands and facilities under control of the Authority, subject to land use regulations of the City of Hartford;

(e) To fix and revise from time to time and to charge and collect fees, rents and other charges for the use of any project or facilities thereof, and to establish and revise from time to time regulations in respect of the use, operation and occupancy of any such project or facilities thereof;

(f) To enter into contracts with the City of Hartford, the state or any political subdivision, agency or instrumentality thereof, any federal agency or any private corporation, co-partnership, association or individual, providing for or relating to any project;

(g) To accept grants and gifts from the City of Hartford, the state or any political subdivision, agency or instrumentality thereof, any federal agency and from any private corporation, co-partnership, association or individual;

(h) To issue bonds and refunding bonds of the Authority, such bonds to be payable solely from funds of the Authority, provided that upon termination of the Authority pursuant to Section 37-4 hereof, title to all bond financed property shall revert to the City of Hartford;

(i) To make and enter into all contracts and agreements necessary or incidental to the performance and execution of its duties and the execution of its powers under G.S. §§ 7-130a through 7-130w of the Act, inclusive, including a trust agreement or trust agreements securing any bonds or refunding bonds issued hereunder; and

(j) To do all acts and things necessary or convenient to carry out the powers granted by the Act.

(k) To establish rules and regulations for the purchase of supplies, materials, equipment and contractual services necessary and incidental to the performance and execution of its duties and the execution of its powers.

(Ord. No. 01-15, 1-26-15)

Sec. 37-4. Term of existence.

The Authority shall continue to exist until abolished by subsequent ordinance of the Court of Common Council, which shall not be earlier than the repayment of all obligations of the Authority, including, without limitation, the retirement of all outstanding indebtedness of the Authority, or the assumption of such obligations by the City.
(Ord. No. 01-15, 1-26-15)

Sec. 37-5. Status.

The Authority shall be a public body politic and corporate of the State of Connecticut.
(Ord. No. 01-15, 1-26-15)

Sec. 37-6. Membership; terms.

The powers of the Authority shall be exercised by a commission, which shall consist of five (5) members appointed by the Court of Common Council, subject to minority representation requirements. The initial members are set forth in Section 37-2(d) hereof. The City Treasurer and the Chief Operating Officer shall be members of the commission concurrent with their terms as officials of the City. The Court of Common Council shall appoint the other three (3) members of the commission and shall make reasonable efforts to appoint members with a background or experience in the fields of law, finance, accounting, marketing or public relations, sports or recreation, and construction. The commission may include nonresidents, provided that Hartford electors constitute a majority of the voting members of the commission. The Mayor and the President of the Court of Common Council are entitled to attend and participate in all meetings of the commission as ex officio participants but shall not have the ability to vote.

Members that are not officials of the City shall serve for two-year overlapping terms. In order to create overlapping terms, the terms of two of the initial appointed members shall expire on December 31, 2016 and the term of one of the initial appointed members shall expire on December 31, 2015. The terms of the initial members of the commission are as set forth in Section 37-2(d) hereof. Upon expiration of the terms of the initial members, members shall be appointed to serve for a term of two (2) years in accordance with the bylaws and shall continue to serve until his or her successor shall be duly appointed. Nothing herein shall preclude any member from being reappointed to the Authority. Members may be removed by the Court of Common Council for cause.
(Ord. No. 01-15, 1-26-15)

Sec. 37-7. Officers.

The members of the commission shall annually elect one (1) of its members as Chairman, and shall elect a Secretary and Treasurer, who need not be members of the commission. The offices of Secretary and Treasurer may be combined. The Chairman shall conduct each meeting of the Authority in accordance with such bylaws as may be adopted thereby. The Director of Development Services of the City of Hartford shall serve as the Executive Director of the Authority.

Once the Authority is created, the members of the commission shall promptly call an initial meeting to elect officers in accordance with this Section 37-7.
(Ord. No. 01-15, 1-26-15)

Sec. 37-8. Meetings.

The Authority shall annually adopt a schedule of its regular meetings and file that schedule with the Town and City Clerk. The Authority may hold special meetings on the call of the Chairman or any two (2) members upon giving notice thereof to all members of the Authority at least twenty-four (24) hours in advance of such meeting.

All meetings of the Authority shall be held in compliance with the applicable provisions of the Connecticut Freedom of Information Act, as amended.

A majority of the voting members of the commission shall constitute a quorum and a vote of the majority of such members shall be necessary for any action taken by the Authority.
(Ord. No. 01-15, 1-26-15)

Sec. 37-9. Compensation of authority members.

The members of the Authority shall serve without compensation but may be reimbursed for the amount of actual expenses incurred by them in the performance of their duties.
(Ord. No. 01-15, 1-26-15)

Sec. 37-10. Transfer of real property to the authority.

Pursuant to the Act, the Mayor is authorized to execute and deliver a ground lease ("Ground Lease") conveying a leasehold interest in the

properties located at 1214 Main Street, 271-273 Windsor Street and a portion of 150 Windsor Street (collectively referred to as the "Ballpark Properties") to the Authority for the purposes of planning, designing and constructing a Double A Minor League Ballpark (the "Ballpark"). The Mayor is also authorized to sell the Ballpark Properties to the Authority for one dollar ($1.00) or such other consideration, if it is determined by the Mayor, the City Treasurer and the Chief Operating Officer to be in the best interests of the City for the financing or construction of the Ballpark. The terms and conditions of the Ground Lease or sale, as the case may be, shall be determined by the Mayor, including the right of the Authority to grant a mortgage on the Ballpark Properties (the "Mortgage") to a financial institution with trust powers (the "Trustee") to provide additional security for revenue bonds to be issued by the Authority (the "Bonds"). The Ground Lease or deed to the Authority need not contain a right of reverter to the City.
(Ord. No. 03-15, 2-14-15)

Sec. 37-11. Leaseback of ballpark properties.

Pursuant to the Act, the Mayor is authorized to execute and deliver a lease agreement (the "Lease Agreement") for the leaseback of the Ballpark Properties and the Ballpark from the Authority in exchange for lease payments subject to annual appropriation (the "Lease Payments"), which shall be sufficient to pay the principal of and redemption price and interest on the Bonds. The terms and conditions of the Lease Agreement shall be determined by the Mayor, including the right of the Authority to pledge the Lease Agreement to the Trustee to provide additional security for the Bonds, provided however, that such Lease Payments shall be for a term not in excess of twenty-six (26) years, shall not exceed four million, eight hundred sixty-seven thousand dollars ($4,867,000.00) per annum, and shall be subject to annual appropriation by the Court of Common Council. The Lease Agreement shall include the project costs to be set aside for certified minority and women business enterprises and the program of community benefits set forth in the Court of Common Council's Resolution 14 adopted on October 14, 2014 and shall provide that upon the full satisfaction and discharge of the Bonds and the termination of the Authority, all right title and interest of the Authority in the Ballpark Properties, the Ballpark and any other property financed by the Bonds shall revert to the City. Notwithstanding any prior resolution of the Court of Common Council, the aggregate cost of the development and construction of the Ballpark shall not exceed sixty-six million, three hundred thousand dollars ($66,300,00.00).
(Ord. No. 03-15, 2-14-15; Ord. No. 02-16, 2-22-16)

Sec. 37-12. Authority bond offering.

The Mayor and the City Treasurer are authorized to include the City's financial statements and financial information in the offering document for the issuance of the Bonds by the Authority and to execute and deliver any other instruments and agreements necessary or desirable in connection with the Authority's issuance of the Bonds.
(Ord. No. 01-15, 1-26-15)

Sec. 37-13. Other documents.

In connection with the transfer of the Ballpark Properties, the execution and delivery of the Mortgage and the Lease Agreement, and the issuance of the Bonds by the Authority, the Mayor, the City Treasurer and the Corporation Counsel are authorized to, and if any such action shall heretofore have been taken by the Mayor, the City Treasurer and the Corporation Counsel, such action is hereby ratified and confirmed, (a) publish such notices, hold such hearings, make such representations and agreements, and take such other actions as shall be necessary and/or desirable under the provisions of the Act or the City Charter, (b) make, execute and deliver all such additional and supplemental instruments, agreements, documents, and certificates, including but not limited to, tax agreements, amendments to the Ground Lease, Lease Agreement, and any other documents, environmental indemnities, hazardous substance agreements, financing statements, investment agreements and such other related documents, and (c) do and perform such acts and take such actions as may be

necessary or desirable for the consummation of the transactions provided for and contemplated by this Ordinance, as amended and the foregoing documents.
(Ord. No. 01-15, 1-26-15; Ord. No. 02-16, 2-22-16)

Sec. 37-14. Miscellaneous.

No person or entity shall be entitled to rely on, or otherwise claim any benefit by reason of this Ordinance should the Mayor, the City Treasurer or the Corporation Counsel fail to take any of the aforementioned actions, including but not limited to, a failure to execute any of the forgoing agreements and documents.

All approvals and authorizations provided hereby are contingent upon, and shall be effective on and by the means of, the parties executing such documents and taking such actions, all of which shall be in the form and substance acceptable to the Mayor and the Corporation Counsel.

To the extent the provisions of any prior resolutions or ordinances adopted by the Court of Common Council, including but not limited to the resolutions adopted by the Court of Common Council on October 14, 2014, are inconsistent with this Ordinance, such provisions are hereby repealed or amended to be consistent with the intent of this Ordinance.
(Ord. No. 01-15, 1-26-15)

MUNICIPAL CODE COMPARATIVE TABLE

1977 CODE

This table gives the location within this Code of those sections of the 1977 Code, as updated through November 3, 1987, which are included herein. Sections of the 1977 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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1-1	1-1	2-201—2-210	2-456—2-465
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1-4	1-4	2-231—2-250	2-501—2-520
1-5, 1-6	1-6, 1-7	2-254—2-278	2-536—2-560
1-7—1-11	1-9—1-13	2-287—2-294	2-576—2-583
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2-9	2-380	2-323	2-626
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2-17	2-11	2-334	2-652
2-18	2-99	2-334(A)	2-651
2-19, 2-20	2-82, 2-83	2-334(B)—2-334(M)	2-653—2-664
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2-51—2-56	2-56—2-61	2-360	2-696—2-698
2-69	2-81	2-361	2-699
2-70—2-76	2-86—2-92	2-370—2-373	2-716—2-719
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2-125.12	2-253	4-93	5-122
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2-125.16	2-254	6-16—6-27	7-31—7-42
2-125.17	2-252	6-28	7-16
2-125.18	2-258	6-40—6-48	7-76—7-84
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11-5	11-31	17-17—17-20	17-23—17-26
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30-152	31-261	35-5.197—35-5.208	35-636—35-647
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31-1—31-15	32-1—32-15	35-5.223—35-5.234	35-696—35-707
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32-17—32-23	22-21—22-27	35-5.262—35-5.275	35-816—35-829
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MUNICIPAL CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1977 Code, which are included herein. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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32-79	11-30-79		35-854
33-79	11-30-79		35-854
34-79	11-30-79		35-895
36-79	11-30-79		35-854
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8-81	3-23-81		35-854
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32-97	11-24-97		Added	26-47
33-97	11-24-97			27-28
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8-98	5-26-98			2-486
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20-98	6- 8-98			35-269
21-98	6- 8-98			35-270
22-98	6- 8-98			35-854
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25-98	6- 8-98			35-883
26-98	6- 8-98			35-884(b)
27-98	6- 8-98			35-885
28-98	6- 8-98			35-887
29-98	6- 8-98			35-888
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48-98	6- 8-98			9-15(i)(1), (5)
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21-00	10-10-00			35-854
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23-00	10-10-00			35-854
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25-00	10-10-00			35-854
26-00	10-10-00			35-854
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28-00	10-10-00			35-854
29-00	10-10-00			35-854
30-00	10-10-00			35-854
31-00	10-10-00			35-854
32-00	10-10-00			35-854
33-00	10-10-00			35-854
34-00	10-10-00			35-854
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61-02	11-25-02			26-45
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63-02	1-13-03			32-18(a)(4), (j)
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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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